# Cardinia Planning Scheme

PLANNING SCHEME

# 00 PURPOSE AND VISION

02/09/2025
VC283

This section sets out the purpose of this planning scheme, and the vision and strategic direction for Victoria and the municipality.

## ACKNOWLEDGEMENT OF COUNTRY

The Victorian Government acknowledges Traditional Owners in Victoria as the custodians of Country. We acknowledge their extraordinary strength and resilience in the face of historical and ongoing social, economic and legal injustices, maintaining their connection to Country.

We pay our respects to Elders past and present, whose knowledge and wisdom have ensured the continuation of spiritual and cultural practices. We also acknowledge the diversity of First Peoples' communities in Victoria.

We acknowledge that the long-lasting, far-reaching and intergenerational consequences of colonisation and dispossession continue to exist today and continue to cause harm. Colonisation has left entrenched systemic and structural racism and suffering, including through the laws and policies of the Colony of Victoria, which specifically excluded First Peoples and their laws, lores, customs, languages and cultures. The Victorian Government has a responsibility to transform its systems and service delivery so First Peoples have decision-making power over matters that directly affect them.

To address this exclusion, the Victorian Government commits to ongoing engagement with Traditional Owners and First Peoples to restore and strengthen their rights in this planning scheme.

# 01 PURPOSES AND VISION FOR VICTORIA

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# 02 MUNICIPAL PLANNING STRATEGY

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## 02.01 CONTEXT

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The Shire is located on the south east fringe of Melbourne and is one of eight 'interface councils' that form the perimeter of metropolitan Melbourne, providing a transition between urban and rural areas. The municipality has an area of approximately 1,280 square kilometres, comprising a variety of landforms and landscapes.

The northern part of the Shire is set in the foothills of the Dandenong Ranges, and includes the Bunyip State Park and the Cardinia Reservoir. The red volcanic soils around Gembrook are historically significant for agriculture. The area is located within two water catchments being the Yarra Valley and Westernport catchments.

The Koo Wee Rup swamp and Western Port form the significant features of the southern part of the Shire and includes high quality agricultural land of State significance. The land is generally flat alluvial plains that have been substantially cleared of vegetation. The exception to this is the Heath Hill area, an area that is recognised as being of landscape significance by the National Trust.

The population within the Cardinia growth area is expected to grow 79 per cent from the estimated current population of around 112,000 people (October 2019) to approximately 200,000 people in 2041.

## 02.02 VISION

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The Shire's vision for the municipality is:

> *Cardinia Shire will be developed in a planned manner to enable present and future generations to live healthy and productive lives and to enjoy the richness of the diverse and distinctive characteristics of the Shire.*

Planning will sustain the wellbeing of the community and the environment by seeking to balance the competing needs of the environment, economic development and the community and in particular by:

- Developing a strong economic base.
- Recognising and protecting the diverse and significant environmental and cultural heritage values in the municipality.
- Providing a cohesive and safe built environment for people to live, work and visit.

# 02.03 STRATEGIC DIRECTIONS

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## 02.03-1 Settlement

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### Settlement

Most of the Shire's population is located within the urban areas of Beaconsfield, Officer and Pakenham. These areas, along with Cardinia Shire's newest suburb currently referred to as Pakenham East, are part of the Casey-Cardinia South-east Growth Corridor of metropolitan Melbourne. This corridor will accommodate most of the future residential and commercial growth. The remainder of the population is located within Cardinia's townships and rural residential areas.

Settlement is primarily focused in ten precincts within the Shire's urban areas, as well as the rural townships listed in Table 1. In the urban area there are two precincts in the 'Urban Established Areas', being Beaconsfield and Pakenham identified in the plan at Clause 02.04-2, and eight precincts in the 'Urban Growth Areas' identified in the plan at Clause 02.04-3, which cover Officer, Officer South, Pakenham East and part of Pakenham South.

**Table 1 - Rural townships**

| Large rural townships | Small rural townships | Rural localities |
|---|---|---|
| Emerald | Avonsleigh | Tynong North |
| Gembrook | Clematis | Tonimbuk |
| Cockatoo | Bayles | Pakenham South |
| Upper Beaconsfield | Cardinia | Pakenham Upper |
| Garfield | Maryknoll | Iona |
| Bunyip | Tynong | Cora Lynn |
| Koo Wee Rup | | Catani |
| Lang Lang | | Heath Hill |
| Nar Nar Goon | | Caldermeade |
| | | Monomeith |
| | | Dewhurst |
| | | Modella |
| | | Yannathan |
| | | Guys Hill |
| | | Nangana |

The capacity for sustainable growth of townships varies depending on the environmental and infrastructure capacities of each town.

Subdivision restructure has occurred in several areas in the municipality which were subdivided into urban size lots prior to the introduction of planning controls. These areas often had no services available, were on topography not suited to urban development and are in areas which were heavily vegetated. The development of housing on these lots at the density of the original subdivision is not sustainable and would lead to significant environmental degradation.

Council's strategic directions for settlement are to:

1. Direct residential development to:
   - The Urban Established Area in Beaconsfield.

- The Urban Established Area generally north of the Princes Freeway in Pakenham.
- The Urban Growth Area north of the Princes Freeway (Pakenham Bypass).

2. Protect land in the Urban Established Areas from development that limits the future orderly and efficient development of the land for urban purposes.
3. Support Emerald and Koo Wee Rup as a focus for higher order commercial and community facilities and services.
4. Limit residential development, including rural residential subdivision, in the hills towns (Emerald, Gembrook, Cockatoo, Upper Beaconsfield, Clematis, Avonsleigh, and Maryknoll) unless provided for by the township strategies or the development results in significant environmental or community benefits.
5. Develop Gembrook township as a major tourism destination based on a heritage theme and the scenic qualities of the area.
6. Consolidate and activate Koo Wee Rup's commercial and civic town centre.
7. Provide for the restructuring of inappropriate subdivisions.
8. Provide a distinct character and identity for urban areas through retention of existing vegetation, respect for topography, appropriate streetscaping and provision of adequate open space.

### Western Port Green Wedge

The Western Port Green Wedge encompasses the southern rural areas of Cardinia Shire and the City of Casey. It covers a land area of approximately 746 square kilometres across both municipalities and will be a permanent edge to Melbourne's southeast. Approximately 615 square kilometres is located within Cardinia Shire.

A large proportion of Cardinia's Western Port Green Wedge has some of the best agricultural soil in Melbourne. Important natural resources exist within this green wedge, with existing sand extraction industry in operation around Lang Lang and potential for future extractive industry to occur in the north. It also has important biodiversity values, particularly the internationally significant Ramsar wetlands and habitat for endangered species including the southern brown bandicoot and the growling grass frog.

There are a number of rural townships and localities that provide opportunities for non-urban township living as well as providing a focus for local provision of services, schools and employment. This green wedge also has important recreation assets such as the Pakenham Racing Club's racecourse in Tynong and a potential future third airport.

Council's strategic directions for the green wedge are to:

1. Protect and facilitate the sustainable use of agricultural land, particularly land with soil that is of a high quality within the Western Port Green Wedge.
2. Maintain and enhance the Western Port Green Wedge biodiversity, landscape and environmental values.
3. Protect green wedge land by preventing further encroachment of urban development into the Cardinia Western Port Green Wedge.
4. Allow limited growth of Cardinia Western Port Green Wedge settlements where it is supported by an adopted township strategy.
5. To give effect to Council's vision for the Cardinia Western Port Green Wedge.

### Activity centres

Officer and Pakenham are designated Major Activity Centres. Beaconsfield, Lakeside Boulevard and Lakeside Square are designated as a large Neighbourhood Activity Centre within the urban growth boundary. Emerald in the north and Koo Wee Rup in the south of the municipality are larger township Neighbourhood Activity Centres and there are smaller Neighbourhood Activity Centres dispersed throughout the municipality.

Council's strategic directions for the activity centres are to:

1. Encouraging development that reinforces the hierarchy of activity centres in the urban area.
2. Ensure the orderly expansion of the Pakenham Major Activity Centre.

## 02.03-2 Environmental and landscape values

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The diverse landscapes within the Shire are one of the municipality's strongest attributes. Five areas within the Shire are recognised as significant landscapes by the National Trust. These are the Western Port Coast, Heath Hill, Cockatoo Creek, Puffing Billy Corridor and Menzies Creek Valley.

The Shire contains a diverse environment with a wide range of native flora and fauna habitats and is known to contain State and Nationally significant rare and threatened species including the Southern Brown Bandicoot, Growling Grass Frog, Swamp Skink, Masked Owl, Helmeted Honeyeater, Powerful Owl, Dwarf Galaxias, Australian Grayling, Emerald Star Bush, Matted Flax-Lily and indigenous grasslands.

Most of the Shire is contained in the Western Port water catchment, which contains a Ramsar wetland, with a small northern section of the Shire in the Yarra water catchment.

There is pressure to develop land in locations of high scenic value.

The decline and fragmentation of habitats resulting in the loss of biodiversity is a key issue. Over 75 per cent of the native vegetation in the Shire has been cleared leaving those areas of remnant vegetation of particular significance and value in terms of maintaining biodiversity.

Council's strategic directions for environmental and landscape values are to:

1. Protect environmentally significant areas including the northern hills and the Western Port coast.
2. Protect the natural environment and character of rural townships including remnant vegetation in the hills townships.
3. Protect the Koo Wee Rup swamp area that contains important groundwater reserves and horticultural soils in the Western Port basin.
4. Maintain and re-establish wildlife corridors.
5. Maintain biodiversity especially in areas of significance.
6. Protect the environmental qualities that contribute to the rural character of Maryknoll.
7. Minimise the fragmentation of land and removal of vegetation in areas of high landscape value.
8. Protect the scenic corridor of the Puffing Billy Tourist Railway from extensive native vegetation removal and development that is inconsistent with the landscape values of the existing corridor.
9. Protect significant landscapes recognised by the National Trust including the Western Port Coast, Heath Hill, Cockatoo Creek and Menzies Creek Valley from development that is inconsistent with the landscape values and built form of the surrounds.
10. Protect landscapes that are an important element in the development of tourism.

## 02.03-3 Environmental risks and amenity

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Areas within the Shire, particularly north of the Princes Highway, are prone to bushfires due to the topography and vegetation. During the 1983 Ash Wednesday fires, there was a significant loss of life and property in the Upper Beaconsfield and Cockatoo areas.

Bushfire risk is the product of several factors including fuel levels, slope, climatic conditions, population and the degree of preparation of individual property owners to cope with a fire. Other factors such as the accessibility of land to fire fighting vehicles and the availability of water will affect the risk levels for individual properties.

The municipality has wide areas that are liable to flooding, including the Koo Wee Rup Flood Protection District. Climate change will increase the risk from bushfires and flooding.

The Shire's other environmental risks include water catchment management, stormwater, salinity and soil erosion.

Water catchments are an integrated environmental system, and any development or actions undertaken in one part of a catchment may have an effect on other parts of the catchment. [21.02.1 KI 1] Stormwater quality in both urban and rural areas need to be managed to minimise the impact of development on the environment.

There are areas within the municipality with a shallow groundwater table that increases the potential for salinity and its impacts on infrastructure and the environment.

Soil erosion occurs on steep land where there are dispersible soils and in areas prone to landslips as a result of native vegetation removal.

Council’s strategic directions for environmental risks are to:

1. Minimise the potential risk to life, property and the environment from the effects of bushfire and flooding and inundation.
2. Mitigate the detrimental impacts of development on the operation and health of waterway systems and on stormwater quality.
3. Discourage development that will be at risk from salinity or soil erosion or that will potentially increase the risk or extent of impacts from salinity or soil erosion.

## 02.03-4 Natural resource management

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### Agriculture

Agricultural production from the Port Phillip and Western Port Region is estimated at around 15 per cent of Victoria's annual gross value of agricultural production, has the highest average gross production value per hectare of any catchment management region in Victoria and is around four times greater than the State average.

The Koo Wee Rup Swamp area, with its peaty clay soil, is recognised for its high quality agricultural land of State significance. This area grows 90 per cent of Australia’s asparagus, of which 50 per cent is exported annually. There have been some inappropriate subdivisions of agricultural land in the Koo Wee Rup Flood Protection District.

The high quality red volcanic soils of the Gembrook area have an important potato producing history. The area has been affected by dieldrin contamination (detected in 1987) and the Potato Cyst Nematode (detected in 1992) which resulted in restrictions on cattle grazing and potato production. Despite these restrictions, various forms of viable agriculture can be maintained.

Given the importance of agricultural land to the economic viability of the area and the State, Council’s strategic directions for agriculture are to:

1. Protect agricultural land, particularly areas of high quality soils, from the intrusion of urban uses, incompatible development and fragmentation that would lead to a reduction in agricultural

viability, the erosion of the right of farmers to farm land, and ultimately the loss of land from agricultural production.

2. Provide for the establishment of intensive agricultural activities (e.g.: poultry farms and green houses) in a location and manner that minimises the impact on nearby residents and the environment
3. Support the restructure of inappropriate subdivisions in agricultural areas, including the Koo Wee Rup Flood Protection District, to reduce the impact of old and inappropriate subdivisions on the agricultural viability.

#### Extractive industries

In the Shire, there are identified Extractive Industry Interest Areas (EIIA), which significantly overlap with areas of high environmental and landscape values.

There are significant stone resources, being hard rock which is extracted primarily from the hills north of the Princes Highway.

The Lang Lang to Grantville region contains significant sand resources which are expected to become a major source of sand for the Melbourne supply area over the next 10 to 20 years. The extraction of the sand resources will have significant economic, social and environmental effects on the area.

There are potential amenity impacts from extractive industry operations including noise, dust, transport and blast vibration.

Council's strategic directions for extractive industries are to:

1. Protect sand and stone resources and existing extractive industry operations from development that may impact on their viability.

## 02.03-5 Built environment and heritage

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#### Urban design

The long-term benefits of good design are a more attractive, functional and sustainable built environment. Good design is based on the principle of being site responsive, designing to consider the character and constraints of a site and wider area.

Conserving, reducing and effectively managing the resources we use are essential to achieving ecological sustainable development. The use of fossil fuels, particularly in electricity generation and transport has been the major source of greenhouse gas emissions resulting in climate change. Three key areas for reducing the impact on the environment within the municipality are air, water and general waste.

Council's strategic directions for heritage are to:

1. Support building design that engages with the public realm and assists in increasing safety and the perception of safety for the community.
2. Encourage the use of environmentally sustainable design and construction materials.
3. Protect exotic vegetation if it is of heritage, cultural or economic value, or contributes to the character of an area.

#### Heritage

The Shire contains Aboriginal heritage sites and places of cultural significance, some of which have been identified and formally recorded but many which have not. Council seeks to ensure heritage sites and places are preserved for current and future generations.

The rich and diverse cultural heritage of the Shire illustrates the historic use, development and occupation of the land. This history is demonstrated by a wide range of heritage places that include buildings and structures, monuments, trees, landscapes and archaeological sites. These places give Cardinia a sense of historic continuity as well as demonstrating the economic, social and political circumstances of the time.

Council's strategic directions for heritage are to:

1. Identify and protect sites of significant Aboriginal heritage.
2. Protect places of heritage significance including war memorials and avenues of honour.
3. Protect trees with heritage significance.

## 02.03-6 Housing

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Housing within the Shire is currently dominated by detached dwellings in both urban and rural areas. The urban area includes the Urban Established Area and the Urban Growth Area, while the rural area comprises Townships and rural-residential development.

The urban area in the Shire will continue to attract predominantly young families into the foreseeable future. However, as the housing market progressively matures and the needs of households change there will be increasing demand for more diverse forms of housing.

Accommodation for older people in townships is important, particularly where the unavailability of such accommodation would lead to people being forced to leave a community with which they have a strong association.

The indiscriminate development of land for small lot rural and rural residential purposes may result in extensive land and water degradation, loss of high quality agricultural land and unnecessarily high development and maintenance costs. This type of development requires careful management, including:

- Rural residential development, defined as single dwellings on lots of between 0.4 hectare and 2.0 hectares.
- Rural living, defined as residential development on lots between 2 hectares and 16 hectares.

Council's strategic directions for housing are to:

1. Provide for diversity of housing types and densities, including increased housing density around activity centres.
2. Provide opportunities for development of 'affordable housing'.
3. Integrate rural residential and rural living developments with an urban area or township.
4. Facilitate diversity of housing choices in rural townships while ensuring consistency with the character of the township.
5. Minimise the impacts of rural residential and rural living developments on the environmental characteristics and constraints of the area.
6. Minimise the encroachment of rural residential and rural living developments on agricultural land.

## 02.03-7 Economic development

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Local employment for the growing resident population is largely serviced by activity centres and the 'Officer-Pakenham State-Significant Industrial Precinct' identified in *Plan Melbourne 2017-2050 (2017)*. There is currently a high level of commuting by residents to areas outside the municipality for employment. The employment corridor comprises approximately 2,500 hectares to the south of the Princes Freeway. When fully developed, this employment corridor will be a major business and employment provider for residents of the Shire and Melbourne's south-east region.

Smaller industrial precincts are located in Emerald, Maryknoll, Beaconsfield, Officer, Bunyip, Koo Wee Rup and Lang Lang. A number of existing industries add value to the process of agricultural production.

The South East Industrial Business Park located at the intersection of Bald Hill Road and Koo Wee Rup Road, Pakenham, provides 167 hectares of industrial land.

Tourism also plays an important role within the wider business community, with opportunities for visitors to experience the area's boutique farm produce, arts and crafts, cultural and historic locations, and the natural environment.

The Cardinia Western Port Green Wedge also has scope to build a successful tourism industry based on its produce. There needs to be a balanced approach between supporting new and growing businesses and protecting the green wedge environment and rural assets upon which the business is based.

Council's strategic directions for economic development are to:

1. Develop diverse local employment opportunities to meet the needs of a growing residential population.
2. Maintain agriculture as a strong and sustainable economic activity within the municipality.
3. Direct commercial activities along arterial roads to within strategic nodes.
4. Encourage the establishment of tourism land uses in rural townships.
5. Support the development of the State-significant Pakenham-Officer Industrial Precinct as a major provider of employment for south-east Melbourne.
6. Support tourist attractions of regional or State significance including:
   - The Pakenham Racecourse and associated facilities.
   - The Puffing Billy Tourist Railway and associated facilities.
   - Gumbuya World.
7. Provide additional industrial land to the south of the Koo Wee Rup town centre to facilitate the development of an additional industry and service industry precinct within the township and encourage local employment opportunities.

## 02.03-8 Transport

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Pedestrian and cycling paths are important to support active lifestyles.

The sparse nature of settlement in the municipality affects the viability of providing public transport to all residents. The limited public transport services currently available is an issue of concern raised consistently by the community.

The Princes Highway and the Princes Freeway corridor runs east-west through the centre of the Shire and provides a demarcation between the hills in the north and the alluvial plains to the south. The corridor is a key road and rail link between Melbourne, the Latrobe Valley and Gippsland. The South Gippsland Highway is a key link to South Gippsland and a tourist route to Phillip Island.

The freeways and highways that cross the Shire pass through both urban and rural areas and carry a large volume of traffic, including freight and tourist traffic. Development along these arterial roads needs to be carefully managed to ensure that the efficient and safe movement of traffic and visual amenity is maintained and enhanced.

Future development in the Urban Growth Area will increase the demand for local roads infrastructure. There is also a present need to provide adequate roads and streets in the townships and to upgrade the existing local road network to support economic development and maintain environmental values.

With continuous major population growth, Cardinia Shire and surrounding areas would benefit from improved tourism and trade connections from the development of a new airport. The employment benefit to the region would also be significant.

Council has identified potential locations for a third airport between Koo Wee Rup and Lang Lang.

Council's strategic directions for transport are to:

1. Support and provide for the establishment of the Great Southern Rail Trail.
2. Support the creation of a regional open space network along Cardinia Creek and a multi-use trail linking the network to the Upper Beaconsfield township.
3. Facilitate the completion of the Lang Lang bypass to keep the heavy vehicles associated with the sand extraction industry out of the Town Centre.
4. Support the upgrading of both the Pakenham and Officer railway stations as a key element of these major activity centres.
5. Support new railway stations and upgrades of existing railway stations.
6. Provide east-west connections within the southern parts of the urban growth area.
7. Provide for the extension at Thompsons Road from Cranbourne through to Koo Wee Rup Road.
8. Provide for the extension of Grices Road from Berwick South to Cardinia Road to an arterial road standard.
9. Encourage the integration of public transport linkages to improve access to higher education facilities outside of the municipality including Federation University and Chisholm TAFE.
10. Provide for greater connectivity and infrastructure that encourages physical activity (including walking, cycling and recreational horse riding).

## 02.03-9 Infrastructure

13/03/2026
C271card

Infrastructure provision is one of the major issues facing the Cardinia Shire over the coming decades. The timely provision of physical and social infrastructure is necessary to foster economic development, ensure the wellbeing of the community and protect the environment. The provision of local recreational and community facilities assists in bringing people together and developing a cohesive community.

The population in the Shire is primarily focused on the activity centres and townships, with a growing emphasis on the urban growth corridor. It is important that all residents have a reasonable level of access to a range of services consistent with community needs, including rural townships.

There is a diversity of age groups within the Shire and it is important to provide services to meet the needs of particular age groups such as children, youth and the aged.

Cardinia Shire has a significant amount of regional open space, including Aura Vale Lake Park at Cardinia Reservoir, Gembrook Regional Park, Bunyip State Park and Emerald Lake Park. In addition, further regional parklands are proposed along the Cardinia Creek to both protect the environmental values of the corridor and provide a regional passive recreation resource, in recognition of the projected population growth in the Casey-Cardinia Growth Area.

There are also other significant waterways and streams throughout the Municipality that provide passive open space linkages.

Council's strategic directions for infrastructure are to:

1. Facilitate the delivery of arts and cultural facilities.
2. Improve provision and access to higher education and skills development for residents and support the establishment of a higher education facility within Pakenham.
3. Develop open space linkages.

4. Support the ongoing development of recreation reserves in the rural townships.
5. Provide active, passive and environmental open space, including varied play spaces, within the Urban Established Areas, the Urban Growth Area, and in townships.

## 02.04 STRATEGIC FRAMEWORK PLANS

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The plans contained in Clause 02.04 are to be read in conjunction with the strategic directions in Clause 02.03 and local policies.

## 02.04-1 Cardinia Shire Strategic Framework Plan

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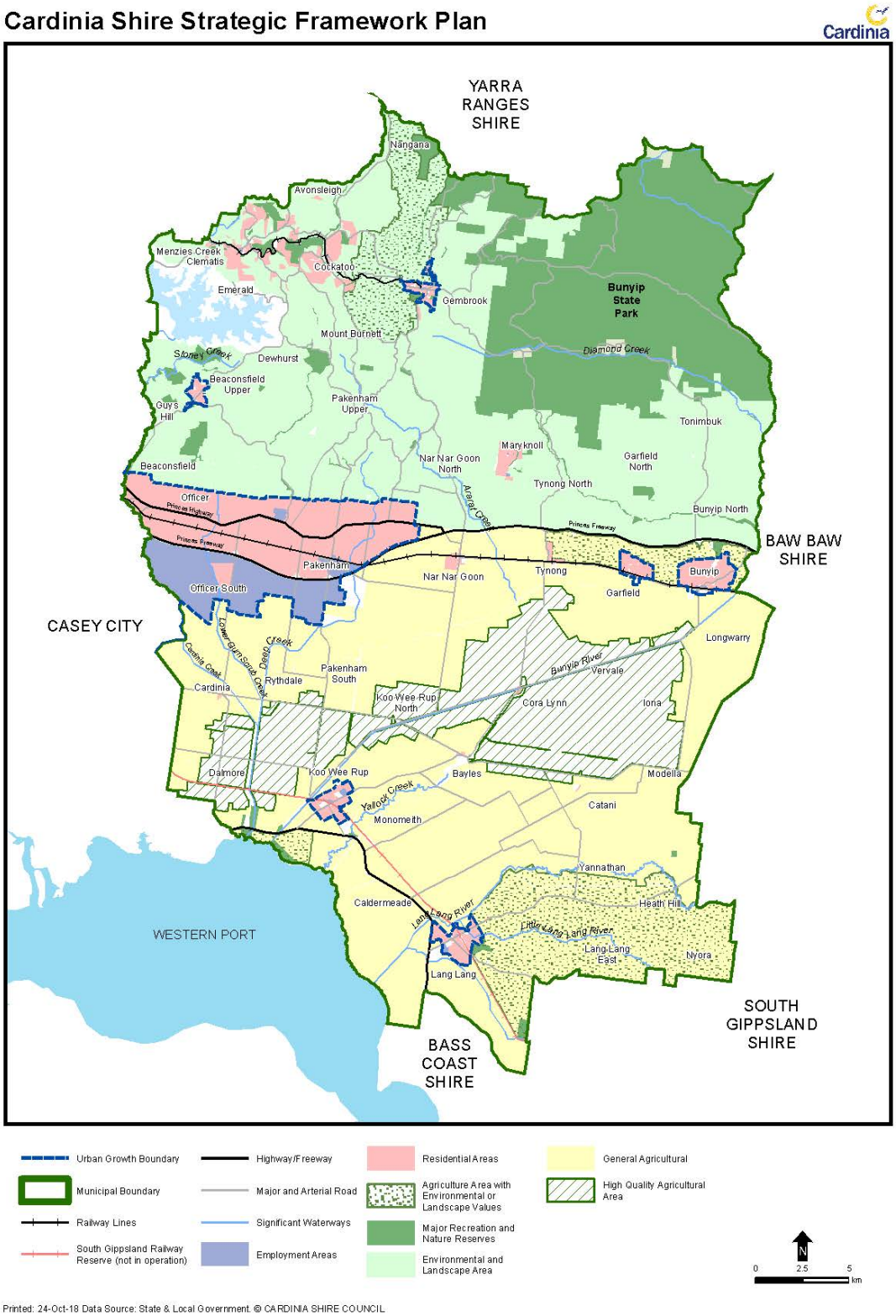

## 02.04-2 Cardinia Urban Established Area

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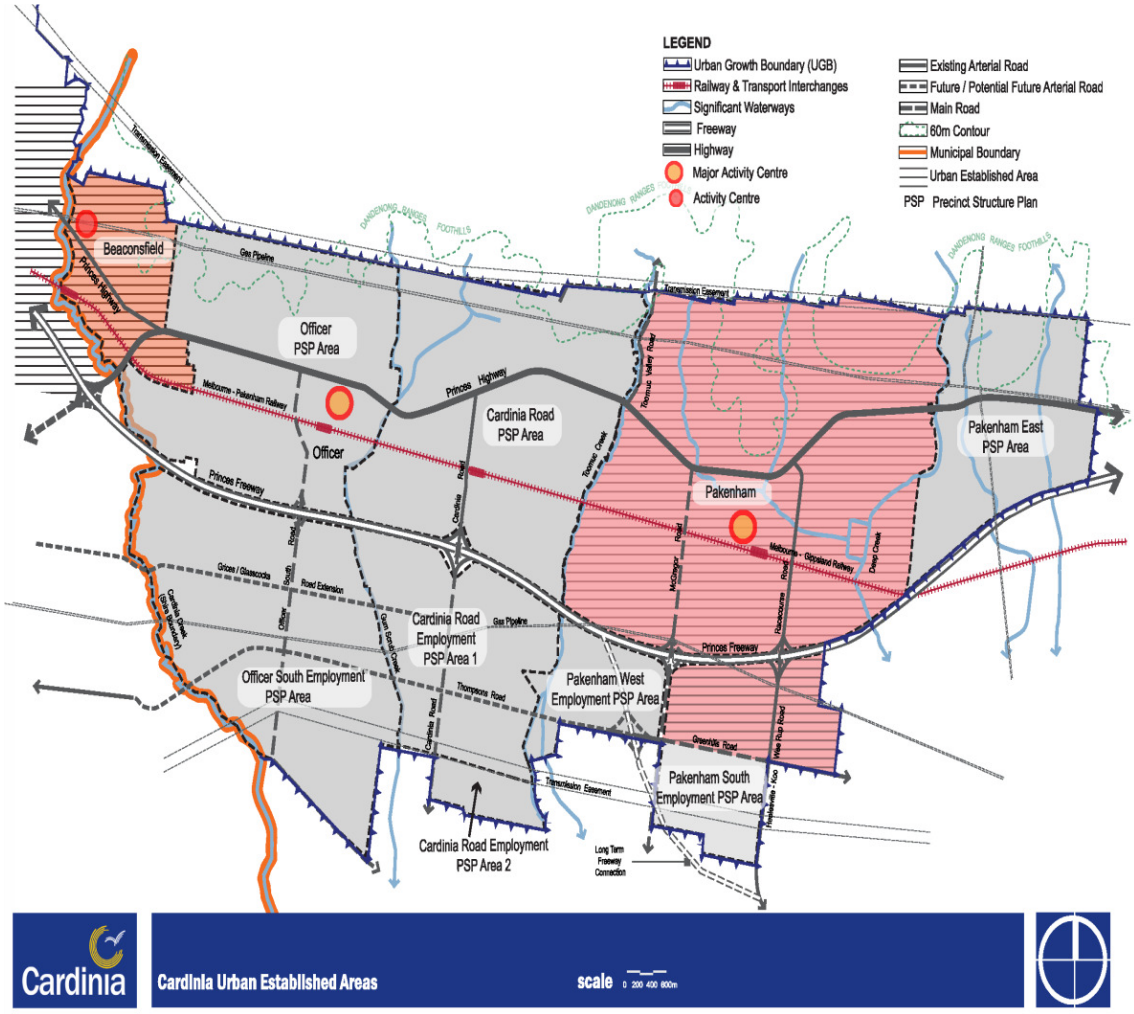

## 02.04-3 Cardinia Urban Growth Areas

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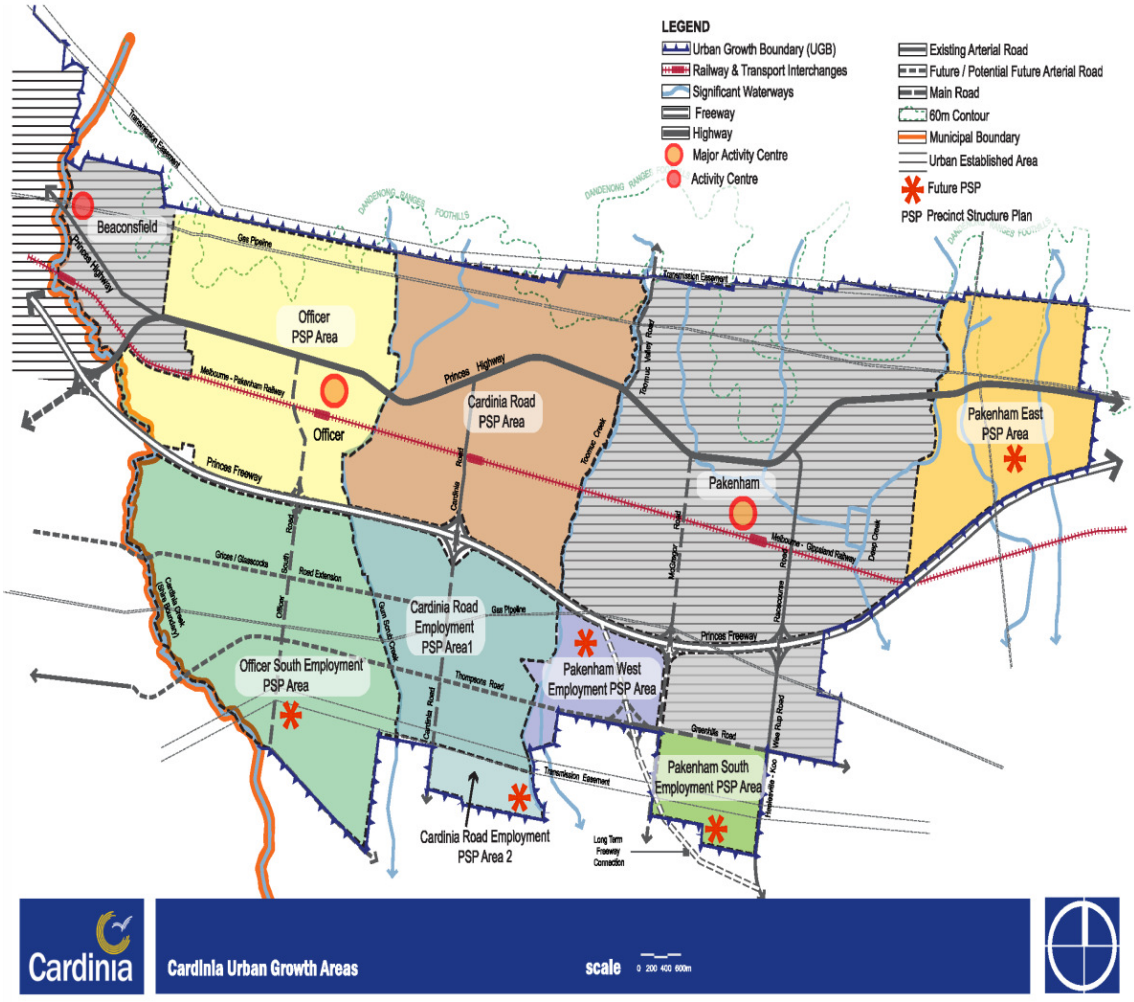

## 02.04-4 Cardinia Activity Centres

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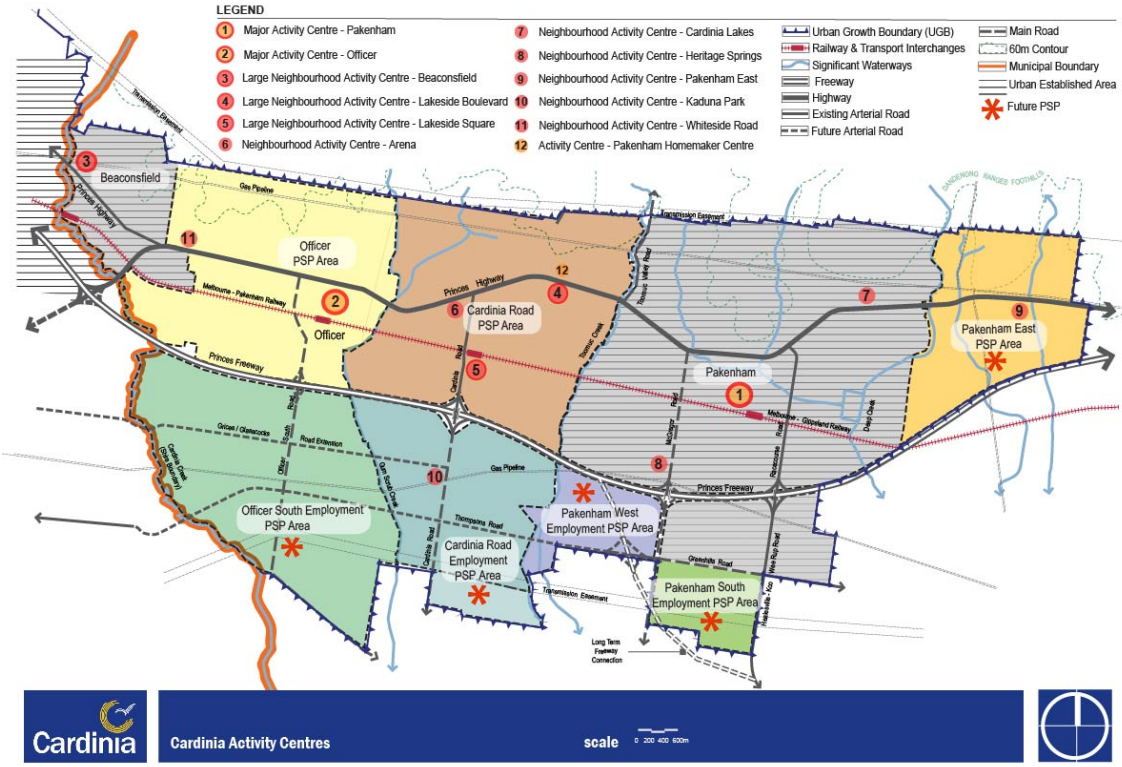


## 02.04-5 Cardinia Employment Areas

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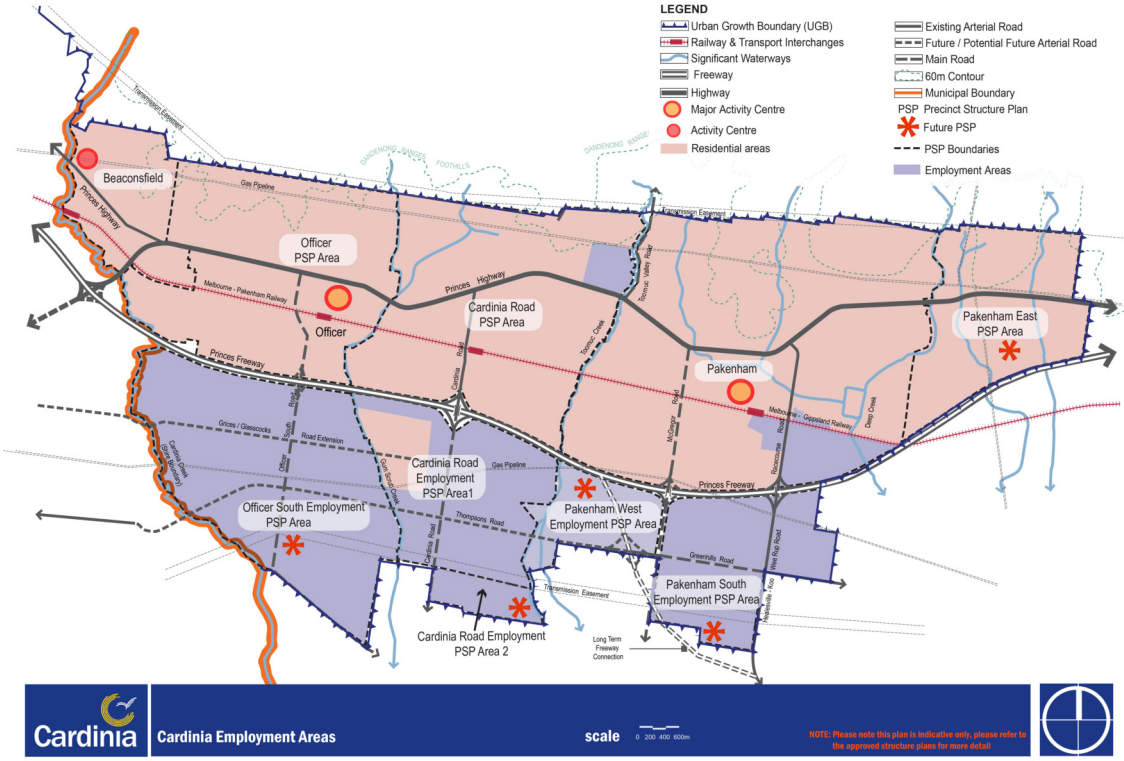


## 01.01 PURPOSES OF THIS PLANNING SCHEME

02/09/2025
VC283

- To provide a clear and consistent framework within which decisions about the use and development of land can be made.
- To express state, regional, local and community expectations for areas and land uses.
- To provide for the implementation of State, regional and local policies affecting land use and development.
- To support responses to climate change.

## 01.02 VISION FOR VICTORIA

02/09/2025
VC283

### THE PEOPLE'S PANEL VISION FOR VICTORIA

By 2050 Victoria will be a vibrant, accessible and connected community, valued for its diverse cultures, sustainable environmental practices and respect for the First Peoples of Victoria.

Building a state which provides choices and opportunities for current and future generations of Victorians in quality housing, transport, employment, environment and connectivity, will require input from community, government, local businesses and industry alike.

We will create a society that caters to the unique needs of all Victorians, nurturing individual health through physical and cultural recreation.

# 10 PLANNING POLICY FRAMEWORK

31/07/2018
VC148

# 11 SETTLEMENT

02/09/2025
VC283

Planning is to anticipate and respond to the needs of existing and future communities through provision of zoned and serviced land for housing, employment, recreation and open space, commercial and community facilities and infrastructure.

Planning is to contribute towards:

- Housing for all Victorians.
- Accessible jobs and services.
- Great places, suburbs and towns.
- Sustainable environments.
- Self-determination and caring for Country.

Planning is to recognise the need for, and as far as practicable contribute towards:

- Health, wellbeing and safety.
- Diversity of choice.
- Adaptation in response to changing technology.
- Economic viability.
- A high standard of environmental sustainability, urban design and amenity.
- Climate change adaptation and mitigation.
- Prevention of land, water, air and noise pollution.
- Protecting, conserving and improving biodiversity, waterways and other natural resources.
- Accessibility.
- Land use and transport integration.
- Waste minimisation and resource recovery.

Planning is to prevent environmental, human health and amenity problems created by siting incompatible land uses close together.

Planning is to facilitate sustainable development that takes full advantage of existing settlement patterns and investment in transport, utility, social, community and commercial infrastructure and services.

# 11.01 VICTORIA

31/07/2018
VC148

## 11.01-1S Settlement

02/09/2025
VC283

### Objective

To facilitate the sustainable growth and development of Victoria and deliver choice and opportunity for all Victorians through a network of settlements.

### Strategies

Plan for the delivery of 2.24 million homes across Victoria by 2051.

Develop sustainable communities through a settlement framework that:

- Offers a range of housing choices.
- Provides convenient access to jobs, services, infrastructure and community facilities.
- Takes into account regional and municipal contexts and frameworks.

Focus investment and growth in:

- Melbourne Central City.
- Metropolitan Activity Centres and Suburban Rail Loop Precincts in Metropolitan Melbourne.
- Priority Precincts (including the Suburban Rail Loop East Precincts).
- Major regional cities of Ballarat, Bendigo and Geelong.
- Regional cities of Horsham, Latrobe City, Mildura, Shepparton, Wangaratta, Warrnambool and Wodonga.

Manage the expansion of settlements by:

- Creating and reinforcing settlement boundaries. Where no settlement boundary is identified, limit the expansion of a settlement to the extent of existing urban zoned land.
- Promoting and capitalising on opportunities for urban renewal and infill redevelopment.
- Limiting urban sprawl and directing growth into existing settlements.
- Ensuring land that may be required for future urban expansion is not compromised.

Provide for growth in population and development of facilities and services across a regional or sub-regional network in accordance with housing targets.

Plan for development and investment opportunities that make best use of existing and planned transport infrastructure.

Coordinate transport, communications and economic linkages between settlements through the identification of servicing priorities.

Strengthen transport links on national networks for the movement of commodities.

Deliver networks of high-quality integrated settlements, suburbs and towns that:

- Are great places with a strong identity and sense of place.
- Are inclusive, prosperous, liveable and sustainable.
- Comprise a form and density that supports healthy, active and sustainable transport.
- Are based around compact existing or planned activity centres to maximise accessibility to facilities and services.
- Concentrate retail, office-based employment, community facilities and services in central locations.

Facilitate environmentally resilient settlements by:

- Integrating the management of water resources into the urban environment in a way that supports water security, public health, environment and amenity outcomes.

- Minimising exposure to natural hazards.
- Contributing to net zero greenhouse gas emissions through renewable energy infrastructure and energy efficient urban layout and urban design.
- Supporting metropolitan and regional climate change adaption and mitigation measures.
- Supporting cooling and greening measures for urban areas.

### Policy guidelines

Consider as relevant:

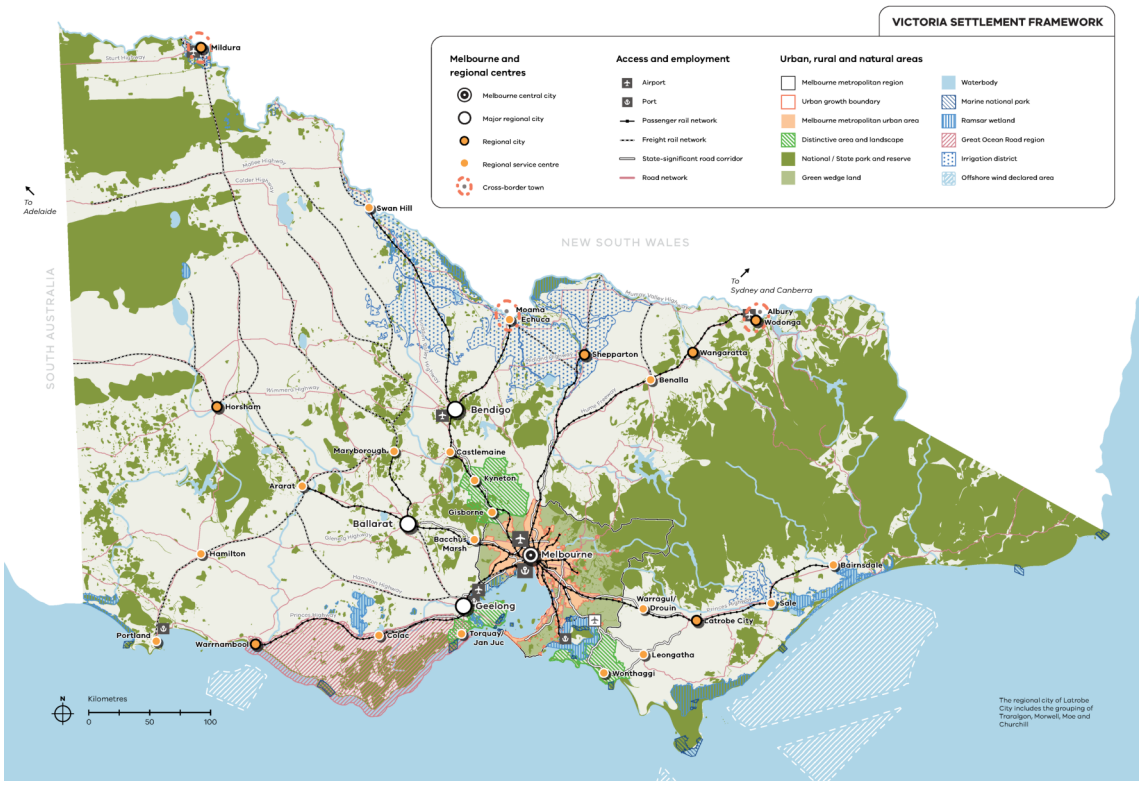
- Any settlement boundary identified in a document incorporated into this planning scheme.

### Policy documents

Consider as relevant:

- *Plan for Victoria* (Department of Transport and Planning, 2025)
- *Victoria's housing Statement - The Decade Ahead 2024-2034* (Department of Premier and Cabinet, 2023)

### Victoria Settlement Framework Plan



## 11.01-1R Settlement - Metropolitan Melbourne

02/09/2025
VC283

### Strategies

Maintain a permanent urban growth boundary around Melbourne to create a more consolidated, sustainable city and protect the values of non-urban land.

Focus investment and growth in:

- Melbourne Central City.
- Employment and Innovation Areas.
- Metropolitan Activity Centres.
- Priority Precincts, including Suburban Rail Loop Precincts.
- Activity Centres - Housing Choice and Stations.
- State-Significant Industrial Precincts.
- Transport Gateways.
- Health and Education Precincts.

Facilitate substantial growth and change in employment, health and education precincts to help meet the needs of Melbourne's rapidly growing population.

Develop a series of Priority Precincts that provide for an expanded Melbourne central city to support jobs and housing choice across Metropolitan Melbourne.

Develop Employment and Innovation Areas centred around medical, research and tertiary institutions that foster the development of emerging industries.

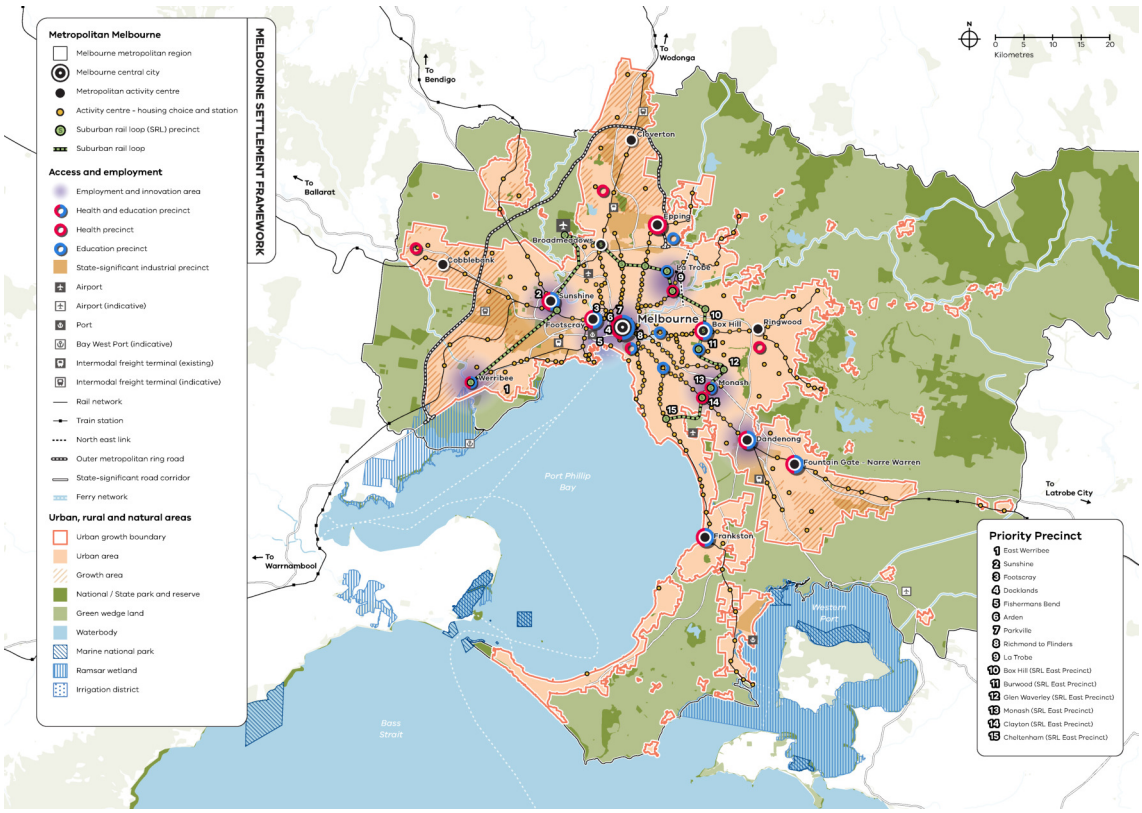
Create mixed use neighbourhoods at varying densities, including through the development of urban-renewal precincts and Activity Centres - Housing Choice and Stations.

Develop Metropolitan Activity Centres as:

- Higher-order centres providing a diverse range of jobs, activities and housing for catchments well-served by public transport.
- Major locations for service delivery, including of government, health, justice and education services. It also provides many retail and commercial opportunities.

Support a network of activity centres of varying size, role and function.

## Melbourne Settlement Framework Plan



## 11.01-1R Green wedges - Metropolitan Melbourne

31/07/2018
VC148

### Objective

To protect the green wedges of Metropolitan Melbourne from inappropriate development.

### Strategies

Promote and encourage the key features and related values of each green wedge area.

Support development in the green wedge that provides for environmental, economic and social benefits.

Consolidate new residential development in existing settlements and in locations where planned services are available and green wedge values are protected.

Plan and protect major state infrastructure and resource assets, such as airports and ports with their associated access corridors, water supply dams, water catchments and waste management and recycling facilities.

Protect important productive agricultural areas such as Werribee South, the Maribyrnong River flats, the Yarra Valley, Westernport and the Mornington Peninsula.

Support existing and potential agribusiness activities, forestry, food production and tourism.

Protect areas of environmental, landscape and scenic value such as biodiversity assets, national and state parks, Ramsar wetlands and coastal areas.

Protect significant resources of stone, sand and other mineral resources for extraction purposes.

Provide opportunities for renewable energy generation.

### Policy documents

Consider as relevant:

- *Upper Yarra Valley and Dandenong Ranges Region - Regional Strategy Plan* (1996)

## 11.01-1L-01 Bunyip

13/03/2026
C271card

### Strategies

Ensure that use or development within the Bunyip township is generally consistent with the *Bunyip Township Strategy, September 2009*, including the Bunyip Framework Plan (Figure 1).

Promote 'infill' development in Main Street and High Street.

Ensure further development of sites along Main Street does not compromise the future construction of the proposed car park at the rear of these lots.

Encourage new verandahs and the reinstatement of old verandahs in Main Street, Bunyip.

Encourage active uses at  street level in Main Street.

### Policy document

- Incorporated Document: *Bunyip Township Strategy* (Cardinia Shire Council, September 2009)

### Bunyip Framework Plan (Figure 1)

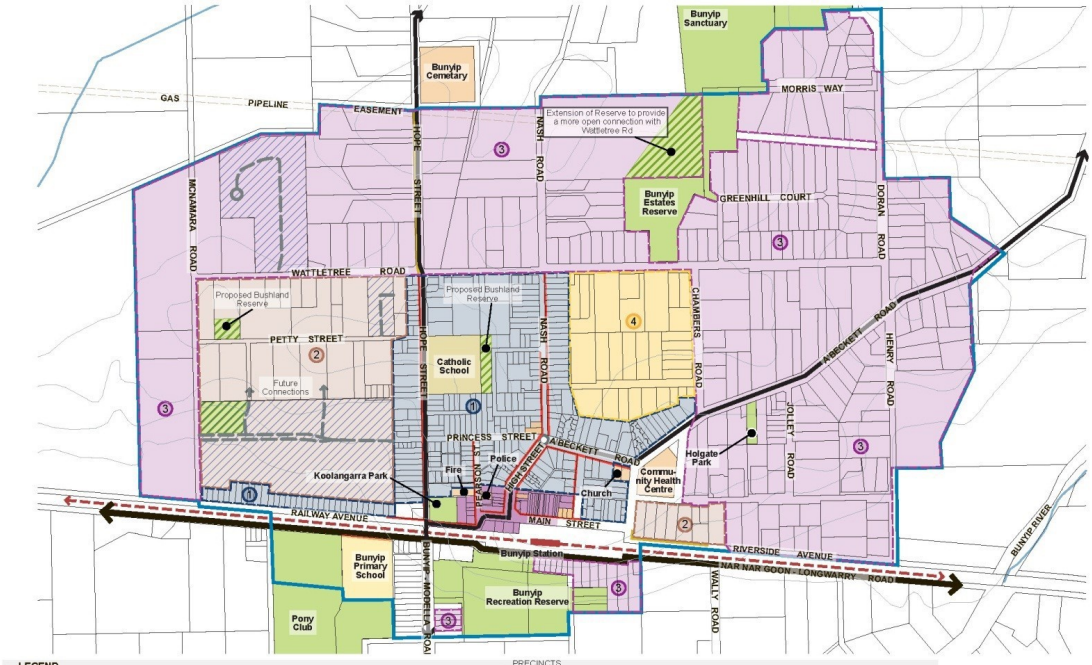



FIGURE 5: STRATEGIC FRAMEWORK PLAN

## 11.01-1L-02 Cockatoo

13/03/2026
C271card

### General Strategies

Ensure that use or development within the Cockatoo township is generally consistent with the *Cockatoo Township Strategy* (March 2008), including the Cockatoo Framework Plan (Figure 1).

### Residential development strategies

Maintain and enhance the 'rural country' character of Cockatoo through the retention of larger residential lots, the retention of existing remnant vegetation (particular canopy trees) and the use of building materials and colours that complement the natural environment.

Design development in accordance with the Precinct Character Guidelines in the *Cockatoo Township Strategy* (Cardinia Shire Council, March 2008).

Maintain a diverse range of lot sizes within the township.

Encourage permeable fences to enhance the bushland setting.

Avoid residential development where the land has a slope of greater than 20 per cent or is designated 'very poor' in the *Land Capability Study for the Cardinia Shire*, Department of Natural Resources and the Environment, February 1997.

### Economic development strategies

Encourage retail and commercial land use and development to be located in the Cockatoo town centre.

Support uses that operate during the evening and weekend (such as restaurants and cafes) in McBride Street.

Facilitate a small service industry within the Cockatoo town centre.

### Town centre design strategies

Design developments to meet the preferred height of buildings along McBride Street.

Design second storeys so that they are not visually intrusive, and do not interrupt view lines from Belgrave-Gembrook Road or Pakenham Road.

Ensure that any development of the vacant land on Fairbridge Lane enhances the visual amenity of McBride Street.

Discourage the use of roller shutters on shop fronts.

### Town centre design policy guidelines

Consider as relevant:

- Providing for up to two storey buildings as the preferred height immediate to McBride Street.

### Policy documents

Consider as relevant:

- Incorporated Document: *Cockatoo Township Strategy* (Cardinia Shire Council, March 2008)
- *Cockatoo Town Centre Urban Design Framework* (revised November 2007)
- *Land Capability Study of the Cardinia Shire* (Cardinia Shire Council, February 1997)
- *Cockatoo Community Reserve (Alma Treloar) Masterplan* (Cardinia Shire Council, 2003)
- *Laneway Closure Scheme* (Cardinia Shire Council, 2002)

## Cockatoo Framework Plan (Figure 1)

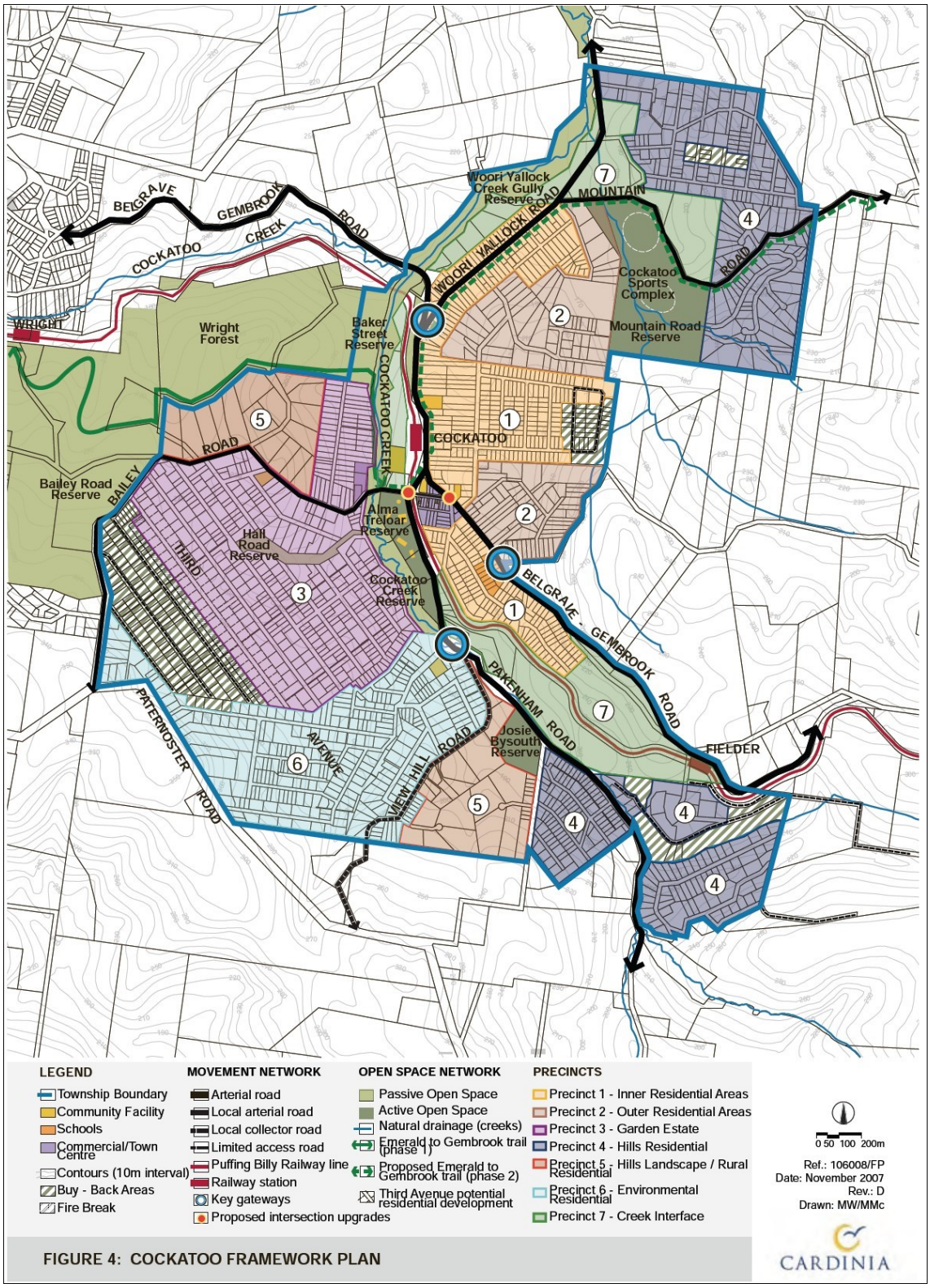



FIGURE 4: COCKATOO FRAMEWORK PLAN

**Cockatoo Town Centre Framework Plan (Figure 2)**

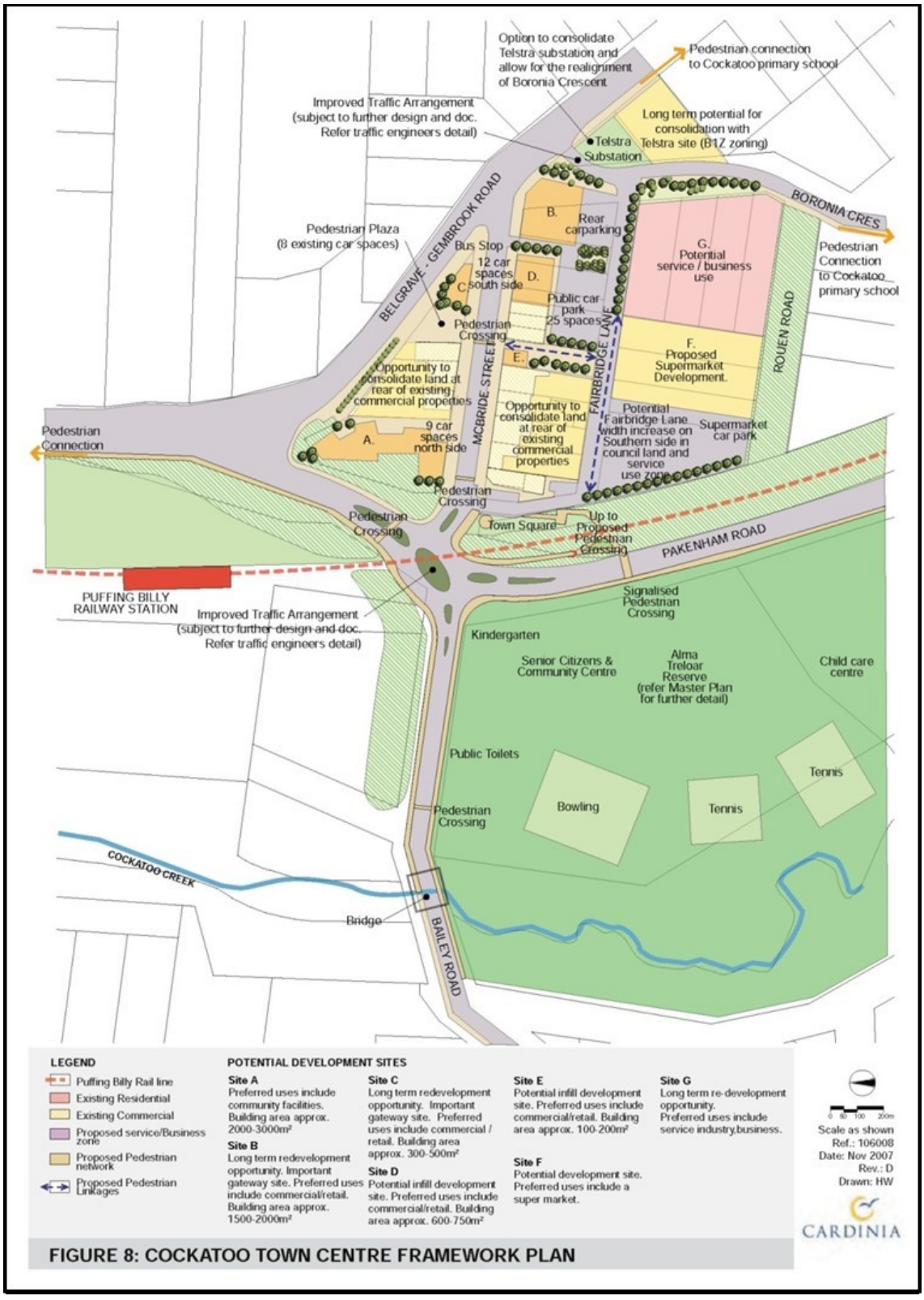



FIGURE 8: COCKATOO TOWN CENTRE FRAMEWORK PLAN

## 11.01-1L-03 Emerald, Avonsleigh and Clematis

13/03/2026
C271card

### Strategies

Ensure that use or development within the Emerald, Avonsleigh and Clematis townships is generally consistent with the *Emerald District Strategy* (Cardinia Shire Council, June 2009), including the Emerald District Framework Plan (Figure 1) and the Emerald Town Centre Precinct Plan and Clematis and Avonsleigh Activity Hubs Plans (Figure 2).

Maintain a diverse range of lot sizes within the townships.

Facilitate infill development within the various precincts within the Emerald town centre as identified in the '*Emerald Framework Plan*' and the '*Emerald Town Centre Precinct Plan* and *Clematis and Avonsleigh Activity Hubs Plan*' forming part of this clause.

Facilitate mixed use development along the section of Belgrave-Gembrook Road linking the Central Retail Precinct and the Northern Retail Precinct.

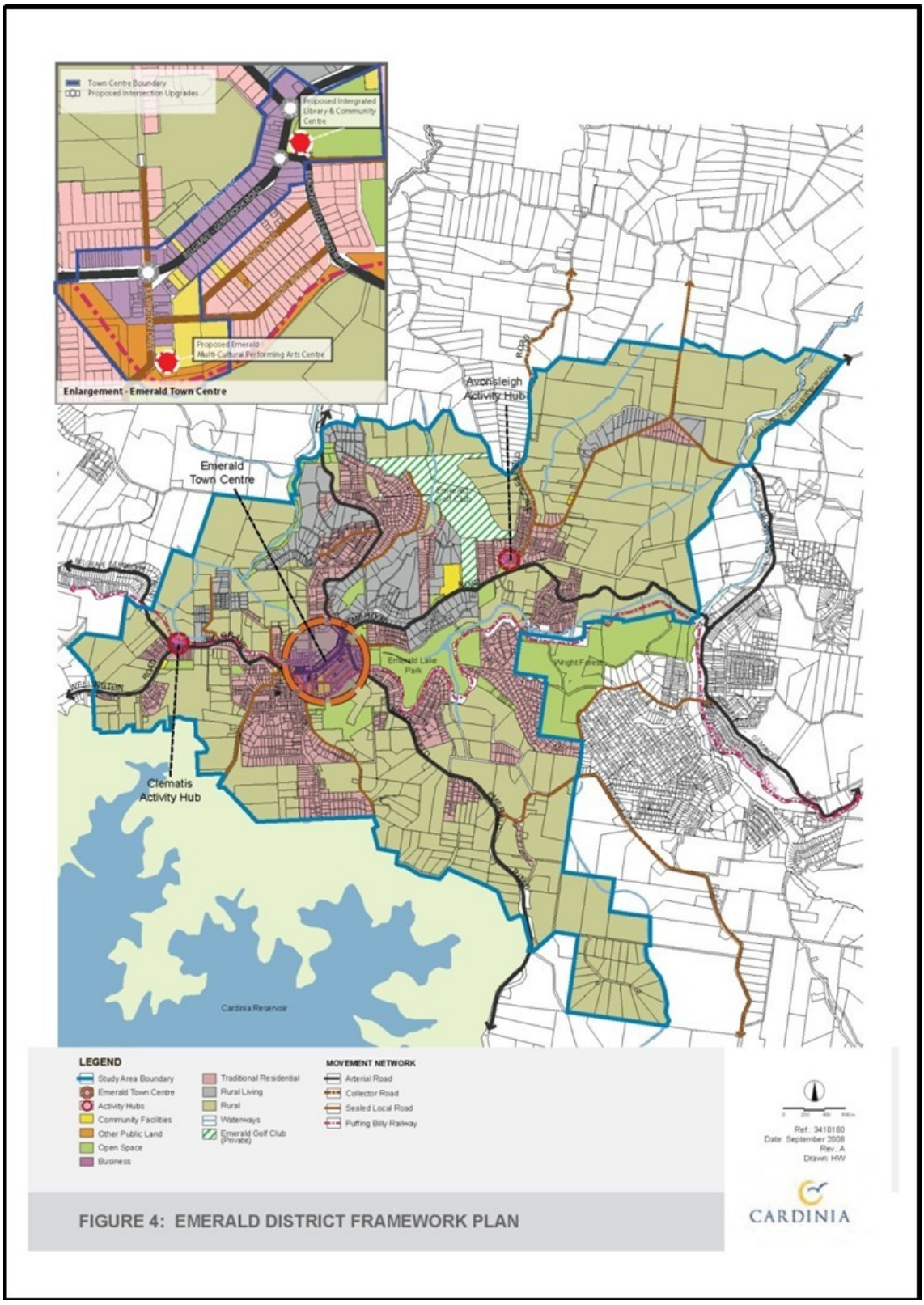
Facilitate the redevelopment of the former nursery site on the northern side of Emerald-Beaconsfield Road and Belgrave-Gembrook Road roundabout.

### Policy documents

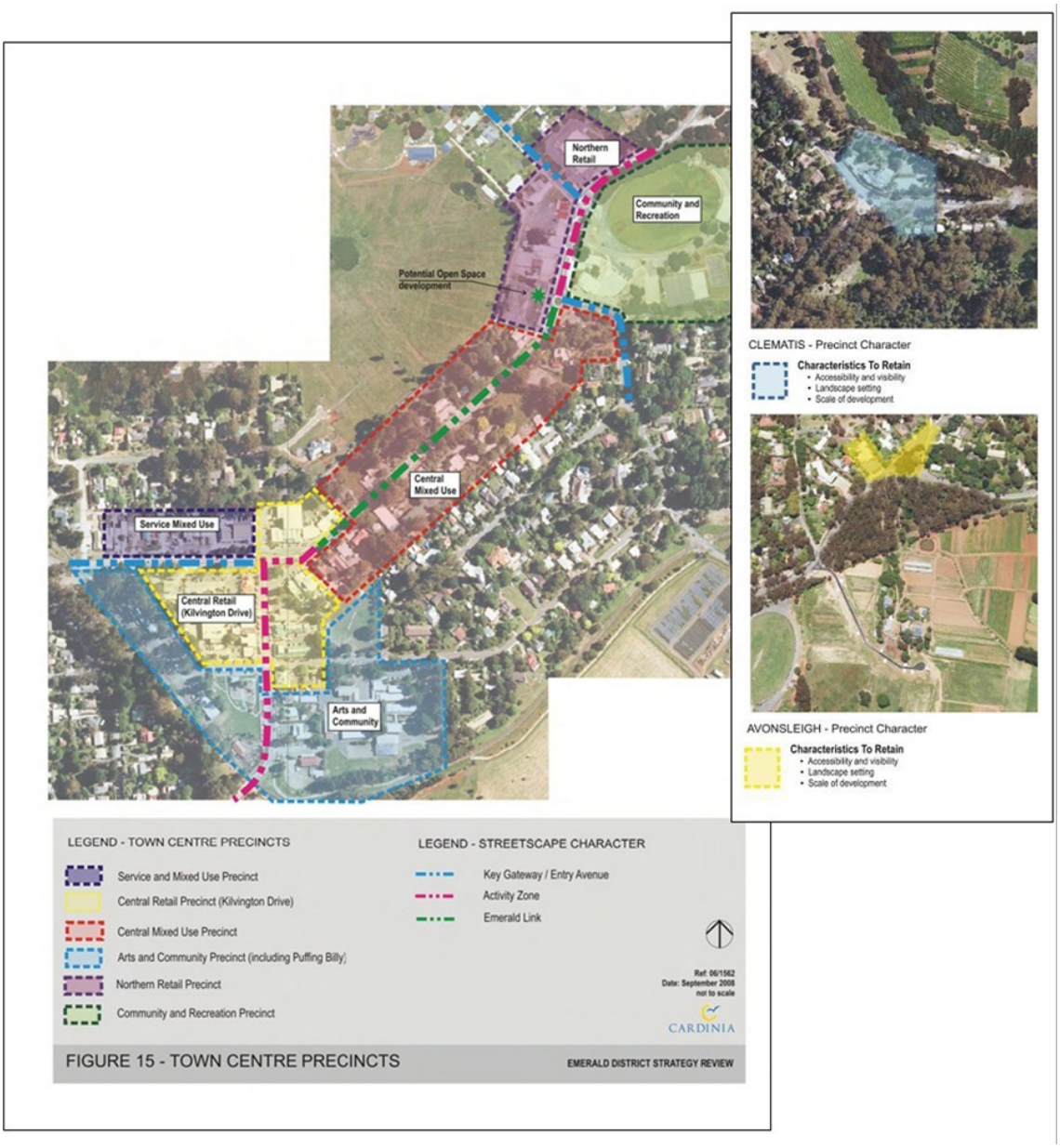
Consider as relevant:

- Incorporated Document: *Emerald District Strategy* (Cardinia Shire Council, June 2009)
- *Land Capability Study of the Cardinia Shire* (Cardinia Shire Council, 1997)

## Emerald Framework Plan (Figure 1)



**Emerald Town Centre Precinct Plan and Clematis and Avonsleigh Activity Hubs Plan (Figure 2)**




## 11.01-1L-04 Gembrook

13/03/2026
C271card

### General strategies

Ensure use and development within the Gembrook township is generally consistent with the *Gembrook Township Strategy* (Cardinia Shire Council, June 2011), including the Gembrook Framework Plan (Figure 1) and the Central Precincts Plan (Figure 2).

Retain a mix of lot sizes throughout Gembrook.

Provide housing opportunities for older persons and people with a disability within walking distance of the town centre, whilst ensuring that the potential impact of bushfire on vulnerable people is fully considered.

Encourage retirement housing on the two sites identified in the *Gembrook Framework Plan* (Figure 1).

### General policy guidelines

Consider as relevant:

- Walking distance from housing for aged or disabled people to the town centre to be 400 metres whilst ensuring that the potential impact of bushfire on vulnerable people moving across this distance is fully considered.

**Service and Mixed Use Precinct strategies**

Preferred land use:

- Service industry uses.
- Offices.
- Educational services.
- Medium density residential development.
- Accommodation that caters for tourism.

Inappropriate/incompatible land use:

- Retail premises.

**Central Retail Precinct and Arts and Community Precinct strategies**

Preferred land use in the Central Retail Precinct.

- Tourism activities.

Preferred land use in the Arts and Community precinct:

- Community and cultural uses.
- Accommodation that caters for tourism.
- Tourism activities.
- Medium density residential development located behind another use.

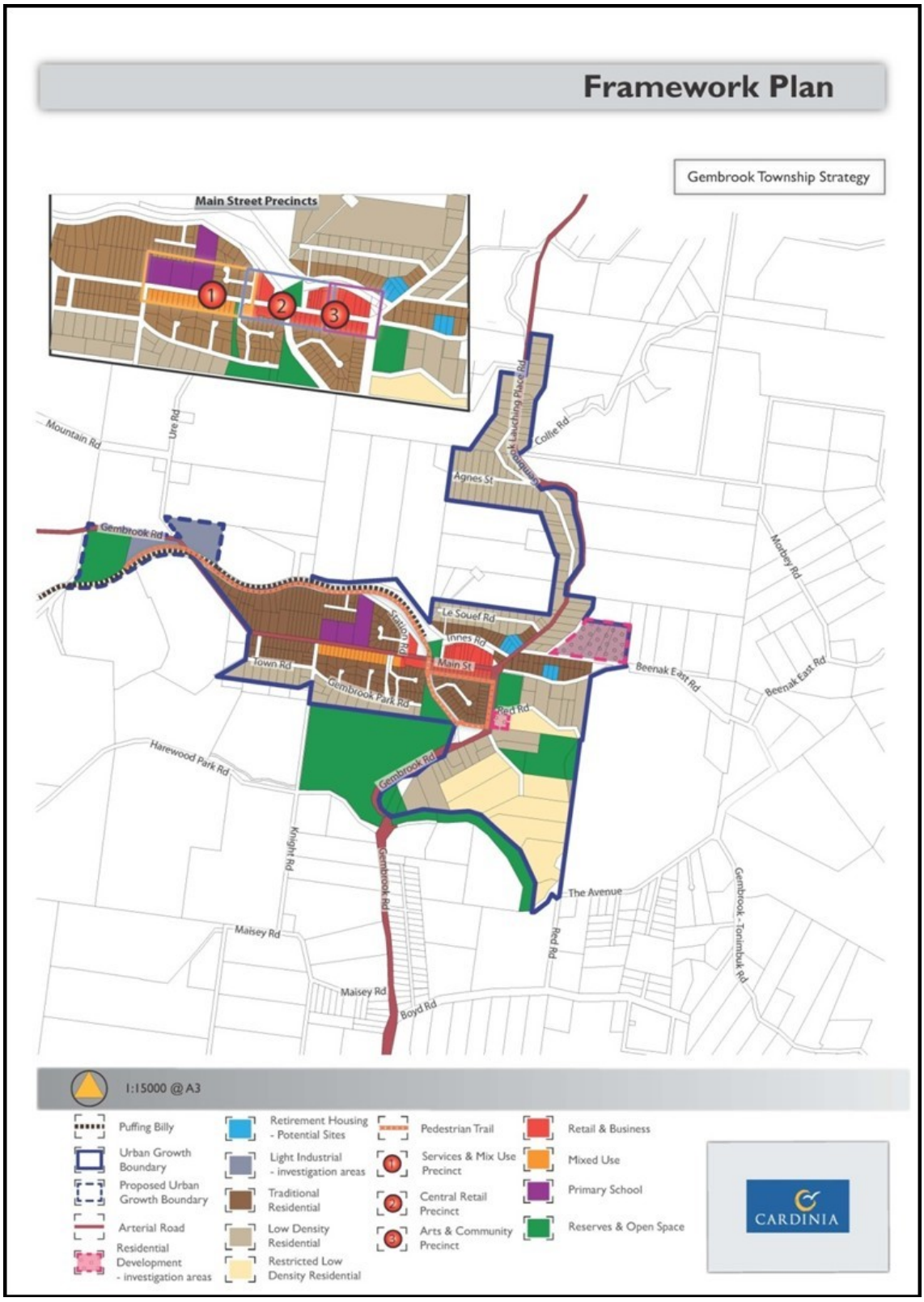
Inappropriate/incompatible land uses in both precincts:

- Non- active uses.
- Uses that require vehicle access from the street frontage (i.e. petrol station, drive through bottle shop or car sales yard).
- Traditional residential development, or ground level residential development at the frontage.

**Policy document**

- Incorporated Document: *Gembrook Township Strategy* (Cardinia Shire Council, June 2011)
- *Cardinia Local Heritage Study Review*
- *Land Capability Study of the Cardinia Shire* (Cardinia Shire Council,1997)
- *Laneway Closure Scheme* (Cardinia Shire, 2002)

## Gembrook Framework Plan



## Gembrook Central Precincts Plan

## 11.01-1L-05 Koo Wee Rup

13/03/2026
C271card

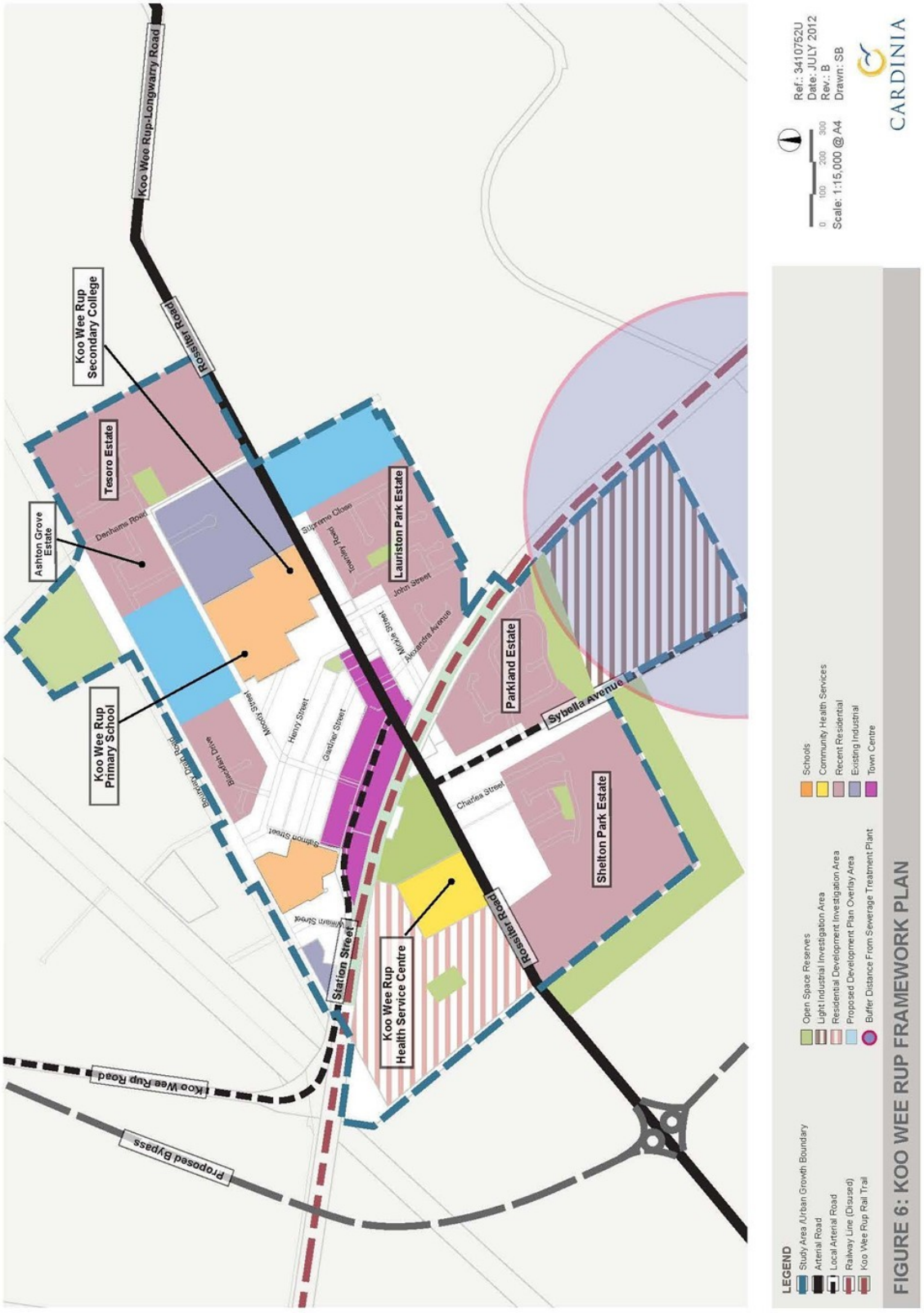
### Strategies

Ensure that use or development within the Koo Wee Rup township is generally consistent with the *Koo Wee Rup Township Strategy* (Cardinia Shire Council, October 2015), including the Koo Wee Rup Framework Plan (Figure 1) and the *Koo Wee Rup Township Character Assessment* (Cardinia Shire Council, 2006).

### Policy document

- Incorporated Document: *Koo Wee Rup Township Strategy* (Cardinia Shire Council, October 2015)

### Koo Wee Rup Strategic Framework Plan (Figure 1)




## 11.01-1L-06 Lang Lang

13/03/2026
C271card

### Strategies

Ensure that use or development within the Lang Lang township is generally consistent with the *Lang Lang Township Strategy* (Cardinia Shire Council, July 2009), including the Lang Lang Framework Plan (Figure 1).

Support use and development of commercial and residential lots in the main street between McDonald's Track and South Gippsland Railway Reserve to create a consolidated and active town centre as reflected in the *Lang Lang Town Centre Urban Design Framework* (Cardinia Shire Council, 2008).

Consolidate commercial and retail uses along Westernport Road between McDonalds Track and the closed South Gippsland Railway Line.

Release land within the Lang Lang urban growth boundary for development in a controlled manner to accommodate the expected population growth while protecting and enhancing the rural character of the township.

Ensure local road connections between properties as set out in the Lang Lang Framework Plan (Figure 1) forming part of this clause.

**Policy document**

Consider as relevant:

- Incorporated Document: *Lang Lang Township Strategy* (Cardinia Shire Council, July 2009)
- *Lang Lang Town Centre Urban Design Framework* (Cardinia Shire Council, 2008)
- *Cardinia Equestrian Strategy* (Cardinia Shire Council, 2004)

### Lang Lang Framework Plan (Figure 1)

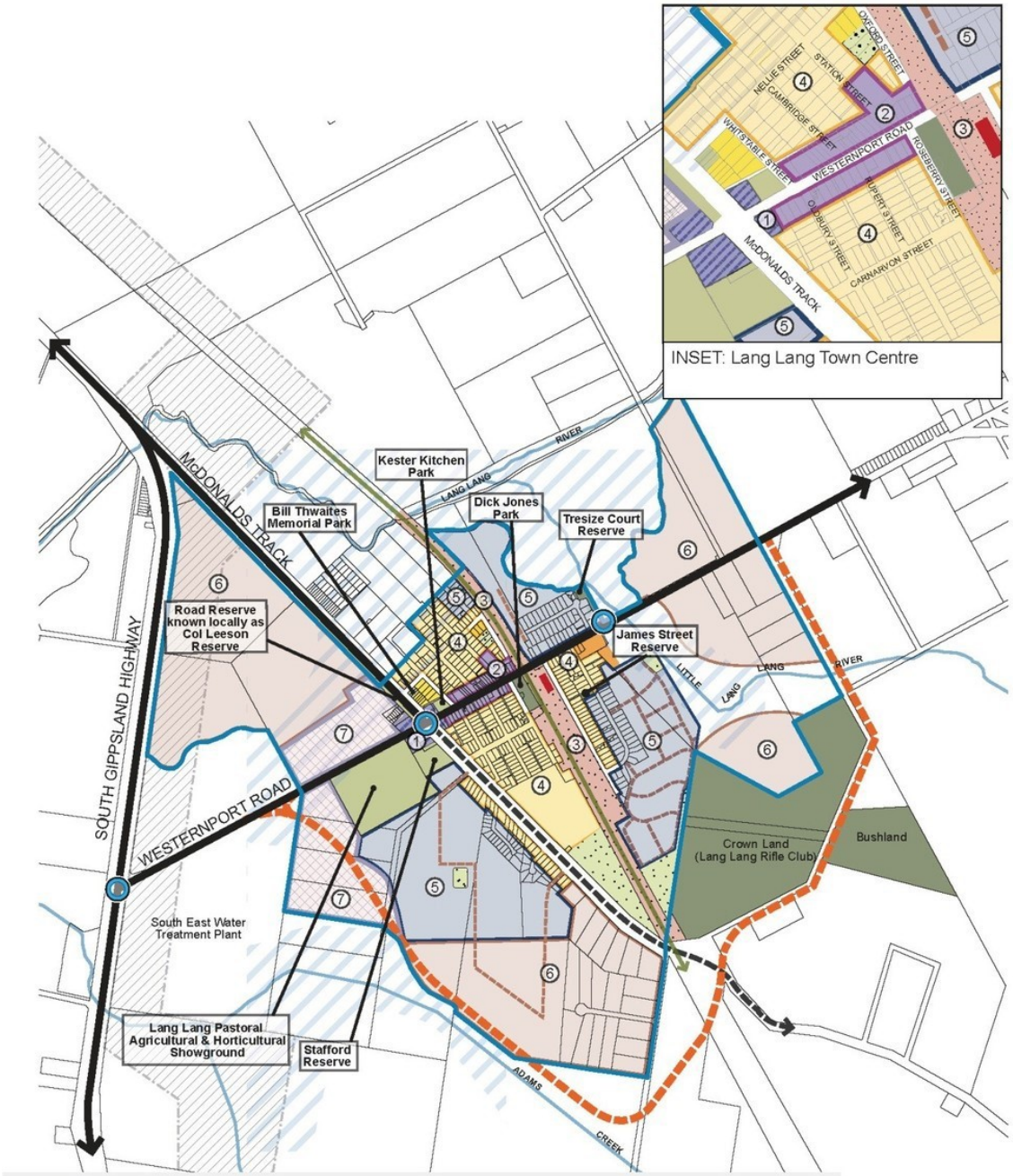



FIGURE 4: LANG LANG FRAMEWORK PLAN

## 11.01-1L-07 Maryknoll township

13/03/2026
C271card

### Policy application

This policy applies to the Maryknoll township defined by Snell Road, Mortimer Road, Fogarty Road and Wheeler Road.

### Objective

To provide for the limited growth of the Maryknoll township.

### Strategies

New residential lots in Maryknoll township to maintain the low density character of the township.

New residential lots to be contained within the boundary of the Maryknoll township, or fronting onto Snell Road, Mortimer Road, Fogarty Road or Wheeler Road if the land is not of environmental significance.

Ensure no new residential lots are created within the vicinity of the poultry farm buildings on the corner of Snell Road and Barongarook Road while it is operating.

Site and design new buildings and works to complement the rural character of the Maryknoll township, and not dominate the landscape.

Protect the natural environment and character of the area, particularly areas of remnant vegetation.

### Policy guidelines

Consider as relevant:

- New residential lots in Maryknoll township are maintained within the range of 0.8 hectare to 1.2 hectares.
- The need for new development to upgrade roads providing access to the development, and the provision of a reticulated water supply to service the development.
- No new residential lots are created within 500 metres of the poultry farm buildings on the corner of Snell and Barongarook Roads.

### Policy documents

Consider as relevant:

- *Maryknoll Strategic Plan Review, Cardinia Shire April 1995* (adopted 21 December 1998)
- *Assessment of the Maryknoll Strategic Plan Review* (Cardinia Shire Council, September 1995)

## 11.01-1L-08 Upper Beaconsfield

13/03/2026
C271card

### Strategies

Ensure that any proposed use or development within or around the Upper Beaconsfield township and town centre is generally consistent with the Upper Beaconsfield Township Strategy, July 2009 and the Upper Beaconsfield Framework Plan (Figure 1) and the Town Centre Framework Plan (Figure 2).

Avoid residential development where the land has a slope greater than 20 per cent or is designated as 'very poor' in the *Land Capability Study for the Cardinia Shire* (Department of Natural Resources and the Environment, February 1997).

### Policy document

- Incorporated Document: *Upper Beaconsfield Township Strategy* (Cardinia Shire Council, July 2009)
- *Land Capability Study for the Cardinia Shire* (Department of Natural Resources and the Environment, February 1997)

## Upper Beaconsfield Framework Plan (Figure 1)

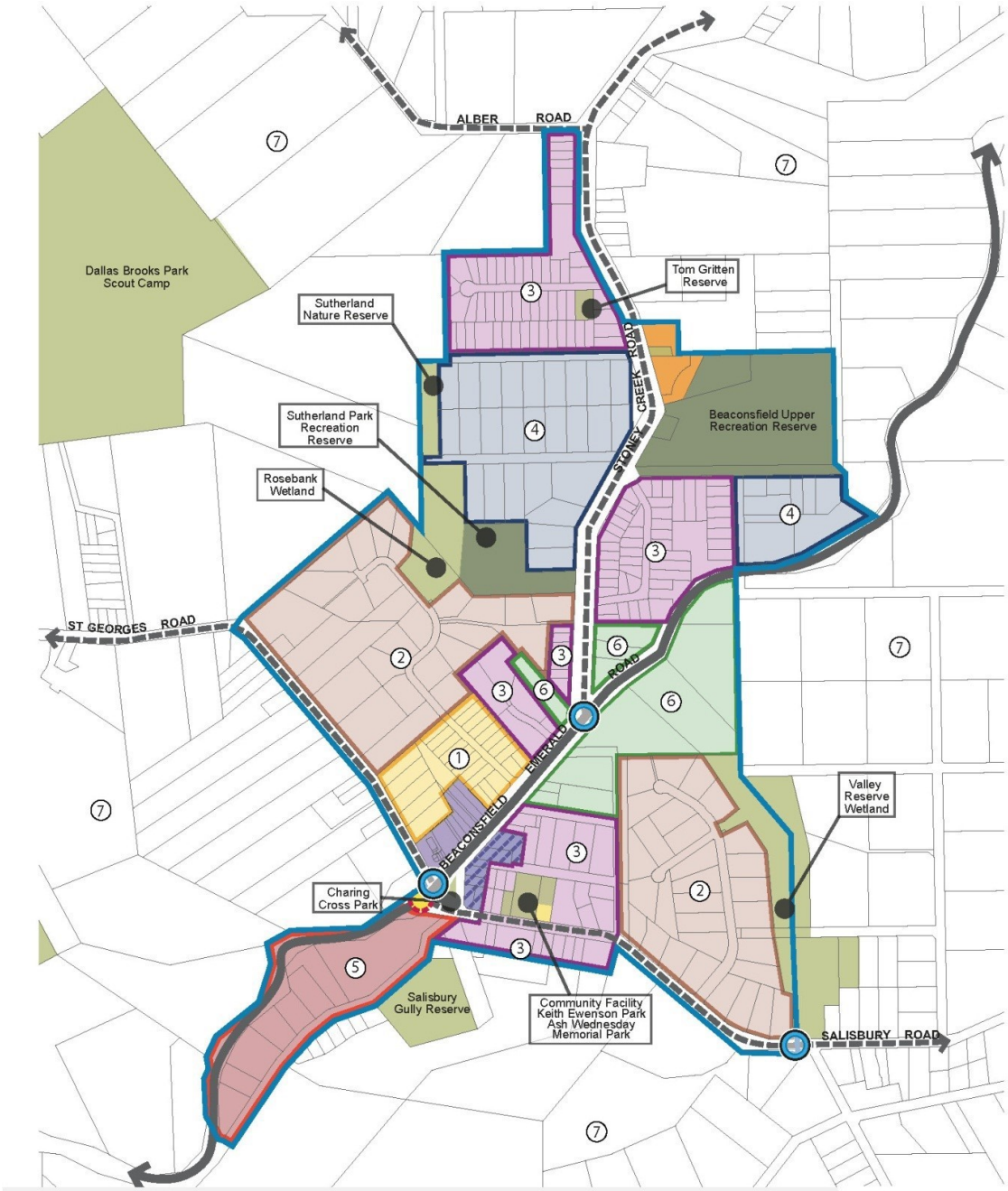



FIGURE 5: UPPER BEACONSFIELD FRAMEWORK PLAN

### Town Centre Framework Plan (Figure 2)

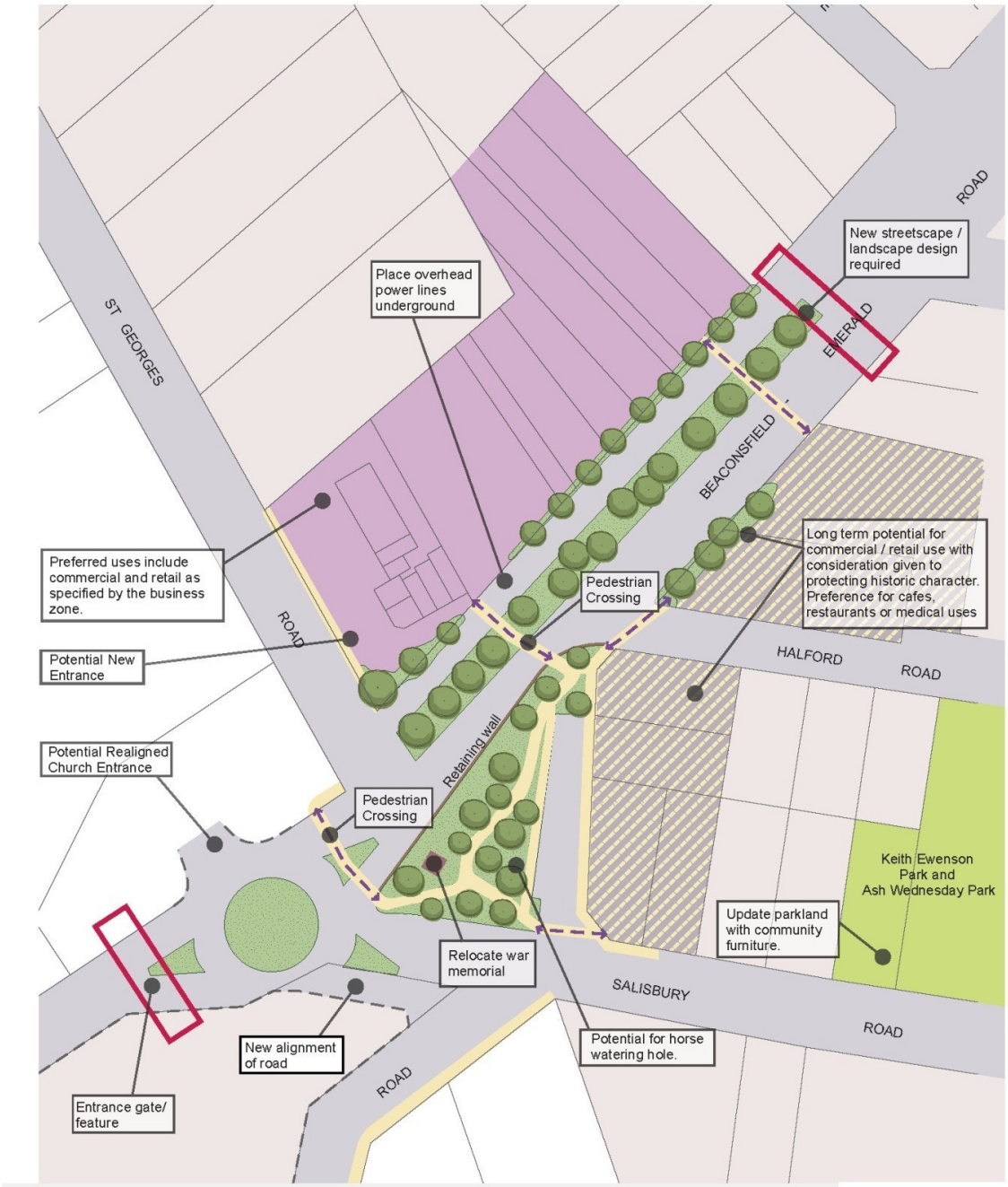



FIGURE 10: TOWN CENTRE FRAMEWORK PLAN

## 11.01-1L-09 Western Port Green Wedge

13/03/2026
C271card

### Policy application

This policy applies to all land within Cardinia Shire's portion of the Western Port Green Wedge as identified on Cardinia Western Port Green Wedge Precincts Map forming part of this clause.

### Objective

To ensure that land uses are carefully located and managed to be consistent with the vision for the Cardinia Western Port Green Wedge.

### General strategies

Maintain and protect the highly productive agricultural land from incompatible uses including non-soil based agricultural uses (e.g. animal husbandry, beef and dairy farming, poultry farming).

Minimise the risk of flooding which impacts on agricultural activities in the Koo Wee Rup Flood Protection District.

Protect the values and assets of the green wedge by preventing further encroachment of urban development into the Western Port Green Wedge.

Support future extractive indurcty in the area noinated as an Extractive Industry Interest Area (EIIA) within the Western Port Green Wedge while ensuring a balance between the extraction of natural resources and the intents of Precicnts 1, 2 and 3.

### Precinct 1: Agriculture, horticulture and soil based food production strategies

Encourage non-soil based agricultural uses (e.g. animal husbandry, beef and dairy farming) to the land surrounding the Special Use Zone – Schedule 1.

Discourage non-rural uses such as primary, secondary schools and places of worship from locating within the precinct (particularly in the SUZ1) and locate these types of uses within the existing townships and within the green wedge land that adjoins the urban growth boundary, subject to strategic justification.

Support and protect the existing vegetable industry, in particular the asparagus growing region.

Encourage lot consolidation through the entire precinct to increase the economic viability of agricultural land.

Support subsidiary visitor related activity, including farm gate sales of crops and goods produced in situ, cellar door sales and ancillary farm stay accommodation.

### Precinct 2: Coastal strategies

Enhance and encourage agriculture on land situated outside environmentally sensitive coastal areas and outside of land containing coastal acid sulphate soils.

Discourage non-rural uses such as primary, secondary schools and places of worship.

### Precinct 3: Railway strategies

Discourage non-rural uses such as primary, secondary schools and places of worship from locating within the precinct and locate these types of uses within the existing townships and within the green wedge land that adjoins the urban growth boundary, subject to strategic justification.

Encourage non-soil based agricultural uses (e.g. animal husbandry, beef and dairy farming).

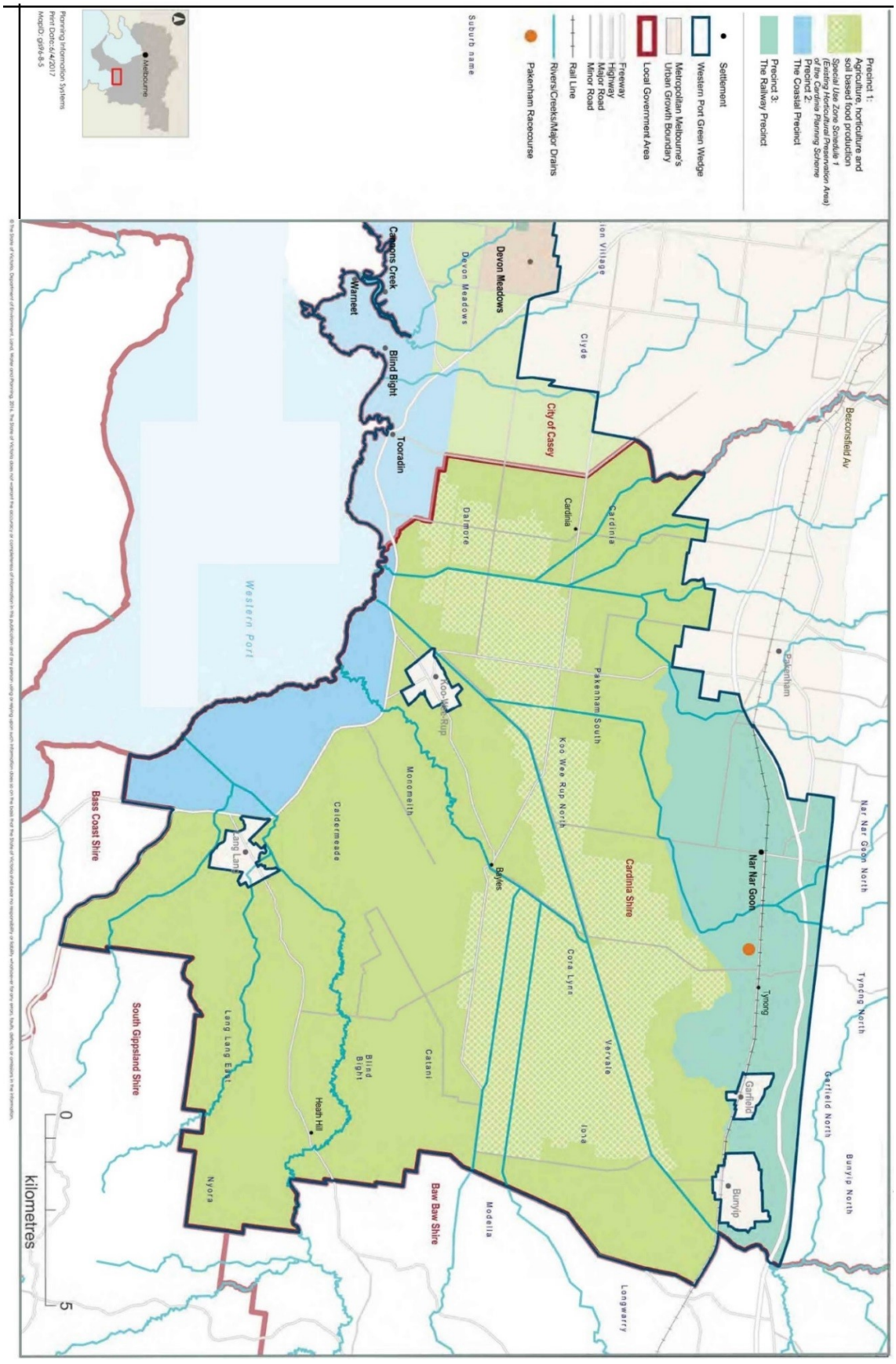
Encourage and support the use of agriculture and the provision of biodiversity to ensure that land use is compatible with the adjacent Precinct 1.

### Policy document

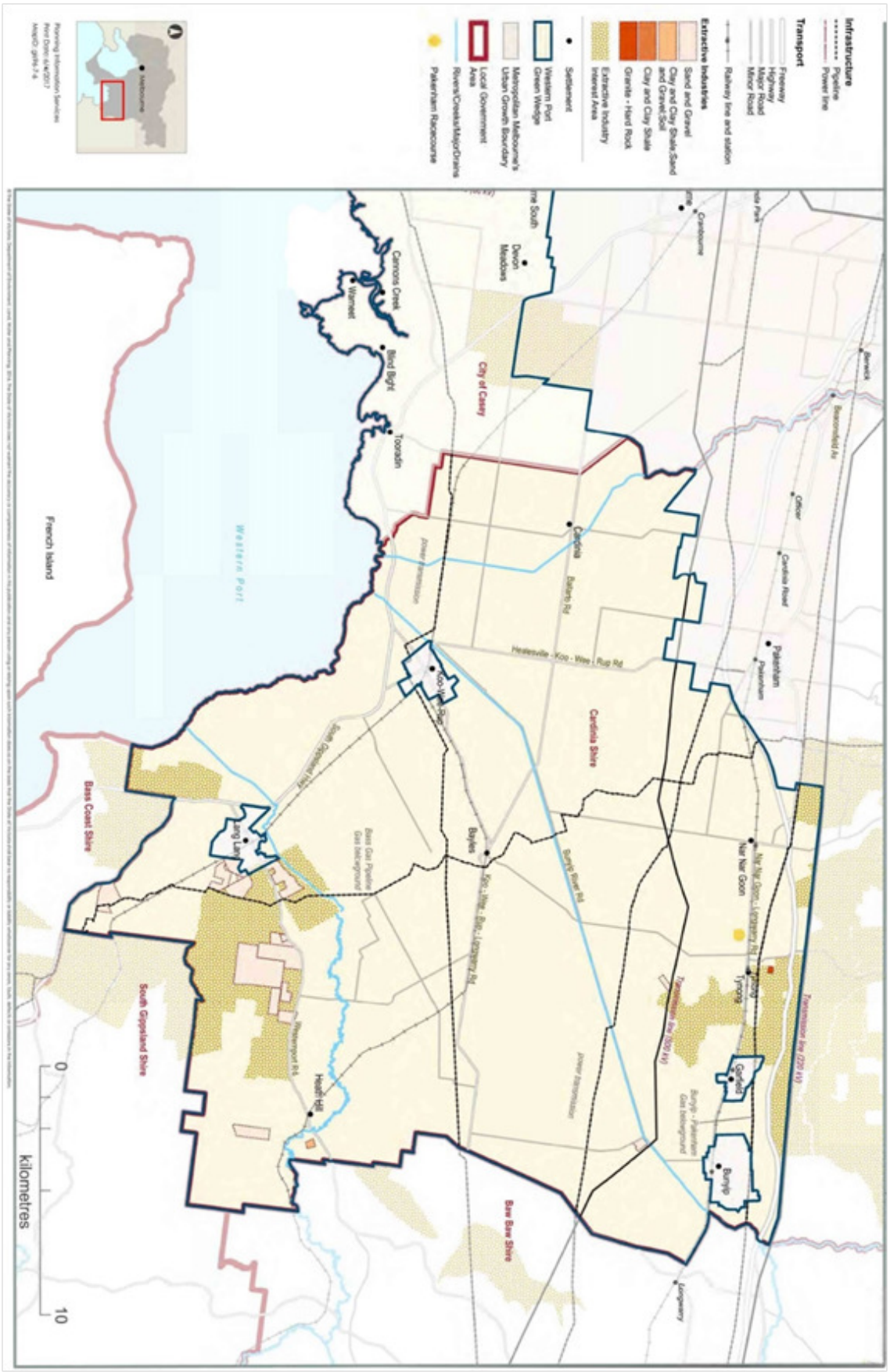
Consider as relevant:

- *Cardinia Western Port Green Wedge Management Plan* (Cardinia Shire Council, May 2017).

## Cardinia Western Port Green Wedge Precincts Map



## Cardinia Western Port Green Wedge Extractive Industries Interest Areas (EIIA)



# 11.02 MANAGING GROWTH

31/07/2018
VC148

## 11.02-1S Development capacity

02/09/2025
VC283

### Objective

To ensure sufficient development opportunities are available to meet the needs of current and future Victorians.

### Strategies

Ensure that sufficient land is available to meet forecast demand and the needs of current and future Victorians for commercial, retail, recreational, institutional and other community needs.

Ensure that at least a 15 year supply of land and development capacity is available to meet housing targets.

Plan to accommodate housing targets and provide clear direction on the locations where growth should occur and ensure sufficient realisable capacity in planning schemes.

Ensure ongoing development opportunities and supporting infrastructure are available to support sustainable urban development.

Planning for urban growth should consider:

- Opportunities to consolidate, redevelop and intensify existing urban areas with good access to jobs and services.
- The liveability of neighbourhoods and delivery of quality urban landscapes.
- The limits of land capability and natural hazards and environmental quality.
- Service limitations and the costs of providing infrastructure.

Maintain access to productive natural resources and an adequate supply of well-located land for energy generation, infrastructure and industry.

Restrict rural residential development that would compromise future development at higher densities.

### Policy guidelines

Consider as relevant:

- Victorian Government population projections and land supply estimates.

### Policy documents

Consider as relevant:

- *Plan for Victoria* (Department of Transport and Planning, 2025)
- *Melbourne Industrial and Commercial Land Use Plan* (Department of Environment, Land, Water and Planning, 2020)
- *Industrial and Commercial Land Classifications* (Department of Transport and Planning, 2025)

## 11.02-2S Structure planning

02/09/2025
VC283

### Objective

To facilitate the fair, orderly, economic and sustainable use and development of urban areas.

### Strategies

Give clear direction on preferred locations for investment.

Ensure effective planning and management of the land use and development of an area through the preparation of relevant plans.

Undertake comprehensive planning for existing areas undergoing transition and new areas to support sustainable communities that offer high-quality, frequent and safe local and regional public transport and a range of local activities for living, working and recreation.

Undertake the preparation of a hierarchy of structure plans or precinct structure plans that:

- Address the strategic and physical context of the location, including increased physical risks associated with climate change.
- Provide the broad planning framework for an area as well as the more detailed planning requirements for neighbourhoods and precincts, where appropriate.
- Deliver sufficient development capacity for residential development to ensure housing targets can be met.
- Deliver sufficient development capacity for industrial and commercial development to ensure an appropriate supply of land to meet local demand.

Structure plans should:

- Protect and enhance areas of natural and cultural significance.
- Address environmental risk and amenity.
- Support the effective management of natural resources.
- Deliver a quality built environment.
- Support the delivery of a diverse range of lot sizes and housing typologies.
- Deliver housing and population densities that make local services and transport viable.
- Support economic development.
- Facilitate the development of walkable neighbourhoods.
- Facilitate the use of active and sustainable transport modes.
- Facilitate the logical and efficient provision of infrastructure.
- Facilitate the use of existing infrastructure and services.
- Encourage renewable energy generation, storage and distribution.
- Incorporate integrated water management and urban greening.

### Policy document

Consider as relevant:

- *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021).

## 11.02-3S Sequencing of development

02/09/2025
VC283

### Objective

To manage the sequence of development in areas of growth so that services are available from early in the life of new communities.

### Strategies

Define preferred development sequences in areas of growth to better coordinate infrastructure planning and funding.

Use staging plans to align the delivery of public infrastructure and services with housing and employment.

Ensure that new land is released in areas of growth in a timely fashion to facilitate coordinated and cost-efficient provision of local and regional infrastructure.

Require new development to make a financial contribution to the provision of infrastructure such as community facilities, public transport and roads.

Improve the coordination and timing of infrastructure and service delivery in areas of growth.

Support opportunities to co-locate facilities.

Ensure that planning for water supply, sewerage and drainage works receives high priority in early planning for areas of growth.

### Policy documents

Consider as relevant:

- *North Growth Corridor Plan* (Victoria Planning Authority, 2012)
- *West Growth Corridor Plan* (Victoria Planning Authority, 2012)
- *Sunbury Growth Corridor Plan* (Victoria Planning Authority, 2012)
- *South East Growth Corridor Plan* (Victoria Planning Authority, 2012)
- *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021)
- *Ministerial Direction No. 12 – Urban Growth Areas*

# 11.03 PLANNING FOR PLACES

31/07/2018
VC148

## 11.03-1S Activity centres and precincts

16/04/2026
VC300

### Objective

To encourage the concentration of major retail, residential, commercial, administrative, entertainment and cultural developments into activity centres with good public transport services.

### Strategies

Build up the central activity areas of Major regional cities, Metropolitan activity centres, Priority Precincts, Suburban Rail Loop Precincts and Activity Centres - Housing Choice and Stations as a focus for high-quality development, activity and living that:

- Are a focus for business, shopping, working, leisure and community facilities.
- Provide different types of housing, including forms of higher density housing.
- Are connected by transport.
- Maximise choices in services, employment and social interaction.

Undertake strategic planning for the use and development of land in and around Major regional cities, Metropolitan activity centres, Priority Precincts, Suburban Rail Loop Precincts and Activity Centres - Housing Choice and Stations and their residential catchments.

Encourage a diversity of housing types at higher densities in and around Major regional cities, Metropolitan activity centres, Priority Precincts, Suburban Rail Loop Precincts and Activity Centres - Housing Choice and Stations and their residential catchments.

Reduce the number of private motorised trips by concentrating activities that generate high numbers of (non-freight) trips in highly accessible activity centres.

Improve access by walking, cycling and public transport to services and facilities.

Support the continued growth and diversification of activity centres to give communities access to a wide range of goods and services, provide local employment and support local economies.

Improve the social, economic and environmental performance and amenity of activity centres.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)
- *Apartment Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2021)
- *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021)
- *Mid-Rise Design Guide* (Department of Transport and Planning, 2026)

## 11.03-1R Activity centres and precincts - Metropolitan Melbourne

02/09/2025
VC283

### Strategies

Support the development and growth of Metropolitan activity centres and Suburban Rail Loop Precincts by ensuring they:

- Are able to accommodate significant growth for a broad range of land uses.
- Are supported with appropriate infrastructure.
- Are hubs for public transport services.
- Offer good connectivity for a regional catchment.
- Provide high levels of amenity.

Plan the activity centres network to support thriving, productive and sustainable communities through:

- The delivery of new homes to meet housing target at appropriate Activity Centres - Housing Choice and Stations.
- Activity Centres – Housing Choice and Stations as a focus for facilities and services.
- Moderated housing growth at other designated activity centres (those not identified as Activity centres – Housing Choice and Stations or Metropolitan activity centres).

Support new activity centres within convenient walking distance of homes in the design of new subdivisions and in areas where services are not in walking distance.

Locate significant new education, justice, community, administrative and health facilities that attract users from large geographic areas in or on the edge of Metropolitan Activity Centres or activity centres with good public transport.

Locate new small scale education, health and community facilities that meet local needs in or around activity centres.

## 11.03-1L Activity centres

13/03/2026
C271card

### Strategies

Encourage higher order retail at Pakenham and Officer Major Activity Centres supported by high quality pedestrian access, public transport and urban design.

Optimise the provision of adequate, integrated, accessible and functional car parking as an integral part of activity centres.

Facilitate the establishment of associated commercial activities such as restricted retailing within the Pakenham Homemaker Precinct.

Facilitate the effective integration of the Pakenham Homemaker Precinct within the Lakeside activity centre.

Ensure connectivity between activity centres and surrounding residential communities.

### Policy guidelines

Consider as relevant:

- Encouraging two story development along the main streets of activity centres.
- Developments to provide a main street design as the standard form of retail development in activity centres.

## 11.03-2S Growth areas

02/09/2025
VC283

### Objective

To locate urban growth close to transport corridors and services and provide efficient and effective infrastructure to create sustainability benefits while protecting primary production, major sources of raw materials and valued environmental areas.

### Strategies

Concentrate urban expansion into growth areas that are served by high-capacity public transport.

Implement the strategic directions in the growth corridor plans.

Deliver residential densities in the growth areas of Melbourne and Major regional cities of an average of at least:

- 30 dwellings per net developable hectare in locations within walkable distance of existing and proposed activity centres, train stations, major transport routes and public open spaces.
- 20 dwellings per net developable hectare in other growth area locations.

Provide housing diversity and choice through a mix of housing types, particularly in areas suitable for higher residential densities.

Deliver accessible, integrated and adaptable community infrastructure, including a high-quality network of public open space with opportunities for passive and active recreation.

Plan for the timely and adequate provision of public transport and local and regional infrastructure and services, in line with a preferred sequence of land release.

Provide for significant amounts of local employment opportunities and in some areas, provide large scale industrial or other more regional employment generators.

Create a network of mixed-use activity centres that are high quality, well designed and create a sense of place.

Provide a diversity of housing type and distribution.

Retain unique characteristics of established areas impacted by growth.

Protect and manage natural resources and areas of heritage, cultural and environmental significance.

Create well planned, easy to maintain high amenity, environmentally resilient and safe public realms that contribute to a sense of place, support cooling and greening, reduce opportunities for crime, improve perceptions of safety and increase levels of community participation.

Develop and implement plans for growth areas that will:

- Include objectives for each growth area.
- Identify the long term pattern of urban growth.
- Identify the location of broad urban development types, for example activity centre, residential, employment, freight centres and mixed use employment.
- Identify the boundaries of individual communities, landscape values and, as appropriate, the need for discrete urban breaks and how land uses in these breaks will be managed.
- Identify transport networks and options for investigation, such as future railway lines and stations, freight activity centres, freeways and arterial roads.
- Identify the location of open space to be retained for recreation, and/or biodiversity protection and/or flood risk reduction purposes guided and directed by regional biodiversity conservation strategies.
- Show significant waterways as opportunities for creating linear trails, along with areas required to be retained for biodiversity protection and/or flood risk reduction purposes.
- Identify appropriate uses for constrained areas, including quarry buffers.

Develop precinct structure plans consistent with the *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021) to:

- Establish a sense of place and community.
- Create greater housing choice, diversity and affordable places to live.
- Create highly accessible and vibrant activity centres.
- Provide for local employment and business activity.
- Provide better transport choices.
- Respond to climate change and increase environmental sustainability.
- Deliver accessible, integrated and adaptable community infrastructure.
- Deliver 30 per cent tree canopy cover within the public realm and in open spaces (excluding areas dedicated to biodiversity or native vegetation conservation).

### Policy documents

Consider as relevant:

- *North Growth Corridor Plan* (Victorian Planning Authority, 2012)
- *West Growth Corridor Plan* (Victorian Planning Authority, 2012)
- *Sunbury Growth Corridor Plan* (Victorian Planning Authority, 2012)
- *South East Growth Corridor Plan* (Victorian Planning Authority, 2012)
- *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021)
- *Ministerial Direction No. 12 – Urban Growth Areas*

## 11.03-3S Peri-urban areas

02/09/2025
VC283

### Objective

To manage growth in peri-urban areas to protect and enhance their identified valued attributes.

### Strategies

Identify and protect areas that are strategically important for the environment, biodiversity, landscape, open space, water, agriculture, energy, recreation, tourism, environment, cultural heritage, infrastructure, extractive and other natural resources.

Enhance the character, identity, attractiveness and amenity of peri-urban towns.

Prevent dispersed settlement and provide for non-urban breaks between urban areas.

Ensure development is linked to the timely and viable provision of physical and social infrastructure.

Improve connections to regional and metropolitan transport services.

## 11.03-4S Coastal settlement

02/09/2025
VC283

### Objective

To plan for sustainable coastal development.

### Strategies

Plan and manage coastal population growth and increased visitation so that impacts do not cause unsustainable use of coastal resources.

Support a network of diverse coastal settlements that provide for a broad range of housing types, economic opportunities and services.

Minimise linear urban sprawl along the coastal edge and ribbon development in rural landscapes.

Protect areas between settlements for non-urban use.

Limit development in identified coastal hazard areas, on ridgelines, primary coastal dune systems, shorelines of estuaries, wetlands and low-lying coastal areas, or where coastal processes may be detrimentally impacted.

Encourage the restructure of old and inappropriate subdivisions to reduce development impacts on the environment.

Ensure a sustainable water supply, stormwater management and sewerage treatment for all development.

Minimise the quantity and enhance the quality of stormwater discharge from new development into the ocean, bays and estuaries.

Prevent the development of new residential canal estates.

### Policy documents

Consider as relevant:

- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Siting and Design Guidelines for Structures on the Victorian Coast*(Department of Environment, Land, Water and Planning, 2020)

## 11.03-5S Distinctive areas and landscapes

09/10/2026
VC310

### Objective

To recognise the importance of distinctive areas and landscapes to the people of Victoria and protect and enhance the valued attributes of identified or declared distinctive areas and landscapes.

### Strategies

Recognise the unique features and special characteristics of these areas and landscapes.

Implement the strategic directions of approved Localised Planning Statements and Statements of Planning Policy.

Integrate policy development, implementation and decision-making for declared areas under Statements of Planning policy.

Recognise the important role these areas play in the state as tourist destinations.

Protect the identified key values and activities of these areas.

Enhance conservation of the environment, including the unique habitats, ecosystems and biodiversity of these areas.

Support use and development where it enhances the valued characteristics of these areas.

Avoid use and development that could undermine the long-term natural or non-urban use of land in these areas.

Protect areas that are important for food production.

### Policy documents

Consider as relevant:

- *Bass Coast Statement of Planning Policy* (Victorian Government, 2025)
- *Bellarine Peninsula Statement of Planning Policy* (Victorian Government, 2023)
- *Macedon Ranges Statement of Planning Policy* (Victorian Government, 2019)
- *Mornington Peninsula Localised Planning Statement* (Victorian Government, 2014)
- *Surf Coast Statement of Planning Policy* (Victorian Government, 2022)
- *Yarra Ranges Localised Planning Statement* (Victorian Government, 2017)

## 11.03-6S Regional and local places

31/07/2018
VC148

### Objective

To facilitate integrated place-based planning.

### Strategies

Integrate relevant planning considerations to provide specific direction for the planning of sites, places, neighbourhoods and towns.

Consider the distinctive characteristics and needs of regional and local places in planning for future land use and development.

# 11.04 CULTURAL PLACES

26/10/2026
VC305

## 11.04-1S Live music

26/10/2026
VC305

### Objective

To encourage, create and protect opportunities for the enjoyment of live music.

### Strategies

Identify, assess and document existing live music entertainment venues and precincts of social, economic and cultural significance and areas where live music entertainment venues are encouraged, as the basis for their inclusion in the planning scheme.

Implement measures to ensure live music entertainment venues can co-exist with nearby noise sensitive residential uses and other noise sensitive uses.

### Policy guidelines

Consider as relevant:

- The social, economic and cultural benefits to the community of:
  - Retaining an existing live music entertainment venue.
  - Supporting new live music entertainment venues and precincts.
  - Clustering live music entertainment venues.

## 12 ENVIRONMENTAL AND LANDSCAPE VALUES

10/06/2022
VC216

Planning should help to protect the health of ecological systems and the biodiversity they support (including ecosystems, habitats, species and genetic diversity) and conserve areas with identified environmental and landscape values.

Planning must implement environmental principles for ecologically sustainable development that have been established by international and national agreements. Foremost amongst the national agreements is the Intergovernmental Agreement on the Environment, which sets out key principles for environmental policy in Australia. Other agreements include the National Strategy for Ecologically Sustainable Development, National Greenhouse Strategy, the National Water Quality Management Strategy, Australia's Strategy for Nature 2019-2030, the National Forest Policy Statement and National Environment Protection Measures.

Planning should protect, restore and enhance sites and features of nature conservation, biodiversity, geological or landscape value.

## 12.01 BIODIVERSITY

31/07/2018
VC148

## 12.01-1S Protection of biodiversity

30/10/2025
VC291

### Objective

To protect and enhance Victoria's biodiversity.

### Strategies

Use biodiversity information to identify important areas of biodiversity, including key habitat for rare or threatened species and communities, and strategically valuable biodiversity sites.

Strategically plan for the protection and conservation of Victoria's important areas of biodiversity.

Ensure that decision making takes into account the impacts of land use and development on Victoria's biodiversity, including consideration of:

- Cumulative impacts.
- Fragmentation of habitat.
- The spread of pest plants, animals and pathogens into natural ecosystems.

Avoid impacts of land use and development on important areas of biodiversity.

Consider impacts of any change in land use or development that may affect the biodiversity value of national parks and conservation reserves or nationally and internationally significant sites; including wetlands and wetland wildlife habitat designated under the Convention on Wetlands of International Importance (the Ramsar Convention) and sites utilised by species listed under the Japan-Australia Migratory Birds Agreement (JAMBA), the China-Australia Migratory Birds Agreement (CAMBA), or the Republic of Korea-Australia Migratory Bird Agreement (ROKAMBA).

Assist in the identification, protection and management of important areas of biodiversity.

Assist in the establishment, protection and re-establishment of links between important areas of biodiversity, including through a network of green spaces and large-scale native vegetation corridor projects.

Support land use and development that contributes to protecting and enhancing habitat for indigenous plants and animals in urban areas.

### Policy guidelines

Consider as relevant:

- State biodiversity information maintained by the Department of Energy, Environment and Climate Action.

### Policy documents

Consider as relevant:

- *Any applicable biodiversity strategies, including the relevant Regional Catchment Strategy (prepared under Part 4 of the Catchment and Land Protection Act 1994)*
- *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013)
- *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025)
- *Protecting Victoria's Environment – Biodiversity 2037* (Department of Environment, Land, Water and Planning, 2017)
- *Victorian Waterway Management Strategy* (Department of Environment and Primary Industries, 2013)

## 12.01-1L Biodiversity

13/03/2026
C271card

### Strategies

Discourage the fragmentation of land in areas of biodiversity significance and create new habitat corridors/biolinks.

Ensure no net loss in the quantity and quality of native vegetation in the municipality.

Encourage the retention and re-establishment of native vegetation to protect areas of habitat and landscape value.

Reduce potential for flooding on the Koo Wee Rup Swamp.

Protect and enhance the habitat of threatened flora and fauna species, including the Growling Grass Frog and Southern Brown Bandicoot.

Protect and conserve native vegetation including street trees and roadside vegetation, particularly in Bunyip.

Encourage development to include works that enhance the environment including the protection of waterways and remnant vegetation, control of pest plants and revegetation.

Avoid the removal or fragmentation of native vegetation, especially in areas of biodiversity significance, and where avoidance is not possible minimise removal.

Ensuring any redevelopment of golf courses has net community benefit and does not adversely impact upon the environment.

### Policy guidelines

Consider as relevant:

- Providing building envelopes as part of subdivision plans to locate development in a way that minimises the removal of vegetation.
- Using a Conservation Covenant, or agreements under Section 173 of the *Planning and Environment Act, 1987* to conserve or enhance sites of biodiversity significance.
- Encouraging land management practices that control and remove noxious and environmental weeds and pest animals.

## 12.01-2S Native vegetation management

04/02/2026
VC265

### Objective

To ensure that there is no net loss to biodiversity as a result of the removal, destruction or lopping of native vegetation.

### Strategies

Ensure decisions that involve, or will lead to, the removal, destruction or lopping of native vegetation, apply the three-step approach in accordance with the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025):

- Avoid the removal, destruction or lopping of native vegetation.
- Minimise impacts from the removal, destruction or lopping of native vegetation that cannot be avoided.
- Provide an offset to compensate for the biodiversity impact from the removal, destruction or lopping of native vegetation.

### Policy guidelines

Consider as relevant:

- State biodiversity information maintained by the Department of Energy, Environment and Climate Action.

### Policy documents

Consider as relevant:

- *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025)
- *Assessor's handbook – applications to remove, destroy or lop native vegetation* (Department of Energy, Environment, and Climate Action, 2025)

# 12.02 MARINE AND COASTAL ENVIRONMENT

06/09/2021
VC171

## 12.02-1S Protection of the marine and coastal environment

20/03/2023
VC229

### Objective

To protect and enhance the marine and coastal environment.

### Strategies

Manage privately-owned foreshore consistently with the adjoining public land.

Protect coastal and foreshore environments and improve public access and recreation facilities around Port Phillip Bay and Western Port by focusing development in areas already developed or in areas that can tolerate more intensive use.

Enhance the ecological values of the ecosystems in the marine and coastal environment.

Protect and enhance the overall extent and condition of native habitats and species diversity distributions across public and private land in the marine and coastal environment.

Encourage revegetation of cleared land abutting coastal reserves.

Minimise direct, cumulative and synergistic effects on ecosystems and habitats.

Maintain the natural drainage patterns, water quality and biodiversity in and adjacent to coastal estuaries, wetlands and waterways.

Maintain and enhance water and soil quality by minimising disturbance of sediments.

Avoid disturbance of coastal acid sulfate soils.

Protect and enhance natural features, landscapes, seascapes and public visual corridors.

Plan for marine development and infrastructure to be sensitive to marine national parks and environmental assets.

Protect the heritage values, the aesthetic quality of locations, cultural links with maritime activities, sea country and sense of place.

### Policy guidelines

Consider as relevant:

- Any applicable Regional and Strategic Partnership Product, environmental management plan or coastal and marine management plan approved under the *Marine and Coastal Act 2018* or *National Parks Act 1975*

### Policy documents

Consider as relevant:

- *Coastal Spaces Landscape Assessment Study* (Department of Sustainability and Environment, 2006)
- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Siting and Design Guidelines for Structures on the Victorian Coast* (Department of Environment, Land, Water and Planning, 2020)
- *Victorian Best Practice Guidelines for Assessing and Managing Coastal Acid Sulfate Soils* (Department of Environment, Land, Water and Planning, 2010)
- *Victorian Coastal Acid Sulfate Soils Strategy* (Department of Sustainability and Environment, 2009)

## 12.02-2S Marine and coastal Crown land

20/03/2023
VC229

### Objective

To ensure the use and development of marine and coastal Crown land is ecologically sustainable, minimises impacts on cultural and environmental values, and improves public benefit for current and future generations.

### Strategies

Design, locate and maintain buildings and structures to effectively manage:

- Any increase in exposure to coastal hazard risk, including rates of sea level rise, erosion, accretion or inundation.
- Exposure to public health and safety risks.
- Any detrimental impacts (in particular increased hazard risk) on neighbouring Crown or private land.
- Adverse effects on the environment and associated uses and values.
- Impact on marine and coastal functions and processes.

Ensure the siting and design of development on marine and coastal Crown land:

- Facilitates shared infrastructure and the use of land for more than one use.
- Uses materials and finishes that are sympathetic to the coastal environment.
- Is durable in the long term.
- Minimises the environmental footprint.

Ensures that use and development on or adjacent to marine and coastal Crown land:

- Maintains safe, equitable public access.
- Improves public benefit.
- Demonstrates need and has a coastal dependency.
- Minimises loss of public open space.

### Policy guidelines

Consider as relevant:

- Any applicable Victorian Environmental Assessment Council recommendations
- The purpose for which land is reserved under the *Crown Land (Reserves) Act 1978*
- Any relevant environmental management plan or coastal and marine management plan approved under the *Marine and Coastal Act 2018* or *National Parks Act 1975*

### Policy documents

Consider as relevant:

- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Siting and Design Guidelines for Structures on the Victorian Coast* (Department of Environment, Land, Water and Planning, 2020)

## 12.03 WATER BODIES AND WETLANDS

31/07/2018
VC148

## 12.03-1S River and riparian corridors, waterways, lakes, wetlands and billabongs

20/01/2026
VC278

### Policy Application

This policy applies to land in proximity to a waterway, including all land within 200 metres from the centreline of a waterway.

### Objective

To protect and enhance waterway systems including river and riparian corridors, waterways, lakes, wetlands and billabongs.

### Strategies

Protect the environmental, cultural and landscape values of all waterway systems as significant economic, environmental and cultural assets.

Conserve waterway systems and the landscapes and environmental values surrounding them by:

- Protecting ecological values, indigenous vegetation, terrestrial and aquatic habitats.
- Encouraging biodiversity.
- Recognising that waterways are a connected system from source to mouth, including tributaries, confluences, wetlands and billabongs creating a living entity.

Ensure waterway corridors are of adequate width to allow for the natural systems and functions of the environment and landscape to occur while incorporating potential impacts from climate change.

Sensitively design and site development to maintain and enhance the waterway system and the surrounding landscape setting, environmental assets, and ecological and hydrological systems.

Address the impacts of use and development on drought and flooding events at a catchment and site scale to protect the health and natural function of waterway systems and their surrounding landscape and environment.

Protect geomorphology, bank stability and flood management capacity to strengthen the environmental value and health of waterway systems by:

- Retaining, enhancing and re-establishing indigenous riparian vegetation along waterway systems, ensuring it responds to the bushfire hazard of a location.
- Enhancing and re-establishing both terrestrial and aquatic habitats and their linkages along and surrounding waterway systems.
- Limiting earthworks in proximity to waterway systems to minimise alterations to geomorphology, natural drainage, natural flows, volumes and water quality.
- Facilitating the restoration of waterway systems through the removal of weeds, invasive species and pests.

Enhance a sense of place and landscape identity by:

- Conserving areas of identified Victorian Aboriginal cultural heritage significance relating to waterway systems.
- Retaining and re-establishing vegetation, including grasslands and canopy trees, surrounding waterway systems to enhance and connect to the landscape setting, ensuring it responds to the bushfire hazard of a location.
- Protecting existing topographic features and maintaining a sense of naturalness through sensitive design and siting.
- Recognising the cultural values, aesthetic qualities and identity of waterway systems.

Retain and enhance the recreation and amenity values along waterway systems by:

- Planning for surrounding green spaces as recreation and tourism resources without adversely impacting environmental values and flood management capacity.
- Protecting and enhancing parklands for their economic, social and environmental values.
- Protecting and enhancing public access to waterway systems and surrounding parklands.
- Enhancing existing and providing new green links, pedestrian and cycle connections and open space.
- Discouraging privatisation of spaces that interface with or provide access to waterway systems.
- Avoiding overshadowing of waterway systems, their banks and adjacent public open space.
- Promoting safety by maximising visibility and passive surveillance and providing good connections and access.

Design and site development to maintain and enhance the natural environment of waterway systems by:

- Minimising the visual intrusion of development on the natural landscape views from major roads, bridge crossings, public open space, recreation trails and within waterway systems themselves.
- Ensuring development is visually subordinate to the local landscape setting, including through the use of vegetation to filter views of development and avoiding overshadowing.
- Ensuring development adjacent to waterways adopts high quality materials and respectful design and siting.
- Avoiding impeding the natural flow of waterways and future flood events.
- Directing growth to established settlements where water and wastewater can be managed.

### Policy guidelines

Consider as relevant:

- Locating earthworks, including dams, a minimum of 50 metres from waterway systems.
- Locating development a minimum of 50 metres from the banks of waterway systems.
- The Aboriginal cultural heritage sensitivity and impacts of development within a 200 metre distance from the centreline of a waterway system.
- The views of floodplain and waterway managers.
- Any regional catchment strategy and related plans approved under the *Catchment and Land Protection Act 1994*.

### Policy documents

Consider as relevant:

- *Melbourne Water's Guidelines for Approval of Jetties* (Melbourne Water, 2011)
- *Healthy Waterways Strategy* (Melbourne Water, 2018)
- *Integrated Water Management Framework for Victoria* (Department of Environment, Land, Water and Planning, 2017)
- *Victorian Waterway Management Strategy* (Department of Environment and Primary Industries, 2013).

## 12.04 ALPINE AREAS

31/07/2018
VC148

## 12.04-1S Sustainable development in alpine areas

20/03/2023
VC229

### Objective

To facilitate sustainable use and development of Alpine areas for year-round use and activity.

### Strategies

Protect and manage significant environmental features and ecosystems, taking into account the sensitive and fragile nature of the alpine environment.

Ensure that the use and development of land is managed to minimise the disturbance of indigenous flora and fauna and sensitive landscapes.

Ensure that there is a mixture of use and development to cater for users of alpine areas in all seasons.

Recognise the distinct environments, infrastructure needs and capabilities to support different activities of each alpine resort and other alpine areas.

Provide for the development of consolidated alpine villages, including a diverse range of employment, social and economic opportunities.

Promote development for active recreation solely at Falls Creek, Lake Mountain, Mt Buffalo, Mt Baw Baw, Mt Buller and Mt Hotham.

Promote intensive residential and commercial development at Falls Creek, Mt Baw Baw, Mt Buller and Mt Hotham.

Maintain Mt Stirling as an all-season nature based tourist, recreational and educational resource.

Ensure that the sustainable long term planning and management of Victoria's six alpine resorts is consistent with the strategic directions contained in the *Alpine Resorts Strategic Plan 2020-2025 Responding to a Changing Climate* (Victorian Government, Alpine Resorts Co-ordinating Council, 2019).

Develop, monitor and regularly review the Alpine Resort Environmental Management Plans and Comprehensive Development Plans for each alpine resort, recognising their unique characteristics, constraints and opportunities.

Encourage best practice in design that responds to the alpine character of the area.

Ensure heritage places are protected and conserved, including Aboriginal cultural heritage and post contact heritage places.

Ensure that increases in skier, pedestrian and vehicular activity in the resorts do not compromise public safety or the accessibility and capacity of ski fields, services, commercial activity and development of trailheads.

Implement approved plans, manage development and work with Alpine Resort Management Boards to effectively operate alpine resorts and protect alpine resources.

Ensure that the use and development of land responds to potential environmental risks and contributes to maintaining or improving the environmental quality of alpine environments.

### Policy guidelines

Consider as relevant:

- Any applicable approved Victorian Environmental Assessment Council recommendations.
- Any approved management plan or guideline endorsed by the Minister for Environment or Minister for Water.

### Policy documents

Consider as relevant:

- *Alpine Resorts Strategic Plan 2020-2025 Responding to a Changing Climate* (Victorian Government, Alpine Resorts Co-ordinating Council, 2019)
- The Memorandum of Understanding in relation to the Co-operative Management of the Australian Alps National Parks, agreed to by the member states and territories of Victoria, Australian Capital Territory and New South Wales

## 12.05 SIGNIFICANT ENVIRONMENTS AND LANDSCAPES

31/07/2018
VC148

## 12.05-1S Environmentally sensitive areas

31/07/2018
VC148

### Objective

To protect and conserve environmentally sensitive areas.

### Strategies

Protect environmentally sensitive areas with significant recreational value from development that would diminish their environmental conservation or recreational values. These areas include the Dandenong and Macedon Ranges, the Upper Yarra Valley, Western Port and Port Phillip Bay and their foreshores, the Mornington Peninsula, the Yarra and Maribyrnong Rivers and the Merri Creek, the Grampians, the Gippsland Lakes and its foreshore, the coastal areas and their foreshores, Alpine areas and nominated urban conservation areas, historic buildings and precincts.

## 12.05-2S Landscapes

31/07/2018
VC148

### Objective

To protect and enhance significant landscapes and open spaces that contribute to character, identity and sustainable environments.

### Strategies

Ensure significant landscape areas such as forests, the bays and coastlines are protected.

Ensure development does not detract from the natural qualities of significant landscape areas.

Improve the landscape qualities, open space linkages and environmental performance in significant landscapes and open spaces, including green wedges, conservation areas and non-urban areas.

Recognise the natural landscape for its aesthetic value and as a fully functioning system.

Ensure important natural features are protected and enhanced.

# 12.06 SUSTAINABLE ENVIRONMENT

02/09/2025
VC283

## 12.06-1S Urban forests

02/09/2025
VC283

### Objective

To protect and enhance tree canopy in urban areas.

### Strategies

Contribute to achieving an overall 30 per cent tree canopy target for urban areas by:

- Encouraging the retention of existing canopy trees.
- Promoting the planting of new canopy trees:
  - Within the public realm and open space (excluding areas dedicated to biodiversity or native vegetation conservation).
  - On private land.

Ensuring that canopy tree species are appropriate for the locality, available space, growing conditions and future climate conditions.

### Policy documents

Consider as relevant:

- *Trees for Cooler and Greener Streetscapes Planning and Design Guidelines* (Department of Environment, Land, Water and Planning, 2019)

## 13 ENVIRONMENTAL RISKS AND AMENITY

01/07/2021
VC203

Planning should strengthen the resilience and safety of communities by adopting a best practice environmental management and risk management approach.

Planning should identify, prevent and minimise the risk of harm to the environment, human health, and amenity through:

- Land use and development compatibility.
- Effective controls to prevent or mitigate significant impacts.

Planning should identify and manage the potential for the environment and environmental changes to impact on the economic, environmental or social wellbeing of society.

Planning should ensure development and risk mitigation does not detrimentally interfere with important natural processes.

Planning should prepare for and respond to the impacts of climate change.

# 13.01 CLIMATE CHANGE IMPACTS

31/07/2018
VC148

## 13.01-1S Natural hazards and climate change

05/09/2025
VC268

### Objective

To minimise the impacts of natural hazards and adapt to the impacts of climate change through risk-based planning.

### Strategies

Respond to the risks associated with climate change in planning and management decision making processes.

Identify at risk areas using the best available data and climate change science.

Integrate strategic land use planning with emergency management decision making.

Direct population growth and development to low risk locations.

Develop adaptation response strategies for existing settlements in risk areas to accommodate change over time.

Ensure planning controls allow for risk mitigation and climate change adaptation strategies to be implemented.

Site and design development to minimise risk to life, health, property, the natural environment and community infrastructure from natural hazards.

### Policy guidelines

Consider as relevant:

- Climate change data and information maintained by the Department of Energy, Environment and Climate Action.
- Adaptation action plans prepared under Division 2 of Part 5 of the *Climate Action Act 2017*.

### Policy documents

Consider as relevant:

- Climate science report prepared under Part 6 of the *Climate Action Act 2017*

## 13.01-2S Coastal inundation and erosion

05/09/2025
VC268

### Objective

To plan for and manage coastal hazard risk and climate change impacts.

### Strategies

Plan for sea level rise of not less than 0.8 metres by 2100 and allow for the combined effects of tides, storm surges, coastal processes and local conditions such as topography and geology when assessing risks and coastal impacts associated with climate change.

Ensure that land subject to hazards is identified and appropriately managed to ensure that future use and development is not at risk.

Avoid use and development in areas vulnerable to coastal inundation and erosion.

Respond to marine and coastal processes in the context of the coastal compartment type.

Assess the effectiveness, costs, benefits, impacts (direct, cumulative and synergistic) and path dependency of available adaptation options in the following order:

1. non-intervention
2. avoid
3. nature-based methods
4. accommodate
5. retreat
6. protect

Ensure that development or protective works that seek to respond to coastal hazard risks avoid detrimental impacts on coastal processes.

### Policy guidelines

Consider as relevant:

- Any applicable Victorian Environmental Assessment Council recommendations.
- Any applicable Regional and Strategic Partnership Product, environmental management plan or coastal and marine management plan approved under the *Marine and Coastal Act 2018* or *National Parks Act 1975*.
- Any coastal erosion advice required under section 75 of the *Marine and Coastal Act 2018*.
- Local coastal hazard assessments and localised projections.

### Policy documents

Consider as relevant:

- Any applicable adaptation action plan prepared under the *Climate Action Act 2017*
- *Guidelines for Coastal Catchment Management Authorities: Assessing Development in relation to Sea Level Rise* (June, 2012)
- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Planning for Sea Level Rise Guidelines, Port Phillip and Westernport Region* (Melbourne Water, 2017)
- *Siting and Design Guidelines for Structures on the Victorian Coast* (Department of Environment, Land, Water and Planning, 2020)
- *The Victorian Coastal Hazard Guide* (Department of Sustainability and Environment, 2012)

## 13.01-3S Urban heat

02/09/2025
VC283

### Objectives

To reduce urban heat and minimise impacts of urban heat on human health and wellbeing.

### Strategies

Support development that contributes to cooler urban environments.

Support cooling design responses in urban areas through the:

- Planting and maintenance of canopy trees and other vegetation.
- Use of integrated water management.
- Provision of shading of pedestrian walkways.
- Use of permeable surfaces and low heat absorbing surface materials, such as green roofs and walls.

Encourage use of alternative water resources such as recycled water, stormwater and rainwater to support canopy tree and vegetation growth.

### Policy documents

Consider as relevant:

- *Trees for Cooler and Greener Streetscapes Planning and Design Guidelines* (Department of Environment, Land, Water and Planning, 2019)

# 13.02 BUSHFIRE

31/07/2018
VC148

## 13.02-1S Bushfire planning

16/06/2026
VC312

### Policy application

This policy must be applied to all planning and decision making under the Act relating to land:

- in a bushfire prone area;
- in a Bushfire Management Overlay; or
- proposed to be used or developed in a way that may create a bushfire hazard.

### Objective

To strengthen the resilience of settlements and communities to bushfire through risk-based planning that prioritises the protection of human life.

### Strategies

Give priority to the protection of human life by:

- Prioritising the protection of human life over all other policy considerations.
- Directing population growth and development to low risk locations and ensuring the availability of, and reliable access to, areas where human life can be better protected from the effects of bushfire.
- Reducing the vulnerability of communities to bushfire through the consideration of bushfire risk in decision making at all stages of the planning process.

Identify bushfire hazard and undertake appropriate risk assessment by:

- Applying the best available science to identify vegetation, topographic and climatic conditions that create a bushfire hazard.
- Considering the best available information about bushfire hazard, including the bushfire prone area map.
- Applying the Bushfire Management Overlay to land where the extent of vegetation can create an extreme bushfire hazard.
- Considering and assessing the bushfire hazard on the basis of:
  - Landscape conditions - meaning conditions in the landscape within 20 kilometres (and potentially up to 75 kilometres) of the site.
  - Local and neighbourhood conditions - meaning conditions in the area within approximately 5 kilometres of the site.
  - The site and conditions within 150 metres.
- Consulting with emergency management agencies and the relevant fire authority early in the process to receive their recommendations and implement appropriate bushfire protection measures.
- Ensuring that strategic planning documents, planning scheme amendments, planning permit applications and development plan approvals properly assess bushfire risk and include appropriate bushfire protection measures.
- Not approving development where a landowner or proponent has not satisfactorily demonstrated that the relevant policies have been addressed, performance measures satisfied or bushfire protection measures can be adequately implemented.

Plan to strengthen the resilience of settlements and communities through settlement growth, land use and development that prioritises the protection of human life by:

- Assessing the bushfire hazard at different spatial scales (landscape, local and neighbourhood and site), the likely fire behaviour, bushfire risk and the potential for local and neighbourhood-scale destruction.
- Directing population growth and development to low-risk locations, being those where:
  - The risk from large bushfires in the wider landscape can be managed including the risk associated with higher levels of ember attack.
  - On completion, development will not be exposed to high levels of radiant heat, which is no more than 12.5 kilowatts/square metre for locations subject to strategic planning or the preparation of a planning scheme amendment.
  - There is reliable access to areas of land where human life can be better protected from the effects of bushfire.
  - Bushfire protection measures can be provided to manage the on-going risk from bushfire.
- Ensuring alternative low-risk locations for settlement growth on a regional, municipal, settlement, local and neighbourhood basis have been assessed to ensure the proposed location for growth prioritises human life.
- Ensuring the bushfire risk to existing and future residents, property and community infrastructure will not increase as a result of future land use and development.
- Achieving no net increase in risk to existing and future residents, property and community infrastructure, through the implementation of bushfire protection measures and where possible reducing bushfire risk overall.
- Not preparing, adopting or approving a plan that will result in the introduction or intensification of development in an area that has, or will have on completion, a radiant heat exposure of more than 12.5 kilowatts/square metre in the event of a bushfire. In this strategy, 'plan' means a strategic plan, policy statement, and amendment to a planning scheme, including an amendment to the Planning Policy Framework, or a plan approved under a provision of the planning scheme.

Ensure settlement growth and development approvals can implement bushfire protection measures without unacceptable biodiversity impacts by discouraging settlement growth and development in bushfire affected areas that are important areas of biodiversity.

When assessing a planning permit application for a use or development that will result in people congregating in large numbers:

- consider the risk of bushfire to people, property and community infrastructure;
- require the implementation of appropriate bushfire protection measures to address the identified bushfire risk; and
- ensure development can implement bushfire protection measures without unacceptable biodiversity impacts.

### Policy guidelines

Consider as relevant:

- Any applicable approved state, regional and municipal fire prevention plan.

### Policy documents

Consider as relevant:

- *AS 3959-2018 Construction of buildings in bushfire-prone areas* (Standards Australia, 2018)
- *Design guidelines for settlement planning at the bushfire interface* (Department of Environment, Land, Water and Planning, 2020)
- The bushfire prone area map.

## 13.02-1L Bushfire planning

13/03/2026
C271card

### Strategies

Ensure that the siting and design of subdivisions has fully considered the impact of existing slope, aspect and vegetation in terms of risks of bushfire, particularly with regard to the location of building envelopes.

Ensure all development has appropriately designed access for emergency vehicles.

Ensure development provides adequate access to water.

Encourage the use of roads as a buffer between housing and bushland.

# 13.03 FLOOD

20/10/2026
VC317

## 13.03-1S Flood planning

20/10/2026
VC317

### Objective

To strengthen the resilience of settlements and communities to flood (riverine, coastal and overland flows from stormwater) through risk-based planning that prioritises the protection of human life.

To assist the protection of:

- Property and community infrastructure from flood hazard.
- The natural flood carrying capacity of rivers, streams and floodways.
- The flood storage function of floodplains and waterways.
- Floodplain areas of environmental significance or of importance to river, wetland or marine and coastal ecosystems and habitats.

### Strategies

Prioritise the protection of human life over all other policy considerations in areas of high, very high and extreme flood risk.

Identify land at moderate, high, very high and extreme flood risk within the 1 per cent Annual Exceedance Probability (1 in 100 year) flood extent or as determined by the floodplain management authority in planning schemes.

Apply the Flood Management Zone to land subject to extreme flood risk and the Flood Management Overlay schedules to land subject to moderate, high and very high flood risk.

Plan for use and development using a rainfall intensity consistent with a high emissions climate change scenario, being no less than Shared Socio-economic Pathway SSP3-7.0 median or equivalent, to at least the year 2100, where there is a potential risk to human life.

Plan for flood and drainage infrastructure to manage flood risk, having regard to asset lifecycles, development staging and the need to adapt to climate change, to minimise risk to human life and support infrastructure resilience.

Direct vulnerable use and development away from land that is identified as high, very high and extreme flood risk.

Avoid intensifying the impact of flooding through inappropriately located use and development.

Plan for the cumulative impacts of use and development on flood behaviour.

Ensure that development, access and built form design are resilient to the impacts of flood and future climate conditions.

Avoid locating community facilities that accommodate vulnerable people (including residential aged care facilities, retirement villages, community shelters, child care centres and schools) within the 1 per cent Annual Exceedance Probability (1 in 100 year) flood extent unless flood risk can be safely managed through appropriate siting, access and design.

Avoid locating emergency services and essential infrastructure (including ambulance, police and fire stations and hospitals) within the 1 per cent Annual Exceedance Probability (1 in 100 year) flood extent and where practicable, above the Probable Maximum Flood level, and where this is not practicable, ensure they are sited in areas of relatively low flood risk and are designed to minimise risk and maintain safe access and operational continuity during and after floods.

Locate use and development involving the storage or disposal of environmentally hazardous industrial and agricultural chemicals or wastes and other dangerous goods (including intensive animal industries and sewage treatment plants) outside the Probable Maximum Flood level unless site design and management:

- Prevents contact between such substances and floodwaters.
- Preserves or improves the flood carrying capacity and flood storage functions of the floodplain.

Ensure land use minimises the risk of waterway contamination occurring during floods.

Ensure floodplains can function as temporary storage to moderate peak flows and minimise downstream impacts.

### Policy guidelines

Consider as relevant:

- Regional floodplain strategies linked to the *Victorian Floodplain Management Strategy* and any special area plans prepared under the *Catchment and Land Protection Act 1994*.
- Any floodplain management manuals or guidelines and catchment management, river health, wetland or floodplain management strategy adopted by the relevant responsible floodplain management authority.
- Any best practice environmental management guidelines for stormwater adopted by the Environment Protection Authority.
- Any local coastal hazard assessment or adaptation plan.

### Policy documents

Consider as relevant:

- *Victorian Floodplain Management Strategy* (Department of Environment, Land, Water and Planning, 2016).
- *Victoria's Climate Change Strategy, 2026-2030* (Department of Energy, Environment and Climate Action, 2025)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022).
- *Guidelines for Development in Flood Affected Areas* (Department of Environment, Land, Water and Planning, 2019).
- The flood-prone area map.

## 13.03-1L Floodplain management

13/03/2026
C271card

### Strategies

Support the maintenance and upgrade of levee banks in the Koo Wee Rup Flood Protection District, particularly along the Bunyip Main Drain.

## 13.04 SOIL DEGRADATION

31/07/2018
VC148

## 13.04-1S Contaminated and potentially contaminated land

04/05/2022
VC210

### Objective

To ensure that contaminated and potentially contaminated land is used and developed safely.

### Strategies

Ensure contaminated or potentially contaminated land is or will be suitable for the proposed use, prior to the commencement of any use or development.

Protect a sensitive use (residential use, childcare centre, kindergarten, pre-school centre, primary school, even if ancillary to another use), children's playground or secondary school from the effects of contamination.

Facilitate the remediation of contaminated land to make the land suitable for future intended use or development.

### Policy guideline

Consider as relevant the potential for contamination to impact the proposed use or development through an assessment that is proportionate to the risk, including:

- An assessment in accordance with the *National Environment Protection (Assessment of Site Contamination) Measure* (National Environment Protection Council, 1999)
- A preliminary risk screen assessment or environmental audit under Part 8.3 of the *Environment Protection Act 2017*.

### Policy documents

Consider as relevant:

- *Ministerial Direction No. 1 - Potentially Contaminated Land*
- *National Environment Protection (Assessment of Site Contamination) Measure* (National Environment Protection Council, 1999)

## 13.04-2S Erosion and landslip

31/07/2018
VC148

### Objective

To protect areas prone to erosion, landslip or other land degradation processes.

### Strategies

Identify areas subject to erosion or instability in planning schemes and when considering the use and development of land.

Prevent inappropriate development in unstable areas or areas prone to erosion.

Promote vegetation retention, planting and rehabilitation in areas prone to erosion and land instability.

### Policy guidelines

Consider as relevant:

- Any applicable regional catchment strategy.
- Any special area plan approved under the *Catchment and Land Protection Act 1994*.

## 13.04-3S Salinity

31/07/2018
VC148

### Objective

To minimise the impact of salinity and rising water tables on land uses, buildings and infrastructure in rural and urban areas and areas of environmental significance and reduce salt load in rivers.

### Strategies

Identify areas subject to salinity in the preparation of planning schemes and land use planning decisions.

Promote vegetation retention and replanting in aquifer recharge areas contributing to groundwater salinity problems.

Prevent inappropriate development in areas affected by groundwater salinity.

### Policy guidelines

Consider as relevant:

- Any applicable regional catchment strategy and any associated implementation plan or strategy (particularly salinity management plans and regional vegetation plans).
- Any special area plan approved under the *Catchment and Land Protection Act 1994*.

### Policy documents

Consider as relevant:

- *Salinity Information Kit: Volume 1 - A Local Government Planning Guide for Dryland Salinity* (Department of Conservation and Natural Resources, 1995)

## 13.04-3L Salinity

13/03/2026
C271card

### Strategies

Encourage appropriate mitigation measures for development in identified shallow ground water or potential salinity risk areas.

# 13.05 NOISE

31/07/2018
VC148

## 13.05-1S Noise management

26/10/2026
VC305

### Objective

To assist the management of noise effects on sensitive land uses.

### Strategies

Ensure that development is not prejudiced and community amenity and human health is not adversely impacted by noise emissions.

Minimise the impact on human health from noise exposure to occupants of sensitive land uses (residential use, child care centre, school, education centre, residential aged care centre or hospital) near the transport system and other noise emission sources through suitable building siting and design (including orientation and internal layout), urban design and land use separation techniques as appropriate to the land use functions and character of the area.

### Policy guidelines

Consider as relevant:

- The noise requirements in accordance with the Environment Protection Regulations under the *Environment Protection Act 2017*.

### Policy documents

Consider as relevant:

- *Environment Protection Regulations under the Environment Protection Act 2017*
- *Noise limit and assessment protocol for the control of noise from commercial, industrial and trade premises and entertainment venues* (Publication 1826.5, Environment Protection Authority Victoria, September 2025)
- *Environment Reference Standard* (Gazette No. S 245, 26 May 2021)
- *Passenger Rail Infrastructure Noise Policy* (Victorian Government, 2013)
- *VicTrack Rail Development Interface Guidelines* (VicTrack, 2019)

# 13.06 AIR QUALITY

31/07/2018
VC148

## 13.06-1S Air quality management

14/01/2025
VC237

### Objective

To assist the protection and improvement of air quality.

### Strategies

Ensure that land use planning and transport infrastructure provision contribute to improved air quality by:

- Integrating transport and land use planning to improve transport accessibility and connections.
- Locating key developments that generate high volumes of trips in the Central City, Metropolitan Activity Centres and Major Activity Centres.
- Providing infrastructure for walking, cycling and public transport.

Ensure, wherever possible, that there is suitable separation between land uses that pose a human health risk or reduce amenity due to air pollutants, and sensitive land uses (residential use, child care centre, school, education centre, residential aged care centre or hospital).

Minimise air pollutant exposure to occupants of sensitive land uses near the transport system through suitable siting, layout and design responses.

### Policy documents

Consider as relevant:

- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)
- *Environment Reference Standard* (Gazette No. S 245, 26 May 2021)

# 13.07 AMENITY, HUMAN HEALTH AND SAFETY

26/05/2020
VC175

## 13.07-1S Land use compatibility

14/01/2025
VC237

### Objective

To protect community amenity, human health and safety while facilitating appropriate commercial, industrial, infrastructure or other uses with potential adverse off-site impacts.

### Strategies

- Ensure that use or development of land is compatible with adjoining and nearby land uses
- Avoid locating incompatible uses in areas that may be impacted by adverse off-site impacts from commercial, industrial and other uses.
- Avoid or otherwise minimise adverse off-site impacts from commercial, industrial and other uses through land use separation, siting, building design and operational measures.
- Protect commercial, industrial and other employment generating uses from encroachment by use or development that would compromise the ability of those uses to function safely and effectively.

### Policy documents

Consider as relevant:

- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)

## 13.07-1L South East Water Treatment Plant

13/03/2026
C271card

### Strategies

Locate sensitive land uses, such as residential subdivision and dwellings, childcare centre, pre-school centre or primary school, a sufficient distance from the South East Water Treatment Plant.

### Policy guidelines

Consider as relevant:

- That sensitive land uses should not be located within 350 metres of the South East Water Treatment Plant unless permitted by South East Water and the Environment Protection Authority.

### Policy Document

- *Koo Wee Rup Township Strategy* (Cardinia Shire Council, October 2015).

## 13.07-2S Major hazard facilities

26/10/2018
VC152

### Objective

To minimise the potential for human and property exposure to risk from incidents that may occur at a major hazard facility and to ensure the ongoing viability of major hazard facilities.

### Strategies

Ensure major hazard facilities are sited, designed and operated to minimise risk to surrounding communities and the environment.

Consider the risks associated with increasing the intensity of use and development within the threshold distance of an existing major hazard facility.

Apply appropriate threshold distances from sensitive land uses for new major hazard facilities and between major hazard facilities.

Protect registered or licenced major hazard facilities as defined under Regulation 5 of the Occupational Health and Safety Regulations 2017 from encroachment of sensitive land uses.

## 14 NATURAL RESOURCE MANAGEMENT

31/07/2018
VC148

Planning is to assist in the conservation and wise use of natural resources including energy, water, land, stone and minerals to support both environmental quality and sustainable development.

Planning should ensure agricultural land is managed sustainably, while acknowledging the economic importance of agricultural production.

# 14.01 AGRICULTURE

31/07/2018
VC148

## 14.01-1S Protection of agricultural land

20/03/2023
VC229

### Objective

To protect the state's agricultural base by preserving productive farmland.

### Strategies

Identify areas of productive agricultural land, including land for primary production and intensive agriculture.

Consider state, regional and local, issues and characteristics when assessing agricultural quality and productivity.

Avoid permanent removal of productive agricultural land from the state's agricultural base without consideration of the economic importance of the land for the agricultural production and processing sectors.

Protect productive farmland that is of strategic significance in the local or regional context.

Protect productive agricultural land from unplanned loss due to permanent changes in land use.

Prevent inappropriately dispersed urban activities in rural areas.

Protect strategically important agricultural and primary production land from incompatible uses.

Limit new housing development in rural areas by:

- Directing housing growth into existing settlements.
- Discouraging development of isolated small lots in the rural zones from use for dwellings or other incompatible uses.
- Encouraging consolidation of existing isolated small lots in rural zones.

Identify areas of productive agricultural land by consulting with the Department of Energy, Environment and Climate Action and using available information.

In considering a proposal to use, subdivide or develop agricultural land, consider the:

- Desirability and impacts of removing the land from primary production, given its agricultural productivity.
- Impacts on the continuation of primary production on adjacent land, with particular regard to land values and the viability of infrastructure for such production.
- Compatibility between the proposed or likely development and the existing use of the surrounding land.
- The potential impacts of land use and development on the spread of plant and animal pests from areas of known infestation into agricultural areas.
- Land capability.

Avoid the subdivision of productive agricultural land from diminishing the long-term productive capacity of the land.

Give priority to the re-structure of inappropriate subdivisions where they exist on productive agricultural land.

Balance the potential off-site effects of a use or development proposal (such as degradation of soil or water quality and land salinisation) against the benefits of the proposal.

## 14.01-1R Protection of agricultural land - Metropolitan Melbourne

31/07/2018
VC148

### Strategy

Protect agricultural land in Metropolitan Melbourne's green wedges and peri-urban areas to avoid the permanent loss of agricultural land in those locations.

## 14.01-1L Protection of agricultural land

13/03/2026
C271card

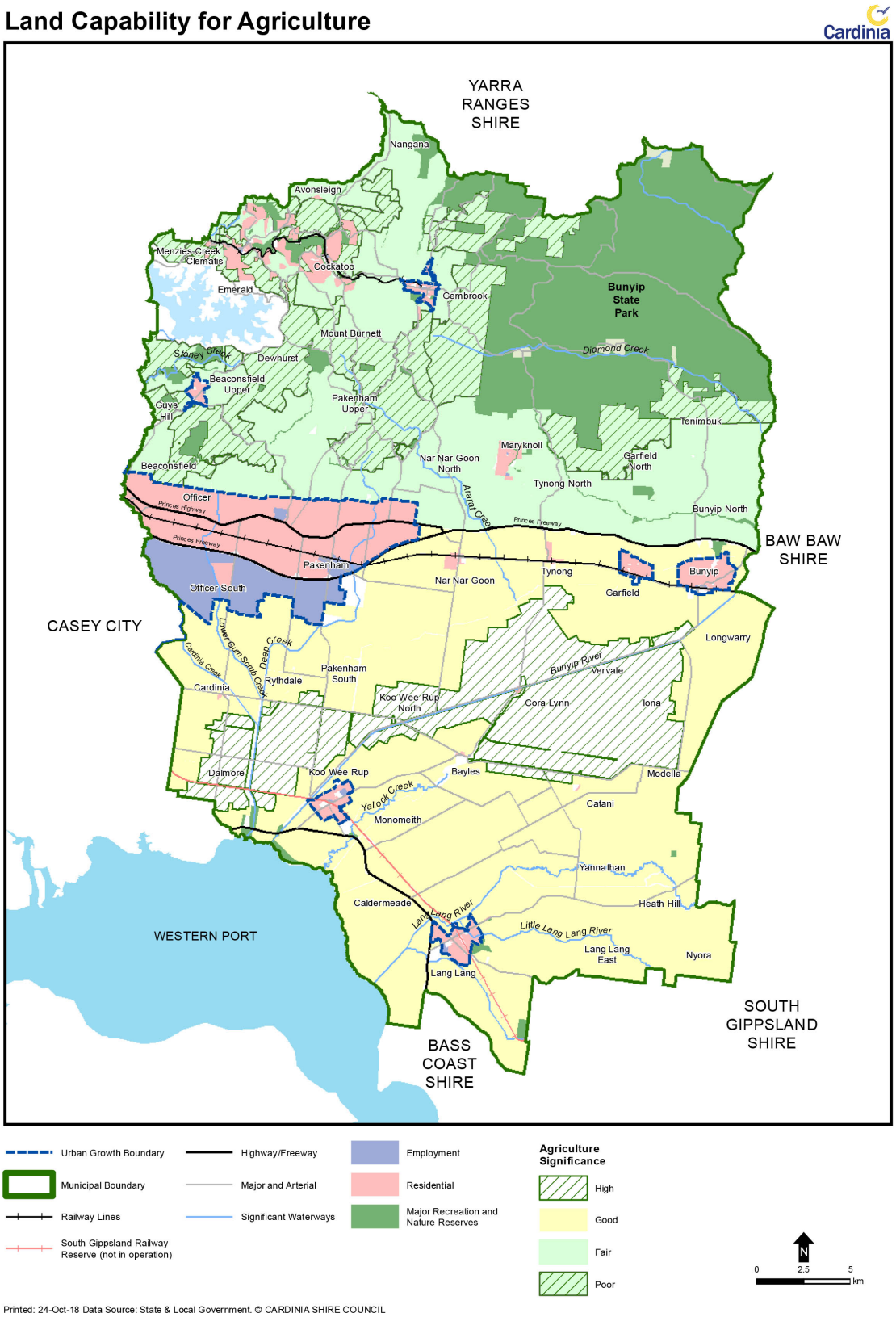
### Strategies

Discourage non-soil based uses (e.g.: poultry farms, animal husbandry, beef and dairy farming) being located on soils which are of high agricultural significance as shown on the Land Capability for Agriculture map forming part of this clause.

Discourage boundary realignments that create the opportunity for fragmentation of agricultural land and the creation of a concentration of residential uses outside the urban growth boundary and township boundaries.

Discourage non rural uses such as primary and secondary schools and places of worship from locating on green wedge land and encourage these types of uses to locate within existing townships and within green wedge land that adjoins the Urban Growth Boundary (UGB), subject to strategic justification.

## Land Capability for Agriculture




## 14.01-2S Sustainable agricultural land use

21/09/2018
VC150

### Objective

To encourage sustainable agricultural land use.

### Strategies

Ensure agricultural and productive rural land use activities are managed to maintain the long-term sustainable use and management of existing natural resources.

Support the development of innovative and sustainable approaches to agricultural and associated rural land use practices.

Support adaptation of the agricultural sector to respond to the potential risks arising from climate change.

Encourage diversification and value-adding of agriculture through effective agricultural production and processing, rural industry and farm-related retailing.

Assist genuine farming enterprises to embrace opportunities and adjust flexibly to market changes.

Support agricultural investment through the protection and enhancement of appropriate infrastructure.

Facilitate ongoing productivity and investment in high value agriculture.

Facilitate the establishment and expansion of cattle feedlots, pig farms, poultry farms and other intensive animal industries in a manner consistent with orderly and proper planning and protection of the environment.

Ensure that the use and development of land for animal keeping or training is appropriately located and does not detrimentally impact the environment, the operation of surrounding land uses and the amenity of the surrounding area.

### Policy documents

Consider as relevant:

- *Victorian Code for Cattle Feedlots* (Department of Agriculture, Energy and Minerals, 1995)
- *Victorian Code for Broiler Farms* (Department of Primary Industries, 2009, plus 2018 amendments)
- *Apiary Code of Practice* (Department of Planning and Community Development, 2011)
- *Planning Guidelines for Land Based Aquaculture in Victoria* (Department of Primary Industries, No. 21, 2005)
- *Victorian Low Density Mobile Outdoor Poultry Farm Planning Permit Guidelines* (Department of Economic Development, Jobs, Transport and Resources, June 2018)
- *Victorian Low Density Mobile Outdoor Pig Farm Planning Permit Guidelines* (Department of Economic Development, Jobs, Transport and Resources, June 2018)

## 14.01-2L Sustainable agricultural land use

13/03/2026
C271card

### Strategies

Encourage the establishment of alternative and innovative agricultural activities such as herb farming or small nurseries, particularly in areas where fragmented lot sizes limit opportunities for broadacre agricultural activities.

Encourage responsible land management to minimise environmental degradation by pest plants and animals.

Ensure that any agricultural development proposal is appropriately located in terms of buffer distances of surrounding uses.

## 14.01-3S Forestry and timber production

20/03/2023
VC229

### Objective

To facilitate the establishment, management and harvesting of plantations and the harvesting of timber from native forests.

### Strategies

Identify areas that may be suitably used and developed for plantation timber production.

Promote the establishment of softwood and hardwood plantations on predominantly cleared land, as well as other areas that are subject to or contributing to land and water degradation.

Ensure protection of water quality and soil.

Ensure timber production in native forests is conducted in a sustainable manner.

Conduct timber production (except agroforestry, windbreaks and commercial plantations of 5 hectares or less) in accordance with the *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022).

Ensure Victoria's greenhouse sinks are protected and enhanced by controlling land clearing, containing the growth of urban areas and supporting revegetation programs.

### Policy documents

Consider as relevant:

- *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022)

## 14.02 WATER

31/07/2018
VC148

## 14.02-1S Catchment planning and management

28/04/2026
VC232

### Objective

To assist the protection and restoration of catchments, waterways, estuaries, bays, water bodies, groundwater, and the marine environment.

### Strategies

Ensure the continued availability of clean, high-quality drinking water by protecting water catchments and water supply facilities.

Consider the impacts of catchment management on downstream water quality and freshwater, coastal and marine environments.

Retain natural drainage corridors with vegetated buffer zones at least 50 metres wide along each side of a waterway to:

- Maintain the natural drainage function, stream habitat and wildlife corridors and landscape values,
- Minimise erosion of stream banks and verges, and
- Reduce polluted surface runoff from adjacent land uses.

Undertake measures to minimise the quantity and retard the flow of stormwater from developed areas.

Require appropriate measures to filter sediment and wastes from stormwater prior to its discharge into waterways, including the preservation of floodplain or other land for wetlands and retention basins.

Ensure that development at or near waterways provide for the protection and enhancement of the environmental qualities of waterways and their instream uses.

Ensure land use and development minimises nutrient contributions to water bodies and the potential for the development of algal blooms.

Require appropriate measures to restrict sediment discharges from construction sites.

Ensure planning is coordinated with the activities of catchment management authorities.

Ensure that water quality infrastructure is designed to minimise risk of harm to surface waters and groundwater.

### Policy guidelines

Consider as relevant:

- Any regional catchment strategy and related plans approved under the *Catchment and Land Protection Act 1994*.
- Any applicable implementation strategy approved by a catchment management authority or waterway management authority.
- Any special area or management plan under the *Heritage Rivers Act 1992*.
- Any action statement or management plan prepared under the *Flora and Fauna Guarantee Act 1988*.

### Policy documents

Consider as relevant:

- *Murray River Regional Environmental Plan No 2 (REP2) of New South Wales*
- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)

- *Planning Permit Applications in Special Water Supply Catchment Areas* (Department of Energy, Environment and Climate Action, 2024)
- *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021)

## 14.02-2S Water quality

22/11/2024
VC263

### Objective

To protect water quality.

### Strategies

Protect reservoirs, water mains and local storage facilities from potential contamination.

Ensure that land use activities potentially discharging contaminated runoff or wastes to waterways are sited and managed to minimise such discharges and to protect the quality of surface water and groundwater resources, rivers, streams, wetlands, estuaries and marine environments.

Discourage incompatible land use activities in areas subject to flooding, severe soil degradation, groundwater salinity or geotechnical hazards where the land cannot be sustainably managed to ensure minimum impact on downstream water quality or flow volumes.

Prevent the establishment of incompatible land uses in aquifer recharge or saline discharge areas and in potable water catchments.

Ensure that the siting, design, operation and rehabilitation of landfills avoids impacts on groundwater and surface water.

Avoid detrimental impacts on groundwater resources and minimise risk of harm to human health and the environment from proposed land use or development.

### Policy documents

Consider as relevant:

- *Civil Construction, Building and Demolition Guide* (Publication 1834, Environment Protection Authority, November 2020)
- *Environment Reference Standard* (Gazette No. S 245, 26 May 2021)
- *Planning Permit Applications in Special Water Supply Catchment Areas* (Department of Energy, Environment and Climate Action, 2024)

## 14.02-2L Water quality

13/03/2026
C271card

### Strategies

Encourage the retention and, where appropriate, the re-establishment of native vegetation to minimise erosion and sediment entering waterways and to reduce salinity.

Ensure the replanting of indigenous vegetation where earthworks have been undertaken, particularly on steeply sloping land, on land subject to erosion, or in close proximity to a watercourse to manage and reduce sediment generation.

Protect groundwater resources in the Western Port Basin.

Protect Western Port and the associated significant estuarine, intertidal and immediate marine habitat of Western Port and promote sustainable outcomes.

Minimise the impact of shallow groundwater conditions and salinity on the built and natural environment, including both native vegetation and agricultural land, and ensure that development does not contribute to increasing the risk or extent of salinity.

Ensure appropriate mitigation measures are identified for developments in identified shallow groundwater or potential salinity risk areas.

## 14.02-3S Protection of declared irrigation districts

04/02/2026
VC265

### Objective

To plan and manage for sustainable change within irrigation districts declared under Part 6A of the *Water Act 1989*.

### Strategies

Identify and plan for the future needs of communities to adapt and adjust to strategic land use change within an irrigation district.

Ensure the future viability of an irrigation district by preventing non-agricultural use of land in a declared irrigation district where the land is serviced, or was serviced as at 17 September 2019, by rural water corporation irrigation infrastructure, unless the rural water corporation infrastructure has been, or is planned to be, decommissioned.

Ensure non-agricultural land use does not undermine the integrity of irrigation infrastructure and complements existing and future agricultural production.

Ensure land use change within an irrigation district does not negate the potential opportunities for a rural water corporation to make adjustments to the footprint of an irrigation district that are identified under an approved plan or strategy.

Ensure land use change does not limit the ability of future investment in irrigation infrastructure that achieves the intended benefits of minimising water loss, and improved irrigation service efficiency to the farm gate and overall agricultural production.

### Policy documents

Consider as relevant:

- *Water for Victoria* (Department of Environment, Land, Water and Planning, 2016)
- *Central and Gippsland Region Sustainable Water Strategy* (Department of Energy, Environment and Climate Action, 2022)
- *Northern Region Sustainable Water Strategy* (Department of Sustainability and Environment, 2009)

- *Western Region Sustainable Water Strategy* (Department of Sustainability and Environment, 2011)
- *Victorian Government White Paper, Securing Our Water Future Together – Our Water, Our Future* (Department of Sustainability and Environment, 2004)

## 14.03 EARTH AND ENERGY RESOURCES

31/07/2018
VC148

## 14.03-1S Resource exploration and extraction

18/09/2026
VC313

### Objective

To encourage exploration and extraction of earth and energy resources in accordance with acceptable environmental standards.

### Strategies

Provide for the long-term protection of earth and energy resources in Victoria.

Protect the opportunity for exploration and extraction of earth and energy resources where this is consistent with overall planning considerations and acceptable environmental and rehabilitation outcomes.

Support the provision of infrastructure, including transport, for the exploration and extraction of earth and energy resources.

Develop and maintain buffers around mining and extractive industry.

Define clear buffer areas suitable to the nature of the proposed extractive industry.

Identify and protect extractive industry and extractive resources within Strategic Extractive Resource Areas and Extractive Industry Interest Areas, based on existing or potential future contribution to state supply.

Facilitate the use and development of extractive industry and other compatible land uses within Strategic Extractive Resource Areas and Extractive Industry Interest Areas.

Protect the brown coal resource in Central Gippsland by ensuring that:

- Changes in use and development of land overlying coal resources, as generally defined in *Framework for the Future* (Minister for Industry, Technology and Resources and Minister for Planning and Environment, 1987) (1987) and the *Land Over Coal and Buffer Area Study* (1988), do not compromise the winning or processing of coal.
- Coal-related development is adequately separated from residential or other sensitive uses and main transport corridors by buffer areas to minimise adverse effects such as noise, dust, fire, earth subsidence and visual intrusion.
- Use and development within the buffer areas are compatible with use and development adjacent to these areas.

### Policy guidelines

Consider as relevant:

- Determining buffer areas between extractive industry and sensitive land uses based on the following matters:
  - The use of practical and available technology to minimise effects on sensitive land uses.
  - The impact of a change of land use proposed near an extractive industry.
  - Use of land within the buffer areas is not limited by adverse effects created by the extractive industry.
  - Performance standards identified under the relevant legislation.
  - Whether land within the buffer areas is within a public land zone.

### Policy documents

Consider as relevant:

- *Mineral Resources (Sustainable Development) Act 1990*
- *Greenhouse Gas Geological Sequestration Act 2008*

- *Geothermal Energy Resources Act 2005*
- *Petroleum Act 1998*
- *Melbourne Supply Area - Extractive Industry Interest Areas Review* (Geological Survey of Victoria Technical Record, 2003/2)
- *Ballarat Supply Area - Extractive Industry Interest Areas* (Geological Survey of Victoria Technical Record, 1997/3)
- *Bendigo Supply Area - Extractive Industry Interest Areas* (Geological Survey of Victoria Technical Record, 1998/6)
- *Geelong Supply Area - Extractive Industry Interest Areas* (Geological Survey of Victoria Technical Record, 1999/2)
- *La Trobe Supply Area - Extractive Industry Interest Areas* (Geological Survey of Victoria Technical Record, 1999/4)

## 14.03-1L-01 Extractive industries

13/03/2026
C271card

### Strategies

Designate transport routes between extractive industry sites and the arterial road network, and require contributions towards the upgrading and maintenance of transport routes from extractive industry sites.

Ensure that development mitigates the potential impacts of extractive industry on surface water, ground water, biodiversity (flora and fauna), visual landscape, transport infrastructure, residents' amenity (i.e. noise dust, transport blast vibration) and heritage (particularly Aboriginal Cultural Heritage).

Ensure that the proposed end use is compatible with adjacent land-use and development.

## 14.03-1L-02 Sand extraction - Lang Lang to Grantville

13/03/2026
C271card

### Policy application

This policy applies to land in the Lang Lang area, generally south of the Lang Lang River.

### Objective

To protect sand resources in the Lang Lang - Grantville area and to provide for the extraction of these resources and rehabilitation of sites in a manner that protects the environmental, social and economic values of the area.

### Strategies

Ensure interim uses of sand resource areas and adjacent areas be compatible with the potential future extraction of the resource.

Progressively rehabilitate sand extraction sites to a condition suitable for an end use that addresses the environmental, social and economic values of the area and is compatible with adjacent land use and development.

Ensure extraction does not adversely impact on the quality and quantity of groundwater resources in the area to the extent that, the beneficial uses (e.g. drinking, irrigation, stock and industrial uses) of groundwater are reduced.

Transport the extracted resource to its end use in an efficient and safe manner that protects the amenity of the area and minimises the impacts on existing service levels.

Protect the amenity of existing and future residents of the locality, and that the residents' quality of life consistent with accepted standards not be diminished due to the impacts of extractive operations.

Minimise the visual impact of sand extraction operations, and that the visual quality of landscapes be ultimately conserved and, if possible, enhanced by extractive operations.

### Policy documents

Consider as relevant:

- Incorporated Document: *Lang Lang Township Strategy* (Cardinia Shire Council, July 2009).
- *Regional Sand Extraction Strategy - Lang Lang to Grantville* (Department of Infrastructure, 1996).

# 15 BUILT ENVIRONMENT AND HERITAGE

02/09/2025
VC283

Planning is to recognise the role of urban design, building design, heritage and energy and resource efficiency in delivering liveable and sustainable cities, towns and neighbourhoods.

Planning should ensure all land use and development appropriately responds to its surrounding landscape and character, valued built form and cultural context.

Planning should protect places and sites with significant heritage, architectural, aesthetic, natural, scientific and cultural value.

Planning should incorporate measures to protect culturally significant heritage places in locations exposed to climate related hazards.

Planning must support the establishment and maintenance of communities by delivering functional, accessible, safe and diverse physical and social environments, through the appropriate location of use and development and through high quality buildings and urban design.

Planning should promote excellence in the built environment and create places that:

- Are enjoyable, engaging, and comfortable to be in.
- Support human health and community wellbeing.
- Accommodate people of all abilities, ages and cultures.
- Contribute positively to local character and sense of place.
- Reflect the particular characteristics and cultural identity of the community.
- Celebrate, acknowledge and protect cultural heritage.
- Enhance the function, amenity and safety of the public realm.

Planning should promote development that is environmentally sustainable and minimise detrimental impacts on the built and natural environment.

Planning should facilitate development that:

- Is adapted and resilient to climate related hazards.
- Supports the transition to net zero greenhouse gas emissions.
- Minimises waste generation and supports resource recovery.
- Conserves potable water.
- Supports the use of, and access to, low emission forms of transport.
- Protects and enhances natural values.
- Minimises off-site detrimental impacts on people and the environment.

# 15.01 BUILT ENVIRONMENT

31/07/2018
VC148

## 15.01-1S Urban design

02/09/2025
VC283

### Objective

To create urban environments that are safe, healthy, functional and enjoyable and that contribute to a sense of place and cultural identity.

### Strategies

Require development to respond to its context in terms of character, cultural identity and heritage, natural features, surrounding landscape and climate.

Ensure development contributes to community and cultural life by improving the quality of living and working environments, facilitating accessibility and providing for inclusiveness.

Ensure the interface between the private and public realm protects and enhances personal safety.

Ensure development supports public realm amenity and safe access to walking and cycling environments and public transport.

Ensure that the design and location of publicly accessible private spaces, including car parking areas, forecourts and walkways, is of a high standard, creates a safe environment for users and enables easy and efficient use.

Ensure that development provides landscaping that supports the amenity, attractiveness and safety of the public realm.

Ensure that development, including signs, minimises detrimental impacts on amenity, on the natural and built environment and on the safety and efficiency of roads.

Promote good urban design along and abutting transport corridors.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)

## 15.01-1R Urban design - Metropolitan Melbourne

31/07/2018
VC148

### Objective

To create a distinctive and liveable city with quality design and amenity.

### Strategies

Support the creation of well-designed places that are memorable, distinctive and liveable.

Integrate place making practices into road space management.

Strengthen Melbourne's network of boulevards.

Create new boulevards in urban-growth areas and selected existing road corridors across Melbourne.

Provide spaces and facilities that encourage and support the growth and development of Melbourne's cultural precincts and creative industries.

## 15.01-1L-01 Urban Design

13/03/2026
C271card

### General strategies

Ensure new development is not accessed from an unused or unconstructed road unless no other option is available for access to land via the existing road network.

Ensure new development is designed to address public spaces and enhance the public realm.

Encourage development that enhances and complements the identity of the activity centres and facilitates improved urban design outcomes.

### Emerald, Avonsleigh and Clematis strategies

Encourage individuality in the design of dwellings in multi- unit development, avoiding repetition within the site or of past styles in Emerald, Avonsleigh and Clematis.

### Bunyip strategy

Encourage the use of parapet walls in Main Street, Bunyip.

### Lang Lang strategies

Maintain a sense of spaciousness between residential allotments.

Ensure protection and conservation of native vegetation including street trees and roadside vegetation and encourage the inclusion of native vegetation and garden in new development.

Limit direct vehicle access from private land holdings to the proposed Lang Lang sand truck bypass.

Maintain the generous street, footpath and easement widths in new developments.

### Koo Wee Rup strategies

Design development in the town centre to be consistent with the general design guidelines set out in Section 12.4 of the *Koo Wee Rup Township Strategy* (Cardinia Shire Council, 2015).

Consolidate rear yards within the town centre to provide combined parking courts to the rear of buildings with access via the orderly arranged laneways to provide sufficient car parking.

### Policy documents

Consider as relevant:

- Incorporated Document: *Emerald and District Strategy* (Cardinia Shire Council, June 2009)
- Incorporated Document: *Bunyip Township Strategy* (Cardinia Shire Council, September 2009)
- Incorporated Document: *Lang Lang Township Strategy* (Cardinia Shire Council, July 2009)
- *Koo Wee Rup Township Strategy* (Cardinia Shire Council, October 2015)

## 15.01-1L-02 Activity and safety in the public realm

13/03/2026
C271card

### Objective

To improve the activation, safety and surveillance of the public realm.

### Strategies

Encourage development that is consistent with safer design principles, including:

- Maximising visibility and surveillance of the public environment.
- Providing safe movement through good connections and access.

- Maximising activity in public places.
- Clearly defining private and public space.

Encourage development that enhances and complements the identity of the activity centres and facilitates urban design outcomes that improve activation, safety and surveillance.

Discourage the construction of blank walls and long fences facing onto public spaces where graffiti may occur.

Encourage the use of landscaping, lighting materials and graffiti resistant materials to reduce the risk of graffiti.

#### Policy document

- Incorporated Document: *Bunyip Township Strategy* (Cardinia Shire Council, September 2009)

## 15.01-1L-03 Shopping Centre Signs

13/03/2026
C271card

#### Policy application

This policy applies to shopping centres identified in the Shopping Centre Signage Policy Map (Figure 1) to this clause.

#### Objective

To encourage signs that contribute positively to the day and night image of activity centres and town centres.

#### Strategies

Exterior signs in free-standing shopping centres should respond to their context and high degree of visibility of the centre buildings.

Business identification signs on external walls should be designed to:

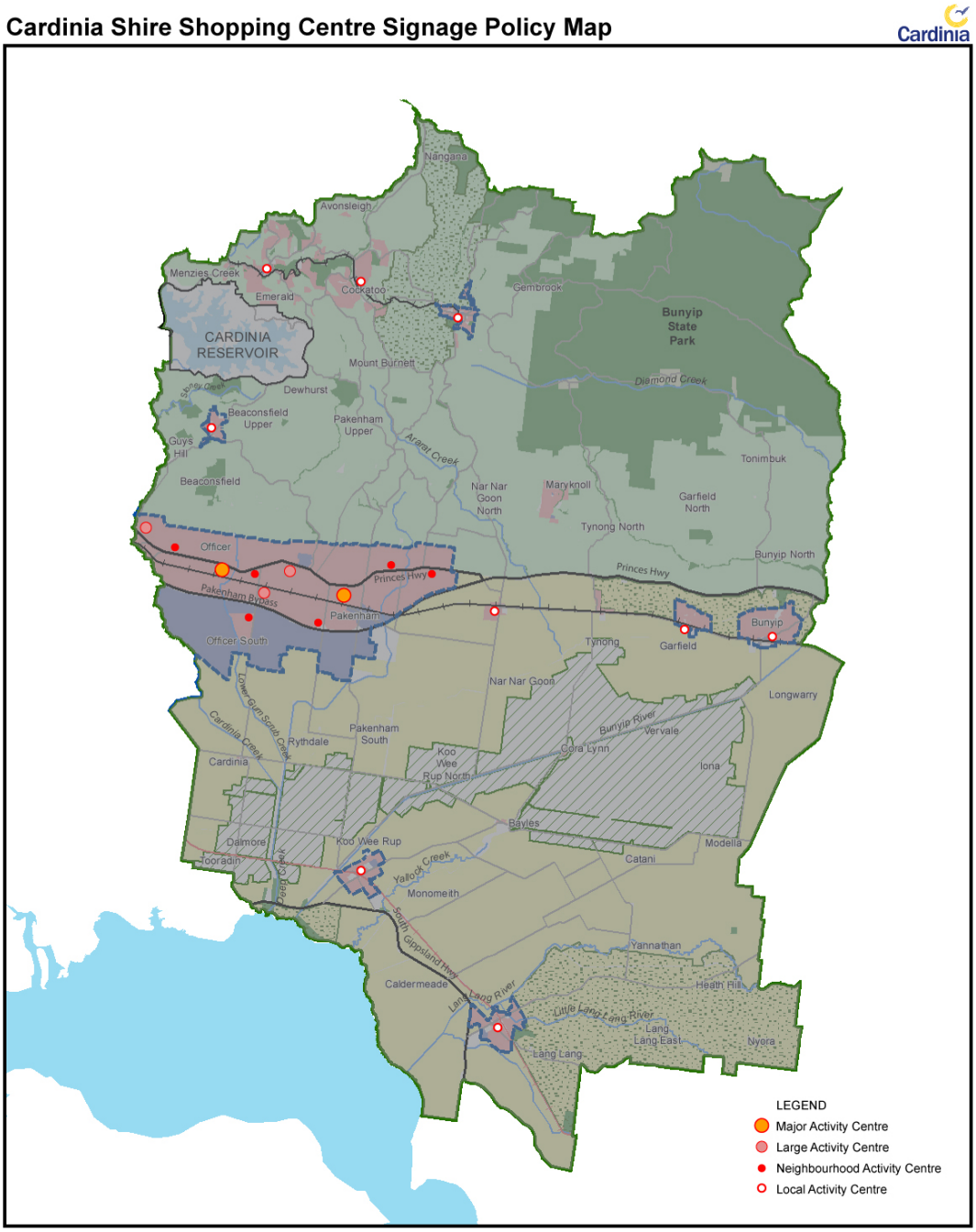
- Complement the architecture of the building.
- Be proportional to the building.
- Be positioned directly on the building façade.
- Not protrude above the roofline.
- Incorporate signs into the building form and limit pole and free-standing panel signs.

#### Policy guidelines

Consider as relevant:

- Ensuring signs on the exterior of the building are uniform in size.
- Limiting exterior signs to tenancies with direct external frontage to a road or carpark.
- Locating any exterior sign to the verandah or parapet of the related tenancy.
- Providing for pole and free-standing panel signs in Activity Centres and Major Activity Centres where such signs would:
  - Be limited to one sign per road frontage.
  - Display the name of the shopping centre at the top of the sign and list tenants of the site below.
  - Be incorporated into the landscaping treatment.
  - Have a maximum height of six (6) metres.
  - Not have adverse impacts upon residential amenity.

**Cardinia Shire Shopping Centre Signage Policy Map (Figure 1)**




## 15.01-1L-04 Signs

13/03/2026
C271card

### Objectives

To ensure advertising signs are consistent with the surrounds whilst ensuring that businesses have adequate opportunities to identify their business.

To facilitate signs that allow for the reasonable identification and marketing of businesses in Cardinia while enhancing the character of a building, site and area.

### Strategies

#### General

Encourage signs that are integrated with architectural features and compliment the style and character of the host building, abutting buildings and the overall landscape or streetscape and avoid signs that:

- Obscure a building's architectural form, features or glazed surfaces.
- Protrude above rooflines or parapets, or beyond the edges of fascia or walls of the host building.

Ensure that signs for individual businesses in joint occupancy buildings are of a uniform size, shape and presentation.

Enable signs that identify the business and service provided on the site and avoid signs that promote other businesses or details of product/s sold.

Ensure signs sensitively respond to the character of the building, site and area by minimising and consolidating signage to avoid visual clutter.

Ensure that signs are not located on the road or rail reserve.

Design signs to integrate with heritage buildings or objects to ensure the buildings and architectural features and detailing are not obscured.

Use materials and lighting to achieve energy efficiency.

Conceal electrical services to a sign.

Design and locate signs in a manner that accounts for the long-term maintenance needs and the ease of changing messages.

Provide adequate space for all occupancies to display signage where a building or site is occupied by more than one business.

Ensure signs do not compromise the structural integrity and safety of the host building/structure.

Design signs to be clearly legible in order to support safe pedestrian, cyclist and road movements, using:

- Materials and colours that have sufficient contrast between the text and background.
- Letters/symbols that are readable both during the day as well as the night.
- Measures to eliminate glare.

Ensure signs do not impair the effectiveness of surrounding security and emergency signs.

Ensure signs do not affect road or rail safety through glare and reflection or the obscuring of sightlines.

Discourage internally illuminated, floodlit, animated, electronic and reflective signs on sites or in locations where they will impact upon residential amenity.

Design signs to enhance major entrances and gateways to the municipality.

Protect areas of environmental and natural significance by limiting signage within, adjoining or facing these areas.

#### Policy guidelines

Consider as relevant:

- Locating signs at a safe clearance above the footpath (a minimum of 2700mm from ground level) and are set back at least 750mm from the kerb line if the signs are located on street fronting development and protrude from the property boundary.
- Providing for direction signs that are:

  - Limited to one per road entry point.
  - Less than 0.3 square metres in size.
- That signage has an integrated and co-ordinated sign package in terms of colour, graphics and placement.

### Commercial (shop and office) signs

#### Strategies

Signs located in commercial (shop and office) areas should stimulate interest in the business or service provided on the site and enhance the vitality and visual amenity of the commercial area.

Design signs on freestanding land used for commercial purposes, including service station, retail premises, freeway service centre, office (medical centre) and veterinary centre land uses to be incorporated into the building form and contribute to good urban design outcomes.

Avoid views from windows being obscured to maintain passive surveillance of pedestrian activity areas, car parking areas and streets.

#### Policy Guidelines

Consider as relevant:

- Limiting signs painted in corporate colours on the exterior of a building with a direct frontage to a road or car parking area to the front façade.

#### Commercial (shop and office) areas

- Avoiding above verandah signs, sky signs, high wall signs and bunting signs.
- Limiting signs to no more than 50 per cent of the wall area above a verandah, or if no verandah 30 per cent of the total front facade wall.
- Limiting signs to no more than 75 per cent of an awning fascias.

#### Freestanding 'Pad' sites

- Limiting business identification signs to signs that are:
  - Consistent in size and form, where there is more than one sign.
  - Located on the awning fascia, verandah fascia or parapet.
- Providing for pole and free-standing panel signs that are:
  - Limited to one sign per road frontage.
  - Less than seven (7) metres in height.
  - Incorporated into the landscaping treatment.

### Industrial and restricted retail signs

#### Strategy

Ensure signs in industrial and restricted retail areas do not appear as a dominant feature of a building or its surroundings.

#### Policy guidelines

Consider as relevant:

- Limiting business identification signage on buildings to signs that:
  - Are located on walls, awning fascias, verandahs fascias or parapets.

  - Are located at the front and sides of buildings.
  - Are consistent in size and form, where there is more than one sign.
  - Front a Transport Zone 2 for freestanding premises in industrial areas.
  - Are no greater than 30 per cent of the combined (street facing) or 50 per cent of a wall or parapet above an awning or verandah.
- Avoiding sign types that have an adverse effect on the visual amenity of the area including above verandah/awning (or roof), sky, bunting, animated, electronic and reflective signs.
- Providing for no more than one pole sign or freestanding panel sign of no greater than 7 metres in height for:
  - An industrial area where multiple tenants exist on a site.
  - An industrial building or restricted retail premises (or complex) that is freestanding.
  - A grouping of restricted retail premises (such as in a homemaker centre).
- Incorporating pole or freestanding panel signs into a landscaped area.

**Residential areas**

**Strategy**

Ensure signs in residential areas are compatible with the surrounding residential area.

**Policy guidelines**

Consider as relevant:

- Limiting signs to one business identification sign with an area of less than three square metres.
- Limiting free standing signage to be:
  - Located at the front of the building.
  - Located on the street with the greatest amount of traffic (if the site has more than one street frontage).
  - No higher than two metres above footpath level.
  - Incorporated into the landscape treatment.

**Display home village and new estate promotion signs**

**Strategies**

- Limit the display period of a sign for a display home village, land sales office, subdivision promotion or new estate promotion to the time the land:
  - Is being used as a display home (as relevant).
  - Sales have ceased or when the planning permit expires (whichever comes first).
- Avoid promotional signs that:
  - Do not relate to product, goods or services offered for sale on the land.
  - Are internally illuminated, floodlit, animated, electronic, or reflective and that have flags, streamers or other appurtenances.
- Avoid trailer signs or any form of moveable signage on the land being subdivided or any other land including road reserves.

#### Policy guidelines

Consider as relevant:

- Limiting subdivision and new estate promotion signs to:
  - A maximum of one per road frontage or no more than 4 in total where a minimum separation distance of 150 metres between each promotion sign can be achieved.
  - Signs with a minimum setback of 10 metres from the title boundary where the sign is located adjacent to a declared Freeway and/or Highway.
  - A minimum setback of 500 metres from an on-off ramp on Freeways.
- Ensuring the removal of signs and reinstatement of the subject site prior to the issue of Statement of Compliance for the final stage of subdivision to the satisfaction of the Responsible Authority for promotional signs relating to subdivision.

### Rural and green wedge signs

#### Strategies

Ensure signs in rural areas and green wedge areas:

- Are of a low scale to respect the rural character of the surrounding area.
- Are incorporated into the landscape treatment along the boundary of the property.
- Provide colours that are compatible with the surrounding landscape character.

#### Policy guidelines

Consider as relevant:

- Limiting signs in rural areas and green wedge areas to one business identification sign per site that identifies the business of service provided (but not a product).
- Discouraging internally illuminated, floodlit, animated, electronic, and reflective signs.
- Where signage is free standing, directing signage to be located at the front of the property and at a height of no more than 2 metres above ground level.

#### Policy documents

Consider as relevant:

*Advertising Signage Design Guidelines* (Cardinia Shire Council, Adopted 2020)

## 15.01-2S Building design

16/04/2026
VC300

#### Objective

To achieve building design and siting outcomes that contribute positively to the local context, enhance the public realm and support environmentally sustainable development.

#### Strategies

Ensure a comprehensive site analysis forms the starting point of the design process and provides the basis for the consideration of height, scale, massing and energy performance of new development.

Ensure development responds and contributes to the strategic and cultural context of its location.

Minimise the detrimental impact of development on neighbouring properties, the public realm and the natural environment.

Improve the energy performance of buildings through siting and design measures that encourage:

- Passive design responses that minimise the need for heating, cooling and lighting.
- On-site renewable energy generation and storage technology.
- Use of low embodied energy materials.

Restrict the provision of reticulated natural gas in new dwelling development.

Ensure the layout and design of development supports resource recovery, including separation, storage and collection of waste, mixed recycling, glass, organics and e-waste.

Encourage use of recycled and reusable materials in building construction and undertake adaptive reuse of buildings, where practical.

Encourage water efficiency and the use of rainwater, stormwater and recycled water.

Minimise stormwater discharge through site layout and landscaping measures that support on-site infiltration and stormwater reuse.

Ensure the form, scale, and appearance of development enhances the function and amenity of the public realm.

Ensure buildings and their interface with the public realm support personal safety, perceptions of safety and property security.

Ensure development is designed to protect and enhance valued landmarks, views and vistas.

Ensure development considers and responds to transport movement networks and provides safe access and egress for pedestrians, cyclists and vehicles.

Encourage development to retain existing vegetation.

Ensure development provides landscaping that responds to its site context, enhances the built form, creates safe and attractive spaces and supports cooling and greening of urban areas.

**Policy documents**

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)
- *Apartment Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2021)
- *Waste Management and Recycling in Multi-unit Developments* (Sustainability Victoria, 2019)
- *Mid-Rise Design Guide* (Department of Transport and Planning, 2026)

## 15.01-3S Subdivision design

01/01/2024
VC250

### Objective

To ensure the design of subdivisions achieves attractive, safe, accessible, diverse and sustainable neighbourhoods.

### Strategies

In the development of new residential areas and in the redevelopment of existing areas, subdivision should be designed to create liveable and sustainable communities by:

- Creating compact neighbourhoods that have walkable distances between activities.
- Developing activity centres in appropriate locations with a mix of uses and services and access to public transport.
- Creating neighbourhood centres that include services to meet day to day needs.
- Creating urban places with a strong sense of place that are functional, safe and attractive.
- Providing a range of lot sizes to suit a variety of dwelling and household types to meet the needs and aspirations of different groups of people.
- Creating landscaped streets and a network of open spaces to meet a variety of needs with links to regional parks where possible.
- Protecting and enhancing habitat for native flora and fauna, and providing opportunities for people to experience nature in urban areas.
- Facilitating an urban structure where neighbourhoods are clustered to support larger activity centres served by high quality public transport.
- Reduce car dependency by allowing for:
  - Convenient and safe public transport.
  - Safe and attractive spaces and networks for walking and cycling.
  - Subdivision layouts that allow easy movement within and between neighbourhoods.
  - A convenient and safe road network.
- Minimising exposure of sensitive uses to air and noise pollution from the transport system.
- Being accessible to people with disabilities.
- Creating an urban structure that:
  - Responds to climate related hazards.
  - Incorporates integrated water management, including sustainable irrigation of open space.
  - Minimises peak demand on the electricity network.
  - Supports energy efficiency and solar energy generation through urban layout and lot orientation.
  - Supports waste minimisation and increased resource recovery.
- Providing utilities and services that support the uptake of renewable energy technologies, such as microgrids and energy storage systems, including batteries.
- Providing all-electric lots.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)

## 15.01-3L Subdivision

13/03/2026
C271card

### Strategies

Ensure access to subdivision of land to create residential or rural residential lots is provided via a sealed road.

Avoid cul-de-sacs in residential subdivisions in Lang Lang, if cannot be avoided, they should be connected through to another street by a wide reserve and path for safe pedestrian and bicycle access.

Maintain the generous street, footpath and easement widths in new subdivision in Bunyip.

Retain wide road verges in the approach to the Bunyip township.

Maintain the existing street grid pattern within the Bunyip township.

Support the restructure of inappropriate subdivisions that, if fully developed at the original subdivision density, would result in significant environmental degradation and substantial infrastructure costs.

Maintain the current diverse range of lot sizes in the hills towns as an intrinsic part of their character.

### Policy guidelines

Consider as relevant:

- Where the road reserve width in Main Street, Bunyip narrows in front of some properties, road reserve widening should be provided as part of the further subdivision of land to assist in achieving consistent wider width of the road reserve and the preferred wider rural streetscape. If this is not possible, provide a landscape setback within lots to achieve the appearance of a wider street.

### Policy documents

Consider as relevant:

- Incorporated Document: *Bunyip Township Strategy* (Cardinia Shire Council, September 2009).
- Incorporated Document: *Lang Lang Township Strategy* (Cardinia Shire Council, July 2009).

## 15.01-4S Healthy neighbourhoods

02/09/2025
VC283

### Objective

To achieve neighbourhoods that foster healthy and active living and community wellbeing.

### Strategies

Design neighbourhoods that foster community interaction and make it easy for people of all ages and abilities to live healthy lifestyles and engage in regular physical activity by providing:

- Connected, safe, pleasant and attractive walking and cycling networks that enable and promote walking and cycling as a part of daily life.
- Streets with direct, safe and convenient access to destinations.
- Conveniently located public spaces for active recreation and leisure.
- Accessibly located public transport stops.
- Amenities and protection to support physical activity in all weather conditions.

Create 20 minute neighbourhoods, that give people the ability to meet most of their everyday needs within a 20 minute walk, cycle or local public transport trip from their home.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)

## 15.01-5S Neighbourhood character

09/10/2020
VC169

### Objective

To recognise, support and protect neighbourhood character, cultural identity, and sense of place.

### Strategies

Support development that respects the existing neighbourhood character or contributes to a preferred neighbourhood character.

Ensure the preferred neighbourhood character is consistent with medium and higher density housing outcomes in areas identified for increased housing.

Ensure development responds to its context and reinforces a sense of place and the valued features and characteristics of the local environment and place by respecting the:

- Pattern of local urban structure and subdivision.
- Underlying natural landscape character and significant vegetation.
- Neighbourhood character values and built form that reflect community identity.

## 15.01-5L Rural township character

13/03/2026
C271card

### General Strategies

Retain and enhance the existing rural township character and unique identities, and ensure design, including the use of building materials and colours, has regard to the surrounding unique characteristics of the townships.

Provide a distinct character and identity for urban areas through retention of existing vegetation, respect for topography, appropriate streetscaping and provision of adequate open space.

Protect exotic vegetation if it is of heritage, cultural or economic value, or contributes to the character of an area.

Use building materials and colours which are in context with the surrounding environment in areas of landscape significance and in rural residential and rural living areas.

### Upper Beaconsfield strategies

Maintain and enhance the 'hill-top bushland character' of Upper Beaconsfield through the:

- Retention of larger lots.
- Retention of existing remnant vegetation (particularly canopy trees and also ground covers).
- Use of building materials and colours that complement the natural environment.

Development design is to be consistent with the Precinct Character Guidelines set out in the *Upper Beaconsfield Township Strategy* (Cardinia Shire Council, July 2009).

### Gembrook Township strategies

Design development to not replicate existing dwellings but to be respectful of the existing rural character while incorporating individual character, sustainable design features and the following preferred future rural character design features:

- Providing detached, single or split level design sympathetic to the topography of the land and the surrounding landscape.
- Designing dwellings that do not protrude above the tree canopy line.
- Providing well vegetated lots, including retention of existing established trees.
- Setting dwellings back from boundaries to create a sense of openness and to allow for screen vegetation.
- Providing single driveway access.
- Minimising hard surface coverage, particularly within the frontage.
- Providing no, low, open (at least 80% visual permeability) or hedge style fencing.
- Providing well articulated facades with elements like verandahs and porches.
- Using traditional building materials like face brick, weatherboards, and tiled or tin roofing in muted tones.

### Emerald District strategies

Design development to be consistent with the Neighbourhood Context Guidelines set out in the *Emerald District Strategy* (Cardinia Shire Council, June 2009) for residential development within the Emerald District.

### Policy documents

Consider as relevant:

- Incorporated Document: *Upper Beaconsfield Township Strategy* (Cardinia Shire Council, 2009)
- Incorporated Document: *Gembrook Township Strategy* (Cardinia Shire Council, June 2011)
- Incorporated Document: *Emerald District Strategy* (Cardinia Shire Council, June 2009)

## 15.01-6S Design for rural areas

31/07/2018
VC148

### Objective

To ensure development respects valued areas of rural character.

### Strategies

Ensure that the siting, scale and appearance of development protects and enhances rural character.

Protect the visual amenity of valued rural landscapes and character areas along township approaches and sensitive tourist routes by ensuring new development is sympathetically located.

Site and design development to minimise visual impacts on surrounding natural scenery and landscape features including ridgelines, hill tops, waterways, lakes and wetlands.

## 15.02 [NO CONTENT]

10/06/2022
VC216

## 15.02-1S [NO CONTENT]

10/06/2022
VC216

# 15.03 HERITAGE

31/07/2018
VC148

## 15.03-1S Heritage conservation

02/09/2025
VC283

### Objective

To ensure the conservation of places of heritage significance.

### Strategies

Identify, assess and document places of natural and cultural heritage significance as a basis for their inclusion in the planning scheme.

Provide for the protection of natural heritage sites and man-made resources.

Provide for the conservation and enhancement of those places that are of aesthetic, archaeological, architectural, cultural, scientific or social significance.

Encourage appropriate development that respects places with identified heritage values.

Retain those elements that contribute to the importance of the heritage place.

Encourage the conservation and restoration of contributory elements of a heritage place.

Ensure an appropriate setting and context for heritage places is maintained or enhanced.

Support adaptive reuse of heritage buildings where their use has become redundant.

Consider whether it is appropriate to require the restoration or reconstruction of a heritage building in a Heritage Overlay that has been unlawfully or unintentionally demolished in order to retain or interpret the cultural heritage significance of the building, streetscape or area.

### Policy guidelines

Consider as relevant:

- The findings and recommendations of the Victorian Heritage Council.

### Policy documents

- The Burra Charter: The Australia ICOMOS Charter for Places of Cultural Significance (Australia ICOMOS Incorporated, 2013).

## 15.03-2S Aboriginal cultural heritage

31/07/2018
VC148

### Objective

To ensure the protection and conservation of places of Aboriginal cultural heritage significance.

### Strategies

Identify, assess and document places of Aboriginal cultural heritage significance, in consultation with relevant Registered Aboriginal Parties, as a basis for their inclusion in the planning scheme.

Provide for the protection and conservation of pre-contact and post-contact Aboriginal cultural heritage places.

Ensure that permit approvals align with the recommendations of any relevant Cultural Heritage Management Plan approved under the *Aboriginal Heritage Act 2006.*

### Policy guidelines

Consider as relevant:

- The findings and recommendations of the Aboriginal Heritage Council.
- The findings and recommendations of the Victorian Heritage Council for post-contact Aboriginal heritage places.

### Policy documents

Consider as relevant:

- *Aboriginal Heritage Act 2006*

## 15.03-2L Aboriginal heritage places

13/03/2026
C271card

### Strategies

Use public open space or linked corridors of public open space, within and between development areas, where possible, to conserve Aboriginal cultural heritage places.

# 16 HOUSING

31/07/2018
VC148

Planning should provide for housing diversity, and ensure the efficient provision of supporting infrastructure.

Planning should ensure the long term sustainability of new housing, including access to services, walkability to activity centres, public transport, schools and open space.

Planning for housing should include the provision of land for affordable housing.

# 16.01 RESIDENTIAL DEVELOPMENT

31/07/2018
VC148

## 16.01-1S Housing supply

16/04/2026
VC300

### Objective

To facilitate well-located, integrated and diverse housing that meets community needs.

### Strategies

Plan to accommodate housing targets specified in this clause by ensuring zones and overlays deliver sufficient realisable development capacity.

Ensure that an appropriate quantity, quality and type of housing is provided, including aged care facilities and other housing suitable for older people, supported accommodation for people with disability, rooming houses, student accommodation and social housing.

Increase the proportion of housing in urban areas with good access to opportunities and services (including under-utilised urban land) and reduce the share of new dwellings in greenfield, fringe and dispersed development areas.

Encourage higher density housing development on sites that are well located in relation to jobs, services and public transport.

Identify opportunities for increased residential densities to help consolidate urban areas.

Facilitate diverse housing that offers choice and meets changing household needs by widening housing diversity through a mix of housing types.

Encourage the development of well-designed housing that:

- Provides a high level of internal and external amenity.
- Incorporates universal design and adaptable internal dwelling design.

Support opportunities for a range of income groups to choose housing in well-serviced locations.

Plan for growth areas to provide for a mix of housing types through a variety of lot sizes, including higher housing densities in and around activity centres.

### Policy documents

Consider as relevant:

- *Homes for Victorians - Affordability, Access and Choice* (Victorian Government, 2017)
- *Apartment Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2021)
- *Mid-Rise Design Guide* (Department of Transport and Planning, 2026)

**Table 1 - Metropolitan Melbourne Housing Targets**

| | Housing Target | Greenfield Area Target | Established Area Target |
|---|---|---|---|
| **Growth Municipalities** | | | |
| Mitchell | 66,000 | 56,000 | 10,000 |
| Cardinia | 30,000 | 21,000 | 9,000 |
| Casey | 87,000 | 58,500 | 28,500 |
| Hume | 79,000 | 53,500 | 25,500 |
| Melton | 109,000 | 104,000 | 5,000 |
| Whittlesea | 72,000 | 43,000 | 29,000 |

| | | | |
|---|---|---|---|
| Wyndham | 99,000 | 74,000 | 25,000 |
| **Inner Melbourne** | | | |
| Melbourne | 119,500 | - | 119,500 |
| Port Phillip | 55,000 | - | 55,000 |
| Stonnington | 50,000 | - | 50,000 |
| Yarra | 44,000 | - | 44,000 |
| **Middle Melbourne** | | | |
| Banyule | 45,500 | - | 45,500 |
| Bayside | 30,000 | - | 30,000 |
| Boroondara | 65,500 | - | 65,500 |
| Darebin | 69,000 | - | 69,000 |
| Glen Eira | 63,500 | - | 63,500 |
| Hobsons Bay | 22,500 | - | 22,500 |
| Kingston | 51,500 | - | 51,500 |
| Manningham | 28,500 | - | 28,500 |
| Maribyrnong | 48,000 | - | 48,000 |
| Merri-bek | 69,000 | - | 69,000 |
| Monash | 69,500 | - | 69,500 |
| Moonee Valley | 47,500 | - | 47,500 |
| Whitehorse | 76,500 | - | 76,500 |
| **Outer Melbourne** | | | |
| Brimbank | 59,500 | - | 59,500 |
| Frankston | 33,000 | - | 33,000 |
| Greater Dandenong | 52,500 | - | 52,500 |
| Knox | 43,000 | - | 43,000 |
| Maroondah | 39,500 | - | 39,500 |
| Mornington Peninsula | 24,000 | - | 24,000 |
| Nillumbik | 6,500 | - | 6,500 |
| Yarra Ranges | 25,000 | - | 25,000 |

**Table 2 - Regional Victoria Housing Targets**

| | Housing Target | Greenfield Area Target | Established Area Target |
|---|---|---|---|

| | | | |
|---|---|---|---|
| **Barwon** | | | |
| Colac Otway | 3,700 | - | - |
| Greater Geelong | 128,600 | 51,100 | 77,500 |
| Queenscliffe | 400 | - | - |
| Surf Coast | 8,000 | - | - |
| **Central Highlands** | | | - |
| Ararat | 1,000 | - | - |
| Ballarat | 46,900 | 18,900 | 28,000 |
| Golden Plains | 12,500 | - | - |
| Hepburn | 3,150 | - | - |
| Moorabool | 20,000 | - | - |
| Pyrenees | 1,300 | - | - |
| **Gippsland** | | | - |
| Bass Coast | 19,250 | - | - |
| Baw Baw | 25,700 | - | - |
| East Gippsland | 11,000 | - | - |
| Latrobe | 13,000 | - | - |
| South Gippsland | 8,000 | - | - |
| Wellington | 8,000 | - | - |
| **Goulburn** | | | |
| Greater Shepparton | 15,250 | - | - |
| Mitchell | 66,000 | 56,000 | 10,000 |
| Moira | 4,500 | - | - |
| Murrindindi | 3,350 | - | - |
| Strathbogie | 2,400 | - | - |
| **Great South Coast** | | | |
| Corangamite | 1,400 | - | - |
| Glenelg | 1,400 | - | - |
| Moyne | 2,900 | - | - |
| Southern Grampians | 1,250 | - | - |
| Warrnambool | 7,200 | - | - |
| **Loddon Campaspe** | | | |

| | | | |
|---|---|---|---|
| Campaspe | 4,500 | - | - |
| Central Goldfields | 1,700 | - | - |
| Greater Bendigo | 37,000 | 11,000 | 26,000 |
| Loddon | 550 | - | - |
| Macedon Ranges | 13,200 | - | - |
| Mount Alexander | 4,500 | - | - |
| **Mallee** | | | |
| Buloke | 150 | - | - |
| Gannawarra | 850 | - | - |
| Mildura | 8,500 | - | - |
| Swan Hill | 2,100 | - | - |
| **Ovens Murray** | | | |
| Alpine | 1,250 | - | - |
| Benalla | 1,700 | - | - |
| Indigo | 3,100 | - | - |
| Mansfield | 3,900 | - | - |
| Towong | 550 | - | - |
| Wangaratta | 6,000 | - | - |
| Wodonga | 15,200 | - | - |
| **Wimmera Southern Mallee** | | | |
| Hindmarsh | 250 | - | - |
| Horsham | 3,300 | - | - |
| Northern Grampians | 750 | - | - |
| West Wimmera | 200 | - | - |
| Yarriambiack | 300 | - | - |

## 16.01-1R Housing supply - Metropolitan Melbourne

04/02/2026
VC265

### Strategies

Create development opportunities to meet housing targets, population growth and create a sustainable city by developing housing and mixed use development opportunities in locations that are:

- In and around the Central City.
- Metropolitan activity centres and their residential catchments.
- Priority Precincts, including Suburban Rail Loop East Precincts.
- Activity centres - Housing Choice and Stations.
- Areas for residential growth.
- Areas for greyfield renewal, particularly through opportunities for land consolidation.
- Established areas close to existing services, jobs and public transport.
- Neighbourhood activity centres - especially those with good public transport connections.
- Areas near existing and proposed railway stations that can support transit-oriented development.

Identify areas that offer opportunities for more medium and high density housing near employment and transport in Metropolitan Melbourne.

Provide certainty about the scale of growth by prescribing appropriate height and site coverage provisions for different areas.

Allow for a range of minimal, incremental and high change residential areas that balance the need to protect valued areas with the need to ensure choice and growth in housing.

Create mixed use neighbourhoods at varying densities that offer more choice in housing.

## 16.01-1L Housing

13/03/2026
C271card

### Strategies

Encourage medium density housing to be located within or at the interface of activity centres and overlooking local and linear open space.

Protect and enhance the 'rural character' of the Lang Lang Township by locating multi-unit development within vicinity of the Lang Lang town centre.

### Policy document

Consider as relevant:

Incorporated Document: *Lang Lang Township Strategy* (Cardinia Shire Council, July 2009)

## 16.01-2S Housing affordability

02/09/2025
VC283

### Objective

To deliver affordable housing in areas with good access to opportunities and services.

### Strategies

Improve housing affordability by:

- Ensuring housing supply continues to be sufficient to meet demand.
- Increasing choice in housing type, tenure and cost to meet the needs of households as they move through life cycle changes and to support diverse communities.
- Promoting good housing and urban design to minimise negative environmental impacts and keep costs down for residents and the wider community.
- Encouraging a significant proportion of new development to be affordable for households on very low to moderate incomes.

Increase the supply of well-located affordable housing by:

- Facilitating a mix of private, affordable and social housing in suburbs, growth areas, activity centres and urban renewal precincts.
- Ensuring the redevelopment and renewal of public housing stock better meets community needs.

Facilitate the delivery of social housing by identifying surplus government land suitable for housing.

### Policy documents

Consider as relevant:

- *Homes for Victorians - Affordability, Access and Choice* (Victorian Government, 2017)

## 16.01-2L Affordable housing

13/03/2026
C271card

### Strategies

Encourage and facilitate the development of affordable housing, social and community housing, in townships and within the urban growth boundary with convenient access to public transport and services.

## 16.01-3S Rural residential development

09/10/2020
VC169

### Objective

To identify land suitable for rural residential development.

### Strategies

Manage development in rural areas to protect agriculture and avoid inappropriate rural residential development.

Encourage the consolidation of new housing in existing settlements where investment in physical and community infrastructure and services has already been made.

Demonstrate need and identify locations for rural residential development through a housing and settlement strategy.

Ensure planning for rural residential development avoids or significantly reduces adverse economic, social and environmental impacts by:

- Maintaining the long-term sustainable use and management of existing natural resource attributes in activities including agricultural production, water, mineral and energy resources.
- Protecting existing landscape values and environmental qualities such as water quality, native vegetation, biodiversity and habitat.
- Minimising or avoiding property servicing costs carried by local and state governments.
- Maintaining an adequate buffer distance between rural residential development and animal production.

Ensure land is not zoned for rural residential development if it will encroach on high quality productive agricultural land or adversely impact on waterways or other natural resources.

Discourage development of small lots in rural zones for residential use or other incompatible uses.

Encourage consolidation of existing isolated small lots in rural zones.

Ensure land is only zoned for rural residential development where it:

- Is located close to existing towns and urban centres, but not in areas that will be required for fully serviced urban development.
- Can be supplied with electricity, water and good quality road access.

## 16.01-4S Community care accommodation

04/11/2022
VC226

### Objective

To facilitate the establishment of community care accommodation and support their location being kept confidential.

### Strategies

Planning schemes should not require a planning permit for or prohibit the use of land in a residential area for community care accommodation provided no more than 20 clients are accommodated and the use is funded by, or carried out by or on behalf of, a government department or public authority, including a public authority established for a public purpose under a Commonwealth Act.

Facilitate the confidential establishment of community care accommodation through appropriate permit, notice and review exemptions.

## 16.01-5S Residential aged care facilities

09/10/2020
VC169

### Objective

To facilitate the development of well-designed and appropriately located residential aged care facilities.

### Strategies

Recognise that residential aged care facilities contribute to housing diversity and choice, and are an appropriate use in a residential area.

Recognise that residential aged care facilities are different to dwellings in their purpose and function, and will have a different built form (including height, scale and mass).

Ensure local housing strategies, precinct structure plans and activity centre structure plans provide for residential aged care facilities.

Ensure that residential aged care facilities are located in residential areas, activity centres and urban renewal precincts, close to services and public transport.

Encourage planning for housing that:

- Delivers an adequate supply of land or redevelopment opportunities for residential aged care facilities.
- Enables older people to live in appropriate housing in their local community.

Provide for a mix of housing for older people with appropriate access to care and support services.

Ensure that proposals to establish residential aged care facilities early in the life of a growth area are in locations that will have early access to services and public transport.

Ensure that residential aged care facilities are designed to respond to the site and its context.

Promote a high standard of urban design and architecture in residential aged care facilities.

### Policy guidelines

Consider as relevant:

- The Commonwealth Government's Responsible ratios for the provision of aged care places under the *Aged Care Act 1997*.

# 17 ECONOMIC DEVELOPMENT

31/07/2018
VC148

Planning is to provide for a strong and innovative economy, where all sectors are critical to economic prosperity.

Planning is to contribute to the economic wellbeing of the state and foster economic growth by providing land, facilitating decisions and resolving land use conflicts, so that each region may build on its strengths and achieve its economic potential.

## 17.01 EMPLOYMENT

31/07/2018
VC148

## 17.01-1S Diversified economy

31/07/2018
VC148

### Objective

To strengthen and diversify the economy.

### Strategies

Protect and strengthen existing and planned employment areas and plan for new employment areas.

Facilitate regional, cross-border and inter-regional relationships to harness emerging economic opportunities.

Facilitate growth in a range of employment sectors, including health, education, retail, tourism, knowledge industries and professional and technical services based on the emerging and existing strengths of each region.

Improve access to jobs closer to where people live.

Support rural economies to grow and diversify.

## 17.01-1R Diversified economy - Metropolitan Melbourne

02/09/2025
VC283

### Strategies

Support the Central City to become Australia's largest commercial and residential centre by 2050, by planning for office, retail, residential, education, health, entertainment and cultural activity spaces.

Plan for the redevelopment of Priority Precincts and Urban-Renewal Precincts in and around the Central City to deliver high-quality, distinct and diverse neighbourhoods offering a mix of uses.

Provide a mix of uses within Suburban Rail Loop Precincts and prioritise higher density development.

Avoid development in Suburban Rail Loop Precincts that would impede opportunities for significant future growth.

Facilitate the development of Employment and Innovation Areas by ensuring they:

- Have a high level of amenity to attract businesses and workers.
- Are supported by good public transport services and integrated walking and cycling paths.
- Maximise investment opportunities for the location of knowledge intensive firms and jobs.

Support the employment and servicing role of Health and Education Precincts by:

- Focussing on improving access, particularly public transport access.
- Encouraging co-location of facilities to better utilise existing infrastructure.
- Supporting and facilitating growth of associated businesses and industries.
- Reinforcing their specialised economic functions while also providing opportunities for ancillary retail, commercial, accommodation and supporting services.

Support diverse employment generating uses, including offices, innovation and creative industries in identified areas within regionally significant industrial precincts, where compatible with adjacent uses and well connected to transport networks.

Consider how land use change proposals can respond to local and regional employment demand or identify how it can be accommodated elsewhere.

Plan for industrial land in suitable locations to support employment and investment opportunities.

Facilitate investment in Melbourne's outer areas to increase local access to employment.

## 17.01-1L Diversified economy - Cardinia

13/03/2026
C271card

### Strategies

Provide for limited retailing (restricted retail and trade supplies) in industrial areas along arterial roads provided the retailing activities do not conflict with nearby activity centres.

Support the establishment of rural industries in green wedge areas if they are directly related, or contribute, to agricultural production.

Encourage the establishment of service industries in townships to meet the needs of local residents and to provide for local employment.

Design development adjacent to arterial roads to provide active frontages to the road network.

Support the provision of office and research and development in association with industrial activities in appropriate locations.

Encourage evening and weekend trading businesses in Upper Beaconsfield to locate in the town centre along Beaconsfield-Emerald Road.

Facilitate the establishment of a medical centre in Gembrook.

Support potential future extractive industry, particularly in the norther area of the Western Port Green Wedge.

### Policy documents

- Incorporated Document: *Gembrook Township Strategy* (Cardinia Shire Council, June 2011)
- Incorporated Document: *Upper Beaconsfield Township Strategy* (Cardinia Shire Council, July 2009)

## 17.01-1R Diversified economy - Metropolitan Melbourne - Southern Metro Region

03/03/2023
VC215

Support the development of higher-order, knowledge-based jobs and businesses in growth areas in mixed use precincts that directly support local economic activity and employment.

## 17.01-2S Innovation and research

04/10/2018
VC149

### Objective

To create opportunities for innovation and the knowledge economy within existing and emerging industries, research and education.

### Strategies

Encourage the expansion and development of logistics and communications infrastructure.

Support the development of business clusters.

Support the development of enterprise precincts that build the critical mass of employment in an area, leverage the area's public and private sector economic competitive strengths and assets, and cater to a diversity of employment types and scales.

Promote an accessible, well-connected, high-amenity and collaborative physical environment that is conducive to innovation and to creative activities.

Encourage the provision of infrastructure that helps people to be innovative and creative, learn new skills and start new businesses in locations identified to accommodate employment and economic growth.

Support well-located, appropriate and low-cost premises for not-for-profit or start-up enterprises.

Improve access to community-based information and training through further developing libraries as community learning centres.

# 17.02 COMMERCIAL

31/07/2018
VC148

## 17.02-1S Business

15/03/2024
VC256

### Objective

To encourage development that meets the community's needs for retail, entertainment, office and other commercial services.

### Strategies

Plan for an adequate supply of commercial land in appropriate locations.

Ensure commercial facilities are aggregated and provide net community benefit in relation to their viability, accessibility and efficient use of infrastructure.

Locate commercial facilities in existing or planned activity centres.

Provide new convenience shopping facilities to provide for the needs of the local population in new residential areas and within, or immediately adjacent to, existing commercial centres.

Provide small scale shopping opportunities that meet the needs of local residents and workers in convenient locations.

Provide outlets of trade-related goods or services directly serving or ancillary to industry that have adequate on-site car parking.

Locate cinema based entertainment facilities within or on the periphery of existing or planned activity centres.

Apply a five year time limit for commencement to any planning permit for a shopping centre or shopping centre expansion of more than 1000 square metres leasable floor area.

Regulate the use and development of land for a sex services premises in commercial and mixed use areas in the same way as for other types of shop.

Ensure that planning for the use and development of land for a sex services premises and home based business is consistent with decriminalisation of sex work and provides for the reduction of discrimination against, and harm to, sex workers.

## 17.02-2S Out-of-centre development

31/07/2018
VC148

### Objective

To manage out-of-centre development.

### Strategies

Discourage proposals for expansion of single use retail, commercial and recreational facilities outside activity centres.

Give preference to locations in or on the border of an activity centre for expansion of single use retail, commercial and recreational facilities.

Discourage large sports and entertainment facilities of metropolitan, state or national significance in out-of-centre locations unless they are on the Principal Public Transport Network and in locations that are highly accessible to their catchment of users.

Ensure that out-of-centre proposals are only considered where the proposed use or development is of net benefit to the community in the region served by the proposal or provides small scale shopping opportunities that meet the needs of local residents and workers in convenient locations.

## 17.02-2L Out of centre development

13/03/2026
C271card

### Strategies

Avoid ribbon commercial development along arterial roads.

Direct main road oriented commercial activities to strategic nodes preferably within a township and urban areas.

# 17.03 INDUSTRY

31/07/2018
VC148

## 17.03-1S Industrial land supply

14/01/2025
VC237

### Objective

To ensure availability of land for industry.

### Strategies

Provide an adequate supply of industrial land in appropriate locations including sufficient stocks of large sites for strategic investment.

Identify land for industrial development in urban growth areas where:

- Good access for employees, freight and road transport is available.
- Appropriate buffer areas can be provided between the proposed industrial land and nearby sensitive land uses.

Protect and carefully plan existing industrial areas to, where possible, facilitate further industrial development.

Preserve locally significant industrial land for industrial or employment generating uses, unless long-term demand for these uses can be demonstrably met elsewhere.

Avoid non-industrial land uses that will prejudice the availability of land in identified industrial areas for future industrial use.

### Policy documents

Consider as relevant:

- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)

## 17.03-1L Industry

13/03/2026
C271card

### Strategies

Encourage a range of lot sizes to meet the needs of different uses, including the encouragement of large lots for major developments on main or arterial roads.

Enhancing the design and built form of existing industrial areas.

## 17.03-2S Sustainable industry

14/01/2025
VC237

### Objective

To facilitate the sustainable operation of industry.

### Strategies

Ensure that industrial activities requiring substantial threshold distances are located in the core of industrial areas.

Encourage activities with minimal threshold requirements to locate towards the perimeter of the industrial area.

Minimise inter-industry conflict and encourage like industries to locate within the same area.

Protect industrial activity in industrial zones from the encroachment of commercial, residential and other sensitive uses that would adversely affect industry viability.

Encourage industrial uses that meet appropriate standards of safety and amenity to locate within activity centres.

Support the retention of small-scale industries servicing established urban areas through appropriate zoning.

Provide adequate separation and buffer areas between sensitive uses and offensive or dangerous industries and quarries to ensure that residents are not affected by adverse environmental effects, nuisance or exposure to hazards.

Encourage manufacturing and storage industries that generate significant volumes of freight to locate close to air, rail and road freight terminals.

### Policy documents

Consider as relevant:

- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)

## 17.03-3S Significant industrial land

02/09/2025
VC283

### Objective

To protect significant industrial land.

### Strategies

Protect state significant industrial precincts from incompatible land uses to allow for future growth. State significant industrial precincts include but are not limited to:

- Southern Industrial Precinct - Dandenong South.
- Northern Industrial Precinct - Campbellfield, Somerton and Thomastown.
- Western Industrial Precinct - Laverton North and Derrimut.
- Officer / Pakenham Industrial Precinct.
- Port of Hastings Industrial Precinct.

Ensure sufficient availability of strategically located land for major industrial development, particularly for industries and storage facilities that require significant threshold distances from sensitive or incompatible uses.

Protect heavy industrial areas from inappropriate development and maintain adequate buffer distances from sensitive or incompatible uses.

### Policy documents

Consider as relevant:

- *Melbourne Industrial and Commercial Land Use Plan* (Department of Environment, Land, Water and Planning, 2020)
- *Industrial and Commercial Land Classifications* (Department of Transport and Planning, 2025)

## 17.03-3R Regionally significant industrial land - Metropolitan Melbourne

02/09/2025
VC283

### Strategies

Protect industrial land of regional significance and facilitate continual growth in freight, logistics and manufacturing investment.

Support the transition from manufacturing land uses to other employment uses in strategically identified areas well connected to transport networks, especially in Suburban Rail Loop Precincts.

## 17.03-3R Regionally significant industrial land - Metropolitan Melbourne - Southern Metro Region

02/09/2025
VC283

### Strategy

Protect industrial land at Clayton South, Moorabbin, Moorabbin Airport, Braeside, Carrum Downs, Seaford, Cranbourne West and Casey Fields South by:

- Retaining existing industrial zoned land predominately for industrial uses.
- Limiting encroachment by incompatible and non-industrial uses that would fragment this land and compromise business growth and operation.

Prioritise higher employment generation within Suburban Rail Loop precincts.

## 17.04 TOURISM

31/07/2018
VC148

## 17.04-1S Facilitating tourism

31/07/2018
VC148

### Objective

To encourage tourism development to maximise the economic, social and cultural benefits of developing the state as a competitive domestic and international tourist destination.

### Strategies

Encourage the development of a range of well-designed and sited tourist facilities, including integrated resorts, accommodation, host farm, bed and breakfast and retail opportunities.

Seek to ensure that tourism facilities have access to suitable transport.

Promote tourism facilities that preserve, are compatible with and build on the assets and qualities of surrounding activities and attractions.

Create innovative tourism experiences.

Encourage investment that meets demand and supports growth in tourism.

### Policy guidelines

Consider as relevant:

- Any applicable regional tourism development strategy.

### Policy documents

Consider as relevant:

- *Tourism Investment Guidelines – Your Guide to Tourism Investment in Victoria* (Tourism Victoria, 2008)

## 17.04-1R Tourism in Metropolitan Melbourne

31/07/2018
VC148

### Objective

To maintain and develop Metropolitan Melbourne as a desirable tourist destination.

### Strategies

Maintain Metropolitan Melbourne's position as a global, national and local destination in its own right and as a gateway to regional Victoria by:

- Developing city precincts and promenades.
- Revitalising the retail core of the Central City.
- Supporting artistic and cultural life.
- Improving public facilities, amenities and access.
- Maintaining city safety.
- Providing information and leisure services.
- Improving transport infrastructure.

## 17.04-1L Tourism

13/03/2026
C271card

### Strategies

Minimise the adverse impacts of development on the landscape and environment through appropriate scale and design.

Protect the visual corridor along the Puffing Billy Tourist Railway from inappropriate development.

Support better linkages with both Dandenong Ranges and Gippsland tourism regions by encouraging local tourism infrastructure and facilities that complement major regional attractions.

Ensure that tourism use and development within the Western Port Green Wedge does not significantly adversely affect the biodiversity, agricultural productivity, landscape, rural amenity or other environmental values of the area.

Encourage new and growing tourism use and development within the Western Port Green Wedge that has a direct link to an agricultural use.

Encourage tourism related use and development in the Upper Beaconsfield township, including restaurants, cafes, galleries, art and craft shops, and tourist accommodation.

Encourage the establishment of tourism use and development particularly in or near the Emerald town centre and in key locations such as the Emerald Lake Park.

Encourage the establishment of tourism related accommodation within the Emerald Golf and Country Resort.

Encourage tourism use and development in Gembrook that have an association with the town's heritage.

Encourage and support the establishment of a Visitor Information Centre in Gembrook.

### Policy documents

- Incorporated Document: *Upper Beaconsfield Township Strategy* (Cardinia Shire Council July 2009)
- Incorporated Document: *Emerald District Strategy* (Cardinia Shire Council, June 2009)

## 17.04-2S Coastal and maritime tourism and recreation

20/03/2023
VC229

### Objective

To encourage a diverse range of strategically located and well-designed coastal and maritime tourism and recreational opportunities that strengthen people's connection with the marine and coastal environment.

### Strategies

Support safe and sustainable recreation and tourism development including ecotourism, tourism and major maritime events that:

- Responds to identified demand.
- Minimises impact on environmental and cultural values.
- Minimises impact on other users.
- Minimises direct and cumulative impacts.
- Maintains public safety.
- Responds to the carrying capacity of the site.
- Minimises exposure to coastal hazard risks and risks posed by climate change.

Ensure a diverse range of accommodation options and coastal experiences are provided for and maintained.

Ensure sites and facilities are accessible to all.

Ensure tourism development, within non-urban areas, demonstrates a tourist accommodation need and supports a nature-based approach.

Ensure development is of an appropriate scale, use and intensity relative to its location and minimises impacts on the surrounding natural, visual, environmental and coastal character.

Develop a network of maritime precincts around Port Phillip and Western Port that serve both local communities and visitors.

Maintain and expand boating and recreational infrastructure around the bays in maritime precincts at Frankston, Geelong, Hastings, Hobsons Bay, Mordialloc, Mornington, Patterson River, Portarlington, Queenscliff, St Kilda, Stony Point/Cowes and Wyndham.

Support a sustainable network of facilities for recreational boating and water-based activities that respond to:

- Identified demand.
- Use and safety considerations.
- The carrying capacity of the location.
- Coastal processes.
- Environmental values.

Strategically plan and operate ports to complement each other in the context of the broader economy, transport networks and the maritime and coastal environments within which they are regulated.

Provide public access to recreational facilities and activities on land and water.

### Policy guidelines

Consider as relevant:

- *Coastal Spaces Landscape Assessment Study* (Department of Sustainability and Environment, 2006)
- *Gippsland Boating Coastal Action Plan 2013 - Gippsland Coastal Board*
- *Recreational Boating Facilities Framework July 2014 - Central Coastal Board*
- *Western Boating Coastal Action Plan 2010 - Western Coastal Board*

### Policy documents

Consider as relevant:

- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Siting and Design Guidelines on the Victorian Coast* (Department of Environment, Land, Water and Planning, 2020)

# 18 TRANSPORT

09/12/2021
VC204

Planning should ensure a safe, integrated and sustainable transport system that:

- Provides access to social and economic opportunities to support individual and community wellbeing.
- Facilitates economic prosperity.
- Actively contributes to environmental sustainability.
- Facilitates network-wide efficient, coordinated and reliable movements of people and goods.
- Supports health and wellbeing.

# 18.01 LAND USE AND TRANSPORT

09/12/2021
VC204

## 18.01-1S Land use and transport integration

04/02/2026
VC265

### Objective

To facilitate access to social, cultural and economic opportunities by effectively integrating land use and transport.

### Strategies

Plan and develop a transport system that facilitates:

- Social and economic inclusion for all people and builds community wellbeing.
- The best use of existing social and economic infrastructure.
- A reduction in the distances people have to travel to access jobs and services.
- Better access to, and greater mobility within, local communities.
- Network-wide efficiency and coordinated operation.

Plan land use and development to:

- Protect existing transport infrastructure from encroachment or detriment that would impact on the current or future function of the asset.
- Protect transport infrastructure that is in delivery from encroachment or detriment that would impact on the construction or future function of the asset.
- Protect planned transport infrastructure from encroachment or detriment that would impact deliverability or future operation.
- Protect identified potential transport infrastructure from being precluded by land use and development.

Plan land use and development to allow for the ongoing improvement and development of the State Transport System in the short and long term.

Plan movement networks and adjoining land uses to minimise disruption to residential communities and their amenity.

Plan the timely delivery of transport infrastructure and services to support changing land use and associated transport demands.

Plan improvements to public transport, walking and cycling networks to coordinate with the ongoing development and redevelopment of urban areas.

Plan the use of land adjacent to the transport system having regard to the current and future development and operation of the transport system.

Reserve land for strategic transport infrastructure to ensure the transport system can be developed efficiently to meet changing transport demands.

Support urban development that makes jobs and services more accessible:

- In accordance with forecast demand.
- By taking advantage of all available modes of transport.

Protect existing and facilitate new walking and cycling access to public transport.

Locate major government and private sector investments in Major regional cities, Regional Cities and Regional service centres on major transport corridors to maximise the access and mobility of communities.

Design neighbourhoods to:

- Better support active living.
- Increase the share of trips made using sustainable transport modes.

- Respond to the safety needs of all users.

Design the transport system and adjacent areas to achieve visual outcomes that are responsible to local context with particular reference to:

- Landscaping.
- The placement of signs.
- Providing buffer zones and resting places.

### Policy documents

Consider as relevant:

- *Movement and Place in Victoria* (Department of Transport, February 2019)
- *Delivering the Goods, Creating Victorian Jobs: Victorian Freight Plan* (Department of Economic Development, Jobs, Transport and Resources, July 2018)

## 18.01-1L Developments along highways

13/03/2026
C271card

### Policy application

This policy applies to the use and development of land along the Princes Freeway, Princes Highway, South Gippsland Highway and Bass Highway.

### Objective

To provide for facilities with a high standard of design that meet the needs of people travelling along highways.

### Strategies

Encourage developments that do not require a highway frontage to locate in alternative areas such as industrial areas or business areas in existing townships.

Limit the number of developments that service the needs of people travelling along highways to strategically located service nodes.

Support uses in highway service nodes that do not conflict with the role of commercial facilities provided in existing townships.

Protect the rural outlook and visual amenity of highways in rural areas, and the visual amenity of highways in urban areas.

Facilitate the establishment of major tourism developments along highways at strategic locations.

## 18.01-2S Transport system

02/09/2025
VC283

### Objective

To facilitate the efficient, coordinated and reliable movement of people and goods by developing an integrated and efficient transport system.

### Strategies

Plan and develop a transport system integrated across all movement networks that:

- Facilitates the efficient, coordinated and reliable movement of people and goods at all times.
- Optimises transport system capacity.
- Improves connectivity and facilitates the growth and development of regional Victoria.
- Improves connectivity between Victoria's Major regional cities, Regional cities, Regional service centres and metropolitan Melbourne.
- Ensures sufficient capacity for the movement of passengers into and out of Victoria at Principal Transport Gateways.
- Improves how goods are moved to local, interstate and overseas markets.
- Maximises access to residential areas, employment, markets, services and recreation.
- Improves local transport options to support 20-minute neighbourhoods in Melbourne's suburbs and Victoria's regional cities and towns.
- Is legible and enables easy access and movement between modes.

Plan movement networks that share the same space to do so in a way that balances the needs of the different users of the transport system.

Plan and develop the State Transport System comprising the:

- Principal Bicycle Network: Existing and future high quality cycling routes that provide access to major destinations and facilitate cycling for transport, sport, recreation and fitness.

- Principal Public Transport Network: Existing and future high quality public transport routes in the Melbourne metropolitan area.
- Regional Rail Network: Existing and future passenger rail routes in regional Victoria.
- Principal Road Network: Declared arterial roads and freeways under the *Road Management Act 2004*.
- Principal Freight Network: Existing and future corridors and precincts where the movement of high volumes of freight are concentrated or of strategic value.
- Principal Transport Gateways: Existing and future ports, airports and interstate terminals that serve as key locations for moving passengers and freight into, out of and around Victoria.

Facilitate delivery of:

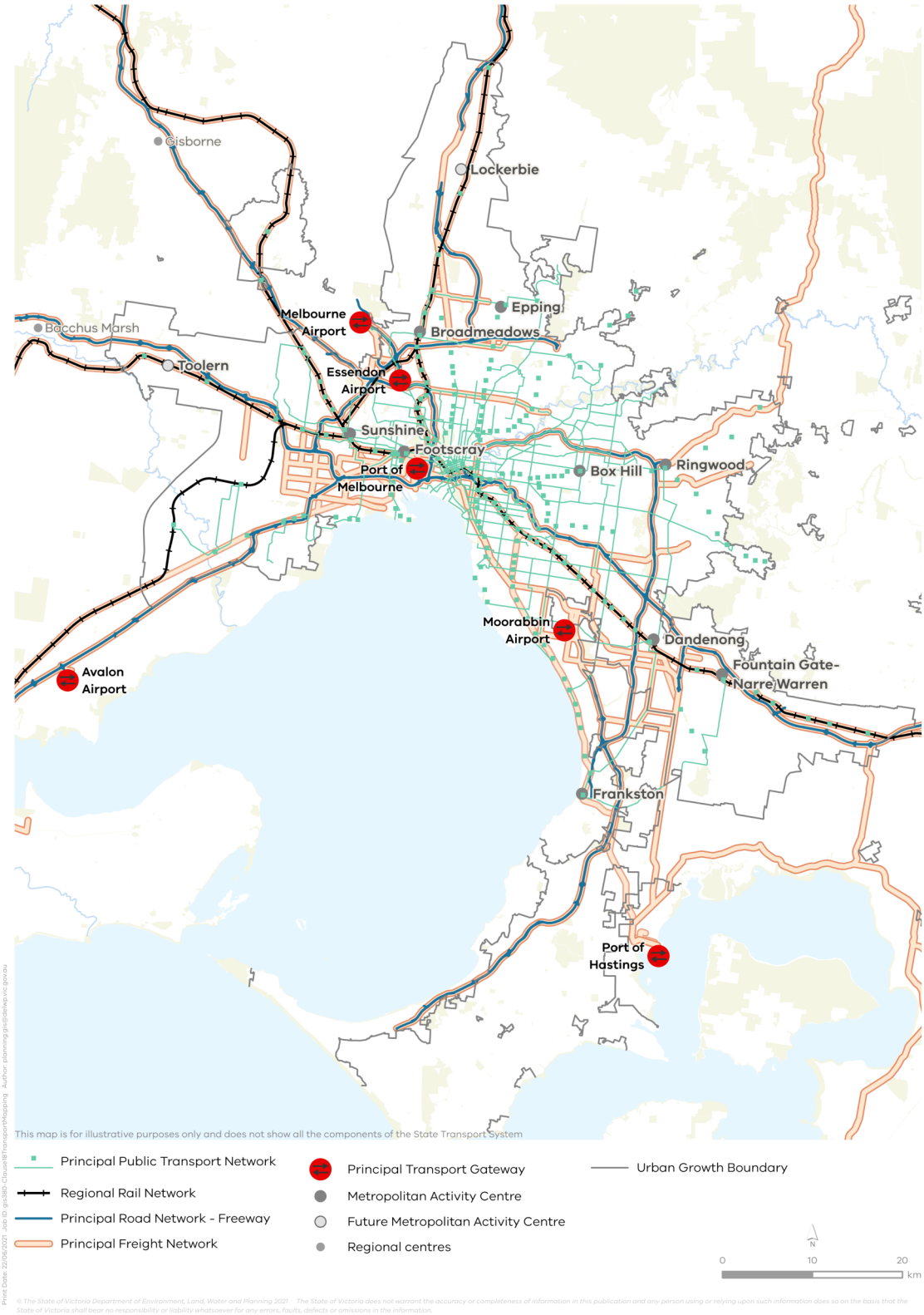
- Declared major transport projects and their ancillary projects that are of economic, social or environmental significance to the State of Victoria.
- Transport projects that improve the State Transport System.

### Policy documents

Consider as relevant:

- *Movement and Place in Victoria* (Department of Transport, February 2019)

## State Transport System – Metropolitan Melbourne Plan



## State Transport System – Regional Victoria Plan

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## 18.01-3S Sustainable and safe transport

09/12/2021
VC204

### Objective

To facilitate an environmentally sustainable transport system that is safe and supports health and wellbeing.

### Strategies

Plan and develop the transport system to:

- Maximise the efficient use of resources including infrastructure, land, services and energy.
- Prepare for and adapt to climate change impacts.
- Prioritise the use of sustainable personal transport.
- Protect, conserve and improve the natural environment by supporting forms of transport, energy use and transport technologies that have the least environmental impact.
- Avoid, minimise and offset harm to the environment by:
  - Protecting biodiversity.
  - Reducing transport-related greenhouse gas emissions.

Plan the transport system to be safe by:

- Developing safe transport infrastructure.
- Optimising accessibility, emergency access, service and amenity.
- Separating pedestrians, bicycles and motor vehicles, where practicable.
- Reducing the need for cyclists to mix with other road users.
- Supporting road users to make safe choices through design and wayfinding techniques.
- Prioritising transport safety when designing high-speed roads and intersections.

Support forms of transport and energy use that have the greatest benefit for, and least negative impact on, health and wellbeing.

Design the transport system to be accessible to all users.

Design new suburbs to respond to the safety, health and wellbeing needs of all road users.

Design development to promote walking, cycling and the use of public transport, in that order, and minimise car dependency.

### Policy documents

Consider as relevant:

- *Victorian Road Safety Strategy 2021-2030* (Department of Transport, 2021)

## 18.01-3R Sustainable and safe transport - Metropolitan Melbourne

09/12/2021
VC204

### Strategies

Improve local travel options for walking and cycling to support 20 minute neighbourhoods.

## 18.01-3L Pedestrian and bicycle network

13/03/2026
C271card

### Strategies

Facilitate the provision of a continuous and safe off-road shared path along the Princes Highway between Beaconsfield and Pakenham.

Facilitate the provision of a link to the Great Southern Rail Trail from the Pakenham Railway line.

Support the construction of a multi-use path along the South Gippsland Railway line to create a linkage between the Lang Lang and Koo Wee Rup townships.

Ensure new development does not impact on existing and future pedestrian and bicycle networks including protection for a future pedestrian, bicycle and equestrian path linking Garfield and Bunyip along Ti-Tree Creek.

Encourage passive surveillance over pedestrian and bicycle paths through siting and design.

Facilitate connections throughout Gembrook to open spaces that will improve walkability and other forms of active transport.

Facilitate a walking and cycling network that is inclusive of people with mobility difficulties.

Facilitate appropriate crossing points at areas with high traffic.

### Policy documents

*Pedestrian and Bicycle Strategy* (Cardinia Shire Council, August 2017)

Incorporated Document: *Lang Lang Township Strategy* (Cardinia Shire Council, July 2009)

Incorporated Document: *Bunyip Township Strategy* (Cardinia Shire Council, September 2009)

Incorporated Document: *Gembrook Township Strategy* (Cardinia Shire Council, June 2011).

## 18.02 MOVEMENT NETWORKS

31/07/2018
VC148

## 18.02-1S Walking

09/12/2021
VC204

### Objective

To facilitate an efficient and safe walking network and increase the proportion of trips made by walking.

### Strategies

Plan and develop walking networks to:

- Provide pedestrian routes that are safe, direct and comfortable to use.
- Enable walking as a part of everyday life.
- Enable people to meet more of their needs locally and rely less on their cars.
- Be accessible to vehicles that use footpaths, including wheelchairs, prams and scooters.
- Accommodate emerging forms of low-emission, low-speed personal transport.

Develop principal pedestrian networks for local areas that link with the transport system.

Provide walking infrastructure in all major transport projects.

Design walking routes to be comfortable by providing shelter from the sun through canopy trees, verandahs and other structures.

Design direct, comfortable and connected walking infrastructure to and between key destinations including activity centres, public transport interchanges, employment areas, urban renewal precincts and major attractions.

### Policy documents

Consider as relevant:

- *Guidelines for developing Principal Pedestrian Networks* (Department of Economic Development, Jobs, Transport and Resources, 2015)

## 18.02-2S Cycling

02/09/2025
VC283

### Objective

To facilitate an efficient and safe bicycle network and increase the proportion of trips made by cycling.

### Strategies

Plan and develop cycling networks to:

- Provide routes that are safe, comfortable, low-stress and well connected.
- Enable cycling as a part of everyday life.
- Enable people to meet more of their needs locally by cycling and to rely less on their cars.
- Accommodate emerging forms of low emission, low and moderate speed personal transport.

Protect and develop the Principal Bicycle Network to provide high-quality cycling routes that are direct and connected, to and between key destinations including activity centres, public transport interchanges, employment areas, urban renewal precincts and major attractions.

Develop Strategic Cycling Corridors by:

- Integrating them with stations and major interchanges on the public transport network that serve places of state significance.
- Integrating them with the central city, Employment and Innovation Areas, major activity centres and other destinations of metropolitan or state significance.
- Facilitating safer, lower stress and more direct journeys using a combination of cycleways, cycle paths and shared streets.
- Providing the most direct route practical.
- Designing transport corridors to prioritise cycling links and cyclists.

Protect Strategic Cycling Corridors from encroachment by development and incompatible interface treatments such as cross overs.

Support increased cycling by providing:

- Cycling routes and cycling infrastructure early in new developments and in in all major transport projects.
- Cycle parking and related end of trip facilities to meet demand at education, recreation, transport, shopping, commercial, public transport interchanges and community facilities, significant trip generating developments and other major attractions.
- Facilities for cyclists, particularly storage, at public transport interchanges and rail stations.
- Vegetation to shade cycling routes.

### Policy documents

Consider as relevant:

- *Principal Bicycle Network* (VicRoads, 2012)
- *Strategic Cycling Corridors* (Department of Transport, 2021)
- *Victorian Cycling Strategy 2018-28* (Transport for Victoria)

## 18.02-3S Public transport

18/12/2025
VC277

### Objective

To facilitate an efficient and safe public transport network and increase the proportion of trips made by public transport.

### Strategies

Plan and develop public transport to:

- Connect activity centres, job-rich areas and outer suburban areas.
- Enable people to not have to rely on cars for personal transport.
- Integrate bus and tram networks and stops and public transport interchanges in new development areas, including key urban renewal precincts and outer-suburban areas.
- Integrate with land use and development in outer suburban and growth areas.

Protect and develop the Principal Public Transport Network and Regional Rail Network to facilitate:

- High quality public transport services that support increased diversity and density of development, particularly at interchanges, activity centres and where Principal Public Transport Network routes intersect.
- Modern commuter-style public transport services that link Melbourne with the regional growth areas of Geelong, Bendigo, Ballarat, Seymour and Traralgon.
- Service improvements to other regional and rural areas.
- A metro-style rail system that provides a very high frequency of service in the Melbourne metropolitan area.
- A new high quality orbital rail (Suburban Rail Loop) through Melbourne's middle suburbs.
- A balance between the rail usage needs of public transport and freight.

Facilitate public transport infrastructure in all major transport projects.

Allocate adequate land and infrastructure to support public transport provision in activity centres, transport interchanges and major commercial, retail and community facilities.

Locate higher density and increased development on or close to the Principal Public Transport Network in a way that does not compromise the efficiency of the Principal Public Transport Network.

Support development that facilitates the delivery and operation of public transport services.

### Policy documents

Consider as relevant:

- *Car Parking Requirement Maps* (Department of Transport and Planning, December 2025)
- *Principal Public Transport Network* (State Government of Victoria, 2017)
- *VicTrack Rail Development Interface Guidelines* (VicTrack, 2019)
- *Public Transport Guidelines for Land Use Development* (Department of Transport, 2008)

## 18.02-3R Principal Public Transport Network

09/12/2021
VC204

### Strategies

Facilitate high-quality public transport access to job-rich areas.

Maximise the use of existing infrastructure and increase the diversity and density of development along the Principal Public Transport Network, particularly at interchanges, activity centres and where principal public transport routes intersect.

Identify and plan for new Principal Public Transport Network routes.

Support the Principal Public Transport Network with a comprehensive network of local public transport.

Plan for local bus services to provide for connections to the Principal Public Transport Network.

Improve the operation of the Principal Public Transport Network by providing for:

- A metro-style rail system.
- Extended tram lines and the establishment of a light rail system.
- Road space management measures including transit lanes, clearways, stops and interchanges.

## 18.02-4S Roads

18/12/2025
VC277

### Objective

To facilitate an efficient and safe road network that integrates all movement networks and makes best use of existing infrastructure.

### Strategies

Plan and develop the road network to:

- Ensure people are safe on and around roads.
- Improve people's perceptions of safety on and around roads.
- Improve road connections for all road users.
- Facilitate the use of public transport, cycling and walking.
- Integrate new and emerging technologies into road design, including the increasing connectivity and automation of vehicles.
- Accommodate the expansion of the High Productivity Freight Vehicle Network, and oversize and overmass vehicles.

Protect and develop the Principal Road Network to:

- Provide high mobility for through traffic and the efficient movement of freight by facilitating adequate movement capacity and speeds.
- Improve cross-town arterial links in outer suburbs and growth areas, including circumferential and radial movement to facilitate access to jobs and services.
- Limit access points to high-volume, high-speed roads by utilising urban design techniques such as service roads and internal connector roads.
- Improve high-capacity on-road public transport.

Develop declared freeways to:

- Link Melbourne with major regional cities, major interstate locations and other key locations important to the economy along major national and state transport corridors.
- Connect and provide access to Principal Transport Gateways and freight-generating areas.
- Improve connections to Employment and Innovation Areas.
- Connect dispersed major residential areas with key destinations and lower density employment areas.
- Avoid private access, except for service centres.

Provide for grade separation at railway crossings, except with the approval of the Minister for Transport and Infrastructure.

Improve Melbourne's distinctive, established boulevards by developing a connected, contemporary network of boulevards within the urban growth boundary.

Design road space to complement land use and meet business and community needs through the provision of wider footpaths, bicycle lanes, transit lanes (for buses and commercial passenger vehicles) and freight routes, in line with the designated role of the road.

Design roads to facilitate the safe movement of people and goods while providing places for people to interact and gather in high pedestrian areas like activity centres, around schools and around community facilities.

Plan an adequate supply of car parking that is designed and located to:

- Protect the role and function of nearby roads.

- Enable the efficient movement and delivery of goods.
- Facilitate the use of public transport.
- Maintain journey times and the reliability of the on-road public transport network.
- Protect residential areas from the effects of road congestion created by on-street parking.
- Enable easy and efficient use.
- Achieve a high standard of urban design.
- Protect the amenity of the locality, including the amenity of pedestrians and other road users.
- Create a safe environment, particularly at night.

Allocate land for car parking considering:

- The existing and potential modes of access including public transport.
- The demand for off-street car parking.
- Road capacity.
- The potential for demand-management of car parking.

Consolidate car parking facilities to improve efficiency.

Design public car parks to incorporate electric charging facilities to support the use of low-emission vehicles.

### Policy documents

Consider as relevant:

- *Car Parking Requirement Maps* (Department of Transport and Planning, December 2025)
- *Victorian Road Safety Strategy 2021-2030* (Department of Transport, 2021)
- *Movement and Place in Victoria* (Department of Transport, February 2019)

## 18.02-4L Local roads

13/03/2026
C271card

### Strategies

Locate development that will significantly increase the amount of traffic or heavy vehicles using the local road network where access is available from a declared arterial road, local arterial road or collector road.

## 18.02-5S Freight

09/12/2021
VC204

### Objective

To facilitate an efficient, coordinated, safe and sustainable freight and logistics system that enhances Victoria's economic prosperity and liveability.

### Strategies

Plan and develop Victoria's freight and logistics system to:

- Support the movement of freight within Victoria's freight and logistics system.
- Improve freight efficiency and capacity.
- Manage negative impacts of freight generating activities on urban amenity, the development of urban areas, and on the efficient operation of movement networks.
- Prioritise new technologies that enhance road and rail safety, optimise the metropolitan road network, better manage congestion and reduce supply chain costs.
- Accommodate High Productivity Freight Vehicles, and oversize and overmass vehicles.
- Increase the capacity of the rail network to carry larger volumes of freight.

Protect and develop the Principal Freight Network, including freight movement corridors and freight places, and Principal Transport Gateways, by:

- Facilitating the movement of high volumes of freight and freight of strategic value.
- Linking areas of production and manufacturing to national and international gateways and export markets.
- Increasing the capacity of Principal Transport Gateways and supporting their use and development as important locations for employment and economic activity.
- Designing the Principal Freight Network to adapt to commodity, market and operating changes.
- Managing encroachment from incompatible land use and development that would undermine its ability to operate.

Support the development of freight and logistics precincts in strategic locations within and adjacent to Principal Transport Gateways and along the Principal Freight Network movement corridors by:

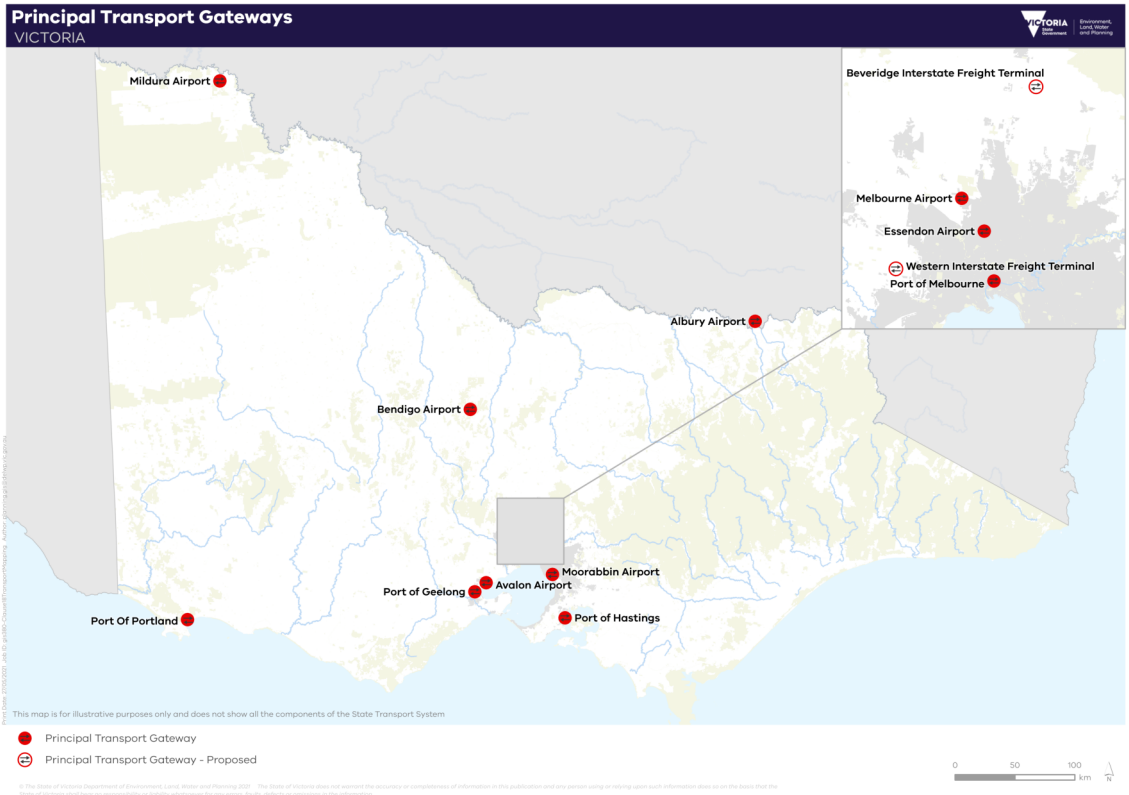
- Allocating land for complementary uses and employment-generating activities, such as distribution and warehousing.
- Reserving and appropriately zoning land for interstate freight terminals to support development that allows for the direct and immediate delivery of goods to market.
- Allocating land to allow high-volume freight customers to locate adjacent to interstate freight terminals, including the Western Interstate Freight Terminal and the Beveridge Interstate Freight Terminal.

### Policy documents

Consider as relevant:

- *Principal Freight Network* (Department of Transport, 2021)
- *Principal Transport Gateways* (Department of Transport, 2021)
- *Delivering the Goods, Creating Victorian Jobs: Victorian Freight Plan* (Department of Economic Development, Jobs, Transport and Resources, July 2018)

## Principal Transport Gateways



## 18.02-5R Freight links - Metropolitan Melbourne

09/12/2021
VC204

### Strategy

Ensure suitable sites are provided for intermodal freight terminals at key locations around Metropolitan Melbourne, particularly for the Beveridge Interstate Freight Terminal and the Western Interstate Freight Terminal.

## 18.02-6S Ports

09/12/2021
VC204

### Planning for ports objective

To support the effective and competitive operation of Victoria's commercial trading ports at local, national and international levels, and to facilitate their ongoing sustainable operation and development.

### Planning for ports strategies

Provide for the ongoing development of ports at Melbourne, Geelong, Hastings and Portland in accordance with approved Port Development Strategies.

Identify and protect key transport corridors linking ports to the broader transport network.

Manage any impacts of a commercial trading port and any related industrial development on nearby sensitive uses to minimise the impact of vibration, light spill, noise and air emissions from port activities.

### Planning for port environs objective

To plan for and manage land near commercial trading ports so that development and use are compatible with port operations and provide reasonable amenity expectations.

### Planning for port environs strategies

Protect commercial trading ports from encroachment of sensitive and incompatible land uses in the port environs.

Plan for and manage land in the port environs to accommodate uses that depend upon, or gain significant economic advantage from, proximity to the port's operations.

Ensure that industrially zoned land within the environs of a commercial trading port is maintained and continues to support the role of the port as a critical freight and logistics precinct.

Identify and protect key transport corridors linking ports to the broader transport network.

Ensure any new use or development within the environs of a commercial trading port does not prejudice the efficient and curfew-free operations of the port.

Ensure that the use and intensity of development does not expose people to unacceptable health or safety risks and consequences associated with an existing major hazard facility.

Ensure that any use or development within port environs:

- Is consistent with policies for the protection of the environment.
- Takes into account planning for the port.

### Policy documents

Consider as relevant:

- *Statement of Planning Policy No 1 - Western Port* (1970-varied 1976)
- *2018 Port Development Strategy* (Port of Hastings Development Authority, December 2018)
- *Port of Geelong Port Development Strategy 2018* (Victorian Regional Channels Authority, 2018)
- *2050 Port Development Strategy, 2020 edition* (Port of Melbourne, 2020)
- *Port of Portland – Port Development Strategy* (Port of Portland, 2019)

## 18.02-7S Airports and airfields

18/05/2022
VC218

### Objective

To strengthen the role of Victoria's airports and airfields within the state's economic and transport infrastructure, guide their siting and expansion, and safeguard their ongoing, safe and efficient operation.

### Strategies

Protect airports and airfields from incompatible land use and development.

Prevent land use or development that poses risks to the safety or efficiency of an airport or airfield, including any of the following risks:

- Building-generated windshear and turbulence.
- Increased risk of wildlife strike.
- Pilot distraction from lighting.
- Intrusion into protected airspace.
- Interference with communication, navigation and surveillance facilities.
- Increased risk to public safety at the end of runways.

Minimise the detrimental effects of aircraft noise when planning for areas around airports and airfields.

Limit the intensification of noise-sensitive land uses, and avoid zoning or overlay changes that allow noise-sensitive land use and development, where ultimate capacity or long-range noise modelling indicates an area is within a 20 Australian Noise Exposure Forecast (ANEF) contour or higher.

Avoid zoning or overlay changes that allow noise-sensitive land uses outside the Urban Growth Boundary, and encourage measures to reduce the impact of aircraft noise in planning for areas within the Urban Growth Boundary, where ultimate capacity or long-range noise modelling indicates an area is within 'number above' contours (N Contours) representing:

- 20 or more daily events greater than 70 dB(A).
- 50 or more daily events of greater than 65 dB(A).
- 100 or more daily events greater than 60 dB(A).
- 6 events or more between the hours of 11pm to 6am greater than 60 dB(A).

Ensure land use and development at airports and airfields contributes to the aviation needs of the state and the efficient and functional operation of the airport or airfield.

Ensure land use and development at airports complements the role of the airport including as listed below:

- Melbourne Airport – major domestic and international airport with no curfew, 24-hour access, freight capability and an adjoining employment precinct.
- Avalon Airport – domestic and international airport with no curfew, 24-hour access, freight capability and an adjoining employment precinct.
- Essendon Fields Airport – a general aviation airport that is an important regional and state aviation asset with specialised functions, including executive charter, emergency aviation services, freight, logistics and an adjoining employment precinct.

- Moorabbin Airport – a general aviation airport that is an important regional and state aviation asset supporting the state's aviation industry and access to regional Victoria.
- Point Cook Airfield – an operating airport complementary to Moorabbin Airport.

Plan for areas around airports and airfields so that land use or development does not prejudice future airport or airfield operations or expansions in accordance with an approved strategy or master plan for that airport or airfield.

Preserve long-term options for a new general aviation airport south-east of metropolitan Melbourne by ensuring urban land use and development does not infringe on possible sites, buffer zones or flight paths.

Avoid the location of new airports and airfields in areas that have greater long-term value to the community for other purposes.

Ensure that in the planning of airports and airfields, land use decisions are integrated, appropriate land use buffers are in place and provision is made for associated businesses that service airports.

Plan the location of airports and airfields, nearby existing and potential development, and the land-based transport system required to serve them, as an integrated operation.

Plan the visual amenity and impact of any land use or development on the approaches to an airport or airfield to be consistent with the status of the airport or airfield.

#### Policy documents

Consider as relevant:

- *National Airports Safeguarding Framework* (as agreed by Commonwealth, State and Territory Ministers at the meeting of the Standing Council on Transport and Infrastructure on 18 May 2012)
- *Avalon Airport Master Plan* (Avalon Airport Australia Pty Ltd, 2015)
- *Avalon Airport Strategy* (Department of Business and Employment/Aerospace Technologies of Australia, 1993) and its associated Aircraft Noise Exposure Concepts
- *Melbourne Airport Strategy* (Government of Victoria/Federal Airports Corporation, approved 1990) and its associated *Final Environmental Impact Statement*

## 18.02-7R Melbourne Airport

20/03/2023
VC229

#### Strategies

Protect the curfew-free status of Melbourne Airport and ensure any new use or development does not prejudice its operation or optimum usage.

#### Policy documents

Consider as relevant:

- *Melbourne Airport Master Plan 2022* (Australia Pacific Airports (Melbourne) Pty Ltd)
- *Melbourne Airport Strategy* (Government of Victoria/Federal Airports Corporation, approved 1990) and its associated *Final Environmental Impact Statement*

## 18.02-7L Airport

13/03/2026
C271card

#### Objective

To identify and protect a site for a new general aviation airport in Melbourne’s southeast region including associated industrial and commercial land.

### Strategies

Protect the flight paths and noise contours for the preferred airport site from incompatible urban development and land use.

Protect an alignment to connect the rail line at Clyde to the preferred airport site.

Provide sufficient freight and passenger landside access to the new airport.

Ensure urban development does not infringe on the preferred site's buffer zone or flight paths.

Ensure that environmental, social and economic impacts of the new general aviation airport are considered.

### Policy documents

*Plan Melbourne 2017-2050: Metropolitan Planning Strategy*

*Cardinia Shire Council 3rd Airport for Melbourne's Southeast Policy, July 2015* (updated March 2017)

# 19 INFRASTRUCTURE

10/06/2022
VC216

Planning for development of social and physical infrastructure should enable it to be provided in a way that is efficient, equitable, accessible and timely.

Planning is to recognise social needs by providing land for a range of accessible community resources, such as education, cultural, health and community support (mental health, aged care, disability, youth and family services) facilities.

Planning should ensure that the growth and redevelopment of settlements is planned in a manner that allows for the logical and efficient provision and maintenance of infrastructure, including the setting aside of land for the construction of future transport routes.

Planning should facilitate efficient use of existing infrastructure and human services. Providers of infrastructure, whether public or private bodies, are to be guided by planning policies and should assist strategic land use planning.

Planning should minimise the impact of use and development on the operation of major infrastructure of national, state and regional significance, including communication networks and energy generation and distribution systems.

Infrastructure planning should avoid, minimise and offset environmental impacts, and incorporate resilience to natural hazards, including future climate change risks.

Planning authorities should consider the use of development and infrastructure contributions in the funding of infrastructure.

## 19.01 ENERGY

31/07/2018
VC148

## 19.01-1S Energy supply

05/09/2025
VC268

### Objective

To facilitate appropriate development of energy supply infrastructure.

### Strategies

Support the development of energy generation, storage, transmission, and distribution infrastructure to transition to a low-carbon economy.

Develop appropriate infrastructure to meet community demand for energy services.

Ensure energy generation, storage, transmission and distribution infrastructure and projects are resilient to the impacts of climate change.

Facilitate the production and distribution of zero emission gases and fuels.

Support energy infrastructure projects in locations that minimise land use conflicts, including in any renewable energy zones declared under section 63 of the *National Electricity (Victoria) Act 2005*.

Support energy infrastructure projects in locations that take advantage of existing and planned resources and infrastructure networks.

Facilitate energy infrastructure projects that help diversify local economies and improve sustainability and social outcomes.

Facilitate renewable energy generation and storage to meet on-site energy needs.

### Policy guidelines

Consider as relevant:

- The long-term emissions reduction target specified in section 6 of Part 2 of the *Climate Action Act 2017*.
- Interim emissions reduction targets determined under Division 2 of Part 2 of the *Climate Action Act 2017*.
- Adaptation action plans prepared under Division 2 of Part 5 of the *Climate Action Act 2017*.

### Policy documents

Consider as relevant:

- *2025 Victorian Transmission Plan* (VicGrid, 2025)

## 19.01-2S Renewable energy

05/09/2025
VC268

### Objective

To support the provision and use of renewable energy in a manner that ensures appropriate siting and design considerations are met.

### Strategies

Facilitate renewable energy development in appropriate locations, including in any renewable energy zones declared under section 63 of the *National Electricity (Victoria) Act 2005*.

Protect renewable energy infrastructure against competing and incompatible uses.

Set aside suitable land for future renewable energy infrastructure.

Consider the economic, social and environmental benefits to the broader community of renewable energy generation while also considering the need to minimise the effects of a proposal on the local community and environment.

Support wind energy facilities in locations with consistently strong winds over the year.

### Policy documents

Consider as relevant:

- *Policy and Planning Guidelines for Development of Wind Energy Facilities in Victoria* (Department of Environment, Land, Water and Planning, November 2021)
- *Solar Energy Facilities Design and Development Guideline* (Department of Environment, Land, Water and Planning, October 2022)
- *Victoria's Climate Change Strategy* (Department of Environment, Land, Water and Planning, May 2021)
- *Community Engagement and Benefit Sharing in Renewable Energy Development in Victoria* (Department of Environment, Land, Water and Planning, July 2021)
- *2025 Victorian Transmission Plan* (VicGrid, 2025)

## 19.01-2R Renewable energy - Metropolitan Melbourne

31/07/2018
VC148

### Strategy

Facilitate the uptake of renewable energy technologies on a site-by-site and neighbourhood level during the master planning of new communities and in green wedge and peri-urban areas.

## 19.01-3S Pipeline infrastructure

31/07/2018
VC148

### Objective

To ensure that gas, oil and other substances are safely delivered to users and to and from port terminals at minimal risk to people, other critical infrastructure and the environment.

### Strategies

Plan for the development of pipeline infrastructure subject to the *Pipelines Act 2005*.

Recognise existing transmission-pressure gas pipelines in planning schemes and protect from further encroachment by residential development or other sensitive land uses, unless suitable additional protection of pipelines is provided.

Plan new pipelines along routes with adequate buffers to residences, zoned residential land and other sensitive land uses and with minimal impacts on waterways, wetlands, flora and fauna, erosion prone areas and other environmentally sensitive sites.

Provide for environmental management during construction and on-going operation of pipeline easements.

## 19.02 COMMUNITY INFRASTRUCTURE

31/07/2018
VC148

## 19.02-1S Health facilities

31/07/2018
VC148

### Objective

To assist the integration of health facilities with local and regional communities.

### Strategies

Facilitate the location of health and health-related facilities (including acute health, aged care, disability services and community care facilities) taking into account demographic trends, the existing and future demand requirements and the integration of services into communities.

Plan public and private developments together, where possible, including some degree of flexibility in use.

Locate hospitals and other large health facilities in designated health precincts and areas highly accessible to public and private transport.

Provide adequate car parking for staff and visitors of health facilities.

## 19.02-1R Health precincts - Metropolitan Melbourne

31/07/2018
VC148

### Strategies

Facilitate health and community wellbeing precincts through the co-location of:

- Hospitals, allied health services and not-for-profit health providers at the regional level.
- General practitioners, community health facilities, allied health services and not-for-profit health providers at the neighbourhood level.

Create health precincts in new suburbs in or close to town centres.

Ensure health precincts are well serviced by community services.

## 19.02-2S Education facilities

29/09/2022
VC222

### Objective

To assist the integration of education and early childhood facilities with local and regional communities.

### Strategies

Consider demographic trends, existing and future demand requirements and the integration of facilities into communities in planning for the location of education and early childhood facilities.

Locate childcare, kindergarten and primary school facilities to maximise access by public transport and safe walking and cycling routes.

Ensure childcare, kindergarten and primary school and secondary school facilities provide safe vehicular drop-off zones.

Facilitate the establishment and expansion of primary and secondary education facilities to meet the existing and future education needs of communities.

Recognise that primary and secondary education facilities are different to dwellings in their purpose and function and can have different built form (including height, scale and mass).

Locate secondary school and tertiary education facilities in designated education precincts and areas that are highly accessible to public transport.

Locate tertiary education facilities within or adjacent to activity centres.

Ensure streets and accessways adjoining education and early childhood facilities are designed to encourage safe bicycle and pedestrian access.

Consider the existing and future transport network and transport connectivity.

Develop libraries as community based learning centres.

Co-locate a kindergarten facility with all new Victorian Government primary schools.

## 19.02-2R Education precincts - Metropolitan Melbourne

31/07/2018
VC148

### Strategy

Ensure education precincts are well serviced by community services.

## 19.02-3S Cultural facilities

31/07/2018
VC148

### Objective

To develop a strong cultural environment and increase access to arts, recreation and other cultural facilities.

### Strategies

Encourage a wider range of arts, cultural and entertainment facilities including cinemas, restaurants, nightclubs and live theatres in the Central City and at Metropolitan Activity Centres.

Reinforce the existing major precincts for arts, sports and major events of state wide appeal.

Establish new facilities at locations well served by public transport.

## 19.02-3R Cultural facilities - Metropolitan Melbourne

31/07/2018
VC148

### Strategies

Maintain and strengthen Melbourne's distinctiveness as a leading cultural and sporting city with world-class facilities.

## 19.02-3L Social and cultural infrastructure

13/03/2026
C271card

### Strategies

Support and facilitate the development of Cultural Precincts for arts and cultural facilities aligned to Activity Centres and other community infrastructure in major townships and population areas.

Ensure new residential subdivisions provide for accessible community hubs comprising, a primary school, community centre, open space and local commercial facilities (convenience shop, medical centre, etc.) as or where needed.

Establish community facilities in the most accessible location for local residents having regard to their service catchment.

Co-locate community and recreational facilities and encourage joint management of these facilities.

## 19.02-4S Social and cultural infrastructure

31/07/2018
VC148

### Objective

To provide fairer distribution of and access to, social and cultural infrastructure.

### Strategies

Identify and address gaps and deficiencies in social and cultural infrastructure, including additional regionally significant cultural and sporting facilities.

Encourage the location of social and cultural infrastructure in activity centres.

Ensure social infrastructure is designed to be accessible.

Ensure social infrastructure in growth areas, is delivered early in the development process and in the right locations.

Plan and design community places and buildings so they can adapt as the population changes and different patterns of work and social life emerge.

Support innovative ways to maintain equitable service delivery to settlements that have limited or no capacity for further growth, or that experience population decline.

Identify and protect land for cemeteries and crematoria.

## 19.02-5S Emergency services

31/07/2018
VC148

### Objective

To ensure suitable locations for police, fire, ambulance and other emergency services.

### Strategies

Ensure police, fire, ambulance and other emergency services are provided for in or near activity centres.

Locate emergency services together in newly developing areas.

## 19.02-6S Open space

31/07/2018
VC148

### Objective

To establish, manage and improve a diverse and integrated network of public open space that meets the needs of the community.

### Strategies

Plan for regional and local open space networks for both recreation and conservation of natural and cultural environments.

Ensure that open space networks:

- Are linked, including through the provision of walking and cycling trails.
- Are integrated with open space from abutting subdivisions.
- Incorporate, where possible, links between major parks and activity areas, along waterways and natural drainage corridors, connecting places of natural and cultural interest.
- Maintain public accessibility on public land immediately adjoining waterways and coasts.

Create opportunities to enhance open space networks within and between settlements.

Ensure that land is set aside and developed in residential areas for local recreational use and to create pedestrian and bicycle links to commercial and community facilities.

Ensure that land use and development adjoining regional open space networks, national parks and conservation reserves complements the open space in terms of visual and noise impacts, preservation of vegetation and treatment of waste water to reduce turbidity and pollution.

Improve the quality and distribution of open space and ensure long-term protection.

Protect large regional parks and significant conservation areas.

Ensure land identified as critical to the completion of open space links is transferred for open space purposes.

Ensure that where there is a reduction of open space due to a change in land use or occupation, additional or replacement parkland of equal or greater size and quality is provided.

Ensure that urban open space provides for nature conservation, recreation and play, formal and informal sport, social interaction, opportunities to connect with nature and peace and solitude.

Accommodate community sports facilities in a way that is not detrimental to other park activities.

Ensure open space provision is fair and equitable with the aim of providing access that meets the needs of all members of the community, regardless of age, gender, ability or a person's location.

Develop open space to maintain wildlife corridors and greenhouse sinks.

Provide new parkland in growth areas and in areas that have an undersupply of parkland.

Encourage the preparation of management plans or explicit statements of management objectives for urban parks.

Ensure exclusive occupation of parkland by community organisations is restricted to activities consistent with management objectives of the park to maximise broad community access to open space.

Ensure the provision of buildings and infrastructure is consistent with the management objectives of the park.

Ensure public access is not prevented by developments along stream banks and foreshores.

Ensure public land immediately adjoining waterways and coastlines remains in public ownership.

Plan open space areas for multiple uses, such as community gardens, sports and recreation, active transport routes, wildlife corridors and flood storage basins.

## 19.02-6R Open space - Metropolitan Melbourne

14/04/2025
VC281

### Objective

To strengthen the integrated metropolitan open space network.

### Strategies

Develop a network of local open spaces that are accessible and of high-quality and include opportunities for new local open spaces through planning for urban redevelopment projects.

Ensure major open space corridors are protected and enhanced.

Develop open space networks in growth areas and in the surrounding region of Metropolitan Melbourne, where existing open space is limited and demand is growing, including:

- Cardinia Creek Parklands.
- Cranbourne Regional Park.
- Kororoit Creek Corridor.
- Quarry Hills Regional Park.
- Chain of Parks - Sandbelt.
- Sunbury Regional Park - Jacksons Creek Valley.
- Toolern Creek Regional Park.
- Werribee Township Regional Park.

Create continuous open space links and trails along the:

- Frankston parklands (linking existing parks from Carrum to Mornington).
- Maribyrnong River parklands.
- Merri Creek parklands (extending to Craigieburn).
- Western Coastal parklands (linking Point Gellibrand, Point Cook and Werribee).
- Birrarung (Yarra River) parklands (extending from Warrandyte to the Port Phillip Bay).

Provide long term planning protection to meet demand for future open space along the Plenty Gorge parklands, Yarra Valley parklands, Cardinia Creek parklands, Heatherton/Dingley 'Sandbelt' parklands and Dandenong Valley parklands.

Protect the metropolitan water's edge parklands from intrusion and encroachment of development that impacts on open space and their natural landscape setting.

Continue development of the Birrarung (Yarra River) Inner City reach, identified in clause 12.03-1R Map 1, as a focus for sport, entertainment and leisure.

Support establishing community gardens and productive streetscapes.

### Policy documents

Consider as relevant:

- *Open Space for Everyone: Open Space Strategy for Metropolitan Melbourne 2021* (Department of Environment, Land, Water and Planning, 2021)
- *Maribyrnong River – Vision for Recreational and Tourism Development* (Melbourne Parks and Waterways, 1996)
- *Maribyrnong River Valley Design Guidelines* (Department of Planning and Community Development, 2010)

## 19.02-6L Open space

13/03/2026
C271card

### General strategies

Discourage the fragmentation of open space within developments and subdivisions.

Provide and maintain areas for equestrian activities (including a safe and interconnected network of equestrian trails) in and around Lang Lang.

Co-locate community and recreational facilities to encourage joint management of these facilities.

Provide play spaces within open space.

### Open space contributions strategies

Ensure adequate active and passive open space is provided for communities and ensure that this is not constrained by environmental, drainage or other constraints.

Ensure public open space contributions associated with land for residential purposes comprises of land unencumbered by other constraints (e.g.: land required by Melbourne Water for drainage purposes, land within service easements) to allow its full use for recreation purposes.

Ensure when encumbered public open space cannot be avoided that it is provided in addition to the required public open space contribution for recreation purposes.

### Policy document

Consider as relevant:

- *Recreational Open Space Strategy* (Cardinia Shire Council, December 2000)
- Incorporated Document: *Lang Lang Township Strategy* (Cardinia Shire Council, July 2009)
- *Pedestrian and Bicycle Strategy* (Cardinia Shire Council, August 2017).
- *Play Space Strategy* (Cardinia Shire Council, 2014)

# 19.03 DEVELOPMENT INFRASTRUCTURE

31/07/2018
VC148

## 19.03-1S Development and infrastructure contributions plans

24/01/2020
VC160

### Objective

To facilitate the timely provision of planned infrastructure to communities through the preparation and implementation of development contributions plans and infrastructure contributions plans.

### Strategies

Prepare development contributions plans and infrastructure contributions plans, under the *Planning and Environment Act 1987*, to manage contributions towards infrastructure.

Collect development contributions on the basis of approved development and infrastructure contributions plans.

Require annual reporting by collecting and development agencies to monitor the collection and expenditure of levies and the delivery of infrastructure.

### Policy documents

Consider as relevant:

- *Development Contributions Guidelines* (Department of Sustainability and Environment, 2003 -as amended 2007)
- *Infrastructure Contributions Plan Guidelines* (Department of Environment, Land, Water and Planning, November 2019)
- *Ministerial Direction on the Preparation and Content of Development Contribution Plans and Reporting Requirements for Development Contributions Plans*
- *Ministerial Direction on the Preparation and Content of Infrastructure Contribution Plans and Reporting Requirements for Infrastructure Contributions Plans*

## 19.03-2S Infrastructure design and provision

09/10/2020
VC169

### Objective

To provide timely, efficient and cost-effective development infrastructure that meets the needs of the community.

### Strategies

Provide an integrated approach to the planning and engineering design of new subdivision and development.

Integrate developments with infrastructure and services, whether they are in existing suburbs, growth areas or regional towns.

## 19.03-2L Drainage infrastructure for townships

13/03/2026
C271card

### Strategies

Provide sewage treatment and stormwater management systems to minimise the impact of existing township development on the environment, and to enable development to occur in townships.

## 19.03-3S Integrated water management

04/02/2026
VC265

### Objective

To sustainably manage water supply and demand, water resources, wastewater, drainage and stormwater through an integrated water management approach.

### Strategies

Plan and coordinate integrated water management, bringing together stormwater, wastewater, drainage, water supply, water treatment and re-use, to:

- Take into account the catchment context.
- Protect downstream environments, waterways and bays.
- Manage and use potable water efficiently.
- Reduce pressure on Victoria's drinking water supplies.
- Minimise drainage, water or wastewater infrastructure and operational costs.
- Minimise flood risks.
- Provide urban environments that are more resilient to the effects of climate change.

Integrate water into the landscape to facilitate cooling, local habitat improvements and provision of attractive and enjoyable spaces for community use.

Facilitate use of alternative water sources such as rainwater, stormwater, recycled water and run-off from irrigated farmland.

Ensure that development protects and improves the health of water bodies including creeks, rivers, wetlands, estuaries and bays by:

- Minimising stormwater quality and quantity related impacts.
- Filtering sediment and waste from stormwater prior to discharge from a site.
- Managing industrial and commercial toxicants in an appropriate way.
- Requiring appropriate measures to mitigate litter, sediment and other discharges from construction sites.

Manage stormwater quality and quantity through a mix of on-site measures and developer contributions at a scale that will provide greatest net community benefit.

Provide for sewerage at the time of subdivision or ensure lots created by the subdivision are capable of adequately treating and retaining all domestic wastewater within the boundaries of each lot.

Ensure land is set aside for water management infrastructure at the subdivision design stage.

Minimise the potential impacts of water, sewerage and drainage assets on the environment.

Protect significant water, sewerage and drainage assets from encroaching sensitive and incompatible uses.

Protect areas with potential to recycle water for forestry, agriculture or other uses that can use treated effluent of an appropriate quality.

Ensure that the use and development of land identifies and appropriately responds to potential environmental risks, and contributes to maintaining or improving the environmental quality of water and groundwater.

### Policy guidelines

Consider as relevant:

- Any applicable Sustainable Water Strategy endorsed under Division 1B of Part 3 of the *Water Act 1989*.

### Policy documents

Consider as relevant:

- *Water for Victoria - Water Plan* (Victorian Government, 2016)
- *Environment Reference Standard* (Gazette No. S 245, 26 May 2021)
- *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021)
- *Planning Permit Applications in Special Water Supply Catchment Areas* (Department of Energy, Environment and Climate Action, 2024)
- *Victorian guideline for water recycling* (Environment Protection Authority - Publication 1910, March 2021)
- *Technical information for the Victorian guideline for water recycling* (Environment Protection Authority - Publication 1911, March 2021)

## 19.03-3L Integrated water management

13/03/2026
C271card

### Strategies

Ensure all development incorporates best practice water sensitive urban design principles including such measures as the use of the third pipe recycled water systems and the use of water tanks.

Encourage sustainable water supply to agricultural areas including the use of recycled water.

Encourage the protection of waterway environs including the fencing off of waterways and the re-establishment of riparian vegetation, especially in rural areas degraded by the impact of stock.

## 19.03-4S Telecommunications

04/11/2022
VC226

### Objective

To facilitate the orderly development, extension and maintenance of telecommunications infrastructure.

### Strategies

Facilitate the upgrading and maintenance of telecommunications facilities.

Ensure that modern telecommunications facilities are widely accessible and that the telecommunications needs of business, domestic, entertainment and community services are met.

Encourage the continued deployment of telecommunications facilities that are easily accessible by:

- Increasing and improving access for all sectors of the community to the telecommunications network.
- Supporting access to transport and other public corridors for the deployment of telecommunications networks in order to encourage infrastructure investment and reduce investor risk.

Ensure a balance between the provision of telecommunications facilities and the need to protect the environment from adverse impacts arising from telecommunications infrastructure.

Co-locate telecommunications facilities wherever practical.

Planning should have regard to national implications of a telecommunications network and the need for consistency in infrastructure design and placement.

## 19.03-4R Telecommunications - Metropolitan Melbourne

26/10/2018
VC154

### Strategy

Support the provision of high-quality telecommunications infrastructure in Melbourne's employment, urban renewal and growth areas through early planning for fibre-ready facilities and wireless infrastructure.

## 19.03-5S Waste and resource recovery

28/04/2026
VC232

### Objective

To reduce waste and maximise resource recovery to reduce reliance on landfills and minimise environmental, amenity and public health impacts.

### Strategies

Ensure future waste and resource recovery infrastructure needs are identified and planned for to safely and sustainably manage all waste streams and maximise opportunities for resource recovery.

Ensure the long-term viability of waste and resource recovery infrastructure is secured through the use of defined buffer areas that protect against encroachment from incompatible land uses.

Ensure waste and resource recovery facilities are sited, designed, built and operated so as to minimise impacts on surrounding communities and the environment.

Enable waste and resource recovery facilities to be located in proximity to other related facilities and to materials' end-market destinations, to reduce the impacts of waste transportation and improve the economic viability of resource recovery.

Site, design, manage and rehabilitate waste disposal facilities to prevent or minimise contamination of groundwater and surface waters, litter, odour, dust and noise.

Integrate waste and resource recovery infrastructure planning with land use and transport planning.

Encourage technologies that increase recovery and treatment of resources to produce high value, marketable end products.

Encourage development that facilitates sustainable waste and resource recovery, including facilities for Victoria's container deposit scheme.

### Policy documents

Consider as relevant:

- *Victorian Recycling Infrastructure Plan* (Department of Energy, Environment and Climate Action, October 2024)
- *Management and Storage of Combustible Recyclable and Waste Materials - Guideline* (Publication 1667, Environment Protection Authority, October 2018)
- *Best Practice Environmental Management Guideline (Siting, Design, Operation and Rehabilitation of Landfills)* (Environment Protection Authority, 2015)
- *Designing, Constructing and Operating Composting Facilities* (Publication 1588, Environment Protection Authority, June 2015)
- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)
- *Waste Management and Recycling in Multi-unit Developments. Better Practice Guide* (Sustainability Victoria, 2019)
- *Recycling Victoria a New Economy* (Department of Environment, Land, Water and Planning, February 2020*)*

# 30 ZONES

19/01/2006
VC37

This section sets out the zones which apply in this scheme.

## 31 [NO CONTENT]

31/07/2018
VC148

# 32 RESIDENTIAL ZONES

19/01/2006
VC37

## 32.03 LOW DENSITY RESIDENTIAL ZONE

31/07/2018
VC148

Shown on the planning scheme map as **LDRZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for low-density residential development on lots which, in the absence of reticulated sewerage, can treat and retain all wastewater.

## 32.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot.<br>Must meet the requirements of Clause 32.03-2. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Must meet the requirements of Clause 32.03-2.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling and Small second dwelling)** | |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry and Racing dog husbandry)** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience restaurant** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience shop** | |
| **Domestic animal boarding** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Dwelling (other than Bed and breakfast) – if the Section 1 condition is not met** | Must result in no more than two dwellings on the lot.<br>Must meet the requirements of Clause 32.03-2. |
| **Food and drink premises (other than Convenience restaurant)** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus and Nightclub)** | |
| **Plant nursery** | |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either: |

| Use | Condition |
|---|---|
| | ▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Amusement parlour** |
| **Animal production (other than Grazing animal production)** |
| **Cinema based entertainment facility** |
| **Extractive industry** |
| **Industry (other than Automated collection point and Car wash)** |
| **Motor racing track** |
| **Nightclub** |
| **Office (other than Medical centre)** |
| **Retail premises (other than Convenience shop, Food and drink premises, Market and Plant nursery)** |
| **Saleyard** |
| **Small second dwelling - if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 32.03-2 Use for one or two dwellings, or a small second dwelling

14/12/2023
VC253

A lot used for one or two dwellings or a small second dwelling must meet the following requirements:

- Each dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements in the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.

- Each dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply, with appropriate storage capacity.
- Each dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy supply.

## 32.03-3 Subdivision

14/12/2023
VC253

### Permit requirement

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. Any area specified must be at least:

- 0.4 hectare for each lot where reticulated sewerage is not connected. If no area is specified each lot must be at least 0.4 hectare.
- 0.2 hectare for each lot with connected reticulated sewerage. If no area is specified each lot must be at least 0.2 hectare.

A permit may be granted to create lots smaller than 0.4 hectare if the subdivision:

- Excises land which is required for a road or a utility installation.
- Provides for the re-subdivision of existing lots and the number of lots is not increased.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>- The area of either lot is reduced by less than 15 percent.<br>- The general direction of the common boundary does not change. | Clause 59.01 |

## 32.03-4 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of clause 32.03-1.
- An outbuilding which has dimensions greater than those specified in a schedule to this zone.

This does not apply to structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 59.04 |

### Transitional provisions

Clauses 32.03-4, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.03-5 Application requirements

01/07/2021
VC203

### Subdivision

An application must be accompanied by a site analysis, documenting the site in terms of land form, vegetation coverage and the relationship with surrounding land, and a report explaining how the proposed subdivision has responded to the site analysis. The report must:

- In the absence of reticulated sewerage, include a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- Show for each lot:
  - A building envelope and driveway to the envelope.
  - Existing vegetation.
  - In the absence of reticulated sewerage, an effluent disposal area.
- Show how the proposed subdivision relates to the existing or likely use and development of adjoining and nearby land.
- If a staged subdivision, show how the balance of the land may be subdivided.

## 32.03-6 Decision guidelines

01/01/2024
VC250

### General

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.

### Subdivision

- The protection and enhancement of the natural environment and character of the area including the retention of vegetation and faunal habitat and the need to plant vegetation along waterways, gullies, ridgelines and property boundaries.
- The availability and provision of utility services, including sewerage, water, drainage, electricity and telecommunications.
- In the absence of reticulated sewerage:
  - The capability and suitability of the lot to treat and retain all wastewater as determined by a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed, or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
  - The benefits of restricting the size of lots to generally no more than 2 hectares to enable lots to be efficiently maintained without the need for agricultural techniques and equipment.
- The relevant standards of Clauses 56.07-1 to 56.07-4.

## 32.03-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3.

10/06/2021
C254card

# SCHEDULE 1 TO CLAUSE 32.03 LOW DENSITY RESIDENTIAL ZONE

Shown on the planning scheme map as **LDRZ1.**

## 1.0 Subdivision requirements

10/06/2021
C254card

| | Land | Area (hectares) |
|---|---|---|
| Minimum subdivision area (hectares) | L1 PS5006930, 280 Westernport Road and LA PS500693C, Westernport Road, Lang Lang. 42, 44 and 46 Beaconsfield-Emerald Road, Upper Beaconsfield 31 and 40 Blackwood Lane and 49, 49a and 75 Red Road, Gembrook | 2 ha |
| | Land within the area defined by Snell Road, Wheeler Road, Fogarty Road and Mortimer Road in Maryknoll, and Lots 1 to 6 (inclusive) PS436260. 24, 26, 28, 30, 32, 34 and 36 Doran Road, and 2, 4, 6, 8, and 10 Morris Way, Bunyip. | 0.8 ha |
| | 24 Blackwood Lane, Gembrook | 4 ha |

## 2.0 Outbuilding permit requirements

10/06/2021
C254card

| Dimensions above which a permit is required to construct an outbuilding (square metres) |
|---|
| None specified |

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 32.03 LOW DENSITY RESIDENTIAL ZONE

Shown on the planning scheme map as **LDRZ2.**

### 1.0 Subdivision requirements

10/06/2021
C254card

| | Land | Area (hectares) |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 0.4 ha |

### 2.0 Outbuilding permit requirements

10/06/2021
C254card

| Dimensions above which a permit is required to construct an outbuilding (square metres) |
|---|
| None specified |

10/06/2021
C254card

## SCHEDULE 3 TO CLAUSE 32.03 LOW DENSITY RESIDENTIAL ZONE

Shown on the planning scheme map as **LDRZ3.**

### 1.0 Subdivision requirements

10/06/2021
C254card

| | Land | Area (hectares) |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 0.2 ha |

### 2.0 Outbuilding permit requirements

10/06/2021
C254card

| Dimensions above which a permit is required to construct an outbuilding (square metres) |
|---|
| None specified |

# 32.04 MIXED USE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **MUZ** with a number (if shown).

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for a range of residential, commercial, industrial and other uses which complement the mixed-use function of the locality.

To provide for housing at higher densities.

To encourage development that responds to the existing or preferred neighbourhood character of the area.

To facilitate the use, development and redevelopment of land in accordance with the objectives specified in a schedule to this zone.

## 32.04-1 Objectives

15/07/2013
VC100

A schedule to this zone may contain objectives to be achieved for the area.

## 32.04-2 Table of uses

14/01/2025
VC237

### Section 1 – Permit not required

| Use | Condition |
|---|---|
| **Art gallery** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | |
| **Food and drink premises** | The leasable floor area must not exceed 150 square metres. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area must not exceed 250 square metres. |
| **Museum** | |
| **Office (other than Medical centre)** | The leasable floor area must not exceed 250 square metres. |

| Use | Condition |
|---|---|
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |
| **Shop (other than Adult sex product shop)** | The leasable floor area must not exceed 150 square metres. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry and Racing dog husbandry)** | |
| **Container deposit scheme centre** | |
| **Domestic animal boarding** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Grazing animal production** | |
| **Industry (other than Materials recycling and Transfer station)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Leisure and recreation (other than Informal outdoor recreation)** | |
| **Place of assembly (other than Art gallery, Carnival, Circus, Museum and Place of worship)** | |
| **Retail premises (other than Food and drink premises and Shop)** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | Must not be a purpose listed in the table to Clause 53.10. |

| Use | Condition |
|---|---|
| **Warehouse** | Must not be a purpose listed in the table to Clause 53.10. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Adult sex product shop** |
| **Animal production (other than Grazing animal production)** |
| **Extractive industry** |
| **Materials recycling** |
| **Small second dwelling – if the Section 1 condition is not met** |
| **Transfer station (other than Automated collection point and Container deposit scheme centre)** |

## 32.04-3 Use for industry, service station and warehouse

31/07/2018
VC148

### Amenity of the neighbourhood

The use of land for an industry, service station or warehouse must not adversely affect the amenity of the neighbourhood, including through:

- The transport of materials or goods to or from the land.
- The appearance of any stored materials or goods.
- Traffic generated by the use.
- Emissions from the land.

## 32.04-4 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except clause 56.03-5. |

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 16 – 59 lots | All except clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except clauses 56.02-1, 56.03-1 to 56.03-4, 56.03-5 (unless the land is in the Neighbourhood Character Overlay), 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot. | Clause 59.11 |

| Class of application | Provision |
|---|---|
| ▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993*. | |

## 32.04-5 Construction and extension of one dwelling on a lot

24/09/2026
VC315

### Permit requirement

A permit is required to construct or extend one dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage.<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems. | Clause 54 |

| Class of application | Provision |
|---|---|
| If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

### Transitional provisions

Clauses 32.04-5, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.04-6 Construction and extension of a small second dwelling on a lot

15/10/2026
VC306

### Permit requirement

A permit is required to construct or extend a small second dwelling on a lot less than 300 square metres.

A development must meet the requirements of Clause 54.

VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback<br>▪ clause 54.02-2 Building height<br>▪ clause 54.02-3 Side and rear setbacks<br>▪ clause 54.02-4 Walls on boundaries<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy<br>▪ clause 54.02-8 Building setback for small second dwellings<br>▪ clause 54.04-1 Daylight to existing windows<br>▪ clause 54.04-2 Existing north-facing windows<br>▪ clause 54.04-3 Overshadowing secluded open space<br>▪ clause 54.04-4 Overlooking<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems | Clause 54 |

| Class of application | Provision |
|---|---|
| If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

### Transitional provisions

Clauses 32.04-6, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.04-7 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

22/10/2026
VC319

### Permit requirement

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

A development of four to six storeys, excluding a basement, must meet the requirements of clause 57.

An apartment development of seven storeys or more, excluding a basement, must meet the requirements of clause 58.

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.04-7, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 55 and 57 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a dwelling if there is at least one dwelling existing on the lot, construct two or more dwellings on a lot, extend a dwelling if there are two or more dwellings on the lot, if:<br>▪ The combined total number of new and existing dwellings does not exceed four.<br>▪ The development meets the following standards of clause 55:<br>– clause 55.02-1 Street setback<br>– clause 55.02-2 Building height<br>– clause 55.02-3 Side and rear setbacks<br>– clause 55.02-4 Walls on boundaries<br>– clause 55.02-5 Site coverage<br>– clause 55.02-6 Access<br>– clause 55.02-7 Tree canopy<br>– clause 55.02-8 Front fences | Clause 55 |

| Class of application | Provision |
|---|---|
| – clause 55.04-1 Daylight to existing windows<br>– clause 55.04-2 Existing north-facing windows<br>– clause 55.04-3 Overshadowing secluded open space<br>– clause 55.04-4 Overlooking<br>– clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

## 32.04-8 Requirements of clause 54, clause 55 and clause 57

16/04/2026
VC300

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of clause 55 of this scheme.
- Standards E2-1, E2-4 and E2-7 of clause 57 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of clause 54, clause 55 or clause 57 applies.

## 32.04-9 Residential aged care facility

14/12/2023
VC253

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.04-10 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of Clause 32.04-2.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>- The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or | Clause 59.04 |

| Class of application | Provision |
|---|---|
| ▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

### Transitional provisions

Clauses 32.04-10, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.04-11 Buildings on lots that abut another residential zone

02/04/2025
VC276

Any buildings or works constructed on a lot that abuts land which is in a General Residential Zone, Neighbourhood Residential Zone, Residential Growth Zone, or Township Zone must meet the requirements of Clauses 55.02-3, 55.02-4, 55.04-1, 55.04-3, 55.04-4 and 55.05-2 along that boundary.

This does not apply to a building or works for a residential aged care facility.

## 32.04-12 Maximum building height requirement

20/10/2026
VC317

A building must not be constructed that exceeds the maximum building height specified in a schedule to this zone.

A building may exceed the maximum building height specified in a schedule to this zone if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height of the pre-existing building.
- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.

- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.
- It is a residential aged care facility and the maximum building height in the schedule to the zone is less than 16 metres.

An extension to an existing building may exceed the maximum building height specified in a schedule to this zone if it does not exceed the building height of the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

The maximum building height requirement in this zone or a schedule to this zone applies whether or not a planning permit is required for the construction of a building.

#### Building height if land is subject to flooding

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay, Flood Management Overlay, is land liable to flooding, or is in a flood-prone area, the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.04-13 Application requirements

14/01/2025
VC237

#### General

Any application requirements specified in a schedule to this zone.

#### Use for industry and warehouse

Unless the circumstances do not require, an application to use land for an industry or warehouse must be accompanied by the following information:

- The purpose of the use and the types of activities to be carried out.
- The type and quantity of materials and goods to be stored, processed or produced.
- Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
- Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
- How land not required for immediate use is to be maintained.
- The likely effects, if any, on the neighbourhood, including noise levels, traffic, air-borne emissions, emissions to land and water, light spill, glare, solar access and hours of operation (including the hours of delivery and dispatch of materials and goods).

#### Buildings and works associated with a Section 2 use

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A site analysis and descriptive statement explaining how the proposal responds to the site and its context.
- Plans drawn to scale and dimensioned which show:
  - The layout of proposed buildings and works.
  - An elevation of the building design and height.

- Setbacks to property boundaries.
- All proposed access and pedestrian areas.
- All proposed driveway, car parking and loading areas.
- Existing vegetation and proposed landscape areas.
- The location of easements and services.

## 32.04-14 Exemption from notice and review

15/10/2026
VC306

### Subdivision

An application for subdivision is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Construction and extension of one dwelling on a lot

An application under clause 32.04-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

### Construction and extension of a small second dwelling on a lot

An application under clause 32.04-6 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.04 and 54.05-2 are met.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

An application under clause 32.04-7 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

An application under clause 32.04-7 for a development of four to six storeys, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 57.02 and 57.04 are met.

### Other applications

A schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 32.04-15 Decision guidelines

16/04/2026
VC300

### General

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The objectives set out in a schedule to this zone.
- Any other decision guidelines specified in a schedule to this zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a Housing Choice and Transport Zone, Mixed Use Zone or Residential Growth Zone.

**Use for industry, service station and warehouse**

- The effect that existing uses on adjoining or nearby land may have on the proposed use.
- The design of buildings, including provision for solar access.
- The availability and provision of utility services.
- The effect of traffic to be generated by the use.
- The interim use of those parts of the land not required for the proposed use.
- Whether the use is compatible with adjoining and nearby land uses.
- For non-residential uses, the proposed hours of operation, noise and any other likely off-site amenity impacts.

**Subdivision**

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of clause 56.

**Construction and extension of one dwelling on a lot and a small second dwelling**

- The applicable objectives, standards and decision guidelines of clause 54.

**Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings**

- For two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.

## 32.04-16 Signs

14/12/2023
VC253

Sign requirements are at Clause 52.05. This zone is in Category 3 unless a schedule to this zone specifies a different category.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 32.04 MIXED USE ZONE

Shown on the planning scheme map as **MUZ**.

**CARDINIA MIXED USE AREAS**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Clause 54, Clause 55 and Clause 57 requirements

17/04/2026
VC308

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| | E2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| | E2-4 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fences** | A2-7 and B2-8 | None specified |
| | E2-7 | None specified |

## 3.0 Maximum building height requirement

10/06/2021
C254card

None specified.

## 4.0 Exemption from notice and review

10/06/2021
C254card

None specified.

## 5.0 Application requirements

10/06/2021
C254card

None specified.

## 6.0 Decision guidelines

10/06/2021
C254card

None specified.

## 7.0 Signs

10/06/2021
C254card

None specified.

# 32.07 RESIDENTIAL GROWTH ZONE

31/07/2018
VC148

Shown on the planning scheme map as **RGZ** with a number (if shown).

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide housing at increased densities in buildings up to and including four storey buildings.

To encourage a diversity of housing types in locations offering good access to services and transport including activity centres and town centres.

To encourage a scale of development that provides a transition between areas of more intensive use and development and other residential areas.

To ensure residential development achieves design objectives specified in a schedule to this zone.

To allow educational, recreational, religious, community and a limited range of other non-residential uses to serve local community needs in appropriate locations.

## 32.07-1 Design objectives

27/03/2017
VC110

A schedule to this zone must contain the design objectives to be achieved for the area.

## 32.07-2 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |

| Use | Condition |
|---|---|
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Animal training, Apiculture, Domestic animal husbandry, Horse husbandry and Racing dog husbandry)** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience restaurant** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience shop** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Food and drink premises (other than Convenience restaurant and Take away food premises)** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |

| Use | Condition |
|---|---|
| **Office (other than Medical centre)** | The land must be located within 100 metres of a commercial zone.<br>The land must have the same street frontage as the land in the commercial zone.<br>The leasable floor area must not exceed 250 square metres. |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus, Nightclub and Place of worship)** | |
| **Plant nursery** | |
| **Retail premises (other than Food and drink premises, Market, Plant nursery and Shop)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Shop (other than Adult sex product shop, Bottle shop and Convenience shop)** | The land must be located within 100 metres of a commercial zone or Mixed Use Zone.<br>The land must have the same street frontage as the land in the commercial zone or Mixed Use Zone. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Take away food premises** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Adult sex product shop** |

| Use |
|---|
| **Amusement parlour** |
| **Animal production (other than Grazing animal production)** |
| **Animal training** |
| **Bottle shop** |
| **Cinema based entertainment facility** |
| **Domestic animal boarding** |
| **Extractive industry** |
| **Horse husbandry** |
| **Industry (other than Automated collection point and Car wash)** |
| **Motor racing track** |
| **Nightclub** |
| **Saleyard** |
| **Small second dwelling – if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 32.07-3 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except clause 56.03-5. |
| 16 – 59 lots | All except clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except clauses 56.02-1, 56.03-1 to 56.03-4, 56.03-5 (unless the land is in the Neighbourhood Character Overlay), 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot.<br>▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993.* | Clause 59.11 |

## 32.07-4 Construction and extension of one dwelling on a lot

24/09/2026
VC315

### Permit requirement

A permit is required to construct or extend one dwelling on a lot less than 300 square metres.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |

### Transitional provisions

Clauses 32.07-4, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.07-5 Construction and extension of a small second dwelling on a lot

15/10/2026
VC306

### Permit requirement

A permit is required to construct or extend a small second dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>- clause 54.02-1 Street setback.<br>- clause 54.02-2 Building height.<br>- clause 54.02-3 Side and rear setbacks.<br>- clause 54.02-4 Walls on boundaries.<br>- clause 54.02-5 Site coverage.<br>- clause 54.02-6 Tree canopy.<br>- clause 54.02-8 Building setback for small second dwellings.<br>- clause 54.04-1 Daylight to existing windows.<br>- clause 54.04-2 Existing north-facing windows.<br>- clause 54.04-3 Overshadowing secluded open space.<br>- clause 54.04-4 Overlooking.<br>- clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |

### Transitional provisions

Clauses 32.07-5, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.07-6 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

22/10/2026
VC319

### Permit requirement

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

A development of four to six storeys, excluding a basement, must meet the requirements of clause 57.

An apartment development of seven storeys or more, excluding a basement, must meet the requirements of clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a dwelling if there is at least one dwelling existing on the lot, construct two or more dwellings on a lot, extend a dwelling if there are two or more dwellings on the lot, if:<br>▪ The combined total number of new and existing dwellings does not exceed four.<br>▪ The development meets the following standards of clause 55:<br>– clause 55.02-1 Street setback<br>– clause 55.02-2 Building height<br>– clause 55.02-3 Side and rear setbacks<br>– clause 55.02-4 Walls on boundaries<br>– clause 55.02-5 Site coverage<br>– clause 55.02-6 Access<br>– clause 55.02-7 Tree canopy<br>– clause 55.02-8 Front fences | Clause 55 |

| Class of application | Provision |
|---|---|
| – clause 55.04-1 Daylight to existing windows<br>– clause 55.04-2 Existing north-facing windows<br>– clause 55.04-3 Overshadowing secluded open space<br>– clause 55.04-4 Overlooking<br>– clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.07-6, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 55 and 57 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.07-7 Requirements of clause 54, clause 55 and clause 57

16/04/2026
VC300

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of clause 55 of this scheme.
- Standards E2-1, E2-4 and E2-7 of clause 57 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of clause 54, clause 55 or clause 57 applies.

## 32.07-8 Residential aged care facility

14/12/2023
VC253

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.07-9 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of Clause 32.07-2.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 59.04 |

### Transitional provisions

Clauses 32.07-9, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.07-10 Maximum building height requirement for a dwelling, small second dwelling or residential building

20/10/2026
VC317

A building must not be constructed for use as a dwelling, small second dwelling or a residential building that exceeds the maximum building height specified in a schedule to this zone.

If no maximum building height is specified in a schedule to this zone, the building height should not exceed 13.5 metres.

This building height requirement replaces the maximum building height specified in clauses 54.02-2 and 55.02-2.

A building may exceed the maximum building height specified in a schedule to this zone if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height of the pre-existing building.
- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.

An extension to an existing building may exceed the maximum building height specified in a schedule to this zone if it does not exceed the building height of the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

The maximum building height requirement in this zone or a schedule to this zone applies whether or not a planning permit is required for the construction of a building.

### Building height if land is subject to flooding

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay, Flood Management Overlay, is land liable to flooding, or is in a flood-prone area, the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.07-11 Buildings on lots that abut another residential zone

08/09/2025
VC282

Any buildings or works constructed on a lot that abuts land which is in a General Residential Zone, Neighbourhood Residential Zone, or Township Zone must meet the requirements of Clauses 55.02-3, 55.02-4, 55.04-1, 55.04-3, 55.04-4 and 55.05-2 along that boundary.

## 32.07-12 Application requirements

16/04/2026
VC300

An application must be accompanied by the following information, as appropriate:

- For a development of one dwelling on a lot or a small second dwelling on a lot, the site description and design response as required in clause 54.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the site description and design response as required in clause 55.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the site description and design response as required in clause 57.
- For an apartment development of seven storeys or more, excluding a basement, an urban context report and design response as required in clause 58.
- For an application for subdivision, a site and context description and design response as required in clause 56.
- Plans drawn to scale and dimensioned which show:
  - Site shape, size, dimensions and orientation.
  - The siting and use of existing and proposed buildings.
  - Adjacent buildings and uses.
  - The building form and scale.
  - Setbacks to property boundaries.
- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- Any other application requirements specified in a schedule to this zone.

If in the opinion of the responsible authority an application requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 32.07-13 Exemption from notice and review

15/10/2026
VC306

### Subdivision

An application to subdivide land is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Construction and extension of one dwelling on a lot

An application under clause 32.07-4 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

### Construction and extension of a small second dwelling on a lot

An application under clause 32.07-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.04 and 54.05-2 are met.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

An application under clause 32.07-6 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

An application under clause 32.07-6 for a development of four to six storeys, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 57.02 and 57.04 are met.

## 32.07-14 Decision guidelines

16/04/2026
VC300

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The purpose of this zone.
- The objectives set out in a schedule to this zone.
- Any other decision guidelines specified in a schedule to this zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a Housing Choice and Transport Zone, Mixed Use Zone or Residential Growth Zone.

### Subdivision

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of clause 56.

### Dwellings, small second dwellings and residential buildings

- For the construction of one dwelling on a lot, whether the development is an under-utilisation of the lot.
- For the construction and extension of one dwelling on a lot and a small second dwelling, the applicable objectives, standards and decision guidelines of clause 54.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For the construction and extension of an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.

### Non-residential use and development

- Whether the use or development is compatible with residential use.
- Whether the use generally serves local community needs.
- The scale and intensity of the use and development.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.
- The provision of car and bicycle parking and associated accessways.
- Any proposed loading and refuse collection facilities.
- The safety, efficiency and amenity effects of traffic to be generated by the proposal.

## 32.07-15 Signs

14/12/2023
VC253

Sign requirements are at Clause 52.05. This zone is in Category 3.

06/03/2020
C232card

## SCHEDULE 1 TO CLAUSE 32.07 RESIDENTIAL GROWTH ZONE

Shown on the planning scheme map as **RGZ1**.

### 1.0 Design objectives

06/03/2020
C232card

None specified.

### 2.0 Requirements of Clause 54, Clause 55 and Clause 57

17/04/2026
VC308

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| | E2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| | E2-4 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fences** | A2-7 and B2-8 | None specified |
| | E2-7 | None specified |

### 3.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

### 4.0 Application requirements

06/03/2020
C232card

None specified.

### 5.0 Decision guidelines

06/03/2020
C232card

None specified.

# 32.08 GENERAL RESIDENTIAL ZONE

31/03/2025
VC267

Shown on the planning scheme map as **GRZ**, **R1Z**, **R2Z** or **R3Z** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage development that is responsive to the neighbourhood character of the area.

To encourage a diversity of housing types and housing growth particularly in locations offering good access to services and transport.

To allow educational, recreational, religious, community and a limited range of other non-residential uses to serve local community needs in appropriate locations.

## 32.08-1 Neighbourhood character objectives

27/03/2017
VC110

A schedule to this zone may contain neighbourhood character objectives to be achieved for the area.

## 32.08-2 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres.<br>Must not require a permit under Clause 52.06-3.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |

| Use | Condition |
|---|---|
| | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Animal training, Apiculture, Domestic animal husbandry, Horse husbandry and Racing dog husbandry)** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience restaurant** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience shop** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Food and drink premises (other than Convenience restaurant and Take away food premises)** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |

| Use | Condition |
|---|---|
| **Office (other than Medical centre)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus, Nightclub and Place of worship)** | |
| **Plant nursery** | |
| **Retail premises (other than Convenience shop, Food and drink premises, Market and Plant nursery)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Take away food premises** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Amusement parlour** |
| **Animal production (other than Grazing animal production)** |
| **Animal training** |
| **Cinema based entertainment facility** |
| **Domestic animal boarding** |
| **Extractive industry** |

| Use |
|---|
| **Horse husbandry** |
| **Industry (other than Automated collection point and Car wash)** |
| **Motor racing track** |
| **Nightclub** |
| **Saleyard** |
| **Small second dwelling – if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 32.08-3 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Minimum garden area requirement

An application to subdivide land that would create a vacant lot less than 400 square metres capable of development for a dwelling or residential building, must ensure that each vacant lot created less than 400 square metres contains at least 25 percent as garden area. This does not apply to a lot created by an application to subdivide land where that lot is created in accordance with:

- An approved precinct structure plan or an equivalent strategic plan;
- An incorporated plan or approved development plan; or
- A permit for development.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except clause 56.03-5. |
| 16 – 59 lots | All except clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except clauses 56.02-1, 56.03-1 to 56.03-4, 56.03-5 (unless the land is in the Neighbourhood Character Overlay), 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot.<br>▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993*. | Clause 59.11 |

## 32.08-4 Construction or extension of a dwelling, small second dwelling or residential building

14/12/2023
VC253

### Minimum garden area requirement

An application to construct or extend a dwelling, small second dwelling or residential building on a lot must provide a minimum garden area as set out in the following table:

| Lot size | Minimum percentage of a lot set aside as garden area |
|---|---|
| 400 - 500 sqm | 25% |
| Above 500 - 650 sqm | 30% |
| Above 650 sqm | 35% |

This does not apply to:

- An application to construct or extend a dwelling, small second dwelling or residential building if specified in a schedule to this zone as exempt from the minimum garden area requirement;
- An application to construct or extend a dwelling, small second dwelling or residential building on a lot if:
  - The lot is designated as a medium density housing site in an approved precinct structure plan or an approved equivalent strategic plan;
  - The lot is designated as a medium density housing site in an incorporated plan or approved development plan; or
- An application to alter or extend an existing building that did not comply with the minimum garden area requirement of Clause 32.08-4 on the approval date of Amendment VC110.

## 32.08-5 Construction and extension of one dwelling on a lot

24/09/2026
VC315

### Permit requirement

A permit is required to construct or extend one dwelling on a lot less than 300 square metres.

A permit is required to construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres and the fence exceeds the maximum height specified in clause 54.02-7.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>- clause 54.02-1 Street setback.<br>- clause 54.02-2 Building height. | Clause 54 |

| Class of application | Provision |
|---|---|
| ▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres. | Clause 59.03 |

### Transitional provisions

Clauses 32.08-5, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.08-6 Construction and extension of a small second dwelling on a lot

15/10/2026
VC306

### Permit requirement

A permit is required to construct or extend a small second dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54: | Clause 54 |

| Class of application | Provision |
|---|---|
| ▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage.<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-8 Building setback for small second dwellings.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

**Transitional provisions**

Clauses 32.08-6, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.08-7 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

22/10/2026
VC319

**Permit requirement**

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

An apartment development of seven storeys or more, excluding a basement, must meet the requirements of clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a dwelling if there is at least one dwelling existing on the lot, construct two or more dwellings on a lot, extend a dwelling if there are two or more dwellings on the lot, if:<br>▪ The combined total number of new and existing dwellings does not exceed four.<br>▪ The development meets the following standards of clause 55:<br>– clause 55.02-1 Street setback<br>– clause 55.02-2 Building height<br>– clause 55.02-3 Side and rear setbacks<br>– clause 55.02-4 Walls on boundaries<br>– clause 55.02-5 Site coverage<br>– clause 55.02-6 Access<br>– clause 55.02-7 Tree canopy<br>– clause 55.02-8 Front fences<br>– clause 55.04-1 Daylight to existing windows<br>– clause 55.04-2 Existing north-facing windows<br>– clause 55.04-3 Overshadowing secluded open space<br>– clause 55.04-4 Overlooking<br>– clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | Clause 55 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.08-7, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.08-8 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of Clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of Clause 55 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of Clause 54 or Clause 55 applies.

## 32.08-9 Residential aged care facility

14/12/2023
VC253

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.08-10 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of Clause 32.08-2.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 59.04 |

### Transitional provisions

Clauses 32.08-10, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.08-11 Maximum building height requirement for a dwelling, small second dwelling or residential building

20/10/2026
VC317

A building must not be constructed for use as a dwelling, small second dwelling or a residential building that:

- exceeds the maximum building height specified in a schedule to this zone; or
- contains more than the maximum number of storeys specified in a schedule to this zone.

If no maximum building height or maximum number of storeys is specified in a schedule to this zone:

- the building height must not exceed 11 metres; and
- the building must contain no more than 3 storeys at any point.

A building may exceed the applicable maximum building height or contain more than the applicable maximum number of storeys if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height or contain a greater number of storeys than the pre-existing building.
- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height or contain a greater number of storeys than the lower of the existing buildings on the abutting allotments.

- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height or contain a greater number of storeys than the lower of the existing buildings on the abutting allotments.
- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.

An extension to an existing building may exceed the applicable maximum building height or contain more than the applicable maximum number of storeys if it does not exceed the building height of the existing building or contain a greater number of storeys than the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

A basement is not a storey for the purposes of calculating the number of storeys contained in a building.

The maximum building height and maximum number of storeys requirements in this zone or a schedule to this zone apply whether or not a planning permit is required for the construction of a building.

#### Building height if land is subject to flooding

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay, Flood Management Overlay, is land liable to flooding, or is in a flood-prone area, the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.08-12 Application requirements

16/04/2026
VC300

An application must be accompanied by the following information, as appropriate:

- For a development of one dwelling on a lot or a small second dwelling on a lot, the site description and design response as required in clause 54.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the site description and design response as required in clause 55.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the site description and design response as required in clause 57.
- For an apartment development of seven storeys or more, excluding a basement, an urban context report and design response as required in clause 58.
- For an application for subdivision, a site and context description and design response as required in clause 56.
- Plans drawn to scale and dimensioned which show:
  - Site shape, size, dimensions and orientation.
  - The siting and use of existing and proposed buildings.
  - Adjacent buildings and uses.
  - The building form and scale.
  - Setbacks to property boundaries.

- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- Any other application requirements specified in a schedule to this zone.

If in the opinion of the responsible authority an application requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 32.08-13 Exemption from notice and review

15/10/2026
VC306

### Subdivision

An application to subdivide land into lots each containing an existing dwelling or car parking space is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Construction and extension of one dwelling on a lot

An application under clause 32.08-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

### Construction and extension of a small second dwelling on a lot

An application under clause 32.08-6 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.04 and 54.05-2 are met.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

An application under clause 32.08-7 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

## 32.08-14 Decision guidelines

16/04/2026
VC300

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The purpose of this zone.
- The objectives set out in a schedule to this zone.
- Any other decision guidelines specified in a schedule to this zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.

### Subdivision

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of clause 56.

### Dwellings, small second dwellings and residential buildings

- For the construction and extension of one dwelling on a lot and a small second dwelling, the applicable objectives, standards and decision guidelines of clause 54.

- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For the construction and extension of an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.

**Non-residential use and development**

- Whether the use or development is compatible with residential use.
- Whether the use generally serves local community needs.
- The scale and intensity of the use and development.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.
- The provision of car and bicycle parking and associated accessways.
- Any proposed loading and refuse collection facilities.
- The safety, efficiency and amenity effects of traffic to be generated by the proposal.

## 32.08-15 Signs

14/12/2023
VC253

Sign requirements are at Clause 52.05. This zone is in Category 3.

## 32.08-16 Transitional provisions

14/12/2023
VC253

The minimum garden area requirements of Clause 32.08-4 and the maximum building height and number of storeys requirements of Clause 32.08-9 introduced by Amendment VC110 do not apply to:

- A planning permit application for the construction or extension of a dwelling or residential building lodged before the approval date of Amendment VC110.
- Where a planning permit is not required for the construction or extension of a dwelling or residential building:
  - A building permit issued for the construction or extension of a dwelling or residential building before the approval date of Amendment VC110.
  - A building surveyor has been appointed to issue a building permit for the construction or extension of a dwelling or residential building before the approval date of Amendment VC110. A building permit must be issued within 12 months of the approval date of Amendment VC110.
  - A building surveyor is satisfied, and certifies in writing, that substantial progress was made on the design of the construction or extension of a dwelling or residential building before the approval date of Amendment VC110. A building permit must be issued within 12 months of the approval date of Amendment VC110.

The minimum garden area requirement of Clause 32.08-3 introduced by Amendment VC110 does not apply to a planning permit application to subdivide land for a dwelling or a residential building lodged before the approval date of Amendment VC110.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 32.08 GENERAL RESIDENTIAL ZONE

Shown on the planning scheme map as **GRZ1**.

**GENERAL RESIDENTIAL AREAS**

### 1.0 Neighbourhood character objectives

10/06/2021
C254card

None specified.

### 2.0 Construction or extension of a dwelling, small second dwelling or residential building - minimum garden area requirement

26/04/2024
VC252

| Is the construction or extension of a dwelling, small second dwelling or residential building exempt from the minimum garden area requirement? |
|---|
| No |

### 3.0 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fence height** | A2-7 and B2-8 | None specified |

### 4.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

### 5.0 Application requirements

26/04/2024
VC252

None specified.

### 6.0 Decision guidelines

26/04/2024
VC252

None specified.

# 32.09 NEIGHBOURHOOD RESIDENTIAL ZONE

31/03/2025
VC267

Shown on the planning scheme map as **NRZ** with a number (if shown).

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To recognise areas of predominantly single and double storey residential development.

To manage and ensure that development is responsive to the identified neighbourhood character, heritage, environmental or landscape characteristics.

To allow educational, recreational, religious, community and a limited range of other non-residential uses to serve local community needs in appropriate locations.

## 32.09-1 Neighbourhood character objectives

27/03/2017
VC110

A schedule to this zone must contain the neighbourhood, heritage, environment or landscape character objectives to be achieved for the area.

## 32.09-2 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres.<br>Must be located in an existing building.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>Must not require a permit under Clause 52.06-3. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |

| Use | Condition |
|---|---|
| | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>Must not require a permit under Clause 52.06-3. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Animal training, Apiculture, Domestic animal husbandry, Horse husbandry and Racing dog husbandry)** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience restaurant** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience shop** | The leasable floor area must not exceed 80 square metres. |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Food and drink premises (other than Convenience restaurant and Take away food premises)** | |
| **Grazing animal production** | |

| Use | Condition |
|---|---|
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |
| **Office (other than Medical centre)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus, Nightclub and Place of worship)** | |
| **Plant nursery** | |
| **Retail premises (other than Convenience shop, Food and drink premises, Market and Plant nursery)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Take away food premises** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Amusement parlour** |
| **Animal production (other than Grazing animal production)** |
| **Animal training** |

| Use |
|---|
| **Cinema based entertainment facility** |
| **Domestic animal boarding** |
| **Extractive industry** |
| **Horse husbandry** |
| **Industry (other than Automated collection point and Car wash)** |
| **Motor racing track** |
| **Nightclub** |
| **Saleyard** |
| **Small second dwelling - if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 32.09-3 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Minimum garden area requirement

An application to subdivide land that would create a vacant lot less than 400 square metres capable of development for a dwelling or residential building, must ensure that each vacant lot created less than 400 square metres contains at least 25 percent as garden area. This does not apply to a lot created by an application to subdivide land where that lot is created in accordance with:

- An approved precinct structure plan or an equivalent strategic plan;
- An incorporated plan or approved development plan; or
- A permit for development.

### Minimum lot size requirement

A schedule to this zone may specify a minimum lot size to subdivide land. Each lot must be at least the area specified for the land, except where an application to subdivide land is made to create lots each containing an existing dwelling or car parking space, where an application for the existing dwelling or car parking space was made or approved before the approval date of the planning scheme amendment that introduced this clause 32.09 into the planning scheme.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except clause 56.03-5. |
| 16 – 59 lots | All except clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except clauses 56.02-1, 56.03-1 to 56.03-4, 56.03-5 (unless the land is in the Neighbourhood Character Overlay), 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot. | Clause 59.11 |

| Class of application | Provision |
|---|---|
| ▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993*. | |

## 32.09-4 Construction or extension of a dwelling, small second dwelling or residential building

14/12/2023
VC253

### Minimum garden area requirement

An application to construct or extend a dwelling, small second dwelling or residential building on a lot must provide a minimum garden area as set out in the following table:

| Lot size | Minimum percentage of a lot set aside as garden area |
|---|---|
| 400 - 500 sqm | 25% |
| Above 500 - 650 sqm | 30% |
| Above 650 sqm | 35% |

This does not apply to:

- An application to construct or extend a dwelling, small second dwelling or residential building on a lot if:
  - The lot is designated as a medium density housing site in an approved precinct structure plan or an approved equivalent strategic plan;
  - The lot is designated as a medium density housing site in an incorporated plan or approved development plan; or
- An application to alter or extend an existing building that did not comply with the minimum garden area requirement of Clause 32.09-4 on the approval date of Amendment VC110.

## 32.09-5 Construction and extension of one dwelling on a lot

24/09/2026
VC315

### Permit requirement

A permit is required to construct or extend one dwelling on a lot less than 300 square metres.

A permit is required to construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres and the fence exceeds the maximum height specified in clause 54.02-7.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres. | Clause 59.03 |

### Transitional provisions

Clauses 32.09-5, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.09-6 Construction and extension of a small second dwelling on a lot

15/10/2026
VC306

### Permit requirement

A permit is required to construct or extend a small second dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage.<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-8 Building setback for small second dwellings.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |

### Transitional provisions

Clauses 32.09-6, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.09-7 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

22/10/2026
VC319

### Permit requirement

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.

- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a dwelling if there is at least one dwelling existing on the lot, construct two or more dwellings on a lot, extend a dwelling if there are two or more dwellings on the lot, if:<br>- The combined total number of new and existing dwellings does not exceed four.<br>- The development meets the following standards of clause 55:<br>  – clause 55.02-1 Street setback<br>  – clause 55.02-2 Building height<br>  – clause 55.02-3 Side and rear setbacks<br>  – clause 55.02-4 Walls on boundaries<br>  – clause 55.02-5 Site coverage<br>  – clause 55.02-6 Access<br>  – clause 55.02-7 Tree canopy<br>  – clause 55.02-8 Front fences<br>  – clause 55.04-1 Daylight to existing windows<br>  – clause 55.04-2 Existing north-facing windows<br>  – clause 55.04-3 Overshadowing secluded open space<br>  – clause 55.04-4 Overlooking<br>  – clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | Clause 55 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC174, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.09-7, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.09-8 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of Clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of Clause 55 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of Clause 54 or Clause 55 applies.

## 32.09-9 Residential aged care facility

15/03/2024
VC256

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.09-10 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of clause 32.09-2.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 59.04 |

### Transitional provisions

Clauses 32.09-10, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.09-11 Maximum building height requirement for a dwelling, small second dwelling or residential building

20/10/2026
VC317

A building must not be constructed for use as a dwelling, small second dwelling or a residential building that:

- exceeds the maximum building height specified in a schedule to this zone; or
- contains more than the maximum number of storeys specified in a schedule to this zone.

If no maximum building height or maximum number of storeys is specified in a schedule to this zone:

- the building height must not exceed 9 metres; and
- the building must contain no more than 2 storeys at any point.

A building may exceed the applicable maximum building height or contain more than the applicable maximum number of storeys if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height or contain a greater number of storeys than the pre-existing building.
- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height or contain a greater number of storeys than the lower of the existing buildings on the abutting allotments.

- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height or contain a greater number of storeys than the lower of the existing buildings on the abutting allotments.
- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.

An extension to an existing building may exceed the applicable maximum building height or contain more than the applicable maximum number of storeys if it does not exceed the building height of the existing building or contain a greater number of storeys than the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

A basement is not a storey for the purposes of calculating the number of storeys contained in a building.

The maximum building height and maximum number of storeys requirements in this zone or a schedule to this zone apply whether or not a planning permit is required for the construction of a building.

#### Building height if land is subject to flooding

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay, Flood Management Overlay, is land liable to flooding, or is in a flood-prone area, the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.09-12 Application requirements

16/04/2026
VC300

An application must be accompanied by the following information, as appropriate:

- For a development of one dwelling on a lot or a small second dwelling on a lot, the site description and design response as required in clause 54.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the site description and design response as required in clause 55.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the site description and design response as required in clause 57.
- For an apartment development of seven storeys or more, excluding a basement, an urban context report and design response as required in clause 58.
- For an application for subdivision, a site and context description and design response as required in clause 56.
- Plans drawn to scale and dimensioned which show:
  - Site shape, size, dimensions and orientation.
  - The siting and use of existing and proposed buildings.
  - Adjacent buildings and uses, including siting and dimensioned setbacks.
  - The building form and scale.
  - Setbacks to property boundaries.

- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- Any other application requirements specified in a schedule to this zone.

If in the opinion of the responsible authority an application requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 32.09-13 Exemption from notice and review

15/10/2026
VC306

### Subdivision

An application to subdivide land into lots each containing an existing dwelling or car parking space is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Construction and extension of one dwelling on a lot

An application under clause 32.09-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

### Construction and extension of a small second dwelling on a lot

An application under clause 32.09-6 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.04 and 54.05-2 are met.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

An application under clause 32.09-7 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

## 32.09-14 Decision guidelines

16/04/2026
VC300

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The purpose of this zone.
- The objectives set out in the schedule to this zone.
- Any other decision guidelines specified in a schedule to this zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.

### Subdivision

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of clause 56.

### Dwellings, small second dwellings and residential buildings

- For the construction and extension of one dwelling on a lot and a small second dwelling, the applicable objectives, standards and decision guidelines of clause 54.

- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For the construction and extension of an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.

**Non-residential use and development**

In the local neighbourhood context:

- Whether the use or development is compatible with residential use.
- Whether the use generally serves local community needs.
- The scale and intensity of the use and development.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.
- The provision of car and bicycle parking and associated accessways.
- Any proposed loading and refuse collection facilities.
- The safety, efficiency and amenity effects of traffic to be generated by the proposal.

## 32.09-15 Signs

14/12/2023
VC253

Sign requirements are at Clause 52.05. This zone is in Category 3.

## 32.09-16 Transitional provisions

14/12/2023
VC253

The minimum garden area requirements of Clause 32.09-4 and the maximum building height and number of storeys requirements of Clause 32.09-9 introduced by Amendment VC110 do not apply to:

- A planning permit application for the construction or extension of a dwelling or residential building lodged before the approval date of Amendment VC110.
- Where a planning permit is not required for the construction or extension of a dwelling or residential building:
  - A building permit issued for the construction or extension of a dwelling or residential building before the approval date of Amendment VC110.
  - A building surveyor has been appointed to issue a building permit for the construction or extension of a dwelling or residential building before the approval date of Amendment VC110. A building permit must be issued within 12 months of the approval date of Amendment VC110.
  - A building surveyor is satisfied, and certifies in writing, that substantial progress was made on the design of the construction or extension of a dwelling or residential building before the approval date of Amendment VC110. A building permit must be issued within 12 months of the approval date of Amendment VC110.

The minimum garden area requirement of Clause 32.09-3 introduced by Amendment VC110 does not apply to a planning permit application to subdivide land for a dwelling or a residential building lodged before the approval date of Amendment VC110.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 32.09 NEIGHBOURHOOD RESIDENTIAL ZONE

Shown on the planning scheme map as **NRZ1**.

### 1.0 Neighbourhood character objectives

10/06/2021
C254card

None specified.

### 2.0 Minimum subdivision area

10/06/2021
C254card

None specified.

### 3.0 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fence height** | A2-7 and B2-8 | None specified |

### 4.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

### 5.0 Application requirements

26/04/2024
VC252

None specified.

### 6.0 Decision guidelines

26/04/2024
VC252

None specified.

18/11/2022
C238card

# SCHEDULE 2 TO CLAUSE 32.09 NEIGHBOURHOOD RESIDENTIAL ZONE

Shown on the planning scheme map as **NRZ2**.

## GLISMANN ROAD DEVELOPMENT PLAN AREA

## 1.0 Neighbourhood character objectives

18/11/2022
C238card

- To create a residential precinct that delivers high quality urban design outcomes through a variety of lot sizes which respond to the existing natural topography and landscape features of the development plan area.
- To protect and maintain the visual prominence of vegetated hilltops and hillsides when viewed from within and outside of the development plan area.
- To encourage a subdivision layout which maximises the retention of existing vegetation, minimises the overall disturbance to the terrain and ensures that buildings and structures are sited so that they do not visually dominate the landscape.
- To guide an integrated and coordinated design approach to an area with fragmented land ownerships.

## 2.0 Minimum subdivision area

18/11/2022
C238card

None specified.

## 3.0 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fence height** | A2-7 and B2-8 | None specified |

## 4.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

## 5.0 Application requirements

26/04/2024
VC252

None specified.

## 6.0 Decision guidelines

26/04/2024
VC252

None specified.

# 33 INDUSTRIAL ZONES

19/01/2006
VC37

# 33.01 INDUSTRIAL 1 ZONE

31/07/2018
VC148

Shown on the planning scheme map as **IN1Z**.

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for manufacturing industry, the storage and distribution of goods and associated uses in a manner which does not affect the safety and amenity of local communities.

## 33.01-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Convenience shop** | |
| **Crop raising** | |
| **Grazing animal production** | |
| **Home based business** | |
| **Industry (other than Materials recycling and Transfer station)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016.<br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>▪ Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |

| Use | Condition |
|---|---|
| **Informal outdoor recreation** | |
| **Mail centre** | |
| **Railway** | |
| **Service station** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution.<br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |
| **Shipping container storage** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 100 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>Shipping containers must be setback at least 9 metres from a road in a Transport Zone 2 or a Transport Zone 3.<br>The height of shipping container stacks must not exceed 6 containers or 16 metres, whichever is the lesser.<br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>▪ Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |

| Use | Condition |
|---|---|
| **Take away food premises** | |
| **Tramway** | |
| **Warehouse (other than Mail centre and Shipping container storage)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under Dangerous Goods (HCDG) Regulations 2016.<br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>▪ Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone or land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Apiculture, Crop raising, Grazing animal production, Intensive animal production, Pig farm and Poultry farm)** | |
| **Caretaker's house** | |
| **Container deposit scheme centre** | |

| Use | Condition |
|---|---|
| **Education centre** | Must not be a primary or secondary school. |
| **Leisure and recreation (other than Informal outdoor recreation)** | |
| **Materials recycling** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone or land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |
| **Office** | The leasable floor area must not exceed the amount specified in the schedule to this zone. |
| **Place of assembly (other than Carnival, Cinema based entertainment facility and Circus)** | |
| **Restricted retail premises** | |
| **Retail premises (other than Shop and Take away food premises)** | |
| **Sex services premises** | |
| **Transfer station (other than Automated collection point and Container deposit scheme centre)** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone or land used for a hospital, an education centre a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |
| **Utility installation (other than Minor utility installation and Telecommunications facility).** | Any gas holder, or sewerage or refuse treatment or disposal works, must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Caretaker's house)** |
| **Cinema based entertainment facility** |
| **Hospital** |
| **Intensive animal production** |

| Use |
| --- |
| **Pig farm** |
| **Poultry farm** |
| **Shop (other than Adult sex product shop, Convenience shop, Restricted retail premises and Sex services premises)** |

## 33.01-2 Use of land

14/01/2025
VC237

### Application requirements

An application to use land for an industry or warehouse must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of processes to be utilised.
- The type and quantity of goods to be stored, processed or produced.
- How land not required for immediate use is to be maintained.
- Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
- Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
- The likely effects, if any, on the neighbourhood, including:
  - Noise levels.
  - Air-borne emissions.
  - Emissions to land or water.
  - Traffic, including the hours of delivery and despatch.
  - Light spill or glare.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect that the use may have on nearby existing or proposed residential areas or other uses which are sensitive to industrial off-site effects, having regard to any comments or directions of the referral authorities.
- The effect that nearby industries may have on the proposed use.
- The drainage of the land.
- The availability of and connection to services.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.

## 33.01-3 Subdivision

31/07/2018
VC148

### Permit requirement

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

### Exemption from notice and review

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to land within 30 metres of land (not a road) which is in a residential zone or land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any natural or cultural values on or near the land.
- Streetscape character.
- Landscape treatment.

- Interface with non-industrial areas.

## 33.01-4 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to construct a building or construct or carry out works.

This does not apply to:

- A building or works which rearrange, alter or renew plant if the area or height of the plant is not increased.
- A building or works which are used for crop raising or informal outdoor recreation.
- A rainwater tank with a capacity of more than 10,000 litres if the following requirements are met:
  - The rainwater tank is not located within the building's setback from a street (other than a lane).
  - The rainwater tank is no higher than the existing building on the site.
  - The rainwater tank is not located in an area that is provided for car parking, loading, unloading or accessway.
- A building or works which are used for grazing animal production, except for permanent or fixed feeding infrastructure for seasonal or supplementary feeding constructed within 100 metres of:
  - A waterway, wetland or designated flood plain.
  - A dwelling not in the same ownership.
  - A residential or urban growth zone.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $1,400,000 where the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10.<br>▪ Used for an Adult sex product shop. | Clause 59.04 |

### Application requirements

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - Relevant ground levels.

  - The layout of existing and proposed buildings and works.
  - Driveways and vehicle parking and loading areas.
  - Proposed landscape areas.
  - External storage and waste treatment areas.
- Elevation drawings to scale which show the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways and vehicle parking and loading areas.
- A landscape layout which includes the description of vegetation to be planted, the surfaces to be constructed, a site works specification and the method of preparing, draining, watering and maintaining the landscape area.

### Exemption from notice and review

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to an application for a building or works within 30 metres of land (not a road) which is in a residential zone or land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any natural or cultural values on or near the land.
- Streetscape character.
- Built form.
- Landscape treatment.
- Interface with non-industrial areas.
- Parking and site access.
- Loading and service areas.
- Outdoor storage.
- Lighting.
- Stormwater discharge.

### Maintenance

All buildings and works must be maintained in good order and appearance to the satisfaction of the responsible authority.

## 33.01-5 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 2.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 33.01 INDUSTRIAL 1 ZONE

## 1.0 Maximum leasable floor area requirements

10/06/2021
C254card

| Land | Maximum leasable floor area for Office (square metres) |
|---|---|
| None specified | None specified |

# 34 COMMERCIAL ZONES

15/07/2013
VC100

## 34.01 COMMERCIAL 1 ZONE

31/07/2018
VC148

Shown on the planning scheme map as **B1Z**, **B2Z**, **B5Z** or **C1Z**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To create vibrant mixed use commercial centres for retail, office, business, entertainment and community uses.

To provide for residential uses at densities complementary to the role and scale of the commercial centre.

### Operation

A schedule may apply under this zone to a planning scheme outside of metropolitan Melbourne. That schedule may:

- specify the maximum leasable floor area for office
- specify the maximum leasable floor area for shop (other than restricted retail premises).

## 34.01-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Corrective institution, Rooming house and Small second dwelling)** | Any frontage at ground floor level must not exceed 2 metres (other than a bed and breakfast and caretaker's house). |
| **Art and craft centre** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Child care centre** | Any frontage at ground floor level must not exceed 2 metres and access must not be shared with a dwelling (other than a caretaker's house). |
| **Cinema** | |
| **Cinema based entertainment facility** | |
| **Community care accommodation** | Any frontage at ground floor level must not exceed 2 metres.<br>Must meet the requirements of Clause 52.22-2. |
| **Education centre (other than Child care centre)** | |
| **Exhibition centre** | |
| **Home based business** | |
| **Informal outdoor recreation** | |

| Use | Condition |
|---|---|
| **Office** | The leasable floor area for all offices must not exceed any amount specified in the schedule to this zone. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |
| **Railway** | |
| **Retail premises (other than Shop)** | |
| **Rooming house** | Any frontage at ground floor level must not exceed 2 metres.<br>Must meet the requirements of Clause 52.23-2. |
| **Shop (other than Adult sex product shop)** | The leasable floor area for all shops must not exceed any amount specified in the schedule to this zone. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone or, land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Animal production and Apiculture)** | |
| **Container deposit scheme centre** | |
| **Grazing animal production** | |
| **Industry (other than Automated collection point and Container deposit scheme centre)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Leisure and recreation facility (other than Informal outdoor recreation, Major sports and recreation facility and Motor racing track)** | |
| **Place of assembly (other than Carnival, Cinema, Cinema based entertainment facility, Circus, Exhibition centre and Place of worship)** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Warehouse** | Must not be a purpose listed in the table to Clause 53.10. |

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Animal production (other than Grazing animal production)** |
| **Corrective institution** |
| **Major sports and recreation facility** |
| **Motor racing track** |
| **Small second dwelling** |

## 34.01-2 Use of land

15/07/2013
VC100

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any building, works or materials.
- Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

## 34.01-3 Subdivision

31/07/2018
VC148

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if: | Clause 59.02 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| ▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | |

## 34.01-4 Buildings and works

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works.

This does not apply to:

- The installation of an automatic teller machine.
- An alteration to an existing building façade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 80 per cent of the building facade at ground floor level is maintained as an entry or window with clear glazing.
- An awning that projects over a road if it is authorised by the relevant public land manager.

An apartment development must meet the requirements of Clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 where the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10.<br>▪ Used for an Adult sex product shop. | Clause 59.04 |

### Transitional provisions

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

### Maintenance

All buildings and works must be maintained in good order and appearance to the satisfaction of the responsible authority.

## 34.01-5 Site description and design response

08/09/2025
VC282

An application for any of the following must be accompanied by a site description and a design response as described in Clause 54.01, 55.01 or 57.01, as appropriate:

- Construction or extension of one dwelling on a lot of less than 300 square metres.
- Construction of a dwelling if there is at least one dwelling existing on the lot.
- Construction of two or more dwellings on a lot.
- Extension of a dwelling if there are two or more dwellings on the lot.
- Construction or extension of a dwelling on common property.
- Construction or extension of a residential building.

Clause 34.01-5 does not apply to an apartment development.

## 34.01-6 Application requirements

14/01/2025
VC237

### Use

An application to use land must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of activities which will be carried out.
- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- The means of maintaining land not required for immediate use.
- If an industry or warehouse:
  - The type and quantity of goods to be stored, processed or produced.
  - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
  - Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
  - The likely effects on adjoining land, including air-borne emissions and emissions to land and water.

### Buildings and works

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and purpose of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All driveway, car parking and loading areas.
  - Proposed landscape areas.
  - All external storage and waste treatment areas.
  - Areas not required for immediate use.

- Elevation drawings to scale showing the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways, vehicle parking and loading areas.
- A landscape layout which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscape area.

An application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, must be accompanied by an urban context report and design response as required in Clause 58.01.

## 34.01-7 Exemption from notice and review

31/07/2018
VC148

An application to subdivide land or construct a building or construct or carry out works is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to land within 30 metres of land (not a road) which is in a residential zone, land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

## 34.01-8 Decision guidelines

08/09/2025
VC282

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The interface with adjoining zones, especially the relationship with residential areas.

### Use

- The effect that existing uses may have on the proposed use.
- The drainage of the land.
- The availability of and connection to services.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.

### Subdivision

- Provision for vehicles providing for supplies, waste removal and emergency services and public transport.
- The effect the subdivision will have on the potential of the area to accommodate the uses which will maintain or enhance its competitive strengths.

### Building and works

- The movement of pedestrians and cyclists, and vehicles providing for supplies, waste removal, emergency services and public transport.
- The provision of car parking.
- The streetscape, including the conservation of buildings, the design of verandahs, access from the street front, protecting active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and the landscaping of land adjoining a road.
- The storage of rubbish and materials for recycling.

- Defining the responsibility for the maintenance of buildings, landscaping and paved areas.
- Consideration of the overlooking and overshadowing as a result of building or works affecting adjoining land in a General Residential Zone, Housing Choice and Transport Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.
- The availability of and connection to services.
- The design of buildings to provide for solar access.
- The objectives, standards and decision guidelines of Clause 54, Clause 55 and Clause 57. This does not apply to an apartment development.
- For an apartment development, the objectives, standards and decision guidelines of Clause 58.

### Transitional provisions

The objectives, standards and decision guidelines of Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 34.01-9 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 1.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 34.01 COMMERCIAL 1 ZONE

## 1.0 Maximum leasable floor area requirements

10/06/2021
C254card

| Land | Maximum leasable floor area for Office (square metres) | Maximum leasable floor area for Shop (other than Restricted retail premises) (square metres) |
|---|---|---|
| None specified | None specified | None specified |

# 34.02 COMMERCIAL 2 ZONE

31/07/2018
VC148

Shown on the planning scheme map as **B3Z**, **B4Z** or **C2Z**.

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage commercial areas for offices, appropriate manufacturing and industries, bulky goods retailing, other retail uses, and associated business and commercial services.

To ensure that uses do not affect the safety and amenity of adjacent, more sensitive uses.

## 34.02-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Art and craft centre** | |
| **Art gallery** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Cinema** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Cinema based entertainment facility** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Food and drink premises** | The leasable floor area must not exceed 100 square metres. |
| **Industry (other than Materials recycling and Transfer station)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |
| **Informal outdoor recreation** | |

| Use | Condition |
|---|---|
| **Mail centre** | |
| **Museum** | |
| **Office** | |
| **Postal agency** | |
| **Railway** | |
| **Restricted retail premises** | |
| **Shop (other than Adult sex product shop, Restricted retail premises and Supermarket)** | Must adjoin, or be on the same land as, a supermarket when the use commences.<br>The combined leasable floor area for all shops adjoining or on the same land as the supermarket must not exceed 500 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Supermarket** | The leasable floor area must not exceed 1800 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>Must be on land within the City of Greater Geelong or within an urban growth boundary in metropolitan Melbourne. |
| **Trade supplies** | |
| **Tramway** | |
| **Warehouse (other than Mail centre)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |

| Use | Condition |
|---|---|
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone, land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Animal production and Apiculture)** | |
| **Caretaker's house** | |
| **Container deposit scheme centre** | |
| **Education centre** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation, Major sports and recreation facility and Motor racing track)** | |
| **Materials recycling** | |
| **Place of assembly (other than Art gallery, Carnival, Cinema, Cinema based entertainment facility, Circus and Museum)** | |
| **Residential hotel** | |
| **Retail premises (other than Food and drink premises, Postal agency, Restricted retail premises, Supermarket and Trade supplies)** | |
| **Supermarket – if the Section 1 conditions are not met** | The leasable floor area must not exceed 1800 square metres unless on land within the City of Greater Geelong or within an urban growth boundary in metropolitan Melbourne.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Transfer station (other than Automated collection point and Container deposit scheme centre)** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |

| Use | Condition |
|---|---|
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Caretaker's house and Residential hotel)** |
| **Animal production (other than Grazing animal production)** |
| **Hospital** |
| **Major sports and recreation facility** |
| **Motor racing track** |

## 34.02-2 Use of land

15/07/2013
VC100

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any building, works or materials.
- Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

## 34.02-3 Subdivision

31/07/2018
VC148

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

## 34.02-4 Buildings and works

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works.

This does not apply to:

- The installation of an automatic teller machine.
- An alteration to an existing building façade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 80 per cent of the building facade at ground floor level is maintained as an entry or window with clear glazing.
- An awning that projects over a road if it is authorised by the relevant public land manager.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 where the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10.<br>▪ Used for an Adult sex product shop. | Clause 59.04 |

### Maintenance

All buildings and works must be maintained in good order and appearance to the satisfaction of the responsible authority.

## 34.02-5 Application requirements

14/01/2025
VC237

### Use

An application to use land must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of activities which will be carried out.

- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods or materials, hours of operation and light spill, solar access and glare.
- The means of maintaining areas not required for immediate use.
- If an industry or warehouse:
  - The type and quantity of goods to be stored, processed or produced.
  - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
  - Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
  - The likely effects on adjoining land, including air-borne emissions and emissions to land and water.

**Building and works**

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and purpose of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All driveway, car parking and loading areas.
  - Proposed landscape areas.
  - All external storage and waste treatment areas.
  - Areas not required for immediate use.
- Elevation drawings to scale showing the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways, vehicle parking and loading areas.
- A landscape layout which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscape area.

## 34.02-6 Exemption from notice and review

31/07/2018
VC148

An application to subdivide land or construct a building or construct or carry out works is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to land within 30 metres of land (not a road) which is in a residential zone, land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

## 34.02-7 Decision guidelines

31/07/2018
VC148

### General

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The interface with adjoining zones, especially the relationship with residential areas.

### Use

- The effect that existing uses may have on the proposed use.
- The drainage of the land.
- The availability of and connection to services.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.
- If an industry or warehouse, the effect that the use may have on nearby existing or proposed residential areas or other uses which are sensitive to industrial off-site effects, having regard to any comments or directions of the referral authorities.

### Subdivision

- The effect the subdivision will have on the potential of the area to accommodate the uses which will maintain or enhance its competitive strengths.
- Any natural or cultural values on or near the land.
- Streetscape character.
- Landscape treatment.

### Building and works

- The movement of pedestrians and cyclists, and vehicles providing for supplies, waste removal, emergency services and public transport.
- The provision of car parking.
- The streetscape, including the conservation of buildings, the design of verandahs, access from the street front, protecting active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and landscaping of land adjoining a road.
- Defining the responsibility for the maintenance of buildings, landscaping and paved areas.
- The availability of and connection to services.
- Any natural or cultural values on or nearby the land.
- Outdoor storage, lighting, and stormwater discharge.
- The design of buildings to provide for solar access.

## 34.02-8 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 1.

# 35 RURAL ZONES

19/01/2006
VC37

## 35.03 RURAL LIVING ZONE

31/07/2018
VC148

Shown on the planning scheme map as **RLZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for residential use in a rural environment.

To provide for agricultural land uses which do not adversely affect the amenity of surrounding land uses.

To protect and enhance the natural resources, biodiversity and landscape and heritage values of the area.

To encourage use and development of land based on comprehensive and sustainable land management practices and infrastructure provision.

## 35.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | The lot must be at least the area specified in a schedule to this zone. If no area is specified, the lot must be at least 2 hectares.<br>Must be the only dwelling on the lot.<br>Must meet the requirements of Clause 35.03-2.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches). |

| Use | Condition |
|---|---|
| | Must be no more than 10 emus and ostriches. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.03-2.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling and Small second dwelling)** | |
| **Agriculture (other than Domestic animal husbandry, Apiculture, Intensive animal production, Poultry farm, Racing dog husbandry and Timber production)** | |
| **Bar** | The site must not have direct access to a rural freeway. |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must be no more than 10,000 chickens. |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Convenience shop** | The leasable floor area must not exceed 80 square metres.<br>The site must not have direct access to a rural freeway. |
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast) - if the Section 1 condition is not met** | Must meet the requirements of Clause 35.03-2. |
| **Freeway service centre** | Must meet the requirements of Clause 53.05. |

| Use | Condition |
|---|---|
| **Hotel** | The site must not have direct access to a rural freeway. |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |
| **Medical centre** | |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus and Nightclub)** | |
| **Plant nursery** | |
| **Postal agency** | |
| **Primary produce sales** | |
| **Racing dog husbandry – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Restaurant** | The site must not have direct access to a rural freeway. |
| **Rural industry (other than Abattoir and Sawmill)** | |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not have direct access to a rural freeway. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Abattoir** |
| **Amusement parlour** |
| **Cinema based entertainment facility** |
| **Industry (other than Automated collection point and Rural Industry)** |
| **Intensive animal production** |
| **Motor racing track** |
| **Nightclub** |
| **Office (other than Medical centre)** |
| **Retail premises (other than Bar, Convenience shop, Hotel, Market, Plant nursery, Postal agency, Primary produce sales and Restaurant)** |
| **Saleyard** |
| **Sawmill** |
| **Small second dwelling – if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 35.03-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- Each dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.03-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 2 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots and the number of lots is not increased.

- The number of lots is no more than the number the land could be subdivided into in accordance with a schedule to this zone.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>- Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>- The area of either lot is reduced by less than 15 percent.<br>- The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone. | Clause 59.12 |

## 35.03-4 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.03-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension is not more than the area specified in a schedule to this zone or, if no area is specified, 200 square metres. Any area specified must be more than 200 square metres.
  - An out-building associated with an existing dwelling provided the floor area of the out-building is not more than the area specified in a schedule to this zone or, if no area is specified, 250 square metres. Any area specified must be more than 250 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration or extension is not more than the area specified in the schedule to this zone or, if no area is specified, 250 square metres. Any area specified must be more than 250 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - The setback from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road, specified in the schedule to this zone or, if no setback is specified, 30 metres.
  - The setback from any other road or boundary specified in the schedule to this zone.
  - The distance from a dwelling not in the same ownership specified in the schedule to this zone.

- 30 metres from a small second dwelling not in the same ownership.
- 100 metres from a waterway, wetlands or designated flood plain or, the distance specified in the schedule to this zone. Any distance specified must be less than 100 metres.

- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $350,000 where:<br>- The land is not used for Domestic animal husbandry, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry or Rural industry.<br>- The land is not within 30 metres of land (not a road) which is in a residential zone.<br>- The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.03-5 Decision guidelines

22/03/2022
VC219

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development.
- Whether the site is suitable for the use or development and whether the proposal is compatible with adjoining and nearby land uses.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

### Agricultural issues

- The capacity of the site to sustain the agricultural use.

- Any integrated land management plan prepared for the site.
- The potential for the future expansion of the use or development and the impact of this on adjoining and nearby agricultural and other land uses.

### Environmental issues

- The impact on the natural physical features and resources of the area and in particular any impact caused by the proposal on soil and water quality and by the emission of noise, dust and odours.
- The impact of the use or development on the flora, fauna and landscape features of the locality.
- The need to protect and enhance the biodiversity of the area, including the need to retain vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge area.
- The location of on-site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.

### Design and siting issues

- The impact of the siting, design, height, bulk, colours and materials to be used, on the natural environment, major roads, vistas and water features and the measures to be undertaken to minimise any adverse impacts.
- The impact on the character and appearance of the area or features of architectural, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of existing and proposed infrastructure including roads, gas, water, drainage, telecommunications and sewerage facilities.
- Whether the use or development will require traffic management measures.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

## 35.03-6 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 35.03 RURAL LIVING ZONE

Shown on the planning scheme map as **RLZ1.**

### 1.0 Subdivision and other requirements

10/06/2021
C254card

| | Land | Area/Dimensions/Distance |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 8 ha |
| Minimum area for which no permit is required to use land for a Dwelling (hectares) | All land | 1 ha |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for Agriculture (square metres) | None specified | None specified |
| Minimum setback from a road (metres) | None specified | None specified |
| Minimum setback from a boundary (metres) | None specified | None specified |
| Minimum setback from a dwelling not in the same ownership (metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 35.03 RURAL LIVING ZONE

Shown on the planning scheme map as **RLZ2.**

### 1.0 Subdivision and other requirements

10/06/2021
C254card

| | Land | AreaDimensionsDistance |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 2 ha |
| Minimum area for which no permit is required to use land for a Dwelling (hectares) | All land | 1 ha |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for Agriculture (square metres) | None specified | None specified |
| Minimum setback from a road (metres) | None specified | None specified |
| Minimum setback from a boundary (metres) | None specified | None specified |
| Minimum setback from a dwelling not in the same ownership (metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

## 35.04 GREEN WEDGE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **GWZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for the use of land for agriculture.

To recognise, protect and conserve green wedge land for its agricultural, environmental, historic, landscape, recreational and tourism opportunities, and mineral and stone resources.

To encourage use and development that is consistent with sustainable land management practices.

To encourage sustainable farming activities and provide opportunity for a variety of productive agricultural uses.

To protect, conserve and enhance the cultural heritage significance and the character of open rural and scenic non-urban landscapes.

To protect and enhance the biodiversity of the area.

## 35.04-1 Table of uses

16/06/2026
VC312

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Abattoir** | Must be used in conjunction with Animal production on the same land or contiguous land in the same ownership.<br>Must not have a gross floor area more than 200 square metres.<br>Must not slaughter or process animals, including birds, at a designed throughput of greater than 120 tonnes of product per year.<br>Must not exceed a wastewater design or actual flow rate of greater than 5,000 litres per day.<br>Must not be within 100 metres of a dwelling in separate ownership.<br>The land must be at least 100 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone, Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution.<br>Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified. |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence. |

| Use | Condition |
|---|---|
| | At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 5 animals. |
| **Grazing animal production** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Primary produce sales** | Must not be within 100 metres of a dwelling in separate ownership.<br>The area used for the display and sale of primary produce must not exceed 50 square metres. |
| **Racing dog husbandry** | Must be no more than 5 animals. |
| **Railway** | |
| **Rural store** | Must be used in conjunction with Agriculture.<br>Must be in a building, not a dwelling and have a gross floor area of less than 100 square metres.<br>Must be the only Rural store on the lot. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Animal production (other than Cattle feedlot, Grazing animal production and Poultry farm)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must meet the requirements of Clause 53.09. |
| **Camping and caravan park** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Cattle feedlot** | Must meet the requirements of Clause 53.08.<br>The site must be located outside a catchment area listed in Appendix 2 of the Victorian Code for Cattle Feedlots – August 1995. |

| Use | Condition |
|---|---|
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot. This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling.<br>Must meet the requirements of Clause 35.04-2. |
| **Exhibition centre** | |
| **Freezing and cool storage** | The goods stored must be agricultural produce, or products used in agriculture. |
| **Function centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The number of patrons present at any time must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Group accommodation** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry, or Winery.<br>The number of dwellings must not exceed the number specified in a schedule to the zone or 40 dwellings, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Hall** | |
| **Host farm** | |
| **Indoor recreation facility** | Must be for equestrian based leisure, recreation or sport. |
| **Leisure and recreation (other than Indoor recreation facility, Informal outdoor recreation, Major sports and recreation facility and Motor racing track)** | |
| **Major sports and recreation facility** | Must be for outdoor leisure, recreation or sport. |
| **Manufacturing sales** | Must be an incidental part of Rural industry. |
| **Market** | |
| **Materials recycling** | Must be used in conjunction with Refuse disposal or Transfer station.<br>Must not include the collecting, dismantling, storing, recycling or selling of used or scrap construction and demolition materials. |
| **Milk depot** | |

| Use | Condition |
|---|---|
| **Place of assembly (other than Carnival, Cinema based entertainment facility, Circus, Exhibition centre, Function centre, Hall, Nightclub and Place of worship)** | Must not be used for more than 10 days in a calendar year. |
| **Place of worship** | |
| **Plant nursery** | |
| **Primary school** | |
| **Racing dog husbandry – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Refuse disposal** | |
| **Research and development centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Research centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Residential building (other than Residential hotel)** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>Must be used to provide accommodation for persons away from their normal place of residence.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Residential hotel** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The number of bedrooms must not exceed the number specified in a schedule to the zone or 80 bedrooms, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Restaurant** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The number of patrons present must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser. |

| Use | Condition |
|---|---|
| | If used in conjunction with Function centre, the total number of patrons present at any time must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Restricted place of assembly** | Must not be used for more than 30 days in a calendar year. |
| **Rice growing** | |
| **Rural industry (other than Abattoir)** | |
| **Secondary school** | |
| **Solid fuel depot** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.04-2. |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Transfer station (other than Automated collection point)** | Must not include the collecting, storing or processing of used or scrap construction and demolition materials. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Vehicle store** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential building and Small second dwelling)** |
| **Cinema based entertainment facility** |
| **Display home centre** |
| **Education centre (other than Primary school and Secondary school)** |
| **Freeway service centre** |
| **Funeral parlour** |
| **Hospital** |

| Use |
| --- |
| **Industry (other than Materials recycling, Refuse disposal, Transfer station, Research and development centre and Rural industry)** |
| **Motor racing track** |
| **Office** |
| **Nightclub** |
| **Retail premises (other than Manufacturing sales, Market, Plant nursery, Primary produce sales and Restaurant)** |
| **Service station** |
| **Warehouse (other than Freezing and cool storage, Milk depot, Rural store, Solid fuel depot and Vehicle store)** |

## 35.04-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from the dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.04-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone. | Clause 59.12 |

## 35.04-4 Long term lease or licence for accommodation

05/09/2013
VC103

A permit is required to lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation.

Each portion of a lot leased or licensed for the purpose of Accommodation must be at least the minimum subdivision area specified for the land in a schedule to this zone. If no area is specified, each portion of a lot leased or licensed for the purpose of Accommodation must be at least 40 hectares.

## 35.04-5 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.04-1. This does not apply to:
  - An alteration or extension to an existing dwelling with a floor area of no more than the area specified in a schedule to this zone or, if no area is specified, 50 square metres.
  - An alteration or extension to a small second dwelling.
  - An alteration or extension to an existing building used for agriculture with a floor area of no more than the area specified in a schedule to this zone or, if no area is specified, 100 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - 100 metres from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road.
  - 40 metres from a Transport Zone 3 or land in a Public Acquisition Overlay for a road if the Head, Transport for Victoria is not the acquiring authority.
  - 20 metres from any other road.
  - 5 metres from any other boundary.
  - 100 metres from a dwelling or small second dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain.
- Permanent or fixed feeding infrastructure for season or supplementary feeding for grazing animal production constructed within 100 metres of:

- A waterway, wetland or designated flood plain.
- A dwelling not in the same ownership.
- A residential or urban growth zone.

- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $350,000 where:<br>▪ The land is not used for Domestic animal husbandry, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry or Rural industry.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.04-6 Decision guidelines

22/03/2022
VC219

Before deciding on an application to use or subdivide land, lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development.
- How the use or development relates to rural land use, rural diversification, natural resource management, natural or cultural heritage management, recreation or tourism.
- Whether the site is suitable for the use or development and the compatibility of the proposal with adjoining land uses.
- Whether the use or development is essential to the health, safety or well-being of the State or area but is not appropriate to locate in an urban area because of the effect it may have on existing or proposed urban areas or the effect that existing or proposed urban areas may have on the proposed use or development.

- The need to minimise adverse impacts on the character and appearance of the area or features of architectural, scientific or cultural heritage significance, or of natural scenic beauty.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

**Rural issues**

- The maintenance of agricultural production and the impact on the rural economy.
- The environmental capacity of the site to sustain the rural enterprise.
- The need to prepare an integrated land management plan.
- The impact on the existing and proposed rural infrastructure.
- The potential for the future expansion of the use or development and the impact of this on adjoining and nearby agriculture and other land uses.
- The protection and retention of land for future sustainable agricultural activities.

**Environmental issues**

- The impact of the use or development on the flora and fauna on the site and its surrounds.
- The need to protect and enhance the biodiversity of the area, including the retention of vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge area.
- How the use or development relates to sustainable land management and the need to prepare an integrated land management plan.
- The location of on site effluent disposal areas to minimise impact of nutrient loads on waterways and native vegetation.

**Design and siting issues**

- The need to minimise any adverse impacts of siting, design, height, bulk, and colours and materials to be used, on landscape features, major roads and vistas.
- The location and design of existing and proposed infrastructure services which minimises the visual impact on the landscape.
- The need to minimise adverse impacts on the character and appearance of the area or features of archaeological, historic or scientific significance or of natural scenic beauty or importance.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

**Primary school or secondary school issues**

- Access being provided via an all-weather road with dimensions adequate to accommodate emergency vehicles and not rely on local residential streets for access.
- Access by public transport, or if public transport is not available or adequate, transport may be provided by the school. Where transport is provided by the school the parking of buses should be accommodated on site.

- Connection to reticulated sewerage if available or if not available, the wastewater must be treated and retained on-site in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- In the absence of reticulated sewerage, a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- Connection to a reticulated potable water supply or an alternative potable water supply with adequate storage for school use as well as for fire fighting purposes.
- Connection to a reticulated electricity supply or an alternative energy source.

## 35.04-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 35.04 GREEN WEDGE ZONE

Shown on the planning scheme map as **GWZ1.**

### 1.0 Subdivision and other requirements

10/06/2021
C254card

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 40 ha |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential hotel (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 35.04 GREEN WEDGE ZONE

Shown on the planning scheme map as **GWZ2.**

### 1.0 Subdivision and other requirements

10/06/2021
C254card

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 15 ha |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential hotel (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

## 35.05 GREEN WEDGE A ZONE

31/07/2018
VC148

Shown on the planning scheme map as **GWAZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for the use of land for agriculture.

To protect, conserve and enhance the biodiversity, natural resources, scenic landscapes and heritage values of the area.

To ensure that use and development promotes sustainable land management practices and infrastructure provision.

To protect, conserve and enhance the cultural heritage significance and the character of rural and scenic non-urban landscapes.

To recognise and protect the amenity of existing rural living areas.

## 35.05-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Primary produce sales** | Must not be within 100 metres of a dwelling in separate ownership.<br>The area used for the display and sale of primary produce must not exceed 50 square metres. |
| **Racing dog husbandry** | Must be no more than 2 animals. |

| Use | Condition |
|---|---|
| **Railway** | |
| **Rural store** | Must be used in conjunction with Agriculture.<br>Must be in a building, not a dwelling and have a gross floor area of less than 100 square metres.<br>Must be the only Rural store on the lot. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Animal production (other than Intensive animal production and Poultry farm)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must be no more than 10,000 chickens. |
| **Camping and caravan park** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot. This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling.<br>Must meet the requirements of Clause 35.05-2. |
| **Exhibition centre** | |
| **Freezing and cool storage** | The goods stored must be agricultural produce, or products used in agriculture.<br>Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Function centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The number of patrons present at any time must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |

| Use | Condition |
|---|---|
| **Group accommodation** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry, or Winery.<br><br>The number of dwellings must not exceed the number specified in a schedule to the zone or 40 dwellings, whichever is the lesser.<br><br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |
| **Hall** | |
| **Host farm** | |
| **Indoor recreation facility** | Must be for equestrian based leisure, recreation or sport. |
| **Leisure and recreation (other than Informal outdoor recreation, Indoor recreation facility, Major sports and recreation facility and Motor racing track)** | |
| **Major sports and recreation facility** | Must be for outdoor leisure, recreation or sport. |
| **Market** | |
| **Place of worship** | |
| **Plant nursery** | |
| **Primary school** | |
| **Racing dog husbandry - if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Research centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br><br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |
| **Residential building (other than Residential hotel)** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br><br>Must be used to provide accommodation for persons away from their normal place of residence.<br><br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |
| **Restaurant** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br><br>The number of patrons present must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser. |

| Use | Condition |
|---|---|
| | If used in conjunction with Function centre, the total number of patrons present at any time must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |
| **Restricted place of assembly** | Must not be used for more than 30 days in a calendar year. |
| **Rural industry (other than Abattoir and Sawmill)** | |
| **Rice growing** | |
| **Rural store – if the Section 1 condition is not met** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Secondary school** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.05-2. |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Vehicle store** | Must be in a building not a dwelling and used to store motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Abattoir** |
| **Accommodation (other than Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential building and Small second dwelling)** |
| **Display home centre** |
| **Education centre (other than Primary school and Secondary school)** |
| **Freeway service centre** |
| **Funeral parlour** |

| Use |
|---|
| **Hospital** |
| **Industry (other than Rural industry)** |
| **Intensive animal production** |
| **Motor racing track** |
| **Office** |
| **Place of assembly (other than Carnival, Circus, Exhibition centre, Function centre, Hall, Place of worship and Restricted place of assembly)** |
| **Retail premises (other than Market, Plant nursery, Primary produce sales and Restaurant)** |
| **Saleyard** |
| **Sawmill** |
| **Service station** |
| **Transport terminal** |
| **Warehouse (other than Freezing and cool storage, Rural store and Vehicle store)** |

## 35.05-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling or small second dwelling must be connected to reticulated sewerage, if available. If not available, all wastewater must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for the construction, installation or alteration of an on-site wastewater management system.
- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.05-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 8 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone. | Clause 59.12 |

## 35.05-4 Long term lease or licence for accommodation

05/09/2013
VC103

A permit is required to lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation.

Each portion of a lot leased or licensed for the purpose of Accommodation must be at least the minimum subdivision area specified for the land in a schedule to this zone. If no area is specified, each portion of a lot leased or licensed for the purpose of Accommodation must be at least 8 hectares.

## 35.05-5 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.05-1. This does not apply to:
  - An alteration or extension to an existing dwelling with a floor area of no more than the area specified in a schedule to this zone or, if no area is specified, 50 square metres.
  - An alteration or extension to a small second dwelling.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - 30 metres from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road.
  - 20 metres from a Transport Zone 3 or land in a Public Acquisition Overlay for a road if the Head, Transport for Victoria is not the acquiring authority.
  - 10 metres from any other road.

- 5 metres from any other boundary.
- 30 metres from a dwelling or small second dwelling not in the same ownership.
- 100 metres from a waterway, wetlands or designated flood plain.

- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $350,000 where:<br>▪ The land is not used for Domestic animal husbandry, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry or Rural industry.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.05-6 Decision guidelines

14/12/2023
VC253

Before deciding on an application to use or subdivide land, lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development, addressing site quality attributes including soil type, soil fertility, soil structure, soil permeability, aspect, contour and drainage patterns.
- How the use or development relates to agricultural land use, rural diversification and natural resource management.
- Whether the site is suitable for the use or development and whether the proposal will have an adverse impact on surrounding land uses.
- The need to protect the amenity of existing residents.

- The need to minimise adverse impacts on the character and appearance of the area or features of architectural, scientific or cultural heritage significance, or of natural scenic beauty or importance.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

**Rural issues**

- The maintenance of agricultural production and the impact on the local rural economy.
- The need to prepare an integrated land management plan.
- The impact on the existing and proposed rural infrastructure.
- The potential for the future expansion of the use or development and the impact of this on adjoining and nearby agricultural and other land uses.
- Protection and retention of land for future sustainable agricultural activities.

**Environmental issues**

- The impact of the use or development on the flora and fauna on the site and its surrounds.
- An assessment of the likely environmental impact on the natural physical features and resources of the area and in particular any impact caused by the proposal on soil and water quality and by the emission of effluent, noise, dust and odours.
- The need to protect and enhance the biodiversity of the area, including the retention of vegetation and fauna habitat and the revegetation of land including riparian buffers along waterways, gullies, ridge lines, property boundaries and saline recharge and discharge areas.
- How the use or development relates to sustainable land management and the need to prepare a sustainable land management plan.
- The location of on site effluent disposal areas to minimise impact of nutrient loads on waterways and native vegetation.

**Design and siting issues**

- The need to minimise adverse impacts of the siting, design, height, bulk, colours and materials to be used on major roads, landscape features and vistas.
- The location and design of existing and proposed infrastructure services including gas, water, drainage, telecommunications and sewerage facilities which minimise the visual impact on the landscape.
- The location and design of existing and proposed roads and their impact on the landscape and whether the use or development will require traffic management programs.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

**Primary school or secondary school issues**

- Access being provided via an all-weather road with dimensions adequate to accommodate emergency vehicles and not rely on local residential streets for access.

- Access by public transport, or if public transport is not available or adequate, transport may be provided by the school. Where transport is provided by the school the parking of buses should be accommodated on site.
- Connection to a reticulated sewerage system if available or if not available, the wastewater must be treated and retained on-site in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site waste water management system.
- In the absence of reticulated sewerage, a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- Connection to a reticulated potable water supply or an alternative potable water supply with adequate storage for school use as well as for fire fighting purposes.
- Connection to a reticulated electricity supply or an alternative energy source.

## 35.05-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 35.05 GREEN WEDGE A ZONE

Shown on the planning scheme map as **GWAZ1.**

### 1.0 Subdivision and other requirements

10/06/2021
C254card

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 8 ha |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential building (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | None specified |
| Earthworks which increase the discharge of saline groundwater | None specified |

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 35.05 GREEN WEDGE A ZONE

Shown on the planning scheme map as **GWAZ2.**

### 1.0 Subdivision and other requirements

10/06/2021
C254card

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 2 ha |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential building (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

## 35.06 RURAL CONSERVATION ZONE

31/07/2018
VC148

Shown on the planning scheme map as **RCZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To conserve the values specified in a schedule to this zone.

To protect and enhance the natural environment and natural processes for their historic, archaeological and scientific interest, landscape, faunal habitat and cultural values.

To protect and enhance natural resources and the biodiversity of the area.

To encourage development and use of land which is consistent with sustainable land management and land capability practices, and which takes into account the conservation values and environmental sensitivity of the locality.

To provide for agricultural use consistent with the conservation of environmental and landscape values of the area.

To conserve and enhance the cultural significance and character of open rural and scenic non urban landscapes.

## 35.06-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

## Section 2 - Permit required

| Use | Condition |
|---|---|
| **Agriculture (other than Apiculture, Domestic animal husbandry, Intensive animal production, Poultry farm, Racing dog husbandry, Rice growing and Timber production)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must be no more than 10,000 chickens. |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot. This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling.<br>Must meet the requirements of Clause 35.06-2. |
| **Emergency services facility** | |
| **Freezing and cool storage** | |
| **Group accommodation** | |
| **Host farm** | |
| **Landscape gardening supplies** | |
| **Market** | |
| **Primary produce sales** | |
| **Primary school** | |
| **Racing dog husbandry - if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Recreational boat facility** | |
| **Renewable energy facility (other than Wind energy facility)** | Must meet the requirements of Clause 53.13. |
| **Residential hotel** | |
| **Restaurant** | |
| **Rural industry (other than Abattoir and Sawmill)** | |
| **Rural store** | |
| **Secondary school** | |

| Use | Condition |
|---|---|
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.06-2. |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Wind energy facility** | Must meet the requirements of Clause 52.32. |
| **Winery** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Abattoir** |
| **Accommodation (other than Bed and breakfast, Dwelling, Group accommodation, Host farm, Residential hotel and Small second dwelling)** |
| **Amusement parlour** |
| **Education centre (other than Primary school and Secondary school)** |
| **Industry (other than Rural industry)** |
| **Intensive animal production** |
| **Office** |
| **Leisure and recreation (other than Informal outdoor recreation)** |
| **Place of assembly (other than Carnival and Circus)** |
| **Retail premises (other than Landscape gardening supplies, Market, Primary produce sales and Restaurant)** |
| **Rice growing** |
| **Sawmill** |
| **Transport terminal** |
| **Warehouse (other than Freezing and cool storage and Rural store)** |

## 35.06-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling or small second dwelling must be connected to reticulated sewerage if available. If reticulated sewerage is not available, all wastewater from the dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.06-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone. | Clause 59.12 |

## 35.06-4 Long term lease or licence for accommodation

05/09/2013
VC103

A permit is required to lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation.

Each portion of a lot leased or licensed for the purpose of Accommodation must be at least the area specified as the minimum subdivision area for the land in a schedule to this zone. If no area is specified, each portion of a lot leased or licensed for the purpose of Accommodation must be at least 40 hectares.

This provision only applies to land in Metropolitan Melbourne.

## 35.06-5 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.06-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension does not exceed the area specified in a schedule to this zone or, if no area is specified, 100 square metres. Any area specified must be more than 100 square metres.
  - An alteration or extension to a small second dwelling.
  - An out-building associated with an existing dwelling provided the floor area of the out-building does not exceed the area specified in a schedule to this zone or, if no area is specified, 100 square metres. Any area specified must be more than 100 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration or extension does not exceed the area specified in a schedule to this zone or, if no area is specified, 100 square metres. Any area specified must be more than 100 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - 100 metres from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road.
  - 40 metres from a Transport Zone 3 or land in a Public Acquisition Overlay for a road if the Head, Transport for Victoria is not the acquiring authority.
  - 20 metres from any other road.
  - 5 metres from any other boundary.
  - 100 metres from a dwelling or small second dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain.
- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $350,000 where:<br>▪ The land is not used for Domestic animal husbandry, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry or Rural industry.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.06-6 Decision guidelines

22/03/2022
VC219

Before deciding on an application to use or subdivide land, lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development.
- How the use or development conserves the values identified for the land in a schedule.
- Whether use or development protects and enhances the environmental, agricultural and landscape qualities of the site and its surrounds.
- Whether the site is suitable for the use or development and the compatibility of the proposal with adjoining land uses.

### Rural issues

- The environmental capacity of the site to sustain the rural enterprise.
- The need to prepare an integrated land management plan.
- The impact on the existing and proposed infrastructure.
- Whether the use or development will have an adverse impact on surrounding land uses.

### Environmental issues

- An assessment of the likely environmental impact on the biodiversity and in particular the flora and fauna of the area.
- The protection and enhancement of the natural environment of the area, including the retention of vegetation and faunal habitats and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge areas.

- How the use and development relates to sustainable land management and the need to prepare an integrated land management plan which addresses the protection and enhancement of native vegetation and waterways, stabilisation of soil and pest plant and animal control.
- The location of on site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.

**Accommodation issues**

- Whether the dwelling will result in the loss or fragmentation of productive agricultural land.
- Whether the dwelling will be adversely affected by agricultural activities on adjacent and nearby land due to dust, noise, odour, use of chemicals and farm machinery, traffic and hours of operation.
- Whether the dwelling will adversely affect the operation and expansion of adjoining and nearby agricultural uses.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

**Design and siting issues**

- The need to minimise any adverse impacts of siting, design, height, bulk, and colours and materials to be used, on landscape features, major roads and vistas.
- The location and design of existing and proposed infrastructure services which minimises the visual impact on the landscape.
- The need to minimise adverse impacts on the character and appearance of the area or features of archaeological, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of roads and existing and proposed infrastructure services to minimise the visual impact on the landscape.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

## 35.06-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 35.06 RURAL CONSERVATION ZONE

Shown on the planning scheme map as **RCZ1.**

### CONSERVATION VALUES

Protection and conservation of the environmental values and landscape qualities of the land, including habitat of botanical and zoological significance, and the conservation of natural resources, including native vegetation, waterways and soils.

## 1.0 Subdivision and other requirements

10/06/2021
C254card

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 40 ha |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with a dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 35.06 RURAL CONSERVATION ZONE

Shown on the planning scheme map as **RCZ2.**

### CONSERVATION VALUES

Protection and conservation of the environmental values and landscape qualities of the land, including habitat of botanical and zoological significance, and the conservation of natural resources, including native vegetation, waterways and soils.

**1.0**
10/06/2021
C254card

## Subdivision and other requirements

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 15 ha |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with a dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

## 35.07 FARMING ZONE

31/07/2018
VC148

Shown on the planning scheme map as **FZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for the use of land for agriculture.

To encourage the retention of productive agricultural land.

To ensure that non-agricultural uses, including dwellings, do not adversely affect the use of land for agriculture.

To encourage the retention of employment and population to support rural communities.

To encourage use and development of land based on comprehensive and sustainable land management practices and infrastructure provision.

To provide for the use and development of land for the specific purposes identified in a schedule to this zone.

## 35.07-1 Table of uses

12/05/2026
VC309

### Section 1 – Permit not required

| Use | Condition |
|---|---|
| **Abattoir** | Must be used in conjunction with Animal production on the same land or contiguous land in the same ownership.<br>Must not have a gross floor area more than 200 square metres.<br>Must not slaughter or process animals, including birds, at a designed throughput of greater than 120 tonnes of product per year.<br>Must not exceed a wastewater design or actual flow rate of greater than 5,000 litres per day.<br>Must not be within 100 metres of a dwelling in separate ownership.<br>The land must be at least 100 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone, Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution.<br>Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified. |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |

| Use | Condition |
|---|---|
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br><br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br><br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br><br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Cattle feedlot** | Must meet the requirements of Clause 53.08.<br><br>The total number of cattle to be housed in the cattle feedlot must be 1000 or less.<br><br>The site must be located outside a special water supply catchment under the *Catchment and Land Protection Act 1994*.<br><br>The site must be located outside a catchment area listed in Appendix 2 of the Victorian Code for Cattle Feedlots – August 1995. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 5 animals. |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot.<br><br>The lot must be at least the area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares.<br><br>Must meet the requirements of Clause 35.07-2.<br><br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br><br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Grazing animal production** | |
| **Home based business** | |

| Use | Condition |
|---|---|
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Primary produce sales** | Must not be within 100 metres of a dwelling in separate ownership.<br>The area used for the display and sale of primary produce must not exceed 50 square metres. |
| **Racing dog husbandry** | Must be no more than 5 animals. |
| **Railway** | |
| **Rural industry (other than Abattoir and Sawmill)** | Must not have a gross floor area more than 200 square metres.<br>Must not be within 100 metres of a dwelling in separate ownership.<br>Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>Must not manufacture mud bricks that contain hemp.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |
| **Rural store** | Must be used in conjunction with Agriculture.<br>Must be in a building, not a dwelling and have a gross floor area of less than 100 square metres.<br>Must be the only Rural store on the lot. |
| **Rural worker accommodation** | The number of persons accommodated at any time must not be more than 10.<br>Must be used in conjunction with Agriculture on the same land or contiguous land in the same ownership.<br>Must be used exclusively for accommodating workers engaged on the same land or contiguous land in the same ownership.<br>Must be the only accommodation other than a dwelling on the same land or contiguous land in the same ownership. |

| Use | Condition |
|---|---|
| | Must be on the same lot as an existing dwelling.<br>The lot must be at least the area specified in a schedule to this zone for which no permit is required to use land for a dwelling. If no area is specified, the lot must be at least 40 hectares.<br>Must meet the requirements of Clause 35.07-2.<br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.07-2.<br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Timber production** | Must meet the requirements of Clause 53.11.<br>The plantation area must not exceed any area specified in a schedule to this zone. Any area specified must be at least 40 hectares.<br>The total plantation area (existing and proposed) on contiguous land which was in the same ownership on or after 28 October 1993 must not exceed any scheduled area.<br>The plantation must not be within 100 metres of:<br>▪ Any dwelling in separate ownership.<br>▪ Any land zoned for residential, commercial or industrial use.<br>▪ Any site specified on a permit which is in force which permits a dwelling to be constructed. |

| Use | Condition |
|---|---|
| | The plantation must not be within 20 metres of a powerline whether on private or public land, except with the consent of the relevant electricity supply or distribution authority. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |

### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Animal production (other than Cattle feedlot, Grazing animal production and Poultry farm)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must meet the requirements of Clause 53.09. |
| **Camping and caravan park** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Cattle feedlot – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.08.<br>The site must be located outside a catchment area listed in Appendix 2 of the Victorian Code for Cattle Feedlots – August 1995. |
| **Cemetery** | |
| **Crematorium** | |
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast) – if the Section 1 condition is not met** | Must meet the requirements of Clause 35.07-2. |
| **Emergency services facility** | |
| **Freeway service centre** | Must meet the requirements of Clause 53.05. |
| **Group accommodation** | |
| **Host farm** | |
| **Industry (other than Automated collection point and Rural industry)** | |
| **Landscape gardening supplies** | |
| **Leisure and recreation (other than Informal outdoor recreation)** | |

| Use | Condition |
|---|---|
| **Manufacturing sales** | |
| **Market** | |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus and Nightclub)** | |
| **Primary school** | |
| **Racing dog husbandry – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Renewable energy facility (other than Wind energy facility)** | Must meet the requirements of Clause 53.13. |
| **Residential hotel** | |
| **Restaurant** | |
| **Rice growing** | |
| **Rural worker accommodation – if the Section 1 condition is not met** | Must meet the requirements of Clause 35.07-2. |
| **Sawmill** | |
| **Secondary school** | |
| **Timber production – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.11. |
| **Trade supplies** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Warehouse (other than Rural store)** | |
| **Wind energy facility** | Must meet the requirements of Clause 52.32. |
| **Winery** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Accommodation (other than Bed and breakfast, Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential hotel, Rural worker accommodation and Small second dwelling)** |
| **Amusement parlour** |
| **Cinema based entertainment facility** |
| **Education centre (other than Primary school and Secondary school)** |

| Use |
| --- |
| **Nightclub** |
| **Office** |
| **Retail premises (other than Market, Landscape gardening supplies, Manufacturing sales, Primary produce sales, Restaurant and Trade supplies)** |
| **Small second dwelling – if the Section 1 condition is not met** |

## 35.07-2 Use of land for a dwelling, small second dwelling or rural worker accommodation

14/12/2023
VC253

A lot used for a dwelling, small second dwelling or rural worker accommodation must meet the following requirements:

- Access to the dwelling, small second dwelling or rural worker accommodation must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- Each dwelling, small second dwelling or rural worker accommodation must be connected to reticulated sewerage, if available. If reticulated sewerage is not available all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling, small second dwelling or rural worker accommodation must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling, small second dwelling or rural worker accommodation must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.07-3 Subdivision

06/02/2026
VC271

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is to create a lot for an existing dwelling. The subdivision must be a two lot subdivision.
- The subdivision is the re-subdivision of existing lots and the number of lots is not increased.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.
- The subdivision is to create a lot for a utility installation used to:
  - transmit or distribute electricity; or
  - store electricity if the installed capacity is 1 megawatt or greater.

A permit cannot be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change.<br>▪ The land is not used for Rural worker accommodation | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone where the land is not used for Rural worker accommodation. | Clause 59.12 |

## 35.07-4 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.07-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension is not more than the area specified in a schedule to this zone or, if no area is specified, 200 square metres. Any area specified must be more than 200 square metres.
  - An out-building associated with an existing dwelling provided the floor area of the out-building is not more than the area specified in a schedule to this zone or, if no area is specified, 250 square metres. Any area specified must be more than 250 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration or extension is not more than the area specified in a schedule to this zone or, if no area is specified, 250 square metres. Any area specified must be more than 250 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - The setback from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road specified in a schedule to this zone or, if no setback is specified, 50 metres.
  - The setback from any other road or boundary specified in a schedule to this zone.
  - The setback from a dwelling not in the same ownership specified in a schedule to this zone.
  - 100 metres from a small second dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain or, the distance specified in the schedule to this zone. Any distance specified must be less than 100 metres.
- Permanent or fixed feeding infrastructure for seasonal or supplementary feeding for grazing animal production constructed within 100 metres of:
  - A waterway, wetland or designated flood plain.
  - A dwelling or small second dwelling not in the same ownership.
  - A residential or urban growth zone.

- A building or works associated with accommodation located within one kilometre from the nearest title boundary of land subject to:
  - A permit for a wind energy facility; or
  - An application for a permit for a wind energy facility; or
  - An incorporated document approving a wind energy facility; or
  - A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.
- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works associated with a Section 1 use in the Table of uses of the zone with an estimated cost of up to $700,000.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |
| Construct a building or construct or carry out works associated with a Section 2 use in the Table of uses of the zone with an estimated cost of up to $700,000 where:<br>▪ The land is not used for Domestic animal husbandry, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry, Rural industry or Rural worker accommodation.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within one kilometre from the nearest title boundary of land subject to:<br>– A permit for a wind energy facility; or<br>– An application for a permit for a wind energy facility; or<br>– An incorporated document approving a wind energy facility; or<br>– A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.07-5 Application requirements for dwellings

19/01/2006
VC37

An application to use a lot for a dwelling must be accompanied by a written statement which explains how the proposed dwelling responds to the decision guidelines for dwellings in the zone.

## 35.07-6 Decision guidelines

22/03/2022
VC219

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development, including the disposal of effluent.
- How the use or development relates to sustainable land management.
- Whether the site is suitable for the use or development and whether the proposal is compatible with adjoining and nearby land uses.
- How the use and development makes use of existing infrastructure and services.

### Agricultural issues and the impacts from non-agricultural uses

- Whether the use or development will support and enhance agricultural production.
- Whether the use or development will adversely affect soil quality or permanently remove land from agricultural production.
- The potential for the use or development to limit the operation and expansion of adjoining and nearby agricultural uses.
- The capacity of the site to sustain the agricultural use.
- The agricultural qualities of the land, such as soil quality, access to water and access to rural infrastructure.
- Any integrated land management plan prepared for the site.
- Whether Rural worker accommodation is necessary having regard to:
  - The nature and scale of the agricultural use.
  - The accessibility to residential areas and existing accommodation, and the remoteness of the location.
- The duration of the use of the land for Rural worker accommodation.

### Accommodation issues

- Whether the dwelling will result in the loss or fragmentation of productive agricultural land.
- Whether the dwelling will be adversely affected by agricultural activities on adjacent and nearby land due to dust, noise, odour, use of chemicals and farm machinery, traffic and hours of operation.
- Whether the dwelling will adversely affect the operation and expansion of adjoining and nearby agricultural uses.
- The potential for the proposal to lead to a concentration or proliferation of dwellings in the area and the impact of this on the use of the land for agriculture.
- The potential for accommodation to be adversely affected by noise and shadow flicker impacts if it is located within one kilometre from the nearest title boundary of land subject to:
  - A permit for a wind energy facility; or
  - An application for a permit for a wind energy facility; or

- An incorporated document approving a wind energy facility; or
- A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.

- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

**Environmental issues**

- The impact of the proposal on the natural physical features and resources of the area, in particular on soil and water quality.
- The impact of the use or development on the flora and fauna on the site and its surrounds.
- The need to protect and enhance the biodiversity of the area, including the retention of vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge area.
- The location of on-site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.

**Design and siting issues**

- The need to locate buildings in one area to avoid any adverse impacts on surrounding agricultural uses and to minimise the loss of productive agricultural land.
- The impact of the siting, design, height, bulk, colours and materials to be used, on the natural environment, major roads, vistas and water features and the measures to be undertaken to minimise any adverse impacts.
- The impact on the character and appearance of the area or features of architectural, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of existing and proposed infrastructure including roads, gas, water, drainage, telecommunications and sewerage facilities.
- Whether the use and development will require traffic management measures.
- The need to locate and design buildings used for accommodation to avoid or reduce noise and shadow flicker impacts from the operation of a wind energy facility if it is located within one kilometre from the nearest title boundary of land subject to:
  - A permit for a wind energy facility; or
  - An application for a permit for a wind energy facility; or
  - An incorporated document approving a wind energy facility; or
  - A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

## 35.07-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 35.07 FARMING ZONE

Shown on the planning scheme map as **FZ1.**

### 1.0 Subdivision and other requirements

20/01/2022
VC205

| | Land | Area/Dimensions/Distance |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 40 ha |
| Minimum area for which no permit is required to use land for a dwelling (hectares) | None specified | None specified |
| Maximum area for which no permit is required to use land for timber production (hectares) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with a dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |
| Minimum setback from a road (metres) | A Transport Zone 2 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 100 m |
| | A Transport Zone 3 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is not the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 40 m |
| | All other road | 20 m |
| Minimum setback from a boundary (metres) | Any other boundary | 5 m |
| Minimum setback from a dwelling not in the same ownership (metres) | Any dwelling not in the same ownership | 100 m |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 35.07 FARMING ZONE

Shown on the planning scheme map as **FZ2.**

### 1.0 Subdivision and other requirements

20/01/2022
VC205

| | Land | Area/Dimensions/Distance |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 15 ha |
| Minimum area for which no permit is required to use land for a dwelling (hectares) | None specified | 15 ha |
| Maximum area for which no permit is required to use land for timber production (hectares) | None specified | 40 ha |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with a dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |
| Minimum setback from a road (metres) | A Transport Zone 2 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 100 m |
| | A Transport Zone 3 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is not the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 40 m |
| | Any other road | 20 m |
| Minimum setback from a boundary (metres) | Any other boundary | 5 m |
| Minimum setback from a dwelling not in the same ownership (metres) | Any dwelling not in the same ownership | 100 m |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

# 36 PUBLIC LAND ZONES

19/01/2006
VC37

# 36.01 PUBLIC USE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **PUZ** with a number.

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To recognise public land use for public utility and community services and facilities.

To provide for associated uses that are consistent with the intent of the public land reservation or purpose.

## 36.01-1 Table of uses

14/11/2022
VC227

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Railway** | |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |
| **Any other use** | The use must be for the purpose described in the table to Clause 36.01-6 which corresponds to the notation on the planning scheme map.<br>The use must be carried out by or on behalf of the public land manager. |

### Section 2 - Permit required

| Use | Condition |
|---|---|

### Section 3 - Prohibited

| Use |
|---|
| **Nil** |

## 36.01-2 Permit requirement

19/01/2006
VC37

A permit is required to:

- Construct a building or construct or carry out works for any use in Section 2 of Clause 36.01-1. This does not apply to navigational beacons and aids.
- Subdivide land.

## 36.01-3 Application requirements

19/01/2006
VC37

An application for a permit by a person other than the relevant public land manager must be accompanied by the written consent of the public land manager, indicating that the public land manager consents generally or conditionally either:

- To the application for permit being made.
- To the application for permit being made and to the proposed use or development.

## 36.01-4 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The comments of any Minister or public land manager having responsibility for the care or management of the land or adjacent land.
- Whether the development is appropriately located and designed, including in accordance with any relevant use, design or siting guidelines.

## 36.01-5 Permit not required

19/01/2006
VC37

A permit is not required to use land, or to construct a building or construct or carry out works on land, listed in a schedule to this zone, provided any condition in the schedule is complied with.

## 36.01-6 Table of public land use

14/01/2025
VC237

| Shown on the planning scheme map | Purpose of public land use |
|---|---|
| **PUZ1** | Service & Utility |
| **PUZ2** | Education |
| **PUZ3** | Health & Community |
| **PUZ5** | Cemetery/Crematorium |
| **PUZ6** | Local Government |
| **PUZ7** | Other public use |

## 36.01-7 Signs

20/01/2022
VC205

Sign requirements are at Clause 52.05. This zone is in Category 4 unless a different requirement is specified in the schedule to this zone.

Where a Transport Zone 2 or a Transport Zone 3 is the nearest adjoining zone, a permit is required to display a sign.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 36.01 PUBLIC USE ZONE

## 1.0 Permit exemptions and conditions

10/06/2021
C254card

| Public land | Use or development | Conditions |
|---|---|---|
| Any land leased or licensed from Melbourne Water Corporation to Melbourne Parks and Waterways. | Any use or development associated with Melbourne Parks and Waterways' operation or management of the land as a public park. | Must be undertaken by or on behalf of Melbourne Parks and Waterways under the Water Industry Act 1994, the Water Act 1989, the Marine Act 1988, the Port of Melbourne Authority Act 1958 or the Crown Land (Reserves) Act 1978. |
| Any land owned by, vested in, or under the control of the Emerald Tourist Railway Board | Any use or development associated with normal operation of the Emerald (Puffing Billy) Tourist Railway. | Normal operations includes: rail infrastructure (tracks, signals, communications, station buildings, platforms, rail storage yards, workshops and storage buildings for rolling stock and equipment); café / kiosk within the station precinct; gift / souvenir shop within or as part of a station building; and a car park for Puffing Billy patrons, volunteers and staff.<br><br>Normal operations exclude: tourist accommodation; a convention centre; a café, restaurant or licensed premises other than a café / kiosk specified in the condition above; a shop other than a gift / souvenir shop specified in the condition above; and a carpark associated with an activity outside normal operations. |

## 2.0 Sign requirements

10/06/2021
C254card

| Land | Sign Category |
|---|---|
| All land | Category 3 |

## 36.02 PUBLIC PARK AND RECREATION ZONE

31/07/2018
VC148

Shown on the planning scheme map as **PPRZ**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To recognise areas for public recreation and open space.

To protect and conserve areas of significance where appropriate.

To provide for commercial uses where appropriate.

## 36.02-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Informal outdoor recreation** | |
| **Open sports ground** | Must be conducted by or on behalf of the public land manager.<br>Must not be on coastal Crown land under the *Marine and Coastal Act 2018*. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |
| **Contractor's depot**<br>**Heliport**<br>**Office**<br>**Retail premises**<br>**Store**<br>**Any other use not in Section 3** | Must be either of the following:<br>A use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forest Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995*, or the *Crown Land (Reserves) Act 1978*.<br>A use specified in an Incorporated plan in a schedule to this zone. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Contractor's depot - if the Section 1 condition is not met** | Must be associated with the public land use. |
| **Heliport - if the Section 1 condition is not met** | Must be associated with the public land use. |
| **Office - if the Section 1 condition is not met** | Must be associated with the public land use. |
| **Retail premises - if the Section 1 condition is not met** | Must be associated with the public land use. |

| Use | Condition |
|---|---|
| **Store - if the Section 1 condition is not met** | Must be associated with the public land use. |

**Section 3 - Prohibited**

| Use |
|---|
| **Cinema based entertainment facility** |
| **Corrective institution** |
| **Display home centre** |
| **Funeral parlour** |
| **Industry (other than Automated collection point)** |
| **Saleyard** |
| **Transport terminal (other than Heliport)** |
| **Veterinary centre** |
| **Warehouse (other than Store)** |

## 36.02-2 Permit requirement

14/01/2025
VC237

A permit is required to:

- Construct a building or construct or carry out works. This does not apply to:
  - Pathways, trails, seating, picnic tables, drinking taps, shelters, barbeques, rubbish bins, security lighting, irrigation, drainage or underground infrastructure.
  - Playground equipment or sporting equipment, provided these facilities do not occupy more than 10 square metres of parkland.
  - Navigational beacons and aids.
  - Planting or landscaping.
  - Fencing that is 1 metre or less in height above ground level.
  - A building or works shown in an Incorporated plan which applies to the land.
  - A building or works carried out by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forest Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*.
- Subdivide land.

## 36.02-3 Application requirements

19/01/2006
VC37

An application for a permit by a person other than the relevant public land manager must be accompanied by the written consent of the public land manager, indicating that the public land manager consents generally or conditionally either:

- To the application for permit being made.

- To the application for permit being made and to the proposed use or development.

## 36.02-4 Exemption from notice and review

31/07/2018
VC148

An application to subdivide land which is consistent with an Incorporated plan is exempt from the notice requirements of section 52(1) (a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 36.02-5 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The comments of any public land manager or other relevant land manager having responsibility for the care or management of the land or adjacent land.
- Whether the development is appropriately located and designed, including in accordance with any relevant use, design or siting guidelines.

## 36.02-6 Incorporated plan

19/01/2006
VC37

An Incorporated plan is a plan which shows the way the land is to be used and developed. An Incorporated plan may include the following information:

- Recognition of existing use and how the area is to be developed.
- The building envelope of any proposed buildings.
- Details of any proposed buildings or works.
- The location of pedestrian or vehicle access points or car parking areas.
- The location of any areas for specific uses or a schedule of specific uses which are allowed without permit.
- Topographic details including any proposed cut and fill.
- The location of existing and proposed features.
- The location of existing native and other vegetation and any proposed landscaping works or areas of vegetation to be added or removed.
- The identification of sites of flora or fauna significance (including, in particular, any potentially threatened species or significant habitat) or other places of cultural heritage or scientific value.

The Incorporated plan must be consistent with the intent of the public land reservation under any Act and make reference to relevant policies and guidelines.

An Incorporated plan may be prepared in parts or stages.

## 36.02-7 Use and development of land identified in a schedule

19/01/2006
VC37

Land identified in a schedule to this zone may be used and developed in accordance with the schedule or the specific controls contained in an incorporated document corresponding to the land, provided any condition in the schedule or incorporated document is complied with.

## 36.02-8 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4 unless a different requirement is specified in the schedule to this zone.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 36.02 PUBLIC PARK AND RECREATION ZONE

## 1.0 Permit exemptions and conditions

10/06/2021
C254card

| Public land | Use or development | Conditions |
|---|---|---|
| None specified | None specified | None specified |

## 2.0 Sign requirements

10/06/2021
C254card

| Land | Sign Category |
|---|---|
| All land | Category 3 |

## 3.0 Use and development of land specified in an Incorporated Plan

10/06/2021
C254card

None specified.

## 36.03 PUBLIC CONSERVATION AND RESOURCE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **PCRZ**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To protect and conserve the natural environment and natural processes for their historic, scientific, landscape, habitat or cultural values.

To provide facilities which assist in public education and interpretation of the natural environment with minimal degradation of the natural environment or natural processes.

To provide for appropriate resource based uses.

## 36.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Apiculture** | Must meet the requirements of the Apiary Code of Practice, May 2011. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Boat launching facility**<br>**Camping and caravan park**<br>**Caretaker's house**<br>**Car park**<br>**Informal outdoor recreation**<br>**Interpretation centre**<br>**Jetty**<br>**Kiosk**<br>**Marine dredging**<br>**Mooring pole**<br>**Open sports ground**<br>**Pier**<br>**Pontoon**<br>**Road**<br>**Utility installation (other than Telecommunications facility)** | Must be either of the following:<br>▪ A use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*.<br>▪ Specified in an Incorporated plan in a schedule to this zone. |
| **Any use listed in Clause 62.01 (other than Apiculture)** | |

| Use | Condition |
|---|---|
| **Any other use not in Section 2 or 3** | ▪ Must be a use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*. |

**Section 2 - Permit required**

| Use | Condition |
|---|---|
| **Emergency services facility** | |
| **Renewable energy facility (other than Wind energy facility)** | Must not be located on land reserved under the *National Parks Act 1975*.<br>Must meet the requirements of Clause 53.13. |
| **Wind energy facility** | Must not be located on land described in a schedule to the *National Parks Act 1975*. This does not apply where the Wind energy facility is principally used to supply electricity to a facility used in conjunction with conservation, recreation, administration or accommodation use of the land.<br>Must meet the requirements of Clause 52.32. |

**Section 3 - Prohibited**

| Use |
|---|
| **The use in Section 1 described as 'Any other use not in Section 2 or 3' – if the Section 1 condition is not met** |

## 36.03-2 Permit requirement

14/01/2025
VC237

A permit is required to:

- Construct a building or construct or carry out works. This does not apply to:
  - A building or works shown in an Incorporated plan which applies to the land.
  - A building or works specified in Clause 62.02-1 or 62.02-2 carried out by or on behalf of a public authority or municipal council, if the public authority or municipal council is carrying out functions, powers or duties conferred by or under the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*.
  - A building or works carried out by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the

*Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995,* the *Crown Land (Reserves) Act 1978*, or the *Road Management Act 2004*.

- Subdivide land.

## 36.03-3 Application requirements

20/03/2023
VC229

An application for a permit by a person other than the relevant public land manager must be accompanied by the written consent of the public land manager, indicating that the public land manager consents generally or conditionally either:

- To the application for permit being made.
- To the application for permit being made and to the proposed use or development.

Where there is no public land manager, an application for a permit must be accompanied by the written consent of the Secretary to the Department of Energy, Environment and Climate Action.

## 36.03-4 Exemption from notice and review

31/07/2018
VC148

An application to subdivide land which is consistent with an Incorporated plan is exempt from the notice requirements of section 52(1) (a), (b), and (d), the decision requirements of sections 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 36.03-5 Referral of applications

18/06/2010
VC62

An application to use or develop land for the purpose of an emergency services facility must be referred under Section 55 of the Act to the person or body specified as the referral authority in Clause 66.03.

## 36.03-6 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The comments of any public land manager or other relevant land manager having responsibility for the care or management of the land or adjacent land.
- Whether the development is appropriately located and designed, including in accordance with any relevant use, design or siting guidelines.

## 36.03-7 Incorporated plan

18/06/2010
VC62

An Incorporated plan is a plan which shows the way the land is to be used and developed. An Incorporated plan may include the following information:

- Recognition of existing use and how the area is to be developed.
- The building envelope of any proposed buildings.
- Details of proposed buildings or works.
- The location of pedestrian or vehicle access points or car parking areas.
- The location of any areas for specific uses and a schedule of specific uses which are allowed without permit.
- Topographic details including any proposed cut and fill.
- The location of existing and proposed features.

- The location of existing native or other vegetation and any proposed landscaping works or areas of vegetation to be added or removed.
- The identification of sites of flora or fauna significance (including, in particular, any potentially threatened species or significant habitat) or other places of cultural, heritage or scientific value.

The Incorporated plan must be consistent with the intent of the public land reservation under any Act and make reference to relevant policies and guidelines.

An Incorporated plan may be prepared in parts or stages.

## 36.03-8 Use and development of land identified in a schedule

18/06/2010
VC62

Land identified in a schedule to this zone may be used and developed in accordance with the schedule or the specific controls contained in an incorporated document corresponding to the land, provided any condition in the schedule or incorporated document is complied with.

## 36.03-9 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4 unless a different requirement is specified in the schedule to this zone.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 36.03 PUBLIC CONSERVATION AND RESOURCE ZONE

## 1.0 Permit exemptions and conditions

10/06/2021
C254card

| Public land | Use or development | Conditions |
|---|---|---|
| None specified | None specified | None specified |

## 2.0 Sign requirements

10/06/2021
C254card

| Land | Sign Category |
|---|---|
| None specified | None specified |

## 3.0 Use and development of land specified in an Incorporated Plan

10/06/2021
C254card

None specified.

## 36.04 TRANSPORT ZONE

20/01/2022
VC205

Shown on the planning scheme map as **TRZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for an integrated and sustainable transport system.

To identify transport land use and land required for transport services and facilities.

To provide for the use and development of land that complements, or is consistent with, the transport system or public land reservation.

To ensure the efficient and safe use of transport infrastructure and land comprising the transport system.

## 36.04-1 Table of uses

15/03/2024
VC256

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Railway** | |
| **Railway station** | The combined leasable floor area for the selling of food, drink and other convenience goods and services must not exceed 800 square metres. |
| **Tramway** | |
| **Transport terminal (other than Railway station)** | The use must be carried out by or on behalf of a relevant transport manager. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | The use must be carried out by or on behalf of a relevant transport manager. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |
| **Any other use** | The use must be for a transport purpose and carried out by or on behalf of a relevant transport manager. |

### Section 2 - Permit required

| Use | Condition |
|---|---|

### Section 3 - Prohibited

| Use |
|---|
| **Nil** |

## 36.04-2 Permit requirement

20/01/2022
VC205

A permit is required to:

- Construct a building or construct or carry out works for any use in Section 2 of Clause 36.04-1. This does not apply to navigational beacons and aids.
- Subdivide land.

## 36.04-3 Application requirements

20/01/2022
VC205

An application by a person other than a relevant transport manager on land shown on a planning scheme map as TRZ1 or TRZ2 must be accompanied by the written consent of the Head, Transport for Victoria, indicating that the Head, Transport for Victoria consents generally or conditionally to either:

- The application being made.
- The application being made and to the proposed use or development.

## 36.04-4 Table of transport uses

20/01/2022
VC205

| Shown on the planning scheme map | Purpose of transport use |
|---|---|
| **TRZ1** | State transport infrastructure |
| **TRZ2** | Principal road network |
| **TRZ3** | Significant municipal road |
| **TRZ4** | Other transport use |

## 36.04-5 Decision guidelines

20/01/2022
VC205

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect of the proposal on the development, operation and safety of the transport system.
- Whether the development is appropriately located and designed, including in accordance with any relevant use, design or siting guidelines.

## 36.04-6 Signs

12/02/2024
VC254

Sign requirements are at Clause 52.05.

A permit is required to construct or put up for display a sign:

- over a road carriageway or over land within 600 millimetres of a carriageway.
- on land in a Transport Zone 1, if a Transport Zone 2 or Transport Zone 3 is the adjoining zone.

For all other land in this zone, the sign category which applies is the category which applies to the adjoining zone nearest to the land. If land is equidistant from two or more adjoining zones, the least restrictive category applies.

# 37 SPECIAL PURPOSE ZONES

19/01/2006
VC37

# 37.01 SPECIAL USE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **SUZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To recognise or provide for the use and development of land for specific purposes as identified in a schedule to this zone.

## 37.01-1 Table of uses

19/01/2006
VC37

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Any use in Section 1 of the schedule to this zone** | Must comply with any condition in Section 1 of the schedule to this zone |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any use in Section 2 of the schedule to this zone** | Must comply with any condition in Section 2 of the schedule to this zone. |
| **Any other use not in Section 1 or 3 of the schedule to this zone** | |

### Section 3 - Prohibited

| Use |
|---|
| **Any use in Section 3 of the schedule to this zone** |

## 37.01-2 Use of land

31/07/2018
VC148

Any requirement in the schedule to this zone must be met.

### Application requirements

An application to use land must be accompanied by any information specified in the schedule to this zone.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any guidelines in the schedule to this zone.

## 37.01-3 Subdivision

14/12/2023
VC253

### Permit requirement

A permit is required to subdivide land.

Any requirement in the schedule to this zone must be met.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

### Application requirements

An application to subdivide land must be accompanied by any information specified in the schedule to this zone.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any guidelines in the schedule to this zone.

## 37.01-4 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to construct a building or construct or carry out works unless the schedule to this zone specifies otherwise.

Any requirement in the schedule to this zone must be met.

An apartment development must meet the requirements of Clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 and the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10. | Clause 59.04 |

### Transitional provisions

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clause 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

### Application requirements

An application to construct a building or construct or carry out works must be accompanied by any information specified in the schedule to this zone.

An application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, must be accompanied by an urban context report and design response as required in Clause 58.01.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- For an apartment development, the objectives, standards and decision guidelines of Clause 58.
- Any guidelines in the schedule to this zone.

## 37.01-5 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3 unless a schedule to this zone specifies a different category.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ1.**

### HORTICULTURAL PRESERVATION

### Purpose

To preserve land of high agricultural quality for horticulture and other farming activities.

To discourage non-agricultural and non-soil based uses establishing on soil of high agricultural value.

To protect the area from the encroachment of urban and rural residential type development.

To minimise the potential for conflict between residents and normal farming practices that are related to the conduct of agricultural activities.

To encourage sustainable farming activities based on whole farm and catchment planning principles on an individual and community basis.

## 1.0 Table of uses

06/08/2026
C283card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 6 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Crop raising (other than Timber production)** | |
| **Grazing animal production** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2. |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal husbandry and Crop raising)** | |

| Use | Condition |
|---|---|
| **Animal husbandry (other than Domestic animal boarding, Apiculture, Grazing animal production, Intensive animal production, Pig farm, Poultry farm and Poultry hatchery)** | The gross floor area of all buildings associated with the use must not exceed 500 square metres. |
| **Caretaker's house** | Must be the only caretaker's house on the lot.<br>Must meet the requirements of Clause 2 of this schedule. |
| **Dependent person's unit** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of Clause 2 of this schedule. |
| **Dwelling (other than Bed and breakfast and Caretaker's house)** | Must be the only dwelling on the lot.<br>The lot must be at least 10 hectares. This does not apply to lots which were created under the provisions of a planning scheme.<br>This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling<br>Must meet the requirements of Clause 2 of this schedule. |
| **Group accommodation** | |
| **Host farm** | |
| **Mineral, stone, or soil extraction (other than Mineral exploration, Mining, and Search for stone)** | |
| **Place of assembly (other than Carnival and Circus)** | |
| **Plant nursery** | |
| **Primary produce sales** | The gross floor area of all buildings associated with the use must not exceed 500 square metres. |
| **Research centre**<br>**Restaurant** | |
| **Rural industry (other than Abattoir and Sawmill)** | The gross floor area of all buildings associated with the use must not exceed 500 square metres. |
| **Store (other than Boat and caravan storage)** | |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Abattoir** |
| **Accommodation (other than Dependent person's unit, Dwelling, Group accommodation, and Host farm)** |
| **Boat and caravan storage** |
| **Cemetery** |
| **Child care centre** |
| **Cinema based entertainment facility** |
| **Crematorium** |
| **Display home** |
| **Domestic animal boarding** |
| **Freeway service centre** |
| **Funeral parlour** |
| **Hospital** |
| **Industry (other than Automated collection point and Rural industry)** |
| **Intensive animal production** |
| **Leisure and recreation (other than Informal outdoor recreation)** |
| **Office** |
| **Pig farm** |
| **Poultry farm** |
| **Poultry hatchery** |
| **Recreational boat facility** |
| **Retail premises (other than Plant nursery, Primary produce sales, and Restaurant)** |
| **Saleyard** |
| **Sawmill** |
| **Service station** |
| **Veterinary centre** |
| **Warehouse (other than Store)** |

## 2.0 Use of land

10/06/2021
C254card

A lot may be used for one dwelling (excluding a caretaker's house and dependent person's unit) provided the following requirements are met:

- Access must be provided via an all-weather road to the satisfaction of the responsible authority.
- The dwelling must be connected to reticulated sewerage or if not available, the waste water must be treated and retained on-site in accordance with the State Environment Protection Policy (Waters of Victoria) under the *Environment Protection Act 1970*.

- The dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use.
- The dwelling must be connected to a reticulated electricity supply or have an alternative energy source to the satisfaction of the responsible authority.

If the use is a caretaker's house or dependent person's unit, an agreement must be entered into under Section 173 of the Act requiring the house or unit to be removed or demolished if the use ceases.

## 3.0 Subdivision

10/06/2021
C254card

Each lot must be at least 25 hectares.

A permit may be granted to create smaller lots if the subdivision is the re-subdivision of existing lots provided:

- No additional lots are created.
- The potential to create new lots is not increased.
- The potential for the number of dwellings is not increased.
- The proposed lots do not compromise the purpose of the zone.

## 4.0 Buildings and works

04/05/2022
VC210

A permit is not required to construct a building or construct or carry out works except for any of the following:

- A building or works associated with a use in Section 2 of Clause 1 of this schedule.
- A building which is within any of the following setbacks:
  - 100 metres from a Transport Zone 2.
  - 20 metres from any other boundary.
  - 100 metres from a waterway.
- A building with a gross floor area which exceeds 200 square metres.
- A building which exceeds 7 metres in height.
- Excavation or land fill works which are in excess of 1 metre in depth or height.

## 5.0 Signs

10/06/2021
C254card

None specified.

### 6.0 Application requirements

An application to use or subdivide land, construct a building or construct or carry out works must be accompanied by a report which explains how the proposal:

- Complies with the purposes of the zone.
- Responds to the decision guidelines for the zone.

### 7.0 Decision guidelines

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, the responsible authority must consider, as appropriate:

- The Land Capability Study for the Cardinia Shire (February 1997).

- Whether the land is liable to flooding and any advice received from Melbourne Water.
- Whether the use, building, works or subdivision will be detrimental to the horticultural significance of the area.
- Whether the dwelling is reasonably required for the operation of the rural activity being conducted on the land.
- Whether the use utilises the high quality soils for horticultural or agricultural pursuits.
- The impact of the use, building, works or subdivision on the character and appearance of the area.
- Whether the site is suitable for the use, building, works or subdivision and the compatibility of the proposal with adjoining and nearby farming and other land uses.

10/06/2021
C254card

## SCHEDULE 3 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ3**.

### TYNONG RACECOURSE AND TRAINING FACILITY

#### Purpose

To provide for the use and development of the land for Racecourse including Horse stables and horse training facility and the co-location of other uses legitimately connected/ operating in conjunction with these pursuits.

To provide for dwellings on the land that are used and located in conjunction with horse training facilities and horse stables.

To ensure that horse racing and training facilities are established in a manner which does not cause loss of amenity to, and is consistent with, surrounding land uses including metropolitan green wedge land.

## 1.0 Table of uses

06/08/2026
C283card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Agriculture (other than Domestic animal husbandry, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery, Racing Dog Husbandry and Timber production)** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Betting agency** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Car park** | |
| **Education centre (other than Primary school or Secondary school)** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Food and drink premises (other than Convenience restaurant, Hotel and Tavern)** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Function centre** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Helicopter landing site** | Must be in conjunction with the Major sports and recreation facility. |
| **Home based business**<br>**Major sports and recreation facility**<br>**Mineral exploration** | |
| **Minor sports and recreation facility (other than Outdoor recreation facility)** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |

| Use | Condition |
|---|---|
| **Mining** | Must meet the requirements of Clause 52.08-2 |
| **Racing dog training** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Search for stone** | Must not be costeaning or bulk sampling |
| **Veterinary centre** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Convenience restaurant** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Dwelling** | Must meet the requirements in Clause 2. |
| **Equestrian supplies** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Hotel** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Industry (other than Automated collection point)** | |
| **Market**<br>**Mineral, stone, or soil extraction (other than Mineral exploration, Mining, and Search for stone)** | |
| **Office** | Must be directly associated with the management of the racecourse. |
| **Residential hotel** | Must be used in conjunction with a Major sports and recreation facility. |
| **Tavern** | Must be generally in accordance with Map 1 and Table 1 in this schedule. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Dwelling)** |
| **Domestic animal husbandry** |
| **Convenience restaurant** |

| Use |
| --- |
| **Gaming premises (other than Betting agency)** |
| **Intensive animal production** |
| **Motor racing track** |
| **Outdoor recreation facility** |
| **Pig farm** |
| **Poultry farm** |
| **Poultry hatchery** |
| **Place of assembly (other than Function centre)** |
| **Retail premises (other than Food and drink premises, Market or Equestrian supplies)** |
| **Racing dog husbandry (other than Racing dog training)** |
| **Timber production** |

## 2.0 Use of land

10/06/2021
C254card

All use must be generally in accordance with Map 1 and Table 1 in this schedule.

### Environment Management Plan

Prior to the commencement of any use on the land, an Environmental Management Plan must be prepared and approved to the satisfaction of the responsible authority. The Environmental Management Plan is to provide for:

- The impact of the use or development on the flora and fauna on the site and its surrounds and methods to avoid, minimise or mitigate those impacts.
- The need to protect and enhance the biodiversity of the area, including the retention of native vegetation and fauna habitat and the re-vegetation of important areas of habitat and integration of native vegetation into landscaping of the site.
- Avoidance and mitigation of impacts on Growling Grass Frog ecological community and habitat and the implementation of a Growling Grass Frog Management Plan approved to the satisfaction of the responsible authority.
- Management of impacts on Ararat Creek and surrounding environment.
- The management, treatment and disposal of stormwater, litter and effluent on site to avoid and minimise impacts of contaminants, nutrient and litter entering Ararat Creek, other waterways and on native vegetation.
- An assessment of the likely environmental impact on the natural physical features and resources of the area and in particular any impact caused by the proposal on soil and water quality and by the emission of effluent, noise, dust and odours.
- Water sensitive urban design including methods for water collection and reuse.
- The management of any impacts on adjoining land associated with the horse racing and training facilities including noise, dust, traffic, hours of operation, night-lighting, light spill, effect on the privacy of adjoining properties, solar access, and glare.
- The management of impacts, if any, during the construction and carrying out of works, including dust, noise, litter, traffic and other amenity impacts.
- The management of areas identified in the reference document for future use and development.

### Use of land for a Dwelling

A permit may only be granted to use land for the purposes of a Dwelling if:

- The use is in conjunction with the business of horse training.
- Training facilities have been constructed on the land or a permit has been issued to construct training facilities associated with the dwelling.
- The occupier is a 'Trainer' within the meaning of the Australian Rules of Racing, as amended from time to time, or is an employee of a Trainer. For the avoidance of doubt, a dwelling may only be occupied by a horse Trainer or employee of a Trainer together with their domestic partner and any dependents.
- There is only one dwelling on a lot.
- The dwelling can be connected to a reticulated sewerage system or if not available, the waste water can be treated and retained on-site in accordance with the State Environment Protection Policy (Waters of Victoria) under the Environment Protection Act 1970.
- The dwelling can be connected to a reticulated potable water supply or is able to have an alternative potable water supply with adequate storage for domestic use as well as for firefighting purposes.
- The dwelling can be connected to a reticulated electricity supply or have an alternative energy source.
- The permit is issued for a dwelling subject to a condition requiring the owner to enter into an agreement with the responsible authority under section 173 of the *Planning and Environment Act 1987* that provides for or requires that:
  - The land on which the dwelling is located must be used for the purposes of horse training and horse stables;
  - The land may be used for the purposes of a dwelling only if:
    - It is in conjunction with horse training and horse stables.
    - It is occupied by a 'Trainer' within the meaning of the Australian Rules of Racing or an employee of a Trainer'. A horse 'Trainer' may occupy the dwelling together with their domestic partner and any dependants.
    - There is only one dwelling on a lot.
  - Ongoing management arrangements of private property and common property.

## 3.0 Subdivision

10/06/2021
C254card

A permit is required to subdivide land.

A permit may only be granted to subdivide land if:

- The racetrack and training track have been constructed or are under construction on the site.

The subdivision is generally in accordance with Clause 6.

- Each lot to be created is at least 0.4 hectares in area.
- The permit is issued subject to a condition requiring the owner to enter into an agreement with the responsible authority under section 173 of the *Planning and Environment Act 1987* that provides for or requires that:
  - The land must be used for the purposes of horse training and horse stables.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The layout of the subdivision, suitability of the location of the horse training facilities on the site and access arrangements.
- The location and design of existing and proposed infrastructure services including gas, water, drainage, telecommunications and sewerage facilities which minimise the visual impact on the landscape.
- The Environmental Management Plan approved in accordance with clause 2.0.
- The integration of the subdivision with other use and development on the site.

## 4.0 Buildings and works

10/06/2021
C254card

A permit is required to construct a building or construct or carry out works.

All buildings and works must be generally in accordance with Clause 7.

No buildings and works (other than associated with the racetrack) are to be located within 100 meter of the Nar Nar Goon-Longwarry Road.

The following application requirements apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Demonstrated compliance with the Environment Management Plan approved under clause 2.0 to the schedule.
- A plan drawn to scale and dimensioned which shows:
  - The boundaries and dimensions of the site.
  - The location and names of adjoining roads.
  - The layout of existing and proposed buildings and works.
  - The location of access ways, internal vehicle road network, vehicle parking and loading areas.
  - The location, layout and planting schedule for all landscape areas.
  - Elevations detailing facade articulation and external materials, colours and finishes.
  - Stages, if any, in which the land is to be developed.
- A written summary of the proposed uses of the building, including, but not limited to, days and hours of operation and staffing levels.
- Transport of materials, goods or commodities to or from the land.
- Emission of noise, artificial light, vibration, dust, waste water, or waste products.

## 5.0 Signs

06/08/2026
C283card

None specified.

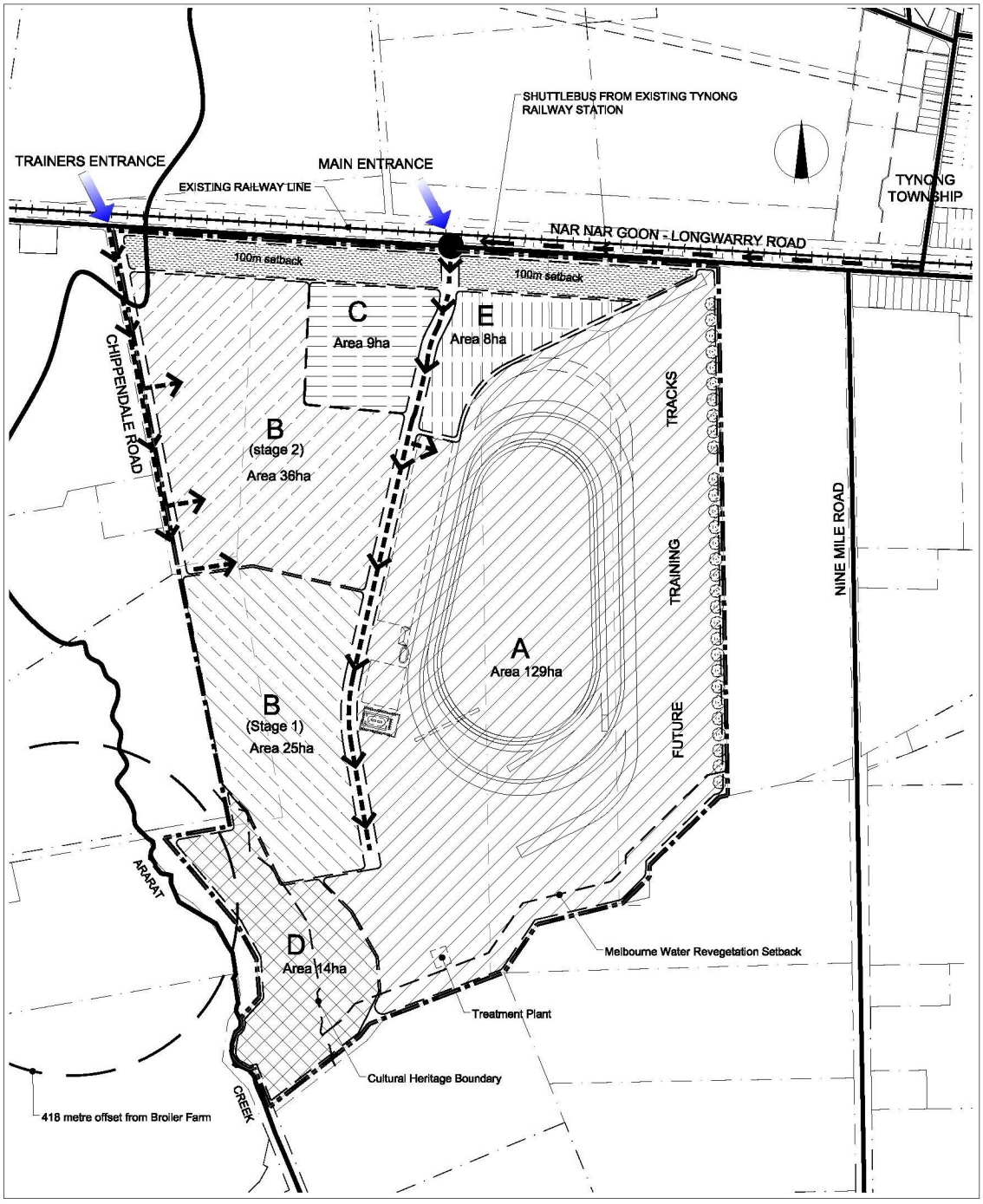
### 6.0 Decision guidelines

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, the responsible authority must consider, as appropriate:

- The Environmental Management Plan approved in accordance with clause 2.0.
- The impact of the use, building, works or subdivision on the existing and surrounding land uses and whether it supports the values of the surrounding green wedge land.
- The location and extent of any buildings and works with respect to the natural environment, landscape values, vistas and water features and the measures to be undertaken to minimise any adverse impacts.
- The design of buildings, works and landscape treatment.
- The need to minimise any adverse impacts of siting, design, height, bulk, and colours and materials to be used, on landscape features, major roads and vistas.
- The location and design of proposed infrastructure services which minimises the visual impact on the landscape.
- The need to minimise adverse impacts on the character and appearance of the area or features of archaeological, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of existing and proposed roads, site access and parking and their impact on the landscape and impact of the use and subdivision to the extent which traffic generation may require additional traffic management programs to be initiated.

## 7.0 Tynong Racecourse and Training Facilities

### Map 1 to Schedule 3 to Clause 37.01



## Table 1 to Schedule 3 to Clause 37.01

| Land Use | Precinct & Approx Land Area | Road Access, Connectivity, Parking, Public Transport | Internal Movement Network, Integration Principles |
|---|---|---|---|
| ▪ Racecourse<br>▪ Car park<br>▪ Mounting yard<br>▪ Grandstand /Administration<br>▪ Float park<br>▪ Access tunnel | **Precinct A**<br>Land area 129ha | ▪ Minimum car spaces 2500.<br>▪ Car Parking for racing facilities to be all weather.<br>▪ Access to car park directly at main entrance at Longwarry Road.<br>▪ Shuttle bus route initially from Tynong Station until rail station for racing events established as and when required, but beyond immediate planning. | ▪ Race day access for patrons via main entrance ensures separation of horse float access from spectator access essential for safety criteria. |
| Dwelling (other than a Bed and breakfast)<br>▪ Dwellings (Trainer Allotments)<br>– Lot sizes 0.4ha-0.8ha<br>– Stage 1 Trainers Lots (20 lots)<br>– Stage 2 Trainers Lots (50-100 lots) | **Precinct B**<br>Land area 61ha | ▪ Access for both race day horse floats and trainers facilities via Chippendale Road entrance as indicated.<br>▪ Bus route and Patrons entrance via main entrance at Longwarry Road. | ▪ Access for both horse floats via Chippendale Road and trainers allotments ensures separate connectivity to track and stripping stalls for both external and internal horse access. |
| Ancillary Activities:<br>▪ Residential hotel<br>▪ Function and conference centre | **Precinct C**<br>Land area 9ha | ▪ Ancillary and equine related facilities to have designated parking at each facility.<br>▪ Access to ancillary facilities to be made through main entrance.<br>▪ Any heavy duty vehicles/horse floats via Chippendale Road to ensure segregation from patrons/spectator vehicles. | ▪ Access to be used for residential hotel/exhibition centre. Located centrally between the racetrack and associated facilities and Longwarry Road to aid ease of access from public/race goers. |
| Environment<br>▪ Flora / Fauna habitat<br>▪ Wetlands<br>▪ Water harvesting<br>▪ Growling Grass Frog habitat | **Precinct D**<br>Land area 14ha | ▪ Vehicular access via main entrance and internal road network. | ▪ Area provides for integrated water treatment/recycling as part of a precinct wide environmental management plan strategy. |
| Future Development (examples)<br>▪ Veterinary Centre<br>▪ Horse sales<br>▪ Feed merchant<br>▪ Recycled manure sales | **Precinct E**<br>Land area 8ha | ▪ Future development access to be via Longwarry Road, either directly from racing entrance or via a service road as and when required subject to traffic. Development to have appropriate road frontage treatment, vegetation and/or screening along Longwarry Road. | ▪ As a related and integrated service area, this site will provide access directly to Tynong/Nar Nar Goon as well as internal access to the site. |
| Agriculture (other than Domestic animal husbandry, Intensive | **Setback land** | ▪ To be used for landscaping, horse spelling and a variety of agricultural uses. | ▪ N/A |

| Land Use | Precinct & Approx Land Area | Road Access, Connectivity, Parking, Public Transport | Internal Movement Network, Integration Principles |
|---|---|---|---|
| animal production, Pig farm, Poultry farm, Poultry hatchery and Racing dog husbandry) | area 11ha (100m setback to Longwarry Road) | | |

10/06/2021
C254card

# SCHEDULE 4 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ4**.

## SPECIAL USE ZONE GROWTH AREAS (CARDINIA ROAD EMPLOYMENT PRECINCT)

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework including the local planning policies.

To manage the transition of non-urban land into an urban land context in accordance with the *Cardinia Road Employment Precinct Structure Plan* (September 2010).

To identify land within a growth area where the Growth Areas Infrastructure Contribution is not applicable.

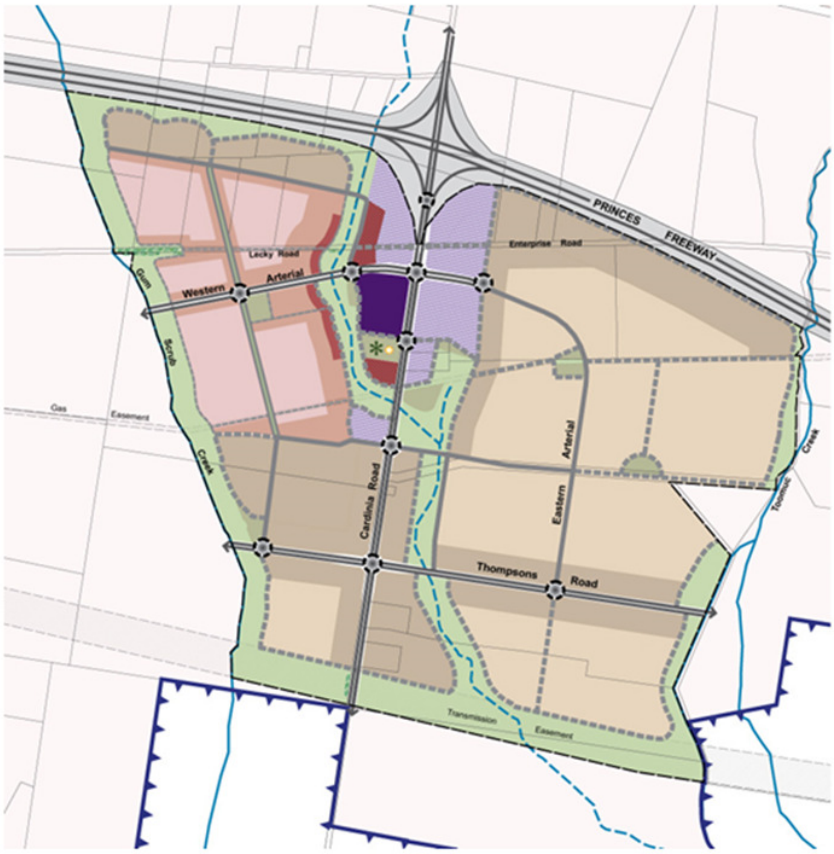
To provide a range of uses and the development of land in accordance with the *Cardinia Road Employment Precinct Structure Plan* (September 2010).

## 1.0 The Plan

10/06/2021
C254card

Plan 1 shows the future urban structure proposed in the Cardinia Road Employment Precinct Structure Plan (September 2010).

## Plan 1 to Schedule 4 to Clause 37.01




**LEGEND**

- Precinct Structure Plan Area
- Urban Growth Boundary

**Road Network**

- State Freeway
- Arterial Road
- Connector Street
- Residential Connector Street (Boulevard
- Access Street - level 2
- Access Street - level 1
- Controlled Intersections

**Employment Land**

- Commercial
- Activity Centre
- Service Business
- Industrial

**Residential Land**

- High Density Residential 2
- High Density Residential 1
- Medium Density Residential
- Conventional Residential

**Heritage and Community**

- Post Contact Heritage Site
- Community Facility

**Open Space and Environment**

- Unencumbered Open Space
- Encumbered Open Space
- Existing Creeks
- Drainage Lines
- Ecological Vegetation Classes (EVCs) to be Retained

**Other land**

- Existing Major Easements
- Future Urban Land

## 2.0 Use and development

04/11/2010
C130

## 2.1 The land

10/06/2021
C254card

The use and development provisions specified in this schedule apply to the land shown in Plan 1 of this Schedule and shown as Special Use Zone 4 on the planning scheme maps.

## 2.2 Table of uses

06/08/2026
C283card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Informal outdoor recreation**<br>**Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2. |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Telecommunications facility** | Buildings and works must meet the requirements of Clause 52.19. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Emergency services facility** | Must not be located on land reserved under the *National Parks Act 1975*. |
| **Renewable energy facility (other than Wind energy facility)** | Must meet the requirements of Clause 53.13. |
| **Wind energy facility** | Must not be located on land reserved under the *National Parks Act 1975*.<br>Must meet the requirements of Clause 52.32. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | Any gas holder, or sewerage or refuse treatment or disposal works, must be at least 30 metres from land (not a road) which is designated for residential use in Plan 1, or shown as Activity Centre or Commercial. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation** |

| Use |
| --- |
| **Agriculture** |
| **Cemetery** |
| **Freeway service centre** |
| **Industry (other than Automated collection point)** |
| **Leisure and recreation (other than Informal outdoor recreation)** |
| **Intensive animal production** |
| **Office** |
| **Place of assembly (other than Amusement parlour, Exhibition centre, Function centre, Hall, Library, Nightclub, Restricted Place of Assembly)** |
| **Recreational boat facility** |
| **Retail premises** |
| **Saleyard** |
| **Warehouse** |
| **Winery** |

### Use of land

The use of land must be generally in accordance with the Cardinia Road Employment Precinct Structure Plan (September 2010).

## 2.3 Permit Requirements

04/11/2010
C130

### Specific provisions – Removal of existing waterbodies

A permit is required to remove any existing waterbody, including dams and wetlands.

## 3.0 Application requirements

04/11/2010
C130

### Subdivision of land

All applications for subdivision must be accompanied by the following information to the satisfaction of the responsible authority:

- Details of the proposed use and development of each part of the land.
- A table setting out the amount of land allocated for the proposed uses.
- The staging of road network development within the subject land.
- A plan showing proposed encumbered and unencumbered open space areas including land designated as 'waterways - drainage corridors' in Plan 11 of the *Cardinia Road Employment Precinct Structure Plan (September 2010)*, and a description of role and purpose to the satisfaction of Melbourne Water and the responsible authority.
- A site assessment of the land by a suitably qualified environmental professional including:
  - detail of the nature of the previous and existing land use/activities on the land;
  - an assessment of the potential level and nature of contamination on the land.
  - advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the Potentially Contaminated Land General Practice Note June 2005, DSE.

### Specific Requirements – Lot 1 TP542938 (PSP Property Number 22)

Any application to remove Dam 38 on Lot 1 TP542938 (270 Cardinia Road, Officer South) must include written advice from the Department of Sustainability and Environment that it is satisfied there has been successful colonisation and breeding of Growling Grass Frogs (GGFs) (defined by the presence of metamorphs) at a minimum of one waterbody shown in Plan 13 of the *Cardinia Road Employment Precinct Structure Plan (September 2010)*.

## 4.0 Conditions for permits – general

04/11/2010
C130

A planning permit must include a condition or conditions which ensure that any requirements or conditions set out in the *Cardinia Road Employment Precinct Structure Plan (September 2010)* are implemented as part of the planning permit or the plans endorsed under the permit.

Any permit granted for subdivision, or the construction of a building or the carrying out of works in respect of land where a Native Vegetation Precinct Plan has identified any native vegetation to be retained must contain the conditions set out in the Cardinia Road Employment Precinct Native Vegetation Precinct Plan.

### Environmental Assessment of Potentially Contaminated Land

If an application for a permit includes a site assessment recommending an environmental audit of all or part of the land, then the permit must contain conditions that for that part of the land recommended for the audit;

1. Either:

- A certificate of environmental audit issued for the relevant land in accordance with Part 1XD of the *Environmental Protection Act 1970*, or
- A statement by an environmental auditor appointed under the *Environment Protection Act 1970,* in accordance with Part 1XD of that Act that the environmental conditions of the relevant land are suitable for a sensitive use (with or without conditions on the use of the site);

must be provided to the responsible authority before any building on the relevant land is occupied; and

2. If a statement by an environmental auditor is provided rather than a certificate of environmental audit and the statement indicates that the environmental conditions of the relevant land are suitable for a sensitive use subject to conditions, the owner of the land must enter into an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* before any building on the relevant land is occupied to provide for;

- ongoing compliance with all conditions in the Statement by the Environmental Auditor;
- the responsible authority's reasonable legal costs and expenses of drafting/reviewing and registering the agreement to be borne by the owner of the relevant land.

### Construction Environmental Management Plan Requirements

A permit to use or subdivide land, or to construct a building or construct and carry out works must contain a condition that prior to the commencement of any buildings or works, Construction Environmental Management Plan (CEMP) is to be prepared.

The CEMP must specifically address significant flora and fauna, where the buildings or works are within:

- 50 metres of any native vegetation to be retained in the Cardinia Road Employment Precinct Native Vegetation Precinct Plan; and/or
- 200 metres of any waterbody (including creeks, drains, dams and wetlands) under the provisions of the Cardinia Road Employment Precinct Conservation Management Plan for GGF.

The CEMP must address all requirements specified in section 4.5.6 of the *Cardinia Road Employment Precinct Structure Plan (September 2010)* and be to the satisfaction of the Department of Sustainability and Environment and the responsible authority.

### Conservation Management Plan - Growling Grass Frog

Where a Conservation Management Plan (CMP) for GGF has been approved by the Secretary to the Department of Sustainability and Environment (DSE) and it applies to the land, any permit granted for subdivision or the construction of a building or the carrying out of works that directly or indirectly results in the destruction of habitat for the GGF must include the following conditions as appropriate:

- Prior to any works commencing within 100 metres of the edge of any waterbody which is to be retained, a highly visible fence is to be installed 20 metres from the edge of the waterbody.
- No dumping of soil or materials is to occur within 30 metres of any waterbody.
- No vehicle access is permitted within 30 metres of any waterbody.
- No polluted and/or sediment laden run-off is to be discharged directly or indirectly into drains or watercourses.
- Pollution or litter traps must be provided on the land at appropriate points along the drainage system or drainage lines.
- The actions which identify the responsible agent as the "landowner" in Table A2.1 of the CMP for the GGF must be implemented to the satisfaction of the Department of Sustainability and Environment.
- Water run-off from construction sites must be managed to maintain water quality of dams.
- A salvage and translocation plan must be prepared and implemented to the satisfaction of DSE and the responsible authority, in accordance with section 3.4.3 of the CMP, where:
  - construction of a building or carrying out of works is within 200 metres of an existing waterbody; or
  - an existing waterbody is being removed, as approved under the CMP.

## 4.1 Conditions for permits - subdivision

04/11/2010
C130

Any permit granted for subdivision must contain the following conditions as appropriate:

- At the time of subdivision, or other time as agreed with Melbourne Water, land shown as 'waterways – drainage corridor' in Plan 6 of the *Cardinia Road Employment Precinct Structure Plan (September 2010)* must be vested in Melbourne Water.
- At the time of subdivision, or other time as agreed with Cardinia Shire Council, land identified as 'Project Land' in the infrastructure funding agreement under Section 173 of the *Planning and Environment Act (1987)* for the Cardinia Road Employment Precinct must be vested in Cardinia Shire Council.
- Before the Statement of Compliance is issued under the *Subdivision Act 1988*, the applicant or owner must make a financial contribution to Melbourne Water to fund the management and maintenance of waterways to fulfil the requirements of the CMP for GGF.

## 5.0 Signs

10/06/2021
C254card

The following sign controls apply:

| Land (shown in Plan 1) | Sign Requirements |
|---|---|
| **Land shown as Open Space, community facilities or other public use** | Category 3 |

10/06/2021
C254card

## SCHEDULE 5 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ5**.

### CARDINIA MOTOR RECREATION AND EDUCATION PARK

### Purpose

To provide for the use and development of a motor recreation and education facility.

To provide for complementary recreation and community uses.

1.0
01/12/2023
VC217

## Table of uses

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Car sales** | Must not occur for more than 12 days per year.<br>Must be in conjunction with the Motor Recreation and Education Park. |
| **Education centre (other than Primary school and Secondary school)** | |
| **Informal outdoor recreation** | |
| **Market** | Must not occur for more than 12 days per year. |
| **Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2. |
| **Minor sports and recreation facility (other than Outdoor recreation facility)** | |
| **Railway** | |
| **Restricted place of assembly** | |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation** | Must be generally in accordance with the development plan and be associated with the Motor Recreation and Education Park |

| Use | Condition |
|---|---|
| **Agriculture (other than Apiculture)** | |
| **Convenience restaurant** | |
| **Convenience shop** | |
| **Industry (other than Automated collection point)** | |
| **Major sports and recreation facility** | |
| **Motor racing track** | |
| **Outdoor recreation facility** | |
| **Place of assembly (other than Circus and Restricted place of assembly)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Adult sex product shop** |
| **Cinema based entertainment facility** |
| **Gambling premises** |

## 2.0 Use of land

10/06/2021
C254card

### Decision Guidelines

The following decision guidelines apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The cumulative impacts of all events and meetings held at the site.
- The impact on existing and proposed nearby uses.

## 3.0 Subdivision

29/09/2011
C160

Each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase. An agreement under Section 173 of the Act must be entered into with the owner of each lot created which ensures that the land may not be further subdivided so as to increase the number of lots. The agreement must be registered on title. The requirement to enter into an agreement only applies to a lot that could be further subdivided in accordance with this scheme.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

## 4.0 Buildings and works

10/06/2021
C254card

### Decision Guidelines

The following decision guidelines apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Traffic impacts on nearby uses and the arterial road network.
- Landscape treatments.
- Interface with other areas.
- Parking and site access.
- Location and adequacy of loading and service areas.
- Adequacy lighting to provide a safe night time environment, where relevant.

## 5.0 Signs

10/06/2021
C254card

A permit is not required to construct or display a sign on any land within the Cardinia Motor Recreation and Education Park which is directed toward people attending the Park and that cannot be seen from outside the facility.

Sign requirements are at Clause 52.05. All land located within this schedule to this zone is in Category 2.

10/06/2021
C254card

## SCHEDULE 6 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ6.**

### PRIVATE EDUCATION FACILITY

### Purpose

To provide for areas in private ownership to be used for an education centre.

To ensure that the use and development of these facilities takes place in an orderly and proper manner and does not cause loss of amenity to the neighbourhood.

1.0
06/08/2026
C283card

## Table of uses

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Accommodation** | Must be in accordance with a master plan prepared to the satisfaction of the responsible authority.<br>Must be in conjunction with use of the land for an education centre. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Car park** | Must be in accordance with a master plan prepared to the satisfaction of the responsible authority. |
| **Child care centre** | Must be in accordance with a master plan prepared to the satisfaction of the responsible authority. |
| **Education centre** | Must be in accordance with a master plan prepared to the satisfaction of the responsible authority. |
| **Home based business** | |
| **Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2. |
| **Minor sports and recreation facility** | Must be in accordance with a master plan prepared to the satisfaction of the responsible authority. |
| **Place of worship** | Must be in accordance with a master plan prepared to the satisfaction of the responsible authority. |
| **Railway** | |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

## Section 2 - Permit required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal training, Apiculture, Domestic animal boarding, Horse riding school, Horse stables, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery, Racing dog training)** | |
| **Car wash**<br>**Market**<br>**Convenience shop**<br>**Food and drink premises**<br>**Leisure and recreation (other than Minor sports and recreation facility and Motor racing track)**<br>**Mineral, stone, or soil extraction (other than Extractive industry, Mineral exploration, Mining, and Search for stone)** | |
| **Office** | The leasable floor area must not exceed 500 square metres. |
| **Place of assembly (other than Amusement parlour, Nightclub, and Place of worship)**<br>**Plant nursery**<br>**Store**<br>**Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

## Section 3 - Prohibited

| Use |
|---|
| **Accommodation – if the Section 1 condition is not met** |
| **Amusement parlour** |
| **Domestic animal boarding** |
| **Animal training** |
| **Cemetery** |
| **Crematorium** |
| **Extractive industry** |
| **Horse riding school** |
| **Horse stables** |
| **Industry (other than Automated collection point and Car wash)** |
| **Intensive animal production** |
| **Motor racing track** |

| Use |
| --- |
| **Nightclub** |
| **Pig farm** |
| **Poultry farm** |
| **Poultry hatchery** |
| **Racing dog training** |
| **Retail premises (other than Market, Convenience shop, Food and drink premises, and Plant nursery)** |
| **Saleyard** |
| **Service station** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 2.0 Use of land

10/06/2021
C254card

### Application requirements

The following application requirements apply to an application for a permit to use land under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Any master plan for the site prepared to the satisfaction of the responsible authority.
- The purpose of the use and the types of activities that will be carried out.
- The likely effects, if any, on adjacent land including noise levels, traffic and hours of operation.

### Exemption from notice and review

An application to use land that is in accordance with a master plan prepared to the satisfaction of the responsible authority is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The effect that the proposed use may have on existing uses.
- The effect that the proposed use may have on the amenity of the neighbourhood.

## 3.0 Subdivision

10/06/2021
C254card

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase. An agreement under Section 173 of the Act must be entered into with the owner of each lot created which ensures that the land may not be further subdivided so as to increase the number of lots. The agreement

must be registered on title. The requirement to enter into an agreement only applies to a lot which could be further subdivided in accordance with this scheme.

- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

## 4.0 Buildings and works

28/04/2026
VC232

### Permit requirement

No permit is required to construct a building or construct or carry out works for the following:

- Pathways, trails, seating, picnic tables, drinking taps, shelters, barbeques, rubbish bins, security lighting, irrigation, drainage or underground infrastructure.
- Playground or sporting equipment.
- Planting or landscaping.

### Application requirements

The following application requirements apply to an application for a permit to construct a building or construct or carry out works under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Any master plan for the site prepared to the satisfaction of the responsible authority and the requirements of the Roads Corporation.
- A plan, drawn to scale, which shows:
  - The boundaries and dimensions of the site.
  - Relevant ground levels.
  - Adjoining roads.
  - The location, height and purpose of buildings and works on adjoining land.
  - The layout and use of existing and proposed buildings and works including driveways and car parking and loading areas.
  - Elevation drawings indicating the colour and materials of all proposed buildings and works.
  - Construction details of all drainage works, driveways and car parking and loading areas.
  - Details of existing and proposed landscaping.

An application to use or develop land within 200 metres of a gas pipeline must be referred in accordance with Section 55 of the Act to the referral authority specified in Clause 66.04 or a schedule to that clause unless in the opinion of the responsible authority the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the referral authority.

### Exemption from notice and review

An application to construct a building or construct or carry out works that is in accordance with a master plan prepared to the satisfaction of the responsible authority is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

### Decision guidelines

The following decision guidelines apply to an application for a permit to construct a building, construct or carry out works under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The interface with adjoining land, especially the relationship with residential areas.
- The appearance and bulk of buildings having regard to the adjoining land, especially the relationship with residential areas.
- The effect of the proposed buildings and works on the amenity of the neighbourhood, including the effects of noise, lighting, overshadowing and privacy.
- The provision of land for landscaping and beautification.
- The location and type of access to the site.
- The views of the Roads Corporation where there is a change in the intensity of the use or a change in access arrangements for the site that could impact on the operation of a Roads Corporation managed road.
- The provision for car parking.
- The movement of vehicles providing for supplies, waste removal, emergency services and public transport.
- Loading and service areas.
- The safe movement of pedestrians and cyclists across nearby road and rail corridors including at rail level crossings.
- The need for the preparation and implementation of a traffic management plan to the requirements of the Roads Corporation and to the satisfaction of the responsible authority.

## 5.0 Signs

10/06/2021
C254card

None specified.

10/06/2021
C254card

## SCHEDULE 7 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ7.**

### SOUTH EAST FOOD PRODUCTION, EXPORT AND EMPLOYMENT NODE

#### Purpose

To enhance the local, national and global market competitiveness of food production within the South-East region.

To provide for an integrated supply chain enabling the use and development of the site for co-location of food processing facilities.

To provide for the continued use of land for abattoir purposes as well as the use and development of land for food production through the co-location of other uses.

To protect the area from the encroachment of sensitive land uses.

To promote food security and sustainable agriculture in the region.

## 1.0 Table of uses

06/08/2026
C283card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal training, Aquaculture, Domestic animal husbandry, Horse riding school, Racing dog husbandry)** | |
| **Apiculture** | Must meet the requirements of the Apiary Code of Practice, May 1997. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Car park** | |
| **Carnival** | Must meet the requirements of 'A Good Neighbour' Code of Practice for a Circus or Carnival, October 1997. |
| **Circus** | Must meet the requirements of 'A Good Neighbour' Code of Practice for a Circus or Carnival, October 1997. |
| **Industry (other than Automated collection point)** | Must be associated with primary production and food processing facilities on the land or adjacent land |
| **Mineral exploration**<br>**Manufacturing sales**<br>**Milk depot** | |
| **Mining** | Must meet the requirements of Clause 52.08 |
| **Minor utility installation** | |

| Use | Condition |
|---|---|
| **Natural systems** | |
| **Primary produce sales** | |
| **Road** | |
| **Rural store** | |
| **Telecommunications facility** | |
| **Warehouse (other than Fuel depot, Mail centre, Shipping container storage and Boat and caravan storage)** | Must be associated with primary production or must be associated with food processing facilities on the land or adjacent land |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Caretaker's house** | |
| **Office** | Must be associated with primary production and food processing facilities on the land or adjacent land |
| **Shipping container storage** | Must be associated with primary production and food processing facilities on the land or adjacent land |
| **Transport Terminal** | Must be associated with primary production and food processing facilities on the land or adjacent land |
| **Utility Installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Caretaker's house)** |
| **Art and Craft Centre** |
| **Cinema based entertainment facility** |
| **Crematorium** |
| **Education Centre (other than Employment training centre)** |
| **Funeral parlour** |
| **Hospital** |
| **Industry (other than Automated collection point) - if the Section 1 condition is not met** |
| **Leisure and recreation (other than Minor sports and recreation facility)** |
| **Place of Assembly** |
| **Retail premises (other than Manufacturing sales, Primary produce sales)** |
| **Recreational boat facility** |

| Use |
| --- |
| **Service station** |
| **Warehouse (other than Shipping container storage) - if the Section 1 condition is not met** |

## 2.0 Requirement before a Permit is Granted

A permit must not be granted to use or subdivide land, construct a building or construct or carry out works (other than minor works) until a Master Plan has been prepared to the satisfaction of the Responsible Authority.

The Responsible Authority can consider an application for minor works before a Master Plan has been approved. All proposals for minor works must be accompanied by a report demonstrating that they will not prejudice the future development of the land in an integrated manner.

## 3.0 Master Plan

A Master Plan must be prepared to the satisfaction of the Responsible Authority.

A Master Plan may be prepared in stages.

A Master Plan may be amended to the satisfaction of the Responsible Authority.

A Master Plan may be approved with or without conditions.

### Requirements for Master Plan

The Master Plan must show or describe as appropriate:

- Existing natural and built features of the land including topography, vegetation, buildings, other works, utility services, drainage lines and watercourses.
- The relationship to existing and proposed surrounding development.
- A plan indicating the type of existing native vegetation and any areas where it is proposed to remove native vegetation.
- A flora and fauna assessment, including consideration of Growling Grass Frog habitat, and responses to that assessment.
- An environmental management plan for the site.
- All buildings and facilities established in a manner which does not cause loss of amenity to, and is consistent with, surrounding land uses.

## 4.0 Use of land

10/06/2021
C254card

### Application requirements

The following application requirements apply to an application for a permit to use land under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- The type and quantity of goods to be stored, processed or produced.
- How land not required for immediate use is to be maintained.
- Whether a Works Approval or Waste Discharge Licence is required from the Environment Protection Authority.
- Whether a notification under the *Occupational Health and Safety (Major Hazard Facilities) Regulations 2000* is required, a licence under the *Dangerous Goods Act 1985* is required, or a

fire protection quantity under the *Dangerous Goods (Storage and Handling) Regulations 2000* is exceeded.

- The likely effects, if any, on the neighbourhood, including:
  - Noise levels.
  - Air-borne emissions.
  - Emissions to land or water.
  - Traffic, including the hours of delivery and dispatch.
  - Light spill or glare.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the proposed use is generally in accordance with the Master Plan
- The effect that the use may have on nearby existing or proposed uses, having regard to any comments or directions of the referral authorities.
- The interface with adjoining land.
- The provision of land for landscaping and beautification.
- Any impact on flora and fauna found on the land, and the response to any flora and fauna assessment undertaken for the land.
- The effect that nearby industries may have on the proposed use.
- The drainage of the land.
- The availability of and connection to services.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.
- The provision for car parking.
- The movement of vehicles providing for supplies, waste removal, emergency services and public transport.
- Loading and service areas.

## 5.0 Subdivision

10/06/2021
C254card

A permit is required to subdivide land.

### Decision Guidelines

A permit may only be granted to subdivide land if:

- The subdivision is generally in accordance with the Master Plan.
- Each lot to be created is at least 0.4 hectares in area.

The following decision guidelines apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The layout of the subdivision;
- Site access arrangements;

- The impact of the subdivision on existing and future land uses;
- The location and design of existing and proposed infrastructure services including gas, water, drainage, telecommunications and sewerage facilities;
- The approved Master Plan.

## 6.0 Buildings and works

10/06/2021
C254card

A permit is required to construct a building or construct or carry out works.

All buildings and works must be generally in accordance with the Master Plan.

### Application requirements

The following application requirements apply to an application for a permit to construct a building or carry out works under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A plan, drawn to scale, which shows:
  - The boundaries and dimensions of the site.
  - Relevant ground levels
  - Adjoining roads
  - The location, height and purpose of the proposed buidings and works and the relationship, if any, with existing buildings and works within with Master Plan area.
  - The layout and use of existing and proposed buildings and works including driveways and carparking and loading areas.
  - Elevation drawings indicating the colour and materials of all proposed buildings and works.
  - Construction details of all drainage works, driveways and car parking and loading areas.
  - Details of existing and proposed landscaping.
  - External storage and waste treatment areas.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Traffic impacts on the road network.
- The need to minimise any adverse impacts of siting, design, height, bulk and colours and materials to be used on landscape features
- The location and design of existing and proposed infrastructure services which minimise the visual impact on the landscape.
- The provision of land for landscaping and beautification.
- Any impact on flora and fauna found on the land, and the response to any flora and fauna assessment undertaken for the land.
- The views of the Roads Corporation where there is a change in access arrangements for the site that could impact on the operation of a Roads Corporation managed road.
- The need for the preparation and implementation of a traffic management plan to the requirements of the Roads Corporation and to the satisfaction of the responsible authority.

- The movement of vehicles providing for supplies, waste removal, emergency services and public transport.
- The provision for car parking.
- Interface with neighbouring sites.
- Location and adequacy of loading and service areas.
- Adequacy of lighting for security purposes and to avoid light spill off site.
- Stormwater discharge.

## 7.0 Exemption from notice and review

An application for subdivision, to use land, construct a building or construct or carry out works that is generally in accordance with the Master Plan is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 8.0 Signs

10/06/2021
C254card

A permit is not required to construct or display a sign on any land within the Master Plan area which is directed toward people attending the site and that cannot be seen from outside the facility. Sign requirements are at Clause 52.05. All land located within this schedule to this zone is in Category 3.

27/02/2025
C274card

# SCHEDULE 8 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ8.**

## OFFICER SOUTH (EMPLOYMENT) PRECINCT STRUCTURE PLAN – ELECTRICITY EASEMENT

### Purpose

To manage the transition of non-urban land into urban land generally in accordance with the *Officer South (Employment) Precinct Structure Plan, November 2024*.

To provide for a range of uses and the development of land generally in accordance with the incorporated *Officer South (Employment) Precinct Structure Plan, November 2024*.

## 1.0 Table of uses

27/02/2025
C274card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| Car park<br>Crop raising<br>Informal outdoor recreation<br>Minor utility installation | |
| Open sports ground | Must be a use conducted by or on behalf of a public land manager |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3** | |
| | |

### Section 3 - Prohibited

| Use |
|---|
| Accommodation (other than Caretaker's house) |
| Cinema |
| Cinema based entertainment facility |
| Hospital |
| Intensive animal production |
| Pig farm |
| Poultry farm |
| Shop |

## 2.0 Use of land

27/02/2025
C274card

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.01, in addition to those specified in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority

An application to use land for industry or warehouse must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of processes to be utilised.
- The type and quantity of goods to be stored, processed or produced.
- How land not required for immediate use is to be maintained.
- Whether a Works Approval or Waste Discharge Licence is required from the Environment Protection Authority.
- Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations is exceeded.
- The likely effects, if any, on the neighbourhood, including:
  - Noise levels.
  - Air-borne emissions.
  - Emissions to land or water.
  - Traffic, including the hours of delivery and despatch.
  - Light spill or glare.

### Exemption from notice and review

An application for the use of land which is generally in accordance with the incorporated Officer *South (Employment) Precinct Structure Plan* is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 3.0 Subdivision

27/02/2025
C274card

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.01, in addition to those in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Be generally in accordance with the incorporated *Officer South (Employment) Precinct Structure Plan.*
- Include any conditions or requirements specified in the incorporated *Officer South (Employment) Precinct Structure Plan.*
- A landscape master plan prepared by a suitably qualified professional that:
  - Shows natural features including trees and other significant vegetation, habitat for protected species, drainage lines, water courses, wetlands, ridgelines, hill tops and features of geomorphic significance;
  - Recognises and responds to sodic or dispersive soils;
  - Shows recreation facilities to be provided within public open space (with the exception of the active open space);
  - Shows proposed species, location, approximate height and spread of proposed planting;

- Identifies the retention of existing vegetation and trees based on Plan 7 – Native vegetation retention and removal of the incorporated *Officer South (Employment) Precinct Structure Plan;*
- Shows storm water facilities that are compliant with the relevant approved drainage strategy; and Integrated Water Management plan;
- Identifies vegetation to be retained and removed and any re-vegetation.

### Exemption from notice and review

An application for subdivision of land which is generally in accordance with the incorporated *Officer South (Employment) Precinct Structure Plan* is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 4.0 Buildings and works

27/02/2025
C274card

### Permit requirements

A permit is not required to construct a building or carry out works for:

- A building or works which rearrange, alter or renew plant if the area or height of the plant is not increased.
- A building or works which are used for informal outdoor recreation.
- A rainwater tank with a capacity of more than 4500 litres if the following requirements are met:
  - The rainwater tank is not located within the building's setback from a street (other than a lane).
  - The rainwater tank is no higher than the existing building on the site.
  - The rainwater tank is not located in an area that is provided for car parking, loading, unloading or accessway.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.01, in addition to those in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Be generally in accordance with the incorporated *Officer South (Employment) Precinct Structure Plan.*
- Include any conditions or requirements specified in the incorporated *Officer South (Employment) Precinct Structure Plan.*
- An arboricultural report identifying all trees on the site and a tree retention plan identifying how the application proposes to retain the retained vegetation set out in Plan 7 Native Vegetation Retention and Removal and any tree protection requirements and guidelines within the incorporated *Officer South (Employment) Precinct Structure.*

### Exemption from notice and review

An application to construct a building or construct or carry out works which is generally in accordance with the incorporated *Officer South (Employment) Precinct Structure Plan* is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 5.0 Signs

27/02/2025
C274card

Sign requirements are at Clause 52.05. This zone is in Category 2

24/04/2026
GC263

# SCHEDULE 9 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ9.**

## EXTRACTIVE INDUSTRY

### Purpose

To encourage use and development of land for extractive industry.

To protect land for extractive industry and minimise land use conflict.

To support land management practices and rehabilitation and minimise adverse impact on the use and development of nearby land.

## 1.0 Table of uses

24/04/2026
GC263

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Extractive industry** | Must meet the requirements of clause 52.08. |
| **Grazing animal production** | |
| **Home based business** | |
| **Railway** | |
| **Tramway** | |
| **Any use listed in clause 62.01** | Must meet the requirements of clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal husbandry)** | |
| **Caretaker's house** | |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than five animals. |
| **Industry (other than Materials recycling, Refuse disposal and Transfer station)** | Must be used in conjunction with extractive industry. |
| **Landscape gardening supplies** | |
| **Leisure and recreation** | |
| **Manufacturing sales** | |
| **Materials recycling** | |
| **Refuse disposal** | |
| **Transfer station (other than Automated collection point)** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Warehouse** | Must not be a purpose listed in the table to clause 53.10. |

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3** | |

**Section 3 - Prohibited**

| Use |
|---|
| **Accommodation (other than Caretaker's house)** |
| **Animal husbandry (other than Apiculture, Domestic animal husbandry and Grazing animal production)** |
| **Education centre** |
| **Funeral parlour** |
| **Hospital** |
| **Office** |
| **Place of assembly** |
| **Retail premises (other than Landscape gardening supplies and Manufacturing sales)** |
| **Saleyard** |
| **Service station** |
| **Transport terminal** |
| **Veterinary centre** |

## 2.0 Use of land

24/04/2026
GC263

The following decision guidelines apply to an application for a permit under clause 37.01, in addition to those specified in clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the use is compatible with existing and future extractive uses.
- Whether the use adversely impacts on the existing and future productive extraction of the resource.

## 3.0 Subdivision

24/04/2026
GC263

A permit is required to subdivide land.

Each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings is not increased.
- The subdivision by a public authority or utility service provider is to create a lot for a utility installation.

The following decision guidelines apply to an application for a permit under clause 37.01, in addition to those specified in clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the subdivision inhibits the existing and future use of land for extractive industry.

## 4.0 Buildings and works

16/06/2026
VC312

A permit is required to construct a building or construct or carry out works.

The following decision guidelines apply to an application for a permit under clause 37.01, in addition to those specified in clause 37.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether development is compatible with existing and future extractive industry uses.
- Whether use or development may adversely impact on the existing and future productive extraction of the resource.
- Whether development is designed and sited in a location which minimises amenity impacts from resource extraction operations and transportation.

## 5.0 Signs

24/04/2026
GC263

None specified.

## 37.02 COMPREHENSIVE DEVELOPMENT ZONE

31/07/2018
VC148

Shown on the planning scheme map as **CDZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for a range of uses and the development of land in accordance with a comprehensive development plan incorporated in this scheme.

## 37.02-1 Table of uses

19/01/2006
VC37

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Any use in Section 1 of the schedule to this zone** | Must comply with any condition in Section 1 of the schedule to this zone. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any use in Section 2 of the schedule to this zone** | Must comply with any condition in Section 2 of the schedule to this zone. |
| **Any other use not in Section 1 or 3 of the schedule to this zone** | |

### Section 3 - Prohibited

| Use |
|---|
| **Any use in Section 3 of the schedule to this zone** |

## 37.02-2 Use of land

31/07/2018
VC148

Any requirement in the schedule to this zone must be met.

### Application requirements

An application to use land must be accompanied by any information specified in the schedule to this zone.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any guidelines in the schedule to this zone.

## 37.02-3 Subdivision

15/03/2024
VC256

### Permit requirement

A permit is required to subdivide land.

An application to subdivide land for residential development, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except Clause 56.03-5. |
| 16 – 59 lots | All except Clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except Clauses 56.02-1, 56.03-1 to 56.03-4, 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5, 56.04-2, 56.04-3, 56.04-5, 56.06-8 to 56.09-2. |

Any requirement in the schedule to this zone must be met.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>- The area of either lot is reduced by less than 15 percent.<br>- The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>- The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>- An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if:<br>- The construction of a building or the construction or carrying out of works on the land: | Clause 59.02 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| – Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | |

### Application requirements

An application to subdivide land must be accompanied by any information specified in the schedule to this zone.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The objectives and standards of Clause 56.
- Any guidelines in the schedule to this zone.

## 37.02-4 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to construct a building or construct or carry out works unless the schedule to this zone specifies otherwise.

Any requirement in the schedule to this zone must be met.

An apartment development must meet the requirements of Clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 and the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10. | Clause 59.04 |

### Transitional provisions

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clause 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

### Application requirements

An application to construct a building or construct or carry out works must be accompanied by any information specified in the schedule to this zone.

An application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, must be accompanied by an urban context report and design response as required in Clause 58.01.

### Exemption from notice and review

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if it is generally consistent with the comprehensive development plan.

The schedule to this zone may specify that other applications are also exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- For an apartment development, the objectives, standards and decision guidelines of Clause 58.
- Any guidelines in the schedule to this zone.

## 37.02-5 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3 unless a schedule to this zone specifies a different category.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 37.02 COMPREHENSIVE DEVELOPMENT ZONE

Shown on the planning scheme map as **CDZ1.**

### PAKENHAM WEST COMPREHENSIVE DEVELOPMENT PLAN, 1 SEPTEMBER 2005

#### Land

Land bounded by the Princes Highway, Toomuc Creek, Gippsland Railway line and Cardinia Road, Pakenham.

#### Purpose

To designate land suitable for urban development.

To provide for the development of the land generally in accordance with the Pakenham West Comprehensive Development Plan, 1 September 2005.

To ensure that any development and use of the land is in accordance with a local structure plan prepared to the satisfaction of the responsible authority.

To provide a range of dwelling types and lot sizes to meet a diversity of housing needs.

To provide a range of commercial and community facilities to meet the needs of existing and future residents of the area.

To ensure that non-residential uses do not cause a loss of amenity to nearby residents.

To facilitate urban design which creates a strong character and identity for the area, provides for a functional built environment, and promotes community and personal safety.

To manage the quality and quantity of urban stormwater entering local waterways.

## 1.0 Table of uses

06/08/2026
C283card

#### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Art and craft centre** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 6 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Car park** | The site must be identified for the use or be within an activity centre in a local structure plan prepared to the satisfaction of the responsible authority. |

| Use | Condition |
|---|---|
| **Child care centre** | The site must be identified for the use or be within an activity centre in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Cinema based entertainment facility** | The site must be identified for the use and be within an activity centre in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Convenience shop** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Dependent person's unit** | Must be the only dependent person's unit on the lot. |
| **Display home** | The site must be identified for the use in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Dwelling (other than Bed and breakfast)** | |
| **Education centre** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Food and drink premises** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Funeral parlour** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Home based business** | |
| **Indoor recreation facility** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Informal outdoor recreation** | |

| Use | Condition |
|---|---|
| **Medical centre** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2. |
| **Office (other than Medical centre)** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Open sports ground** | |
| **Place of assembly (other than Amusement parlour, Carnival, Circus, Drive-in theatre, and Nightclub)** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Postal agency** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Railway** | |
| **Railway station** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Service industry (other than Panel beating)** | The site must be identified for the use or be within an activity centre in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Service station** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |

| Use | Condition |
|---|---|
| **Shop (other than Adult sex product shop and Convenience shop)** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Store** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Tramway** | |
| **Veterinary centre** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Any use listed in clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Corrective institution, Dependent person's unit, and Dwelling)**<br><br>**Agriculture (other than Apiculture, Animal training, Domestic animal husbandry, Horse riding school, Horse stables, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry)** | |
| **Amusement parlour** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than four animals. |
| **Leisure and recreation (other than Indoor recreation facility, Informal outdoor recreation, Motor racing track, and Open sports ground)**<br><br>**Mineral, stone, or soil extraction (other than Extractive industry, Mineral exploration, Mining, and Search for stone)** | |

| Use | Condition |
|---|---|
| **Nightclub** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Office (other than Medical centre) - if the Section 1 condition is not met** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Racing dog husbandry (other than Racing dog training)** | Must be no more than four animals. |
| **Retail premises (other than Food and drink premises, Motor vehicle, boat, or caravan sales, Postal agency, and Shop)** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Shop (other than Adult sex product shop and Convenience shop) - if the Section 1 condition is not met)** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Store - if the Section 1 condition is not met** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Transport terminal (other than Railway station and Road freight terminal)** | The site must be identified for the use or be within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 and the use must be identified in a local structure plan prepared to the satisfaction of the responsible authority. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Adult sex product shop** |
| **Animal training** |

| Use |
| --- |
| **Corrective institution** |
| **Domestic animal boarding** |
| **Drive-in theatre** |
| **Extractive industry** |
| **Horse riding school** |
| **Horse stables** |
| **Industry (other than Automated collection point and Service industry)** |
| **Intensive animal production** |
| **Motor racing track** |
| **Motor vehicle, boat, or caravan sales** |
| **Panel beating** |
| **Pig farm** |
| **Poultry farm** |
| **Poultry hatchery** |
| **Racing dog training** |
| **Road freight terminal** |
| **Service industry (other than Panel beating) - if the Section 1 condition is not met** |
| **Saleyard** |
| **Warehouse (other than Store)** |

## 2.0 Local structure plan

No subdivision, building or works may take place before the land to be developed is included in a local structure plan prepared to the satisfaction of the responsible authority. The local structure plan must be generally consistent with the Pakenham West Comprehensive Development Plan, (1 September 2005).

With the agreement of the responsible authority, the local structure plan may be prepared in stages and may comprise one or more separate plans or other documents. The local structure plan must show, as considered appropriate by the responsible authority:

- The proposed use and development of each part of the land.
- The staging of development.
- The relationship of the land to existing or proposed land uses on adjoining land.
- Population targets.
- A range of housing types and lot sizes, including areas proposed for medium-density housing.
- Proposed open space and recreation facilities, including pedestrian and bicycle paths.
- Proposed retarding basins, lakes and watercourses, and the means by which these will be managed and water quality maintained.
- Proposed commercial and community facilities.
- The proposed layout of major roads and streets, including major traffic control infrastructure.

- Proposed public transport facilities, including the location of the proposed railway station which must allow for appropriate access provision from the land and adjoining land to the south.
- Physical and community infrastructure, including arrangements for their provision and funding. This must include a trunk sewer to service the land and other proposed residential zoned land in the vicinity.
- An overall landscape concept.
- Urban design principles for energy efficiency, community safety and environmental sustainability.

The local structure plan must be referred to the Roads Corporation for comment and may be amended to the satisfaction of the responsible authority.

The use and subdivision of land, construction of buildings and construction and carrying out of works must be consistent with the local structure plan.

## 3.0 Use of land

10/06/2021
C254card

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any building, works or materials.
- Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

## 4.0 Subdivision

10/06/2021
C254card

### 4.1 Permit requirement

The subdivision of land must satisfy the servicing requirements of relevant referral authorities.

### 4.2 Exemption from notice and review

An application to subdivide land is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 5.0 Buildings and works

10/06/2021
C254card

### 5.1 Permit requirement

A permit is not required to construct or extend one dwelling on a lot of at least 300 square meters.

### 5.2 Application requirements

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and purpose of buildings and works on adjoining land.
  - Relevant ground levels.

- The layout of existing and proposed buildings and works.
- All driveways, car parks, pedestrian paths and loading areas.
- Proposed landscape areas.
- All external storage and waste treatment areas.
- Areas not required for immediate use.

- Elevation drawings to scale showing the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways, and vehicle parking and loading areas.
- A landscape layout which includes a description of vegetation to be planted, the surfaces to be constructed, site works specifications, and the method of preparing, draining, watering and maintaining the landscape area.

**Medium-density housing and residential buildings**

An application for any of the following must be accompanied by a neighbourhood and site description and a design response as described in Clause 54.01 or Clause 55.01 (as appropriate):

- To construct or extend one dwelling on a lot of less than 300 square metres.
- To construct a dwelling if there is at least one dwelling on the lot.
- To construct two or more dwellings on a lot.
- To extend a dwelling if there are two or more dwellings on the lot.
- To construct or extend a residential building.

**Satisfactory neighbourhood and site description**

The responsible authority must inform the applicant in writing before notice of an application is given or, if notice of the application is not required to be given, before deciding the application that the neighbourhood and site description meets the requirements of Clause 54.01-1 or Clause 55.01-1 (as appropriate) and is satisfactory or does not meet the requirements of Clause 54.01-1 or Clause 55.01-1 (as appropriate) and is not satisfactory.

If the responsible authority decides that the neighbourhood and site description is not satisfactory, it may require more information from the applicant under Section 54 of the Act.

The responsible authority must not require notice of an application to be given or decide an application until it is satisfied that the neighbourhood and site description meets the requirements of Clause 54.01-1 or Clause 55.01-1 (as appropriate) and is satisfactory.

The above requirements do not apply if the responsible authority refuses an application under Section 52(1A) of the Act.

### 5.3 Exemption from notice and review

An application to construct a building or construct or carry out works for a use on a site identified for that purpose or within an activity centre in a local structure plan prepared to the satisfaction of the responsible authority is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 6.0 Signs

10/06/2021
C254card

Land within the Neighbourhood Centre shown in the Pakenham West Comprehensive Development Plan, 1 September 2005 is in Category 1.

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 37.02 COMPREHENSIVE DEVELOPMENT ZONE

Shown on the planning scheme map as **CDZ2**.

### FORMER PAKENHAM RACECOURSE COMPREHENSIVE DEVELOPMENT PLAN (JANUARY 2010)

#### Land

This schedule applies to the land generally bounded by Racecourse Road, Pakenham Creek, Railway Avenue and the rear boundary of properties fronting King Street and Henry Street, Pakenham as identified in the Former Pakenham Racecourse Comprehensive Development Plan (February 2010).

#### Purpose

To develop the land for a mix of residential, retail, education and community uses that supports the strategic role of Pakenham Activity Centre and benefits from the close proximity to the Pakenham railway and bus interchange.

To achieve a higher density mixed use precinct that creates a new urban character which supports a vibrant and safe public realm with a high level of cross- site permeability.

To achieve excellence in architecture, urban design and landscape and deliver high quality internal and external amenity in all buildings.

To integrate Pakenham Creek as a key feature and ensure drainage, flood control and public open space functions are accommodated and enhanced.

## 1.0 Table of uses

06/08/2026
C283card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Child care centre** | |
| **Convenience shop** | |
| **Dependent persons unit** | Must be the only dependent person's unit on the lot. |
| **Display home** | |
| **Dwelling** | Must be generally in accordance with the Comprehensive Development Plan.<br>In Precinct 1, any frontage at ground floor level must not exceed 4 metres. |
| **Education centre** | Must be generally in accordance with the Comprehensive Development Plan |
| **Food and drink premises (other than Hotel and Tavern)** | Must be generally in accordance with the Comprehensive Development Plan |
| **Home based business** | |

| Use | Condition |
|---|---|
| **Informal outdoor recreation**<br>**Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2. |
| **Office** | Must be generally in accordance with the Comprehensive Development Plan. |
| **Place of Assembly (other than Amusement parlour, Carnival, Circus, Drive-in theatre, Nightclub)** | Must be generally in accordance with the Comprehensive Development Plan. |
| **Railway** | |
| **Search for stone** | Must be costeaning or bulk sampling |
| **Residential aged care facility** | Must be generally in accordance with the Comprehensive Development Plan. |
| **Shop (other than Convenience shop)** | Must be located in the 'Mixed Use Development area' of Precinct 1.<br>Must be generally in accordance with the Comprehensive Development Plan. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Dependent persons unit, Dwelling, Residential aged care facility and Corrective Institution)** | Must be generally in accordance with the Comprehensive Development Plan. |
| **Shop (other than Convenience shop)** | Must not be located in Precinct 2.<br>Must be generally in accordance with the Comprehensive Development Plan. |
| **Restricted retail premises** | Must be located in the mixed use area or commercial area of Precinct 1.<br>Must be generally in accordance with the Comprehensive Development Plan. |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)**<br>**Mineral, stone, or soil excavation (other than Extractive Industry, Mineral exploration, Mining and Search for stone)**<br>**Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in 1 or 3** | Must be generally in accordance with the Comprehensive Development Plan. |

### Section 3 - Prohibited

| Use |
|---|
| Adult sex product shop |
| Intensive animal production |
| Cemetery |
| Corrective institution |
| Crematorium |
| Drive-in theatre |
| Extractive industry |
| Freeway service centre |
| Gambling premises |
| Industry (other than Automated collection point, Car wash, Dry cleaner, Laundromat, and Research and development centre) |
| Motor racing track |
| Pig farm |
| Poultry farm |
| Poultry hatchery |
| Road freight terminal |
| Saleyard |
| Transport terminal |
| Warehouse |

## 2.0 Use of land

10/06/2021
C254card

### Exemption from notice and appeal

An application for use is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act, if it is generally in accordance with the Former Pakenham Racecourse Comprehensive Development Plan (February 2010).

## 3.0 Subdivision

10/06/2021
C254card

### Exemption from notice and appeal

An application for subdivision is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act, if it is generally in accordance with the *Former Pakenham Racecourse Comprehensive Development Plan* (February 2010).

## 4.0 Buildings and works

10/06/2021
C254card

### Application Requirements

An application to construct a building or to construct or carry out works must be generally in accordance with the Former Pakenham Racecourse Comprehensive Development Plan (February 2010).

An application must be accompanied by the following information, as appropriate:

- Site context and existing conditions plan including:
  - boundaries and dimensions of the site with adjoining roads, open space areas and relevant ground levels;
  - The location, height and use of existing buildings on adjoining land, pedestrian and other public areas, public transport availability and an evaluation of opportunities and constraints;
  - Urban design rationale report and plan explaining how the development responds to the broader town centre;
- Demolition plan;
- The staging of the development and interim treatment of areas until development occurs;
- Detailed land use plan including approximate floor area schedule;
- A development plan drawn to scale which shows:
  - Perspective views;
  - The layout plans for basement(s), ground floor and other floors within the development, roof plan, elevations including a schedule of colour and materials of all buildings and works, and sections. All plans must be to scale with dimensions;
  - Vehicle access and the location and layout of all car parking areas;
  - Location and layout of loading and unloading areas / facilities;
  - Location and layout of rubbish storage and waste recycling;
  - Location of all external plant, building services and equipment, including lift over runs;
  - Shadow plans for 22 September on the hour between 10am and 2pm;
- A traffic, parking and transport plan that shows:
  - Traffic management and control works in adjoining and nearby roads when the development or any stage of the development is completed;
  - The timing of proposed traffic works relative to the staging of the development;
  - Public transport arrangements and access routes;
  - Vehicle access and the location and layout of public/ commercial car parking areas.
- An open space plan including:
  - The hierarchy of public open space including but not limited to area, recreational use and extent of ecological systems; linkages to P.B Ronald Reserve, Pakenham Creek, existing public open space off Simon Drive, and anticipated future open space on Deep Creek (east of Cameron Way);
  - A management plan for the permanent maintenance of all open space areas available to the public;
  - Identification of areas of open space that will be available to the public (public areas) and non-public areas;
- An Environmentally Sustainable Development report identifying the environmental and energy efficient features to be included in the development, demonstrating best practice principles;
- Report addressing pedestrian connections and design and access arrangements appropriate to meet the needs of people with disabilities;
- A landscape concept plan that shows, in relation to the proposed development:

- The provision of appropriate landscape buffers, including fencing where the land directly abuts an adjoining residential area not included in this schedule;
- The treatment of car parking areas, including any rooftop and decked parking areas;
- The treatment and layout of the public realm including adjacent streets, road reserves and public areas;
- A staging strategy for the implementation of landscape works and ongoing management strategy for the permanent maintenance of all open space areas available to the public;
- Areas of open space that will be available to the public (public areas) and non-public areas;
- Lighting plan;
- Any temporary structures.

### Exemption from notice and appeal

An application for buildings and works is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act, if it is generally in accordance with the Former Pakenham Racecourse Comprehensive Development Plan (February 2010).

## 5.0 Signs

10/06/2021
C254card

Sign requirements are at Clause 52.05. All land within Precinct 1 as indicated in the Comprehensive Development Plan is in Category 1. All land within Precinct 2 as indicated in the Comprehensive Development Plan is in Category 3.

## 6.0 Decision guidelines

Before deciding on an application, the responsible authority should consider:

- The incorporated document titled:
  - Former Pakenham Racecourse Comprehensive Development Plan (February 2010) as amended from time to time.
- Any shopfront and sign guidelines approved by the responsible authority for this site.

10/06/2021
C254card

## SCHEDULE 3 TO CLAUSE 37.02 COMPREHENSIVE DEVELOPMENT ZONE

Shown on the planning scheme map as **CDZ3**

### RACECOURSE ROAD, PAKENHAM COMPREHENSIVE DEVELOPMENT PLAN

#### Land

A 17.86ha parcel of land located on the east side of Racecourse Road, Pakenham immediately south of the Pakenham Creek drainage reserve.

#### Purpose

To facilitate the use and development of the land for residential purposes, including retirement accommodation, generally in accordance with the Racecourse Road, Pakenham Comprehensive Development Plan, October 2010.

To provide for the development of a quality residential development integrated with landscaped open space.

To provide for effective stormwater management in accordance with water sensitive urban design principles and Melbourne Water requirements.

To ensure that the use and development of the land address potential noise and odour emissions from the industrial precinct to the south and west of the land.

To ensure the orderly staging of construction and development.

To ensure that provision is made for the protection and enhancement of habitat for the Growling Grass Frog (*Litoria raniformis*).

## 1.0 Table of uses

06/08/2026
C283card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 6 persons may be accommodated away from their normal place of residence. At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Dependent person's unit** | Must be the only dependent person's unit on the lot. |
| **Home based business**<br>**Informal outdoor recreation**<br>**Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2 |
| **Place of worship** | Must be no social or recreation activities. |

| Use | Condition |
|---|---|
| | The gross floor area of all buildings must not exceed 180 square metres.<br>The site must not exceed 1200 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| Racing dog husbandry (other than Racing dog training) | Must be no more than 2 animals. |
| **Railway** | |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Bed and breakfast and Dependent person's unit)** | |
| **Agriculture (other than Apiculture, Animal training, Domestic animal husbandry, Horse riding school, Horse stables, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery, Racing Dog Husbandry and Racing dog training)** | |
| **Domestic animal husbandry (other than Domestic animal boarding) If the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience Shop**<br>**Food and drink premises**<br>**Leisure and recreation (other than Informal outdoor recreation and Motor racing track)**<br>**Market**<br>**Medical centre**<br>**Mineral, stone, or soil extraction (other than Extractive industry, Mineral exploration, Mining, and Search for stone)** | |

| Use | Condition |
|---|---|
| **Place of assembly (other than Amusement parlour, Carnival, Circus, Nightclub, and Place of worship)** | |
| **Plant nursery** | |
| **Racing dog husbandry (other than Racing dog training)** | Must be no more than 5 animals |
| **Service station** | |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Adult sex product shop** |
| **Amusement parlour** |
| **Animal training** |
| **Cinema based entertainment facility** |
| **Domestic animal boarding** |
| **Extractive industry** |
| **Horse riding school** |
| **Horse stables** |
| **Industry (other than Automated collection point and Car wash)** |
| **Intensive animal production** |
| **Motor racing track** |
| **Nightclub** |
| **Office (other than medical centre)** |
| **Pig farm** |
| **Poultry farm** |
| **Poultry hatchery** |
| **Racing dog training** |
| **Restricted retail premises** |
| **Retail premises (other than Convenience shop, Food & drink premises, Market and Plant nursery)** |
| **Saleyard** |
| **Transport terminal** |

| Use |
| --- |
| Warehouse (other than Store) |

## 2.0 Use of land

10/06/2021
C254card

### Exemption from notice and review

An application to use land generally in accordance with the Racecourse Road, Pakenham Comprehensive Development Plan, October 2010 is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 3.0 Subdivision

10/06/2021
C254card

### Exemption from notice and review

An application to subdivide land generally in accordance with the Racecourse Road, Pakenham Comprehensive Development Plan, October 2010 is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 4.0 Buildings and works

10/06/2021
C254card

### Exemption from notice and review

An application to develop land generally in accordance with the Racecourse Road, Pakenham Comprehensive Development Plan, October 2010 is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 5.0 Permit requirements

The use, development and subdivision of the land must be generally in accordance with the Racecourse Road, Pakenham Comprehensive Development Plan, (October 2010) and must meet the following requirements:

- Prior to the use, development or subdivision of the land for residential purposes, the owner of the land must enter into an agreement with the responsible authority (and any other relevant party) under Section 173 of the Planning and Environment Act 1987 to provide for measures to control noise and odour emissions from nearby industrial operations to an acceptable level specified under the relevant State Environment Protection Policy. The agreement must also provide for obligations for the ongoing maintenance of the measures specified in the agreement.
- The development must provide for landscape improvements to the Pakenham Creek drainage reserve to the north of the land, including the provision of a pedestrian and bicycle path.
- Prior to the use, development or subdivision of the land for residential purposes, the owner of the land must enter into an agreement with the responsible authority (and any other relevant party) under Section 173 of the Planning and Environment Act 1987 to ensure that the proposed wetlands and habitat are designed, retained and managed for the requirements of the Growling Grass Frog (Litoria raniformis).

## 6.0 Application requirements

An application to use, subdivide or develop land for residential, commercial or mixed use purposes must be accompanied by, as appropriate:

- A report detailing the extent to which the proposal advances the purpose of this schedule.
- A report detailing the consistency between the proposal and the Racecourse Road, Pakenham Comprehensive Development Plan, October 2010.
- A report detailing the extent to which the development layout manages the interface with adjoining land, including the rail line to the south and industrial uses to the south and west.
- A report prepared by a suitably qualified civil engineer providing details of necessary engineering works to provide for stormwater management and the application of water sensitive urban design principles in accordance with Melbourne Water requirements.
- A report prepared by a suitably qualified acoustic engineer which considers the implications of any noise emissions from the rail line to the south and the industrial precinct to the south and west of the land on the amenity of future residents and specifies any necessary measures to address amenity implications.
- A report prepared by a suitably qualified environmental scientist/engineer which considers the implications of odour emissions from the industrial precinct to the south and west of the land on the amenity of future residents and specifies any necessary measures to address amenity implications.
- A report prepared by a suitably qualified traffic engineer addressing arrangements for vehicle access to Racecourse Road, internal access way layout and connections to neighbouring properties.
- A report prepared by a suitably qualified person detailing the extent to which the development layout provides for the retention of remnant vegetation and manages flora and fauna habitat, including that of the Growling Grass Frog.
- A management plan prepared by a suitably qualified person which addresses the protection and ongoing management of the Growling Grass Frog. The management plan must address, but not be limited to, the following issues:
  - Details of wetland design and construction (including the proposed water source).
  - Pollution management (including that from roads, pesticides and fertilisers).
  - Management actions to be undertaken, including a schedule for implementation.
  - Salvage of Growling Grass Frogs, in the event that they are located upon commencement of earthworks.
  - A proposed monitoring program.
  - Management of pest plants and animals, in particular Mosquito Fish, and contingency arrangements in the event that Mosquito Fish are detected.
  - Proposed public education about the Growling Grass Frog and the danger of introducing fish to the wetlands.
- A plan that details how the proposal will meet the requirements of Net Gain.
- Plans drawn to scale which show:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and purpose of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All driveways, car parks, pedestrian paths and loading areas.

  - Proposed landscape areas.
  - All external storage and waste treatment areas.
  - Areas not required for immediate use.
- Elevation drawings to scale showing the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways, and vehicle parking and loading areas.
- A landscape concept which includes a description of vegetation to be planted, the surfaces to be constructed, site works specifications and the method of preparing, draining, watering and maintaining the landscape area.

## 7.0 Decision guidelines

Before deciding on an application to develop land, the responsible authority must consider, as appropriate:

- The extent to which the proposal advances the purpose of this schedule.
- The consistency between the proposal and the Racecourse Road, Pakenham Comprehensive Development Plan, (October 2010).
- The extent to which the development layout manages the interface between the site and adjoining land, including the rail line to the south and industrial uses to the south and west.
- The extent to which the development layout provides for the retention of remnant vegetation and manages flora and fauna habitat, including that of the Growling Grass Frog.
- The effect of the proposal on the amenity of the area.
- The views of Melbourne Water.
- The views of the Environment Protection Authority.
- The views of the Department of Sustainability and Environment.
- The orderly development of land, including management of traffic, car parking, the provision of pedestrian ways and open space.
- The overall objective of achieving an integrated development in a neighbourhood setting that has been master planned to provide a sympathetic, distinctive and attractive urban design.
- The extent to which the proposal meets the requirements of Net Gain.
- The following design objectives for the land:
  - To create a quality living environment.
  - To enhance safety and movement on the surrounding road network.
- To provide for integration of the development with the pedestrian and cycle networks in the locality.
- To provide for attractive and distinctive public or common spaces and streetscapes.
- To limit development generally to two storeys.
- To protect and improve the amenity of neighbouring residential areas.
- To contribute to the improvement of on-site and off-site local stormwater drainage systems, including significant stormwater retention within the buffer areas.
- To facilitate the provision of appropriate landscaping in the buffer areas and the adjoining Pakenham Creek drainage reserve and throughout the development.
- To optimise opportunities for energy efficient and water sensitive urban design.

## 8.0 Signs

10/06/2021
C254card

Sign requirements are at Clause 52.05. All land located within this Schedule to this zone is in Category 3.

## 37.03 URBAN FLOODWAY ZONE

01/07/2021
VC203

Shown on the planning scheme map as **UFZ**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify waterways, major floodpaths, drainage depressions and high hazard areas within urban areas which have the greatest risk and frequency of being affected by flooding.

To ensure that any development maintains the free passage and temporary storage of floodwater, minimises flood damage and is compatible with flood hazard, local drainage conditions and the minimisation of soil erosion, sedimentation and silting.

To reflect any declarations under Division 4 of Part 10 of the *Water Act, 1989*.

To protect water quality and waterways as natural resources by managing urban stormwater, protecting water supply catchment areas and managing saline discharges to minimise the risks to the environmental quality of water and groundwater.

## 37.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Informal outdoor recreation** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal production and Apiculture)** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation, Indoor recreation facility, and Motor racing track)** | |
| **Road** | |
| **Utility installation (other than Telecommunications facility)** | |
| **Any use listed in Clause 62.01 if any requirement is not met** | |

### Section 3 - Prohibited

| Use |
|---|
| **Animal production (other than Grazing animal production)** |
| **Indoor recreation facility** |
| **Motor racing track** |
| **Any other use not in Section 1 or 2** |

## 37.03-2 Buildings and works

17/02/2022
VC200

A permit is required to construct a building or construct or carry out works, including:

- A fence.
- Roadworks, if the water flowpath is redirected or obstructed.
- Bicycle pathways and trails, if the water flowpath is redirected or obstructed.
- Public toilets.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- A pergola or verandah, including an open-sided pergola or verandah to a dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
- A deck, including a deck to a dwelling with a finished floor level not more than 800mm above ground level.
- A non-domestic disabled access ramp.

This does not apply to:

- Roadworks or bicycle paths and trails constructed or carried out by or on behalf of the Head, Transport for Victoria, to the satisfaction of the relevant floodplain management authority.
- Flood mitigation works carried out by the responsible authority or floodplain management authority.
- The following works in accordance with plans prepared to the satisfaction of the responsible authority:
  - The laying of underground sewerage, water and gas mains, oil pipelines, underground telephone lines and underground power lines provided they do not alter the topography of the land.
  - The erection of telephone or power lines provided they do not involve the construction of towers or poles.
- Post and wire and post and rail fencing.

## 37.03-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land. A permit may only be granted to subdivide land if the following apply:

- The subdivision does not create any new lots, which are entirely within this zone. This does not apply if the subdivision creates a lot, which by agreement between the owner and the relevant floodplain management authority, is to be transferred to an authority for a public purpose.
- The subdivision is the resubdivision of existing lots and the number of lots is not increased, unless a local floodplain development plan incorporated into this scheme specifically provides otherwise.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

## 37.03-4 Application requirements

31/07/2018
VC148

### General

An application must be accompanied by any information specified in the schedule to this zone.

### Local floodplain development plan

If a local floodplain development plan has been developed for the area and has been incorporated into this scheme, an application must be consistent with the plan.

### Flood risk report

If a local floodplain development plan for the area has not been incorporated into this scheme, an application must be accompanied by a flood risk report to the satisfaction of the responsible authority. The flood risk report must consider the following, where applicable:

- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this zone.
- The susceptibility of the development to flooding and flood damage.
- The potential flood risk to life, health and safety associated with the development. Flood risk factors to consider include:
  - The frequency, duration, extent, depth and velocity of flooding of the site and accessway.
  - The flood warning time available.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.
- The effect of the development on redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.
- The effects of the development on environmental values such as natural habitat, stream stability, erosion, water quality and sites of scientific significance.

## 37.03-5 Referral of applications

19/01/2006
VC37

An application must be referred to the relevant floodplain management authority under Section 55 of the Act unless in the opinion of the responsible authority the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the floodplain management authority.

## 37.03-6 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The local floodplain development plan or flood risk report.
- Any comments of the relevant floodplain management authority.
- Any other matters specified in the schedule to this zone.

## 37.03-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4 unless the schedule to this zone specifies a different category.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 37.03 URBAN FLOODWAY ZONE

## 1.0 Application requirements

10/06/2021
C254card

None specified.

## 2.0 Decision guidelines

10/06/2021
C254card

None specified.

## 3.0 Signs

10/06/2021
C254card

| Land | Sign Category |
|---|---|
| None specified | |

## 37.07 URBAN GROWTH ZONE

31/07/2018
VC148

Shown on the planning scheme map as **UGZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To manage the transition of non-urban land into urban land in accordance with a precinct structure plan.

To provide for a range of uses and the development of land generally in accordance with a precinct structure plan.

To contain urban use and development to areas identified for urban development in a precinct structure plan.

To provide for the continued non-urban use of the land until urban development in accordance with a precinct structure plan occurs.

To ensure that, before a precinct structure plan is applied, the use and development of land does not prejudice the future urban use and development of the land.

### Application of provisions

#### Part A – No precinct structure plan applies

The provisions of Clauses 37.07-1 to 37.07-8 apply if no precinct structure plan applies to the land.

#### Part B – Precinct structure plan applies

The provisions of Clauses 37.07-9 to 37.07-16 apply if a precinct structure plan applies to the land.

### Precinct structure plan provisions

A precinct structure plan applies to land when the precinct structure plan is incorporated in this scheme.

## 37.07-1 Part A – Provisions For Land Where No Precinct Structure Plan Applies

14/01/2025
VC237

### Table of uses

#### Section 1 – Permit not required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |

| Use | Condition |
|---|---|
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot.<br>The lot must be at least 40 hectares.<br>Must meet the requirements of Clause 37.07-2. |
| **Grazing animal production** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Primary produce sales** | Must not be within 100 metres of a dwelling in separate ownership.<br>The area used for the display and sale of primary produce must not exceed 50 square metres. |
| **Railway** | |
| **Rural industry (other than Abattoir and Sawmill)** | Must not have a gross floor area more than 200 square metres.<br>Must not be within 100 metres of a dwelling in separate ownership.<br>Must not be a purpose shown listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education cente or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |
| **Rural store** | Must be used in conjunction with Agriculture.<br>Must be in a building, not a dwelling, and have a gross floor area of less than 100 square metres.<br>Must be the only Rural store on the lot. |

| Use | Condition |
|---|---|
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 37.07-2. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Abattoir** | |
| **Animal production (other than Grazing animal production, Intensive animal production and Poultry farm)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must be no more than 10,000 chickens. |
| **Camping and caravan park** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Cemetery** | |
| **Crematorium** | |
| **Display home centre** | |
| **Domestic animal boarding** | |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 5 animals. |
| **Dwelling (other than Bed and breakfast) – if the Section 1 conditions are not met** | Must be no more than 2 dwellings on the lot.<br>Must meet the requirements of Clause 37.07-2. |
| **Education centre (other than child care centre)** | |
| **Emergency services facility** | |
| **Freeway service centre** | Must meet the requirements of Clause 53.05. |
| **Industry (other than Automated collection point and Rural Industry)** | |
| **Racing dog husbandry** | Must be no more than 5 animals. |
| **Trade supplies** | |

| Use | Condition |
|---|---|
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Veterinary centre** | |
| **Warehouse (other than Rural store)** | |
| **Winery** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Bed and breakfast, Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential hotel and Small second dwelling)** |
| **Amusement parlour** |
| **Child care centre** |
| **Cinema based entertainment facility** |
| **Intensive animal production** |
| **Nightclub** |
| **Office (other than Medical centre and Real estate agency)** |
| **Renewable energy facility** |
| **Retail premises (other than Landscape gardening supplies, Manufacturing sales, Market, Primary produce sales, Restaurant and Trade supplies)** |
| **Saleyard** |
| **Small second dwelling - if the Section 1 condition is not met** |
| **Timber production** |

## 37.07-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- Each dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.

- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 37.07-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is to create a lot for an existing dwelling. The subdivision must be a two lot subdivision.
- The subdivision is the re-subdivision of existing lots and the number of lots is not increased.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit cannot be granted which would allow a separate lot to be created for land containing a small second dwelling.

## 37.07-4 Buildings and works

14/12/2023
VC253

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 37.07-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension is no more than 100 square metres.
  - An out-building associated with an existing dwelling provided the floor area of the out-building is not more than 100 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration or extension is no more than 200 square metres. The building must not be used to keep, board, breed or train animals.
- Earthworks which change the rate of flow or the discharge point of water across a property boundary.
- Earthworks which increase the discharge of saline water.
- A building which is within any of the following setbacks:
  - 100 metres from a road in a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority; and the purpose of the acquisition is for a road.
  - 40 metres from a road in a Transport Zone 3 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is not the acquiring authority.
  - 20 metres from any other road.
  - 5 metres from any other boundary.

- 100 metres from a dwelling or small second dwelling not in the same ownership.
- 100 metres from a waterway, wetlands or designated flood plain.

- Permanent or fixed feeding infrastructure for seasonal or supplementary feeding for grazing animal production constructed within 100 metres of:
  - A waterway, wetland or designated flood plain.
  - A dwelling or small second dwelling not in the same ownership.
  - A residential zone or urban growth zone where a precinct structure plan applies.

## 37.07-5 Referral of applications

08/08/2019
VC159

An application of the kind listed below must be referred in accordance with section 55 of the Act to the referral authority specified in Clause 66.03.

- An application to use or develop land for any of the following:
  - Display home centre.
  - Education centre.
  - Hospital.
  - Industry.
  - Medical centre.
  - Place of worship.
  - Real estate agency.
  - Warehouse.
- An application to subdivide land to create a lot smaller than 40 hectares in area.

## 37.07-6 Environmental audit

04/05/2022
VC210

Before a pre-school centre, primary school or secondary school commences on potentially contaminated land, or before the construction or carrying out of buildings and works in association with a pre-school centre, primary school or secondary school commences on potentially contaminated land:

- A preliminary risk screen assessment statement in accordance with the *Environment Protection Act 2017* must be issued stating that an environmental audit is not required for the use or proposed use; or
- An environmental audit statement under Part 8.3 of the *Environment Protection Act 2017* must be issued stating that the land is suitable for the use or proposed use; or
- A certificate of environmental audit must be issued for the land in accordance with Part IXD of the *Environment Protection Act 1970*; or
- A statement of environmental audit must be issued for the land in accordance with Part IXD of the *Environment Protection Act 1970* stating that the environmental conditions of the land are suitable for the use or proposed use.

The requirement for a preliminary risk screen assessment statement, an environmental audit statement, a certificate of environmental audit or a statement of environmental audit in this provision does not apply to the construction or carrying out of buildings and works, if:

- The buildings and works are associated with an existing pre-school centre, primary school or secondary school, included in Clause 62.02-1 or 62.02-2, and the soil is not disturbed;

- The buildings and works are required by the Environment Protection Authority or an environmental auditor appointed under the *Environment Protection Act 2017* to make the site suitable for use; or
- The buildings and works are reasonably required by an environmental auditor appointed under the *Environment Protection Act 2017* or the *Environment Protection Act 1970* to undertake a preliminary risk screen assessment or environmental audit.

## 37.07-7 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect on the future urban development and use of the land, and adjacent or nearby land, having regard to:
  - Any relevant Growth Corridor Framework Plan.
  - Any precinct structure plan being prepared for the area.
  - Any comments or directions of the referral authority.
- Whether the proposal will prejudice the logical, efficient and orderly future urban development of the land, including the development of roads, public transport and other infrastructure.
- The capability of the land to accommodate the proposed use or development, including the disposal of effluent.
- How the use or development relates to sustainable land management.
- Whether the site is suitable for the use or development.
- The impact of the siting, design, height, bulk, colours and materials to be used on the natural environment, major roads, vistas and water features, future urban use of the land, and the measures to be undertaken to minimise any adverse impacts.
- The impact on the character and appearance of the area or features of architectural, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of existing and proposed infrastructure including roads, public transport, walking and cycling networks, gas, water, drainage, telecommunications and sewerage facilities.
- Whether the use and development will require new or upgraded infrastructure, including traffic management measures.

## 37.07-8 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. The zone is in Category 3.

Despite the provisions of Clause 52.05-13, a permit may be granted, for a period of not more than 5 years, to display a sign that promotes the sale of land or dwellings.

## 37.07-9 Part B – Provisions For Land Where A Precinct Structure Plan Applies

14/01/2025
VC237

### Use of land

Any requirement in the Table of uses and any requirement specified in the schedule to this zone must be met.

A permit granted must be generally in accordance with the precinct structure plan applying to the land.

### Table of uses

#### Section 1 – Permit not required

| Use | Condition |
|---|---|
| **Any use in Section 1 of a zone applied by the schedule to this zone** | Must comply with any condition opposite the use in Section 1 of the applied zone.<br>Must comply with any condition or requirement specified in the schedule to this zone or in the precinct structure plan. |
| **Any use specified in the schedule to this zone as a use for which a permit is not required** | Must comply with any condition or requirement specified in the schedule to this zone or in the precinct structure plan. |

#### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Any use in Section 2 of a zone applied by the schedule to this zone** | Must comply with any condition opposite the use in Section 2 of the applied zone.<br>Must comply with any condition or requirement specified in the schedule to this zone or in the precinct structure plan. |
| **Any use specified in the schedule to this zone as a use for which a permit is required** | Must comply with any condition or requirement specified in the schedule to this zone or in the precinct structure plan. |
| **Any other use not in Section 1 or 3** | |

#### Section 3 – Prohibited

| Use |
|---|
| **Any use in Section 3 of a zone applied by the schedule to this zone** |
| **Any use specified in the schedule to this zone as a use which is prohibited** |

## 37.07-10 Subdivision of land

14/12/2023
VC253

A permit is required to subdivide land. Any requirement in the schedule to this zone or the precinct structure plan must be met.

A permit granted must:

- Be generally in accordance with the precinct structure plan applying to the land.
- Include any conditions or requirements specified in the schedule to this zone or the precinct structure plan.

A permit cannot be granted which would allow a separate lot to be created for land containing a small second dwelling.

## 37.07-11 Buildings and works

23/09/2011
VC77

If the schedule to this zone specifies:

- That the provisions of a zone apply to the development of land, the provisions of the zone apply to land in the circumstances specified in the schedule.

- Provisions relating to the development of land, those provisions apply to land in the circumstances specified in the schedule.

If the schedule to this zone specifies that a permit is required to construct a building or construct or carry out works, a permit granted must:

- Be generally in accordance with the precinct structure plan applying to the land.
- Include any conditions or requirements specified in the schedule to this zone or the precinct structure plan.

## 37.07-12 Application requirements

10/06/2008
VC48

An application to use or subdivide land, construct a building or construct or carry out works, must be accompanied by any information specified in the schedule to this zone.

## 37.07-13 Exemption from notice and review

25/05/2017
VC133

An application under any provision of this scheme which is generally in accordance with the precinct structure plan applying to the land is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act, unless the schedule to this zone specifies otherwise.

## 37.07-14 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any relevant Growth Area Framework Plan.
- The precinct structure plan applying to the land, including the vision and objectives of the precinct structure plan.
- Any guidelines in the schedule to this zone.

## 37.07-15 Inconsistencies between specific and applied zone provisions

10/06/2008
VC48

If there is an inconsistency between the specific provisions specified in the schedule to this zone and the provisions of a zone applied by the schedule to this zone, the specific provisions prevail to the extent of any inconsistency.

## 37.07-16 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in the category specified in the schedule to this zone or, if no category is specified, Category 3.

10/06/2021
C254card

# SCHEDULE 1 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ1**.

## CARDINIA ROAD PRECINCT STRUCTURE PLAN (SEPTEMBER 2008)

## 1.0 The Plan

10/06/2021
C254card

Plan 1 shows the future urban structure proposed in the Cardinia Road Precinct Structure Plan (September 2008).

### Plan 1 to Schedule 1 to Clause 37.07

**LEGEND**

- Structure Plan Area
- Primary Arterial Road (VicRoads)
- Local Arterial Road (divided)
- Local Arterial Road (non - divided)
- Collector Road
- Local Streets
- Signalised intersections
- Other traffic control devices
- Cardinia Road under rail
- Railway Line, Proposed Station and Car Parking
- PPTN - Principal Public Transport Network
- Residential Land
- Low density residential land (1000 - 2000sqm lots)
- Industrial land
- Core Business
- Large Neighbourhood Activity Centre (NAC)
- Small Neighbourhood Activity Centre (NAC)
- Neighbourhood Convenience Centre (NCC)
- Peripheral Commercial
- Community facilities and public uses (CC = Community Centre)
- Educational facilities (PS = Primary School, PPS = Post Primary School, PrS = Private School)
- Public open space (unencumbered)
- Public open space (encumbered)
- District sports reserves (8ha+)
- District Parks
- Existing pedestrian crossings
- Proposed pedestrian crossings
- Existing creeks
- Drainage Lines
- Lakes/waterbodies
- Ecological Vegetation Classes (EVC's)
- Areas requiring sensitive design
- Ridgelines
- 60m contour (landscape significance)
- Potential future road link
- Existing Major Easements

## 2.0 Use and development

10/06/2021
C254card

## 2.1 The Land

10/06/2021
C254card

The provisions specified in this schedule apply to all land zoned UGZ and shown in Plan 1.

Note: Some land shown in Plan 1 is not zoned UGZ and the provisions of this schedule do not apply.

## 2.2 Applied zone provisions

10/06/2021
C254card

None specified.

## 2.3 Specific provisions – Use of land

06/08/2026
C283card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Bed and breakfast** | No more than 6 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Dependent person's unit** | Must be the only dependent person's unit on the lot. |
| **Dwelling (other than Bed and breakfast)** | |
| **Food and drink premises (other than Hotel and Tavern)** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Home based business**<br>**Informal outdoor recreation** | |
| **Medical centre** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2. |
| **Office (other than Medical centre)** | The site must be within a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan (*September 2008), or the office must be a temporary land sales office for land being sold as part of the subdivision of land. |
| **Open sports ground** | |
| **Postal agency** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |

| Use | Condition |
|---|---|
| **Railway**<br>**Railway Station** | |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Shop** | The site must generally form part of a core business area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008).<br>The combined leasable floor area must not exceed the amount specified for the activity centre in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Tramway** | |
| **Veterinary centre** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Corrective institution, Dependent person's unit, and Dwelling** | |
| **Agriculture (other than Apiculture, Animal training, Domestic animal husbandry, Horse riding school, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery and Racing dog training)** | |
| **Amusement parlour** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 4 animals |
| **Art and craft centre**<br>**Child care centre** | |
| **Cinema based entertainment facility** | The site must generally form part of a core business area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Convenience shop**<br>**Display Home**<br>**Education Centre** | |

| Use | Condition |
|---|---|
| **Funeral parlour** | |
| Horse stables | |
| **Hotel** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Leisure and recreation (other than Informal outdoor recreation, Motor racing track and Open sports ground)**<br>**Mineral, stone or soil extraction (other than Extractive Industry, Mineral exploration, Mining and Search for stone)** | |
| **Motor vehicle, boat or caravan sales** | The site must generally form part of a peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Nightclub** | The site must be within a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Place of assembly (other than Amusement parlour, Carnival, Circus, Drive-in-theatre, and Nightclub)** | |
| **Place of worship** | |
| **Racing dog husbandry (other than Racing dog training)** | Must be no more than 4 animals |
| **Retail premises (other than Food and drink premises, Motor vehicle, boat or caravan sales, Postal agency, and Shop)** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Service industry (other than Panel beating)** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Service station** | The site must adjoin or have access to a road in a Transport Zone 2 or a Transport Zone 3.<br><br>The site must not exceed either:<br>- 3,000 square metres, or<br>- 3,600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |

| Use | Condition |
|---|---|
| **Shop – if the section 1 condition is not met.** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Store** | If in a residential area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008), the store must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Tavern** | The site must generally form part of a core business or peripheral commercial area as shown in the *Cardinia Road Precinct Structure Plan* (September 2008). |
| **Transport terminal (other than Railway station and Road freight terminal)** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not specified in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Adult sex product shop** |
| **Domestic animal boarding** |
| **Animal training** |
| **Corrective institution** |
| **Drive-in-theatre** |
| **Extractive industry** |
| **Industry (other than Service industry)** |
| **Intensive animal production** |
| **Horse riding school** |
| **Pig farm** |
| **Poultry farm** |
| **Poultry hatchery** |
| **Racing dog training** |
| **Motor racing track** |
| **Office (other than Medical centre) – if the Section 1 condition is not met** |
| **Panel beating** |
| **Road fright terminal** |
| **Saleyard** |

| Use |
| --- |
| Warehouse (other than Store) |

### Use of land

The use of land must be generally in accordance with the Cardinia Road Precinct Structure Plan (September 2008).

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials or goods to or from the land.
- Traffic generated by the use.
- Appearance of any buildings, works or materials.
- Emissions from the use.

### Use of land for a dwelling

A dwelling must be connected to a reticulated recycled water supply system for toilet flushing and garden watering where available to the lot. Where a reticulated recycled water supply system is not available to the lot, a dwelling must be connected to a rainwater tank with a minimum capacity of 2,500 litres for toilet flushing and garden watering purposes or an alternative grey water recycling system to the satisfaction of the responsible authority.

## 2.4 Specific provisions - Subdivision

10/06/2021
C254card

An application to subdivide residential land (as shown in Plan 1 to this schedule), other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| CLASS OF SUBDIVISION | OBJECTIVES AND STANDARDS TO BE MET |
| --- | --- |
| 60 or more lots | All except Clause 56.03-5. |
| 16 – 59 lots | All except Clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except Clauses 56.02-1, 56.03-1 to 56.03-4, 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5, 56.04-2, 56.04-3, 56.04-5, 56.06-8 to 56.09-2. |

## 2.5 Specific provisions - Buildings and works

10/06/2021
C254card

### Construction and extension of one dwelling on a lot

A permit is required to construct or extend one dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

A permit is required to construct a fence within 3 metres of a street if the fence exceeds the maximum front fence height specified in Table A2 of Clause 54.06-2.

### Decision guidelines

Before deciding on an application the responsible authority must consider the objectives, standards and decision guidelines of Clause 54.

**Construction and extension of two or more dwellings on a lot, dwellings on common property or residential buildings**

A permit is required to:

- Construct a dwelling if there is at least one dwelling on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a residential building.

A development must meet the requirements of Clause 55. This does not apply to a development of four or more storeys, excluding a basement.

A permit is not required to construct one dependant persons unit on a lot.

A permit is required to construct a fence within 3 metres of a street if the fence exceeds the maximum front fence height specified in Table A2 of Clause 55.06-2.

**Buildings and works for non-residential uses**

A permit is required to construct a building or construct or carry out works for a non-residential use.

This does not apply to the following in a core business or peripheral commercial area (as shown in Plan 1 to this schedule):

- The installation of an automatic teller machine.
- An alteration to an existing building façade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 80 per cent of the building facade at ground floor level is maintained as an entry or window with clear glazing.
- An awning that projects over a road if it is authorised by the relevant public land manager.

## 3.0 Application requirements

10/06/2021
C254card

An application must be accompanied by the following information. If in the opinion of the responsible authority an application requirement of this clause is not relevant to the assessment of the application, it may waive or reduce the requirement.

**Urban Design Framework**

A permit must not be granted to use or subdivide land, or to construct a building or construct and carry out works within a core business or peripheral commercial area as shown in the Cardinia Road Precinct Structure Plan (September 2008) until an urban design framework for the activity centre has been prepared to the satisfaction of the responsible authority.

The urban design framework may be amended to the satisfaction of the responsible authority.

The responsible authority may grant a permit to subdivide land prior to the preparation of an urban design framework if it is satisfied that the subdivision will not affect the urban design outcomes for the activity centre as set out in the Cardinia Road Precinct Structure Plan (September 2008).

The urban design framework must:

- Be generally in accordance with the Cardinia Road Precinct Structure Plan (September 2008).
- Address the background document Activity Centre Design Guidelines (DSE, 2005) and Safer Design Guidelines for Victoria (DSE, 2005).
- Set out the role and function of the activity centre including the proposed use and development of each part of the activity centre.

- Show the relationship to existing and proposed development surrounding the activity centre.
- Set out building design guidelines including the interface with streets and other public spaces, heights, materials, and articulation to create a strong urban character.
- Set out the design of streets including street design and widths, pedestrian access and areas, car parking, paving materials and street furniture.
- Set out arrangements for access to the activity centre from adjoining arterial roads.
- Set out the location of public spaces within the activity centre including a town park / square.
- Include an overall landscape concept for the activity centre.
- Set out guidelines to improvement environmental sustainability including integrated water management and energy conservation.
- Set out provisions for car parking including the location and design of car parking areas and car parking rates for proposed uses within the activity centre.
- Set out how public transport will be integrated with the activity centre.
- Set out design guidelines for the provision of signs.
- Set out arrangements for the provision of service areas for deliveries and waste disposal including access for larger vehicles and measures to minimise the impact on the amenity of the activity centre and adjoining neighbourhoods.
- Show how opportunities for housing and future commercial expansion can be incorporated into the activity centre.

**Use of Land - non-residential uses**

An application to use land for a non-residential use must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of activities which will be carried out.
- The type and quantity of materials and goods to be stored, processed or produced.
- How land which is not required for immediate use is to be maintained.
- The likely effects, if any, on the neighbourhood, including noise levels, traffic, air-borne emissions, emissions to land or water, light spill, glare, solar access and hours of operation (including the hours of delivery and dispatch of materials and goods).

**Subdivision**

In addition to the requirements of Clause 56, an application for subdivision must be accompanied by the following information for all of the land in the contiguous ownership of the landowner forming part of the development:

- The proposed use and development of each part of the land.
- A table setting out the amount of land allocated for the proposed uses.
- The staging of the development.
- The relationship of the land to existing or proposed development on adjoining land including road connections, open space, pedestrian and bicycle linkages, and drainage networks.
- Population and dwelling targets.
- The proposed range of lot sizes and housing types.
- The proposed road and street network including intersection treatments, proposed bus routes and the interface treatment with arterial roads.
- Proposed open space areas including the role and purpose of the open space.

- An overall landscape concept for the development and a detailed local open space landscape design plan as specified in the Cardinia Road Precinct Structure Plan (September 2008).
- A topographical assessment plan as specified in the Cardinia Road Precinct Structure Plan (September 2008).
- Lot and building design guidelines for any areas identified as requiring sensitive design.
- An Aboriginal cultural heritage management plan.
- A flora and fauna assessment and vegetation management and biodiversity enhancement plan as specified in the Cardinia Road Precinct Structure Plan (September 2008).
- A hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development.
- A site assessment of the potential for contaminated land as a result of previous land uses.
- An acoustic assessment of the level of traffic noise from the Princes Freeway (Pakenham Bypass) and any measures required to reduce traffic noise levels to an acceptable level.

### Buildings and works

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and purpose of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All driveway, car parking and loading areas.
  - Proposed landscape areas.
  - All external storage and waste treatment areas.
  - Areas not required for immediate use.
- Elevation drawings to scale showing the colours and materials of all buildings and works.
- Construction details of all drainage works, driveways, vehicle parking and loading areas.
- A landscape layout for the site, and where appropriate adjoining roads and public spaces, which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscape area.

## 4.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

## 5.0 Exemption from notice and review

10/06/2021
C254card

None specified.

## 6.0 Decision guidelines

10/06/2021
C254card

### Non-residential land uses

Before deciding on an application to use land for a non-residential purpose the responsible authority must consider, as appropriate:

- Any approved urban design framework approved under this schedule.
- The effect that existing or designated uses on adjoining or nearby land may have on the proposed use.
- The effect that the proposed use may have on the amenity of the neighbourhood.
- The availability and provision of utility services.
- The effect of traffic to be generated by the use.
- The interim use of those parts of the land not required for the proposed use.

### Subdivision or one or more dwellings on a lot

Before deciding on an application to subdivide or to construct one or more dwellings on a lot, the responsible authority must consider the objectives, standards and decision guidelines of Clause 54, 55 or 56, as relevant.

### Other buildings and works

Before deciding on an application the responsible authority must consider, as appropriate:

- The movement of pedestrians and cyclists, and vehicles, including vehicles involved with deliveries, waste removal, emergency services and public transport.
- The provision of car parking.
- The interface with adjoining areas, especially the relationship with residential areas.
- The streetscape, including the design of verandahs, access from the street front, providing active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or the immediate spaces and the landscaping of land adjoining a road.
- The storage of rubbish and materials for recycling.
- Defining the responsibility for the maintenance of buildings, landscaping and paved areas.
- The availability of and connection to services.
- The design of buildings to provide for solar access.

If in the opinion of the responsible authority a requirement of this clause is not relevant to the assessment of the application, it may waive or reduce the requirement.

## 7.0 Signs

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C254card

The following sign controls apply.

| LAND | SIGN REQUIREMENTS |
|---|---|
| Land shown as residential in Plan 1 to this schedule | Category 3 - except that a permit may be granted to display a sign that promotes the sale of land or dwellings. The permit must specify an expiry date of 5 years from the date the permit is issued |
| Land shown as core business or peripheral commercial in Plan 1 to this schedule | Category 1 |

| LAND | SIGN REQUIREMENTS |
|---|---|
| Land shown as low density residential, public open space, community facilities, public uses and education facilities in Plan 1 to this schedule | Category 4 |

10/06/2021
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# SCHEDULE 2 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ2**.

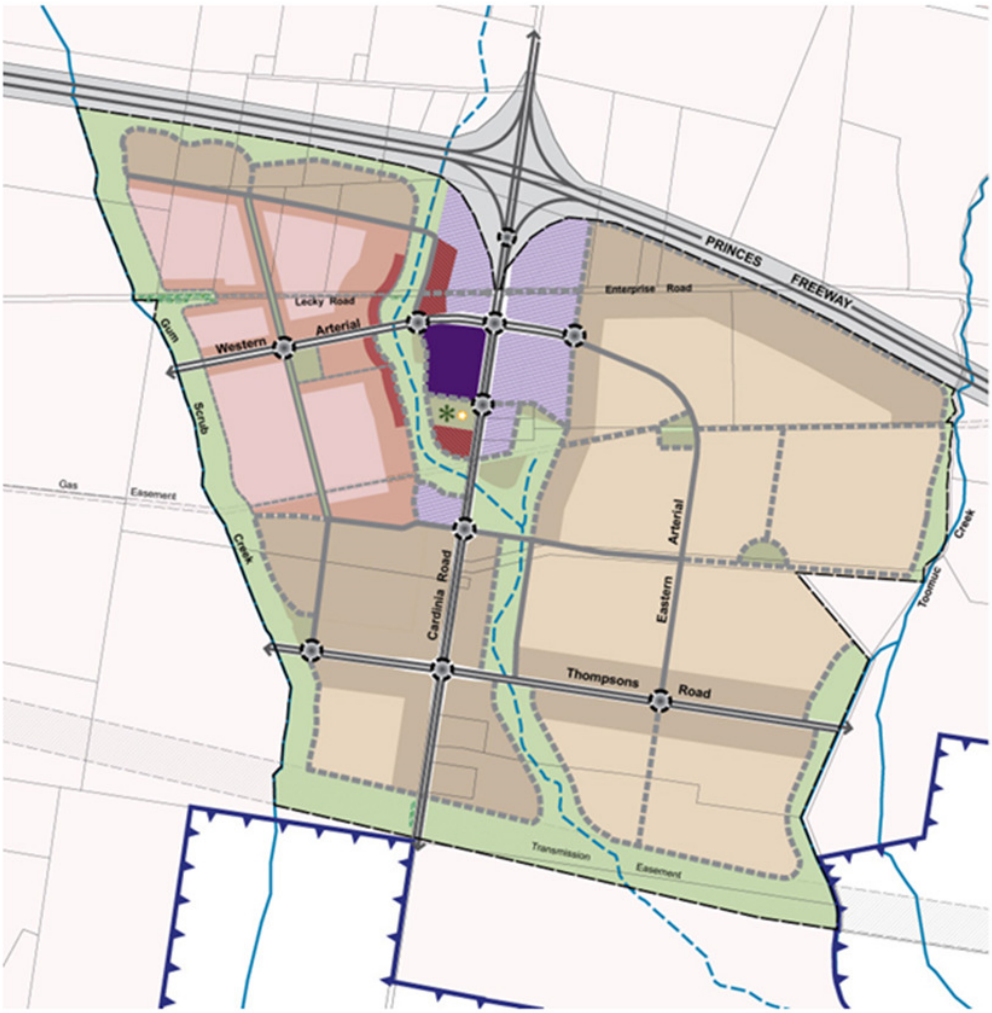
## CARDINIA ROAD EMPLOYMENT PRECINCT STRUCTURE PLAN (SEPTEMBER 2010)

## 1.0 The Plan

10/06/2021
C254card

Plan 1 shows the future urban structure proposed in the Cardinia Road Employment Precinct Structure Plan (September 2010).

### Plan 1 to Schedule 2 to Clause 37.07




**LEGEND**

- Precinct Structure Plan Area
- Urban Growth Boundary

**Road Network**

- State Freeway
- Arterial Road
- Connector Street
- Residential Connector Street (Boulevard)
- Access Street - level 2
- Access Street - level 1
- Controlled Intersections

**Employment Land**

- Commercial
- Activity Centre
- Service Business
- Industrial

**Residential Land**

- High Density Residential 2
- High Density Residential 1
- Medium Density Residential
- Conventional Residential

**Heritage and Community**

- Post Contact Heritage Site
- Community Facility

**Open Space and Environment**

- Unencumbered Open Space
- Encumbered Open Space
- Existing Creeks
- Drainage Lines
- Ecological Vegetation Classes (EVCs) to be Retained

**Other land**

- Existing Major Easements
- Future Urban Land

## 2.0 Use and development

10/06/2021
C254card

### 2.1 The Land

10/06/2021
C254card

The use and development provisions specified in this schedule apply to the land shown in Plan 1 of this schedule and zoned UGZ2.

### 2.2 Applied zone provisions

10/06/2021
C254card

None specified.

### 2.3 Specific provisions - Use of land

01/12/2023
GC230

The Table of Uses below sets out the provisions for land where there are no applied zone provisions. Where reference is made to Plan 1, this refers to Plan 1 of this schedule.

**Table of uses**

**Section 1 - Permit not required**

| Use | Condition |
|---|---|
| **Bed and breakfast** | Must be located within an area designated as residential land in Plan 1.<br>No more than 6 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Dwelling (other than Bed and breakfast and Caretaker's house)** | Must be located within an area designated as residential land in Plan 1 or the Activity Centre.<br>Dwellings within the Activity Centre must be located on upper storeys and must have dedicated access independent of other uses. Any frontage at ground floor level must not exceed 4 metres. |
| **Food and drink premises (other than Hotel and Tavern)** | Must be located within the Activity Centre as shown in Plan 1. |
| **Function centre** | Must be located in an area shown as Commercial in Plan 1. |
| **Home based business** | |
| **Industry (other than Materials recycling, Refuse disposal, Refuse transfer station, Research and development centre, Rural industry, and Service industry)** | Must be located in an area shown as Service Business or Industrial in Plan 1.<br>Must be located at least the following distances from land (not a road) designated for residential use in Plan 1 or shown as Activity Centre or Commercial:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10. |

| Use | Condition |
|---|---|
| | Must not adversely affect the amenity of the neighbourhood, including through the:<br>Transport of materials, goods or commodities to or from the land.<br>Appearance of any stored goods or materials.<br>Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |
| **Informal outdoor recreation** | |
| **Laundromat** | Must be located in the Activity Centre as shown in Plan 1 and the gross leasable floor area must not exceed 400 square metres. |
| **Manufacturing sales** | Must be located in an area shown as Industrial in Plan 1. |
| **Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-2. |
| **Office** | Must be located in an area designated as employment land in Plan 1.<br>Within the Activity Centre, the gross leasable floor area for any tenancy must not exceed 1000 square metres. Any frontage at ground floor level on any street must not exceed 2 metres, unless the office is a bank, real estate agency, travel agency or any other office where the floor space adjoining the frontage is a customer service area accessible to the public.<br>Within the Service Business area and the Industrial area, the office must be in conjunction with another use. |
| **Postal agency** | Must be located within the Activity Centre as shown in Plan 1. |
| **Railway station** | |
| **Research and development centre** | Must be located in an area shown as Industrial in Plan 1. |
| **Research centre** | Must be located in an area shown as Industrial in Plan 1. |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Shop (other than Adult sex product shop, Department store, Restricted retail premises)** | Must be located within the Activity Centre as shown in Plan 1. The floor area of any shop must not exceed 3500 square metres leasable floor area. |
| **Tramway** | |

| Use | Condition |
|---|---|
| **Warehouse (other than Shipping container storage and Fuel depot)** | Must be located in an area shown as Industrial in Plan 1. |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Amusement parlour** | Must be located on an upper storey in the Activity Centre as shown in Plan 1. |
| **Art and Craft Centre** | Must be located in the Activity Centre as shown in Plan 1. |
| **Bed and breakfast – if the section 1 condition is not met** | Must be located within an area designated as residential land in Plan 1. |
| **Bus terminal** | Must be located in an area shown as Industrial in Plan 1. |
| **Car wash** | Must be located in an area shown in Plan 1 as:<br>▪ Activity Centre;<br>▪ Service Business and have frontage to an arterial road; or.<br>▪ Industrial. |
| **Child care centre** | Must be located within the Activity Centre or be in conjunction with a use in the Commercial area, as shown in Plan 1. |
| **Convenience restaurant - if the Section 1 condition is not met** | Must be located within an area shown as Service Business or Industrial in Plan 1. |
| **Convenience shop - if the Section 1 condition is not met** | Must be in conjunction with a residential hotel or be located within an area shown as Service Business or Industrial in Plan 1. |
| **Display home** | Must be located within an area designated as residential land in Plan 1. |
| **Dry cleaner** | Must be located in an area shown in Plan 1 as:<br>▪ Activity Centre and the leasable floor area must not exceed 400 square metres; or<br>▪ Industrial. |
| **Dwelling (other than Bed and breakfast and Caretaker's house) – if the Section 1 condition is not met** | Must be located in an area shown as Activity Centre in Plan 1. |
| **Education Centre (except Primary School and Secondary School)** | Must be located within or adjacent to an area designated as employment land in Plan 1. |

| Use | Condition |
|---|---|
| **Exhibition centre** | Must be located within an area shown as Commercial in Plan 1, or within the Activity Centre adjacent to an arterial road. |
| **Funeral Parlour** | Must be located within an area shown as Service Business in Plan 1. |
| **Geothermal energy extraction** | Must be located in an area shown as Industrial in Plan 1. |
| **Hospital** | Must be located in an area shown as Commercial in Plan 1. |
| **Hotel** | Must be located within an area shown as Service Business in Plan 1 and have access to an arterial road. |
| **Indoor recreation facility** | Must be located in an area shown in Plan 1 as:<br>▪ Activity Centre, at an upper storey; or<br>▪ Service Business. |
| **Industry (other than Materials recycling, Refuse disposal, Refuse transfer station, Research and development centre, Rural industry, and Service industry) – where the Section 1 condition is not met** | Must be located in an area shown as Service Business or Industrial in Plan 1. |
| **Land sales centre** | The permit must specify an expiry date of five years from the date the permit is issued. |
| **Motor vehicle, boat and caravan sales** | Must be located in an area shown as Service Business or Industrial in Plan 1. |
| **Nightclub** | Must be located within the Activity Centre as shown in Plan 1. Any frontage at ground floor level must not exceed 2 metres. |
| **Office - if the Section 1 condition is not met** | Must be located within the Activity Centre as shown in Plan 1. |
| **Renewable energy facility** | Must be located in an area designated as employment land in Plan 1.<br>When located in an area shown as Activity Centre, Commercial, or Service Business, must be in conjunction with another use. |
| **Research and development centre - if the Section 1 condition is not met** | Must be located in an area shown as Commercial or Service Business in Plan 1. |
| **Research centre - if the Section 1 condition is not met** | Must be located in an area shown as Commercial or Service Business in Plan 1. |
| **Residential hotel** | Must be located in an area shown as Commercial or High Density Residential 2 in Plan 1. |

| Use | Condition |
|---|---|
| **Restaurant - if the Section 1 condition is not met** | Must be located in an area shown in Plan 1 as:<br>▪ Commercial when in conjunction with another use;<br>▪ Service Business; or<br>▪ Industrial. |
| **Restricted place of assembly** | Must be located in an area shown as Commercial in Plan 1 and be in conjunction with an office. |
| **Restricted recreation facility** | Must be located within an area shown in Plan 1 as:<br>Activity Centre, at an upper storey; or<br>Commercial and be in conjunction with an office, residential hotel or education centre. |
| **Restricted retail premises** | Must be located in an area shown in Plan 1 as:<br>▪ Activity Centre;<br>▪ Commercial; or<br>▪ Service Business and be:<br>▪ automotive parts and accessories;<br>▪ equestrian supplies; or<br>▪ swimming pools. |
| **Retail premises (other than Food and drink premises, Market, Motor vehicle, boat and caravan sales, Postal agency, Primary Produce Sales, Trade supplies and Shop)** | Must be located in an area shown as Service Business in Plan 1. |
| **Road freight terminal** | Must be located in an area shown as Industrial in Plan 1. |
| **Service station** | Must be located in the Activity Centre as shown in Plan 1 or be located with frontage to an arterial road in areas shown as Industrial or Service Business. |
| **Shop (other than Adult sex product shop, Convenience shop, Department store, Restricted retail premises) - if the Section 1 condition is not met** | Must be in conjunction with a residential hotel or office and be in an area shown as Commercial on Plan 1. |
| **Takeaway food premises - if the Section 1 condition is not met** | Must be located within an area shown as Service Business or Industrial and adjacent to open space. |
| **Tavern** | Must be located in the Activity Centre as shown in Plan 1 or be located within an area shown as Service Business in Plan 1 and have frontage to an arterial road. |
| **Trade supplies** | Must be located in an area shown as Service Business or Industrial in Plan 1. |

| Use | Condition |
|---|---|
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | Any gas holder, or sewerage or refuse treatment or disposal works, must be at least 30 metres from land (not a road) which is designated for residential use in Plan 1, or shown as Activity Centre or Commercial. |
| **Veterinary Centre** | Must be located within an area shown in Plan 1 as:<br>Activity Centre; or<br>Service Business. |
| **Warehouse (other than shipping container storage and fuel depot) if the Section 1 condition is not met** | Must be located within an area shown in Plan 1 as Service Business and be in conjunction with an office. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Bed & Breakfast, Dwelling, Residential hotel)** |
| **Adult sex product shop** |
| **Agriculture** |
| **Caretaker's house** |
| **Cemetery** |
| **Cinema based entertainment facility** |
| **Crematorium** |
| **Extractive Industry** |
| **Freeway service centre** |
| **Leisure and recreation (other than Indoor recreation facility, Informal outdoor recreation, Restricted recreation facility)** |
| **Place of assembly (other than Amusement parlour, Exhibition centre, Function centre, Hall, Library, Nightclub, Restricted Place of Assembly)** |
| **Recreational boat facility** |
| **Saleyard** |
| **Winery** |
| **Any use in Section 2 where the condition is not met** |

The use of land must be generally in accordance with *the Cardinia Road Employment Precinct Structure Plan* (September 2010).

A use must not detrimentally affect the amenity of the neighbourhood including through:

- Transport of materials or goods to or from the land.
- Traffic generated by the use.
- Appearance of any buildings, works or materials.
- Emissions from the use.

### Use of land for a dwelling

A dwelling must be connected to a reticulated recycled water supply system for toilet flushing and garden watering where available to the lot. Where a reticulated recycled water supply system is not available to the lot, a dwelling must be connected to a rainwater tank with a minimum capacity of 2,500 litres for toilet flushing and garden watering or an alternative grey water recycling system to the satisfaction of the responsible authority.

## 2.4 Specific provisions – Subdivision

10/06/2021
C254card

An application to subdivide in the Activity Centre must be consistent with any urban design framework approved under this schedule.

## 2.5 Specific provisions - Buildings and works

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C254card

### Construction and extension of one dwelling on a lot

A permit is required to construct or extend one dwelling on a lot less than 350 square metres.

A development must meet the requirements of Clause 54, except:

- In areas shown as Medium Density Residential on Plan 1, the maximum setback for dwellings from the front title boundary is 3 metres.
- In areas shown as High Density Residential 1 and High Density Residential 2 on Plan 1, the maximum setback for dwellings from the front title boundary is 1 metre, and where the lot is a corner lot a maximum of 1 metre set back is to be provided from both frontages.
- A permit is required to construct a front fence that exceeds 1.2 metres in height.

### Construction of two or more dwellings on a lot or residential buildings

A permit is required to:

- Construct a dwelling if there is at least one existing dwelling on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on a lot.

A development must meet the requirements of Clause 55, except:

- In areas shown as Medium Density Residential on Plan 1, the maximum setback for dwellings from the front title boundary is 3 metres.
- In areas shown as High Density Residential 1 and High Density Residential 2 on Plan 1, the maximum setback for dwellings from the title is 1 metre, and where the lot is a corner lot a maximum of 1 metre set back is to be provided from both frontages.
- A permit is required to construct a front fence that exceeds 1.2 metres in height.

These provisions do not apply to dwellings of three storeys or more, excluding a basement.

### Construction of a dwelling or residential building of three or more storeys

A permit is required for all buildings and works for dwellings and residential buildings of three or more storeys.

### Uses other than dwellings on Residential land

A permit is required to construct a building or construct or carry out works for a non-residential use on land shown in Plan 1 as residential and any use listed in Section 2 of this schedule.

### Buildings and works for employment land

A permit is required to construct a building or construct or carry out works on land designated for employment in Plan 1.

This does not apply to the following within an area shown as Activity Centre or Commercial in Plan 1:

- The installation of an automatic teller machine.
- An alteration to an existing building façade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 80 per cent of the building façade at ground floor level is maintained as an entry or window with clear glazing.
- An awning that projects over a road if it is authorised by the relevant public land manager.

### Removal of Existing Waterbodies

A permit is required to remove any existing waterbody, including dams and wetlands.

### Buildings and Works on Encumbered Open Space

A permit is required for buildings and works on land shown as Encumbered Open Space in Plan 1.

## 2.6 Requirements before a permit is granted

### Urban design frameworks

A permit must not be granted to use or subdivide land, or to construct a building or construct and carry out works until an urban design framework has been prepared to the satisfaction of the responsible authority for the following areas as shown on Plan 1:

- The area shown as 'Service Business' that abuts Princes Freeway, comprising two sub-areas:
  - west of Cardinia Road, north of the residential area; and
  - east of Cardinia Road, for the area generally north of Enterprise Road, extending to Toomuc Creek in a band that is approximately 200 metres wide.
- The area defined as the 'Commercial Core' including the Activity Centre, which encompasses:
  - all land between Cardinia Road and the Cardinia Road Open Space Corridor; and
  - all land east of Cardinia Road shown as Commercial.

The urban design framework must be generally in accordance with the *Cardinia Road Employment Precinct Structure Plan (September 2010)* (refer section 4.2.4). The urban design framework may be amended to the satisfaction of the responsible authority.

The responsible authority may grant a permit to subdivide land or to construct a building or construct and carry out works prior to the preparation of an urban design framework if it is satisfied that the subdivision, buildings or works give effect to the urban design outcomes as set out in the *Cardinia Road Employment Precinct Structure Plan (September 2010)*.

The responsible authority may allow the preparation of the urban design framework for areas shown as 'Service Business' in Plan 1 to be staged or split, reflecting the area two areas either side of Cardinia Road.

## 3.0 Application requirements

10/06/2021
C254card

### 3.1 Subdivision

#### General

All applications for subdivision must be accompanied by the following information to the satisfaction of the responsible authority:

- Details of the proposed use and development of each part of the land.
- A table setting out:
  - the amount of land allocated for the proposed uses; and
  - the mix of lot sizes.
- An indication of staging of subdivision and timing.
- Details of how the proposed development complements the overarching precinct structure (roads, parks etc) with a finer-grained circulation network that facilitates the development of a higher degree of permeability and walkability.
- Details of how the road connections, open space, pedestrian and bicycle linkages and drainage networks of the proposed development integrates with and responds to existing and planned developments on adjacent sites.
- Details of how the land use pattern and urban structure provides appropriate buffers between sensitive land uses, in terms of open space, road reserves and landscape treatments.
- Include a Transport Impact Assessment Report to the satisfaction of the relevant roads authority (be it VicRoads or Council).
- The proposed road and street network, including pedestrian and cycling routes, intersection treatments, proposed bus routes and the interface treatment with arterial roads.
- A plan showing access arrangements for properties adjacent to arterial roads.
- The staging of road network development within the subject land, enabling early delivery of roads shown in Plan 1.
- A plan showing proposed encumbered and unencumbered open space areas including land designated as 'waterways – drainage corridors' in Plan 11 of the *Cardinia Road Employment Precinct Structure Plan* (September 2010), and a description of role and purpose to the satisfaction of Melbourne Water and the responsible authority.
- An overall landscape concept for the development. This should be consistent with best practice Water Sensitive Urban Design techniques.
- An assessment of how the lot and building design responds to sensitive interfaces.
- A hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development.
- A site assessment of the land by a suitably qualified environmental professional including:
  - detail of the nature of the previous and existing land use/activities on the land;
  - an assessment of the potential level and nature of contamination on the land; and
  - advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the Potentially Contaminated Land General Practice Note June 2005, (DSE).

### Residential subdivision

In addition to the above application requirements and the requirements of Clause 56 (where relevant), an application that includes subdivision of land shown as residential on Plan 1 must be accompanied be the following information to the satisfaction of the responsible authority:

- An overall residential subdivision plan for all land in contiguous ownership of the landowner demonstrating the lot yield, diversity and distribution across the subject area, consistent with the principles outlined in the *Cardinia Road Employment Precinct Structure Plan* (September 2010).
- Subdivision and Housing Design Guidelines prepared to the satisfaction of the responsible authority in accordance with the *Cardinia Road Employment Precinct Structure Plan* (September 2010).
- A building envelope plan for land shown as Conventional Residential in Plan 1 that provides sufficient space to contain a dwelling, garage and canopy tree as outlined in the *Cardinia Road Employment Precinct Structure Plan* (September 2010).

### Demonstration of Clause 56 standards

An application to subdivide residential land (as shown in Plan 1 of this schedule), other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must demonstrate how the proposed subdivision layout is generally in accordance with the *Cardinia Road Employment Precinct Structure Plan* (September 2010), and:

- should meet all of the objectives and standards in the clauses specified in Table 2; and
- meet the requirements of Clause 56 (except where exempted in Table 3).

**Table 2**

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except Clause 56.03-5. |
| 16 – 59 lots | All except Clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except Clauses 56.02-1, 56.03-1 to 56.03-4, 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5, 56.04-2, 56.04-3, 56.04-5, 56.06-8 to 56.09-2. |

**Table 3: Specific conditions for subdivision of residential land**

| Density Type | Exemptions (to Clause 56) |
|---|---|
| High Density Residential 2 | 56.04-2, 56.05-2, 56.06-8 |
| High Density Residential 1 | 56.04-2, 56.05-2, 56.06-8 |
| Medium Density Residential | 56.04-2, 56.05-2, 56.06-8 |
| Conventional Residential | 56.05-2, 56.06-8 |

## 3.2 Buildings and works for residential land

### One dwelling on a lot

An application to construct a building or construct or carry out works on a lot less than 350 square metres must provide all information required under Clause 54, unless otherwise exempt in this Schedule.

**Two or more dwellings on a lot or residential buildings**

An application to construct a building or construct or carry out works for two or more dwellings on a lot or residential buildings must provide all information required under Clause 55, unless otherwise exempt in this Schedule. This does not apply to dwellings of three storeys or more excluding a basement.

**Dwelling or residential building of three or more storeys**

For applications relating to residential development of three or more storeys, an urban context report addressing the matters set out in Clause 58.01 is required.

## 3.3 Buildings and works for employment land

All applications for buildings and works on land shown as employment land on Plan 1 must be accompanied by the following information to the satisfaction of the responsible authority:

- A landscape layout for the site, and where appropriate, adjoining roads and public spaces, which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscaped area.
- A design response report that demonstrates the following:
  - The layout and design of buildings contributes towards an attractive and safe public realm environment and complements adjacent uses, addressing active frontages, site servicing, car parking, lighting, landscaping and signage.
  - How the design of buildings, including heights, massing and articulation, contributes to an attractive and cohesive built form environment, a diverse, interesting and complementary architectural form and responds to surrounding land uses.
  - Location and height of existing and proposed buildings on the site and surrounding properties.
  - The location of private open space of surrounding properties and the location of trees, fences and other landscape elements.
  - Traffic and pedestrian circulation through and around the site.
  - Surrounding land uses.

If in the opinion of the responsible authority a requirement of the design response report is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

**Site Context Reports**

Applications for buildings and works must be accompanied by a Site Context Report to the satisfaction of the responsible authority for the following sites:

- Cardinia Road between the Cardinia Road Open Space Corridor and Thompsons Road;
- the corners of Cardinia and Thompsons Roads, extending along Thompsons Road to the first connecting street;
- Thompsons Road adjoining Gum Scrub Creek; and
- Thompsons Road adjoining Toomuc Creek.

The site context report must be generally in accordance with the *Cardinia Road Employment Precinct Structure Plan* (September 2010) (specified in section 4.2.5).

### Sustainability Statement Requirements

An application to use or subdivide land, or to construct a building or construct and carry out works must be accompanied by a Sustainability Statement that demonstrates how the development meets the sustainability objectives and planning and design guidelines. The sustainability statement must be in accordance with the *Cardinia Road Employment Precinct Structure Plan* (September 2010) (refer section 4.7.5).

If in the opinion of the responsible authority this requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

### Specific Requirements – Lot 1 TP542938 (PSP Property Number 22)

Any application to remove Dam 38 on Lot 1 TP542938 (270 Cardinia Road, Officer South) must include written advice from the Department of Sustainability and Environment that it is satisfied there has been successful colonisation and breeding of GGFs (defined by the presence of metamorphs) at a minimum of one waterbody shown in Plan 13 of the *Cardinia Road Employment Precinct Structure Plan* (September 2010).

## 4.0 Conditions and requirements for permits

10/06/2021
C254card

### 4.1 General

A planning permit must include a condition or conditions which ensure that any requirements or conditions set out in the *Cardinia Road Employment Precinct Structure Plan* (September 2010) are implemented as part of the planning permit or the plans endorsed under the permit.

Any permit granted for subdivision, or the construction of a building or the carrying out of works in respect of land where a Native Vegetation Precinct Plan has identified any native vegetation to be retained must contain the conditions set out in the *Cardinia Road Employment Precinct Native Vegetation Precinct Plan.*

### 4.2 Environmental assessment of potentially contaminated land

If an application for a permit includes a site assessment recommending an environmental audit of all or part of the land, then the permit must contain conditions that for that part of the land recommended for the audit;

1.Either:

- A certificate of environmental audit issued for the relevant land in accordance with Part 1XD of the *Environmental Protection Act 1970*, or
- A statement by an environmental auditor appointed under the *Environment Protection Act 1970*, in accordance with Part 1XD of that Act that the environmental conditions of the relevant land are suitable for a sensitive use (with or without conditions on the use of the site);

must be provided to the responsible authority before any building on the relevant land is occupied; and

2.If a statement by an environmental auditor is provided rather than a certificate of environmental audit and the statement indicates that the environmental conditions of the relevant land are suitable for a sensitive use subject to conditions, the owner of the land must enter into an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* before any building on the relevant land is occupied to provide for;

- ongoing compliance with all conditions in the Statement by the Environmental Auditor;
- the responsible authority's reasonable legal costs and expenses of drafting/reviewing and registering the agreement to be borne by the owner of the relevant land.

### 4.3 Construction Environmental Management Plan requirements

A permit to use or subdivide land, or to construct a building or construct and carry out works must contain a condition that prior to the commencement of any buildings or works, Construction Environmental Management Plan (CEMP) is to be prepared.

The CEMP must specifically address significant flora and fauna, where the buildings or works are within:

- 50 metres of any native vegetation to be retained in the *Cardinia Road Employment Precinct Native Vegetation Precinct Plan*; and/or
- 200 metres of any waterbody (including creeks, drains, dams and wetlands) under the provisions of the Cardinia Road Employment Precinct Conservation Management Plan for Growling Grass Frog (GGF).

The CEMP must address all requirements specified in section 4.5.6 of the *Cardinia Road Employment Precinct Structure Plan* (September 2010) and be to the satisfaction of the Department of Sustainability and Environment and the responsible authority.

### 4.4 Conservation Management Plan - Growling Grass Frog

Where a Conservation Management Plan (CMP) for GGF has been approved by the Secretary to the Department of Sustainability and Environment and it applies to the land, any permit granted for subdivision or the construction of a building or the carrying out of works that directly or indirectly results in the destruction of habitat for the Growling Grass Frog must include the following conditions as appropriate:

- Prior to any works commencing within 100 metres of the edge of any waterbody which is to be retained, a highly visible fence is to be installed 20 metres from the edge of the waterbody.
- No dumping of soil or materials is to occur within 30 metres of any waterbody.
- No vehicle access is permitted within 30 metres of any waterbody.
- No polluted and/or sediment laden run-off is to be discharged directly or indirectly into drains or watercourses.
- Pollution or litter traps must be provided on the land at appropriate points along the drainage system or drainage lines.
- The actions which identify the responsible agent as the "landowner" in Table A2.1 of the CMP for the GGF must be implemented to the satisfaction of the Department of Sustainability and Environment.
- Water run-off from construction sites must be managed to maintain water quality of dams.
- A salvage and translocation plan must be prepared and implemented to the satisfaction of DSE and the responsible authority, in accordance with section 3.4.3 of the CMP, where:
  - construction of a building or carrying out of works is within 200 metres of an existing waterbody; or
  - an existing waterbody is being removed, as approved under the CMP.

### 4.5 Subdivision

Any permit granted for subdivision must contain the following conditions as appropriate:

- Infrastructure is to be provided in accordance with Chapter 6 of the *Cardinia Road Employment Precinct Structure Plan* (September 2010).

- Where an infrastructure funding agreement under Section 173 of the *Planning and Environment Act* (1987) for the Cardinia Road Employment Precinct has been executed for the land, in accordance with its requirements, development contributions must be paid to Cardinia Shire Council.
- At the time of subdivision, or other time as agreed with Melbourne Water, land shown as 'waterways – drainage corridor' in Plan 6 of the *Cardinia Road Employment Precinct Structure Plan* (September 2010) must be vested in Melbourne Water.
- At the time of subdivision, or other time as agreed with Cardinia Shire Council, land identified as 'Project Land' in the infrastructure funding agreement under Section 173 of the *Planning and Environment Act* (1987) for the Cardinia Road Employment Precinct must be vested in Cardinia Shire Council.
- Before the Statement of Compliance is issued under the *Subdivision Act 1988*, the applicant or owner must make a financial contribution to Melbourne Water to fund the management and maintenance of waterways to fulfil the requirements of the CMP for GGF.
- Bus stop facilities are to be located, designed and constructed to the satisfaction of the Director of Public Transport.

### 4.6 Buildings and works

Any permit granted for buildings and works must contain the following conditions as appropriate:

- Where an infrastructure funding agreement under Section 173 of the *Planning and Environment Act* (1987) for the Cardinia Road Employment Precinct has been executed for the land and no subdivision of the parent title has occurred (prior to applications for buildings and works):
  - Development contributions must be paid to Cardinia Shire Council in accordance with the requirements of the infrastructure funding agreement under Section 173 of the *Planning and Environment Act* (1987) for the Cardinia Road Employment Precinct; and
  - Land identified as 'Project Land' in the infrastructure funding agreement under Section 173 of the *Planning and Environment Act* (1987) for the Cardinia Road Employment Precinct must be vested in Cardinia Shire Council.

This does not apply where the buildings and works are associated with an existing non-urban use (as determined by the responsible authority).

### 4.7 Creation of lots shown as Conventional Residential on Plan 1

Before the issue of the Statement of Compliance for the subdivision (or a stage of the subdivision), a building envelope plan for each lot must be submitted to and approved by the responsible authority.

The approved building envelopes must form either a restriction on the certified plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is registered on the title to the land. The restriction or agreement must provide for:

- The building envelope to apply to each relevant lot;
- All buildings to conform to the building envelope on the relevant lot;
- The construction of a building outside of a building envelope, only with the consent of the responsible authority;
- Creation of a private open space area of at least 36m² and provision of a canopy tree.

Where a building envelope is to be applied to the land through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act (1987)*, the building envelope plan may be approved after the plan of subdivision has been certified.

## 5.0 Exemption from notice and review

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C254card

None specified.

## 6.0 Decision guidelines

10/06/2021
C254card

None specified.

## 7.0 Signs

10/06/2021
C254card

The following sign controls apply:

| Land (shown in Plan 1) | Sign Requirements |
|---|---|
| **Land shown as Residential** | Category 3 – except that a permit may be granted to display a sign that promotes the sale of land or dwellings. The permit must specify an expiry date of 5 years from the date the permit is issued |
| **Land shown as Activity Centre** | Category 1 – except that a permit is required:<br>▪ for a pole sign;<br>▪ where the land is adjacent to a residential use;<br>▪ where a sign is over 0.2 sq m for a Bed and breakfast sign of Home based business sign |
| **Land shown as Commercial** | Category 2 – except that a permit is required for a pole sign |
| **Land shown as Service Business** | Category 2 – where land is not adjacent to land shown as Residential or Commercial in Plan 1, except that a permit is required for a pole sign<br>Category 3 – where land is adjacent to land shown as Residential or Commercial in Plan 1 |
| **Land shown as Industrial** | Category 2 – where land is not adjacent to land shown as Commercial in Plan 1<br>Category 3 – where land is adjacent to land shown as Commercial in Plan 1 |
| **Land shown as Open Space, community facilities or other public use** | Category 3 |

### 7.1 Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres.
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage.
- The sign is not animated, scrolling, electronic or internally illuminated sign.
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot.
- The sign is setback a minimum of 750mm from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

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# SCHEDULE 3 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ3**.

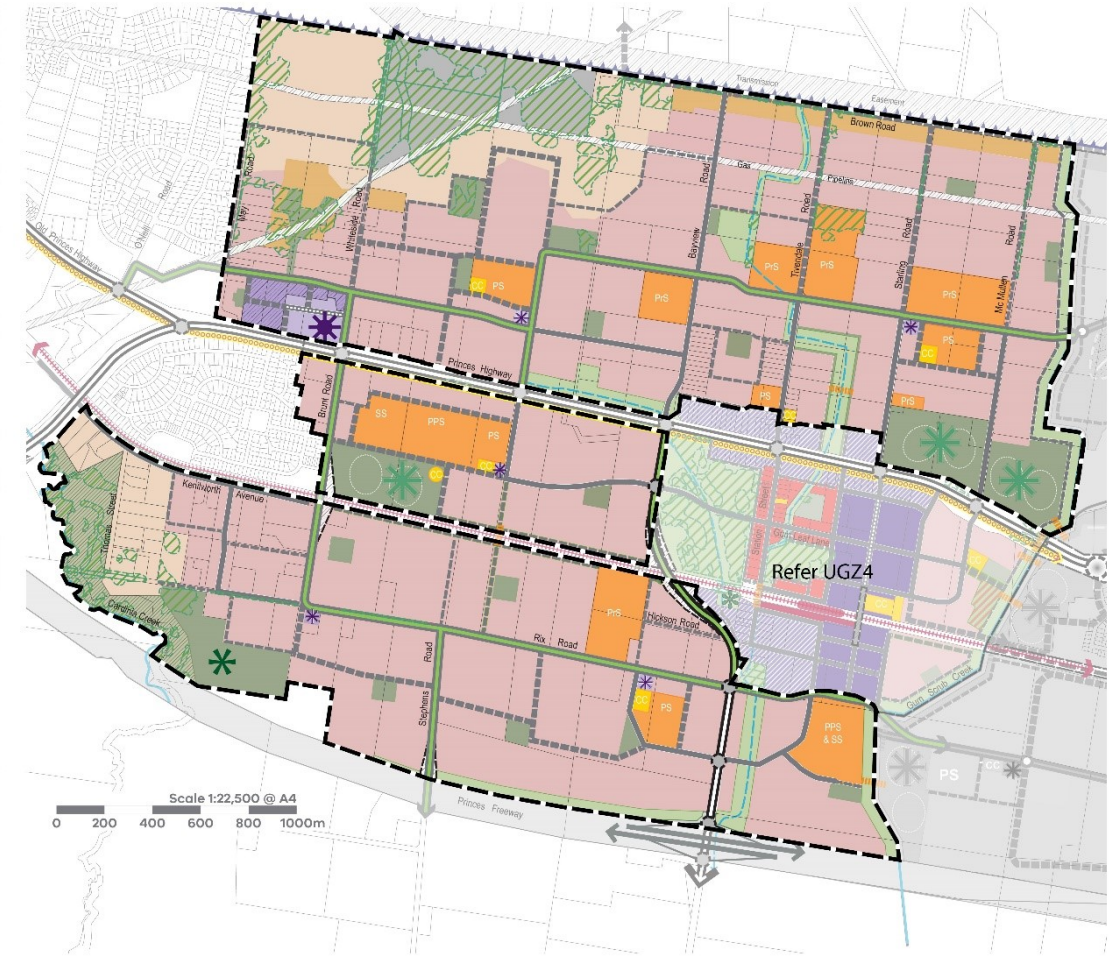
## OFFICER PRECINCT STRUCTURE PLAN (SEPTEMBER 2011, AMENDED NOVEMBER 2019) – RESIDENTIAL AREA

## 1.0 The Plan

06/03/2020
C232card

Plan 1 shows the future urban structure proposed in the incorporated *Officer Precinct Structure Plan*. It is a reproduction of Plan 5 in the incorporated *Officer Precinct Structure Plan.*

**Plan 1 to Schedule 3 to Clause 37.07**

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## 2.0 Use and development

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## 2.1 The Land

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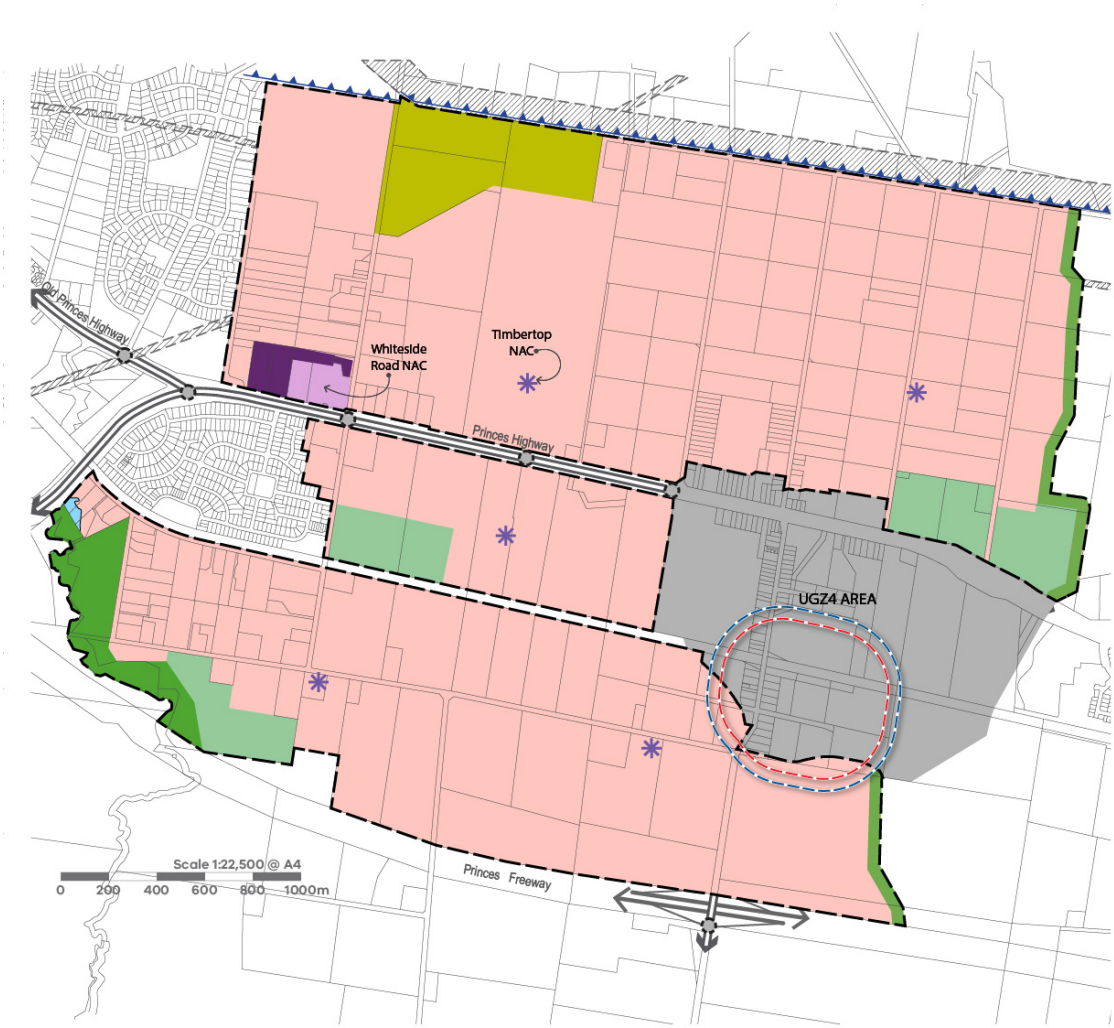
C232card

The use and development provisions specified in this schedule apply to the land shown in Plan 2 of this schedule and shown as UGZ3 on the planning scheme maps.

**Plan 2 to Schedule 3 to Clause 37.07**

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## 2.2 Applied zone provisions

20/01/2022
VC205

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 2 of this schedule.

*Note: e.g. The Commercial 2 Zone specifies 'Shop' as a Section 1 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

**Table 1: Applied zone provisions**

| Land shown on Plan 2 of this schedule | Applied zone provisions |
|---|---|
| Core Business / Convenience Centre / Peripheral Commercial | Clause 34.01 – Commercial 1 Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |
| Conservation Living Area | Clause 35.06 – Rural Conservation Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |
| District park | Clause 36.02 – Public Park and Recreation Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |
| Conservation area | Clause 36.03 – Public Conservation and Resource Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |
| Floodway | Clause 37.03 – Urban Floodway Zone |
| All other land on Plan 2 of this schedule | Applied zone provisions |
| | Clause 32.08 – General Residential Zone |

Where a public land zone is applied in Table 1 and the land is in private ownership the bodies specified below are the public land manager for the purposes of the applied zone.

| Applied zone | Public land manager |
|---|---|
| Public Park and Recreation Zone | Cardinia Shire Council |
| Public Conservation and Resource Zone (adjacent to Cardinia Creek) | Parks Victoria |
| Public Conservation and Resource Zone (adjacent to Gum Scrub Creek) | Melbourne Water or Cardinia Shire Council as appropriate |

## 2.3 Specific provisions – Use of land

06/03/2020
C232card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Bed and breakfast where the applied zone is General Residential Zone**<br>**Community care accommodation where the applied zone is General Residential Zone**<br>**Dependant person's unit where the applied zone is General Residential Zone** | ▪ Must not be on land within the 'separation distance' area from the existing HyGain Feeds Mill site at 10-20 Hickson Road, Officer shown on Plan 2 of this Schedule and Figure 6 in the incorporated *Officer Precinct Structure Plan;* and<br>▪ Must meet the conditions associated with these land uses under Section 1 of Clause 32.08-2. |

| Use | Condition |
|---|---|
| **Dwelling (other than bed and breakfast) where the applied zone is General Residential Zone**<br><br>**Informal outdoor recreation where the applied zone is General Residential Zone**<br><br>**Rooming house where the applied zone is General Residential Zone** | |
| **Shop (other than Adult sex product shop) where the applied zone is Commercial 1 Zone and the land is shown as "Core Business" and "Convenience Centre" on Plan 2 of this Schedule.** | The combined leasable floor area of all shops must not exceed:<br>▪ 8,000 square metres for land shown as Neighbourhood Activity Centre – Princes Highway and Whiteside Road;<br>▪ 2,000 square metres for land shown as Neighbourhood Convenience Centre – Timbertop Boulevard North; or<br>▪ 500 square metres for any other neighbourhood convenience centre. |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |
| **Any other use listed in Section 1 in the Table of uses of the applicable applied zone.** | |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Residential aged care facility where the applied zone is General Residential Zone** | |
| **Beauty salon where the applied zone is Commercial 1 Zone and the land is shown as "Peripheral Commercial" on Plan 2 of this Schedule.**<br><br>**Hairdresser where the applied zone is Commercial 1 Zone and the land is shown as "Peripheral Commercial" on Plan 2 of this Schedule.**<br><br>**Food and Drink Premises where the applied zone is Commercial 1 Zone and the land is shown as "Peripheral Commercial" on Plan 2 of this Schedule.** | |
| **Any other use not in Section 1 or 3 in the Table of uses in the applicable applied zone.** | |

### Section 3 – Prohibited

| Use |
|---|
| **Car wash where the applied zone is General Residential Zone** |
| **Food and drink premises (other than Restaurant) where the applied zone is General Residential Zone** |
| **Service station where the applied zone is General Residential Zone** |
| **Retail premises (other than Beauty salon, Food and Drink Premises and Hairdresser) where the applied zone is Commercial 1 Zone and the land is shown as "Peripheral Commercial" on Plan 2 of this Schedule.** |

| Use |
|---|
| **Industry where the applied zone is Commercial 1 Zone and the land is shown as "Peripheral Commercial" on Plan 2 of this Schedule.** |
| **Any use listed in Section 3 in the Table of uses of the applicable applied zone** |

### Berwick Pottery Site

A permit may be granted for the following uses on properties numbered 185 & 186 in the Officer Precinct Structure Plan (Lot 1 on TP20791 and Lot 1 on TP20642), also known as the Berwick Pottery:

| Use | Condition |
|---|---|
| **Retail premises (other than Food and drink premises, Market, Convenience shop, Plant nursery, Tavern, Betting agency, Gambling premises, Gaming premises, Motor vehicle, boat, or caravan sales and Shop)** | |
| **Restricted retail premises** | Must be in one occupation with a leasable floor area of at least 1000 square metres. |

### Use of land for a dwelling

Prior to the use of any dwelling:

- the dwelling must be connected to a reticulated recycled water supply system for toilet flushing and garden watering where available to the lot; or
- where a reticulated recycled water supply system is not available to the lot, the dwelling must be connected to a rainwater tank with a minimum capacity of 2,500 litres for toilet flushing and garden watering or an alternative grey water recycling system to the satisfaction of the responsible authority; and
- the dwelling must be connected to a reticulated sewerage system.

### Use of land within HyGain 'separation distance'

The use of the land for a bed and breakfast, accommodation, education centre and informal outdoor recreation within the identified 'separation distance' from the HyGain Feeds Mill Site must not be located in areas where their amenity may be detrimentally affected by the HyGain Feeds Mill site through noise, dust or odour emissions.

## 2.4 Specific provisions - Subdivision

06/03/2020
C232card

### Environmental Residential (north of Princes Highway)

An application to subdivide land in the area shown as Environmental Residential B in Plan 8 of the incorporated *Officer Precinct Structure Plan* and Lot 2 PS312844 must provide lots that are a minimum of 4000 square metres where any proposed lot contains native vegetation to be retained in the *Officer Native Vegetation Precinct Plan (September 2011)* unless a planning permit has been granted for the removal of native vegetation within the proposed lot.

### Whiteside Road Neighbourhood Activity Centre

An application to subdivide land in the Whiteside Road Neighbourhood Activity Centre including all land south of the Boulevard Connector between May and Whiteside Roads in Plan 1 must be consistent with an urban design framework approved under this schedule.

## 2.5 Specific provisions - Buildings and works

06/03/2026
C285card

### Construction of one dwelling on a lot

In the area shown as 'Residential' where the applied zone is General Residential Zone on Plan 2 of this Schedule, a permit is not required to construct or extend one dwelling on a lot with an area less than 300 square metres where an approved building envelope as defined in Part 4 of the Building Regulations 2006 applies to the lot.

### Dwellings on a lot less than 300 square metres

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* forming part of the *Officer Precinct Structure* Plan applies, and the development complies with the *Small Lot Housing Code* forming part of the incorporated *Officer Precinct Structure Plan*.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

### Buildings and Works associated with a dwelling:

Buildings and works for a dwelling within 300 metres from the HyGain Mills site at 10-20 Hickson Road, Officer must be designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Noise levels should be assessed in unfurnished rooms with a finished floor and the windows closed.

### Construction and extension of one dwelling on a lot of 1000 square metres or more

A permit is required to construct or extend one dwelling on a lot of 1000 square metres or more where the applied zone is General Residential Zone, except where buildings and works are generally in accordance with an approved building envelope (as defined in Part 4 of the Building Regulations 2006).

### Public transport referral requirements

For the purpose of Clause 66.02-11 of the scheme a development is generally in accordance with the incorporated *Officer Precinct Structure Plan* where the following requirements are met:

- A road nominated on Plan 17 – Public Transport in the incorporated *Officer Precinct Structure Plan* as a potential bus route is constructed in accordance with its corresponding cross section in the incorporated *Officer Precinct Structure Plan*; and
- Signalised intersections that contain a proposed Principal Public Transport Network (PPTN) route in the *Officer Precinct Structure Plan* include bus priority measures to mitigate delays to bus travel times, to the satisfaction of the Director of Public Transport; and
- Any roundabouts or other road management devices on potential bus routes are constructed to accommodate ultra low floor buses in accordance with the Public Transport Guidelines for Land Use and Development; and
- The proposal includes the construction of the bus stops shown on Plan 16 – Public Transport in the incorporated *Officer Precinct Structure Plan*, including bus stop hard stands with direct and safe pedestrian access to a pedestrian path (all in accordance with the Public Transport Guidelines for Land Use and Development and compliant with the Disability Discrimination

Act – Disability Standards for Accessible Public Transport 2002) at no cost to the Director of Public Transport all to the satisfaction of the Director of Public Transport.

A responsible authority may address any of the above matters through planning permit conditions.

## 3.0 Application requirements

06/03/2020
C232card

The following application requirements apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

### General subdivision

All applications for subdivision must be accompanied by the following information to the satisfaction of the responsible authority.

- Details of the proposed use and development of each part of the land.
- A table setting out:
  - the amount of land allocated for the proposed uses; and
  - the mix of lot sizes.
- An indication of staging of subdivision and timing.
- Details of how the road connections, open space, pedestrian and bicycle linkages and drainage networks of the proposed development integrates with and responds to existing and planned developments on adjacent sites.
- Include a Transport Impact Assessment Report to the satisfaction of the relevant roads authority (be it VicRoads or Council).
- A plan showing access arrangements for properties adjacent to all existing and future arterial roads.
- A Public Infrastructure Plan which addresses:
  - The extent of any stormwater drainage works and road works proposed or required under this permit.
  - The land which is required to be set aside for infrastructure identified in the incorporated *Officer Development Contributions Plan* or the incorporated *Officer Precinct Structure Plan* including land required for public open space and community facilities and any proposed reconciliation payment in respect of the land having regard to its value set out in the incorporated *Officer Development Contributions Plan*.
  - An estimate of the extent of equalization which is required in respect of public open space to be provided having regard to the incorporated *Officer Precinct Structure Plan* and the incorporated *Officer Development Contributions Plan*.
  - Subject to the consent of the Collecting Agency, any infrastructure works set out in the incorporated *Officer Development Contributions Plan* which can be provided "in lieu" of development contributions in accordance with the incorporated *Officer Development Contributions Plan*.
  - The effects of the provision of infrastructure on the land or any other land.
  - Any other relevant matter related to the provision of infrastructure reasonably required by the responsible authority.
- A hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development.

- An approved Cultural Heritage Management Plan that is endorsed by the future public land manager/s of any reserve to be created as part of the development or advice from a suitably qualified cultural heritage professional that confirms that a Cultural Heritage Management Plan is not required. This requirement may not be waived.
- A Conservation Management Plan for land within the Heritage Overlay, prepared in accordance with Conservation Management Plans: Managing Heritage Places – A Guide (Heritage Council of Victoria 2010).
- A Safety Management Study for any land adjacent to or including a gas pipeline easement to the satisfaction of Energy Safe Victoria.
- A site assessment of the land by a suitably qualified environmental professional including:
  - detail of the nature of the previous and existing land use/activities on the land;
  - an assessment of the potential level and nature of contamination on the land; and
  - advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the Potentially Contaminated Land General Practice Note June 2005, DSE, as amended from time to time.

**Residential subdivision**

In addition to the general subdivision requirements, an application that includes subdivision of land shown as residential on Plan 1 must be accompanied by the following information to the satisfaction of the responsible authority:

- An overall masterplan for all land in contiguous ownership of the landowner demonstrating the lot yield, diversity and distribution across the subject area, consistent with the principles outlined in the incorporated *Officer Precinct Structure Plan.*
- Subdivision and Housing Design Guidelines prepared to the satisfaction of the responsible authority in accordance with the incorporated *Officer Precinct Structure Plan*.
- A building envelope plan that addresses the planning and design guidelines set out in the incorporated *Officer Precinct Structure Plan* for land*:*
  - shown as Environmental Residential (north of the Princes Highway) in Plan 1;
  - included in Character Area 1c (CA1c) shown in Plan 7 of the incorporated *Officer Precinct Structure Plan*.
- The building envelope must provide for:
  - All outbuildings and water tanks to conform with the building envelope on the relevant lot;
  - A setback of at least 30 metres from any native vegetation in the relevant lot, which is identified to be protected and retained under the *Officer Native Vegetation Precinct Plan (September 2011)*, unless a planning permit is approved for the removal of that vegetation.

  This requirement may not be waived or reduced.
- A Fire Risk Assessment prepared by a suitably qualified bushfire risk management professional for all land in contiguous ownership that is located within the area shown as Environmental Residential (north of the Princes Highway) in Plan 1, including:
  - identification of the Bushfire Attack Level (BAL) curves generated by the fire threat/s;
  - an assessment of the BAL standards applicable to each individual building envelope;
  - advice about the impact of dwellings in closer proximity to the identified fire threat/s on the requirements for lots within than 100 metres of the fire threat/s, including requirements for defendable space and applicable BAL standards for dwellings.

This requirement may not be waived or reduced.

### HyGain separation distance area

An application to use land within the 'separation distance' area to the existing HyGain Feeds Mill site at 10-20 Hickson Rd, Officer for Accommodation, Education centre, or Informal outdoor recreation must be accompanied by an Amenity Impact Plan which includes, as appropriate:

- A site plan identifying the proposal site in relation to the existing HyGain Feeds Mill site;
- An assessment of the amenity impacts of the existing use at HyGain Feeds site upon the proposed use, including:
  - Dust – conduct ambient particle measurements, for PM2.5 and PM10, and determine if the prevailing air quality criteria would be met. These criteria are currently determined under the Environment Protection Act by the State Environmental Protection Policies, to be superseded by the new Environmental Reference Standards on 1 July 2020.
  - Field Odour Survey – demonstrate that nuisance odours attributable to the subject industry would not cause unreasonable impact to amenity for sensitive uses within the buffer zone, using a methodology approved by EPA.
- Measures to mitigate potential amenity impacts from the existing use.

To the satisfaction of the Environmental Protection Agency and the responsible authority.

### HyGain Feeds Mill noise influence area

An application to use and develop land for a dwelling within 300 metres from the existing HyGain Feeds Mill site at 10-20 Hickson Road, Officer must be accompanied by an acoustic report which demonstrates how a dwelling will be designed and constructed to achieve the noise levels identified in Clause 2.5 of the Schedule.

### Neighbourhood Convenience Centres

Applications for buildings and works must be accompanied by a Site Context Report to the satisfaction of the responsible authority for Neighbourhood Convenience Centres.

The site context report must address the requirements set out in the incorporated *Officer Precinct Structure Plan* (specified in section 4.3.3b).

An application to use land for a shop in a Neighbourhood Convenience Centre must be accompanied by a retail demand assessment to the satisfaction of the responsible authority.

### Whiteside Road Neighbourhood Activity Centre

An application to use or subdivide land, or to construct a building or construct and carry out works within the Whiteside Road Neighbourhood Activity Centre must be accompanied by an urban design framework which is to the satisfaction of the responsible authority.

The urban design framework must be generally in accordance with the incorporated *Officer Precinct Structure Plan*. The urban design framework may be amended to the satisfaction of the responsible authority.

### Sustainability statement requirements

An application for subdivision of 60 or more lots, or to construct a building in the areas shown as Peripheral Commercial or Core Business must be accompanied by a Sustainability Statement as set out in the incorporated *Officer Precinct Structure Plan*.

## 4.0 Conditions and requirements for permits

06/03/2026
C285card

### Requirement - Urban Design Framework

A permit within an area of an approved urban design framework must be generally in accordance with the approved urban design framework.

A permit may be granted to subdivide land or to construct a building or construct and carry out works prior to the approval of an urban design framework if, in the opinion of the responsible authority, the grant of the permit is consistent with the requirements for the Urban Design Framework as set out in the incorporated *Officer Precinct Structure Plan*.

### Requirement - Native Vegetation Precinct Plan Implementation

Any:

- Works carried out in respect of any subdivision;
- Construction of buildings and associated works; and
- Removal, lopping or destruction of native vegetation on the land as authorised by the Native Vegetation Precinct Plan (NVPP) applying to the land

must be carried out in accordance with all of the requirements set out in the incorporated NVPP applying to the land to the satisfaction of the responsible authority.

Only the native vegetation which is identified for removal in the incorporated NVPP applying to the land may be removed, lopped or destroyed without a permit.

Before the removal, destruction or lopping of any native vegetation within any property (identified by the PSP Property Number in Map 1 of the Officer NVPP) the owner of the land from which the native vegetation is being removed must provide offsets consistent with the incorporated NVPP by either:

- providing an allocated credit extract issued by the Department of Sustainability and Environment; or
- preparing and submitting an Offset Plan to the satisfaction of the Department of Sustainability and Environment and have the Offset Plan approved by responsible authority.

Where an Offset Plan is approved:

- before the removal, destruction or lopping of any native vegetation, the owner of the land from which the native vegetation is being removed must provide on-title security for the Offset Site to the satisfaction of Department of Sustainability and Environment that provides for the implementation of the Offset Plan and pay the reasonable costs of the preparation, execution and registration of any on-title agreement; and
- offsets must be initiated within 12 months of approval of the Offset Plan or before the removal of Very High Conservation Significance vegetation, whichever is earlier, and be implemented according to the schedule of works in the Offset Plan to the satisfaction of the responsible authority.

### Requirement - Environmental Assessment of Potentially Contaminated Land

Before the development associated with the subdivision starts, (this requirement does not apply to bore holes and excavation associated with an environmental site assessment), an environmental site assessment of the land by a suitably qualified environmental professional must be undertaken which provides information including:

- The nature of the previous and existing land use/activities on the land.
- An assessment of the potential level and nature of contamination on the land.
- Advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all or part of the land is recommended having regard to

the *Potentially Contaminated Land General Practice Note June 2005, DSE*, as amended from time to time.

If an environmental site assessment recommends an environmental audit of all or part of the land, then:

- prior to the commencement of any use for a sensitive purpose; or
- prior to any buildings or works; or
- prior to the certification of a plan of subdivision

whichever is the earlier of or in respect of all or that part of the land as the case may, the following must be provided to the responsible authority, either:

- A certificate of environmental audit issued for the relevant land in accordance with Part 1XD of the Environmental Protection Act 1970, or
- A statement by an environmental auditor appointed under the Environment Protection Act 1970, in accordance with Part 1XD of that Act that the environmental conditions of the relevant land are suitable for a sensitive use (with or without conditions on the use of the site);

If a Statement of Environmental Audit is provided rather than a Certificate of Environmental Audit and the Statement of Environmental Audit indicates that the environmental conditions of the relevant land are suitable for a sensitive use subject to conditions, the owner of the land must enter into an agreement with the responsible authority under Section 173 of the Planning and Environment Act 1987 before the issue of a Statement of Compliance or before the construction of any building on the relevant land, whichever is the earlier:

- implementation of and on-going compliance with all conditions in the Statement of Environmental Audit; and
- the responsible authority's reasonable legal costs and expenses of drafting/reviewing and registering the agreement to be borne by the owner of the relevant land.

**Condition - Construction Environmental Management Plan**

Prior to the commencement of any buildings or works a Construction Environmental Management Plan (CEMP) is to be prepared, where appropriate.

The CEMP must specifically address significant flora and fauna where the buildings or works are within:

- 50 metres of any native vegetation to be retained in the *Officer Precinct Native Vegetation Precinct Plan (September 2011)*; and/or
- 100 metres of any waterbody (including creeks, drains, dams and wetlands) under the provisions of the incorporated *Officer Precinct Structure Plan Conservation Management Plan (excluding Cardinia Creek)*; and/or
- the area shown as Environmental Residential (south of the railway line) in Plan 2.

The CEMP must address all requirements specified in the *Officer Native Vegetation Precinct Plan (September 2011)* and the relevant Conservation Management Plan and be to the satisfaction of the responsible authority.

**Conditions - Conservation Management Plan**

Where the *Officer Precinct Structure Plan Conservation Management Plan (excluding Cardinia Creek) (Ecology Partners, 15 September 2011)* or the *Officer Precinct Structure Plan Cardinia Creek Conservation Management Plan(Ecology Australia, 8 September 2011)* has been approved by the Secretary to the Department of Sustainability and Environment and it applies to the land (refer Plan 13 of the incorporated *Officer Precinct Structure Plan*), any permit granted for subdivision or the construction of a building or the carrying out of works must include the following conditions:

- The actions which identify the responsible agent as the "landowner" or "developer" in the Conservation Management Plan (CMP) must be implemented to the satisfaction of the Department of Sustainability and Environment.

and the following conditions, where appropriate:

- Prior to any works commencing within 100 metres of the edge of any waterbody which is to be retained, a highly visible fence is to be installed 20 metres from the edge of the water body.
- No polluted and/or sediment laden run-off is to be discharged directly or indirectly into drains or watercourses.
- Pollution or litter traps must be provided on the land at appropriate points along the drainage system or drainage lines.
- A salvage and translocation plan must be prepared and implemented to the satisfaction of the Department of Sustainability and Environment and the approval of the responsible authority.

Where the land is identified to have suitable habitat approved to be removed in Appendix 8 of the *Officer Precinct Structure Plan: Cardinia Creek Conservation Management Plan (8 September 2011),* any permit granted for subdivision or development must contain the following condition:

- Prior to the issue of a Statement of Compliance under the Subdivision Act, the landowner must enter into a legally binding agreement (or an alternative agreement approved by DSE) for the payment to implement the *Officer Precinct Structure Plan: Cardinia Creek Conservation Management Plan (8 September 2011)* in accordance with Section 2.3.1 Management Responsibilities and Funding and Appendix 8 to the satisfaction of the Department of Sustainability and Environment. The landowner must pay the reasonable costs of the preparation, execution, and registration of the agreement.

**Condition - Subdivision permits**

Any permit for subdivision must contain the following conditions as appropriate:

- The setback from the rail reserve and interface between the rail line and the proposed subdivision is to be to the satisfaction of the Department of Transport and the approval of the responsible authority.
- If any part of the land is shown in the incorporated *Officer Precinct Structure Plan* as unencumbered passive public open space that land must be transferred to Council subject to equalisation in accordance with the equalisation provisions in the incorporated *Officer Precinct Structure Plan*. This requirement does not apply if the responsible authority advises the owner that it does not require the land.
- Land required for road widening must be transferred to or vested in the relevant roads authority at no cost to the relevant road authority unless the land is funded by the incorporated *Officer Development Contributions Plan*.

**Conditions - Small lot housing code**

A permit issued before 31 December 2026 which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:
  - the Small Lot Housing Code forming part of the incorporated *Officer Precinct Structure Plan* applies; or
  - type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies,

  to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit issued before 31 December 2026 under section 72 of the Act, which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies, must be approved and endorsed by the responsible authority.

**Conditions - Use of a building envelope plan**

Where a building envelope plan is proposed and/or required, any permit for subdivision must contain the following conditions:

- The building envelopes must be applied as a restriction on the plan of subdivision or through an agreement under section 173 of the Act that is registered on the title to the land. The restriction or the agreement must provide for:
  - the building envelope plan to apply to each relevant lot;
  - all buildings being constructed in accordance with the building envelope on the relevant lot;
  - the construction of a building outside the building envelope only with the written consent of the Responsible Authority; and
  - a building envelope to cease to apply to any building on a lot less than 300 square metres that is affected by the envelope after the issue of a Certificate of Occupancy for the whole of a dwelling and any garage or carport on the land.

## 5.0 Exemption from notice and review

06/03/2020
C232card

None specified.

## 6.0 Decision guidelines

06/03/2020
C232card

The following decision guidelines apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Before deciding on an application to use land for Accommodation, Education centre, Informal outdoor recreation within the 'separation distance' area from the existing HyGain Feeds Mill site at 10-20 Hickson Road, Officer, the responsible authority must consider:
  - The recommendations of the Amenity Impact Plan required by Clause 3.0 of this schedule;
  - Whether the amenity of the proposed use would be detrimentally affected by the HyGain Feeds Mill site through the emission of noise, dust and odour;
  - Whether the proposal includes appropriate mitigation measures to protect against offsite amenity impacts from the HyGain facility; and
  - The distance between the subject site and the HyGain Feeds Mill site.

## 7.0 Signs

06/03/2020
C232card

Sign requirements are at Clause 52.05. Land is in the category specified in the applied zone.

06/03/2020
C232card

# SCHEDULE 4 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ4**.

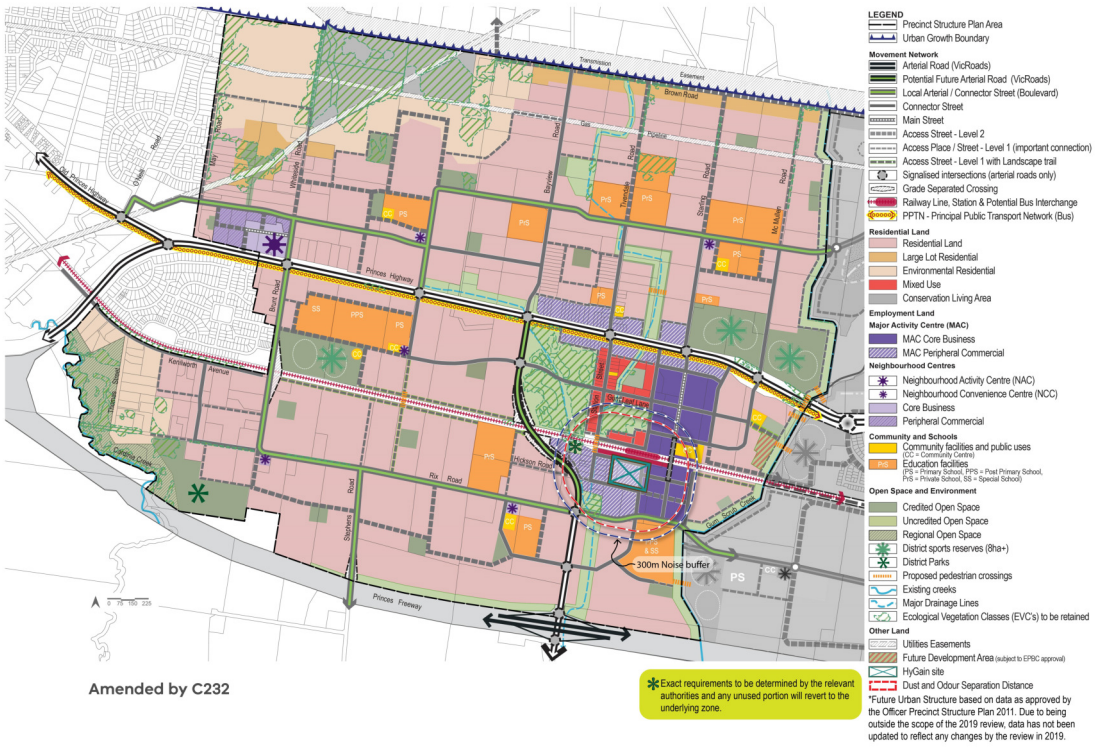
## OFFICER PRECINCT STRUCTURE PLAN SEPTEMBER 2011 (AMENDED NOVEMBER 2019) - OFFICER TOWN CENTRE

## 1.0 The Plan

06/03/2020
C232card

Plan 1 shows the future urban structure proposed in the incorporated *Officer Precinct Structure Plan.* It is a reproduction of Plan 5 in the incorporated *Officer Precinct Structure Plan*.

**Plan 1 of Schedule 4 to Clause 37.07**

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## 2.0 Use and development

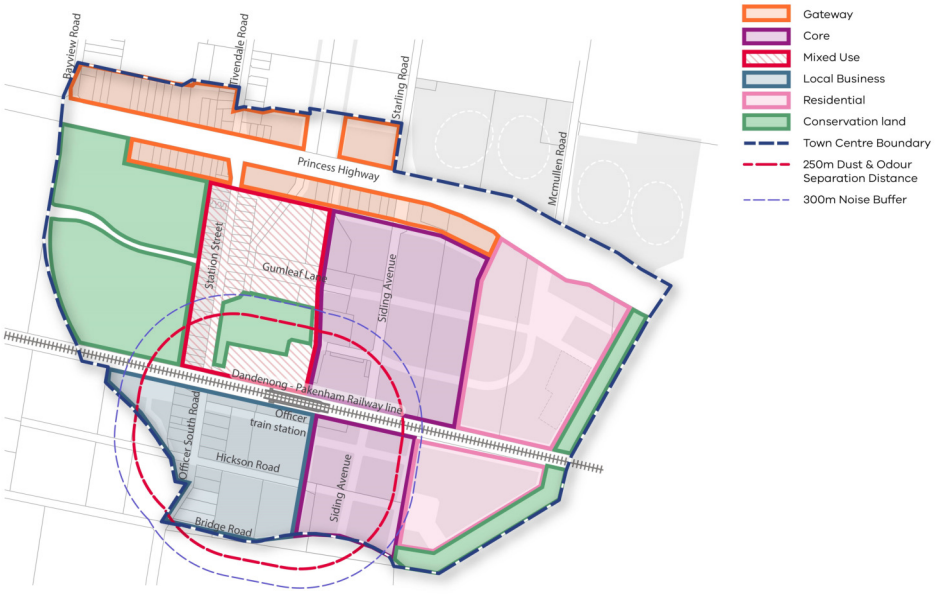
06/03/2020
C232card

## 2.1 The Land

06/03/2020
C232card

The use and development provisions specified in this schedule apply to the land shown in Plan 2 of this schedule and shown as UGZ4 on the planning scheme maps.

**Plan 2 of Schedule 4 to Clause 37.07**




## 2.2 Applied zone provisions

20/01/2022
VC205

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 2 of this schedule.

*Note: e.g. The Commercial 2 Zone specifies 'Shop' as a Section 1 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

**Table 1: Applied zone provisions**

| Land shown on Plan 2 of this schedule | Applied zone provisions |
|---|---|
| Conservation land | Clause 36.03 - Public Conservation and Resource Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |
| Core | Clause 34.01 - Commercial 1 Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |
| Gateway | Clause 34.02 - Commercial 2 Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |
| Mixed Use | Clause 32.04 - Mixed Use Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |
| Residential | Clause 32.07 – Residential Growth Zone |
| Land shown on Plan 2 of this schedule | Applied zone provisions |

| | |
|---|---|
| Local Business | Clause 34.01 - Commercial 1 Zone |

Where a public land zone is applied in Table 1 and the land is in private ownership the bodies specified below are the public land manager for the purposes of the applied zone.

| Applied zone | Public land manager |
|---|---|
| Public Conservation and Resource Zone (adjacent to Gum Scrub Creek) | Melbourne Water or Cardinia Shire Council |
| Public Conservation and Resource Zone (all other land) | Cardinia Shire Council |

## 2.3 Specific provisions – Use of land

06/03/2020
C232card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Corrective institution and Rooming house) where the applied zone is Commercial 1 Zone**<br>**Child care centre where the applied zone is Commercial 1 Zone**<br>**Education centre (other than Child care centre) where the applied zone is Commercial 1 Zone**<br>**Informal outdoor recreation where the applied zone is Commercial 1 Zone**<br>**Rooming house where the applied zone is Commercial 1 Zone** | ▪ Must not be on land within the 'separation distance' area from the existing HyGain Feeds Mill site at 10-20 Hickson Rd, Officer shown on Plan 2 of this Schedule and Figure 6 in the incorporated *Officer Precinct Structure Plan*; and<br>▪ Must meet the conditions associated with these land uses under Section 1 of Clause 34.01-1. |
| **Bed and breakfast where the applied zone is Mixed Use Zone**<br>**Community care accommodation where the applied zone is Mixed Use Zone**<br>**Dependent person's unit where the applied zone is Mixed Use Zone**<br>**Dwelling (other than Bed and breakfast) where the applied zone is Mixed Use Zone**<br>**Informal outdoor recreation where the applied zone is Mixed Use Zone**<br>**Residential aged care facility where the applied zone is Mixed Use Zone**<br>**Rooming house where the applied zone is Mixed Use Zone** | ▪ Must not be on land within the 'separation distance' area from the existing HyGain Feeds Mill site at 10-20 Hickson Rd, Officer shown on Plan 2 of this Schedule and Figure 6 in the incorporated *Officer Precinct Structure Plan*; and<br>▪ Must meet the conditions associated with these land uses under Section 1 of Clause 32.04-2 |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |
| **Any other use listed in Section 1 in the Table of uses of the applicable applied zone.** | |

**Section 2 - Permit required**

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3 in the Table of uses in the applicable applied zone** | |

**Section 3 – Prohibited**

| Use |
|---|
| **Industry (other than Service industry and Research and development centre) where the applied zone is Mixed Use Zone** |
| **Any use listed in Section 3 in the Table of uses of the applicable applied zone** |

**Use of land within HyGain 'Separation distance'**

The use of the land for accommodation, education centre and informal recreation facility within the identified 'separation distance' must not be located in areas where their amenity may be detrimentally affected by the HyGain Feeds Mill Site through noise, dust and odour emissions.

## 2.4 Specific provisions - Subdivision

06/03/2020
C232card

An application to subdivide must be consistent with any urban design framework approved under this schedule.

## 2.5 Specific provisions - Buildings and works

06/03/2026
C285card

**Construction of one dwelling on a lot with an area under 300 square metres**

In the area shown as 'Residential' where the applied zone is Residential Growth Zone and 'Mixed use' where the applied zone is Mixed Use Zone on Plan 2 of this Schedule, a permit is not required to construct or extend one dwelling on a lot with an area less than 300 square metres where an approved building envelope as defined in Part 4 of the Building Regulations 2006 applies to the lot.

**Dwellings on a lot less than 300 square metres**

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* forming part of the *Officer Precinct Structure Plan* applies, and the development complies with the *Small Lot Housing Code* forming part of the incorporated *Officer Precinct Structure Plan*.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

**Buildings and Works associated with a dwelling:**

Buildings and works for a dwelling within 300 metres from the HyGain Feeds Mill site at 10-20 Hickson Road, Officer must be designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Noise levels should be assessed in unfurnished rooms with a finished floor and windows closed.

### Modification or removal of Existing Turkeys Nest Dams

A permit is required for buildings and works associated with the modification or removal of any existing waterbody on Lot 1 TP134961.

### Urban Design Framework

Except with the consent of the responsible authority and the Victorian Planning Authority, a permit must not be granted to use or subdivide land, or construct a building and carry out works until an urban design framework for the area has been prepared to the satisfaction of the responsible authority and the Victorian Planning Authority.

An urban design framework approved under this schedule must be generally in accordance with the incorporated *Officer Precinct Structure Plan*.

An application for use and/or development on land identified must be consistent with any urban design framework approved under this schedule.

A permit may be granted to subdivide land or to construct a building or construct and carry out works prior to the approval of an urban design framework if, in the opinion of the responsible authority and the Victorian Planning Authority, the permit is consistent with the requirements for the urban design framework and the permit implements the objectives in the incorporated *Officer Precinct Structure Plan*.

The responsible authority may allow an urban design framework to be prepared in stages.

The urban design framework may be amended to the satisfaction of the responsible authority and the Victorian Planning Authority.

### Public transport requirements

For the purpose of Clause 66.02-11 of the scheme a development is generally in accordance with the incorporated *Officer Precinct Structure Plan* where the following requirements are met:

- A road nominated on Plan 17 – Public Transport in the incorporated *Officer Precinct Structure Plan* as a potential bus route is constructed in accordance with its corresponding cross section in the incorporated *Officer Precinct Structure Plan*;
- Signalised intersections that contain a proposed Principal Public Transport Network (PPTN) route in the incorporated *Officer Precinct Structure Plan* include bus priority measures to mitigate delays to bus travel times, to the satisfaction of the Director of Public Transport;
- Any roundabouts or other road management devices on potential bus routes are constructed to accommodate ultra low floor buses in accordance with the Public Transport Guidelines for Land Use and Development; and
- The proposal includes the construction of the bus stops shown on Plan 16 – Public Transport in the incorporated *Officer Precinct Structure Plan*, including bus stop hard stands with direct and safe pedestrian access to a pedestrian path (all in accordance with the Public Transport Guidelines for Land Use and Development and compliant with the Disability Discrimination Act – Disability Standards for Accessible Public Transport 2002) at no cost to the Director of Public Transport, all to the satisfaction of the Director of Public Transport.

The responsible authority may address any of the above matters through planning permit conditions.

## 3.0 Application requirements

06/03/2020
C232card

The following application requirements apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

### General Subdivision

All applications for subdivision must be accompanied by the following information to the satisfaction of the responsible authority.

- Details of the proposed use and development of each part of the land.
- A table setting out:
  - the amount of land allocated for the proposed uses; and
  - the mix of lot sizes.
- An indication of staging of subdivision and timing.
- Details of how the road connections, open space, pedestrian and bicycle linkages and drainage networks of the proposed development integrates with and responds to existing and planned developments on adjacent sites.
- Details of how the land use pattern and urban structure provides appropriate buffers between sensitive land uses, in terms of open space, road reserves and landscape treatments.
- Include a Transport Impact Assessment Report to the satisfaction of the relevant roads authority (be it VicRoads or Council).
- The proposed road and street network, including pedestrian and cycling routes, intersection treatments, proposed bus routes and the interface treatment with arterial roads.
- A plan showing access arrangements for properties adjacent to all existing and future arterial roads.
- A Public Infrastructure Plan which addresses:
  - The extent of any stormwater drainage works and road works proposed or required under this permit.
  - The land which is required to be set aside for infrastructure identified in the incorporated *Officer Development Contributions Plan* or the incorporated *Officer Precinct Structure Plan* including land required for public open space and community facilities and any proposed reconciliation payment in respect of the land having regard to its value set out in the incorporated *Officer Development Contributions Plan*.
  - An estimate of the extent of equalisation which is required in respect of public open space to be provided having regard to the incorporated *Officer Precinct Structure Plan* and the incorporated *Officer Development Contributions Plan*.
  - Subject to the consent of the Collecting Agency, any infrastructure works set out in the incorporated *Officer Development Contributions Plan* which can be provided "in lieu" of development contributions in accordance with the incorporated *Officer Development Contributions Plan*.
  - The effects of the provision of infrastructure on the land or any other land.
  - Any other relevant matter related to the provision of infrastructure reasonably required by the responsible authority.
- An overall landscape concept for the development. This should be consistent with best practice Water Sensitive Urban Design techniques.
- A hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development.

- An approved Cultural Heritage Management Plan that is endorsed by the future public land manager/s of any reserve to be created as part of the development or advice from a suitably qualified cultural heritage professional that confirms that a Cultural Heritage Management Plan is not required. This requirement may not be waived.
- A Site Management Plan that addresses bushfire risk during, and where necessary, after construction, which is approved by the responsible authority. The plan must specify, amongst other things:
  - The staging of development and the likely bushfire risks at each stage;
  - An area of land between the development edge and non-urban areas consistent with the separation distances specified in AS3959-2009, where bushfire risk is managed to enable the development, on completion, to achieve a BAL-12.5 rating under AS3959-2009;
  - The land management measures to be undertaken by the developer to reduce the risk from fire within any surrounding rural or undeveloped landscape to protect residents and property from the threat of grassfire and bushfire;
  - Demonstrate how the buffer land parcel will be developed/managed at the completion of the development to ensure that any vegetation with the buffer meets the requirements; and
  - How adequate opportunities for access and egress will be provided for early residents, construction workers and emergency vehicles.

**Residential Subdivision**

In addition to the general subdivision requirements, an application that includes subdivision of land shown as 'Residential' where the applied zone is Residential Growth Zone, 'Mixed use' where the applied zone is Mixed Use Zone, 'Local Business' where the applied zone is 'Commercial 1' and 'Core' where the applied zone is 'Commercial 1' on Plan 2 of this Schedule, must:

- include an overall masterplan for all land in contiguous ownership of the landowner demonstrating the lot yield, diversity and distribution across the subject area, consistent with the principles outlined in the incorporated *Officer Precinct Structure Plan*.
- demonstrate how the proposed subdivision layout meets the requirements of Clause 56 (other than an application to subdivide land into lots each containing an existing dwelling or car parking space).

to the satisfaction of the responsible authority.

**Buildings and works**

All applications for buildings and works must be accompanied by following information to the satisfaction of the responsible authority:

- A Transport Impact Assessment Report to the satisfaction of the relevant roads authority.
- An overall landscape concept, including location of private open space of surrounding properties and the location of trees, fences and other landscape elements.

All applications for buildings and works (other than dwellings and residential buildings) must be accompanied by a design response report that demonstrates the following:

- how the layout and design of buildings contributes towards an attractive and safe public realm environment and complements adjacent uses, addressing active frontages, site servicing, car parking, lighting, landscaping and signage.
- how the design of buildings, including heights, massing and articulation, contributes to an attractive and cohesive built form environment, a diverse, interesting and complementary architectural form and responds to surrounding land uses.
- location and height of existing and proposed buildings on the site and surrounding properties.

- traffic and pedestrian circulation through and around the site.
- surrounding land uses.

If the responsible authority is satisfied that a requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

**Sustainability statement requirements**

An application for subdivision of 60 or more lots, or to construct a building in the areas shown as 'Gateway' and 'Core' on Plan 2 of this Schedule must be accompanied by a Sustainability Statement as set out in the incorporated *Officer Precinct Structure Plan*.

If the responsible authority is satisfied that this requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement

**Specific requirements – Lot 1 TP134961 (PSP Property Number 217)**

Any application to remove and/or modify the existing turkey nest dams on Lot 1 TP134961 (Princes Highway, Officer) shown as 'Existing Turkeys Nest Dams (Growling Grass Frog Habitat)' on Plan 13 of the incorporated *Officer Precinct Structure Plan* must include written approval from the Commonwealth Department of Sustainability Environment Water Population and Communities.

**HyGain separation distance area**

An application to use land within the 'separation distance' area to the existing HyGain Feeds Mill site at 10-20 Hickson Rd, Officer for Accommodation, Education centre, or Informal outdoor recreation must be accompanied by an Amenity Impact Plan which includes, as appropriate:

- A site plan identifying the proposal site in relation to the existing HyGain Feeds Mill site;
- An assessment of the amenity impacts of the existing use at HyGain Feeds site upon the proposed use, including:
  - Dust – conduct ambient particle measurements, for PM2.5 and PM10, and determine if the prevailing air quality criteria would be met. These criteria are currently determined under the Environment Protection Act by the State Environmental Protection Policies, to be superseded by the new Environmental Reference Standards on 1 July 2020.
  - Field Odour Survey – demonstrate that nuisance odours attributable to the subject industry would not cause unreasonable impact to amenity for sensitive uses within the buffer zone, using a methodology approved by the EPA.
- Measures to mitigate potential amenity impacts from the existing use.

To the satisfaction of the Environmental Protection Agency and the responsible authority.

**Buildings and Works associated with the HyGain Feeds facility**

An application for buildings and works associated with the existing HyGain Feeds facility at 10-20 Hickson Road, Officer must be accompanied by a report which identifies all potential adverse amenity impacts to nearby uses and consider, as appropriate:

- Whether the proposed buildings and works are likely to increase the potential for adverse amenity impacts to existing nearby land uses, in particular the impact of:
  - Odour; and / or
  - Dust.
- Whether the proposed buildings and works are likely to cause adverse amenity impacts to future land uses in accordance with the incorporated *Officer Precinct Structure Plan*, in particular by the impact of:
  - Odour; and / or

- Dust.

What ameliorative or remedial measures can and will be taken to ensure that HyGain Feeds Mill does not cause off-site amenity impacts.

**HyGain Feeds Mill noise influence area**

An application to use and develop land for a dwelling within 300 metres from the existing HyGain Feeds Mill site at 10-20 Hickson Rd, Officer must be accompanied by an acoustic report which demonstrates how a dwelling will be designed and constructed to achieve the noise levels identified in Clause 2.5 of this schedule.

**Subdivide, Use or Develop Land for a Sensitive Use – Environmental Site Assessment**

An application to subdivide land or use or develop land for a sensitive use (residential use, child care centre, pre-school centre or primary school) must be accompanied by an Environmental Site Assessment of the land prepared by a suitably qualified environmental professional to the satisfaction of the responsible authority. The Environmental Site assessment must include the following information:

- Detail of the nature of the previous and existing land use/activities on the land;
- Detailed assessment of potential contaminants on the relevant land;
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005, DSE*; and
- Recommended remediation actions for any potentially contaminated land.

## 4.0 Conditions and requirements for permits

06/03/2026
C285card

**Requirement -Native Vegetation Precinct Plan Implementation**

Any:

- Works carried out in respect of any subdivision;
- Construction of buildings and associated works; and
- Removal, lopping or destruction of native vegetation on the land as authorised by the Native Vegetation Precinct Plan (NVPP) applying to the land

must be carried out in accordance with all of the requirements set out in the incorporated NVPP applying to the land to the satisfaction of the responsible authority.

Only the native vegetation which is identified for removal in the incorporated NVPP applying to the land may be removed, lopped or destroyed without a permit.

Before the removal, destruction or lopping of any native vegetation within any property (identified by the PSP Property Number in Map 1 of the Officer NVPP) the owner of the land from which the native vegetation is being removed must provide offsets consistent with the incorporated NVPP by either:

- providing an allocated credit extract issued by the Department of Sustainability and Environment; or
- preparing and submitting an Offset Plan to the satisfaction of the Department of Sustainability and Environment and have the Offset Plan approved by responsible authority.

Where an Offset Plan is approved:

- before the removal, destruction or lopping of any native vegetation, the owner of the land from which the native vegetation is being removed must provide on-title security for the Offset Site to the satisfaction of Department of Sustainability and Environment that provides for the

implementation of the Offset Plan and pay the reasonable costs of the preparation, execution and registration of any on-title agreement; and

- offsets must be initiated within 12 months of approval of the Offset Plan or before the removal of Very High Conservation Significance vegetation, whichever is earlier, and be implemented according to the schedule of works in the Offset Plan to the satisfaction of the responsible authority.

**Requirement- Subdivide, Use or Develop Land for a Sensitive Use**

If an environmental site assessment recommends an environmental audit of all or part of the land, then:

- Before a sensitive use commences; or
- Before the construction or carrying out of buildings and works in association with a sensitive use commences; or
- prior to the certification of a plan of subdivision associated with a sensitive use,

whichever is the earlier of or in respect of all or that part of the land as the case may be, the following must be provided to the responsible authority, either:

- A certificate of environmental audit issued for the relevant land in accordance with Part 1XD of the *Environmental Protection Act 1970*, or
- A statement by an environmental auditor appointed under the *Environment Protection Act 1970*, in accordance with Part 1XD of that Act that the environmental conditions of the relevant land are suitable for a sensitive use (with or without conditions on the use of the site);

If a Statement of Environmental Audit is provided rather than a Certificate of Environmental Audit and the Statement of Environmental Audit indicates that the environmental conditions of the relevant land are suitable for a sensitive use subject to conditions, the owner of the land must enter into an agreement with the responsible authority under section 173 of the *Planning and Environment Act 1987* before the issue of a Statement of Compliance or before the construction of any building on the relevant land, whichever is the earlier:

- implementation of and on-going compliance with all conditions in the Statement of Environmental Audit; and
- the responsible authority's reasonable legal costs and expenses of drafting/reviewing and registering the agreement to be borne by the owner of the relevant land.

**Condition- Construction Environmental Management Plan**

Prior to the commencement of any buildings or works a Construction Environmental Management Plan (CEMP) is to be prepared, where appropriate.

The CEMP must specifically address significant flora and fauna where the buildings or works are within:

- 50 metres of any native vegetation to be retained in the *Officer Precinct Native Vegetation Precinct Plan (September 2011)*; and/or
- 100 metres of any waterbody (including creeks, drains, dams and wetlands) under the provisions of the *Officer Precinct Structure Plan* Conservation Management Plan (excluding Cardinia Creek).

The CEMP must address all requirements specified in the *Officer Native Vegetation Precinct Plan (September 2011)* and the relevant Conservation Management Plan and be to the satisfaction of the responsible authority.

### Conditions- Conservation Management Plan

Where the *Officer Precinct Structure Plan* Conservation Management Plan (excluding Cardinia Creek) (Ecology Partners, 15 September 2011) or the *Officer Precinct Structure Plan* Cardinia Creek Conservation Management Plan (Ecology Australia, 8 September 2011) has been approved by the Secretary to the Department of Sustainability and Environment and it applies to the land (refer Plan 13 of the incorporated *Officer Precinct Structure Plan*), any permit granted for subdivision or the construction of a building or the carrying out of works must include the following conditions:

- The actions which identify the responsible agent as the "landowner" or "developer" in the Conservation Management Plan (CMP) must be implemented to the satisfaction of the Department of Sustainability and Environment.

and the following conditions, where appropriate:

- Prior to any works commencing within 100 metres of the edge of any waterbody which is to be retained, a highly visible fence is to be installed 20 metres from the edge of the water body.
- No polluted and/or sediment laden run-off is to be discharged directly or indirectly into drains or watercourses.
- Pollution or litter traps must be provided on the land at appropriate points along the drainage system or drainage lines.
- A salvage and translocation plan must be prepared and implemented to the satisfaction of the Department of Sustainability and Environment and the approval of the responsible authority.

Where the land is identified to have suitable habitat approved to be removed in Appendix 8 of the *Officer Precinct Structure Plan: Cardinia Creek Conservation Management Plan (8 September 2011)*, any permit granted for subdivision or development must contain the following condition:

- Prior to the issue of a Statement of Compliance under the Subdivision Act, the landowner must enter into a legally binding agreement (or an alternative agreement approved by DSE) for the payment to implement the *Officer Precinct Structure Plan: Cardinia Creek Conservation Management Plan (8 September 2011)* in accordance with Section 2.3.1 Management Responsibilities and Funding and Appendix 8 to the satisfaction of the Department of Sustainability and Environment. The landowner must pay the reasonable costs of the preparation, execution, and registration of the agreement.

### Conditions- Subdivision permits

Any permit for subdivision must contain the following conditions as appropriate:

- The setback from the rail reserve and interface between the rail line and the proposed subdivision is to be to the satisfaction of the Department of Transport and the approval of the responsible authority.
- If any part of the land is shown in the incorporated *Officer Precinct Structure Plan* as unencumbered passive public open space that land must be transferred to Council subject to equalisation in accordance with the equalisation provisions in the incorporated *Officer Precinct Structure Plan*. This requirement does not apply if the responsible authority advises the owner that it does not require the land.
- Land required for road widening must be transferred to or vested in the relevant roads authority at no cost to the relevant road authority unless the land is funded by the incorporated *Officer Development Contributions Plan*.

### Conditions - Small lot housing code

A permit issued before 31 December 2026 which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:
  - the Small Lot Housing Code forming part of the incorporated *Officer Precinct Structure Plan* applies; or
  - type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies,

  to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit issued before 31 December 2026 under section 72 of the Act, which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the Subdivision Act 1988, a plan that identifies the lots to which type A, type B or type C of the Small Lot Housing Code (Victorian Planning Authority, November 2024) applies, must be approved and endorsed by the responsible authority.

**Requirement – Management of bushfire risk during subdivisional works**

A permit for subdivision that contains a condition requiring a construction management plan must ensure that the relevant plan addresses any potential bushfire risks arising from the land during construction and must include a statement from a suitably qualified professional that the proposed bushfire risk management measures are appropriate, to the satisfaction of the responsible authority.

## 5.0 Exemption from notice and review

06/03/2020
C232card

None specified.

## 6.0 Decision guidelines

06/03/2020
C232card

The following decision guidelines apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Before deciding on an application to use land for Accommodation, Education centre, Informal outdoor recreation within the 'separation distance' area from the existing HyGain Feeds Mill site at 10-20 Hickson Rd, Officer, the responsible authority must consider:
  - The recommendations of the Amenity Impact Plan required by Clause 3.0 of this schedule;
  - Whether the amenity of the proposed use would be detrimentally affected by the HyGain Feeds Mill site through the emission of noise, dust or odour;
  - Whether the proposal includes appropriate mitigation measures to protect against offsite amenity impacts from the HyGain Feeds Mill site; and
  - The distance between the subject site and the HyGain Feeds Mill site.
- Before deciding on an application for buildings and works associated with the existing HyGain Feeds Mill site at 10-20 Hickson Road, Officer, the responsible authority must consider whether the proposal includes appropriate mitigation measures to ameliorate any potential offsite amenity impacts to nearby land uses.

## 7.0 Signs

06/03/2020
C232card

Sign requirements are at Clause 52.05. Land is in the category specified in the applied zone.

21/01/2021
C234card

# SCHEDULE 5 TO CLAUSE 37.07 URBAN GROWTH ZONE

**Shown on the planning scheme map as UGZ5.**

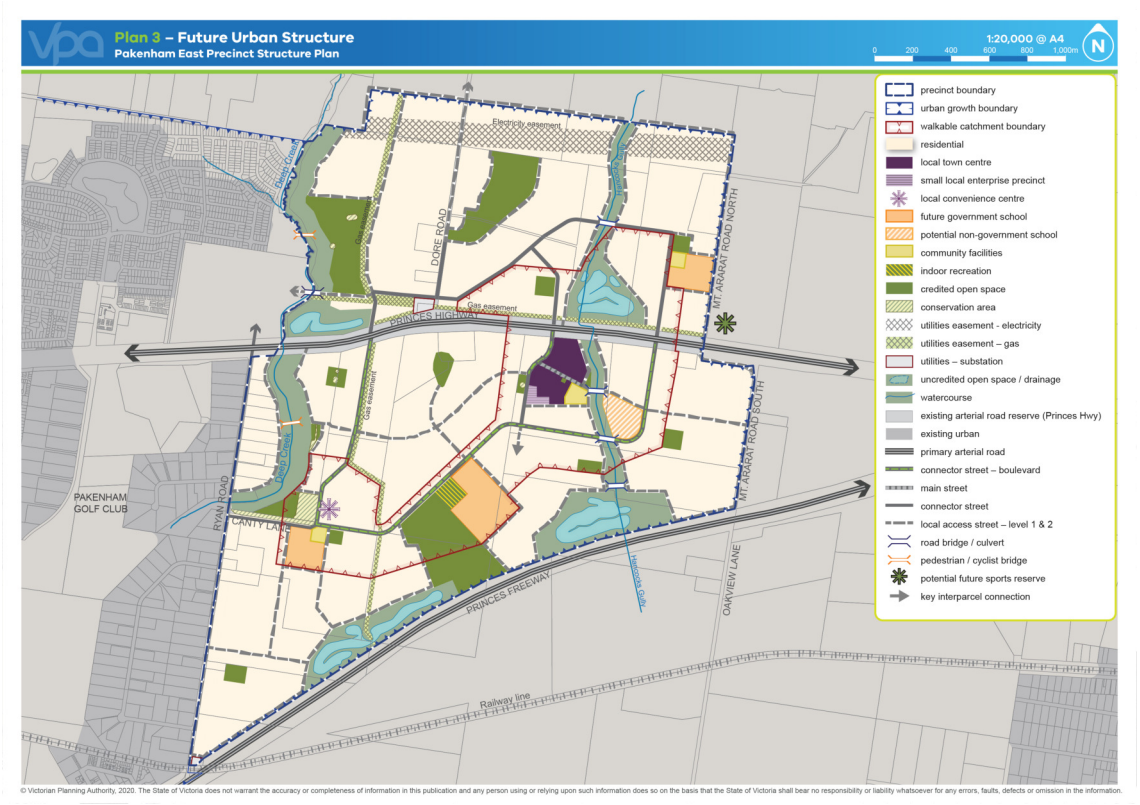
**Pakenham East Precinct Structure Plan**

## 1.0 The Plan

21/01/2021
C234card

Plan 1 below shows the future urban structure proposed in the incorporated *Pakenham East Precinct Structure Plan*. It is a reproduction of Plan 3 in the incorporated *Pakenham East Precinct Structure Plan.*

**Plan 1 to Schedule 5 to Clause 37.07**

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## 2.0 Use and development

21/01/2021
C234card

## 2.1 The Land

21/01/2021
C234card

The use and development provisions specified in this schedule apply to the land as shown within the 'precinct boundary' on Plan 1 of this schedule and shown as UGZ5 on the planning scheme maps. This schedule must be read in conjunction with the *Pakenham East Precinct Structure Plan*.

*Note: If land shown on Plan 1 is not zoned UGZ5, the provisions of this zone do not apply.*

## 2.2 Applied zone provisions

20/01/2022
VC205

Table 1 allocates the land use/development shown on Plan 1 of this schedule with a corresponding zone from this scheme.

Where the use/development in the left column is carried out or proposed generally in accordance with the incorporated *Pakenham East Precinct Structure Plan*, the use, subdivision, construction of a building and construction and carrying out of works provisions of the corresponding zone in the right column apply.

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The Commercial 2 Zone specifies 'Shop' as a Section 1 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'*

**Table 1: Applied zone provisions**

| | |
|---|---|
| Primary arterial road | Clause 36.04 – Transport Zone 2 |
| Small local enterprise precinct | Clause 34.02 – Commercial 2 Zone |
| Local town centre<br>Local convenience centre | Clause 34.01 – Commercial 1 Zone |
| Residential on a lot wholly within walkable catchment boundary (once subdivided) | Clause 32.07 – Residential Growth Zone |
| Residential within and north of the electricity transmission easement | Clause 32.03 - Low Density Residential Zone Schedule 3 |
| All other land | Clause 32.08 – General Residential Zone |

## 2.3 Specific provisions – Use of land

20/01/2022
VC205

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Accommodation (other than Corrective institution) where the applied zone is Commercial 1** | Any frontage at ground floor level must not exceed 2 metres (other than a bed and breakfast and caretaker's house); and<br>Must not be on land shown within the 'high pressure gas transmission pipeline notification zone depicted on Plan 10 of the incoporated *Pakenham East Precinct Structure Plan* |
| **Bed and breakfast where the applied zone is General Residential Zone, Low Density Residential Zone or Residential Growth Zone** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must not be on land shown within the 'high pressure gas transmission pipeline notification zone depicted on Plan 10 of the incorporated *Pakenham East Precinct Structure Plan* |
| **Child care centre where the applied zone is Commercial 1** | Any frontage at ground floor level must not exceed 2 metres and access must not be shared with a dwelling (other than a caretaker's house); and<br>Must not be on land shown within the 'high pressure gas transmission pipeline notification zone depicted on Plan 10 of the incorporated *Pakenham East Precinct Structure Plan* |
| **Cinema based entertainment facility where the applied zone is Commercial 1** | Must not be on land shown within the 'high pressure gas transmission pipeline notification zone depicted on Plan 10 of the incorporated *Pakenham East Precinct Structure Plan* |

| Use | Condition |
|---|---|
| **Cinema based entertainment facility where the applied zone is Commercial 2** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Education centre where the applied zone is Commercial 1** | Must not be on land shown within the 'high pressure gas transmission pipeline notification zone depicted on Plan 10 of the incorporated *Pakenham East Precinct Structure Plan* |
| **Place of worship where the applied zone is Commercial 1** | The gross floor area of all buildings must not exceed 250 square metres.<br>Must not be on land shown within the 'high pressure gas transmission pipeline notification zone depicted on Plan 10 of the incorporated *Pakenham East Precinct Structure Plan* |
| **Place of worship where the applied zone is General Residential Zone, Low Density Residential Zone or Residential Growth Zone** | The gross floor area of all buildings must not exceed 250 square metres.<br>Must not be on land shown within the 'high pressure gas transmission pipeline notification zone depicted on Plan 10 of the incorporated *Pakenham East Precinct Structure Plan* |
| **Primary school** | Must be on land shown as Potential Non-Government School in the incorporated *Pakenham East Precinct Structure Plan*. |
| **Residential aged care facility where the applied zone is General Residential Zone, Low Density Residential Zone or Residential Growth Zone** | Must not be on land shown within the 'high pressure gas transmission pipeline notification zone depicted on Plan 10 of the incorporated *Pakenham East Precinct Structure Plan* |
| **Secondary school** | Must be on land shown as Potential Non-Government School in the incorporated *Pakenham East Precinct Structure Plan.* |
| **Shop (other than Adult sex bookshop) where the applied zone is Commercial 1 Zone** | The combined leasable floor area of all shops must not exceed:<br>▪ 11,000 square metres for land shown as a Local Town Centre in the incorporated*Pakenham East Precinct Structure Plan*.<br>▪ 3,600 square metres for land shown as a Local Convenience Centre in the incorporated *Pakenham East Precinct Structure Plan*. |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |
| **Any use listed in Section 1 in the Table of uses of the applicable applied zone** | |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Restricted retail premises where the applied zone is Commercial 2** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| Gaming premises where the applied zone is Commercial 1 or Commercial 2 |
| Supermarket where the applied zone is Commercial 2 |
| Any use listed in Section 3 in the Table of uses of the applicable applied zone |

### Use of future public land

A permit is not required to use land shown in the incorporated *Pakenham East Precinct Structure Plan*as a local park, local sports reserve or community facility provided the use is carried out generally in accordance with the incorporated *Pakenham East Precinct Structure Plan* and with the prior written consent of Cardinia Shire Council.

## 2.4 Specific provisions - Subdivision

21/01/2021
C234card

### Ryan Road sub-precinct

Except with the consent of the responsible authority and Melbourne Water, a permit must not be granted to subdivide land within the Ryan Road sub-precinct (shown as *Interface Housing Area 2* on Plan 5 of the incorporated *Pakenham East Precinct Structure Plan*) until the following has been prepared, for the entire sub-precinct, to the satisfaction of the responsible authority and Melbourne Water:

- A restructure plan, demonstrating the subdivision or consolidation of the existing lots within the sub-precinct, to enable development of the land in a coordinated manner;
- A utility coordination plan, demonstrating that drainage and sewerage infrastructure can be delivered in a coordinated manner to enable the servicing of the land;
- A proposed plan of subdivision, including building envelopes for each residential lot; and
- A drainage and fill strategy, designed to ensure that development of the sub-precinct can meet the following requirements:
  - No new lots created where the building envelope is subject to inundation from 1% AEP flows (accounting for climate change scenarios);
  - Any overland paths in road reserves meet Melbourne Water's floodway safety criteria for depth of flow and flow velocity;
  - Any overland flows be fully contained within reserves (roads, open space);
  - Flooding cannot be increased either upstream or downstream of the precinct or for existing landholders; and
  - The drainage network must have capacity for the 5% AEP flood.

A permit for subdivision within the Ryan Road sub-precinct must be consistent with any restructure plan, utility coordination plan and drainage and fill strategy approved under this schedule.

A restructure plan, utility coordination plan or drainage and fill strategy may be amended to the satisfaction of the responsible authority and Melbourne Water.

## 2.5 Specific provisions - Buildings and works

28/11/2024
GC206

### Dwellings on a lot less than 300 square metres

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

**Buildings and works for a school**

A permit is required to construct a building or construct or carry out works associated with a Primary school or Secondary school on land shown as a 'potential non-government school' on Plan 3 of the incorporated *Pakenham East Precinct Structure Plan,*unless exempt under Clauses 62.02-1 and 62.02-2.

**Development of future public land**

A permit is not required to construct a building or construct or carry out works on land shown in the incorporated *Pakenham East Precinct Structure Plan* as local park, local sports reserve or community facilities provided the development is carried out generally in accordance with the incorporated *Pakenham East Precinct Structure Plan*and with the prior written consent of Cardinia Shire Council.

**Gas pipeline construction management plan required whether or not a permit is required**

Prior to the commencement of any works, including demolition, on land within, or within 50m of the boundary of a utilities easement (gas transmission) shown on *Plan 10 – Utilities in the incorporated Pakenham East Precinct Structure Plan*, a construction management plan must be submitted to and approved by the responsible authority. The plan must:

- Prohibit the use of rippers or horizontal directional drills unless otherwise agreed by the owner/operator of the high pressure gas pipeline; and
- Be endorsed by the owner/operator of the high pressure gas transmission pipeline prior to being submitted to the responsible authority.

The construction management plan must be implemented to the satisfaction of the responsible authority.

The construction management plan may be amended to the satisfaction of the responsible authority.

## 3.0 Application requirements

21/01/2021
C234card

The following application requirements apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

**Subdivision and residential development**

In addition to the requirements of Clause 56.01-2, a subdivision design response for a residential subdivision of 10 lots or more must be accompanied by the information listed below. An application for the construction of 10 or more dwellings on a lot must be accompanied by the same information:

- A written statement that sets out how the application implements the incorporated *Pakenham East Precinct Structure Plan*.
- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to proposed uses and expected population, mix of lot sizes (including estimated superlots) dwelling yields, and employment yields if relevant;

- An overall master plan for all land in contiguous ownership of the landowner showing the proposed uses of each part of the site, proposed staging and demonstrating lot size diversity by including a colour coded lot size plan, reflecting the lot size categories and colours outlines in Table 2 - Housing type by lot size in the incorporated *Pakenham East Precinct Structure Plan*;
- A demonstration of how the application will contribute to the achievement of the residential density outcomes in the precinct structure plan applying to the land;
- A Traffic Impact Assessment including functional layout plans and a feasibility / concept road safety audit that demonstrates how the local street and movement network integrates with adjacent urban development or is capable of integrating with future development on adjacent land parcels;
- Subdivision and Housing Design Guidelines, in accordance with the incorporated *Pakenham East Precinct Structure Plan*, that demonstrate how the proposal responds to and achieves the objectives and planning and design requirements and guidelines within the *Housing* section of the PSP;
- A plan showing the proposed road and street network, that addresses the interface treatments adjacent to arterial roads, open space and environmentally sensitive areas;
- A plan showing access arrangements for properties adjacent to all existing and future arterial roads;
- A landscape master plan prepared by a suitably qualified professional in the field that shows the proposed species, locations, approximate height and spread of proposed planting and the retention of existing trees and shrubs. Where trees are retained, a Tree Protection Zone must be applied and should adhere to the Australian Standard Protection of Trees and Development Sites (AS4970-2009);
- A hydrogeological assessment of the groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater on the development and the impact of the development on groundwater;
- A drainage and integrated water management plan;
- A Site Management Plan that addresses bushfire risk during, and where necessary, after construction. The plan must specify, amongst other things:
  - The staging of development and the likely bushfire risks at each stage;
  - An area of land between the development edge and non-urban areas consistent with the separation distances specified in AS3959-2009 where bushfire risk is managed to ensure a BAL rating of no greater than BAL12.5 is required;
  - The measures to be undertaken by the developer to reduce the risk from fire within any surrounding rural or undeveloped landscape and protect residents and property from the threat of fire; and
  - How adequate opportunities for access and egress will be provided for early residents, construction workers and emergency vehicle.

**Retail economic impact assessment**

An application to use land for a Shop in a local town centre or local convenience centre where the combined leasable floor area of all shops exceeds the figure shown in the land use table at 2.3 of this schedule must be accompanied by a retail economic impact assessment prepared by a suitably qualified professional.

**Interface housing areas**

An application to subdivide land shown on Plan 5 of the *Pakenham East Precinct Structure Plan* as being within an interface housing area must include a building envelope plan that responds to Section 3.1.3 - *Housing* – of the incorporated *Pakenham East Precinct Structure Plan.*

### Slope management

An application to subdivide land or to construct a building or construct or carry out works for land shown on Plan 2 of the incorporated *Pakenham East Precinct Structure Plan* as having a pre-development slope of greater than 10%, must include a Slope Management Plan that responds to Cardinia Shire's *Guidelines for Slope Management in Subdivisions* and Section 3.1.2 - *Topography* – of the incorporated *Pakenham East Precinct Structure Plan*

A Slope Management Plan submitted with an application for subdivision must also include a building envelope plan demonstrating the outcomes sought by Section 3.1.2 - *Topography* – of the incorporated *Pakenham East Precinct Structure Plan* have been achieved.

### Environmental sustainable design statement

An application for the development of land must be accompanied by a sustainable design assessment report prepared by a suitably qualified professional that demonstrates how the development will achieve best practice sustainable design, using the Built Environment Sustainability Scorecard (BESS) or other comparable sustainable design tool to demonstrate best practise environmental design for the development.

### Structural engineering report - Beach Energy gas transmission pipeline

An application to construct a building with a height of three storeys or more, within 50m of the boundary of the Existing High Pressure Gas Pipeline (Beach Energy) shown on *Plan 10 – Utilities in the incorporated Pakenham East Precinct Structure Plan* must be accompanied by a structural engineering report detailing any additional loading or other changes expected to affect the pipeline, and the construction methods proposed to ensure the high pressure gas transmission pipeline is not damaged as a result of the introduction of the building. The report must be prepared by a suitably qualified professional and endorsed by the owner/operator of the high pressure gas transmission pipeline prior to being submitted to the responsible authority.

### Acoustic assessment - gas transmission city gate

An application for residential subdivision or to construct a building for accommodation on land within 35 metres of the western boundary of the gas transmission city gate, shown on Plan 1 of this schedule must be accompanied by an acoustic report prepared by a suitably qualified professional. The report must take account of the report titled *Pakenham East Precinct Structure Plan City Gate Noise Assessment (Marshall Day Acoustics, 28 May 2018)* and provide recommendations on suitable design responses that ensure an appropriate level of acoustic amenity is provided within proposed buildings.

### Acoustic Assessment –Princes Freeway and Princes Highway

An application for residential subdivision or to construct a building for accommodation on land within the 'vehicle noise amenity area' shown on Plan 7 of the *Pakenham East Precinct Structure Plan* must be accompanied by an acoustic report prepared by a suitably qualified professional, to the satisfaction of the responsible authority. The report must take account of the report titled *Pakenham East Precinct Structure Plan Traffic Noise Acoustic Assessment(Marshall Day Acoustics, 9 April 2018)* and provide recommendations on suitable design responses that ensure acoustic amenity is provided within proposed buildings consistent with AS/NZS2107.

### Local Town Centre

An application to use, subdivide land, construct a building or construct or carry out works for a Local Town Centre must also include the following information, as appropriate, to the satisfaction of the responsible authority:

- A design response report and plans that:
  - Address the Local Town Centre requirements, the Local Town Centre Guidelines, Appendix B (Local Town Centre Design Principles) and the Local Town Centre Concept Plan in the incorporated *Pakenham East Precinct Structure Plan*;

  - Address any relevant urban design guidelines prepared by the Victorian Government or Cardinia Shire Council;
  - Demonstrate how the proposal integrates with existing or approved development in the area;
  - Demonstrate site responsive architecture and urban design;
  - Demonstrate how the proposal will contribute to the urban character of the Local Town Centre;
  - Explain how the proposal responds to feedback received following consultation with relevant infrastructure agencies such as the Transport for Victoria;
  - Include environmental sustainability initiatives including integrated water management and energy conservation;
  - Include provisions for car parking including the location and design of car parking areas and car parking rates for proposed uses within the centre;
  - Address the provision of advertising signs;
  - Include arrangements for the provision of service areas and for deliveries and waste disposal including access for larger vehicles and measures to minimise the impact on the amenity of the centre and adjoining neighbourhoods; and
  - Demonstrate how opportunities for medium and higher density housing and future commercial expansion can be incorporated into the centre (including on future upper levels and through future car park redevelopments).

- An overall landscape concept/master plan for the centre including a design of the town square/ public space.

**Public Infrastructure Plan**

An application for subdivision and/or use and development of land must be accompanied by a Public Infrastructure Plan which addresses the following:

- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;
- What, if any, infrastructure set out in the infrastructure contributions plan applying to the land is sought to be provided as "works in lieu" subject to the consent of the collecting agency;
- The provision of public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

**Environmental Site Assessment**

An application to subdivide land or to use or develop land identified in Table 2 of this schedule (these properties are identified as Assessment Level 'B' in Table 2 of Appendix I of the report titled *CSC – PEP - ESA, Pakenham East Precinct,GHD, June 2013*), for a sensitive use (residential use, child care centre, pre-school centre or primary school) must be accompanied by an Environmental Site Assessment prepared by a suitably qualified environmental professional to the satisfaction of the responsible authority which takes account of the report titled *CSC – PEP - ESA, Pakenham East Precinct (GHD, June 2013*) and provides information including:

- Further detailed assessment of potential contaminants on the relevant land;
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005, DSE*;

- Further detailed assessment of surface and subsurface water conditions and geotechnical characteristics (including access to locked structures, intrusive works, soil and groundwater sampling and analysis) on the relevant land and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions and geology on the development and the impact of the development on surface and subsurface water; and
- Recommended remediation actions for any potentially contaminated land.

**Table 2**

| Properties requiring an environmental site assessment |
|---|
| Lot 1 TP709442, 155 Dore Road, Pakenham |
| Lot 2, LP93961, 325 Seymour Road Nar Nar Goon North |
| Lot 1, LP55512, 85 Mount Ararat North Road, Nar Nar Goon North |
| Lot 2, PS422931, Dore Road, Nar Nar Goon North |
| Lot 1, PS422931, 40 Dore Road, Nar Nar Goon North |
| Lot 1, PS436254, 15 Mount Ararat North Road, Nar Nar Goon North |
| Lot 1-2, PS547978, Lot 3 PS607403, Lot 1 PS613913, 1550 Princes Highway, Nar Nar Goon |
| Lot 3 PS308950, 1560 Princes Highway, Nar Nar Goon |
| Lot 1, PS425398, 32 Mount Ararat South Road, Nar Nar Goon |
| Lot 2 PS439920, 35 Canty Lane, Pakenham |
| Lot 1, LP56549, 100 Ryan Road, Pakenham |
| Lot 5, PS 4255422, 40 Ryan Road, Pakenham |
| Lot 5, PS 425422, 36 Ryan Road, Pakenham |
| Lot 3, PS425421, 30 Ryan Road, Pakenham |

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### Conditions - Small lot housing code

A permit issued before 31 December 2026 which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies.

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit issued before 31 December 2026 under section 72 of the Act , which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies, must be approved and endorsed by the responsible authority.

**Conditions – Heritage - Pyrus communis (Pear Tree) 40 Dore Road, Pakenham**

Any permit for the subdivision of land at 40 Dore Road, Pakenham must contain the following conditions:

- Prior to the certification of a plan of subdivision for the first stage of the subdivision, a Conservation Management Plan must be approved for the heritage place to ascertain cultural value/significance, appropriate site boundaries, required restoration works, possible future uses and interpretative signage.
- Before the commencement of works for any stage of subdivision or development, the heritage place must be appropriately secured against damage as a result of works, deterioration, and the effects of weather, trespassing or vandalism to the satisfaction of the Responsible Authority
- Prior to the issue of a statement of compliance for the first stage of subdivision the owner must enter into an agreement with the Responsible Authority made pursuant to Section 173 of the Planning and Environment Act 1987 which provides for works to the heritage places for the purposes of restoration and repair are in accordance with the timeframes and requirements of the approved Conservation Management Plan.

**Conditions - Subdivision or buildings and works permits where land is required for community facilities, public open space and road widening**

A permit for subdivision or buildings and works, where land is required for community facilities, public open space or road widening, must include the following conditions:

- The costs associated with effecting the transfer or vesting of land required for community facilities, public open space or road widening must be be borne by permit holder.
- Land required for community facilities, public open space or road widening must be transferred to or vested in the relevant public agency with any designation (e.g. road, reserve or lot) nominated by the relevant agency.

**Requirements - Protection of conservation areas and native vegetation during construction**

A permit granted to subdivide land where construction or works are required to carry out the subdivision, or a permit granted to construct a building or carry out works, on land including or abutting a conservation area or patch of native vegetation or scattered tree identified for retention in the incorporated *Pakenham East Precinct Structure Plan* or incorporated *Pakenham East Native Vegetation Precinct Plan* must ensure that:

- Before the start of construction or carrying out of works in or around a conservation area, scattered native tree or patch of native vegetation the developer of the land must erect a conservation area/vegetation protection fence that is:
  - highly visible
  - at least 2 metres in height
  - sturdy and strong enough to withstand knocks from construction vehicles
  - in place for the whole period of construction
  - located at a minimum distance from the identified elements in Table 3:

**Table 3**

| Element | Minimum distance from element |
|---|---|
| Conservation area | 2 metres |
| Scattered tree | Twice the distance between the tree trunk and the edge of the tree canopy |
| Patch of native vegetation | 2 metres |

- Construction stockpiles, fill, machinery, excavation and works or other activities associated with the buildings or works must:
  - be located not less than 15 metres from a waterway;
  - be located outside the vegetation protection fence;
  - be constructed and designed to ensure that the conservation area, scattered tree or patches of native vegetation are protected from adverse impacts during construction;
  - not be undertaken if it presents a risk to any vegetation within a conservation area; and
  - be carried out under the supervision of a suitable qualified ecologist or arborist.

**Conditions - Public transport**

Unless otherwise agreed to by Public Transport Victoria, prior to the issue of a statement of compliance for any subdivision stage, bus stops must be constructed, at full cost to the permit holder as follows:

- Generally in the location identified by Public Transport Victoria
- In accordance with the Public Transport Guidelines for Land Use and Development with a concrete hard stand area, and in activity centres a shelter must also be constructed
- Be compliant with the Disability Discrimination Act – Disability Standards for Accessible Public Transport 2002; and
- Be provided with direct and safe pedestrian access to a pedestrian path.

All to the satisfaction of Public Transport Victoria and the responsible authority.

**Conditions - Environmental Site Assessment**

Any permit to subdivide land or to use or develop land, identified in Table 2 of this schedule (these properties are identified as Assessment Level 'B' in Table 2 of Appendix I of the report titled CSC – PEP - ESA, Pakenham East Precinct ,GHD, June 2013) for a sensitive use (residential use, child care centre, pre-school centre or primary school) must contain the following conditions:

- Prior to the commencement of the development associated with a sensitive use, or the certification of a Plan of Subdivision, or a stage of subdivision, under the Subdivision Act 1988 associated with a sensitive use , the recommendations of the Environmental Site Assessment submitted with the application must be carried out to the satisfaction of the responsible authority.
- Upon receipt of the further testing report the owner must comply with any further requirements made by the responsible authority after having regard to the guidance set out in the General Practice Note on Potentially Contaminated Land June 2005 (DSE). The plan of subdivision must not be certified until the responsible authority is satisfied that the land is suitable for the intended use.
- The use or development for a sensitive use must not commence, or the plan of subdivision must not be certified until the responsible authority is satisfied that the land is suitable for the intended use.

## 5.0 Exemption from notice and review

21/01/2021
C234card

None specified.

## 6.0 Decision guidelines

21/01/2021
C234card

Before deciding on an application to create floorspace in excess of any cap in a town centre or local convenience centre, in addition to the decision guidelines at Clause 37.07-14, the responsible authority must consider, as appropriate:

- The local catchment and PSP catchment demand for the additional floor area; and
- The effect on existing and future major town centres within Shire of Cardinia.

## 7.0 Signs

21/01/2021
C234card

The sign category for this land is the ctegory specified in the zone applied to the land at Clause 2.2 of this schedule.

01/08/2024
C265card

# SCHEDULE 6 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ6**

## PAKENHAM SOUTH EMPLOYMENT PRECINCT STRUCTURE PLAN

## 1.0 The Plan

01/08/2024
C265card

Plan 1 shows the future urban structure proposed in the *Pakenham South Employment Precinct Structure Plan*. It is a reproduction of Plan 4 in the *Pakenham South Employment Precinct Structure Plan.*

**Plan 1 to Schedule 6 to Clause 37.07**

## 2.0 Use and development

01/08/2024
C265card

## 2.1 The Land

01/08/2024
C265card

The use and development provisions specified in this schedule apply to the land within the 'precinct boundary' on Plan 1 and shown as UGZ6 on the planning scheme maps.

*Note: If land shown in Plan 1 is not zoned UGZ the provisions of this zone do not apply.*

## 2.2 Applied zone provisions

01/08/2024
C265card

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 1 of this schedule.

*Note:*
*e.g. The Commercial 2 Zone specifies 'Shop' as a Section 1 Use with the condition, 'The site must adjoin, or have access to, a road in a Road Zone.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Road Zone or an applied Road Zone in the Urban Growth Zone schedule applying to the land'*

**Table 1: Applied zone provisions**

| Land shown on plan 1 of this Schedule | Applied zone provisions |
|---|---|
| Industrial | Clause 33.01 - Industrial 1 Zone |
| Land shown on plan 1 of this Schedule | Applied zone provisions |
| Arterial Road | Clause 36.04 - Transport Zone 2 |
| Land shown on plan 1 of this Schedule | Applied zone provisions |
| All other land | Clause 33.01 - Industrial 1 Zone |

The precise boundary of the zone is to be determined by the designation of land in a relevant plan of subdivision to the satisfaction of the responsible authority.

## 2.3 Specific provisions – Use of land

01/08/2024
C265card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Convenience shop** | ▪ Must not be on land within the Pakenham Water Recycling Plant and O'Connor odour buffers shown on Plan 1 of this Schedule and at Appendix B in the incorporated *Pakenham South Employment Precinct Structure Plan*.<br>▪ Must meet the conditions associated with these land uses under Section 1 of Clause 33.01-1. |
| **Crop raising** | |
| **Informal outdoor recreation** | |
| **Service station** | |
| **Take away food premises** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |
| **Any other use listed in Section 1 in the table of uses of the applicable applied zone.** | |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3 in the table of uses in the applicable applied zone.** | |

### Section 3 - Prohibited

| Use |
|---|
| **Any use listed in Section 3 in the table of uses of the applicable applied zone** |

## 2.4 Specific provisions - Subdivision

01/08/2024
C265card

Heritage Site - 40 Greenhills Road, Pakenham South

The location of any new lot boundary must include all contributory elements of the heritage place on the one private title (or one private title and parkland).

## 2.5 Specific provisions - Buildings and works

01/08/2024
C265card

None specified.

## 3.0 Application requirements

01/08/2024
C265card

The following application requirements apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority.

If the responsible authority is satisfied that a requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement unless otherwise indicated below.

### Subdivision and/or development

Any applications for subdivision and/or development must include:

- A Stormwater Management Strategy that addresses the provision, staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water and the responsible authority;
- A hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of the development on groundwater;
- A Bushfire Management Plan that demonstrates the bushfire protection measures to be implemented at the site to reduce bushfire risk, including:
  - The staging of the subdivision and identification of any interim bushfire hazards that must be managed
  - The provision of a 50 metre wide buffer where vegetation must be managed to a low threat condition around any interim bushfire hazard
  - The location of any permanent bushfire hazards within 150 metres of the site
  - The provision of a 50 metre wide buffer where vegetation must be managed in accordance with Table 6 of Clause 53.02 from any permanent bushfire hazard
  - Vegetation within the powerline easement must be managed in a low threat condition
  - How development will meet the following minimum setback requirements:
    - At least 19 metres from the east, south and west PSP boundary; and
    - At least 33 metres from the woodland vegetation to the north west PSP boundary, unless otherwise agreed with the relevant fire authority;
- A landscape masterplan showing vegetation management as per the Bushfire Risk Management Plan; and
- A Traffic Impact Assessment, including functional layout plans and feasibility / concept road safety audit, must be to the satisfaction of the *Head, Transport for Victoria* or the responsible authority, as required.

### Heritage Places

An application to subdivide land or to construct a building or construct and carry out works on land containing an identified heritage place must:

- Address the proposed future use or adaptive reuse of the affected heritage place;
- Include a Heritage Conservation Management Plan for the heritage place to the satisfaction of the responsible authority;
- Provide interpretative signage and where possible preserve interpretative items and vegetation for incorporation into the development; and
- Include the provision of sufficient space around the heritage building to allow its adaptive reuse to comply with other planning requirements, such as car parking and landscaping.

### Subdivision

All applications for subdivision must include:

- A subdivision design which demonstrates how the proposal responds to and achieves the objectives, planning and design requirements and guidelines shown within the *Pakenham South Employment Precinct Structure Plan* incorporated in this scheme;
- A design response which demonstrates how the local street and movement network integrates with adjacent urban development or is capable of integrating with future development on adjacent land parcels; and
- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses.

### Environmental sustainable design statement

An application for the development of land must be accompanied by a sustainable design assessment report prepared by a suitably qualified professional that demonstrates how the development will achieve best practice sustainable design, using the Built Environment Sustainability Scorecard (BESS) or other comparable sustainable design tool to demonstrate best practise environmental design for the development.

### Public Infrastructure Plan

All applications must be accompanied by a Public Infrastructure Plan which addresses the following:

- The proposed funding mechanism for waterway management by the future owners above and beyond any responsibilities of the authorities consistent with the stormwater management strategy;
- Any land that may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of road works, pedestrian and cycling routes, intersection treatments and proposed bus routes internal and external to the land consistent with any relevant traffic report or assessment;
- The landscaping of any land not in private ownership;
- Any infrastructure set out in the *Pakenham South Employment Infrastructure Contributions Plan* that is sought to be provided as work in lieu subject to the written consent of Cardinia Shire Council;
- The provision of public open space; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

## 4.0 Conditions and requirements for permits

01/08/2024
C265card

### Conditions - Public Transport

Any permit for subdivision must contain the following condition:

- Unless otherwise agreed by *Head, Transport for Victoria*, prior to the issue of a statement of compliance for any subdivision stage, bus stop hard stands with direct and safe pedestrian access to a pedestrian path must be constructed:
  - In accordance with the Public Transport Guidelines for Land Use and Development; and compliant with with the Disability Discrimination Act - Disability Standards for acceptable Public Transport 2002.
  - At locations approved by the Department of Transport and Planning, at no cost to the Department of Transport and Planning, and to the satisfaction of *Head, Transport for Victoria*.

### Conditions - Road network

Any permit for subdivision requiring vesting of land for road must include the following conditions:

- The plan of subdivision submitted for certification under the Subdivision Act 1988 must show any land which is required to provide road widening and/or right of way flaring for the ultimate design of any adjacent intersection; and
- Land required for road widening including right of way flaring for the ultimate design of any intersection must be transferred to or vested in Council at no cost to the acquiring agency unless funded by the *Pakenham South Employment Infrastructure Contributions Plan*.

### Conditions - Public open space

Any permit for subdivision where land is required for public open space must include the following condition:

- The costs associated with effecting the transfer or vesting of land required for public open space must be borne by the permit holder.

## 5.0 Exemption from notice and review

01/08/2024
C265card

None specified

## 6.0 Decision guidelines

01/08/2024
C265card

None specified

## 7.0 Signs

01/08/2024
C265card

Sign requirements are at Clause 52.05. Land is in the category specified in the applied zone at Clause 2.2 of this schedule.

27/02/2025
C274card

# SCHEDULE 7 TO CLAUSE 37.07 URBAN GROWTH ZONE

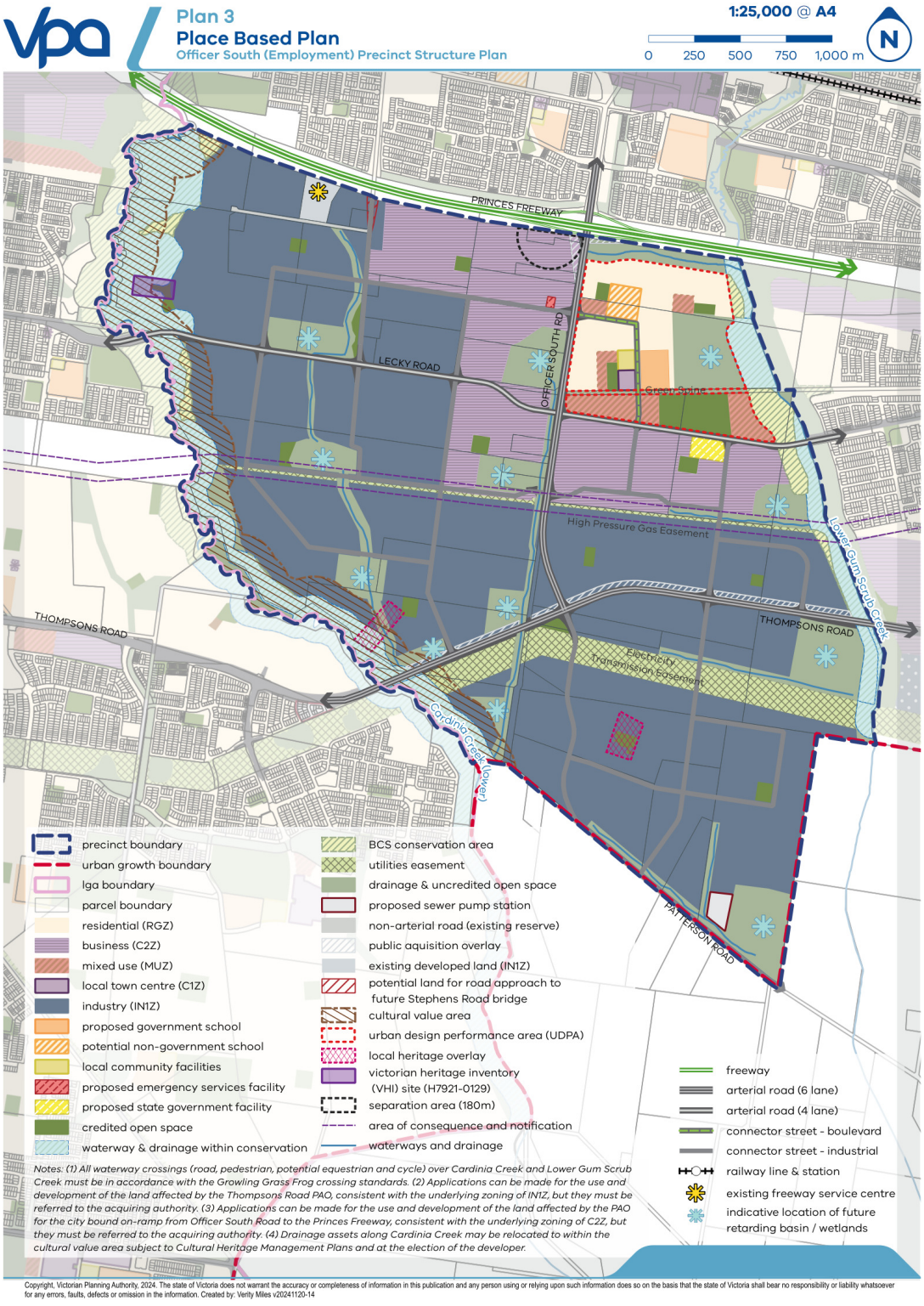
Shown on the planning scheme map as **UGZ7**.

## OFFICER SOUTH (EMPLOYMENT) PRECINCT STRUCTURE PLAN

## 1.0 The Plan

27/02/2025
C274card

Plan 1 shows the future urban structure proposed in the incorporated *Officer South (Employment) Precinct Structure Plan.*



## 2.0 Use and development

27/02/2025
C274card

### 2.1 The Land

27/02/2025
C274card

The use and development provisions specified in this schedule apply to the land within the 'precinct boundary' on Plan 1 and shown as UGZ7 on the planning scheme maps. This schedule must be read in conjunction with the incorporated Officer South (Employment) Precinct Structure Plan (PSP).

**Note:**

*If land shown on Plan 1 is not zoned UGZ, the provisions of this zone do not apply.*

### 2.2 Applied zone provisions

27/02/2025
C274card

Table 1 allocates the land use/development shown on Plan 1 of this schedule with a corresponding zone from this scheme.

Where the use/development in the left column is carried out or proposed generally in accordance with the incorporated Officer South (Employment) Precinct Structure Plan, the use, subdivision, construction of a building and construction and carrying out of works provisions of the corresponding zone in the right column apply.

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

**Note:**

*e.g. The General Residential Zone specifies 'Place of worship' as a Section 1 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone or an applied Transport Zone in the Urban Growth Zone schedule applying to the land'.*

**Table 1: Applied zone provisions**

| Land shown on plan 1 of this schedule | Applied zone provisions |
|---|---|
| Local town centre | Clause 34.01 – Commercial 1 Zone |
| **Land shown on plan 1 of this schedule** | **Applied zone provisions** |
| Business | Clause 34.02 – Commercial 2 Zone |
| **Land shown on plan 1 of this schedule** | **Applied zone provisions** |
| Industry | Clause 33.01 – Industrial 1 Zone |
| Existing developed land | |
| Waterway and drainage | |
| **Land shown on plan 1 of this schedule** | **Applied zone provisions** |
| Mixed use | Clause 32.04 - Mixed Use Zone |
| **Land shown on plan 1 of this schedule** | **Applied zone provisions** |
| Freeway | Clause 36.04 – Transport Zone 2 |
| Arterial road | |
| **Land shown on plan 1 of this schedule** | **Applied zone provisions** |

| | |
|---|---|
| Public acquisition overlay on Officer South Road | Clause 34.02 – Commercial 2 Zone |
| Land shown on plan 1 of this schedule<br>Public acquisition overlay on Thompsons Road | Applied zone provisions<br>Clause 33.01 – Industrial 1 Zone |
| Land shown on plan 1 of this schedule<br>Residential<br>All other land | Applied zone provisions<br>Clause 32.07 – Residential Growth Zone |

## 2.3 Specific provisions – Use of land

27/02/2025
C274card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| Art Gallery - where the applied zone is Commercial 2<br>Museum - where the applied zone is Commercial 2 | Must not be on land identified within the South East Water 'separation area (180m) on Plan 3 - Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan* |
| Cinema - where the applied zone is Commercial 2<br>Cinema based facility - where the applied zone is Commercial 2 | Must not be on land shown within the 'area of consequence and notification' depicted on Plan 13 - Utilities of the incorporated *Officer South (Employment) Precinct Structure Plan*<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3<br>Must not be on land identified within the South East Water 'separation area (180m) on Plan 3 - Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan* |
| Child care centre<br>Hall<br>Indoor recreation centre<br>Library<br>Medical centre<br>Restricted recreation facility | The location of the use must generally accord with the location of 'local community facilities' in the incorporated *Officer South (Employment) Precinct Structure Plan* and with prior written consent of Cardinia Shire Council |
| Dwelling - where the applied zone is Mixed Use | Any frontage at ground floor level must not exceed 2 metres |
| Education centre (other than child care centre, Tertiary institution and Employment training centre) | The location of the use must generally accord with the location of 'potential non-government school' in the incorporated *Officer South (Employment) Precinct Structure Plan* and with prior written consent of Cardinia Shire Council |
| Emergency services facility | On land identified as 'proposed emergency services facilities' on Plan 3 - Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan* |
| Food and drink premises - where the applied zone is Commercial 2 | Must not be on land identified within the South East Water 'separation area (180m) on Plan 3 - Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan* |

| Use | Condition |
|---|---|
| Hospital | On land identified as 'proposed state government facility' on on Plan 3 - Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan* |
| Minor sports and recreation facility | The location of the use must generally accord with the location of 'local sports reserve' in the incorporated *Officer South (Employment) Precinct Structure Plan* and with prior written consent of Cardinia Shire Council<br><br>Must not be on land identified within the South East Water 'separation area (180m) on Plan 3 - Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan* |
| Rural industry (other than Abattoir and Sawmill) - where the applied zone is Industrial 1 | On land identified as 'Gin Gin Bean sub-precinct' in the incorporated *Officer South (Employment) Precinct Structure Plan*<br><br>Must not have a gross floor area of more than 200 square metres<br><br>Must not be within 100 metres of a dwelling<br><br>Must not be a purpose listed in the table to Clause 53.10 with no threshold distance<br><br>The land must be the following distances from land (not a road) which is in a Commercial 1 Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2021<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016 |
| Service station - where the applied zone is Industrial 1 | Must not be on land shown within the 'area of consequence and notification' depicted on Plan 13 - Utilities of the incorporated *Officer South (Employment) Precinct Structure Plan*<br><br>The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution.<br><br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land. |

| Use | Condition |
|---|---|
| | ▪ Appearance of any stored goods to materials.<br>▪ Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam soot, ash, dust, waste water, waste products, frit or oil |
| Shop - where the applied zone is Commercial 1 Zone | The combined leasable floor area on land identified as 'local town centre' in the incorporated *Officer South (Employment) Precinct Structure Plan* must not exceed 2,300 sqm |
| Supermarket - where the applied zone is Commercial 1 Zone | The leasable flood area on land identified as 'local town centre' in the incorporated *Officer South (Employment) Precinct Structure Plan* must not exceed 1,200 sqm |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |

**Section 2 - Permit required**

| Use | Condition |
|---|---|
| Rural industry - where the applied zone is Commercial 2 | |
| Supermarket - where the applied zone is Commercial 2 or Mixed use | The leasable floor area must not exceed 500 sqm |
| **Any other use not in Section 1 or 3 in the table of uses in the applicable applied zone** | |

**Section 3 – Prohibited**

| Use | |
|---|---|
| Caretaker's house<br>Education Centre | On land identified within the South East Water 'separation area (180m) on Plan 3 - Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan* |
| Child care centre - where the applied zone is Commercial 2 or Industrial 1 | |
| Gaming premise - where the applied zone is Commercial 1 | |
| Primary school - where the applied zone is Commercial 2 | |
| Residential hotel - where the applied zone is Commercial 2 | |
| Restricted retail premises - where the applied zone is Industrial 1 | |
| Secondary school - where the applied zone is Commercial 2 | |
| **Any use listed in Section 3 in the Table of uses of the applicable applied zone** | |

## 2.4 Specific provisions - Subdivision

27/02/2025
C274card

None specified

## 2.5 Specific provisions - Buildings and works

27/02/2025
C274card

### Buildings and works for future local parks and community facilities

A permit is not required to construct a building or construct or carry out works for a local park, sport reserve or community facility provided the use or development is carried out generally in accordance with the incorporated *Officer South (Employment) Precinct Structure Plan* and with the prior written consent of Cardinia Shire Council.

### Dwellings on a lot less than 300 square metres

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

### Buildings and works for a school

A permit is required to construct a building or construct or carry out works associated with a Primary school or Secondary school on land shown as a 'potential non-government school' on Plan 3 of the incorporated *Officer South (Employment) Precinct Structure Plan*, unless exempt under Clauses 62.02-1 and 62.02-2.

### Buildings and works within 50 metres of the gas pipeline easement

A permit is required to construct a building or construct or carry out works within 50 metres of the boundary of the high-pressure gas easement shown on Plan 3 – Place Based Plan in the incorporated *Officer South (Employment) Precinct Structure Plan.*

### Bulk Earthworks

A permit is required for bulk earthworks.

## 3.0 Application requirements

27/02/2025
C274card

The following application requirements apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority.

If in the opinion of the responsible authority (or for any application requirement expressed as requiring approval / endorsement by, or being required to the satisfaction of an agency, in the opinion of that agency and the responsible authority) an application requirement listed below is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

### General Subdivision

All applications for subdivision must be accompanied by the following information to the satisfaction of the responsible authority:

- A written statement that sets out how the application implements the incorporated *Officer South (Employment) Precinct Structure Plan.*
- A land use budget table in the same format and methodology as those within the *Officer South (Employment) Infrastructure Contributions Plan* applying to the land setting out the amount of land allocated to the proposed uses, mix of lot sizes (including estimated superlots) and expected population, dwelling and employment yields if relevant.
- Where a parcel is proposed to be subdivided or developed in stages, an overall masterplan for the parcel must be provided showing the proposed staging and lot size diversity by including a lot size plan, generally in accordance with the lot size categories in the incorporated *Officer South (Employment) Precinct Structure Plan.*
- A hydrogeological assessment of the groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater on the development and the impact of the development on groundwater.
- An arboricultural report identifying all trees on the site and a tree retention plan identifying how the application proposes to retain the retained vegetation set out in Plan 7 Native Vegetation Retention and Removal and any tree protection requirements and guidelines within the incorporated *Officer South (Employment) Precinct Structure.*
- A landscape master plan prepared by a suitably qualified professional that:
- - Shows natural features including trees and other significant vegetation, habitat for protected species, drainage lines, water courses, wetlands, ridgelines, hill tops and features of geomorphic significance;
  - Recognises and responds to sodic or dispersive soils;
  - Shows recreation facilities to be provided within public open space (with the exception of the active open space);
  - Identifies how it is proposed to retain the retained vegetation and trees set out in Plan 7 – Native Vegetation Retention and Removal of the incorporated *Officer South (Employment) Precinct Structure Plan;*
  - Shows storm water facilities that are compliant with the relevant approved drainage strategy and Integrated Water Management plan; and
  - Identifies all re-vegetation which is proposed.

### Subdivision - Residential development

In addition to the general subdivision requirements and the requirements of Clause 56.01-2, a subdivision design response for a residential subdivision of 10 lots or more must be accompanied by the information listed below. An application for the construction of 10 or more dwellings on a lot must be accompanied by the same information:

- Subdivision and Housing Design Guidelines, in accordance with the incorporated *Officer South (Employment) Precinct Structure Plan*, that demonstrates how the proposal responds to and achieves the objectives and planning and design requirements and guidelines within the viable densities section of the PSP.

- A demonstration of how the application will contribute to the achievement of the residential density outcomes in Table 4 of the incorporated *Officer South (Employment) Precinct Structure Plan.*
- Written statement outlining how the proposal will contribute to the delivery of affordable housing including social housing (as defined in the *Planning and Environment Act 1987*) in the precinct, including proposed delivery mechanisms.

**Environmentally sustainable development**

An application in the categories described below must be accompanied by a Sustainable Design Assessment (SDA) report or a Sustainability Management Plan (SMP), whichever is specified.

The SDA or SMP must be prepared by a suitably qualified professional that demonstrates how the development will achieve best practice sustainable design. This includes encouraging energy performance, integrated water management, indoor environment quality, transport, waste management and urban ecology. Best practice environmental design for the development can use the Built Environment Sustainability Scorecard (BESS) or other comparable sustainable design tool.

An SDA (including an assessment using BESS, STORM or other methods) is required for development in the following categories of development:

**Category - Residential**

- 2-9 dwellings or:
- A building used for accommodation other than dwellings with a gross floor area between 100 square metres and 999 square metres.

**Category - Non-residential**

- A non-residential building with a gross floor area of 300 square metres to 999 square metres.
- An extension to an existing non-residential building creating between 300 square metres to 999 square metres of additional gross floor area (excluding outbuildings).

A SMP (including an assessment using BESS/Green star, STORM/MUSIC or other methods) and a Green Travel Plan are required for the following categories of development:

**Category - Residential**

- 10 or more dwellings or:
- A building used for accommodation other than dwellings with a gross floor area equal to or more than 1000 square metres.

**Category - Non-residential**

- A non-residential building with a gross floor area equal to or more than 1000 square metres (excluding outbuilding).
- An extension to an existing non-residential building equal to or creating more than 1000 square metres of additional gross floor area (excluding outbuildings).

**Category - Mixed use**

Applicable assessments for the residential and non-residential components of the development.

Consider as relevant the following tools to support a SDA or a SMP

- *Sustainable Design Assessment in the Planning Process* (IMAP, 2015).
- *Built Environment Sustainability Scorecard 'BESS*' (Council Alliance for a Sustainable Built Environment 'CASBE').
- *Green Star* (Green Building Council of Australia).
- *Model for Urban Stormwater Improvement Conceptualisation 'MUSIC'* (Melbourne Water).
- *Nationwide House Energy Rating Scheme 'NatHERS'* (Department of Climate Change and Energy Efficiency).
- *Stormwater Treatment Objective - Relative Measure 'STORM'* (Melbourne Water).
- *Urban Stormwater Best Practice Environmental Management Guidelines* (Victorian Stormwater Committee, 1999).
- *Waste Management and Recycling in Multi-Unit Developments - Better Practice Guide* (Sustainability Victoria, 2018).

In determining an application, the responsible authority will consider as appropriate:

- Whether an ESD plan or framework has previously been approved by the responsible authority.

**Public infrastructure plan**

An application for subdivision and/or use and development of land must be accompanied by a public infrastructure plan which addresses the following:

- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;
- What, if any, infrastructure set out in the infrastructure contributions plan applying to the land is sought to be provided as "works in lieu" subject to the consent of the collecting agency;
- The provision of Inner Purpose Land including public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

A public infrastructure plan must be consistent with any Traffic Impact Assessment approved under this schedule

**Transport impact assessment**

An application that proposes to create or change access to a road in the Transport Zone 2 must be accompanied by a Traffic Impact Assessment (TIA). The TIA must be to the satisfaction of the relevant road authority and Cardinia Shire Council and include:

- Functional layout plans.
- A feasibility / concept road safety audit that demonstrates how the local street and movement network integrates with adjacent urban development or can integrate with future development on adjacent land parcels.
- How the application responds to existing approved development within the precinct, and whether the capacity of any existing infrastructure requires upgrading.
- A plan showing the proposed road and street network, that addresses the interface treatments adjacent to arterial roads, open space and environmentally sensitive areas.

- A plan showing access arrangements for properties adjacent to all existing and future arterial roads.
- Potential bus route and bus stop locations prepared in consultation with the Head, Transport for Victoria.

### Retail impact assessment

An application to use land for a Shop on land in the Local Town Centre shown on Plan 1 of this schedule must be accompanied by a retail economic impact assessment prepared by a suitably qualified professional if the combined leasable floor area of all shops exceeds the figure shown in the land use table at clause 2.3 of this schedule.

### Acoustic assessment report

Any application for subdivision and/or use or development of land for Accommodation, Education centre (other than Tertiary institution and Employment training centre) or Hospital, must be accompanied by an acoustic assessment report prepared by a qualified acoustic consultant or other suitably skilled person to the satisfaction of the responsible authority which:

- Applies the following noise objectives:
  - Not greater than 35 dB LAeq,8h when measured within a sleeping area between 10pm and 6am.
  - Not greater than 40 dB LAeq,16h when measured within a living area between 6am and 10pm.
  - For areas other than sleeping and living areas, not greater than the median value of the range of recommended designed sound levels of Australian Standard AS/NZ 2107:2016 *(Acoustics – Recommended design sound level and reverberation times for building interiors)*.
- Noise levels should be assessed:
  - Considering the cumulative noise from all sources impacting on the proposal including road traffic noise and industry noise, as well as other potential noise sources; and
  - In unfurnished rooms with a finished floor and the windows closed and be based on average external noise levels measured as part of a noise level assessment.
- Identifies lots and/or buildings requiring mitigation from noise (including vibration as relevant) from all sources impacting on the proposal, including road traffic noise and industry noise. If lots and/or buildings requiring acoustic mitigation are identified, the report should include recommendations for any noise attenuation measures required to meet the applicable noise level objectives. These recommendations should prioritise measures that benefit both outdoor and indoor spaces, and should address:
  - Noise compatible design for buildings, with siting, orientation, and internal layout, to be considered prior to setting building envelope performance requirements;
  - Potential noise character (tonality, impulsiveness or intermittency);
  - Noise with high energy in the low frequency range;
  - Transient or variable noise; and
  - Vibration.

This requirement does not apply if the permit applicant provides, to the satisfaction of the responsible authority, a statement in writing supported by verifiable evidence from a qualified acoustic consultant or other suitably skilled person and having regard to Clause 13.05 and to the environmental values for ambient sound defined in the Environment Reference Standard (ERS). The statement must demonstrate that:

- The proposed development is not prejudiced;
- Community amenity and human health is not adversely impacted by noise emissions; and
- No noise attenuation measures are required.

**South East Water pump station amenity area**

An application to use land within the South East Water 'separation area (180m)' on Plan 1 of this schedule must be accompanied by an amenity impact assessment prepared by a suitably qualified professional that assesses the potential for odour impacts from the South East Water Sewage pumping station on the proposed use. The amenity impact assessment must make recommendations on a suitable design response to ensure the use within the proposed buildings will experience an appropriate level of amenity.

**Sodic and dispersive soils management plan**

An application to subdivide land or construct or carry out bulk earthworks must be accompanied by a sodic and dispersive soils management plan prepared by a suitably qualified professional, that describes:

- The existing site conditions, including:
  - extent of sodic and dispersive soils based on topsoil and subsoil samples in the works area.
  - land gradient
  - erosion risk mapping.
  - the extent of any existing erosion, landslip or other land degradation.
- Soils investigation, undertaken by a soil scientist;
- The extent of any proposed earthworks;
- Recommendations for soil management practices (including fill) with consideration of anticipated sodic and dispersive soil exposure;
- The management of drainage during all stages of development (including run-off);
- The staging of development;
- Any training and supervision processes proposed for construction contractors to ensure compliance with the sodic and dispersive soils management plan;
- Proposed document monitoring and reporting processes that ensure works are undertaken in accordance with the sodic and dispersive soils management plan;
- Any treatment of soil proposed to be removed from the site;
- Any post-construction monitoring and/or management requirements; and
- Recommendations that inform a site management plan including:
  - The management, volume and location of any stockpiles.
  - Vehicle access and movement within the site area.
  - Any treatment to manage the soil while works are undertaken.

- Treatments to rehabilitate areas that are disturbed during site works.
- Any soil treatment to manage the soil to reduce risk to existing or current infrastructure and dwellings.
- Ensuring potential environmental impacts are properly quantified.
- Adequality addressing both surface and subsurface erosion.
- Site specific recommendations for management practices of sodic soils.
- The collection and treatment of stormwater.

**Integrated water management**

An application to subdivide land must be accompanied by an Integrated Water Management Strategy (IWMS). The IWMS must be prepared to the satisfaction of the Responsible Authority and Melbourne Water and include details of:

- Drainage servicing, including assessment of the existing surface and subsurface drainage conditions on the site;
- The provision, staging and timing of stormwater drainage works in accordance with the applicable Melbourne Water Development Services Scheme(s);
- The provision, decommissioning, staging and timing of any temporary drainage works (including but not limited to outfall detention, treatment and / or volume control infrastructure);
- Flow rate and flow volume management measures to ensure no additional downstream inundation impacts, duration impacts and flood impacts are caused by the development, to the satisfaction of Melbourne Water.

**Bushfire management plan**

An application to subdivide land adjacent to a Bushfire Hazard Areas shown on Plan 8 Bushfire Hazard Areas of the *Officer South (Employment) Precinct Structure Plan* must be accompanied by a Bushfire Management Plan that demonstrates how the application will address bushfire risk at the site. The plan must be prepared in accordance with table 3 - Bushfire hazard vegetation management & setback requirements, of the *Officer South (Employment) Precinct Structure Plan*, unless otherwise agreed in writing by the Responsible Authority and CFA. The plan must include:

- The design and layout of the subdivision, including lot layout, road design and access points, both vehicular and pedestrian.
- The location of any bushfire hazard areas.
- The details of any bushfire protection measures required for individual lots.
- The identification of any areas to form the setback between a bushfire hazard and built form.
- The details of any vegetation management in any area of defendable space including information on how vegetation will be managed and when the vegetation management will occur i.e., annually, quarterly, during the fire danger period.
- Notation that indicated what authority is responsible for managing vegetation within open space areas and public realms; and
- Notation that ensures that the areas of classified vegetation in the nominated bushfire hazard areas must be managed to a level that will ensure the vegetation classification under AS3959-2018 will not be altered.

The responsible authority and fire authority may waive this requirement if a plan has been approved for the land.

## 4.0 Conditions and requirements for permits

27/02/2025
C274card

The following conditions and requirements apply to a permit issued pursuant to this schedule, as appropriate, to the satisfaction of the responsible authority.

If in the opinion of the responsible authority (or for any condition or requirement expressed as requiring approval / endorsement by, or being required to the satisfaction of an agency, in the opinion of that agency and the responsible authority) a condition or requirement listed below is not required, the responsible authority may waive or reduce the condition or requirement.

### Conditions - Subdivision permits that allow for the creation of a lot of less than 300 square metres

A permit issued before 31 December 2026 which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988* , a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:
  - type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or
  - type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies.
    to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit issued before 31 December 2026 under section 72 of the Act , which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988* , a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies, must be approved and endorsed by the responsible authority.

### Conditions - Heritage sites

Any permit for the subdivision of land at 410 and 425 Officer South Road must contain the following conditions:

- Prior to the certification of a stage of the subdivision, a Conservation Management Plan must be approved for the heritage place and describe the cultural value value/significance, appropriate site boundaries, any required restoration works, possible future uses and interpretative signage.
- Before the commencement of works for the relevant stage of subdivision, containing the heritage place, the heritage place must be appropriately secured against damage as a result of the proposed works, to the satisfaction of the Responsible Authority.
- Prior to the issue of a statement of compliance for the first stage of subdivision the owner must enter into an agreement with the Responsible Authority made pursuant to Section 173 of the Planning and Environment Act 1987 which provides for any works to the heritage places for the purposes of restoration and repair, as recommended in the approved Conservation Management Plan are in accordance with the timeframes and requirements of the approved Conservation Management Plan.

Any permit for the subdivision of land at 185 Officer South Road must include the following condition:

- Prior to the demolition of the dairy shed at 185 Officer South Road, the remnant water trough and tin feed room must be photographed and recorded on the Victorian Heritage data base.

### Condition - Construction environmental management plan

A permit to subdivide land, construct a building, or construct or carry out works on or within 50 metres of land shown as a BCS conservation area must include the following condition:

Before works start, a Construction Environmental Management Plan consistent with *DELWP requirements for Construction Environmental Management Plans under the Melbourne Strategic Assessment* (Department of Environment, Land, Water and Planning, November 2020) must be submitted to and approved by the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) and the responsible authority, demonstrating how the conservation area will be protected during works.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

### Condition - Land management plan for conservation area

A permit to subdivide land containing a BCS conservation area as shown on Plan 1 in this schedule must include the following condition:

Prior to the commencement of development, a land management plan for the conservation area land must be prepared by a suitably qualified consultant, submitted to, and approved by the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary). The land management plan must outline how the biodiversity values for the land identified in the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013) will be maintained, managed and improved, including:

- How environmental weeds will be managed up until the securing of the conservation area.
- How any revegetation will be undertaken in coordination with weed management activities to prevent re-colonisation of weed species.
- How rubbish and hazards will be removed, and any contaminated material managed up until the securing of the conservation area.

Once approved the land management plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

### Condition - Public transport

Any permit for subdivision must include the following condition:

Unless otherwise agreed by Head, Transport for Victoria, prior to the issue of a statement of compliance for any subdivision stage, bus stop hard stands with direct and safe pedestrian access to a pedestrian path must be constructed:

- In accordance with the Public Transport Guidelines for Land Use and Development; and compliant with the Disability Discrimination Act – Disability Standards for accessible Public Transport 2002.
- At locations approved by the Department of Transport and Planning, at no cost to the Department of Transport and Planning, and to the satisfaction of Head, Transport for Victoria.

### Condition - Road network

Any permit for subdivision or buildings and works must include the following conditions:

- Prior to the certification of a plan of subdivision, the plan of subdivision must show the land affected by the widening of the road reserve which is required to provide road widening and/or right of way flaring for the ultimate design of any adjacent intersection.

- Land required for road widening (excluding widening under a Public Acquisition Overlay for road widening) including right of way flaring for the ultimate design of any intersection within an existing or proposed arterial road must be transferred to or vested in council at no cost to the acquiring agency unless funded by the *Officer South (Employment) Infrastructure Contributions Plan*.
- Roads and intersections identified as bus capable on Plan 5 of the incorporated *Officer South (Employment) Precinct Structure Plan* must:
  - Be constructed to accommodate ultra-low floor buses, in accordance with the Public Transport Guidelines for Land Use and Development and to the satisfaction of Transport for Victoria and the responsible authority.
  - Be compliant with the *Disability Discrimination Act – Disability Standards for Accessible Public Transport 2002;* and
  - Be provided with direct and safe pedestrian access to a pedestrian path to the satisfaction of Public Transport Victoria and the responsible authority.

**Condition - Public infrastructure plan**

Any permit for subdivision must include the following conditions:

- Prior to the certification of a plan of subdivision or at such other time which is agreed between the council and the owner, if required by the responsible authority, the owner must enter into an agreement or agreements under section 173 of the *Planning and Environment Act 1987* which provide for:
  - The implementation of the Public Infrastructure Plan approved under this permit.
  - The timing and amount of any payments to be made to a person in respect of any infrastructure project having regard to the availability of funds collected under the Infrastructure Contributions Plan.

**Conditions - Subdivision or buildings and works permits where land is required for community facilities, public open space, or road widening**

A permit for subdivision or buildings and works, where land is required for community facilities, public open space or road widening (excluding widening under a Public Acquisition Overlay for road widening) must include the following conditions:

- The costs associated with effecting the transfer or vesting of land required for community facilities, public open space or road widening must be borne by the permit holder.
- Land required for community facilities, public open space or road widening must be transferred to or vested in the relevant public agency with any designation (e.g. road, reserve or lot) nominated by the relevant agency.

**Condition - Integrated water management plan**

A permit to subdivide land, must include the following condition:

- Unless otherwise agreed by the Responsible Authority and Melbourne Water, before certification of the plan of subdivision the Integrated Water Management Plan must be approved by Melbourne Water and approved and endorsed by the Responsible Authority.

### Condition - Bushfire management plan

A permit to subdivide land adjacent to a Bushfire Hazard Area shown on Plan 8 Bushfire Hazard Areas, must include the following condition:

- Unless otherwise agreed by the Responsible Authority and the Country Fire Authority, before certification of the plan of subdivision the Bushfire Management Plan must be endorsed by the Responsible Authority.

### Condition - Security of conservation land

A permit to subdivide land containing a 'BCS conservation area' as shown in Plan 1 in this schedule must include the following condition:

The owner of the land must, as part of the plan of subdivision (or the first plan of subdivision submitted for registration, in the case of any staged subdivision), create the 'BCS conservation area' as shown in the Place Based Plan in the *Officer South (Employment) Precinct Structure Plan* as a separate lot or reserve (which may or may not include the cultural value area as shown on Plan 3 of the *Officer South (Employment) Precinct Structure Plan*. The boundaries of the lot or reserve on the plan of subdivision are subject to the prior satisfaction of the Secretary to the Department of Energy, Environment and Climate Action as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*(Secretary). The owner must further secure the conservation area, by causing that lot or reserve to be vested, transferred, or protected in perpetuity in one of the following ways:

- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement under section 173 of the *Planning and Environment Act 1987* by which the owner agrees to transfer ownership of the conservation area to, or to vest the conservation area in, the Minister responsible for section 5 of the *Crown Land (Reserves) Act 1978*, the Council or Melbourne Water. The transfer or vesting must either be for no or nominal consideration. The Secretary and the person or body to whom the land is to be transferred or vested must also be a party to the agreement. The terms of the agreement must include that the owner pays the reasonable costs of the other parties to the agreement that were incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration; or
- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement with the Secretary under section 69 of the *Conservation, Forests and Lands Act 1987*, which provides for the conservation and management of the conservation area by or on behalf of the owner in perpetuity. The terms of the agreement must include that the owner pays the reasonable costs of the Secretary incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration.

The requirement to include the above condition does not apply if the permit applicant provides the responsible authority with a statement in writing from the Secretary, as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*, that the condition is not required because the Secretary is satisfied that either:

- the land containing the conservation area is expected to be further subdivided and a further permit will be required for that subdivision (to which the above condition requirement will apply); or
- the conservation area has been or will be otherwise secured in perpetuity.

### Condition - Fencing of conservation areas

A permit to subdivide land where works are required to carry out the subdivision, or a permit to construct a building or carry out works, on land including or abutting a BCS conservation area as shown on Plan 1 of this schedule, must include the following condition:

Prior to the commencement of development, a conservation area fencing plan must be submitted to and approved by the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary) to ensure the conservation area is adequately protected. The fencing plan must contain the following:

- The boundaries of any conservation area, and the location of any scattered tree and the boundaries of any patch of native vegetation within the conservation area.
- The location and alignment of temporary protection fencing at the minimum distance from the element to be protected as specified in the following table:

| Element | Distance |
|---|---|
| Conservation area | 0.5 metres |
| Scattered tree | 12 x diameter at a height of 1.3 metres |
| Patch of native vegetation | 2 metres |

- The timing of installation and removal of temporary protection fencing.
- The timing of installation of permanent fencing.
- Location and details of ongoing maintenance vehicle access points.
- The type of temporary and permanent fencing including materials, heights and spacing of uprights.
- Frequency of inspections and rectification works for temporary protection fencing.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary to the Department of Energy, Environment and Climate Action and the responsible authority.

Stockpiles, fill, machinery, vehicle parking, excavation and construction activity of any kind must not be bought into, or be undertaken within, the area to be fenced, except with the prior written consent from the Secretary.

### Condition - Correct alignment of protective fencing

A permit to subdivide land where works are required to carry out the subdivision, or a permit to construct a building or carry out works, on land including or abutting a BCS conservation area as shown on Plan 1 in this schedule, must include the following condition:

- Buildings and works must not commence until written evidence that protection fencing has been erected in accordance with the approved Conservation Area Fencing Plan is provided by a suitably qualified land surveyor to the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary), and the Secretary confirms it is satisfied by the evidence.

### Condition - Protection of native vegetation during construction

A permit to subdivide land or to construct a building or carry out works, on land including or abutting patch of native vegetation or scattered tree identified for retention in the incorporated *Officer South (Employment) Precinct Structure Plan* must include the following conditions:

- Before the start of construction or carrying out of works in or around a scattered native tree or patch of native vegetation the developer of the land must erect a vegetation protection fence that is:
  - Highly visible.
  - At least 2 metres in height.
  - Sturdy and strong enough to withstand knocks from construction vehicles.
  - In place for the whole period of construction.
  - Located at a minimum distance from the identified elements as specified in the following table.

| Element | Minimum distance from element |
|---|---|
| Scattered tree | Twice the distance between the tree trunk and the edge of the tree canopy |
| Patch of native vegetation | 2 metres |

- Construction stockpiles, fill, machinery, excavation and works or other activities associated with the buildings or works must:
  - Be located outside the vegetation protection fence;
  - Be constructed and designed to ensure that the conservation area, scattered tree or patches of native vegetation are protected from adverse impacts during construction;
  - Not be undertaken if it presents a risk to any vegetation within a conversation area; and
  - Be carried out under supervision of a suitably qualified ecologist or arborist.

**Condition - Acoustic report**

A permit for subdivision and/or use or development of land where an acoustic assessment report has identified that mitigation from noise sources is required, must include the following condition:

- Any recommendations of the acoustic assessment report submitted with the application to implement noise attenuation measures must be implemented to the satisfaction of the responsible authority.

**Condition - Sodic and dispersive soil site management plan**

A permit to subdivide land or to undertake earthworks must include the following condition:

- Any recommendations identified in the approved sodic and dispersive soil management plan must be implemented to the satisfaction of the Responsible Authority.

**Condition - Gas pipeline construction management plan**

A permit to subdivide and/or develop land within 50 metres of the boundary of the high pressure gas easement on Plan 3 – Place Based Plan in the incorporated *Officer South (Employment) Precinct Structure Plan* must include the following condition:

- Prior to the construction of a building or the carrying out of works, including demolition, on land within 50 metres of the boundary of the high pressure gas easement shown on Plan 3 – Place Based Plan in the incorporated *Officer South (Employment) Precinct Structure Plan*, a

Construction Management Plan must be submitted to and approved by the responsible authority. The plan must:

- Prohibit the use of rippers or horizontal directional drills unless otherwise agreed by the operator of the gas transmission pipeline.
- Be endorsed by the operator of the gas transmission pipelines where the works are within or crossing the relevant gas transmission easement.
- Include any other relevant matter to the satisfaction of the responsible authority.
- Land required for community facilities, public open space or road widening must be transferred to or vested in the relevant public agency with any designation (e.g. road, reserve or lot) nominated by the relevant agency.

The responsible authority must be satisfied that the gas transmission pipeline licensee has reviewed and approved the Construction Management Plan.

The Construction Management Plan must be implemented to the satisfaction of the responsible authority.

The Construction Management Plan may be amended to the satisfaction of the responsible authority.

#### Condition - Freeway noise wall

Any permit for subdivision, use or development adjacent to the Princes Freeway must include the following condition:

- Any subdivision (or, in the case of a staged subdivision, the first stage of subdivision), use or development of land directly abutting the Princes Freeway boundary and between Officer South Road and Lower Gum Scrub Creek must comply with the *VicRoads Traffic Noise Reduction Policy, 2005* to the satisfaction of, and at no cost to, the Head, Transport for Victoria.

## 5.0 Exemption from notice and review

27/02/2025
C274card

None specified

## 6.0 Decision guidelines

27/02/2025
C274card

The following decision guidelines apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

#### Traffic and transport impacts

Before deciding on an application under this schedule the responsible authority must consider as appropriate:

- How the application responds to the traffic and transport impacts identified in the Traffic Impact Assessment submitted with the application.

#### Local town centre

Before deciding on an application to create floorspace in excess of any cap in a local town centre, in addition to the decision guidelines at Clause 37.07-14 and Clause 65, the responsible authority must consider, as appropriate:

- The local catchment and Officer South (Employment) Precinct Structure Plan catchment demand for the additional floor area; and
- The effect on existing and future town centres within Cardinia Shire Council.

### Acoustic attenuation

Before deciding on an application under this schedule the responsible authority must consider, as appropriate:

- If Accommodation, Hospital or Education centre (other than Tertiary institution and Employment training centre) is proposed, whether the proposal minimises the impact on human health and amenity from noise exposure near the transport system and other noise emission sources having regard to:
  - whether the impact of potential noise sources have been mitigated through siting, orientation design, layout, and location and whether this reduces the need for acoustic treatment of buildings or compromises the useability of the building by its occupant;
  - any building façade treatments that are required to mitigate noise impacts; and
  - any relevant recommendations of an Acoustic Assessment Report for the application.

### Affordable housing

Before deciding on an application to develop or subdivide land for dwellings, the responsible authority must consider, as appropriate:

- Whether the proposed subdivision application contributes towards the provision of affordable housing and social housing within the meaning of the Act.
- The Ministerial Notice under 3AA(2) of the Act, as amended from time to time.

### South East Water separation area

Before deciding on an application to use land within the South East Water ' separation area (180m)' on Plan 3 – Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan*, the responsible authority must consider, as appropriate

- Whether the proposed use may be affected by potential unintended odour impacts from the pump station; and
- The view of South East Water Ltd (or their successors).

### Princes Freeway service centre

Before deciding on an application to use land associated with the 'existing Freeway Service Centre site' on Plan 3 – Place Based Plan of the incorporated *Officer South (Employment) Precinct Structure Plan*, the responsible authority must consider as appropriate:

- The existing access to the Princes Freeway will terminate in accordance with the Department of Transport and Planning (Transport) terms of access agreement for the site.

## 7.0 Signs

27/02/2025
C274card

The advertising sign category for the land is the category specified in the zone applied to the land at Section 2.2 of this schedule.

## 37.08 ACTIVITY CENTRE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **ACZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage a mixture of uses and the intensive development of the activity centre:

- As a focus for business, shopping, working, housing, leisure, transport and community facilities.
- To support sustainable urban outcomes that maximise the use of infrastructure and public transport.

To deliver a diversity of housing at higher densities to make optimum use of the facilities and services.

To create through good urban design an attractive, pleasant, walkable, safe and stimulating environment.

To facilitate use and development of land in accordance with the Development Framework for the activity centre.

## 37.08-1 Operation

17/09/2009
VC59

A schedule to this zone comprises the Development Framework for the activity centre.

A schedule to this zone must contain:

- A framework plan for the activity centre.
- A statement of the activity centre land use and development objectives to be achieved.

A schedule to this zone may contain:

- Centre-wide provisions.
- Precinct provisions.

## 37.08-2 Table of uses

17/09/2009
VC59

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Any use in Section 1 of the schedule to this zone** | Must comply with any condition in Section 1 of the schedule to this zone. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any use in Section 2 of the schedule to this zone** | Must comply with any condition in Section 2 of the schedule to this zone. |

### Section 3 - Prohibited

| Use |
|---|
| **Any use in Section 3 of the schedule to this zone** |

## 37.08-3 Use of land

17/09/2009
VC59

Any requirement in the schedule to this zone must be met.

## 37.08-4 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Any requirement in the schedule to this zone must be met.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

## 37.08-5 Buildings and works

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works unless the schedule to this zone specifies otherwise.

An apartment development must meet the requirements of Clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 and the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10. | Clause 59.04 |

### Transitional provisions

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

## 37.08-6 Design and development

17/09/2009
VC59

A schedule to this zone may include requirements relating to:

- Building setbacks.
- Building height.
- Building materials.
- Access.
- Landscaping.
- Public realm.
- Any other requirements or guidelines relating to the design or built form of new development.

A permit may be granted to construct a building or construct or carry out works which is not in accordance with any design and development requirement in the schedule to this zone unless the schedule to this zone specifies otherwise.

## 37.08-7 Application requirements

14/01/2025
VC237

### Use

An application to use land must be accompanied by the following information, as appropriate:

- A description of the proposed use and the types of activities which will be carried out and any proposed staging of use and activities on the land.
- Plans drawn to scale and dimensioned which show:
  - The siting and use of buildings.
  - Areas not required for immediate use.
  - Adjacent buildings and uses.
- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access, glare, air-borne emissions and emissions to land and water.
- If an industry or warehouse:
  - The type and quantity of goods to be stored, processed or produced.

  - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
  - Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
- Any other information specified in the schedule to this zone.

### Subdivision

An application to subdivide land must be accompanied by the following information, as appropriate:

- Plans drawn to scale and dimensioned which show:
  - Site shape, size, dimensions and orientation.
  - The pattern of subdivision of the surrounding area.
  - Easements.
  - Location of drainage and other utilities.
  - Street frontage features such as poles, street trees and kerb crossovers.
  - Access points.
  - Any natural features.
- Any other information specified in the schedule to this zone.

### Buildings and works

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- Plans drawn to scale and dimensioned which show:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and use of buildings and works on adjoining land.
  - Levels of the site and the difference in levels between the site and surrounding properties to a defined point at the site boundaries or to Australian Height Datum (AHD).
  - Any contaminated soils and filled areas, where known.
  - The layout of existing and proposed buildings and works.
  - The internal layout and use of the proposed development.
  - All access and pedestrian areas.
  - All driveway, car parking and loading areas.
  - Existing vegetation and proposed landscape areas.
  - All external storage and waste treatment areas.
  - The location of easements and services.
- Elevation plans drawn to scale and dimensioned which show:
  - The building form and scale.

  - Setbacks to property boundaries.
  - Finished floor levels and building heights to a defined point at the site boundaries or to Australian Height Datum (AHD).
- Shadow diagrams based on the equinox shown for existing conditions and the proposed development.
- A schedule of finishes for the proposed development detailing materials and colours of external surfaces including walls, roofs and fences.
- A written statement providing an assessment of the proposal against the relevant sections of the Planning Policy Framework, Activity Centre Zone and any relevant overlays.
- An assessment of the characteristics of the area including:
  - Any environmental features such as vegetation, topography and significant views.
  - Street design and landscape.
  - The pattern of development.
  - Building form, scale and rhythm.
  - Architectural style, building details and materials.
  - Connection to the public realm.
  - Any significant noise, odour, fume and vibration sources to and/or from the development.
- A landscape plan which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscape area.
- Construction details of all drainage works, driveways, vehicle parking and loading areas.
- An urban context report and design response as required in Clause 58.01 for an application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development.
- Any other information specified in the schedule to this zone.

## 37.08-8 Exemption from notice and review

31/07/2018
VC148

An application under Clauses 37.08-2, 37.08-4, 37.08-5 or 37.08-6 is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act unless the schedule to this zone specifies otherwise.

A schedule to this zone may specify an application in respect of land in an Activity Centre Zone under any other specified provision of this scheme is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 37.08-9 Decision guidelines

08/09/2025
VC282

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The development framework plan set out in the schedule to this zone.
- The land use and development objectives set out in the schedule to this zone.

- The extent that the layout and design of the new use or development minimises the potential for off-site impacts, including from noise, fumes, odour or vibrations, ensuring that:
  - existing uses are not compromised by a new development, or
  - a new development is designed to address amenity impacts from existing uses.
- Any requirements set out in the schedule to this zone.
- Any other decision guidelines specified in the schedule to this zone.

**Access**

- Movements systems through and around the site including the movement of pedestrians and cyclists, and vehicles providing for supplies, waste removal, emergency services and public transport.
- The provision of car parking, loading of vehicles and access to parking spaces and loading bays.

**Use**

- The interim use of those parts of the land not required for the proposed use.
- Whether the use is compatible with adjoining and nearby land uses.

**Subdivision**

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of Clause 56.

**Design and built form**

- The design, scale, height, setback, appearance and material of the proposed buildings and works.
- The provision for solar access to the building and on the public realm.
- The design of the public realm.
- The relationship between the proposed building and the public realm.
- The streetscape, including the conservation of buildings, the design of verandas, access from the street front, provision of active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and the landscaping of land adjoining a road.
- The interface with adjoining zones, especially the relationship with residential zones.
- The objectives, standards and decision guidelines of Clause 54. Clause 55 and Clause 57. This does not apply to an apartment development.
- For an apartment development, the objectives, standards and decision guidelines of Clause 58.
- The storage of rubbish and materials for recycling.

**Transitional provisions**

The objectives, standards and decision guidelines of Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 37.08-10 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 1 unless a schedule to this zone specifies a different category.

## 37.08-11 Other provisions of the scheme

17/09/2009
VC59

The schedule to this zone may specify that other provisions of the scheme do not apply.

30/09/2021
C228card

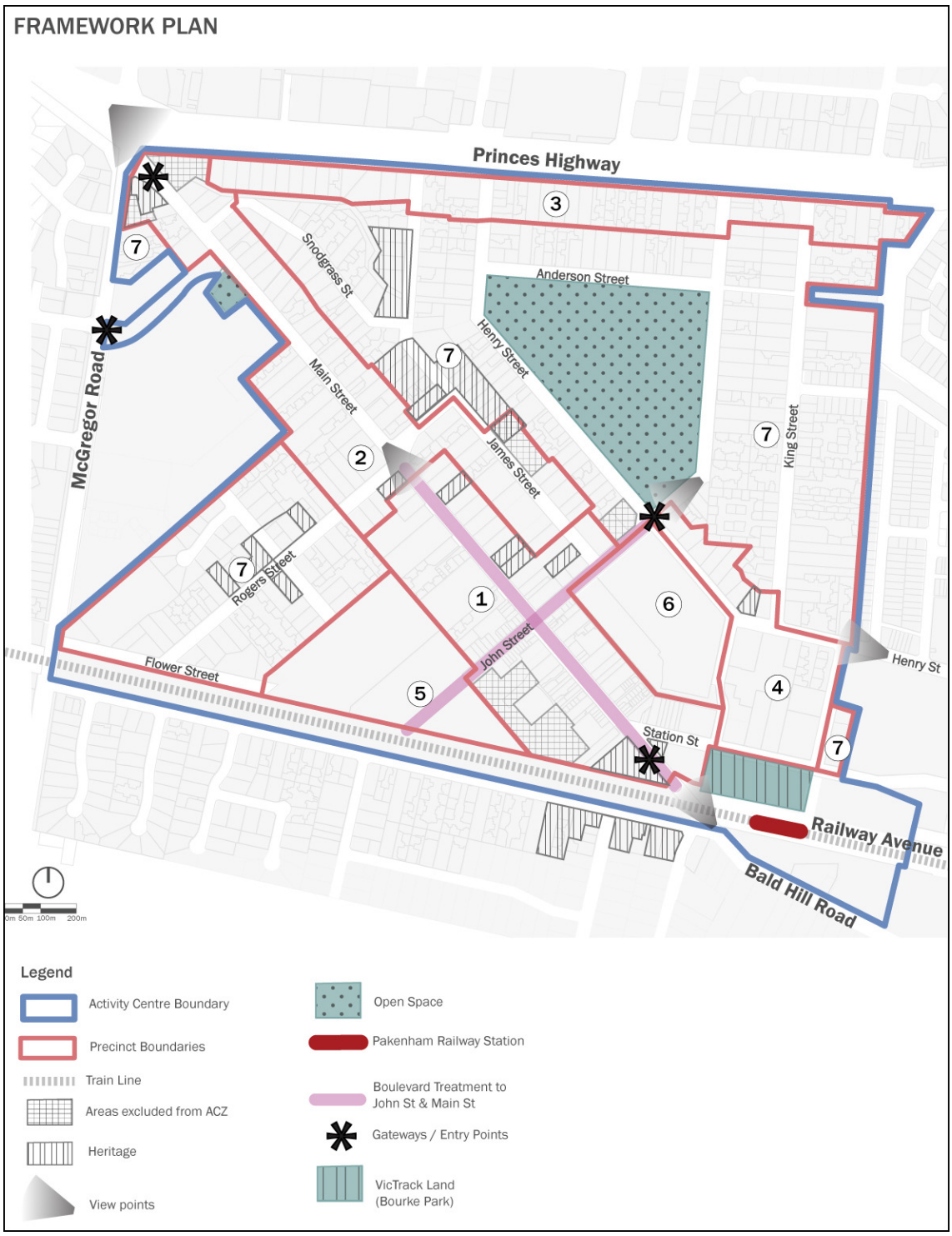
# SCHEDULE 1 TO CLAUSE 37.08 ACTIVITY CENTRE ZONE

Shown on the planning scheme map as **ACZ1**.

## PAKENHAM MAJOR ACTIVITY CENTRE

## 1.0 Pakenham Major Activity Centre Framework Plan

30/09/2021
C228card




## 2.0 Land use and development objectives to be achieved

30/09/2021
C228card

### Activities and land use

- Support and ensure the provision of diverse well-designed housing that caters to all members of the community.

- Reinforce the Pakenham Major Activity Centre's role as a regional hub promoting and encouraging a diverse and compatible mix of land uses that includes retail, commercial, residential as well as civic and community services.
- Provide appropriate transitions and interfaces between different land use and development including surrounding residential, heritage or significant sites.
- Protect and restore the built heritage of the activity centre through the conservation, reuse and restoration of heritage buildings.
- Encourage the co-location or centralisation of community services to support the needs of the local and regional area.
- Facilitate consolidation of land to create viable development sites for the activity centre.

**Transport and movement**

- Ensure safe and convenient vehicle, pedestrian and cycle networks that facilitates movement through and to the activity centre.
- Encourage active transport on streets, within car parking areas and arcades, in open space and along the creek network.
- Provide a clear, efficient and logical vehicle network and ensure access to convenient and safe car parking in the activity centre.

**Public realm**

- Create a safe and high-quality cohesive open space network that provides opportunities for a range of activities and users, and assists in creating a sense of place for the activity centre.
- Ensure a network of attractive, safe and accessible streets that cater for and enhance the different activities and land uses within the activity centre.
- Promote human scale and pedestrian focused streets to encourage a vibrant and lively public realm in the retail core, including evening activities.
- Create a sense of arrival to the activity centre at identified key gateway sites through the provision of high quality landscape and/or architectural treatments.

**Built form and environment**

- Develop a well-integrated built form and neighbourhood character which respects and responds to local context, streetscape character, landscape values, historical and significant developments.
- Ensure contemporary architecture of any new development responds to any adjoining heritage places and precincts and provides appropriate interfaces.
- Ensure all development within the activity centre provides high quality innovative design consistent with the principles of environmentally sustainable design reducing climate change impacts.
- Reinforce and enhance the 'fine grain' built form pattern established within the retail core of the activity centre.
- Provide built form elements that contribute to the pedestrian amenity of users in the retail core of the activity centre.
- Ensure ground floor facades addressing a street or any other public realm space are activated and provide passive surveillance of the public realm.
- Create an urban pattern that establishes an appropriate transition between the core retail, commercial and mixed development areas, and the residential areas within the activity centre.
- Ensure development and public realm are accessible for persons of all abilities and incorporate the principles of Crime Prevention Through Environmental Design (CPTED).

## 3.0 Table of uses

06/08/2026
C283card

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Child care centre** | Must be located in Precincts 1 or 4.<br>Any frontage at ground floor level must not exceed 2 metres, except entry foyers which must not exceed 4 metres. Access must not be shared with a dwelling (other than a caretaker's house). |
| **Cinema** | Must be located in Precincts 1, 4 or 5.<br>Any frontage must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers which must not exceed 4 metres. |
| **Convenience shop** | Must be located at ground level.<br>In Precincts 3 or 7:<br>▪ Must be located within 100 metres of land in precincts 1, 2, 4, 5 or 6 of the Activity Centre Zone and must adjoin, or have access to a road in a Transport Zone 2 or a Transport Zone 3.<br>▪ The leasable floor area for each tenancy must not exceed 100 square metres. |
| **Dwelling** | Must be located in Precincts 1, 2, 3, 4 or 7.<br>In Precincts 1 or 4:<br>▪ Any frontage must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers which must not exceed 4 metres. |
| **Dependent persons unit** | Must be located in Precincts 2, 3, or 7. |
| **Domestic animal husbandry** | Must be no more than 2 animals. |
| **Education centre (other than Child care centre)** | Must be located in Precinct 4. |
| **Food and drink premises (other than Hotel and Bar)** | In Precincts 3 or 7:<br>▪ Must be located within 100 metres of land in precincts 1, 2, 4, 5 or 6 of the Activity Centre Zone and must adjoin, or have access to a road in a Transport Zone 2 or a Transport Zone 3.<br>▪ The leasable floor area for each tenancy must not exceed 100 square metres. |
| **Home based business** | |
| **Indoor recreation facility** | Must be located in Precincts 1, 5 or 6.<br>Any frontage must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers which must not exceed 4 metres. |

| Use | Condition |
|---|---|
| **Medical Centre** | Must be located in Precinct 2, 3 or 4.<br>The gross floor area of each tenancy must not exceed 250 square metres. |
| **Office (other than Medical centre)** | Must be located in Precincts 1, 2, 3, 4, 5 or 6.<br>In Precinct 1 or 6:<br>▪ Any frontage must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers or unless the office is a bank, real estate agency, travel agency. |
| **Postal agency** | Must be located in Precincts 1 or 4. |
| **Residential aged care facility** | Must be in Precinct 3. |
| **Railway** | |
| **Shop (other than Adult sex product shop, Convenience shop and Restricted retail premise)** | Must be located in Precincts 1, 2, 4, 5 or 6. |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Dwelling, Dependent persons unit, Host farm, Corrective institution, Camping and caravan park and Residential aged care facility)** | Any frontage in Precincts 1 or 4 must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers which must not exceed 4 metres. |
| **Adult sex product shop** | Must be located in Precincts 1, 4, 5 and 6.<br>Must be at least 200 metres measured by the shortest public pedestrian access route from Precinct 3 or 7, a residential zone, land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Bar** | Must be located in Precinct 1 or 4. |
| **Child care centre - if the Section 1 condition is not met** | Must be located in Precincts 2, 3 or 7.<br>The site must adjoin, have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Cinema – if the Section 1 condition is not met** | Must be located in Precinct 6.<br>Any frontage must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers which must not exceed 4 metres. |
| **Commercial display area** | Must be located in Precinct 4. |

| Use | Condition |
|---|---|
| | Must be in conjunction with a use in Section 1 or 2. |
| **Convenience shop – if the Section 1 condition is not met** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Dwelling – if the Section 1 condition is not met** | In Precincts 5 or 6, must not be located at ground level. |
| **Dependent persons unit– if the Section 1 condition is not met** | In Precincts 1 or 4 must not be located along street frontages. |
| **Domestic animal husbandry – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Indoor recreation facility– if the Section 1 condition is not met** | Must be located in Precinct 2 or 4.<br>In Precinct 4:<br>▪ Any frontage must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers which must not exceed 4 metres. |
| **Industry (other than Materials recycling, Refuse disposal, Rural industry or Transfer station)** | Must be located in Precincts 1, 4, 5 or 6.<br>Must not be a use specified in Clause 53.10.<br>In Precinct 1 or 4:<br>▪ Must be in conjunction with a use in Section 1 or 2. |
| **Mail centre** | Must be located in Precinct 4.<br>Must be in conjunction with a use in Section 1 or 2. |
| **Medical Centre – if the Section 1 condition is not met** | Must be located in Precinct 1, 2, 3 or 4.<br>In Precinct 1: any frontage must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers which must not exceed 4 metres.<br>In Precinct 3: the gross floor area of each tenancy must not exceed 250 square metres. |
| **Nightclub** | Must be in Precinct 1. |
| **Office (other than Medical centre) – if the Section 1 condition is not met** | In Precinct 7:<br>▪ The land must be located within 100 metres of an adjoining precinct of the Activity Centre Zone.<br>▪ The leasable floor area for each tenancy must not exceed 100 square metres. |
| **Place of assembly (other than Cinema, Nightclub and Place of worship)** | Must be located in Precincts 3, 4 or 7.<br>The site must adjoin, have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Place of worship** | Must be located in Precincts 2, 3 or 7.<br>The gross floor area of all buildings associated with the use must not exceed 250 square metres. |

| Use | Condition |
|---|---|
| | The site must adjoin, have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Restricted recreation facility** | Must be located in Precinct 1, 2, 3, 5 or 6.<br>In Precinct 1: any frontage must not exceed 2 metres located at ground floor level along street frontages, except for entry foyers which must not exceed 4 metres. |
| **Restricted retail premises** | Must be located in Precinct 1, 4, 5 or 6.<br>The gross floor area of each tenancy must not exceed 1000 square metres. |
| **Residential aged care facility – if the Section 1 condition is not met** | Must be located in Precinct 2 or 7. |
| **Retail premises (other than Adult sex product shop, Convenience shop, Food and drink premises, Restricted retail premises or Shop)** | |
| **Shop (other than Adult sex product shop, Convenience shop or Restricted retail premises) – if the Section 1 condition is not met** | In Precinct 7:<br>▪ The land must be located within 100 metres of land in adjoining precincts 1, 2, 4, 5 or 6 in this Schedule 1 to the Activity Centre Zone. |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Agriculture (other than Domestic animal husbandry)** |
| **Camping and caravan park** |
| **Corrective institution** |
| **Drive-in theatre** |
| **Earth and energy resources industry** |
| **Host farm** |
| **Leisure and recreation (other than Indoor recreation facility, Informal outdoor recreation and Restricted recreation facility)** |
| **Materials Recycling** |
| **Refuse disposal** |
| **Rural Industry** |
| **Saleyard** |
| **Service Station** |
| **Transfer station (other than Automated collection point)** |
| **Transport terminal (other than Rail station or Bus terminal)** |
| **Warehouse (other than a Commercial display area or Mail Centre)** |

## 4.0 Centre-wide provisions

30/09/2021
C228card

## 4.1 Use of land

30/09/2021
C228card

A permit is not required to use land for public purposes providing the use is carried out by, or on behalf of, the public land manager.

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any building, works or materials.
- Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, wate water, waste products, grit or oil.

## 4.2 Subdivision

30/09/2021
C228card

An application to subdivide residential land, other than an application to subdivide land into lots each containing an existing dwelling or car parking spaces, must meet the requirements of Clause 56.

## 4.3 Buildings and works

30/09/2021
C228card

### Permit Exemptions

No permit is required to construct a building or construct or carry out works for the following:

- The installation of an automatic teller machine.
- The alteration to an existing building façade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 70 per cent of the building façade at ground floor level is maintained as an entry or window with clear glazing.
- Construct a building or carry out works for the purpose of public utility and community facilities or any associated use that is consistent with the intent of the public land reservation or purpose as it carried out by, or on behalf of, the public land manager.
- Construct or extend one dwelling on a lot more than 300 square metres. This exemption does not apply to:
  - Construct a dwelling if there is at least one dwelling existing on the lot.
  - Extend a dwelling if there are two or more dwellings on a lot.
  - Construct or extend a dwelling if it is on common property.
- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot, provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with:
  - one dwelling on a lot less than 300 square metres, or
  - two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in Clause 54.06-2 and Clause 55.06-2.

## 4.4 Design and development

30/09/2021
C228card

The following design and development requirements apply to an application to construct a building or construct and carry out works:

### Dwelling requirements

- A development must meet the requirements of Clause 54 if it proposes to:
  - Construct or extend one dwelling; or
  - Construct or extend a front fence within 3 metres of a street if the fence exceeds the maximum height of specified in Clause 54.06-2
- A development must meet the requirements of Clause 55, except Clause 55.07-1 to 55.07-15 (inclusive), if it proposes to:
  - Construct a dwelling if there is at least one dwelling existing on the lot.
  - Construct two or more dwellings on a lot.
  - Extend a dwelling if there are two or more dwellings on the lot.
  - Construct or extend a dwelling if it is on common property.
  - Construct or extend a residential building.
  - Construct or extend a front fence within 3 metres of street if:
    - The fence is associated with 2 or more dwellings on a lot or residential building; and
    - The fence exceeds the maximum height specified in Clause 55.06-2.

  Clause 55 does not apply to an application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development.

### Commercial and mixed use requirements and guidelines

- Buildings should be designed to address street frontages and respond to their urban context by:
  - Addressing roads and public spaces for passive surveillance, and minimise overlooking of private spaces.
  - Providing visual interest and avoid blank walls.
  - Minimise casting shadows on public space and open space.
- Buildings with ground-level frontages to streets, pedestrian areas and/or passive open spaces should contribute to the appearance and function of these areas by providing:
  - At least 70% of the street frontage as transparent entries or display windows.
  - Clear glazing (tinted, or obscured glazing should not be used) with any security screens open in design and located behind glass in windows.
  - The provision of awnings / all-weather protection canopies over footpaths (extending at least 2.5 metres from the building façade) unless it is demonstrated that due to particular circumstances this distance can not be achieved or there is not a requirement for this element.
  - Direct access from the footpath to ground level premises with minimal change of level and is universally accessible.
  - Floor to ceiling heights at ground level of a minimum of 3.5 metres to accommodate changes of use over time.

- Ground floor level car parking areas should be located at the rear of buildings or sleeved behind built form at street frontages; otherwise car parks should be located above ground level active uses or below ground level as basement or semi-basement parking areas.
- Crossovers providing vehicle access to sites should be designed to minimise their impact on ground level street frontages and pedestrian movement.
- Large format developments and uses should be sleeved by smaller retail and commercial uses which present fine grain activated frontages to the street.
- Buildings should be designed to respond to the solar orientation of the site.
- New buildings adjoining a residential property or Precinct 7 not on or within 200mm of a boundary should be set back from side or rear boundaries:
  - At least 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre of height over 6.9 metres.
- New buildings adjoining a residential property or Precinct 7 should respect the existing or preferred urban context and respond to the features of the site. Buildings should be set back from side and rear boundaries, and other buildings within the site to:
  - Ensure adequate daylight into new habitable room windows.
  - Ensure that where sunlight to the secluded private open space of an existing dwelling is reduced, at least 75 per cent, or 40 square metres with minimum dimension of 3 metres, whichever is the lesser area, of the secluded private open space should receive a minimum of five hours of sunlight between 9 am and 3 pm on 22 September.
    If existing sunlight to the secluded private open space of an existing dwelling is less than this requirement, the amount of sunlight should not be further reduced.
  - Avoid direct views into habitable room windows and private open space of new and existing dwellings. Developments should avoid relying on screening to reduce views.
  - Provide an outlook from dwellings that creates a reasonable visual connection to the external environment.

**Heritage guidelines**

New buildings on sites containing heritage buildings or sites adjoining heritage sites should be designed to:

- be visually recessive and not visually dominate the heritage building and the heritage streetscape.
- respond sympathetically by transitioning heights and minimise massing.
- retain the primacy of the three-dimensional form of the heritage building as viewed from the public realm to avoid ‘facadism’.
- incorporate simple architectural detailing that does not detract from significant elements of the heritage building and the heritage streetscape.

**Building height requirements**

Preferred building heights are specified for each precinct in section 5.0 of this Schedule.

**Building height guidelines**

Buildings and works which exceed a height of 14 metres should:

- Be environmentally sustainable.
- Reduce visual impact by transitioning height to adjoining properties, public realm and streetscape.
- Provide a maximum Street Wall Height of 15 metres.

- Setback the upper levels of buildings.
- Provide sufficient solar penetration throughout the development.
- Not adversely impact key public spaces, pedestrian routes and adjoining properties with overshadowing as measured on 21 March/September (Equinox) between 10.30am and 2.00pm.

A development with a height of 14 metres or less on a site large enough to accommodate a substantially taller development should be constructed to structurally accommodate a taller building in the future.

The building height guidelines do not apply to service equipment including plant rooms, lift overruns, solar collectors and other such equipment provided the following criteria are met:

- No more than 50% of the roof area is occupied by the equipment.
- The equipment is located in a position on the roof so as to minimise additional overshadowing of neighbouring properties and public spaces.
- The equipment is designed, screened and finished in a non-reflective material and of a colour to the satisfaction of the responsible authority.

**Building setback requirements**

Preferred setbacks for new development are specified for each precinct in section 5.0 of this Schedule.

**Building setback guidelines**

Buildings and works such as balconies, verandahs, architectural features, sunshades, screens and artworks may be constructed within setback areas, and should not encroach more than 2 metres within the preferred setback areas.

Buildings and works which exceed the preferred maximum building height should be designed so the upper levels cannot be seen from the street.

**Landscape design guidelines**

Landscape elements and treatments should:

- Be provided within the front and side setbacks, and along the rear boundary on multi-level apartment and townhouse developments.
- Be provided within the front setbacks, the streetscape and public open space areas that are accessible, safe, attractive and functional.
- Allow for passive surveillance.
- Provide screening of driveways and car parks.

**Environmentally Sustainable Design (ESD) guidelines**

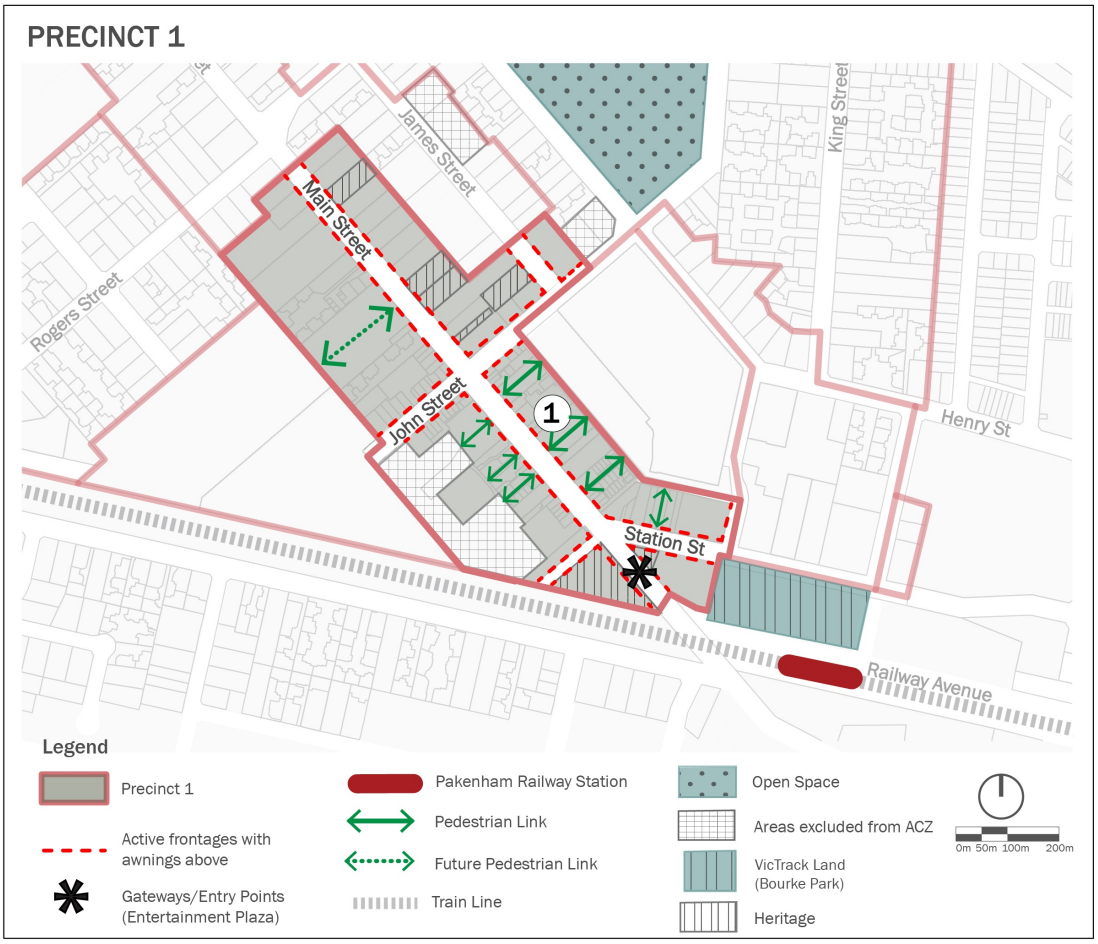
Developments should incorporate best practice environmentally sustainable design (ESD), including water sensitive urban design (WSUD), thermal performance, energy efficiency, stormwater management, facilitating active transport and materials.

# 5.0 Precinct provisions

30/09/2021
C228card

## 5.1 Precinct 1 – Core Retail

### 5.1-1 Precinct map




### 5.1-2 Precinct objectives

- Create a pedestrian focused and prioritised Entertainment Plaza in the south east corner of the precinct which provides outdoor dining, civic facilities and space for community activities/festivals.
- Reinforce the character of the precinct by encouraging active frontages with fine grain built form.
- Create attractive streetscapes on main thoroughfares that enhance and create a sense of place for the precinct.

- Facilitate the re-development of the pedestrian links including arcades located along Main Street, which enhances and activates access to and from the retail core.
- Facilitate activation of the street in the evening by encouraging outdoor dining areas and active uses throughout the precinct.

### 5.1-3 Precinct requirements

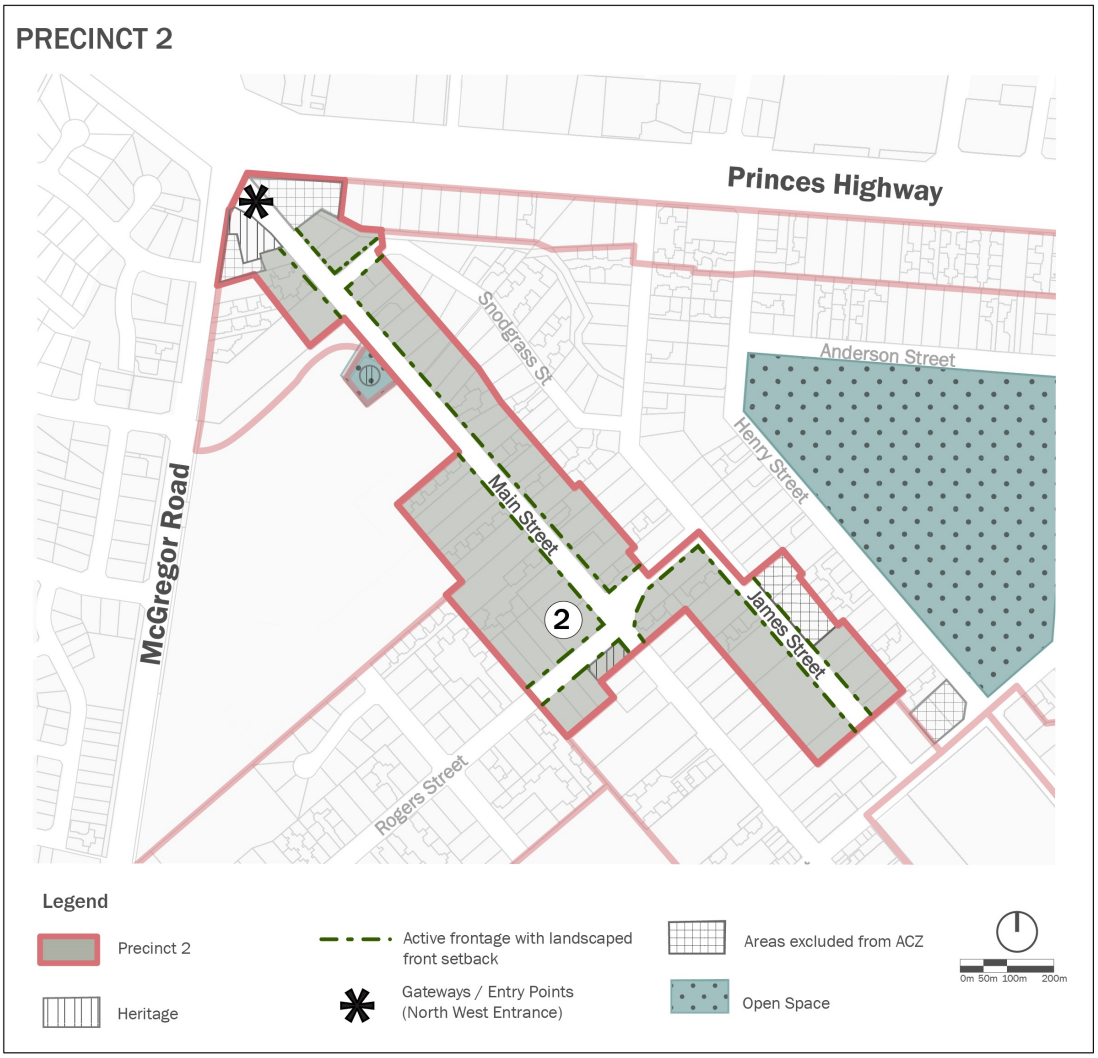
| Preferred building height | Preferred building setbacks |
|---|---|
| None specified | 0 metre front setback<br>0 metre setback from the road reserve of any adjoining street or laneway |

### 5.1-4 Precinct guidelines

- Provide effective weather protection through a continuous canopy treatment along building frontages.
- Main entrances for developments and uses located on John and Main Streets should address the street.
- Uses in upper storeys should be compatible with the ground floor uses.
- Uses and developments should provide passive surveillance that supports safe linkages throughout the activity centre.
- Development should provide visually permeable treatments along facades fronting streets, laneways and/or arcades.
- Development should provide strong built form that integrates and overlooks the gateway sites.
- Building heights in the retail core are measured from ground level and should reflect a typical height of 3.5 metres between levels.
- Development adjoining heritage is to continue the fine grained character and provide transition of setbacks from boundary and height from heritage sites.
- Development on land within a heritage overlay and on land immediately adjoining a heritage building on Main Street, Pakenham to consider the context of the nil metre front setback with regards to design which reduces visually dominant massing.
- Larger format retail uses should be sleeved with fine grain built form which addresses the street.
- Provide pedestrian access from the street and avoid creating any internalised malls.
- Locate entrance foyers to upper storeys which are accessible from the street.
- Commercial and mixed use development on Main Street to provide zero side boundary setback and no windows, where appropriate.
- Ensure development addresses all street frontages and the rear boundary, where appropriate.

## 5.2 Precinct 2 – West Commercial and Mixed Use

### 5.2-1 Precinct map




### 5.2-2 Precinct objectives

- Provide mixed use, community, commercial and residential opportunities within the precinct.
- Encourage retail premises at ground floor level which activates the street, office uses in upper levels and the rear of the development, and residential uses located within the upper levels of the development.
- Improve pedestrian amenity by contributing to the establishment of attractive streetscapes for all streets in the precinct.

- Improve the interface with Main Street by encouraging the redevelopment of sites and/or adaptive reuse of existing buildings, including the preservation and protection of heritage places and precincts to activate the streetscape.
- Development that interfaces with a gateway site should support and contribute to the enhancement of the public realm and reinforce the entrance to Pakenham Major Activity Centre.

### 5.2-3 Precinct requirements

| Preferred building height | Preferred building setbacks |
|---|---|
| None specified | 2 metre front setback |

### 5.2-4 Precinct guidelines

- Development should address and interface with all streets by providing active frontages including entrance canopys to the street.
- Developments should provide sympathetic interface treatments and articulation to any adjoining residential precincts and heritage places or precincts.
- Development should consolidate lots to achieve a range of mixed use developments.
- Developments should provide a transition between the retail uses and commercial uses whilst being sympathetic to the current streetscape character.
- Development should provide passive surveillance of the street.
- Buildings should respond appropriately to heritage elements and the landscape.
- Development should provide strong built form that integrates with gateway sites.
- Developments should provide highly activated frontages with windows and entrances as the predominant elements of the ground floor façade.
- Balcony’s and living areas of any residential component of a development is to address the public realm that adjoins the site.
- Development on land within a heritage overlay and on land immediately adjoining a heritage building on Main Street, Pakenham to consider the context of the 2 metre setback with regards to design which reduces visually dominant massing.

## 5.3 Precinct 3 – Princes Highway

### 5.3-1 Precinct map

### 5.3-2 Precinct objectives

- Encourage complementary residential uses such as including aged care, medical and health-related services, child care and offices.
- Encourage a mix of residential types within the precinct to transition from a traditional residential development to higher density.
- Encourage the consolidation of sites to facilitate a broader range of medium and higher density residential developments.
- Encourage non-residential uses in mixed use developments.
- Establishes a built form that is responsive, in terms of scale and orientation, to its interface with a major transport corridor and the urban structure of adjoining precincts of the activity centre.

### 5.3-3 Precinct requirements

| Preferred building height | Preferred building setbacks |
|---|---|
| 13.5 metres | 4 metres front setback |

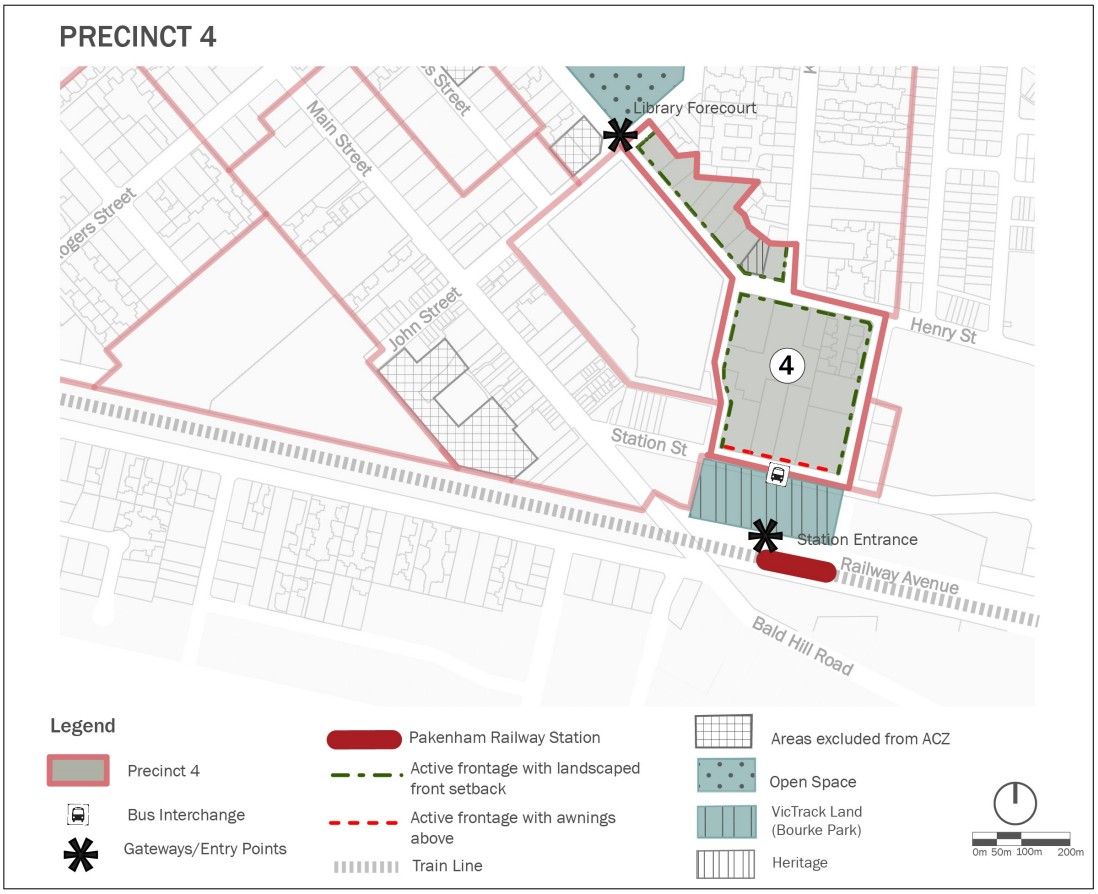
### 5.3-4 Precinct guidelines

- Buildings and works should not exceed a height of 13.5 metres.
- On-site parking should not be provided in the front setback.
- New commercial uses should be compatible with nearby residential development.

- Development should be sympathetic to the scale of adjoining residential areas through urban design, screening, articulation, and built form responses.
- Buildings should address the street with entrances clearly visible from the street and upper storey elements providing passive surveillance to the street.
- Screen car parking areas and all loading and all other service areas from the public realm.
- Entrances to developments should address the street.
- Developments with non-residential uses at ground floor level to provide activated frontages with windows and entrances as the predominant features.

## 5.4 Precinct 4 – East Commercial and Mixed Use

### 5.4-1 Precinct map




### 5.4-2 Precinct objectives

- Provide employment opportunities that maximise the precinct's proximity to public transport, the core retail area and community facilities.
- Encourage the consolidation of sites for commercial development and entertainment activities to facilitate a broader range of medium and higher density mixed use developments.
- Ensure development and built form innovatively and appropriately responds to flooding extents on Station Street.

- Ensure street frontages and land uses activate the precinct and provide passive surveillance of public open space and the public realm.
- Ensure street amenity and access priorities pedestrian movements by minimising vehicle crossovers around the perimeter of the precinct.

### 5.4-3 Precinct requirements

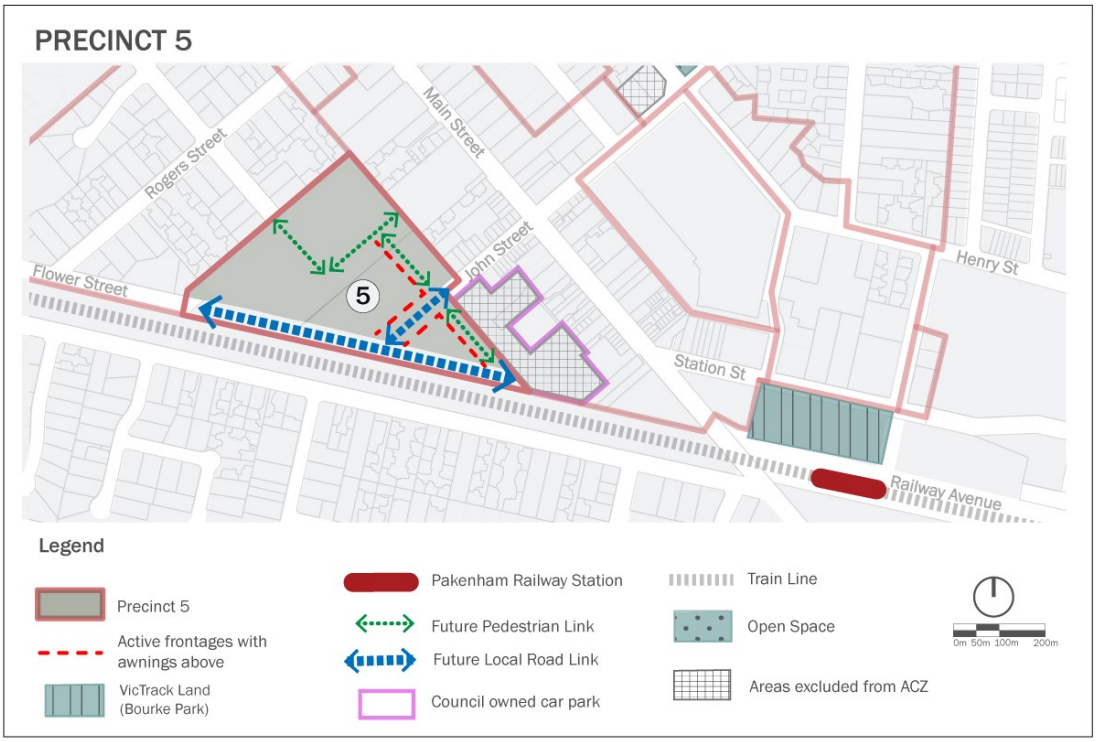
| Preferred building height | Preferred building setbacks |
|---|---|
| None specified | Minimum 2 metres front setback<br>0 metres front setback from Station Street |

### 5.4-4 Precinct guidelines

- Development to provide visually permeable frontages at ground floor level addressing the street.
- Development to provide active frontages and weather protection through a continuous canopy treatment along building frontages on Station Street.
- Developments to provide a scale that is responsive to any sensitive uses or precinct boundary that adjoins the site.
- Car parking is to be located at the rear of the development and is to be sleeved by built form.
- Developments to provide a range of fine grain commercial uses at ground floor level with residential and office uses above.
- Larger retail and commercial developments to provide active uses and fine grain retail that address the street and sleeves the larger format use.
- Developments fronting Slattery Place, Cook Drive, and Henry Street to provide a landscaped setback.
- Developments should provide highly activated frontages with windows and entrances as the predominant elements of the ground floor façade.
- Balconies and living areas of any residential component of a development is to address the public realm that adjoins the site.
- Locate entrances to the upper storeys in the primary street façade or a façade interfacing with a public realm space.

## 5.5 Precinct 5 – Pakenham Place - Key Development Site

### 5.5-1 Precinct map




### 5.5-2 Precinct objectives

- Create a shopping street typology that supports anchor and specialty retail functions of the precinct.
- Encourage an appropriate range of retail, entertainment and commercial facilities.
- Create an interconnected precinct with passive surveillance, interactive uses, increased pedestrian linkages and active frontages that address streets.
- Create a strong pedestrian and cycle environment within the precinct, particularly along Wadsley Avenue and to and from Council owned car parks.
- Provide new local road connections by extending Flower Street to Drake Place and John Street to Flower Street.

### 5.5-3 Precinct requirements

| Preferred building height | Preferred building setbacks |
|---|---|
| None specified | 0 metres front setback |

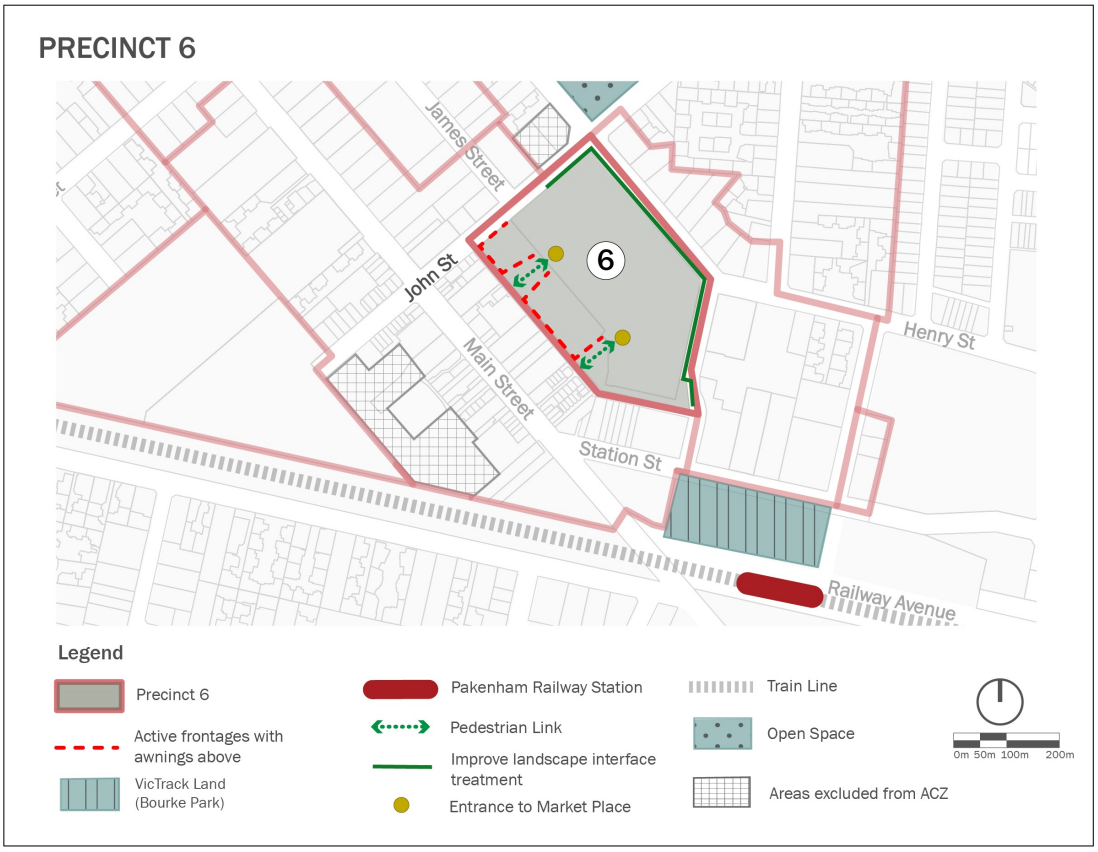
### 5.5-4 Precinct guidelines

- Ensure the redevelopment of the precinct has minimal impact on the amenity of the surrounding residential areas.
- Redevelopment of this precinct should provide activated frontages along John Street, and Drake Place.

- Development interfacing with the Flower Street future local road link to provide intermittent breaks within the building design to prevent a long stretch of loading bays and/or blank walls.
- Limit any expanse of blank wall in a ground floor façade to a maximum width of 2 metres.
- Provide well-designed, landscaped and pedestrian dominated car parking located to the rear of the development.
- Any new development to sleeve larger format retail by continuing the fine grain and general built form of the existing shops in the core retail area at ground floor level.
- Larger format retail use is to avoid creating internalised malls.
- Entrance foyers to upper storeys to be accessible from the street.
- Provide continuous weather protection canopy along the ground floor facades.
- Ensure pedestrian connections from the development to the Council owned car parks.

## 5.6 Precinct 6 – Marketplace

### 5.6-1 Precinct map




### 5.6-2 Precinct objectives

- Provide for the expansion of the development providing comprehensive retail and commercial uses.
- Support the redevelopment of the Council owned car park as a multi-deck car park and commercial development.

- Improve pedestrian connections from Pakenham Central Marketplace to Main Street via the laneway and arcade network.
- Encourage retail and commercial uses at ground floor level that do not conflict with the core retail area.
- Encourage improved interfaces and pedestrian connectivity to the adjacent residential areas.

### 5.6-3 Precinct requirements

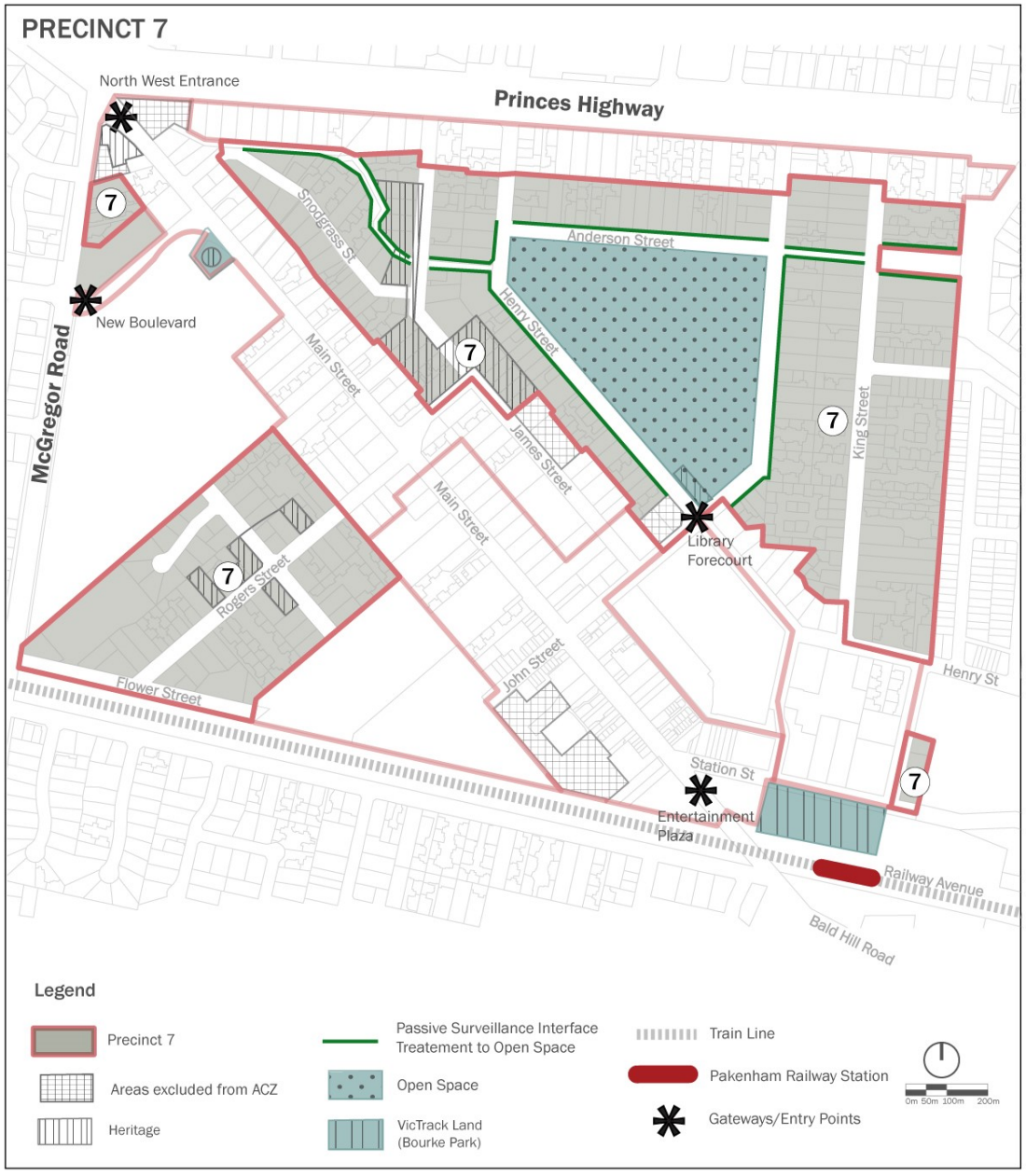
| Preferred building height | Preferred building setbacks |
|---|---|
| None specified | 0 metres front setback |

### 5.6-4 Precinct guidelines

- New development should consider multi-level car parking and commercial development to be located adjacent to Treloar Lane.
- Retail and commercial floor spaces should be located on the ground floor of the site.
- Pedestrian connections should connect with the laneway and arcade network through to Main Street and John Street.
- Future development should provide clear pedestrian sightlines to Main Street, John Street and Treloar Lane.
- Locate entrances to upper storeys accessible from the street.
- Any new development should be sympathetic to the scale of the surrounding residential neighbourhood and height is to be stepped down to adjoining residential areas
- Development is to maximise the extent of building frontages addressing streets and laneways presenting highly activated frontages.
- Any redevelopment of the Pakenham Central Marketplace Shopping Centre or Council owned car parks should include streetscape improvements and activation of the existing building treatments to Henry Street, John Street and Treloar Lane.
- Provide a continuous weather protection canopy above the full length of all ground floor facades with an interface to a street and are to extend out over the footpath a minimum of 2.5 metres.

## 5.7 Precinct 7 – Residential

### 5.7-1 Precinct map




### 5.7-2 Precinct objectives

- Achieve a higher density precinct predominately residential with mixed use components.
- Create a contemporary urban character which protects and preserves heritage places and precincts and is well integrated with the public realm and open space.
- Encourage high quality design of residential development which provides a transition in scale from the boundary of the retail core precinct of the activity centre to surrounding residential areas.

- Encourage lot consolidation for a focus on medium density development at a higher scale to the centre of the Activity Centre and lower scale to the boundary edge.
- Encourage residential areas adjoining open spaces to be designed with an active interface with passive surveillance of public spaces.

### 5.7-3 Precinct requirements

| Preferred building height | Preferred building setbacks |
|---|---|
| 13.5 metres | 4 metres front setback |

### 5.7-4 Precinct guidelines

- Buildings and works should not exceed a building height of 13.5 metres.
- Development should consist of medium density housing comprising a variety of housing types and layouts which responds to the evolving urban character of this precinct.
- Encourage lot consolidation to deliver increased housing densities close to the retail core of the activity centre.
- Developments should integrate with the Pakenham Creek and open space as key features.
- Buildings on corner sites to address the two street frontages and demonstrate built form that provides a sense of arrival to the activity centre.
- Development should provide landscaping in the front and rear setback.
- Development adjoining heritage properties or precincts to provide setbacks and height transition which respects the heritage character.
- Encourage the inclusion of verandas and/or balconies in the front set back to improve articulation and passive surveillance.

## 6.0 Application requirements

30/09/2021
C228card

In addition to the application requirements set out at Clause 37.08, and elsewhere in the scheme, the following must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Plans drawn to scale and dimensioned which show:
  - Illustrations of sight lines from balcony edges to demonstrate the extent of passive surveillance and overlooking.
  - Cross sections of the proposed building.
- A three-dimensional plan of the proposed development in the context of the surrounding development including:
  - Potential overshadowing impact of the development on open space, pedestrian routes, streetscape and habitable rooms of adjoining properties and within the proposed development; and
  - How the design minimises impacts and ensures maximum solar access internally for dwellings, to neighbouring properties and the public realm.
  - Potential impact of the development on the public realm adjacent to the proposal ensuring that overshadowing of major pedestrian routes, heritage sites, reserves and other public spaces is minimised.
- A Waste Management Plan.

- A Landscape Plan.
- A Construction Management Plan which sets out the principal construction issues and how the anticipated process will be managed.
- A certified access and inclusion report for applications for use or construction of a publicly accessible building confirming that the development complies with the *Disability Discrimination Act 1992*.
- An Environmentally Sustainable Design Report which outlines the ESD initiatives included within the proposal and address the ESD provisions in sub-section 4.4 of this Schedule.
- An application for subdivision must demonstrate that they support consolidation of lots and the objectives for Pakenham Major Activity Centre to facilitate the creation of viable development sites.
- An application for a development at 56-62 Station Street, Pakenham must include:
  - A preliminary risk screen assessment statement in accordance with the *Environment Protection Act 2017* stating that an environmental audit is not required for the proposed use, or;
  - An environmental audit statement under Part 8.3 of the *Environment Protection Act 2017* stating that the land is suitable for the proposed use.
- An application which does not meet the preferred building heights or design requirements set out in sub-section 4.4 and section 5.0 of this schedule must provide a Design Response and Urban Context Report that demonstrates how the built form transition, height, setbacks, massing, shadow diagrams and detail of the development achieves the relevant objectives, requirements and guidelines in this Schedule.
- A Heritage Report from a suitably qualified heritage consultant that assesses the impact of the application on a heritage place on the land or adjoining land which demonstrates built form transition of height, setbacks, massing and articulation.
- An application for a permit on public land by a person other than the relevant public land manager must be accompanied by the written consent of the public land manager, indicating that the public land manager consents generally or conditionally either:
  - To the application for permit being made and/or to the proposed use of development.

## 7.0 Notice and review

30/09/2021
C228card

An application to construct a building or carry out works is not exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act if:

- The application is in Precinct 3 or 7 and exceeds the precinct requirements including the preferred building heights or preferred building setbacks contained within section 5.0 of this schedule, or;
- The application is in Precinct 1, 2, 4, 5 or 6 and exceeds the preferred building setbacks contained within section 5.0 of this schedule, or;
- The application exceeds a height of 14 metres.

## 8.0 Decision guidelines

30/09/2021
C228card

The following decision guidelines apply to an application for a permit under Clause 37.08, in addition to those specified in Clause 37.08 and elsewhere in this scheme which must be considered, as appropriate, by the responsible authority:

### Use

Whether the proposal provides for:

- An appropriate scale of development in order to accommodate the mix and intensity of uses envisaged for each precinct.
- The compatibility of uses within a mixed use development.

### Environmental Audit

For land at 56-62 Station Street, Pakenham, the findings and recommendations of:

- A preliminary risk screen assessment statement in accordance with the *Environment Protection Act 2017*.
- An environmental audit statement under Part 8.3 of the *Environment Protection Act 2017*.

### Design and built form

Whether the proposed development:

- Creates a strong visual interest by providing building types based on innovative and current day architecture, urban design and environmentally sustainable development principles.
- Provides weather protection to adjoining key pedestrian footpaths or shared pathways, and main boulevards.
- Provides access points that minimise disruption to the continuity of the public realm and pedestrian routes.
- Provides car parking, loading and other service areas that is screened from view of the public realm or located at the rear of the site.
- Provides passive surveillance of the public realm.
- Achieves the preferred building height and setbacks having regard to lot size, dimensions (width and depth) and/or those sites within or adjoining the Heritage Overlay.
- Represents an underdevelopment of a site.
- Provides upper level setbacks when the preferred height is exceeded.
- Provides a sensitive interface with residential dwellings or Precinct 7 in relation to built form, overlooking and overshadowing.
- Reduces overlooking of adjacent property and uses minimal screening.
- Provides an increased upper level setback and transitional heights having regard to the heritage significance of the site or an adjoining site within the Heritage Overlay.
- Provides elements of Environmentally Sustainable Design.

### Subdivision

Whether the subdivision:

- Is associated with a development proposal that supports the objectives promoted by this schedule.
- Consolidates lots to support the medium density development objectives of this schedule.

### Transport and movement

Whether the proposed development:

- Integrates car parking requirements into the design of the buildings and land form by discouraging ground floor car parks seen at the street frontage.
- Provides vehicular access to buildings fronting key boulevards off side streets or via rear access.
- Limits the number of vehicle crossing to each development.

### Non-residential uses and development in Precinct 7

Whether:

- The use and/or development is compatible with residential use.
- The use generally serves local community needs.
- The impact on the amenity of nearby residential uses.
- The design, height, setback and appearance of the proposed buildings and works and its impact on the character of the surrounding area.
- The proposed landscaping.
- The proximity to a designated public transport route.
- The capacity of the road servicing the site and provision of car and bicycle parking and associated access ways.
- The proposed loading and refuse collecting facilities.
- The safety, efficiency and amenity effects of traffic to be generated by the proposal.
- The proposal will segregate a single dwelling or a collection of dwellings from the surrounding residential area.

## 9.0 Signs

30/09/2021
C228card

Sign requirements are at Clause 52.05. All land located within Precinct 7 and 3 is in Category 3. All other land is in Category 1.

## 10.0 Other provisions of the scheme

30/09/2021
C228card

None specified

## 11.0 Reference documents

30/09/2021
C228card

*Cardinia Shire Pakenham Major Activity Centre Structure Plan, 15 February 2021*

*Cardinia Shire Pakenham Major Activity Centre Urban Design Framework, 15 February 2021*

## 40 OVERLAYS

19/01/2006
VC37

This section sets out the overlays which apply in this scheme.

## 41 [NO CONTENT]

31/07/2018
VC148

# 42 ENVIRONMENTAL AND LANDSCAPE OVERLAYS

19/01/2006
VC37

# 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **ESO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas where the development of land may be affected by environmental constraints.

To ensure that development is compatible with identified environmental values.

## 42.01-1 Environmental significance and objectives

31/07/2018
VC148

A schedule to this overlay must contain:

- A statement of environmental significance.
- The environmental objectives to be achieved.

## 42.01-2 Permit requirement

16/10/2025
VC288

A permit is required to:

- Construct a building or construct or carry out works. This does not apply if a schedule to this overlay specifically states that a permit is not required.
- Construct a fence if specified in a schedule to this overlay.
- Construct bicycle pathways and trails.
- Subdivide land. This does not apply if a schedule to this overlay specifically states that a permit is not required.
- Remove, destroy or lop any vegetation, including dead vegetation. This does not apply:
  - If a schedule to this overlay specifically states that a permit is not required.
  - If the table to Clause 42.01-3 specifically states that a permit is not required.
  - To the removal, destruction or lopping of native vegetation in accordance with a native vegetation precinct plan specified in the schedule to Clause 52.16.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |

| Class of application | Provision |
|---|---|
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Construct a fence. | Clause 59.05 |
| Remove, destroy or lop one tree provided:<br>▪ A permit has not been granted for a VicSmart application to remove, destroy or lop a tree on the same land within the last 12 months.<br>▪ There is no other current VicSmart application to remove, destroy or lop a tree on the same land. | Clause 59.06 |
| Construct a building or construct or carry out works for:<br>▪ A carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ A rainwater tank.<br>The buildings and works must be associated with a dwelling or a small second dwelling. | Clause 59.05 |

## 42.01-3 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Emergency works** | Vegetation that is to be removed, destroyed or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning; |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ making or maintenance of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making of a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ is ground fuel within 30 metres of a building and is vegetation other than native vegetation;<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by, or on behalf of that authority in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Greenhouse gas sequestration and exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management or directions notice** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and mining** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Noxious weeds** | Vegetation that is a noxious weed subject of a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (*Cuscuta australis*). |
| **Pest animal burrows** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows.<br>In the case of native vegetation the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988* is required before the vegetation can be removed, destroyed or lopped. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Planted vegetation** | Vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |
| **Railways** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established vegetation, and is:<br>▪ bracken (Pteridium esculentum); or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land on which vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing public road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of vegetation which does not include a tree.<br>▪ 15 trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resources agreement under Part 6 of the *Traditional Owners Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional owners Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure. |

## 42.01-4 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 42.01-5 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and Planning Policy Framework.
- The statement of environmental significance and the environmental objective contained in a schedule to this overlay.
- The need to remove, destroy or lop vegetation to create a defendable space to reduce the risk of bushfire to life and property.
- Any other matters specified in a schedule to this overlay.

10/06/2021
C254card

# SCHEDULE 1 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO1**.

**NORTHERN HILLS**

## 1.0 Statement of environmental significance

10/06/2021
C254card

The hills to the northern part of the municipality (generally to the north of the Princes Highway) is an area with significant landscape and environmental values. The area is characterised by a geology of Devonian Granitic and Sulrian Sediment origin, moderate to steep slopes, and areas of remnant vegetation. These characteristics contribute to environmental values including landscape quality, water quality, and habitat of botanical and zoological significance. These characteristics are also a significant factor in terms of environmental hazards including erosion and fire risk.

The vegetation supports the ecological processes and biodiversity of this area by forming core habitat areas within a complex network of biolink wildlife corridors. Sites containing threatened flora and fauna are defined as being of botanical and zoological significance. Development within and around these sites need to be appropriately managed to ensure the long term protection, enhancement and sustainability of these ecological processes and the maintenance of biodiversity.

## 2.0 Environmental objective to be achieved

10/06/2021
C254card

To protect and enhance the significant environmental and landscape values in the northern hills area including the retention and enhancement of indigenous vegetation.

To ensure that the siting and design of buildings and works does not adversely impact on environmental values including the diverse and interesting landscape, areas of remnant vegetation, hollow bearing trees, habitat of botanical and zoological significance and water quality and quantity.

To ensure that the siting and design of buildings and works addresses environmental hazards including slope, erosion and fire risk, the protection of view lines and maintenance of vegetation as the predominant feature of the landscape.

To protect and enhance biolinks across the landscape and ensure that vegetation is suitable for maintaining the health of species, communities and ecological processes, including the prevention of the incremental loss of vegetation.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is not required to construct a building or construct or carry out works provided all of the following requirements are met:

- Building materials must be non-reflective or subdued colours which complement the environment to the satisfaction of the responsible authority.
- The height of any dwelling must not exceed 7 metres above natural ground level and the height of all other buildings must not exceed 4 metres above natural ground level.
- The works must not involve the excavation of land exceeding 1 metre or filling of land exceeding 1 metre and any disturbed area must be stabilised by engineering works or revegetation to prevent erosion.
- The slope of the land on which the buildings or works are undertaken must not exceed 20%.
- The buildings and works must not result in the removal or destruction of native vegetation (including trees, shrubs, herbs, sedges and grasses) within an area of botanical or zoological significance as shown on the mapped information provided by the Department of Sustainability and Environment, with the exception of Sweet Pittosporum (Pittosporum undulatum).
- If the building is an extension to an existing dwelling that is less than 50 percent of the floor area of the existing building.

- If the building is an outbuilding ancillary to a dwelling, the gross floor area of all outbuildings on the land must not exceed 120 square metres.
- If the building is in a Green Wedge or Rural Conservation Zone and is associated with the existing use of the land for the purposes of agriculture, the gross floor area of the building must not exceed 160 square metres.
- If a building envelope is registered on the plan of subdivision, any building must be located within the building envelope.

In addition to the exemptions under Clause 52.12 (Bushfire protection exemptions), a permit is not required to remove, destroy or lop any vegetation if:

- The vegetation is a tree overhanging the roof of a building used for Accomodation. This exemption only allows the removal, destruction, or lopping of that part of the tree which is overhanging the building and which is necessary for fire protection.
- The vegetation is dead as a result of natural circumstances or the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electricity, electronic communications or the like, provided that the removal, destruction or lopping is undertaken with the written consent of the responsible authority.
- It is necessary for maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.
- The vegetation is seedlings or regrowth less than 5 years old, the land has previously been lawfully cleared and the land is being maintained for cultivation or pasture.
- The vegetation is to be removed, destroyed or lopped by cutting only to obtain reasonable amounts of wood for personal use by the owner or occupier of the land. Personal use is wood used for firewood, the construction of fences on the same land and hobbies such as craft. This exemption does not apply to:
  - Standing living and dead trees with a trunk diameter of 40 centimetres of more at a height of 1.3 metres above natural ground level.
  - Living native vegetation on contiguous land in the same ownership with an area less than 10 hectares.
- It is the removal of any vegetation from an existing dam wall where the vegetation may impact on the structural stability of the dam wall.
- It is within 6 metres of an existing dwelling on a lot less than 0.4 hectares.
- It is necessary for the works associated with the normal operation of Puffing Billy Tourist Railway as defined in the Schedule to the Public Use Zone under Clause 36.01 of this Planning Scheme.
- The vegetation is to be pruned or lopped (but not removed) as part of normal domestic or horticultural practice for the species.
- The vegetation is an environmental weed contained in the table below; that is not listed under the Schedule to Clause 43.01 (Heritage Overlay) and there is no condition listed in the table:

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia baileyana* | Cootamundra Wattle | |
| *Acacia decurrens* | Early Black Wattle | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia elata* | Cedar Wattle | |
| *Acacia floribunda* | White Sallow Wattle | |
| *Acacia longifolia* | Coast/Sallow Wattle | |
| *Acacia saligna* | Golden Wreath Wattle | |
| *Acacia sophorae* | Coastal Wattle | |
| *Acer spp.* | Maple | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Agapanthus praecox orientalis* | African Lily | |
| *Allium triquetrum* | Angled Onion | |
| *Alstromeria aurea* | Peruvian Lily | |
| *Amaryllis belladonna* | Belladonna Lily | |
| *Anredera cordifolia* | Madeira vine | |
| *Anthoxanthum odoratum* | Sweet Vernal Grass | |
| *Arbutus unedo* | Strawberry Tree | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Arctotheca calendula* | Cape Weed | |
| *Asparagus asparagoides* | Bridal Creeper | |
| *Asparagus scandens* | Asparagus Fern | |
| *Berberis darwinii* | Darwin’s Berberry | |
| *Briza minor* | Shivery Grass | |
| *Briza maxima* | Quaking Grass | |
| *Buddleia variabilis* | Butterfly Bush | |
| *Calicotome spinosa* | Spiny broom | |
| *Castanea spp.* | Chestnut | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cestrum elegans* | Red Cestrum | |
| *Chamaecytisus palmensis* | Tree Lucerne | |
| *Chrysanthemoides monilifera* | Boneseed | |
| *Chrysanthemum maximum* | Shasta Daisy | |
| *Cirsium vulgare* | Spear thistle | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Conium maculatum* | Hemlock | |
| *Convolvulus spp.* | Bindweeds | |
| *Conyza bonariensis* | Tall Fleabane | |
| *Coprosma repens* | Mirror Bush | |
| *Coprosma repens* | Tuapata | |
| *Coprosma robusta* | Karamu | |
| *Cornus capitata* | Evergreen Dogwood | |
| *Cortaderia selloana* | Pampas Grass | |
| *Corymbia maculata* | Spotted Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cotoneaster spp.* | Cotoneaster | |
| *Crataegus monogyna* | Hawthorn | |
| *Crocosmia x crocosmiifolia* | Montbretia | |
| *Cytisus palmensis* | Tree Lucerne | |
| *Cytisus scoparius* | English Broom | |
| *Cynodon dactylon* | Couch grass | |
| *Cyperus erogrostis* | Drain Flat Sedge | |
| *Delairea odorata* | Cape Ivy | |
| *Dipogon lignosus* | Common Dipogon (Dolichos) | |
| *Dodonea viscose* | Sticky Hop Bush | |
| *Echium plantagineum* | Paterson’s Curse | |
| *Ehrharta erecta* | Panic Veldt Grass | |
| *Ehrharta longiflora* | Annual Veldt grass | |
| *Erica baccans* | Berry-flower Heath | |
| *Erica lusitanica* | Spanish Heath | |
| *Euryops abrotanifolius* | Euryops | |
| *Foeniculum vulgare* | Fennel | |
| *Fraxinus angustifolia* | Narrow-leafed Ash | |
| *Fraxinus ornus* | Manna Ash | |
| *Fraxinus oxycarpa* | Caucasian Ash | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Galium aparine* | Cleavers | |
| *Genista linifolia* | Flax Leaf Broom | |
| *Genista monspessulana* | Cape/Montpellier Broom | |
| *Hakea salicifolia* | Willow Hakea | |
| *Hakea sauveolens* | Sweet Hakea | |
| *Hedra helix* | English Ivy | |
| *Holcus lanatus* | Yorkshire Fog | |
| *Hypericum androsaemum* | Tutsan | |
| *Hypericum perforatum* | St.John's Wort | |
| *Hypericum tetrapterum* | St. Peter's Wort | |
| *Ilex aquifolium* | Holly | |
| *Ipomoea indica* | Morning Glory | |
| *Lathyrus latifolius* | Sweet Pea | |
| *Leycesteria Formosa* | Himilayan Honeysuckle | |
| *Lingustrum lucidum* | Broad-Leaved Privet | |
| *Ligustrum vulgare* | Privet | |
| *Lonicera japonica* | Japanese Honeysuckle | |
| *Malus spp* | Apple | |
| *Melaleuca armillaris* | Giant Honey Myrtle | |
| *Melaleuca hypericifolia* | Honey Myrtle | |
| *Myosotis sylvatica* | Common Forget-me-not | |
| *Myrsiphyillum scandens* | Asparagus Fern | |
| *Myrsiphyllum asparagoides* | Bridal Creeper | |
| *Myrsiphyllum asparagoides* | Smilax | |
| *Oenothera stricta* | Common Evening Primrose | |
| *Opuntia aurantiaca* | Prickly Pear | |
| *Oxalis pes-caprae* | Soursob | |
| *Portulaca oleracea* | Common Purslane | |
| *Paraserianthis lopantha* | Cape Wattle | |
| *Passiflora sp. aff. mollissima* | Banana Passionfruit | |
| *Pentaglottis serpvirens* | Alkante | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Phalaris aquatica* | Toowoomba Canary Grass | |
| *Pennisetum clandestinum* | Kikuyu | |
| *Phytolacca octandra* | Inkweed | |
| *Pinus radiata* | Montery Pine | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Pittosporum crassifolium* | Karo | |
| *Pittosporum undulatum* | Sweet Pittosporum | |
| *Polygalia myrtifolia* | Myrtle Leaf Milkwort | |
| *Populus tremuloides* | American Aspen | |
| *Prunus cerasifera* | Cherry Plum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Prunus laurocerasus* | Cherry Laurel | |
| *Prunus lusitanica* | Portugal Laurel | |
| *Prunus spp.* | Plum | Does not included Prunus cerasifera (Cherry Plum) |
| *Psoralea pinnata* | Bloukeur (Pinnate Scurf-Pea) | |
| *Pyracantha spp.* | Firethorns | |
| *Quercus spp.* | Oak | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Ranunculus repens* | Creeping Buttercup | |
| *Rhamnus alaternus* | Italian Buckthorn | |
| *Ricinus communis* | Castor Oil Plant | |
| *Robinia pseudacacia* | Black Locust | |
| *Romulea rosea var australis* | Onion Grass | |
| *Rosa rubiginosa* | Sweet Briar | |
| *Rubus fruticosus spp. agg.* | Blackberry | |
| *Saliz babylonica* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salix spp.* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |

| Botanical name | Common name | Condition |
|---|---|---|
| *Salpichroa origanifolia* | Pampas Lily of the Valley | |
| *Senecio jacobaea* | Ragwort | |
| *See Cape Wattle* | False Wattle | |
| *Solanum linnaeanum* | Apple of Sodom | |
| *Solanum mauritianum* | Tree Tobacco | |
| *Solanum nigrum* | Black Nightshade | |
| *Solanum pseudocapsicum* | Madeira Winter Cherry | |
| *Sollya heterophylla* | Blue-bell Creeper | |
| *Spartina anglica* | Common Cord-grass | |
| *Tradescantia fluminensis* | Wandering Jew/Trad | |
| *Trapaeolum majus* | Nasturtium | |
| *Ulex europaeus* | Gorse | |
| *Verbascum thapsus* | Great Mullein | |
| *Vibernum timus* | Laurestinus | |
| *Vinca major* | Blue Periwinkle | |
| *Viola odorata* | Fragrant Violet | |
| *Viola riviniana* | Wood Violet | |
| *Watsonia borbonica* | Rosy Watsonia | |
| *Watsonia meriana var. bulbillifera* | Bulbil Watsonia | |
| *Zantedeschia aethiopica* | White Arum Lily | |

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under 42.01, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

Buildings and works:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation proposed to be removed.
- Details of the location and extent of any earthworks.

To remove, destroy or lop native vegetation:

- A photograph or site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.

- A description of the vegetation including the understorey to be removed, including the species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Location of any hollow bearing trees.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.
  - Appropriately replace and/ or compensate the loss of vegetation, if required.
- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.
- An environmental assessment report prepared by a suitably qualified person and to the satisfaction of the responsible authority.

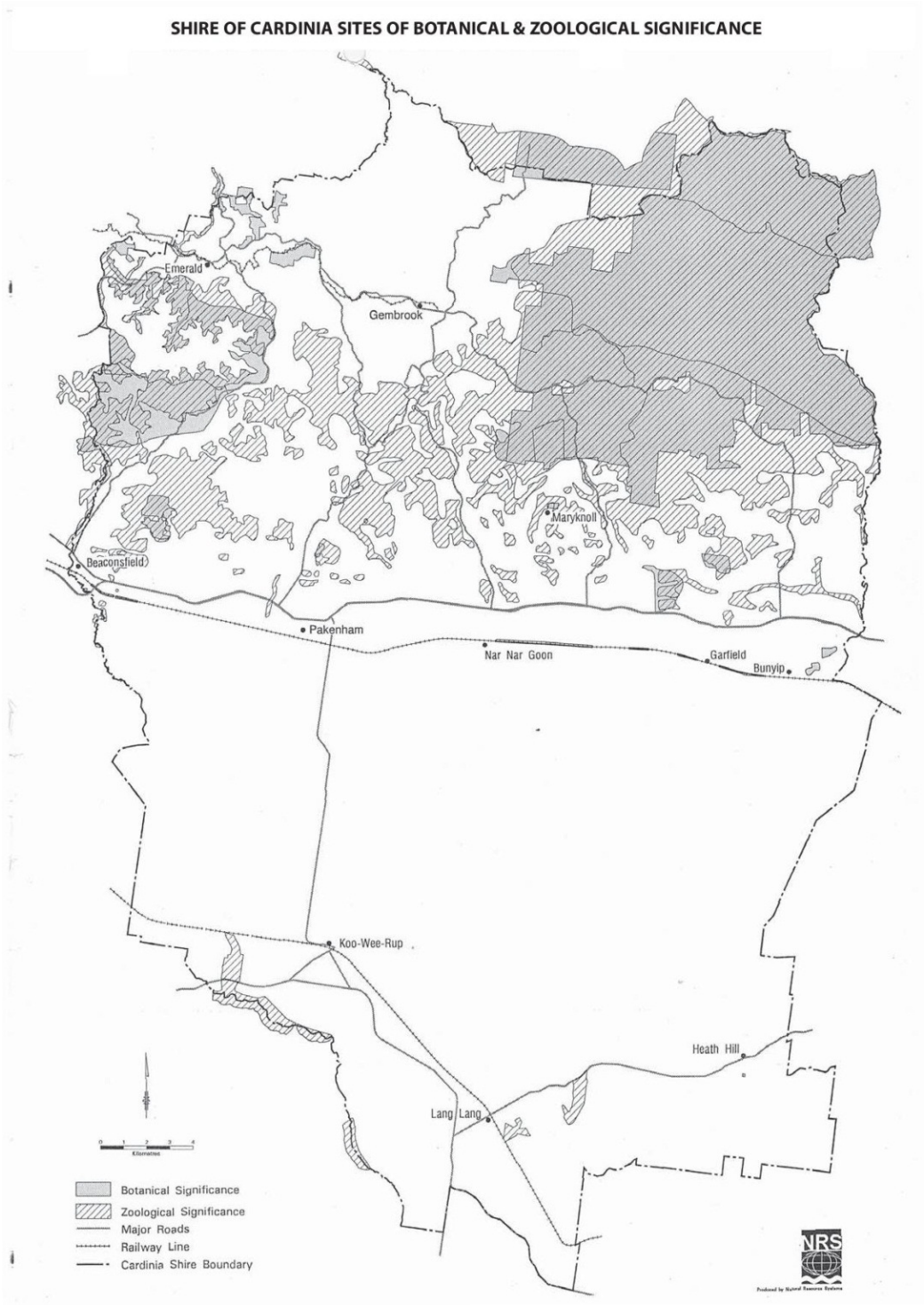
## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the removal of any vegetation has been avoided and/or minimised.
- The Land Capability Study for the Cardinia Shire (February 1997).
- The protection and enhancement of the natural environment and character of the area.
- The retention, protection and enhancement of remnant vegetation and habitat, and the need to plant vegetation along waterways, gullies, ridgelines and property boundaries.
- The impact of any buildings and works on areas of remnant vegetation, and habitat of botanical and zoological significance and threatened species.
- The impact of proposed buildings and works on the landscape character of the area, including prominent ridgelines and significant views.
- Whether the siting, height, scale, materials, colours and form of the proposed buildings and works have been designed to have the least visual impact on the environment and landscape.
- The availability of other alternative sites, alternative building designs or alternative construction practices for the proposed buildings and works that minimise cut and fill and would better meet the environmental objectives of this schedule, having regard to the size and topography of the land, retention of vegetation and the form and nature of the proposed buildings and works.
- Measures to address environmental hazards or constraints including slope, erosion, drainage, salinity and fire.
- The protection of waterways and water quality through the appropriate management of effluent disposal, erosion and sediment pollution.

## Map 1 to Schedule 1 to Clause 42.01



10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO2**.

**WESTERN PORT COASTAL WETLAND AREAS**

### 1.0 Statement of environmental significance

10/06/2021
C254card

Saltmarsh and mangrove communities co-exist along the northern shores of Western Port. On a global scale, mangroves tend to occupy tropical regions, while the saltmarsh occupy temperate regions, therefore their co-existence in Western Port is environmentally significant.

The mangrove and saltmarsh communities also provide feeding, roosting and breeding habitats for many species of waterbirds, including migratory waders protected under the international RAMSAR agreement, as well as being a nursery area for fish and as a primary food source.

The native vegetation along the coast plays an important role in protecting the coastline by stabilising the soil from coastal erosion which contributes to poor water quality within the bay. Native vegetation also plays a role in providing habitat for threatened species. The retention of vegetation within this area is vital to minimising the disturbance of acid sulphate soils.

### 2.0 Environmental objective to be achieved

10/06/2021
C254card

To protect the environmentally significant features of Western Port.

To ensure that use and development of land is compatible with the ecological values of Western Port including the protection and replanting of indigenous vegetation.

To ensure that any new development is sensitively designed and sited to reinforce the existing environmental characteristics of the area.

To protect the coastline from erosion and ensure that development avoids the disturbance of coastal acid sulphate soils.

### 3.0 Permit requirement

10/06/2021
C254card

A permit is not required to remove, destroy or lop any vegetation if:

- The vegetation is dead as a result of natural circumstances or as a result of the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electricity, electronic communications or the like, provided that the removal, destruction or lopping is undertaken with the written consent of the responsible authority.
- It is necessary for maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.
- The vegetation is seedlings or regrowth less than 5 years old, the land has been previously been lawfully cleared and the land is being maintained for cultivation or pasture.
- The vegetation is to be removed, destroyed or lopped by cutting only to obtain reasonable amounts of wood for personal use by the owner or occupier of the land. Personal use is wood used for firewood, the construction of fences on the same land, and hobbies such as craft. This exemption does not apply to:
  - Standing living and dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
  - Living native vegetation on contiguous land in the same ownership with an area less than 10 hectares.

- It is the removal of any vegetation from an existing dam wall where the vegetation is impacting on the structural stability of the dam wall.
- It is within 6 metres of an existing dwelling on a lot less than 0.4 hectares.
- The vegetation is required to be pruned or lopped (but not removed or destroyed) as part of normal domestic or horticultural practice for the species.
- The vegetation is an environmental weed contained in the table below; that is not listed under the Schedule to Clause 43.01 (Heritage Overlay) and there is no condition listed in the table:

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia baileyana* | Cootamundra Wattle | |
| *Acacia decurrens* | Early Black Wattle | |
| *Acacia elata* | Cedar Wattle | |
| *Acacia floribunda* | White Sallow Wattle | |
| *Acacia saligna* | Golden Wreath Wattle | |
| *Acer spp.* | Maple | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Agapanthus praecox orientalis* | African Lily | |
| *Allium triquetrum* | Angled Onion | |
| *Alstromeria aurea* | Peruvian Lily | |
| *Amaryllis belladonna* | Belladonna Lily | |
| *Anredera cordifolia* | Madeira vine | |
| *Anthoxanthum odoratum* | Sweet Vernal Grass | |
| *Arbutus unedo* | Strawberry Tree | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Arctotheca calendula* | Cape Weed | |
| *Asparagus asparagoides* | Bridal Creeper | |
| *Asparagus scandens* | Asparagus Fern | |
| *Berberis darwinii* | Darwin's Berberry | |
| *Briza minor* | Shivery Grass | |
| *Briza maxima* | Quaking Grass | |
| *Buddleia variabilis* | Butterfly Bush | |
| *Calicotome spinosa* | Spiny broom | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Castanea spp.* | Chestnut | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cestrum elegans* | Red Cestrum | |
| *Chamaecytisus palmensis* | Tree Lucerne | |
| *Chrysanthemoides monilifera* | Boneseed | |
| *Chrysanthemum maximum* | Shasta Daisy | |
| *Cirsium vulgare* | Spear thistle | |
| *Conium maculatum* | Hemlock | |
| *Convolvulus spp.* | Bindweeds | |
| *Conyza bonariensis* | Tall Fleabane | |
| *Coprosma repens* | Mirror Bush | |
| *Coprosma repens* | Tuapata | |
| *Coprosma robusta* | Karamu | |
| *Cornus capitata* | Evergreen Dogwood | |
| *Cortaderia selloana* | Pampas Grass | |
| *Corymbia maculata* | Spotted Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cotoneaster spp.* | Cotoneaster | |
| *Crataegus monogyna* | Hawthorn | |
| *Crocosmia x crocosmiifolia* | Montbretia | |
| *Cytisus palmensis* | Tree Lucerne | |
| *Cytisus scoparius* | English Broom | |
| *Cynodon dactylon* | Couch grass | |
| *Cyperus erogrostis* | Drain Flat Sedge | |
| *Delairea odorata* | Cape Ivy | |
| *Dipogon lignosus* | Common Dipogon (Dolichos) | |
| *Dodonea viscose* | Sticky Hop Bush | |
| *Echium plantagineum* | Paterson’s Curse | |
| *Ehrharta erecta* | Panic Veldt Grass | |
| *Ehrharta longiflora* | Annual Veldt grass | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Erica baccans* | Berry-flower Heath | |
| *Erica lusitanica* | Spanish Heath | |
| *Euryops abrotanifolius* | Euryops | |
| *Foeniculum vulgare* | Fennel | |
| *Fraxinus angustifolia* | Narrow-leafed Ash | |
| *Fraxinus ornus* | Manna Ash | |
| *Fraxinus oxycarpa* | Caucasian Ash | |
| *Galium aparine* | Cleavers | |
| *Genista linifolia* | Flax Leaf Broom | |
| *Genista monspessulana* | Cape/Montpellier Broom | |
| *Hakea salicifolia* | Willow Hakea | |
| *Hakea sauveolens* | Sweet Hakea | |
| *Hedra helix* | English Ivy | |
| *Holcus lanatus* | Yorkshire Fog | |
| *Hypericum androsaemum* | Tutsan | |
| *Hypericum perforatum* | St.John's Wort | |
| *Hypericum tetrapterum* | St. Peter's Wort | |
| *Ilex aquifolium* | Holly | |
| *Ipomoea indica* | Morning Glory | |
| *Lathyrus latifolius* | Sweet Pea | |
| *Leycesteria Formosa* | Himilayan Honeysuckle | |
| *Lingustrum lucidum* | Broad-Leaved Privet | |
| *Ligustrum vulgare* | Privet | |
| *Lonicera japonica* | Japanese Honeysuckle | |
| *Malus spp* | Apple | |
| *Melaleuca armillaris* | Giant Honey Myrtle | |
| *Melaleuca hypericifolia* | Honey Myrtle | |
| *Myosotis sylvatica* | Common Forget-me-not | |
| *Myrsiphyillum scandens* | Asparagus Fern | |
| *Myrsiphyllum asparagoides* | Bridal Creeper | |
| *Myrsiphyllum asparagoides* | Smilax | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Oenothera stricta* | Common Evening Primrose | |
| *Opuntia aurantiaca* | Prickly Pear | |
| *Oxalis pes-caprae* | Soursob | |
| *Portulaca oleracea* | Common Purslane | |
| *Paraserianthis lopantha* | Cape Wattle | |
| *Passiflora sp. aff. mollissima* | Banana Passionfruit | |
| *Pentaglottis serpvirens* | Alkante | |
| *Phalaris aquatica* | Toowoomba Canary Grass | |
| *Pennisetum clandestinum* | Kikuyu | |
| *Phytolacca octandra* | Inkweed | |
| *Pinus radiata* | Montery Pine | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Pittosporum crassifolium* | Karo | |
| *Pittosporum undulatum* | Sweet Pittosporum | |
| *Polygalia myrtifolia* | Myrtle Leaf Milkwort | |
| *Populus tremuloides* | American Aspen | |
| *Prunus cerasifera* | Cherry Plum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Prunus laurocerasus* | Cherry Laurel | |
| *Prunus lusitanica* | Portugal Laurel | |
| *Prunus spp.* | Plum | Does not included Prunus cerasifera (Cherry Plum) |
| *Psoralea pinnata* | Bloukeur (Pinnate Scurf-Pea) | |
| *Pyracantha spp.* | Firethorns | |
| *Quercus spp.* | Oak | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Ranunculus repens* | Creeping Buttercup | |
| *Rhamnus alaternus* | Italian Buckthorn | |
| *Ricinus communis* | Castor Oil Plant | |
| *Robinia pseudacacia* | Black Locust | |
| *Romulea rosea var australis* | Onion Grass | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Rosa rubiginosa* | Sweet Briar | |
| *Rubus fruticosus spp. agg.* | Blackberry | |
| *Saliz babylonica* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salix spp.* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salpichroa origanifolia* | Pampas Lily of the Valley | |
| *Senecio jacobaea* | Ragwort | |
| *See Cape Wattle* | False Wattle | |
| *Solanum linnaeanum* | Apple of Sodom | |
| *Solanum mauritianum* | Tree Tobacco | |
| *Solanum nigrum* | Black Nightshade | |
| *Solanum pseudocapsicum* | Madeira Winter Cherry | |
| *Sollya heterophylla* | Blue-bell Creeper | |
| *Spartina anglica* | Common Cord-grass | |
| *Tradescantia fluminensis* | Wandering Jew/Trad | |
| *Trapaeolum majus* | Nasturtium | |
| *Ulex europaeus* | Gorse | |
| *Verbascum thapsus* | Great Mullein | |
| *Vibernum timus* | Laurestinus | |
| *Vinca major* | Blue Periwinkle | |
| *Viola odorata* | Fragrant Violet | |
| *Viola riviniana* | Wood Violet | |
| *Watsonia borbonica* | Rosy Watsonia | |
| *Watsonia meriana var. bulbillifera* | Bulbil Watsonia | |
| *Zantedeschia aethiopica* | White Arum Lily | |

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.01, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

Buildings and works:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation including understorey proposed to be removed.
- Details of the location and extent of any earthworks.
- A photograph or site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.
- A description of the vegetation including understorey to be removed, including the species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Location of any hollow bearing trees.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.
  - Appropriately replace, and/or compensate for the loss of vegetation, if required.
- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The need to ensure that the environmentally sensitive areas of Western Port are not adversely affected by the proposed use or development of the land.
- The impact of the proposal on coastal processes and the need to protect and enhance environmentally sensitive coastlines.
- Whether the proposed works will have a significant impact on the Western Port Ramsar wetland and require referral under the *Environment Protection and Biodiversity Conservation Act 1999*.
- The capacity of the soil and water to absorb wastes and the design of effluent disposal systems.
- The impact on native flora and fauna habitats.
- Whether the building or works or vegetation removal will be detrimental to the landscape of the area.
- The design, location and colour of proposed buildings and works and their impact on the environment.
- The extent of any proposed removal of vegetation, and the location of any buildings and works, in particular:

  - The desirability of retaining or establishing a buffer of native vegetation adjoining waterways, natural drainage lines, along the coastline and any existing vegetation along roads and property boundaries.
  - Whether the vegetation has been identified as being of environmental significance.
- Whether the ecological values and environmental characteristics will be enhanced
- Measures to prevent environmental degradation by noxious and environmental weeds and pest animals.
- Measures to improve the water quality to Western Port.
- The location, extent and levels of any excavation or fill or alteration to the natural surface including potential impacts to coastal acid sulphate soils.
- The provisions of State Environment Protection Policy (Waters of Western Port Bay and Catchment).
- The Port Phillip and Westernport Regional Catchment Strategy and Catchment Action Plans prepared under the *Catchment and Land Protection Act 1994*.
- The Coastal Strategy and any Coastal Action Plans or Management Plans prepared under the *Coastal Management Act 1995*.

## 6.0 Background document

Understanding the Western Port Environment - A summary of current knowledge and priorities for future research (Melbourne Water, 2011)

Victorian Coastal Acid Sulfate Soils Strategy 2009 (CASS Strategy)

Mangroves and Coastal Saltmarsh of Victoria; distribution, condition, threats and management (Boon et al, 2011)

Western Port Ramsar Site Strategic Management Plan (Department of Sustainability and Environment, 2003)

Management of Victoria's Ramsar Wetlands Strategic Directions Statement (Department of Natural Resources and Environment, 2002)

10/06/2021
C254card

# SCHEDULE 3 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO3**.

**OTHER SIGNIFICANT SITES**

## 1.0 Statement of environmental significance

10/06/2021
C254card

The Department of Sustainability and Environment has identified sites within the municipality that are considered to be of botanical and zoological significance. These sites contain rare, endangered or uncommon species of plants and animals and are critical for the protection of habitat for native plants and animals.

## 2.0 Environmental objective to be achieved

10/06/2021
C254card

To ensure that the habitat values of the sites are not diminished by the incremental removal of vegetation or inappropriate development.

To ensure that any new development is sensitively designed and sited to reinforce the existing environmental characteristics of the area.

## 3.0 Permit requirement

28/04/2026
VC232

Applications must be referred in accordance with Section 55 of the Act to the referral authority specified in Clause 66.04 or a schedule to that clause unless in the opinion of the responsible authority the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the referral authority.

## 4.0 Application requirements

10/06/2021
C254card

None specified.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the proposal will have an adverse effect on the environmental, physical or visual attributes of the site and its immediate locality.
- The significance of the vegetation in terms of its variety or as a habitat for wildlife.
- Any alternative means of locating proposed buildings and works so as to conserve and enhance the site and its environs.

10/06/2021
C254card

# SCHEDULE 4 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO4**.

**PAKENHAM NORTH RIDGE**

## 1.0 Statement of environmental significance

10/06/2021
C254card

The Pakenham ridge has regional significance for biodiversity. It makes a substantial contribution to biodiversity in the Gippsland Plain Bioregion as well as the Pakenham area. The area has remnants of Grassy Forest, an ecosystem that is vulnerable in the area. The Cobra Greenhood Orchid *(Pterostylis grandiflora)* which is of state significance, and the Green Scentbark *(Eucalytptus fulgens)* which is of state/national significance, are found in the area The area is characterised by a geology of Devonian Granitic and Silurian Sediment origin, moderate to steep slopes, and areas of remnant vegetation. These characteristics contribute to environmental values including landscape quality, water quality, and habitat of botanical and zoological significance. These characteristics are also a significant factor contributing to environmental hazards such as erosion, salinity and fire risk, and susceptibility to visual intrusion from buildings and works.

## 2.0 Environmental objective to be achieved

10/06/2021
C254card

To protect and enhance the significant environmental and landscape values of the Pakenham North ridge.

To ensure that the siting and design of buildings and works does not adversely impact on environmental and landscape values including the ridge landform, the diverse and interesting landscape, the natural skyline of ridge areas, areas of remnant vegetation, and habitat of botanical and zoological significance.

To ensure that the siting and design of buildings and works responds to environmental and landscape values, and addresses environmental hazards of erosion, salinity and fire.

To maintain, manage and promote replanting of native vegetation as an important element of the Pakenham North ridge landscape and natural systems.

To ensure long term protection of areas of high conservation value and promote the protection and enhancement of wildlife habitat and corridors.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is required to construct a fence.

A permit is not required to remove, destroy or lop any vegetation if:

- The vegetation is a tree overhanging the roof of a building used for Accommodation. This exemption only allows the removal, destruction or lopping of that part of the tree which is overhanging the building and which is necessary for fire protection.
- The vegetation is dead as a result of natural circumstances or as a result of the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electricity, electronic communications or the like, provided that the removal, destruction or lopping is with the written consent of the responsible authority.
- It is necessary for maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.
- It is the removal of any vegetation from an existing dam wall where the vegetation may impact on the structural stability of the dam wall.

- The vegetation is required to be pruned or lopped (but not removed or destroyed) as part of normal domestic or horticultural practice for the species.
- The vegetation is an environmental weed contained in the table below; that is not listed under the Schedule to Clause 43.01 (Heritage Overlay) and there is no condition listed in the table:

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia baileyana* | Cootamundra Wattle | |
| *Acacia decurrens* | Early Black Wattle | |
| *Acacia elata* | Cedar Wattle | |
| *Acacia floribunda* | White Sallow Wattle | |
| *Acacia longifolia* | Coast / Sallow Wattle | |
| *Acacia saligna* | Golden Wreath Wattle | |
| *Acacia sophorae* | Coastal Wattle | |
| *Acer spp.* | Maple | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Agapanthus praecox orientalis* | African Lily | |
| *Allium triquetrum* | Angled Onion | |
| *Alstromeria aurea* | Peruvian Lily | |
| *Amaryllis belladonna* | Belladonna Lily | |
| *Anredera cordifolia* | Madeira vine | |
| *Anthoxanthum odoratum* | Sweet Vernal Grass | |
| *Arbutus unedo* | Strawberry Tree | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Arctotheca calendula* | Cape Weed | |
| *Asparagus asparagoides* | Bridal Creeper | |
| *Asparagus scandens* | Asparagus Fern | |
| *Berberis darwinii* | Darwin’s Berberry | |
| *Betula spp.* | Birch | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Briza minor* | Shivery Grass | |
| *Briza maxima* | Quaking Grass | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Buddleia variabilis* | Butterfly Bush | |
| *Calicotome spinosa* | Spiny broom | |
| *Castanea spp.* | Chestnut | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cestrum elegans* | Red Cestrum | |
| *Chamaecytisus palmensis* | Tree Lucerne | |
| *Chrysanthemoides monilifera* | Boneseed | |
| *Chrysanthemum maximum* | Shasta Daisy | |
| *Cirsium vulgare* | Spear thistle | |
| *Conium maculatum* | Hemlock | |
| *Convolvulus spp.* | Bindweeds | |
| *Conyza bonariensis* | Tall Fleabane | |
| *Coprosma repens* | Mirror Bush | |
| *Coprosma repens* | Tuapata | |
| *Coprosma robusta* | Karamu | |
| *Cornus capitata* | Evergreen Dogwood | |
| *Cortaderia selloana* | Pampas Grass | |
| *Corymbia maculata* | Spotted Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cotoneaster spp.* | Cotoneaster | |
| *Crataegus monogyna* | Hawthorn | |
| *Crocosmia x crocosmiifolia* | Montbretia | |
| *Cytisus palmensis* | Tree Lucerne | |
| *Cytisus scoparius* | English Broom | |
| *Cynodon dactylon* | Couch grass | |
| *Cyperus erogrostis* | Drain Flat Sedge | |
| *Delairea odorata* | Cape Ivy | |
| *Dipogon lignosus* | Common Dipogon (Dolichos) | |
| *Dodonea viscose* | Sticky Hop Bush | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Echium plantagineum* | Paterson's Curse | |
| *Ehrharta erecta* | Panic Veldt Grass | |
| *Ehrharta longiflora* | Annual Veldt grass | |
| *Erica baccans* | Berry-flower Heath | |
| *Erica lusitanica* | Spanish Heath | |
| *Eucalyptus botryoides* | Southern Mahogany Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Euryops abrotanifolius* | Euryops | |
| *Foeniculum vulgare* | Fennel | |
| *Fraxinus angustifolia* | Narrow-leafed Ash | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Fraxinus ornus* | Manna Ash | |
| *Fraxinus oxycarpa* | Caucasian Ash | |
| *Galium aparine* | Cleavers | |
| *Genista linifolia* | Flax Leaf Broom | |
| *Genista monspessulana* | Cape/Montpellier Broom | |
| *Hakea salicifolia* | Willow Hakea | |
| *Hakea sauveolens* | Sweet Hakea | |
| *Hedra helix* | English Ivy | |
| *Holcus lanatus* | Yorkshire Fog | |
| *Hypericum androsaemum* | Tutsan | |
| *Hypericum perforatum* | St.John's Wort | |
| *Hypericum tetrapterum* | St. Peter's Wort | |
| *Ilex aquifolium* | Holly | |
| *Ipomoea indica* | Morning Glory | |
| *Lathyrus latifolius* | Sweet Pea | |
| *Leptospermum laevigatum* | Coast Tea Tree | |
| *Leycesteria formosa* | Himilayan Honeysuckle | |
| *Ligustrum lucidum* | Broad-Leaved Privet | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Ligustrum vulgare* | Privet | |
| *Lonicera japonica* | Japanese Honeysuckle | |
| *Malus spp* | Apple | |
| *Melaleuca armillaris* | Giant Honey Myrtle | |
| *Melaleuca hypericifolia* | Honey Myrtle | |
| *Myosotis sylvatica* | Common Forget-me-not | |
| *Myrsiphyillum scandens* | Asparagus Fern | |
| *Myrsiphyllum asparagoides* | Bridal Creeper | |
| *Myrsiphyllum asparagoides* | Smilax | |
| *Oenothera stricta* | Common Evening Primrose | |
| *Opuntia aurantiaca* | Prickly Pear | |
| *Oxalis pes-caprae* | Soursob | |
| *Portulaca oleracea* | Common Purslane | |
| *Paraserianthis lopantha* | Cape Wattle | |
| *Passiflora sp. aff. mollissima* | Banana Passionfruit | |
| *Pentaglottis serpvirens* | Alkante | |
| *Phalaris aquatica* | Toowoomba Canary Grass | |
| *Pennisetum clandestinum* | Kikuyu | |
| *Phytolacca octandra* | Inkweed | |
| *Pinus radiate* | Montery Pine | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Pittosporum crassifolium* | Karo | |
| *Pittosporum undulatum* | Sweet Pittosporum | |
| *Polygalia myrtifolia* | Myrtle Leaf Milkwort | |
| *Populus tremuloides* | American Aspen | |
| *Prunus cerasifera* | Cherry Plum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Prunus laurocerasus* | Cherry Laurel | |
| *Prunus lusitanica* | Portugal Laurel | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Prunus spp.* | Plum | Except Prunus cerasifera (Cherry Plum) |
| *Psoralea pinnata* | Bloukeur (Pinnate Scurf-Pea) | |
| *Pyracantha spp.* | Firethorns | |
| *Quercus spp.* | Oak | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Ranunculus repens* | Creeping Buttercup | |
| *Rhamnus alaternus* | Italian Buckthorn | |
| *Ricinus communis* | Castor Oil Plant | |
| *Robinia pseudacacia* | Black Locust | |
| *Romulea rosea var australis* | Onion Grass | |
| *Rosa rubiginosa* | Sweet Briar | |
| *Rubus fruticosus spp. agg.* | Blackberry | |
| *Salix babylonica* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salix spp.* | Willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salpichroa origanifolia* | Pampas Lily of the Valley | |
| *Senecio jacobaea* | Ragwort | |
| *See Cape Wattle* | False Wattle | |
| *Solanum linnaeanum* | Apple of Sodom | |
| *Solanum mauritianum* | Tree Tobacco | |
| *Solanum nigrum* | Black Nightshade | |
| *Solanum pseudocapsicum* | Madeira Winter Cherry | |
| *Sollya heterophylla* | Blue-bell Creeper | |
| *Spartina anglica* | Common Cord-grass | |
| *Tradescantia fluminensis* | Wandering Jew/Trad | |
| *Trapaeolum majus* | Nasturtium | |
| *Ulex europaeus* | Gorse | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Verbascum thapsus* | Great Mullein | |
| *Vibernum timus* | Laurestinus | |
| *Vinca major* | Blue Periwinkle | |
| *Viola odorata* | Fragrant Violet | |
| *Viola riviniana* | Wood Violet | |
| *Watsonia borbonica* | Rosy Watsonia | |
| *Watsonia meriana var. bulbillifera* | Bulbil Watsonia | |
| *Zantedeschia aethiopica* | White Arum Lily | |

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under 42.01, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

Buildings and works:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation proposed to be removed.
- Details of the location and extent of any earthworks.

To remove, destroy or lop native vegetation:

- A photograph or site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.
- A description of the vegetation including understory to be removed, including the species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Location of any hollow bearing trees.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.
  - Appropriately replace and/or compensate the loss of vegetation, if required.
- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

### General

- The Land Capability Study for the Cardinia Shire (February 1997).
- The need for an environmental and landscape impact assessment report, prepared by a properly qualified person and to the satisfaction of the responsible authority, that includes:
  - An appropriate consideration of alternative subdivision layouts and alternative sites for buildings
  - Possible design responses and design guidelines
  - Consideration of appropriate environmental management practices, including replanting of native vegetation and ongoing protection and management of vegetation and habitat areas.
- The protection and enhancement of environmental significance having regard to:
  - Protecting habitat areas, landscape areas and vantage points of high quality
  - Protecting and enhancing areas of native vegetation
  - Setting development back from the ridgeline to allow appreciation of the ridge landform and topography, and to maintain the natural skyline of the ridge
  - The visual prominence of land above the 60-metre contour as a defining landscape feature
  - The integration of buildings and works with environmental and landscape features
  - Appropriate environmental management practices.
- Measures to address environmental hazards or constraints including erosion, drainage and fire.

### Buildings and works

- The impact of any buildings and works on areas of remnant vegetation, and habitat of botanical and zoological significance.
- The impact of proposed buildings and works on the landscape character of the area, including prominent ridgelines and significant views.
- The control of the density of buildings and subdivision necessary to meet environmental objectives.
- The establishment of appropriate building envelopes and the benefits of requiring building envelopes to be shown on plans of subdivision.
- Whether the siting, height, scale, materials, colours and form of proposed buildings and works, including roads and infrastructure service lines, have been designed to have least visual effect on the ridge environment and landscape.
- Whether approval of any proposed buildings and works is compatible with maintaining the visual, natural and cultural significance of the ridge landscape.
- The benefit of permit conditions requiring all building materials to be non-reflective and of colours that are complementary to those of the natural landscape.
- The benefit of conditions requiring the landscaping of buildings and works, while also having regard to the maintenance of existing viewlines.

### Vegetation and habitat

- The retention of remnant vegetation and wildlife habitat, and the need to plant vegetation along waterways, gullies, ridgelines and property boundaries.
- The conservation and enhancement of the area's native vegetation and habitat values, including allowing for natural regeneration of native vegetation
- Providing linked open space and local habitat corridors.
- Maintaining vegetation as a key element of the landscape, and maintaining and enhancing the continuity of vegetation.
- The significance of any vegetation proposed to be removed, including its rarity and habitat value.
- The need to revegetate or landscape the site with native species and dispersing buildings to allow trees to be planted between them.

### Response to slope

- The availability of other alternative sites, alternative building designs or alternative construction practices for proposed buildings and works that minimise cut and fill and would better meet the environmental objectives of this schedule, having regard to the size and topography of the land, retention of vegetation, and the form and nature of the proposed buildings and works.
- The availability of reasonable alternative routes, alternative designs or alternative forms of installation for roads, access driveways and infrastructure service lines that would avoid impact on vegetation and habitat areas, follow the contours of the land, minimise cut and fill and better meet the environmental objectives of this schedule.
- Locating buildings and works in low lying positions on a site.
- Slope stability and the need for a geotechnical report, particularly where slopes are greater than 20 percent.

### Waterways

- The protection of waterways and water quality through the appropriate management of stormwater, effluent disposal, erosion, sediment pollution and the provision and protection of vegetation especially along watercourses.

### Salinity

- Whether vegetation retention and revegetation is occurring and whether appropriate management techniques are being put in place to address water table and salinity issues.

## 6.0 Background documents

Ecological Assessment of Pakenham Ridge, Biosis Research (August 2006)

Indigenous Vegetation Survey – an inventory of sites of biodiversity significance in the Pakenham Growth Corridor and adjoining area Volume 2, Ecology Australia (January 2004)

Pakenham North Ridge Precinct Assessment of Landscape Value, Land Design Partnership (June 2007)

Land Capability Study for the Cardinia Shire (February 1997)

10/06/2021
C254card

# SCHEDULE 5 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO5**.

**CARDINIA ROAD PRECINCT STRUCTURE PLAN – AREAS OF ENVIRONMENTAL SIGNIFICANCE**

## 1.0 Statement of environmental significance

10/06/2021
C254card

Sites of biodiversity significance in the Cardinia Road Precinct Structure Plan area are small areas of swamp scrub (EVC 53), grassy forest (EVC 47), damp heathy woodland (EVC 793) and swampy riparian woodland (EVC 83) stretching along Toomuc Creek. The bioregional conservation status for swamp scrub, swampy riparian wooodland and grassy forest are endangered. The bioregional conservation status of damp heathy woodland is of least concern.

## 2.0 Environmental objective to be achieved

10/06/2021
C254card

To protect, enhance and restore the native vegetation, with emphasis on retaining intact remnant vegetation patches.

To encourage subdivision that is designed to minimise as far as practicable the removal or destruction of indigenous vegetation that retains vegetated corridors and habitat links.

To encourage building design and siting that as far as practicable reduces the impact of development on intact remnant vegetation patches.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is required for subdivision except where the sites of biodiversity significance are wholly contained within land identified as encumbered open space.

A permit is required to construct a building or carry out works except where the building or works do not require the removal, destruction or lopping of native vegetation.

## 4.0 Application requirements

10/06/2021
C254card

None specified.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the three-step approach to managing native vegetation set out in Victoria's Native Vegetation Management Framework has been followed and in particular:
  - The extent to which subdivision or buildings and works avoid or minimise (where removal is unavoidable) the removal of indigenous vegetation.
  - The significance of the vegetation and the extent of vegetation removal proposed.
  - The potential ability to provide offsets within designated encumbered land through recruitment or replanting of vegetation species consistent with the EVC of the site.
- Whether site disturbance resulting from excavation and/or fill would pose a risk to the health of existing vegetation being retained, or reduces the potential for future planting of vegetation.
- The means of protecting vegetation during the construction of buildings and works and the on-going protection and management of vegetation post construction.
- The likelihood of the future need to remove ground fuel within 30m of a building.

10/06/2021
C254card

# SCHEDULE 6 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO6**.

**OFFICER – CONSERVATION LIVING AREA**

## 1.0 Statement of environmental significance

10/06/2021
C254card

The Officer Conservation Living Area is located within the Urban Growth Boundary and forms part of the foothills that extend north into the Dandenong Ranges. It has significant landscape and environmental values, with substantial areas of remnant native vegetation. The endangered Grassy Forest community (EVC128) covers over 85% of the land. The steep typography of the land ensures it is of high landscape value, featured in several viewlines across the Officer Precinct Structure Plan (September 2011) area. These characteristics contribute to a high fire risk within the area, limiting future development opportunities.

## 2.0 Environmental objective to be achieved

10/06/2021
C254card

- To protect the significant environmental and landscape values of the area.
- To ensure that the siting of buildings minimises impacts on areas of remnant native vegetation.
- To ensure that the siting and design of buildings and works:
  - does not adversely impact on existing landscape character; and
  - addresses slope and fire risks.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is not required to construct a building or construct or carry out works provided all of the following requirements are met:

- Building materials must be non-reflective or subdued colours which complement the surrounding environment.
- The height of any building must not exceed 7 metres above natural ground level.
- The works must not involve the excavation of land exceeding 1 metre or filling of land exceeding 1 metre and any disturbed area must be stabilised by engineering works or revegetation to prevent erosion.
- The slope of the land on which the buildings or works are undertaken must not exceed 20 percent.
- If the building is an outbuilding ancillary to a dwelling, the gross floor area of all outbuildings on the land must not exceed 120 square metres.
- If a building envelope is registered on the plan of subdivision, any building must be located within the building envelope.

## 4.0 Application requirements

10/06/2021
C254card

None specified.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The protection and enhancement of the natural environment and character of the area.

- The retention of remnant native vegetation, including the need to retain vegetation along waterways, gullies, ridgelines and property boundaries.
- The retention of remnant native vegetation, including the need to retain vegetation along waterways, gullies, ridgelines and property boundaries.
- The impact of any buildings and works on areas of remnant native vegetation.
- The impact of proposed buildings and works on the landscape character of the area, including significant views to the area from other locations in the Officer Precinct Structure Plan area.
- The location of buildings, including the extent to which their siting responds to the slope of the area.

Measures to address the risk of fire, including fuel load management, location of buildings and setbacks from native vegetation.

27/02/2025
C274card

# SCHEDULE 7 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO7**.

**NAME OF SCHEDULE**

## 1.0 Statement of environmental significance

27/02/2025
C274card

The development of Melbourne has caused significant impacts to the environment. Melbourne's footprint has resulted in the removal of most native vegetation, and retained habitat areas only support flora and fauna that can survive in a highly fragmented and urbanised landscape. The overall biodiversity of Melbourne is a fraction of what it was prior to European settlement.

As part of the delivery of Melbourne's Newest Sustainable Communities Program, the Victorian Government established a process to identify, permanently protect and manage biodiversity assets that are important within the greater Melbourne region.

This process has determined the location of significant biodiversity assets and identified areas where these can be retained and where urban development is not appropriate and to which this overlay has been applied.

The areas covered by this overlay include some existing conservation reserves, areas of significant remnant native vegetation and a number of areas that provide habitat for threatened flora and fauna

The areas include but are not limited to:

- Important grasslands.
- Grassy eucalypt woodlands.
- Waterways and riparian areas.
- Other important habitat for threatened flora and fauna.

It is important that these areas are retained and managed to ensure that their biodiversity values and any habitat links are protected and enhanced.

## 2.0 Environmental objective to be achieved

27/02/2025
C274card

- To protect and improve the viability of habitats, ecological communities, flora and fauna and genetic diversity.
- To enhance the environmental and landscape values of the area.
- To ensure that any use, development or management of land within and adjacent to areas of biological significance are compatible with their long-term maintenance and conservation and will not have detrimental impacts on biodiversity values.
- To encourage ecological restoration, regeneration and revegetation with indigenous species within the site.
- To maintain and enhance habitat connectivity for listed threatened species.
- To prevent a decline in the extent and quality of native vegetation and native fauna habitat
- To ensure that the siting and design of any buildings and works maintains the environmental integrity of the land.
- To maintain and enhance the integrity of sites of environmental significance.
- To provide for the long term preservation of the flora and fauna and associated habitat of environmentally significant areas.

## 3.0 Permit requirement

27/02/2025
C274card

A permit is not required to:

- Construct a building or construct or carry out works or to remove, destroy or lop vegetation (including dead vegetation) in accordance with an agreement under Section 69 of the *Conservation, Forests and Lands Act 1987*.
- Construct or carry out works or to remove, destroy or lop vegetation (including dead vegetation) by or on behalf of a public authority or public land manager involving revegetation, or preparatory works associated with revegetation.
- Extend or alter an existing dwelling provided that the gross floor area of that extension or alteration does not exceed 50 square metres and the extension or alteration is more than 5 metres from any existing native vegetation.
- Remove, destroy or lop any vegetation, including dead vegetation:
  - Where the vegetation comprises one or more of the following environmental weed species;
  - Sweet Pittosporum ( *Pittosporum undulatum);*
  - Sallow Wattle( *Acacia longifolia subsp.Longifolia);*
  - Coast Wattle (*Acacia longifolia subsp. Sophorae).*
  - Where the vegetation is a plant proclaimed as a weed under the *Catchment and Land Protection Act 1994*.
  - In order to enable the use and maintenance of a building constructed or approved by a planning permit granted under this planning scheme or by a building permit granted under the Building Act 1993, before 6 August 2010. This exemption does not apply to vegetation located more than 10 metres from a building.
  - Where the vegetation has been planted or grown for aesthetic or amenity purposes, including agroforestry (the simultaneous and substantial production of forest and other agricultural products from the same land unit), shelter belts, woodlots, street trees, gardens or the like. This exemption does not apply if public funding was provided to assist in planting or managing the vegetation for conservation purposes and the terms of the funding did not anticipate removal or harvesting of the vegetation.
  - For the purpose of maintenance, where no more than one third of the foliage is removed from any individual plant. This exemption does not apply to the pruning or lopping of the trunk of a tree or shrub or to native vegetation within a road or railway reservation.
  - To mow or slash grass in a lawn, garden or other planted area for maintenance only.
  - To maintain an existing fence where the removal of vegetation is within a combined maximum width of 4 metres either side of the fence.

## 4.0 Application requirements

27/02/2025
C274card

The following application requirements apply to an application for a permit under Clause 42.01, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A description of any proposed disturbance of surface soil or rocks associated with the proposal.
- The total extent of vegetation on the property and the extent of native vegetation proposed to be cleared.
- A description of the steps that have been taken to avoid and minimise the removal of native vegetation including the practicality of alternative options which do not require removal of the native vegetation.

An application must also be accompanied by, as appropriate:

- A flora and fauna assessment of the land prepared by a suitably qualified and experienced person to the satisfaction of the responsible authority. The assessment must include:

  - A flora and fauna survey.
  - A habitat hectare assessment.
  - Identification of the vegetation and habitat significance of the property.
  - A description of the effect of the proposed development in relation to other areas of native vegetation or native fauna habitat, including any proposed reserves, strategic reserves, conservation reserves, streams and waterways.
- A land and environmental management plan prepared by a suitably qualified person identifying, as appropriate:
  - Any proposals for revegetation, including proposed species, and ground stabilisation.
  - How any vegetation removal will be offset (an offset plan), in accordance with Victoria's Guidelines for the removal, destruction or lopping of native vegetation (Department of Environment, Land, Water and Planning 2017).
  - Weed management, including species to be targeted and proposed management techniques.
  - Pest animal management, including species to be targeted and proposed management techniques.

If in the opinion of the responsible authority a flora and fauna assessment of the land or a land and environmental management plan is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

## 5.0 Decision guidelines

27/02/2025
C274card

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The conservation significance of any vegetation to be removed and its habitat value for native fauna.
- The reason for removing any vegetation and the practicality of any alternative options.
- Measures to protect and enhance native vegetation and native fauna habitat including the retention of land form, surface soils and rocks.
- Measures to maintain contiguous areas of native vegetation or native fauna habitat.
- Measures to encourage ecological restoration, regeneration and revegetation with indigenous species.
- Any park management plan, including the potential impact of management activities, such as burning, on anyproposed development.
- The impact of the development on any proposed or existing conservation reserves, streams and waterways, including the potential impacts of nutrient and water run-off, increased weed and pest invasion or recreational impacts.
- The impact on the integrity of the site from the proposed development, disturbance and removal of rock, indiscriminate weed control, habitat fragmentation and isolation and disturbance and destruction of habitat of threatened species.
- The proposed management practices for the land including:
  - The linking and enlarging of areas of significant flora and fauna habitats.
  - Effective and targeted weed control.
  - Programs to control or eliminate introduced predatory and pest animal species, in particular foxes, rabbits and hares.

  - Rehabilitation of degraded areas through fencing, revegetation with appropriate native species and ongoing management.
  - Collection of seed and other plant propagules for rehabilitation projects on and off site.
- The results of any flora and fauna survey and assessment of the land.
- Any Native Vegetation Precinct Plan, Conservation Management Plan, Precinct Structure Plan or other management plan approved for the area by the Minister for Planning or Minister for Environment and Climate Change.

# 42.02 VEGETATION PROTECTION OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **VPO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To protect areas of significant vegetation.

To ensure that development minimises loss of vegetation.

To preserve existing trees and other vegetation.

To recognise vegetation protection areas as locations of special significance, natural beauty, interest and importance.

To maintain and enhance habitat and habitat corridors for indigenous fauna.

To encourage the regeneration of native vegetation.

## 42.02-1 Vegetation significance and objectives

31/07/2018
VC148

A schedule to this overlay must contain:

- A statement of the nature and significance of the vegetation to be protected.
- The vegetation protection objectives to be achieved.

## 42.02-2 Permit requirement

28/10/2022
VC224

A permit is required to remove, destroy or lop any vegetation specified in a schedule to this overlay.

This does not apply:

- If the table to Clause 42.02-3 specifically states that a permit is not required.
- To the removal, destruction or lopping of native vegetation in accordance with a native vegetation precinct plan specified in the schedule to Clause 52.16.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Remove, destroy or lop one tree provided:<br>- A permit has not been granted for a VicSmart application to remove, destroy or lop a tree on the same land within the last 12 months.<br>- There is no other current VicSmart application to remove, destroy or lop a tree on the same land. | Clause 59.06 |

## 42.02-3 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Emergency works** | Vegetation that is to be removed, destroyed or lopped: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ is ground fuel within 30 metres of a building and is vegetation other than native vegetation;<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping vegetation clear of, or minimising risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by, or on behalf of that authority in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Greenhouse gas sequestration and exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management and directions notice** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the *Mineral Resources (Sustainable Development) Act* 1990: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Noxious weeds** | Vegetation that is a noxious weed subject of a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (*Cuscuta australis*). |
| **Pest animal burrows** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows.<br>In the case of native vegetation the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988* is required before the vegetation can be removed, destroyed or lopped. |
| **Planted vegetation** | Vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |
| **Railways** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established vegetation, and is:<br>▪ bracken (*Pteridium esculentum*); or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land on which vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by and on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing public road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | Vegetation is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of vegetation which does not include a tree.<br>▪ 15 trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ a natural resources agreement under Part 6 of the *Traditional Owners Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional owners Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure. |

## 42.02-4 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 42.02-5 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The statement of the nature and significance of the vegetation to be protected and the vegetation protection objective contained in a schedule to this overlay.
- The effect of the proposed use, building, works or subdivision on the nature and type of vegetation to be protected.
- The role of native vegetation in conserving flora and fauna.
- The need to retain native or other vegetation if it is rare, supports rare species of flora or fauna or forms part of a wildlife corridor.
- The need to retain vegetation which prevents or limits adverse effects on ground water recharge.
- The need to retain vegetation:
  - Where ground slopes exceed 20 percent.
  - Within 30 metres of a waterway or wetland.
  - On land where the soil or subsoil may become unstable if cleared.
  - On land subject to or which may contribute to soil erosion, slippage or salinisation.
  - In areas where the removal, destruction or lopping of vegetation could adversely affect the integrity or long term preservation of an identified site of scientific, nature conservation or cultural significance.
  - Which is of heritage or cultural significance.
- The need to remove, destroy or lop vegetation to create a defendable space to reduce the risk of bushfire to life and property.
- Any relevant permit to remove, destroy or lop vegetation in accordance with a land management plan or works program.
- Whether the application includes a land management plan or works program.

- Whether provision is made or is to be made to establish and maintain vegetation elsewhere on the land.
- Any other matters specified in a schedule to this overlay.

10/06/2021
C254card

# SCHEDULE 1 TO CLAUSE 42.02 VEGETATION PROTECTION OVERLAY

Shown on the planning scheme map as **VPO1**.

**LOW DENSITY RESIDENTIAL**

## 1.0 Statement of nature and significance of vegetation to be protected

10/06/2021
C254card

The low density residential areas within the Shire support substantial areas of remnant indigenous vegetation and mature exotic species. The maintenance and enhancement of the flora habitat is vital for the long term protection of these areas and the native fauna they support. Some of these areas contain small lots which are not protected under the native vegetation controls of Clause 52.17 resulting in areas of vegetation becoming increasingly fragmented.

The remnant vegetation is important for its contribution to habitat and environmental values and processes. This vegetation provides protection to waterways including in the reduction of siltation and contributes to habitat corridors as well as playing a role in supporting soil stability, reducing stormwater runoff, and limiting erosion and salinity.

## 2.0 Vegetation protection objectives to be achieved

10/06/2021
C254card

To protect and conserve existing vegetation as an important element of the character of low density residential areas.

To maintain and enhance local habitat and biolinks, including hollow bearing trees.

To avoid and minimise the removal of vegetation where it contributes to the management of environmental hazards such as erosion, salinity, siltation of creeks and watercourses, and stormwater runoff.

To ensure that vegetation remains a significant part of the character and visual amenity of these areas, with the built form being located within a landscape, and vegetation being the predominant feature.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is required to remove, destroy or lop any vegetation. This does not apply if:

- It is exempt under Clause 52.12 (Bushfire Protection: Exemptions) of this Planning Scheme.
- The vegetation is a tree overhanging the roof of a building used for Accommodation. This exemption only allows the removal, destruction or lopping of that part of the tree which is overhanging the building and which is necessary for fire protection.
- The vegetation is dead as a result of natural circumstances or as a result of the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electricity, electronic communications or the like, provided that the removal, destruction or lopping is with the written consent of the responsible authority.
- It is necessary for maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.
- The vegetation is seedlings or regrowth less than 5 years old, the land has previously been lawfully cleared and the land is being maintained for cultivation or pasture.
- It is the removal of any vegetation from an existing dam wall where the vegetation may impact on the structural stability of the dam wall.
- It is within 6 metres of an existing dwelling on a lot of less than 0.4 hectares.

- It is necessary for works associated with the normal operation of the Puffing Billy Tourist Railway as defined in the Schedule to the Public Use Zone under Clause 36.01 of this Planning Scheme.
- The vegetation is required to be pruned or lopped (but not removed) as part of normal domestic or horticultural practice for the species.
- The vegetation is an environmental weed contained in the table below; that is not listed under the Schedule to Clause 43.01 (Heritage Overlay) and there is no condition listed in the table:

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia baileyana* | Cootamundra Wattle | |
| *Acacia decurrens* | Early Black Wattle | |
| *Acacia elata* | Cedar Wattle | |
| *Acacia floribunda* | White Sallow Wattle | |
| *Acacia longifolia* | Coast/Sallow Wattle | |
| *Acacia saligna* | Golden Wreath Wattle | |
| *Acacia sophorae* | Coastal Wattle | |
| *Acer spp.* | Maple | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Agapanthus praecox orientalis* | African Lily | |
| *Allium triquetrum* | Angled Onion | |
| *Alstromeria aurea* | Peruvian Lily | |
| *Amaryllis belladonna* | Belladonna Lily | |
| *Anredera cordifolia* | Madeira vine | |
| *Anthoxanthum odoratum* | Sweet Vernal Grass | |
| *Arbutus unedo* | Strawberry Tree | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Arctotheca calendula* | Cape Weed | |
| *Asparagus asparagoides* | Bridal Creeper | |
| *Asparagus scandens* | Asparagus Fern | |
| *Berberis darwinii* | Darwin’s Berberry | |
| *Briza minor* | Shivery Grass | |
| *Briza maxima* | Quaking Grass | |
| *Buddleia variabilis* | Butterfly Bush | |
| *Calicotome spinosa* | Spiny broom | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Castanea spp.* | Chestnut | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cestrum elegans* | Red Cestrum | |
| *Chamaecytisus palmensis* | Tree Lucerne | |
| *Chrysanthemoides monilifera* | Boneseed | |
| *Chrysanthemum maximum* | Shasta Daisy | |
| *Cirsium vulgare* | Spear thistle | |
| *Conium maculatum* | Hemlock | |
| *Convolvulus spp.* | Bindweeds | |
| *Conyza bonariensis* | Tall Fleabane | |
| *Coprosma repens* | Mirror Bush | |
| *Coprosma repens* | Tuapata | |
| *Coprosma robusta* | Karamu | |
| *Cornus capitata* | Evergreen Dogwood | |
| *Cortaderia selloana* | Pampas Grass | |
| *Corymbia maculata* | Spotted Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cotoneaster spp.* | Cotoneaster | |
| *Crataegus monogyna* | Hawthorn | |
| *Crocosmia x crocosmiifolia* | Montbretia | |
| *Cytisus palmensis* | Tree Lucerne | |
| *Cytisus scoparius* | English Broom | |
| *Cynodon dactylon* | Couch grass | |
| *Cyperus erogrostis* | Drain Flat Sedge | |
| *Delairea odorata* | Cape Ivy | |
| *Dipogon lignosus* | Common Dipogon (Dolichos) | |
| *Dodonea viscose* | Sticky Hop Bush | |
| *Echium plantagineum* | Paterson’s Curse | |
| *Ehrharta erecta* | Panic Veldt Grass | |
| *Ehrharta longiflora* | Annual Veldt grass | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Erica baccans* | Berry-flower Heath | |
| *Erica lusitanica* | Spanish Heath | |
| *Euryops abrotanifolius* | Euryops | |
| *Foeniculum vulgare* | Fennel | |
| *Fraxinus angustifolia* | Narrow-leafed Ash | |
| *Fraxinus ornus* | Manna Ash | |
| *Fraxinus oxycarpa* | Caucasian Ash | |
| *Galium aparine* | Cleavers | |
| *Genista linifolia* | Flax Leaf Broom | |
| *Genista monspessulana* | Cape/Montpellier Broom | |
| *Hakea salicifolia* | Willow Hakea | |
| *Hakea sauveolens* | Sweet Hakea | |
| *Hedra helix* | English Ivy | |
| *Holcus lanatus* | Yorkshire Fog | |
| *Hypericum androsaemum* | Tutsan | |
| *Hypericum perforatum* | St.John's Wort | |
| *Hypericum tetrapterum* | St. Peter's Wort | |
| *Ilex aquifolium* | Holly | |
| *Ipomoea indica* | Morning Glory | |
| *Lathyrus latifolius* | Sweet Pea | |
| *Leycesteria Formosa* | Himilayan Honeysuckle | |
| *Lingustrum lucidum* | Broad-Leaved Privet | |
| *Ligustrum vulgare* | Privet | |
| *Lonicera japonica* | Japanese Honeysuckle | |
| *Malus spp* | Apple | |
| *Melaleuca armillaris* | Giant Honey Myrtle | |
| *Melaleuca hypericifolia* | Honey Myrtle | |
| *Myosotis sylvatica* | Common Forget-me-not | |
| *Myrsiphyillum scandens* | Asparagus Fern | |
| *Myrsiphyllum asparagoides* | Bridal Creeper | |
| *Myrsiphyllum asparagoides* | Smilax | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Oenothera stricta* | Common Evening Primrose | |
| *Opuntia aurantiaca* | Prickly Pear | |
| *Oxalis pes-caprae* | Soursob | |
| *Portulaca oleracea* | Common Purslane | |
| *Paraserianthis lopantha* | Cape Wattle | |
| *Passiflora sp. aff. mollissima* | Banana Passionfruit | |
| *Pentaglottis serpvirens* | Alkante | |
| *Phalaris aquatica* | Toowoomba Canary Grass | |
| *Pennisetum clandestinum* | Kikuyu | |
| *Phytolacca octandra* | Inkweed | |
| *Pinus radiata* | Montery Pine | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Pittosporum crassifolium* | Karo | |
| *Pittosporum undulatum* | Sweet Pittosporum | |
| *Polygalia myrtifolia* | Myrtle Leaf Milkwort | |
| *Populus tremuloides* | American Aspen | |
| *Prunus cerasifera* | Cherry Plum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Prunus laurocerasus* | Cherry Laurel | |
| *Prunus lusitanica* | Portugal Laurel | |
| *Prunus spp.* | Plum | Does not included Prunus cerasifera (Cherry Plum) |
| *Psoralea pinnata* | Bloukeur (Pinnate Scurf-Pea) | |
| *Pyracantha spp.* | Firethorns | |
| *Quercus spp.* | Oak | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Ranunculus repens* | Creeping Buttercup | |
| *Rhamnus alaternus* | Italian Buckthorn | |
| *Ricinus communis* | Castor Oil Plant | |
| *Robinia pseudacacia* | Black Locust | |
| *Romulea rosea var australis* | Onion Grass | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Rosa rubiginosa* | Sweet Briar | |
| *Rubus fruticosus spp. agg.* | Blackberry | |
| *Saliz babylonica* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salix spp.* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salpichroa origanifolia* | Pampas Lily of the Valley | |
| *Senecio jacobaea* | Ragwort | |
| *See Cape Wattle* | False Wattle | |
| *Solanum linnaeanum* | Apple of Sodom | |
| *Solanum mauritianum* | Tree Tobacco | |
| *Solanum nigrum* | Black Nightshade | |
| *Solanum pseudocapsicum* | Madeira Winter Cherry | |
| *Sollya heterophylla* | Blue-bell Creeper | |
| *Spartina anglica* | Common Cord-grass | |
| *Tradescantia fluminensis* | Wandering Jew/Trad | |
| *Trapaeolum majus* | Nasturtium | |
| *Ulex europaeus* | Gorse | |
| *Verbascum thapsus* | Great Mullein | |
| *Vibernum timus* | Laurestinus | |
| *Vinca major* | Blue Periwinkle | |
| *Viola odorata* | Fragrant Violet | |
| *Viola riviniana* | Wood Violet | |
| *Watsonia borbonica* | Rosy Watsonia | |
| *Watsonia meriana var. bulbillifera* | Bulbil Watsonia | |
| *Zantedeschia aethiopica* | White Arum Lily | |

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A photograph or site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.
- A description of the vegetation, including understorey to be removed, including the species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Location of any hollow bearing trees.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.
  - Any actions to contribute to the ongoing management of existing vegetation on the site.
  - Appropriately replace and/or compensate the loss of vegetation, if required.
- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 42.02 VEGETATION PROTECTION OVERLAY

Shown on the planning scheme map as **VPO2**.

**HILLS TOWNSHIPS**

### 1.0 Statement of nature and significance of vegetation to be protected

10/06/2021
C254card

The Hills Townships contain substantial areas of remnant indigenous, and mature exotic vegetation, which are important elements of the character of these residential areas This vegetation is often of environmental or landscape significance due to topography and view lines and contributes to the visual amenity of these areas.

Some residential areas contain remnant native vegetation, however due to the size of some lots, it is not protected by the native vegetation controls in Clause 52.17. This remnant vegetation is of particular importance as it provides both flora and fauna habitat and enhances local biolinks.

The vegetation in these areas also plays an important function in managing environmental conditions by providing habitat and biolinks, supporting soil stability, reducing stormwater runoff, limiting erosion and salinity and siltation of creeks and watercourses.

### 2.0 Vegetation protection objectives to be achieved

10/06/2021
C254card

To protect, and conserve existing vegetation as an important element of the character of residential areas in the Hills Townships by ensuring that this vegetation remains the predominant feature within the landscape.

To avoid and minimise the removal of vegetation where it assists in the management of environmental hazards such as erosion, salinity, siltation of creeks and watercourses, and stormwater runoff.

### 3.0 Permit requirement

10/06/2021
C254card

A permit is required to remove, destroy or lop any vegetation. This does not apply if:

- It is an exemption listed at Clause 52.12 (Bushfire Protection: Exemptions).
- The vegetation is a tree overhanging the roof of a building used for Accommodation. This exemption only allows the removal, destruction or lopping of that part of the tree which is overhanging the building and which is necessary for fire protection.
- The vegetation is dead as a result of natural circumstances or as a result of the spread of noxious weeds and which have been assessed as being suitable for removal by an authorised officer of the responsible authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electricity, electronic communications or the like, provided that the removal, destruction or lopping is undertaken in consultation with the responsible authority.
- It is necessary for maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.
- The vegetation is seedlings or regrowth less than 5 years old, the land has been previously been lawfully cleared and the land is being maintained for cultivation or pasture.
- It is the removal of any vegetation from an existing dam wall where the vegetation may impact on the structural stability of the dam wall.
- It is within 6 metres of an existing dwelling a lot less than 0.4 hectares.
- It is necessary for works associated with the normal operation of the Puffing Billy Tourist Railway as defined in the Schedule to the Public Use Zone under this planning scheme.

- The vegetation is required to be pruned or lopped (but not removed or destroyed) as part of normal domestic or horticultural practice for the species.
- The vegetation is an environmental weed contained in the table below; that is not listed under the Schedule to Clause 43.01 (Heritage Overlay) and there is no condition listed in the table:

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia baileyana* | Cootamundra Wattle | |
| *Acacia decurrens* | Early Black Wattle | |
| *Acacia elata* | Cedar Wattle | |
| *Acacia floribunda* | White Sallow Wattle | |
| *Acacia longifolia* | Coast/Sallow Wattle | |
| *Acacia saligna* | Golden Wreath Wattle | |
| *Acacia sophorae* | Coastal Wattle | |
| *Acer spp.* | Maple | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Agapanthus praecox orientalis* | African Lily | |
| *Allium triquetrum* | Angled Onion | |
| *Alstromeria aurea* | Peruvian Lily | |
| *Amaryllis belladonna* | Belladonna Lily | |
| *Anredera cordifolia* | Madeira vine | |
| *Anthoxanthum odoratum* | Sweet Vernal Grass | |
| *Arbutus unedo* | Strawberry Tree | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Arctotheca calendula* | Cape Weed | |
| *Asparagus asparagoides* | Bridal Creeper | |
| *Asparagus scandens* | Asparagus Fern | |
| *Berberis darwinii* | Darwin's Berberry | |
| *Briza minor* | Shivery Grass | |
| *Briza maxima* | Quaking Grass | |
| *Buddleia variabilis* | Butterfly Bush | |
| *Calicotome spinosa* | Spiny broom | |
| *Castanea spp.* | Chestnut | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |

| Botanical name | Common name | Condition |
|---|---|---|
| *Cestrum elegans* | Red Cestrum | |
| *Chamaecytisus palmensis* | Tree Lucerne | |
| *Chrysanthemoides monilifera* | Boneseed | |
| *Chrysanthemum maximum* | Shasta Daisy | |
| *Cirsium vulgare* | Spear thistle | |
| *Conium maculatum* | Hemlock | |
| *Convolvulus spp.* | Bindweeds | |
| *Conyza bonariensis* | Tall Fleabane | |
| *Coprosma repens* | Mirror Bush | |
| *Coprosma repens* | Tuapata | |
| *Coprosma robusta* | Karamu | |
| *Cornus capitata* | Evergreen Dogwood | |
| *Cortaderia selloana* | Pampas Grass | |
| *Corymbia maculata* | Spotted Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cotoneaster spp.* | Cotoneaster | |
| *Crataegus monogyna* | Hawthorn | |
| *Crocosmia x crocosmiifolia* | Montbretia | |
| *Cytisus palmensis* | Tree Lucerne | |
| *Cytisus scoparius* | English Broom | |
| *Cynodon dactylon* | Couch grass | |
| *Cyperus erogrostis* | Drain Flat Sedge | |
| *Delairea odorata* | Cape Ivy | |
| *Dipogon lignosus* | Common Dipogon (Dolichos) | |
| *Dodonea viscose* | Sticky Hop Bush | |
| *Echium plantagineum* | Paterson’s Curse | |
| *Ehrharta erecta* | Panic Veldt Grass | |
| *Ehrharta longiflora* | Annual Veldt grass | |
| *Erica baccans* | Berry-flower Heath | |
| *Erica lusitanica* | Spanish Heath | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Euryops abrotanifolius* | Euryops | |
| *Foeniculum vulgare* | Fennel | |
| *Fraxinus angustifolia* | Narrow-leafed Ash | |
| *Fraxinus ornus* | Manna Ash | |
| *Fraxinus oxycarpa* | Caucasian Ash | |
| *Galium aparine* | Cleavers | |
| *Genista linifolia* | Flax Leaf Broom | |
| *Genista monspessulana* | Cape/Montpellier Broom | |
| *Hakea salicifolia* | Willow Hakea | |
| *Hakea sauveolens* | Sweet Hakea | |
| *Hedra helix* | English Ivy | |
| *Holcus lanatus* | Yorkshire Fog | |
| *Hypericum androsaemum* | Tutsan | |
| *Hypericum perforatum* | St.John's Wort | |
| *Hypericum tetrapterum* | St. Peter's Wort | |
| *Ilex aquifolium* | Holly | |
| *Ipomoea indica* | Morning Glory | |
| *Lathyrus latifolius* | Sweet Pea | |
| *Leycesteria Formosa* | Himilayan Honeysuckle | |
| *Lingustrum lucidum* | Broad-Leaved Privet | |
| *Ligustrum vulgare* | Privet | |
| *Lonicera japonica* | Japanese Honeysuckle | |
| *Malus spp* | Apple | |
| *Melaleuca armillaris* | Giant Honey Myrtle | |
| *Melaleuca hypericifolia* | Honey Myrtle | |
| *Myosotis sylvatica* | Common Forget-me-not | |
| *Myrsiphyillum scandens* | Asparagus Fern | |
| *Myrsiphyllum asparagoides* | Bridal Creeper | |
| *Myrsiphyllum asparagoides* | Smilax | |
| *Oenothera stricta* | Common Evening Primrose | |
| *Opuntia aurantiaca* | Prickly Pear | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Oxalis pes-caprae* | Soursob | |
| *Portulaca oleracea* | Common Purslane | |
| *Paraserianthis lopantha* | Cape Wattle | |
| *Passiflora sp. aff. mollissima* | Banana Passionfruit | |
| *Pentaglottis serpvirens* | Alkante | |
| *Phalaris aquatica* | Toowoomba Canary Grass | |
| *Pennisetum clandestinum* | Kikuyu | |
| *Phytolacca octandra* | Inkweed | |
| *Pinus radiata* | Montery Pine | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Pittosporum crassifolium* | Karo | |
| *Pittosporum undulatum* | Sweet Pittosporum | |
| *Polygalia myrtifolia* | Myrtle Leaf Milkwort | |
| *Populus tremuloides* | American Aspen | |
| *Prunus cerasifera* | Cherry Plum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Prunus laurocerasus* | Cherry Laurel | |
| *Prunus lusitanica* | Portugal Laurel | |
| *Prunus spp.* | Plum | Does not included Prunus cerasifera (Cherry Plum) |
| *Psoralea pinnata* | Bloukeur (Pinnate Scurf-Pea) | |
| *Pyracantha spp.* | Firethorns | |
| *Quercus spp.* | Oak | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Ranunculus repens* | Creeping Buttercup | |
| *Rhamnus alaternus* | Italian Buckthorn | |
| *Ricinus communis* | Castor Oil Plant | |
| *Robinia pseudacacia* | Black Locust | |
| *Romulea rosea var australis* | Onion Grass | |
| *Rosa rubiginosa* | Sweet Briar | |
| *Rubus fruticosus spp. agg.* | Blackberry | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Saliz babylonica* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salix spp.* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salpichroa origanifolia* | Pampas Lily of the Valley | |
| *Senecio jacobaea* | Ragwort | |
| *See Cape Wattle* | False Wattle | |
| *Solanum linnaeanum* | Apple of Sodom | |
| *Solanum mauritianum* | Tree Tobacco | |
| *Solanum nigrum* | Black Nightshade | |
| *Solanum pseudocapsicum* | Madeira Winter Cherry | |
| *Sollya heterophylla* | Blue-bell Creeper | |
| *Spartina anglica* | Common Cord-grass | |
| *Tradescantia fluminensis* | Wandering Jew/Trad | |
| *Trapaeolum majus* | Nasturtium | |
| *Ulex europaeus* | Gorse | |
| *Verbascum thapsus* | Great Mullein | |
| *Vibernum timus* | Laurestinus | |
| *Vinca major* | Blue Periwinkle | |
| *Viola odorata* | Fragrant Violet | |
| *Viola riviniana* | Wood Violet | |
| *Watsonia borbonica* | Rosy Watsonia | |
| *Watsonia meriana var. bulbillifera* | Bulbil Watsonia | |
| *Zantedeschia aethiopica* | White Arum Lily | |

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A photograph or site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.

- A description of the vegetation, including any understorey to be removed, including the species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Location of any hollow bearing trees.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.
  - Any actions to contribute to the ongoing management of existing vegetation on the site.
  - Appropriately replace and/ or compensate the loss of vegetation, if required.
- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

10/06/2021
C254card

## SCHEDULE 3 TO CLAUSE 42.02 VEGETATION PROTECTION OVERLAY

Shown on the planning scheme map as **VPO3**.

### VEGETATION CONTROL FOR EMERALD TOWN CENTRE

### 1.0 Statement of nature and significance of vegetation to be protected

10/06/2021
C254card

Vegetation is an important element that contributes to the character of the hills townships, and is often of environmental or landscape significance. Within the Emerald Town Centre are areas of indigenous vegetation as well as exotic and deciduous vegetation that contribute to the character of the township. Hedge plantings of exotic species are notable features along Belgrave-Gembrook Road and roadside vegetation supports rare species such as the Emerald Star Bush. Some of these areas contain small lots and/or mature exotic vegetation which is not protected under the native vegetation controls of Clause 52.17 resulting in areas of vegetation becoming increasingly fragmented. The vegetation in the Emerald Town Centre:

- Provides a canopy backdrop to the built form
- Frames views across the valley corridor to the north
- Is a dominant element, with built form being recessive, particularly in the central commercial area of the township.
- Is provided in wide road reserves or, where the reserve is narrow, in large setbacks
- Is multi-layered and includes canopy trees as well as understorey
- Indicates the changing topography of the township, as it follows the ridgelines and surrounding valleys.

Emerald is also known for its historical connections to horticultural activities which has formed the basis for some of its exotic street tree plantings.

### 2.0 Vegetation protection objectives to be achieved

10/06/2021
C254card

To protect and conserve existing vegetation as an important element of the character of the Emerald Town Centre.

To prevent the incremental loss of vegetation.

### 3.0 Permit requirement

10/06/2021
C254card

A permit is required to remove, destroy or lop any vegetation. This includes the hedge plantings along Belgrave-Gembrook Road.

This does not apply if:

- It is an exemption listed at Clause 52.12 (Bushfire Protection: Exemptions).
- The vegetation is a tree overhanging the roof of a building used for Accommodation. This exemption only allows the removal, destruction or lopping of that part of the tree which is overhanging the building and which is necessary for fire protection.
- The vegetation is dead as a result of natural circumstances or as the result of the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electricity, electronic communications or the like, provided that the removal, destruction or lopping is undertaken in consultation with the responsible authority.
- It is necessary for maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.

- The vegetation is seedlings or regrowth less than 5 years old, the land has been previously been lawfully cleared and the land is being maintained for cultivation or pasture.
- It is necessary for works associated with the normal operation of the Puffing Billy Tourist Railway as defined in the Schedule to the Public Use Zone under this planning scheme.
- The vegetation is required to be pruned or lopped (but not removed) as part of normal horticultural practice for the species.
- The vegetation is an environmental weed contained in the table below; that is not listed under the Schedule to Clause 43.01 (Heritage Overlay) and there is no condition listed in the table:

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia baileyana* | Cootamundra Wattle | |
| *Acacia decurrens* | Early Black Wattle | |
| *Acacia elata* | Cedar Wattle | |
| *Acacia floribunda* | White Sallow Wattle | |
| *Acacia longifolia* | Coast/Sallow Wattle | |
| *Acacia saligna* | Golden Wreath Wattle | |
| *Acacia sophorae* | Coastal Wattle | |
| *Acer spp.* | Maple | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Agapanthus praecox orientalis* | African Lily | |
| *Allium triquetrum* | Angled Onion | |
| *Alstromeria aurea* | Peruvian Lily | |
| *Amaryllis belladonna* | Belladonna Lily | |
| *Anredera cordifolia* | Madeira vine | |
| *Anthoxanthum odoratum* | Sweet Vernal Grass | |
| *Arbutus unedo* | Strawberry Tree | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Arctotheca calendula* | Cape Weed | |
| *Asparagus asparagoides* | Bridal Creeper | |
| *Asparagus scandens* | Asparagus Fern | |
| *Berberis darwinii* | Darwin's Berberry | |
| *Briza minor* | Shivery Grass | |
| *Briza maxima* | Quaking Grass | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Buddleia variabilis* | Butterfly Bush | |
| *Calicotome spinosa* | Spiny broom | |
| *Castanea spp.* | Chestnut | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cestrum elegans* | Red Cestrum | |
| *Chamaecytisus palmensis* | Tree Lucerne | |
| *Chrysanthemoides monilifera* | Boneseed | |
| *Chrysanthemum maximum* | Shasta Daisy | |
| *Cirsium vulgare* | Spear thistle | |
| *Conium maculatum* | Hemlock | |
| *Convolvulus spp.* | Bindweeds | |
| *Conyza bonariensis* | Tall Fleabane | |
| *Coprosma repens* | Mirror Bush | |
| *Coprosma repens* | Tuapata | |
| *Coprosma robusta* | Karamu | |
| *Cornus capitata* | Evergreen Dogwood | |
| *Cortaderia selloana* | Pampas Grass | |
| *Corymbia maculata* | Spotted Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cotoneaster spp.* | Cotoneaster | |
| *Crataegus monogyna* | Hawthorn | |
| *Crocosmia x crocosmiifolia* | Montbretia | |
| *Cytisus palmensis* | Tree Lucerne | |
| *Cytisus scoparius* | English Broom | |
| *Cynodon dactylon* | Couch grass | |
| *Cyperus erogrostis* | Drain Flat Sedge | |
| *Delairea odorata* | Cape Ivy | |
| *Dipogon lignosus* | Common Dipogon (Dolichos) | |
| *Dodonea viscose* | Sticky Hop Bush | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Echium plantagineum* | Paterson's Curse | |
| *Ehrharta erecta* | Panic Veldt Grass | |
| *Ehrharta longiflora* | Annual Veldt grass | |
| *Erica baccans* | Berry-flower Heath | |
| *Erica lusitanica* | Spanish Heath | |
| *Euryops abrotanifolius* | Euryops | |
| *Foeniculum vulgare* | Fennel | |
| *Fraxinus angustifolia* | Narrow-leafed Ash | |
| *Fraxinus ornus* | Manna Ash | |
| *Fraxinus oxycarpa* | Caucasian Ash | |
| *Galium aparine* | Cleavers | |
| *Genista linifolia* | Flax Leaf Broom | |
| *Genista monspessulana* | Cape/Montpellier Broom | |
| *Hakea salicifolia* | Willow Hakea | |
| *Hakea sauveolens* | Sweet Hakea | |
| *Hedra helix* | English Ivy | |
| *Holcus lanatus* | Yorkshire Fog | |
| *Hypericum androsaemum* | Tutsan | |
| *Hypericum perforatum* | St.John's Wort | |
| *Hypericum tetrapterum* | St. Peter's Wort | |
| *Ilex aquifolium* | Holly | |
| *Ipomoea indica* | Morning Glory | |
| *Lathyrus latifolius* | Sweet Pea | |
| *Leycesteria Formosa* | Himilayan Honeysuckle | |
| *Lingustrum lucidum* | Broad-Leaved Privet | |
| *Ligustrum vulgare* | Privet | |
| *Lonicera japonica* | Japanese Honeysuckle | |
| *Malus spp* | Apple | |
| *Melaleuca armillaris* | Giant Honey Myrtle | |
| *Melaleuca hypericifolia* | Honey Myrtle | |
| *Myosotis sylvatica* | Common Forget-me-not | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Myrsiphyillum scandens* | Asparagus Fern | |
| *Myrsiphyllum asparagoides* | Bridal Creeper | |
| *Myrsiphyllum asparagoides* | Smilax | |
| *Oenothera stricta* | Common Evening Primrose | |
| *Opuntia aurantiaca* | Prickly Pear | |
| *Oxalis pes-caprae* | Soursob | |
| *Portulaca oleracea* | Common Purslane | |
| *Paraserianthis lopantha* | Cape Wattle | |
| *Passiflora sp. aff. mollissima* | Banana Passionfruit | |
| *Pentaglottis serpvirens* | Alkante | |
| *Phalaris aquatica* | Toowoomba Canary Grass | |
| *Pennisetum clandestinum* | Kikuyu | |
| *Phytolacca octandra* | Inkweed | |
| *Pinus radiata* | Montery Pine | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Pittosporum crassifolium* | Karo | |
| *Pittosporum undulatum* | Sweet Pittosporum | |
| *Polygalia myrtifolia* | Myrtle Leaf Milkwort | |
| *Populus tremuloides* | American Aspen | |
| *Prunus cerasifera* | Cherry Plum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Prunus laurocerasus* | Cherry Laurel | |
| *Prunus lusitanica* | Portugal Laurel | |
| *Prunus spp.* | Plum | Does not included Prunus cerasifera (Cherry Plum) |
| *Psoralea pinnata* | Bloukeur (Pinnate Scurf-Pea) | |
| *Pyracantha spp.* | Firethorns | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Quercus spp.* | Oak | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Ranunculus repens* | Creeping Buttercup | |
| *Rhamnus alaternus* | Italian Buckthorn | |
| *Ricinus communis* | Castor Oil Plant | |
| *Robinia pseudacacia* | Black Locust | |
| *Romulea rosea var australis* | Onion Grass | |
| *Rosa rubiginosa* | Sweet Briar | |
| *Rubus fruticosus spp. agg.* | Blackberry | |
| *Saliz babylonica* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salix spp.* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salpichroa origanifolia* | Pampas Lily of the Valley | |
| *Senecio jacobaea* | Ragwort | |
| *See Cape Wattle* | False Wattle | |
| *Solanum linnaeanum* | Apple of Sodom | |
| *Solanum mauritianum* | Tree Tobacco | |
| *Solanum nigrum* | Black Nightshade | |
| *Solanum pseudocapsicum* | Madeira Winter Cherry | |
| *Sollya heterophylla* | Blue-bell Creeper | |
| *Spartina anglica* | Common Cord-grass | |
| *Tradescantia fluminensis* | Wandering Jew/Trad | |
| *Trapaeolum majus* | Nasturtium | |
| *Ulex europaeus* | Gorse | |
| *Verbascum thapsus* | Great Mullein | |
| *Vibernum timus* | Laurestinus | |
| *Vinca major* | Blue Periwinkle | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Viola odorata* | Fragrant Violet | |
| *Viola riviniana* | Wood Violet | |
| *Watsonia borbonica* | Rosy Watsonia | |
| *Watsonia meriana var. bulbillifera* | Bulbil Watsonia | |
| *Zantedeschia aethiopica* | White Arum Lily | |

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A photograph or site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.
- A description of the vegetation to be removed, including the understorey, species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Location of any hollow bearing trees.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.
  - Any actions to contribute to the ongoing management of existing vegetation on the site.
  - Appropriately replace and/or compensate the loss of vegetation, if required.
- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.02, in addition to those specified in Clause 42.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The conservation and enhancement of the landscape character and biodiversity of the area.
- The contribution to the visual amenity of the area and the impact on the landscape character of the area.

# 42.03 SIGNIFICANT LANDSCAPE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **SLO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify significant landscapes.

To conserve and enhance the character of significant landscapes.

## 42.03-1 Landscape character and objectives

31/07/2018
VC148

A schedule to this overlay must contain:

- A statement of the nature and key elements of the landscape.
- The landscape character objectives to be achieved.

## 42.03-2 Permit requirement

14/12/2023
VC253

A permit is required to:

- Construct a building or construct or carry out works. This does not apply:
  - If a schedule to this overlay specifically states that a permit is not required.
  - To the conduct of agricultural activities including ploughing and fencing (but not the construction of dams) unless a specific requirement for that activity is specified in a schedule to this overlay.
- Construct a fence if specified in the schedule to this overlay.
- Remove, destroy or lop any vegetation specified in a schedule to this overlay. This does not apply:
  - If the table to Clause 42.03-3 specifically states that a permit is not required.
  - To the removal, destruction or lopping of native vegetation in accordance with a native vegetation precinct plan specified in the schedule to Clause 52.16.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a fence. | Clause 59.05 |
| Remove, destroy or lop one tree provided:<br>▪ A permit has not been granted for a VicSmart application to remove, destroy or lop a tree on the same land within the last 12 months.<br>▪ There is no other current VicSmart application to remove, destroy or lop a tree on the same land. | Clause 59.06 |
| Construct a building or construct or carry out works for:<br>▪ A carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ A rainwater tank. | Clause 59.05 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| The buildings and works must be associated with a dwelling. | |
| Construct a building or construct or carry out works for a small second dwelling. | Clause 59.05 |

## 42.03-3 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Emergency works** | Vegetation that is to be removed, destroyed or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintaining of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making of strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ is ground fuel within 30 metres of a building and is vegetation other than native vegetation;<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire of a roadside of a public road managed by the relevant responsible road authority, and carried out by or on behalf of that authority, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with operation plan approved under the *Geothermal Energy Resources Act 2005*. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Greenhouse gas sequestration and exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management or directions notice** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Noxious weeds** | Vegetation that is a noxious weed subject of a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (*Cuscuta australis*). |
| **Pest animal burrows** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows.<br>In the case of native vegetation the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988* is required before the vegetation can be removed, destroyed or lopped. |
| **Planted vegetation** | Vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |
| **Railways** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established vegetation, and is<br>▪ bracken (*Pteridium esculentum*); or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land on which vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by and on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing public road in accordance with written agreement of the Secretary of the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of vegetation which does not include a tree. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ 15 trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resources agreement under Part 6 of the *Traditional Owners Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional owners Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure. |

## 42.03-4 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 42.03-5 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The statement of the nature and key elements of the landscape and the landscape character objective contained in a schedule to this overlay.
- The conservation and enhancement of the landscape values of the area.
- The need to remove, destroy or lop vegetation to create a defendable space to reduce the risk of bushfire to life and property.
- The impact of the proposed buildings and works on the landscape due to height, bulk, colour, general appearance or the need to remove vegetation.
- The extent to which the buildings and works are designed to enhance or promote the landscape character objectives of the area.
- The impact of buildings and works on significant views.
- Any other matters specified in a schedule to this overlay.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO1**.

### PUFFING BILLY TOURIST RAILWAY SCENIC CORRIDOR

### 1.0 Statement of nature and key elements of landscape

10/06/2021
C254card

The Puffing Billy Tourist Railway is a significant part of Victoria's cultural heritage and is a popular tourist attraction within the region. A major attraction of the Puffing Billy Tourist Railway is the scenic views over rural and natural landscapes as it passes through the foothills of the Dandenong Ranges. It is important that the landscape and environmental qualities of the scenic corridor, which has been recognised by the National Trust, are protected and that any development is sited and designed to integrate with or enhance the landscape.

The scenic corridor also provides an important biolink between the Dandenong Ranges National Park in the west, parks adjacent to the corridor such as Wright Forest and parks to the east such as Gembrook Park and further to the east, Bunyip State Park. Rare plants such as the Emerald Star Bush are found along the corridor.

Background documents: "Puffing Billy Corridor Landscape Evaluation Study" (Scenic Spectrums, May 1992)

### 2.0 Landscape character objectives to be achieved

10/06/2021
C254card

To recognise the importance of the rural and natural landscape in the scenic corridor and views from the railway line as a significant attraction of the Puffing Billy Tourist Railway.

To ensure that any development on land within the scenic corridor is appropriately sited and designed to have a minimal impact in the immediate corridor and viewlines.

To encourage the retention of vegetation and, wherever possible, promote natural regeneration, revegetation, reafforestation and long-term management of vegetation to prevent the incremental loss of vegetation.

To support the biolink along the corridor.

### 3.0 Permit requirement

10/06/2021
C254card

A permit is not required to construct a building or construct or carry out works associated with the day-to-day operation of the Puffing Billy Tourist Railway by the Emerald Tourist Railway Board, including to remove, destroy or lop vegetation as defined in the Schedule to the Public Use Zone at Clause 36.01 under this Planning Scheme.

A permit is not required to construct a building or construct or carry out works provided all of the following requirements are met:

- Building materials and finishes are non-reflective and subdued colours which complement the environment to the satisfaction of the Responsible Authority.
- The height of any dwelling does not exceed 7 metres above natural ground level and the height of all other buildings does not exceed 4 metres above natural ground level.

In addition to the exemptions under Clause 52.12 (Bushfire Protection: Exemptions), a permit is not required to remove, destroy or lop any vegetation if:

- The vegetation is a tree overhanging the roof of a building used for Accommodation. This exemption only allows the removal, destruction or lopping of that part of the tree which is overhanging the building and which is necessary for fire protection.
- The vegetation is dead as a result of natural circumstances or the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible

authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.

- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electricity, electronic communications or the like, provided that the removal, destruction or lopping is undertaken in consultation with the responsible authority.
- It is necessary for maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.
- The vegetation is seedlings or regrowth less than 5 years old, the land has been previously been lawfully cleared and the land is being maintained for cultivation or pasture.
- The vegetation is to be removed, destroyed or lopped by cutting only to obtain reasonable amounts of wood for personal use by the owner or occupier of the land. Personal use is wood used for firewood, the construction of fences on the same land, and hobbies such as craft. This exemption does not apply to:
  - Standing living and dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
  - Living native vegetation on contiguous land in the same ownership with an area less than 10 hectares.
- It is the removal of any vegetation from an existing dam wall where the vegetation may impact on the structural stability of the dam wall.
- It is within 6 metres of an existing dwelling on a lot less than 0.4 hectares.
- The vegetation is required to be pruned or lopped (but not removed) as part of normal domestic or horticultural practice for the species.
- The vegetation is an environmental weed contained in the table below; that is not listed under the Schedule to Clause 43.01 (Heritage Overlay) and there is no condition listed in the table:

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia baileyana* | Cootamundra Wattle | |
| *Acacia decurrens* | Early Black Wattle | |
| *Acacia elata* | Cedar Wattle | |
| *Acacia floribunda* | White Sallow Wattle | |
| *Acacia longifolia* | Coast/Sallow Wattle | |
| *Acacia saligna* | Golden Wreath Wattle | |
| *Acacia sophorae* | Coastal Wattle | |
| *Acer spp.* | Maple | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Agapanthus praecox orientalis* | African Lily | |
| *Allium triquetrum* | Angled Onion | |
| *Alstromeria aurea* | Peruvian Lily | |
| *Amaryllis belladonna* | Belladonna Lily | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Anredera cordifolia* | Madeira vine | |
| *Anthoxanthum odoratum* | Sweet Vernal Grass | |
| *Arbutus unedo* | Strawberry Tree | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Arctotheca calendula* | Cape Weed | |
| *Asparagus asparagoides* | Bridal Creeper | |
| *Asparagus scandens* | Asparagus Fern | |
| *Berberis darwinii* | Darwin's Berberry | |
| *Briza minor* | Shivery Grass | |
| *Briza maxima* | Quaking Grass | |
| *Buddleia variabilis* | Butterfly Bush | |
| *Calicotome spinosa* | Spiny broom | |
| *Castanea spp.* | Chestnut | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cestrum elegans* | Red Cestrum | |
| *Chamaecytisus palmensis* | Tree Lucerne | |
| *Chrysanthemoides monilifera* | Boneseed | |
| *Chrysanthemum maximum* | Shasta Daisy | |
| *Cirsium vulgare* | Spear thistle | |
| *Conium maculatum* | Hemlock | |
| *Convolvulus spp.* | Bindweeds | |
| *Conyza bonariensis* | Tall Fleabane | |
| *Coprosma repens* | Mirror Bush | |
| *Coprosma repens* | Tuapata | |
| *Coprosma robusta* | Karamu | |
| *Cornus capitata* | Evergreen Dogwood | |
| *Cortaderia selloana* | Pampas Grass | |
| *Corymbia maculata* | Spotted Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cotoneaster spp.* | Cotoneaster | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Crataegus monogyna* | Hawthorn | |
| *Crocosmia x crocosmiifolia* | Montbretia | |
| *Cytisus palmensis* | Tree Lucerne | |
| *Cytisus scoparius* | English Broom | |
| *Cynodon dactylon* | Couch grass | |
| *Cyperus erogrostis* | Drain Flat Sedge | |
| *Delairea odorata* | Cape Ivy | |
| *Dipogon lignosus* | Common Dipogon (Dolichos) | |
| *Dodonea viscose* | Sticky Hop Bush | |
| *Echium plantagineum* | Paterson's Curse | |
| *Ehrharta erecta* | Panic Veldt Grass | |
| *Ehrharta longiflora* | Annual Veldt grass | |
| *Erica baccans* | Berry-flower Heath | |
| *Erica lusitanica* | Spanish Heath | |
| *Euryops abrotanifolius* | Euryops | |
| *Foeniculum vulgare* | Fennel | |
| *Fraxinus angustifolia* | Narrow-leafed Ash | |
| *Fraxinus ornus* | Manna Ash | |
| *Fraxinus oxycarpa* | Caucasian Ash | |
| *Galium aparine* | Cleavers | |
| *Genista linifolia* | Flax Leaf Broom | |
| *Genista monspessulana* | Cape/Montpellier Broom | |
| *Hakea salicifolia* | Willow Hakea | |
| *Hakea sauveolens* | Sweet Hakea | |
| *Hedra helix* | English Ivy | |
| *Holcus lanatus* | Yorkshire Fog | |
| *Hypericum androsaemum* | Tutsan | |
| *Hypericum perforatum* | St.John's Wort | |
| *Hypericum tetrapterum* | St. Peter's Wort | |
| *Ilex aquifolium* | Holly | |
| *Ipomoea indica* | Morning Glory | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Lathyrus latifolius* | Sweet Pea | |
| *Leycesteria Formosa* | Himilayan Honeysuckle | |
| *Lingustrum lucidum* | Broad-Leaved Privet | |
| *Ligustrum vulgare* | Privet | |
| *Lonicera japonica* | Japanese Honeysuckle | |
| *Malus spp* | Apple | |
| *Melaleuca armillaris* | Giant Honey Myrtle | |
| *Melaleuca hypericifolia* | Honey Myrtle | |
| *Myosotis sylvatica* | Common Forget-me-not | |
| *Myrsiphyillum scandens* | Asparagus Fern | |
| *Myrsiphyllum asparagoides* | Bridal Creeper | |
| *Myrsiphyllum asparagoides* | Smilax | |
| *Oenothera stricta* | Common Evening Primrose | |
| *Opuntia aurantiaca* | Prickly Pear | |
| *Oxalis pes-caprae* | Soursob | |
| *Portulaca oleracea* | Common Purslane | |
| *Paraserianthis lopantha* | Cape Wattle | |
| *Passiflora sp. aff. mollissima* | Banana Passionfruit | |
| *Pentaglottis serpvirens* | Alkante | |
| *Phalaris aquatica* | Toowoomba Canary Grass | |
| *Pennisetum clandestinum* | Kikuyu | |
| *Phytolacca octandra* | Inkweed | |
| *Pinus radiata* | Montery Pine | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Pittosporum crassifolium* | Karo | |
| *Pittosporum undulatum* | Sweet Pittosporum | |
| *Polygalia myrtifolia* | Myrtle Leaf Milkwort | |
| *Populus tremuloides* | American Aspen | |
| *Prunus cerasifera* | Cherry Plum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |

| Botanical name | Common name | Condition |
|---|---|---|
| *Prunus laurocerasus* | Cherry Laurel | |
| *Prunus lusitanica* | Portugal Laurel | |
| *Prunus spp.* | Plum | Does not included Prunus cerasifera (Cherry Plum) |
| *Psoralea pinnata* | Bloukeur (Pinnate Scurf-Pea) | |
| *Pyracantha spp.* | Firethorns | |
| *Quercus spp.* | Oak | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Ranunculus repens* | Creeping Buttercup | |
| *Rhamnus alaternus* | Italian Buckthorn | |
| *Ricinus communis* | Castor Oil Plant | |
| *Robinia pseudacacia* | Black Locust | |
| *Romulea rosea var australis* | Onion Grass | |
| *Rosa rubiginosa* | Sweet Briar | |
| *Rubus fruticosus spp. agg.* | Blackberry | |
| *Saliz babylonica* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salix spp.* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salpichroa origanifolia* | Pampas Lily of the Valley | |
| *Senecio jacobaea* | Ragwort | |
| *See Cape Wattle* | False Wattle | |
| *Solanum linnaeanum* | Apple of Sodom | |
| *Solanum mauritianum* | Tree Tobacco | |
| *Solanum nigrum* | Black Nightshade | |
| *Solanum pseudocapsicum* | Madeira Winter Cherry | |
| *Sollya heterophylla* | Blue-bell Creeper | |
| *Spartina anglica* | Common Cord-grass | |
| *Tradescantia fluminensis* | Wandering Jew/Trad | |
| *Trapaeolum majus* | Nasturtium | |
| *Ulex europaeus* | Gorse | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Verbascum thapsus* | Great Mullein | |
| *Vibernum timus* | Laurestinus | |
| *Vinca major* | Blue Periwinkle | |
| *Viola odorata* | Fragrant Violet | |
| *Viola riviniana* | Wood Violet | |
| *Watsonia borbonica* | Rosy Watsonia | |
| *Watsonia meriana var. bulbillifera* | Bulbil Watsonia | |
| *Zantedeschia aethiopica* | White Arum Lily | |

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.03, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

Buildings and works:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation proposed to be removed.
- Details of the location and extent of any earthworks.

To remove, destroy or lop vegetation:

- A photograph or site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.
- A description of the vegetation including understorey to be removed, including the species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.
  - Any actions to contribute to the ongoing management of existing vegetation on the site.
  - Appropriately replace and/or compensate the loss of vegetation, if required.
- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.03, in addition to those specified in Clause 42.03 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The advice of the Emerald Tourist Railway Board.
- The recommendations in the Puffing Billy Corridor Landscape Evaluation Study (Scenic Spectrums, May 1992).
- Any revegetation proposed as part of the application.
- Consideration of appropriate environmental management practices, including replanting of native vegetation and ongoing protection and management of vegetation and habitat areas.
- Maintenance and enhancement of the rural landscape.
- Impacts on view lines and the scenic corridor along the Puffing Billy railway line.

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO2**.

**WESTERN PORT**

### 1.0 Statement of nature and key elements of landscape

10/06/2021
C254card

The northern coastline of Western Port between Tooradin and Koo-wee-rup has been recognised by the National Trust as a significant landscape. The area includes the outlet channels for Cardinia Creek and the Bunyip River, which were dug as part of the draining of the Koo-wee-rup Swamp, as well as the historic Harewood Homestead, which has also been recognised by the National Trust. Development requires sensitive siting and design to avoid significant intrusion into the landscape of Western Port.

### 2.0 Landscape character objectives to be achieved

10/06/2021
C254card

To conserve and enhance the landscape quality of Western Port.

To conserve the flora and fauna and associated ecological processes which contribute to the Westernport landscape.

To ensure development is in keeping with the coastal landscape of Western Port.

### 3.0 Permit requirement

10/06/2021
C254card

A permit is required to remove, destroy or lop any vegetation. This does not apply if:

- The vegetation is an environmental weed known as Sweet Pittosporum (*Pittosporum undulatum*) or Common Cord grass (Spartina anglica).
- The vegetation is dead as a result of natural circumstances or the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
- The vegetation is seedlings or regrowth less than 5 years old, the land has been previously been lawfully cleared and the land is being maintained for cultivation or pasture.
- It is the removal of any vegetation from an existing dam wall where the vegetation may impact on the structural stability of the dam wall.
- The vegetation is required to be pruned or lopped (but not removed or destroyed) as part of normal domestic or horticultural practice for the species.

### 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.03, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

Buildings and works:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation proposed to be removed.
- Details of the location and extent of any earthworks.

To remove, destroy or lop vegetation:

- A photograph and site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.

- A description of the vegetation including understorey to be removed, including the species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.
  - Any actions to contribute to the ongoing management of existing vegetation on the site.
  - Appropriately replace and/ or compensate the loss of vegetation, if required.
- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

10/06/2021
C254card

# SCHEDULE 3 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO3**.

**LANG LANG/HEATH HILL**

## 1.0 Statement of nature and key elements of landscape

10/06/2021
C254card

The Heath Hill landscape extends east from the township of Lang Lang to Nyora in the south and Poowong in the east. The area, which has been recognised by the National Trust, includes landforms which range from alluvial river flats, through sandy heaths to rolling hills which reach elevations of 182 metres. The area is crossed by tributaries of the Lang Lang River which form a catchment area that drains into Western Port. The area contains one of the last extensive heathy woodland remnants in the Western Port region and is a mixture of cleared pasture land which contains clumps of indigenous areas of heath and Messmate forest, particularly along the stream and road lines. Scenic views are available from elevated points with views across the river flats and to Western Port. The environmental characteristics of the landscape are sensitive to any further fragmentation or development.

## 2.0 Landscape character objectives to be achieved

10/06/2021
C254card

To protect and enhance the environmental and landscape values of the Lang Lang/Heath Hill area.

To protect, conserve and improve habitat for flora and fauna which contributes to the significance of the landscape and provides fauna habitat and biolinks.

To ensure that any new buildings and works are located and designed to avoid detrimental effects on the key characteristics of the landscape.

To maintain and protect vegetation as an important element within the landscape.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is not required to construct a building or construct or carry out works provided all of the following requirements are met:

- Building materials and finishes are non-reflective and subdued colours which complement the environment.
- The height of any dwelling does not exceed 7 metres above natural ground level and the height of all other buildings does not exceed 4 metres above natural ground level.
- The works must not involve the excavation of land exceeding 1 metre or filling of land exceeding 1 metre except for a swimming pool associated with an existing dwelling.
- The buildings and works must not result in the removal or destruction of native vegetation (including trees, shrubs, herbs, sedges and grasses), with the exception of noxious and environmental weeds as listed in the table in this Schedule.
- The building is an extension to an existing dwelling that is less than 50 per cent of the gross floor area of the existing dwelling area.
- The building is an outbuilding ancillary to a dwelling, and the gross floor area of all outbuildings on the land must not exceed 120 square metres.
- The building is in a Green Wedge Zone and is associated with the existing use of the land for agricultural purposes, and the gross floor area of the building must not exceed 160 square metres.

In addition to the exemptions under Clause 52.12 (Bushfire Protection: Exemptions), a permit is not required to remove, destroy or lop any vegetation if:

- The vegetation is a tree overhanging the roof of a building used for Accommodation. This exemption only allows the removal, destruction or lopping of that part of the tree which is overhanging the building and which is necessary for fire protection.
- The vegetation is dead as a result of natural circumstances or the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority. This exemption does not apply to standing dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electricity, electronic communications or the like, provided that the removal, destruction or lopping is undertaken in consultation with the responsible authority.
- It is necessary for maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.
- The vegetation is seedlings or regrowth less than 5 years old, the land has been previously been lawfully cleared and the land is being maintained for cultivation or pasture.
- The vegetation is to be removed, destroyed or lopped by cutting only to obtain reasonable amounts of wood for personal use by the owner or occupier of the land. Personal use is wood used for firewood, the construction of fences on the same land, and hobbies such as craft. This exemption does not apply to:
  - Standing living and dead trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.
  - Living native vegetation on contiguous land in the same ownership with an area less than 10 hectares.
- It is the removal of any vegetation from an existing dam wall where the vegetation may impact on the structural stability of the dam wall.
- It is within 6 metres of an existing dwelling on a lot less than 0.4 hectares.
- The vegetation is required to be pruned or lopped (but not removed) as part of normal domestic or horticultural practice for the species.
- The vegetation is an environmental weed contained in the table below; that is not listed under the Schedule to Clause 43.01 (Heritage Overlay) and there is no condition listed in the table:

| Botanical name | Common name | Condition |
|---|---|---|
| *Acacia baileyana* | Cootamundra Wattle | |
| *Acacia decurrens* | Early Black Wattle | |
| *Acacia elata* | Cedar Wattle | |
| *Acacia floribunda* | White Sallow Wattle | |
| *Acacia longifolia* | Coast/Sallow Wattle | |
| *Acacia saligna* | Golden Wreath Wattle | |
| *Acacia sophorae* | Coastal Wattle | |
| *Acer spp.* | Maple | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Agapanthus praecox orientalis* | African Lily | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Allium triquetrum* | Angled Onion | |
| *Alstromeria aurea* | Peruvian Lily | |
| *Amaryllis belladonna* | Belladonna Lily | |
| *Anredera cordifolia* | Madeira vine | |
| *Anthoxanthum odoratum* | Sweet Vernal Grass | |
| *Arbutus unedo* | Strawberry Tree | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Arctotheca calendula* | Cape Weed | |
| *Asparagus asparagoides* | Bridal Creeper | |
| *Asparagus scandens* | Asparagus Fern | |
| *Berberis darwinii* | Darwin's Berberry | |
| *Briza minor* | Shivery Grass | |
| *Briza maxima* | Quaking Grass | |
| *Buddleia variabilis* | Butterfly Bush | |
| *Calicotome spinosa* | Spiny broom | |
| *Castanea spp.* | Chestnut | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cestrum elegans* | Red Cestrum | |
| *Chamaecytisus palmensis* | Tree Lucerne | |
| *Chrysanthemoides monilifera* | Boneseed | |
| *Chrysanthemum maximum* | Shasta Daisy | |
| *Cirsium vulgare* | Spear thistle | |
| *Conium maculatum* | Hemlock | |
| *Convolvulus spp.* | Bindweeds | |
| *Conyza bonariensis* | Tall Fleabane | |
| *Coprosma repens* | Mirror Bush | |
| *Coprosma repens* | Tuapata | |
| *Coprosma robusta* | Karamu | |
| *Cornus capitata* | Evergreen Dogwood | |
| *Cortaderia selloana* | Pampas Grass | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Corymbia maculata* | Spotted Gum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Cotoneaster spp.* | Cotoneaster | |
| *Crataegus monogyna* | Hawthorn | |
| *Crocosmia x crocosmiifolia* | Montbretia | |
| *Cytisus palmensis* | Tree Lucerne | |
| *Cytisus scoparius* | English Broom | |
| *Cynodon dactylon* | Couch grass | |
| *Cyperus erogrostis* | Drain Flat Sedge | |
| *Delairea odorata* | Cape Ivy | |
| *Dipogon lignosus* | Common Dipogon (Dolichos) | |
| *Dodonea viscose* | Sticky Hop Bush | |
| *Echium plantagineum* | Paterson's Curse | |
| *Ehrharta erecta* | Panic Veldt Grass | |
| *Ehrharta longiflora* | Annual Veldt grass | |
| *Erica baccans* | Berry-flower Heath | |
| *Erica lusitanica* | Spanish Heath | |
| *Euryops abrotanifolius* | Euryops | |
| *Foeniculum vulgare* | Fennel | |
| *Fraxinus angustifolia* | Narrow-leafed Ash | |
| *Fraxinus ornus* | Manna Ash | |
| *Fraxinus oxycarpa* | Caucasian Ash | |
| *Galium aparine* | Cleavers | |
| *Genista linifolia* | Flax Leaf Broom | |
| *Genista monspessulana* | Cape/Montpellier Broom | |
| *Hakea salicifolia* | Willow Hakea | |
| *Hakea sauveolens* | Sweet Hakea | |
| *Hedra helix* | English Ivy | |
| *Holcus lanatus* | Yorkshire Fog | |
| *Hypericum androsaemum* | Tutsan | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Hypericum perforatum* | St.John's Wort | |
| *Hypericum tetrapterum* | St. Peter's Wort | |
| *Ilex aquifolium* | Holly | |
| *Ipomoea indica* | Morning Glory | |
| *Lathyrus latifolius* | Sweet Pea | |
| *Leycesteria Formosa* | Himilayan Honeysuckle | |
| *Lingustrum lucidum* | Broad-Leaved Privet | |
| *Ligustrum vulgare* | Privet | |
| *Lonicera japonica* | Japanese Honeysuckle | |
| *Malus spp* | Apple | |
| *Melaleuca armillaris* | Giant Honey Myrtle | |
| *Melaleuca hypericifolia* | Honey Myrtle | |
| *Myosotis sylvatica* | Common Forget-me-not | |
| *Myrsiphyillum scandens* | Asparagus Fern | |
| *Myrsiphyllum asparagoides* | Bridal Creeper | |
| *Myrsiphyllum asparagoides* | Smilax | |
| *Oenothera stricta* | Common Evening Primrose | |
| *Opuntia aurantiaca* | Prickly Pear | |
| *Oxalis pes-caprae* | Soursob | |
| *Portulaca oleracea* | Common Purslane | |
| *Paraserianthis lopantha* | Cape Wattle | |
| *Passiflora sp. aff. mollissima* | Banana Passionfruit | |
| *Pentaglottis serpvirens* | Alkante | |
| *Phalaris aquatica* | Toowoomba Canary Grass | |
| *Pennisetum clandestinum* | Kikuyu | |
| *Phytolacca octandra* | Inkweed | |
| *Pinus radiata* | Montery Pine | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Pittosporum crassifolium* | Karo | |
| *Pittosporum undulatum* | Sweet Pittosporum | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Polygalia myrtifolia* | Myrtle Leaf Milkwort | |
| *Populus tremuloides* | American Aspen | |
| *Prunus cerasifera* | Cherry Plum | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Prunus laurocerasus* | Cherry Laurel | |
| *Prunus lusitanica* | Portugal Laurel | |
| *Prunus spp.* | Plum | Does not included Prunus cerasifera (Cherry Plum) |
| *Psoralea pinnata* | Bloukeur (Pinnate Scurf-Pea) | |
| *Pyracantha spp.* | Firethorns | |
| *Quercus spp.* | Oak | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Ranunculus repens* | Creeping Buttercup | |
| *Rhamnus alaternus* | Italian Buckthorn | |
| *Ricinus communis* | Castor Oil Plant | |
| *Robinia pseudacacia* | Black Locust | |
| *Romulea rosea var australis* | Onion Grass | |
| *Rosa rubiginosa* | Sweet Briar | |
| *Rubus fruticosus spp. agg.* | Blackberry | |
| *Saliz babylonica* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salix spp.* | Weeping willow | Diameter at 1.3 metres above natural ground level must not exceed 40 centimetres |
| *Salpichroa origanifolia* | Pampas Lily of the Valley | |
| *Senecio jacobaea* | Ragwort | |
| *See Cape Wattle* | False Wattle | |
| *Solanum linnaeanum* | Apple of Sodom | |
| *Solanum mauritianum* | Tree Tobacco | |
| *Solanum nigrum* | Black Nightshade | |
| *Solanum pseudocapsicum* | Madeira Winter Cherry | |

| Botanical name | Common name | Condition |
|---|---|---|
| *Sollya heterophylla* | Blue-bell Creeper | |
| *Spartina anglica* | Common Cord-grass | |
| *Tradescantia fluminensis* | Wandering Jew/Trad | |
| *Trapaeolum majus* | Nasturtium | |
| *Ulex europaeus* | Gorse | |
| *Verbascum thapsus* | Great Mullein | |
| *Vibernum timus* | Laurestinus | |
| *Vinca major* | Blue Periwinkle | |
| *Viola odorata* | Fragrant Violet | |
| *Viola riviniana* | Wood Violet | |
| *Watsonia borbonica* | Rosy Watsonia | |
| *Watsonia meriana var. bulbillifera* | Bulbil Watsonia | |
| *Zantedeschia aethiopica* | White Arum Lily | |

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.03, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

Buildings and works:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation including understorey proposed to be removed.
- Details of the location and extent of any earthworks.

To remove, destroy or lop vegetation:

- A photograph or site plan (drawn to scale) showing the boundaries of the site, existing vegetation and the vegetation to be removed.
- A description of the vegetation to be removed, including the species, extent, number and size (diameter at 1.3 metres above natural ground level) of any trees to be removed and the Ecological Vegetation Class of native vegetation.
- Topographic information, highlighting ridges, crests and hilltops, streams and waterways, slopes of more than 20 percent, drainage lines, low lying areas, saline discharge areas, and areas of existing erosion.
- A written explanation of the steps that have been taken to:
  - Avoid the removal of vegetation, where possible.
  - Minimise the removal of vegetation.

  - Any actions to contribute to the ongoing management of existing vegetation on the site.
  - Appropriately replace and/or compensate the loss of vegetation, if required.

- A copy of any property vegetation plan that applies to the site.
- Where the removal, destruction or lopping of vegetation is to create defendable space, a statement explaining why removal, destruction or lopping of vegetation is required having regard to other available bushfire risk mitigation measures. This does not apply to the creation of defendable space in conjunction with an application under the Bushfire Management Overlay.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

10/06/2021
C254card

## SCHEDULE 4 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO4**.

**MENZIES CREEK VALLEY**

### 1.0 Statement of nature and key elements of landscape

10/06/2021
C254card

The Menzies Creek valley is a small steep-sided valley, the area of which is generally bounded by Jacksons Hill Road, Belgrave Road, Ridge Road and a section of Menzies Creek. The landscape is significant as it provides a variety of scenic views from the Belgrave-Gembrook Road and the Puffing Billy railway line and is recognised as one of the most scenic tourist routes in the Dandenong Ranges. The eastern end of the valley on the Menzies Creek walking track contains one of the most southerly record of Mountain Ash in the Dandenong Ranges and the limited stands of native vegetation along the creek provide viable habitats for native animals. Much of the area has been cleared and limited residential development has been established. Additional development would require sensitive siting and design to avoid significant intrusion into the predominantly rural landscape.

### 2.0 Landscape character objectives to be achieved

10/06/2021
C254card

To protect and enhance the environmental, scenic and visual values of the Menzies Creek valley.

To ensure that any new development is located and designed to avoid detrimental effects on the key characteristics of the landscape.

To retain and conserve vegetation as an important element within the classified landscape.

### 3.0 Permit requirement

10/06/2021
C254card

A permit is required to remove, destroy or lop any vegetation. This does not apply if:

- The vegetation is an environmental weed known as Sweet Pittosporum (Pittosporum undulatum).

In accordance with Section 52(1)(c) of the Act, notice of an application to construct a building or construct or carry out works (including an sign) must be given to the person or body specified as a person or body to be notified in Clause 66.06 or a schedule to that clause.

### 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.03, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation proposed to be removed.
- Details of the location and extent of any earthworks.

### 5.0 Decision guidelines

10/06/2021
C254card

None specified.

10/06/2021
C254card

# SCHEDULE 5 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO5**.

**COCKATOO CREEK**

## 1.0 Statement of nature and key elements of landscape

10/06/2021
C254card

The Cockatoo Creek landscape covers approximately 21 hectares being an elongated strip between Pakenham Road and the old Gembrook railway line, extending from the bridge near Alexander Road to Dorchester Road. The creek valley and adjoining slopes contain remnant vegetation consisting of tall open forest of Mountain Ash and dense understorey of shrubs and ferns. The small remnant of forest has a diversity of native plant species and provides habitat for a variety of birds. The environmental characteristics of the landscape are sensitive to any further development and careful consideration is required to ensure that these unique characteristics are maintained.

## 2.0 Landscape character objectives to be achieved

10/06/2021
C254card

To protect and enhance the environmental, scenic and visual values of the significant landscape.

To protect and conserve habitat for flora and fauna which contribute to the significance of the landscape.

To retain and conserve remnant vegetation as an important element of the landscape.

To ensure that any new development is located and designed to avoid detrimental effects on the key characteristics of the landscape.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is required to remove, destroy or lop any vegetation. This does not apply if:

- The vegetation is an environmental weed known as Sweet Pittosporum (*Pittosporum undulatum*).

In accordance with Section 52(1)(c) of the Act, notice of an application to construct a building or construct or carry out works (including an sign) must be given to the person or body specified as a person or body to be notified in Clause 66.06 or a schedule to that clause.

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.03, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation proposed to be removed.
- Details of the location and extent of any earthworks.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

10/06/2021
C254card

# SCHEDULE 6 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO6**.

## CARDINIA ROAD PRECINCT

## 1.0 Statement of nature and key elements of landscape

10/06/2021
C254card

The Cardinia Road Precinct is located within the Casey Cardinia Growth Area along the southern fringe of the foothills to the Dandenong Ranges.

The landscape of the northern section of the Cardinia Road Precinct is characterised by undulating topography with significant east west ridgelines. The ridgelines and hilltops, particularly above the 60 metre contour have been identified as a visually prominent landscape element within the precinct. Patches of remnant vegetation both within the Cardinia Road Precinct and on the hills to the north provide significant contribution to the visual character and quality of the area.

Land within the Cardinia Road Precinct has been designated for urban development as set out in the Cardinia Road Precinct Structure Plan (September 2008). Special consideration needs to be given to the design and siting of development to ensure that the landscape, scenic and environmental qualities of the significant ridgelines and hilltops are protected as a key element of the landscape character in the precinct.

## 2.0 Landscape character objectives to be achieved

10/06/2021
C254card

To conserve, protect and enhance the environmental, scenic, and landscape values of the ridgelines and hilltops in the Cardinia Road Precinct.

To protect and conserve remnant vegetation which contributes to the landscape significance of the Cardinia Road Precinct.

To encourage development which is of a size and scale that is sympathetic and responsive to the landscape.

To ensure that development is sensitive to the natural characteristics of the landscape including slope, hilltops, ridgelines, and any remnant vegetation.

To ensure a lower density of development and scale of building mass to create a sense of openness and space.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is required to remove, destroy or lop any native vegetation. This does not apply if:

- The vegetation is an environmental weed known as Sweet Pittosporum (*Pittosporum undulatum*).
- The vegetation is dead or diseased as a result of natural circumstances or the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority.
- Necessary for the construction or maintenance of a fence provided the vegetation is the minimum required to be removed and is within any of the following:
  - 1.5 metres either side of a title boundary which does not abut a road reserve and the consent of the adjoining property owner has been obtained.
  - 2.0 metres within a title boundary abutting a road reserve.

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 42.03, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A site context plan showing the boundaries of the land, the contours of the land, existing vegetation on the land or surrounding land (if any), existing buildings and works on the land, existing buildings on adjoining land including the location, height and scale of buildings.
- Details of any siting and design guidelines (including building envelopes) approved as part of the subdivision which created the lot which the land forms part of.
- Details of the location of proposed buildings and works.
- Details of elevations, including building heights, external colours, materials and finishes.
- The location of any existing vegetation and proposed to be removed.
- Details of the location and extent of any earthworks.
- Details of landscaping proposed, particularly canopy trees.
- A design response which describes how the proposed buildings and works responds to the context of the site, the landscape character and objectives set out in this schedule, and any siting and design guidelines applying to the land.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.03, in addition to those specified in Clause 42.03 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The Cardinia Road Precinct Structure Plan (September 2008).
- Any siting and design guidelines (including building envelopes) approved as part of the subdivision which created the lot which the land forms part of.
- The setback of buildings and works from boundaries and buildings on adjoining lots to create a sense of openness and space between buildings.
- The nature and character of buildings on adjoining and nearby land.
- Whether buildings are setback from the tops of significant ridgelines and hilltops.
- Whether the height of new development protrudes beyond existing tree canopies or ridgelines.
- The slope of the land, and in particular, the design of buildings on slopes greater than 20%.
- The effect of any removal of vegetation on the landscape character and tree canopy in the area.
- The reason for removing any vegetation and the practicality of alternative options which do not require the removal of the vegetation.
- Any landscaping proposed as part of the development to reduce the visual impact, particularly revegetation along ridgelines, on hilltops and significant slopes.
- The extent of any cut and fill required.

10/06/2021
C254card

## SCHEDULE 7 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO7**.

**STOKES CROFT PLANTING, EMERALD**

### 1.0 Statement of nature and key elements of landscape

10/06/2021
C254card

The turn of the century Stokes Croft planting at 4 Edenmont Road, Emerald is of local aesthetic significances to Cardinia Shire. It contains a number of important plantings that contribute to its significance as a largely intact, mature garden. It is comprised of an interesting collection of mature exotic trees and remnants of other original elements such as its orchard.

Important elements of place include the Chestnut avenue planting along the driveway entry, Spanish Chestnut (Castanea sativa), indigenous trees, Messmate (Eucaluptus obliqua), Pin Oak (Quercus palustris) x 2, Lillypilly (Acmena Smittii) x 1, Copper Beech (Fagus sylvatica 'Riversii') x 1, Horse Chestnut (Aesculus hippocastanum) x 1, Lawson Cypress (Camaecyparis lawsoniana) x 6, Norfolk Island Pine (Araucaria heterophylla) x 2, Tulip Tree (Liriodendron tulipfera) x 1, Spruce (Picea abies) x 5, Radiata Pine (Pinus radiate) x 3, Hinoki Cypress (Camaecyparis obtuse) x 2, English Oak (Quercus robur) x 1 Sawara Cypress (Camaecyparis pisifera) x 1, Japanese Cedar (Cryptomeria japonica) x 2, Tricolor Beech (Fagus sylvatica 'Purpurea Tricolor') x 2, Blue Spruce (Picea pungens) x 1, Liquidambar (Liquidambar styracflua ) x 1, Golden Elm (Ulmus glabra) x 1, Persian Ironwood (Parrotia perscia) x 1 Camphor Laurel (Cinnamomum camphora) x 1 Silver Linden (Tilia tomentoae) x 1, Claret Ash (Fraxinus oxycarpa 'Raywood') x 1, mature conifers and Narrow Leaf Peppermint (Eucalyptus nicholii) x 1 the lawn and its collection of bulbs (muscari, ixia, nerines, belladonna, crocus) and many varieties of daffodil, the remnant orchard with a variety of fruit and nut trees.

The following elements also contribute to the significance of the garden. Smaller trees, shrubs and ferns not on the above list, including magnolia, tree ferns, camellias, Cordyline australis, Weeping Elm, Bird of Paradise x 2, Laurel hedge, and Rhododendron.

Background documents: Cardinia Local Heritage Study Review November 2013, September 2015 – Volume 3

### 2.0 Landscape character objectives to be achieved

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- Maintain the integrity of the collection by:
  - Replacing trees 'like with like' species unless an alternative planting scheme has been decided in accordance with an approved management plan.
  - Removing inappropriate or historically inaccurate species.
- Ensure that any future development or changes in immediate environmental conditions within the garden and adjacent to individual trees does not have a detrimental impact on the integrity and condition of the garden as a whole, and in particular on the Chestnut avenue
- Manage surrounding vegetation and landscape to maintain the integrity and condition of the garden.
- Remove weed vegetation species

### 3.0 Permit requirement

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A permit is required to remove, destroy or lop any vegetation. This does not apply if:

- The vegetation is an environmental weed known as Sweet Pittosporum (Pittosporum undulatum).
- The vegetation is dead or diseased as a result of natural circumstances or the spread of noxious weeds and which has been assessed as being suitable for removal by an authorised officer of the responsible authority.

- It is the minimum extent necessary to maintain utility services for the transmission of water, sewage, gas, electronic communications or the like, provided that the removal, destruction or lopping is undertaken in consultation with the responsible authority.
- Necessary for the construction of maintenance by the Cardinia Shire Council of works including any road, drain, essential service or public facility.
- Necessary for the construction or maintenance of a fence provided the vegetation is the minimum required to be removed and is within any of the following:
  - 1.5 metres either side of a title boundary which does not abut a road reserve and the consent of the adjoining property owner has been obtained.
  - 2.0 metres within a title boundary abutting a road reserve
  - 1.5 metres either side of an internal fenceline

This exemption does not apply to land within an area of botanical or zoological significance as shown on the mapped information provided by the Department of Environment, Land, Water and Planning, with the exception of Sweet Pittosporum (Pittosporum undulatum).

- It is a grass species and the removal, slashing or cutting is associated with an existing residential or permitted use or part of an existing farming operation.
- It is the minimum extent necessary to construct an approved building or construct or carry out approved works.
- Within 10 metres of a dwelling or within 10 metres of an outbuilding ancillary to the dwelling of a lot of at least 0.4 hectare.
- Within 6 metres of a dwelling or within 6 metres of an outbuilding ancillary to the dwelling on a lot of less than 0.4 hectare.
- The vegetation is required to be pruned or lopped (but not removed) as part of normal domestic or horticultural practice for the species.

| Common name | Botanical name |
|---|---|
| African Lily | Agapanthus praecox ssp. orientalis |
| Alkante | Pentaglottis serpvirens |
| American Aspen | Populus tremuloides |
| Angled Onion | Allium triquetrum |
| Apple | Malus spp |
| Arum Lily | Zantedeschia aethiopica |
| Asparagus Fern | Myrsiphyilum scadens |
| Banana Passionfruit | Passiflora sp. aff. Mollissima (syn. Jacsonia mollissima) |
| Belladonna Lily | Amaryllis belladonna |
| Berry-flower Heath | Erica baccans |
| Bindweeds | Convolvulus spp. |
| Blackberry | Rubus fruticosos spp. agg. |
| Black Locust | Robina pseudacacia |
| Bloukeur (Pinnate Scurf-Pea) | Psoralea pinnata |
| Blue-bell Creeper | Sollya heterophylla |
| Blue Periwinkle | Vinca major |

| Common name | Botanical name |
|---|---|
| Bridal Creeper | Myrisphyllum asparagoides |
| Boneseed | Chrysanthemoides monilifera |
| Bulbil Watsonia | Watsonia meriana |
| Butterfly Bush | Buddleia variabilis (syn. Veitchianus) |
| Cape Broom | Genista monspessulana |
| Cape Ivy | Delairea odorata |
| Cape Wattle | Paraserianthis lopantha |
| Caster Oil Plant | Rincinus commonis |
| Caucasian Ash | Fraxinus oxycarpa |
| Cedar Wattle | Acacia elate |
| Cestrum | Cestrum elegans |
| Cherry laurel | Prunus laurocerasus |
| Cherry Plum | Prunus cerasifera |
| Common Dipogon (Dolichos) | Dipogon lignosus |
| Common Evening Primrose | Oenothera stricta |
| Common Forget-me-not | Myosotis sylvatica |
| Cootamundra Wattle | Acacia baileyana |
| Cotoneaster | Cotoneaster spp. |
| Creeping Buttercup | Ranunculus repens |
| Darwin's Berberry | Berberis darwinii |
| Early Black Wattle | Acacia decurrens |
| English Broom | Cytisus scoparius |
| English Ivy | Hedra helix |
| Euryops | Euryops abrotanifolius |
| Evergreen Dogwood | Cornus capitata |
| False Wattle | Albizia lopantha |
| Fennel | Foeniculum vulgare |
| Firethorns | Pyracantha spp. |
| Flax Leaf Broom | Genista linifolia |
| Fragrant Violet | Viola odorata |
| Giant Honey Myrtle | Melaleuca armillaris |
| Golden Wreath Wattle | Acacia saligna |
| Great Mullein | Verbascum thapsus |
| Hawthorn | Crategus monogyna |
| Hemlock | Conium maculatum |
| Himilayan Honeysuckle | Leycesteria formosa |
| Holly | Ilex aquifolium |

| Common name | Botanical name |
|---|---|
| Honey Myrtle | Melaleuca hypericifolia |
| Inkweed | Phytolacca octandra |
| Italian Buckthorn | Rhamnus alaternus |
| Japanese Honeysuckle | Lonicera japonica |
| Karamu | Coprosma robusta |
| Karo | Pittosporum crassifolium |
| Laurestinus | Vibernum timus |
| Manna Ash | Fraxinus ornus |
| Mirror Bush | Coprosma repens |
| Montbretia | Crocosmia x crocosmiifolia |
| Montery Pine | Pinus radiata |
| Morning Glory | Ipomoea indica |
| Myrtle Leaf Milkwort | Polygalia myrtifolia |
| Nasturtium | Tropaeolum majus |
| Pampas Grass | Cortaderai selloana |
| Peruvian Lily | Alstromeria aurea |
| Plum | Prunus spp. |
| Portugal Laurel | Prunus lusitanica |
| Prickly Pear | Opuntia aurantiaca |
| Privet | Ligustrum vulgare |
| Quaking Grass | Briza maxima |
| Red Cestrum | Cestrum elegans |
| Rosy Watsonia | Watsonia boronica |
| Sallow Wattle | Acacia longifolia |
| Shasta Daisy | Chrysanthem maximum |
| Smilax | Myrsiphyilum asparagoides |
| Spanish Heath | Erica lusitanica |
| Sticky Hop Bush | Dodonea viscosa |
| Strawberry Tree | Arbutus unedo |
| Sweet Briar | Rosa rubiginosa |
| Sweet Hakea | Hakea sauveolens |
| Sweet Pea | Lathyrus latifolius |
| Sycamore Maple | Acer pseudo-plantanus |
| Tall Fleabane | Conyza bonariensis |
| Taupata | Coprosma repens |
| Tree Lucerne | Cytisis palmensis |
| Tree Tobacco | Solanum mauritianum |

| Common name | Botanical name |
|---|---|
| Tutsan | Hypericum androsaemum |
| Wandering Jew | Tradescantia fluminensis |
| White Arum Lily | Zantedeschia aethopia |
| White Sallow Wattle | Acacia floribunda |
| Willow | Salix spp. |
| Willow Hakea | Hakea salicifolia |
| Wood Violet | Viola riviniana |

An application to construct a building or construct or carry out works must be accompanied by the following information:

- The location of any existing buildings and works.
- Details of elevations, including external colours, materials and finishes.
- The location of any existing vegetation and any vegetation proposed to be removed.
- Details of the location and extent of any earthworks.

## 4.0 Application requirements

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None specified.

## 5.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 42.03, in addition to those specified in Clause 42.03 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Cardinia Local Heritage Study Review November 2013, September 2015 – Volume 3 Heritage Place and Precinct Citations.
- The protection and enhancement of the natural environment and character of the place.
- The impact of any buildings and works on areas of identified vegetation.

# 43 HERITAGE AND BUILT FORM OVERLAYS

19/01/2006
VC37

## 43.01 HERITAGE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **HO** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To conserve and enhance heritage places of natural or cultural significance.

To conserve and enhance those elements which contribute to the significance of heritage places.

To ensure that development does not adversely affect the significance of heritage places.

To conserve specified heritage places by allowing a use that would otherwise be prohibited if this will demonstrably assist with the conservation of the significance of the heritage place.

### Scope

The requirements of this overlay apply to heritage places specified in the schedule to this overlay. A heritage place includes both the listed heritage item and its associated land. Heritage places may also be shown on the planning scheme map.

## 43.01-1 Permit requirement

16/10/2025
VC288

A permit is required to:

- Subdivide land.
- Demolish or remove a building.
- Construct a building or construct or carry out works, including:
  - Domestic services normal to a dwelling if the services are visible from a street (other than a lane) or public park.
  - A solar energy system attached to a building that primarily services the land on which it is situated if the system is visible from a street (other than a lane) or public park and if the schedule to this overlay specifies the heritage place as one where solar energy system controls apply.
  - A rainwater tank if the rainwater tank is visible from a street (other than a lane) or public park.
  - A fence, if the fence is visible from a street (other than a lane) or public park.
  - Roadworks which change the appearance of a heritage place or which are not generally undertaken to the same details, specifications and materials.
  - Buildings or works associated with a railway, railway station or tramway constructed or carried out by or on behalf of the Head, Transport for Victoria.
  - Street furniture other than:
    - Traffic signals, traffic signs, bus shelters, fire hydrants, parking meters, post boxes and seating.
    - Speed humps, pedestrian refuges and splitter islands.
  - A domestic swimming pool or spa and associated mechanical and safety equipment, if the swimming pool or spa and associated equipment are visible from a street (other than a lane) or public park.
  - A pergola or verandah, including an open-sided pergola or verandah to a dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.

  - A deck, including a deck to a dwelling with a finished floor level not more than 800mm above ground level, if the deck is visible from a street (other than a lane) or public park
  - Non-domestic disabled access, excluding a non-domestic disabled access ramp if the ramp is not visible from a street (other than a lane) or public park.
  - An electric vehicle charging station if the charging station is visible from a street (other than a lane) or public park.
  - Services normal to a building other than a dwelling or small second dwelling, including chimneys, flues, skylights, heating and cooling systems, hot water systems, security systems and cameras, downpipes, window shading devices, or similar, if the works are visible from a street (other than a lane) or public park.
- Externally alter a building by structural work, rendering, sandblasting or in any other way.
- Construct or display a sign.
- Externally paint a building if the schedule to this overlay specifies the heritage place as one where external paint controls apply.
- Externally paint an unpainted surface.
- Externally paint a building if the painting constitutes an advertisement.
- Internally alter a building if the schedule to this overlay specifies the heritage place as one where internal alteration controls apply.
- Carry out works, repairs and routine maintenance which change the appearance of a heritage place or which are not undertaken to the same details, specifications and materials.
- Remove, destroy or lop a tree if the schedule to this overlay specifies the heritage place as one where tree controls apply. This does not apply:
  - To any action which is necessary to keep the whole or any part of a tree clear of an electric line provided the action is carried out in accordance with a code of practice prepared under Section 86 of the *Electricity Safety Act 1998*.
  - If the tree presents an immediate risk of personal injury or damage to property.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| ▪ Subdivide land to realign the common boundary between two lots where the area of either lot is reduced by less than 15 percent and the general direction of the common boundary does not change. | Clause 59.07 |
| ▪ Subdivide land into lots each containing an existing building or car parking space where:<br>– The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>– An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | |
| ▪ Subdivide land into two lots if: | |

| Class of application | Provision |
|---|---|
| – The construction of a building or the construction or carrying out of works on the land is approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– The construction or carrying out of the approved building or works on the land has started lawfully.<br>– The subdivision does not create a vacant lot.<br>▪ Demolish or remove an outbuilding (including a carport, garage, pergola, verandah, deck, shed or similar structure) unless the outbuilding is specified in the schedule to the Heritage Overlay.<br>▪ Demolish or remove a fence unless the fence is specified in the schedule to the Heritage Overlay.<br>▪ Externally alter a non-contributory building.<br>▪ External painting.<br>▪ Construct a fence.<br>▪ Construct a carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ Construct and install domestic services normal to a dwelling.<br>▪ Construct and install a non-domestic disabled access ramp.<br>▪ Construct a vehicle crossover.<br>▪ Construct a domestic swimming pool or spa and associated mechanical equipment and safety fencing.<br>▪ Construct a rainwater tank.<br>▪ Construct or display a sign.<br>▪ Lop a tree.<br>▪ Construct or install a solar energy system attached to a dwelling or small second dwelling.<br>▪ Construct and install an electric vehicle charging station.<br>▪ Construct and install services normal to a building other than a dwelling or small second dwelling, including chimneys, flues, skylights, heating and cooling systems, hot water systems, security systems and cameras, downpipes, window shading devices, or similar. | |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.07 |

## 43.01-2 Places in the Victorian Heritage Register

21/11/2017
VC141

A heritage place which is included in the Victorian Heritage Register is subject to the requirements of the *Heritage Act 2017*.

### Permit requirement

A permit is required under this overlay to subdivide a heritage place which is included in the Victorian Heritage Register. This includes the subdivision or consolidation of land including any building or airspace.

### Referral of applications

An application to subdivide a heritage place which is included in the Victorian Heritage Register must be referred to the relevant referral authority under Section 55 of the Act in accordance with Clause 66 of this scheme.

## 43.01-3 No permit required

14/12/2023
VC253

No permit is required under this overlay:

- For anything done in accordance with an incorporated plan specified in a schedule to this overlay.
- To internally alter a church for liturgical purposes if the responsible authority is satisfied that the alterations are required for liturgical purposes.
- For interments, burials and erection of monuments, re-use of graves, burial of cremated remains and exhumation of remains in accordance with the *Cemeteries and Crematoria Act 2003*.
- To develop a heritage place which is included in the Victorian Heritage Register, other than an application to subdivide a heritage place of which all or part is included in the Victorian Heritage Register.
- To construct a building or construct or carry out works for a small second dwelling if all the following requirements are met:
  - The building height must not exceed 5 metres.
  - The building must be finished using muted tones and colours.

## 43.01-4 Exemption from notice and review

14/01/2025
VC237

An application under this overlay for any of the following classes of development is exempt from the notice requirements of section 52(1) (a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act:

- Demolition or removal of an outbuilding (including a carport, garage, pergola, verandah, deck, shed or similar structure) unless the outbuilding is specified in the schedule to this overlay.
- Demolition or removal of a fence unless the fence is specified in the schedule to this overlay.
- External alteration of a building.
- External painting.
- Construction of a fence.
- Construction of a carport, garage, pergola, verandah, deck, shed or similar structure.
- Domestic services normal to a dwelling.
- Carry out works, repairs and routine maintenance.
- Internally alter a building.
- Non-domestic disabled access ramp.
- Construction of a vehicle crossover.
- Construction of a domestic swimming pool or spa and associated mechanical equipment and safety fencing.

- Construction of a tennis court.
- Construction of a rainwater tank.
- Construction or display of a sign.
- Lopping of a tree.
- Construction of seating, picnic tables, drinking taps, barbeques, rubbish bins, security lighting, irrigation, drainage or underground infrastructure, bollards, telephone boxes.
- Roadworks.
- An electric vehicle charging station.
- Services normal to a building other than a dwelling or a small second dwelling, including chimneys, flues, skylights, heating and cooling systems, hot water systems, security systems and cameras, downpipes, window shading devices, or similar.

## 43.01-5 Statements of significance

24/01/2020
VC160

The schedule to this overlay must specify a statement of significance for each heritage place included in the schedule after the commencement of Amendment VC148. This does not apply to:

- A heritage place included in the schedule to this overlay by an amendment prepared or authorised by the Minister under section 8(1)(b) or section 8A(4) of the Act before or within three months after the commencement of Amendment VC148.
- A registered heritage place included in the Victorian Heritage Register established under Part 3 of the *Heritage Act 2017*.
- A heritage place included in the schedule to this overlay on an interim basis.

## 43.01-6 Heritage design guidelines

31/07/2018
VC148

The schedule to this overlay may specify heritage design guidelines for any heritage place included in the schedule. A heritage design guideline must not contain any mandatory requirements.

## 43.01-7 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in the schedule to this overlay.

## 43.01-8 Decision guidelines

24/01/2020
VC160

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The significance of the heritage place and whether the proposal will adversely affect the natural or cultural significance of the place.
- Any applicable statement of significance (whether or not specified in the schedule to this overlay), heritage study and any applicable conservation policy.
- Any applicable heritage design guideline specified in the schedule to this overlay.
- Whether the location, bulk, form or appearance of the proposed building will adversely affect the significance of the heritage place.
- Whether the location, bulk, form and appearance of the proposed building is in keeping with the character and appearance of adjacent buildings and the heritage place.
- Whether the demolition, removal or external alteration will adversely affect the significance of the heritage place.

- Whether the proposed works will adversely affect the significance, character or appearance of the heritage place.
- Whether the proposed subdivision will adversely affect the significance of the heritage place.
- Whether the proposed subdivision may result in development which will adversely affect the significance, character or appearance of the heritage place.
- Whether the proposed sign will adversely affect the significance, character or appearance of the heritage place.
- Whether the lopping or development will adversely affect the health, appearance or significance of the tree.
- Whether the location, style, size, colour and materials of the proposed solar energy system will adversely affect the significance, character or appearance of the heritage place.

## 43.01-9 Use of a heritage place

31/07/2018
VC148

A permit may be granted to use a heritage place (including a heritage place which is included in the Victorian Heritage Register) for a use which would otherwise be prohibited if all of the following apply:

- The schedule to this overlay specifies the heritage place as one where prohibited uses may be permitted.
- The use will not adversely affect the significance of the heritage place.
- The benefits obtained from the use can be demonstrably applied towards the conservation of the heritage place.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider the effect of the use on the amenity of the area.

## 43.01-10 Aboriginal heritage places

31/07/2018
VC148

A heritage place specified in the schedule to this overlay as an Aboriginal heritage place is also subject to the requirements of the *Aboriginal Heritage Act 2006*.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 43.01 HERITAGE OVERLAY

## 1.0 Application requirements

10/06/2021
C254card

None specified.

## 2.0 Heritage places

06/08/2026
C283card

The requirements of this overlay apply to both the heritage place and its associated land.

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| AVONSLEIGH | | | | | | | | | |
| HO13 | Avonsleigh Church of Christ<br>17 Avon Road, Avonsleigh | Yes | Yes | Yes | Yes | No | No | No | No |
| BAYLES | | | | | | | | | |
| HO146 | House<br>683 Koo Wee Rup-Longwarry Road, Bayles | No | No | No | Yes | No | No | No | No |
| BEACONSFIELD | | | | | | | | | |
| HO133 | Woods Street Commercial & Civic Precinct<br>War memorial on Old Princes Highway, 11-17, 19-21, 23-25, 24-26 and 37<br>Woods Street, Beaconsfield | Yes | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO147 | Woods Street Residential Precinct<br>48, 54 & 56 Woods Street, Beaconsfield<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | No | Yes | No | No | No | No |
| HO17 | Beaconsfield Station Master's Residence and Bunya Bunya tree<br>20 Beaconsfield Avenue, Beaconsfield and part of adjacent railway land (CA 33A and part of CA33) | Yes | No | Yes<br>(Bunya Bunya tree) | Yes | No | No | No | No |
| HO18 | Payne House<br>Part CA56A & CA56B Beaconsfield-Emerald Road, Beaconsfield | Yes | No | Yes | Yes | Yes | No | No | No |
| HO53 | Kenilworth Coach House<br>10 Coach House Lane , Beaconsfield | No | No | Yes | Yes | Yes<br>Coach House | No | No | No |
| HO95 | Villa Maria<br>7-11 Marcanna Place, Beaconsfield | Yes | Yes | Yes | Yes | No | No | No | No |
| HO96 | Holm Park<br>237 O'Neil Road, Beaconsfield | Yes | Yes | Yes | Yes | Yes | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO100 | Central Hotel<br>1 Old Princes Highway, Beaconsfield | Yes | No | No | Yes | No | No | No | No |
| HO242 | Hybrid Oak<br>40 Railway Terrace, Beaconsfield | No | No | Yes | Yes | No | No | No | No |
| BEACONSFIELD UPPER | | | | | | | | | |
| HO71 | Beaconsfield Upper Milk Bar, Former Cormore Tea Rooms<br>28 Beaconsfield-Emerald Road, Upper Beaconsfield | Yes | No | No | Yes | No | No | No | No |
| HO9 | Rosemont<br>11 A'Beckett Road, Beaconsfield Upper | Yes | No | Yes | Yes | No | No | No | No |
| HO8 | Fassifern Garden<br>50 A'Beckett Road, Beaconsfield Upper | No | No | Yes | Yes | Yes | No | No | No |
| HO7 | Calambeen<br>71 A'Beckett Road, Beaconsfield Upper | Yes | No | Yes | Yes | No | No | No | No |
| HO19 | Victorian Orchardists Coolstore & Fruit Packaging Company Packing Shed | Yes | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 24-25 Beaconsfield-Emerald Road, Beaconsfield Upper | | | | | | | | |
| HO23 | The Towers<br>194 Berglund Road, Beaconsfield Upper | Yes | No | Yes | Yes | No | No | No | No |
| HO27 | Stone Pine at Windy Hills Farm<br>30 Buchanan Road, Beaconsfield Upper | No | No | Yes | Yes | No | No | No | No |
| HO72 | Highland Park<br>2 McBride Road, Beaconsfield Upper | Yes | No | No | Yes | No | No | No | No |
| HO148 | Staverton Garden<br>201 Quamby Road, Beaconsfield Upper | No | No | Yes | Yes | No | No | No | No |
| HO112 | Upper Beaconsfield War Memorial<br>Salisbury Road, Beaconsfield Upper | Yes | No | No | Yes | No | No | No | No |
| HO111 | Upper Beaconsfield Post Office<br>4 Salisbury Road, Beaconsfield Upper | Yes | No | No | Yes | No | No | No | No |
| HO110 | Kincraik<br>5-9 Salisbury Road, Beaconsfield Upper | Yes | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO149 | Former Upper Beaconsfield Assembly Hall<br>10-12 Salisbury Road, Beaconsfield Upper | No | No | No | Yes | No | No | No | No |
| HO118 | Lo-Yuan<br>84 Split Rock Road, Beaconsfield Upper | Yes | Yes | Yes | Yes | No | No | No | No |
| HO128 | Cork Oak & Woodlands<br>21 Walnut Grove, Beaconsfield Upper | Yes | No | Yes | Yes | No | No | No | No |
| HO272 | Huntingdon Elm<br>10-12 Salisbury Road, Beaconsfield Upper | No | No | Yes | Yes | No | No | No | No |
| HO243 | Radiata Pine<br>120 A'Beckett Road, Beaconsfield Upper | No | No | Yes | Yes | No | No | No | No |
| BUNYIP | | | | | | | | | |
| HO150 | Bunyip, George Street Residential Precinct<br>3, 5, 7 and 9 George Street, Bunyip<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO46 | Bunyip Commercial & Civic Precinct<br>9-34 Main Street, 2A, 2, and 7-23 High Street, Bunyip<br>**Incorporated plan:** Cardinia Commercial Heritage Precincts Permit Exemptions, December 2020 | Yes | No | No | Yes | No | No | No | No |
| HO5 | St. Thomas Church of England<br>16 A'Beckett Road, Bunyip | Yes | Yes | No | Yes | Yes | No | No | No |
| HO6 | Ballantrae<br>190 A'Beckett Road, Bunyip | Yes | No | Yes | Yes | No | No | No | No |
| HO28 | Bunyip General Cemetery<br>Part CA30 Bunyip-Tonimbuk Road, Bunyip | Yes | No | Yes | Yes | Yes | No | No | No |
| HO151 | House<br>4 Hope Street, Bunyip | No | No | No | Yes | No | No | No | No |
| HO56 | Bunyip Hall<br>32 Main Street, Bunyip | Yes | Yes | No | Yes | No | No | No | No |
| HO57 | Railway Hotel<br>14 Main Street, Bunyip | Yes | No | No | Yes | No | No | No | No |
| HO58 | Former Flett Bros. Grocers<br>18 Main Street, Bunyip | Yes | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO59 | Bakehouse<br>19 Main Street, Bunyip | Yes | No | No | Yes | No | No | No | No |
| HO60 | Nathan's Shop Row<br>20-22 Main Street, Bunyip | Yes | No | No | Yes | No | No | No | No |
| HO142 | Bunyip Railway Sub Station<br>Nar Nar Goon-Longwarry Road, Bunyip | - | - | - | - | - | Yes<br>Ref No H2025 | Yes | No |
| HO84 | Bunyip State School<br>1290 Nar Nar Goon-Longwarry Road, Bunyip | Yes | No | Yes | Yes | No | No | No | No |
| HO99 | Bunyip Fire Station<br>13 Pearson Street, Bunyip | Yes | No | No | Yes | No | No | No | No |
| HO152 | House<br>5-7 Princess Street, Bunyip | No | No | No | Yes | No | No | No | No |
| HO139 | Main Drain Bridge<br>Southbank Road, Bunyip | Yes | No | No | Yes | No | No | No | No |
| BUNYIP NORTH | | | | | | | | | |
| HO122 | Woodlands (later Fern Hill)<br>50 Topp Road, Bunyip North | Yes | No | Yes | Yes | No | No | No | No |
| CARDINIA | | | | | | | | | |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO153 | Corofin (House) & Hawthorn Hedges<br>2245 Ballarto Road, Cardinia | No | No | Yes | Yes | No | No | No | No |
| HO154 | Cardinia Presbyterian Church<br>2400 Ballarto Road, Cardinia | No | No | Yes | Yes | No | No | No | No |
| HO155 | Cardinia Public Hall<br>2401 Ballarto Road, Cardinia | No | No | No | Yes | No | No | No | No |
| HO156 | House & Canary Island Palms<br>2416 Ballarto Road, Cardinia | No | No | Yes | Yes | No | No | No | No |
| HO157 | E. Gunton Oval<br>Cardinia Recreation Reserve<br>2440 Ballarto Road, Cardinia | No | No | Yes | Yes | No | No | No | No |
| HO158 | House & Stables<br>2005 Pound Road, Cardinia | No | No | No | Yes | Yes<br>Stables | No | No | No |
| CATANI | | | | | | | | | |
| HO159 | Lineham Farm complex<br>35 Linehams Road, Catani | No | No | No | Yes | No | No | No | No |
| HO160 | Catani Uniting Church<br>41 Taplins Road, Catani | No | No | Yes | Yes | No | No | No | No |
| HO161 | Former Catani General Store and residence | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 72 Taplins Road, Catani | | | | | | | | |
| HO162 | Catani Soldiers' Memorial Hall<br>75 Taplins Road, Catani | No | No | Yes | Yes | No | No | No | No |
| HO163 | Hawthorn Hedges<br>Cnr of Walshes Road & Heads Road, Catani | No | No | Yes | Yes | No | No | No | No |
| HO244 | Hybrid Oak<br>55 Taplins Road, Catani | No | No | Yes | Yes | No | No | No | No |
| COCKATOO | | | | | | | | | |
| HO164 | Cockatoo War memorial<br>20 Belgrave-Gembrook Road, Cockatoo | No | No | No | Yes | No | No | No | No |
| HO73 | Cash & Co.<br>44 McBride Street, Cockatoo | Yes | No | No | Yes | No | No | No | No |
| HO274 | Former Cockatoo Kindergarten<br>2-10 McBride Street, Cockatoo | - | - | - | - | - | Yes<br>Ref No H2303 | Yes | No |
| HO97 | Providence House<br>31 Pakenham Road, Cockatoo | Yes | No | Yes | Yes | Yes | No | No | No |
| HO126 | Mt. View (Weekender)<br>14 Viewhill Road, Cockatoo | Yes | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO245 | Red, Hybrid, English Oak<br>McBride Street, Cockatoo | No | No | Yes | Yes | No | No | No | No |
| HO246 | Cherry Laurel<br>Alma Treloar Reserve, 79 Pakenham Road, Cockatoo | No | No | Yes | Yes | No | No | No | No |
| CORA LYNN | | | | | | | | | |
| HO16 | Cora Lynn Cheese Factory<br>464 Bayles-Tynong Road, Cora Lynn | Yes | No | No | Yes | No | No | No | No |
| HO165 | Former Cora Lynn Catholic Parish School<br>370 Convent School Rd, Cora Lynn | No | No | No | Yes | No | No | No | No |
| HO247 | English Oak<br>Cnr of Dessent and Main Drain Road, Cora Lynn | No | No | Yes | Yes | No | No | No | No |
| DALMORE | | | | | | | | | |
| HO166 | Former Dalmore Post Office & Store<br>280 Dalmore Road, Dalmore | No | No | No | Yes | No | No | No | No |
| HO167 | Glen-Keith Farm complex and trees<br>250 Peers Road, Dalmore | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO237 | Former Rutter Farm trees<br>320 Tooradin Station Road, Dalmore | No | No | Yes | Yes | No | No | No | No |
| HO275 | Dalmore Hall<br>231 Dalmore Road, Dalmore | No | No | No | Yes | No | No | Yes | No |
| EMERALD | | | | | | | | | |
| HO168 | Emerald Country Club, Estate and Landscape Precinct<br>9, 11, 17, 21 and , 34, 36, 38, 40 and 48 Lakeside Drive and 10, 12, 14, 18, 20, 22 and 24 Sycamore Avenue, Emerald<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | Yes | Yes | Yes<br>Early Garages | No | No | No |
| HO1 | Aboriginal Sacred Rocks<br>Cardinia Reservoir Park | No | No | Yes | Yes | No | No | No | Yes |
| HO250 | Cherry Laurel Hedge<br>29-63 Beaconsfield Emerald Road, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO20 | Lawson False Cyprus at Verlys<br>1 Cloverleigh Avenue, Emerald | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO253 | Lawson's and Hinoki Cypress<br>356-358 Belgrave Gembrook Road, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO174 | Koombahla<br>395 Belgrave-Gembrook Road, Emerald | No | No | No | Yes | No | No | No | No |
| HO252 | Bay Laurel<br>6 Brookdale Avenue, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO29 | Carramar Homestead<br>5 Carramar Court, Emerald | Yes | Yes | Yes | Yes | No | No | No | No |
| HO175 | Tyrrell<br>8 Carramar Court, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO249 | Pin Oak<br>2-28 Emerald Monbulk Road, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO34 | Rose Charman's Cottage<br>77 Emerald-Monbulk Road, Emerald | No | No | No | Yes | No | No | No | No |
| HO106 | Emerald Lake Park and landscape<br>Emerald Lake Road, Emerald | Yes | No | Yes | Yes | Yes | No | No | No |
| HO176 | Emerald Railway Station | No | No | Yes | Yes | Yes | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | Kilvington Drive, Emerald | | | | | Three goods sheds, water tower, picket fencing | | | |
| HO270 | Former Emerald Bakery<br>1 Kilvington Drive (rear), Emerald | No | Yes<br>(Bake oven only) | No | Yes | No | No | No | No |
| HO177 | Former Emerald Police Station & Lockup<br>15 Kilvington Drive, Emerald | No | No | No | Yes | Yes<br>Lockup | No | No | No |
| HO171 | Oak Lee, House and trees<br>11 Lakeside Drive, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO173 | Sycamore Lodge<br>34 Lakeside Drive, Emerald | No | No | No | Yes | No | No | No | No |
| HO181 | Emerald Reserve<br>402A Main Street (Gembrook-Belgrave Road), Emerald | No | No | Yes | Yes | No | No | No | No |
| HO178 | Pair of shops<br>369-371 Main Street, Emerald | No | No | No | Yes | No | No | No | No |
| HO179 | Former Stephens butcher shop and residence<br>381 Main Street, Emerald | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO180 | Emerald Post Office and residence<br>398 Main Street, Emerald | No | No | No | Yes | No | No | No | No |
| HO3 | Silver Birches<br>1 Mary Street, Emerald | Yes | No | Yes | Yes | Yes | No | Yes | No |
| HO182 | Former Barnes' Weekender<br>11 Ogilvy Road, Emerald | No | No | No | Yes | No | No | No | No |
| HO273 | Former Nobelius Nursery, Packing Shed and Railway Siding<br>Princess Avenue and Emerald Lake Road, Emerald | - | - | - | - | - | Yes<br>Ref No H2285 | Yes | No |
| HO254 | Beech<br>Railway Reserve, Sellers Road, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO255 | Dutch Elm and Oaks<br>Station Avenue, William Street and Ambrose Street, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO183 | Former Cascades Guesthouse<br>10 Telopea Road, Emerald | No | No | No | Yes | Yes<br>Stone dairy | No | No | No |
| HO295 | Three Sequoia sempervirens, Coast Redwood<br>4 Dewhurst Road, Emerald | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | **Statement of Significance:** Sequoia sempervirens, Coast Redwood, 4 Dewhurst Road, Emerald | | | | | | | | |
| HO296 | Sequoia sempervirens, Coast Redwood<br>44 Beaconsfield-Emerald Road, Emerald<br>**Statement of Significance:** Sequoia sempervirens, Coast Redwood, 44 Beaconsfield-Emerald, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO297 | Fargus sylvatica 'Purpurea', Purple Beech<br>8 Benson Street, Emerald<br>**Statement of Significance:** Fargus sylvatica 'Purpurea', Purple Beech, 8 Benson Street, Emerald | No | No | Yes | Yes | No | No | No | No |
| HO299 | Angophora costata, Smooth-barked Apple<br>79 Emerald-Monbulk Road, Emerald<br>**Statement of Significance:** Angophora costata, Smooth-barked Apple, 79 Emerald-Monbulk Road, Emerald | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| GARFIELD | | | | | | | | | |
| HO85 | Garfield Commercial Precinct<br>33-101 Nar Nar Goon-Longwarry Road (Main Street), Garfield<br>**Incorporated plan:** Cardinia Commercial Heritage Precincts Permit Exemptions, December 2020. | Yes | No | No | Yes | No | No | No | No |
| HO256 | Cotton Palm<br>6 Campbell Street, Garfield | No | No | Yes | Yes | No | No | No | No |
| HO70 | Smith Orchard House<br>20 Martin Road, Garfield | Yes | No | No | Yes | No | No | No | No |
| HO86 | J. & M. E. Lowndes Bakery & Residence<br>41-43 Nar Nar Goon-Longwarry Road, Garfield | Yes | No | No | Yes | No | No | No | No |
| HO87 | Garfield Picture Theatre<br>51 Nar Nar Goon-Longwarry Road, Garfield | Yes | Yes | No | Yes | No | No | No | No |
| HO88 | ANZ Bank<br>79 Nar Nar Goon-Longwarry Road, Garfield | Yes | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO186 | Teacher's residence & Canary Island Palm<br>86 Railway Avenue, Garfield | No | No | Yes | Yes | No | No | No | No |
| HO187 | St Mary's Church of England<br>90 Railway Avenue, Garfield | No | No | No | Yes | Yes<br>Front fence | No | No | No |
| GARFIELD NORTH | | | | | | | | | |
| HO36 | Cannibal Hill<br>260 Garfield North Road, Garfield North | No | No | Yes | Yes | No | No | No | No |
| HO188 | Former Garfield North State School No. 3849<br>375 Garfield North Road, Garfield North | No | No | Yes | Yes | No | No | No | No |
| HO94 | Mikado Park<br>265 Old Sale Road, Garfield North | Yes | No | Yes | Yes | Yes | No | No | No |
| HO101 | Towt's Cool Store & Packing Shed<br>71 Garfield Road, Garfield North | Yes | No | No | Yes | No | No | No | No |
| HO113 | Lamble Orchard House<br>145 Sanders Road, Garfield North | Yes | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| GEMBROOK | | | | | | | | | |
| HO189 | Gembrook Commercial Precinct<br>62-72 & 75-97 Main Street and 66A Station Road, Gembrook<br>**Incorporated plan:** Cardinia Commercial Heritage Precincts Permit Exemptions, December 2020. | Yes | No | Yes | Yes | No | No | No | No |
| HO11 | Russell 'Big Mill' (Number 1)<br>Ash Landing Road, Bunyip State Park | No | No | No | Yes | No | No | No | No |
| HO12 | Russell 'Little Mill' (Number 2)<br>West of Ash Landing Road, Bunyip State Park | No | No | No | Yes | No | No | No | No |
| HO22 | Sunset Guest House<br>65 Beenak East Road, Gembrook | Yes | No | Yes | Yes | No | No | No | No |
| HO82 | Mt. Eirene Guest House<br>315 Mt Eirene Road, Gembrook | Yes | No | Yes | Yes | No | No | No | No |
| HO37 | Californian Redwoods<br>Gembrook Road, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO38 | Gembrook Park<br>Gembrook Road, Gembrook | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO40 | Gilwell Park Scout Camp<br>2555 Gembrook-Launching Place Road, Gembrook | Yes | Yes | Yes | Yes | Yes | No | Yes | No |
| HO41 | Charcoal Burning Kiln<br>Gembrook-Tonimbuk Road, Bunyip State Park | Yes | Yes | No | Yes | No | No | No | No |
| HO190 | Wattle Bank<br>18 Innes Road, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO268 | Algerian Oak, Hybrid Oak<br>Main Street, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO258 | Hybrid Oaks<br>Redwood Road, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO259 | Messmate Gum<br>Ure Raod, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO61 | Bhutan Pines at Gembrook Railway Station Site<br>Main Street, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO63 | Sacred Hearth Catholic Church<br>93 Main Street, Gembrook | Yes | Yes | Yes | Yes | No | No | No | No |
| HO79 | Oak Avenue<br>275 Mountain Road, Gembrook | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO80 | Gembrook Union<br>438 Mountain Road, Gembrook | Yes | Yes | Yes | Yes | No | No | No | No |
| HO21 | Kurth Kiln<br>Soldiers Road, Gembrook | - | - | - | - | - | Yes<br>Ref No H2012 | Yes | No |
| HO257 | Small leaved Linden<br>Bank Smith Drive, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO125 | Silverwells<br>330 Ure Road, Gembrook | - | - | - | - | - | Yes<br>Ref No H611 | Yes | No |
| HO134 | Balance Ure Farm Complex (Silverwells)<br>330 Ure Road, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO294 | Eucalyptus dalrympleana, Mountain White Gum<br>Road Reserve, 185 Mountain Road, Gembrook<br>**Statement of Significance:** Eucalyptus dalrympleana, Mountain White Gum, Road Reserve, 185 Mountain Road, Gembrook | No | No | Yes | Yes | No | No | No | No |
| HO300 | Eucalyptus sieberi, Silvertop Ash | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 45 Mentiplay Road, Gembrook<br>**Statement of Significance:** Eucalyptus sieberi, Silvertop Ash, 45 Mentiplay Road, Gembrook | | | | | | | | |
| HEATH HILL | | | | | | | | | Yes |
| HO191 | Heath Hill Railway Station residence<br>1405 Westernport Road, Heath Hill | No | No | No | Yes | No | No | No | No |
| IONA | | | | | | | | | |
| HO35 | St. Joseph of the Sacred Heart Convent, Catholic Church & Precinct<br>1215 Bunyip River Road, Iona | Yes | Yes | Yes | Yes | No | No | No | No |
| HO136 | Bunyip River Bridge<br>Fourteen Mile Road, Iona | Yes | No | No | Yes | No | No | No | No |
| HO192 | Tehennepe<br>495 Little Road, Iona | No | No | No | Yes | No | No | No | No |
| HO193 | Former St John's Presbyterian Church<br>580 Little Road, Iona | No | No | No | Yes | No | No | Yes | No |
| HO194 | House & Oaks | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 935 Murray Road, Iona | | | | | | | | |
| HO120 | Iona State School SS3201 Site<br>430 Thirteen Mile Road, Iona | No | No | Yes | Yes | No | No | No | No |
| KOO WEE RUP | | | | | | | | | |
| HO195 | Koo Wee Rup Commercial Precinct<br>275-297 & 272-300 Rossiter Road and 2-16, 56-86 Station Street, Koo Wee Rup<br>**Incorporated plan:** Cardinia Commercial Heritage Precincts Permit Exemptions, December 2020. | No | No | No | Yes | No | No | No | No |
| HO196 | Rossiter Road Residential Precinct<br>360, 362, 370, 372 and 376 Rossiter Road, Koo Wee Rup<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | No | Yes | No | No | No | No |
| HO197 | Dunlop's cheese factory, cottage & tree<br>150 Koo Wee Rup-Longwarry Road, Koo Wee Rup | No | No | Yes | Yes | Yes<br>Dairy, stalls, machinery room, cheese making room, well, workers' cottages. | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO198 | Shepton Mallet<br>145 Rossiter Road, Koo Wee Rup | No | No | Yes | Yes | No | No | No | No |
| HO200 | St George's Church of England<br>270 Rossiter Road, Koo Wee Rup | No | No | No | Yes | No | No | No | No |
| HO230 | Former Wattle Theatre<br>284-286 Rossiter Road, Koo Wee Rup | No | Yes<br>Decorated proscenium arch and ceiling | No | Yes | No | No | No | No |
| HO203 | St Andrew's Presbyterian Church<br>319 Rossiter Road, Koo Wee Rup | No | No | No | Yes | No | No | No | No |
| HO204 | Mallow House and former Koo Wee Rup Police Lockup<br>325 Rossiter Road, Koo Wee Rup | No | No | No | Yes | No | No | No | No |
| HO205 | Eason Memorial gates and trees<br>345 Rossiter Road, Koo Wee Rup | No | No | No | Yes | No | No | No | No |
| HO116 | Harewood<br>3300 South Gippsland Highway, Koo Wee Rup | - | - | - | - | - | Yes<br>Ref No H284 | Yes | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO140 | Old Yallock<br>3940 South Gippsland Highway, Koo Wee Rup | No | No | Yes | Yes | Yes | No | No | No |
| HO117 | Warrook<br>4150-4170 South Gippsland Highway, Koo Wee Rup | No | Yes | No | Yes | No | No | No | No |
| HO207 | Air Raid Shelter<br>30 (rear) Station Street, Koo Wee Rup | No | No | No | Yes | No | No | No | No |
| HO208 | House<br>140-146 Station Street, Koo Wee Rup | No | No | No | Yes | No | No | No | No |
| HO269 | Royal Hotel<br>96-102 Station Street, Koo Wee Rup | No | No | No | Yes | No | No | No | No |
| HO127 | The Grange<br>Lot 1, PS 318270, Walker Street, Koo Wee Rup | No | No | Yes | Yes | No | No | No | No |
| HO298 | Quercus robur, English Oak<br>Cochranes Park, Rossiter Road, Koo Wee Rup<br>**Statement of Significance:** Quercus robur, English Oak, | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | Cochranes Park, Rossiter Road, Koo Wee Rup | | | | | | | | |
| LANG LANG | | | | | | | | | |
| HO210 | Carnarvon & Rupert Streets Precinct<br>10, 12, 14, 16, 20, 22, 23 and 25 Carnarvon Street and 12, 14 and 14A-C Rupert Street, Lang Lang<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | No | Yes | No | No | No | No |
| HO212 | Lang Lang Railway Houses Precinct<br>17, 20, 22, 24 and 26 Roseberry's Street, Lang Lang<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | No | Yes | No | No | No | No |
| HO50 | Bay View (House, Dairy Shed & Well)<br>115 Jetty Road, Lang Lang | No | No | Yes | Yes | Yes | No | No | No |
| HO213 | Lang Lang Cemetery & trees<br>McDonalds Track, Lang Lang | No | No | Yes | Yes | No | No | No | No |
| HO214 | Palace Hotel | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 140 McDonalds Track, Lang Lang | | | | | | | | |
| HO215 | House & former dairy<br>1 Westernport Road, Lang Lang | No | No | No | Yes | No | No | No | No |
| HO216 | Former Lang Lang Infant Welfare Centre & Lang Lang War Memorial<br>1 & 3 Whitstable Street , Lang Lang | No | No | Yes | Yes | No | No | No | No |
| HO217 | House<br>13-17 Westernport Road, Lang Lang | No | No | No | Yes | No | No | No | No |
| HO218 | Missions Butchers Shop & residence<br>34-36 Westernport Road, Lang Lang | No | No | No | Yes | Yes<br>Front fence | No | No | No |
| HO219 | ANZ Bank<br>47 Westernport Road, Lang Lang | No | No | No | Yes | No | No | No | No |
| HO220 | Finlay McQueen Uniting Church complex<br>46 Westernport Road, Lang Lang | No | Yes | No | Yes | No | No | No | No |
| HO221 | Priestley's store site & Oak | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 49 (rear) Westernport Road, Lang Lang | | | | | | | | |
| HO239 | Brick Trough<br>190 Westernport Road, Lang Lang | No | No | Yes | Yes | No | No | No | No |
| HO222 | Stafford House & hedge<br>Lot 1, TP109006 Westernport Road, Lang Lang | No | No | Yes<br>Hawthorn hedge only | Yes | No | No | No | No |
| HO131 | Cottages<br>4 Whitstable Street, Lang Lang | Yes | No | No | Yes | No | No | No | No |
| HO223 | St John The Evangelist Anglican Church complex<br>6-10 Whitstable Street, Lang Lang | No | Yes | No | Yes | No | No | No | No |
| MARYKNOLL | | | | | | | | | |
| HO55 | Maryknoll Precinct<br>23 & 70 Girrahween Road , 6, 9, 19, 41, 45, 51 and 61 Koolbirra Road and Bush Bush Reserves, Manoora Reserve, Manoora Road, Wirragulla Reserve, Barongarook Road North, Koala, Koolbirra Road, St Joseph's Square, | No | No | Yes | Yes | Yes | No | No | no |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | Turramurra Road, Sister Chanel Reserve and Nagle Crescent, Maryknoll<br>**Incorporated plan:** Maryknoll Township Heritage Precinct Incorporated Plan. | | | | | | | | |
| HO54 | Holy Family Church<br>6 Koolbirra Road, Maryknoll<br>**Incorporated plan:** Maryknoll Township Heritage Precinct Incorporated Plan. | No | Yes | Yes | Yes | No | No | No | No |
| MONOMEITH | | | | | | | | | |
| HO77 | Monomeith Homestead<br>405 Monomeith Road, Monomeith | - | - | - | - | - | Yes<br>Ref No H452 | Yes | No |
| HO78 | Monomeith Park<br>490 Monomeith Road, Monomeith | No | No | Yes | Yes | Yes | No | No | No |
| NAR NAR GOON | | | | | | | | | |
| HO225 | Nar Nar Goon North Hall<br>642 Dore Road, Nar Nar Goon | No | No | No | Yes | No | No | No | No |
| HO83 | Commercial Bank of Australia<br>3 Nar Nar Goon Road, Nar Nar Goon | Yes | Yes | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO39 | St James Catholic Church<br>60 Nar Nar Goon Road, Nar Nar Goon | Yes | Yes | No | Yes | No | No | No | No |
| HO114 | St. Johns Church of England6-8 Main Street, Nar Nar Goon | Yes | Yes | Yes | Yes | No | No | No | No |
| NAR NAR GOON SOUTH | | | | | | | | | |
| HO15 | Shady Oaks<br>615 Bald Hill Road, Nar Nar Goon South | Yes | No | No | Yes | No | No | No | No |
| HO32 | McCutcheon Farm<br>350 Eight Mile Road, Nar Nar Goon South | Yes | No | Yes | Yes | Yes | No | No | No |
| NAR NAR GOON NORTH | | | | | | | | | |
| HO31 | Aringa<br>40 Clark Road, Nar Nar Goon North | Yes | No | Yes | Yes | Yes | No | No | No |
| HO132 | Wilson Farm<br>Part CA137, Wilson Road, Nar Nar Goon North | Yes | No | Yes | Yes | Yes | No | No | No |
| OFFICER | | | | | | | | | |
| HO90 | Kaduna Park<br>270 Cardinia Road, Officer | Yes | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO144 | Mature Oak, Greenslopes<br>15 Bayview Road, Officer | No | No | Yes | Yes | No | No | No | No |
| HO91 | Cardinia Park<br>410 Officer South Road, Officer | Yes | No | No | Yes | No | No | Yes | No |
| HO92 | Jesmond Dene<br>425 Officer South Road, Officer<br>**Statement of Significance:** Jesmond Dene, 425 Officer South Road, Officer | No | No | Yes | Yes | No | No | Yes | No |
| HO105 | Berwick Pottery<br>350 Princes Highway, Officer | Yes | Yes | Yes | Yes | Yes | No | Yes | No |
| HO102 | Primrose Park<br>250 Princes Highway, Officer | Yes | No | Yes | Yes | No | No | Yes | No |
| HO103 | Firwood Park<br>265 Princes Highway, Officer | Yes | No | Yes | Yes | No | No | Yes | No |
| HO104 | James Hicks Pty. Ltd. Pottery<br>365 Princes Highway, Officer | Yes | Yes | No | Yes | Yes | No | No | No |
| HO143 | Officer Union Church & Officer Public Hall<br>16 to 18 Tivendale Road, Officer | Yes | Yes<br>(Church only) | No | Yes | No | No | Yes | No |
| HO130 | Grant House | Yes | Yes | Yes | Yes | No | No | Yes | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 36 Whiteside Road, Officer | | | | | | | | |
| HO262 | Hybrid Oaks<br>13-23 Tivendale Road, Officer | No | No | Yes | Yes | No | No | No | No |
| PAKENHAM | | | | | | | | | |
| HO10 | Salvation Army Commandant's & Nurses Barracks<br>34 Army Settlement Road, Pakenham | Yes | No | No | Yes | No | No | No | No |
| HO226 | Pakenham War Memorial<br>Corner of Henry and John Streets, Pakenham | No | No | No | Yes | No | No | No | No |
| HO227 | Grason<br>6 Henty Street, Pakenham | No | No | Yes | Yes | No | No | No | No |
| HO228 | House<br>21 James Street, Pakenham | No | No | Yes | Yes | Yes<br>Fences and carriage gates | No | No | No |
| HO49 | Pakenham Scout Hall<br>34 James Street, Pakenham | Yes | Yes | No | Yes | No | No | No | No |
| HO65 | St. James Church of England<br>1A Main Street, Pakenham | Yes | Yes | No | Yes | Yes | No | No | No |
| HO264 | Algerian Oak<br>9-13 Main Street, Pakenham | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO66 | Pakenham Gazette & Berwick City News Offices<br>100 Main Street, Pakenham | Yes | No | No | Yes | No | No | No | No |
| HO64 | Pakenham Hotel<br>153 Main Street, Pakenham | Yes | No | Yes | Yes | No | No | No | No |
| HO76 | Koo-Man-Goo-Nong<br>85 McGregor Road, Pakenham | Yes | No | Yes | Yes | Yes | No | No | No |
| HO229 | I.Y.U. Pre-emptive right homestead site<br>245 McGregor Road, Pakenham | No | No | Yes | Yes | No | No | No | No |
| HO81 | Mt. Ararat Pre-emptive Right<br>125 Mt. Ararat Road North, Pakenham | Yes | No | Yes | Yes | No | No | No | No |
| HO98 | Oak Drive at Oak Springs<br>415 Pakenham Road, Pakenham | No | No | Yes | Yes | No | No | No | No |
| HO271 | Former St Patrick's Catholic Church<br>144 Princes Highway, Pakenham | No | No | No | Yes | No | No | No | No |
| HO263 | English Oak | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 30 metres west of intersection Princes Highway and Oaktree Drive, Pakenham | | | | | | | | |
| HO108 | Bourke House & Stables<br>65 Racecourse Road, Pakenham | Yes | No | Yes | Yes | Yes | No | No | No |
| HO265 | English Oak<br>North-east corner of Syme and Toomuc Valley Road, Pakenham | No | No | Yes | Yes | No | No | No | No |
| HO233 | Pakenham Cemetery<br>50 Thewlis Road, and Cemetery Road, Pakenham | No | No | No | Yes | No | No | No | No |
| HO121 | Whangarei<br>667 Toomuc Valley Road, Pakenham Upper | Yes | Yes | Yes | Yes | Yes | No | No | No |
| HO275 | Pyrus communis (Pear Tree)<br>40 Dore Road, Pakenham | No | No | Yes | Yes | No | No | No | No |
| HO279 | House<br>18A Henry Street, Pakenham | No | No | No | Yes | No | No | No | No |
| HO281 | House (H.B. Thomas House)<br>49 James Street, Pakenham | No | No | No | Yes | No | No | No | No |
| HO283 | House | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 39 Main Street, Pakenham | | | | | | | | |
| HO284 | Shop<br>62 Main Street, Pakenham | No | No | No | Yes | No | No | No | No |
| HO285 | House<br>84 Main Street, Pakenham | No | No | No | Yes | No | No | No | No |
| HO286 | Shop and Residence<br>90-92 Main Street, Pakenham | No | No | No | Yes | No | No | No | No |
| HO287 | Group Listing Pakenham State Bank and War Services Homes Group<br>11, 14, 17 & 5/19 Rogers Street, Pakenham | No | No | No | Yes | No | No | No | No |
| HO288 | Shop<br>1 Station Street, Pakenham | No | No | No | Yes | No | No | No | No |
| HO290 | House<br>23 Rogers Street, Pakenham | No | No | No | Yes | No | No | No | No |
| HO291 | St James Village Precinct, Dame Pattie Avenue Pakenham<br>1-17 & 2-18 Dame Pattie Avenue, Pakenham<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO292 | Henty Street Precinct<br>3-5, 7-10 Henty Street, Pakenham<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | No | Yes | No | No | No | No |
| HO293 | James Street Precinct<br>5-19 (West Side), 20-32 (East Side) James Street and 1 Snodgrass Street, Pakenham<br>**Incorporated plan:** Cardinia Residential Heritage Precincts Incorporated Plan. | No | No | No | Yes | No | No | No | No |
| HO14 | Windarra<br>40 Greenhills Road, Pakenham<br>Statement of Significance: 'Windarra', 40 Greenhills Road Pakenham, Statement of Significance, July 2021<br>Incorporated Plan: 'Windarra', 40 Greenhills Road Pakenham, Incorporated Plan - Permit Exemptions, July 2021 | No | No | Yes | No | No | No | No | No |
| PAKENHAM SOUTH | | | | | | | | | |
| HO25 | Snow View | Yes | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 300 Bourke Road, Pakenham South | | | | | | | | |
| HO74 | Wood Farm Complex<br>575 McDonalds Drain Road, Pakenham South | Yes | No | Yes | Yes | Yes | No | No | No |
| HO75 | Ellett Farm<br>615 McDonalds Drain Road, Pakenham South | Yes | No | Yes | Yes | No | No | No | No |
| HO234 | Pakenham South Hall<br>815 McDonalds Drain Road West, Pakenham South | No | No | Yes | Yes | No | No | No | No |
| PAKENHAM UPPER | | | | | | | | | Yes |
| HO24 | Pakenham Upper Civic & Residential Precinct<br>Bourke Creek Road & Old Gembrook Road, Pakenham Upper | Yes | No | No | Yes | No | No | No | No |
| HO48 | The Grange<br>15 Huxtable Road, Pakenham Upper | Yes | Yes | Yes | Yes | Yes | No | No | No |
| HO69 | Goronga<br>Lot CM, Lot 4, Lot 6 and part Lot 5 PS317138, 20 Matilda Drive, Pakenham Upper | Yes | Yes | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO93 | Pakenham Upper Church Hall<br>Old Gembrook Road, Pakenham Upper | Yes | Yes | Yes | Yes | No | No | No | No |
| HO266 | Spotted and Scarlet Flowering Gum<br>Cnr of Bourke's Creek Road and Pakenham Road, Pakenham Upper | No | No | Yes | Yes | No | No | No | No |
| HO231 | Valley View Orchards Manager's House & former Coolstore<br>15 & 30 Shelton Road, Pakenham Upper | No | No | No | Yes | No | No | No | No |
| RYTHDALE | | | | | | | | | |
| HO47 | Dalmore Well<br>In the road reserve adjacent to 75 Hobson Road, Rythdale | Yes | Yes | No | Yes | No | No | No | No |
| HO115 | Hobson's (Soldier Settler) House<br>194 Soldiers Road, Rythdale | Yes | No | Yes | Yes | No | No | No | No |
| HO235 | Rythdale Reserve trees<br>205 Soldiers Road, Rythdale | No | No | Yes | Yes | No | No | No | No |
| TONIMBUK | | | | | | | | | |
| HO236 | Tonimbuk Hall | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 1900 Gembrook-Tonimbuk Road, Tonimbuk | | | | | | | | |
| TYNONG | | | | | | | | | |
| HO26 | Bunya Bunyas<br>195 Browning Road, Tynong | No | No | Yes | Yes | No | No | No | No |
| HO89 | Killary<br>130 (Lot 1, TP120736) Nine Mile Road, Tynong | Yes | Yes | Yes | Yes | Yes | No | No | No |
| HO107 | Vaughan & Lodge Tynong Quarry<br>20 Quarry Road, Tynong | No | No | No | Yes | No | No | No | No |
| HO240 | Tynong general store & stock feed<br>40 Railway Avenue, Tynong | No | No | No | Yes | No | No | No | No |
| HO124 | Bunya Bunya<br>76 Tynong Road, Tynong | No | No | Yes | Yes | No | No | No | No |
| HO123 | Waterhousea Floribunda<br>19-21 Tynong North Road, Tynong | No | No | Yes | Yes | No | No | No | No |
| HO267 | Chestnut Oak<br>Railway Avenue, Tynong | No | No | Yes | Yes | No | No | No | No |
| TYNONG NORTH | | | | | | | | | |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO30 | Tynong North Methodist Church<br>32 Clark Road, Tynong North | Yes | Yes | No | Yes | No | No | No | No |
| HO129 | Weatherhead (Horatio) Timber Mill<br>Weatherhead Hill Track, Bunyip State Park | No | No | No | Yes | No | No | No | No |
| YANATHAN | | | | | | | | | |
| HO43 | Glenafton Stud<br>210 Heads Road, Yannathan | Yes | No | Yes | Yes | Yes | No | No | No |
| HO44 | Myrtlewood<br>275 Heads Road, Yannathan | Yes | No | No | Yes | No | No | No | No |
| HO241 | Yannathan Public Hall, Union Church & Canary Island Palms<br>491-495 South Yannathan Road & 225-227 Heads Road, Yannathan | No | No | Yes | Yes | No | No | No | No |
| HO119 | Budgeree (Farmhouse)<br>130 Swamp Road, Yannathan | Yes | No | Yes | Yes | No | No | No | No |
| OTHER | | | | | | | | | |
| HO2 | Bowman's Track<br>Launching Place | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO4 | Upper Ferntree Gully to Gembrook Railway<br>Emerald, Cockatoo and Gembrook | Yes | No | Yes | Yes | Yes | No | No | No |

# 43.02 DESIGN AND DEVELOPMENT OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **DDO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas which are affected by specific requirements relating to the design and built form of new development.

## 43.02-1 Design objectives

19/01/2006
VC37

A schedule to this overlay must contain a statement of the design objectives to be achieved for the area affected by the schedule.

## 43.02-2 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to:

- Construct a building or construct or carry out works. This does not apply:
  - If a schedule to this overlay specifically states that a permit is not required.
  - To the construction of an outdoor swimming pool associated with a dwelling unless a specific requirement for this matter is specified in a schedule to this overlay.
  - To the construction of a building or construction or carrying out of works for a small second dwelling if all the following requirements are met:
    - The building height must not exceed 5 metres.
    - The building must be finished using muted tones and colours.
- Construct a fence if specified in a schedule to this overlay.

Buildings and works must be constructed in accordance with any requirements in a schedule to this overlay. A schedule may include requirements relating to:

- Building setbacks.
- Building height.
- Plot ratio.
- Landscaping.
- Any other requirements relating to the design or built form of new development.

A permit may be granted to construct a building or construct or carry out works which are not in accordance with any requirement in a schedule to this overlay, unless the schedule specifies otherwise.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a fence. | Clause 59.05 |
| Construct a building or construct or carry out works for: | Clause 59.05 |

| Class of application | Provision |
|---|---|
| ▪ A carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ An outdoor swimming pool.<br>The buildings and works must be associated with a dwelling. | |
| Construct a building or construct or carry out works with an estimated cost of up to $1,400,000 where the land is in an industrial zone. | Clause 59.05 |
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 where the land is in a commercial zone or a Special Use Zone, Comprehensive Development Zone, Capital City Zone, Docklands Zone, Priority Development Zone, Activity Centre Zone or Precinct Zone. | Clause 59.05 |

### Exemption from notice and review

A schedule to this overlay may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 43.02-3 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

This does not apply if a schedule to this overlay specifically states that a permit is not required.

Subdivision must occur in accordance with any lot size or other requirement specified in a schedule to this overlay.

A permit may be granted to subdivide land which is not in accordance with any lot size or other requirement in a schedule to this overlay, unless the schedule specifies otherwise.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land: | Clause 59.02 |

| Class of application | Provision |
|---|---|
| – Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |

**Exemption from notice and review**

A schedule to this overlay may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 43.02-4 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05 unless otherwise specified in a schedule to this overlay.

## 43.02-5 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 43.02-6 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The design objectives of the relevant schedule to this overlay.
- The provisions of any relevant policies and urban design guidelines.
- Whether the bulk, location and appearance of any proposed buildings and works will be in keeping with the character and appearance of adjacent buildings, the streetscape or the area.
- Whether the design, form, layout, proportion and scale of any proposed buildings and works is compatible with the period, style, form, proportion, and scale of any identified heritage places surrounding the site.
- Whether any proposed landscaping or removal of vegetation will be in keeping with the character and appearance of adjacent buildings, the streetscape or the area.
- The layout and appearance of areas set aside for car parking, access and egress, loading and unloading and the location of any proposed off street car parking
- Whether subdivision will result in development which is not in keeping with the character and appearance of adjacent buildings, the streetscape or the area.
- Any other matters specified in a schedule to this overlay.

10/06/2021
C254card

# SCHEDULE 1 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO1**.

**LOW DENSITY RESIDENTIAL**

## 1.0 Design objectives

10/06/2021
C254card

To ensure that the location and design of buildings creates an attractive low density residential environment.

To ensure that any development has regard to the environmental features and constraints of the land.

To ensure that the subdivision of land has regard to the existing pattern of subdivision in the area.

## 2.0 Buildings and works

04/05/2022
VC210

A permit is not required to construct a building or construct or carry out works provided all of the following requirements are met:

- Any building must be located within the building envelope if one is registered on the plan of subdivision.
- Any building must be set back at least 30 metres from a Transport Zone 2, 20 metres from a Transport Zone 3, 10 metres from any other road, and 5 metres from any other boundary unless the location of the building is within an approved building envelope.
- Any building or works must be set back at least 60 metres from a waterway.
- If the building is an extension to an existing dwelling.
- If the building is an outbuilding ancillary to a dwelling, the gross floor area of all outbuildings on the land must not exceed 120 square metres.
- Building materials must be non-reflective or subdued colours which complement the environment.
- The height of any building must not exceed 7 metres above natural ground level.
- The works must not involve the excavation of land exceeding 1 metre or filling of land exceeding 1 metre and any disturbed area must be stabilised by engineering works or revegetation to prevent erosion.
- The slope of the land on which the buildings and works are undertaken must not exceed 20 percent.
- The buildings and works must not result in the removal or destruction of native vegetation (including trees, shrubs, herbs, sedges and grasses) within an area of botanical or zoological significance as shown on the mapped information provided by the Department of Natural Resources and Environment, with the exception of Sweet Pittosporum (Pittosporum undulatum).

## 3.0 Subdivision

10/06/2021
C254card

None specified.

## 4.0 Signs

10/06/2021
C254card

None specified.

## 5.0 Application requirements

10/06/2021
C254card

None specified.

## 6.0 Decision guidelines

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 43.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- The Land Capability Study for the Cardinia Shire (February 1997).
- The protection and enhancement of the natural environment and character of the area including the retention of remnant vegetation and habitat, and the need to plant vegetation along waterways, gullies, ridgelines and property boundaries.
- The impact of any buildings and works on areas of remnant vegetation, and habitat of botanical and zoological significance.
- The impact of proposed buildings and works on the landscape character of the area, including prominent ridgelines and significant views.
- Measures to address environmental hazards or constraints including slope, erosion, drainage, salinity and fire.
- The protection of waterways and water quality through the appropriate management of effluent disposal, erosion and sediment pollution.

10/06/2021
C254card

# SCHEDULE 2 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO2**.

**HILLS TOWNSHIPS**

## 1.0 Design objectives

10/06/2021
C254card

To retain and protect the special character of the hills townships.

To maintain the diversity in lot sizes and ensure that subdivision of land has regard to the existing subdivisional characteristics of the area.

To ensure that the location and design of buildings protects and enhances the character and natural environment of the area and does not cause detriment to surrounding residents.

To ensure that any development has regard to the environmental features and constraints of the land.

## 2.0 Buildings and works

04/05/2022
VC210

A permit is not required to construct a building or construct or carry out works provided all of the following requirements are met:

- Any building must be set back at least 10 metres from a Transport Zone 2, 7.5 metres from a Transport Zone 3 or any other road, and 2 metres from any other boundary.
- Any building or works must be set back at least 60 metres from a waterway.
- If the building is an extension to an existing dwelling.
- If the building is an outbuilding ancillary to a dwelling, the gross floor area of all outbuildings on the land must not exceed 80 square metres.
- The height of any building must not exceed 7 metres above natural ground level.
- The works must not involve the excavation of land exceeding 1 metre or filling of land exceeding 1 metre and any disturbed area must be stabilised by engineering works or revegetation to prevent erosion.
- The slope of the land on which buildings or works are undertaken must not exceed 20%.
- Building materials must be non-reflective or subdued colours which complement the environment.
- If sewerage is not available, the land must be capable of containing on site all wastewater generated by the use or development.

## 3.0 Subdivision

10/06/2021
C254card

None specified.

## 4.0 Signs

10/06/2021
C254card

None specified.

## 5.0 Application requirements

10/06/2021
C254card

None specified.

## 6.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 43.02, in addition to those specified in Clause 43.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the proposed building or works has regard to the natural features of the land and is properly designed and sited in recognition of such factors as the slope of the land, existing vegetation and the amenity of surrounding residents.
- Measures to address environmental hazards or constraints including slope, erosion, drainage and fire.
- Whether the subdivision, building or works contributes to the protection and enhancement of the character and natural environment of the hills townships.

10/06/2021
C254card

# SCHEDULE 3 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO3**.

**BUNYIP RAILWAY AREA**

## 1.0 Design objectives

10/06/2021
C254card

- To achieve architectural and urban design outcomes that contribute positively to unique heritage and landscape values of the Bunyip town centre.
- To guide the integrated development of the land so as to build on the elements that define the attractive and distinct character of the Bunyip town centre.
- To encourage a design solution that responds to the site topography and maintains the built form character of the Bunyip town centre.
- To maintain appropriate views to the south from the Bunyip town centre precinct.
- To ensure that car parking, vehicle access and service areas are visually integrated with the built form.
- To minimise adverse impacts of any development on the safety of pedestrians and cyclists.
- To ensure frontages are pedestrian oriented and add interest and vitality to the Bunyip town centre.

## 2.0 Buildings and works

10/06/2021
C254card

Buildings or works generally should not exceed a maximum height of 7 metres (excluding an attic or basement). The height of a building or works is the height of its highest point above the permanent footpath at the centre of the site frontage. If there is no footpath, the natural surface level at the centre of the site frontage is the base level.

Buildings and works should be of a scale, design and alignment that maintain appropriate views to the south from the Bunyip town centre precinct.

Car parking facilities should not be a dominant feature when viewed from Main Street and High Street.

Any development must interact with the street frontage by providing window area and active edges on street frontages.

Any development must ensure a consistent height with the surrounding built form by using verandahs or similar shade and weather protection devices.

Any development must include works to provide a drop-off point for school and other buses as an integral part of the precinct.

Any development must include works to provide connections across Main Street to promote a high level of pedestrian integration with the Bunyip town centre precinct.

Rubbish enclosures and service areas must not be visible from a street and located to the rear of buildings.

Signage above verandahs and sky signs are discouraged. Signs should be integrated with the style and character of the building and surrounds.

## 3.0 Subdivision

10/06/2021
C254card

None specified.

## 4.0 Signs

10/06/2021
C254card

None specified.

## 5.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 43.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- An application must be accompanied by a site analysis and urban context report which demonstrates how the proposed building or works achieve each of the design objectives and built form outcomes of this schedule, and any other policy requirements.

## 6.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 43.02, in addition to those specified in Clause 43.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the proposed building or works has regard to the natural features of the land and is properly designed and sited in recognition of such factors as the slope of the land and existing vegetation.
- Whether the proposed building or works contributes to the protection and enhancement of the character and natural environment of the Bunyip town centre precinct.
- The impact of the development on scenic vistas.
- The capacity of the existing road system and any proposed modifications to accommodate any increase in traffic.
- Whether adequate pedestrian connections have been provided between precincts, car parks and open space.

10/06/2021
C254card

# SCHEDULE 4 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO4**.

## EMERALD TOWN CENTRE

Precincts within the Emerald Town Centre are identified in Map 1.

## 1.0 Design objectives

10/06/2021
C254card

To achieve architectural and urban design outcomes that contribute positively to the character of the Emerald town centre.

To encourage a design solution that responds to the site topography and maintains the built form character of the Emerald town centre.

To maintain view corridors with the town centre and protect the Puffing Billy landscape corridor.

To ensure that car parking, vehicle access and service areas are visually integrated with the built form.

To ensure frontages are pedestrian oriented and add interest and vitality to the town centre.

## 2.0 Buildings and works

10/06/2021
C254card

### Permit requirements

A permit is not required to construct a building or construct or carry out works within the Arts and Community precinct, and Community and Recreation precinct where the buildings and works are carried out by or on behalf of the relevant Public Land Manager.

### Service and Mixed Use Precinct

Development should:

- Ensure that views are not unreasonably reduced, providing view corridors between buildings and ensuring retention of public views particularly along Belgrave-Gembrook Road. Consideration should be given to the views into the site from the gateway area at the crossing of the Railway line.
- Provide a strong landscape response and a contribution to the landscape character of the town, in particular the address to Belgrave – Gembrook Rd and the Puffing Billy landscape corridor.
- Provide building envelopes that are sympathetic to the scale, height and location of existing trees.
- Minimise the number of vehicle access points from Belgrave-Gembrook Road. This should also apply to any future service road access points.
- Where possible and practical (in relation to topography, amenity, accessibility, compatibility with neighbouring uses), vehicle access should be provided from the rear laneway.
- Ensure the use of appropriate colour schemes and materials that respond to the requirements of the Puffing Billy Landscape Corridor standards.
- Be of innovative design and a high standard of built form design and detailing, appropriate to the gateway location of this precinct.

The maximum building height should not exceed 2 storeys. Building height should also respond to topography (views; limited cut and fill) as well as amenity (adjoining uses) and streetscape context.

Front setbacks should be a minimum of 3.0 metres, however consideration will be given to reduced setbacks where it can be demonstrated that the reduced setback is in response to retention of existing vegetation, limiting cut and fill, protection of views and response to slope/elevation.

Setbacks from side and rear boundaries should be a minimum of 3.0 metres to allow appropriate space for canopy tree planting.

**Central Retail Precinct (Kilvington Drive)**

Development should:

- Ensure that view corridors are not unreasonably reduced, providing view corridors between buildings and ensuring retention of public views, particularly the views from Main Street and from the Puffing Billy Railway corridor.
- Provide a strong landscape response and the contribution to the landscape and streetscape character of the town, in particular the address to Kilvington Drive.
- Avoid the number of vehicle access points from Kilvington Drive.
- Ensure the use of appropriate colour schemes and materials that respond to the requirements of the Puffing Billy Landscape Corridor standards.
- Be of a design that respects the context, materials, colours and forms of existing built form in the precinct, without necessarily copying past styles.

Building height should not exceed 2 storeys. Building height should respond to amenity (adjoining uses) and streetscape context.

Front setbacks should be zero, consistent with existing setbacks.

Front setbacks for car parking should be avoided.

Active edges on street frontages and along all pedestrian connections to be provided, avoiding blank facades.

**Central Mixed Use Precinct**

Development should:

- Take advantage of the natural topography.
- Ensure that view corridors are not unreasonably reduced, providing view corridors between buildings and ensuring retention of public views particularly from Main Street and Murphy's Way.
- Provide a strong landscape response and a contribution to the landscape character of the town, particularly the address to Belgrave – Gembrook Road. Front hedging and a density of canopy vegetation are desirable.
- Minimise the number of vehicle access points from Belgrave – Gembrook Rd and ensure site planning avoids steep driveways.
  - On the north side, encourage vehicle access and parking from the Madigan Way.
  - On the south side, encourage shared vehicle crossovers and rear car parking.
- Be of innovative design, with due regard and recognition of the surrounding village character, without necessarily copying past styles.
- Ensure the use of colour schemes and materials which:
- do not dominate the strong landscape setting, or within the streetscape.
- contribute to and strengthen a sense of place through the use of local and natural materials (such as timber and stone)

Building heights from natural ground level should be:

- South side maximum height presented to Main Street, not more than 2 storeys above natural ground level.

- North side maximum height presented to Main Street, not more than 2 storeys from the permanent footpath at the centre of the frontage of the site.
- Front setbacks should be 6.0 metres minimum, however consideration will be given to reduced setbacks where it can be demonstrated that the reduced setback is in response to retention of existing vegetation, limiting cut and fill, protection of views and response to slope/elevation.

Front setbacks should be maintained as landscaped open space.

On the south side of Main Street, all developments should incorporate a public shared path as well as canopy trees, as a contribution to the development of 'Emerald Link'.

Front setbacks for car parking should be avoided.

Building setbacks from side and rear boundaries should be a minimum of 3.0 metres to allow for canopy tree planting.

**Northern Retail Precinct**

Development should:

- Take advantage of the natural topography and capitalise on existing site features, forms and vegetation.
- Ensure that view corridors are not unreasonably reduced, providing view corridors between buildings and ensuring retention of public views particularly from Belgrave-Gembrook Road, Emerald – Monbulk Road and the recreation reserve.
- Provide a strong landscape response and a contribution to the landscape character of the town, in particular the streetscape address.
- Minimise the number of vehicle access points from Belgrave – Gembrook Rd and Emerald – Monbulk Road.
- Ensure design that respects the context, materials, colours and forms of existing built form in the precinct, without necessarily copying past styles.

Building height should not exceed 2 storeys. Building height should also respond to topography (views; limited cut and fill) as well as amenity (adjoining uses) and streetscape context.

Avoid setbacks for buildings fronting Main Street/Belgrave – Gembrook Road.

On Emerald – Monbulk Road, setbacks should be generally consistent with existing average setbacks and be maintained as landscaped open space.

Front setbacks for car parking should be avoided, however consideration will be given to maintaining existing car parking locations on the existing supermarket site.

**Arts and Community Precinct**

Development should:

- Ensure that view corridors are not unreasonably reduced, providing view corridors between buildings and ensuring retention of public views particularly along Kilvington Drive. consideration should be given to the views from the Puffing Billy railway corridor and Emerald Primary School.
- Provide a strong landscape response and a contribution to the landscape and heritage character of the town and the address to Kilvington Drive.
- Provide building envelopes that are sympathetic to the scale, height and location of existing trees.
- Minimise the number of vehicle access points from Kilvington Drive.
- Provide permeability and direct connections between adjoining developments, with direct connections to Emerald Primary School encouraged.

- Provide a design and the selection of appropriate colour schemes and materials that responds to the requirements of the Puffing Billy Landscape Corridor standards.
- Provide a design that respects the context, materials, colours and forms of existing built form in the precinct.

Building height should not exceed 2 storeys. Building height should also respond to topography (views; limited cut and fill) as well as amenity (adjoining uses) and streetscape context.

Front setbacks should be a minimum of 3.0 metres, however consideration will be given to reduced setbacks where it can be demonstrated that the reduced setback is in response to existing setbacks in adjoining properties, retention of existing vegetation, limiting cut and fill, protection of views and response to slope/elevation.

#### Community and Recreation

Development should:

Ensure that view corridors are not unreasonably reduced, providing view corridors between buildings and ensuring retention of public views particularly from all main entry

- Provide a strong landscape response and a contribution to the landscape character of the town and in particular respond to the context of the recreation reserve and the address to the main entry roads.
- Provide building envelopes that are sympathetic to the scale, height and location of existing trees.
- Ensure permeability by integrating new pedestrian connections with the circulation patterns and desire lines around the existing Library and Recreation Reserve.
- Be of a high standard of built form design and detailing that is harmonious with the form and character of existing development.
- In larger scale developments, provide varied building types and forms relative to human scale and create the appearance of several smaller buildings.

Building height should not exceed 2 storeys. Building height should also respond to topography (views; limited cut and fill) as well as amenity (adjoining uses) and streetscape context.

Front setbacks should be consistent with the setback of the Emerald Library.

## 3.0 Subdivision

10/06/2021
C254card

None specified.

## 4.0 Signs

10/06/2021
C254card

A permit is required for a sky sign, high wall sign or above verandah sign.

In all Precincts:

- Signs are to identify the location, name and nature of a business.
- Where buildings have a zero front setback, signs are to be located on buildings and generally be limited to a single awning sign or verandah sign, or within a built element.
- Where multiple businesses occupy a premise, a single sign should be displayed.
- Signs on windows are to be limited.
- Signage above verandahs and sky signs are discouraged.
- Illuminated signs are to be permitted only where it can be demonstrated that there is no detrimental affect on the amenity of the area.
- Signs should be integrated with the style and character of the building and surrounds.

- The size of signs is to be consistent with the scale of the building and its surrounds.
- Signage colours and graphics are not to detract from the amenity of the area.
- Signs are to be of a high standard and design quality.

In the Central Mixed Use Precinct and elsewhere where buildings are setback from the street frontage, signs should meet the following design guidelines:

- all signs should be located on buildings.
- where it can be demonstrated that topography and/or vegetation obscures sightlines to the buildings, signs may be stand alone pole signs.
- a single signage plate is allowable for each allotment and only one sign should be used whether there is a single or multiple businesses on the site.
- double sided signage plates are accepted.

## 5.0 Application requirements

10/06/2021
C254card

None specified.

## 6.0 Decision guidelines

10/06/2021
C254card

None specified.

## Map 1 to Schedule 4 to Clause 43.02

LEGEND - TOWN CENTRE PRECINCTS

- Service and Mixed Use Precinct
- Central Retail Precinct (Kilvington Drive)
- Central Mixed Use Precinct
- Arts and Community Precinct (including Puffing Billy)
- Northern Retail Precinct
- Community and Recreation Precinct

LEGEND - STREETSCAPE CHARACTER

- Key Gateway / Entry Avenue
- Activity Zone
- Emerald Link

Ref: 06/1562
Date: September 2008
not to scale

CARDINIA

FIGURE 15 - TOWN CENTRE PRECINCTS

EMERALD DISTRICT STRATEGY REVIEW

18/07/2019
C220card

# SCHEDULE 5 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO5**.

## BEACONSFIELD PRINCES HIGHWAY GATEWAY PRECINCT

## 1.0 Design objectives

18/07/2019
C220card

- To achieve architectural and urban design outcomes that provide a functional built environment, promotes community and personal safety and contributes positively to the character of the Beaconsfield town centre.
- To establish a high quality built form which reinforces its strategic context as a prominent gateway to Beaconsfield town centre by providing an enhanced sense of arrival to Beaconsfield with a prominent built form in the north west corner of the precinct, consistent setbacks along Princes Highway and integrated car parking.
- To promote development which is sympathetic to the Cardinia Creek and Bob Burgess Reserve and provides passive surveillance of Cardinia Creek Parklands.
- To provide ground floor active frontages along Princes Highway through the provision of entrances and windows with clear glazing.
- To provide a high level of pedestrian amenity through the use of awnings, lighting and passive surveillance.

## 2.0 Buildings and works

18/07/2019
C220card

The following building and works requirements apply to an application to construct a building or construct or carry out works:

- Buildings and works should be sited generally in accordance with the footprints shown in Figure 2.
- Buildings and works should meet the preferred maximum building heights specified in Table 1 of this Schedule. The preferred maximum building heights in Table 1 do not include a basement level where it projects no more than 1.2 metres above the natural ground level.
- Buildings and works should meet the preferred minimum building heights specified in Table 1 of this Schedule.
- Buildings and works should meet the design standards specified in Table 1.
- Buildings and works should include clear glazing to at least 50% of building façades at street level.
- Buildings and works should provide for articulated facades that provide visual interest and horizontal definition of floor levels.
- Buildings and works which include upper level entrances should be located in the primary street façade.
- Buildings and works with blank walls on front facades should be limited to a width of 2 metres.
- Buildings and works should provide continuous building frontages to the Princes Highway, unless providing a vehicle crossover or pedestrian connection.
- Buildings and works should set back upper floors from the street wall, to avoid the impression of building bulk and the domination of the public spaces.
- Awnings or canopies along building frontages and walkways should be at least three metres in width.
- Buildings and works should not include internalised malls that draw pedestrian movement and activity away from Princes Highway and Woods Street frontages.

- Colours and materials of new developments should complement the natural environment of the Cardinia Creek Parklands environment.
- Buildings and works should include balconies and windows to maximise passive surveillance of public realms and reserves.
- Buildings and works should provide pedestrian links to Bob Burgess Reserve and the Cardinia Creek Parklands.
- Buildings and works should provide pedestrian connectivity through footpaths and visual links between buildings and car parks and through the precinct.
- Buildings and works should provide lighting within car parking and pedestrian areas to improve safety and passive surveillance.
- Car parks should include provision for landscaping, including trees for shade and amenity.
- Vehicle crossovers with a maximum width of 7 metres. Car parking layout should be generally consistent with Figure 2 of this Schedule.

**Table 1 - Built Form Requirements for Specific Areas**

| DDO Area | Preferred Maximum Building Height (metres) | Preferred Minimum Building Height (metres) | Design Standards |
|---|---|---|---|
| Precinct A | 15m<br>(4 storeys) | 11m<br>(3 storeys) | A building should:<br>▪ have a zero metre setback to Princes Highway.<br>▪ be designed to address Princes Highway and Bob Burgess Reserve.<br>▪ be orientated at a 90 degree angle between Princes Highway and Cardinia Creek to signify a gateway threshold into Beaconsfield from the north.<br>▪ provide basement car parking. |
| Precinct B1 & B2 | 11m<br>(3 storeys) | 8m<br>(2 storeys) | A building should:<br>▪ provide an active frontage and passive surveillance to Cardinia Creek and Bob Burgess Reserve. |

| DDO Area | Preferred Maximum Building Height (metres) | Preferred Minimum Building Height (metres) | Design Standards |
|---|---|---|---|
| | | | ▪ have a maximum setback of 3 metres to the west boundary.<br>▪ provide for car parking that is integrated with the built form. |
| Precinct C | 11m<br>(3 storeys) | 8m<br>(2 storeys) | A building should:<br>▪ have a zero metre setback to Princes Highway.<br>▪ provide for car parking that is located to the rear of the building. |
| Precinct D1 | 8m<br>(2 storeys) | N/A | A building should:<br>▪ have a zero metre setback to Princes Highway.<br>▪ provide for car parking that is located to the rear of the building. |
| Precinct D2 | 15m<br>(4 storeys) | 11m<br>(3 storeys) | A building should:<br>▪ along its frontage to Bob Burgess Reserve provide a 6 metre setback.<br>▪ be orientated at a 90 degree angle between Princes Highway and Cardinia Creek to signify a gateway threshold into Beaconsfield from the north.<br>▪ provided basement car parking. |
| Precinct E | 11m<br>(3 storeys) | 8m<br>(2 storeys) | A building should: |

| DDO Area | Preferred Maximum Building Height (metres) | Preferred Minimum Building Height (metres) | Design Standards |
|---|---|---|---|
| | | | ▪ have a minimal and consistent setback to Princes Highway.<br>▪ provide for car parking that is located to the rear of the building. |

## 3.0 Subdivision

18/07/2019
C220card

None specified.

## 4.0 Signs

18/07/2019
C220card

None specified.

## 5.0 Application requirements

18/07/2019
C220card

The following application requirements apply to an application for a permit under Clause 43.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A comprehensive site analysis and urban context report which demonstrates how the proposed buildings or works achieve the design objectives at Clause 1.0, the built form requirements in Clause 2.0 and Figures 1 and 2 of this Schedule.
- If an application is to exceed the preferred maximum building height as specified in Table 1, the application must demonstrate how the development will continue to achieve the design objectives at Clause 1.0 the built form requirements of Clause 2.0 and Figures 1 and 2 of this Schedule.
- If an application does not achieve the preferred minimum building height as specified in Table 1, the application must demonstrate how the development will continue to achieve the design objectives at Clause 1.0, the built form requirements of Clause 2.0 and Figures 1 and 2 of this Schedule.

## 6.0 Decision guidelines

18/07/2019
C220card

The following decision guidelines apply to an application for a permit under Clause 43.02, in addition to those specified in Clause 43.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the design, form, layout and scale of the development is consistent with the overall concept for the site as shown in Figure 2.
- Whether a proposal that seeks to vary a built form requirement can still achieve the design objectives of Clause 1.0 of this Schedule.
- Whether the proposal is generally in accordance with the design requirements of Clause 2.0 and the precinct design standards in Table 1 of this Schedule.
- Whether a proposal that seeks to exceed the maximum building height still achieves the design objectives of this Schedule.

- Whether a proposal that does not achieve the minimum building height still achieves the design objectives of this Schedule.
- Whether the proposal has a positive impact on pedestrian amenity, through landscaping, lighting, and passive surveillance from surrounds.

**FIGURE 1 – BEACONSFIELD PRINCES HIGHWAY GATEWAY PRECINCT PLAN**

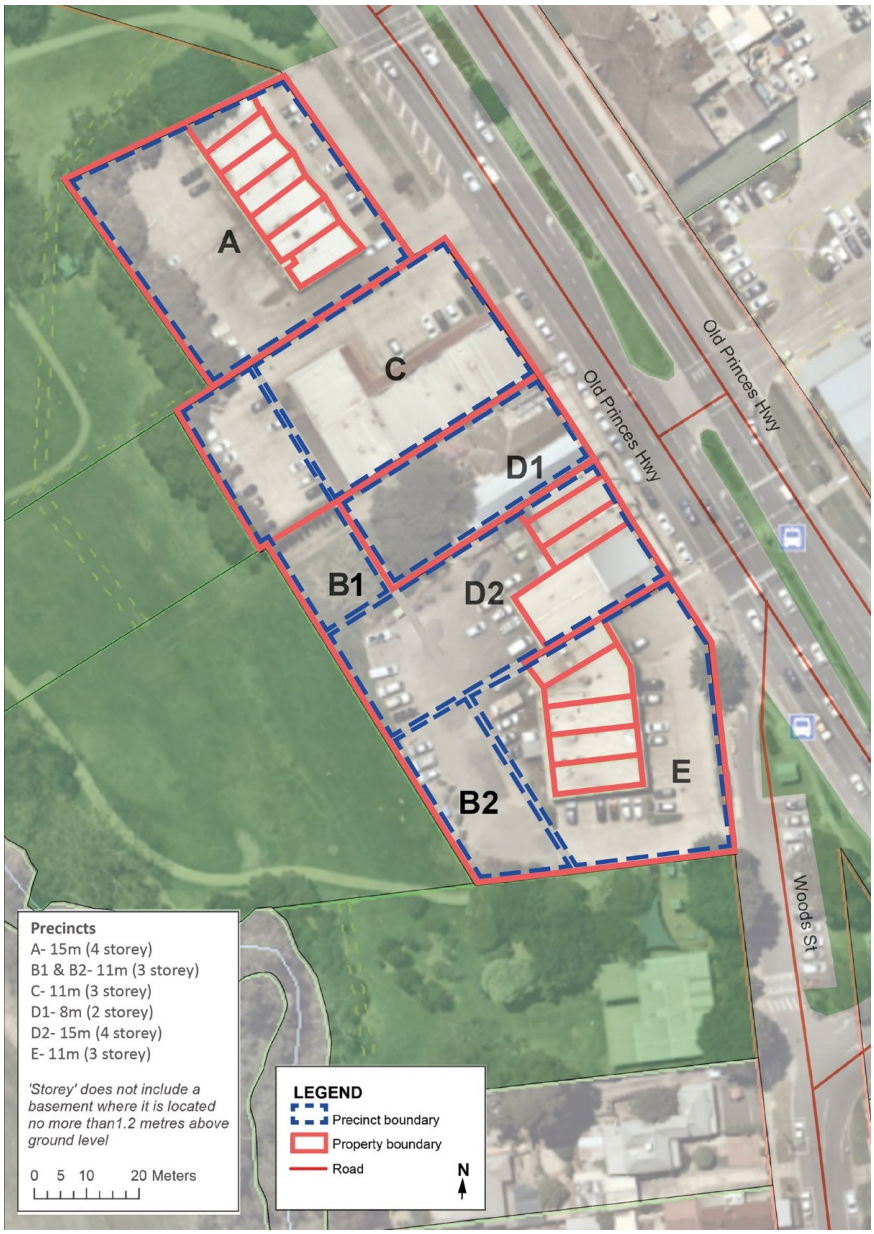



**FIGURE 2 - BEACONSFIELD PRINCES HIGHWAY GATEWAY CONCEPT PLAN**

Old Princes Highway
Old Princes Highway
7m MAX
7m MAX
7m MAX
Legend
Built - form
Trees
Open Space
0 5 10 20 Meters
N

18/07/2019
C220card

# SCHEDULE 6 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO6**.

**BEACONSFIELD POINT PRECINCT**

## 1.0 Design objectives

18/07/2019
C220card

- To achieve architectural and urban design outcomes that promote visual interest, improve public realm amenity, enhance community and personal safety and contribute positively to the low scale, unique character of the Beaconsfield Point Precinct.
- To promote a landmark building on the corner of Woods Street and Princes Highway with active street frontages and appropriate scale.
- To provide off-street car parking accessed predominately from Princes Highway and located behind the built form interface along Woods Street.
- To encourage street level active frontages with strong built form edges that promote physical and visual permeability along Woods Street and Princes Highway.
- To provide a high level of pedestrian and cycling amenity through landscaping, lighting, connectivity and passive surveillance from surrounds.

## 2.0 Buildings and works

18/07/2019
C220card

The following building and works requirements apply to an application to construct a building or construct or carry out works:

**Building design**

- Buildings and works should be sited generally in accordance with the footprints shown in Figure 1.
- Buildings and works should meet the preffered minimum building height of 8 metres (2 storeys).
- Buildings and works should have a zero metre building set back to the Woods Street boundary.
- Buildings and works should include clear glazing to at least 50% of building façades should be used at ground floor level street level.
- Buildings and works should include front glazing to Woods Street raised from ground level (to create a stall riser).
- Buildings and works should be designed with articulated facades including horizontal definition of levels.
- Buildings and works which include ground floor access to upper levels should be articulated to provide a sense of entry.
- Buildings and works with blank walls on front facades should be limited to a width of 2 metres.
- Buildings and works should provide shop frontages of 6 – 10 metres to Woods Street.
- Buildings and works should set back upper floors from the street wall to avoid the impression of building bulk and the domination of public spaces and view lines.
- Awnings or canopies along building frontages and walkways should be at least three metres wide.
- Buildings and works should not include internalised malls that draw pedestrian movement and activity away from Princes Highway and Woods Street frontages.
- New developments should complement the heritage character of Woods Street through the use of muted tones.

**Other design requirements**

- Buildings and works should provide pedestrian connectivity through footpaths and visual links between buildings and car parks and through the precinct.
- Buildings and works should provide footpaths that extend from back of kerb to building street frontages.
- Buildings and works should provide for lighting within car parking and pedestrian areas to improve safety and passive surveillance.
- Buildings and works should provide for planting zones along the boundary line between two adjoining driveways.
- Service and loading areas should be landscaped or otherwise screened from view to achieve a maximum of 25% visually permeability.
- Vehicle crossovers and car parking layout should be sited generally in accordance with Figure 1.

## 3.0 Subdivision

18/07/2019
C220card

None specified.

## 4.0 Signs

18/07/2019
C220card

None specified.

## 5.0 Application requirements

18/07/2019
C220card

The following application requirements apply to an application for a permit under Clause 43.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A comprehensive site analysis and urban context report which demonstrates how the proposed buildings or works achieve the design objectives and built form requirements of this Schedule, as demonstrated in Figure 1.
- If an application does not achieve the minimum building height as specified in Clause 2.0, the application must demonstrate how the development will achieve the design objectives at Clause 1.0, the built form requirements of Clause 2.0 and Figure 1 of this Schedule.

## 6.0 Decision guidelines

18/07/2019
C220card

The following decision guidelines apply to an application for a permit under Clause 43.02, in addition to those specified in Clause 43.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the design, form, layout and scale of the development is consistent with the overall concept for the site as shown in Figure 1.
- Whether a proposal that seeks to vary a built form requirement can still achieve the design objectives of Clause 1.0 of this Schedule.
- Whether the proposal is generally in accordance with the design requirements of Clause 2.0 of this Schedule.
- Whether a proposal that does not achieve the minimum building height still achieves the design objectives of Clause 1.0 of this Schedule.
- The impact the proposal has on pedestrian and cyclist amenity, through landscaping, lighting, connectivity and passive surveillance from surrounds.

**FIGURE 1 - BEACONSFIELD POINT PRECINCT CONCEPT PLAN**

Woods Street
Old Princes Highway
LEGEND
Property boundary
Road
Built Form
N
0 5 10 20 Meters

24/02/2022
C240card

# SCHEDULE 8 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO8**.

## KOO WEE RUP ESTABLISHED RESIDENTIAL AREAS

## 1.0 Design objectives

24/02/2022
C240card

- To encourage development and subdivision that maintains and enhances the existing township character.
- To ensure new development is responsive to existing building heights and setbacks.

## 2.0 Buildings and works

24/02/2022
C240card

A permit is not required to construct a building or construct or carry out works if the following requirements are met:

- Buildings are setback at least 7 metres from front boundaries or no less than the average of adjacent two dwellings.
- Buildings are setback at least 2.5 metres from side boundaries.
- The building height does not exceed 7.5 metres above natural ground level.
- The building site coverage does not exceed 40 per cent for single dwellings developments or 50 per cent for multi-unit developments.
- The building is an extension to an existing dwelling.

A permit is required to construct a fence within 3 metres of front street boundary if the height of the fence exceeds 1.5 metres and less than 50 per cent transparent.

The following buildings and works requirements apply to an application to construct a building or construct or carry out works:

### Built form

- Avoid repetitive built form and design.
- Upper stories setback from ground floor facades or concealed within pitched roof forms and constructed from a variety of materials.
- Building design to be contemporary, whilst responding to the architectural style of the existing neighbourhood, including any identified heritage buildings, without replicating the building style.
- Dwelling entries clearly defined.
- Garages setback from the front facade and recessive to the built form.
- Any common driveway to be located on one side of the lot and provide landscaping including trees.
- No front fencing or low, open style fencing where fencing can not be avoided.

### Landscaping

- Existing vegetation that is in good condition and that makes a positive contribution to the existing character to be retained with new landscaping to respond to the landscape character of the surrounding area.
- New street tree species consistent with existing street tree species on adjoining streets unless otherwise specified by the responsible authority.

## 3.0 Subdivision

24/02/2022
C240card

An application to subdivide land should meet the following requirements:

- Subdivision layout to respond to surrounding development and uses on adjoining land.
- Subdivision of land into three or more lots to have at least 70 per cent of new lots with a site area at least 700 square metres.
- Avoid lots less than 600 square metres.
- Minimum lot widths of 18 metres wherever possible.

These requirements do not apply to the subdivision of a lot containing two or more existing dwellings, or a planning permit issued for the construction of multiple dwellings before the approval date of Amendment C240card.

## 4.0 Signs

24/02/2022
C240card

None specified.

## 5.0 Application requirements

24/02/2022
C240card

The following application requirements apply to an application for a permit under Clause 43.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- An arboricultural assessment prepared by a suitably qualified person(s) that identifies any significant trees or vegetation on the land, and any existing street trees and roadside vegetation.
- A landscaping plan that identifies existing vegetation to be retained and new vegetation to be planted.

## 6.0 Decision guidelines

24/02/2022
C240card

The following decision guidelines apply to an application for a permit under Clause 43.02, in addition to those specified in Clause 43.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether a proposal that seeks to vary a built form requirement can still achieve the design objectives of this Schedule.
- The removal of existing vegetation and opportunities for replanting on the site.
- Whether any proposed fencing maintains the sense of openness of the streetscape.

24/02/2022
C240card

# SCHEDULE 9 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO9**.

## KOO WEE RUP TOWN CENTRE

## 1.0 Design objectives

24/02/2022
C240card

- To achieve urban design outcomes that create a strong traditional rural character and identity for Koo Wee Rup town centre.
- To establish high quality built form that reinforces Koo Wee Rup's rural character.
- To provide ground floor active frontages along Station Street and Rossiter Road through the provision of entrances and windows with clear glazing.
- To create an attractive, functional and safe built environment with high level of pedestrian amenity.
- To encourage environmentally sustainable design.

## 2.0 Buildings and works

24/02/2022
C240card

The following building and works requirements apply to an application to construct a building or construct or carry out works:

### Building heights and setbacks

| Precinct | Minimum building height | Maximum building height | Setbacks |
|---|---|---|---|
| 1a | nil | 10 metres (2 storeys) | Front: 0 metres<br>Side street: 0 metres<br>Side: 0 metres at front boundary |
| 1b | nil | 15 metres (3 storeys) | Front: 0 metres<br>Side street: 0 metres<br>Side: 0 metres at front boundary<br>Rear: 18 metres |
| 2 | 7 metres (2 storeys) | 15 metres (3 storeys) | Front: 0 metres<br>Side street: 0 metres |
| 3a & 3b | nil | 10 metres (2 storeys) | Front: 0 metres<br>Side street: 0 metres |

## Requirements

| Precinct | Frontages | Built form | Orientation | Parking and Services |
|---|---|---|---|---|
| General | ▪ Articulated building facades with entrances and glazing as the predominant elements.<br>▪ Architectural markers and definition to highlight entries and focal points.<br>▪ Awnings to all front facades for pedestrian amenity and shelter.<br>▪ No front fences. | ▪ Buildings to respond to existing notable trees wherever possible, with tree protection zones specified by a suitably qualified person.<br>▪ Raised floor levels required for flood mitigation accommodated within buildings with suitable access for persons of all abilities. | ▪ Principal frontages of new buildings to address the street.<br>▪ Highly visible building entries from the street and pathways.<br>▪ Facade treatments wrapped around corners to address all frontages to public land. | None |
| Precinct 1a - Former PMP Site | ▪ Transparent glazing to at least 70% of ground level street facades.<br>▪ Balconies to upper floors for passive surveillance of the public realm.<br>▪ Cantilevered awnings at a consistent minimum height of 3 metres and a width of approximately 2.5 metres. | ▪ Buildings to be articulated with a combination of varied building massing, horizontal and vertical detailing.<br>▪ Development scale should be moderated in the context of achieving pedestrian sight lines or protecting heritage settings. | ▪ Development interfacing with a key shared path orientated to address the open space area and provide passive surveillance.<br>▪ Development integration with the shared rail trail with windows, balconies and building detailing oriented to this interface.<br>▪ Building orientation principally to Station Street. | ▪ Car parking, loading and service areas located at the rear away from street views.<br>▪ Screened rear service, loading and storage areas. |

| Precinct | Frontages | Built form | Orientation | Parking and Services |
|---|---|---|---|---|
| Precinct 1b - Traditional town centre | ▪ Transparent glazing to at least 70% of ground level street facades.<br>▪ Third floor levels setback from second level front facades.<br>▪ Cantilevered awnings at a consistent minimum height of 3 metres and a width of approximately 2.5 metres. | ▪ Variation in frontage form with punctuations at corners.<br>▪ New building design and massing to be sympathetic to surrounding heritage buildings without mimicking heritage styles.<br>▪ Separation of built form to provide a shared path connection along the eastern boundary of the precinct from Moody Street to the shared rail trail. | ▪ Development interfacing with the key shared path to be orientated to address the open space area and provide passive surveillance.<br>▪ Building orientation principally to Station Street. | ▪ Car parking, loading and service areas located at the rear away from street views.<br>▪ Screened rear service, loading and storage areas. |
| Precinct 2 - Large Format Retail Precinct | ▪ Transparent glazing to at least 50% of street facades.<br>▪ Cantilevered awnings along Station Street at a consistent minimum height of 3 metres and a width of 2.5 metres. | ▪ Definition of the key entrance to Koo Wee Rup town centre at the western corner of precinct 2 with a landmark built form.<br>▪ Articulated front and side elevations with horizontal definition of floor levels.<br>▪ Separation of built form to provide a shared path connection along the eastern | ▪ Development interfacing with the key shared path to be orientated to address the open space area and provide passive surveillance.<br>▪ Building orientation principally to Station Street. | ▪ Car parking, loading and service areas located at the rear away from street views. Car parking in Precinct 2 may be located at the side.<br>▪ Screened rear service, loading and storage areas. |

| Precinct | Frontages | Built form | Orientation | Parking and Services |
|---|---|---|---|---|
| | | boundary of the Timber Sale Yard from Salmon Street to the share rail trail. | | |
| Precinct 3a and 3b - Commercial/ mixed use precinct | ▪ Transparent glazing to at least 70% of ground level street facades.<br>▪ Cantilevered awnings at a consistent minimum height of 3 metres and a width of approximately 2.5 metres. | ▪ Articulated front and side elevations with horizontal definition of floor levels.<br>▪ Horizontal parapets to front elevations in Precinct 3a that match the first floor alignment of Royal Hotel to ensure a continuity of frontage form. | ▪ Ground level entrances to upper level dwellings to be accessible from the street and well articulated within the street facade.<br>▪ Building orientation in precinct a principally to Station Street.<br>▪ Building orientation in precinct 3b principally to Rossiter Road. | ▪ Car parking, loading and service areas located at the rear away from street views.<br>▪ Screened rear service, loading and storage areas. |

## 3.0 Subdivision

24/02/2022 C240card

None specified.

## 4.0 Signs

24/02/2022 C240card

None specified.

## 5.0 Application requirements

24/02/2022 C240card

The following application requirements apply to an application for a permit under Clause 43.02, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A comprehensive site analysis and an urban context report which identifies constraints and opportunities and demonstrates how the design response achieves the design objectives at Clause 1.0 and the built form requirements specified at Clause 2.0 of this schedule.

  If in the opinion of the responsible authority a site analysis and urban context report is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.
- If an application proposes a building height that is below the specified minimum building height, or exceeds the specified maximum building height, the application must demonstrate how the development will achieve the design objectives at Clause 1.0 and the built form requirements of Clause 2.0 of the schedule.

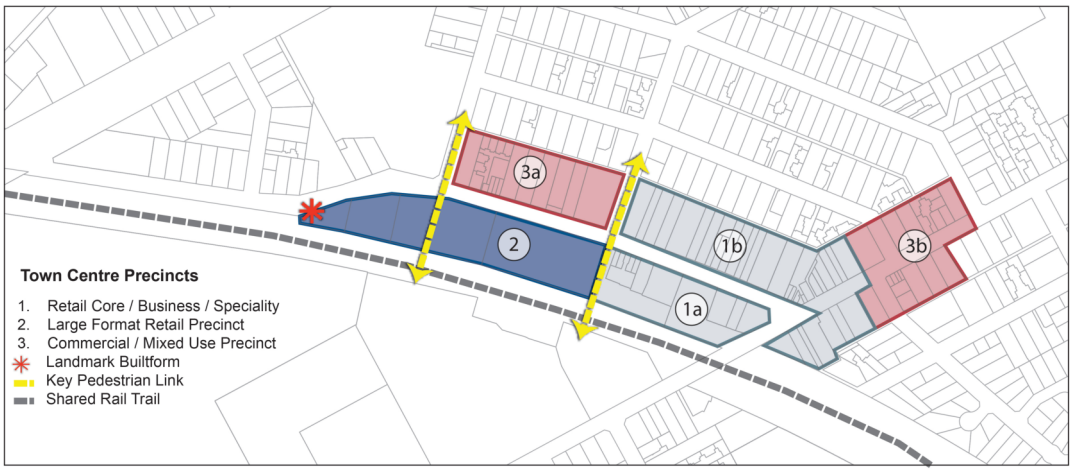
## 6.0 Decision guidelines

24/02/2022
C240card

The following decision guidelines apply to an application for a permit under Clause 43.02, in addition to those specified in Clause 43.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether a proposal that is below the minimum building height or exceeds the maximum building height still achieves the design objectives of this schedule.
- Whether a proposal that seeks to vary a built form requirement can still achieve the design objectives of this schedule.
- Any impact the proposal has on pedestrian amenity.

**Figure 1: Precinct Plan**



# 43.03 INCORPORATED PLAN OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **IPO** with a number.

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas which require:

- The form and conditions of future use and development to be shown on an incorporated plan before a permit can be granted to use or develop the land.
- A planning scheme amendment before the incorporated plan can be changed.

To exempt an application from notice and review if it is generally in accordance with an incorporated plan.

## 43.03-1 Requirement before a permit is granted

19/01/2006
VC37

A permit must not be granted to use or subdivide land, construct a building or construct or carry out works until an incorporated plan has been incorporated into this scheme.

This does not apply if a schedule to this overlay specifically states that a permit may be granted before an incorporated plan has been incorporated into this scheme.

A permit granted must:

- Be generally in accordance with the incorporated plan, unless a schedule to this overlay specifies otherwise.
- Include any conditions or requirements specified in a schedule to this overlay.

## 43.03-2 Exemption from notice and review

31/07/2018
VC148

An application under any provision of this planning scheme which is generally in accordance with the incorporated plan is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 43.03-3 Decision guidelines

31/07/2018
VC148

Before deciding on an application under any provision of this scheme which is not generally in accordance with the incorporated plan, in addition to the decision guidelines in Clause 65, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The incorporated plan.
- Any other matters specified in a schedule to this overlay.

## 43.03-4 Preparation of the incorporated plan

25/02/2025
VC257

The incorporated plan may consist of plans or other documents and may, with the agreement of the planning authority, be prepared and implemented in stages.

An incorporated plan that provides for residential subdivision in the Neighbourhood Residential Zone, General Residential Zone, Housing Choice and Transport Zone, Residential Growth Zone, Mixed Use Zone, Township Zone, Comprehensive Development Zone and Priority Development Zone must meet the requirements of Clause 56 as specified in the zone.

The incorporated plan must describe:

- The land to which the plan applies.

- The proposed use and development of each part of the land.
- Any other requirements specified for the plan in a schedule to this overlay.

10/06/2021
C254card

# SCHEDULE 1 TO CLAUSE 43.03 INCORPORATED PLAN OVERLAY

Shown on the planning scheme map as **IPO1**.

## BUNYIP STATE PARK RETARDING BASIN SITES

## 1.0 Requirement before a permit is granted

10/06/2021
C254card

A permit may be granted before an incorporated plan has been incorporated into this scheme.

## 2.0 Permits not generally in accordance with incorporated plan

10/06/2021
C254card

None specified.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

## 4.0 Decision guidelines

10/06/2021
C254card

None specified.

## 5.0 Preparation of the incorporated plan

10/06/2021
C254card

None specified.

01/08/2024
C265card

# SCHEDULE 2 TO CLAUSE 43.03 INCORPORATED PLAN OVERLAY

Shown on the planning scheme map as **IPO2**.

## PAKENHAM SOUTH EMPLOYMENT PRECINCT STRUCTURE PLAN

*Note: Also include reference to the Incorporated plan in the Schedule to Clause 72.04*

## 1.0 Requirement before a permit is granted

01/08/2024
C265card

None specified

## 2.0 Permits not generally in accordance with incorporated plan

01/08/2024
C265card

None specified

## 3.0 Conditions and requirements for permits

01/08/2024
C265card

None specified

## 4.0 Decision guidelines

01/08/2024
C265card

None specified

## 5.0 Preparation of the incorporated plan

01/08/2024
C265card

None specified

27/02/2025
C274card

# SCHEDULE 3 TO CLAUSE 43.03 INCORPORATED PLAN OVERLAY

Shown on the planning scheme map as **IPO3**.

**OFFICER SOUTH (EMPLOYMENT) PRECINCT STRUCTURE PLAN**

## 1.0 Requirement before a permit is granted

27/02/2025
C274card

### Bushfire management plan

An application to subdivide land adjacent to a Bushfire Hazard Area shown on Plan 8 Bushfire Hazard Areas must be accompanied by a Bushfire Management Plan that demonstrates how the application will address bushfire risk at the site. The plan must be prepared in accordance with table 3 - Bushfire hazard vegetation management & setback requirements, of the incorporated *Officer South (Employment) Precinct Structure Plan*, unless otherwise agreed in writing by the Responsible Authority and CFA. The plan must include:

- The design and layout of the subdivision, including lot layout, road design and access points, both vehicular and pedestrian;
- The location of any bushfire hazard areas;
- The details of any bushfire protection measures required for individual lots;
- The identification of any areas to form the setback between a bushfire hazard and built form;
- The details of any vegetation management in any area of defendable space including, information on how vegetation will be managed and when the vegetation management will occur i.e. annually, quarterly, during the fire danger period;
- Notations that indicate what authority is responsible for managing vegetation within open space areas;
- Notations that ensure that the areas of classified vegetation in the nominated bushfire hazard areas must be managed to a level that will ensure the vegetation classification under AS3959-2018 will not be altered.

The responsible authority and fire authority may waive this requirement if a plan has been previously approved for the land.

## 2.0 Permits not generally in accordance with incorporated plan

27/02/2025
C274card

A permit granted must be generally in accordance with the incorporated plan as it applies to the land unless the responsible authority is satisfied that the development will not prejudice the orderly planning of the area having regard to the objectives of the incorporated *Officer South (Employment) Precinct Structure Plan*

## 3.0 Conditions and requirements for permits

27/02/2025
C274card

### Condition - Construction environmental management plan

A planning permit to subdivide land, construct a building, or construct or carry out works on or within 50 metres of land shown as a BCS conservation area as shown in Plan 3 in the incorporated *Officer South (Employment) Precinct Structure Plan* must include the following condition:

Before works start, a Construction Environmental Management Plan consistent with *DELWP requirements for Construction Environmental Management Plans under the Melbourne Strategic Assessment* (Department of Environment, Land, Water and Planning, November 2020) must be

submitted to and approved by the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) and the responsible authority, demonstrating how the conservation area will be protected during works.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

### Condition - Land management plan for conservation area

A permit to subdivide land containing a BCS conservation area as shown in Plan 3 in *the Officer South (Employment) Precinct Structure Plan* must include the following condition:

Prior to the commencement of development of land included in the BCS conservation area as shown in Plan 3 in the *Officer South (Employment) Precinct Structure Plan*, a land management plan must be prepared by a suitably qualified consultant, submitted to, and approved by the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary). The land management plan must outline how the biodiversity values for the land identified in the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013) will be maintained, managed and improved, including:

- How environmental weeds will be managed up until the securing of the conservation area.
- How any revegetation will be undertaken in coordination with weed management activities to prevent re-colonisation of weed species.
- How rubbish and hazards will be removed, and any contaminated material managed up until the securing of the conservation area.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

### Condition - Security of conversation land

A permit to subdivide land containing a 'BCS conservation area' as shown in Plan 3 in the *Officer South (Employment) Precinct Structure Plan* must include the following condition:

The owner of the land must, as part of the plan of subdivision (or the first plan of subdivision submitted for registration, in the case of any staged subdivision), create the 'BCS conservation area' as shown in Plan 3 in the *Officer South (Employment) Precinct Structure Plan* as a separate lot or reserve. The boundaries of the lot or reserve on the plan of subdivision are subject to the prior satisfaction of the Secretary to the Department of Energy, Environment and Climate Action as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987* (Secretary). The owner must further secure the conservation area, by causing that lot or reserve to be vested, transferred, or protected in perpetuity in one of the following ways:

- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement under section 173 of the *Planning and Environment Act 1987* by which the owner agrees to transfer ownership of the conservation area to, or to vest the conservation area in, the Minister responsible for section 5 of the *Crown Land (Reserves) Act 1978*, the Council or Melbourne Water. The transfer or vesting must either be for no or nominal consideration. The Secretary and the person or body to whom the land is to be transferred or vested must also be a party to the agreement. The terms of the agreement must include that the owner pays the reasonable costs of the other parties to the agreement that were incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration: or

- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement with the Secretary under section 69 of the *Conservation, Forests and Lands Act 1987*, which provides for the conservation and management of the conservation area by or on behalf of the owner in perpetuity. The terms of the agreement must include that the owner pays the reasonable costs of the Secretary incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration.

The requirement to include the above condition does not apply if the permit applicant provides the responsible authority with a statement in writing from the Secretary, as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*, that the condition is not required because the Secretary is satisfied that either:

- the land containing the conservation area is expected to be further subdivided and a further planning permit will be required for that subdivision (to which the above condition requirement will apply); or
- the conservation area has been or will be otherwise secured in perpetuity.

### Condition - Fencing of conservation areas

A permit granted to subdivide land where works are required to carry out the subdivision, or a permit granted to construct a building or carry out works, on land including or abutting a BCS conservation area as shown in Plan 3 in the *Officer South (Employment) Precinct Structure Plan*, must include the following condition:

Prior to the commencement of development, a conservation area fencing plan must be submitted to and approved by the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary) to ensure the conservation area is adequately protected. The fencing plan must contain the following:

- The boundaries of any conservation area, and the location of any scattered tree and the boundaries of any patch of native vegetation within the conservation area.
- The location and alignment of temporary protection fencing showing the following minimum distance from the element to be protected:

| Element | Distance |
|---|---|
| Conservation area | 0.5 metres |
| Scattered tree | 12 x diameter at a height of 1.3 metres |
| Patch of native vegetation | 2 metres |

- The timing of installation and removal of temporary protection fencing.
- The timing of installation of permanent fencing.
- Location and details of ongoing maintenance vehicle access points.
- The type of temporary and permanent fencing including materials, heights and spacing of uprights.
- Frequency of inspections and rectification works for temporary protection fencing.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary to the Department of Energy, Environment and Climate Action and the responsible authority.

Stockpiles, fill, machinery, vehicle parking, excavation and construction activity of any kind must not be bought into, or be undertaken within, the area to be fenced, except with the prior written consent from the Secretary.

**Condition - Correct alignment of protective fencing**

Buildings and works must not commence until written evidence that protection fencing has been erected in accordance with the approved Conservation Area Fencing Plan is provided by a suitably qualified land surveyor to the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary), and the Secretary confirms it is satisfied by the evidence.

## 4.0 Decision guidelines

27/02/2025
C274card

Before deciding on an application the responsible authority must consider, as appropriate

- The consistency of the use or development with:
  - The *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment, and Primary Industries, 2013).
  - The incorporated *Officer South (Employment) Precinct Structure Plan.*
  - Any relevant approval under Part 10 of the *Environment Protection and Biodiversity Conversation Act 1999* (Cth).
  - Any management plan applying to the land under an agreement under section 69 of the *Conservation Forest and Lands Act 1987.*
- *Delivering Melbourne's Newest Sustainable Communities: Program Report* (Victorian Government, 2009).
- Whether use or development protects and enhances the biodiversity and other environmental values of the site and its surrounds.
- Any impacts from the construction or operation of the use or development on biodiversity and other environmental values and the ability for the land to be revegetated or rehabilitated.

## 5.0 Preparation of the incorporated plan

27/02/2025
C274card

None specified.

## 43.04 DEVELOPMENT PLAN OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **DPO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas which require the form and conditions of future use and development to be shown on a development plan before a permit can be granted to use or develop the land.

To exempt an application from notice and review if a development plan has been prepared to the satisfaction of the responsible authority.

## 43.04-1 Objectives

31/07/2018
VC148

A schedule to this overlay may specify objectives to be achieved for the area affected by the overlay.

## 43.04-2 Requirement before a permit is granted

31/07/2018
VC148

A permit must not be granted to use or subdivide land, construct a building or construct or carry out works until a development plan has been prepared to the satisfaction of the responsible authority.

This does not apply if a schedule to this overlay specifically states that a permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority.

A permit granted must:

- Be generally in accordance with the development plan.
- Include any conditions or requirements specified in a schedule to this overlay.

## 43.04-3 Exemption from notice and review

31/07/2018
VC148

If a development plan has been prepared to the satisfaction of the responsible authority, an application under any provision of this planning scheme is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 43.04-4 Preparation of the development plan

25/02/2025
VC257

The development plan may consist of plans or other documents and may, with the agreement of the responsible authority, be prepared and implemented in stages.

A development plan that provides for residential subdivision in the Neighbourhood Residential Zone, General Residential Zone, Housing Choice and Transport Zone, Residential Growth Zone, Mixed Use Zone, Township Zone, Comprehensive Development Zone and Priority Development Zone must meet the requirements of Clause 56 as specified in the zone.

The development plan must describe:

- The land to which the plan applies.
- The proposed use and development of each part of the land.
- Any other requirements specified for the plan in a schedule to this overlay.

The development plan may be amended to the satisfaction of the responsible authority.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO1**.

**FORMER PAKENHAM CONSOLIDATED SCHOOL SITE**

**11-15 MAIN STREET, PAKENHAM**

### 1.0 Objectives

10/06/2021
C254card

None specified.

### 2.0 Requirement before a permit is granted

10/06/2021
C254card

None specified.

### 3.0 Conditions and requirements for permits

10/06/2021
C254card

The following conditions and/or requirements apply to permits:

- The Federation Oak Tree must not be cut, lopped, damaged, poisoned, injured, removed or destroyed without the prior written consent of the responsible authority (which consent must not be unreasonably withheld) except in the case of an emergency where there is immediate danger to any person or property so that immediate pruning or removal of a part of the tree is required to prevent death or injury to any person or property.
- Any member of the public must not be prevented from having access to the Federation Oak Tree, provided always that the owner of the land may erect fencing around the tree and construct a defined pathway to the tree from Main Street (or any other road which Council has approved in writing) with the prior written consent of the Council (which consent must not be unreasonably withheld) and, if the Council consents to such fencing and pathway, the owner may restrict members of the public to the area within the fence surrounding the tree and to the pathway.
- The owner of the land must, as soon as reasonably practicable after the date of issue of this permit, carry out a feature site survey in respect of the whole of the land to identify all site features, including trees, which are to be retained on the land and must use all reasonable endeavours to retain the trees identified by that survey wherever practicable.
- A reserve must be created on that part of the land zoned Residential 2. This reserve must be no less than 3 metres wide (which will be included in any plan of subdivision of the land zoned Residential 2 and be shown as a reserve which vests in the Council upon registration of that plan) between the Residential 2 Zone and McGregor Road so as to prevent the owners of any residential land from having direct access from the Residential 2 Zone to McGregor Road, except for one residential street, located approximately halfway between Duncan Drive and Rogers Street, which Council will allow to be created to give access to McGregor Road from the Residential 2 Zone in such position as is first approved by Council in writing, which approval must be expressed as being given pursuant to this condition.
- Vehicle access from Wadsley Avenue to the land zoned Business 1 will not be permitted, except with the written consent of the Council and must only use Wadsley Avenue for the purpose of vehicle access to the part of the land zoned Residential 2.
- The land must be subdivided to accord with the zone boundaries.

### 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- Building setbacks from the boundaries of the land.

- Appropriate landscape buffer strips along the boundaries of the land.
- Vehicle access to and from the land.

10/06/2021
C254card

# SCHEDULE 3 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO3**.

**13 EMERALD-MONBULK ROAD, EMERALD**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

None specified.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

The following conditions and/or requirements apply to permits:

- The land may only be subdivided into eight lots, seven of which must have a minimum area of 1000 square metres with a balance lot of approximately 4600 square metres in accordance with an approved development plan.
- No further subdivision of any lot is permitted.
- All lots created must be connected to reticulated sewerage.
- Developer must contribute to the upgrading of the full length of Cornish Road to include kerb and channel, underground drainage along the entire frontage of the subject land and sealed pavement to a minimum width of 5.5 metres.

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- Retention of St. Joseph's Church on the balance lot with an approximate area of 4600 square metres.

10/06/2021
C254card

# SCHEDULE 4 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO4**.

## O'NEIL ROAD EAST DEVELOPMENT PLAN

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

None specified.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

Any permit granted for the subdivision of the land into residential lots must include the following condition:

The owner must enter into an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* to:

- Provide for the physical and community infrastructure outlined in the development plan overlay applying to the land.
- Control the further subdivision and development of the larger lots shown on the development plan.

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The staging of development.
- The relationship of the land to existing or proposed land uses on adjoining land.
- Population and household targets.
- The proposed range of lot sizes including larger lots on the northern part of the land.
- Proposed open space and recreation facilities including pedestrian and bicycle linkages.
- Proposed major drainage features.
- The identification of remnant vegetation on the land and measures to retain the vegetation.
- The proposed layout of streets including traffic control infrastructure.
- A street connection between O'Neil Road and May Road.
- A schedule of physical and community infrastructure required for and as a result (in whole or part) of the development of the land including arrangements for their provision and funding.
- An overall landscape concept.
- The provision of a native tree buffer and domestic animal fence along the boundary adjoining the rural properties to the east of the land.

10/06/2021
C254card

## SCHEDULE 5 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO5**.

**PAKENHAM NORTH-EAST RESIDENTIAL PRECINCT**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

None specified.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

The following conditions and/or requirements apply to permits:

- Construction and post construction activities must be conducted in accordance with the following EPA best practice guidelines:
  - *Environmental Guidelines for Major Construction Sites* (EPA Publication No. 480, December 1995).
  - *Construction Techniques for Sediment Pollution Control* (EPA Publication No. 275, May 1991).
- Before a sensitive use (residential use, child care centre, pre-school centre or primary school) commences or before the construction or carrying out of buildings and works in association with a sensitive use commences on land at 130 Army Road, Pakenham (L1 P82846 & PC355507W), either:
  - A certificate of environmental audit must be issued for the land in accordance with Part IXD of the *Environment Protection Act 1970*, or
  - An environmental auditor appointed under the *Environment Protection Act 1970* must make a statement in accordance with Part IXD of that Act that the environmental conditions of the land are suitable for the sensitive use.

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The staging of the development.
- Proposed management techniques for the former quarry site.
- The relationship and integration with the surrounding land.
- Identification of significant vegetation on the land and measures to retain the vegetation where appropriate.
- A flora and fauna survey to be undertaken between August to April to the satisfaction of the Department of Natural Resources and Environment.
- A geo-technical report to be provided for the area proposed for development on the edge of the quarry hole.
- Proposed layout and hierarchy of streets including traffic control infrastructure.
- A traffic management plan to be carried out to the satisfaction of the responsible authority, in consultation with the Roads Corporation.
- Proposed major retarding basins, watercourses and major drainage features.

- An overall landscaping concept plan.
- Physical and community infrastructure required.
- The following urban design principles, and a report which demonstrates that the development incorporates these principles:
  - The design of a compact neighbourhood which is oriented around walkable distances between activities and where neighbourhood centres provide access to services and facilities to meet day-to-day needs.
  - A neighbourhood which incorporates safe and attractive spaces for walking and cycling, and subdivision layout which allows easy movement through and between neighbourhoods.
  - A range of lot sizes and housing types to satisfy the needs and aspirations of different groups of people, including areas proposed for medium density housing.
  - Integration of housing, workplaces, shopping, recreation and community services, to provide a mix and level of activity that attracts people, creates a safe environment, stimulates interaction and provides a lively community focus.
  - Design which creates opportunity of access for public transport.
  - A range of open spaces to meet a variety of needs, with links to open space networks and regional parks if possible.
  - A strong sense of place created because neighbourhood development emphasises existing cultural heritage values, attractive built form and landscape character.
  - Environmentally friendly development that includes energy efficiency, water conservation, local management of stormwater and waste water treatment.
  - Protection and enhancement of native vegetation habitat and discouragement of the spread and planting of noxious weeds.
  - Community safety design principles in order to reduce opportunities for crime, improve perceptions of safety and increase levels of community involvement.

10/06/2021
C254card

## SCHEDULE 6 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO6**.

**GARFIELD TOWNSHIP**

### 1.0 Objectives

10/06/2021
C254card

None specified.

### 2.0 Requirement before a permit is granted

10/06/2021
C254card

A permit may be granted before a development plan is prepared to the satisfaction of the responsible authority to use land, construct a building or construct or carry out works.

### 3.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

### 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The subdivision layout of the land.
- The staging of the development.
- The relationship of the land to existing or proposed development on adjoining land to achieve the integrated subdivision of land in the area.
- A range of lot sizes and lot development criteria consistent with Garfield Township Strategy (August 2002).
- The identification of any remnant vegetation on the land and adjoining road reserve, and measures to provide for the protection and conservation of the vegetation.
- The identification of any noxious and environmental weeds on the land and adjoining road reserve and measures to control the weeds.
- The identification of areas for revegetation with indigenous species as part of the subdivision of the land.
- Infrastructure required to service the development of the land and arrangements for the provision of the infrastructure including access to the development from a sealed road, and provision of pedestrian linkages.

10/06/2021
C254card

# SCHEDULE 7 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO7**.

**PAKENHAM NORTH-EAST RESIDENTIAL PRECINCT (DEEP CREEK)**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

None specified.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

The following conditions and/or requirements apply to permits:

- Construction and post construction activities must be conducted in accordance with the following EPA best practice guidelines:
  - *Environmental Guidelines for Major Construction Sites* (EPA Publication No.480, December 1995).
  - *Construction Techniques for Sediment Pollution Control* (EPA Publication No.275, May 1991).

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The staging of the development.
- The relationship and integration with the surrounding land.
- A subdivision layout that is responsive to opportunities for the enhancement of the Deep Creek corridor for open space linkages and natural values including biodiversity, landscape values and water quality.
- A discussion of how design and siting of buildings and works addresses environmental constraints such as flooding, slope and erosion, and potential impacts on water quality.
- Identification of significant vegetation on the land and measures to retain the vegetation where appropriate.
- A flora and fauna survey to be undertaken between August and April to the satisfaction of the Department of Sustainability and Environment.
- Proposed layout and hierarchy of streets including traffic control infrastructure that recognises and connects with the hierarchy of roads proposed or existing on land affected by Development Plan Overlay Schedule 5.
- Connections and continuations to walking and cycling paths proposed or existing on land affected by Development Plan Overlay Schedule 5, particularly through to Deep Creek.
- A traffic management plan to be carried out to the satisfaction of the responsible authority, in consultation with the Roads Corporation.
- Proposed major retarding basins, watercourses and major drainage features.
- A drainage plan in accordance with the requirements of Melbourne Water and consistent with the Cardinia Stormwater Management Plan.
- A subdivision design which incorporates water sensitive urban design strategies.
- An overall landscaping concept plan.

- Physical and community infrastructure required.
- A neighbourhood sportsground incorporated into the subdivision layout.
- The following urban design principles, and a report which demonstrates that the development incorporates these principles:
  - The design of a compact neighbourhood which is oriented around walkable distances between activities and where neighbourhood centres provide access to services and facilities to meet day-to-day needs.
  - A neighbourhood which incorporates safe and attractive spaces for walking and cycling, and a subdivision layout which allows easy movement through and between neighbourhoods, including links identified in the Cardinia Pedestrian and Bicycle Strategy.
  - A range of lot sizes and housing types to satisfy the needs and aspirations of different groups of people, including areas proposed for medium density housing.
  - Integration of housing, workplaces, shopping, recreation and community services, to provide a mix and level of activity that attracts people, creates a safe environment, stimulates interaction and provides a lively community focus.
  - Design which creates opportunity of access for public transport.
  - A range of open spaces to meet a variety of needs, with links to open space networks and regional parks if possible.
  - A strong sense of place created because neighbourhood development emphasises existing cultural heritage values, attractive built form and landscape character.
  - Consistent streetscape themes incorporating landscape design and construction as a part of subdivision construction. Themes are to be complementary with those proposed or existing on land affected by Development Plan Overlay Schedule 5.
  - Environmentally friendly development that includes energy efficiency, water conservation, local management of stormwater and waste water treatment.
  - Protection and enhancement of native vegetation habitat and discouragement of the spread and planting of noxious weeds.
  - Community safety design principles in order to reduce opportunities for crime, improve perceptions of safety and increase levels of community involvement.
  - Energy efficiency through orientation of sites.
  - The urban design principles as set out in the Pakenham Township Strategy including energy efficiency through orientation.

10/06/2021
C254card

## SCHEDULE 8 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO8**.

**SYME ROAD, PAKENHAM PRECINCT**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

A permit may be granted to use or subdivide land, construct a building or construct or carry out works before a development plan has been prepared to the satisfaction of the responsible authority.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The proposed use and development of each part of the land.
- The staging of development.
- The relationship of the land to existing or proposed uses on adjoining land.
- Population and household targets.
- The proposed range of housing types and lot sizes.
- Proposed open space and recreation facilities, including a centrally located neighbourhood park with a minimum area of 1 hectare incorporating the area of remnant native vegetation, and proposed pedestrian and bicycle paths.
- Proposed drainage features on the land, including the proposed treatment of Pakenham Creek.
- An assessment of the potential for salinity on the land, and any necessary measures to address salinity.
- The identification of remnant vegetation on the land and measures to retain the vegetation.
- The proposed layout of streets, including the provision of access to Pakenham Road to the satisfaction of the Roads Corporation.
- The proposed interface between Pakenham Road and the proposed development.
- The proposed interface between Toomuc Valley Road and the proposed development to provide a landscape corridor along Toomuc Creek.
- The means by which the impact of the gas transmission pipeline easement and electricity transmission line easement will be addressed as part of the development.
- A schedule of physical and community infrastructure required for and as a result (in whole or part) of the development of the land, including arrangements for their provision and funding.
- An overall landscape concept.
- Details of how the neighbourhood design principles in Melbourne 2030 will be addressed as part of the development.

The development plan and any permit must take into account further survey work targeted to Growling Grass Frogs conducted between October and March.

10/06/2021
C254card

# SCHEDULE 9 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO9**.

## PAKENHAM HOMEMAKER PRECINCT PART 1

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

Before a permit is granted to use or develop the land, the owner must enter into an agreement with the responsible authority under section 173 of the *Planning and Environment Act 1987* to:

- Provide the physical infrastructure outlined in the development plan, including traffic control works required to support the development that may not be immediately adjacent to the land to be developed, the extent of which is to be apportioned between landowners by negotiation with the responsible authority.
- Provide the landscaping outlined in the development plan.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The development plan must be generally in accordance with the Pakenham Homemaker Precinct Urban Design Guidelines.
- A traffic report, including:
  - An assessment of traffic impacts associated with the development.
  - A discussion on how heavy vehicle movement will be accommodated effectively with minimal interaction with other road and pedestrian users of the development land.
  - Proposed road layout and access to adjoining roads detailing all access points to the site.
  - Detailed road cross sections.
  - Full intersection design for all intersections required for the development of the land.
- A landscape masterplan for the site, including:
  - An ‘entry park’ on the corner of Princes Highway and the Lakeside Boulevard northern extension reflecting the size and standard of the ‘entry park’ on the south of the highway.
  - All roadsides and carparking areas.
- Details of how the safe, convenient and pleasant use and transit of the site by pedestrians has been accommodated.
- Details of the protection proposed for adjoining uses and future residential uses, including the use of noise attenuation and visual screening where appropriate.
- An urban design response that delivers an active frontage to the northern extension of Lakeside Boulevard.

10/06/2021
C254card

## SCHEDULE 10 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO10**.

### 1.0 Objectives

10/06/2021
C254card

None specified.

### 2.0 Requirement before a permit is granted

10/06/2021
C254card

None specified.

### 3.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

### 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The subdivision concept for the land including the location of industrial, business or other proposed uses, and public open space.
- The staging of development.
- The relationship of the land to existing or proposed uses on adjoining or nearby land.
- Arrangements for vehicle access to the development including the road layout and construction standards, and traffic management. Such arrangements shall include the construction of a connection to Exchange Drive to the north, the interface with Kooweerup Road and provision for a controlled intersection at the intersection of Kooweerup Road and Greenhills Road (including any necessary road widening).
- The provision of utility services infrastructure required for the development of the land.
- A stormwater management plan including provision for outfall drainage from the area. The stormwater management plan must incorporate measures to reduce input of sediment and pollutants into waters downstream of the site to the satisfaction of the Department of Sustainability and Environment and Melbourne Water.
- Urban design guidelines for the development including streetscape, building design (setbacks, height and materials), vehicle access and carparking, loading and storage areas, pedestrian movements, community safety and graffiti control.
- Vegetation and landscaping guidelines including weed control and replanting where appropriate using locally indigenous plants and trees.
- Guidelines for environmental sustainability including stormwater management, water efficiency and energy efficiency.
- An environmental management plan for the construction phase of the development including the control of waste and wind blown rubbish, dust, noise and sediment pollution.

10/06/2021
C254card

## SCHEDULE 11 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO11**.

### 1.0 Objectives

10/06/2021
C254card

None specified.

### 2.0 Requirement before a permit is granted

10/06/2021
C254card

The Responsible Authority can consider an application for minor works before a development plan has been approved. All proposals for minor works must be accompanied by a report demonstrating that they will not prejudice the future development of the land in an integrated manner.

### 3.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

### 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The proposed use and development of each part of the land.
- The staging of development.
- The relationship of the land to existing or proposed land uses on adjoining land.
- Population and household targets.
- The proposed range of housing types and lot sizes.
- Proposed open space, recreation and path facilities including:
  - a district sporting reserve of 8 hectares
  - a centrally located neighbourhood park with a minimum area of 1 hectare
  - joint-use paths throughout the development to link the land to Lakeside Activity Centre, Pakenham and Officer townships, to provide for good north/south connections, especially along the Gum Scrub Creek and to provide for access to the proposed Lakeside station east of Cardinia Road.
  - joint-use paths along the Princes Highway and Cardinia Road frontages
  - Provision of a pedestrian/bicycle bridge across the Gum Scrub Creek at an agreed mid-point between the Princes Highway and the railway reserve additional to any crossing associated with the Princes Highway frontage
  - Provision for the protection and management of, and enhancement of habitat for, the nationally significant Growling Grass Frog and *Dianella longifolia* var. grandis and *Dianella amoena* as determined
- Proposed drainage features on the land including the proposed treatment for the Gum Scrub Creek and the interface between the district sporting reserve and Gum Scrub Creek, including any restriction of the floodway to provide for regular use of the reserve in winter, how any variations to landform created to accommodate this will be dealt with and how growling grass frog habitat will be protected and enhanced.
- An investigation of regional water management opportunities to shift the land requirement for water management from the south east corner of the site to land south of the Pakenham Bypass
- An assessment of the potential for saline discharge sites on the land, and any necessary measures to address salinity.

- An archaeological survey of the site.
- A traffic management plan to the satisfaction of council and VicRoads.
- Proposed public transport routes and facilities including how the site can be provided with access to public transport within reasonable walking distance of each dwelling to the satisfaction of the Department of Infrastructure.
- The proposed layout of streets including the provision of access to both Princes Highway and Cardinia Road to the satisfaction of both council and Vic Roads.
- The funding arrangements for provision of controlled intersections that may be required including the funding arrangements and timing for the upgrade of the intersection of Cardinia Road and the Princes Highway.
- An interface between the development and both Princes Highway and Cardinia Road that provides for safe, attractive and permeable pedestrian and bicycle movement along the frontage to those roads and between the development and the roads.
- Provision for the future widening of Cardinia Road.
- Provision of a tree reserve abutting Cardinia Road that can adequately accommodate mature *Eucalyptus radiata* (Narrow Leaf Peppermint) without impinging on private land and to the minimum safety standard required by VicRoads.
- Provision for a link road to the west adjacent to the railway reserve constructed to a standard and to an end point to the satisfaction of council to enable east-west vehicle permeability following the future provision of a bridge.
- A schedule of physical and community infrastructure required for and as a result (in whole or part) of the development of the land including arrangements for their provision and funding.
- An overall landscape concept, including the landscape corridor of the Gum Scrub Creek, the district sporting reserve and the interface between the two. The landscape plan will provide for advanced *Eucalyptus radiata* (Narrow Leaf Peppermint) to be provided on the tree reserve abutting Cardinia Road at 5 metre intervals. Indigenous plantings of local provenance species must be used in any plantings along the Gum Scrub Creek. Consideration should also be given to using local indigenous species in all landscape plantings for the development.
- Significantly increased housing densities above the average adjacent to public open space and in association with any activity centre on the site.
- Details of the location of any activity centre proposed for the site and its relationship and interaction with other activity centres including the Officer town centre.
- Details of how a high level of urban design will be delivered for areas of higher density.
- Details of how the neighbourhood design principles in Melbourne 2030 will be addressed as part of the development.
- An Environmental Management Plan for the site that addresses the following issues to the satisfaction of the Council, and the Department of Sustainability and Environment:
- How any identified habitat (including that used for feeding, occupation, breeding, dispersal) of *Litoria Raniformis* (Growling Grass Frog) is to be protected and/or enhanced and managed on an ongoing basis, following a targeted survey for the species (including an assessment of the dispersal requirements for the species) between the months of October and December using a suitably qualified and experienced herpetologist;
  - An assessment of remnant vegetation and identification of management measures required to ensure ongoing protection of significant flora, in accordance with *Victoria's Native Vegetation - A Framework for Action*;
  - An assessment of the impacts to biodiversity of conducting works on the Gum Scrub Creek and environs and proposed mitigation measures; and

- How site works will be managed (during and post construction) to ensure that there is no impact on significant flora located in the railway reserve to the south of the subject area, particularly the populations of *Dianella longifolia var. grandis* and *Dianella amoena*, by way of a report prepared by a suitably qualified and experienced environmental consultant.
- Protection measures for significant flora and fauna located in the railway reserve must include an effective buffer along the entire southern boundary.
- The flora and fauna protection and management measures that are contained within the Environmental Management Plan must be incorporated into the development design.

10/06/2021
C254card

## SCHEDULE 12 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO12**.

**ROSSITER ROAD, KOO WEE RUP**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

The Responsible Authority can consider an application for minor works or extension to an existing dwelling before a development plan has been approved. All proposals for minor works or dwelling extensions must be accompanied by a report demonstrating that they will not prejudice the future development of the land in an integrated manner. Before granting a permit the responsible authority must be satisfied that the permit will not prejudice the future use and development of the land in an integrated manner.

Prior to the granting of a subdivision permit or any development other than minor works or extension to an existing dwelling, an agreement between the owner of the land for 170 Rossiter Road, (Lot 2, LP 208879), Sybella Avenue (LA PS540339), 44 Sybella Avenue (Lot 6, P53874), 80 Sybella Avenue (Lot 1, TP202048H) and Sybella Avenue Koo Wee Rup (Lot 26, PS009030) and the Responsible Authority under Section 173 of the *Planning and Environment Act 1987* must be entered into to the satisfaction of the Responsible Authority, which must require the owner:

- Supply and erect post and wire fencing along the wetland periphery located outside the urban growth boundary prior to the wetland construction to the requirements of Melbourne Water and to satisfaction of the Responsible Authority. The bottom wire of the fence must be between 40 to 60cm above the natural ground level to facilitate wildlife movement.
- Monitor groundwater quality at the location of the bore well installed near the fuel depot at Lots 1-2 P53874, 7/4 Sybella Avenue, Koo Wee Rup to the satisfaction of the responsible authority. The groundwater monitoring is to continue until the final stage of development and the monitoring results are to inform an appropriate response before the commencement of construction or carrying out of any buildings and works in association with a sensitive use adjacent to the fuel depot.
- Construct a local road to the satisfaction of the Responsible Authority during the first stage of development, extending from Rossiter Road through Lot 2, LP208879, 170 Rossiter Road, Koo Wee Rup linking to the western boundary of Lot 1, P208879, 190 Rossiter Road and Lot 15, P9030, 216-218 Rossiter Road, Koo Wee Rup to provide access to the 'long lots' as shown on SM Urban 'Concept Development Plan' (Ref: 106008, date 27 February 2009, Rev: F).
- Provide construction of the wetland system generally in accordance with SM Urban 'Concept Development Plan' (Ref: 106008, date 27 February 2009, Rev: F). Construction and staging of the wetland construction must be completed in accordance with the requirements of Melbourne Water.
- Land required for drainage purposes or as encumbered open space must be transferred to the drainage authority or municipal council at no cost and will not be credited as open space.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

## 4.0 Requirements for development plan

10/06/2021
C254card

The development plan must include the following requirements:

### Subdivision Layout

An indicative subdivision layout for the land, generally in accordance with the SM Urban 'Concept Development Plan' (Ref: 106008, date 27 February 2009, Rev: F) showing:

- A clear, legible and convenient road network and pedestrian/bicycle network within and leading to the development, demonstrating appropriate road layout, traffic management and construction standards.
- A report which demonstrates that the development incorporates the following principles:
  - Maintaining 50 percent of the lots over 700 square metres
  - Discouraging small allotments of area less than 500 square metres
  - Encouraging larger allotments over 1000 square metres towards the edge of the urban growth boundary.
  - Encouraging the inclusion of street trees for shade and aesthetic quality.
  - Developing a clear, legible road network that provides a high level of internal connectivity and external linkages for local vehicle, pedestrian and bicycle movements.

### Rossiter Road / Sybella Avenue Precinct (other than long lots)

In addition to any other requirements for a development plan specified in this schedule, the development plan for the Rossiter Road/Sybella Avenue Precinct

- Part of Lot 2, LP208879, 170 Rossiter Road, Koo Wee Rup
- Lot 6, PS53874, 44 Sybella Avenue, Koo Wee Rup
- Lot 1, TP202048H, 80 Sybella Avenue, Koo Wee Rup
- Part of LA, PS540339, Sybella Avenue, Koo Wee Rup

Must provide for:

### Subdivision Layout

An indicative subdivision layout for the land, generally in accordance with the SM Urban 'Concept Development Plan' (Ref: 106008, date 27 February 2009, Rev: F) showing:

- The size and dimensions of lots proposed
- The proposed use and development of each parts of the land
- The relationship of the land to existing or proposed uses on adjoining land
- The location of a local neighbourhood park, wetland reserves and encumbered open space
- The staging of development. The staging must include:
  - A local road to the satisfaction of the Responsible Authority during the first stage of development, extending from Rossiter Road through Lot 2, LP208879, 170 Rossiter Road, Koo Wee Rup linking to the western boundary of Lot 1, P208879, 190 Rossiter Road and Lot 15, P9030, 216-218 Rossiter Road, Koo Wee Rup to provide access to the 'long lots' as shown on SM Urban 'Concept Development Plan' (Ref: 106008, date 27 February 2009, Rev: F).
  - The land adjacent to the fuel depot at Lot 1-2, P53874, 7/4 Sybella Avenue, Koo Wee Rup, in the final stage of the development

### Open Space

- Proposed open space, recreation and path facilities including:

  - a centrally located unencumbered local neighbourhood park with a minimum area of 1 hectare
  - shared paths throughout the development to link the land to existing development to the north and east
  - trail network along the wetland reserve in consultation with Melbourne Water
  - provisions for the **protection of native vegetation along the wetland system**
- A temporary reserve at the location of the groundwater monitoring well to enable ease of access from Sybella Avenue, Koo Wee Rup.
- The arrangement for transfer of open space into public ownership to the satisfaction of the responsible authority.

### Traffic

- A traffic management plan prepared to the satisfaction of the responsible authority and in consultation with Vic Roads, demonstrating:
  - A clear, legible and convenient road network and pedestrian/bicycle network within and leading to the development, demonstrating appropriate road layout, traffic management and construction standards. Such arrangements must include the construction of a connection to Rossiter Road to the north, and Sybella Avenue to the east. The provision of access to Rossiter Road and Sybella Avenue needs to be to the requirements of Vic Roads.

### Landscaping

- An indicative landscape plan must be prepared to the satisfaction of the responsible authority, demonstrating:
  - The location of all landscaped areas, including the wetland area
  - Details of any landscape themes for the site
  - The incorporation of a consistent streetscape theme
  - Location and details of any street furniture, playground equipment, boardwalks and viewing platforms
  - Effective management of the interface between the residential area and wetland area, including appropriate fencing where necessary.

### Environment

- Incorporation of a Southern Brown Bandicoot Habitat Plan into the design of the development to be prepared by a suitably qualified and experienced zoologist to the requirements of the Department of Sustainability and Environment including:
  - Design elements for the creation of appropriate new habitat for the Southern Brown Bandicoot and methods of ongoing long term management and protection of the new habitat.
  - How the protection and creation of the habitat for Southern Brown Bandicoot contributes to establishing long term habitat links between the Bunyip Creek, the rail reserve and Yallock Creek.
- Provision for the protection and conservation of remnant trees, particularly the Swamp Gums (Eucalyptus ovata)
- Provision of an arborist report to the satisfaction of the responsible authority assessing the health of the Southern Mahogany trees. Based on the health and condition of these trees, provide for the protection and conservation of these trees.

- A targeted survey for the Dwarf Galaxias (Galaxiella pusilla) by a qualified environmental consultant in consultation with the Department of Sustainability and Environment. The survey needs to occur when water is present: if the water body is temporary then the survey should be in November-December and not in mid summer. Always undertake bait trapping with glow sticks over night in combination with at least one other method of backpack electro fishing or dip netting. Note: Avoid dip netting in breeding season (May – October) as fry are easily damaged.
- A groundwater monitoring program to monitor groundwater quality at the location of the bore well installed near the fuel depot at Lots 1-2 P53874, 7/4 Sybella Avenue Koo Wee Rup, to the satisfaction of the Responsible Authority and Environment Protection Authority. The groundwater monitoring is to continue until the final stage of development and the monitoring results are to inform an appropriate response before the commencement of construction or carrying out of buildings and works in association with a sensitive use adjacent to the fuel depot.

**Wetland**

- A drainage plan in accordance with the requirements of Melbourne Water and generally in accordance with the Stormy Water Solutions Drainage Strategy dated 2 February 2009
- A Functional Design plan prepared and approved by Melbourne Water prior to the commencement of detail design of the wetlands. The functional design plans must consider a groundwater analysis and how the groundwater will impact on the construction of the wetlands.
- The order and extent of each stage of the wetland system development (if the wetlands are to be staged) to the requirements of Melbourne Water
- The requirements of Melbourne Water (for drainage) and those of the Department of Sustainability and Environment (for flora and fauna) must be considered mutually prior to the development of either a Habitat or Drainage Plan.

**Infrastructure**

- The provision of utility service infrastructure required to service the development and details on the arrangements for the provision of the infrastructure. The land must be connected to a reticulated sewerage system of a sewerage authority
- The means by which the gas transmission easement and drainage easement will be accommodated as part of the development.

10/06/2021
C254card

## SCHEDULE 13 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO13**.

### 1.0 Objectives

10/06/2021
C254card

None specified.

### 2.0 Requirement before a permit is granted

10/06/2021
C254card

The responsible authority can consider an application for minor works before a development plan has been approved. All proposals for minor works must be accompanied by a report demonstrating that they will not prejudice the future development of the land in an integrated manner.

Except for an application for minor works, a section 173 agreement with the responsible authority that transfers the Peck Road Hill conservation reserve into public ownership and provides for the funding for management of the reserve.

### 3.0 Conditions and requirements for permits

10/06/2021
C254card

None specified.

### 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- The proposed use and development of each part of the land.
- The staging of development.
- The relationship of the land to existing or proposed land uses on adjoining land.
- Population and household targets.
- The proposed range of housing types and lot sizes.
- Proposed open space, recreation and path facilities including:
  - A centrally located unencumbered neighbourhood park with a minimum area of 1 hectare or allocation of parks to the satisfaction of council
  - Joint-use paths throughout the development to link the land to future development to the west and east, to provide for good north/south connections, and joint-use paths along the Princes Highway and Thewlis Road frontages
  - Provision for the protection of significant vegetation in a reserve on the hill adjacent to Peck Road
- An assessment of the potential for saline discharge sites on the land, and any necessary measures to address salinity.
- An archaeological survey of the site.
- A traffic management plan to the satisfaction of Council and Vic Roads
- The proposed layout of streets including the provision of access to both Princes Highway and Thewlis Road, and including an east-west link of appropriate dimensions to provide the key link consistent with the Casey-Cardinia Smart Growth Committee Framework Plans.
- The funding arrangements for provision of controlled intersections that maybe required including the funding arrangements and timing for the upgrade of the intersection of Thewlis Road and the Princes Highway.

- An interface between the development and both Princes Highway and Thewlis Road that provides for safe, attractive and permeable pedestrian and bicycle movement along the frontage to those roads and between the development and the roads.
- Provision for the future widening of Thewlis Road.
- A schedule of physical and community infrastructure required for and as a result (in whole or part) of the development of the land including arrangements for their provision and funding.
- An overall landscape concept to the satisfaction of Council. Indigenous plantings must be used in informal clumps on Thewlis Road and Princes Highway. Consideration should also be given to using local indigenous species in all landscape plantings for the development.
- Significantly increased housing densities above the average adjacent to public open space and in association with any activity centre on the site.
- The provision of a local neighbourhood centre located in the north-east of the land comprising of:
  - A 3.5 hectare site for a state school with three road frontages one of which is Thewlis Road
  - A 0.44 hectare fully serviced and unencumbered site for the future provision of a community centre.
  - A retail/commercial centre of at least 250 square metres
  - Details of the location of relationship and interaction with nearby activity centres.
- Details of how a high level of urban design will be delivered for areas of higher density.
- Details of how the principles set out in Melbourne 2030 will be addressed as part of the development, in particular for neighbourhood design
- An Environmental Management Plan for the Peck Road Thewlis Road EVC site that addresses the following issues to the satisfaction of the Council and the Department of Sustainability and Environment:
  - The arrangements for transfer into public ownership of the land;
  - An assessment of remnant vegetation and identification of management measures required to ensure ongoing protection of significant flora, in accordance with Victoria's Native Vegetation - A Framework for Action; and
  - Provision for the full funding for 10 years implementation of the Environmental Management Plan
  - Effective management of the interface between the EVC site and residential uses, including an appropriate buffer as indicated in the plan referenced as *Worthington Estate Pakenham, Buffer Treatment Area, Option K Rev A November 2006*.
- The Environmental Management Plan should:
  - Include a statement that Cardinia Shire Council will have ownership of the bushland reserve and responsibility for the implementation of the Environmental Management Plan
  - Outline methods to be introduced to minimise any impacts upon the vegetation by recreational use.

10/06/2021
C254card

## SCHEDULE 15 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO15**.

**LOT 1, TP 711091S, NASH ROAD, BUNYIP**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

The Responsible Authority can consider an application for minor works before a development plan has been approved. All proposals for minor works must be accompanied by a report demonstrating that they will not prejudice the future development of the land in an integrated manner.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

The following conditions and/or requirements apply to permits:

- Under Section 118 of the Pipelines Act 2005, a person cannot excavate within 3 metres of a pipeline without either obtaining the authority of the licensee or giving notice to the licensee in accordance with the *Pipeline Regulations 2007*.
- Under Section 120 of the Pipelines Act 2005, a person must not construct a building so that any part of it is situated less than 3 metres from a point on the surface of the land whose position is vertically above a part of a pipeline below the surface unless the Minister has first consented to that construction.
- A MUSIC (model for urban stormwater improvements conceptualisation) model is required showing the extent of water quality treatment in the wetland to the satisfaction of Melbourne Water.
- The wetlands should be designed in accordance to the “Constructed Wetland Systems Design Guidelines for Developers" (Melbourne Water). Detailed design plans are required to be submitted to Melbourne Water. These plans are to address:
  - Maintenance issues: the proponent must provide a maintenance plan for assets that are to become Melbourne Water assets (online wetland). This plan should detail the appropriate maintenance access (including vehicle access).
  - Revegetation and Landscaping: Re-vegetation is to be in accordance with Melbourne Water guidelines. Vegetation and landscaping plans must be submitted for comment and/or approval.
- The subdivision design must incorporate the findings of the flora and fauna assessment as specified under Section 4.0 of Schedule 15 Development Plan Overlay.
- The subdivision design must incorporate the findings of the soil contamination assessment as specified under Section 4.0 of Schedule 15 Development Plan Overlay.
- The subdivision design must incorporate the findings of the salinity assessment as specified under Section 4.0 of Schedule 15 Development Plan Overlay.
- The owner of the subject land must enter into an agreement with South East Water for the provision of reticulated sewerage and fulfil all requirements to its satisfaction.
- The owner of the subject land must enter into an agreement with South East Water for the provision of water supply and fulfil all requirements to its satisfaction.
- Access to the site shall only be at the nominated vehicle crossings shown on the Development Plan.

- The street lighting must be baffled and located to in consultation with SPI Electricity to prevent any adverse effect on adjoining landowners to the satisfaction of the responsible authority.
- Stormwater works must be provided on the site so as to prevent overflows onto adjacent properties to the satisfaction of the responsible authority.
- A Maintenance Management Plan is to be submitted and approved for all Water Sensitive Urban Design infrastructure (swales, gross pollution traps, planting etc) both for:
  - The "on maintenance period" of the establishment, which is the life of the development or 2 years, whichever is greater.
  - and for the ongoing Council maintenance responsibilities, once Final Completion is issued.
- Prior to handover to Council, the developer will be required to complete the following to the satisfaction of Council:
  - Return all assets to as new functional condition i.e. removal of all accumulated litter and sediment, replacement plants.
  - Provide complete documentation (both plans and written reports) on the nature, purpose, location, detailed design, maintenance methods and costs (capital and recurrent), for each asset.
  - Provide a complete record of the maintenance undertaken.
  - Undertake water quality monitoring, maximum three (3) monthly intervals, during the 'on maintenance' period and provide tabulated results.
- Environmental Management Plan is to be submitted, indicating risk assessment and how the effects of the construction works will be controlled and managed onsite to ensure minimisation of impacts on adjoining land and the downstream tributary of Ti Tree Creek to the satisfaction of the responsible authority.

## 4.0 Requirements for development plan

10/06/2021
C254card

The development plan must demonstrate and/or contain the following to the satisfaction of the responsible authority:

### Subdivision layout

An indicative lot layout for the whole site covered by the schedule showing:

- The size and dimensions of the lots.
- The proposed use and development of each parts of the land.
- The location of vehicle crossings.
- The location and size of the wetland and broad vegetated swale system within the Public Park and Recreation Zone.
- The relationship of the land to existing or proposed developments on adjoining land to achieve the integrated subdivision of the land in the area.
- Location of building envelopes.
- Any lot or lots created on the subject site with abuttal to the common property known as 59 Nash Road, Bunyip (this includes any lot separated from 59 Nash Road, Bunyip by any faunal corridor), no building may be constructed on that part of the lot(s), to the immediate north of the dwelling located at 59 Nash Road, Bunyip, except for an outbuilding or outbuildings with an overall height of not more than 2.1 metres. The eastern and western boundaries of the area of building exclusion in this requirement are to commence 45 metres and 70 metres respectively

from the eastern end of the northern boundary of the property known as 59 Nash Road, Bunyip and the boundaries of the exclusion area are to extend northward for the full depth of the lot(s).

- Any dwelling on any lot or lots created on the subject site with abuttal to the property known as 59 Nash Road, Bunyip (this includes any lot separated from the property by any faunal corridor), must not have a wall height exceeding 2.75 metres.

### Transport

- Provide a clear, legible and convenient road network and pedestrian/bicycle network within and leading to the development to the satisfaction of the responsible authority. The plans must show the following:
  - Consideration should be given to aligning the entrance from the amendment site not to be opposite the existing dwelling or driveway at 103 Nash Road, Bunyip.
  - Road and driveway access to the amendment site must not be located opposite the existing driveway at 105 Nash Road, Bunyip.
  - Provide a multi-purpose gravel trail, with a minimum width of 2 metres in the Public Park and Recreation Zone. The trail needs to provide connection from the Low Density Residential Zone, through the Public Park and Recreation Zone to the boundary of the Bunyip Valley Estate (commonly known as Bunyip Sanctuary).
  - Provide a multi-purpose gravel trail, with a minimum width of 2 metres along Nash Road reserve. The gravel trail needs to connect from the intersection of Wattletree Road and Nash Road, along Nash Road to the amendment site. From the boundary of amendment site, the trail must be located within the amendment site along the western boundary unless with the consent of the responsible authority and upon the advise of the Department of Sustainability and Environment.

### Landscaping

- An indicative landscape plan must be prepared to the satisfaction of the responsible authority, demonstrating:
  - The location of all landscaped areas, including the wetland area.
  - Details of any landscape themes for the site.
  - The landscape design needs to incorporate a consistent streetscape theme.
  - Plant listing, using a majority of local indigenous species in all landscape plantings.
  - Location and details of any street furniture, signage, playground equipment, boardwalks and viewing platforms.
  - Demonstrate effective management of the interface between the residential area and wetland area, including appropriate fencing.
  - An explanatory statement illustrating landscape maintenance of the site for a period of 24 months.

### Environment

- A Flora and Fauna Assessment of the site and road reserve prepared to the satisfaction of the responsible authority that:
  - Undertakes a targeted survey for the Green-striped Greenhood and River Swamp Wallaby Grass carried out between September and April.
  - Applies the ‘three step’ approach as detailed in Victoria’s Native Vegetation Management – A Framework for Action and Net Gain (avoid, minimise and offset). The three step approach must include a flora listing of each habitat patch.

- Provides for the protection and conservation of native vegetation, including trees and roadside vegetation.
- Orientates building envelopes and driveway access on residential allotments to minimise the loss of scattered trees.
- Demonstrates an appropriate offset or net gain to compensate for the loss of vegetation on the site and road reserve as determined by an Offset Management Plan. The Offset Management Plan must be a 10 year fully funded management plan and include:
  - Means of calculating the offsets.
  - Location of where the offsets will be provided.
  - Type of offsets provided for each location.
  - Details of revegetation including number of trees, shrubs and other plants, species mix and density.
  - Method of permanent protection for the offsets.
  - Measures to control noxious and environmental weeds.
  - Persons from time to time responsible for implementing and monitoring the offsets.
  - Timeframe for completing the offsets.

- Investigations by a suitably qualified environmental profession to undertake an assessment (including soil samples, readings of the water electrical conductivity) of the eastern part of the site, for potential saline discharge sites on the land and impacts on adjoining land and any necessary measures to address salinity if apparent.
- Investigations by a suitably qualified environmental professional to provide soil sampling and testing across the site to fully assess the soil contamination status of the land.

**Open space**

- The arrangement for transfer of the Public Park and Recreation Zone into public ownership to the satisfaction of the responsible authority.
- Outline methods and/or design principles to minimise the impact of recreation users on the vegetation located in the Public Park and Recreation Zone.

**Fencing**

- Provide post and wire fencing adjacent to wetland area, the bottom wire needs to be 60cm above the ground to facilitate wildlife movement.
- Maintain the rural character of large allotments with only post and wire style fencing to maintain a continuous flow of vegetation across the landscape, with the exception of providing a solid paling fence of 2.1 metres high along the full length of the common boundary of the subject site and the property known as 59 Nash Road, Bunyip.

**Infrastructure**

- The provision of utility service infrastructure required to service the development and details on the arrangements for the provision of the infrastructure. The land must be connected to a reticulated sewerage system of a sewerage authority.
- The relationship of building envelopes and public areas of open space to pipeline infrastructure crossing the site must be to the satisfaction of the Department of Primary Industries.

- Provide Stormwater quality treatment which incorporates the use of Water Sensitive Urban Design to achieve Melbourne Water's best practice water quality principles.
- Prepare a Stormwater Management Plan showing the stormwater works to the nominated point of discharge to the satisfaction and approval of the responsible authority. The stormwater management plan must be prepared by a suitably qualified person and show details of the proposed stormwater works including all existing and proposed features that may have impact (e.g. Trees to be retained, crossings, services, fences, abutting buildings, existing boundary levels etc), to the satisfaction of the responsible authority.

10/06/2021
C254card

# SCHEDULE 16 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO16**.

**CARDINIA MOTOR RECREATION AND EDUCATION PARK**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

None specified.

### Application requirements

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

Plans drawn to scale showing:

- The relationship of the buildings and works to the development plan.
- The boundaries and dimensions of the land to be developed.
- Adjoining roads and access ways.
- Relevant ground levels.
- The layout of existing and proposed buildings and works.
- Elevation drawings to scale that show the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways and vehicle parking and loading areas.
- Location and details of floodlighting and public address equipment.
- Driveways and vehicle parking and loading areas.
- External storage and waste treatment areas.
- A landscape plan which includes the description of vegetation to be planted, the surfaces to be constructed, a site works specification and the method of preparing, draining, watering and maintaining the landscape area.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

The following conditions and/or requirements apply to permits:

- Any permit granted for land uses associated with the Motor Recreation and Education Park must include a condition requiring the use and development of the site to be undertaken in accordance with the management plan and environmental management plan approved as part of the development plan.

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

- Existing natural and built features of the land including topography, vegetation, buildings, other works, utility services, drainage lines and watercourses.
- Relationship to existing and proposed surrounding development, including the Kooweerup-Healesville Road extension.
- A plan indicating the type of existing native vegetation and any areas where it is proposed to remove native vegetation.

- A flora and fauna assessment including consideration of:
  - Corridors for Growling Grass Frog habitat
  - Dwarf Galaxia habitat
  - Corridors for Southern Brown Bandicoot habitat
  - Adequate waterway setbacks
- A stormwater drainage strategy including details of any onsite water retention, effects on water quality and hydraulic impacts on waterways.
- How the existing floodplain and overland flow paths will be accommodated by the proposed development.
- Development setback at least 20 metres from the top of bank for the Toomuc Creek and McGregor Road drain. The 10 metres closest to the top of bank must support core riparian habitat only, and must not include any other infrastructure unless agreed in writing by Melbourne Water.
- The location, height and dimensions of all proposed buildings and works.
- The proposed use of each building and facility.
- Landscaping treatments to be undertaken.
- The proposed stages of development, if more than one, and the time for commencement and completion of each stage.
- The provision of utility services and infrastructure associated with the development, use and maintenance of the land.
- Use and management of portions of the site not being used for the Motor Recreation and Education Park.
- Noise mitigation measures.
- Proposed traffic and access arrangements and associated works.
- The location and capacity of all car parking areas and access to and from them.
- The location and design of all pedestrian and vehicle access ways.
- Provision for the loading and unloading of vehicles associated with the development and use of the land.
- An environmental management plan addressing:
  - The impact of the use and development on the flora and fauna on the site and its surrounds and methods to avoid or mitigate those impacts.
  - The need to protect and enhance the biodiversity of the area, including the retention of native vegetation and fauna habitat and the re-vegetation of important areas of habitat and integration of native vegetation into landscaping of the site.
  - Avoidance and mitigation of impacts on Growling Grass Frog ecological community and habitat and the implementation of a Growling Grass Frog Management Plan approved to the satisfaction of the responsible authority.
  - Management of impacts on creek lines and surrounding environment.
  - Water sensitive urban design including methods for water collection and reuse.
  - The management of impacts, if any, during the construction and carrying out of works, including erosion and sediment, dust, noise, litter, traffic and other amenity impacts.

For the portions of land to be used for the Motor Recreation and Education Park, the development plan must also include:

- A management plan, detailing:
  - Hours of operation.
  - Number of events per year
  - Number of patrons each type of event will cater for.
  - Management of noise emissions.
  - An emergency management plan.

### Notice of Development Plan

Prior to approval of a development plan, or any substantial amendment to an approved development plan, the responsible authority must notify the community, or cause notice to be given, for a period of 14 days.

Notice may be given in all or any of the following ways:

- by placing a sign on the land concerned;
- by publishing a notice in newspapers generally circulating in the area in which the land is situated;
- giving the notice personally or sending it by post; or
- in any other way that the responsible authority considers appropriate

The development plan must be available for viewing at the responsible authority's offices during this time.

The responsible authority must also seek the views of the Department of Environment, Land, Water and Planning, and Melbourne Water prior to the approval of the development plan.

The responsible authority must consider any submissions on the development plan prior to making a decision.

10/06/2021
C254card

## SCHEDULE 17 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO17**.

**52 JAMES STREET LANG LANG**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

The Responsible Authority can consider an application for minor works before a development plan has been approved. All proposals for minor works must be accompanied by a report demonstrating that they will not prejudice the future development of the land in an integrated manner.

Before a permit for subdivision or any development other than minor works or extension to an existing dwelling is granted, the owner of the land must enter into an agreement with the Responsible Authority under section 173 of the *Planning and Environment Act 1987* to the satisfaction of the Responsible Authority. The agreement must require the owner to:

- construct a footpath on the east side of James Street from the primary school to the southern entry of the development ; and
- pay the Department of Sustainability and Environment (DSE) $20,000 for rehabilitation works located on the adjoining Crown Land.

If the Lang Lang Rifle Club is not relocated: before a permit for subdivision or any development other than minor works or extension to an existing dwelling for any of stages 5 to 8 as shown on the draft plan 'Staging Plan James Street, Lang Lang', prepared by Beveridge Williams and dated 14 December 2010, the applicant must:

- implement any noise control methods and treatments and any precautionary safety works identified as necessary in the approved development plan; or
- enter into an agreement to implement any noise control methods and treatments and any precautionary safety works identified as necessary in the approved development plan,to the satisfaction of the Responsible Authority.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

The following conditions and requirements apply to the subdivision and development of the land:

Tree protection zones around trees requiring protection measures must be implemented prior to construction works commencing in accordance with the Carrington Park Estate Site Rehabilitation Management Plan (December 2010).

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

### Subdivision Layout

An indicative subdivision layout for the land showing:

- The staging of the subdivision of the land
- The proposed use and development of the land
- The size and dimensions of lots proposed generally in accordance with the Lang Lang Township Strategy (July 2009)

- The location of trees requiring protection measures
- The relationship of the land to existing or proposed uses on adjoining land to achieve the integrated subdivision of the land, including the Little Lang Lang River and the Lang Lang Primary School

Details of how the proposed development responds to the character guidelines for Precinct 5 – New Residential Estates in the Lang Lang Township Strategy (July 2009).

### Open Space

An open space plan showing proposed open space, recreation and path facilities including:

- The development of encumbered areas adjoining the Lang Lang Primary School and Crown land to be suitable for use for open space purposes generally in accordance with the draft landscape master plan prepared by Beveridge Williams and dated 21 February 2011.
- Shared paths throughout the open space to link the land to adjoining uses.
- Location of recreation facilities.

### Traffic

A clear, legible and convenient road network and pedestrian/bicycle network within and leading to the development, demonstrating appropriate road layout, traffic management and construction standards.

### Landscaping

An indicative landscape plan showing:

- The location of all landscaped areas.
- The treatment of the interface between the open space areas and:
  - Crown land located to east and west
  - Little Lang Lang River; and
  - Lang Lang Primary School
- The revegetation of open space areas.
- Existing remnant trees to be retained.

### Environment

- Details of any impacts of the development on biodiversity values in the adjoining Crown land, such as by altered hydrology or the introduction of pest plant and animals, and how those impacts will be addressed, to the satisfaction of the Department of Sustainability and Environment.
- The provision of suitable buffer zones along all boundaries adjoining native vegetation to the satisfaction of the Department of Sustainability and Environment.

### Acoustics and safety

If the Lang Lang Rifle Range is not relocated, details of:

- noise control methods and treatments, including an acoustic assessment report if necessary, to ensure that no residences will be subject to noise in excess of the maximum allowable noise limit (assessed in accordance with the EPA's *Interim Gunshot Noise Guidelines*, N6/91, dated 26 February 1991) from the Lang Lang Rifle Range; and
- any necessary precautionary safety works as a result of the operation of the Lang Lang Rifle Club, including a risk assessment report if necessary.

10/06/2021
C254card

## SCHEDULE 18 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO18**.

**LOT A PS527923L & LOT S2 (PART) PS527923L GAINSBOROUGH AVENUE, LANG LANG**

## 1.0 Objectives

10/06/2021
C254card

None specified.

## 2.0 Requirement before a permit is granted

10/06/2021
C254card

The Responsible Authority can consider an application for minor works before a development plan has been approved. All proposals for minor works must be accompanied by a report demonstrating that they will not prejudice the future development of the land in an integrated manner. Before granting a permit the responsible authority must be satisfied that the permit will not prejudice the future use and development of the land in an integrated manner.

Prior to the granting of a subdivision permit or any development other than minor works, an agreement between the owner of the land for Lot A PS527923L Gainsborough Avenue, Lang Lang and the Responsible Authority under Section 173 of the *Planning and Environment Act 1987* must be entered into to the satisfaction of the Responsible Authority, which must require the owner:

- To ensure dwellings on lots abutting the residential properties to the north (Cullen Drive) should be appropriately set back and proportioned to minimise visual built impact. Dwellings should not exceed a height greater than single storey, with the exception of an attic style building to the satisfaction of the responsible authority.
- The Section 173 Agreement must be registered on title.

## 3.0 Conditions and requirements for permits

10/06/2021
C254card

The following conditions and requirements apply to the subdivision and development of the land as shown on the approved development plan.

- Where there is vegetation to be retained, a vegetation protection envelope and a building envelope is to be provided on the plan.
- Vegetation protection envelopes must provide for a Tree Protection Zone in accordance with the Australian Standard AS4970-2009 (Protection of Trees on Development Sites).
- Should development, works or vegetation removal impact on threatened species as outlined in the Development Plan, a threatened species Management Plan to the satisfaction of the Department of Sustainability and Environment must be submitted to and approved by the Responsible Authority.
- Offsets to compensate for the loss of any native vegetation on site must be in accordance with an Offset Management Plan prepared to the satisfaction of the Department of Sustainability and Environment and Responsible Authority. Unless otherwise agreed in writing by the Department of Sustainability and Environment, any offsets required must be secured prior to the removal of native vegetation.

## 4.0 Requirements for development plan

10/06/2021
C254card

A development plan must include the following requirements:

### Subdivision Layout

An indicative lot layout for the whole site covered by the schedule showing:

- The size and dimensions of lots proposed must be in accordance with the Lang Lang Township Strategy (July 2009).

- The arrangement of the pedestrian/bicycle and road network.
- Suitable provision of public open space to meet the local community needs.
- Align as much as possible, lot boundaries with the existing lot boundaries of the abutting residential properties to the north, to minimise multiple lots at the rear of individual properties.
- A design that implements the findings of the Flora and Fauna Report.

### Staging

- Details on the staging of the subdivision and anticipated timing of development.

### Land Use

- The proposed use and development of each part of the land.
- Details on the proposed range of housing types and lot sizes.
- The relationship of the land to existing or proposed developments on adjoining land to achieve the integrated subdivision of the land in the area.
- Ensure a clear transition between densities occurs between the low density lots in the south to the higher density suburban lots in the north.

### Traffic and Transport

- Provide a clear legible and convenient road network and pedestrian/bicycle network within and leading to the development demonstrating appropriate road layout, traffic management, and construction standards to the satisfaction of the Relevant Authority.
- The plan must show a north/south vehicle link integrated with abutting land to the south and provide an east/west vehicle link to the abutting residential land to the east and the west.
- The plan must show no vehicle ingress or egress road access to Cullen Drive.

### Landscaping

An indicative landscape plan showing:

- The location of landscaped areas.
- Details of any landscape themes for the site.
- The landscape design needs to incorporate a consistent streetscape theme.
- Consideration needs be given to using a majority of local indigenous species in all landscape plantings.
- An explanatory statement illustrating landscape maintenance of the site.

### Environment

- A flora and fauna assessment (including a habitat hectare assessment) of the site prepared to the satisfaction of the responsible authority upon the advice of the Department of Sustainability and Environment that:
  - Provides an assessment of the flora and fauna on site including Ecological Vegetation Classes.
  - Assesses suitable habitat for threatened species on site.
  - Provides a flora listing of each habitat patch.
  - Applies the three step approach as detailed in Victoria's Native Vegetation Management – A Framework for Action (avoid, minimise and offset).
- A targeted survey of threatened species (including the southern brown bandicoot) by a qualified environmental consultant where suitable habitat is found on site.

- Provision of an arborist report prepared in accordance with Australian Standard *AS4970-2009 Protection of Trees on Development Sites* to the satisfaction of the responsible authority assessing the remnant trees (Heathy woodland and Swampy woodland) on site. Based on their ecological value and appropriateness of retention, provide for the protection and conservation of the trees.
- Investigations by a suitably qualified environmental professional to provide soil sampling and testing to fully assess the soil contamination status at the cattle yards located along the eastern boundary, to the satisfaction of the Responsible Authority.

**Infrastructure**

- The provision of utility services infrastructure required to service the development and details of the arrangements for the provision of the infrastructure. The land must be connected to a reticulated sewerage system of a sewerage authority.

**Open Space**

- The provision of 8 percent unencumbered open space, recreation facilities and path facilities.
- Open space should be fronted by a street which provides frontage (and vehicle access) to housing lots.
- The subdivision layout should be designed to overlook public spaces.
- The arrangements for transfer of open space into public ownership to the satisfaction of the relevant authority.

## 5.0 Decision guidelines

Before deciding to approve a Development Plan, the responsible authority must consider:

- The appropriateness of the layout of the subdivision having regard to Victoria's Native Vegetation Management – A Framework for Action, and any areas of native trees or vegetation to be retained.
- The views of the Department of Sustainability and Environment.

18/11/2022
C238card

# SCHEDULE 19 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO19**.

## GLISMANN ROAD AREA DEVELOPMENT PLAN (GRADP)

## 1.0 Objectives

18/11/2022
C238card

- To create a residential precinct that delivers high quality urban design outcomes through a variety of lot sizes which respond to the existing natural topography and landscape features of the development plan area.
- To protect and maintain the visual prominence of vegetated hilltops and hillsides when viewed from within and outside of the development plan area.
- To encourage a subdivision layout which maximises the retention of existing vegetation, minimises the overall disturbance to the terrain and ensures that buildings and structures are sited so that they do not visually dominate the landscape.
- To guide an integrated and coordinated design approach to an area with fragmented land ownerships.

## 2.0 Requirement before a permit is granted

18/11/2022
C238card

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority for the following:

- A minor extension, minor addition or minor modification to an existing building.
- Minor drainage works.
- Minor earthworks.
- The use and development of land provided the use or buildings or works will not prejudice the future use or development of the land in an integrated manner.
- The use, development or subdivision of land by a public authority or utility provider.
- The re-subdivision of existing lots (boundary realignment), provided the number of lots is not increased.
- Development of 11 Mahon Avenue provided a pedestrian link is provided to its eastern boundary that is capable of extension in the balance of the DPO area.

A permit must not be granted to subdivide land until a development plan has been prepared to the satisfaction of the responsible authority.

## 3.0 Conditions and requirements for permits

18/11/2022
C238card

### Requirements

All proposals to use or construct a building or construct or carry out works before a development plan has been prepared must be accompanied by the following:

- A site analysis plan that identifies:
  - the key attributes of the land as well as its relationship with the surrounding area and the future use of adjoining land;
  - the topography of the site, including the location of slope exceeding 20 per cent and visually prominent hilltops/hillsides to be protected and enhanced (as identified in *Hansen Partnership (June 2014) Glismann Road, Beaconsfield Landscape Assessment* and *Hansen Partnership (August 2014) Glismann Road, Beaconsfiled Landscape Management Framework),* and

- the location of vegetation.

- A report demonstrating that:
  - The proposal will not have a detrimental impact on the amenity of the area or prejudice the future development of the land for residential purposes as identified in Figure 1 to this schedule.
    - The proposal responds to existing physical, environmental and visual characteristics of the site and surrounding area by:
      - protecting and enhancing areas of native vegetation;
      - protecting and maintaining the visual prominence of vegetated hilltops and hillsides when viewed from outside the Glismann Road area;
      - demonstrates use of colours and materials that are sympathetic of the natural surrounds;
      - details of proposed batters, cut and fill earthworks, retaining walls, and/or drainage solutions required for the use or development of land; and,
      - prevents development on areas with existing pre-development slope of over 20 per cent.

All proposals to subdivide land must be accompanied by the following:

- An assessment of how the proposal implements the vision, objectives, requirements and guidelines of the approved Development Plan, specifically:
  - existing physical, environmental and visual characteristics of the site and surrounding area, including the use of colours and materials that are sympathetic to the natural surrounds;
  - functional and safe subdivision which incorporates environmentally sensitive design;
  - subdivision layout and the distribution of lot sizes which respond to the visual sensitivity of the area, landscape character, topographical features and retention of significant vegetation and other identified characteristics;
  - site earthworks such as batters, cut and fill and retaining walls designed to have the least visual impact on the environment and landscape;
  - protection and, where necessary, rehabilitation of vegetation, particularly on prominent hill faces/ridgelines and roadsides;
  - strategically positioned building envelopes to respond to the landscape character, native vegetation and the significantly steep topographical features of the area;
  - actives interfaces with adjacent streets, open space and key pedestrian locations to increase the sense of safety / surveillance within and surrounding the area; and
  - cohesive development that facilities connectivity between adjoining lots and minimises court bowls.
- An overall masterplan for all land in contiguous ownership of the landowner demonstrating the:
  - lot yield; density distribution;
  - identify lots affected by a restriction/envelope;
  - and, an indication of staging of subdivision and timing.
    Documentation should clarify the purpose of the restriction/envelope and what buildings and/or works the restriction/envelope restrictions apply to.
- If the subdivision application includes land affected by the access streets located either side of Glismann Road as identified in Figure 1 of this schedule, a staging plan must be prepared that

demonstrates the delivery of the access street connections in the first stage of development and that the access street is constructed to the title boundary of the adjoining property.

- A Transport Impact Assessment Report that responds to *Traffic works (May 2022) Glismann Road Residential Development, Beaconsfield, Traffic Impact Assessment Report* to the satisfaction of the relevant roads authority (be it Department of Transport or Council). If the road network and movement is altered through the preparation of the Development Plan, a new Traffic Impact Assessment Report must be provided to the satisfaction of the relevant roads authority (be it Department of Transport or Council).
- An Infrastructure Plan which addresses the following:
  - what land may be affected or required for the provision of infrastructure works;
  - what, if any, infrastructure set out in the contributions plan applying to the land is sought to be provided as "works in lieu" subject to the consent of the collecting agency;
  - any relevant traffic report or assessment;
  - the provision, staging and timing of road works internal and external to the land:
    - the first application to subdivide land with access to Glismann Road (Access StreetLevel 1.5) must be accompanied by a functional design for the entire length of the road , or a length of road to the satisfaction of Responsible Authority and include plans demonstrating the following:
    - a complete sight lines assessment along the roadway;
    - no vehicle access from individual properties along Glismann Road at the crest of the hill, and 30 m either side of the crest;
    - compliance with sight distance requirements as set out in Australian Standard AS2890.1 and Austroads Guide to Road Design;
    - a road pavement of 6.5 m;
    - no on-street parking at the crest and within the 30 m of the crest of the hill;
    - traffic calming devices as identified in Figure 1 of this Schedule;
    - a 3 m shared path on the western side only;
  - the landscaping of any land;
  - the provision of public open space with
    - the first application to subdivide land containing public open space must be accompanied by an indicative concept master plan for the entire local park; and
    - any other matter relevant to the provision of infrastructure required by the Responsible Authority.
- A Stormwater Management Strategy which provides for the staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water and the Responsible Authority.
  - An application to subdivide land must, in consultation with Melbourne Water and Cardinia Shire Council address the timing of the delivery of the levee bank shown in Figure 1, unless otherwise agreed by the Responsible Authority.
- An assessment by a suitably qualified cultural heritage professional that addresses the recommendations outlined in *Tardis Enterprises Pty Ltd (November 2010) The Glismann Road, Beaconsfield Structure Plan Cultural Heritage Management Plan (CHMP) 11452*.
- An assessment that responds to the *Meinhardt (March 2015) (updated May 2020 and May 2022), Glismann Road Development Plan Contaminated Land Study*:

  - A Preliminary Risk Screening Assessment (PRSA) in accordance with *DELWP (July 2021) Potentially Contaminated Land General Practice Note 30 (PPN30)* and relevant EPA guidance on PRSAs is required to determine whether to proceed with an Environmental Audit on the following properties:
    - 1 Glismann Road Lot 10 LP3783 Beaconsfield;
    - 2 Glismann Road Lot 2 LP64568 Beaconsfield;
    - 8 Glismann Road Lot 25 LP3783 Beaconsfield; and
    - 10 Glismann Road Lot 24 LP3783 Beaconsfield.
  - Should a Preliminary Risk Screening Assessment deem an Environmental Audit to be necessary for any given property, the Audit must be completed prior to the commencement of construction or carrying out intrusive works (other than site investigation works to determine the level of contamination if any on the land) at that property.
- A flora and fauna assessment that responds to *Ecology Partners Pty Ltd (October 2010) Biodiversity Assessment for Area 1, 'Beaconsfield', Beaconsfield, Victoria.*
- A Native Vegetation Information Management (NVIM) report and establish the protection requirements for any vegetation to be retained.
- A Slope Management Plan be prepared by a suitably qualified person generally in accordance with the Slope Management Guidelines approved as part of the Development Plan. The Slope Management Plan must include an assessment of how the plan responds to the Slope Management Guidelines and include:
  - Identification of:
    - natural topography and any earthworks which may have occurred over time;
    - any fill which may have occurred over time; and
    - any works proposed to alter ground levels, where this can reduce areas of substantial slope.
  - Proposed road cross sections and long sections to demonstrate how slopes over 10 per cent are being responded to through the road design.
  - Details of all proposed batters, cut and fill earthworks, retaining walls, driveway crossover locations and drainage solutions required for the subdivision of land that includes an existing pre-development slope of greater than 10 per cent.
  - Detail of how the use of building envelopes (or an alternative design response) responds to the slope management methods utilised.
  - Detail of what works outlined in the Slope Management Plan will be undertaken by the developer prior to the issues of the Statement of Compliance.
- Building design guidelines and fencing controls which addresses the housing planning and design guidelines.
- A Landscape Masterplan which illustrates how the proposed development is responsive to the development including key themes, landscape principles and character that will define the subdivision and/or development.

If in the opinion of the Responsible Authority an application requirement listed is not relevant to the assessment of an application, the Responsible Authority may waive or reduce the requirement.

### Conditions

A condition that requires either an envelope/notice of restriction or an agreement with the Responsible Authority under section 173 of the *Planning and Environment Act 1987* on the certified plan of subdivision, and recorded on the Certificate of Title of the land be implemented for the following:

- A restriction/envelope to prevent development on areas within the 'substantial area of slope 20 per cent and over' as shown in Figure 1 to this Clause.
- A restriction/envelope to maintain landscape character, native vegetation and significantly steep topographical features of the site were applicable.
- Allow only one (1) single dwelling on each lot and specify that lots may not be further subdivided for areas within the 'substantial area of slope 20 per cent and over'.
- Building design guidelines and fencing controls.

The owner must pay for all reasonable costs (including legal costs) associated with preparing, reviewing, executing and registering the agreement on the certificate of title to the land (including those incurred by the Responsible Authority).

If a Preliminary Risk Screening Assessment (PRSA) deems an Environmental Audit to be necessary for any given property, then a permit must include the following conditions:

- Before the commencement of any use for a sensitive purpose; or before any buildings or works; or the commencement of construction or carrying out intrusive works (other than site investigation works to determine the level of contamination if any on the land); or before the certification of a plan of subdivision; whichever is the earlier in respect of all or that part of the land as the case may be an Environmental Audit must be provided to the Responsible Authority. The Environmental Audit must be be completed in accordance with *DELWP (July 2021) Potentially Contaminated Land General Practice Note 30 (PPN30)* , the *Environment Protection Act 2017* and relevant EPA guidance on Environmental Audits.
- All the recommendations of the Environmental Audit must be complied with to the satisfaction of the Responsible Authority, prior to commencement of use of the site. Written confirmation of compliance must be provided by a suitably qualified environmental consultant or other suitable person acceptable to the Responsible Authority.
- Compliance sign off must be in accordance with any requirements in the environmental audit statement recommendations regarding verification of works.
- In the absence of a site management order and where there are recommendations on an environmental audit statement that require significant ongoing maintenance and/or monitoring the owner of the land must enter into a Section 173 Agreement under the *Planning and Environment Act 1987*.
  - The s 173 Agreement must be executed on the title of the relevant land prior to the commencement of the use and prior to the issue of a statement of compliance under the *Subdivision Act 1988*.
  - The owner of the land must meet all costs associated with drafting and execution of the Agreement, including those incurred by the responsible authority.

## 4.0 Requirements for development plan

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A development plan must be generally in accordance with Figure 1 of this Schedule and must be prepared to the satisfaction of the Responsible Authority for the whole site.

A development plan must include a vision statement, objectives, requirements and guidelines that will guide development in the development plan area.

**Site analysis plan**

- A site analysis plan that:
  - responds to the recommendations and mitigation measures outlined in:
    - *Ecology Partners Pty Ltd (October 2010) Biodiversity Assessment for Area 1, 'Beaconsfield', Beaconsfield, Victoria*
    - *Hansen Partnership (June 2014) Glismann Road, Beaconsfield Landscape Assessment*
    - *Hansen Partnership (August 2014 ) Glismann Road, Beaconsfield Landscape Management Framework*
    - *Trafficworks (May 2022) Glismann Road Residential Development, Beaconsfield, Traffic Impact Assessment Report*
    - *Meinhardt, (March2015) (updated May 2020 and May 2022) Glismann Road Development Plan Contaminated Land Study*
    - *Tardis Enterprises Pty Ltd (November 2010) Glismann Road, Beaconsfield Structure Plan Cultural Heritage Management Plan (CHMP) 11452*
    - *Water Technology (July 2014) Glismann Road Drainage Scheme*
    - *Water Technology (May 2016) Additional Flooding and Water Quality Assessments (Memo) (INC1633283)*
  - identifies key interface areas within the site as well as between the site and adjoining development, including Beaconsfield Primary School, open space areas, public transport, walking and cycling connections; and
  - identifies visually prominent hilltops and hillsides, including significant views of the site and views from the site, including:
    - the location of steep slopes of 20 per cent or more; and,
    - the location of vegetation.

**Slope management guidelines**

- Slope Management Guidelines for the subdivision and/or development of land with a predevelopment slope over 10 per cent that provides clarity and consistency for subdivision and development applications.
- The Slope Management Guidelines must include a statement of how the guidelines respond to the visual sensitivity of the area, topographical features and retention of areas with significant vegetation and other identified characteristics identified in the development plan, and include:
- Slope Management Design Principles for:
  - The road network, including typical road cross sections and long sections to demonstrate how slopes over 10 per cent are to respond through the road design.
  - Batters, cut and fill earthworks, retaining walls, driveway crossover locations and drainage solutions.
  - Lot layout and design guidelines.
  - Buildable areas / building envelopes including detail of how the use of building envelopes (or an alternative design response) can be used to respond to slope management.

  - Areas of slope over 20 per cent and options of how they could be managed through the implementation of a Slope Management Plan. No development is permitted on areas with existing pre-development slope of over 20 per cent.
  - Engaging in discussion with adjoining landowners regarding the treatment of the change in grade between the property boundaries.
- A statement of what works outlined in the Slope Management Plan will need to be undertaken by the developer prior to the issues of the Statement of Compliance.

**Staging**

- Details on staging of the subdivision and/or development including the provision of the internal road network.

**Housing requirements and subdivision**

- An indicative lot layout that:
  - includes a diverse range of lot sizes generally in accordance with Figure 1;
  - responds to the landscape character, topographical features and visual sensitivity of the area;
  - retains native vegetation; and,
  - provides building envelopes to maintain landscape character, native vegetation and significantly steep topographical features.
- Acknowledgment that, based on the assessment of the road network capacity, the development plan lot yield is a total of 330 lots.
- Design guidelines for buildings and fencing to provide clarity and consistency for subdivision and development applications to ensure:
  - the siting, height, scale, materials, colours and form of proposed buildings and works will be designed to have the least visual impact on the environment and landscape;
  - dwellings and garages do not dominate the streetscape;
  - dwelling design provides for passive surveillance and attractive streetscapes;
  - topography is suitably addressed through dwelling, fencing and retaining wall design;
  - fencing visible from the public realm is minimised and, provides for passive surveillance and attractive streetscapes;
  - and landscaping provides for passive surveillance and attractive streetscapes.
- A housing capacity analysis that assesses how affordable housing will be distributed throughout the site and how the proposed mix and type of housing responds to local housing needs.

**Vegetation, Landscape and views**

- A landscape master plan that provides clarity and consistency for subdivision and development applications and:
  - responds to the recommendations and mitigation measures outlined in:
    - *Ecology Partners Pty Ltd (October 2010) Biodiversity Assessment for Area 1, 'Beaconsfield', Beaconsfield, Victoria*
    - *Hansen Partnership (June 2014) Glismann Road, Beaconsfield Landscape Assessment*

- *Hansen Partnership (August 2014)Glismann Road, Beaconsfield Landscape Management Framework*
- *Tardis Enterprises Pty Ltd (November 2010) Glismann Road, Beaconsfield Structure Plan Cultural Heritage Management Plan (CHMP) 11452*

- enhances areas of native vegetation;
- protects and maintains the visual prominence of vegetated hilltops and hillsides when viewed from outside the development plan area;
- includes an indicative plant and materials schedule; and,
- continues adjoining approved landscape themes.

**Public open space**

- Provide for an area of 0.3 ha of public open space area generally in accordance with Figure 1.

**Road network and movement**

- Roads must be designed and constructed generally in accordance with Figure 1 and a road network and movement plan must:
  - respond to the recommendations and mitigation measures outlined in *Trafficworks (May 2022) Glismann Road Residential Development, Beaconsfield, Traffic Impact Assessment Report* unless otherwise agreed by the Responsible Authority;
  - respond to the existing topography and encourages an integrated solution that will provide connected street access through the Glismann Road area;
  - provide an efficient, legible and safe internal movement and ensure all properties are development to their maximum potential;
  - locate roads to minimise the extent of cut and/or fill that is visible from areas outside the site; discourage culs-de-sacs gaining access from Glismann Road;
  - provide a shared path along the top of the levee bank proposed along the south border of the development site (Old Princes Highway);
  - ensure there is no vehicular connection through to Patrick Place or Timberside Drive;
  - ensure that roads abutting the proposed local park and the O'Neil Recreation Reserve are designed to achieve slow vehicle speeds, provide on street parking and designated pedestrian crossing points;
  - demonstrate how pedestrian links to the reserves can be provided through the future local street network;
  - show location of the 30 m no access location for Glismann Road; include indicative possible access points for driveways and/or side streets from Glismann Road;
  - and address how the road connection will be facilitated between 111-113 (Lot 1, TP 627007), 115-117 (Lot 1, TP 579082), 119-121 (Lot 8, LP 3783), 123-125 (Lot 9, LP 3783) Old Princes Highway, Beaconsfield and 1 (Lot 10, LP 3783) Glismann Road, Beaconsfield.

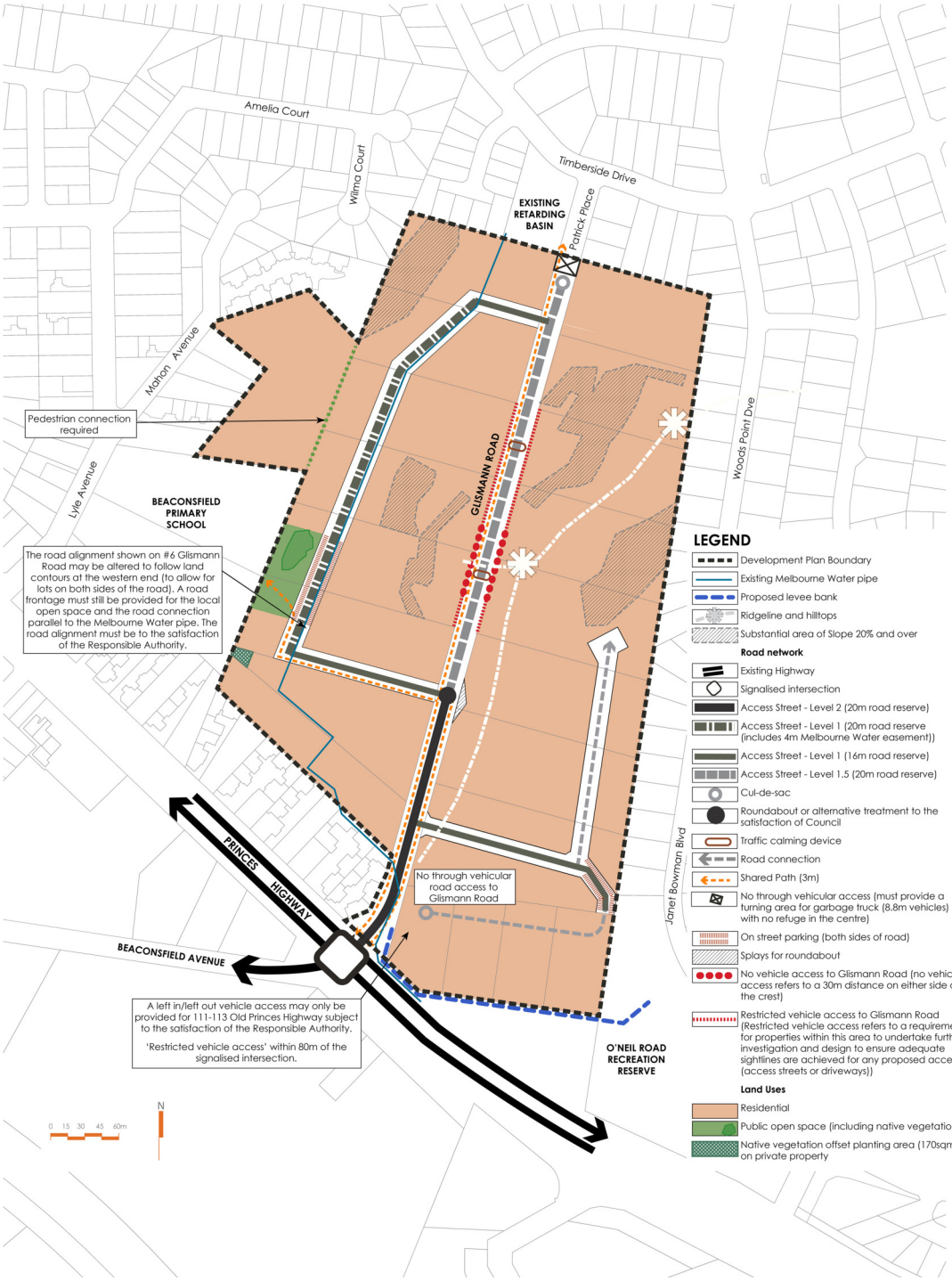
**Integrated water management and utilities**

- An integrated water management plan that ensures residential developments provide an integrated water management system and:
  - responds to the recommendations and mitigation measures outlined in:

- *Water Technology (July 2014) Glismann Road Drainage Scheme*
- *Water Technology (May 2016) Additional Flooding and Water Quality Assessments (Memo) (INC1633283)*

- includes a levee bank of 450 mm along the frontage of the four existing properties fronting Old Princes Highway and designed to:
  - follow the existing shared path located on Crown land;
  - abut 111-113 (Lot 1, TP 627007), 115-117 (Lot 1, TP 579082), 119-121 (Lot 8, LP 3783), 123-125 (Lot 9, LP 3783) Old Princes Highway, Beaconsfield;
  - allow ingress and egress for the existing residences located along Old Princes Highway;
  - cross the table drain to the east, and in order to provide the greatest protection to the property at the eastern end (123-125 (Lot 9, LP 3783) Old Princes Highway, Beaconsfield) the alignment will need to include a structure to drain the local catchment upstream of the levee.is in accordance with current best practice water quality initiatives.
- An infrastructure plan that ensures all lots have access to potable water, electricity, reticulated sewerage, drainage, gas and telecommunications infrastructure.

## Figure 1: Glismann Road Development Plan



04/10/2019
C205card

# SCHEDULE 20 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO20**.

**LANG LANG NORTH-WEST INDUSTRIAL 1 ZONE**

## 1.0 Objectives

04/10/2019
C205card

None specified.

## 2.0 Requirement before a permit is granted

04/10/2019
C205card

A permit may be granted to use or subdivide land, construct a building or construct or carry out works before a development plan has been prepared to the satisfaction of the responsible authority.

## 3.0 Conditions and requirements for permits

04/10/2019
C205card

The following conditions and/ or requirements apply to permits issued following the approval of a development plan:

- The bushfire protection measures forming part of this permit or shown on the endorsed plans or shown in the development plan, including those relating to construction standards, defendable space and access, must be maintained to the satisfaction of the responsible authority on a continuing basis. This condition continues to have force and effect after the development authorised by this permit has been completed.

## 4.0 Requirements for development plan

04/05/2022
VC210

A development plan must include the following requirements:

- A treatment that creates an effective buffer between the industrial zoned land and the land to the north. A treatment may include open space, visual screening, streetscape or landscaping design, between the industrial zoned land and the land to the north. The land to the north will be developed for residential uses as nominated in the Lang Lang Township Strategy (2009).
- For land that fronts Westernport Road, no new access to McDonalds Track is permitted.
- Any new road access to Westernport Road must take into account the intersection of Stage 2 of the future Lang Lang Bypass and Westernport Road to ensure that it does not prejudice future access to Westernport Road from the Lang Lang bypass.
- Any subdivision or development of the land must provide or contribute to necessary street lighting and pedestrian access along Westernport Road to the intersection of McDonalds Track including along the southern side of Westernport Road, Lang Lang.
- An Access Strategy that provides for vehicular access to lots abutting a Transport Zone 2 to be from service roads, side streets and internal subdivision roads. The Strategy must also provide the construction of auxiliary lanes on Westernport Road at major access points. The Access Strategy must be to the satisfaction of the responsible authority and VicRoads.
- The nomination of a buffer zone within 300 metres of the property boundary of the South East Water Sewerage Treatment Plant which discourages sensitive uses within this zone due to adverse impacts from odour generated by the South East Water Sewerage Treatment Plant. These uses include; food and drink premise, cafe, convenience restaurant, office, retail premises or shop, education centre, leisure and recreation, caretaker house, service station, restricted retail, place of assembly, place of worship, and childcare centre.
- Design Guidelines for future buildings subject to the development plan. The guidelines must address built form and building features with the intent to minimise the impacts of internal operations on to the amenity of adjoining residential areas. These features may include but are not limited to acoustic measures, air quality treatments and building materials.

- Building envelopes that provide for a 19m wide setback from the northern and western boundary of the Development Plan Overlay area to ensure the risk from bushfire is minimised and radiant heat exposure to new development does not exceed a BAL12.5, unless otherwise notified by the Fire Authority.
- The area within the 19m setback provided for bushfire management purposes must be kept clear of combustible materials and may include a perimeter road, unless otherwise notified by the Fire Authority.
- The development plan must show multiple access points to and from the Development Plan Overlay area.
- A Vegetation Management Plan must be provided to the satisfaction of the responsible authority and fire authority for the management of vegetation within the Development Plan Overlay area that is within 50 metres of the northern and western boundary of the Development Plan Overlay area in accordance with the following:
  - Grass must be short cropped and maintained during the declared fire danger period.
  - All leaves and vegetation debris must be removed at regular intervals during the declared fire danger period.
  - Within 10 metres of a building, flammable objects must not be located close to the vulnerable parts of the building.
  - Plants greater than 10 centimetres in height must not be placed within 3 metres of a window or glass feature of the building.
  - Shrubs must not be located under the canopy of trees.
  - Individual and clumps of shrubs must not exceed 5 square metres in area and must be separated by at least 5 metres.
  - Trees must not overhang or touch any elements of the building.
  - The canopy of trees must be separated by at least 5 metres.
  - There must be a clearance of at least 2 metres between the lowest tree branches and ground level

15/06/2023
C276card

## SCHEDULE 21 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO21**.

**85 MCNAMARA ROAD, BUNYIP - LOT 1 LP81582**

## 1.0 Objectives

15/06/2023
C276card

- To integrate with the surrounding area by responding to existing neighbourhood character, enhancing the public realm and existing open space networks.
- To provide landscaping, open space, recreation and pedestrian/bicycle path facilities that are well connected, sustainable and meet the needs of the local residents.
- To create a subdivision layout and residential dwellings that protects Bunyip's environmental amenity.

## 2.0 Requirement before a permit is granted

15/06/2023
C276card

A permit may be granted to use or subdivide land, construct a building or construct or carry out works before a development plan has been prepared to the satisfaction of the responsible authority if the responsible authority is satisfied that the permit will not prejudice the future integrated use and development of the land.

## 3.0 Conditions and requirements for permits

15/06/2023
C276card

The following conditions and/or requirements apply to permits, to the satisfaction of the responsible authority:

Conditions

- Building envelopes must be provided to achieve front and side building setbacks and setbacks for defendable space, as identified in Section 4.0 of this Schedule. The approved building envelopes must form either a restriction on the certified plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is registered on the title to the land. The owner must pay for all reasonable costs (including legal costs) associated with preparing, reviewing, executing and registering the agreement on the certificate of title to the land (including those incurred by the responsible authority).
- Construction of the following sections of road during the first stage of development and/or subdivision:
- – McNamara Road from Wattletree Road to the southern boundary of the site.
  - The intersection of McNamara and Wattletree Road.
  - Wattletree Road from the intersection of McNamara Road to Gwen Meredith Drive, to connect with the existing constructed road.
- Activities carried out on the subject land must comply with the approved *Aboriginal Cultural Heritage Management Plan Number 13227, Jem Archaeology, February 2015*(or updated version).
- Before a statement of compliance is issued for the subdivision, a Bushland Reserve Management Plan must be submitted to and approved by the responsible authority for the whole reserve area that will be vested to Council. The Bushland Reserve Management Plan must be prepared by a qualified Ecologist. When approved, the Bushland Reserve Management Plan will be endorsed and will then form part of the permit. The Bushland Reserve Management Plan must be in accordance with the Landscape Developer Guidelines and include:

a A site plan drawn to scale with boundaries, vegetation zones, existing and proposed paths and any other assets provided in an approved electronic format (PDF or CAD).

b Results from the *85 McNamara Road Bunyip: Flora and Fauna Assessment by Ecology Australia (2017)*. This includes:Vegetation communities.Habitat elements.Native flora and fauna species.Pest plan and animal lists.

c Identification of very high and high threat environmental weeds as defined in the *Advisory list of environmental weeds in Victoria*, DELWP (2018).

d Recommended weed control methods and timing for all very high and high threat weeds to remove weeds to less than 1 percent cover.

e A list of indigenous plant species, including quantities, needed to revegetate the bushland area in accordance with the EVC Benchmarks for Lowland Forest. Any proposed plantings must be indigenous plants of local provenance.

f Planting densities to be calculated in accordance with Native vegetation revegetation standards, Department of Sustainability and Environment (2006).

g Paths must no be located within tree protections zones or under canopies of existing trees unless agreed by the responsible authority.

h Where paths cannot be avoided under canopies for trees, a Tree Management Plan is required for all trees within falling distance of paths, reserve assets and adjacent properties that details:

i. The structural assessment of retained trees.

ii. The pruning or other measures to ensure trees are safe.

iii. Direction for management activities to improve the health of the retained trees over the long term.

iv. Identification of tree protection zones.

i Signs must be installed at all entrances that include the reserve name and regulatory signage to the satisfaction of the responsible authority.

j Unless exceptional circumstances apply, residential properties must not back onto reserves but will be separated from reserves via a road.

k Fuel breaks are to be implemented around the perimeter of all reserves where they back on to residential properties. Firebreaks are not required where a road separates houses from a reserve. The firebreak will be implemented to a standard sufficient for mowing.

- Before a Statement of Compliance is issued for the subdivision, the bushland management works in the approved Bushland Reserve Management must be carried out and completed to the satisfaction of the responsible authority. Once completed there will be no future ongoing obligations.
- The permit holder must notify Council's Environment Department a minimum of seven (7) days before commencing bushland management works so that surveillance of the works can be undertaken.

## 4.0 Requirements for development plan

05/05/2026
VC248

A single development plan must be prepared for the whole of the land to which this schedule applies.

The development plan must be generally in accordance with Diagram 1 to this Schedule.

A development plan must include the following requirements to the satisfaction of the responsible authority:

**Subdivision layout**

- An indicative lot layout showing the size and dimension of lots, and the location of vehicle crossings with no direct access to lots to be provided from McNamara Road.
- A design that provides a minimum 7 metre wide vegetation protection and conservation reserve for the purpose of providing habitat for the Southern Brown Bandicoot, in addition to the road reserve, along McNamara Road and by limiting ingress/egress to the site to a single intersection along McNamara Road.
- A design that provides a minimum 7 metre wide vegetation protection and conservation reserve for the purpose of providing habitat for the Southern Brown Bandicoot, along the western boundary of the site.
- A design that protects the Aboriginal Cultural Heritage site located on the west of the property by providing a 10 metre buffer that surrounds site Bunyip AS 1 (8021□0396 [VAHR]), as identified in the *Aboriginal Cultural Heritage Management Plan Number 13227, Jem Archaeology, February 2015* (or updated version).
- An indicative building envelope for each lot providing:
  - A minimum front setback of 10 metres or no less than the average setback of the adjoining two dwellings.
  - A minimum side setback of 5 metres.
  - A minimum lot width of 20 metres.
  - Provision of only one access way per lot.
  - The protection of remnant vegetation.
  - Setbacks for defendable space as identified in the bushfire management plan.

**Staging**

- Details on staging of the subdivision including the provision of the internal road network.

**Open space**

- Open space is to be fronted by a street which provides pedestrian linkages with adjacent residential developments.
- The siting and layout of public open space is to be positioned in response to the location of any significant remnant vegetation on site.
- The siting and layout of public open space to be positioned in response to the location of any identified conservation, heritage or archaeological significance on site.
- The provision of open space generally in accordance with Diagram 1 to this schedule, which includes the large patch of remnant Lowland Forest identified in the 85 McNamara Road, Bunyip: Flora and Fauna Assessment, prepared by Ecology Australia, and the Aboriginal Cultural Heritage site Bunyip AS 1 (8021□0396 [VAHR]) as identified in *Aboriginal Cultural Heritage Management Plan Number 13227, Jem Archaeology, February 2015* (or updated version).

**Bushfire**

- A bushfire management plan showing the vegetation located along the eastern and western boundary. It must include the following:

The provision of a perimeter road in accordance with Diagram 1 to this schedule:

a A defendable space setback of 27 metres between the proposed building envelopes and the vegetation and conservation reserve (scrub) bushfire hazard as indicated in Diagram 1 to this schedule.

b A defendable space setback of 33 metres between the proposed building envelopes from the vegetation and conservation reserve (woodland) bushfire hazard as indicated in Diagram 1 to this schedule.

c If any defendable space is required on private lots, building envelopes must be provided to ensure defendable space can be achieved, and vegetation within the defendable space must be managed in accordance with Table 4 of Clause 53.02 (Bushfire Planning).

These requirements are to be met, unless otherwise agreed to in writing to the satisfaction of the responsible authority and the satisfaction of the relevant fire authority.

- Before a statement of compliance is issued under the *Subdivision Act 1988*, the land owner must enter into an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* to provide for the above mentioned requirements. The landowner must pay the reasonable costs of the preparation, execution and registration of the Section 173 Agreement.

**Environment and landscaping**

- A Vegetation Management Plan that addresses vegetation and trees to be retained and how vegetation removal on site will be avoided, and if it cannot be avoided, minimised or offset, including roadside vegetation, measures to protect the trees during construction including buffer and tree protection zones.
- A Landscape Plan that protects remnant vegetation, wetlands and manages the Southern Brown Bandicoot habitat and the identified public open space to the satisfaction of the responsible authority, and provides:
  - A plan showing measures to implement Southern Brown Bandicoot protection and habitat enhancement in the vegetation protection and conservation reserve areas, including plant species and densities in accordance with the *Guidelines for Best Practice Management of Modified Habitats for Southern Brown Bandicoots – Revegetation, N. Masters, R. Taylor and S. Maclacgan (2019).*
  - The location of landscaped areas and landscape themes for the site including the use of majority local indigenous species in all landscape plantings. Tree protection zones within the lots abutting McNamara Road and the western property boundary identified by the Vegetation Management Plan.
  - This plan must be consistent with the requirements of the bushfire management plan and to the satisfaction of the responsible authority.
  - An explanatory statement illustrating landscape maintenance of the site including the Aboriginal Cultural Site and the public open space.
  - The retention of mature remnant native trees within existing road reserves and areas of public space and incorporates a consistent streetscape theme through the new development.
  - The protection and conservation of the remnant vegetation located at the site which includes along the boundary and adjacent road verge.
  - The protection and conservation of the remnant vegetation located at the site which includes along the boundary and adjacent road verge.
  - The tree protection zones within the lots abutting McNamara Road and the western property boundary identified by the Vegetation Management Plan.
  - This plan must be consistent with the requirements of the bushfire management plan and to the satisfaction of the responsible authority.
- A Construction Environment Management Plan which includes the installation of temporary fencing to ensure protection of the bushland reserves area, tree protection zones of all retained trees including the roadside vegetation corridors, the Aboriginal Cultural Heritage site, prior

to and for the duration of any works during construction and weed management measures to be implemented during construction to the satisfaction of the responsible authority.

**Traffic and transport**

- A functional layout plan for the subdivision, generally in accordance with the standards nominated in the Cardinia Shire Council "Guidelines for the Development & Subdivision of Land", "Development Construction Specification: and Water Sensitive Urban Design (WSUD) Guidelines showing:
  - A fully dimensioned subdivision layout, including approximate lot areas, lot number and widths of street reservations.
  - Topography and existing features, including contours for the subject land and any affected adjacent land.
  - Location and alignment of kerbs, indented parking spaces, footpaths, shared paths, and traffic controls, including the provision of a shared path adjacent to the road reserve along the western boundary.
- A Southern Brown Bandicoot Underpass Plan for the installation of underpasses beneath the road pavement in the locations nominated in Diagram 1 to this schedule. The Plan must require the design and construction of underpasses to the satisfaction of the responsible authority.
- Design of local roads to the satisfaction of the responsible authority which is generally in accordance with the Concept Plan labelled Diagram 1 to this schedule, ensuring that perimeter roads are provided in accordance with the Bushfire section of this schedule.

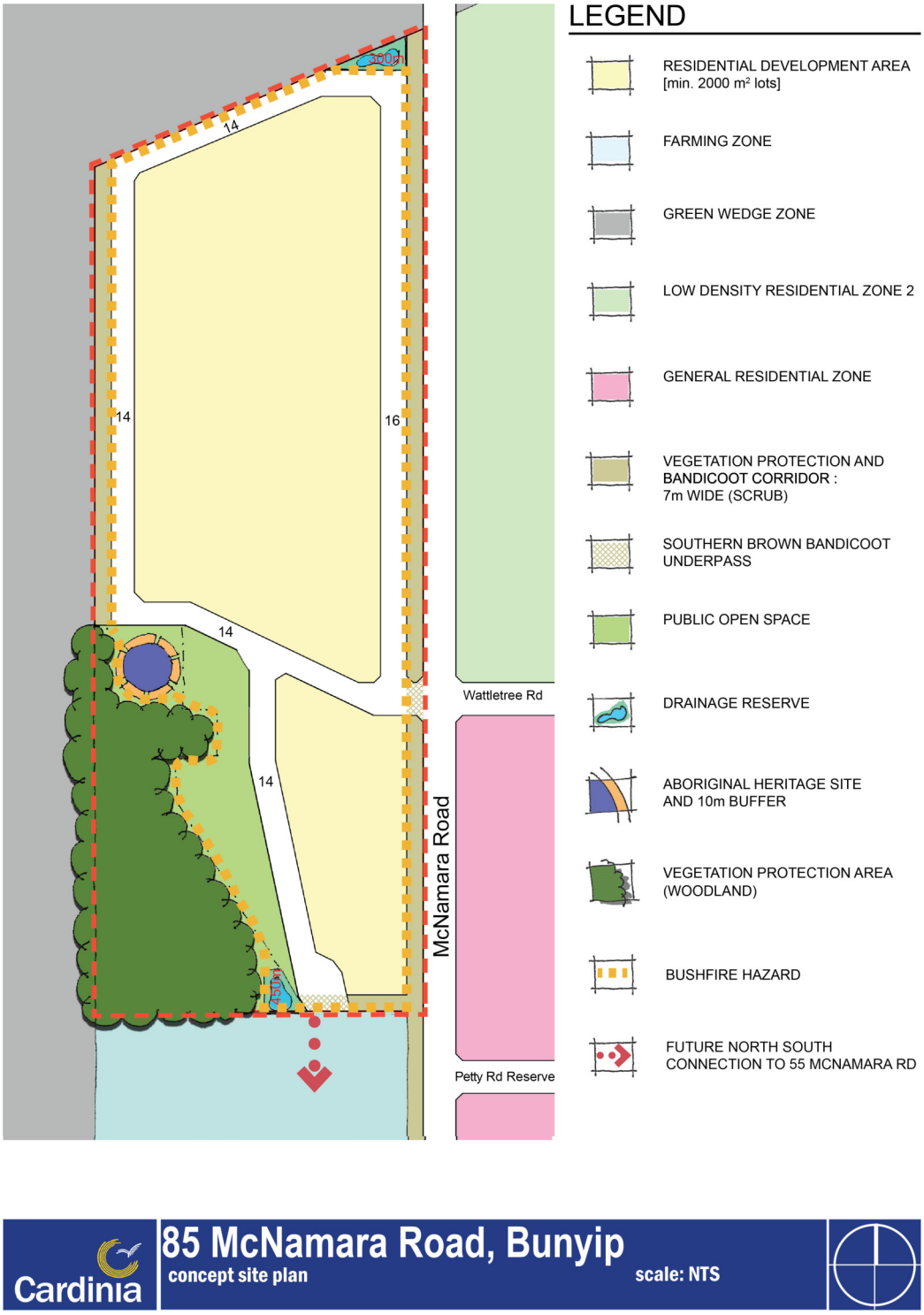
**Infrastructure and drainage**

- A Stormwater Management Plan prepared to the satisfaction of the water authority incorporating water sensitive urban design principles and a drainage and servicing assessment addressing all relevant drainage, flooding and water quality issues.
- The land must be connected to a reticulated sewerage system to the satisfaction of the responsible authority.

**Urban design and character**

- Lot boundaries adjoining vegetation protection and bandicoot conservation reserves to be post and wire, or other rural style fencing, with a 100 millimetre gap between the ground surface and the bottom of the fence.
- Avoid front fences to allow gardens and nature strips to merge. If fenced, provide low and transparent fencing, with a 100 millimetre gap between the ground surface and the bottom of the fence.
- Subdivision layouts should avoid battle-axe lots where possible.

## Diagram 1 to Schedule 21 to Clause 43.04



24/02/2022
C240card

# SCHEDULE 23 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO23**.

## MOODY STREET KOO WEE RUP RESIDENTIAL PRECINCT

## 1.0 Objectives

24/02/2022
C240card

- To integrate new development with the surrounding area by responding to existing neighbourhood character, enhancing the public realm and existing street and pedestrian networks.
- To ensure choice and diversity of housing that achieves a high quality of amenity and urban design.
- To ensure the stormwater is managed on site up to the 1 in 100 year ARI storm event to pre-development flow rates.

## 2.0 Requirement before a permit is granted

24/02/2022
C240card

A permit may be granted to use or subdivide land, construct a building or construct or carry out works before a development plan has been prepared to the satisfaction of the responsible authority if the responsible authority is satisfied that the permit will not prejudice the future integrated use and development of the land.

## 3.0 Conditions and requirements for permits

24/02/2022
C240card

The following conditions apply to permits:

- Any application for additional dwellings or subdivision of No. 90 Boundary Drain Road or 16 Blackfish Drive include the following condition:

  A sealed road with kerb and channel to the closest side and underground drain to match the existing sealed road must be constructed.
- Building envelopes that achieve the front and side building setbacks required by this schedule and the approved development plan are implemented in the form of a Restriction on the certified Plan of Subdivision, or an agreement with the Responsible Authority under Section 173 of the *Planning and Environment Act 1987*, which is recorded on the Certificate of Title of the land. The owner of the land or permit holder must pay all reasonable costs of the preparation, execution and registration of the restriction or agreement, including the reasonable costs of the Responsible Authority.
- Before a statement of compliance is issued under the Subdivision Act 1988, the land owner must enter into an agreement with the responsible authority under Section 173 of the Planning and Environment Act 1987 to provide for the requirements outlined within the bushfire hazard site assessment. The land owner must pay the reasonable costs of the preparation, execution, and registration of the Section 173 Agreement.
- Construction of the internal road network to the satisfaction of the responsible authority, including upgrades to Moody Street that include kerb and channel, road pavement widening, underground drainage and footpath construction.

## 4.0 Requirements for development plan

05/05/2026
VC248

A development plan must include the following requirements to the satisfaction of the responsible authority.

The Development Plan must be generally in accordance with the Concept Plan labelled Figure 1 to this Schedule.

### Subdivision Layout

- An indicative lot layout showing how the subdivision encourages a range of dwelling types to cater for a variety of housing needs and addresses the size, dimension and orientation of lots and includes:
  - The provision of a range of lot sizes.
  - The provision of 70 per cent of the lots greater than 700 square metres and range up to 1000 square metres.
  - The avoidance of smaller lots of less than 600 square metres.
  - Lots with a minimum width of 18 metres where possible.
  - A transition to green wedge land to the north with larger lots of greater than 1000 square metres.
- An indicative building envelope for each lot providing:
  - A minimum front setback of 7 metres or no less than the average setback of the adjoining two dwellings.
  - Minimum side and rear setbacks of 2.5 metres.
  - Setbacks for defendable space from bushfire where required.
- A road link from Blackfish Drive to Milla Way, with an altered priority T intersection to identify the separation between these two streets.

### Staging

- Details on the anticipated sequencing and timing of development of the precinct, including road delivery.

### Environment and Landscaping

- An **Environmental Management Plan** that addresses vegetation and trees (including roadside vegetation) to be retained and how vegetation removal will be avoided, and if it cannot be avoided, how it will be minimised or offset, and measures to protect the trees which includes buffer and tree protection zones, and provides:
  - A **flora and fauna assessment** (including a habitat hectare assessment) of the site must be prepared to the satisfaction of the responsible authority, that:
    - Provides an assessment of the flora and fauna on site including Ecological Vegetation Classes.
    - Assesses suitable habitat for threatened species on site.
    - Provides a flora listing of each habitat patch.
  - An **arboricultural assessment** of all vegetation prepared by a suitably qualified person(s) that identifies any significant trees or vegetation on the land, any existing street trees, roadside vegetation and grassed verges.
  - A targeted survey of threatened species (including but not limited to the Southern Brown Bandicoot) must be prepared by a suitably qualified person(s) where suitable habitat is found on site in consultation with the Department of Environment, Land, Water and Planning.
- A **Landscape Plan** showing:
  - The location, preservation and protection of significant trees/vegetation, existing street trees, roadside vegetation and grassed road verges. Including maintaining the long term, sustainable health and condition of existing vegetation to be retained.

- The location, preservation and protection of any threatened species.
- Removal of the row of pine trees and other trees located in the road reserve to the rear of 85 Moody Street whilst retaining and protecting the 8 metre wide low vegetation strip along the southern side of the Southern Boundary Drain.
- Removal of the row of pittosporum trees and other trees located in the road reserve to the rear of 73 Moody Street whilst retaining and protecting the 8 metre wide low vegetation strip along the southern side of the Southern Boundary Drain.
- Removal of trees located in the road reserve to the rear of 90 Boundary Drain Road and 57 Moody Street whilst retaining and protecting the 8 metre wide low vegetation strip along the southern side of the Southern Boundary Drain.
- The location of landscaped areas.
- Details of any landscape themes.
- Landscape design incorporating a consistent streetscape theme.
- New plantings consistent with existing species of vegetation from connecting roads and reserves.
- The provision of street trees (minimum pot size of 45 litres when planted) for shade and aesthetic quality at an early stage of development – to be planted or bonded to the satisfaction of the responsible authority prior to Statement of Compliance of a subdivision.
- Defendable space for bushfire purposes in accordance with Table 6 of Clause 53.02 (Bushfire Planning) of the Cardinia Planning Scheme to ensure development is exposed to a radiant heat flux of less than 12.5 kilowatts/square metre. See CFA's publication 'Landscaping for Bushfire, Garden Design and Plant Selection' for assistance with plant selections within perimeter roads that are located within the defendable space.

**Bushfire**

- A **bushfire management assessment**, including a bushfire hazard site assessment, prepared by a suitably qualified person. The bushfire management assessment is to include details of how development will respond to 'Clause 13.02-1S Bushfire Planning' of this planning scheme and demonstrate that development is exposed to a radiant heat flux of less than 12.5 kilowatts/square metre. The bushfire management assessment must be to the satisfaction of the responsible authority upon the advice of CFA.
- – the provision of a perimeter road along the northern precinct boundary where development will interface with the bushfire hazard (scrub) located along each side of the Southern Boundary Drain within the Boundary Drain Road reserve, to form part of an area of defendable space;
  - if any defendable space is required on private lots, building envelopes must be provided to provide an area of defendable space of a width to the satisfaction of the responsible authority on the advice of CFA and vegetation within the defendable space within private lots must be managed in accordance with Table 4 of Clause 53.02 (Bushfire Planning).
- Defendable space may also be achieved through:
  - the construction of a wetland system for the purpose of stormwater retention that is well maintained.
  - land to be vested in Council for the purpose of a local park and will be maintained by Council.

### Aboriginal Cultural Heritage

- An Aboriginal cultural heritage assessment/archaeological survey must be prepared by a suitably qualified person(s).
- Location(s) and protection of any Aboriginal cultural heritage on the land in accordance with a Cultural Heritage Management Plan (CHMP), if required by the *Aboriginal Heritage Act 2006*.

### Traffic and Transport

- An **Integrated Transport and Impact Assessment** prepared to conform with arterial road access management policies to the satisfaction of the responsible authority.
- A **Traffic Impact and Design Assessment to** the satisfaction of the responsible authority, showing arrangements for vehicle ingress and egress to the development, including the road layout, construction standards, traffic management which includes waste and emergency vehicle access.
- A clear legible and convenient pedestrian, bicycle and road network that:
  - Connects and integrates with existing networks, including a pedestrian and bicycle path along Moody Street, and creates new opportunities for improved local permeability in the future.
  - Provides for pedestrian and bicycle pathways in locations adjacent to any public open space.
  - Provides internal street widths of 7.5 metres between invert of kerbs with underground drainage, and generous footpath and nature strip widths.
  - Discourages cul-de-sacs, and if used they are connected through to other streets by a wide reserve and path for safe pedestrian and bicycle access.
  - Provides only one vehicle crossover or access point per lot.
  - Provides traffic management devices for roads with lengths over 180 metres.
- New roads are designed having regard to the standard cross sections in the VPA (GAA) Engineering Design and Construction Manual.

### Infrastructure and Drainage

- Provision of utility services infrastructure required to service the development and details of the arrangements for the provision of the infrastructure.
- Provision of a reticulated sewerage system.
- A **Fill Plan** which identifies the depth and fill material, and staging in a manner and time designed to minimise any adverse impacts on the amenity of nearby areas, to the satisfaction of the responsible authority and the relevant water authority.
- A **Drainage Strategy** for the subdivision showing filling of residential lots with roads providing for overland flows and/or raised minimum floor levels for development, to the satisfaction of the relevant water authority and the responsible authority.

### Public Open Space

- Provision of at least 8 per cent of the development plan area as unencumbered public open space for the purpose of a local park, to be provided in equal parts by No. 73 and No. 85 Moody Street.
- A cash contribution is required to be made in lieu of land for the purpose of unencumbered public open space, equivalent to 8% of the value of the land by land parcels that are not required to contribute land as shown in Figure 1, unless a contribution has previously been made.

- A mechanism for equalisation of public open space contributions required by Clause 53.01, whereby Council is required to provide monetary compensation for the portion of land above 8% to land parcels that are required to contribute land for the purpose of unencumbered public open space that exceeds 8% of the land area as shown in Figure 1, following a valuation based on development values (highest and best use of the land) that is carried out within 28 days of the issue of a statement of compliance by a Council approved property valuer.
- Public open space should be adjacent to a road on all sides and pedestrian and bicycle linkages.
- Provision of a pedestrian access way of 6 metres in width from the proposed open space to the southern boundary drain that will allow Council maintenance vehicles to access the drain.

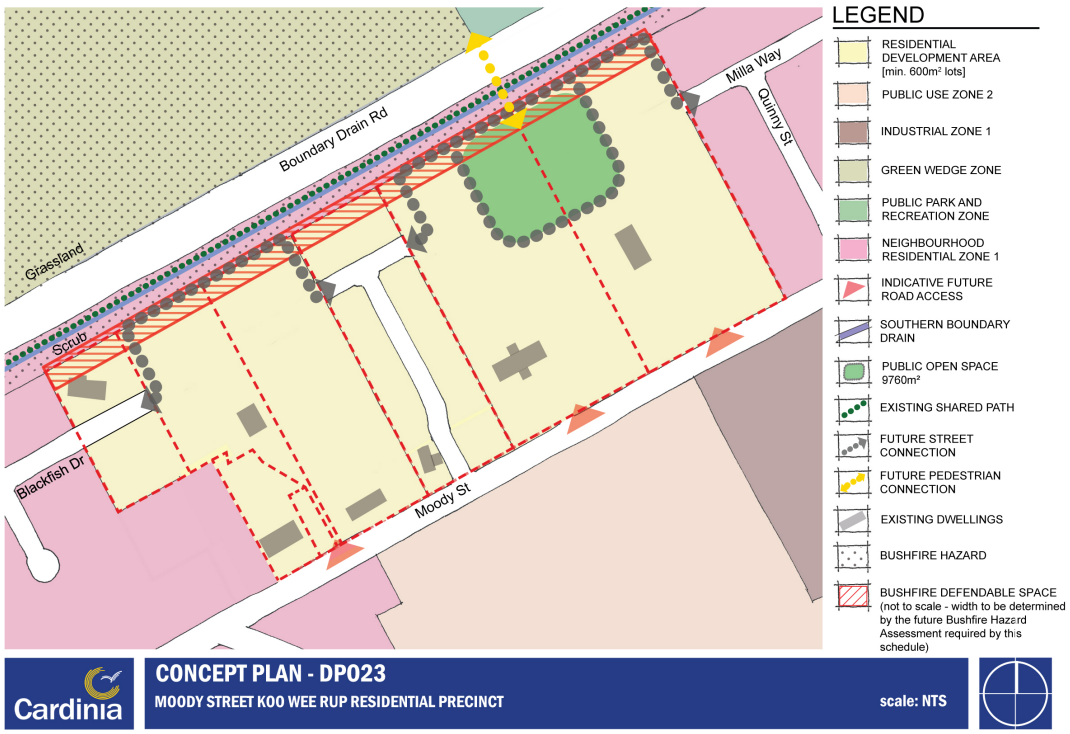
**Urban Design and character**

- A high level of quality in the design and construction of new buildings which responds to the existing built form character of the Koo Wee Rup Township.
- Configure dwellings to maximise retention of existing vegetation and allow only one access driveway to a lot.
- Avoid front fences, if lots are fenced in front of the building line provide low front fences no more than 1.2 metres high.
- Any lots adjoining public open space should provide low and transparent fencing.
- New road treatments and street furniture should be consistent with the existing styles of road treatments and street furniture found in Koo Wee Rup Township.
- Provide footpaths with a minimum width of 1.8 metres.
- The interface between development and bushfire hazard must be responsive to the bushfire risk.

**Figure 1**

The land parcels affected by this schedule are identified as:

- No. 16 Blackfish Drive, Koo Wee Rup.
- No. 90 and 120 Boundary Drain Road, Koo Wee Rup.
- No. 51-53, 55, 57, 65, 67, 73 and 85 Moody Street, Koo Wee Rup.


Boundary Drain Rd
Milla Way
Quinny St
Grassland
Scrub
Blackfish Dr
Moody St
LEGEND
RESIDENTIAL DEVELOPMENT AREA [min. 600m² lots]
PUBLIC USE ZONE 2
INDUSTRIAL ZONE 1
GREEN WEDGE ZONE
PUBLIC PARK AND RECREATION ZONE
NEIGHBOURHOOD RESIDENTIAL ZONE 1
INDICATIVE FUTURE ROAD ACCESS
SOUTHERN BOUNDARY DRAIN
PUBLIC OPEN SPACE 9760m²
EXISTING SHARED PATH
FUTURE STREET CONNECTION
FUTURE PEDESTRIAN CONNECTION
EXISTING DWELLINGS
BUSHFIRE HAZARD
BUSHFIRE DEFENDABLE SPACE (not to scale - width to be determined by the future Bushfire Hazard Assessment required by this schedule)
Cardinia
CONCEPT PLAN - DP023
MOODY STREET KOO WEE RUP RESIDENTIAL PRECINCT
scale: NTS

24/02/2022
C240card

# SCHEDULE 24 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO24**.

## SIMS LANE KOO WEE RUP RESIDENTIAL PRECINCT

## 1.0 Objectives

24/02/2022
C240card

- To integrate with the surrounding area by responding to the existing neighbourhood character, enhancing the public realm and existing road networks.
- To ensure choice and diversity of housing appropriate to the setting that achieves a high quality of amenity and urban design.
- To ensure the stormwater is managed on site up to the 1 in 100 year ARI storm event to pre-development flow rates.

## 2.0 Requirement before a permit is granted

24/02/2022
C240card

A permit may be granted to use or subdivide land, construct a building or construct or carry out works before a development plan has been prepared to the satisfaction of the responsible authority if the responsible authority is satisfied that the permit will not prejudice the future integrated use and development of the land.

## 3.0 Conditions and requirements for permits

24/02/2022
C240card

The following conditions and/or requirements apply to permits:

- Building envelopes that achieve the front and side building setbacks required by this schedule and the approved development plan are implemented in the form of a Restriction on the certified Plan of Subdivision, or through an agreement with the responsible authority under Section 173 of the Planning and Environment Act 1987, which is recorded on the Certificate of Title of the land. The owner of the land or permit holder must pay all reasonable costs of the preparation, execution and registration of the restriction or agreement, including the reasonable costs of the responsible authority.
- Construction of the internal road network to the satisfaction of the responsible authority, including upgrades to Sims Lane to a local access street with a sealed road, kerb and channel, 7.5 metre wide road pavement between invert of kerbs, and underground drainage.
- Before a statement of compliance is issued under the Subdivision Act 1988, the land owner must enter into an agreement with the responsible authority under Section 173 of the Planning and Environment Act 1987 to provide for the bushfire requirements of this schedule and the approved development plan. The land owner must pay the reasonable costs of the preparation, execution, and registration of the Section 173 Agreement.

## 4.0 Requirements for development plan

06/08/2026
C283card

A development plan must include the following requirements to the satisfaction of the responsible authority.

The Development Plan must be generally in accordance with the Concept Plan labelled Figure 1 to this Schedule.

### Subdivision Layout

- An indicative lot layout showing how the subdivision encourages a range of dwelling types to cater for a variety of housing needs and addresses the size, dimension and orientation of lots and includes:
  - The provision of a range of lot sizes.

  - The provision of 70 per cent of the lots greater than 700 square metres and range up to 1000 square metres.
  - The avoidance of smaller lots of less than 600 square metres.
  - Lots with a minimum width of 18 metres where possible.
  - A transition to the green wedge land to the south through larger lots of greater than 1000 square metres.
  - Lots addressing Supreme Close, Townley Road, Sims Lane and the green wedge land to the south.
- An indicative building envelope for each lot providing:
  - A minimum front setback of 7 metres or no less than the average setback of the adjoining two dwellings.
  - Minimum side and rear setbacks of 2.5 metres.
  - Setbacks for defendable space from bushfire where required.
- Provides either a minimum 12 metre wide looped service road or 10 metre wide tree reserve adjacent to the Transport Zone 2 (Rossiter Road).
- Provides access to new lots facing Rossiter Road via an internal loop road that connects from Townley Road/Supreme Close to Sims Lane.
- Provides a perimeter road adjacent to the green wedge land to the south.
- Provides driveway access to new lots from Sims lane.
- No new vehicle crossovers or road access from Rossiter Road.

### Staging

- Details on the anticipated sequencing and timing of development of the precinct including the delivery of roads and open space.

### Environment and Landscaping

- An **Environmental Management Plan** that addresses vegetation and trees (including roadside vegetation) to be retained and how vegetation removal will be avoided, and if it cannot be avoided, how will it be minimised or offset, and measures to protect the trees which includes buffer and tree protection zones, and provides:
  - A **flora and fauna assessment** (including a habitat hectare assessment) of the site prepared to the satisfaction of the responsible authority.
  - Provides an assessment of the flora and fauna on site including Ecological Vegetation Classes.
  - Assesses suitable habitat for threatened species on site.
  - Provides a flora listing of each habitat patch.
  - An **arboricultural assessment** of all vegetation prepared by a suitably qualified person(s) that identifies any significant trees or vegetation on the land, any existing street trees, roadside vegetation and grassed road verges.
  - A targeted survey of threatened species (including but not limited to the Southern Brown Bandicoot) must be prepared where suitable habitat is found on site in consultation with the Department of Environment, Land, Water and Planning.
- A **Landscape Plan** showing:

- The location, preservation and protection of significant trees/vegetation, existing street trees, roadside vegetation and grassed road verges. Including maintaining the long term, sustainable health and condition of existing vegetation to be retained.
- The location, preservation and protection of any threatened species.
- The location of landscaped areas.
- Details of any landscape themes.
- Landscape design incorporating a consistent streetscape theme.
- New plantings consistent with existing species of vegetation from connecting roads and reserves.
- The provision of street trees (minimum pot size of 45L when planted) for shade and aesthetic quality at an early stage of development – to be planted or bonded to the satisfaction of the responsible authority prior to Statement of Compliance of a subdivision.
- Defendable space for bushfire purposes in accordance with Table 4 of Clause 53.02 (Bushfire Planning) of the Cardinia Planning Scheme to ensure development is exposed to a radiant heat flux of less than 12.5 kilowatts/square metre. See CFA's publication 'Landscaping for Bushfire, Garden Design and Plant Selection' for assistance with plant selections within perimeter roads that are located within the defendable space.

### Bushfire

- A **Bushfire Management Assessment,** including a bushfire hazard site assessment, prepared by a suitably qualified person. The bushfire management assessment should include details of how development will respond to 'Clause 13.02-1S Bushfire Planning' of this planning scheme and demonstrate that development is exposed to a radiant heat flux of less than 12.5 kilowatts/square metre.
- The bushfire hazard site assessment must be based on hazards proposed to form part of the completed development, including final landscape treatments on the site and along the adjoining grassland, and must include the following:
  - the retention and construction of Sims Lane within the existing 20 metre wide road reserve which will act as a perimeter road along the eastern precinct boundary;
  - the provision of a perimeter road along the southern precinct boundary to form part of minimum 19 metre wide area of defendable space, along the entire southern boundary is preferable; and,
  - if any defendable space is required on private lots, building envelopes must be provided to provide a minimum 19 metre wide area of defendable space, and vegetation within the defendable space within private lots must be managed in accordance with Table 4 of Clause 53.02 (Bushfire Planning).
  - Defendable space may also be achieved through the construction of a wetland system for the purpose of stormwater retention that is well maintained.

### Aboriginal Cultural Heritage

- An **Aboriginal cultural heritage assessment/archaeological survey** must be prepared by a suitably qualified person(s).
- Location(s) and protection of any Aboriginal cultural heritage on the land in accordance with a Cultural Heritage Management Plan (CHMP) required by the *Aboriginal Heritage Act 2006*.

### Traffic and Transport

- **An Integrated Transport and Impact Assessment** prepared to conform with arterial road access management policies to the satisfaction of the responsible authority. The assessment must include but not limited to:
  - Expected number of trips generated by the site, how this would impact on the existing and future operation of nearby intersections on Rossiter Road, and mitigating treatment options if necessary.
- A **Traffic Impact and Design Assessment** prepared to the satisfaction of the responsible authority, showing arrangements for vehicle ingress and egress to the development, including the road layout, construction standards, traffic management which includes waste and emergency vehicle access.
- A clear legible and convenient pedestrian, bicycle and road network that:
  - Connects and integrates with existing networks, including a pedestrian and bicycle path along Sims Lane and Rossiter Road to connect with the existing path network at Townley Road, and creates new opportunities for improved local permeability in the future.
  - Provides for pedestrian and bicycle pathways in locations adjacent to any public open space.
  - Avoids traffic impacts that would generate any significant upgrade to the Denhams Road-Sims Lane, and Rossiter Road-Koo Wee Rup-Longwarry Road intersection. This must be taken into consideration when determining the layout of the local road network within this area.
  - Provides internal street widths of 7.5 metres between invert of kerbs with underground drainage, and generous footpath and nature strip widths.
  - Discourages cul-de-sacs, and if used they are connected through to other streets by a wide reserve and path for safe pedestrian and bicycle access.
  - Provides only one driveway per lot.
  - Includes construction of Sims Lane to a local access street with a sealed road, kerb and channel with at least 7.5 metres between invert of kerbs, and underground drainage.
- New roads are designed having regard to the standard cross sections in the VPA (GAA) Engineering Design and Construction Manual.

### Infrastructure and Drainage

- Provision of utility services infrastructure required to service the development and details of the arrangements for the provision of the infrastructure.
- Provision of a reticulated sewerage system.
- A **Fill Plan** which identifies the depth and fill material, and staging in a manner and time designed to minimise any adverse impacts on the amenity of nearby areas, to the satisfaction of the responsible authority and the relevant water authority.
- A **Drainage Strategy** for the subdivision showing filling of residential lots with roads providing for overland flows and/or raised minimum floor levels for development, to the satisfaction of the relevant water authority and the responsible authority.

### Public Open Space

- The provision of at least 5,600m$^2$ of the development plan area as unencumbered public open space for the purpose of a local park, with 1380 square metres provided on No. 30 Sims Lane and the remainder provided on No. 9A Supreme Close and no. 22 Sims Lane.

- A cash contribution is required to be made in lieu of land for the purpose of unencumbered public open space, equivalent to 8% of the value of the land, by land parcels that are not required to contribute land as shown in Figure 1, unless a contribution has previously been made.
- A **mechanism for equalisation of public open space contributions** required by Clause 53.01, whereby Council is required to provide monetary compensation for the portion of land above 8% to land parcels that are required to contribute land for the purpose of unencumbered public open space that exceeds 8% of the land area as shown in Figure 1, following a valuation based on development values (highest and best use of the land) that is carried out within 28 days of the issue of a statement of compliance by a Council approved property valuer.
- The public open space (local park) should be bounded by a road on all sides.

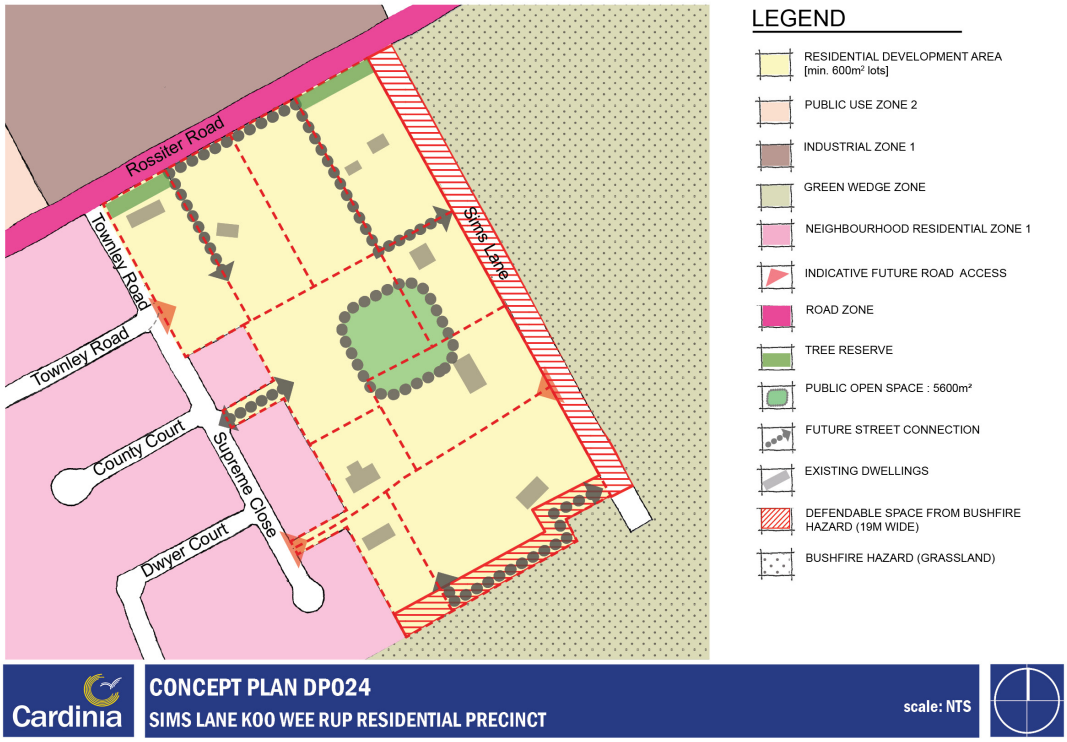
### Urban Design and character

- Configure dwellings to maximise retention of existing vegetation and allow only one access driveway to a lot.
- Avoid front fences. If lots are fenced provide low front fences no more than 1.2 metres high.
- Dwellings interfacing with public open space should give consideration to issues of safety and passive surveillance. Lots adjoining public open space should be avoided. Any lots adjoining public open should provide no, or low and transparent fencing.
- New road treatments and street furniture should be consistent with the existing styles of road treatments and street furniture found in Koo Wee Rup Township.
- Provide footpaths with a minimum width of 1.8 metres.
- The interface between development and grassland must be responsive to the bushfire risk.

### Figure 1

The land parcels affected by this schedule are identified as:

- No. 390, 394, 400 and 404 Rossiter Road, Koo Wee Rup.
- No. 22, 30 and 34 Sims Lane, Koo Wee Rup.
- No. 9A, 23 and 25 Supreme Close, Koo Wee Rup.


Rossiter Road
Townley Road
Townley Road
Sims Lane
County Court
Supreme Close
Dwyer Court
LEGEND
RESIDENTIAL DEVELOPMENT AREA [min. 600m² lots]
PUBLIC USE ZONE 2
INDUSTRIAL ZONE 1
GREEN WEDGE ZONE
NEIGHBOURHOOD RESIDENTIAL ZONE 1
INDICATIVE FUTURE ROAD ACCESS
ROAD ZONE
TREE RESERVE
PUBLIC OPEN SPACE : 5600m²
FUTURE STREET CONNECTION
EXISTING DWELLINGS
DEFENDABLE SPACE FROM BUSHFIRE HAZARD (19M WIDE)
BUSHFIRE HAZARD (GRASSLAND)
Cardinia
CONCEPT PLAN DP024
SIMS LANE KOO WEE RUP RESIDENTIAL PRECINCT
scale: NTS

30/07/2020
C235card

## SCHEDULE 22 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO22**.

**145 ROSSITER ROAD KOO WEE RUP (PART) - LOT 2, PS 321029**

## 1.0 Objectives

30/07/2020
C235card

- To integrate with the surrounding area by responding to existing neighbourhood character, enhancing the public realm and existing networks.
- To provide landscaping, open space, recreation and pedestrian/bicycle path facilities that is well connected, sustainable and meets the needs of the local residents.
- To create a subdivision layout and residential dwellings that protects Koo Wee Rup's environmental amenity.
- To ensure the stormwater is managed onsite up to the 1 in 100 year Average Recurrence Interval storm event to pre-development flow rates.

## 2.0 Requirement before a permit is granted

30/07/2020
C235card

A permit may be granted to use land, construct a building or construct or carry out works before a development plan has been prepared to the satisfaction of the responsible authority if the responsible authority is satisfied that the permit will not prejudice the future integrated use and development of the land.

## 3.0 Conditions and requirements for permits

30/07/2020
C235card

The following conditions and/or requirements apply to permits:

- The internal road network must be constructed to the satisfaction of the responsible authority during the first stage of development, extending from Rossiter Road through Lot 2, PS32129 – 145 Rossiter Road, Koo Wee Rup which is generally in accordance with the Site Development Plan labelled Diagram 1.
- Before the plan of subdivision is certified under the *Subdivision Act 1988*, the commencement of works (other than works required to comply with this condition), the owner of the land must prepare a Preliminary Site Investigation (PSI). The PSI must:
  - Be prepared by an environmental professional with suitable qualifications to the satisfaction of the responsible authority.
  - Be consistent with Schedule B2 of the National Environment Protection (Assessment of Site Contamination) Measure 1999.
  - Include any possible sources of offsite contamination from neighbouring land uses, both current and historical.
  - Confirm a risk ranking (e.g. low, medium and high) to the proposed land uses based on the historical land uses at the site and contaminants of potential concern. The risk ranking must be in accordance with the Department of Sustainability and Environment's Potentially Contaminated Land General Practice Note (June 2005).
  - Make an unequivocal statement that either:
    - The site is not likely to be contaminated to a level which would pose a significant risk to the environment or human health under the proposed use/development scenario. An environmental audit is not required; or
    - The site is potentially contaminated, or there is likelihood of contamination, that would pose a risk to the proposed use/development scenario. There is enough information to classify the site as potentially contaminated and an environmental audit is required.

- If a PSI recommends an environmental audit of all or part of the land is required, either of the following must be provided to the responsible authority prior to the certification of a plan of subdivision:
  - A certificate of environmental audit issued for the relevant land in accordance with Part1XD of the *Environmental Protection Act 1970*, or
  - A statement by an environmental auditor appointed under the *Environment Protection Act 1970*, in accordance with Part1XD of that Act that the environmental conditions of the relevant land are suitable for a sensitive use (with or without conditions on the use of the site).
    If a Statement of Environmental Audit is provided rather than a Certificate of Environmental Audit and the Statement of Environmental Audit indicates that the environmental conditions of the relevant land are suitable for a sensitive use subject to conditions, the owner of the land must enter into an agreement with the responsible authority under section 173 of the *Planning and Environment Act 1987* before the issue of a Statement of Compliance implementation of and on-going compliance with all conditions in the Statement of Environmental Audit; and the responsible authority's reasonable legal costs and expenses of drafting/reviewing and registering the agreement to be borne by the owner of the relevant land.
- Building envelopes must be in accordance with the requirements contained within this schedule and must form either a restriction on the certified plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is registered on the title to the land. The owner must pay for all reasonable costs (including legal costs) associated with preparing, reviewing, executing and registering the agreement on the certificate of title to the land (including those incurred by the responsible authority).
- A minimum of 3 metres from the front title boundaries of the lots on the western precinct boundary to be managed for the purposes of defendable space in the event of a bushfire, to be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is registered on the title to the land. The owner must pay for all reasonable costs (including legal costs) associated with preparing, reviewing, executing and registering the agreement on the certificate of title to the land (including those incurred by the responsible authority).
- Before the subdivision is certified, the open space on the subject land must be set aside and be vested in Cardinia Shire Council to the satisfaction of the responsible authority.

## 4.0 Requirements for development plan

30/07/2020
C235card

A development plan must include the following requirements, to the satisfaction of the responsible authority:

The development plan must be generally in accordance with the Site Development Plan labelled Diagram 1 to this Schedule.

### SUBDIVISION

- An indicative lot layout showing how the subdivision addresses the size, dimension and orientation of lots and includes:
  - The provision of a range of lot sizes.
  - The provision of 80 per cent of the lots greater than 700 square metres.
  - The avoidance of smaller lots of less than 600 square metres.
  - Lots to have a minimum width of 18 metres.

  - A transition to the green wedge land to the western property boundary through larger lots of greater than 1000 square metres.

- A landscape buffer of a minimum 10 metres wide along the western boundary abutting green wedge land, a landscape buffer of a minimum 12 metres along the Rossiter Road boundary and a landscape buffer of a minimum 10 metres along the northern boundary and subdivision interface with the constructed wetlands.
- A perimeter road adjacent to the landscape buffers along the western boundary, northern boundary, constructed wetlands and part of the eastern boundary adjoining the Public Park and Recreation Zone.
- A service road internal to the site north of Rossiter Road and the associated landscape buffer to provide vehicular access to lots addressing Rossiter Road.
- A legible and convenient road network and pedestrian/bicycle network demonstrating appropriate road layout, traffic management and construction standards.
- An indicative building envelope for each lot providing:
  - A minimum front setback of 7 metres.
  - Minimum side setbacks of 2.5 metres.
- Incorporate the driveway and boundary of the heritage overlay for 'Shepton Mallet'.
- Subdivision layout to be designed to overlook public spaces.

**STAGING**

- Details on the staging of the subdivision and anticipated timing of development.
- Open space to be delivered as part of the first stage.
- Construction of the internal road network to be delivered as part of the first stage of development, extending from Rossiter Road through Lot 2, PS32129 – 145 Rossiter Road, Koo Wee Rup.

**OPEN SPACE**

- The provision of land required for drainage by Melbourne Water to be provided in addition to the unencumbered public open space.
- Open space to be designed to adjoin a road reserve, other open space areas or Public Park and Recreation Zone along all boundaries and must avoid any side or rear fences of residential lots abutting reserves.
- Shared paths throughout the development to link the land to existing development to the north and east and to Rossiter Road.
- Provision of a shared pathway that connects with the Koo Wee Rup Rail Trail and Cochranes Park on the north-eastern boundary of the site.
- Multiple unencumbered local neighbourhood parks with minimum areas of 4000 square metres located generally in accordance with the Site Development Plan in Diagram 1 to this Schedule.
- Provision of a 3 metre shared pathway along the 12 metre wide tree reserve adjoining Rossiter Road that leads to Koo Wee Rup Town Centre.

**ENVIRONMENT AND LANDSCAPING**

- A **Bushfire Management Assessment** and **Bushfire Management Statement** prepared by a suitably qualified professional including:
  - Details of how the development plan and lot layout responds to the bushfire planning policy in the planning policy framework and results in development that achieves no more than a BAL-12.5 rating under AS 3959-2009.

- An **Environmental Management Plan** that addresses vegetation and trees to be retained and how vegetation removal on site will be avoided, and if it cannot be avoided, minimised or offset, including roadside vegetation, measures to protect the trees which includes buffer and tree protection zones, and provides:
  - A **flora and fauna assessment** (including a habitat hectare assessment) of the site prepared to the satisfaction of the responsible authority.
  - A targeted survey and plan for the Southern Brown Bandicoot and Growling Grass Frog by a suitable qualified environmental consultant during the summer period in consultation with the relevant responsible authority.
- A **Landscape Plan** that protects remnant vegetation and vegetation wetlands, manages defendable space areas and the Southern Brown Bandicoot and Growling Grass Frog habitats, and:
  - Includes a plan showing measures to implement Southern Brown Bandicoot and Growling Grass Frog protection including landscaping.
  - Ensures the protection and conservation of existing vegetation including street trees, landscaped buffers, roadside vegetation and grassed road verges.
  - Ensures that vegetation located within defendable space areas, as identified in Diagram 1 of this schedule, is appropriately managed to ensure that development achieves no more than a BAL-12.5 rating under AS 3959-2009.
  - Ensures the use of native vegetation in developments in all landscape plantings including connecting roads, reserves and roadsides.
  - Ensures the inclusion of street trees for shade and aesthetic quality at an early stage of development.
- A **Construction Management Plan** prepared by a suitably qualified professional that identifies methods to protect open space, remnant vegetation and aboriginal cultural heritage sites during construction.

**TRAFFIC AND TRANSPORT**

- An **Integrated Transport and Impact Assessment** prepared to determine the extent of mitigation works required for the development site and Rossiter Road to the satisfaction of the responsible authority and the relevant transport authority.
- A **Traffic Impact and Design Assessment**, showing arrangements for vehicle ingress and egress to the development, including the road layout, construction standards, traffic management, traffic volumes and design vehicle swept paths which includes waste and emergency vehicle access prepared to the satisfaction of the responsible authority and in consultation with the relevant transport authority.
- Design of local roads to provide:
  - A minimum width for paved surfaces for internal streets or carriageways of 7.3 metres to allow for parking on either side and access for emergency vehicles.
  - A minimum width of 16 metres for road reserves or 14 metres for roads adjoining open space reserves.
  - A design that excludes the use of cul-de-sacs.
  - Traffic Management devices required for roads over 180 metres in length.
  - A road network that provides for loading and unloading of vehicles and means of access to them including waste and emergency vehicles.

- A road network that provides a predominantly north-south and east-west road connections to assist with water fall and stormwater catchment to the north and west of the subject site.
- A boulevard entry to the site from Rossiter Road.

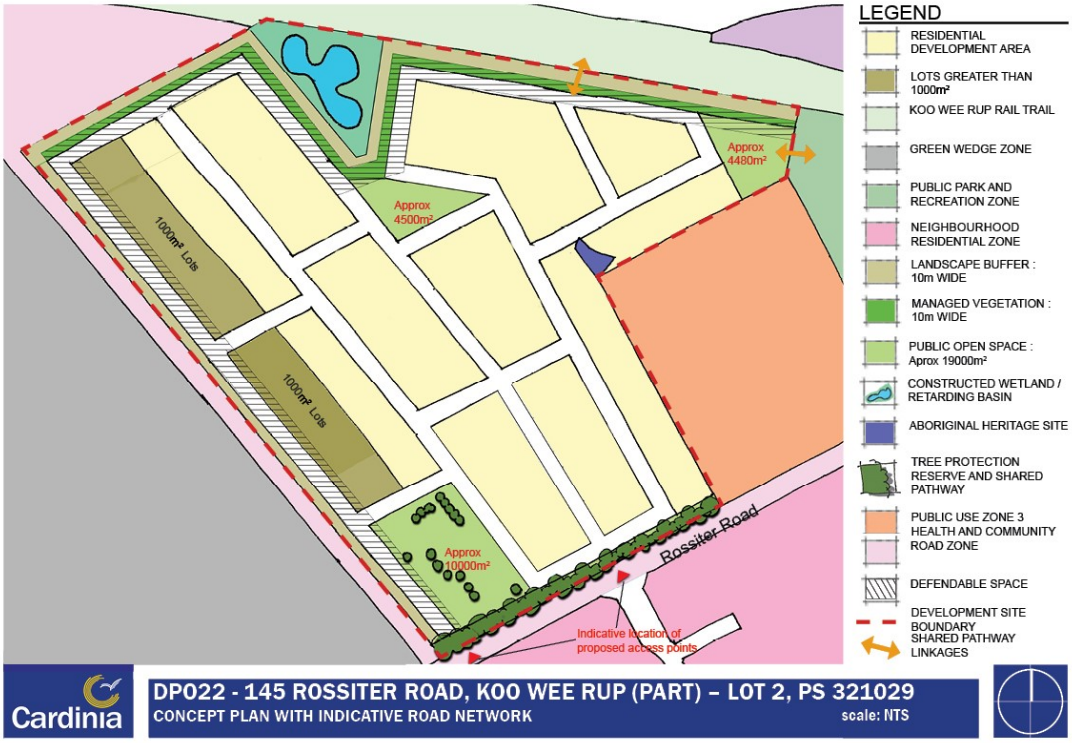
### INFRASTRUCTURE AND DRAINAGE

- A **Stormwater Management Plan** prepared to the satisfaction of the relevant water authority that includes a hydrogeological assessment, water sensitive urban design principles and a drainage and servicing assessment addressing all relevant drainage, flooding and water quality issues, and includes:
  - A **Fill Plan** which identifies the depth and fill material, and staging in a manner and in a time designed to minimise any adverse impact on the amenity of nearby areas, and the treatment and mitigation of the created level differences with the adjacent land on the western boundary.
- An **Acoustic Report** prepared by a suitably qualified professional, indicating any impacts of the Koo Wee Rup Bypass on future residential land and includes methods to address the amenity issues identified.
- Provision of utility service infrastructure required to service the development and details on the arrangements for the provision of infrastructure underground.
- Provision of a reticulated sewerage system.
- Provision and location of the gas transmission easement and drainage easement will be accommodated as part of the development.

### URBAN DESIGN AND CHARACTER

- Configure dwellings to maximize retention of existing vegetation and allow only one access driveway to a lot.
- Avoid front fences. If lots are fenced provide low front fences no more than 1.2 metres high.
- Respect and be sympathetic to the existing character consistent with the Koo Wee Rup Township Strategy.
- Provide footpaths with a minimum width of 1.8 metres.
- Lots interfacing Rossiter Road should provide active frontages facing Rossiter Road.

## Site Development Plan - Diagram 1



13/05/2022
C257card

## SCHEDULE 25 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO25**.

**BEACONSFIELD WOODLAND GROVE PRECINCT**

## 1.0 Objectives

13/05/2022
C257card

- To enhance the choice and diversity of housing opportunities and types, that are appropriate to the setting and achieve high quality amenity and urban design.
- To encourage and guide the re-development of land into an integrated medium density residential precinct that responds to the preferred landscaped character and enhances the public realm.
- To create a residential precinct that protects, and is sympathetic to, the Woods Street area environmental values, including the natural environment of the Cardinia Creek.
- To provide a pedestrian and cycling path network that is well connected, sustainable and meets the needs of the local residents.
- To promote development that enhances community and personal safety through interfaces that provide opportunity for passive surveillance of Cardinia Creek parklands and suitable landscaping.

## 2.0 Requirement before a permit is granted

13/05/2022
C257card

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority. Proposals must be accompanied by a report demonstrating that it will not prejudice the future development of the land in an integrated manner as identified by this schedule.

## 3.0 Conditions and requirements for permits

13/05/2022
C257card

The following conditions and/or requirements apply to permits:

Conditions:

- For subdivision applications: Before the plan of subdivision is certified, a building envelope plan must form either a restriction on the certified plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the Planning and Environment Act 1987 that is registered on the title to the land. The owner must pay for all reasonable costs (including legal costs) associated with preparing, reviewing, executing and registering the agreement on the certificate of title to the land (including those incurred by the responsible authority). The building envelope plan must be in accordance with the following building setbacks, as applicable:
  - 30 metre building setback from the top of bank of Cardinia Creek.
  - Within Precinct A, building setbacks from Woods Street of 4 metres are preferred.
  - Within Precinct B, building setbacks from Woods Street that graduate from 3 metres at the southern end to 4 metres at the northern end are preferred.
  - Within Precinct B, a minimum 1 metre building setback from the common boundary with the rail corridor at Lots 33 and 34 on LP2804 and Lots 4 and 5 on SP28567 is required, to allow for ongoing property maintenance without a requirement for access to the rail corridor.
  - Any building setback deemed necessary via the preparation of the Development Plan.
  - Any building setback deemed necessary via the assessment of a subdivision application.
- For development applications: Building must be setback in accordance with the following building setbacks, as applicable:
  - 30 metre building setback from the top of bank of Cardinia Creek.

- Within Precinct A, building setbacks from Woods Street of 4 metres are preferred.
- Within Precinct B, building setbacks from Woods Street that graduate from 3 metres at the southern end to 4 metres at the northern end are preferred.
- Within Precinct B, a minimum 1 metre building setback from the common boundary with the rail corridor at Lots 33 and 34 on LP2804 and Lots 4 and 5 on SP28567 is required, to allow for ongoing property maintenance without a requirement for access to the rail corridor.
- Any building setback deemed necessary via the preparation of the Development Plan.
- Any building setback deemed necessary via the assessment of a development application.

- Before the development starts, a landscape plan prepared by a person suitably qualified and experienced in landscape design to the satisfaction of the Responsible Authority and Melbourne Water, must be submitted to and approved by the Responsible Authority. When approved, the plan will be endorsed and will then form part of the permit. The plan must be drawn to scale with dimensions and three copies must be provided. The landscaping plan must be generally in accordance with the landscape concept plan contained within the approved Development Plan, and must show:
  - Staging of works, if applicable.
  - That the outcomes of any flora and fauna reports have been addressed.
  - A survey (including botanical names) of all existing vegetation to be retained and/or removed.
  - A weed management program which includes the following information:
    - botanical name of species targeted.
    - location.
    - method of control and timing of control.
  - Buildings and trees (including botanical names) on neighbouring properties within three metres of the boundary.
  - A 30 metre minimum development setback from Cardinia Creek top of bank to the satisfaction of Melbourne Water.
  - Details of surface finishes located on recreational pathways, maintenance access or any other pathways near waterways.
  - A planting schedule of all proposed trees, shrubs and ground covers which includes the following information:
    - botanical names.
    - common names.
    - pot size.
    - life-form.
    - quantities of each plant.
    - planting density (plants per square metre).
    - planting zones/locations (in plan and cross-section form in colour).
    - landscape treatments with specifications of products such as mulching and erosion control matting.

## 4.0 Requirements for development plan

13/05/2022
C257card

A development plan must include the following requirements to the satisfaction of the responsible authority :

### Environment

- A **flora and fauna assessment** of the precinct prepared by a suitably qualified person(s), that:
  - Provides a plan drawn to scale showing the boundaries of the precinct, existing vegetation and vegetation to be removed and retained.
  - Provides an assessment of the flora and fauna in the precinct including Ecological Vegetation Classes.
  - Assesses suitable habitat for threatened species in the precinct.
  - Location of any hollow bearing trees.
  - Provides a flora listing of each habitat patch.
- A targeted survey of threatened species prepared by a suitably qualified person(s) where suitable habitat is found in the precinct.
- A written explanation of the steps that have been taken to:
  - Avoid the removal, destruction or lopping of native vegetation and any other significant trees.
  - Minimise impacts from the removal, destruction or lopping of vegetation that cannot be avoided.
- An **arboricultural assessment** prepared by a suitably qualified person(s) in accordance with the methodology of AS4970-2009 that identifies any trees on the land and existing street trees, with descriptions that include species, extent, number, size (diameter at 1.4 metres above natural ground level), tree protection zones, assessment of tree health and retention value.

### Bushfire

- A **bushfire assessment**, including a bushfire hazard assessment, of the precinct prepared by a suitably qualified person to the satisfaction of the fire authority and the responsible authority, which includes details of how development will respond to bushfire planning policy set-out at Clause 13.02-1S of the planning scheme and demonstrate that development will be exposed to a radiant heat flux less than 12.5 kilowatts/square metre.

### Aboriginal Cultural Heritage

- An **Aboriginal cultural heritage assessment** prepared by a suitably qualified person(s), which includes recommendations for the protection of significant individual sites, where appropriate. A statement that any identified location(s) of any Aboriginal cultural heritage on the land will be required to be protected in accordance with a Cultural Heritage Management Plan (CHMP) at the planning permit stage, if required by the Aboriginal Heritage Act 2006.

### Traffic and Transport

- An **Integrated Transport and Impact Assessment** to the satisfaction of Head, Transport for Victoria and the Responsible Authority, providing specific detail on:
  - The impact of the proposed use and development on the operation of the Princes Highway/Beaconsfield Avenue and Princes Highway/Woods Street intersections.
  - The impacts on public safety.
  - Proposed mitigation works to address any unsatisfactory impacts.

- A **Traffic Management Plan** showing arrangement for vehicle ingress and egress to the development area, including the road layout, construction standards, traffic management which includes waste and emergency vehicle access.
- The provision of a clear legible and convenient pedestrian, bicycle and road network that:
  - Connects and integrates with existing networks, including pedestrian connections to Beaconsfield Station, from Woods Street to Cardinia Creek along Trythall Street and the northern east-west road reserve, and create new opportunities for improved pedestrian and cycling permeability in the future.
  - Provides for the construction of the following local roads generally in accordance with Figure 1 and Figure 2, or an alternate internal road layout, to the satisfaction of the Responsible Authority:
    - Precinct B:
      - The 3 metre wide north-south laneway, between the northern boundary of 87 Woods Street and Trythall Street, to be transferred to the front of the following lots to create a minimum 14.35 metre wide road (Brisbane Street):
        - Lots 1 & 2 on TP94444.
        - Lots 1 & 2 on TP121027.
        - Lots 1 & 2 on TP93165.
        - Lots 25, 32 & 33 on LP2804.
      - Bollards to prevent vehicle access to the remaining portion of the laneway must be provided at the Beaconsfield Avenue service lane.
      - A 10 metre wide east-west service lane along the northern side of Beaconsfield Avenue connecting to Brisbane Street from Wood Street.
      - Access from Brisbane Street to the rail corridor must not be granted without prior consent from VicTrack and the rail operator – Metro Trains Melbourne.
      - Provides internal street pavement widths of 7.5 metres between invert of kerb with underground drainage, footpaths and nature strips. Road reserves may need to be widened.
  - Provide only one vehicle crossover or access point per lot that does not exceed 40% of the frontage. An additional driveway can be considered for consolidated lots.
  - Vehicle crossovers must be located from the side streets wherever possible to reduce the number of crossovers from Woods Street. Provide vehicle access to Lot 12 on LP2804 and Lots 13 and 18 on LP2805 from the east-west roads.
  - Provide traffic management devices on roads with lengths over 180 metres, where appropriate.

### Infrastructure and drainage

- The provision of utility services infrastructure required to service the development area and details of the arrangements for the provision of the infrastructure. The land must be connected to a reticulated sewerage system of a sewerage authority.
- A **Fill Plan** which identifies the depth and fill material, and staging in a manner and time designed to minimise any adverse impacts on the amenity of nearby areas, must be submitted to the satisfaction of the Responsible Authority and Melbourne Water.
- A **drainage strategy** for the development plan area to the satisfaction of Melbourne Water and the Responsible Authority showing:

- Filling of residential lots with roads or accessways providing for overland flows and/or raised minimum floor levels for development.
- A coordinated approach to providing drainage infrastructure which must include stormwater quality treatment to best practice guidelines.
- A 30 metre minimum development setback from Cardinia Creek top of bank or otherwise to the satisfaction of Melbourne Water.
- Within Precinct B, there should be no drainage to the rail corridor without the consent of VicTrack and the rail operator - Metro Trains Melbourne.

### Public Open Space and landscaping

- A **landscape concept plan** to the satisfaction of Melbourne Water and the Responsible Authority showing:
  - Location, preservation and protection of significant trees/vegetation, existing street trees, roadside vegetation and grassed road verges.
  - Location, preservation and protection of any threatened species, where appropriate.
  - Location of landscaped areas.
  - Details of the landscape themes.
  - Landscape design incorporating a consistent streetscape theme.
  - New plantings consistent with existing species of vegetation within connecting roads and reserves.
  - Provision of street trees (minimum pot size of 45L when planted) for shade and aesthetic quality at an early stage of development – to be planted or bonded to the satisfaction of the Responsible Authority prior to Statement of Compliance of a subdivision.

### Urban Design

- Dwelling facades that address a street or the public realm should provide passive surveillance opportunities from these dwellings to the adjoining streets or public realm.
- Front fences should be avoided, or low or transparent front fences that allow views of front gardens should be provided.
- New road treatments and street furniture should be consistent with the existing styles of road treatments and street furniture found in Beaconsfield town centre.
- New development should not adversely impact the heritage significance of a heritage place.

### Housing

- Lot sizes must support a medium density housing precinct.
- Within Precinct A, building setbacks from Woods Street of 4 metres are preferred.
- Within Precinct B, building setbacks from Woods Street that graduate from 3 metres at the southern end to 4 metres at the northern end are preferred.
- Within Precinct B, a minimum 1 metre building setback from the common boundary with the rail corridor at Lots 33 and 34 on LP2804 and Lots 4 and 5 on SP28567 is required, to allow for ongoing property maintenance without a requirement for access to the rail corridor.
- Within Precinct B, trees/landscaping species are to not overhang onto railway land or have potential to disturb railway operations.
- Within Precinct B, the fencing along the rail corridor should be appropriately designed to address safety and noise concerns.

- Within Precinct B, there should be no drainage to the rail corridor without the consent of VicTrack and the rail operator - Metro Trains Melbourne.

### Staging

- Anticipated sequencing and timing of development of the precinct.

### Figure 1

The land parcels affected by this schedule are identified as No.s 53-56, 67-71, 73-75, 81, 83, 85, 87 Woods Street

## Woodland Grove Precinct - Indicative Concept Plan - DPO25

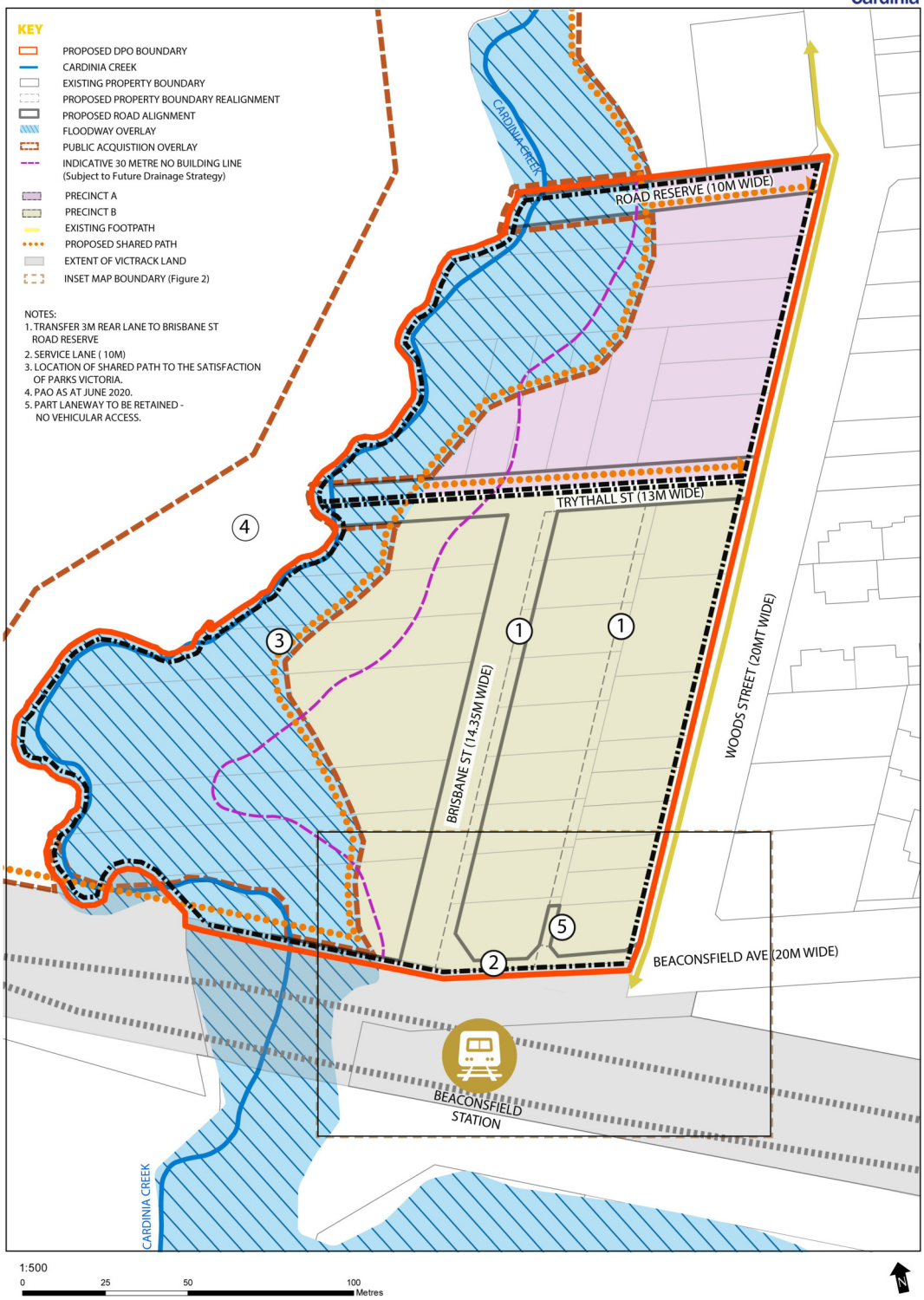
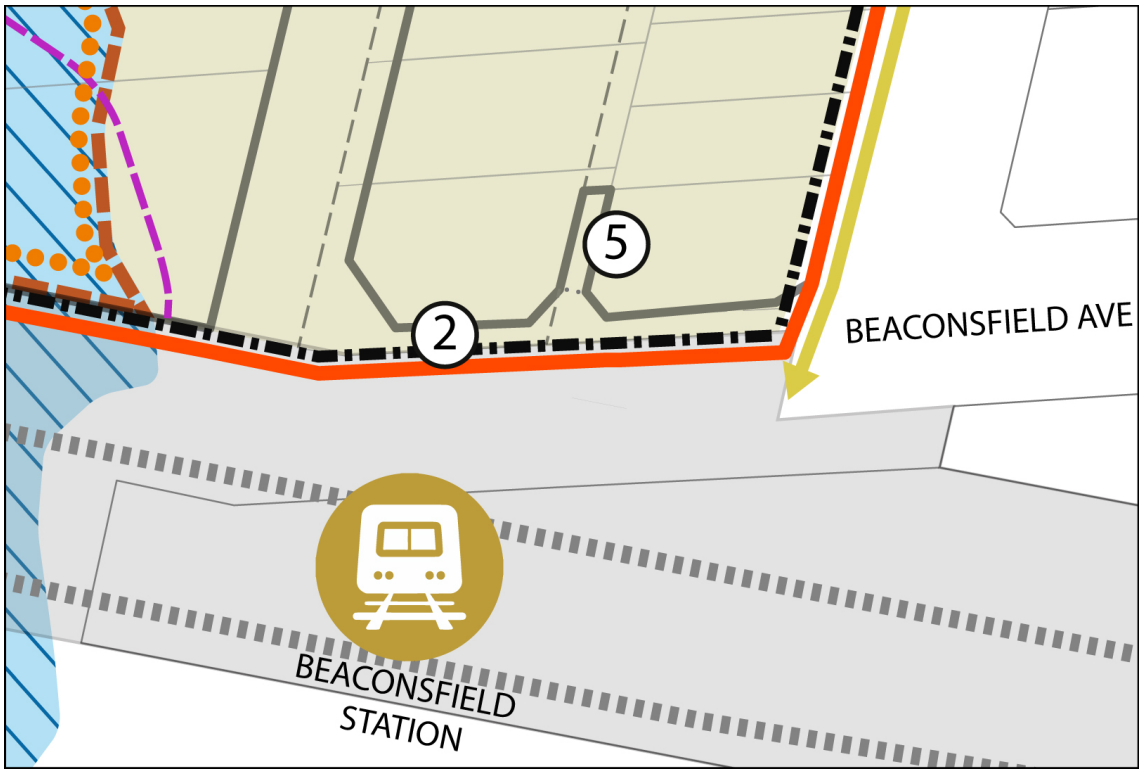


**Figure 2**



# 44 LAND MANAGEMENT OVERLAYS

19/01/2006
VC37

# 44.01 EROSION MANAGEMENT OVERLAY

06/09/2021
VC171

Shown on the planning scheme map as **EMO** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To protect areas prone to erosion, landslip, other land degradation or coastal processes by minimising land disturbance and inappropriate development.

## 44.01-1 Erosion management objectives and statement of risk

31/07/2018
VC148

A schedule to this overlay may contain:

- Erosion management objectives to be achieved.
- A statement of risk.

## 44.01-2 Buildings and works

15/10/2026
VC306

A permit is required to construct a building or construct or carry out works, including:

- Roadworks (other than roadworks constructed or carried out by or on behalf of the Head, Transport for Victoria).
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- Buildings and works associated with a movable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.
- Buildings and works associated with a movable building constructed for a community service and to be used or intended to be used to provide temporary accommodation on a non-profit basis, if that building:
  - Has a floor area not exceeding 45 square metres.
  - Is located on the same lot as an existing dwelling.
  - Is the only movable building on the lot.
- Any other matter specified in clause 62.02-2 if specified in a schedule to this overlay.

This does not apply if a schedule to this overlay specifically states that a permit is not required.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a fence. | Clause 59.05 |
| Construct a building or construct or carry out works for:<br>▪ A carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ A rainwater tank.<br>The buildings and works must be associated with a dwelling or a small second dwelling. | Clause 59.05 |

## 44.01-3 Vegetation removal

31/07/2018
VC148

A permit is required to remove, destroy or lop any vegetation. This does not apply:

- If a schedule to this overlay specifically states that a permit is not required.
- If the table to Clause 44.01-4 specifically states that a permit is not required.
- To the removal, destruction or lopping of native vegetation in accordance with a native vegetation precinct plan specified in the schedule to Clause 52.16.

## 44.01-4 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Emergency works** | Vegetation that is to be removed, destroyed or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making of a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ is ground fuel within 30 metres of a building and is vegetation other than native vegetation;<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by, or on behalf of that authority in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005.* |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Greenhouse gas sequestration and exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008.* |
| **Land management or directions notice** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Noxious weeds** | Vegetation that is a noxious weed subject of a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (*Cuscuta australis*). |
| **Pest animal burrows** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows.<br>In the case of native vegetation the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988* is required before the vegetation can be removed, destroyed or lopped. |
| **Planted vegetation** | Vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |
| **Railways** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established vegetation, and is:<br>▪ bracken *(Pteridium esculentum)*; or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land on which vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing public road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of vegetation which does not include a tree. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ 15 trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resources agreement under Part 6 of the *Traditional Owners Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional owners Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure. |

## 44.01-5 Subdivision

31/07/2018
VC148

A permit is required to subdivide land.

## 44.01-6 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay and information showing:

- The existing site conditions, including land gradient and the extent of any existing erosion, landslip or other land degradation.
- The extent of any proposed earthworks.
- The means proposed to stabilise disturbed areas.
- Any other application requirements specified in a schedule to this overlay.

## 44.01-7 Exemption from notice and review

15/09/2022
VC225

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 44.01-8 Decision guidelines

14/01/2025
VC237

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Regional Catchment Strategy (*Catchment and Land Protection Act 1994*).

- *Civil Construction, Building and Demolition Guide* (Publication 1834, Environment Protection Authority, November 2020).
- *Control of Erosion on Construction Sites* (Michael Ransom and Soil Conservation Authority, 1984).
- *Your Dam: an Asset or a Liability* (Department of Conservation and Natural Resources and Rural Water Corporation Victoria, 1993).
- Any proposed measures to manage concentrated runoff and site drainage.
- Any proposed measures to minimise the extent of soil disturbance.
- Whether the removal of vegetation will increase the possibility of erosion, the susceptibility to landslip or other land degradation processes, and whether such removal is consistent with sustainable land management.
- The need to stabilise disturbed areas by engineering works or revegetation.
- Whether the land is capable of providing a building envelope which is not subject to high or severe erosion concern.
- Whether buildings or works are likely to cause erosion or landslip.
- Whether access and servicing of the site or building envelope is likely to result in erosion or landslip.
- Land Capability Report (if prepared) as developed by the Department of Energy, Environment and Climate Action.
- The need to remove, destroy or lop vegetation to a create defendable space to reduce the risk of bushfire to life and property.
- Any technical information or reports required to be provided by a schedule to this overlay.
- Any other matters specified in a schedule to this overlay.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 44.01 EROSION MANAGEMENT OVERLAY

Shown on the planning scheme map as **EMO**.

## 1.0 Erosion management objectives to be achieved

10/06/2021
C254card

None specified.

## 2.0 Statement of risk

10/06/2021
C254card

None specified.

## 3.0 Permit requirement

10/06/2021
C254card

None specified.

## 4.0 Application requirements

10/06/2021
C254card

None specified.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

# 44.03 FLOODWAY OVERLAY

01/07/2021
VC203

Shown on the planning scheme map as **FO** or **RFO** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify waterways, major floodpaths, drainage depressions and high hazard areas which have the greatest risk and frequency of being affected by flooding.

To ensure that any development maintains the free passage and temporary storage of floodwater, minimises flood damage and is compatible with flood hazard, local drainage conditions and the minimisation of soil erosion, sedimentation and silting.

To reflect any declarations under Division 4 of Part 10 of the *Water Act, 1989* if a declaration has been made.

To protect water quality and waterways as natural resources by managing urban stormwater, protecting water supply catchment areas, and managing saline discharges to minimise the risks to the environmental quality of water and groundwater.

To ensure that development maintains or improves river and wetland health, waterway protection and flood plain health.

## 44.03-1 Floodway objectives and statement of risk

31/07/2018
VC148

A schedule to this overlay may contain:

- Floodway management objectives to be achieved.
- A statement of risk.

## 44.03-2 Buildings and works

15/10/2026
VC306

A permit is required to construct a building or to construct or carry out works, including:

- A fence.
- Roadworks, if the water flow path is redirected or obstructed.
- Bicycle pathways and trails.
- Public toilets.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- Rainwater tank with a capacity of not more than 10,000 litres.
- A pergola or verandah, including an open-sided pergola or verandah to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
- A deck, including a deck to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level.
- A disabled access ramp.
- Buildings and works associated with a movable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.
- Buildings and works associated with a movable building constructed for a community service and to be used or intended to be used to provide temporary accommodation on a non-profit basis, if that building:
  - Has a floor area not exceeding 45 square metres.

- Is located on the same lot as an existing dwelling.
- Is the only movable building on the lot.

This does not apply:

- If a schedule to this overlay specifically states that a permit is not required.
- To roadworks or bicycle paths and trails constructed or carried out by or on behalf of the Head, Transport for Victoria, to the satisfaction of the relevant floodplain management authority.
- To flood mitigation works carried out by the responsible authority or floodplain management authority.
- To the following works in accordance with plans prepared to the satisfaction of the responsible authority:
  - The laying of underground sewerage, water and gas mains, oil pipelines, underground telephone lines and underground power lines provided they do not alter the topography of the land.
  - The erection of telephone or power lines provided they do not involve the construction of towers or poles.
- To post and wire and post and rail fencing.

## 44.03-3 Subdivision

31/07/2018
VC148

A permit is required to subdivide land. A permit may only be granted to subdivide land if the following apply:

- The subdivision does not create any new lots, which are entirely within this overlay. This does not apply if the subdivision creates a lot, which by agreement between the owner and the relevant floodplain management authority, is to be transferred to an authority for a public purpose.
- The subdivision is the resubdivision of existing lots and the number of lots is not increased, unless a local floodplain development plan incorporated into this scheme specifically provides otherwise.

## 44.03-4 Application requirements

31/07/2018
VC148

### Local floodplain development plan

If a local floodplain development plan has been developed for the area and has been incorporated into this scheme, an application must be consistent with the plan.

### Flood risk report

If a local floodplain development plan for the area has not been incorporated into this scheme, an application must be accompanied by a flood risk report to the satisfaction of the responsible authority, which must consider the following, where applicable:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this overlay.
- The susceptibility of the development to flooding and flood damage.
- The potential flood risk to life, health and safety associated with the development. Flood risk factors to consider include:

  - The frequency, duration, extent, depth and velocity of flooding of the site and accessway.
  - The flood warning time available.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.
- The effect of the development on redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.
- The effects of the development on river health values including wetlands, natural habitat, stream stability, erosion, environmental flows, water quality and sites of scientific significance.
- An application must be accompanied by any information specified in a schedule to this overlay.

## 44.03-5 Exemption from notice and review

31/07/2018
VC148

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 44.03-6 Referral of applications

31/07/2018
VC148

An application must be referred to the relevant floodplain management authority under Section 55 of the Act unless in the opinion of the responsible authority the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the floodplain management authority.

## 44.03-7 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The local floodplain development plan or flood risk report.
- Any comments of the relevant floodplain management authority.
- The Victorian River Health Strategy (2002) and any relevant regional river health strategy and associated wetland plan.
- Any other matters specified in a schedule to this overlay.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 44.03 FLOODWAY OVERLAY

Shown on the planning scheme map as **FO** or **RFO**.

## 1.0 Floodway objectives to be achieved

10/06/2021
C254card

None specified.

## 2.0 Statement of risk

10/06/2021
C254card

None specified.

## 3.0 Permit requirement

10/06/2021
C254card

None specified.

## 4.0 Application requirements

10/06/2021
C254card

None specified.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

## 6.0 Permit exemption

Roadwork limited to routine repair and maintenance including resurfacing of the existing road within the declared road boundary of Princes Freeway or any works agreed to in writing with the relevant Floodplain Management Authority.

# 44.04 LAND SUBJECT TO INUNDATION OVERLAY

06/09/2021
VC171

Shown on the planning scheme map as **LSIO** with a number (if shown).

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify flood prone land in a riverine or coastal area affected by the 1 in 100 (1 per cent Annual Exceedance Probability) year flood or any other area determined by the floodplain management authority.

To ensure that development maintains the free passage and temporary storage of floodwaters, minimises flood damage, responds to the flood hazard and local drainage conditions and will not cause any significant rise in flood level or flow velocity.

To minimise the potential flood risk to life, health and safety associated with development.

To reflect a declaration under Division 4 of Part 10 of the *Water Act, 1989*.

To protect water quality and waterways as natural resources by managing urban stormwater, protecting water supply catchment areas, and managing saline discharges to minimise the risks to the environmental quality of water and groundwater.

To ensure that development maintains or improves river, marine, coastal and wetland health, waterway protection and floodplain health.

## 44.04-1 Land subject to inundation objectives and statement of risk

24/01/2020
VC160

A schedule to this overlay may contain:

- Land subject to inundation management objectives to be achieved.
- A statement of risk.

## 44.04-2 Buildings and works

15/10/2026
VC306

A permit is required to construct a building or to construct or carry out works, including:

- A fence.
- Roadworks, if the water flow path is redirected or obstructed.
- Bicycle pathways and trails.
- Public toilets.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- Rainwater tank with a capacity of not more than 10,000 litres.
- A pergola or verandah, including an open-sided pergola or verandah to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
- A deck, including a deck to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level.
- A disabled access ramp.
- Buildings and works associated with a movable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.
- Buildings and works associated with a movable building constructed for a community service and to be used or intended to be used to provide temporary accommodation on a non-profit basis, if that building:

- Has a floor area not exceeding 45 square metres.
- Is located on the same lot as an existing dwelling.
- Is the only movable building on the lot.

This does not apply:

- If a schedule to this overlay specifically states that a permit is not required.
- To roadworks or bicycle paths and trails constructed or carried out by or on behalf of the Head, Transport for Victoria, to the satisfaction of the relevant floodplain management authority.
- To flood mitigation works carried out by the responsible authority or floodplain management authority.
- To the following works in accordance with plans prepared to the satisfaction of the responsible authority:
  - The laying of underground sewerage, water and gas mains, oil pipelines, underground telephone lines and underground power lines provided they do not alter the topography of the land.
  - The erection of telephone or power lines provided they do not involve the construction of towers or poles.
- To post and wire and post and rail fencing.

### 44.04-3 Subdivision

31/07/2018
VC148

A permit is required to subdivide land.

### 44.04-4 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

### 44.04-5 Local floodplain development plan

31/07/2018
VC148

If a local floodplain development plan has been developed for the area and has been incorporated into this scheme, an application must be consistent with the plan.

### 44.04-6 Exemption from notice and review

31/07/2018
VC148

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### 44.04-7 Referral of applications

31/07/2018
VC148

An application must be referred to the relevant floodplain management authority under Section 55 of the Act unless in the opinion of the responsible authority, the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the floodplain management authority.

### 44.04-8 Decision guidelines

06/09/2021
VC171

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any local floodplain development plan.

- Any comments from the relevant floodplain management authority.
- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this overlay.
- Alternative design or flood proofing responses.
- The susceptibility of the development to flooding and flood damage.
- The potential flood risk to life, health and safety associated with the development. Flood risk factors to consider include:
  - The frequency, duration, extent, depth and velocity of flooding of the site and accessway.
  - The flood warning time available.
  - Tidal patterns.
  - Coastal inundation and erosion.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.
- The effect of the development on redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.
- The effect of the development on river, marine and coastal health values including wetlands, natural habitat, stream stability, erosion, environmental flows, water quality, estuaries and sites of scientific significance.
- Any other matters specified in a schedule to this overlay.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 44.04 LAND SUBJECT TO INUNDATION OVERLAY

Shown on the planning scheme map as **LSIO**.

## 1.0 Land subject to inundation objectives to be achieved

10/06/2021
C254card

None specified.

## 2.0 Statement of risk

10/06/2021
C254card

None specified.

## 3.0 Permit requirement

10/06/2021
C254card

A permit is not required to construct or carry out:

- A dwelling and extensions to an existing dwelling (including outbuildings and fencing) on a lot of 1500 square metres or less in a Residential 1 Zone, Urban Growth Zone, comprehensive Development Zone, General Residential Zone, Neighbourhood Residential Zone or Residential Growth Zone shown on a plan of subdivision registered after 17 March 2005.
- An extension to an existing dwelling, provided the proposed floor level is at or above the existing floor level.
- Works ancillary to an existing dwelling, including landscaping, a pergola, driveway, verandah, barbeque and water tank.
- An open building with no walls.
- An open-style fence.
- A tennis court at natural surface level with curtain fencing.
- A below-ground swimming pool.
- Earthworks for the purpose of constructing a swimming pool or spa and associated mechanical and safety equipment if associated with an existing dwelling on the same lot."
- A non-habitable building or extension to a non-habitable building, with concrete floors, provided the floor levels are at least 300 mm above the flood level.
- A non-habitable building or extension to a non-habitable building, with dirt floors, provided the floor levels are at least 150 mm above the flood level.
- A footpath, bicycle path or elevated boardwalk, provided it is at least 300 mm above the flood level.
- A radio mast.
- A sign on a post or attached to a building.
- An upper storey extension or alteration to an existing building.
- A replacement fence of the same material as the existing fence.
- An aviary or other enclosure for domestic animals.
- An agricultural or farm building with permanent openings on all sides such as a hay shed, stockyards or covered horse stables.
- Earthworks associated with the construction of a dam, provided no fill is imported to the site and no embankment is above ground level.
- A picnic shelter.

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 44.04, in addition to those specified in Clause 44.04 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- An application to construct a building or construct or carry out works must be accompanied by four sets of plans drawn to scale which show:
  - The boundaries and dimensions of the site.
  - Relevant ground levels, to Australian Height Datum, taken by a licensed surveyor.
  - The layout of existing and proposed buildings and works.
  - Floor levels of any existing and proposed buildings, to Australian Height Datum, taken by a licensed surveyor.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

### 6.0 Referral of applications

An application to construct a building or construct or carry out works or an application to amend a permit does not have to be referred to the floodplain management authority if the application:

- Is accompanied by the relevant floodplain management authority's written approval. The written approval must:
  - Be granted not more than three months prior to lodging with the responsible authority.
  - Quote the reference number of the approved plans.
  - State the applicable flood level and any required floor levels.
- Is in accordance with an adopted local floodplain development plan.
- Complies with a building envelope, filling levels and floor levels specified by Melbourne Water in the previous six months.

### 7.0 Permit exemption

Roadwork limited to routine repair and maintenance including resurfacing of the existing road within the declared road boundary of Princes Freeway or any works agreed to in writing with the relevant Floodplain Management Authority.

## 44.05 SPECIAL BUILDING OVERLAY

01/07/2021
VC203

Shown on the planning scheme map as **SBO** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify land in urban areas liable to inundation by overland flows from the urban drainage system as determined by, or in consultation with, the floodplain management authority.

To ensure that development maintains the free passage and temporary storage of floodwaters, minimises flood damage, is compatible with the flood hazard and local drainage conditions and will not cause any significant rise in flood level or flow velocity.

To protect water quality and waterways as natural resources by managing urban stormwater, protecting water supply catchment areas, and managing saline discharges to minimise the risks to the environmental quality of water and groundwater.

### 44.05-1 Flooding management objectives and statement of risk

31/07/2018
VC148

A schedule to this overlay may contain:

- Flooding management objectives to be achieved.
- A statement of risk.

### 44.05-2 Buildings and works

15/10/2026
VC306

A permit is required to construct a building or to construct or carry out works, including:

- A fence.
- Roadworks, if the water flow path is redirected or obstructed.
- Bicycle pathways and trails.
- Public toilets.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- A rainwater tank with a capacity of not more than 10,000 litres.
- A pergola or verandah, including an open-sided pergola or verandah to a dwelling or small second dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
- A deck, including a deck to a dwelling or small second dwelling with a finished floor level not more than 800mm above ground level.
- A disabled access ramp.
- Buildings and works associated with a movable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.
- Buildings and works associated with a movable building constructed for a community service and to be used or intended to be used to provide temporary accommodation on a non-profit basis, if that building:
  - Has a floor area not exceeding 45 square metres.
  - Is located on the same lot as an existing dwelling.
  - Is the only movable building on the lot.

This does not apply:

- If a schedule to this overlay specifically states that a permit is not required.
- To roadworks or bicycle paths and trails constructed or carried out by or on behalf of the Head, Transport for Victoria, to the satisfaction of the relevant floodplain management authority.
- To flood mitigation works carried out by the responsible authority or floodplain management authority.
- To the following works in accordance with plans prepared to the satisfaction of the responsible authority:
  - The laying of underground sewerage, water and gas mains, oil pipelines, underground telephone lines and underground power lines provided they do not alter the topography of the land.
  - The erection of telephone or power lines provided they do not involve the construction of towers or poles designed to operate at more than 66,000 volts.
- To landscaping, driveways, vehicle cross overs, footpaths or bicycle paths if there is no significant change to existing surface levels, or if the relevant floodplain management authority has agreed in writing that the flowpath is not obstructed.
- To an extension of less than 20 square metres in floor area to an existing building (not including an out-building), where the floor levels are constructed to at least 300mm above the flood level or if the relevant floodplain management authority has agreed in writing that the flowpath is not obstructed.
- To an upper storey extension to an existing building.
- To an alteration to an existing building where the original building footprint remains the same and floor levels are constructed to at least 300mm above flood level.
- To an out-building (including replacement of an existing building) if the out-building is less than 10 square metres in floor area and constructed to at least 150mm above the flood level or the relevant floodplain management authority has agreed in writing that the flowpath is not obstructed.
- To a replacement building (not including an out-building) if it is constructed to at least 300mm above the flood level and the original building footprint remains the same. The responsible authority may require evidence of the existing building envelope.
- To fencing with at least 25% openings and with the plinth at least 300mm above the flood level.
- To a replacement fence in the same location and of the same type and materials as the existing fence.
- To a pergola or an open deck area with unenclosed foundations.
- To a carport constructed over an existing carspace.
- To an in-ground swimming pool and associated security fencing, where the perimeter edging of the pool is constructed at natural surface levels and excavated material is removed from the flowpath.
- To a tennis court at existing surface level with fencing designed to minimise obstruction to flows.
- To an aviary or other enclosure for a domestic animal if it is less than 10 square metres in floor area at ground level.
- To open sided verandahs, open sided picnic shelters, barbeques and park furniture (excluding playground equipment) if there is less than 30mm change to existing surface levels.
- To radio masts, light poles or signs on posts or attached to buildings.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works. | Clause 59.08 |

**44.05-3**

16/10/2025
VC288

## Subdivision

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Any of the following classes of subdivision:<br>▪ Subdivide land to realign the common boundary between two lots where the area of either lot is reduced by less than 15 per cent and the general direction of the common boundary does not change.<br>▪ Subdivide land into lots each containing an existing building or car parking space where:<br>– The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>– An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision.<br>▪ Subdivide land into two lots if:<br>– The construction of a building or the construction or carrying out of works on the land is approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– The construction or carrying out of the approved building or works on the land has started lawfully.<br>– The subdivision does not create a vacant lot. | Clause 59.08 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.08 |

## 44.05-4 Application requirements

31/07/2018
VC148

Unless otherwise agreed in writing by the relevant floodplain management authority, an application to construct a building or construct or carry out works must be accompanied by a site plan which shows, as appropriate:

- The boundaries and dimensions of the site.
- Relevant existing and proposed ground levels, to Australian Height Datum, taken by or under the direction or supervision of a licensed land surveyor.
- The layout, size and use of existing and proposed buildings and works, including vehicle parking areas.
- Floor levels of any existing and proposed buildings to Australian Height Datum.
- Cross sectional details of any basement entry ramps and other basement entries to Australian Height Datum, showing floor levels of entry and exit areas and drainage details.
- Any other application requirements specified in a schedule to this overlay.

### Local floodplain development plan

If a local floodplain development plan has been developed for the area and has been incorporated into this scheme, an application must be consistent with the plan.

## 44.05-5 Exemption from notice and review

31/07/2018
VC148

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 44.05-6 Referral of applications

31/07/2018
VC148

An application must be referred to the relevant floodplain management authority under Section 55 of the Act unless in the opinion of the responsible authority, the proposal satisfies requirements or conditions previously agreed to in writing between the responsible authority and the floodplain management authority.

## 44.05-7 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any local floodplain development plan.
- Any comments from the relevant floodplain management authority.
- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this overlay.
- The susceptibility of the development to flooding and flood damage.
- Flood risk factors to consider include:
  - The frequency, duration, extent, depth and velocity of flooding of the site and accessway.
  - The flood warning time available.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.

- The effect of the development on redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.
- Any other matters specified in a schedule to this overlay.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 44.05 SPECIAL BUILDING OVERLAY

Shown on the planning scheme map as **SBO.**

## 1.0 Flooding management objectives to be achieved

10/06/2021
C254card

None specified.

## 2.0 Statement of risk

10/06/2021
C254card

None specified.

## 3.0 Permit requirement

10/06/2021
C254card

None specified.

## 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 44.05, in addition to those specified in Clause 44.05 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- An application to construct a building or construct or carry out works must be accompanied by four sets of plans drawn to scale which show:
  - The boundaries and dimensions of the site.
  - Relevant ground levels, to Australian Height Datum, taken by a licensed surveyor.
  - The layout of existing and proposed buildings and works.
  - Floor levels of any existing and proposed buildings, to Australian Height Datum, taken by a licensed surveyor.

## 5.0 Decision guidelines

10/06/2021
C254card

None specified.

## 6.0 Referral of applications

An application to construct a building or construct or carry out works or an application to amend a permit does not have to be referred to the floodplain management authority if the application:

- Is accompanied by the relevant floodplain management authority's written approval. The written approval must:
  - Be granted not more than three months prior to lodging with the responsible authority.
  - Quote the reference number of the approved plans.
  - State the applicable flood level and any required floor levels.
- Is in accordance with an adopted local floodplain development plan.

# 44.06 BUSHFIRE MANAGEMENT OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **BMO** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To ensure that the development of land prioritises the protection of human life and strengthens community resilience to bushfire.

To identify areas where the bushfire hazard warrants bushfire protection measures to be implemented.

To ensure development is only permitted where the risk to life and property from bushfire can be reduced to an acceptable level.

## 44.06-1 Bushfire management objectives and application of schedules

19/09/2017
VC132

A schedule to this overlay must contain a statement of the bushfire management objectives to be achieved for the area affected by the schedule and when the requirements within it apply.

## 44.06-2 Permit requirement

15/10/2026
VC306

### Subdivision

A permit is required to subdivide land. This does not apply if a schedule to this overlay specifically states that a permit is not required.

### Buildings and works

A permit is required to construct a building or construct or carry out works associated with:

- the following uses:
  - Accommodation (including a movable unit as defined under the *Housing Act 1983*)
  - Education centre
  - Hospital
  - Industry
  - Leisure and recreation
  - Office
  - Place of assembly
  - Retail premises
  - Service station
  - Timber production
  - Warehouse.
- a movable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.

This does not apply to any of the following:

- If a schedule to this overlay specifically states that a permit is not required.
- A building or works consistent with an agreement under section 173 of the Act prepared in accordance with a condition of permit issued under the requirements of clause 44.06-5.

- An alteration or extension to an existing dwelling or small second dwelling provided the gross floor area of the building is not increased by more than 50 percent.
- A building or works with a floor area of less than 100 square metres not used for accommodation and ancillary to a dwelling.
- The construction or carrying out works associated with the use of land for an existing dwelling or small second dwelling, other than works associated with the construction of a building for which a permit is required under this clause or a vehicle accessway.
- An alteration or extension to an existing building (excluding a dwelling and a small second dwelling) provided the gross floor area is not increased by more than 10 percent.
- A building or works associated with Timber production provided the buildings or works are not within 150 metres of Accommodation or land zoned for residential or rural residential purposes.

## 44.06-3 Application requirements

05/05/2026
VC248

Unless a schedule to this overlay specifies different requirements, an application must be accompanied by:

- A **bushfire hazard site assessment** including a plan that describes the bushfire hazard within 150 metres of the proposed development. The description of the hazard must be prepared in accordance with Sections 2.2.3 to 2.2.5 of AS3959:2018 *Construction of buildings in bushfire prone areas* (Standards Australia) excluding paragraph (a) of section 2.2.3.2. Photographs or other techniques may be used to assist in describing the bushfire hazard.
- A **bushfire hazard landscape assessment** including a plan that describes the bushfire hazard of the general locality more than 150 metres from the site. Photographs or other techniques may be used to assist in describing the bushfire hazard. This requirement does not apply to a dwelling that includes all of the approved measures specified in clause 53.02-3.
- A **bushfire management statement** describing how the proposed development responds to the requirements in this clause and clause 53.02. If the application proposes an alternative measure, the bushfire management statement must explain how the alternative measure meets the relevant objective.
- A **bushfire management plan** showing the bushfire protection measures that are to be applied to the development.

If in the opinion of the responsible authority any part of these requirements is not relevant to the assessment of an application, the responsible authority may waive, vary or reduce the requirement.

## 44.06-4 Requirements of Clause 53.02

05/05/2026
VC248

An application must meet the requirements of clause 53.02 unless the application meets all of the requirements specified in a schedule to this overlay.

A schedule to this overlay may specify substitute approved measures, additional alternative measures and additional or substitute decision guidelines for the purposes of clause 53.02.

## 44.06-5 Mandatory condition

05/05/2026
VC248

### Subdivision

A permit which creates a lot for a single dwelling on land zoned for residential or rural residential purposes must include the following condition:

*"Before the statement of compliance is issued under the Subdivision Act 1988 the owner must enter into an agreement with the responsible authority under section 173 of the Planning and Environment Act 1987. The agreement must:*

- *State that it has been prepared for the purpose of an exemption from a planning permit under clause 44.06-2 of the [*insert name of applicable planning scheme] Planning Scheme.*
- *Incorporate the plan prepared in accordance with clause 53.02-4.4 of this planning scheme and approved under this permit.*
- *State that if a dwelling is constructed on the land without a planning permit that the bushfire protection measures set out in the plan incorporated into the agreement must be implemented and maintained to the satisfaction of the responsible authority on a continuing basis.*

*The land owner must pay the reasonable costs of the preparation, execution and registration of the section 173 Agreement."*

This does not apply:

- If a schedule to this overlay specifies that a section 173 Agreement is not required.
- Where the relevant fire authority states in writing the preparation of an agreement under section 173 of the Act is not required for the subdivision.
- For the subdivision of the land into lots each containing an existing dwelling or car parking space.

A permit to subdivide land must include any condition specified in a schedule to this overlay.

### Buildings and works

A permit to construct a building or construct or carry out works must include the following condition:

*"The bushfire protection measures forming part of this permit or shown on the endorsed plans, including those relating to construction standards, defendable space, water supply and access, must be maintained to the satisfaction of the responsible authority on a continuing basis. This condition continues to have force and effect after the development authorised by this permit has been completed."*

A permit allowing a dwelling to be constructed to the next lower bushfire attack level in accordance with AM1.4 in clause 53.02-3 must include the following condition:

*"Before the development starts, the owner must enter into an agreement with the responsible authority under section 173 of the Planning and Environment Act 1987 to provide for the following:*

- *A dwelling constructed in accordance with planning permit [*insert planning permit reference] must not be occupied until a private bushfire shelter (a Class10c building within the meaning of the Building Regulations 2006) is:*
  - *Constructed on the same land as the dwelling.*
  - *Available for use by the occupants of the dwelling at all times.*
  - *Maintained in accordance with the requirements of the building permit issued for that private bushfire shelter.*

*The land owner must pay the reasonable costs of the preparation, execution and registration of the section 173 Agreement."*

A permit to construct a building or construct or carry out works must include any condition specified in a schedule to this overlay.

## 44.06-6 Referral of applications

05/05/2026
VC248

An application must be referred under section 55 of the Act to the person or body specified as the referral authority in clause 66.03, unless a schedule to this overlay specifies otherwise.

## 44.06-7 Notice and review

31/07/2018
VC148

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act, unless a schedule to this overlay specifies otherwise.

A schedule to this overlay may specify that notice be given to any person or body in accordance with section 52(1)(c) of the Act.

## 44.06-8 Decision guidelines

05/05/2026
VC248

Before deciding on an application, in addition to the decision guidelines in clause 53.02 and clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any other matters specified in a schedule to this overlay.

## 44.06-9 Transitional arrangements

05/05/2026
VC248

The requirements of clause 44.06 Bushfire Management Overlay do not apply to a single dwelling, or a dependent person's unit, when a permit under the *Building Act 1993* was issued before the commencement of Amendment GC13, if:

- vegetation is managed to accord with the bushfire attack level assessment undertaken at the time the building permit was issued; and
- a static water supply of:
  - 2500 litres on lots of 500 square metres or less
  - 5000 litres on lots of more than 500 square metres,
    is provided to the satisfaction of the responsible authority.
- no permit was required for such development under clause 44.06 before the commencement of Amendment GC13.

10/06/2021
C254card

## SCHEDULE 1 TO CLAUSE 44.06 BUSHFIRE MANAGEMENT OVERLAY

Shown on the planning scheme map as **BMO1**.

**AVONSLEIGH, BEACONSFIELD, BEACONSFIELD UPPER, BUNYIP, COCKATOO, EMERALD, GEMBROOK, MARYKNOLL BAL-12.5 AREAS**

### 1.0 Statement of the bushfire management objectives to be achieved

10/06/2021
C254card

To specify bushfire protection measures to construct or extend one dwelling on a lot.

To specify referral requirements for applications to construct or extend one dwelling on a lot.

### 2.0 Application

10/06/2021
C254card

An application to construct or extend one dwelling on a lot must include all the requirements set out in this schedule.

Clause 53.02 applies in all other circumstances.

### 3.0 Permit requirement

10/06/2021
C254card

None specified.

### 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 44.06:

- An application must be accompanied by a bushfire management plan that:
  - Shows all of the required bushfire protection measures specified in this schedule,
  - Includes written conditions that implement the required bushfire protection measures,
  - Identifies water supply including the location of any fire hydrant within 120 metres of the rear of the building, and
  - Details vehicle access.

### 5.0 Requirements to be met

10/06/2021
C254card

The following requirements apply to an application to construct a single dwelling on a lot:

- The dwelling must be constructed to BAL-12.5
- Defendable space is to be provided for a distance of 30 metres around the dwelling or to the property boundary, whichever is the lesser and maintained in accordance with the vegetation management requirements of Clause 53.02 with the following variation:
  - The canopy of trees must be separated by at least 2 metres.
- A static water supply must be provided in accordance with Clause 53.02, and
- Vehicle access must be provided in accordance with Clause 53.02.

If these requirements are not met, the requirements of Clause 53.02 apply.

### 6.0 Substitute approved measures for Clause 53.02

10/06/2021
C254card

None specified.

### 7.0 Additional alternative measures for Clause 53.02

10/06/2021
C254card

None specified.

## 8.0 Mandatory Condition

10/06/2021
C254card

An application must include the mandatory conditions as specified in Clause 44.06-5.

## 9.0 Referral of application not required

10/06/2021
C254card

An application for a single dwelling on a lot meeting all of the required bushfire protection measures is not required to be referred under Section 55 of the Act to the person or body specified as the referral authority in Clause 66.03.

## 10.0 Notice and review

10/06/2021
C254card

None specified.

## 11.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 44.06, in addition to those specified in Clause 44.06 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether all of the bushfire protection measures in this schedule have been met.

10/06/2021
C254card

## SCHEDULE 2 TO CLAUSE 44.06 BUSHFIRE MANAGEMENT OVERLAY

Shown on the planning scheme map as **BMO2**.

**AVONSLEIGH, BEACONSFIELD UPPER, COCKATOO, EMERALD, GEMBROOK, MARYKNOLL BAL-29 AREAS**

### 1.0 Statement of the bushfire management objectives to be achieved

10/06/2021
C254card

To specify bushfire protection measures to construct or extend one dwelling on a lot.

To specify referral requirements for applications to construct or extend one dwelling on a lot.

### 2.0 Application

10/06/2021
C254card

An application to construct or extend one dwelling on a lot must include all the requirements set out in this schedule.

Clause 53.02 applies in all other circumstances.

### 3.0 Permit requirement

10/06/2021
C254card

None specified.

### 4.0 Application requirements

10/06/2021
C254card

The following application requirements apply to an application for a permit under Clause 44.06:

- An application must be accompanied by a bushfire management plan that:
  - Shows all of the required bushfire protection measures specified in this schedule,
  - Includes written conditions that implement the required bushfire protection measures,
  - Identifies water supply including the location of any fire hydrant within 120 metres of the rear of the building, and
  - Details vehicle access.

### 5.0 Requirements to be met

10/06/2021
C254card

The following requirements apply to an application to construct a single dwelling on a lot:

- The dwelling must be constructed to BAL-29
- Defendable space is to be provided for a distance of 30 metres around the dwelling or to the property boundary, whichever is the lesser and maintained in accordance with the vegetation management requirements of Clause 53.02 with the following variation:
  - The canopy of trees must be separated by at least 5 metres.
- A static water supply must be provided in accordance with Clause 53.02, and
- Vehicle access must be provided in accordance with Clause 53.02.

If these requirements are not met, the requirements of Clause 53.02 apply.

### 6.0 Substitute approved measures for Clause 53.02

10/06/2021
C254card

None specified.

### 7.0 Additional alternative measures for Clause 53.02

10/06/2021
C254card

None specified.

## 8.0 Mandatory Condition

10/06/2021
C254card

An application must include the mandatory conditions as specified in Clause 44.06-5.

## 9.0 Referral of application not required

10/06/2021
C254card

An application for a single dwelling on a lot meeting all of the required bushfire protection measures is not required to be referred under Section 55 of the Act to the person or body specified as the referral authority in Clause 66.03.

## 10.0 Notice and review

10/06/2021
C254card

None specified.

## 11.0 Decision guidelines

10/06/2021
C254card

The following decision guidelines apply to an application for a permit under Clause 44.06, in addition to those specified in Clause 44.06 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether all of the bushfire protection measures in this schedule have been met.

## 44.07 STATE RESOURCE OVERLAY

19/08/2021
VC196

Shown on the planning scheme map as **SRO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To protect areas of mineral, stone and other resources, which have been identified as being of state significance, from use and development that would prejudice the current or future productive use of the resource.

### 44.07-1 Resource significance and management objectives

19/08/2021
VC196

A schedule to this overlay must contain:

- A statement of the significance of the resource.
- The management objectives to be achieved.

### 44.07-2 Use of land

19/08/2021
VC196

Any requirement in a schedule to this overlay must be met.

### 44.07-3 Subdivision

19/08/2021
VC196

Any requirement in a schedule to this overlay must be met.

### 44.07-4 Buildings and works

19/08/2021
VC196

Any requirement in a schedule to this overlay must be met.

### 44.07-5 Application requirements

19/08/2021
VC196

An application under the zone to construct a building or construct or carry out works or subdivide land specified in a schedule to this overlay, or an application under a schedule to this overlay, must be accompanied by the following information:

- A report which explains how the proposed use, building, works or subdivision:
  - Is consistent with the management objective specified in the schedule.
  - Responds to the decision guidelines.
- Any information specified in a schedule to this overlay.

### 44.07-6 Referral of applications

19/08/2021
VC196

An application of a kind specified in a schedule to this overlay must be referred to the specified referral authority in accordance with Section 55 of the Act.

### 44.07-7 Exemption from notice and review

15/09/2022
VC225

A schedule to this overlay may specify that an application under the schedule, or an application under any provision of this planning scheme to use or develop land for extractive industry, is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2), and (3) and the review rights of section 82(1) of the Act.

### 44.07-8 Decision guidelines

19/08/2021
VC196

Before deciding on an application of a kind specified in a schedule to this overlay, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The statement of resource significance and the management objectives specified in a schedule to this overlay.
- The significance of the future productive use of the resource to the state.
- Any transport network implications related to the proposal.
- When the resource is likely to be required for extraction.
- The desirability of preventing any use, buildings, works, or subdivision which may adversely impact on the future productive use of the resource.
- Any other matters specified in a schedule to this overlay.

24/04/2026
GC263

# SCHEDULE 1 TO CLAUSE 44.07 STATE RESOURCE OVERLAY

Shown on the planning scheme map as **SRO1.**

## LANG LANG STRATEGIC EXTRACTIVE RESOURCE AREA

## 1.0 Statement of resource significance

24/04/2026
GC263

Victoria's population is projected to exceed 10 million people by 2050. As Victoria grows and more houses, schools, hospitals, roads, and renewable energy projects are delivered, the demand for quarry resources, including rock and sand, will significantly increase. Securing state-significant extractive resources close to market is important for the delivery of major infrastructure projects. Extractive resources need to be protected to provide a source of supply over the long term.

Extractive industries in Cardinia significantly contribute to Victoria's total sand production as major suppliers of coarse and fine sand to metropolitan Melbourne and regional areas.

Reserves of sand are being depleted, and key sand-producing areas are facing competing land use challenges. Geoscience data indicates sand and gravel deposits and Murrindindi Supergroup mudstone and sandstone to the south and east of Lang Lang are suitable for concrete production and other construction materials. The Lang Lang Strategic Extractive Resource Area (SERA) has a favourable overburden-to-sand ratio, which indicates sand and gravel may be extracted economically. The extractive resources are supported by good transport networks and proximate to infrastructure and development.

Extractive industry in the Lang Lang SERA is significantly important for the future supply of sand. Land uses that are incompatible with extractive industry may result in the restriction or permanent loss of production and reduce supply.

The purpose of this schedule is to protect sand resources within the Lang Lang SERA from land uses, development and subdivision that may otherwise constrain existing extractive operations or limit opportunities for future resource extraction.

## 2.0 Management objectives

24/04/2026
GC263

To ensure land is protected and extractive uses are permitted in locations with good access to resources, transport networks and close to markets.

To ensure use and development is compatible with the existing and future use of the area for extractive industry.

To ensure subdivision and fragmentation of land does not restrict existing or future extractive industry operations.

## 3.0 Use of land

24/04/2026
GC263

A permit is required to use land for the following:

- Accommodation
- Crematorium
- Education centre
- Funeral parlour
- Hospital
- Leisure and recreation
- Place of assembly
- Retail premises

- Veterinary centre
- Winery.

## 4.0 Subdivision

24/04/2026
GC263

A permit is required to subdivide land. This requirement does not apply if each lot created by the subdivision is a minimum of 40 hectares.

## 5.0 Buildings and works

24/04/2026
GC263

A permit is required to construct a building or to construct or carry out works. This requirement does not apply to:

- An alteration to an existing building provided the gross floor area of the alteration or extension does not exceed 200 square metres.
- A non-habitable building with a gross floor area not exceeding 200 square metres.
- A building or works associated with the use of land for extractive industry.
- Works with an area not exceeding 200 square metres.
- Works associated with the use of land for agriculture.
- A rainwater tank.

## 6.0 Application requirements

24/04/2026
GC263

An application under the zone to use or develop land for extractive industry should be accompanied by the following information, as appropriate, to the satisfaction of the responsible authority:

A Traffic Impact Assessment, including:

- The capacity of existing road infrastructure.
- The proposed heavy vehicle use emanating from the extractive industry.
- The carrying capacity and safety of alignment for heavy vehicles.
- The drainage, bridges and stormwater infrastructure.
- The demonstrated need for road improvements.
- The apportionment of cost with other heavy vehicle users.
- Whether upgrading is required as a direct consequence of heavy vehicles.

## 7.0 Referral of applications

24/04/2026
GC263

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| Any use listed in section 3.0 of this schedule.<br>Buildings and works associated with a use listed in section 3.0 of this schedule.<br>To subdivide land. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |
| Use or development of land for extractive industry. | Head, Transport for Victoria | Determining referral authority |

## 8.0 Exemption from notice and review

24/04/2026
GC263

An application for extractive industry under any provision of this planning scheme is exempt from the decision requirements of sections 64(1), (2) and (3), and the review rights of sections 82(1) of the *Planning and Environment Act 1987* if:

- The land is at least 250 metres from land used for any uses listed in section 3.0 to this schedule.
- The land has access to a road in a Transport Zone 2.

## 9.0 Decision guidelines

24/04/2026
GC263

Before deciding on an application under this overlay, in addition to the decision guidelines in clause 44.07 and clause 65, the responsible authority must consider, as appropriate:

- Whether use or development is compatible with existing or future extractive industry uses in the SERA.
- Whether existing natural features and topography mitigate the potential impacts of the proposed use on existing or future extractive industry.
- Whether use or development adversely impacts on the future productive extraction of the resource.
- Whether development is designed and sited in a location to minimise amenity impacts from future resource extraction operations and transportation.
- Whether subdivision inhibits the existing or future use of the land for extractive industry.

24/04/2026
GC263

# SCHEDULE 2 TO CLAUSE 44.07 STATE RESOURCE OVERLAY

Shown on the planning scheme map as **SRO2.**

## PROTECTING EXTRACTIVE INDUSTRY IN THE NYORA WEST STRATEGIC EXTRACTIVE RESOURCE AREA

## 1.0 Statement of resource significance

24/04/2026
GC263

Victoria's population is projected to exceed 10 million people by 2050. As Victoria grows and more houses, schools, hospitals, roads and renewable energy projects are delivered, the demand for quarry resources, including rock and sand, will significantly increase. Securing state-significant extractive resources close to market is important for the delivery of major infrastructure projects. Extractive resources need to be protected to provide a source of supply over the long term.

Existing extractive industries located around Nyora, which is in the north west of South Gippsland Shire and adjacent to Cardinia Shire, make a significant contribution to Victoria's total sand production. These extractive industries are a large supplier of sand to metropolitan Melbourne, peri-urban areas, as well as locally.

The presence of sand resources in this areas is substantiated by favourable geological characteristics and by a number of existing extractive industry operations. The area also has manageable environmental and planning constraints, is supported by transport networks, and is proximate to demand markets.

There is an opportunity to increase the area's contribution towards the state's resource needs through expansion and intensification of existing extractive industries. It is estimated that extractive resources within South Gippsland Shire can supply 22 per cent of Melbourne's demand for sand and gravel, over the period 2015-2050.

Protecting extractive industries from encroachment by incompatible use and development is critical for maintaining the productivity of existing operations, and for securing the future supply of sand resources to Victoria's markets.

The purpose of this schedule is to protect sand resource extraction operations within the Nyora West Strategic Extractive Resource Area (SERA) from uses, development and subdivision which may otherwise constrain existing extractive operations or limit opportunities for future resource extraction. It applies a buffer up to 250 metres outside the SERA extending from quarries within the SERA that have been granted a work authority under the *Mineral Resources (Sustainable Development) Act 1990*.

## 2.0 Management objectives

24/04/2026
GC263

- To protect extractive industry operations with a work authority issued under the *Mineral Resources (Sustainable Development) Act 1990* from encroachment of incompatible uses and development.
- To ensure use and development within 250 metres of an extractive industry does not adversely impact the continued operation or limit the potential future expansion of that industry.
- To ensure development is appropriately designed and sited to minimise amenity impacts from extractive industry operations, including the transport of materials.
- To ensure that the subdivision and fragmentation of land does not impact the operation of an extractive industry.

## 3.0 Use of land

24/04/2026
GC263

A permit is required to use land for the following:

- Accommodation.
- Crematorium.

- Education centre.
- Funeral parlour.
- Hospital.
- Leisure and recreation.
- Place of assembly.
- Retail premises.
- Veterinary centre.
- Winery.

## 4.0 Subdivision

24/04/2026
GC263

A permit is required to subdivide land. This requirement does not apply if each lot created by the subdivision is a minimum of 40 hectares.

## 5.0 Buildings and works

24/04/2026
GC263

A permit is required to construct a building or to construct or carry out works. This requirement does not apply to:

- An alteration or extension to an existing building provided the gross floor area of the alteration or extension does not exceed 200 square metres.
- A non-habitable building with a gross floor area not exceeding 200 square metres.
- A building or works associated with the use of land for extractive industry.
- Works with an area not exceeding 200 square metres.
- Works associated with the use of land for agriculture.
- A rainwater tank.

## 6.0 Application requirements

19/08/2021
VC196

None specified.

## 7.0 Referral of applications

24/04/2026
GC263

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| Any use listed in section 3.0 of this schedule.<br>Buildings and works associated with a use listed in section 3.0 of this schedule.<br>To subdivide land. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |

## 8.0 Exemption from notice and review

19/08/2021
VC196

None specified.

## 9.0 Decision guidelines

24/04/2026
GC263

Before deciding on an application under this overlay, in addition to the decision guidelines in clause 44.07 and clause 65, the responsible authority must consider, as appropriate:

- Whether the use or development is compatible with the extractive industry operating on nearby land.
- Whether the use or development limits the operation and expansion of the extractive industry.
- Whether existing natural features and topography mitigate potential impacts of the proposed use on existing or future extractive industry.
- Whether the use or development may adversely impact the future productive extraction of the resource.
- Whether the development is designed and sited in a location to minimise amenity impacts from resource extraction operations and transportation.
- Whether subdivision will lead to land use outcomes that inhibit the use of the land for extractive industries.

24/04/2026
GC263

# SCHEDULE 3 TO CLAUSE 44.07 STATE RESOURCE OVERLAY

Shown on the planning scheme map as **SRO3.**

## PROTECTING EXTRACTIVE INDUSTRY IN THE LANG LANG STRATEGIC EXTRACTIVE RESOURCE AREA

## 1.0 Statement of resource significance

24/04/2026
GC263

Victoria's population is projected to exceed 10 million people by 2050. As Victoria grows and more houses, schools, hospitals, roads and renewable energy projects are delivered, the demand for quarry resources, including rock and sand, will significantly increase. Securing state-significant extractive resources close to market is important for the delivery of major infrastructure projects. Extractive resources need to be protected to provide a source of supply over the long term.

Extractive industry in Cardinia Shire significantly contributes to Victoria's total sand production as major suppliers of coarse and fine sand to metropolitan Melbourne and regional areas. Reserves of sand are being depleted, and key sand-producing areas are facing competing land use challenges.

Extractive industry in the Lang Lang Strategic Extractive Resource Area (SERA) is significantly important for the future supply of sand. Land uses that are incompatible with extractive industry may result in the restriction or permanent loss of production and reduce supply.

The purpose of this schedule is to protect sand resource extraction operations within the Lang Lang SERA from uses, development and subdivision that may otherwise constrain existing extractive operations or limit opportunities for future resource extraction. It applies a buffer up to 250 metres outside the SERA extending from quarries within the SERA that have been granted a work authority under the *Mineral Resources (Sustainable Development) Act 1990.*

## 2.0 Management objectives

24/04/2026
GC263

To protect extractive industry operations with a work authority issued under the *Mineral Resources (Sustainable Development) Act 1990* from encroachment of incompatible uses and development.

To ensure use and development within 250 metres of an extractive industry does not adversely impact the continued operation or limit the potential future expansion of that industry.

To ensure development is appropriately designed and sited to minimise amenity impact from extractive industry operations, including the transport of materials.

To ensure that the subdivision and fragmentation of land does not impact the operation of an extractive industry.

## 3.0 Use of land

24/04/2026
GC263

A permit is required for the following:

- Accommodation
- Crematorium
- Education centre
- Funeral parlour
- Hospital
- Leisure and recreation
- Place of assembly
- Retail premises
- Veterinary centre
- Winery.

## 4.0 Subdivision

24/04/2026
GC263

A permit is required to subdivide land. This requirement does not apply if each lot created by the subdivision is a minimum of 40 hectares.

## 5.0 Buildings and works

24/04/2026
GC263

A permit is required to construct a building or to construct or carry out works. This requirement does not apply to:

- An alteration or extension to an existing building provided the gross floor area of the alteration or extension does not exceed 200 square metres.
- A non-habitable building with a gross floor area not exceeding 200 square metres.
- A building or works associated with the use of land for extractive industry.
- Works with an area not exceeding 200 square metres.
- Works associated with the use of land for agriculture.
- A rainwater tank.

## 6.0 Application requirements

24/04/2026
GC263

None specified.

## 7.0 Referral of applications

24/04/2026
GC263

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| Any use listed in section 3.0 of this schedule.<br>Buildings and works associated with a use listed in section 3.0 of this schedule.<br>To subdivide land. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |

## 8.0 Exemption from notice and review

24/04/2026
GC263

None specified.

## 9.0 Decision guidelines

24/04/2026
GC263

Before deciding on an application under this overlay, in addition to the decision guidelines in clause 44.07 and clause 65, the responsible authority must consider, as appropriate:

- Whether the use or development is compatible with the extractive industry operating on nearby land.
- Whether the use or development limits the operation and expansion or the extractive industry.
- Whether existing natural features and topography mitigate potential impacts of the proposed land use on existing or future extractive industry.
- Whether the use or development may adversely impact the future productive extraction of the resource.
- Whether the development is designed and sited in a location to minimise amenity impacts from resource extraction operations and transportation.
- Whether subdivision will lead to land use outcomes that inhibit the use of the land for extractive industry.

# 45 OTHER OVERLAYS

19/01/2006
VC37

## 45.01 PUBLIC ACQUISITION OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **PAO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify land which is proposed to be acquired by a Minister, public authority or municipal council.

To reserve land for a public purpose and to ensure that changes to the use or development of the land do not prejudice the purpose for which the land is to be acquired.

To designate a Minister, public authority or municipal council as an acquiring authority for land reserved for a public purpose.

## 45.01-1 Permit required

14/12/2023
VC253

A permit is required to:

- Use land for any Section 1 or Section 2 use in the zone.
- Construct a building or construct or carry out works, including:
  - A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
  - A pergola or verandah, including an open-sided pergola or verandah to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
  - A deck, including a deck to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level.
- Damage, demolish or remove a building or works.
- Damage, remove, destroy or lop any vegetation. This does not apply:
  - If the vegetation has been planted for pasture, timber production or any other crop.
  - To any action which is necessary to keep the whole or any part of a tree clear of an electric line provided the action is carried out in accordance with a code of practice prepared under Section 86 of the *Electricity Safety Act 1998*.
  - If the vegetation presents an immediate risk of personal injury or damage to property.
- Subdivide land.

This does not apply:

- To the acquiring authority for the land if the land has been acquired and any of the above matters for which a permit is required is consistent with the purpose for which the land was acquired.
- To an authority or a municipal council if the responsible authority, after consulting with the acquiring authority for the land, is satisfied that any of the above matters for which a permit is required is consistent with the purpose for which the land is to be acquired.

## 45.01-2 Exemption from notice and review

31/07/2018
VC148

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 45.01-3 Referral of applications

28/10/2013
VC102

An application must be referred under Section 55 of the Act to the acquiring authority for the land.

## 45.01-4 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect of the proposed use or development on the purpose for which the land is to be acquired as specified in the schedule to this overlay.

A permit granted under this clause may be conditional on:

- The extent of alterations and extensions to an existing building and works, and the materials that may be used.
- The location, dimensions, design and material or a new building or works.
- The demolition, removal or alteration of any buildings or works.
- The demolition or removal of buildings or works constructed or carried out in accordance with a permit under this clause.
- No compensation being payable for the demolition or removal of any buildings or works constructed under the permit.

## 45.01-5 Land not to be spoiled or wasted

19/01/2006
VC37

Land must not be spoiled or wasted so as to adversely affect the use of the land for the purpose for which it is to be acquired.

## 45.01-6 Reservation for public purpose

19/01/2006
VC37

Any land included in a Public Acquisition Overlay is reserved for a public purpose within the meaning of the *Planning and Environment Act 1987*, the *Land Acquisition and Compensation Act 1986* or any other act.

## 45.01-7 Acquiring authority

28/10/2013
VC102

An acquiring authority is the Minister, public authority or municipal council specified in the schedule to this overlay as the acquiring authority for the land.

14/06/2018
C236

# SCHEDULE TO CLAUSE 45.01 PUBLIC ACQUISITION OVERLAY

1.0
30/04/2026
GC272

## Public acquisition

| PS map ref | Acquiring Authority | Purpose of acquisition |
|---|---|---|
| **PAO1** | Roads Corporation | Road |
| **PAO2** | The Minister responsible for administering Part 2 of the *Crown Land (Reserves) Act 1978* | Cardinia Creek Parklands |
| **PAO3** | Cardinia Shire Council | Road |
| **PAO4** | Cardinia Shire Council | Civic and Professional Precinct redevelopment including development of Municipal Offices |
| **PAO5** | Public Transport Development Authority | Pakenham East Train Maintenance Depot |
| **PAO6** | Minister for Education | Proposed School |
| **PAO7** | Minister for Health | Pakenham Community Hospital |
| **PAO8** | Head, Transport for Victoria | Road construction |
| **PAO9** | Melbourne Water Corporation | Wetland |
| **PAO10** | South East Water | Water recycling plant |

## 45.03 ENVIRONMENTAL AUDIT OVERLAY

01/07/2021
VC203

Shown on the planning scheme map as **EAO.**

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To ensure that potentially contaminated land is suitable for a use which could be significantly adversely affected by any contamination.

### Application

This provision applies to land in an Environmental Audit Overlay and applies whether or not a permit is required.

## 45.03-1 Requirement

04/05/2022
VC210

Before a sensitive use (residential use, child care centre, kindergarten, pre-school centre, primary school, even if ancillary to another use), children's playground or secondary school commences or before the construction or carrying out of buildings and works in association with these uses commences:

- A preliminary risk screen assessment statement in accordance with the *Environment Protection Act 2017* must be issued stating that an environmental audit is not required for the use or the proposed use; or
- An environmental audit statement under Part 8.3 of the *Environment Protection Act 2017* must be issued stating that the land is suitable for the use or proposed use; or
- A certificate of environmental audit must be issued for the land in accordance with Part IXD of the Environment Protection Act 1970; or
- A statement of environmental audit must be issued for the land in accordance with Part IXD of the Environment Protection Act 1970 stating that the environmental conditions of the land are suitable for the use or proposed use.

### Exemption from requirement

The requirement for a preliminary risk screen assessment statement, an environmental audit statement, a certificate of environmental audit or a statement of environmental audit in this provision does not apply to the construction or carrying out of buildings and works if:

- The buildings and works are associated with an existing sensitive use, secondary school or children’s playground, included in Clause 62.02-1 or 62.02-2, and the soil is not disturbed;
- The buildings and works are required by the Environment Protection Authority or an environmental auditor appointed under the *Environment Protection Act 2017* to make the site suitable for use; or
- The buildings and works are reasonably required by environmental auditor appointed under the *Environment Protection Act 2017* or the *Environment Protection Act 1970* to undertake a preliminary risk screen assessment or environmental audit.

## 45.04 ROAD CLOSURE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **RXO**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify a road that is closed by an amendment to this planning scheme.

## 45.04-1 Road closure

19/01/2006
VC37

A road included in this overlay is closed on the date notice of approval of the amendment is published in the Government Gazette.

## 45.04-2 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- That the road is closed.

# 45.05 RESTRUCTURE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **RO** with a number.

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify old and inappropriate subdivisions which are to be restructured.

To preserve and enhance the amenity of the area and reduce the environmental impacts of dwellings and other development.

## 45.05-1 Subdivision

01/07/2021
VC203

A permit is required to subdivide land.

A subdivision must be in accordance with a restructure plan for the land listed in the schedule to this overlay. This does not apply if the subdivision is for one of the following purposes and no additional lots or subdivision potential is created:

- To realign boundaries between lots that have been consolidated in accordance with the restructure plan.
- To consolidate a restructure lot with a section of closed road or other land not included in a proposed restructure lot.

Each lot must be provided with reticulated sewerage if available. If reticulated sewerage is not available, the application must be accompanied by:

- A Land Capability Assessment which demonstrates that each lot is capable of treating and retaining all waste water and the risks to human health and the environment of a on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- A plan which indicates the building envelope and effluent disposal area for each lot.

Before deciding on an application to subdivide land into residential lots, the responsible authority must consider Clause 56.

## 45.05-2 Dwellings and other buildings

19/01/2006
VC37

A permit is required to construct or extend a dwelling or other building.

A permit must be in accordance with a restructure plan for the land listed in a schedule to this overlay. This does not apply if:

- No restructure plan is listed in the schedule and the permit is required to extend an existing dwelling or other building.
- The land is a lot for which a permit has been granted under Clause 45.05-1.

## 45.05-3 Exemption from notice and review

31/07/2018
VC148

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 45.05-4 Decision guidelines

01/01/2024
VC250

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.

- The objectives of the restructure plan for the area.
- Appropriate measures to cope with any environmental hazard or constraint affecting the land, including slope, drainage, salinity and erosion.
- The protection and enhancement of the natural environment and the character of the area including the retention of vegetation and fauna habitats and the need to revegetate along waterways, gullies, ridge lines and property boundaries.
- The availability of utility services, including sewerage, water, drainage, electricity, telecommunications, and, where the subdivision is not a residential subdivision, gas.
- The relationship of the intended use and development to the existing or likely use and development of adjoining and nearby land.
- The effect on surrounding uses, especially agricultural uses and nearby public land.
- The design of buildings.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 45.05 RESTRUCTURE OVERLAY

## 1.0 Restructure plan

10/06/2021
C254card

| PS map ref | Land | Title of restructure plan |
|---|---|---|
| RO1 | All land identified on the planning scheme map as being within RO1. | Cardinia Shire Council – Subdivision Restructure Plans (Albert Road, Clematis), January 2002 |
| RO2 | All land identified on the planning scheme map as being within RO2. | Cardinia Shire Council – Subdivision Restructure Plans (Arthur Road, Cockatoo), January 2002 |
| RO3 | All land identified on the planning scheme map as being within RO3. | Cardinia Shire Council – Subdivision Restructure Plans (Auravale Road, Menzies Creek), January 2002 |
| RO4 | All land identified on the planning scheme map as being within RO4. | Cardinia Shire Council – Subdivision Restructure Plans (Baker Street, Cockatoo), January 2002 |
| RO5 | **DELETED** | |
| RO6 | All land identified on the planning scheme map as being within RO6. | Cardinia Shire Council – Subdivision Restructure Plans (Belgrave Avenue, Cockatoo), January 2002 |
| RO7 | **DELETED** | |
| RO8 | All land identified on the planning scheme map as being within RO8. | Cardinia Shire Council – Subdivision Restructure Plans (Bellbird Crescent, Emerald), January 2002 |
| RO9 | All land identified on the planning scheme map as being within RO9. | Cardinia Shire Council – Subdivision Restructure Plans (Benson Street, Emerald), January 2002 |
| RO10 | All land identified on the planning scheme map as being within RO10. | Cardinia Shire Council – Subdivision Restructure Plans (Bilocla Avenue, Cockatoo), January 2002 |
| RO11 | **DELETED** | |
| RO12 | **DELETED** | |
| RO13 | All land identified on the planning scheme map as being within RO13. | Cardinia Shire Council – Subdivision Restructure Plans (Charman Avenue, Emerald), January 2002 |
| RO14 | All land identified on the planning scheme map as being within RO14. | Cardinia Shire Council – Subdivision Restructure Plans (Church Street, Emerald), January 2002 |
| RO15 | All land identified on the planning scheme map as being within RO15. | Cardinia Shire Council – Subdivision Restructure Plans (Cooinda Avenue, Beaconsfield Upper), January 2002 |
| RO16 | **DELETED** | |

| PS map ref | Land | Title of restructure plan |
|---|---|---|
| RO17 | All land identified on the planning scheme map as being within RO17. | Cardinia Shire Council – Subdivision Restructure Plans (Fernglade Drive, Emerald), January 2002 |
| RO18 | **DELETED** | |
| RO19 | All land identified on the planning scheme map as being within RO19. | Cardinia Shire Council – Subdivision Restructure Plans (Ford Road, Emerald), January 2002 |
| RO20 | All land identified on the planning scheme map as being within RO20. | Cardinia Shire Council – Subdivision Restructure Plans (Garden City, Cockatoo), January 2002 |
| RO21 | **DELETED** | |
| RO22 | All land identified on the planning scheme map as being within RO22. | Cardinia Shire Council – Subdivision Restructure Plans (Grandview Avenue, Emerald), January 2002 |
| RO23 | All land identified on the planning scheme map as being within RO23. | Cardinia Shire Council – Subdivision Restructure Plans (Grieve Road, Avonsleigh), January 2002 |
| RO24 | All land identified on the planning scheme map as being within RO24. | Cardinia Shire Council – Subdivision Restructure Plans (Hague Crescent, Cockatoo), January 2002 |
| RO25 | All land identified on the planning scheme map as being within RO25. | Cardinia Shire Council – Subdivision Restructure Plans (Haylock Avenue, Cockatoo), January 2002 |
| RO26 | **DELETED** | |
| RO27 | **DELETED** | |
| RO28 | **DELETED** | |
| RO29 | All land identified on the planning scheme map as being within RO29. | Cardinia Shire Council – Subdivision Restructure Plans (Mountain Road, Cockatoo), January 2002 |
| RO30 | **DELETED** | |
| RO31 | All land identified on the planning scheme map as being within RO31. | Cardinia Shire Council – Subdivision Restructure Plans (Nobelius Street, Emerald), January 2002 |
| RO32 | All land identified on the planning scheme map as being within RO32. | Cardinia Shire Council – Subdivision Restructure Plans (Old Beaconsfield Road, Emerald), January 2002 |
| RO33 | All land identified on the planning scheme map as being within RO33. | Cardinia Shire Council – Subdivision Restructure Plans (Ozone Avenue, Emerald), January 2002 |
| RO34 | **DELETED** | |

| PS map ref | Land | Title of restructure plan |
|---|---|---|
| RO35 | All land identified on the planning scheme map as being within RO35. | Cardinia Shire Council – Subdivision Restructure Plans (Paradise Avenue, Clematis), January 2002 |
| RO36 | **DELETED** | |
| RO37 | All land identified on the planning scheme map as being within RO37. | Cardinia Shire Council – Subdivision Restructure Plans (Poplar Crescent, Emerald), January 2002 |
| RO38 | **DELETED** | |
| RO39 | **DELETED** | |
| RO40 | **DELETED** | |
| RO41 | All land identified on the planning scheme map as being within RO41. | Cardinia Shire Council – Subdivision Restructure Plans (Seaview Road, Cockatoo), January 2002 |
| RO42 | All land identified on the planning scheme map as being within RO42. | Cardinia Shire Council – Subdivision Restructure Plans (Station Avenue, Emerald), January 2002 |
| RO43 | **DELETED** | |
| RO44 | All land identified on the planning scheme map as being within RO44. | Cardinia Shire Council – Subdivision Restructure Plans (Sydney Avenue, Emerald), January 2002 |
| RO45 | All land identified on the planning scheme map as being within RO45. | Cardinia Shire Council – Subdivision Restructure Plans (Tymon Road, Cockatoo), January 2002 |
| RO46 | **DELETED** | |
| RO47 | **DELETED** | |
| RO48 | All land identified on the planning scheme map as being within RO48. | Cardinia Shire Council – Subdivision Restructure Plans (Westland Road, Emerald), January 2002 |
| RO49 | All land identified on the planning scheme map as being within RO49. | Cardinia Shire Council – Subdivision Restructure Plans (Whiteside Road, Officer), January 2002 |
| RO50 | **DELETED** | |
| RO51 | All land identified on the planning scheme map as being within RO51. | Cardinia Shire Council – Subdivision Restructure Plans (Agricultural Land - Tenement), January 2002 |
| RO52 | All land identified on the planning scheme map as being within RO52. | Cardinia Shire Council, Subdivision Restructure Plan - 440, 445, 447, 460, 462-464 and 466 Bayles-Cora Lynn Road, 455 and 465 Bunyip River Road and 710 Nine Mile Road, Cora Lynn, October 2011. |

| PS map ref | Land | Title of restructure plan |
|---|---|---|
| RO53 | All land identified on the planning scheme map as being within RO53 | Cardinia Shire Council Subdivision Restructure Plan 36-38 Beaconsfield – Emerald Road, Upper Beaconsfield, March 2015 |

## 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **DCPO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas which require the preparation of a development contributions plan for the purpose of levying contributions for the provision of works, services and facilities before development can commence.

## 45.06-1 Development contributions plan

19/01/2006
VC37

A permit must not be granted to subdivide land, construct a building or construct or carry out works until a development contributions plan has been incorporated into this scheme.

This does not apply to the construction of a building, the construction or carrying out of works or a subdivision specifically excluded by a schedule to this overlay.

A permit granted must:

- Be consistent with the provisions of the relevant development contributions plan.
- Include any conditions required to give effect to any contributions or levies imposed, conditions or requirements set out in the relevant schedule to this overlay.

## 45.06-2 Preparation of a development contributions plan

19/01/2006
VC37

The development contributions plan may consist of plans or other documents and may, with the agreement of the planning authority, be prepared and implemented in stages.

The development contributions plan must:

- Specify the area to which the plan applies.
- Set out the works, services and facilities to be funded through the plan, including the staging of the provision of those works, services and facilities.
- Relate the need for the works, services or facilities to the proposed development of land in the area.
- Specify the estimated costs of each of the works, services and facilities.
- Specify the proportion of the total estimated costs of the works, services and facilities which is to be funded by a development infrastructure levy or community infrastructure levy or both.
- Specify the land in the area and the types of development in respect of which a levy is payable and the method for determining the levy payable in respect of any development of land.
- Provide for the procedures for the collection of a development infrastructure levy in respect to any development for which a permit is not required.

The development contributions plan may:

- Exempt certain land or certain types of development from payment of a development infrastructure levy or community infrastructure levy or both.
- Provide for different rates or amounts of levy to be payable in respect of different types of development of land or different parts of the area.

09/11/2017
GC75

# SCHEDULE 1 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO1.**

## PAKENHAM TOWNSHIP DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

15/01/2024
VC249

This development contributions plan applies to all land identified on the map to the Pakenham Township Development Contributions Plan, December 2023.

## 2.0 Summary of costs

19/01/2006
VC37

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Distributor roads | 17,696,250 | Refer to Development Contributions Plan | 16,516,790 | 93 |
| Traffic management works | 3,222,500 | Refer to Development Contributions Plan | 1,946,890 | 60 |
| Streetscape & environment | 940,500 | Refer to Development Contributions Plan | 916,685 | 97 |
| Parks | 1,235,000 | Refer to Development Contributions Plan | 1,123,275 | 90 |
| Active open space | 2,800,000 | Refer to Development Contributions Plan | 1,396,080 | 50 |
| Community activity centres | 3,366,000 | Refer to Development Contributions Plan | 3,085,530 | 92 |
| Drainage | - | - | - | - |
| Other | - | - | - | - |
| **TOTAL** | **29,260,250** | **Refer to Development Contributions Plan** | **24,985,250** | **85** |

## 3.0 Summary of contributions

10/06/2021
C254card

| Facility | Levies payable by the development ($) | | | | | |
|---|---|---|---|---|---|---|
| | Development Infrastructure | | Community infrastructure | | All infrastructure | |
| | Residential | Non-residential | Residential | Non-residential | Residential | Non-residential |
| Distributor roads | $1,695 per lot | - | - | - | $1,695 per lot | - |
| Traffic management works | $200 per lot | - | - | - | $200 per lot | - |
| Streetscape & environment | $93 per lot | - | - | - | $93 per lot | - |
| Parks | $115 per lot | - | - | - | $115 per lot | - |
| Active open space | $32 per lot | - | $112 per lot | - | $144 per lot | - |
| Community activity centres | $45 per lot | - | $273 per lot | - | $318 per lot | - |
| Drainage | - | - | - | - | - | - |
| Other | - | - | - | - | - | - |
| **TOTAL** | **$2,180 per lot** | **-** | **$385 per lot** | **-** | **$2,565 per lot** | **-** |

**The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)**

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP.

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 4.0 Land or development excluded from development contributions plan

15/01/2024
VC249

All non-residential land within the area covered by the Pakenham Township Development Contributions Plan, December 2023 is excluded.

The development of land for a small second dwelling is exempt from the requirement to pay a development infrastructure levy and a community infrastructure levy.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

15/01/2024
VC249

## SCHEDULE 2 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO2.**

### CARDINIA ROAD PRECINCT DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

10/06/2021
C254card

Land in Pakenham and Officer within the DCPO2 area.

## 2.0 Summary of costs

10/06/2021
C254card

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Community facilities | $25,380,217 | Over 15 years as shown in the Development Contributions Plan | $20,693,756 | 82% |
| Open space | $41,417,121 | Over 15 years as shown in the Development Contributions Plan | $41,417,121 | 100% |
| Trail network | $8,754,544 | Over 15 years as shown in the Development Contributions Plan | $8,559,362 | 98% |
| Public transport facilities | $2,100,933 | Over 15 years as shown in the Development Contributions Plan | $2,100,933 | 100% |
| Roads and traffic management works | $47,755,332 | Over 15 years as shown in the Development Contributions Plan | $37,534,606 | 79% |
| **TOTAL** | **$125,408,147** | **-** | **$110,305,778** | **88%** |

## 3.0 Equivalence Ratios

As the Development Contributions Plan relates to all development types, it is necessary to express non-residential development in terms of equivalent dwellings.

| Development Type | Equivalent to one hectare (Demand Unit) |
|---|---|
| Residential | 1 hectare = 1 demand unit for the DCP |
| Core Retail | 266.3 m2 of gross floor space = 1 demand unit for the DCP |
| Peripheral Commercial | 1696.0 m2 of gross floor space = 1 demand unit for the DCP |

4.0
10/06/2021
C254card

## Summary of contributions

### Cell 1

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT | | |
|---|---|---|---|
| | Development Infrastructure | | Community Infrastructure |
| | Residential | Non-Residential | Residential |
| | Per Hectare | Per Demand Unit | Per Dwelling |
| Community Facilities | $17,968 | n/a | $557 |
| Open Space | $67,662 | n/a | $731 |
| Trail Network | $3,500 | n/a | n/a |
| Public Transport Facilities | $3,736 | n/a | n/a |
| Roads and Traffic Management Works | $70,883 | $70,883 | n/a |
| **TOTAL** | **$163,749** | **$70,883** | **$1,150** |

### Cell 2

| | Development Infrastructure | | Community Infrastructure |
|---|---|---|---|
| | Residential | Non-Residential | Residential |
| | Per Hectare | Per Demand Unit | Per Dwelling |
| Community Facilities | $23,272 | n/a | $717 |
| Open Space | $55,519 | n/a | $941 |
| Trail Network | $6,137 | n/a | n/a |
| Public Transport Facilities | $5,201 | n/a | n/a |
| Roads and Traffic Management Works | $40,797 | $40,797 | n/a |
| **TOTAL** | **$130,926** | **$40,797** | **$1,150** |

### Cell 3

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT | | |
|---|---|---|---|
| | Development Infrastructure | | Community Infrastructure |
| | Residential | Non-Residential | Residential |
| | Per Hectare | Per Demand Unit | Per Dwelling |
| Community Facilities | $19,210 | n/a | $480 |
| Open Space | $75,007 | n/a | $944 |
| Trail Network | $20,992 | n/a | n/a |
| Public Transport Facilities | $5,001 | n/a | n/a |

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT | | |
|---|---|---|---|
| | Development Infrastructure | | Community Infrastructure |
| | Residential | Non-Residential | Residential |
| | Per Hectare | Per Demand Unit | Per Dwelling |
| Roads and Traffic Management Works | $37,643 | $37,643 | n/a |
| **TOTAL** | **$157,853** | **$37,643** | **$1,150** |

**Cell 4**

| | Development Infrastructure | | Community Infrastructure |
|---|---|---|---|
| | Residential | Non-Residential | Residential |
| | Per Hectare | Per Demand Unit | Per Dwelling |
| Community Facilities | $1,942 | n/a | $352 |
| Open Space | $15,388 | n/a | $692 |
| Trail Network | $8,244 | n/a | n/a |
| Public Transport Facilities | $300 | n/a | n/a |
| Roads and Traffic Management Works | $2,704 | $2,704 | n/a |
| **TOTAL** | **$28,577** | **$2,704** | **$1,044** |

**Cell 5**

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT | | |
|---|---|---|---|
| | Development Infrastructure | | Community Infrastructure |
| | Residential | Non-Residential | Residential |
| | Per Hectare | Per Demand Unit | Per Dwelling |
| Community Facilities | $21,263 | n/a | $499 |
| Open Space | $80,836 | n/a | $655 |
| Trail Network | $13,533 | n/a | n/a |
| Public Transport Facilities | $4,041 | n/a | n/a |
| Roads and Traffic Management Works | $73,775 | $73,755 | n/a |
| **TOTAL** | **$193,449** | **$73,755** | **$1,150** |

**Cell 6**

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT | | |
|---|---|---|---|
| | Development Infrastructure | | Community Infrastructure |
| | Residential | Non-Residential | Residential |
| | Per Hectare | Per Demand Unit | Per Dwelling |
| Community Facilities | $22,368 | n/a | $504 |
| Open Space | $61,256 | n/a | $661 |
| Trail Network | $22,447 | n/a | n/a |
| Public Transport Facilities | $4,376 | n/a | n/a |
| Roads and Traffic Management Works | $76,894 | $76,894 | n/a |
| **TOTAL** | **$187,340** | **$76,894** | **$1,150** |

Land values listed in this DCP are in December 2007 dollars. They will be indexed annually according to the following specified method:

The Development Contribution for each demand unit must be adjusted as follows:

- In relation to the costs associated with all infrastructure items other than land, the cost must be adjusted and the contribution amounts recalculated according to the following method:
  - The capital costs of each infrastructure item must be adjusted by reference to the Producer Price Indexes Australia, General construction (41) Victoria (Tables 15 & 16. Output of the general construction industry, Series 6427.0), published by the ABS.
  - The revised infrastructure costs and the adjustment of the contributions must be calculated as at 1 December in each year.
- In relation to the cost of land required under the Cardinia Road Precinct DCP, the land value must be adjusted by adopting a revised land value determined according to the following method:
  - The adoption of the market value of a hectare of land in the DCP area, to the satisfaction of the Responsible Authority, which is the mid point between a valuation conducted by the Victorian Valuer General and a registered valuer appointed by the President for the time being of the Victorian Division of the Australian Property Institute.
  - The revised land value and the adjustment of the contributions must be calculated as of 1 December in each year.
  - Within 14 days of the adjustments being made, the Responsible Authority must publish a notice of the amended contributions in a newspaper circulating in the municipality.

**The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)**

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP.

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 5.0 Land or development excluded from development contributions plan

10/06/2021
C254card

None specified.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

10/06/2021
C254card

# SCHEDULE 3 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO3.**

## CARDINIA EMPLOYMENT PRECINCT DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

04/11/2010
C130

Cardinia Road Employment Precinct, which is covered by the DCPO3.

## 2.0 Summary of costs

04/11/2010
C130

None specified. The preparation and incorporation of a development contributions plan is required.

## 3.0 Summary of contributions

04/11/2010
C130

None specified. The preparation and incorporation of a development contributions plan is required.

## 4.0 Land or development excluded from development contributions plan

04/11/2010
C130

A permit may be granted to subdivide or use land, construct a building or construct and carry out works before a development contributions plan has been prepared to the satisfaction of the responsible authority if an agreement under Section 173 of the *Planning and Environment Act 1987* has been entered into with the responsible authority that makes provision for development contributions.

15/01/2024
VC249

# SCHEDULE 4 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO4.**

## OFFICER DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

12/01/2012
C149

Officer Precinct Structure Plan area within the DCPO4.

## 2.0 Summary of costs

12/01/2012
C149

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| *Community facilities (Community Infrastructure levy)* | $15,112,900.00 | Over 20 years as shown in the Development Contributions Plan | $11,535,898.00 | *76.33%* |
| *Community facilities (Development infrastructure levy)* | $26,748,925.39 | Over 20 years as shown in the Development Contributions Plan | $24,587,273.39 | *91.92%* |
| *Open Space* | $31,521,331.90 | Over 20 years as shown in the Development Contributions Plan | $31,105,091.90 | *98.68%* |
| *Open Space (Urban park)* | $1,388,130.68 | Over 20 years as shown in the Development Contributions Plan | $1,388,130.68 | *100.00%* |
| *Road Construction* | $77,764,067.00 | Over 20 years as shown in the Development Contributions Plan | $66,631,571.23 | *85.68%* |
| *Traffic Management* | $46,857,131.05 | Over 20 years as shown in the Development Contributions Plan | $46,857,131.05 | *100.00%* |
| *Trail Network* | $4,714,601.60 | Over 20 years as shown in the Development Contributions Plan | $4,313,876.60 | *91.50%* |
| *Planning* | $1,267,634.40 | Over 20 years as shown in the Development Contributions Plan | $1,267,634.40 | *100.00%* |
| **Total** | **$205,374,722.02** | | **$187,686,607.25** | *91.39%* |

## 3.0 Summary of contributions

15/01/2024
VC249

| Facility | LEVIES PAYABLE BY THE DEVELOPMENT | | |
|---|---|---|---|
| | Development Infrastructure | | Community Infrastructure |
| | Standard | Differential | Standard |
| | Per Hectare | Per Hectare | Per Dwelling* |
| *Community facilities* | $40,474.56 | - | $1,190.00 |

| Facility | LEVIES PAYABLE BY THE DEVELOPMENT | | |
|---|---|---|---|
| | Development Infrastructure | | Community Infrastructure |
| | Standard | Differential | Standard |
| | Per Hectare | Per Hectare | Per Dwelling* |
| *Open Space* | $51,599.13 | - | $0.00 |
| *Open Space (Urban park)* | $2,212.14 | $2,212.14 | $0.00 |
| *Road Construction* | $100,105.08 | $100,105.08 | $0.00 |
| *Traffic Management* | $74,849.77 | $74,849.77 | $0.00 |
| *Trail Network* | $6,330.79 | $6,330.79 | $0.00 |
| *Planning* | $1,977.59 | $1,977.59 | $0.00 |
| **Total** | **$277,549.07** | **$183,497.79** | **$1,190.00** |

The input costs into the development contributions plan and the Development Infrastructure Levy will be adjusted annually in accordance with the *Officer Development Contributions Plan (December 2023)* (incorporated document).

**The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)**

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 4.0 Land or development excluded from the development contributions plan

10/06/2021
C254card

None specified.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

18/11/2022
C238card

## SCHEDULE 5 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO5.**

### GLISMANN ROAD DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

18/11/2022
C238card

This Development Contributions Plan (DCP) applies to the Glismann Road area, which is covered by DCP05.

## 2.0 Summary of costs

18/11/2022
C238card

| Item | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Roads and intersections | $5,689,855 | Refer to DCP | $5,689,855 | 100% |
| Open space | $2,472,183 | Refer to DCP | $1,290,182 | 52% |
| Planning | $229,891 | Refer to DCP | $229,891 | 100% |
| Community Infrastructure | $1,980,000 | Refer to DCP | $237,600 | 12% |
| **TOTAL** | **$10,371,929** | **-** | **$7,447,528** | **-** |

*Note: Contributions are listed in September 2019 values. Under the DCP the contributions are to be adjusted following annual indexation.*

## 3.0 Summary of contributions

18/11/2022
C238card

| Item | Levies payable by the development ($) | |
|---|---|---|
| | Development infrastructure Levy (DIL) Per Net Developable Hectare | Community infrastructure Levy (CIL) Per Dwelling |
| Roads and intersections | $362,045.64 | $0.00 |
| Open space | $82,094.31 | $0.00 |
| Planning | $14,627.99 | $0.00 |
| Community Infrastructure | $0.00 | $889.12 |
| **TOTAL** | **$458,767.93** | **$889.12** |

*Note: Contributions are listed in September 2019 values. Under the DCP the contributions are to be adjusted following annual indexation.*

*The Development Infrastructure Levy and Community Infrastructure Levy for each demand unit must be adjusted as follows:*

- *In relation to the costs associated with all infrastructure items other than land, the cost of those projects will be adjusted (and then the contribution amounts recalculated) by reference to the Producer Price Indexes Australia, Victoria (Table 17 Output of the Construction industries, Building Construction Victoria (for buildings) and Road and Bridge Construction Victoria (for roads, bridges, trails, etc.) published by the ABS (Series 6427.0) or similar index. The adjusted costings will then produce a recalculated Development Infrastructure Levy.*
- *The revised infrastructure costs and the adjustment of the contributions will be calculated as at June 30th of each year.*
- *In relation to the value of land required under the DCP, a revaluation of all land projects is to be carried out on a biennial basis in accordance with the same principles as the July 2019 valuation report prepared by Westlink. In the non revaluation year, valuations will be indexed in accordance with an index amount to be determined using market transactions of land in the Urban Growth Zone and other residential development land within the Cardinia growth area. The valuations are to be carried out by a qualified valuer and member of the Australian Property Institute to be appointed by Cardinia Shire Council.*
- *The revised land value and then the resulting adjustment of the Development Infrastructure Levy will be calculated as at June 30th of each year.*
- *Within 14 days of the adjustments being made, the Collecting Agency will publish a notice of the amended contributions in a newspaper circulating in the municipality.*

## 4.0 Land or development excluded from development contributions plan

15/01/2024
VC249

The following development is exempt from the requirement to pay development contributions under the *Glismann Road Development Contributions Plan (Urban Enterprise, December 2023)*:

- Development of land for a small second dwelling.
- Development of land for a non-government school, as defined in Ministerial Direction on the Preparation and Content of Development Contributions Plans of 11 October 2016.
- Development of land for housing provided by or on behalf of the Department of Health and Human Services, as defined in Ministerial Direction on the Preparation and Content of Development Contributions Plans dated 11 October 2016.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

# 45.09 PARKING OVERLAY

09/06/2026
VC311

Shown on the planning scheme map as **PO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To facilitate an appropriate provision of car parking spaces in an area.

To identify areas and uses where local car parking requirements apply.

To identify areas where financial contributions are to be made for the provision of shared car parking.

## 45.09-1 Operation

09/06/2026
VC311

This overlay operates in conjunction with clause 52.06.

A schedule to this overlay may:

- Vary the requirements of clause 52.06 as allowed by this overlay.
- Specify additional requirements to the requirements of clause 52.06 as allowed by this overlay.
- Specify requirements for the provision of a financial contribution as a way of meeting the car parking requirements of clause 52.06 or this overlay.

## 45.09-2 Parking objectives

19/04/2013
VC95

A schedule to this overlay must specify the parking objectives to be achieved for the area affected by the schedule.

## 45.09-3 Permit requirement

09/06/2026
VC311

A schedule to this overlay may specify that:

- The exemption from the requirement for a permit in clause 52.06-3 does not apply. If the exemption does not apply, a permit is required for any of the matters set out in clause 52.06-3.
- A permit must not be granted to reduce (including reduce to zero) the number of car parking spaces required under clause 52.06-5 or this overlay.
- A permit must not be granted to provide some or all of the car parking spaces required under clause 52.06-5 or this overlay on another site.
- A permit must not be granted to provide more than the maximum parking provision specified in a schedule to this overlay.
- A permit is not required under clause 52.06-3.

## 45.09-4 Car parking requirement

09/06/2026
VC311

A schedule to this overlay included in this planning scheme before the commencement of VC311 may:

- Vary the car parking rate and measure for any use listed in Table 1 of clause 52.06-5.
- Specify the car parking requirements for any use of land not listed in Table 1 of clause 52.06-5.
- Specify maximum and minimum car parking requirements for any use of land.
- For any use listed in Table 1 of clause 52.06-5, apply Column B in the Table to that use.

A schedule to this overlay included in this planning scheme after the commencement of Amendment VC311 may specify a minimum and/or maximum car parking requirement for a use based on the land category identified in the *Car Parking Requirement Maps* (Department of Transport and Planning, 2025).

## 45.09-5 Application requirements and decision guidelines for permit applications

09/06/2026
VC311

Before deciding on an application under clause 52.06-3, in addition to the relevant decision guidelines in clause 52.06-7, the responsible authority must consider, as appropriate:

- The parking objectives of the relevant schedule to this overlay.
- Any application requirements and decision guidelines specified in a schedule to this overlay.

## 45.09-6 Financial contribution requirement

09/06/2026
VC311

A schedule to this overlay may allow a responsible authority to collect a financial contribution in accordance with the schedule as a way of meeting the car parking requirements that apply under this overlay or clause 52.06.

A schedule must specify:

- The area to which the provisions allowing the collection of financial contributions applies.
- The amount of the contribution that may be collected in lieu of each car parking space that is not provided, including any indexation of that amount.
- When any contribution must be paid.
- The purposes for which the responsible authority must use the funds collected under the schedule. Such purposes must be consistent with the objectives in section 4 of the Act.

## 45.09-7 Requirements for a car parking plan

09/06/2026
VC311

A schedule to this overlay may specify additional matters that must be shown on plans prepared under clause 52.06-8.

## 45.09-8 Design standards for car parking

09/06/2026
VC311

A schedule to this overlay may specify:

- Additional design standards.
- Other requirements for the design and management of car parking.

Plans prepared in accordance with clause 52.06-8 must meet any design standards and requirements specified in a schedule to this overlay.

## 45.09-9 Decision guidelines for car parking plans

09/06/2026
VC311

Before deciding whether a plan prepared under clause 52.06-8 is satisfactory, in addition to the decision guidelines in clause 52.06-10, the responsible authority must consider, as appropriate, any other matter specified in a schedule to this overlay.

14/11/2019
C244card

## SCHEDULE 1 TO CLAUSE 45.09 PARKING OVERLAY

Shown on the planning scheme map as **PO1**.

**PAKENHAM ACTIVITY CENTRE**

### 1.0 Parking objectives to be achieved

14/11/2019
C244card

- To manage car parking equitably and efficiently across the Pakenham Parking Precinct Plan Area.
- To consolidate and improve existing car parks to maximise the sharing of parking supply between different land uses.
- To encourage and improve public car parking provision, sustainable transport provision and travel within and to the Pakenham Activity Centre.
- To identify and provide for the collection of financial contributions to contribute to the construction of publicly-accessible off-street parking facilities within the Pakenham Parking Precinct Plan Area.
- To spread the cost of providing and upgrading infrastructure on an equitable basis.

### 2.0 Permit requirement

14/11/2019
C244card

None Specified.

### 3.0 Number of car parking spaces required

14/11/2019
C244card

If a use is specified in the Table below, the number of car parking spaces required for the use is calculated by multiplying the R*ate* specified for the use by the accompanying M*easure*.

**Table: Car parking spaces**

| Use | Rate | Measure |
|---|---|---|
| None specified | | |

For all non-residential uses listed in Table 1 of Clause 52.06-5, the *Rate* in Column B of Table 1 in Clause 52.06-5 applies.

### 4.0 Application requirements and decision guidelines for permit applications

14/11/2019
C244card

The following application requirements apply to an application for a permit under Clause 45.09, in addition to those specified in Clause 45.09 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- An empirical car parking demand assessment, including the following:
  - A car parking plan including the number of car parking spaces provided currently on the land and wholly within title boundaries.
  - Any existing car parking reduction or waiver granted.
- Total maximum number of staff/patrons.
- Gross and net floor area of the existing use.
- Current hours of operation.
- Proposed hours of operation.

The following decision guidelines apply to an application for a permit under Clause 45.09, in addition to those specified in Clause 45.09 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Current and proposed hours of operation for the existing or proposed use.
- Gross and net floor area of the existing and proposed use.
- Details of any existing car parking reduction or waiver.

## 5.0 Financial contribution requirement

14/11/2019
C244card

Within the precinct defined in Map 1 in this schedule, the responsible authority may consider accepting a financial contribution in lieu of one or more car parking spaces required under Clause 45.09 and/or Clause 52.06.

Residential land uses excepting for camping and caravan parks, corrective institution, residential hotel, motel,hostel and group accomodation are exempt from paying the financial contribution.

The financial contribution rate is $12,000.00 for each car space. The amount of contribution for each space specified above will be adjusted by the responsible authority on 1 July by applying the *Building Price Index (Melbourne) in Rawlinson's Australian Construction Handbook*. If that index is unavailable, an equivalent index will be applied by the responsible authority.

The financial contribution specified above must be made before the use or development commences unless a permit condition allows payments by instalments under the Section 173 agreement provisions of the *Planning and Environment Act 1987*. This agreement may provide for the payment of the contribution in instalments plus an interest component equivalent to the interest payable on unpaid rates and charges under the *Local Government Act 1989* and it must provide that all instalments and accrued interest are paid within 5 years of the first instalment.

Until the responsible authority is paid the financial contribution, the permit must contain one of the following two conditions:

Prior to the commencement of the use or development allowed under this permit a payment of $12,000 (indexed annually by applying the *Building Price Index, Melbourne, in Rawlinsons Australian Construction Handbook*) must be paid to the responsible authority for each car parking space required, but not provided on the land.

or alternatively:

Prior to the commencement of the use or development allowed under this permit , the owner of the land must enter into an agreement under Section 173 of the P*lanning and Environment Act 1987* with the responsible authority in which the owner agrees to a payment of $12,000 (indexed annually by applying the Building Price Index, Melbourne, in *Rawlinsons Australian Construction Handbook*) must be paid to the responsible authority for each car parking space required, but not provided on the land.

All funds collected by the responsible authority must be utilised on any of the following public parking projects contained in the Pakenham Parking Precinct Plan (June 2019):

- Action 7: Upgrade to the Council owned James Street Car Park as Stage 1 (ensuring that the any upgrade allows for the development of the site for commercial, at the ground floor, providing for decked car parking on top) lighting improvements and ongoing maintenance.
- Action 8: Upgrade to the Council owned Drake Place car park, undertaking lighting improvements and ongoing maintenance.
- Action 9: Progress conceptual planning and design for the James Street and Drake Place car park sites and prepare cost estimates for financial contributions.
- Action 10: Deliver improved access to public transport, pedestrian connections and wayfinding signage, cycling paths and lanes, and end of trip facilities.

## 6.0 Requirements for a car parking plan

14/11/2019
C244card

None specified.

## 7.0 Design standards for car parking

14/11/2019
C244card

None specified.

## 8.0 Decision guidelines for car parking plans

14/11/2019
C244card

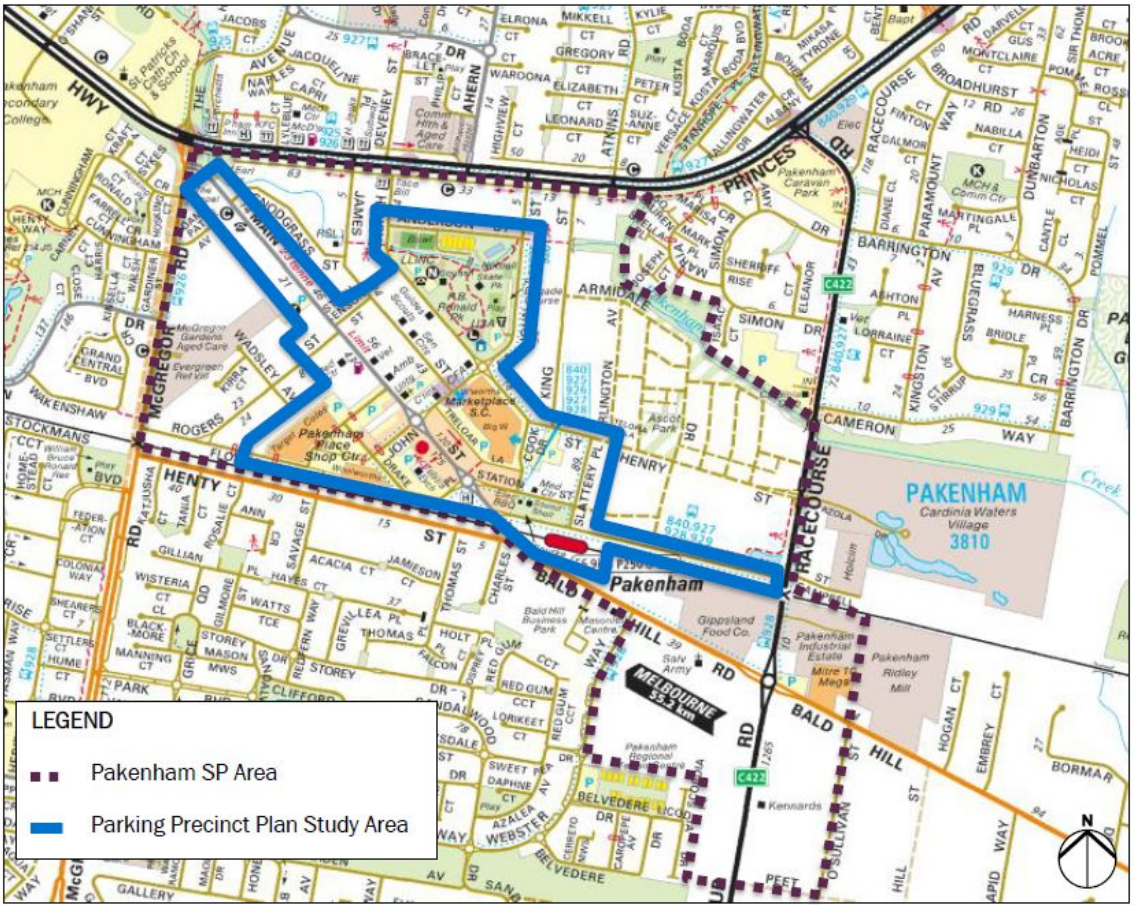
None specified.

## 9.0 Background document

14/11/2019
C244card

*Pakenham Parking Precinct Plan (2019)*

**Map 1 Schedule to Clause 45.09**



06/03/2020
C232card

## SCHEDULE 2 TO CLAUSE 45.09 PARKING OVERLAY

Shown on the planning scheme map as **PO2**.

**OFFICER TOWN CENTRE**

### 1.0 Parking objectives to be achieved

06/03/2020
C232card

To identify appropriate car parking rates for various uses within the Officer Town Centre.

### 2.0 Permit requirement

06/03/2020
C232card

None specified.

### 3.0 Number of car parking spaces required

06/03/2020
C232card

If a use is specified in the Table below, the number of car parking spaces required for the use is calculated by multiplying the *Rate* specified for the use by the accompanying *Measure*.

**Table: Car parking spaces**

| Use | Rate | Measure |
|---|---|---|
| None specified | | |

For all other uses listed in Table 1 of Clause 52.06-5, the *Rate* in Column B of Table 1 in Clause 52.06-5 applies.

### 4.0 Application requirements and decision guidelines for permit applications

06/03/2020
C232card

None specified.

### 5.0 Financial contribution requirement

06/03/2020
C232card

None specified.

### 6.0 Requirements for a car parking plan

06/03/2020
C232card

None specified.

### 7.0 Design standards for car parking

06/03/2020
C232card

None specified.

### 8.0 Decision guidelines for car parking plans

06/03/2020
C232card

None specified.

### 9.0 Background document

06/03/2020
C232card

*Officer Precinct Structure Plan September 2011 (Amended November 2019)* .

## 45.11 INFRASTRUCTURE CONTRIBUTIONS OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **ICO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify the area where an infrastructure contributions plan applies for the purpose of imposing contributions for the provision of infrastructure.

To identify the infrastructure contribution imposed for the development of land.

### 45.11-1 Infrastructure contributions plan

15/05/2018
VC146

A schedule to this overlay must specify the name of the infrastructure contributions plan to which it applies.

The requirements of the relevant infrastructure contributions plan incorporated into this scheme apply to the development of land covered by this overlay.

### 45.11-2 Permit requirement

15/05/2018
VC146

A permit must not be granted to subdivide land, construct a building or construct or carry out works until an infrastructure contributions plan has been incorporated into this scheme.

This does not apply to the construction of a building, the construction or carrying out of works or a subdivision specifically excluded by a schedule to this overlay.

A permit granted must:

- Be consistent with the provisions of the relevant infrastructure contributions plan.
- Include any conditions required to give effect to any levies set out in the relevant schedule to this overlay.

### 45.11-3 Monetary component

15/05/2018
VC146

A schedule to this overlay must specify, if applicable:

- The standard levy rate payable.
- The supplementary levy rate payable.

### 45.11-4 Land component

15/05/2018
VC146

A schedule to this overlay must specify, if applicable:

- The infrastructure contributions plan land contribution percentage for each class of development.
- The parcel contribution percentage for each parcel of land in the infrastructure contributions plan area.
- The land credit amount or land equalisation amount in respect of each parcel of land in the infrastructure contributions plan area.

### 45.11-5 Indexation

15/05/2018
VC146

A schedule to this overlay must specify:

- The method and timing of indexation to be applied to the standard levy rate and any supplementary levy rate of the monetary component.
- The method and timing of adjustment to be applied to the land credit amounts and land equalisation amounts of the land component.

## 45.11-6 Land or development exempt from infrastructure contributions

20/03/2023
VC229

The following land or development of land is exempt from an infrastructure contribution:

- A non-government school.
- Housing provided by or on behalf of the Department of Families, Fairness and Housing.
- For any other land or development of land specified in a schedule to this overlay.

21/01/2021
C251card

# SCHEDULE 1 TO CLAUSE 45.11 INFRASTRUCTURE CONTRIBUTIONS OVERLAY

Shown on the planning scheme map as **ICO1.**

**PAKENHAM EAST INFRASTRUCTURE CONTRIBUTIONS PLAN, JULY 2020**

## 1.0 Permit requirement

21/01/2021
C251card

None specified.

## 2.0 Monetary component – Standard levy

21/01/2021
C251card

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Residential development | Community and recreation construction | $109,361.11 |
| | Transport construction | $108,401.89 |
| | **Total standard levy rate payable** | $217,763.00 |
| Commercial and Industrial development | Community and recreation construction | $0 |
| | Transport construction | $126,713.00 |
| | **Total standard levy rate payable** | $126,713.00 |

## 3.0 Monetary component – Supplementary levy

21/01/2021
C251card

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| None specified | None specified | None specified |
| | **Total supplementary levy rate payable** | **None specified** |

## 4.0 Infrastructure Contribution Plan (ICP) land contribution percentage

21/01/2021
C251card

| Class of development | ICP land contribution percentage |
|---|---|
| Residential | 10.94% |
| Commercial and industrial | 0.61% |

## 5.0 Land component

21/01/2021
C251card

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| 1 | Residential | 0.00% | $0.00 | $1,438,388.10 |
| 2 | Residential | 0.00% | $0.00 | $1,548,601.60 |
| 3 | Residential | 0.00% | $0.00 | $1,248,130.58 |
| 4 | Residential | 0.00% | $0.00 | $773,351.45 |
| 5 | Residential | 0.00% | $0.00 | $1,069,988.32 |
| 6 | Residential | 6.38% | $0.00 | $2,655,152.90 |
| 7 | Residential | 1.17% | $0.00 | $3,238,645.96 |

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| 8 | Residential | 10.65% | $0.00 | $188,094.27 |
| 9 | Residential | 30.84% | $11,691,231.49 | $0.00 |
| 10 | Residential | 0.00% | $0.00 | $501,520.53 |
| 11 | Residential | 0.00% | $0.00 | $164,966.56 |
| 12 | Residential | 0.00% | $0.00 | $0.00 |
| 13 | Residential | 0.00% | $0.00 | $0.00 |
| 14 | Residential | 21.02% | $10,410,021.35 | $0.00 |
| 15 | Residential | 0.00% | $0.00 | $0.00 |
| 16 | Residential | 0.92% | $0.00 | $242,839.75 |
| 17 | Residential | 0.00% | $0.00 | $229,394.29 |
| 18 | Residential | 0.00% | $0.00 | $248,307.55 |
| 19 | Residential | 0.00% | $0.00 | $272,630.87 |
| 20 | Residential | 0.00% | $0.00 | $296,205.12 |
| 21 | Residential | 0.00% | $0.00 | $313,646.29 |
| 22 | Residential | 0.00% | $0.00 | $316,853.87 |
| 23 | Residential | 0.00% | $0.00 | $198,117.03 |
| 24 | Residential | 0.00% | $0.00 | $130,788.84 |
| 25 | Residential | 0.00% | $0.00 | $362,677.39 |
| 26 | Residential | 0.00% | $0.00 | $301,979.09 |
| 27 | Residential | 0.00% | $0.00 | $0.00 |
| 28 | Residential | 100.00% | $2,571,080.55 | $0.00 |
| 29 | Residential | 16.30% | $1,662,578.58 | $0.00 |
| 30 | Residential | 0.00% | $0.00 | $3,511,807.52 |
| 31 | Residential | 8.78% | $0.00 | $725,912.34 |
| 32 | Residential | 9.86% | $0.00 | $150,336.51 |
| 33 | Residential | 10.06% | $0.00 | $57,873.40 |
| 34 | Residential | 15.30% | $5,110,838.51 | $0.00 |
| 35-E | Employment | 0.00% | $0.00 | $9,806.43 |
| 35-R | Residential | 9.01% | $0.00 | $933,652.10 |
| 36 | Residential | 4.64% | $0.00 | $5,070,732.49 |
| 37 | Residential | 0.00% | $0.00 | $200,068.94 |
| 38 | Residential | 3.18% | $0.00 | $4,474,905.74 |
| 39 | Residential | 5.02% | $0.00 | $1,931,816.59 |
| 40 | Residential | 45.86% | $13,099,963.23 | $0.00 |
| 41 | Residential | 0.00% | $0.00 | $0.00 |

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| 42 | Residential | 4.38% | $0.00 | $3,774,128.78 |
| 43 | Residential | 14.57% | $222,087.39 | $0.00 |
| 44 | Residential | 0.00% | $0.00 | $558,175.63 |
| 45 | Residential | 0.00% | $0.00 | $104,717.59 |
| 46 | Residential | 0.00% | $0.00 | $316,209.01 |
| 47 | Residential | 0.00% | $0.00 | $5,224,706.18 |
| 48 | Residential | 0.00% | $0.00 | $100,941.17 |
| 49 | Residential | 8.07% | $0.00 | $815,190.96 |
| 50 | Residential | 0.00% | $0.00 | $1,066,539.39 |
| 51 | Residential | 0.00% | $0.00 | $0.00 |
| 52 | Residential | 0.00% | $0.00 | $0.00 |
| 53 | Residential | 0.00% | $0.00 | $0.00 |
| 54 | Residential | 0.00% | $0.00 | $0.00 |
| R1 (Deep Creek Road) | Residential | 0.00% | $0.00 | $0.00 |
| R2 (Dore Road) | Residential | 0.00% | $0.00 | $0.00 |
| R3 (Mt. Ararat Nth Road) | Residential | 0.00% | $0.00 | $0.00 |
| R4 (Princes Hwy) | Residential | 0.00% | $0.00 | $0.00 |
| R5 (Ryan Road) | Residential | 0.00% | $0.00 | $0.00 |
| R6 (Canty La) | Residential | 0.00% | $0.00 | $0.00 |
| R7 (Unnamed) | Residential | 0.00% | $0.00 | $0.00 |
| R8 (Mt. Ararat Sth Road) | Residential | 0.00% | $0.00 | $0.00 |

*Notes:* *Refer to Plan 01 of the incorporated Pakenham East Infrastructure Contributions Plan for PSP parcel ID numbers.*

## 6.0 Method and timing of indexation – Standard levy rate

21/01/2021
C251card

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Community and recreation construction | Australian Bureau of Statistics Producer Price Index for Non-Residential Building Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |
| Transport construction | Australian Bureau of Statistics Producer Price Index for Road and Bridge Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |

## 7.0 Method and timing of indexation – Supplementary levy rate

21/01/2021
C251card

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| None specified | None specified | None specified |

## 8.0 Method and timing of adjustment – Land component

21/01/2021
C251card

| Adjustment method | Timing |
|---|---|
| A revised estimate of inner public purpose land value report prepared in accordance with the methodology specified in the Ministerial Direction on the Preparation and Content of Infrastructure Contributions Plans | 1 July each third year |
| Relevant public land index prepared by Valuer-General Vicotria for the 12 month period occuring immeidately before the beginning of the financial year in respect of which the indexted rate is being determined | 1 July each year a revised estimate is not being prepared |

## 9.0 Land or development exempt from payment of an infrastructure contribution

21/01/2021
C251card

- Use and development associated with a dwelling that is existing or approved at the approval date of this provision.
- Use and development for a non-government school.
- Use and development for accommodation provided by or on behalf of the Department of Health and Human Services.

*Notes:* *This schedule sets out the levies prescribed in the infrastructure contributions plan. Refer to the incorporated Pakenham East Infrastructure Contributions Plan for full details.*

02/08/2024
C273card

## SCHEDULE 2 TO CLAUSE 45.11 INFRASTRUCTURE CONTRIBUTIONS OVERLAY

Shown on the planning scheme map as **ICO2.**

**PAKENHAM SOUTH EMPLOYMENT INFRASTRUCTURE CONTRIBUTIONS PLAN, MAY 2023**

### 1.0 Permit requirement

02/08/2024
C273card

None specified.

### 2.0 Monetary component – Standard levy

02/08/2024
C273card

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Commercial and Industrial development | Community and recreation construction | $0 |
| | Transport construction | $129,862 |
| | **Total standard levy rate payable** | **$129,862** |

### 3.0 Monetary component – Supplementary levy

02/08/2024
C273card

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| None specified | None specified | None specified |
| | **Total supplementary levy rate payable** | **None specified** |

### 4.0 Infrastructure Contribution Plan (ICP) land contribution percentage

02/08/2024
C273card

| Class of development | ICP land contribution percentage |
|---|---|
| Commercial and Industrial | 4.77% |

### 5.0 Land component

02/08/2024
C273card

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| 1 | Industrial | 6.14% | $1,636,465 | $0.00 |
| 2 | Industrial | 8.30% | $2,936,697 | $0.00 |
| 3 | Industrial | 3.09% | $0.00 | $70,466 |
| 4 | Industrial | 2.80% | $0.00 | $2,100,402 |
| 5 | Industrial | 4.19% | $0.00 | $2,402,292 |

### 6.0 Method and timing of indexation – Standard levy rate

02/08/2024
C273card

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Transport | Australian Bureau of Statistics Producer Price Index for Road and Bridge Construction Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |

## 7.0 Method and timing of indexation – Supplementary levy rate

02/08/2024
C273card

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| None specified | None specified | None specified |

## 8.0 Method and timing of adjustment – Land component

02/08/2024
C273card

| Adjustment method | Timing |
|---|---|
| A revised estimate of inner public purpose land value report prepared in accordance with the methodology specified in the Ministerial Direction on the Preparation and Content of Infrastructure Contributions Plans | 1 July each third year |
| Relevant public land index prepared by Valuer-General Victoria for the 12 month period occurring immediately before the beginning of the financial year in respect of which the indexed rate is being determined | 1 July each year a revised estimate is not being prepared |

## 9.0 Land or development exempt from payment of an infrastructure contribution

02/08/2024
C273card

- None specified.

*Notes:* *This schedule sets out the levies prescribed in the infrastructure contributions plan. Refer to the incorporated Pakenham South Employment Infrastructure Contributions Plan for full details.*

27/02/2025
C274card

# SCHEDULE 3 TO CLAUSE 45.11 INFRASTRUCTURE CONTRIBUTIONS OVERLAY

Shown on the planning scheme map as **ICO3**

**OFFICER SOUTH (EMPLOYMENT) INFRASTRUCTURE CONTRIBUTIONS PLAN NOVEMBER 2024**

## 1.0 Permit requirement

27/02/2025
C274card

None specified

## 2.0 Monetary component – Standard levy

27/02/2025
C274card

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Residential development | Community and recreation construction | $109,088.00 |
| | Transport construction | $147,562.00 |
| | **Total standard levy rate payable** | **$256,650.00** |
| Commercial and Industrial development | Transport construction | $147,562.00 |
| | **Total standard levy rate payable** | **$147,562.00** |

## 3.0 Monetary component – Supplementary levy

27/02/2025
C274card

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Residential development | Transport construction | $117,632.14 |
| | **Total supplementary levy rate payable** | **$117,632.14** |
| Commercial and Industrial development | Transport construction | $117,632.14 |
| | **Total supplementary levy rate payable** | **$117,632.14** |

## 4.0 Infrastructure Contribution Plan (ICP) land contribution percentage

27/02/2025
C274card

| Class of development | ICP land contribution percentage |
|---|---|
| Residential development | 23.16% |
| Commercial and Industrial development | 5.68% |

## 5.0 Land component

27/02/2025
C274card

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| OS-01 | Employment | - | - | - |
| OS-02 | Employment | - | - | $1,489,632.32 |
| OS-03 | Employment | - | - | $1,599,970.96 |
| OS-04 | Employment | - | - | - |
| OS-05 | Employment | - | - | $578,202.37 |

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| OS-06 | Employment | - | - | $192,227.65 |
| OS-07 | Employment | 3.58% | - | $1,530,854.99 |
| OS-08 | Employment | - | - | $2,036,721.89 |
| OS-09 | Employment | - | - | $233,046.06 |
| OS-10 | Employment | - | - | $375,997.88 |
| OS-11 | Residential | 10.29% | - | $7,573,883.15 |
| OS-12 | Employment | 6.17% | $648,634.98 | - |
| OS-13 | Employment | - | - | $155,585.52 |
| OS-14 | Employment | 3.91% | - | $716,607.93 |
| OS-15 | Employment | 2.96% | - | $932,706.98 |
| OS-16 | Employment | 20.69% | $4,673,873.00 | - |
| OS-17 | Employment | - | - | $147,505.99 |
| OS-18 | Employment | - | - | $2,321,292.84 |
| OS-19 | Employment | - | - | $192,209.16 |
| OS-20 | Employment | 16.41% | $438,244.70 | - |
| OS-21 | Employment | 2.87% | - | $1,029,668.73 |
| OS-22 | Employment | 3.70% | - | $651,099.45 |
| OS-23 | Employment | 1.74% | - | $1,259,337.55 |
| OS-24 | Employment | 7.48% | $318,199.99 | - |
| OS-25 | Residential | 15.10% | - | $5,821,275.67 |
| OS-26 | Employment | 100.00% | $179,217.10 | - |
| OS-28 | Employment | 6.36% | $1,480,032.05 | - |
| OS-29 | Employment | 4.16% | - | $83,681.88 |
| OS-30E | Employment | 8.11% | $1,819,981.28 | - |
| OS-30R | Residential | 38.54% | $5,769,038.85 | - |
| OS-31E | Employment | 12.50% | $4,961,631.44 | - |
| OS-31R | Residential | 62.14% | $15,166,274.01 | - |
| OS-32 | Employment | 1.37% | - | $13,393,146.27 |
| OS-33 | Employment | 100.00% | $235,811.97 | - |
| OS-34 | Employment | 99.12% | $377,096.56 | - |
| OS-35 | Employment | - | - | $3,987,357.68 |
| OS-36 | Employment | 12.15% | $12,432,097.64 | - |
| OS-37 | Employment | 9.88% | $2,965,837.45 | - |
| OS-38 | Employment | - | - | - |
| OS-39 | Employment | 21.62% | $10,752,549.14 | - |

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| OS-40 | Employment | 26.73% | $5,766,124.04 | - |
| OS-41 | Employment | 2.34% | - | $2,585,142.01 |
| OS-42 | Employment | - | - | $324,025.73 |
| OS-43 | Employment | - | - | $896,293.39 |
| OS-44 | Employment | 2.85% | - | $3,367,910.06 |
| OS-45 | Employment | - | - | $4,670,591.55 |
| OS-46 | Employment | - | - | $3,254,548.05 |
| OS-47 | Employment | - | - | $1,202,363.05 |
| OS-48 | Employment | 2.37% | - | $4,732.960.57 |
| OS-49 | Employment | - | | - |
| OS-50 | Employment | - | - | - |
| OS-51 | Employment | - | - | - |
| OS-52 | Employment | - | - | - |
| OS-53 | Employment | - | - | - |
| OS-54 | Employment | - | - | - |
| OS-55 | Employment | - | - | - |
| OS-56 | Employment | - | - | - |
| OS-57 | Employment | - | - | - |
| OS-58 | Employment | - | - | - |
| OS-59 | Employment | - | - | - |
| OS-60 | Employment | - | - | - |
| OS-R1 | Employment | - | - | $524.170.11 |
| OS-R2 | Employment | - | - | $124,626.77 |
| OS-R3 | Residential | - | - | - |
| OS-R4 | Employment | - | - | - |
| OS-R5 | Employment | - | - | - |
| OS-R6 | Employment | - | - | - |

Note: Refer to Plan 01 of the incorporated Officer South (Employment) Infrastructure Contributions Plan for PSP parcel ID numbers.

## 6.0 Method and timing of indexation – Standard levy rate

27/02/2025
C274card

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Community and recreation construction | Australian Bureau of Statistics Producer Price Index for Non-Residential Building Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Transport construction | Australian Bureau of Statistics Producer Price Index for Road and Bridge Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries | 1 July each year |

## 7.0 Method and timing of indexation – Supplementary levy rate

27/02/2025
C274card

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Transport construction | Australian Bureau of Statistics Producer Price Index for Road and Bridge Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |

## 8.0 Method and timing of adjustment – Land component

27/02/2025
C274card

| Adjustment method | Timing |
|---|---|
| A revised estimate of inner public purpose land value report prepared in accordance with the methodology specified in the Ministerial Direction on the Preparation and Content of Infrastructure Contributions Plans | 1 July each year |
| Relevant public land index prepared by Valuer-General Victoria for the 12 month period occurring immediately before the beginning of the financial year in respect of which the indexed rate is being determined | 1 July each year a revised estimate is not being prepared |

## 9.0 Land or development exempt from payment of an infrastructure contribution

27/02/2025
C274card

- Use and development for a non government school.
- Use and development associated with a dwelling that is existing or approved at the approval date of this provision.
- Use and development for accommodation provided by or on behalf of the Department of Health and Human Services.
- Use and development associated with the freeway service centre at 94 Princes Freeway, Officer 3809 (Lot 1 on PS602632 in certificate of title volume 11131 folio 091).

*Notes:* *This schedule sets out the levies prescribed in the infrastructure contributions plan. Refer to the incorporated infrastructure contributions plan for full details.*

## 45.12 SPECIFIC CONTROLS OVERLAY

04/05/2022
VC210

Shown on the planning scheme map as **SCO** with a number.

### Purpose

To apply specific controls designed to achieve a particular land use and development outcome in extraordinary circumstances.

## 45.12-1 Use or development

31/07/2018
VC148

Land affected by this overlay may be used or developed in accordance with a specific control contained in the incorporated document corresponding to the notation on the planning scheme map (as specified in the schedule to this overlay). The specific control may:

- Allow the land to be used or developed in a manner that would otherwise be prohibited or restricted.
- Prohibit or restrict the use or development of the land beyond the controls that may otherwise apply.
- Exclude any other control in this scheme.

## 45.12-2 Expiry of a specific control

31/07/2018
VC148

If a specific control contained in an incorporated document identified in the schedule to this clause allows a particular use or development, that control will expire if any of the following circumstances applies:

- The use and development is not started within two years of the approval date of the incorporated document or another date specified in the incorporated document.
- The development is not completed within one year of the date of commencement of works or another date specified in the incorporated document.

The responsible authority may extend the periods referred to if a request is made in writing before the expiry date or within three months afterwards.

Upon expiry of the specific control, the land may be used and developed only in accordance with the provisions of this scheme.

29/10/2018
GC103

# SCHEDULE TO CLAUSE 45.12 SPECIFIC CONTROLS OVERLAY

## 1.0

28/08/2026
C289card

## Specific controls

| PS Map Ref | Name of incorporated document |
|---|---|
| SCO1 | Monash Freeway Upgrade Project (Stage 2) Incorporated Document, August 2018 |
| SCO2 | Site specific control – Lots 1-3 LP 41796, 100 Beaconsfield-Emerald Road, Beaconsfield, December 2008 |
| SCO3 | Site Specific control under the Schedule to Clause 51.01 of the Cardinia Planning Scheme Lot B PS443268J Dixons Road, Cardinia February 2008 |
| SCO4 | Site Specific Control – Lot 9 LP65205, 22-30 Downey Road, Dewhurst, October 2011 |
| SCO5 | Site specific control CA85, 8 Drake Court, Bunyip September 2013 |
| SCO6 | Site Specific Control - Lot 1 PS301568Q No. 322 Brown Road, Officer. September 2014 |
| SCO7 | Site specific control - Lot 3 LP90591, 20 Split Rock Road, Beaconsfield Upper, October 2014 |
| SCO8 | Site specific control - 16 Beaconsfield-Emerald Road, Emerald (Lot 1 PS 702042V) July 2015 |
| SCO9 | Victorian Desalination Project – Infrastructure Protection Incorporated Document, Minister for Planning, January 2026 |
| SCO10 | Healesville-Koo Wee Rup Road (Princes Freeway to Manks Road) Incorporated Document, December 2019 |
| SCO13 | Gippsland Line Upgrade - Corridor Works Incorporated Document, November 2019 |
| SCO14 | Officer South Employment Development Staging Incorporated Document, April 2026 |

## 50 PARTICULAR PROVISIONS

19/01/2006
VC37

This section sets out Particular Provisions which apply to the matters specified.

# 51 PROVISIONS THAT APPLY ONLY TO A SPECIFIED AREA

31/07/2018
VC148

# 51.01 SPECIFIC SITES AND EXCLUSIONS

31/07/2018
VC148

## Purpose

To recognise specific controls designed to achieve a particular land use and development outcome existing on the approval date.

To provide in extraordinary circumstances specific controls designed to achieve a particular land use and development outcome.

## 51.01-1 Use or development

31/07/2018
VC148

Land identified in the schedule to this clause may be used or developed in accordance with the specific controls contained in the incorporated document corresponding to that land. The specific controls may:

- allow the land to be used or developed in a manner that would otherwise be prohibited or restricted;
- prohibit or restrict the use or development of the land beyond the controls that may otherwise apply;
- exclude any other control in this scheme.

## 51.01-2 Expiry of a specific control

31/07/2018
VC148

If a specific control contained in an incorporated document identified in the schedule to this clause allows a particular use or development, that control will expire if any of the following circumstances applies:

- The development and use is not started within two years of the approval date or another date specified in the incorporated document.
- The development is not completed within one year of the date of commencement of works or another date specified in the incorporated document.

The responsible authority may extend the periods referred to if a request is made in writing before the expiry date or within three months afterwards.

Upon expiry of the specific control, the land may be used and developed only in accordance with the provisions of this scheme.

20/12/2018
C252card

# SCHEDULE TO CLAUSE 51.01 SPECIFIC SITES AND EXCLUSIONS

1.0
10/06/2021
C254card

## Specific sites and exclusions

| Address of land | Title of incorporated document |
|---|---|
| The Victorian Desalination Project Land as identified in the incorporated document | Victorian Desalination Project Incorporated Document, June 2009 |
| The land contained in Lot 2 LP210795A, Lot 6 PS407947R and Lot 2 PS522873B. | Officer Town Centre Civic Office Development Incorporated Document, June 2011 |
| The Healesville – Koo Wee Rup Road upgrade project between the Pakenham Bypass and the South Gippsland Highway as shown on the project area maps and identified in the incorporated document. | Healesville – Koo Wee Rup Road – Stage 1A (Koo Wee Rup Bypass) – Incorporated Document (September 2012) |
| Bessie Creek Road and Princes Freeway, Nar Nar Goon as identified in the incorporated document. | Site Specific Control – Bessie Creek Road, Nar Nar Goon, October 2014 |
| The Pakenham East Train Maintenance Depot land as shown on the project area maps and identified in the incorporated document. | Pakenham East Train Maintenance Depot Incorporated Document, March 2016 |
| The Caulfield Dandenong Rail Upgrade Project land as shown on the maps in the incorporated document. | Caulfield Dandenong Rail Upgrade Project, Incorporated Document, April 2016 |
| The Monash Freeway Upgrade Project land as shown on the project area maps in the incorporated document. | Monash Freeway Upgrade Project Incorporated Document, March 2016 |
| CA 51A, 335 McGregor Road, Pakenham | Site Specific Control CA 51A, 335 McGregor Road, Pakenham February 2017 |
| The land associated with the Puffing Billy Lakeside Station Precinct as shown on the map in the incorporated document. | Puffing Billy Railway Discovery Centre Incorporated Document, August 2018 |
| The land identified in Clause 3.0 of the Melbourne Metro Rail Project: Upgrades to the Rail Network Incorporated Document, May 2018. | Melbourne Metro Rail Project: Upgrades to the Rail Network Incorporated Document, May 2018. |

# 51.02 METROPOLITAN GREEN WEDGE LAND: CORE PLANNING PROVISIONS

31/07/2018
VC148

## Purpose

To protect metropolitan green wedge land from uses and development that would diminish its agricultural, environmental, cultural heritage, conservation, landscape natural resource or recreation values.

To protect productive agricultural land from incompatible uses and development.

To ensure that the scale of use is compatible with the non-urban character of metropolitan green wedge land.

To encourage the location of urban activities in urban areas.

To provide transitional arrangements for permit applications made to the responsible authority before 19 May 2004.

To provide deeming provisions for metropolitan green wedge land.

## 51.02-1 Application

20/10/2026
VC317

These provisions apply to land in Metropolitan Melbourne that is outside an Urban Growth Boundary as shown on a planning scheme map in this scheme, unless any of the following apply:

- The land is in a Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Low Density Residential Zone, Mixed Use Zone, Township Zone, Industrial 1 Zone, Industrial 2 Zone, Industrial 3 Zone, Commercial 1 Zone, Commercial 2 Zone, Commercial 3 Zone, Public Use Zone, Public Park and Recreation Zone, Public Conservation and Resource Zone, Transport Zone, Urban Floodway Zone or Flood Management Zone.
- The land is identified in the schedule to this clause.

## 51.02-2 Use of land

01/01/2024
VC250

A use listed in the table to this clause is prohibited. This does not apply if a condition opposite the use is met.

**Table to Clause 51.02-2**

| Use | Condition |
|---|---|
| **Accommodation (other than Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential building and Small second dwelling)** | |
| **Cinema based entertainment facility** | |
| **Display home centre** | |
| **Dwelling** | Must be the only dwelling on the lot. This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling. |
| **Education centre (other than Primary school and Secondary school)** | |
| **Freeway service centre** | |

| Use | Condition |
|---|---|
| **Freezing and cool storage** | The goods stored must be agricultural produce, or products used in agriculture. |
| **Function centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>No more than 150 patrons may be present at any time. If used in conjunction with Restaurant, the total number of patrons present at any time must not exceed 150. |
| **Funeral parlour** | |
| **Group accommodation** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>Must be no more than 40 dwellings. |
| **Hospital** | |
| **Indoor recreation facility** | Must be for equestrian based leisure, recreation or sport. |
| **Industry (other than Materials recycling, Refuse disposal, Transfer station, Research and development centre, and Rural industry)** | |
| **Major sports and recreation facility** | Must be for outdoor leisure, recreation or sport. |
| **Manufacturing sales** | Must be an incidental part of Rural industry. |
| **Materials recycling** | Must be used in conjunction with Refuse disposal or Transfer station. |
| **Motor racing track**<br>**Nightclub**<br>**Office** | |
| **Place of assembly (other than Carnival, Cinema based entertainment facility, Circus, Exhibition centre, Function centre, Hall, Nightclub, Place of worship and Restricted place of assembly)** | Must not be used for more than 10 days in a calendar year. |
| **Research and development centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery. |
| **Research centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery. |

| Use | Condition |
|---|---|
| **Residential building (other than Residential hotel)** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>Must be used to provide accommodation for persons away from their normal place of residence. |
| **Residential hotel** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>Must be no more than 80 bedrooms. |
| **Restaurant** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>No more than 150 patrons may be present at any time. If used in conjunction with Function centre, the total number of patrons present at any time must not exceed 150. |
| **Restricted place of assembly** | Must not be used for more than 30 days in a calendar year. |
| **Retail premises (other than Manufacturing sales, Market, Plant nursery, Primary produce sales and Restaurant)**<br>**Service station** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Warehouse (other than Freezing and cool storage, Milk depot, Rural store, Solid fuel depot and Vehicle store)** | |
| **Wind energy facility** | Must not be on land in a Rural Conservation Zone. |

## 51.02-3 Subdivision

31/07/2018
VC148

The subdivision of land to create a lot that is smaller in area than the minimum area specified for the land in the zone is prohibited unless:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

## 51.02-4 Existing uses

31/07/2018
VC148

If an existing use right is established by these provisions, Clauses 63.05 and 63.08 apply to the use as if the use were in Section 3 of a zone.

## 51.02-5 Transitional arrangements for permit applications

31/07/2018
VC148

The requirements of the planning scheme as in force immediately before 19 May 2004, continue to apply to a permit application made before that date to the extent that, but for this clause, Clauses 35.04, 35.05, 35.06 or this clause would apply to such an application. This does not apply to a permit application to subdivide land.

## 51.02-6 Deeming provisions for land outside an urban growth boundary

31/07/2018
VC148

Any reference in this planning scheme to a Rural Zone or a schedule to a Rural Zone as it applies to land outside an Urban Growth Boundary is deemed to be a reference to a Green Wedge Zone or a schedule to a Green Wedge Zone.

Any reference in this planning scheme to a Rural Living Zone or a schedule to a Rural Living Zone as it applies to land outside an Urban Growth Boundary is deemed to be a reference to a Green Wedge A Zone or a schedule to a Green Wedge A Zone.

Any reference in this planning scheme to an Environmental Rural Zone or a schedule to an Environmental Rural Zone as it applies to land outside an Urban Growth Boundary is deemed to be a reference to a Rural Conservation Zone or a schedule to a Rural Conservation Zone.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 51.02 METROPOLITAN GREEN WEDGE LAND: CORE PLANNING PROVISIONS

## 1.0 Land where core planning provisions do not apply

10/06/2021
C254card

| Land |
| --- |
| Special Use Zone 3, Tynong Racecourse and Training Facility |

# 52 PROVISIONS THAT REQUIRE, ENABLE OR EXEMPT A PERMIT

31/07/2018
VC148

# 52.01 COMBUSTIBLE CLADDING RECTIFICATION EXEMPTIONS

05/11/2020
VC191

## Purpose

To facilitate the rectification of combustible cladding on buildings.

## 52.01-1 Permit exemption

05/11/2020
VC191

Any requirement of this planning scheme to obtain a permit does not apply to the rectification of combustible cladding on a building:

- In accordance with an emergency order, building notice or building order made under Part 8 of the *Building Act 1993*.
- Owned by the Crown, a Minister, municipal council or public authority, including a public authority established for a public purpose under a Commonwealth Act.

## 52.01-2 Exemption from notice and review

05/11/2020
VC191

An application to amend a permit to allow the rectification of combustible cladding on a building:

- In accordance with an emergency order, building notice or building order made under Part 8 of the *Building Act 1993*; or
- Owned by the Crown, a Minister, municipal council or public authority, including a public authority established for a public purpose under a Commonwealth Act,

is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

# 52.02 EASEMENTS, RESTRICTIONS AND RESERVES

04/02/2026
VC265

## Purpose

To enable the removal and variation of an easement or restrictions to enable a use or development that complies with the planning scheme after the interests of affected people are considered.

## Permit requirement

A permit is required before a person proceeds:

- Under Section 23 of the *Subdivision Act 1988* to create, vary or remove an easement or restriction, or vary or remove a condition in the nature of an easement in a Crown grant.
- Under Section 24A of the *Subdivision Act 1988*.
- Under Section 36 of the *Subdivision Act 1988* to acquire or remove an easement or remove a right of way.

This does not apply:

- If the action is required or authorised by the schedule to this clause.
- In the circumstances set out in Section 6A(3) of the *Planning and Environment Act 1987*.
- If the person proceeds under Section 362A of the *Land Act 1958*.
- In the case of a person proceeding under Section 36 of the *Subdivision Act 1988*, if the council or a referral authority gives a written statement in accordance with Section 36(1)(a) or (b) of the *Subdivision Act 1988*.

In this clause, **restriction** has the same meaning as in the *Subdivision Act 1988*.

## Decision guidelines

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider the interests of affected people.

*Note: Section 23 of the Subdivision Act 1988 provides that either the council or the person benefiting from the direction must lodge a certified plan at the Titles Office for registration.*

03/05/2018
C230

# SCHEDULE TO CLAUSE 52.02 EASEMENTS, RESTRICTIONS AND RESERVES

## 1.0 Under Section 23 of the Subdivision Act 1988

19/01/2006
VC37

| Land | Easement or restriction | Requirement |
|---|---|---|
| None specified | | |

## 2.0 Under Section 24A of the Subdivision Act 1988

03/05/2018
C230

| Land | Person | Action |
|---|---|---|
| Recreation Reserve on LP91451, being 17 Leonard Court, Pakenham | Cardinia Shire Council | Remove the reservation from a 3 metre wide section of the land adjoining 19 Leonard Court. |
| Reserve for Municipal & Drainage Purposes on Plan of Subdivision No. 132710, south west corner of Princes Highway and Hope Street, Bunyip. | Cardinia Shire Council | Remove the reservation. |
| Reserve No. 1 PS439899U (formerly LP LP43302), Kevis Court, Garfield | Cardinia Shire Council | Remove the reservation from that part of the land in the General Residential Zone –Schedule 1. |

## 3.0 Under Section 36 of the Subdivision Act 1988

19/01/2006
VC37

| Land | Easement or right of way | Requirement |
|---|---|---|
| None specified | | |

# 52.03 STATE RAIL PROJECTS

25/11/2025
VC298

## Purpose

To facilitate the delivery of projects carried out by or on behalf of VIDA Rail.

## 52.03-1 Application

25/11/2025
VC298

This clause applies to the use and development of land (other than the subdivision of land) for projects carried out by or on behalf of VIDA Rail and declared under section 10(1)(b) of the *Major Transport Projects Facilitation Act 2009*.

This clause does not apply to a project for which a document has been incorporated into this planning scheme expressly for that project.

## 52.03-2 Exemption from planning scheme requirements

25/11/2025
VC298

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to any use or development carried out pursuant to Clause 52.03 if the requirements of Clause 52.03 are met.

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.03-3 Use and development requirements

20/10/2026
VC317

The use and development of land must be undertaken in accordance with the plans and documents approved under this clause, to the satisfaction of the Minister for Planning.

The construction of a building or the construction or carrying out of works in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay, Urban Floodway Zone, Flood Management Overlay or Flood Management Zone must be undertaken to the satisfaction of the relevant floodplain management authority.

The creation or alteration of access to a road in a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of acquisition is for a road, must be undertaken to the satisfaction of the Head, Transport for Victoria.

The use and development of land in a Public Acquisition Overlay must be undertaken to the satisfaction of the relevant acquiring authority.

## 52.03-4 Consultation requirement

31/01/2020
VC170

Prior to the commencement of the use or development:

- Public consultation, and consultation with the relevant municipal council, must be undertaken to the satisfaction of the Minister for Planning.
- A report that summarises the feedback provided during consultation and explains how the feedback has been considered and responded to must be prepared to the satisfaction of the Minister for Planning.

## 52.03-5 Project boundary requirement

31/01/2020
VC170

Prior to the commencement of the use or development, a plan that shows the boundary of the land on which the use or development will be undertaken must be prepared to the satisfaction of the Minister for Planning.

## 52.03-6 Other pre-commencement requirements

04/05/2022
VC210

The following requirements may be satisfied for separate components or stages of a project but each requirement must be satisfied prior to the commencement of the use or development for that component or stage.

The following requirements may be varied or waived by the Minister for Planning.

Prior to the commencement of the use or development (other than a preparatory use or development), the following plans and documents must be prepared to the satisfaction of the Minister for Planning:

- An environmental management framework, prepared in consultation with each relevant municipal council, that includes:
  - A summary of key construction methodologies.
  - An overarching framework of measures to reduce and manage environmental and amenity effects during construction.
  - A summary of performance monitoring and reporting processes, including auditing, to ensure environmental and amenity effects are reduced and managed during construction.
  - A summary of how each relevant municipal council, the community and other stakeholders will be engaged during construction, including enquiries and complaints management.

  The environmental management framework must be accompanied by a summary of the consultation with each relevant municipal council that informed the preparation of the environmental management framework.
- If the land is in the Heritage Overlay and the development would require a permit under the overlay were it not for the exemption in Clause 52.03-2:
  - A report that addresses the impact of that development on the heritage significance of the heritage place.
  - Site plans and elevations showing the extent of that development on the land.
  - Photographs of any buildings or works to be demolished or removed, including photographs of the exterior and interior of the building and contextual images of the building's environs and setting.
- If the land is in an Environmental Significance Overlay, a Significant Landscape Overlay or a Vegetation Protection Overlay and the development would require a permit under the overlay were it not for the exemption in Clause 52.03-2, a report that addresses the impact of the development on any environmental, vegetation or landscape significance or objective specified in a schedule to the overlay.
- Any other information the Minister for Planning considers necessary to assist the Minister's assessment of the plans and documents required to be submitted under this clause.

Prior to the commencement of the use of any new open space, an environmental assessment (or similar) that demonstrates that the environmental conditions of the land are suitable for that use must be undertaken to the satisfaction of the Minister for Planning.

## 52.03-7 Native vegetation requirements

04/02/2026
VC265

In this clause:

- ***Guidelines*** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning *(as constituted under Part 2 of the Conservation, Forests and Lands Act 1987)*.

The following requirements may be satisfied for separate components or stages of a project. However, each requirement must be satisfied prior to the removal, destruction or lopping of native vegetation for that component or stage.

Prior to the removal, destruction or lopping of native vegetation to enable a preparatory use or development, information about that native vegetation must be submitted to the Secretary. The information must include a description of, and maps showing, the native vegetation to be removed, destroyed or lopped in accordance with application requirement 1 in Table 4 of the Guidelines.

Prior to the removal, destruction or lopping of native vegetation (other than to enable a preparatory use or development):

- Information about that native vegetation in accordance with application requirements 1, 5 and 9 in Table 4 of the Guidelines must be provided to the satisfaction of the Secretary. The information provided to the Secretary must include information about any native vegetation that has been or is to be removed, destroyed or lopped to enable a preparatory use or development.
- The biodiversity impacts from the removal, destruction or lopping of that native vegetation must be offset in accordance with the Guidelines. The biodiversity impacts from the removal, destruction or lopping of native vegetation to enable a preparatory use or development must be included in the total biodiversity impacts when determining the offset.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The Secretary may vary the timing of the above offset requirement if the Secretary considers there are exceptional circumstances to warrant the variation.

The secured offset for the project may be reconciled at the completion of a project in accordance with the *Assessor's handbook – Applications to remove, destroy or lop native vegetation* (Department of Energy, Environment, and Climate Action, 2025).

## 52.03-8 Preparatory use and development

31/01/2020
VC170

For the purposes of Clause 52.03, a preparatory use or development is a use or development required to prepare for the construction of a project. It is limited to the following:

- Use and development that would not require a permit under a provision of this planning scheme were it not for the exemption in Clause 52.03-2.
- Works associated with investigating, testing and surveying land.
- Creation and use of construction access points, accessways and working platforms.
- Site establishment works including construction of temporary site fencing and hoarding, site offices, and hardstand and laydown areas.
- Construction and use of temporary car parking.
- Construction or installation of environment and traffic controls.
- Construction, protection, modification, removal or relocation of utility services, rail signalling, and overhead and associated infrastructure.
- Salvage and relocation of cultural heritage material and other management actions required to be undertaken in compliance with:
  - a cultural heritage management plan approved under the *Aboriginal Heritage Act 2006* or otherwise in compliance with that Act; or
  - the conditions of any permit or consent granted under the *Heritage Act 2017* or otherwise in compliance with that Act.

- Demolition or removal of a building (other than a building in a Heritage Overlay) or works to the minimum extent necessary to enable another preparatory use or development.
- Removal, destruction or lopping of vegetation (other than a tree in the Heritage Overlay specified below) to the minimum extent necessary to enable another preparatory use or development.

For the purposes of Clause 52.03, preparatory development does not include:

- Demolition or removal of a building in a Heritage Overlay.
- Removal, destruction or lopping of a tree in a Heritage Overlay if the schedule to the overlay specifies the heritage place as one where tree controls apply.

# 52.04 TRANSITIONAL PROVISIONS FOR A DEPENDENT PERSONS UNIT

14/12/2023
VC253

## 52.04-1 Purpose

28/03/2024
VC259

To provide transitional provisions for the use or development of land for a dependent person's unit.

## 52.04-2 Application

28/03/2024
VC259

This clause applies to the use and development of land for a dependent person's unit.

For the purposes of clause 52.04 and any reference to a dependent person's unit in this planning scheme, a dependent person's unit means:

*A movable building on the same lot as an existing dwelling and used to provide accommodation for a person dependent on a resident of the existing dwelling.*

## 52.04-3 Exemption from planning scheme requirements

28/03/2024
VC259

Any requirement of this planning scheme to obtain a permit for the use of land or the construction or carrying out of buildings and works, or any provision of this planning scheme that prohibits the use of land or the construction or carrying out of buildings and works, requires the use of land or the construction or carrying out of buildings and works to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to a dependent person's unit, if the requirements of clause 52.04 are met.

The requirements of clause 52.04 are met if any of the following apply:

- No permit is required under this clause, and any requirement or condition of this clause is met.
- A permit is required under this clause, and a permit has been issued.

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.04-4 Operation of use of land requirements

03/03/2025
VC266

The following requirements apply to the use of land for a dependent person's unit, as specified in clause 52.04-5.

### Table 1 zones

The use of land for a dependent person's unit in a zone listed in Table 1 does not require a permit. Any condition opposite the zone listed in Table 1 must be met. If the condition is not met, the use of land for a dependent person's unit requires a permit under this clause unless the zone is specifically included in Table 3 as a zone that does not meet the Table 1 condition.

### Table 2 zones

The use of land for a dependent person's unit in a zone listed in Table 2 requires a permit under this clause. Any condition opposite the zone must be met. If the condition is not met, the use of land for a dependent person's unit is prohibited.

### Table 3 zones

The use of land for a dependent person's unit in a zone listed in Table 3 is prohibited.

## 52.04-5 Use of land requirements

20/10/2026
VC317

### Table 1 - Permit not required

| Zone | Condition |
|---|---|
| **Low Density Residential Zone** | Must be the only dependent person's unit on the lot. |
| **Township Zone** | Must meet the requirements of clause 52.04-7. |
| **Mixed Use Zone**<br>**Residential Growth Zone**<br>**General Residential Zone**<br>**Neighbourhood Residential Zone**<br>**Housing Choice and Transport Zone** | Must be the only dependent person's unit on the lot. |
| **Rural Living Zone** | Must be the only dependent person's unit on the lot. |
| **Rural Activity Zone** | Must meet the requirements of clause 52.04-8.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Farming Zone** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of clause 52.04-8.<br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Commercial 1 Zone** | Any frontage at ground floor level must not exceed 2 metres |
| **Public Use Zone** | The use must be for the purpose described in the table to clause 36.01-6 which corresponds to the notation on the planning scheme map.<br>The use must be carried out by or on behalf of the public land manager. |
| **Public Park and Recreation Zone** | Must be either of the following: |

| Zone | Condition |
|---|---|
| | ▪ A use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forest Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995*, or the *Crown Land (Reserves) Act 1978*.<br>▪ A use specified in an Incorporated plan in a schedule to clause 36.02. |
| **Public Conservation and Resource Zone** | Must be a use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*. |
| **Urban Growth Zone** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of clause 52.04-8. |

**Table 2 - Permit required**

| Zone | Condition |
|---|---|
| **Low Density Residential Zone**<br>**Township Zone** | Must meet the requirements of clause 52.04-7. |
| **Green Wedge Zone**<br>**Green Wedge A Zone**<br>**Rural Conservation Zone** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of clause 52.04-8. |
| **Rural Living Zone**<br>**Farming Zone**<br>**Rural Activity Zone** | Must meet the requirements of clause 52.04-8. |
| **Transport Zone** | The use must be for a transport purpose and carried out by or on behalf of a relevant transport manager. |
| **Urban Growth Zone** | Must meet the requirements of clause 52.04-8. |

**Table 3 - Prohibited**

| Zone |
|---|
| **Flood Management Zone** |
| **Industrial 1 Zone** |
| **Industrial 2 Zone** |
| **Industrial 3 Zone** |
| **Commercial 2 Zone** |
| **Commercial 3 Zone** |
| **Port Zone** |
| **Public Conservation and Resource Zone – If the table 1 condition is not met** |
| **Urban Floodway Zone** |

## 52.04-6 Use of land requirements in a specified special purpose zone

28/02/2025
VC274

If land is in a Special Use Zone, Comprehensive Development Zone, Capital City Zone, Docklands Zone, Priority Development Zone, Activity Centre Zone or Precinct Zone, the permit requirement in that zone for use of land applies as specified in the schedule to the zone.

If dependent person's unit is not specified in a schedule to the zone, the use of land for a dependent person's unit is subject to the use of land requirements for 'Accommodation'.

## 52.04-7 Use of land requirements in a Low Density Residential Zone and a Township Zone

28/03/2024
VC259

A lot used for a dependent person's unit in a Low Density Residential Zone and a Township Zone must meet the following requirements:

- Each dependent person's unit must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dependent person's unit must be treated and retained within the lot in accordance with the requirements in the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- Each dependent person's unit must be connected to a reticulated potable water supply or have an alternative potable water supply, with appropriate storage capacity.
- Each dependent person's unit must be connected to a reticulated electricity supply or have an alternative energy supply.

## 52.04-8 Use of land requirements in a rural zone and an Urban Growth Zone

28/03/2024
VC259

A lot used for a dependent person's unit in a Rural Living Zone, Green Wedge Zone, Green Wedge A Zone, Rural Conservation Zone, Farming Zone, Rural Activity Zone and Urban Growth Zone must meet the following requirements:

- Access to the dependent person's unit must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- Each dependent person's unit must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.

- The dependent person's unit must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dependent person's unit must be connected to a reticulated electricity supply or have an alternative energy source.

## 52.04-9 Use of land requirements in an Airport Environs Overlay, Melbourne Airport Environs Overlay and Flood Management Overlay

20/10/2026
VC317

A permit is required under this clause to use land for a dependent person's unit in the:

- Airport Environs Overlay.
- Melbourne Airport Environs Overlay.
- Flood Management Overlay if the High Flood Risk Schedule or Very High Flood Risk Schedule applies to the land.

Land in an Airport Environs Overlay or a Melbourne Airport Environs Overlay must not be used for:

- More than one dependent person's unit.
- A dependent person's unit if there is an existing small second dwelling on the lot.
- A dependent person's unit if the size of the lot is less than 600 square metres.

## 52.04-10 Buildings and works requirements in a specified overlay

20/10/2026
VC317

A permit is required under the following overlays to construct a building or construct or carry out works for a dependent person's unit:

- Erosion Management Overlay. This does not apply if a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
- Floodway Overlay. This does not apply if a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
- Land Subject to Inundation Overlay. This does not apply if a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
- Special Building Overlay. This does not apply if a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
- Bushfire Management Overlay. This does not apply to any of the following:
  - If a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
  - An alteration or extension to an existing building used for a dependent person's unit that is less than 50 percent of the gross floor area of the existing building.
- Flood Management Overlay.

An application under a Bushfire Management Overlay must meet the requirements of clause 53.02-4, unless the application meets all of the requirements specified in a schedule to clause 44.06.

Any other requirement for a dependent person's unit specified in a schedule to an overlay applies.

## 52.04-11 Decision guidelines

28/03/2024
VC259

Before deciding on an application for a permit under clauses 52.04-5, 52.04-6, 52.04-9 or 52.04-10 the responsible authority must consider the decision guidelines of clause 65, including the decision guidelines of the zone or overlay, as appropriate.

## 52.04-12 Expiry

23/03/2026
VC304

Clauses 52.04-1 to 52.04-11 inclusive do not have effect after 28 March 2027.

## 52.04-13 Transitional provisions

23/03/2026
VC304

**VC253**

The requirements of the planning scheme that applied to the use or development of land (other than subdivision) for a dependent person's unit before the approval date of Amendment VC253 continue to apply:

- To a planning permit application for the use or development of land (other than subdivision) for a dependent person's unit lodged before the approval date of Amendment VC253.
- Where a planning permit was not required for the use or development of land (other than subdivision) for a dependent person's unit before the approval date of Amendment VC253 if one of the following applies:
  - A building permit was issued for the development of land (other than subdivision) for a dependent person's unit before the approval date of Amendment VC253.
  - A building surveyor has been appointed to issue a building permit for the development of land (other than subdivision) for a dependent person's unit before the approval date of Amendment VC253. A building permit must be issued within 3 months of the approval date of Amendment VC253.
  - A building surveyor is satisfied, and certifies in writing, that substantial progress was made on the design of the dependent person's unit before the approval date of Amendment VC253. A building permit must be issued within 3 months of the approval date of Amendment VC253.

**VC259**

Despite clause 52.04-12, the requirements of clause 52.04 of the planning scheme continue to apply:

- To a planning permit application for the use or development of land (other than subdivision) for a dependent person's unit lodged after the approval date of VC259 and before 28 March 2027.
- Where a planning permit was not required for the use or development of land (other than subdivision) for a dependent person's unit after the approval date of VC259 and before 28 March 2027, if one of the following applies:
  - A building permit was issued for the development of land (other than subdivision) for a dependent person's unit after the approval date of VC259 and before 28 March 2027.
  - A building surveyor has been appointed to issue a building permit for the development of land (other than subdivision) for a dependent person's unit after the approval date of VC259 and before 28 March 2027, and a building permit is issued by 28 June 2027.

# 52.05 SIGNS

31/07/2018
VC148

## Purpose

To regulate the development of land for signs and associated structures.

To ensure signs are compatible with the amenity and visual appearance of an area, including the existing or desired future character.

To ensure signs do not contribute to excessive visual clutter or visual disorder.

To ensure that signs do not cause loss of amenity or adversely affect the natural or built environment or the safety, appearance or efficiency of a road.

## 52.05-1 Application

31/07/2018
VC148

This clause applies to the development of land for signs.

## 52.05-2 Requirements

28/02/2025
VC274

### Sign categories

Clauses 52.05-11 to 52.05-14 specify categories of sign control. The zone provisions specify which category of sign control applies to the zone.

Each category is divided into three sections.

If a sign can be interpreted in more than one way, the most restrictive requirement must be met.

### Section 1

A sign in Section 1 of the category may be constructed or put up for display without a permit, but all the conditions opposite the sign must be met. If the conditions are not met, the sign is in Section 2.

Some overlays require a permit for Section 1 signs.

### Section 2

A permit is required to construct or put up for display a sign in Section 2.

This does not apply to a sign specified in Clause 52.05-10.

All the conditions opposite the sign must be met. If the conditions are not met, the sign is prohibited.

### Section 3

A sign in Section 3 is prohibited and must not be constructed or put up for display.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct or put up for display a sign in an industrial zone, commercial zone, Special Use Zone, Comprehensive Development Zone, Docklands Zone, Priority Development Zone, Activity Centre Zone or Precinct Zone if:<br>▪ The sign is not within 30 metres of land (not a road) which is in a residential zone. | Clause 59.09 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| ▪ The sign is not a pole sign, a sky sign, a reflective sign, internally illuminated sign, floodlit sign, electronic sign or animated sign.<br>▪ The display area of the sign does not exceed 10 square metres. | |

## 52.05-3 Referral of applications

31/07/2018
VC148

An application to construct or put up for display an animated or electronic sign within 60 metres of a freeway or arterial road declared under the *Road Management Act 2004* must be referred in accordance with section 55 of the Act to the referral authority specified in Clause 66.03 or a schedule to that clause.

## 52.05-4 Expiry of permits

27/10/2025
VC294

A permit for a major promotion sign expires on the date specified in the permit in accordance with clause 52.05-9. If no date is specified, the expiry date is 15 years from the date of issue of the permit.

A permit for a promotion sign that promotes goods, services, an event or any other matter not provided, undertaken or sold on the land or in the building on which the sign is sited expires on the date specified in the permit. If no date is specified, the expiry date is 15 years from the date of issue of the permit.

## 52.05-5 Existing signs

31/07/2018
VC148

A sign that was lawfully displayed on the approval date or that was being constructed or put up for display on that date may be displayed or continue to be displayed and may be repaired and maintained.

The content of a lawfully displayed sign may be renewed or replaced. However, a permit is required if:

- The display area is to be increased.
- The renewal or replacement would result in a different type of sign.

A sign that is reconstructed must meet the relevant sign requirements.

A major promotion sign displayed in accordance with a permit granted between 19 September 1995 and 18 September 1997 may continue to be displayed:

- until 31 December 2008; or
- where a permit application seeking permission to display the sign is lodged before 31 December 2008, until the permit application is finally determined.

## 52.05-6 Application requirements

20/01/2022
VC205

An application must be accompanied by the following information, as appropriate:

### Site context

- A site context report, using a site plan, photographs or other methods to accurately describe:
  - The location of the proposed sign on the site or building and distance from property boundaries.
  - The location and size of existing signage on the site including details of any signs to be retained or removed.

- The location and form of existing signage on abutting properties and in the locality.
- The location of closest traffic control signs.
- Identification of any view lines or vistas that could be affected by the proposed sign.

**Sign details**

- The location, dimensions, height above ground level and extent of projection of the proposed sign.
- The height, width, depth of the total sign structure including method of support and any associated structures such as safety devices and service platforms.
- Details of associated on-site works.
- Details of any form of illumination, including details of baffles and the times at which the sign would be illuminated.
- The colour, lettering style and materials of the proposed sign.
- The size of the display (total display area, including all sides of a multi-sided sign).
- The location of any logo box and proportion of display area occupied by such a logo box.
- For animated or electronic signs, a report addressing the decision guidelines at Clause 52.05-8 relating to road safety.
- Any landscaping details.

**Signs with a display area of 18 square metres or more**

- For a sign with a display area of 18 square metres or more:
  - A description of the existing character of the area including built form and landscapes.
  - The location of any other signs over 18 square metres, or scrolling, electronic or animated signs within 200 metres of the site.
  - Any existing identifiable advertising theme in the area.
  - Photo montages or a streetscape perspective of the proposed sign.
  - Level of illumination including:
    - Lux levels for any sign on or within 60 metres of a Transport Zone 2, Transport Zone 3, a residential zone or public land zone.
    - The dwell and change time for any non-static images.
  - The relationship to any significant or prominent views and vistas.

## 52.05-7 Exemption from notice and review

31/07/2018
VC148

An application for a sign is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act provided the sign:

- Is to be constructed or displayed on land specified in the schedule to this clause.
- Meets any condition specified in the schedule to this clause.

## 52.05-8 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### All signs

- The character of the area including:
  - The sensitivity of the area in terms of the natural environment, heritage values, waterways and open space, rural landscape or residential character.
  - The compatibility of the proposed sign with the existing or desired future character of the area in which it is proposed to be located.
  - The cumulative impact of signs on the character of an area or route, including the need to avoid visual disorder or clutter of signs.
  - The consistency with any identifiable outdoor advertising theme in the area.
- Impacts on views and vistas:
  - The potential to obscure or compromise important views from the public realm.
  - The potential to dominate the skyline.
  - The potential to impact on the quality of significant public views.
  - The potential to impede views to existing signs.
- The relationship to the streetscape, setting or landscape:
  - The proportion, scale and form of the proposed sign relative to the streetscape, setting or landscape.
  - The position of the sign, including the extent to which it protrudes above existing buildings or landscape and natural elements.
  - The ability to screen unsightly built or other elements.
  - The ability to reduce the number of signs by rationalising or simplifying signs.
  - The ability to include landscaping to reduce the visual impact of parts of the sign structure.
- The relationship to the site and building:
  - The scale and form of the sign relative to the scale, proportion and any other significant characteristics of the host site and host building.
  - The extent to which the sign displays innovation relative to the host site and host building.
  - The extent to which the sign requires the removal of vegetation or includes new landscaping.
- The impact of structures associated with the sign:
  - The extent to which associated structures integrate with the sign.
  - The potential of associated structures to impact any important or significant features of the building, site, streetscape, setting or landscape, views and vistas or area.
- The impact of any illumination:
  - The impact of glare and illumination on the safety of pedestrians and vehicles.
  - The impact of illumination on the amenity of nearby residents and the amenity of the area.
  - The potential to control illumination temporally or in terms of intensity.
- The impact of any logo box associated with the sign:
  - The extent to which the logo box forms an integral part of the sign through its position, lighting and any structures used to attach the logo box to the sign.

  - The suitability of the size of the logo box in relation to its identification purpose and the size of the sign.

- The need for identification and the opportunities for adequate identification on the site or locality.
- The impact on road safety. A sign is a safety hazard if the sign:
  - Obstructs a driver's line of sight at an intersection, curve or point of egress from an adjacent property.
  - Obstructs a driver's view of a traffic control device, or is likely to create a confusing or dominating background that may reduce the clarity or effectiveness of a traffic control device.
  - Could dazzle or distract drivers due to its size, design or colouring, or it being illuminated, reflective, animated or flashing.
  - Is at a location where particular concentration is required, such as a high pedestrian volume intersection.
  - Is likely to be mistaken for a traffic control device, because it contains red, green or yellow lighting, or has red circles, octagons, crosses, triangles or arrows.
  - Requires close study from a moving or stationary vehicle in a location where the vehicle would be unprotected from passing traffic.
  - Invites drivers to turn where there is fast moving traffic or the sign is so close to the turning point that there is no time to signal and turn safely.
  - Is within 100 metres of a rural railway crossing.
  - Has insufficient clearance from vehicles on the carriageway.
  - Could mislead drivers or be mistaken as an instruction to drivers.

**Major promotion signs**

- The effect of the proposed major promotion sign on:
  - Significant streetscapes, buildings and skylines.
  - The visual appearance of a significant view corridor, viewline, gateway location or landmark site identified in a framework plan or local policy.
  - Residential areas and heritage places.
  - Open space and waterways.
- When determining the effect of a proposed major promotion sign, the following locational principles must be taken into account:
  - Major promotion signs are encouraged in commercial and industrial locations in a manner that complements or enhances the character of the area.
  - Major promotion signs are discouraged along forest and tourist roads, scenic routes or landscaped sections of freeways.
  - Major promotion signs are discouraged within open space reserves or corridors and around waterways.
  - Major promotion signs are discouraged where they will form a dominant visual element from residential areas, within a heritage place or where they will obstruct significant viewlines.

- In areas with a strong built form character, major promotion signs are encouraged only where they are not a dominant element in the streetscape and except for transparent feature signs (such as neon signs), are discouraged from being erected on the roof of a building.

## 52.05-9 Mandatory conditions

31/07/2018
VC148

### All signs

A permit for a sign that includes an expiry date must include a condition that provides that on expiry of the permit the sign and structures built specifically to support and illuminate it must be removed.

### Major promotion signs

A permit for a major promotion sign must include conditions that specify:

- That the sign must not:
  - Dazzle or distract drivers due to its colouring.
  - Be able to be mistaken for a traffic signal because it has, for example, red circles, octagons, crosses or triangles.
  - Be able to be mistaken as an instruction to drivers.
- An expiry date that is 15 years from the date the permit is issued unless otherwise specified in this clause. This does not apply to a permit for major promotion sign for a special event or temporary building shrouding.

A permit for a major promotion sign may specify an expiry date other than 15 years, but the date must not be less than 10 years or more than 25 years from the date the permit is issued. Before deciding to alter the specified expiry date of 15 years, the responsible authority must consider, as appropriate:

- The purpose of the sign.
- The existing or desired character of the area.
- The Municipal Planning Strategy and the Planning Policy Framework in terms of the extent to which the proposed sign is consistent with any relevant policy direction and the extent to which the area may be expected to change over time.
- The extent to which the signage is physically and visually integrated into the architecture of the building.

## 52.05-10 Signs not requiring a permit

27/10/2025
VC294

Despite any provision in a zone, overlay, or other particular provision of this scheme, a permit is not required to construct or put up for display any of the following signs:

- A sign identifying the functions or property of a government department, public authority or municipal council, but not a promotion sign displayed at the direction of any of these bodies.
- A sign controlling traffic on a public road, railway, tramway, water or in the air, provided it is displayed at the direction of a government department, public authority or municipal council.
- A sign at a hospital that gives direction to emergency facilities.
- A sign that provides information, warning or direction about weather conditions, public safety, a natural event or an emergency displayed by or with the agreement of a government department, public authority or municipal council.

- A sign in a road reserve that gives direction or guidance about a tourist attraction, service or facility of interest to road users. The sign must be displayed to the satisfaction of the road authority.
- A sign required by statute or regulation, provided it is strictly in accordance with the requirement.
- A sign at a railway station or bus terminal that provides information or direction for people using the station or terminal.
- A sign on a showground, on a motor racing track or on a major sports and recreation facility, provided the sign's display cannot be seen from nearby land.
- A sign with a display area not exceeding 1 square metre to each premises that provides information about a place of worship. It must not be an animated or internally illuminated sign.
- A sign inside a building that cannot generally be seen outside.
- A sign with a display area not exceeding 2 square metres that provides information about a building permit or workplace health and safety. Only one sign may be displayed unless:
  - the land is on a corner allotment, in which case one sign may be erected on each street frontage
  - the land has a street frontage of more than 150 metres, in which case one sign may be erected every 150 metres of each street frontage, with a total of not more than 4 signs.

  The sign must be removed when the work is completed.
- A sign on a hoarding, building shrouding or fence associated with a development that is, or is proposed to be, under construction on the site. The total display area on each street frontage must not exceed 25 percent of the combined area of the hoarding, building shrouding or fence on that street frontage.

  The sign must not be:
  - animated
  - electronic
  - internally illuminated or floodlit
  - displayed for more than two years.

  The sign must be removed when the construction work is complete.
- A flag sign at an Alpine resort (as defined by the *Alpine Resorts Management Act 1997*) that gives direction or information about wayfinding, events, safety and snow sport or mountain bike use, if it is displayed at the direction of Alpine Resorts Victoria. A sign may include a business logo and must only be displayed on a temporary basis.
- A sign with a display area not exceeding 5 square metres publicising a local educational, cultural, political, religious, social or recreational event not held for commercial purposes. Only one sign may be displayed on the land, it must not be an animated or internally illuminated sign and it must not be displayed longer than 14 days after the event is held or 3 months, whichever is sooner. A sign publicising a local political event may include information about a candidate for an election.
- A sign publicising a special event on the land or in the building on which it is displayed, provided no more than 8 signs are displayed in a calendar year and the total number of days the signs are displayed does not exceed 28 in that calendar year. The sign must be removed when the event is finished.

- A sign with a display area not exceeding 2 square metres publicising the sale of goods or livestock on the land or in the building on which it is displayed, provided the land or building is not normally used for that purpose. Only one sign may be displayed, it must not be an animated or internally illuminated sign and it must not be displayed longer than 3 months without a permit.
- A sign with a display area not exceeding 10 square metres publicising the sale or letting of the land on which it is displayed. A permit may be granted for:
  - The display area to exceed 10 square metres if the sign concerns more than 20 lots.
  - The sign to be displayed on land excised from the subdivision and transferred to the municipal council.
  - The sign to be displayed longer than 7 days after the sale date.
- A sign publicising or providing information about Victoria's container deposit scheme under the *Circular Economy (Waste and Recycling) Act 2021*. The sign must be attached to an automated collection point, or a building used for a Container deposit scheme centre. The display area for the sign must not exceed 8 square metres. The sign must not be an animated, floodlit or internally illuminated sign.

No permit is required to fly the Australian flag or to display the flag on a building, painted or otherwise represented, provided it is correctly dimensioned and coloured in accordance with the *Flags Act 1953*.

## 52.05-11 Category 1 - Commercial areas

03/02/2022
VC199

Minimum limitation

### Purpose

To provide for identification and promotion signs and signs that add vitality and colour to commercial areas.

### Section 1 - Permit not required

| Sign | Condition |
|---|---|
| **Bed and breakfast sign**<br>**Business identification sign**<br>**Home based business sign**<br>**Promotion sign** | The total display area of all signs to each premises must not exceed 8 sqm. This does not include a sign with a display area not exceeding 1.5 sqm that is below a verandah or, if no verandah, that is less than 3.7 m above pavement level. |
| **Direction sign** | None specified |
| **Internally illuminated sign** | The total display area to each premises must not exceed 1.5 sqm.<br>No part of the sign may be above a verandah or, if no verandah, more than 3.7 m above pavement level.<br>The sign must be more than 30 m from a residential zone or pedestrian or traffic lights. |

### Section 2 - Permit required

| Sign | Condition |
|---|---|
| **Any sign not in Section 1** | None specified |

### Section 3 - Prohibited

| Sign |
|---|
| Nil |

## 52.05-12 Category 2 - Office and industrial

27/10/2025
VC294

Low limitation

### Purpose

To provide for adequate identification signs and signs that are appropriate to office and industrial areas.

### Section 1 - Permit not required

| Sign | Condition |
|---|---|
| **Bed and breakfast sign**<br>**Business identification sign**<br>**Home based business sign**<br>**Pole sign** | The total display area of all signs to each premises must not exceed 8 sqm. This does not include a direction sign. |
| **Direction sign** | Only one to each premises. |
| **Internally illuminated sign** | The display area must not exceed 1.5 sqm. The sign must be more than 30 m from a residential zone or pedestrian or traffic lights. |
| **Promotion sign** | A promotion sign must promote goods, services, an event or any other matter, that is provided, undertaken or sold or for hire on the land or in the building on which the sign is sited. |

### Section 2 - Permit required

| Sign | Condition |
|---|---|
| **Any sign not in Section 1** | None specified |

### Section 3 - Prohibited

| Sign |
|---|
| Nil |

## 52.05-13 Category 3 - High amenity areas

03/02/2022
VC199

Medium limitation

### Purpose

To ensure that signs in high-amenity areas are orderly, of good design and do not detract from the appearance of the building on which a sign is displayed or the surrounding area.

### Section 1 - Permit not required

| Sign | Condition |
|---|---|
| **Bed and breakfast sign** | Only one to each premises. |
| **Home based business sign** | The display area must not exceed 0.2 sqm. |
| **Direction sign** | None specified |

### Section 2 - Permit required

| Sign | Condition |
|---|---|
| **Above-verandah sign**<br>**Business identification sign** | None specified |
| **Electronic sign** | The display area must not exceed 3 sqm. |
| **Floodlit sign** | None specified |
| **High-wall sign** | Must be a business logo or street number. |
| **Internally illuminated sign**<br>**Pole sign** | None specified |
| **Promotion sign** | The display area must not exceed 3 sqm. |
| **Reflective sign** | None specified |

### Section 3 - Prohibited

| Sign |
|---|
| **Any sign not in Sections 1 or 2** |

## 52.05-14 Category 4 - Sensitive areas

17/10/2023
VC241

Maximum limitation

### Purpose

To provide for unobtrusive signs in areas requiring strong amenity control.

### Section 1 - Permit not required

| Sign | Condition |
|---|---|
| **Bed and breakfast sign** | Only one to each premises. |
| **Home based business sign** | The display area must not exceed 0.2 sqm. |
| **Direction sign** | None specified |

### Section 2 - Permit required

| Sign | Condition |
|---|---|
| **Business identification sign** | The total display area to each premises must not exceed 3 sqm. This does not apply to a Business identification sign on land used for a Freeway service centre or Service station. |
| **Floodlit sign** | Must not be a Promotion sign on land used for an Open sports ground. |
| **Above-verandah sign**<br>**High-wall sign**<br>**Internally illuminated sign**<br>**Pole sign** | Must be on land used for a Freeway service centre or Service station. |
| **Electronic sign** | Must be on land used for a Freeway service centre or Service station.<br>The display area must not exceed 3 sqm. |
| **Promotion sign** | Must be on land used for a Freeway service centre, Service station or Open sports ground.<br>Must promote goods, services, events or matters provided, undertaken or sold on land used for a Freeway service centre or Service station. |

### Section 3 - Prohibited

| Sign |
|---|
| **Any sign not in Sections 1 or 2** |

10/06/2021
C254card

# SCHEDULE TO CLAUSE 52.05 SIGNS

## 1.0 Exemption from notice and review

10/06/2021
C254card

| Land | Condition |
|---|---|
| None specified | |

# 52.06 CAR PARKING

31/07/2018
VC148

## Purpose

To ensure that car parking is provided in accordance with the Municipal Planning Strategy and the Planning Policy Framework.

To ensure the provision of an appropriate number of car parking spaces having regard to the demand likely to be generated, the activities on the land and the nature of the locality.

To support sustainable transport alternatives to the motor car.

To promote the efficient use of car parking spaces through the consolidation of car parking facilities.

To ensure that car parking does not adversely affect the amenity of the locality.

To ensure that the design and location of car parking is of a high standard, creates a safe environment for users and enables easy and efficient use.

## 52.06-1 Application

18/12/2025
VC277

Clause 52.06 applies to:

- a new use; or
- an increase in the floor area or site area of an existing use; or
- an increase to an existing use specified in Table 1 to clause 52.06-5 by the corresponding measure specified in Table 1 to clause 52.06-5.

This clause does not apply to:

- the extension of one dwelling on a lot in the Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone; or
- the construction and use of one dwelling on a lot in the Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone unless the zone or a schedule to the zone specifies that a permit is required to construct or extend one dwelling on a lot; or
- the construction and use of a small second dwelling.

## 52.06-2 Provision of car parking spaces

18/12/2025
VC277

Before:

- a new use commences; or
- the floor area or site area of an existing use is increased; or
- an existing use specified in Table 1 to clause 52.06-5 is increased by the corresponding measure specified in Table 1 to clause 52.06-5,

the minimum number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay for a use must be provided to the satisfaction of the responsible authority in one or more of the following ways:

- on the land; or
- in accordance with a permit issued under clause 52.06-3; or
- in accordance with a financial contribution requirement specified in a schedule to the Parking Overlay.

If Table 1 to clause 52.06-5, or a schedule to the Parking Overlay, specifies a maximum car parking requirement, the maximum requirement must not be exceeded except in accordance with a permit issued under clause 52.06-3.

## 52.06-3 Permit requirement

18/12/2025
VC277

A permit is required to:

- Reduce (including reduce to zero) the minimum number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay.
- Provide some or all of the car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay on another site.
- Provide more than the maximum parking requirement specified in clause 52.06-5 or in a schedule to the Parking Overlay.

A permit is not required if a schedule to the Parking Overlay specifies that a permit is not required under this clause.

A permit is not required to reduce the minimum number of car parking spaces required for a new use if the following requirements are met:

- The number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay for the new use is less than or equal to the number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay for the existing use of the land.
- The number of car parking spaces currently provided in connection with the existing use is not reduced after the new use commences.

A permit is not required to reduce the required number of car parking spaces for a new use of an existing building if the following requirements are met:

- The building is in the Commercial 1 Zone, Commercial 2 Zone, Commercial 3 Zone, Activity Centre Zone or Precinct Zone.
- The gross floor area of the building is not increased.
- The reduction does not exceed 10 car parking spaces.
- The building is not in a Parking Overlay with a schedule that allows a financial contribution to be paid in lieu of the provision of the required car parking spaces for the use.

A permit is not required to provide more car parking spaces than the maximum car parking requirement in clause 52.06-5 if the existing number of car parking spaces on the land exceeds the maximum car parking requirement and no new additional car parking spaces will be provided.

### VicSmart applications

Subject to clause 71.06, an application under this clause to reduce the required number of car parking spaces by no more than 10 car parking spaces is a class of VicSmart application and must be assessed against clause 59.10.

## 52.06-4 Exemption from notice and review

09/06/2026
VC311

An application under clause 52.06-3 is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if:

- the application is only for a permit under clause 52.06-3; or
- the application is also for a permit under another provision of the planning scheme and in respect of all other permissions sought, the application is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 52.06-5 Car parking requirement calculation

09/06/2026
VC311

Table 1 of this clause sets out the minimum and maximum car parking requirements that apply to a use specified in the table based on the land category identified in the *Car Parking Requirement Maps* (Department of Transport and Planning, 2025) (CPR maps).

A schedule to the Parking Overlay may also specify a minimum and/or maximum car parking requirement that applies to a use based on the land category identified in the CPR maps.

A schedule to the Parking Overlay may specify a car parking requirement for a use by reference to a requirement specified for that use in Table 1.

If the land is shown in two or more categories on the CPR maps, the car parking requirements for the higher category applies to all of the land.

A car parking requirement in Table 1 or a schedule to a Parking Overlay is calculated as either:

- a number of car parking spaces; or
- a percentage of the total site area that must be set aside for car parking.

If a measure refers to a number of people, it means the maximum number of people permitted on the site at any one time.

The car parking requirement for a use specified in Table 1 or a schedule to the Parking Overlay is calculated by multiplying the corresponding number specified in Category 1, 2, 3 or 4 (as applicable) by the corresponding measure. If the measure is specified as a per cent of the site area, the corresponding number specified in Category 1, 2, 3 or 4 is the per cent of the site area to be set aside for car parking.

Where an existing use specified in Table 1 or a schedule to the Parking Overlay is increased by the corresponding measure, the car parking requirement only applies to the increase, provided the existing number of car parking spaces currently being provided in connection with the existing use is not reduced.

If in calculating the number of car parking spaces the result is not a whole number, the required number of car parking spaces is to be rounded down to the nearest whole number.

Where the car parking requirement specified in Table 1 or schedule to the Parking Overlay is calculated as a percentage of the total site area, the area to be provided for car parking includes an accessway that directly abuts any car parking spaces, but does not include any accessway or portion of an accessway that does not directly abut any car parking spaces.

The car parking requirement specified in Table 1 or a schedule to the Parking Overlay includes disabled car parking spaces. The proportion of spaces to be allocated as disabled spaces must be in accordance with Australian Standard AS2890.6-2009 (disabled) and the Building Code of Australia.

A minimum car parking requirement specified in Table 1 does not apply if a schedule to the Parking Overlay specifies a minimum car parking requirement for that use in the same land category.

A maximum car parking requirement specified in Table 1 does not apply if a schedule to the Parking Overlay specifies a maximum car parking requirement for that use in the same land category.

The car parking requirement specified for a use specified in Table 1 does not apply if:

- a car parking requirement for the use is specified under another provision of the planning scheme; or
- a schedule to the Parking Overlay included in this planning scheme before the commencement of Amendment VC311 specifies the number of car parking spaces required for the use.

**Table 1: Car parking requirement**

| Land use | Measure | Category 1 (Minimum Requirement) | Category 2 (Minimum Requirement) | Category 3 (Minimum and Maximum Requirement) | Category 4 (Maximum Requirement) |
|---|---|---|---|---|---|
| Amusement parlour | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Art and craft centre | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Betting agency | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Bowling green | To each rink | 6 | 3 | 0 - minimum<br>3 - maximum | 1.5 |
| Child care centre | To each employee | 1 | 0.5 | 0.25 - minimum<br>No maximum | No maximum |
| Convenience restaurant | To each patron | 0.3 | 0.15 | 0 - minimum<br>0.15 - maximum | 0.08 |
| Display home centre | To each dwelling | 5 | 2.5 | 0 - minimum<br>2.5 - maximum | 1.25 |
| Dwelling | To each dwelling | 1.2 | 1 | 0 - minimum<br>2 - maximum | 2 |
| Education centre - other than specified in this table | To each student | 0.4 | 0.05 | 0 - minimum<br>0.1 - maximum | 0.05 |
| Food and drink premises - other than specified in this table | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Freezing and cool storage | To each 100 square metres of net floor area | 1.5 | 0.2 | 0 - minimum<br>0.4 - maximum | 0.2 |
| Fuel depot | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Funeral parlour | To each patron | 0.3 | 0.15 | 0 - minimum<br>0.15 - maximum | 0.08 |

| Land use | Measure | Category 1 (Minimum Requirement) | Category 2 (Minimum Requirement) | Category 3 (Minimum and Maximum Requirement) | Category 4 (Maximum Requirement) |
|---|---|---|---|---|---|
| Gambling premises - other than specified in this table | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Golf course | To each hole | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Home based business | To each employee not a resident of the dwelling | 1 | 0 | 0 - minimum<br>No maximum | No maximum |
| Industry - other than specified in this table | To each 100 square metres of leasable floor area | 2.9 | 0.4 | 0 - minimum<br>0.8 - maximum | 0.8 |
| Landscape gardening supplies | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Mail centre | To each 100 square metres of net floor area | 3.5 | 0.45 | 0 - minimum<br>0.9 - maximum | 0.45 |
| Manufacturing sales | To each 100 square metres of leasable floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Market | To each 100 square metres of site area | 8 | 4 | 5 - minimum<br>6 - maximum | 6 |
| Materials recycling | Per cent of site area | 10 | 5 | 5 - min<br>10 - max | 5 |
| Medical centre | To each 100 square metres of leasable floor area | 5 | 3.5 | 0 - minimum<br>5 - maximum | 5 |
| Milk depot | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Motel | To each bedroom | 1 | 1 | 0 - minimum<br>0.5 - maximum | 0.2 |
| Office - other than specified in this table | To each 100 square metres of net floor area | 3.5 | 0.45 | 0 - minimum<br>0.9 - maximum | 0.45 |

| Land use | Measure | Category 1 (Minimum Requirement) | Category 2 (Minimum Requirement) | Category 3 (Minimum and Maximum Requirement) | Category 4 (Maximum Requirement) |
|---|---|---|---|---|---|
| Place of assembly - other than specified in this table | To each patron | 0.3 | 0.15 | 0 - minimum<br>0.15 - maximum | 0.08 |
| Postal agency | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Primary produce sales | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Primary school | To each employee | 1 | 0.5 | 0.25 - minimum<br>No maximum | No maximum |
| Research and development centre | To each 100 square metres of net floor area | 3.5 | 0.45 | 0 - minimum<br>0.9 - maximum | 0.45 |
| Residential aged care facility | To each bedroom | 0.3 | 0.25 | 0.25 - minimum<br>0.45 - maximum | 0.45 |
| Residential village | To each dwelling | 1.2 | 1 | 0 - minimum<br>2 - maximum | 2 |
| Retirement village | To each dwelling | 1.2 | 1 | 0 - minimum<br>2 - maximum | 2 |
| Restricted retail premises | To each 100 square metres of leasable floor area | 3 | 1.5 | 1.5 - minimum<br>2 - maximum | 2 |
| Rooming house | To each bedroom | 0.25 | 0.25 | 0 - minimum<br>0.15 - maximum | 0.1 |
| Saleyard | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Secondary school | To each employee | 1 | 0.5 | 0.25 - minimum<br>No maximum | No maximum |

| Land use | Measure | Category 1 (Minimum Requirement) | Category 2 (Minimum Requirement) | Category 3 (Minimum and Maximum Requirement) | Category 4 (Maximum Requirement) |
|---|---|---|---|---|---|
| Shop - other than specified in this table | To each 100 square metres of leasable floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Squash court other than in conjunction with a dwelling | To each court | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Store - other than specified in this table | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Supermarket | To each 100 square metres of leasable floor area | 5 | 2.5 | 0 - minimum<br>2.5 - maximum | 1.25 |
| Swimming pool - other than in conjunction with a dwelling | To each 100 square metres of site area | 5.6 | 2.8 | 0 - minimum<br>2.8 - maximum | 2.1 |
| Tennis court - other than in conjunction with a dwelling | To each court | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Trade supplies | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 10 |
| Veterinary centre | To each 100 square metres of leasable floor area | 5 | 3.5 | 0 - minimum<br>5 - maximum | 5 |
| Warehouse - other than specified in this table | To each 100 square metres of net floor area | 2 | 0.25 | 0 - minimum<br>0.5 - maximum | 0.5 |
| Winery | To each patron | 0.4 | 0.2 | 0 - minimum<br>0.2 - maximum | 0.1 |

## 52.06-6 Number of car parking spaces required for other uses

16/01/2018
VC142

Where a use of land is not specified in Table 1 or where a car parking requirement is not specified for the use in another provision of the planning scheme or in a schedule to the Parking Overlay, before a new use commences or the floor area or site area of an existing use is increased, car parking spaces must be provided to the satisfaction of the responsible authority. This does not apply to the use of land for a temporary portable land sales office located on the land for sale.

## 52.06-7 Application requirements and decision guidelines for permit applications

18/12/2025
VC277

### For applications to reduce the car parking requirement

An application to reduce (including reduce to zero) the number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay must be accompanied by a Car Parking Demand Assessment.

The Car Parking Demand Assessment must assess the car parking demand likely to be generated by the proposed:

- new use; or
- increase in the floor areas or site area of the existing use; or
- increase to the existing use by the measure specified in Table 1 to clause 52.06-5 for that use.

The Car Parking Demand Assessment must address the following matters, to the satisfaction of the responsible authority:

- The likelihood of multi-purpose trips within the locality which are likely to be combined with a trip to the land in connection with the proposed use.
- The variation of car parking demand likely to be generated by the proposed use over time.
- The short-stay and long-stay car parking demand likely to be generated by the proposed use.
- The availability of public transport in the locality of the land.
- The convenience of pedestrian and cyclist access to the land.
- The provision of bicycle parking and end of trip facilities for cyclists in the locality of the land.
- The anticipated car ownership rates of likely or proposed visitors to or occupants (residents or employees) of the land.
- Any empirical assessment or case study.

Before granting a permit to reduce the number of spaces, the responsible authority must consider the following, as appropriate:

- The Car Parking Demand Assessment.
- Any relevant local planning policy or incorporated plan.
- The availability of alternative car parking in the locality of the land, including:
  - Efficiencies gained from the consolidation of shared car parking spaces.
  - Public car parks intended to serve the land.
  - On street parking in non residential zones.
  - Streets in residential zones specifically managed for non-residential parking.
- On street parking in residential zones in the locality of the land that is intended to be for residential use.
- The practicality of providing car parking on the site, particularly for lots of less than 300 square metres.
- Any adverse economic impact a shortfall of parking may have on the economic viability of any nearby activity centre.
- The future growth and development of any nearby activity centre.
- Any car parking deficiency associated with the existing use of the land.
- Any credit that should be allowed for car parking spaces provided on common land or by a Special Charge Scheme or cash-in-lieu payment.

- Local traffic management in the locality of the land.
- The impact of fewer car parking spaces on local amenity, including pedestrian amenity and the amenity of nearby residential areas.
- The need to create safe, functional and attractive parking areas.
- Access to or provision of alternative transport modes to and from the land.
- The equity of reducing the car parking requirement having regard to any historic contributions by existing businesses.
- The character of the surrounding area and whether reducing the car parking provision would result in a quality/positive urban design outcome.
- Any other matter specified in a schedule to the Parking Overlay.
- Any other relevant consideration.

**For applications to allow some or all of the required car parking spaces to be provided on another site**

Before granting a permit to allow some or all of the car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay to be provided on another site, the responsible authority must consider the following, as appropriate:

- The proximity of the car parking on the alternate site to the subject site.
- The likelihood of the long term provision and availability of the car parking spaces.
- Whether the location of the car parking spaces is consistent with any relevant local policy or incorporated plan.
- Any other matter specified in a schedule to the Parking Overlay.

**For applications to provide more than the maximum car parking provision**

An application to provide more than the maximum parking provision specified in clause 52.06-5 or a schedule to the Parking Overlay must be accompanied by a Car Parking Demand Assessment.

The Car Parking Demand Assessment must assess the car parking demand likely to be generated by the proposed use or increase to the existing use.

The Car Parking Demand Assessment must address the following matters, to the satisfaction of the responsible authority:

- The likelihood of multi-purpose trips within the locality which are likely to be combined with a trip to the land in connection with the proposed use.
- The variation of car parking demand likely to be generated by the proposed use over time.
- The short-stay and long-stay car parking demand likely to be generated by the proposed use.
- The availability of public transport in the locality of the land.
- The convenience of pedestrian and cyclist access to the land.
- The provision of bicycle parking and end of trip facilities for cyclists in the locality of the land.
- The anticipated car ownership rates of likely or proposed visitors to or occupants (residents or employees) of the land.
- Any empirical assessment or case study.

Before granting a permit to provide more than the maximum car parking spaces specified under clause 52.06-5 or in a schedule to the Parking Overlay, the responsible authority must consider the following, as appropriate:

- The Car Parking Demand Assessment.

- Any relevant local planning policy or incorporated plan.
- Whether additional car parking is required for disability parking.
- Any adverse economic impact a shortfall of parking may have on the economic viability of any nearby activity centre.
- The future growth and development of any nearby activity centre.
- Local traffic management in the locality of the land.
- The impact of additional car parking spaces on local amenity, including pedestrian amenity and the amenity of nearby residential areas.
- The need to create safe, functional and attractive parking areas.
- Access to, or provision of, alternative modes of transport to and from the land.
- The character of the surrounding area and whether increasing the car parking provision would result in a quality/positive urban design outcome.
- Any other matter specified in a schedule to the Parking Overlay.
- Any other relevant consideration.

## 52.06-8 Requirement for a car parking plan

18/12/2025
VC277

Plans must be prepared to the satisfaction of the responsible authority before any of the following occurs:

- a new use commences; or
- the floor area or site area of an existing use is increased; or
- an existing use is increased by the measure specified in Table 1 to clause 52.06-5 for that use.

The plans must show, as appropriate:

- All car parking spaces that are proposed to be provided (whether on the land or on other land).
- Access lanes, driveways and associated works.
- Allocation of car parking spaces to different uses or tenancies, if applicable.
- Any landscaping and water sensitive urban design treatments.
- Finished levels, if required by the responsible authority.
- Any other matter specified in a schedule to the Parking Overlay.

Plans must be provided to the responsible authority under clause 52.06-8 wherever clause 52.06 applies, whether or not a permit application is being made under clause 52.06-3 or any other provision of the planning scheme.

Where an application is being made for a permit under clause 52.06-3 or another provision of the planning scheme, the information required under clause 52.06-8 may be included in other plans submitted with the application.

Clause 52.06-8 does not apply where no car parking spaces are proposed to be provided.

## 52.06-9 Design standards for car parking

18/12/2025
VC277

Plans prepared in accordance with clause 52.06-8 must meet the design standards of clause 52.06-9, unless the responsible authority agrees otherwise.

Design standards 1, 3, 6 and 7 do not apply to an application to construct one dwelling on a lot.

### Design standard 1 – Accessways

Accessways must:

- Be at least 3 metres wide.
- Have an internal radius of at least 4 metres at changes of direction or intersection or be at least 4.2 metres wide.
- Allow vehicles parked in the last space of a dead-end accessway in public car parks to exit in a forward direction with one manoeuvre.
- Provide at least 2.1 metres headroom beneath overhead obstructions, calculated for a vehicle with a wheel base of 2.8 metres.
- If the accessway serves four or more car spaces or connects to a road in a Transport Zone 2 or Transport Zone 3, the accessway must be designed so that cars can exit the site in a forward direction.
- Provide a passing area at the entrance at least 6.1 metres wide and 7 metres long if the accessway serves ten or more car parking spaces and is either more than 50 metres long or connects to a road in a Transport Zone 2 or Transport Zone 3.
- Have a corner splay or area at least 50 per cent clear of visual obstructions extending at least 2 metres along the frontage road from the edge of an exit lane and 2.5 metres along the exit lane from the frontage, to provide a clear view of pedestrians on the footpath of the frontage road. The area clear of visual obstructions may include an adjacent entry or exit lane where more than one lane is provided, or adjacent landscaped areas, provided the landscaping in those areas is less than 900mm in height.

If an accessway to four or more car parking spaces is from land in a Transport Zone 2 or Transport Zone 3, the access to the car spaces must be at least 6 metres from the road carriageway.

If entry to the car space is from a road, the width of the accessway may include the road.

### Design standard 2 – Car parking spaces

Car parking spaces and accessways must have the minimum dimensions as outlined in Table 2.

**Table 2: Minimum dimensions of car parking spaces and accessways**

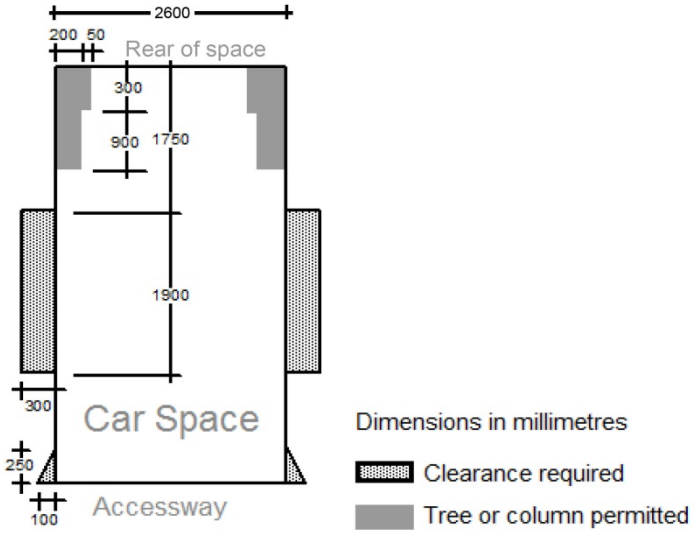
| Angle of car parking spaces to access way | Accessway width | Car space width | Car space length |
|---|---|---|---|
| **Parallel** | 3.6 m | 2.3 m | 6.7 m |
| **45º** | 3.5 m | 2.6 m | 4.9 m |
| **60º** | 4.9 m | 2.6 m | 4.9 m |
| **90º** | 6.4 m | 2.6 m | 4.9 m |
| | 5.8 m | 2.8 m | 4.9 m |
| | 5.2 m | 3.0 m | 4.9 m |
| | 4.8 m | 3.2 m | 4.9 m |

*Note* *Some dimensions in Table 2 vary from those shown in the Australian Standard AS2890.1-2004 (off street). The dimensions shown in Table 2 allocate more space to aisle widths and less to marked spaces to provide improved operation and access. The dimensions in Table 2 are to be used in preference to the Australian Standard AS2890.1-2004 (off street) except for disabled spaces which must achieve Australian Standard AS2890.6-2009 (disabled).*

A wall, fence, column, tree, tree guard or any other structure that abuts a car space must not encroach into the area marked 'clearance required' on Diagram 1, other than:

- A column, tree or tree guard, which may project into a space if it is within the area marked 'tree or column permitted' on Diagram 1.
- A structure, which may project into the space if it is at least 2.1 metres above the space.

**Diagram 1 Clearance to car parking spaces**




Car spaces in garages or carports must be at least 6 metres long and 3.5 metres wide for a single space and 5.5 metres wide for a double space measured inside the garage or carport.

Where parking spaces are provided in tandem (one space behind the other) an additional 500 mm in length must be provided between each space.

Where two or more car parking spaces are provided for a dwelling, at least one space must be under cover.

Disabled car parking spaces must be designed in accordance with Australian Standard AS2890.6-2009 (disabled) and the Building Code of Australia. Disabled car parking spaces may encroach into an accessway width specified in Table 2 by 500mm.

### Design standard 3: Gradients

Accessway grades must not be steeper than 1:10 (10 per cent) within 5 metres of the frontage to ensure safety for pedestrians and vehicles. The design must have regard to the wheelbase of the vehicle being designed for; pedestrian and vehicular traffic volumes; the nature of the car park; and the slope and configuration of the vehicle crossover at the site frontage. This does not apply to accessways serving three dwellings or less.

Ramps (except within 5 metres of the frontage) must have the maximum grades as outlined in Table 3 and be designed for vehicles travelling in a forward direction.

**Table 3: Ramp gradients**

| Type of car park | Length of ramp | Maximum grade |
|---|---|---|
| **Public car parks** | 20 metres or less | 1:5 (20%) |
| | longer than 20 metres | 1:6 (16.7%) |
| **Private or residential car parks** | 20 metres or less | 1:4 (25%) |
| | longer than 20 metres | 1:5 (20%) |

Where the difference in grade between two sections of ramp or floor is greater that 1:8 (12.5 per cent) for a summit grade change, or greater than 1:6.7 (15 per cent) for a sag grade change, the ramp must include a transition section of at least 2 metres to prevent vehicles scraping or bottoming.

Plans must include an assessment of grade changes of greater than 1:5.6 (18 per cent) or less than 3 metres apart for clearances, to the satisfaction of the responsible authority.

#### Design standard 4: Mechanical parking

Mechanical parking may be used to meet the car parking requirement provided:

- At least 25 per cent of the mechanical car parking spaces can accommodate a vehicle height of at least 1.8 metres.
- Car parking spaces that require the operation of the system are not allocated to visitors unless used in a valet parking situation.
- The design and operation is to the satisfaction of the responsible authority.

#### Design standard 5: Urban design

Ground level car parking, garage doors and accessways must not visually dominate public space.

Car parking within buildings (including visible portions of partly submerged basements) must be screened or obscured where possible, including through the use of occupied tenancies, landscaping, architectural treatments and artworks.

Design of car parks must take into account their use as entry points to the site.

Design of new internal streets in developments must maximise on street parking opportunities.

#### Design standard 6: Safety

Car parking must be well lit and clearly signed.

The design of car parks must maximise natural surveillance and pedestrian visibility from adjacent buildings.

Pedestrian access to car parking areas from the street must be convenient.

Pedestrian routes through car parking areas and building entries and other destination points must be clearly marked and separated from traffic in high activity parking areas.

#### Design standard 7: Landscaping

The layout of car parking areas must provide for water sensitive urban design treatment and landscaping.

Landscaping and trees must be planted to provide shade and shelter, soften the appearance of ground level car parking and aid in the clear identification of pedestrian paths.

Ground level car parking spaces must include trees planted with flush grilles. Spacing of trees must be determined having regard to the expected size of the selected species at maturity.

## 52.06-10 Decision guidelines

18/12/2025
VC277

Before deciding that a plan prepared under clause 52.06-8 is satisfactory the responsible authority must consider, as appropriate:

- The role and function of nearby roads and the ease and safety with which vehicles gain access to the site.
- The ease and safety with which vehicles access and circulate within the parking area.
- The provision for pedestrian movement within and around the parking area.
- The provision of parking facilities for cyclists and disabled people.
- The protection and enhancement of the streetscape.
- The provisions of landscaping for screening and shade.
- The measures proposed to enhance the security of people using the parking area particularly at night.

- The amenity of the locality and any increased noise or disturbance to dwellings and the amenity of pedestrians.
- The workability and allocation of spaces of any mechanical parking arrangement.
- The design and construction standards proposed for paving, drainage, line marking, signage, lighting and other relevant matters.
- The type and size of vehicle likely to use the parking area.
- Whether the layout of car parking spaces and access lanes is consistent with the specific standards or an appropriate variation.
- The need for the required car parking spaces to adjoin the premises used by the occupier/s, if the land is used by more than one occupier.
- Whether the layout of car spaces and accessways are consistent with Australian Standards AS2890.1-2004 (off street) and AS2890.6-2009 (disabled).
- The relevant standards of clauses 56.06-2, 56.06-4, 56.06-5, 56.06-7 and 56.06-8 for residential developments with accessways longer than 60 metres or serving 16 or more dwellings.
- Any other matter specified in a schedule to the Parking Overlay.

## 52.06-11 Construction of car parking

18/12/2025
VC277

Where a plan is required under clause 52.06-8, the car parking spaces, access lanes, driveways and associated works and landscaping shown on the plan must be:

- constructed and available for use in accordance with the plan approved by the responsible authority; and
- formed to such levels and drained so that they can be used in accordance with the plan; and
- treated with an all-weather seal or some other durable surface; and
- line-marked or provided with some other adequate means of showing the car parking spaces,

before any of the following occurs:

- the new use commences; or
- the floor area or site area of the existing use is increased; or
- the existing use is increased by the measure specified in Table 1 to clause 52.06-5 for that use.

## 52.06-12 Transitional provisions

09/06/2026
VC311

### Meaning of terms

**In clause 52.06-12:**

- ***current clause*** means clause 52.06-5 as currently in force;
- ***former clause*** means clause 52.06-5 as in force immediately before the day Amendment VC277 came into operation;
- ***transition date*** means the day that is 180 days after the day Amendment VC277 came into operation;
- ***transitional proposal*** means:
  - an application to use or develop land made before the transition date; or
  - an application to use or develop land amended under section 50, 50A or 57A of the Act if the original application was made before the transition date; or
  - an application under clause 52.06 made before the transition date; or

- an application under clause 52.06 amended under section 50, 50A or 57A of the Act if the original application was made before the transition date; or
- a plan provided to the responsible authority under clause 52.06-8 before the transition date; or
- a use for which parking is provided in accordance with a plan approved under clause 52.06-8 if the plan was provided to the responsible authority before the transition date; or
- a new use commenced before the transition date; or
- an increase in the floor area or site area of an existing use before the transition date; or
- an increase to an existing use specified in Table 1 to the current clause by the corresponding measure specified in Table 1 to the current clause before the transition date.

**Transitional provision A**

A reference to 'clause 52.06-5' in the current clause is taken to be a reference to 'clause 52.06-5' in the former clause in respect of a transition proposal (except in relation to a maximum car parking requirement) if both of the following apply:

- The transition proposal is for a use specified in Table 1 to the current clause.
- The number of car parking spaces that would be required for the transition proposal under the former clause is less than the minimum number of car parking spaces required under the current clause.

**Transitional provision B**

The maximum car parking requirement in clause 52.06-2 (other than a maximum parking requirement specified in a schedule to a Parking Overlay) does not apply to, and a permit is not required under clause 52.06-3 to provide more than the maximum parking provision specified in clause 52.06-5 in respect of, the following:

- An application to use or develop land made before the day Amendment VC277 came into operation.
- An application to use or develop land amended under section 50, 50A or 57A of the Act if the original application was made before the day Amendment VC277 came into operation.
- An application under clause 52.06 made before the day Amendment VC277 came into operation.
- An application under clause 52.06 amended under section 50, 50A or 57A of the Act if the original application was made before the day Amendment VC277 came into operation.
- A plan provided to the responsible authority under clause 52.06-8 before the day Amendment VC277 came into operation.
- Car parking provided in accordance with a plan approved under clause 52.06-8 if the plan was provided to the responsible authority before the day Amendment VC277 came into operation.

**Transitional provision C**

Any reference in a schedule to the Parking Overlay to 'clause 52.06-5' is taken to be a reference to the former clause if the schedule was included in this planning scheme before the commencement of Amendment VC311.

# 52.07 EMERGENCY RECOVERY

22/11/2022
VC228

## Purpose

To facilitate and support recovery from emergencies.

To facilitate the construction and use of temporary accommodation following an emergency.

To enable businesses and services to continue operating following an emergency.

To support the provision of materials and infrastructure required for emergency recovery.

## 52.07-1 Exemption from planning scheme requirements

04/11/2022
VC226

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to any of the following uses or developments if the requirements of clause 52.07 are met:

- The use of land or the construction of a building or the construction or carrying out of works:
  - Associated with recovery carried out by or on behalf of a municipal council or public authority; or
  - For accommodation; or
  - For a use (other than accommodation) that was lawfully carried out in a building immediately before that building was damaged or destroyed by an emergency.
- The removal, destruction or lopping of vegetation.

This exemption does not apply to:

- The requirement in clause 45.03-1.
- The use or development of land to which clause 52.14 applies.

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.07-2 Information to responsible authority

04/11/2022
VC226

The following requirement does not apply to the use or development of land associated with recovery carried out by or on behalf of a municipal council or public authority.

Before the commencement of a use or the construction of a building under clause 52.07, the following information must be given in writing to the responsible authority and to the satisfaction of the responsible authority:

- A description of the proposed use.
- A description of the proposed building.
- A description of the land on which the use will be carried out or the building will be constructed by:
  - Stating the address of the land; or
  - Stating the title particulars of the land; or
  - Including a plan showing the land; or
  - Any combination of these.

## 52.07-3 Temporary accommodation requirements

04/11/2022
VC226

The following requirements do not apply to the use or development of land associated with recovery carried out by or on behalf of a municipal council or public authority.

Land must only be used for accommodation under this clause to accommodate a person whose principal place of residence was damaged or destroyed by a bushfire on the same land or contiguous land in the same ownership.

Land used for accommodation under this clause must meet the following requirements:

- Access to the accommodation must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The accommodation must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from the accommodation must be treated and retained within the lot in accordance with the requirements in the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system or treated and disposed of to the satisfaction of the responsible authority.
- The accommodation must be connected to a reticulated potable water supply or have an alternative potable water supply.
- The accommodation must be connected to a reticulated electricity supply or have an alternative energy source.

The use of land for accommodation under this clause must not continue after 3 years of the commencement of the use unless in accordance with the requirements of this planning scheme.

A building or works constructed or carried out under this clause for accommodation must be on the same land, or on contiguous land in the same ownership, as a building used for accommodation that was damaged or destroyed by a bushfire and must be completed within 18 months of the date that building was damaged or destroyed.

Unless in accordance with the written agreement of the responsible authority, the combined gross floor area of all buildings constructed for accommodation under this clause on contiguous land in the same ownership must not exceed 60 square metres.

## 52.07-4 Continuation of use requirements

04/11/2022
VC226

The following requirements do not apply to the use or development of land:

- For accommodation; or
- Associated with recovery carried out by or on behalf of a municipal council or public authority.

Unless in accordance with the written agreement of the responsible authority, the use of land under this clause for a use that was carried out in a building immediately before that building was damaged or destroyed by an emergency must be carried out on the same land, or on contiguous land in the same ownership, as the damaged or destroyed building.

A use commenced under this clause must not continue after 3 years of its commencement unless in accordance with this planning scheme.

A building or works constructed or carried out under this clause for a use that was carried out in a building damaged or destroyed by an emergency, must be on the same land, or on contiguous land in the same ownership, as the damaged or destroyed building and must be completed within 18 months of the date that building was damaged or destroyed by an emergency.

Unless in accordance with the written agreement of the responsible authority, the combined gross floor area of all buildings constructed under this clause on contiguous land in the same ownership must not exceed 100 square metres.

## 52.07-5 Vegetation removal requirement

04/11/2022
VC226

Vegetation must only be removed, destroyed or lopped to the minimum extent necessary:

- To enable the removal of a building, equipment or other material that was damaged or destroyed by an emergency within 3 years of the date it was damaged or destroyed; or
- To enable the repair or reconstruction of a fence that was damaged or destroyed by an emergency within 3 years of the date it was damaged or destroyed for a combined maximum width of 4 metres either side of the fence.

This requirement does not apply to:

- The removal, destruction or lopping of vegetation within 10 metres of a building constructed for accommodation under this clause; or
- The removal, destruction or lopping of vegetation (other than a tree) within 30 metres of a building constructed for accommodation under this clause; or
- The removal, destruction or lopping of vegetation (other than a tree) within 50 metres of a building constructed for accommodation under this clause in a Bushfire Management Overlay.

## 52.07-6 Other development requirements

20/10/2026
VC317

Development of land in a Bushfire Management Overlay or Erosion Management Overlay that would require a permit, or would be prohibited, under the overlay were it not for the exemption in clause 52.07-1, must be sited to the satisfaction of the responsible authority.

Development of land in a Heritage Overlay that would require a permit, or would be prohibited, under the overlay were it not for the exemption in clause 52.07-1, must be carried out to the satisfaction of the responsible authority.

Development of land in an Urban Floodway Zone, Flood Management Zone, Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay or Flood Management Overlay that would require a permit, or would be prohibited, under the overlay were it not for the exemption in clause 52.07-1, must be sited to the satisfaction of the relevant floodplain management authority.

## 52.07-7 Exemptions for extractive industry

06/10/2023
VC247

Any requirement of a planning permit, including any condition, or any provision of this planning scheme, that limits, or has the effect of limiting, the hours or days during which an extractive industry may be carried out, does not apply to the quarrying and processing of materials and the dispatch, delivery, loading or unloading of materials if:

- The materials are directly associated with recovery; and
- The quarrying and processing of materials and the dispatch, delivery, loading or unloading of materials occurs within 24 months of an emergency.

## 52.07-8 Meaning of terms

22/11/2022
VC228

In this clause:

- ***emergency*** means:
  - a bushfire; or
  - an earthquake, flood, wind-storm or other natural event;
- ***recovery*** means the assisting of persons and communities affected by emergencies to achieve a proper and effective level of functioning.

# 52.08 EARTH AND ENERGY RESOURCES INDUSTRY

24/01/2020
VC160

## Purpose

To encourage land to be used and developed for exploration and extraction of earth and energy resources in accordance with acceptable environmental standards.

To ensure that geothermal energy extraction, greenhouse gas sequestration, mining and petroleum production are not prohibited land uses.

To ensure that planning controls for the use and development of land for the exploration and extraction of earth and energy resources are consistent with other legislation governing these land uses.

## 52.08-1 Permit requirement

24/01/2020
VC160

A permit is required to use and develop land for earth and energy resources industry unless the table to this clause specifically states that a permit is not required.

### Table of exemptions

| No permit is required to use or develop land for earth and energy resources industry if the following conditions are met: | |
|---|---|
| Extractive industry | Complies with Section 77T of the *Mineral Resources (Sustainable Development) Act 1990*. |
| Geothermal energy exploration | Complies with the *Geothermal Energy Resources Act 2005*. |
| Geothermal energy extraction | Complies with Section 62 of the *Geothermal Energy Resources Act 2005*. |
| Greenhouse gas sequestration exploration | Complies with Section 189 of the *Greenhouse Gas Geological Sequestration Act 2008*. |
| Greenhouse gas sequestration | Complies with Section 191 of the *Geological Sequestration Act 2008*. |
| Mineral exploration | Complies with Section 43(3) of the *Mineral Resources (Sustainable Development) Act 1990*. |
| Mining | Complies with Section 42(7) or Section 42A *Mineral Resources (Sustainable Development) Act 1990*; or<br>Complies with Section 47A of the *Electricity Industry Act 1993*. |
| Petroleum exploration | Complies with Section 118 of the *Petroleum Act 1998*. |
| Petroleum production | Complies with Section 120 of the *Petroleum Act 1998*. |
| Stone exploration | Must not be costeaning or bulk sampling. |

## 52.08-2 Application requirements for mining

24/01/2020
VC160

An application to use and develop land for mining must be accompanied by:

- A copy of a work plan or a variation to an approved work plan that has received statutory endorsement under section 77TD of the *Mineral Resources (Sustainable Development) Act 1990*.
- The written notice of statutory endorsement under section 77TD(1) of the *Mineral Resources (Sustainable Development) Act 1990*.
- Any conditions specified under section 77TD(3) of the *Mineral Resources (Sustainable Development) Act 1990*.

## 52.08-3 Referral requirements for mining

14/05/2021
VC198

An application to use or develop land for mining must be referred under section 55 of the Act to the person or body specified as the referral authority in Clause 66.

Unless the referral authority is the Head, Transport for Victoria, the referral requirement in Clause 66 does not apply if a copy of a work plan or variation to an approved work plan accompanying the application was given to the referral authority under section 77TE of the *Mineral Resources (Sustainable Development) Act 1990*.

# 52.09 EXTRACTIVE INDUSTRY AND EXTRACTIVE INDUSTRY INTEREST AREAS

24/01/2020
VC160

## Purpose

To ensure that use and development of land for extractive industry does not adversely affect the environment or amenity of the area during or after extraction.

To ensure that excavated areas can be appropriately rehabilitated.

To ensure that stone resources, which may be required by the community for future use, are protected from inappropriate use and development.

## 52.09-1 Application

24/01/2020
VC160

This clause applies to an application to use or develop land:

- For extractive industry;
- Within an Extractive Industry Interest Area; or
- Within 500 metres of an existing or proposed extractive industry operation.

## 52.09-2 Application requirements

24/01/2020
VC160

An application to use and develop land for extractive industry must be accompanied by:

- A copy of a work plan or a variation to an approved work plan that has received statutory endorsement under section 77TD of the *Mineral Resources (Sustainable Development) Act 1990.*
- The written notice of statutory endorsement under section 77TD(1) of the *Mineral Resources (Sustainable Development) Act 1990.*
- Any conditions specified under section 77TD(3) of the *Mineral Resources (Sustainable Development) Act 1990.*

These requirements do not apply if the proposed extractive industry is exempt from:

- The requirement to obtain a work plan under section 77G of the *Mineral Resources (Sustainable Development) Act 1990;* or
- The provisions of the *Mineral Resources (Sustainable Development) Act 1990* under section 5AA of that Act.

## 52.09-3 Referral of applications

22/03/2022
VC219

An application must be referred under section 55 of the Act to the person or body specified as the referral authority in Clause 66, if the application is to use or develop land for:

- Extractive industry; or
- Accommodation in a rural zone is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

Unless the referral authority is the Head, Transport for Victoria, the referral requirement in Clause 66 does not apply if a copy of a work plan or variation to an approved work plan accompanying the application was given to the referral authority under section 77TE of the *Mineral Resources (Sustainable Development) Act 1990*.

## 52.09-4 Decision guidelines

24/01/2020
VC160

Before deciding on an application to use and develop land for extractive industry, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The effect of the proposed extractive industry on any native flora and fauna on and near the land.
- The impact of the proposed extractive industry on sites of cultural and historic significance, including any effects on Aboriginal places.
- The effect of the proposed extractive industry on the natural and cultural landscape of the surrounding land and the locality generally.
- The ability of the proposed extractive industry to contain any emissions within the boundaries of the land in accordance with relevant legislation.
- The effect of vehicular traffic, noise, blasting, dust and vibration on the amenity of the surrounding area.
- The ability to rehabilitate the affected land to a form or for a use which is compatible with the natural systems or visual appearance of the surrounding area.
- The ability to rehabilitate the land so it can be used for a purpose or purposes beneficial to the community.
- The effect of the proposed extractive industry on groundwater quality and the impact on any affected water uses.
- The impact of the proposed extractive industry on surface drainage and surface water quality.
- Any proposed provisions, conditions or requirements in a work plan that has received statutory endorsement under the *Mineral Resources (Sustainable Development) Act 1990*.

## 52.09-5 Permit conditions for extractive industry

24/01/2020
VC160

A permit to use and develop land for extractive industry must not include conditions which require the use to cease by a specified date unless either:

- The subject land is situated in or adjoins land which is being developed or is proposed to be developed for urban purposes.
- Such condition is suggested by the applicant.

A permit to use and develop land for extractive industry must include:

- A condition that allows for a period of not less than five years for the use and development to commence before the permit expires under section 68 of the Act.
- Conditions that are consistent with the requirements specified in Clause 52.09-6.

## 52.09-6 Requirements for extractive industry

24/01/2020
VC160

The use and development of land for extractive industry must comply with the following requirements, to the satisfaction of the responsible authority:

- Except in accordance with a permit, no alteration may be made to the natural condition or topography of the land within 20 metres of the boundary of land. This does not apply to driveways, drains, bund walls or landscaping.
- Shrubs and trees must be planted and maintained to screen activity on the land.
- Parking areas must be provided for employees' cars and all vehicles used on the land.

## 52.09-7 Notice of an application

22/03/2022
VC219

Notice of the following kinds of applications must be given in accordance with section 52(1)(c) of the Act to the person or body specified as the person or body to be notified in Clause 66.05:

- An application to use or subdivide land or construct a building for accommodation, child care centre, education centre or hospital:

  - Within an Extractive Industry Interest Area.
  - On land which is within 500 metres of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

- An application to construct a building or construct or carry out works on land for which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.
- An application to use or develop land for accommodation in a rural zone if the building or works associated with the accommodation is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

This requirement does not apply to:

- An application to extend a building or works.
- An application that is required to be referred to the Secretary under section 55 of the Act.

# 52.10 RECONSTRUCTION AFTER AN EMERGENCY

05/10/2021
VC208

## Purpose

To facilitate the reconstruction of buildings and works damaged or destroyed as a result of an emergency.

To facilitate the re-establishment of businesses and services after an emergency.

To facilitate the continued use of land for dwellings after an emergency.

## 52.10-1 Use exemptions - dwelling

20/10/2026
VC317

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits the use of land, requires the use of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to the use of land (other than land in the Urban Floodway Zone or Flood Management Zone) for a dwelling if the following requirements are met:

- A dwelling on the land must have been damaged or destroyed as a result of an emergency after 1 January 2019.
- The use must commence within 7 years after the date the dwelling was damaged or destroyed.
- The dwelling must not be a building that was constructed under clause 52.07.
- The land must not be used for more than the number of dwellings the land was lawfully used for before the dwelling was damaged or destroyed.
- Access to the dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from the dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 52.10-2 Exemption from notice and review

18/12/2024
VC272

An application under any provision of this planning scheme to use or develop land (other than the subdivision of land) is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the following requirements are met:

- A building or works on the land must have been damaged or destroyed as a result of an emergency after 1 January 2019.
- A use must be a use that was lawfully carried out on the land immediately before the building or works was damaged or destroyed and cannot continue without the building or works being reconstructed.
- A development must be for:
  - The repair of the damaged or destroyed building or works; or
  - The construction of a building, or the construction or carrying out of works, to replace the damaged or destroyed building or works.

- The application must be lodged within 7 years of the date the building was damaged or destroyed.
- If the application is to use or develop land for a dwelling:
  - A dwelling on the land must have been damaged or destroyed as a result of an emergency after 1 January 2019.
  - The application must only be for the number of dwellings that were damaged or destroyed.

## 52.10-3 Meaning of terms

05/10/2021
VC208

In this clause, ***emergency*** means:

- a bushfire; or
- an earthquake, flood, wind-storm or other natural event.

## 52.10-4 Transitional provision

05/10/2021
VC208

Clause 52.10-2 of this planning scheme, as in force immediately before the approval date of Amendment VC208, continues to apply to an application lodged before that date for land on which a building was damaged or destroyed by a bushfire after 1 January 2019.

## 52.11 HOME BASED BUSINESS

31/07/2018
VC148

### Purpose

To ensure that the amenity of the neighbourhood is not adversely affected by a business conducted in or from a dwelling.

## 52.11-1 Requirements to be met

15/03/2024
VC256

A home based business must meet the following requirements:

- The person conducting the home based business must use the dwelling as their principal place of residence.
- No more than two persons who does not live in the dwelling may work in the home based business at any one time.
- The net floor area used in conducting the business including the storage of any materials or goods must not exceed 100 square metres or one-third of the net floor area of the dwelling, whichever is the lesser. This does not apply to the education or care of children. The net floor area includes out-buildings and works normal to a dwelling.
- The business must not impose a load on any utility greater than normally required for domestic use.
- The business must not adversely affect the amenity of the neighbourhood in any way including:
  - The appearance of any building, works or materials used.
  - The parking of motor vehicles.
  - The transporting of materials or goods to or from the dwelling.
  - The hours of operation.
  - Electrical interference.
  - The storage of chemicals, gasses or other hazardous materials.
  - Emissions from the site.
- No motor vehicle may be adjusted, modified, serviced or repaired for gain.
- Only one commercial vehicle associated with a home business not exceeding 2 tonnes capacity and with or without a trailer registered to a resident of the dwelling may be present at any time. The vehicle must not be fuelled or repaired on the site.
- No goods other than goods manufactured or serviced in the home based business may be offered for sale. This requirement does not apply to goods offered for sale online.
- Materials used or goods manufactured, serviced or repaired in the home based business must be stored within a building.
- No goods manufactured, serviced or repaired may be displayed so that they are visible from outside the site.
- Any goods offered for sale online must not be collected from the dwelling.

In this clause, a **commercial vehicle** means:

- any motor vehicle which is used or intended to be used for carrying goods in the course of any business; or
- a commercial motor vehicle within the meaning of the Road Safety Act 1986.

## 52.11-2 Permit requirement

15/03/2024
VC256

Despite the requirements of Clause 52.11-1, a permit may be granted for a home based business:

- Which allows no more than three people who do not live in the dwelling to work in the business at any one time; or
- Which has a floor area not exceeding 200 square metres or one-third of the net floor area of the dwelling, whichever is the lesser.
- Which allows no more than one additional commercial vehicle, not exceeding two tonnes capacity and with or without a trailer registered to a resident of the dwelling, to be present at any time.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Whether there is a need for additional parking or loading facilities.
- The effect of any vehicle parking, storage or washing facilities on the amenity and character of the street.
- Whether the site is suitable for the particular home based business and is compatible with the surrounding use and development.
- Whether there is a need for landscaping to screen any outbuildings or car parking or loading areas or any other area relating to the home based business.

## 52.12 BUSHFIRE PROTECTION EXEMPTIONS

05/08/2020
VC176

### Purpose

To facilitate the removal of vegetation in specified circumstances to support the protection of human life and property from bushfire.

To facilitate the construction and protection of community fire refuges and private bushfire shelters.

### 52.12-1 Exemptions to create defendable space around buildings used for accommodation

05/08/2020
VC176

Any requirement of a planning permit, including any condition, which has the effect of prohibiting the removal, destruction or lopping of vegetation, or any requirement of this planning scheme to obtain a planning permit, or any provision of this planning scheme that prohibits the removal, destruction or lopping of vegetation or requires the removal, destruction or lopping of vegetation to be carried out in a particular manner, does not apply to any of the following:

- The removal, destruction or lopping of any vegetation within 10 metres of an existing building used for accommodation if all of the following requirements are met:
  - The building must be located in an area that is designated as a bushfire prone area under the *Building Act 1993*.
  - The building must have been:
    - constructed before 10 September 2009; or
    - approved by a planning permit or a building permit issued before 10 September 2009; or
    - constructed to replace a dwelling or dependent persons unit that was damaged or destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009.
- The removal, destruction or lopping of any vegetation, except trees, within 30 metres of an existing building used for accommodation if all of the following requirements are met:
  - The building must be located in an area that is designated as a bushfire prone area under the *Building Act 1993*.
  - The building must have been:
    - constructed before 10 September 2009; or
    - approved by a planning permit or a building permit issued before 10 September 2009; or
    - constructed to replace a dwelling or dependent persons unit that was damaged or destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009.
- The removal, destruction or lopping of any vegetation, except trees, within 50 metres of an existing building used for accommodation if all of the following requirements are met:
  - The building must be located in the Bushfire Management Overlay.
  - The building must have been:
    - constructed before 10 September 2009; or
    - lawfully constructed without a planning permit before 18 November 2011; or
    - approved by a planning permit or a building permit issued before 10 September 2009 and constructed before 18 November 2011; or
    - constructed to replace a dwelling or dependent persons unit that was damaged or destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009.

## 52.12-2 Exemption for vegetation removal along a fenceline

05/08/2020
VC176

Any requirement of a planning permit, including any condition, which has the effect of prohibiting the removal, destruction or lopping of vegetation, or any requirement of this planning scheme to obtain a planning permit, or any provision of this planning scheme that prohibits the removal, destruction or lopping of vegetation or requires the removal, destruction or lopping of vegetation to be carried out in a particular manner, does not apply to the removal, destruction or lopping of any vegetation along a boundary fence between properties in different ownership if all of the following requirements are met:

- The fence must be located in an area that is designated as a bushfire prone area under the *Building Act 1993*.
- The fence must have been constructed before 10 September 2009.
- The clearing alongside both sides of the fence when combined must not exceed 4 metres in width, except where land has already been cleared 4 metres or more along one side of the fence, then up to 1 metre can be cleared along the other side of the fence.

## 52.12-3 Exemption for buildings and works associated with a community fire refuge

05/08/2020
VC176

Any requirement in this scheme relating to the construction of a building or the construction or carrying out of works does not apply to modifying an existing building to create a community fire refuge in accordance with Ministerial Direction No. 4, Construction Requirements for a Community Fire Refuge (1 October 2015) of the *Project Development and Construction Management Act 1994*.

## 52.12-4 Exemption for buildings and works associated with a private bushfire shelter

20/10/2026
VC317

Any requirement in this planning scheme relating to the construction of a building or the construction or carrying out of works does not apply to buildings and works associated with a private bushfire shelter (a Class 10c building within the meaning of the Building Regulations 2018), provided the total area of all buildings and works does not exceed 30 square metres.

This clause does not apply to land in the Urban Floodway Zone, Flood Management Zone, Erosion Management Overlay, Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay, Flood Management Overlay or Heritage Overlay.

## 52.12-5 Exemption to create defendable space for a dwelling under Clause 44.06 of this planning scheme

25/02/2025
VC257

Any requirement of a planning permit, including any condition, which has the effect of prohibiting the removal, destruction or lopping of vegetation, or any requirement of this planning scheme to obtain a planning permit, or any provision of this planning scheme that prohibits the removal, destruction or lopping of vegetation or requires the removal, destruction or lopping of vegetation to be carried out in a particular manner, does not apply to the removal, destruction or lopping of vegetation to enable the construction of a dwelling, or the alteration or extension of an existing dwelling, and create its defendable space if all of the following requirements are met:

- Land is in the Bushfire Management Overlay.
- Land is in the General Residential Zone, Residential Growth Zone, Neighbourhood Residential Zone, Housing Choice and Transport Zone, Urban Growth Zone, Low Density Residential Zone, Township Zone, Rural Living Zone, Farming Zone or Rural Activity Zone.
- The removal, destruction or lopping of vegetation:
  - Does not exceed the distance specified in Table 1 to Clause 53.02-3 of this planning scheme, based on the bushfire attack level determined by a relevant building surveyor in deciding an application for a building permit under the *Building Act 1993* for a dwelling or alteration or extension to the dwelling; or

- Is required to be undertaken by a condition in a planning permit issued after 31 July 2014 under Clause 44.06 of this scheme for a dwelling or an alteration or extension to the dwelling.

*Note: The effect of clause 52.12-5 is that if an application for building and works is made and all requirements of the clause are met, that application is not required to be accompanied by a permit application to remove the vegetation covered by this clause.*

# 52.13 VICTORIA'S CONTAINER DEPOSIT SCHEME

14/11/2022
VC227

## 52.13-1 Purpose

26/09/2023
VC246

To facilitate an automated collection point and a container deposit scheme centre to support waste reduction and recycling under Victoria's container deposit scheme.

To ensure an automated collection point and a container deposit scheme centre are designed and sited to minimise impacts on the land and surrounding land uses.

## 52.13-2 Application

26/09/2023
VC246

This clause applies to the use or development of an automated collection point and a container deposit scheme centre.

## 52.13-3 Automated collection point requirements

26/09/2023
VC246

An automated collection point should not:

- Be attached to another building.
- Be more than 3 metres in height. This includes an attached sign.
- Restrict a vehicular or pedestrian accessway to or from the land or an entry or exit to a building.

## 52.13-4 Container deposit scheme centre requirements

26/09/2023
VC246

A container deposit scheme centre should collect, consolidate, store, sort or recover materials in a fully enclosed and roofed building.

In an industrial zone, Commercial 2 Zone or Port Zone, a container deposit scheme centre should be at least 30 metres from land (not a road):

- In a residential zone (other than a Mixed Use Zone or Township Zone) or a Rural Living Zone.
- Used for, or in a Public Acquisition Overlay to be acquired for, a hospital, an education centre or a corrective institution.

In any other zone, a container deposit scheme centre should:

- Be at least 60 metres from land (not a road):
  - Used for accommodation, child care centre, pre-school centre, primary school, secondary school, education centre, informal outdoor recreation, hospital or a corrective institution.
  - To be acquired for a hospital, an education centre or a corrective institution.
- Not operate machinery to collect, consolidate, store, sort or recover materials between 5pm and 8am the following day.
- Not have more than 4 vehicle movements by the operator collecting or delivering materials to the container deposit scheme centre between 5pm and 8am the following day.

## 52.13-5 Permit exemption for an automated collection point

20/10/2026
VC317

Any requirement in a zone or overlay, or a schedule to a zone or overlay, to obtain a permit to construct a building or construct or carry out works does not apply to an automated collection point if the requirements of clause 52.13-3 and clause 52.13-6 are met.

This exemption does not apply to a requirement in any of the following overlays if an application for one or more automated collection points has a combined gross floor area of 2 square metres or more, and a building height of 2.5 metres or more:

Other than for a maximum of two automated collection points that are no greater than 2 square metres in total area and less than 2.5 metres in height, this exemption does not apply to a requirement in a:

- Bushfire Management Overlay if the automated collection point is located less than 10 meters from a building used for accommodation, education centre, hospital, leisure and recreation, or place of assembly.
- Environmental Significance Overlay.
- Floodway Overlay.
- Flood Management Overlay.
- Heritage Overlay.
- Land Subject to Inundation Overlay.
- Public Acquisition Overlay.
- Significant Landscape Overlay.
- Special Building Overlay.

### 52.13-6 Permit exemption requirement for an automated collection point

26/09/2023
VC246

For the purposes of clause 52.13-5, an automated collection point with a gross floor area less than 2 square metres, and a building height less than 2.5 metres must:

- Be set back at least 30 metres from land (not a road) not in the same ownership in a residential zone (other than a Mixed Use Zone or Township Zone) or a Rural Living Zone.
- Be set back at least 30 metres from a dwelling in a Township Zone.
- Not be located on vacant land in a residential or rural zone.
- Not be located in an area set aside for vehicle access or occupy a car parking space.
- Be of muted, non-reflective external colours and finishes.

For the purposes of clause 52.13-5, an automated collection point with a gross floor area of 2 square metres or more, and a building height of 2.5 metres or more must:

- Occupy no more than:
  - 4 existing car parking spaces on the land; or,
  - 5 existing car parking spaces on the land if the land contains 50 or more car parking spaces.
- Be set back at least 4 metres from the frontage.
- Be set back at least 30 metres from land (not a road) not in the same ownership in a residential zone, Rural Living Zone or Urban Growth Zone.
- Not be located on vacant land in a residential or rural zone.
- Be of muted, non-reflective external colours and finishes.

### 52.13-7 Exemption from car parking requirements for an automated collection point

26/09/2023
VC246

An automated collection point is exempt from the requirements of clause 52.06.

### 52.13-8 Exemption from permit conditions for an automated collection point

26/09/2023
VC246

Any requirement of a permit, or any permit condition, that requires the provision of car parking, or requires land to be set aside for vehicle access or car parking, does not apply to the use or development of land for an automated collection point if the requirements of clause 52.13-3 are met.

## 52.13-9 Application requirements

26/09/2023
VC246

An application must be accompanied by the following information as appropriate:

- A site context plan that specifies the location and nature of land use within 100 metres of site boundaries.
- A site and layout plan that includes:
  - Design for safe pedestrian and vehicle movements.
  - Any additional lighting to be included and any proposed baffling.
  - Any existing automated collection points on the site.
- An operational plan that includes:
  - Operating days and hours.
  - Noise, emissions and amenity attenuation measures. This may include a report on how noise and amenity impacts from the use will be reduced.
  - Safety and access details including how the use will be serviced, emptied and how materials will be moved to and from the site.
  - Details and methods of managing the collection, consolidation, storage sorting and recovery of materials within a building to reduce noise and amenity impacts on surrounding land.
  - Details of traffic and car parking requirements generated by the use.

## 52.13-10 Decision guidelines

26/09/2023
VC246

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The effect on existing car parking provision if an automated collection point is located on existing car parking spaces.
- The setback of the development from a frontage and from land (not a road) not in the same ownership in a residential zone, Rural Living Zone or Urban Growth Zone.
- The effect of siting an automated collection point on vacant land in a residential or rural zone.
- The effect of external colours and finishes.
- The size, density and number of automated collection points including the cumulative impact of automated collection points on the land.
- Whether a proposed operational plan reduces noise and other impacts on nearby land uses.
- Safe pedestrian and vehicle movements on the land.
- The effect of noise, emissions, traffic movements and other amenity impacts on adjoining land uses.
- In a zone other than an industrial zone, Commercial 2 Zone or Port Zone the effect of noise, emissions, traffic movements and other amenity impacts of a container deposit scheme centre on adjacent and nearby sensitive land uses.

## 52.13-11 Exemption from notice and review

26/09/2023
VC246

An application to use or develop land for an automated collection point including the construction of or putting up for display a sign in conjunction with an automated collection point is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

An application to use or develop a container deposit scheme centre, including the construction of or putting up for display a sign in conjunction with a container deposit scheme centre is exempt from:

- In an industrial zone, Commercial 2 Zone and Port Zone, the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.
- In any other zone, the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 52.13-12 Transitional provisions

26/09/2023
VC246

The requirements of this clause introduced by Amendment VC246 do not apply to:

- An application for an automated collection point or container deposit scheme centre lodged before the approval date of Amendment VC246.
- An application for an amendment of a permit for an automated collection point or container deposit scheme centre under section 72 of the Act if the original permit application was lodged before the approval date of Amendment VC246.

## 52.14 2009 BUSHFIRE - REPLACEMENT BUILDINGS

31/07/2018
VC148

### Purpose

To support the rebuilding of dwellings, dependent persons' units and buildings used for agriculture damaged or destroyed by the 2009 Victorian bushfires.

## 52.14-1 Scope

14/12/2020
VC188

This clause applies to:

- The construction of a building or the construction and carrying out of works, associated with rebuilding:
  - a dwelling or dependent person's unit; or
  - a building used for agriculture,

  that was damaged or destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009.
- The use of land for:
  - a dwelling or dependent person's unit that is rebuilt in accordance with this clause; or
  - agriculture to the extent that the use relates to a building that was destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009 and that use cannot continue unless that building is rebuilt.
- The removal, destruction or lopping of vegetation to enable the construction, use and maintenance of a building rebuilt in accordance with this Clause.

This clause does not apply to land in a Heritage Overlay.

For the avoidance of doubt, any planning permit exemption provided by the scheme continues to apply to the use and development specified in this Clause.

## 52.14-2 Exemption from planning scheme requirements

20/01/2022
VC205

Any requirement of the scheme to obtain a permit or any provision in the scheme which prohibits the use or development of land or requires the use or development of land to be carried out in a particular manner does not apply to the use and development specified in Clause 52.14-1 provided the following requirements are met:

### Site plan

Before the commencement of construction of a building or the construction or carrying out of works, a site plan must be provided to and approved by the responsible authority. The site plan must show:

- The boundaries of the property.
- The location of any damaged or destroyed dwelling, dependent person's unit or building used for agriculture.
- The proposed location of the replacement dwelling, dependent person's unit or building used for agriculture.
- The existing and proposed access to the lot.

- Vegetation to be removed destroyed or lopped to enable rebuilding including construction of vehicle access, water storage and waste water treatment.
- For replacement dwellings and dependent persons' units on land in a Farming Zone, Rural Conservation Zone, Rural Activity Zone, Green Wedge Zone, Green Wedge A Zone or the Rural Living Zone:
  - The location and dimensions of vehicle access.
  - The location and storage of water for potable and fire fighting purposes if the dwelling or dependent person's unit cannot be connected to a reticulated potable water supply.
  - The location of the waste water treatment system if waste water is to be retained and treated on site.

The site plan must be submitted to the responsible authority by 30 September 2017.

**Commencement of development**

- The development must commence within two years after the approval of a site plan by the responsible authority and must be completed within two years after the development commences. The responsible authority may allow an extension of time on the request of the owner or the occupier of the land to which the approved site plan applies, provided that request is made before the expiry of the applicable period or within three months of the expiry of the applicable period.

**Compliance with site plan**

- The development must comply with the approved site plan.

**Use and development conditions**

- The land must not be used for more than the number of dwellings or dependent persons' units that were damaged or destroyed.
- The removal, destruction or lopping of vegetation to enable the maintenance of a building must not exceed 10 metres beyond the building.
- For land in the Farming Zone, Rural Conservation Zone, Rural Activity Zone, Green Wedge Zone, Green Wedge A Zone or the Rural Living Zone:
  - Access to the dwelling or dependent person's unit must be provided via an all weather road with dimensions adequate to accommodate emergency vehicles.
  - The dwelling or dependent person's unit must be connected to a reticulated sewerage system or if not available, the waste water must be managed to the satisfaction of the responsible authority.
  - The dwelling or dependent person's unit must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
  - The dwelling or dependent person's unit must be connected to a reticulated electricity supply or have an alternative energy source.
- A building must be constructed of materials that are non-reflective and of muted tones in the following locations:
  - Land in an Environmental Significance Overlay, Design and Development Overlay or Significant Landscape Overlay.
  - Land in a Green Wedge Zone, Green Wedge A Zone or Rural Conservation Zone in the municipal districts of the Shire of Yarra Ranges and the Shire of Nillumbik.

- For land in a Restructure Overlay, a building must be consistent with any Restructure Plan.
- For land adjacent to a Transport Zone 2 or Land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road, access must not be created or altered.

## 52.14-3 Land in an Erosion Management Overlay

31/07/2018
VC148

For land in an Erosion Management Overlay in the municipal district of the Shire of Yarra Ranges, in addition to the requirements specified in Clause 52.14-2, the written authorisation of the responsible authority must be obtained prior to:

- Constructing a building or constructing and carrying out works; or
- Removing, destroying or lopping vegetation.

## 52.14-4 Land in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay or Flood Management Overlay

20/10/2026
VC317

For land in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay or Flood Management Overlay, in addition to the requirements specified in Clause 52.14-2, the written authorisation of the relevant flood plain management authority must be obtained prior to the commencement of construction of a building or the construction or carrying out of works.

## 52.14-5 Decision guidelines

31/07/2018
VC148

Before deciding on approval of the site plan, in addition to the decision guidelines in Clause 65 and any other requirements of the Act, the responsible authority must consider, as appropriate:

- The extent to which the siting of the building and associated development can reasonably achieve compliance with other relevant requirements of this scheme.
- The extent to which the replacement dwelling or dependent person's unit can be located on the land to assist the minimisation of risk to life and property from bushfire.

# 52.15 HELIPORT AND HELICOPTER LANDING SITE

29/10/2015
VC101

## Purpose

To ensure the amenity impacts of a heliport and a helicopter landing site on surrounding areas is considered.

## 52.15-1 Permit requirement

20/03/2023
VC229

A permit is required to use or develop any land for a heliport or a helicopter landing site even if it is ancillary to another use on the land, unless the table to this Clause specifically states that a permit is not required.

### Table of exemptions for use

| No permit is required to use land for a helicopter landing site if any of the following apply: | |
|---|---|
| **Emergency services** | The helicopter landing site is used by a helicopter engaged in the provision of emergency service operations. |
| **Agriculture** | The helicopter landing site is used by a helicopter engaged in agricultural activity in conjunction with the use of any land for agriculture. |
| **Public land management** | The helicopter landing site is used by a helicopter engaged in the provision of public land management activities conducted by or on behalf of any of the following:<br>▪ Department of Energy, Environment and Climate Action;<br>▪ The Department of Transport and Planning;<br>▪ Parks Victoria; or<br>▪ The Great Ocean Road Coast and Parks Authority,<br>whether on private land or not. |
| **General** | The helicopter landing site where either:<br>▪ The landing point is located more than 500 metres from a building used for a sensitive use (accommodation, child care centre, education centre and hospital) that is not associated with the helicopter operation and more than 200 metres from a shipping channel in the Port of Melbourne, provided:<br>– The number of flight movements does not exceed eight in a 30 day period and four in a 24 hour period (for the purposes of this provision the take off and landing of a helicopter are separate flight movements).<br>– Flight movements do not take place before 7am or after sunset on a weekday.<br>– Flight movements do not take place before 8am or after sunset on a weekend or holiday; or<br>▪ The landing point is located more than 1000 metres from a building used for a sensitive use that is not associated with the helicopter operation and more than 200 metres from a shipping channel in the Port of Melbourne. |

## 52.15-2 Application requirements

18/12/2012
VC93

An application to use or develop land for a heliport or a helicopter landing site must be accompanied by the following information, as appropriate:

- A site plan, including:
  - Site boundaries and dimensions.
  - The current land use.
  - The existing siting and layout of buildings and works.
  - The proposed siting and layout of buildings and works.
  - Existing vegetation and proposed vegetation removal.

- Vehicle and pedestrian access.

An application to use land for a heliport or a helicopter landing site must be accompanied by the following information:

- A location plan, including:
  - The siting and use of buildings on adjacent properties.
  - The direction and distance to any building used for a sensitive use (accommodation, child care centre, education centre and hospital) that is not associated with the helicopter operation and is located within 500 metres of the proposed heliport or helicopter landing site.
- A written report which:
  - Demonstrates a suitable separation distance between the landing point of a heliport or helicopter landing site and any building used for a sensitive use that is not associated with the helicopter operation by either:
  - Locating the proposed heliport or helicopter landing site at least 150 metres for helicopters of less than 2 tonnes all-up weight, or 250 metres for helicopters of less than 15 tonnes all-up weight, or
  - Providing an acoustic report by a suitably qualified consultant.
  - Includes details of the proposed frequency of flight movements.
  - Includes the proposed hours of operation.

## 52.15-3 Decision guidelines

18/12/2012
VC93

Before deciding on an application to use land for a heliport or a helicopter landing site, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Whether the proposal achieves a suitable separation distance from a nearby sensitive use, having regard to the Noise Control Guidelines (Environment Protection Authority, 2008).
- The effect of the proposal on nearby sensitive uses in terms of the proposed frequency of flight movements and hours of operation.

# 52.16 NATIVE VEGETATION PRECINCT PLAN

30/10/2025
VC291

## Purpose

To provide for the protection, management and removal of native vegetation through the use of a native vegetation precinct plan incorporated into this scheme.

To ensure that there is no net loss to biodiversity as a result of the removal, destruction or lopping of native vegetation. This is achieved by applying the following three step approach in accordance with the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025) (the Guidelines):

1. Avoid the removal, destruction or lopping of native vegetation.
2. Minimise impacts from the removal, destruction or lopping of native vegetation that cannot be avoided.
3. Provide an offset to compensate for the biodiversity impact if a permit is granted to remove, destroy or lop native vegetation.

To manage the removal, destruction or lopping of native vegetation to minimise land and water degradation.

## 52.16-1 Application

12/12/2017
VC138

This clause applies to land if a native vegetation precinct plan corresponding to that land is incorporated into this scheme and listed in the schedule to this clause.

## 52.16-2 Native vegetation precinct plans

14/07/2022
VC213

A native vegetation precinct plan is a plan relating to native vegetation within a defined area which is incorporated into this scheme and listed in the schedule to this clause.

A native vegetation precinct plan may form part of a more general strategic or precinct structure plan.

A native vegetation precinct plan must include the information and provide for the matters set out in section 10.1 of the Guidelines.

## 52.16-3 Permit requirement

12/12/2017
VC138

A permit is required to remove, destroy or lop any native vegetation, including dead native vegetation. This does not apply:

- If the removal, destruction or lopping of native vegetation is in accordance with a native vegetation precinct plan incorporated into this scheme. Any conditions or requirements specified in the plan must be met.
- To the removal, destruction or lopping of native vegetation specified in the table to Clause 52.16-8, unless a native vegetation precinct plan specifies otherwise.

## 52.16-4 Application requirements

14/07/2022
VC213

An application to remove, destroy or lop native vegetation must comply with the application requirements specified in the Guidelines.

## 52.16-5 Decision guidelines

14/07/2022
VC213

Before deciding on an application, in addition to the decision guidelines at Clause 65, the responsible authority must consider the decision guidelines specified in the Guidelines as appropriate.

## 52.16-6 Offset requirements

14/07/2022
VC213

If a permit is required to remove, destroy or lop native vegetation, the biodiversity impacts from the removal, destruction or lopping of native vegetation must be offset in accordance with the Guidelines. The conditions on the permit for the removal, destruction or lopping of native vegetation must specify the offset requirement and timing to secure the offset.

## 52.16-7 Transitional provisions

20/03/2023
VC229

The requirements of this clause in force immediately before the commencement of Amendment VC138 continue to apply to an application for:

- A permit lodged before that date.
- An amendment to a permit if:
  - the original permit application was lodged before that date; or
  - the original permit application was one that benefited from the following transitional provision.
- A permit lodged within 12 months after that date, if the Secretary to the Department of Environment, Land Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) has stated in writing that a report about the proposed removal, destruction or lopping of native vegetation has been generated by the Department's native vegetation information systems within 12 months before that date.

## 52.16-8 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Conservation work** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of conservation work:<br>▪ which provides an overall improvement for biodiversity; and<br>▪ with written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Crown land** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to manage Crown land:<br>▪ by or on behalf of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*), the Great Ocean Road Coast and Parks Authority or Parks Victoria, and in accordance with the *Procedure for the removal, destruction or lopping of native vegetation on Crown land*; or<br>▪ with written permission from the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Emergency works** | Native vegetation that is to be removed, destroyed or lopped:<br>▪ in an emergency by or on behalf of a public authority or municipal council to create an emergency access associated with emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority under that Act. |
| **Fire protection** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out any of the following fire protection activities: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under *Part 2 of the Conservation, Forests and Lands Act 1987*);<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping native vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by or on behalf of that authority, in accordance with written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the Conservation, Forest and Lands Act 1987). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Greenhouse gas sequestration and exploration** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management or directions notice** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and mining** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration mining, prospecting, or retention license issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Pest animal burrows** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows in accordance with the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988*. |
| **Planted vegetation** | Native vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | This exemption does not apply to native vegetation planted or managed with public funding for the purpose of land protection or enhancing biodiversity unless the removal, destruction or lopping of the native vegetation is in accordance with written permission of the agency (or its successor) that provided the funding. |
| **Railways** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Native vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established native vegetation, and is:<br>▪ bracken (*Pteridium esculentum*); or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land where native vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | ▪ Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of native vegetation that may be removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of native vegetation which does not include a tree.<br>▪ 15 native trees with trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 native trees with trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licensed surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Native vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resource agreement under Part 6 of the *Traditional Owner Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional Owner Settlement Amendment Act in 2016* (1 May 2017). |
| **Utility installations** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary:<br>▪ to maintain the safe and efficient function of a Minor utility installation; or<br>▪ by or on behalf of a utility service provider to maintain or construct a utility installation in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |

## 52.16-9 Melbourne Strategic Assessment Levy Area

14/07/2022
VC213

The following provisions apply to the removal, destruction or lopping of native vegetation in the levy area within the meaning of the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*.

Despite clauses 52.16-4, 52.16-5, 52.16-6 and anything in the Guidelines:

- An application to remove, destroy or lop native vegetation is not required to be accompanied by an offset statement providing evidence that an offset that meets the offset requirements for the native vegetation to be removed has been identified and can be secured in accordance with the Guidelines.
- Before deciding on an application, a responsible authority is not required to consider whether an offset that meets the offset requirements for the native vegetation to be removed has been identified and can be secured in accordance with the Guidelines.
- The biodiversity impacts of the removal, destruction or lopping of native vegetation are not required to be offset in accordance with the Guidelines.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 52.16 NATIVE VEGETATION PRECINCT PLAN

## 1.0 Native vegetation precinct plan

10/06/2021
C254card

| Name of plan |
|---|
| Cardinia Road Employment Precinct Structure Plan (including the Cardinia Road Employment Precinct Native Vegetation Precinct Plan) September 2010 |
| Officer Native Vegetation Precinct Plan (September 2011) |
| Pakenham East Native Vegetation Precinct Plan (Ecology and Heritage Partners, October 2018) |

# 52.17 NATIVE VEGETATION

30/10/2025
VC291

## Purpose

To ensure that there is no net loss to biodiversity as a result of the removal, destruction or lopping of native vegetation. This is achieved by applying the following three step approach in accordance with the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025) (the Guidelines):

1. Avoid the removal, destruction or lopping of native vegetation.

2. Minimise impacts from the removal, destruction or lopping of native vegetation that cannot be avoided.

3. Provide an offset to compensate for the biodiversity impact if a permit is granted to remove, destroy or lop native vegetation.

To manage the removal, destruction or lopping of native vegetation to minimise land and water degradation.

## 52.17-1 Permit requirement

12/12/2017
VC138

A permit is required to remove, destroy or lop native vegetation, including dead native vegetation. This does not apply:

- If the table to Clause 52.17-7 specifically states that a permit is not required.
- If a native vegetation precinct plan corresponding to the land is incorporated into this scheme and listed in the schedule to Clause 52.16.
- To the removal, destruction or lopping of native vegetation specified in the schedule to this clause.

## 52.17-2 Application requirements

14/07/2022
VC213

An application to remove, destroy or lop native vegetation must comply with the application requirements specified in the Guidelines.

## 52.17-3 Property vegetation plans

12/12/2017
VC138

A permit granted to remove, destroy or lop native vegetation in accordance with a property vegetation plan must include the following condition:

"This permit will expire if one of the following circumstances applies:

- The removal, destruction or lopping of native vegetation does not start within two years of the date of this permit.
- The removal, destruction or lopping of native vegetation is not completed within ten years of the date of this permit."

## 52.17-4 Decision guidelines

12/12/2017
VC138

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider the decision guidelines specified in the Guidelines as appropriate.

## 52.17-5 Offset requirements

14/07/2022
VC213

If a permit is required to remove, destroy or lop native vegetation, the biodiversity impacts from the removal, destruction or lopping of native vegetation must be offset, in accordance with the Guidelines. The conditions on the permit for the removal, destruction or lopping of native vegetation must specify the offset requirement and the timing to secure the offset.

## 52.17-6 Transitional provisions

20/03/2023
VC229

The requirements of this clause in force immediately before the commencement of Amendment VC138 continue to apply to an application for:

- A permit lodged before that date.
- An amendment to a permit if:
  - the original permit application was lodged before that date; or
  - the original permit application was one that benefited from the following transitional provision.
- A permit lodged within 12 months after that date, if the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) has stated in writing that a report about the proposed removal, destruction or lopping of native vegetation has been generated by the Department's native vegetation information systems within 12 months before that date.

## 52.17-7 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Conservation work** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of conservation work:<br>▪ which provides an overall improvement for biodiversity; and<br>▪ with written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Crown land** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to manage Crown land:<br>▪ by or on behalf of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*), the Great Ocean Road Coast and Parks Authority or Parks Victoria, and in accordance with the *Procedure for the removal, destruction or lopping of native vegetation on Crown land*; or<br>▪ with written permission from the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Dead native vegetation** | Native vegetation that is dead.<br>This exemption does not apply to a standing dead tree with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level. |
| **Emergency works** | Native vegetation that is to be removed, destroyed, or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access associated with emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Existing buildings** | Native vegetation that is to be removed, destroyed, or lopped to the minimum extent necessary to enable the use or maintenance of a building constructed in accordance with a planning or building permit issued before 15 September 2008.<br>This exemption does not apply to:<br>▪ the operation or maintenance of a fence; or<br>▪ native vegetation located more than 10 metres measured from the outermost point of the building. |
| **Existing buildings and works in the Farming Zone and Rural Activity Zone** | Native vegetation that is to be removed, destroyed, or lopped to the minimum extent necessary to enable the use or maintenance of an existing building or works used for Agricultural production, including a dam, utility service, bore, horticultural trellising and accessway in the Farming Zone or the Rural Activity Zone.<br>This exemption does not apply to:<br>▪ the use or maintenance of a Dwelling; or<br>▪ the operation or maintenance of a fence; or<br>▪ native vegetation located more than 10 metres measured from the outermost point of the building or works. |
| **Extractive industry** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority under that Act. |
| **Fences** | Native vegetation that is to be removed, destroyed, or lopped to the minimum extent necessary to enable:<br>▪ the operation or maintenance of an existing fence; or<br>▪ the construction of a boundary fence between properties in different ownership.<br>The clearing along both sides of the fence when combined must not exceed 4 metres in width, except where land has already been cleared 4 metres or more along one side of the fence, then up to 1 metre can be cleared along the other side of the fence. |
| **Fire protection** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to carry out any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuelbreak or firefighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ keeping native vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by or on behalf of that authority, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Grasses** | Native grass that is to be mowed or slashed for maintenance only, provided that the grass is:<br>▪ located within a lawn, garden or other landscaped area; or<br>▪ maintained at a height of at least 10 centimetres above ground level. |
| **Grazing** | Native vegetation that is to be removed, destroyed or lopped by domestic stock grazing on:<br>▪ freehold land; or<br>▪ Crown land in accordance with a license, permit or lease granted under applicable legislation. |
| **Greenhouse gas sequestration and exploration** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Harvesting for timber production – naturally established native vegetation** | Naturally established native vegetation that is to be removed, destroyed or lopped to enable timber harvesting operations and associated activities that are in accordance with the *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022) and are:<br>▪ undertaken on public land under a licence or permit issued under section 52 of the *Forests Act 1958*; or<br>▪ authorised in accordance with Part 5 of the *Sustainable Forests (Timber) Act 2004*. |
| **Land management or directions notice** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Lopping and pruning for maintenance** | Lopping or pruning native vegetation, for maintenance only, provided no more than 1/3 of the foliage of each individual plant is lopped or pruned.<br>This exemption does not apply to:<br>▪ the pruning or lopping of the trunk of a native tree; or<br>▪ native vegetation on a roadside or railway reservation. |
| **Mineral exploration and extraction** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention license issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **New buildings and works in the Farming Zone and Rural Activity Zone** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the construction of a building or works used for Agricultural production, including a dam, utility service, bore and accessway, in the Farming Zone or the Rural Activity Zone.<br>The maximum extent of native vegetation that may be removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of native vegetation which does not include a tree.<br>▪ 15 native trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 native trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to the construction or operation of a pivot irrigation system or horticultural trellising. |
| **New dwellings in the Farming Zone and Rural Activity Zone** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the construction of a dwelling in the Farming Zone or Rural Activity Zone.<br>The maximum extent of native vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 300 square metres of native vegetation which does not include a tree.<br>▪ 5 native trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 1 native tree with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply native vegetation removed, destroyed or lopped to enable the construction of a swimming pool, tennis court or horse ménage. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Personal use** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to obtain reasonable amounts of wood for personal use by the owner or lawful occupier of the land.<br><br>For the purpose of this exemption personal use means uses such as heating and cooking, building and fence construction on land, and hobbies such as arts and craft.<br><br>This exemption does not apply to:<br>▪ contiguous land in one ownership that has an area of less than 10 hectares;<br>▪ the removal, destruction or lopping of native vegetation by means other than cutting or chopping; or<br>▪ a standing native tree (including a dead tree) with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level. |
| **Pest animal burrows** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows in the Farming Zone or the Rural Activity Zone:<br>▪ in accordance with written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988*; or<br>▪ provided the maximum extent of native vegetation removed, destroyed or lopped on contiguous land in the same ownership in a five year period does not exceed any of the following:<br>– 1 hectare of native vegetation which does not include a tree; or<br>– 15 native trees with a trunk diameter of less than 20 centimetres at a height of 1.3 metres above ground level. |
| **Planted vegetation** | Native vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding.<br><br>This exemption does not apply to native vegetation planted or managed with public funding for the purpose of land protection or enhancing biodiversity unless the removal, destruction or lopping of the native vegetation is in accordance with written permission of the agency (or its successor) that provided the funding. |
| **Railways** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Native vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established native vegetation, and is:<br>▪ less than 10 years old; or<br>▪ bracken (*Pteridium esculentum*); or |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation; or<br>▪ less than ten years old at the time of a property vegetation plan being signed by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*), and is:<br>– shown on that plan as being 'certified regrowth'; and<br>– on land that is to be used or maintained for cultivation or pasture during the term of that plan.<br>This exemption does not apply to land where native vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by and on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Site area** | Native vegetation that is to be removed, destroyed or lopped on land, together with all contiguous land in one ownership, which has an area of less than 0.4 hectares.<br>This exemption does not apply to native vegetation on a roadside or rail reservation. |
| **Stock movements on roads** | Native vegetation that is to be removed, or destroyed by stock being moved along a road.<br>This exemption does not apply to grazing as a result of holding stock in a temporary fence (including an electric fence) on a roadside for the purpose of feeding. |
| **Stone exploration** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of native vegetation that may be removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of native vegetation which does not include a tree.<br>▪ 15 native trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 native trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Native vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ a natural resource agreement under Part 6 of the *Traditional Owner Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional Owner Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Utility installations** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary:<br>▪ to maintain the safe and efficient function a Minor utility installation; or<br>▪ by or on behalf of a utility service provider to maintain or construct a utility installation in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Vehicle access from public roads** | Native vegetation that is to be removed, destroyed, or lopped to the minimum extent necessary to enable the construction or maintenance of a vehicle access across a road reserve from a property boundary to a public road.<br>This exemption only applies to properties which share a common boundary with the road reserve, and the total width of clearing must not exceed 6 metres.<br>This exemption does not apply where there is a practical opportunity to site the accessway to avoid the removal, destruction or lopping of native vegetation.<br>In this exemption, roadside and public road have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Under the Road Management Act 2004 the written consent of the coordinating road authority is required to conduct any works, including removing a tree or other vegetation, in, on, under or over a road.* |
| **Weeds** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal or destruction of a weed listed in the schedule to Clause 52.17.<br>The maximum extent of native vegetation that may be removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of native vegetation which does not include a tree.<br>▪ 15 native trees with a trunk diameter of less than 20 centimetres at a height of 1.3 metres above ground level. |

## 52.17-8 Melbourne Strategic Assessment Levy Area

14/07/2022
VC213

The following provisions apply to the removal, destruction or lopping of native vegetation in the levy area within the meaning of the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*.

Despite clauses 52.17-2, 52.17-4, 52.17-5 and anything in the Guidelines:

- An application to remove, destroy or lop native vegetation is not required to be accompanied by an offset statement providing evidence that an offset that meets the offset requirements for the native vegetation to be removed has been identified and can be secured in accordance with the Guidelines.
- Before deciding on an application, a responsible authority is not required to consider whether an offset that meets the offset requirements for the native vegetation to be removed has been identified and can be secured in accordance with the Guidelines.
- The biodiversity impacts of the removal, destruction or lopping of native vegetation are not required to be offset in accordance with the Guidelines.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 52.17 NATIVE VEGETATION

## 1.0 Scheduled area

27/02/2025
C274card

| Area | Description of native vegetation for which no permit is required to remove, destroy or lop |
|---|---|
| All land in a Public Acquisition Overlay or a Transport Zone 2 or a Transport Zone 3 for the Pakenham Bypass | All native vegetation provided the works are undertaken in accordance with a Project Environment Protection Strategy, which is consistent with the Minister's Assessment under the Environment Effects Act 1978 for the Pakenham Bypass Project, to the satisfaction of the responsible authority |
| All land | Sweet Pittosporum *(Pittosporum undulatum)* |
| Land in the Cardinia Reservoir Park, Emerald | Native vegetation required to be removed, destroyed or lopped to enable the land to be developed by or on behalf of Melbourne Water for the Desalinated Water Integration Project |
| Land in a Transport Zone 1 for the Cardinia Road Railway Station and associated facilities | Native vegetation required to be removed, destroyed or lopped to enable the land to be developed for the Cardinia Road Railway Station and associated facilities |
| Land shown in the Urban Growth Zone 6 for the Pakenham South Employment precinct | All native vegetation in the levy area within the meaning of the Melbourne Strategic Assessment (Environmental Mitigation Levy) Act 2020. |
| Land shown as UGZ7, SUZ8 and IPO3 on planning scheme maps | All native vegetation in the levy area within the meaning of the Melbourne Strategic Assessment (Environmental Mitigation Levy) Act 2020. This does not apply to native vegetation identified as to be retained in a precinct structure plan incorporated in this scheme. |

## 2.0 Scheduled weed

10/06/2021
C254card

| Area | Description of weed |
|---|---|
| None specified | |

# 52.18 CORONAVIRUS (COVID-19) PANDEMIC AND RECOVERY EXEMPTIONS

28/10/2022
VC224

## Purpose

To support Victoria's social and economic recovery from the coronavirus (COVID-19) pandemic through exemptions that enable outdoor dining and facilitate the reopening and safe operation of hospitality and other businesses.

## 52.18-1 Operation

17/10/2025
VC296

This clause contains exemptions from the requirements of this planning scheme and exemptions from conditions of permits.

The exemptions in this clause prevail over any inconsistent provision in this planning scheme or condition of a permit.

The exemptions in this clause do not apply to a requirement in the Heritage Overlay relating to the construction or carrying out of works to an existing building, the alteration of an existing building, or the painting of an existing building, other than a building constructed or placed under an exemption in this clause.

A use or development carried out under an exemption in this clause must comply with the requirements in clause 52.18-6.

In this clause:

- ***drink*** includes liquor;
- ***exemption period*** means the period when a pandemic declaration under the *Public Health and Wellbeing Act 2008* in relation to coronavirus (COVID-19) is in force and until 30 June 2027;
- ***hospitality*** means:
  - the preparation or sale of food or drink for immediate consumption on, or off, the land; or
  - the consumption of food or drink;
- ***public land*** means Crown land and land that is owned by, vested in or controlled by a Minister, government department, public authority or municipal council.

## 52.18-2 Public land exemptions

15/10/2026
VC306

Any requirement in this planning scheme relating to the use of land does not apply to the use of public land for an art and craft centre, education centre, hospitality, leisure and recreation, office, place of assembly, market or shop during the exemption period if the requirements of clause 52.18-6 are met.

Any requirement in this planning scheme relating to the construction of a building or the construction or carrying out of works on public land does not apply to a temporary building or movable building associated with the use of land for an art and craft centre, education centre, hospitality, leisure and recreation, office, place of assembly, market or shop during the exemption period if the requirements of clause 52.18-6 are met.

## 52.18-3 Food and drink business extension exemptions

15/10/2026
VC306

Any requirement in this planning scheme relating to the use of land does not apply to the use of land for hospitality during the exemption period if the use is associated with the existing use of adjoining land for a food and drink premises, function centre, nightclub or winery, and the requirements of clause 52.18-6 are met.

Any requirement in this planning scheme relating to the construction of a building or the construction or carrying out of works does not apply to a temporary building or movable building associated with the use of the land for hospitality during the exemption period if the requirements of clause 52.18-6 are met.

## 52.18-4 Car parking exemption

28/10/2022
VC224

Any requirement of this planning scheme relating to the provision of car parking does not apply to a use commenced under an exemption in this clause, or the existing use of land for a food and drink premises, function centre, nightclub or winery, during the exemption period.

## 52.18-5 Permit condition exemptions

15/10/2026
VC306

The following exemptions apply to permits issued before the approval date of Amendment VC193 and which allow:

- the use or development of land for a food and drink premises, function centre, nightclub or winery; or
- the use or development of land for the sale or consumption of liquor associated with the use of the land for a food and drink premises, function centre, nightclub or winery.

Any requirement of a permit, including any condition, relating to the layout or location of the preparation, sale or consumption of food or drink on the land does not apply during the exemption period if the requirements of clause 52.18-6 are met. This exemption does not apply to a condition relating to the maximum number of patrons, hours of operation (including any condition that applies to a particular outdoor area), location or playing of music, or noise levels.

Any requirement of a permit, including any condition, relating to the layout or location of development on the land does not apply to the construction or placing of a temporary building or movable building, or the construction or carrying out of works, under an exemption in this clause if the requirements of clause 52.18-6 are met.

Any requirement of a permit, including any condition, that requires the provision of car parking, or requires land to be set aside for vehicle access or car parking, does not apply to the alteration of an existing use of land under an exemption in this clause during the exemption period if the requirements of clause 52.18-6 are met.

## 52.18-6 Use and development requirements

20/10/2026
VC317

The following requirements apply to the use and development of land carried out under an exemption in this clause.

The use of the land must not:

- Continue after the exemption period unless in accordance with the requirements of this planning scheme.
- Unreasonably affect the amenity of the neighbourhood, including through:
  - Transport of materials, goods or commodities to or from the land.
  - Appearance of any building, works or materials.
  - Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

Land in, or within 30 metres of, a residential zone must not be used for the outdoor consumption of food or drink between the hours of 10.00pm and 7.00am. The responsible authority may vary this requirement to extend the hours of the use.

The use or development of land must not impede access required by emergency services or for waste collection.

The height of a building constructed or placed under an exemption in this clause must not exceed 3.6 metres.

A building must not be constructed or placed under an exemption in this clause within 1 metre of adjacent land in a residential zone if the height of the building exceeds 1.8 metres.

The siting of a building in a Bushfire Management Overlay or Erosion Management Overlay that would require a permit under the overlay were it not for an exemption in this clause must be to the satisfaction of the responsible authority.

The siting of a building in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay or Flood Management Overlay that would require a permit under the overlay were it not for an exemption in this clause must be to the satisfaction of the relevant floodplain management authority.

A building constructed or placed under an exemption in this clause must be removed from the land before the end of the exemption period.

## 52.19 TELECOMMUNICATIONS FACILITY

04/11/2022
VC226

### Purpose

To ensure that telecommunications infrastructure is provided in an efficient and cost-effective manner to meet community needs.

To facilitate an effective state-wide telecommunications network consistent with proper and orderly planning.

To support the provision of telecommunications facilities with minimal impact on the amenity of the area.

## 52.19-1 Permit requirement

04/11/2022
VC226

A permit is required to construct a building or construct or carry out works for a telecommunications facility. This does not apply to the construction of a building or the construction or carrying out of works for any of the following:

- A low-impact facility specified in the *Telecommunications (Low-impact Facilities) Determination 2018* (Cth).
- The inspection and maintenance of a facility as defined in the *Telecommunications Act 1997* (Cth).
- A facility authorised by a facility installation permit issued under the *Telecommunications Act 1997* (Cth).
- An activity authorised under clause 6(2) of Division 3 of Schedule 3 of the *Telecommunications Act 1997* (Cth).
- An activity carried out by a body listed in sections 46 to 51 (inclusive) of the *Telecommunications Act 1997* (Cth) pursuant to legislation applying to that body.
- A temporary defence facility.
- A telecommunications facility equipment shelter.
- A telecommunications line forming part of a telecommunications network connected to a building, caravan or mobile home.
- An optical fibre ground wire that replaces an electricity ground wire on a high-voltage transmission tower that supports powerlines designed to operate at 222,000 volts or greater.
- A telecommunications facility located underground if any ground disturbed in constructing or installing the facility is reinstated.
- A telecommunications dish with a diameter of 1.2 metres or less.
- A telecommunications dish with a diameter of more than 1.2 metres and less than or equal to 2.4 metres if the following requirements are met:
  - If the dish is in a Heritage Overlay, it must not be visible from a street (other than a lane) or public park.
  - If the dish is in a residential zone, it must:
    - Be set back from the side or rear boundary 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.
    - Be set back at least 3 metres from a boundary opposite an existing habitable room window.
    - Not be visible from the street (other than a lane) or a public park.

- A telecommunications tower that replaces an existing light pole on public land if the following requirements are met:
  - The public land manager must be a municipal council.
  - The tower must not be more than 8 metres higher than the light pole.
- A telecommunications tower that replaces an existing telecommunications tower on the same land if the following requirements are met:
  - The tower must not be in a residential zone, or a Significant Landscape Overlay, Heritage Overlay or Neighbourhood Character Overlay.
  - The tower must not be more than 8 metres higher than the existing tower.
  - The tower must not be a lattice tower.
  - The tower must be located within 20 metres of the existing tower.
  - The existing tower must be removed within 60 days of the new tower commencing operation.
- The extension of an existing telecommunications tower if the following requirements are met:
  - The tower must not be in a residential zone.
  - The height of the extension must not exceed 8 metres.
  - The tower must not have been previously extended without a permit.
  - The tower must have been constructed for 12 months before the extension.
- A telecommunications facility on a building if the following requirements are met:
  - If the building is in a residential zone, the height of the facility must not be more than 1 metre higher than the building height of the building.
  - If the building is in a zone other than a residential zone, the height of the facility must not be more than 8 metres higher than the building height of the building.
- A telecommunications facility that provides service coverage during routine or emergency maintenance of an existing facility, construction or installation of a new facility, or additional service coverage for an event, if the following requirements are met:
  - The height of the facility must not exceed 25 metres above its base or the height of the existing facility, whichever is the greater.
  - The facility must not be located on the land for more than a total of 4 months in any 12 month period.

## 52.19-2 Land in public ownership

04/11/2022
VC226

An application affecting land in a public land zone must be accompanied by written confirmation from the public land manager that the public land manager consents generally or conditionally:

- To the application being made; or
- To the application being made and to the proposed development.

This requirement does not apply if the applicant is the public land manager.

## 52.19-3 Exemptions from notice and review

04/11/2022
VC226

An application under any provision of this planning scheme to construct a building or construct or carry out works for a telecommunications facility is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to:

- An application under a Significant Landscape Overlay, a Heritage Overlay, or Neighbourhood Character Overlay.
- An application under a public land zone if the responsible authority is not the public land manager.
- An application for any of the following:
  - A telecommunications dish.
  - A telecommunications facility on a building within 100 metres of a residential zone.
  - A telecommunications facility on a building within 100 metres of a dwelling not on the same land or land in contiguous ownership.
  - A telecommunications tower in a residential zone.
  - A telecommunications tower within 100 metres of a residential zone.
  - A telecommunications tower within 100 metres of a dwelling not on the same land or land in contiguous ownership.

An application under any provision of this planning scheme to use or develop land for a telecommunications facility is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the telecommunications facility is funded, or partly funded, by the Commonwealth through the Mobile Black Spot Program or the State of Victoria.

## 52.19-4 Application requirements

04/11/2022
VC226

An application must be accompanied by the following information as appropriate:

- A site analysis and design response explaining the design, siting, construction and operation of the telecommunications facility.
- Site boundaries and dimensions.
- The purpose and location of all buildings and works required in the construction of the facility.
- The location of all existing buildings and works to be retained and demolished.
- The location of all proposed buildings and works including dimensions, elevations, materials, colours and finishes.
- The location and use of all buildings on adjoining properties.
- The location of all adjoining streets and access ways.
- Australian Height Datum levels.
- Natural drainage lines, watercourses, coastal dunes, beach systems and wetlands.
- Proposals for the rehabilitation of the land on which development is to occur.
- Roads and parking areas.
- Materials, landscaping, external lighting, colour and reflectivity.

## 52.19-5 Decision guidelines

04/11/2022
VC226

Before deciding on an application, in addition to the decision guidelines of clause 65, the responsible authority must consider, as appropriate:

- The design, siting, construction and operation of the telecommunications facility.
- The effect of the telecommunications facility on adjacent land.

# 52.20 GOVERNMENT FUNDED HOUSING DEVELOPMENT

19/12/2024
VC273

## Purpose

To facilitate the use and development of land for housing projects funded wholly or partly, by the Victorian or Commonwealth Government.

To ensure that development does not unreasonably impact on the amenity of adjoining dwellings or small second dwellings.

## 52.20-1 Application

19/12/2024
VC273

This clause applies to the use or development of land that is:

- Funded wholly or partly, by the Victorian or Commonwealth Government; and
- Carried out by or on behalf of the Chief Executive Officer, Homes Victoria.

This clause does not apply to:

- The subdivision of land.
- The use or development of land in an industrial zone, rural zone or Port Zone.
- The use or development of land in a Bushfire Management Overlay.
- A use or development to which Clause 51.01 - Specific Site and Exclusions, or Clause 45.12 - Specific Controls Overlay, or any schedule to the clauses apply.
- A use or development that would not require a permit under a provision of this planning scheme were it not for the exemption in Clause 52.20-2.
- A use or development that is inconsistent with an applicable Statement of Planning Policy.
- A development for which an environment effects statement has been, or is required to be, prepared under the *Environment Effects Act 1978*.

In this clause, ***Chief Executive Officer, Homes Victoria*** means 'Chief Executive Officer, Homes Victoria' as defined in the *Housing Act 1983* and the body corporate established under the *Housing Act 1983*.

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.20-2 Exemption from planning scheme requirements

20/12/2021
VC207

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to any use or development Clause 52.20 applies to if requirements of this clause are met.

This exemption does not apply to a requirement in Clauses 45.03 (Environmental Audit Overlay), 45.07 (City Link Project Overlay), 45.08 (Melbourne Airport Environs Overlay), 51.03 (Upper Yarra Valley & Dandenong Ranges Regional Strategy Plan) or 52.02 (Easements, Restrictions and Reserves), or in any schedule to those clauses.

## 52.20-3 Use and development requirements

19/12/2024
VC273

The use and development of land must be carried out in accordance with the plans and documents approved under this clause, to the satisfaction of the Minister for Planning. Plans and documents may be amended to the satisfaction of the Minister for Planning.

The use and development of land to be carried out to the satisfaction of the Minister for Planning must not commence until funding from the Victorian or Commonwealth Government is approved.

## 52.20-4 Consultation requirements

14/07/2022
VC230

Before plans, documents and information required under Clause 52.20-5 are submitted:

- Public consultation, and consultation with the relevant municipal council, on the plans, documents and information proposed to be submitted under Clause 52.20-5; and
- A report that summarises the consultation undertaken, feedback received, and explains how the feedback has been considered and responded to, must be completed.

The requirements of Clause 52.20-4 must be undertaken to the satisfaction of the Minister for Planning and may be varied or waived by the Minister for Planning.

## 52.20-5 Requirements for plans and documents

31/03/2025
VC267

The following plans, documents and information must be prepared and submitted to the satisfaction of the Minister for Planning:

- Written confirmation from Homes Victoria or the Chief Executive Officer, Homes Victoria that the application is funded, either wholly or partly, by the Victorian or Commonwealth Government.
- A project boundary plan that shows the boundary of the land on which the use or development will be undertaken.
- A site description and analysis plan that accurately describes the natural, physical, cultural heritage, built heritage, landscape, vegetation, access and any other notable features, characteristics and significance of the site and surrounding area including the existing use and development of the site and surrounding land.
- A description of the proposed use including:
  - The activities that will be carried out.
  - The likely effects, if any, on the site and surrounding land and land uses, including noise levels, traffic, air-borne emissions, emissions to land and water, light spill, glare, solar access and hours of operation.
- Detailed plans and elevations of the proposed development drawn to scale and dimensioned, including details of any buildings or works proposed to be demolished or removed, and any vegetation proposed to be retained or removed.
- Explanation of how the proposed use or development derives from and responds to the site description and analysis plan.
- A report that addresses the proposed use or development and how:
  - It responds to the purposes, objectives, decision guidelines or statements of significance or risk of any zone, overlay, or other provision that would apply to the use or development were it not for the exemptions in Clause 52.20-2. This does not include Clauses 54, 55, 57, 58 and 59.
  - A proposed use that is not a dwelling or residential building is in conjunction with that use.
  - It complies with Clause 52.20-8 Native vegetation requirement.
- A design review report prepared by a suitably qualified architect or urban designer that demonstrates how the project achieves good quality design outcomes.
- A schedule of works and development including staging and the expected commencement and completion times.
- A report that details how the proposed development responds to the development standards of:
  - Clause 52.20-6 for the construction or extension of a dwelling.

  - Clause 52.20-6 and Clause 52.20-7 for the construction or extension of an apartment development or residential building or the construction or extension a dwelling in or forming part of an apartment development or residential building. The development standards of Clause 52.20-6.8 does not apply to an apartment development or residential building of 5 or more storeys. The development standards of Clauses 52.20-6.5, 52.20-6.14, 52.20-6.18 and 52.20-6.21 do not apply to an apartment development or residential building.

- If the Minister for Planning has decided that an assessment through an environment effects statement under the Environment Effects Act 1978 is not required for the proposed development and the decision is subject to conditions:
  - A report that details how each condition has been considered and addressed in the design, construction and operation of the proposed development.
  - A copy of any report, plan or other document required to be prepared under those conditions.
- A plan for the management or mitigation of potential adverse effects or impacts on the environment or amenity from the proposed use or development, during and following construction.
- If the use or development would require a permit were it not for the exemption in Clause 52.20-2 and a copy of the application for that permit would be required to be given to a referral authority under section 55 of the Act, the comments of that referral authority on the proposed use or development.
- Any other plan, document or information the Minister for Planning considers necessary to assist the assessment of the proposed use or development or the plans and documents required to be prepared under this clause. This may include street elevations, three dimensional modelling or other methods to describe the proposal.
- A report that demonstrates that the environmental conditions of the land are or will be suitable for the use and development including any significant effects which the use or development may have on the environment or which the environment may have on the use or development including water, noise, air or land pollution impacts on the environment, amenity or human health.

The requirements of this clause may be:

- Satisfied for separate components or stages of a use or development, but each requirement must be satisfied prior to the commencement of that component or stage.
- Varied or waived by the Minister for Planning.

## 52.20-6 Development standards for dwellings and buildings

01/01/2024
VC250

### 52.20-6.1 Infrastructure

Development should be connected to reticulated services, including reticulated sewerage, drainage and electricity.

Development should not unreasonably exceed the capacity of utility services and infrastructure, including reticulated services and roads.

In areas where utility services or infrastructure have little or no spare capacity, developments should provide for the upgrading of or mitigation of the impact on services or infrastructure.

### 52.20-6.2 Street setback

Walls of buildings should be set back from streets at least the distance specified in Table 1. Porches, pergolas and verandahs that are less than 3.6 metres high and eaves may encroach not more than 2.5 metres into the setbacks of this standard.

**Table 1 Street setback**

| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of either existing building on the abutting allotments facing the front street or 7 metres, whichever is the lesser. | Not applicable. |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 7 metres, whichever is the lesser. | Not applicable. |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable. |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 7 metres, whichever is the lesser.<br>If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Front walls of new development fronting the side street of a corner site should be setback at least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 3 metres, whichever is the lesser.<br>Side walls of new development on a corner site should be setback the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

### 52.20-6.3 Permeability

The site area covered by the pervious surfaces should be at least 20 percent of the site.

### 52.20-6.4 Safety

Entrances to dwellings should not be obscured or isolated from the street and internal accessways.

Planting which creates unsafe spaces along streets and accessways should be avoided.

Developments should be designed to provide good lighting, visibility and surveillance of car parks and internal accessways.

Private spaces within developments should be protected from inappropriate use as public thoroughfares.

### 52.20-6.5 Access

The width of accessways or car spaces that front existing streets should not exceed:

- 33 per cent of the street frontage, or
- if the width of the street frontage is less than 20 metres, 40 per cent of the street frontage.

No more than one single-width crossover should be provided for each dwelling fronting a street.

The location of crossovers should maximise the retention of on-street car parking spaces.

The number of access points to a road in a Transport Zone 2 or a Transport Zone 3 should be minimised.

Developments must provide for access for service, emergency and delivery vehicles.

### 52.20-6.6 Parking location

Car parking facilities should:

- Be reasonably close and convenient to dwellings.
- Be secure.
- Be well ventilated if enclosed.

Shared accessways or car parks of other dwellings should be located at least 1.5 metres from the windows of habitable rooms. This setback may be reduced to 1 metre where there is a fence at least 1.5 metres high or where window sills are at least 1.4 metres above the accessway.

### 52.20-6.7 Car parking

A minimum 0.6 car spaces should be provided to each dwelling. A minimum 1 car space should be provided to each 4 bedrooms of a residential building.

Car parking for other land uses must be to the satisfaction of the Minister for Planning.

Car spaces may be covered or uncovered.

If in calculating the number of car parking spaces the result is not a whole number, the required number of car parking spaces is to be rounded down to the nearest whole number greater than 1.

#### Accessway design

Accessways must:

- Be at least 3 metres wide.
- Have an internal radius of at least 4 metres at changes of direction or intersection or be at least 4.2 metres wide.
- Allow vehicles parked in the last space of a dead-end accessway in public carparks to exit in a forward direction with one manoeuvre.
- Provide at least 2.1 metres headroom beneath overhead obstructions, calculated for a vehicle with a wheel base of 2.8 metres.

- If the accessway serves four or more car spaces or connects to a road in a Transport Zone 2 or a Transport Zone 3, the accessway must be designed so that cars can exit the site in a forward direction.
- Provide a passing area at the entrance at least 6.1 metres wide and 7 metres long if the accessway serves ten or more carparking spaces and is either more than 50 metres long or connects to a road in a Transport Zone 2 or a Transport Zone 3.
- Have a corner splay or area at least 50 percent clear of visual obstructions extending at least 2 metres along the frontage road from the edge of an exit lane and 2.5 metres along the exit lane from the frontage, to provide a clear view of pedestrians on the footpath of the frontage road. The area clear of visual obstructions may include an adjacent entry or exit lane where more than one lane is provided, or adjacent landscaped areas, provided the landscaping in those areas is less than 900mm in height.

### Car parking spaces

Car parking spaces and accessways must have the minimum dimensions as outlined in Table 2.

**Table 2: Minimum dimensions of car parking spaces and accessways**

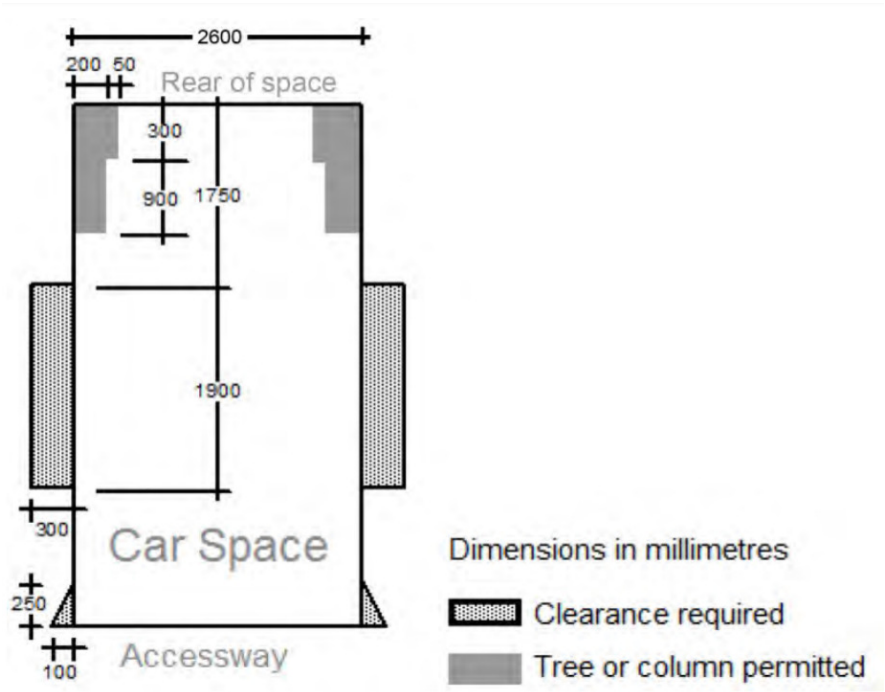
| Angle of car parking spaces to access way | Accessway width | Car space width | Car space length |
|---|---|---|---|
| **Parallel** | 3.6 m | 2.3 m | 6.7 m |
| **45º** | 3.5 m | 2.6 m | 4.9 m |
| **60º** | 4.9 m | 2.6 m | 4.9 m |
| **90º** | 6.4 m | 2.6 m | 4.9 m |
| | 5.8 m | 2.8 m | 4.9 m |
| | 5.2 m | 3.0 m | 4.9 m |
| | 4.8 m | 3.2 m | 4.9 m |

*Note: Some dimensions in Table 2 vary from those shown in the Australian Standard AS2890.1-2004 (off street). The dimensions shown in Table 2 allocate more space to aisle widths and less to marked spaces to provide improved operation and access. The dimensions in Table 2 are to be used in preference to the Australian Standard AS2890.1-2004 (off street) except for disabled spaces which must achieve Australian Standard AS2890.6-2009 (disabled).*

A wall, fence, column, tree, tree guard or any other structure that abuts a car space must not encroach into the area marked 'clearance required' on Diagram 1, other than:

- A column, tree or tree guard, which may project into a space if it is within the area marked 'tree or column permitted' on Diagram 1.
- A structure, which may project into the space if it is at least 2.1 metres above the space.

**Diagram 1 Clearance to car parking spaces**




Car spaces in garages or carports must be at least 6 metres long and 3.5 metres wide for a single space and 5.5 metres wide for a double space measured inside the garage or carport.

Where parking spaces are provided in tandem (one space behind the other) an additional 500mm in length must be provided between each space.

Disabled car parking spaces must be designed in accordance with Australian Standard AS2890.6-2009 (disabled) and the Building Code of Australia. Disabled carparking spaces may encroach into an accessway width specified in Table 2 by 500mm.

### Gradients

Accessway grades must not be steeper than 1:10 (10 percent) within 5 metres of the frontage to ensure safety for pedestrians and vehicles. The design must have regard to the wheel base of the vehicle being designed for; pedestrian and vehicular traffic volumes; the nature of the carpark; and the slope and configuration of the vehicle crossover at the site frontage. This does not apply to accessways serving three dwellings or less.

Ramps (except within 5 metres of the frontage) must have the maximum grades as outlined in Table 3 and be designed for vehicles travelling in a forward direction.

**Table 3: Ramp gradients**

| Type of car park | Length of ramp | Maximum grade |
|---|---|---|
| **Public car parks** | 20 metres or less | 1:5 (20%) |
| | longer than 20 metres | 1:6 (16.7%) |
| **Private or residential car parks** | 20 metres or less | 1:4 (25%) |
| | longer than 20 metres | 1:5 (20%) |

Where the difference in grade between two sections of ramp or floor is greater than 1:8 (12.5 per cent) for a summit grade change, or greater than 1:6.7 (15 percent) for a sag grade change, the ramp must include a transition section of at least 2 metres to prevent vehicles scraping or bottoming.

Plans must include an assessment of grade changes of greater than 1:5.6 (18 percent) or less than 3 metres apart for clearances, to the satisfaction of the Minister for Planning.

**Mechanical parking**

Mechanical parking may be used to meet the carparking standard provided:

- At least 25 percent of the mechanical carparking spaces can accommodate a vehicle height of at least 1.8 metres.
- Carparking spaces that require the operation of the system are not allocated to visitors unless used in a valet parking situation.
- The design and operation is to the satisfaction of the Minister for Planning.

**Urban design**

Ground level carparking, garage doors and accessways must not visually dominate public space.

Carparking within buildings (including visible portions of partly submerged basements) must be screened or obscured where possible, including through the use of occupied tenancies, landscaping, architectural treatments and art works.

Design of carparks must take into account their use as entry points to the site.

Design of new internal streets in developments must maximise on street parking opportunities.

**Safety**

Car parking must be well lit and clearly signed.

The design of carparks must maximise natural surveillance and pedestrian visibility from adjacent buildings.

Pedestrian access to carparking areas from the street must be convenient.

Pedestrian routes through car parking areas and building entries and other destination points must be clearly marked and separated from traffic in high activity parking areas.

**Landscaping**

The layout of car parking areas must provide for water sensitive urban design treatment and landscaping.

Landscaping and trees must be planted to provide shade and shelter, soften the appearance of ground level car parking and aid in the clear identification of pedestrian paths.

Ground level carparking spaces must include trees planted with flush grilles. Spacing of trees must be determined having regard to the expected size of the selected species at maturity.

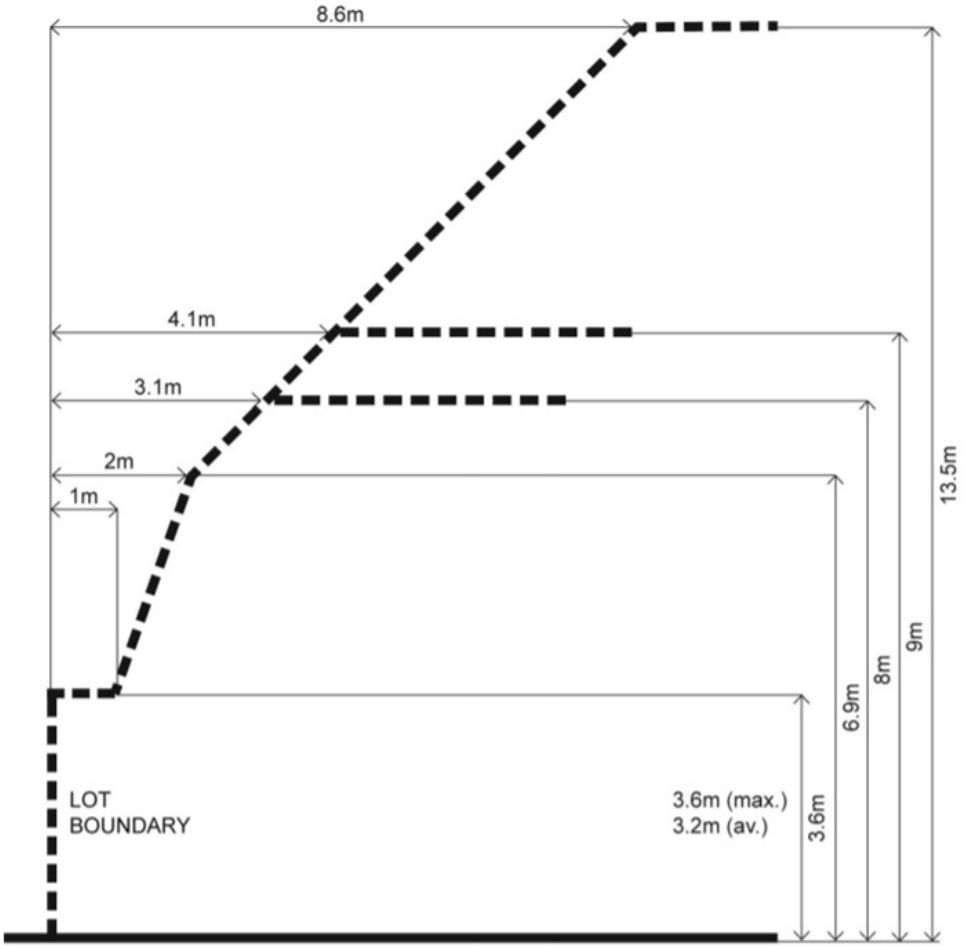
### 52.20-6.8 Side and rear setbacks

A new building not on or within 200mm of a boundary to a residential zone should be set back from side or rear boundaries 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres. Diagram 2 details the standard.

Sunblinds, verandahs, porches, eaves, fascias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the setbacks of this standard.

Landings having an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the setbacks of this standard.

**Diagram 2 Side and rear setbacks**




## 52.20-6.9 Walls on boundaries

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of lot should not abut the boundary for a length of more than:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- Where there are existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot, the length of the existing or simultaneously constructed walls or carports whichever is the greater.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary should not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

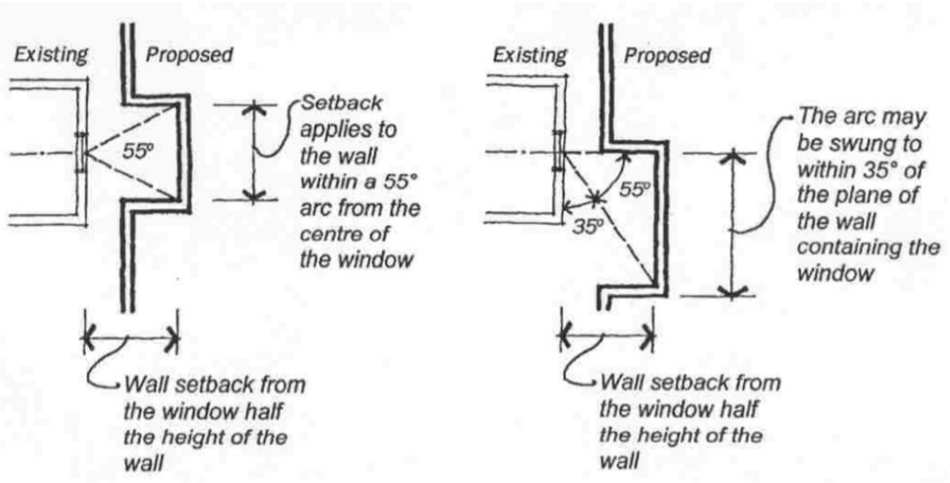
### 52.20-6.10 Daylight to existing windows

Buildings opposite an existing habitable room window should provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

Walls or carports more than 3 metres in height opposite an existing habitable room window should be set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.

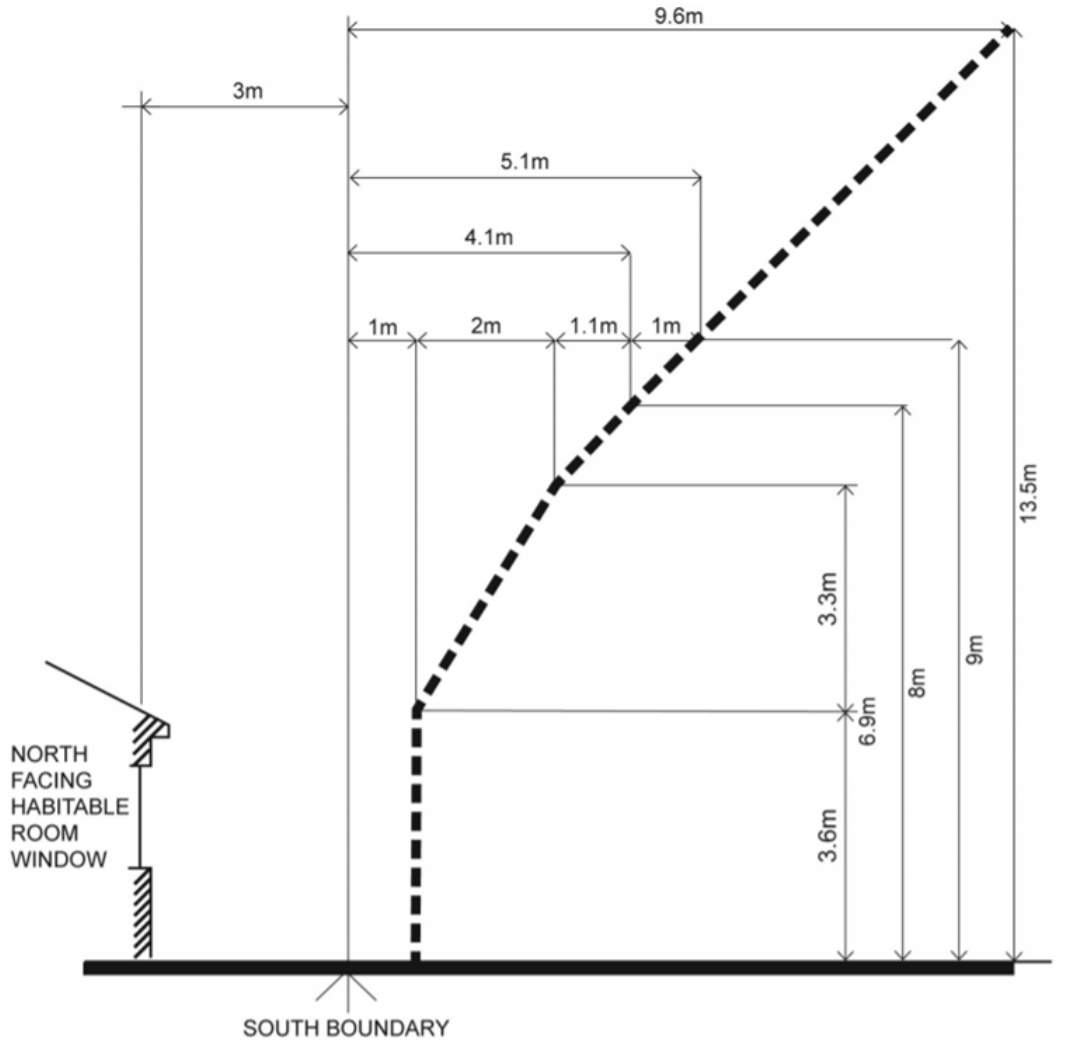
**Diagram 3 Daylight to existing windows**




### 52.20-6.11 North-facing windows

If a north-facing habitable room window of an existing dwelling or small second dwelling is within 3 metres of a boundary on an abutting lot, a building should be setback from the boundary 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres, for a distance of 3 metres from the edge of each side of the window. A north-facing window is a window with an axis perpendicular to its surface oriented north 20 degrees west to north 30 degrees east.

**Diagram 4 North-facing windows**




## 52.20-6.12 Overshadowing open space

Where sunlight to the secluded private open space of an existing dwelling or small second dwelling is reduced, at least 75 per cent, or 40 square metres with minimum dimension of 3 metres, whichever is the lesser area, of the secluded private open space should receive a minimum of five hours of sunlight between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight should not be further reduced.

## 52.20-6.13 Overlooking

A habitable room window, balcony, terrace, deck or patio should be located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views should be measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio with a direct view into a habitable room window of an existing dwelling or a small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio should be either:

- Offset a minimum of 1.5 metres from the edge of one window to the edge of the other.
- Have sill heights of at least 1.7 metres above floor level.
- Have fixed, obscure glazing in any part of the window below 1.7 metre above floor level.
- Have permanently fixed external screens to at least 1.7 metres above floor level and be no more than 25 per cent transparent.

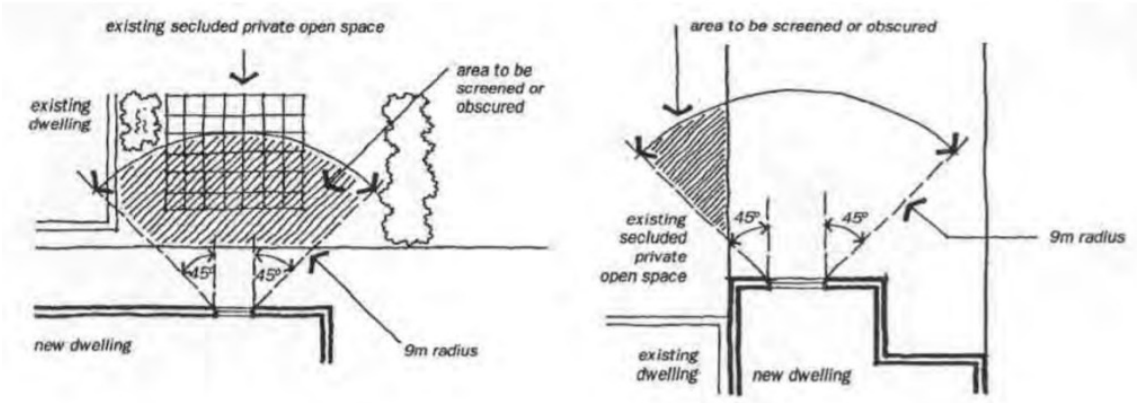
Obscure glazing in any part of the window below 1.7 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view should be:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

**Diagram 5 Overlooking open space**




### 52.20-6.14 Noise impacts

Noise sources, such as mechanical plant, should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

Noise sensitive rooms and secluded private open spaces of new dwellings and residential buildings should take account of noise sources on immediately adjacent properties.

Dwellings and residential buildings close to busy roads, railway lines or industry should be designed to limit noise levels in habitable rooms.

### 52.20-6.15 Daylight to new windows

A window in a habitable room should be located to face:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot, or
- A verandah provided it is open for at least one third of its perimeter, or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

### 52.20-6.16 Private open space

A dwelling (other than an apartment) should have private open space consisting of:

- An area of secluded private open space with a minimum area of 25 square metres, a minimum dimension of 3 metres and convenient access from a living room; or
- A balcony of 8 square metres with a minimum width of 1.6 metres and convenient access from a living room; or
- A roof-top area of 10 square metres with a minimum width of 2 metres and convenient access from a living room.

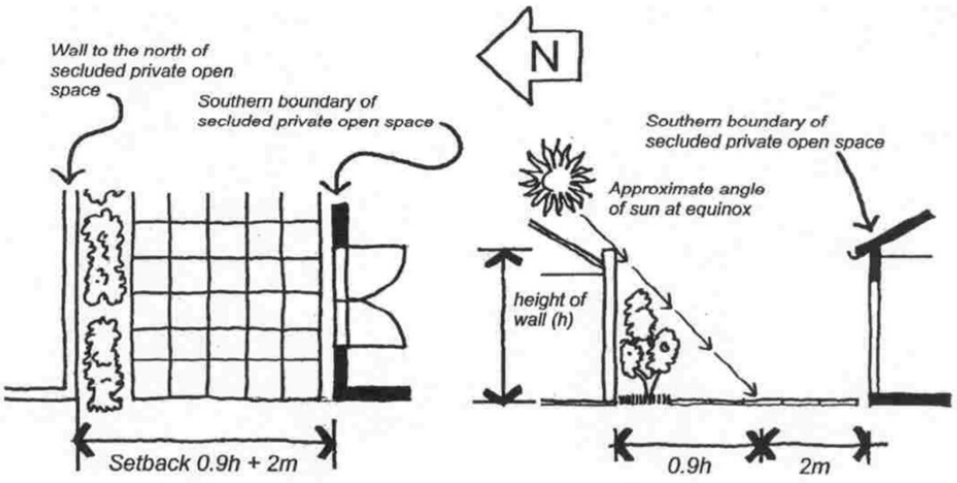
Secluded private open space may be located in the front setback if it is no more than 30% of the street frontage.

### 52.20-6.17 Solar access to open space

The private open space should be located on the north side of the dwelling if appropriate.

The southern boundary of secluded private open space should be set back from any wall on the north of the space at least (2 + 0.9h) metres, where 'h' is the height of the wall.

**Diagram 6 Solar access to open space**




### 52.20-6.18 Storage

A dwelling should have convenient access to at least 6 cubic metres of externally accessible, secure storage space.

### 52.20-6.19 Front fence

A front fence within 3 metres of a street should not exceed a maximum height of:

- 2 metres for streets in a Transport Zone 2, and
- 1.5 metres in other streets or where secluded private open space is proposed within the front setback, the front fence may reach a height of up to 1.8 metres for not more than 30% of the length of the boundary.

### 52.20-6.20 Common property

Developments should clearly delineate public, communal and private areas.

Common property, where provided, should be functional and capable of efficient management.

### 52.20-6.21 Site services

The design and layout of buildings should provide sufficient space (including easements where required) and facilities for services to be installed and maintained efficiently and economically.

Bin and recycling enclosures, mailboxes and other site facilities should be adequate in size, durable, waterproof and blend in with the development.

Bin and recycling enclosures should be located for convenient access by residents.

Mailboxes should be provided and located for convenient access as required by Australia Post.

## 52.20-7 Development standards for apartments

04/02/2026
VC265

### 52.20-7.1 Energy efficiency

Buildings should be:

- Oriented to make appropriate use of solar energy.
- Sited and designed to ensure that the energy efficiency of existing dwellings or small second dwellings on adjoining lots is not unreasonably reduced.
- Sited and designed to ensure that the performance of existing rooftop solar energy systems on dwellings or small second dwellings on adjoining lots in a General Residential Zone, Neighbourhood Residential Zone or Township Zone are not unreasonably reduced. The existing rooftop solar energy system must exist at the date the application is lodged.

Living areas and private open space should be located on the north side of the development, if practicable.

Developments should be designed so that solar access to north-facing windows is optimised.

Dwellings located in a climate zone identified in Table 4 should not exceed the maximum NatHERS annual cooling load.

**Table 4 Cooling load**

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

*Note: Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).*

### 52.20-7.2 Communal open space

A development of 10 or more dwellings should provide a minimum area of communal outdoor open space of 30 square metres.

If a development contains 13 or more dwellings, the development should also provide an additional minimum area of communal open space of 2.5 square metres per dwelling or 220 square metres, whichever is the lesser. This additional area may be indoors or outdoors and consist of multiple separate areas of communal open space.

Each area of communal open space should be:

- Accessible to all residents.
- A useable size, shape and dimension.
- Capable of efficient management.
- Located to:
  - Provide passive surveillance opportunities, where appropriate.
  - Provide outlook for as many dwellings as practicable.
  - Avoid overlooking into habitable rooms and private open space of new dwellings.
  - Minimise noise impacts to new and existing dwellings or small second dwellings.

Any area of communal outdoor open space should be landscaped and include canopy cover and trees.

### 52.20-7.3 Solar access to communal outdoor open space

The communal outdoor open space should be located on the north side of a building, if appropriate.

At least 50 per cent or 125 square metres, whichever is the lesser, of the primary communal outdoor open space should receive a minimum of two hours of sunlight between 9am and 3pm on 21 June.

### 52.20-7.4 Landscaping

Development should retain existing trees and canopy cover.

Development should provide for the replacement of any significant trees that have been removed in the 12 months prior to the application being made.

Development should:

- Provide the canopy cover and deep soil area specified in Table 5. Existing trees can be used to meet the canopy cover requirements of Table 5.
- Provide canopy cover through canopy trees that are:
  - Located in an area of deep soil specified in Table 6. Where deep soil cannot be provided, trees should be provided in planters specified in Table 6.
  - Consistent with the canopy diameter and height at maturity specified in Table 7.
  - Located in communal outdoor open space or common areas or street frontages.
- Comprise smaller trees, shrubs and ground cover, including flowering native species.
- Include landscaping, such as climbing plants or smaller plant in planters, in the street frontage and in outdoor areas, including communal outdoor open space.
- Shade outdoor areas exposed to summer sun through landscaping or shade structures and use paving and surface materials that lower surface temperatures and reduce heat absorption.

- Be supported by irrigation systems which utilise alternative water sources such as rainwater, stormwater, and recycled water.
- Protect any predominant landscape features of the area.
- Take into account the soil type and drainage pattern of the site.
- Provide a safe, attractive and functional environment for residents.
- Specify landscape themes, vegetation (location and species), irrigation systems, paving and lighting.

**Table 5 Canopy cover and deep soil requirements**

| Site area | Canopy cover | Deep soil |
|---|---|---|
| 1000 square metres or less | 5% of site area<br>Include at least 1 Type A tree | 5% of site area or 12 square metres whichever is the greater |
| 1001 - 1500 square metres | 50 square metres plus 20% of site area above 1,000 square metres<br>Include at least 1 Type B tree | 7.5% of site area |
| 1501 - 2500 square metres | 150 square metres plus 20% of site area above 1,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 10% of site area |
| 2501 square metres or more | 350 square metres plus 20% of site area above 2,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 15% of site area |

**Table 6 Soil requirements for trees**

| Tree type | Tree in deep soil<br>Area of deep soil | Tree in planter<br>Volume of planter | Depth of planter soil |
|---|---|---|---|
| A | 12 square metres<br>(min. plan dimension 2.5 metres) | 12 cubic metres<br>(min. plan dimension 2.5 metres) | 0.8 metre |
| B | 49 square metres<br>(min. plan dimension 4.5 metres) | 28 cubic metres<br>(min. plan dimension 4.5 metres) | 1 metre |
| C | 121 square metres<br>(min. plan dimension 6.5 metres) | 64 cubic metres<br>(min. plan dimension 6.5 metres) | 1.5 metre |

*Note: Where multiple trees share the same section of soil the total required amount of soil can be reduced by 5% for every additional tree, up to a maximum reduction of 25%.*

**Table 7 Tree types**

| Tree types | Minimum canopy diameter at maturity | Minimum height at maturity |
|---|---|---|
| A | 4 metres | 4 metres |
| B | 8 metres | 8 metres |
| C | 12 metres | 12 metres |

### 52.20-7.5 Integrated water and stormwater management

Buildings should be connected to a non-potable dual pipe reticulated water supply, where available from the water authority.

The stormwater management system should be:

- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to maximise infiltration of stormwater, water and drainage of residual flows into permeable surfaces, tree pits and treatment areas.

### 52.20-7.6 Building setback

The built form of the development should respect the existing urban context and respond to the features of the site.

Buildings should be set back from side and rear boundaries, and other buildings within the site to:

- Ensure adequate daylight into new habitable room windows.
- Avoid direct views into habitable room windows and private open space of new and existing dwellings or small second dwellings. Developments should avoid relying on screening to reduce views.
- Provide an outlook from dwellings that creates a reasonable visual connection to the external environment.

### 52.20-7.7 Noise impacts

Noise sources, such as mechanical plants should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

The layout of new dwellings and buildings should minimise noise transmission within the site.

Noise sensitive rooms (such as living areas and bedrooms) should be located to avoid noise impacts from mechanical plants, lifts, building services, non-residential uses, car parking, communal areas and other dwellings or small second dwellings.

New dwellings should be designed and constructed to include acoustic attenuation measures to reduce noise levels from off-site noise sources.

Buildings within a noise influence area specified in Table 8 should be designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Buildings, or part of a building screened from a noise source by an existing solid structure, or the natural topography of the land, do not need to meet the specified noise level requirements.

Noise levels should be assessed in unfurnished rooms with a finished floor and the windows closed.

**Table 8 Noise influence area**

| Noise Source | Noise influence area |
|---|---|
| **Zone interface** | |
| Industry | 300 metres from the Industrial 1, 2 and 3 zone boundary |
| **Roads** | |
| Freeways, tollways and other roads carrying 40,000 Annual Average Daily Traffic Volume | 300 metres from the nearest trafficable lane |
| **Railways** | |
| Railway servicing passengers in Victoria | 80 metres from the centre of the nearest track |
| Railway servicing freight outside Metropolitan Melbourne | 80 metres from the centre of the nearest track |
| Railway servicing freight in Metropolitan Melbourne | 135 metres from the centre of the nearest track |

*Note: The noise influence area should be measured from the closest part of the building to the noise source.*

### 52.20-7.8 Accessibility

At least 50 per cent of dwellings should have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.
- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table 9.

**Table 9 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower |
| Door design | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards that is clear of the circulation area and has readily removable hinges. | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards and has readily removable hinges. |

| | Design option A | Design option B |
|---|---|---|
| Circulation area | A clear circulation area that is:<br>▪ A minimum area of 1.2 metres by 1.2 metres.<br>▪ Located in front of the shower and the toilet.<br>▪ Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>▪ A minimum width of 1 metre.<br>▪ The full length of the bathroom and a minimum length of 2.7 metres.<br>▪ Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

### 52.20-7.9 Building entry and circulation

Entries to dwellings and buildings should:

- Be visible and easily identifiable.
- Provide shelter, a sense of personal address and a transitional space around the entry.

The layout and design of buildings should:

- Clearly distinguish entrances to residential and non-residential areas.
- Provide windows to building entrances and lift areas.
- Provide visible, safe and attractive stairs from the entry level to encourage use by residents.
- Provide common areas and corridors that:
  - Include at least one source of natural light and natural ventilation.
  - Avoid obstruction from building services.
  - Maintain clear sight lines.

### 52.20-7.10 Private open space

A dwelling should have private open space consisting of at least one of the following:

- An area at ground level of at least 25 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- A balcony with an area and dimensions specified in Table 10 and convenient access from a living room. If a cooling or heating unit is located on a balcony, the balcony should provide an additional area of 1.5 square metres.

- An area on a podium or other similar base of at least 15 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- An area on a roof of at least 10 square metres, with a minimum dimension of 2 metres and convenient access from a living room.

If the finished floor level of a dwelling is 40 metres or more above ground level, the requirements of Table 10 do not apply if at least the area specified in Table 11 is provided as living area or bedroom area in addition to the minimum area specified in Table 13 or Table 14.

**Table 10 Balcony size**

| Orientation of dwelling | Dwelling type | Minimum area | Minimum dimension |
|---|---|---|---|
| North (between north 20 degrees west to north 30 degrees east) | All | 8 square metres | 1.7 metres |
| South (between south 30 degrees west to south 20 degrees east) | All | 8 square metres | 1.2 metres |
| Any other orientation | Studio or 1 bedroom dwelling | 8 square metres | 1.8 metres |
| | 2 bedroom dwelling | 8 square metres | 2 metres |
| | 3 or more bedroom dwelling | 12 square metres | 2.4 metres |

**Table 11 Additional living area or bedroom area**

| Dwelling type | Additional area |
|---|---|
| Studio or 1 bedroom dwelling | 8 square metres |
| 2 bedroom dwelling | 8 square metres |
| 3 or more bedroom dwelling | 12 square metres |

### 52.20-7.11 Storage

Each dwelling should have convenient access to usable and secure storage space.

The total minimum storage space (including kitchen, bathroom and bedroom storage) should meet the requirements specified in Table 12.

**Table 12 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### 52.20-7.12 Waste and recycling

Developments should include dedicated areas for:

- Waste and recycling enclosures which are:
  - Adequate in size, durable, waterproof and blend in with the development.
  - Adequately ventilated.
  - Located and designed for convenient access by residents and made easily accessible to people with limited mobility.
- Adequate facilities for bin washing. These areas should be adequately ventilated.
- Collection, separation and storage of waste and recyclables, including where appropriate opportunities for on-site management of food waste through composting or other waste recovery as appropriate.
- Collection, storage and reuse of garden waste, including opportunities for on-site treatment, where appropriate, or off-site removal for reprocessing.
- Adequate circulation to allow waste and recycling collection vehicles to enter and leave the site without reversing.
- Adequate internal storage space within each dwelling to enable the separation of waste, recyclables and food waste where appropriate.

Waste and recycling management facilities should be designed and managed in accordance with a Waste Management Plan approved by the Minister for Planning and:

- Be designed to meet the better practice design options specified in *Waste Management and Recycling in Multi-unit Developments* (Sustainability Victoria, 2019).
- Protect public health and amenity of residents and adjoining premises from the impacts of odour, noise and hazards associated with waste collection vehicle movements.

### 52.20-7.13 Functional layout

Bedrooms should:

- Meet the minimum internal room dimensions specified in Table 13.
- Provide an area in addition to the minimum internal room dimensions and area to accommodate a wardrobe.

Living areas (excluding dining and kitchen areas) should meet the minimum internal room dimension and area specified in Table 14.

**Table 13 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth | Minimum area |
|---|---|---|---|
| Main bedroom | 3 metres | 3.4 metres | 10.2 sqm |
| All other bedrooms | 3 metres | 3 metres | 9 sqm |

**Table 14 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 sqm |
| 2 or more bedroom dwelling | 3.6 metres | 12 sqm |

### 52.20-7.14 Room depth

Single aspect habitable rooms should not exceed a room depth of 2.5 times the ceiling height.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth should be measured from the external surface of the habitable room window to the rear wall of the room

### 52.20-7.15 Windows

Habitable rooms should have a window in an external wall of the building.

A window may provide daylight to a bedroom from a smaller secondary area within the bedroom where the window is clear to the sky. The secondary area should be:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.

### 52.20-7.16 Natural ventilation

The design and layout of dwellings should maximise openable windows, doors or other ventilation devices in external walls of the building, where appropriate.

At least 40 per cent of dwellings should provide effective cross ventilation that has:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same area.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

### 52.20-7.17 Integration with the street

Development should be oriented to front existing and proposed streets.

Along street frontages, development should:

- Incorporate pedestrian entries, windows, balconies or other active spaces.
- Limit blank walls.
- Limit high front fencing, unless consistent with the existing urban context.

- Provide low and visually permeable front fences, where proposed.
- Conceal car parking and internal waste collection areas from the street.

Development next to existing public open space should be designed to complement the open space and facilitate passive surveillance.

### 52.20-7.18 Access

Vehicle crossovers should be minimised.

Car parking entries should be consolidated, minimised in size, integrated with the façade and where practicable located at the side or rear of the building.

Pedestrian and cyclist access should be clearly delineated from vehicle access.

The location of crossovers should maximise pedestrian safety and the retention of on-street car parking spaces and street trees.

Development must provide access for service, emergency and delivery vehicles.

### 52.20-7.19 Site services

Development should provide adequate space (including easements where required) for site services to be installed and maintained efficiently and economically.

Meters and utility services should be designed as an integrated component of the building or landscape.

Mailboxes and other site facilities should be adequate in size, durable, weather-protected, located for convenient access and integrated into the overall design of the development.

### 52.20-7.20 External walls and materials

External walls should be finished with materials that:

- Do not easily deteriorate or stain.
- Weather well over time.
- Are resilient to the wear and tear from their intended use.

External wall design should facilitate safe and convenient access for maintenance.

### 52.20-7.21 Wind impacts

Development of five or more storeys should:

- not cause unsafe wind conditions specified in Table 15 in public land, publicly accessible areas on private land, private open space and communal open space; and
- achieve comfortable wind conditions specified in Table 15 in public land and publicly accessible areas on private land

within a distance of half the greatest length of the building, or half the total height of the building measured outwards on the horizontal plane from the ground floor building façade, whichever is greater.

Trees and landscaping should not be used to mitigate wind impacts. This does not apply to sitting areas, where trees and landscaping may be used to supplement fixed wind mitigation elements.

Wind mitigation elements, such as awnings and screens should be located within the site boundary, unless consistent with the existing urban context or preferred future development of the area.

**Table 15 Wind conditions**

| Unsafe | Comfortable |
|---|---|
| Annual maximum 3 second gust wind speed exceeding 20 metres per second with a probability of exceedance of 0.1% considering at least 16 wind directions. | Hourly mean wind speed or gust equivalent mean speed (3 second gust wind speed divided by 1.85), from all wind directions combined with probability of exceedance less than 20% of the time, equal to or less than:<br>▪ 3 metres per second for sitting areas.<br>▪ 4 metres per second for standing areas.<br>▪ 5 metres per second for walking areas. |

## 52.20-8 Native vegetation requirements

04/02/2026
VC265

In this clause:

- **Guidelines** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***levy area*** has the same meaning as in the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*;
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*.

Before the removal, destruction or lopping of native vegetation outside the levy area:

- Information about the native vegetation in accordance with the application requirements 1, 5 and 9 in Table 4 of the Guidelines must be provided to the satisfaction of the Secretary.
- The biodiversity impacts from the native vegetation must be offset in accordance with the *Guidelines*.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The requirements of Clause 52.20-8 do not apply to any native vegetation identified in the table of exemptions to Clause 52.17-7.

The Secretary may vary the timing of the offset requirement if the Secretary considers there are exceptional circumstances to warrant the variation.

The secured offset for a project may be reconciled at the completion of a project in accordance with the *Assessor's handbook – Applications to remove, destroy or lop native vegetation* (Department of Energy, Environment, and Climate Action, 2025) to the satisfaction of Secretary.

Before the removal, destruction or lopping of native vegetation inside the levy area, information about the native vegetation in accordance with the application requirements 1 and 5 in Table 4 of the Guidelines must be provided to the satisfaction of the Secretary.

The requirements of this clause may be satisfied for separate components or stages of a development. However, each requirement must be satisfied prior to the removal, destruction or lopping of native vegetation for that component or stage.

## 52.20-9 Transitional provision

20/03/2023
VC229

The development standards at Clause 52.20-7 for apartment developments and residential buildings in force immediately before the approval date of Amendment VC207 continue to apply to a use or development that has received written confirmation from the Chief Executive Officer, Homes Victoria that an application is funded, either wholly or partly, under Victoria's Big Housing Build program, signed before 30 June 2022.

# 52.21 PRIVATE TENNIS COURT

31/07/2018
VC148

## Purpose

To ensure that tennis courts used in association with a dwelling are sited and constructed to minimise the effects of the development on nearby properties.

To ensure that the use of tennis courts in association with a dwelling does not cause unreasonable disturbance to adjoining residents or adversely affect the residential amenity of adjoining areas.

## 52.21-1 Application

31/07/2018
VC148

This clause applies to any private tennis court which is used in association with a dwelling.

## 52.21-2 Permit requirement

20/10/2026
VC317

A permit is not required under any provision of this scheme to construct, use or illuminate a private tennis court if the performance requirements specified in the Code of Practice - Private Tennis Court Development Revision 1 March 1999 are met.

A permit is required to construct, use or illuminate a private tennis court:

- If any of the performance requirements specified in the Code of Practice - Private Tennis Court Development Revision 1 March 1999 are not met.
- If the land is in an Environmental Significance Overlay, a Vegetation Protection Overlay, a Significant Landscape Overlay, a Heritage Overlay, an Urban Floodway Zone, a Flood Management Zone, a Floodway Overlay, a Land Subject to Inundation Overlay or a Flood Management Overlay and a permit is required for any of the following:
  - To construct a building or construct or carry out works.
  - To remove, destroy, prune or lop a tree or vegetation.

## 52.21-3 Application requirements

19/01/2006
VC37

Unless the circumstances do not require, an application under this clause must be accompanied by the following information:

- A copy of title of the land.
- A layout plan to a scale of not less than 1:200.
- The location of dwellings on adjoining land within 10 metres of the court site showing habitable room windows.
- Existing and proposed site levels.
- Location of vegetation to be removed.
- Proposed landscaping.
- Illumination levels and the position and height of light poles and fencing.
- Description of fencing material.
- The location of easements.
- Volume of excavated material to be brought to or removed from the site.
- Means of access to the site.
- Construction method and timing.

## 52.21-4 Notice provisions

31/07/2018
VC148

An application for a permit to construct, use or illuminate a private tennis court under any provision of this scheme is exempt from the notice requirements of section 52(1)(a), (b) and (d) of the Act.

In accordance with section 52(1)(c) of the Act notice of an application to construct, use or illuminate a private tennis court under any provision of this scheme must be given by ordinary post to the owners and occupiers of adjoining and opposite properties.

## 52.21-5 Decision guidelines

19/01/2006
VC37

Before deciding on an application under this Clause, in addition to the decision guidelines in Clause 65, the responsible authority must consider the relevant objectives and considerations specified in the Code of Practice - Private Tennis Court Development Revision 1 March 1999.

## 52.22 COMMUNITY CARE ACCOMMODATION

26/10/2018
VC152

### Purpose

To facilitate the establishment of community care accommodation.

To support the confidentiality of community care accommodation.

### 52.22-1 Application

26/10/2018
VC152

This clause applies to the use and development of land for community care accommodation.

### 52.22-2 Use exemption

28/02/2025
VC274

Any requirement in the Activity Centre Zone, Capital City Zone, Commercial 1 Zone, General Residential Zone, Housing Choice and Transport Zone, Low Density Residential Zone, Mixed Use Zone, Neighbourhood Residential Zone, Precinct Zone, Residential Growth Zone, Rural Living Zone or Township Zone to obtain a permit to use land for community care accommodation does not apply if all of the following requirements are met:

- Any condition opposite the use 'community care accommodation' in the table of uses in the zone or schedule to the zone is met.
- The use is:
  - funded by, or carried out by or on behalf of, a government department or public authority, including a public authority established for a public purpose under a Commonwealth Act; or
  - funded by, or carried out by, a registered National Disability Insurance Scheme (NDIS) provider if the design of the building is certified to the NDIS Specialist Disability Accommodation Design Standard by an accredited third party NDIS Specialist Disability Accommodation assessor.
- No more than 20 clients are accommodated. This does not include staff.
- No more than 5 persons at any one time who are not accommodated on the land may access support services provided on the land.

### 52.22-3 Buildings and works exemption

31/03/2025
VC267

Any requirement in the General Residential Zone, Housing Choice and Transport Zone, Low Density Residential Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone, Rural Living Zone or Township Zone to obtain a permit to construct a building or construct or carry out works for community care accommodation does not apply if all of the following requirements are met:

- The development is:
  - funded by, or carried out by or on behalf of, a government department or public authority, including a public authority established for a public purpose under a Commonwealth Act; or
  - funded by, or carried out by, a registered NDIS provider if the design of the building is certified to the NDIS Specialist Disability Accommodation Design Standard by an accredited third party NDIS Specialist Disability Accommodation assessor.

- The development is in the General Residential Zone or Neighbourhood Residential Zone, a garden area must be provided in accordance with the minimum garden area requirement specified in the zone.
- The development is in the General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone, the standards B2-1, B2-3, B2-4, B4-1, B4-2, B4-3, B4-4 and B5-2 of clause 55 must be met.

## 52.22-4 Exemption from notice and review

04/11/2022
VC226

An application under any provision of this planning scheme to use land or construct a building or construct or carry out works for community care accommodation is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the application is made by or on behalf of:

- A government department or public authority, including a public authority established for a public purpose under a Commonwealth Act; or
- A registered NDIS provider if the design of the building is certified to the NDIS Specialist Disability Accommodation Design Standard by an accredited third party NDIS Specialist Disability Accommodation assessor.

## 52.22-5 Meaning of terms

04/11/2022
VC226

In this clause:

- National Disability Insurance Scheme has the same meaning as part 4 section 9 of the *National Disability Insurance Scheme Act 2013*.
- Registered NDIS provider has the same meaning as part 4 section 9 of the *National Disability Insurance Scheme Act 2013*.

# 52.23 ROOMING HOUSE

26/10/2018
VC152

## Purpose

To facilitate the establishment of domestic-scale rooming houses.

## 52.23-1 Application

26/10/2018
VC152

This clause applies to use and development of land for a rooming house.

## 52.23-2 Use exemption

28/02/2025
VC274

Any requirement in the Activity Centre Zone, Capital City Zone, Commercial 1 Zone, General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Precinct Zone, Residential Growth Zone or Township Zone to obtain a permit to use land for a rooming house does not apply if all of the following requirements are met:

- Any condition opposite the use 'rooming house' in the table of uses in the zone or schedule to the zone is met.
- The total floor area of all buildings on the land, measured from the outside of external walls or the centre of party walls, does not exceed 300 square metres, excluding outbuildings.
- No more than 12 persons are accommodated.
- No more than 9 bedrooms are provided.

## 52.23-3 Buildings and works exemption

25/02/2025
VC257

Any requirement in the General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone to obtain a permit to construct a building or construct or carry out works for a rooming house does not apply if all of the following requirements are met:

- No more than 9 bedrooms are developed on the land.
- Bedrooms can only be accessed from within the building.
- The total floor area of all buildings on the land, measured from the outside of external walls or the centre of party walls, does not exceed 300 square metres, excluding outbuildings.
- If the development is in the General Residential Zone or Neighbourhood Residential Zone, a garden area is provided in accordance with the minimum garden area requirement specified in the zone.
- Shared entry facilities and common areas, including a kitchen and living area, are provided.

## 52.25 CREMATORIUM

19/01/2006
VC37

### Purpose

To ensure that crematoria in cemeteries are developed and used in an appropriate manner.

### Permit required

A permit is required to develop and use a crematorium on land that is used for cemetery purposes.

This does not apply to land in the Springvale Crematorium.

### Decision guidelines

Before deciding on an application to use and develop land for a crematorium, in addition to the decision guidelines in Clause 65, the responsible authority must consider:

- The provision of landscaping and screen planting.
- The location and design of the buildings to be constructed.
- The effect on traffic movement generated by the use.
- The provision of parking facilities.

## 52.26 [NO CONTENT]

31/07/2018
VC148

## 52.27 [NO CONTENT]

01/07/2025
VC286

# 52.28 GAMING

31/07/2018
VC148

## 52.28-1 Purpose

18/10/2006
VC39

To ensure that gaming machines are situated in appropriate locations and premises.

To ensure the social and economic impacts of the location of gaming machines are considered.

To prohibit gaming machines in specified shopping complexes and strip shopping centres.

## 52.28-2 Gaming objectives

31/07/2018
VC148

A schedule to this clause may specify objectives to be achieved in relation to the installation or use of a gaming machine.

## 52.28-3 Permit requirement

31/07/2018
VC148

A permit is required to install or use a gaming machine.

This does not apply in either of the following circumstances:

- Clause 52.28-4 or Clause 52.28-5 specifically prohibit a gaming machine.
- the gaming machine is in an approved venue under the *Gambling Regulation Act 2003* on 18 October 2006 and the maximum number of gaming machines for the approved venue on 18 October 2006 is not exceeded.

## 52.28-4 Prohibition of a gaming machine in a shopping complex

31/07/2018
VC148

Installation or use of a gaming machine is prohibited on land specified in a schedule to this clause.

This does not apply to a gaming machine in an approved venue under the *Gambling Regulation Act 2003* on 18 October 2006; and the maximum number of gaming machines for the approved venue on 18 October 2006 is not exceeded.

## 52.28-5 Prohibition of a gaming machine in a strip shopping centre

31/07/2018
VC148

Installation or use of a gaming machine is prohibited in a strip shopping centre if:

- the strip shopping centre is specified in the schedule to this clause.
- the schedule provides that a gaming machine is prohibited in all strip shopping centres on land covered by this planning scheme.

This does not apply to a gaming machine in an approved venue under the *Gambling Regulation Act 2003* on 18 October 2006; and the maximum number of gaming machines for the approved venue on 18 October 2006 is not exceeded.

A strip shopping centre is an area that meets all of the following requirements:

- it is zoned for commercial use;
- it consists of at least two separate buildings on at least two separate and adjoining lots;
- it is an area in which a significant proportion of the buildings are shops;
- it is an area in which a significant proportion of the lots abut a road accessible to the public generally;

but it does not include the Capital City Zone in the Melbourne Planning Scheme.

## 52.28-6 Locations for gaming machines

31/07/2018
VC148

A schedule to this clause may specify guidelines relating to locations for gaming venues and machines.

## 52.28-7 Venues for gaming machines

31/07/2018
VC148

A schedule to this clause may specify guidelines relating to venues for gaming machines.

## 52.28-8 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 52.28-9 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines of Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The compatibility of the proposal with adjoining and nearby land uses.
- The capability of the site to accommodate the proposal.
- Whether the gaming premises provides a full range of hotel facilities or services to patrons or a full range of club facilities or services to members and patrons.
- Any other matters specified in the schedule to this clause.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 52.28 GAMING

## 1.0 Objectives

13/03/2026
C271card

### Objectives

To discourage new gaming machines in vulnerable or disadvantaged areas.

To achieve positive social, economic and environmental outcomes in the location and relocation of gaming machines and avoid exacerbating the risk of problem gambling.

To minimise opportunities for convenience gaming.

To locate gaming machines where the community has a choice of non-gambling entertainment or recreation activities within the gaming venue and the local area.

To protect the amenity of areas surrounding gaming venues.

To avoid the establishment of gaming machines in the growth area ahead of sufficient population growth.

To protect the rural townships in the municipality from the negative impacts of gaming.

## 2.0 Prohibition of a gaming machine in a shopping complex

10/06/2021
C254card

Installation or use of a gaming machine as specified in Clause 52.28-4 is prohibited on land described in Table 1 below.

**Table 1**

| Name of shopping complex and locality | Land description |
|---|---|
| Arena Shopping Centre, Officer | Lot R in Plan of Subdivision PS625955 |
| Cardinia Lakes Shopping Centre, Pakenham | Land in Plan of Consolidation CP374344 |
| Heritage Springs Shopping Centre, Pakenham | Land in Plan of Subdivision PS549321 |
| Lakeside East Village Shopping Centre, Pakenham | Lot 2007 in Plan of Subdivision PS447404 |
| Lakeside Square Shopping Centre, Pakenham | Lot 1042 in Plan of Subdivision PS640819 |
| 342 Belgrave-Gembrook Road, Emerald | Land in Plan of Consolidation PC358199 |
| 2 Emerald-Monbulk Road, Emerald | Land in Plan of Consolidation PC373789 |
| Station Street, Koo Wee Rup | Lot 2 in Plan of Subdivision PS549875 |
| Main Street, Bunyip | 2-6 Main Street, Bunyip (CA26, CA27 and CA28 Sec11) |
| Officer Town Centre | All land in Urban Growth Zone 4 (UGZ4) other than Town Centre Precincts ‘Gateway’ and ‘Highway Business’ shown in Plan 2 of UGZ4 |
| Pakenham Place Shopping Centre, Pakenham | Land in Plan of Consolidation CP160829 |
| Pakenham Central Marketplace Shopping Centre, Pakenham | Lots 1 and 2 in Plan of Subdivision PS629098 |

**3.0**
**10/06/2021**
**C254card**

## Prohibition of a gaming machine in a strip shopping centre

A gaming machine as specified in Clause 52.28-5 is prohibited in a strip shopping centre specified in Table 2 below.

**Table 2**

| Name of strip shopping centre and locality | Land description |
|---|---|
| Beaconsfield | 2 Beaconsfield-Emerald Road |
| | 4-68 Old Princes Highway (even numbers) |
| | 53-55 Old Princes Highway (odd numbers) |
| | 19-29 Sylvia Road (odd numbers) |
| | 11-37 Woods Street (odd numbers) |
| Bunyip | 1-21 High Street (odd numbers) |
| | 2-4 High Street (even numbers) |
| | 9-29 Main Street (odd numbers) |
| | 2-8 Main Street (even numbers) |
| | 1-15 Pearson Street (odd numbers) |
| | 2-8 Pearson Street (even numbers) |
| | 1-3 Railway Avenue (odd numbers) |
| Cockatoo | 1 Belgrave-Gembrook Road |
| | 1-3 Boronia Crescent (odd numbers) |
| | 2-4 Boronia Crescent (even numbers) |
| | 7-27 McBride Street (odd numbers) |
| | 22-62 McBride Street (even numbers) |
| | 8 Rouen Road |
| Emerald | 311-325 and 351-381 Gembrook-Belgrave Road (odd numbers) |
| | 336-344, 348-354 and 360-366 Gembrook-Belgrave Road (odd numbers) |
| | 1-5 Kilvington Drive (odd numbers) |
| | 4-12 Kilvington Drive (even numbers) |
| | 1 Monbulk Road |
| Garfield | 35-105 Longwarry-Nar Nar Goon Road (odd numbers) |
| Gembrook | 73-101 Main Street (odd numbers) |
| | 66-88 Main Street (even numbers) |
| Koo Wee Rup | 6 Moody Street |
| | 275-319 Rossiter Road (odd numbers) |
| | 272-330 Rossiter Road (even numbers) |
| | 4-86 Station Street (even numbers) |

| Name of strip shopping centre and locality | Land description |
|---|---|
| Lakeside, Pakenham | Lakeside Boulevard<br>Lakeside Link |
| Lang Lang | 1-49 Westernport Road (odd numbers)<br>2-38 Westernport Road (even numbers) |
| Nar Nar Goon | 1-17 Carney Street (odd numbers)<br>1-3 Main Street (odd numbers)<br>2 Main Street<br>1-3 Nar Nar Goon Road (odd numbers) |
| Officer | 404-432 Princes Highway (even numbers)<br>4 Station Street |
| Pakenham | 55-71 Henry Street (odd numbers)<br>49 James Street<br>11-17 John Street (odd numbers)<br>50-56 John Street (even numbers)<br>39-153 Main Street (odd numbers)<br>52-162 Main Street (even numbers)<br>2-20 Station Street (even numbers) |
| Upper Beaconsfield | 23-61 Beaconsfield-Emerald Road (odd numbers)<br>2-4 St Georges Road (even numbers) |

## 4.0 Locations for gaming machines

13/03/2026
C271card

### Appropriate areas

Gaming venues and machines should be located:

- Where the community has a choice of non-gaming entertainment and recreation activities and established social infrastructure, some of which operate during the times that the proposed gaming machines will operate in the local area.
- In growth areas, where the Electronic Gaming Machine (EGM) density cap does not exceed 10 EGMs per 1000 persons over the age of 18 as set by the State Government.
- Where they will make a positive contribution to the redistribution of gaming machines away from relatively disadvantaged areas, as defined by the latest Australian Bureau of Statistics (ABS) Socio Economic Indexes for Areas (SEIFA) index of relative socio-economic disadvantage.
- Where the facility is removed from day-to-day convenience activities.

Gaming venues and machines should not be located:

- In areas that abut, or are adjacent, opposite or in close proximity to prohibited areas as specified in this Schedule.
- Within 400 metres walking distance of a concentration of social housing comprising more than 50 dwellings or within a clear line of sight of a social support agency or gamblers help centre.

- Where any ABS statistical area within 400 metres of the proposed venue is in the 20% most disadvantaged statistical areas in Cardinia Shire as set out in the latest SEIFA Index of relative socio-economic disadvantage.
- In areas that are key connections between core retail areas in a township or activity centre.

### Appropriate sites

Gaming venues and machines should be located:

- On sites that minimise the likelihood of impulse gaming by people passing the venue in the course of their usual business or every day activities.
- At the periphery of activity centres and removed from land zoned for a commercial purpose, or at a sports or recreation club.

Gaming venues and machines should not be located on sites:

- Where they are convenient to concentrations of shops, major community facilities or key public transport nodes where large numbers of pedestrians are likely to pass in the course of their daily activities.
- In townships and small centres where local convenience services are provided and where no or limited alternative attractions are offered.
- That abut, are adjacent to, or are opposite a strip shopping centre.
- That are in the direct line of sight of a strip shopping centre.
- That are in a rural township where there is no alternative club or hotel without gaming machines.

## 5.0 Venues for gaming machines

13/03/2026
C271card

Gaming machines should be located in venues:

- That offer and promote a range of other forms of recreation and entertainment other than gambling based activities and which are located in spaces completely divorced from the presence of EGMs.
- That promote non-gaming activities that increase the choice of activities and attractions available to patrons.
- That limit play by condition of approval to times when alternative entertainment and recreation is also operating and available.
- That already have gaming machines (in preference to the establishment of a new gaming venue).
- That are designed to comply with best practice and the full ambit of the VCGLR Venue Manual or any regulatory successor.
- That promote responsible gaming practices.

Gaming machines should not be located in venues:

- That have 24 hour-a-day operation or do not allow for a substantive period of time whereby gaming machines are non-operational.
- That have a gaming floor area of more than 25% of the total floor area of the venue.
- That will detrimentally affect the amenity of the surrounding area by way of design, location or operating hours.

## 6.0 Application requirements

13/03/2026
C271card

The following application requirements apply to an application for a permit under Clause 52.28, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A statement outlining how the application is consistent with the broader Planning Policy Framework and Municipal Planning Strategy including policies on recreation and entertainment, economic development, tourism and town development.
- An assessment of the social and economic benefits and dis-benefits of the proposed EGMs and how the benefits are to be secured and distributed to the broader local community.
- Details about the existing and proposed distribution and density of gaming machines in the municipality and local area, any proposed reallocation of gaming machines in the municipality, and the proposal's expected impact on patronage.
- A current assessment of the suburb or town's relative vulnerability to problem gaming in comparison to others in the region. [22.03-4 AR4]
- Details of the nature and extent of community benefits expected from the proposal and how the benefits are to be secured and distributed to the local community.
- If it is proposed to move EGMs from one part of the municipality to another, details of the relative social and economic differences between the two areas. An explanation as to why the EGMs are being transferred is to be provided.
- If relevant, details of existing gaming expenditure at the venue (over a 3 year period prior to the application) and a forecast of the anticipated expenditure at the venue if the proposal was to be approved.
- If EGMs are to be relocated from other venues, the likely social and economic impact of the proposal on those venues and the local area within which those venues are located.
- Gaming expenditure that is likely to be transferred from other venues, including:
  - Particulars as to how the level of transfer has been calculated (including, but not limited to, comparison of existing and projected expenditure per machine at the venue, current usage levels of machines at the venue, projected usage level of machines at the venue after the additional machines).
  - The amount of transfer expenditure anticipated.
  - The resulting impact on revenue of the venue from where the expenditure is transferred.
  - The resulting impact on the venue from where the expenditure is transferred (such as loss of employment, loss of complementary expenditures, loss of customers, impact on ability to provide services etc).
- Details of the relative socio-economic disadvantage of the locality and the broader 5 kilometre catchment of the venue.
- The latest ABS and SEIFA index of relative socio-economic disadvantage, the projected growth, housing affordability and housing stress, income levels, unemployment rates, educational retention and attainment levels, and the percentage of social security recipients.
- A statement outlining mitigating strategies to prevent problem gambling and external amenity impacts in relation to the design and management of the venue, including the applicant's responsible gaming practices.
- Details of existing and proposed gambling and non-gambling related entertainment and recreation facilities at the venue and within the local area.
- The distance to shopping complexes and strip shopping centres, community facilities, counselling services and public transport.
- Details of currently available social support services including specific problem gambling services, financial counselling services, and material and financial aid services; the location of these services in relation to both the revenue and patron catchment area; and the level of current demand for these services.

- Pedestrian counts outside the proposed venue on different days and at a variety of times, including (where relevant) comparisons with base levels in core areas of the activity centre.
- A detailed overall assessment, that shows and summarises the economic and social impacts of the proposal and their effect on community wellbeing and health.

## 7.0 Decision guidelines

13/03/2026
C271card

The following decision guidelines apply to an application for a permit under Clause 52.28, in addition to those specified in Clause 52.28 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The relative vulnerability to problem gaming within a 5 kilometre radius of the proposed venue, or alternative catchment area where appropriate. [22.03-5 DG1]
- Whether there is to be a net community benefit derived from the application, aside from any community contribution scheme.
- Whether approval is likely to increase the social disadvantage or vulnerability of the local community.
- Whether the location of the gaming machines or gaming premises will facilitate or discourage convenience gaming.
- Whether the venue is accessible by a variety of transport modes.
- Whether residents will have a choice between entertainment and recreation venues with and without gambling in the local area.
- The impact of the proposal on the amenity of the area and surrounding land uses.

# 52.29 LAND ADJACENT TO THE PRINCIPAL ROAD NETWORK

20/01/2022
VC205

## Purpose

To ensure appropriate access to the Principal Road Network or land planned to form part of the Principal Road Network.

To ensure appropriate subdivision of land adjacent to Principal Road Network or land planned to form part of the Principal Road Network.

## 52.29-1 Application

20/01/2022
VC205

This clause applies to land adjacent to a road in the Transport Zone 2 or land in a Public Acquisition Overlay if a transport manager (other than a municipal council) is the acquiring authority, and the purpose of the acquisition is for a road.

## 52.29-2 Permit requirement

20/01/2022
VC205

A permit is required to:

- Create or alter access to:
  - A road in a Transport Zone 2.
  - Land in a Public Acquisition Overlay if a transport manager (other than a municipal council) is the acquiring authority and the acquisition is for the purpose of a road.
- Subdivide land adjacent to:
  - A road in a Transport Zone 2.
  - Land in a Public Acquisition Overlay if a transport manager (other than a municipal council) is the acquiring authority and the acquisition is for the purpose of a road.

## 52.29-3 Permit not required

14/05/2021
VC198

A permit is not required to:

- Create or alter access, or subdivide land, if carried out by or on behalf of the Head, Transport for Victoria.
- Realign a boundary.
- Subdivide an existing building, provided the building is already connected to services and no new access is required.
- Subdivide land into two lots, provided no new access is required.

## 52.29-4 Referral of applications

20/01/2022
VC205

An application must be referred under section 55 of the Act to the person or body specified as the referral authority in clause 66.03.

## 52.29-5 Exemption from notice and review

31/07/2018
VC148

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 52.29-6 Decision guidelines

20/01/2022
VC205

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.

- The views of the relevant road authority.
- The effect of the proposal on the operation of the road and on public safety.
- Any policy made by the relevant road authority pursuant to schedule 2, clause 3 of the *Road Management Act 2004* regarding access between a controlled access road and adjacent land.

# 52.30 STATE PROJECTS

12/02/2024
VC254

## Purpose

To facilitate the development and delivery of projects by or on behalf of, or jointly or in partnership with, or funded by the State of Victoria or a public authority, or on Crown land.

## 52.30-1 Application

04/02/2026
VC265

This clause applies to any project decided by the Minister for Planning under clause 52.30-2 to be a state project.

In this clause:

- ***Chief Executive Officer, Homes Victoria*** means 'Chief Executive Officer, Homes Victoria' as defined in the *Housing Act 1983* and the body corporate established under the *Housing Act 1983*;
- ***green wedge land*** has the same meaning as in Division 1 of Part 3AA of the Act;
- ***Guidelines*** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***levy area*** has the same meaning as in the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020;*
- ***project*** means:
  - use or development of land; or
  - creation or alteration of access to a road in a Transport Zone; or
  - creation, variation or removal of an easement or restriction; or
  - variation or removal of a condition in the nature of an easement in a Crown grant;
- ***restriction*** has the same meaning as in the *Subdivision Act 1988;*
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.30-2 State project decision

12/02/2024
VC254

The exemption in clause 52.30-3 applies if the Minister for Planning is satisfied that a proposed project is a state project which:

- will be:
  - carried out by or on behalf of, or jointly or in partnership with, the State of Victoria or a public authority; or
  - funded, or partly funded by, the State of Victoria or a public authority; or
  - carried out on Crown land;
- is consistent with any Great Ocean Road strategic framework plan, Statement of Planning Policy or Yarra Strategic Plan that applies to the land;
- will not subdivide green wedge land into more lots or into smaller lots than allowed for by this planning scheme;

- is consistent with any approved regional strategy plan under Part 3A of the Act and any approved strategy plan under Part 3C or Part 3D of the Act; and
- does not form part of public works declared under section 3, or works subject to a notice under section 8B(4)(a)(i), or does not require an environment effects statement under the *Environment Effects Act 1978*.

In deciding whether a proposed project is a state project, the Minister for Planning may, where relevant:

- Consider the objectives of planning in Victoria.
- Have regard to any relevant Minister's directions.
- Have regard to the *Victoria Planning Provisions*.
- Take into account any significant effects which the Minister considers the proposed use or development may have on the environment or which the Minister considers the environment may have on the proposed use or development.
- Take into account any significant social effects and economic effects which the Minister considers the proposed use or development may have.
- Consider any existing specific control under clause 45.12 or 51.01 that applies to the proposed use or development.

## 52.30-3 Exemption from planning scheme requirements

12/02/2024
VC254

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits a project, requires a project to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to a project decided by the Minister for Planning under clause 52.30-2 to be a state project if the requirements of clause 52.30 are met.

This exemption does not apply to the following:

- The subdivision of green wedge land into more lots or into smaller lots than allowed for by this planning scheme.
- A development for which an environment effects statement has been, or is required to be, prepared under the *Environment Effects Act 1978*.
- A use or development carried out by or on behalf of, or jointly or in partnership with, the Chief Executive Officer, Homes Victoria.
- A use or development to which clauses 52.03, 52.35 or 52.36 apply.
- A requirement in clauses 45.07, 45.08 or 51.03, or in any schedule to those clauses.

## 52.30-4 Project requirement

29/09/2022
VC222

The project must be carried out generally in accordance with the plans and documents approved under this clause, to the satisfaction of the Minister for Planning.

## 52.30-5 Consultation requirements

29/09/2022
VC222

Before the project commences:

- Public consultation, including consultation with relevant public authorities and the municipal council for the municipal district within which the proposed project will be carried out, must be carried out to the satisfaction of the Minister for Planning.
- A report that summarises the consultation undertaken and the feedback received, and explains how the feedback has been considered and responded to must be prepared to the satisfaction of the Minister for Planning.

The requirements of this clause may be varied or waived by the Minister for Planning.

## 52.30-6 Other pre-commencement requirements

12/02/2024
VC254

Before the project commences, the following plans, documents and information must be prepared and submitted to the satisfaction of the Minister for Planning:

- A plan that shows the boundary of the land on which the project will be carried out.
- A site and context description that accurately describes and analyses the natural, physical, cultural heritage, built heritage, landscape, vegetation, access and any other notable features, characteristics and significance of the land and surrounding area, including any existing use and development.
- A description of the proposed use including:
  - The activities that will be carried out.
  - The likely effects, if any, on the land, and surrounding land and land uses, including noise levels, traffic, air-borne emissions, emissions to land and water, light spill, glare, solar access and hours of operation.
- Detailed plans and elevations of the proposed development drawn to scale and dimensioned, including details of any buildings or works proposed to be demolished or removed, and any vegetation proposed to be retained or removed.
- A report that addresses how the proposed project responds to purposes, objectives, or statements of significance or risk of any zone, overlay, or other provision that would apply to the proposed project but for the exemption in clause 52.30-3.
- A schedule of works and development including staging and the expected commencement and completion times.
- If the Minister for Planning has decided that an assessment under the *Environment Effects Act 1978* is not required for the proposed development and the Minister's decision is subject to conditions:
  - A report that details how each condition has been considered and addressed in the design, construction and operation of the proposed development.
  - A copy of any report, plan or other document required to be prepared under those conditions.
- A plan for the management or mitigation of potential adverse effects or impacts on the environment or amenity from the proposed use or development, during and following construction.
- If the proposed project would require a permit but for the exemption in clause 52.30-3 and a copy of the application for that permit would be required to be given to a referral authority under section 55 of the Act, the comments of that referral authority on the proposed project.
- A report that demonstrates that the environmental conditions of the land are or will be suitable for the proposed use or development including any significant effects which the use or development may have on the environment or which the environment may have on the use or development including water, noise, air or land pollution impacts on the environment, amenity or human health.
- Any other plan, document or information the Minister for Planning considers necessary to assist the Minister's assessment of the proposed project or the plans and documents required to be prepared under this clause.

The requirements of this clause may be:

- Satisfied in separate components or stages of a project, but each requirement must be satisfied prior to the commencement of that component or stage.
- May be varied or waived by the Minister for Planning.

The plans and other documents required by this clause may be amended during the project to the satisfaction of the Minister for Planning.

## 52.30-7 Native vegetation requirements

25/03/2021
VC194

Before the removal, destruction or lopping of native vegetation outside the levy area:

- Information about the native vegetation in accordance with application requirements in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.
- The biodiversity impacts from the removal, destruction or lopping of that native vegetation must be offset in accordance with the Guidelines.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The Secretary may vary the timing of the offset requirement.

The secured offset for a state project to which this clause applies may be reconciled at the completion of a project to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation inside the levy area, information about the native vegetation in accordance with application requirements in Tables 4 and 5 (other than requirement 9) of the Guidelines must be prepared to the satisfaction of the Secretary.

The information requirements of this clause may be varied or waived by the Secretary.

The requirements of this clause may be satisfied in separate components or stages of a development, but each requirement must be satisfied before the removal, destruction or lopping of native vegetation for that component or stage.

# 52.31 LOCAL GOVERNMENT PROJECTS

25/03/2021
VC194

## Purpose

To facilitate the development of land by or on behalf of municipal councils.

## 52.31-1 Permit exemptions

20/10/2026
VC317

Any requirement in a zone or a schedule to a zone to obtain a permit to construct a building or construct or carry out works does not apply to the development of land carried out by or on behalf of a municipal council. This exemption does not apply to:

- A development with an estimated cost of more than $10 million.
- A development in the Urban Floodway Zone or Flood Management Zone unless the development is carried out to the satisfaction of the relevant floodplain management authority.
- A development associated with the use of land for accommodation, earth and energy resources industry, energy generation facility, industry or warehouse.
- A development for which an environment effects statement has been, or is required to be, prepared under the *Environment Effects Act 1978*.
- A development for which the Minister for Planning has decided that an assessment through an environment effects statement under the *Environment Effects Act 1978* is not required if the Minister's decision is subject to conditions.

Any requirement in the Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay and Flood Management Overlay to obtain a permit to construct a building or construct or carry out works does not apply to the development of land carried out by or on behalf of a municipal council to the satisfaction of the relevant floodplain management authority.

This clause prevails over any inconsistent provision in this planning scheme.

## 52.31-2 Exemption from notice and review

25/03/2021
VC194

An application under any provision of this planning scheme to develop land by or on behalf of a municipal council is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to:

- An application for a development with an estimated cost of more than $10 million.
- An application for a development associated with the use of land for accommodation, earth and energy resources industry, energy generation facility, industry or warehouse.
- An application to remove, destroy or lop more than:
  - 0.5 hectares of native vegetation other than a tree; or
  - 15 native trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level; or
  - 5 native trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.

# 52.32 WIND ENERGY FACILITY

31/07/2018
VC148

## Purpose

To facilitate the establishment and expansion of wind energy facilities, in appropriate locations, with minimal impact on the amenity of the area.

## 52.32-1 Application

03/08/2021
VC206

This clause applies to land used and developed or proposed to be used and developed for a wind energy facility.

## 52.32-2 Use and development of land

03/08/2021
VC206

A permit is required to use and develop land for a wind energy facility.

The use and development of land for a wind energy facility is prohibited at a location listed in the table to this clause unless the condition opposite the location specified in the table is met.

**Table to Clause 52.32-2**

| Location | Condition |
|---|---|
| **On land where any turbine (measured from the centre of the tower at ground level) that forms part of the facility is located within one kilometre of an existing dwelling. This does not apply to a wind energy facility that is located on land in a residential zone, an industrial zone, a commercial zone or a special purpose zone.** | Must meet the requirements of clause 52.32-3. |
| **Land described in a schedule to the *National Parks Act 1975*** | Must be principally used to supply electricity to a facility used in conjunction with conservation, recreation, administration or accommodation use of the land. |
| **Land declared a Ramsar wetland as defined under section 17 of the *Environment Protection and Biodiversity Conservation Act 1999* (Cwth)** | |
| **Land listed in a schedule to Clause 52.32-2** | Must be on land in a residential zone, industrial zone, commercial zone or special purpose zone and must be integrated as part of the development of the land. |

## 52.32-3 Turbine within one kilometre of a dwelling

03/08/2021
VC206

An application that includes a proposed turbine within one kilometre of an existing dwelling must be accompanied by:

- A plan showing all dwellings within one kilometre of a proposed turbine (measured from the centre of the tower at ground level).
- Evidence of the written consent of any owner as at the date of that application of an existing dwelling located within one kilometre of a proposed turbine (measured from the centre of the tower at ground level) that forms part of a wind energy facility. This does not apply to an application to amend such a permit under section 72 or section 97I of the Act unless the amendment of the permit would:

- increase the number of turbines; or
- change the location of a turbine so that the centre of the tower (at ground level) is located closer to an existing dwelling (within one kilometre of a permitted turbine) than the centre of the tower (at ground level) of the closest permitted turbine to that dwelling.

This does not apply to a wind energy facility that is located on land in a residential zone, an industrial zone, a commercial zone or a special purpose zone.

## 52.32-4 Application requirements

04/07/2023
VC234

An application must be accompanied by the following information as appropriate:

### Site and context analysis

A site and context analysis may use a site plan, photographs or other techniques to accurately describe the site and surrounding area and must include the following information:

- In relation to the site:
  - Site shape, dimensions and size
  - Orientation and contours
  - Current land use
  - The existing use and siting of buildings or works on the land
  - Existing vegetation types, condition and coverage
  - The landscape of the site
  - Species of flora and fauna listed under the *Flora and Fauna Guarantee Act 1988* and the *Environment Protection and Biodiversity Conservation Act 1999* (Cwth)
  - Sites of cultural heritage significance
  - Wind characteristics
  - Any other notable features, constraints or other characteristics of the site.
- In relation to the surrounding area:
  - Existing land uses
  - Above-ground utilities
  - Access to infrastructure
  - Direction and distances to nearby dwellings, townships, urban areas, significant conservation and recreation areas, water features, tourist routes and walking tracks, major roads, airports, aerodromes and existing and proposed wind energy facilities
  - The siting and use of buildings on adjacent properties
  - Views to and from the site, including views from existing dwellings and key vantage points including major roads, walking tracks, tourist routes and regional population growth corridors
  - Sites of flora and fauna listed under the *Flora and Fauna Guarantee Act 1988* and *Environment Protection and Biodiversity Conservation Act 1999* (Cwth), including significant habitat corridors, and movement corridors for these fauna
  - Sites of cultural heritage significance
  - National Parks, State Parks, Coastal Reserves and other land subject to the *National Parks Act 1975*

- Land declared a Ramsar wetland as defined under section 17 of the *Environment Protection and Biodiversity Conservation Act 1999* (Cwth)
- Location of any land included in the schedule to clause 52.32-2 of the planning scheme
- Any other notable features or characteristics of the area
- Bushfire risks.

**Design response**

- Detailed plans of the proposed development.
- Plans and elevations of transmission infrastructure and electricity utility works required to connect the facility to the electricity network, and access road options.
- Accurate visual simulations illustrating the development in the context of the surrounding area and from key public view points.
- A rehabilitation plan for the site.
- A written report(s), including:
  - A description of the proposal.
  - An explanation of how the proposed design derives from and responds to the site analysis.
  - A description of how the proposal responds to any significant landscape features for the area identified in the planning scheme.
  - An assessment of:
    - the visual impact of the proposal on the surrounding landscape.
    - the visual impact on abutting land that is described in a schedule to the *National Parks Act 1975* and Ramsar wetlands and coastal areas.
    - the impact of the proposal on any species (including birds and bats) listed under the *Flora and Fauna Guarantee Act 1988* or the *Environment Protection and Biodiversity Conservation Act 1999* (Cwth).
    - the impacts upon Aboriginal or non-Aboriginal cultural heritage.
  - A statement of why the site is suitable for the wind energy facility.
  - An environmental management plan including any rehabilitation and monitoring requirements.
- A pre-construction (predictive) noise assessment report prepared by a suitably qualified and experienced acoustician that:
  - Reports on a pre-construction (predictive) noise assessment conducted in accordance with *New Zealand Standard NZS6808:2010, Acoustics - Wind Farm Noise*.
  - Provides an assessment of whether the proposed wind energy facility will comply with the noise limit for that facility under Division 5 Part 5.3 of the *Environment Protection Regulations 2021*.

  - Where the proposed wind energy facility will be the subject of a wind turbine noise agreement under Division 5 of Part 5.3 of the *Environment Protection Regulations 2021,* specifies the premises of the relevant landowner (including any particular buildings) to which the agreement relates and provides an assessment of whether the proposed wind energy facility will comply with the modified noise limit for that facility specified in the agreement.
  - Is prepared on the basis that the relevant noise standard under Division 5 of Part 5.3 of the *Environment Protection Regulations 2021* will be *New Zealand Standard NZS6808:2010, Acoustics - Wind Farm Noise* and includes an assessment of whether a high amenity noise limit is applicable under Section 5.3 of the standard.

- A report prepared by an environmental auditor appointed under Part 8.3 of the *Environment Protection Act 2017* that verifies whether or not the pre-construction (predictive) noise assessment was conducted in accordance with *New Zealand Standard NZS6808:2010, Acoustics - Wind Farm Noise*.

If in the opinion of the responsible authority a requirement of the site and context analysis or design response is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 52.32-5 Decision guidelines

04/07/2023
VC234

Before deciding on an application, in addition to the decision guidelines of Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect of the proposal on the surrounding area in terms of noise, blade glint, shadow flicker and electromagnetic interference.
- The impact of the development on significant views, including visual corridors and sightlines.
- The impact of the facility on the natural environment and natural systems.
- The impact of the facility on cultural heritage.
- The impact of the facility on aircraft safety.
- *Policy and Planning Guidelines for Development of Wind Energy Facilities in Victoria* (Department of Environment, Land, Water and Planning, November 2021).

## 52.32-6 Anemometer

03/08/2021
VC206

Despite anything to the contrary in this scheme a permit may be granted to use and develop land for the purpose of wind measurement by an anemometer for a period of more than three years.

## 52.32-7 Application to amend a permit under section 72 of the Act

03/08/2021
VC206

An application to amend a permit made under section 72 of the Act is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the amendment of the permit does not:

- increase the number of turbines; or
- increase the maximum height of a turbine.

## 52.32-8 Application to amend a permit under section 97I of the Act

03/08/2021
VC206

An application to amend a referred wind energy facility permit made under section 97I of the Act is wholly exempt from the requirements of section 97E(1) of the Act if the application does not seek to:

- increase the total number of turbines; or
- increase the maximum height of a turbine.

The requirements of section 97E(1) of the Act are modified so as to require referral of objections and submissions to an advisory committee established under section 151 of the Act if an application to amend a referred wind energy facility permit made under section 97I of the Act does not seek to:

- increase the total number of turbines by more than 15%; or
- increase the maximum height of a turbine by more than 20%.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 52.32 WIND ENERGY FACILITY

## 1.0 Wind energy facility prohibition

31/07/2018
VC148

| Land where a Wind energy facility is prohibited |
| --- |
| None specified |

## 52.33 POST BOXES AND DRY STONE WALLS

31/07/2018
VC148

### Purpose

To conserve historic post boxes and dry stone walls.

### Permit requirement

A permit is required to demolish or remove a post box constructed before 1930.

A permit is required to demolish, remove or alter a dry stone wall constructed before 1940 on land specified in the schedule to this provision. This does not apply to:

- Dry stone structures other than walls and fences.
- The demolition or removal of a section of a dry stone wall to install a gate.
- The reconstruction of damaged or collapsing walls which are undertaken to the same specifications and using the same materials as the existing walls.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The significance of the post box or dry stone wall.
- Any applicable heritage study, statement of significance and conservation policy.
- Whether the proposal will adversely affect the significance of the post box or dry stone wall.
- Whether the proposal will adversely affect the significance, character or appearance of the area.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 52.33 POST BOXES AND DRY STONE WALLS

## 1.0 Permit requirement for dry stone walls

31/07/2018
VC148

| Land |
| --- |
| None specified |

# 52.34 BICYCLE FACILITIES

31/07/2018
VC148

## Purpose

To encourage cycling as a mode of transport.

To provide secure, accessible and convenient bicycle parking spaces and associated shower and change facilities.

## 52.34-1 Provision of bicycle facilities

19/01/2006
VC37

A new use must not commence or the floor area of an existing use must not be increased until the required bicycle facilities and associated signage has been provided on the land.

Where the floor area occupied by an existing use is increased, the requirement for bicycle facilities only applies to the increased floor area of the use.

## 52.34-2 Permit requirement

31/07/2018
VC148

A permit may be granted to vary, reduce or waive any requirement of Clause 52.34-5 and Clause 52.34-6.

## 52.34-3 Exemption from notice and review

31/07/2018
VC148

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 52.34-4 Decision guidelines

14/01/2025
VC237

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Whether the proposed number, location and design of bicycle facilities meets the purpose of this clause.
- The location of the proposed land use and the distance a cyclist would need to travel to reach the land.
- The users of the land and their opportunities for bicycle travel.
- Whether showers and change rooms provided on the land for users other than cyclists are available to cyclists.
- The opportunities for sharing of bicycle facilities by multiple uses, either because of variation of bicycle parking demand over time or because of efficiencies gained from the consolidation of shared bicycle facilities.
- *Australian Standard AS2890.3:2015, Parking Facilities Part 3: Bicycle Parking* (Standards Australia, 2015)
- Any relevant bicycle parking strategy or equivalent.

## 52.34-5 Required bicycle facilities

28/02/2025
VC274

Tables 1, 2 and 3 to this clause set out the number and type of bicycle facilities required. Bicycle facilities are required if the use is listed in column 1 of the table. The number of bicycle facilities required for a use is the sum of columns 2 and 3 of the tables.

If a schedule to the Precinct Zone specifies the number of bicycle spaces required for a use listed in column 1 of Table 1, that requirement is taken to be the required number of bicycle spaces for that use for the purpose of this clause.

If a schedule to the Precinct Zone specifies the number of bicycle spaces required for a use not listed in column 1 of Table 1, that use is deemed to be a use listed in column 1 of the table and the corresponding required number of spaces is deemed to be a requirement specified in column 2 or 3 of the table, as applicable.

If in calculating the number of bicycle facilities the result is not a whole number, the required number of bicycle facilities is the nearest whole number. If the fraction is one-half, the requirement is the next whole number.

A bicycle space for an employee or resident must be provided:

- Either in a bicycle locker or at a bicycle rail in a lockable compound.
- In accordance with any requirement specified in a schedule to the Precinct Zone.

A bicycle space for a visitor, shopper or student must be provided:

- At a bicycle rail.
- In accordance with any requirement specified in a schedule to the Precinct Zone.

**Table 1 to Clause 52.34-5 Bicycle spaces**

| Use | Employee/Resident | Visitor/Shopper/Student |
|---|---|---|
| **Amusement parlour** | None | 2 plus 1 to each 50 sq m of net floor area |
| **Convenience restaurant** | 1 to each 25 sq m of floor area available to the public | 2 |
| **Dwelling** | In developments of four or more storeys, 1 to each 5 dwellings | In developments of four or more storeys, 1 to each 10 dwellings |
| **Education centre (excluding Child care centre) other than specified in this table** | 1 to each 20 employees | 1 to each 20 full-time students |
| **Hospital** | 1 to each 15 beds | 1 to each 30 beds |
| **Hotel** | 1 to each 25 sq m of bar floor area available to the public, plus 1 to each 100 sq m of lounge floor area available to the public | 1 to each 25 sq m of bar floor area available to the public, plus 1 to each 100 sq m of lounge floor area available to the public |
| **Industry other than specified in this table** | 1 to each 1000 sq m of net floor area | None |
| **Library** | 1 to each 500 sq m of net floor area | 4 plus 2 to each 200 sq m of net floor area |
| **Major sports and recreation facility** | 1 to each 1500 spectator places | 1 to each 250 spectator places |
| **Market** | 1 to each 50 stalls | 1 to each 10 stalls |
| **Medical centre** | 1 to each 8 practitioners | 1 to each 4 practitioners |
| **Minor sports and recreation facility** | 1 per 4 employees | 1 to each 200 sq m of net floor area |
| **Motel** | 1 to each 40 rooms | None |
| **Office other than specified in this table** | 1 to each 300 sq m of net floor area if the net floor area exceeds 1000 sq m | 1 to each 1000 sq m of net floor area if the net floor area exceeds 1000 sq m |
| **Place of assembly other than specified in this table** | 1 to each 1500 sq m of net floor area | 2 plus 1 to each 1500 sq m of net floor area |
| **Primary school** | 1 to each 20 employees | 1 to each 5 pupils over year 4 |

| Use | Employee/Resident | Visitor/Shopper/Student |
|---|---|---|
| **Residential building other than specified in this table** | In developments of four or more storeys, 1 to each 10 lodging rooms | In developments of four or more storeys, 1 to each 10 lodging rooms |
| **Restaurant** | 1 to each 100 sq m of floor area available to the public | 2 plus 1 to each 200 sq m of floor area available to the public if the floor area available to the public exceeds 400 sq m. |
| **Retail premises other than specified in this table** | 1 to each 300 sq m of leasable floor area | 1 to each 500 sq m of leasable floor area |
| **Secondary school** | 1 to each 20 employees | 1 to each 5 pupils |
| **Service industry** | 1 to each 800 sq m of net floor area | None |
| **Shop** | 1 to each 600 sq m of leasable floor area if the leasable floor area exceeds 1000 sq metres | 1 to each 500 sq m of leasable floor area if the leasable floor area exceeds 1000 sq metres |
| **Take-away food premises** | 1 to each 100 sq m of net floor area | 1 to each 50 sq m of net floor area |

**Table 2 to Clause 52.34-5 Showers**

| USE | Employee/Resident | Visitor/Shopper/Student |
|---|---|---|
| **Any use listed in Table 1** | If 5 or more employee bicycle spaces are required, 1 shower for the first 5 employee bicycle spaces, plus 1 to each 10 employee bicycle spaces thereafter. | None |

**Table 3 to Clause 52.34-5 – Change rooms**

| USE | Employee/Resident | Visitor/Shopper/Student |
|---|---|---|
| **Any use listed in Table 1** | 1 change room or direct access to a communal change room to each shower. The change room may be a combined shower and change room. | None |

## 52.34-6 Design of bicycle spaces

31/07/2018
VC148

Bicycle spaces should:

- Provide a space for a bicycle of minimum dimensions of 1.7 metres in length, 1.2 metres in height and 0.7 metres in width at the handlebars.
- Be located to allow a bicycle to be ridden to within 30 metres of the bicycle parking space.
- Be located to provide convenient access from surrounding bicycle routes and main building entrances.
- Not interfere with reasonable access to doorways, loading areas, access covers, furniture, services and infrastructure.
- Not cause a hazard.
- Be adequately lit during periods of use.

### Bicycle rails

A bicycle rail must:

- Be securely fixed to a wall or to the floor or ground.
- Be in a highly visible location for bicycle security (when not in a compound).
- Be of a shape that allows a cyclist to easily lock the bicycle frame and wheels.
- Be located to allow easy access to park, lock and remove the bicycle.

### Bicycle compounds and lockers

A bicycle compound or a bicycle locker must:

- Be located to provide convenient access to other bicycle facilities including showers and change rooms.
- Be fully enclosed.
- Be able to be locked.
- If outside, provide weather protection for the bicycle.

A bicycle locker must provide a bicycle parking space for at least one bicycle.

A bicycle compound must:

- Include wall or floor rails for bicycle parking.
- Provide an internal access path of at least 1.5 metres in width.

## 52.34-7 Bicycle signage

31/07/2018
VC148

If bicycle facilities are required by this clause, bicycle signage that directs the cyclists to the bicycle facilities must be provided to the satisfaction of the responsible authority.

Bicycle signage should:

- Be at least 0.3 metres wide and 0.45 metres high.
- Display a white bicycle on a blue background on the top half of the sign.
- Display information about the direction of facilities on the bottom half of the sign.

# 52.35 ROAD PROJECTS

07/11/2025
VC295

## 52.35-1 Purpose

07/11/2025
VC295

To facilitate the delivery of projects carried out by or on behalf of VIDA Roads.

## 52.35-2 Application

07/11/2025
VC295

This clause applies to the use and development of land for a project carried out by or on behalf of VIDA Roads.

This clause does not apply to:

- The subdivision of land.
- The use or development of land for a promotion sign or a major promotion sign.
- A use or development that would not require a permit under a provision of this planning scheme but for the provisions of clause 52.35.
- A use or development to which clause 52.03 applies.
- A use or development for a project if a document has been incorporated into this planning scheme expressly for the project and the use and development is carried out on land to which the specific control contained in the document applies.
- A use or development carried out in accordance with a permit issued on or before the approval date of Amendment VC198.
- A use or development for which a planning permit is granted by the responsible authority in accordance with the provisions of this planning scheme which would apply in the absence of the exemption in clause 52.35-3.
- A development for which an environment effects statement has been, or is required by the Minister for Planning to be, prepared under the *Environment Effects Act 1978*.

The provisions of clause 52.35 prevail over any inconsistent provision in this planning scheme.

## 52.35-3 Exemption from planning scheme requirements

14/05/2021
VC198

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits or restricts the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to a use or development to which this clause 52.35 applies if the requirements of clause 52.35 are met.

This exemption does not apply to a requirement in clauses 45.08 or 51.03, or in any schedule to those clauses.

## 52.35-4 Use and development requirements

20/10/2026
VC317

The use and development of land must be carried out generally in accordance with the plans and documents approved by the Minister for Planning under clause 52.35, to the satisfaction of the Minister for Planning.

The construction of a building or the construction or carrying out of works in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay, Flood Management Overlay, Urban Floodway Zone or Flood Management Zone must be carried out to the satisfaction of the relevant floodplain management authority.

The use and development of land in a Public Acquisition Overlay must be carried out to the satisfaction of the relevant acquiring authority.

## 52.35-5 Consultation requirements

14/05/2021
VC198

Before the commencement of the use or development:

- Public consultation, including consultation with relevant public authorities and the municipal council for the municipal district within which the proposed use or development will be carried out, must be carried out to the satisfaction of the Minister for Planning.
- A report that summarises the consultation undertaken and feedback received, and explains how the feedback has been considered and responded to must be prepared to the satisfaction of the Minister for Planning.

The requirements of this clause may be varied or waived by the Minister for Planning.

## 52.35-6 Project boundary requirement

14/05/2021
VC198

Before the use or development commences, a plan that shows the boundary of the land on which the use or development will be carried out must be prepared to the satisfaction of the Minister for Planning.

The plan may be prepared in stages and may be amended to the satisfaction of the Minister for Planning.

## 52.35-7 Other pre-commencement requirements

14/05/2021
VC198

Before the use or development (other than a preparatory use or development) commences, the following plans, documents and information must be prepared to the satisfaction of the Minister for Planning:

- A description of the natural, physical, cultural heritage, built heritage, landscape, vegetation, access and any other notable features, characteristics and significance of the site and surrounding area including the existing use and development of the site and surrounding land.
- A description of the project.
- An explanation of how the proposed use or development responds to the decision guidelines in this planning scheme that would have applied to an application for a permit for the proposed use or development but for the provisions of this clause 52.35.
- If the land is in the Heritage Overlay and the proposed development would require a permit under the overlay but for the exemption in clause 52.35-3:
  - An assessment of the impact of the proposed development on the heritage significance of the heritage place.
  - Site plans and elevations showing the extent of the proposed development on the land.
  - Photographs of any buildings or works to be demolished or removed, including photographs of the exterior and interior of the building and contextual images of the building's environs and setting.
- If the land is in an Environmental Significance Overlay, a Significant Landscape Overlay or a Vegetation Protection Overlay and the proposed development would require a permit under the overlay but for the exemption in clause 52.35-3, an explanation of how the proposed development responds to any environmental, vegetation or landscape significance or objective specified in a schedule to the overlay.
- An explanation of how the proposed use or development is consistent with any applicable Statement of Planning Policy.
- A statement outlining landscape and urban design measures or treatments required to address any amenity impacts as part of the project.

- An environmental management framework, prepared having regard to consultation undertaken with each relevant municipal council on environmental management for the use or development or measures to avoid or minimise adverse environmental impacts, that includes:
  - A summary of key construction methodologies.
  - An overarching framework of measures to reduce and manage environmental and amenity effects during construction.
  - A summary of performance monitoring and reporting processes, including any auditing, to ensure environmental and amenity impacts are reduced and managed during construction.
  - A plan for engagement with each relevant municipal council, the community and other stakeholders during construction, including enquiries and complaints management.

  The environmental management framework must be accompanied by a summary of the consultation with each relevant municipal council that informed the preparation of the environmental management framework.
- If the Minister for Planning has decided that an assessment under the *Environment Effects Act 1978* is not required for the proposed development and the decision is subject to conditions:
  - A report that details how each condition has been considered and addressed in the design, construction and operation of the proposed development.
  - A copy of any report, plan or other document required to be prepared under those conditions.
- Any other information the Minister for Planning considers necessary to assist the Minister's assessment of the plans and documents required to be submitted under this clause.

The requirements of this clause:

- May be satisfied in separate components or stages of a project, but each requirement must be satisfied before the commencement of the use and development for that component or stage.
- May be varied or waived by the Minister.

The plans and other documents required by this clause may be amended to the satisfaction of the Minister for Planning.

## 52.35-8 Native vegetation requirements

04/02/2026
VC265

In this clause:

- ***Guidelines*** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***levy area*** has the same meaning as in the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*;
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).

Before the removal, destruction or lopping of native vegetation outside the levy area to enable a preparatory use or development, information about that native vegetation in accordance with application requirements 1, 5, 9, 10 and 11 in Tables 4 and 5 to the Guidelines must be prepared to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation outside the levy area (other than to enable a preparatory use or development):

- Information about the native vegetation in accordance with the application requirements 1, 5, 9, 10, and 11 in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.

- The biodiversity impacts from the removal, destruction or lopping of that native vegetation must be offset in accordance with the Guidelines to the satisfaction of the Secretary. The biodiversity impacts from the removal, destruction or lopping of native vegetation outside the levy area to enable a preparatory use or development must be included in the total biodiversity impacts when determining the offset to the satisfaction of the Secretary.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The timing of the offset requirement may be varied by the Secretary. The secured offset for a project may be reconciled at the completion of a project to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation inside the levy area, information about the native vegetation in accordance with the application requirements 1, 5, 10 and 11 in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.

The requirements of this clause may be satisfied in separate components or stages of a development, but each requirement must be satisfied before the removal, destruction or lopping of native vegetation for that component or stage.

## 52.35-9 Preparatory use and development

14/05/2021
VC198

For the purposes of clause 52.35, a preparatory use or development is a use or development required to prepare for the construction of a project or a component or stage of a project. It is limited to the following:

- Use and development that would not require a permit under a provision of this planning scheme but for the exemption in clause 52.35-3.
- Works associated with investigating, testing and surveying land.
- Creation and use of construction access points, accessways and working platforms.
- Site establishment works including construction of temporary site fencing and hoarding, site offices, and hardstand and laydown areas.
- Construction and use of temporary car parking.
- Construction or installation of environment and traffic controls, including designated ‘no-go' zones.
- Construction, protection, modification, removal or relocation of utility services, rail signalling, overhead and associated infrastructure.
- Salvage and relocation of cultural heritage material and other management actions required to be carried out in compliance with:
  - a cultural heritage management plan prepared and/or approved under the *Aboriginal Heritage Act 2006* or otherwise in compliance with that Act; or
  - the conditions of any permit or consent granted under the *Heritage Act 2017* or otherwise in compliance with that Act.
- Demolition or removal of a building (other than a building in a Heritage Overlay) or works to the minimum extent necessary to enable another preparatory use or development.
- Removal, destruction or lopping of vegetation (other than a tree in the Heritage Overlay specified below) to the minimum extent necessary to enable another preparatory use or development.

For the purposes of clause 52.35, preparatory development does not include:

- Demolition or removal of a building in a Heritage Overlay.
- Removal, destruction or lopping of a tree in a Heritage Overlay if the schedule to the overlay specifies the heritage place as one where tree controls apply.

# 52.36 RAIL PROJECTS

14/05/2021
VC198

## 52.36-1 Purpose

14/05/2021
VC198

To facilitate the delivery of projects carried out by or on behalf of Rail Projects Victoria.

## 52.36-2 Application

14/05/2021
VC198

This clause applies to the use and development of land for a project carried out by or on behalf of Rail Projects Victoria.

This clause does not apply to:

- The subdivision of land.
- The use or development of land for a promotion sign or a major promotion sign.
- A use or development that would not require a permit under a provision of this planning scheme but for the provisions of clause 52.36.
- A use or development to which clause 52.03 applies.
- A use or development for a project if a document has been incorporated into this planning scheme expressly for the project and the use and development is carried out on land to which the specific control contained in the document applies.
- A use or development carried out in accordance with a permit issued on or before the approval date of Amendment VC198.
- A use or development for which a planning permit is granted by the responsible authority in accordance with the provisions of this planning scheme which would apply in the absence of the exemption in clause 52.36-3.
- A development for which an environment effects statement has been, or is required by the Minister for Planning to be, prepared under the *Environment Effects Act 1978*.

The provisions of clause 52.36 prevail over any inconsistent provision in this planning scheme.

## 52.36-3 Exemption from planning scheme requirements

14/05/2021
VC198

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits or restricts the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to a use or development to which this clause 52.36 applies if the requirements of clause 52.36 are met.

This exemption does not apply to a requirement in clauses 45.08 or 51.03, or in any schedule to those clauses.

## 52.36-4 Use and development requirements

20/10/2026
VC317

The use and development of land must be carried out generally in accordance with the plans and documents approved by the Minister for Planning under clause 52.36, to the satisfaction of the Minister for Planning.

The construction of a building or the construction or carrying out of works in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay, Flood Management Overlay, Urban Floodway Zone or Flood Management Zone must be carried out to the satisfaction of the relevant floodplain management authority.

The creation or alteration of access to a road in a Transport Zone 2, or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road, must be carried out to the satisfaction of the Head, Transport for Victoria.

The use and development of land in a Public Acquisition Overlay must be carried out to the satisfaction of the relevant acquiring authority.

## 52.36-5 Consultation requirements

14/05/2021
VC198

Before the commencement of the use or development:

- Public consultation, including consultation with relevant public authorities and the municipal council for the municipal district within which the proposed use or development will be carried out, must be carried out to the satisfaction of the Minister for Planning.
- A report that summarises the consultation undertaken and feedback received, and explains how the feedback has been considered and responded to must be prepared to the satisfaction of the Minister for Planning.

The requirements of this clause may be varied or waived by the Minister for Planning.

## 52.36-6 Project boundary requirement

14/05/2021
VC198

Before the use or development commences, a plan that shows the boundary of the land on which the use or development will be carried out must be prepared to the satisfaction of the Minister for Planning.

The plan may be prepared in stages and may be amended to the satisfaction of the Minister for Planning.

## 52.36-7 Other pre-commencement requirements

14/05/2021
VC198

Before the use or development (other than a preparatory use or development) commences, the following plans, documents and information must be prepared to the satisfaction of the Minister for Planning:

- A description of the natural, physical, cultural heritage, built heritage, landscape, vegetation, access and any other notable features, characteristics and significance of the site and surrounding area including the existing use and development of the site and surrounding land.
- A description of the project.
- An explanation of how the proposed use or development responds to the decision guidelines in this planning scheme that would have applied to an application for a permit for the proposed use or development but for the provisions of this clause 52.36.
- If the land is in the Heritage Overlay and the proposed development would require a permit under the overlay but for the exemption in clause 52.36-3:
  - An assessment of the impact of the proposed development on the heritage significance of the heritage place.
  - Site plans and elevations showing the extent of the proposed development on the land.
  - Photographs of any buildings or works to be demolished or removed, including photographs of the exterior and interior of the building and contextual images of the building's environs and setting.
- If the land is in an Environmental Significance Overlay, a Significant Landscape Overlay or a Vegetation Protection Overlay and the proposed development would require a permit under the overlay but for the exemption in clause 52.36-3, an explanation of how the proposed development responds to any environmental, vegetation or landscape significance or objective specified in a schedule to the overlay.
- An explanation of how the proposed use or development is consistent with any applicable Statement of Planning Policy.

- An environmental management framework, prepared having regard to consultation undertaken with each relevant municipal council on environmental management for the use or development or measures to avoid or minimise adverse environmental impacts, that includes:
  - A summary of key construction methodologies.
  - An overarching framework of measures to reduce and manage environmental and amenity effects during construction.
  - A summary of performance monitoring and reporting processes, including any auditing, to ensure environmental and amenity impacts are reduced and managed during construction.
  - A plan for engagement with each relevant municipal council, the community and other stakeholders during construction, including enquiries and complaints management.

  The environmental management framework must be accompanied by a summary of the consultation with each relevant municipal council that informed the preparation of the environmental management framework.
- If the Minister for Planning has decided that an assessment under the *Environment Effects Act 1978* is not required for the proposed development and the decision is subject to conditions:
  - A report that details how each condition has been considered and addressed in the design, construction and operation of the proposed development.
  - A copy of any report, plan or other document required to be prepared under those conditions.
- Any other information the Minister for Planning considers necessary to assist the Minister's assessment of the plans and documents required to be submitted under this clause.

The requirements of this clause:

- May be satisfied in separate components or stages of a project, but each requirement must be satisfied before the commencement of the use and development for that component or stage.
- May be varied or waived by the Minister.

The plans and other documents required by this clause may be amended to the satisfaction of the Minister for Planning.

## 52.36-8 Native vegetation requirements

04/02/2026
VC265

In this clause:

- ***Guidelines*** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***levy area*** has the same meaning as in the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*;
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).

Before the removal, destruction or lopping of native vegetation outside the levy area to enable a preparatory use or development, information about that native vegetation in accordance with application requirements 1, 5, 9, 10 and 11 in Tables 4 and 5 to the Guidelines must be prepared to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation outside the levy area (other than to enable a preparatory use or development):

- Information about the native vegetation in accordance with application requirements 1, 5, 9 10, and 11 in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.

- The biodiversity impacts from the removal, destruction or lopping of that native vegetation must be offset in accordance with the Guidelines to the satisfaction of the Secretary. The biodiversity impacts from the removal, destruction or lopping of native vegetation outside the levy area to enable a preparatory use or development must be included in the total biodiversity impacts when determining the offset to the satisfaction of the Secretary.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The timing of the offset requirement may be varied by the Secretary. The secured offset for a project may be reconciled at the completion of a project to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation inside the levy area, information about the native vegetation in accordance with the application requirements 1, 5, 10 and 11 in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.

The requirements of this clause may be satisfied in separate components or stages of a development, but each requirement must be satisfied before the removal, destruction or lopping of native vegetation for that component or stage.

## 52.36-9 Preparatory use and development

14/05/2021
VC198

For the purposes of clause 52.36, a preparatory use or development is a use or development required to prepare for the construction of a project or a component or stage of a project. It is limited to the following:

- Use and development that would not require a permit under a provision of this planning scheme but for the exemption in clause 52.36-3.
- Works associated with investigating, testing and surveying land.
- Creation and use of construction access points, accessways and working platforms.
- Site establishment works including construction of temporary site fencing and hoarding, site offices, and hardstand and laydown areas.
- Construction and use of temporary car parking.
- Construction or installation of environment and traffic controls, including designated ‘no-go' zones.
- Construction, protection, modification, removal or relocation of utility services, rail signalling, overhead and associated infrastructure.
- Salvage and relocation of cultural heritage material and other management actions required to be carried out in compliance with:
  - a cultural heritage management plan prepared and/or approved under the *Aboriginal Heritage Act 2006* or otherwise in compliance with that Act; or
  - the conditions of any permit or consent granted under the *Heritage Act 2017* or otherwise in compliance with that Act.
- Demolition or removal of a building (other than a building in a Heritage Overlay) or works to the minimum extent necessary to enable another preparatory use or development.
- Removal, destruction or lopping of vegetation (other than a tree in the Heritage Overlay specified below) to the minimum extent necessary to enable another preparatory use or development.

For the purposes of clause 52.36, preparatory development does not include:

- Demolition or removal of a building in a Heritage Overlay.
- Removal, destruction or lopping of a tree in a Heritage Overlay if the schedule to the overlay specifies the heritage place as one where tree controls apply.

# 52.37 CANOPY TREES

15/09/2025
VC289

## PURPOSE

To protect and enhance canopy tree cover to support greener and cooler residential areas.

To maximise the retention of existing canopy tree cover where no development is proposed.

To ensure that development is designed to maximise the retention and long-term health of existing and new canopy trees and contributes to increasing canopy tree cover.

To balance the retention of existing canopy trees and residential development to meet the housing needs of Victoria's growing population.

To encourage canopy tree cover that is site and climate responsive and supports the local environment.

## 52.37-1 Meaning of terms

24/09/2026
VC315

In clause 52.37:

- ***average canopy diameter*** means the average of the measurements of the distance between the widest points of a tree's drip line (the outer edge of foliage) in two perpendicular directions;
- ***canopy cover*** means the area of a tree's canopy;
- ***existing canopy tree*** means a tree that has:
  - a height of at least 5 metres above ground level; and
  - an average canopy diameter of at least 4 metres;
- ***boundary canopy tree*** means an existing canopy tree if any part of its trunk is within:
  - 6 metres of the narrowest street frontage of a lot; or
  - 4.5 metres of the rear boundary of a lot;
- ***new canopy tree*** means a tree proposed to be planted that is of a species and type that at maturity is expected to have:
  - a height of at least 6 metres above ground level; and
  - a canopy diameter of at least 4 metres.

## 52.37-2 Permit requirement

24/09/2026
VC315

A permit is required to remove, destroy or lop an existing canopy tree in the Mixed Use Zone, Township Zone, Residential Growth Zone, General Residential Zone, Neighbourhood Residential Zone, and Housing Choice and Transport Zone.

This does not apply:

- If the table of exemptions in clause 52.37-8 specifically states that a permit is not required.
- To the removal, destruction or lopping of an exisitng canopy tree (other than a boundary canopy tree) identified for assessment in an application to which clause 54, 55, 57 or 58 applies and the tree is not removed, destroyed or lopped until the permit is issued.
- To the removal, destruction or lopping of an existing canopy tree (other than a boundary canopy tree) if the site is developed with an existing dwelling.

### VICSMART APPLICATION

Subject to clause 71.06, an application under this clause is a class of VicSmart application and must be assessed against this clause (excluding clause 52.37-4 and 52.37-5).

## 52.37-3 Canopy cover requirement

24/09/2026
VC315

The total canopy cover of trees on the site should be equivalent to at least the percentage of the site area specified in Column 2 to Table 1 corresponding to the applicable site area specified in Column 1.

The canopy cover requirement can only be met by retaining an existing canopy tree, planting a new canopy tree or a combination of both, within the site.

**Table 1 - Canopy cover**

| Column 1<br>Site area | Column 2<br>Canopy tree requirement |
|---|---|
| 1000 square metres or less | 10 per cent of site area |
| More than 1000 square metres to 1500 square metres | 15 per cent of site area |
| More than 1500 square metres | 20 per cent of site area<br>If the existing total canopy cover is more than 20 per cent of the site area, the tree canopy requirement is 20 per cent of the site area plus 50 per cent of the area of existing canopy cover that exceeds 20 per cent. |

*Example:* *If the site area is 2000 square metres and the existing total canopy cover within the site is 30 per cent of the site area, the required total canopy cover is 25 per cent (20% + [(0.5 x (30% -20%)] = 25%).*

The total canopy cover required by Table 1 includes:

- The total canopy cover of an existing canopy tree, whether or not the canopy cover is wholly contained within the boundaries of the site.
- The canopy cover within the boundaries of the site of a new canopy tree and any part of the canopy cover overhanging land in a public road or public open space.
- The canopy cover of an existing canopy tree and a new canopy tree that extends below, or overhangs, an existing or proposed building located on the site.
- Any overlapping canopy cover of an existing canopy tree or a new canopy tree provided that the overlapping canopy cover is only counted once.

At least one existing canopy tree or new canopy tree is to be located within the front setback. This does not apply if it is proposed to retain one existing canopy tree that meets the minimum total canopy cover requirement and that tree is not located in the front setback.

Each new canopy tree should be planted in either deep soil or a planter that meets the following requirements:

- Deep soil must be at least the area and plan dimension specified in Columns 2 and 5, respectively, of Table 2 corresponding to the tree's expected canopy diameter at maturity specified in Column 1.
- A planter must be at least the soil volume, soil depth, and plan dimension, specified in Columns 3, 4 and 5 of Table 2 corresponding to the tree's expected canopy diameter at maturity specified in Column 1.
- If two or more new canopy trees are to be planted in the same area of deep soil, the required area of deep soil can be reduced by the percentage specified in Column 2 of Table 3 corresponding to the number of trees specified in Column 1.

**Table 2 Deep soil and planter requirements**

| Column 1<br>Expected canopy diameter at maturity | Column 2<br>Minimum deep soil area | Column 3<br>Minimum tree in planter soil volume | Column 4<br>Minimum tree in planter soil depth | Column 5<br>Minimum deep soil or tree in planter plan dimension |
|---|---|---|---|---|
| 4 metres and less than 5 metres | 12 square metres | 8 cubic metres | 0.8 metres | 2.5 metres |
| 5 metres and less than 6 metres | 16 square metres | 12 cubic metres | 0.8 metres | 3 metres |
| 6 metres and less than 7 metres | 25 square metres | 17 cubic metres | 0.8 metres | 3.5 metres |
| 7 metres and less than 8 metres | 36 square metres | 23 cubic metres | 0.8 metres | 4 metres |
| 8 metres and less than 9 metres | 49 square metres | 30 cubic metres | 1.0 metres | 4.5 metres |
| 9 metres and less than 10 metres | 64 square metres | 38 cubic metres | 1.0 metres | 5 metres |
| 10 metres and less than 11 metres | 81 square metres | 47 cubic metres | 1.0 metres | 5.5 metres |
| 11 metres and less than 12 metres | 100 square metres | 57 cubic metres | 1.0 metres | 6 metres |
| 12 metres and less than 13 metres | 121 square metres | 68 cubic metres | 1.5 metres | 6.5 metres |
| 13 metres and less than 14 metres | 136 square metres | 80 cubic metres | 1.5 metres | 7 metres |
| 14 metres and greater | 144 square metres | 92 cubic metres | 1.5 metres | 7.5 metres |

**Table 3 Reduced deep soil area**

| Column 1<br>Number of new canopy trees to be planted in same area of deep soil | Column 2<br>Percentage reduction of area of deep soil |
|---|---|
| 2 | 5 per cent |
| 3 | 10 per cent |
| 4 | 15 per cent |
| 5 | 20 per cent |
| 6 or more | 25 per cent |

The following can encroach into the total area of deep soil:

- Impervious surfaces by no more than 10 per cent.
- Unroofed decking by no more than 50 per cent, provided the gap between the decking boards is at least:
  - 4 millimetres for decking boards not more than 90 millimetres wide.

- 5 millimetres for decking boards more than 90 millimetres wide.
- 8 millimetres if the deck is less than 400 millimetres above ground level.

- An eave not exceeding a width of 600 millimetres.

## 52.37-4 Decision exemptions

15/09/2025
VC289

Despite any other provision of this planning scheme, in determining applications to which this clause applies, the responsible authority is exempt from and is not required to consider the decision guidelines in Clause 65.

An application to which this clause applies is exempt from the requirements of:

- Section 60(1)(b), (c), (e) and (f) and (1A) of the Act.
- Section 84B(2)(b) to (ja) of the Act.

## 52.37-5 Exemption from notice and review

15/09/2025
VC289

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 52.37-6 Application requirements

15/09/2025
VC289

An application must be accompanied by the following information, as appropriate:

- A site plan, photographs or other techniques that accurately describe:
  - The location of all canopy trees and other vegetation on the site.
  - The canopy trees proposed to be removed, destroyed or lopped, including species, height and canopy diameter.
  - The location and details of existing and new canopy trees, including species, type, expected height and expected canopy diameter at maturity, soil conditions and proposed irrigation.
- An explanation of why the canopy tree is proposed to be removed, destroyed or lopped and, if applicable, an explanation of why the proposal does not meet the canopy tree requirement.
- Details of the proposed buildings or works, including plans of the development, if the canopy tree is proposed to be removed, destroyed or lopped to enable construction of a building or the construction or carrying out of works.
- An assessment of the canopy tree prepared by a suitably qualified person, if the canopy tree is proposed to be removed or lopped due to its health or stability.

If in the opinion of the responsible authority an application is not relevant to deciding the application, the responsible authority may waive or reduce the requirement.

## 52.37-7 Decision guidelines

24/09/2026
VC315

Before deciding on an application the responsible authority must consider, as appropriate:

### GENERAL

- The purpose of the clause 52.37.
- The extent to which the existing and new canopy trees contribute to a greener environment and reduce urban heat.
- The existing, proposed or likely future development of the site and adjacent land.
- The species, type and growth characteristics of existing and new canopy trees.

- Whether existing or new canopy tree will adversely impact or be impacted by pedestrian and vehicle access to the site, easements, overhead power cables, buried infrastructure such as sewer pipes, building foundations and other structures.
- Any physical constraints, such as topography, soil and drainage conditions which may prevent the planting or growth of the required number of trees.
- The impact of existing or new canopy trees on solar access to windows on the site and any existing solar energy system.
- If the site is in a designated bushfire prone area as determined under section 192A of the *Building Act 1993*, the need to create a defendable space to reduce the risk of bushfire to life and property.

### REMOVAL OF CANOPY TREES

- The health and stability of the canopy tree proposed to be removed.
- Whether the canopy tree is causing, or at risk of causing, damage to an existing building, works or infrastructure.
- The number, size and location of the canopy trees to be retained on the site.
- If the removal of the canopy tree is associated with the development of the site, whether the proposed development has been sited or designed to minimise the impact on canopy trees.
- The cumulative impact of reducing existing canopy trees, if canopy trees on the site have been removed, destroyed or lopped within the past 12 months.

### NEW CANOPY TREES

- The suitability of the proposed deep soil areas or planter soil volume or depth. A deep soil area may be shared with other canopy trees and other vegetation where it does not affect the viability of the canopy tree growth.
- Whether the species of the canopy tree is suited to the soil conditions of the site.
- Whether landscaping or design measures are required to provide structural protection of buildings.
- The suitability of providing deep soil area within an easement on the subject land.

## 52.37-8 Table of exemptions

24/09/2026
VC315

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Dead canopy tree** | A canopy tree that is dead. |
| **Emergency works** | A canopy tree that is to be removed, destroyed or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property.<br>Only that part of the canopy tree that presents the immediate risk may be removed, destroyed or lopped under this exemption. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Extractive industry** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to carry out the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuel break or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ the making of a strategic fuel break up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuel break plan approved by the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the Conservation, Forests and Lands Act 1987);<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the Fire Rescue Victoria Act 1958;<br>– section 65 of the Forests Act 1958; or<br>– section 41 of the Country Fire Authority Act 1958; or<br>▪ keeping a canopy tree clear of, or minimising risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the Electricity Safety Act 1998;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by, or on behalf of that authority, in accordance with the written agreement of the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the Conservation, Forests and Lands Act 1987 ). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the Road Management Act 2004. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | **Note:**<br>Additional permit exemptions for bushfire protection are provided at Clause 52.12. |
| **Geothermal energy exploration and extraction** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Greenhouse gas sequestration and exploration** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management and directions notice** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Lopping and pruning for maintenance** | Lopping or pruning a canopy tree, for maintenance only, provided no more than 1/3 of the foliage of the tree is lopped or pruned.<br>This exemption does not apply to:<br>▪ the pruning or lopping of the trunk of a canopy tree;<br>▪ pruning or lopping that would reduce the height of the tree to less than 5 metres or the canopy diameter of the tree to less than 4 metres. |
| **Mineral exploration and extraction** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the Mineral Resources (Sustainable Development) Act 1990:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990; or<br>▪ in accordance with a work plan approved under Part 3 of the Mineral Resources (Sustainable Development) Act 1990. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | **Note:**<br>Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of a native tree that may be removed as part of low impact exploration. |
| **Noxious and environmental weeds** | A canopy tree that is identified as:<br>▪ a noxious weed in a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (Cuscuta australis); or<br>▪ an environmental weed as determined by the responsible authority. |
| **Precinct Structure Plans** | A canopy tree that is to be removed, destroyed or lopped where an approved precinct structure plan is incorporated into the scheme and applies to the land. |
| **Public land manager** | A canopy tree that is to be removed, destroyed or lopped by or on behalf of a public land manager. |
| **Railways** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road. |
| **Traditional owners** | A canopy tree that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resources agreement under Part 6 of the Traditional Owner Settlement Act 2010; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional Owners Settlement Amendment Act in 2016 (1 May 2017)*. |
| **Transport system** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria, a public authority or a municipal council to construct or maintain the transport system. |

## 52.37-9 Transitional provisions

24/09/2026
VC315

The requirements of clause 52.37 do not apply to:

- The removal, destruction or lopping of a canopy tree associated with the construction of a building or the construction or carrying out of works in accordance with a building permit that was issued either:
  - before the approval date of Amendment VC289; or
  - within 12 months after the approval date of Amendment VC289 and either:
    - a relevant building surveyor (within the meaning of the *Building Act 1993*) was appointed to issue the building permit before the approval date of Amendment VC289; or
    - a relevant building surveyor (within the meaning of the *Building Act 1993*) is satisfied, and certifies in writing, that substantial progress was made on the design proposal before the approval date of Amendment VC289.
- The removal, destruction or lopping of a canopy tree associated with the construction of a building or the construction or carrying out works in accordance with a permit granted before the approval date of Amendment VC289.
- The removal, destruction or lopping of a canopy tree associated with the construction of a building or the construction or carrying out works in accordance with a permit if the application for that permit was made before the approval date of Amendment VC289.
- The removal, destruction or lopping of a canopy tree in accordance with a permit granted under another provision of this planning scheme before the approval date of Amendment VC289.
- The removal, destruction or lopping of a canopy tree on land in a Development Plan Overlay if a development plan was prepared to the satisfaction of the responsible authority under clause 43.04 before the approval date of Amendment VC289 and a permit is not required to remove, destroy or lop the tree under another provision of this planning scheme.
- The removal, destruction or lopping of a canopy tree on land included in an Incorporated Plan Overlay before the approval date of Amendment VC289 and a permit is not required to remove, destroy or lop the tree under another provision of this planning scheme.

Clause 52.37 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

# 53 GENERAL REQUIREMENTS AND PERFORMANCE STANDARDS

31/07/2018
VC148

## 53.01 PUBLIC OPEN SPACE CONTRIBUTION AND SUBDIVISION

25/02/2025
VC257

A person who proposes to subdivide land must make a contribution to the council for public open space in an amount specified in the schedule to this clause (being a percentage of the land intended to be used for residential, industrial or commercial purposes, or a percentage of the site value of such land, or a combination of both). If no amount is specified, a contribution for public open space may still be required under section 18 of the *Subdivision Act 1988*.

This requirement does not apply if a public open space contribution requirement is specified in a schedule to the Built Form Overlay.

### 53.01-1 Exemption from public open space requirement specified in the scheme

31/07/2018
VC148

A subdivision is exempt from a public open space requirement specified in this scheme if:

- It is one of the following classes of subdivision:
  - Class 1: The subdivision of a building used for residential purposes provided each lot contains part of the building. The building must have been constructed or used for residential purposes immediately before 30 October 1989 or a planning permit must have been issued for the building to be constructed or used for residential purposes immediately before that date.
  - Class 2: The subdivision of a commercial or industrial building provided each lot contains part of the building.
- It is for the purpose of excising land to be transferred to a public authority, council or a Minister for a utility installation.
- It subdivides land into two lots and the council considers it unlikely that each lot will be further subdivided.

### 53.01-2 Exemption from public open space requirement under section 18(8)(a) of the Subdivision Act 1988

31/07/2018
VC148

For the purposes of section 18(8)(a) of the *Subdivision Act 1988*, the following classes of subdivision are exempt from the public open space requirement:

- Class 1: The subdivision of a building used for residential purposes provided each lot contains part of the building. The building must have been constructed or used for residential purposes immediately before 30 October 1989 or a planning permit must have been issued for the building to be constructed or used for residential purposes immediately before that date.
- Class 2: The subdivision of a commercial or industrial building provided each lot contains part of the building.

*Note: Check section 18A of the Subdivision Act 1988 for other requirements that apply to a public open space requirement specified in the planning scheme.*

31/07/2018
VC148

# SCHEDULE TO CLAUSE 53.01 PUBLIC OPEN SPACE CONTRIBUTION AND SUBDIVISION

## 1.0

18/11/2022
C238card

## Subdivision and public open space contribution

| Type or location of subdivision | Amount of contribution for public open space |
|---|---|
| Subdivision of land for urban residential purposes. | 8 per cent |
| Land shown as Urban Growth Zone 3 and Urban Growth Zone 4 on the planning scheme maps | 5.5 percent<br>Land and/or cash contribution requirements must be in accordance with Section 4.5.4 of the *Officer Precinct Structure Plan (September 2011)*. |
| Land shown as DCPO5 Schedule 5 to Clause 45.06 Development Contributions Plan Overlay on the planning scheme maps | To be provided in accordance with the *Glismann Road Development Contributions Plan (Urban Enterprise, May 2022)* |

# 53.02 BUSHFIRE PLANNING

31/07/2018
VC148

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To ensure that the development of land prioritises the protection of human life and strengthens community resilience to bushfire.

To ensure that the location, design and construction of development appropriately responds to the bushfire hazard.

To ensure development is only permitted where the risk to life, property and community infrastructure from bushfire can be reduced to an acceptable level.

To specify location, design and construction measures for a single dwelling that reduces the bushfire risk to life and property to an acceptable level.

## 53.02-1 Application

05/05/2026
VC248

This clause applies to the following types of applications:

- An application under clause 44.06 (Bushfire Management Overlay), other than an application that meets all of the applicable requirements specified in a schedule to that clause.
- An application under any provision of this planning scheme to subdivide land in a bushfire prone area that is not in a Bushfire Management Overlay.
- An application under any provision of this planning scheme to construct a building or construct or carry out works associated with the use of land for accommodation, education centre, hospital, indoor recreation facility, major sports and recreation facility or place of assembly in a bushfire prone area that is not in a Bushfire Management Overlay.

The provisions of this clause apply to an application specified above, in the manner set out in the following table.

| Type of application | Applicable provisions |
|---|---|
| An application under clause 44.06 to construct a single dwelling or construct or carry out works associated with a single dwelling if all of the following requirements are met:<br>▪ The land is zoned Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Urban Growth Zone, Low Density Residential Zone, Township Zone or Rural Living Zone.<br>▪ There is only one dwelling on the lot.<br>▪ The application meets all of the approved measures contained in clause 53.02-3. | Clause 53.02-3 |
| An application under clause 44.06 to construct a non-habitable outbuilding ancillary to a dwelling that meets all of the requirements specified in Table 5.<br>*Note: The objectives or measures specified for other kinds of applications under clause 53.02 do not apply to this kind of application.* | Clause 53.02-5 - Table 5 |
| All other applications under clause 44.06 to construct a building or construct or carry out works. | Clause 53.02-4.1<br>Clause 53.02-4.2<br>Clause 53.02-4.3<br>Clause 53.02-4.5<br>Clause 53.02-4.6 |
| An application under clause 44.06 to subdivide land. | Clause 53.02-4.4<br>Clause 53.02-4.6 |
| An application to subdivide land, or to construct a building or construct or carry out works associated with the use of land for accommodation, education centre, hospital, indoor recreation facility, major sports and recreation facility or a place of assembly, in a bushfire prone area that is not in a Bushfire Management Overlay. | Clause 53.02-6 |

If an applicable provision specified in the table above refers to another provision, that provision also applies.

If another provision of this planning scheme applies, or requires compliances with, a provision in clause 53.02, including in relation to an application specified above, the provision applies as specified in that other provision.

## 53.02-2 Operation

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The provisions of clauses 53.02-3 and 53.02-4 contain:

- Objectives. An objective describes the outcome that must be achieved in a completed development.
- Approved measures (AM). An approved measure meets the objective.

- Alternative measures (AltM). An alternative measure may be considered where the responsible authority is satisfied that the objective can be met. The responsible authority may consider other unspecified alternative measures. Alternative measures do not apply to an application under clause 53.02-3.
- Decision guidelines. The decision guidelines set out the matters that the responsible authority must consider before deciding on an application, including whether any proposed alternative measure is appropriate.

A schedule to clause 44.06 may specify substitute approved measures, additional alternative measures and additional or substitute decision guidelines.

A substitute approved measure specified in a schedule to clause 44.06 substitutes the applicable approved measure contained in this clause.

## 53.02-3 Dwellings in existing settlements – Bushfire protection objective

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To specify bushfire design and construction measures for a single dwelling or alteration and extension to an existing dwelling that reduces the risk to life and property to an acceptable level.

### Approved measures

| Measure | Requirement |
|---|---|
| **AM 1.1** | A building is sited to ensure the site best achieves the following:<br>▪ The maximum separation distance between the building and the bushfire hazard.<br>▪ The building is close to a public road.<br>▪ Access can be provided to the building for emergency service vehicles. |
| **AM 1.2** | A building is setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 in accordance with the corresponding distances. |
| **AM 1.3** | The setback between the building and the bushfire hazard is managed as an area of defendable space in accordance with the vegetation management requirements specified at Table 4 to clause 53.02-5 for the distance that satisfies AM 1.2 and the area is capable of being maintained in accordance with these requirements.<br>If adjoining land is included in the setback, there is a reasonable assurance that the adjoining land will remain or continue to be managed in accordance with Table 4 to clause 53.02-5. |
| **AM 1.4** | A building is constructed to the bushfire attack level that corresponds to a setback that satisfies either:<br>▪ AM 1.2.<br>▪ The next lower bushfire attack level in accordance with Table 1 to clause 53.02-5 where all of the following apply:<br>– A private bushfire shelter (a Class 10c building within the meaning of the Building Regulations 2018) is constructed on the same land as the dwelling.<br>– A minimum bushfire attack level of BAL12.5 is provided in all circumstances. |
| **AM 1.5** | A building is provided with:<br>▪ A static water supply for fire fighting and property protection purposes specified in Table 2 to clause 53.02-5. The water supply may be in the same tank as other water supplies provided that a separate outlet is reserved for fire fighting water supplies.<br>▪ Vehicle access that is designed and constructed as specified in Table 3 to clause 53.02-5. |

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The bushfire hazard site assessment, bushfire management statement and bushfire management plan submitted with the application.
- Whether all of the approved measures have been incorporated into the application and can be practically implemented and maintained in conjunction with the ongoing use of the land.

## 53.02-4 Bushfire protection objectives

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### 53.02-4.1 Landscape, siting and design objectives

To ensure development is appropriate having regard to the nature of the bushfire risk arising from the surrounding landscape.

To site development to minimise the risk from bushfire.

To site development to provide safe access for vehicles, including emergency vehicles.

To ensure building design minimises vulnerability to bushfire attack.

#### Approved measures

| Measure | Requirement |
|---|---|
| **AM 2.1** | The bushfire risk to the development from the landscape beyond the site can be mitigated to an acceptable level. |
| **AM 2.2** | A building is sited to ensure the site best achieves the following:<br>▪ The maximum separation distance between the building and the bushfire hazard.<br>▪ The building is close to a public road.<br>▪ Access can be provided to the building for emergency service vehicles. |
| **AM 2.3** | A building is designed to be responsive to the landscape risk and reduce the impact of bushfire on the building. |

### 53.02-4.2 Setbacks, defendable space and construction objective

The setbacks, defendable space and building construction mitigate the effect of flame contact, radiant heat and embers on buildings.

#### Approved measures

| Measure | Requirement |
|---|---|
| **AM 3.1** | A building is setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 and one of the following distances is met, for:<br>▪ a dwelling (including an extension or alteration to a dwelling), small second dwelling, industry, office, retail premises or warehouse, either: |

| Measure | Requirement |
|---|---|
| | – Columns A, B or C.<br>– Column D if there are significant siting constraints.<br>▪ accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly, Column 0.<br>The setback is provided wholly within the title boundaries of the land. |
| **AM 3.2** | The setback between the building and the bushfire hazard is managed as an area of defendable space in accordance with the vegetation management requirements specified at Table 4 to clause 53.02-5 for the distance that satisfies AM 3.1 and the area is capable of being maintained in accordance with these requirements. |
| **AM 3.3** | A building is constructed to the bushfire attack level that corresponds to the setback which satisfies AM 3.1.<br>If the setback of more than one column in Table 1 to clause 53.02-5 applies, a building is constructed to the highest of the corresponding bushfire attack levels.<br>If a higher bushfire attack level than specified above is required to respond to clause 53.02-4.1, a building is constructed to that higher bushfire attack level. |

### Alternative measures

| Measure | Requirement |
|---|---|
| **AltM 3.4** | Adjoining land may be included within the setback where there is a reasonable assurance that the land will remain or continue to be managed in accordance with the defendable space vegetation management requirements at Table 4 to clause 53.02-5. |
| **AltM 3.5** | The setback and the bushfire attack level are determined using Method 2 of *AS3959:2018 Construction of buildings in bushfire prone areas* (Standards Australia) subject to any guidance published by the relevant fire authority. |
| **AltM 3.6** | A building used for a dwelling (including an extension or alteration to a dwelling) may provide a setback to the title boundary where it can be demonstrated that:<br>▪ The lot has access to urban, township or other areas where:<br>– Protection can be provided from the impact of extreme bushfire behaviour.<br>– Fuel is managed in a minimum fuel condition.<br>– There is sufficient distance or shielding to protect people from direct flame contact or harmful levels of radiant heat.<br>▪ A lesser setback and a higher construction standard are appropriate having regard to the bushfire hazard landscape assessment.<br>▪ The dwelling is constructed to a bushfire attack level of BAL FZ.<br>This alternative measure only applies where the requirements of AM 3.1, 3.2 and 3.3 cannot be met. |
| **AltM 3.7** | A building used for accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly may provide a setback in accordance with Table 1 at clause 53.02-5 for the distances provided at Columns A, B or C where it can be demonstrated that:<br>▪ The requirements of AM 6.1 have been satisfied. |

| Measure | Requirement |
|---|---|
| | ▪ A lesser setback and a higher construction standard are appropriate having regard to the bushfire hazard landscape assessment.<br>▪ The setback is managed as defendable space that meets the defendable space vegetation management requirements at Table 4 to clause 53.02-5 and is capable of being maintained in accordance with these requirements. |

### 53.02-4.3 Water supply and access objectives

A static water supply is provided to assist in protecting property.

Vehicle access is designed and constructed to enhance safety in the event of a bushfire.

#### Approved measures

| Measure | Requirement |
|---|---|
| **AM 4.1** | A building used for a dwelling (including an extension or alteration to a dwelling), a small second dwelling, industry, office, retail premises or warehouse is provided with:<br>▪ A static water supply for fire fighting and property protection purposes as specified at Table 2 to clause 53.02-5.<br>▪ Vehicle access that is designed and constructed as specified in Table 3 to clause 53.02-5.<br>The water supply may be in the same tank as other water supplies provided that a separate outlet is reserved for fire fighting water supplies. |
| **AM 4.2** | A building used for accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly is provided with:<br>▪ A static water supply for fire fighting and property protection purposes of 10,000 litres per 1,500 square metres of floor space up to 40,000 litres.<br>▪ Vehicle access that is designed and constructed as specified at Table 3 to clause 53.02-5.<br>▪ An integrated approach to risk management that ensures the water supply and access arrangements will be effective based on the characteristics of the likely future occupants including their age, mobility and capacity to evacuate during a bushfire emergency.<br>The water supply may be in the same tank as other water supplies provided that a separate outlet is reserved for fire fighting water supplies. |
| **AM 4.3** | All other development, other than where AM 4.1 or AM 4.2 applies, is provided with a static water supply with adequate capacity for fire fighting and property protection purposes and vehicle access in accordance with the relevant fire authority requirement. |

### 53.02-4.4 Subdivision objectives

To provide lots that are capable of being developed in accordance with the objectives of clauses 53.02-4.1, 53.02-4.2 and 53.02-4.3.

To specify at the subdivision stage bushfire protection measures to develop a lot with a single dwelling on land zoned for residential or rural residential purposes.

### Approved measures

| Measure | Requirement |
|---|---|
| **AM 5.1** | An application to subdivide land, other than where AM 5.2 applies, demonstrates that each proposed lot is capable of meeting:<br>▪ The setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 for the distances provided at Columns A, B or C.<br>▪ AM 2.1, AM 2.2 and the approved measures at clause 53.02-4.3.<br>The setback distance is capable of being managed as an area of defendable space in accordance with the defendable space vegetation management requirements specified at Table 4 and the area is capable of being maintained in accordance with these requirements. |
| **AM 5.2** | An application to subdivide land zoned for residential or rural residential purposes must be accompanied by a plan that shows:<br>▪ Each lot satisfies AM 2.1.<br>▪ A building envelope for a single dwelling on each lot that complies with AM 2.2 and is setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 for the distance provided at either:<br>– Columns A or B of Table 1 to clause 53.02-5 for a subdivision that creates 10 or more lots.<br>– Columns A, B or C of Table 1 to clause 53.02-5 for a subdivision that creates less than 10 lots.<br>▪ The bushfire attack level that corresponds to the setback in accordance with Table 1 to clause 53.02-5 is noted on the building envelope.<br>▪ Water supply and vehicle access that complies with AM 4.1.<br>The setback distance is:<br>▪ Wholly contained within the boundaries of the proposed subdivision. The setback may be shared between lots within the subdivision and may utilise communal areas, such as roads.<br>▪ Managed as an area of defendable space that meets the defendable space vegetation management requirements specified at Table 4 to clause 53.02-5 and the area is capable of being maintained in accordance with these requirements. This includes any shared or communal areas within the setback. |
| **AM 5.3** | A subdivision of land to create 10 or more lots provides a perimeter road adjoining the bushfire hazard to separate future development from the bushfire hazard and to support fire fighting. |
| **AM 5.4** | A subdivision of land manages the bushfire risk to future development from existing or proposed landscaping, public open space, conservation areas (including vegetation links and corridors) and communal areas. |
| **AM 5.5** | A subdivision of land is provided with no fuel or low fuel features such as accessways, parking areas, hardstand areas, managed open spaces at the bushfire hazard interface and is oriented to protect future buildings from being impacted by a moving bushfire front. |
| **AM 5.6** | A staged subdivision of land manages interim bushfire hazards during the construction or staging. |

**Alternative measure**

| Measure | Requirement |
|---|---|
| **AltM 5.7** | A building envelope for a subdivision that creates 10 or more lots required under AM 5.2 may show a setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 for the distances at Column C where it can be demonstrated that:<br>▪ All other requirements of AM 5.2 have been met.<br>▪ The setback is managed as an area of defendable space that meets the defendable space vegetation management requirements at Table 4 to clause 53.02-5 and the area is capable of being maintained in accordance with these requirements.<br>▪ A lesser setback and a higher construction standard are appropriate having regard to the bushfire hazard landscape assessment. |

### 53.02-4.5 Planning for vulnerable people objective

To ensure the bushfire risk associated with vulnerable people is managed effectively.

**Approved measure**

| Measure | Requirement |
|---|---|
| **AM 6.1** | An application for accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly assesses the impact of bushfire on vulnerable people and provides emergency management arrangements that respond to:<br>▪ The risk arising from AM 2.1, the protection (if any) provided by the location in the broader landscape, and the need for a response that exceeds any of the measures of this clause.<br>▪ The characteristics of the likely future occupants including their age, mobility and capacity to evacuate during a bushfire emergency.<br>▪ The intended frequency and nature of occupation, including whether vulnerable people should avoid occupying development in bushfire affected areas at certain times.<br>▪ The risk reduction provided through bushfire protection measures included within a bushfire and emergency management plan.<br>▪ The mechanisms to secure ongoing implementation of bushfire protection measures. |

### 53.02-4.6 Decision guidelines

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider:

**GENERAL**

- The Municipal Planning Strategy and the Planning Policy Framework.
- The bushfire hazard landscape assessment, the bushfire hazard site assessment, bushfire management statement and bushfire management plan submitted with the application.
- The impact of any State, regional or local bushfire management and prevention actions occurring around the site and in the wider area on the bushfire hazard and the level of risk to the proposed development.
- Whether the risk arising from the broader landscape can be mitigated to an acceptable level.

- Whether there is reliable access to areas of land where human life can be better protected from the effects of bushfire.
- The risk to property and community infrastructure from bushfire.
- Whether the proposed development meets the objectives of clause 53.02-4 regardless of other measures which may be available, including private bushfire shelters, community shelters and the presence of places of last resort.
- Whether the proposed measures can be practically implemented and maintained in conjunction with the ongoing use of the land.
- Whether the use of an alternative measure meets the relevant objective having regard to the bushfire hazard and the nature of any constraint that prevents the applicable approved measure from being implemented.
- If one or more of the objectives in clause 53.02-4 will not be achieved in the completed development, whether the development will, taking all relevant factors into account, reduce the bushfire risk to a level that warrants it proceeding.
- Whether bushfire protection measures can be implemented without unacceptable biodiversity impacts.
- Whether the water supply and access arrangements are appropriate for the bushfire risk.

**VEGETATION**

- Whether the existing and proposed vegetation, and other fuel sources, respond to the separation distance between the bushfire hazard interface and the development.
- If vegetation is proposed, if it will cause or contribute to the bushfire hazard and increase the risk to life, property, or community infrastructure.

**VULNERABLE PEOPLE**

For a building used for accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly the responsible authority must also consider:

- The capacity for vulnerable occupants to evacuate.
- Whether the water supply and access arrangements have regard to the characteristics of the vulnerable occupants.
- Whether there is reasonable assurance that the emergency management arrangements will be ongoing and protect human life.
- Whether the risk to vulnerable occupants warrants the closure of the use or development on days of elevated fire danger.
- Whether measures to shelter in place are warranted and whether the measures will protect human life.
- The net benefit provided to any existing vulnerable people.

**SUBDIVISION**

- Whether a staged subdivision manages interim bushfire hazard during the construction or staging.

## 53.02-5 Tables of bushfire planning requirements

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### Table 1 Bushfire hazard setbacks

| Slope | Vegetation Types | Column 0 | Column A | Column B | Column C | Column D | Column E |
|---|---|---|---|---|---|---|---|
| All upslopes and flat land (0 degrees) | Forest | 60 | 48 | 35 | 25 | 19 | < 19 |
| | Woodland | 40 | 33 | 24 | 16 | 12 | < 12 |
| | Scrub | 35 | 27 | 19 | 13 | 10 | < 10 |
| | Shrubland | 25 | 19 | 13 | 9 | 7 | < 7 |
| | Mallee/ Mulga | 23 | 17 | 12 | 8 | 6 | < 6 |
| | Rainforest | 30 | 23 | 16 | 11 | 8 | < 8 |
| | Grassland | 35 | 19 | 13 | 9 | 6 | < 6 |
| Downslope >0 to 5 degrees | Forest | 70 | 57 | 43 | 32 | 24 | < 24 |
| | Woodland | 50 | 41 | 29 | 21 | 15 | < 15 |
| | Scrub | 40 | 31 | 22 | 15 | 11 | < 11 |
| | Shrubland | 28 | 22 | 15 | 10 | 7 | < 7 |
| | Mallee/ Mulga | 26 | 20 | 13 | 9 | 7 | < 7 |
| | Rainforest | 36 | 29 | 20 | 14 | 10 | < 10 |
| | Grassland | 40 | 22 | 15 | 10 | 7 | < 7 |
| Downslope >5 to 10 degrees | Forest | 85 | 69 | 53 | 39 | 31 | < 31 |
| | Woodland | 62 | 50 | 37 | 26 | 20 | < 20 |
| | Scrub | 45 | 35 | 24 | 17 | 12 | < 12 |
| | Shrubland | 32 | 25 | 17 | 11 | 8 | < 8 |
| | Mallee/ Mulga | 30 | 23 | 15 | 10 | 7 | < 7 |
| | Rainforest | 46 | 36 | 26 | 18 | 13 | < 13 |
| | Grassland | 45 | 25 | 17 | 11 | 8 | < 8 |
| Downslope >10 to 15 degrees | Forest | 105 | 82 | 64 | 49 | 39 | < 39 |
| | Woodland | 75 | 60 | 45 | 33 | 25 | < 25 |
| | Scrub | 50 | 39 | 28 | 19 | 14 | < 14 |
| | Shrubland | 36 | 28 | 19 | 13 | 9 | < 9 |
| | Mallee/ Mulga | 35 | 26 | 18 | 11 | 8 | < 8 |
| | Rainforest | 60 | 45 | 33 | 23 | 17 | < 17 |
| | Grassland | 50 | 28 | 20 | 13 | 9 | < 9 |
| Downslope >15 to 20 degrees | Forest | 125 | 98 | 78 | 61 | 50 | < 50 |
| | Woodland | 95 | 73 | 56 | 41 | 32 | < 32 |
| | Scrub | 55 | 43 | 31 | 21 | 15 | < 15 |
| | Shrubland | 41 | 31 | 22 | 15 | 10 | < 10 |

| Slope | Vegetation Types | Column 0 | Column A | Column B | Column C | Column D | Column E |
|---|---|---|---|---|---|---|---|
| | Mallee/ Mulga | 40 | 29 | 20 | 13 | 9 | < 9 |
| | Rainforest | 70 | 56 | 42 | 29 | 22 | < 22 |
| | Grassland | 55 | 32 | 23 | 15 | 11 | < 11 |
| | | **BAL 12.5** | **BAL 12.5** | **BAL 19** | **BAL 29** | **BAL 40** | **BAL FZ** |
| Downslope >20 degrees | All vegetation | The setback and the bushfire attack level is determined using Method 2 of AS3959:2018 *Construction of buildings in bushfire prone areas* (*Standards Australia*) subject to any guidance published by the relevant fire authority. | | | | | |
| All slopes | Low threat vegetation | A setback is provided for a distance of 50 metres, or the property boundary whichever is the lesser, for buildings constructed to all bushfire attack levels. The minimum construction standard is BAL 12.5. | | | | | |
| All slopes | Modified vegetation | A setback is to be provided for a distance of 50 metres, or the property boundary whichever is the lesser, for buildings constructed to all bushfire attack levels. The minimum construction standard is BAL 29. | | | | | |

*Table 1 notes*

1. *The setback is measured from the building façade and is managed or meets the requirements of Table 4 to clause 53.02-5.*
2. *Slope and vegetation type are determined through the bushfire hazard site assessment.*
3. *Modified vegetation is vegetation that does not fit into the vegetation classifications in AS3959:2018 Construction of buildings in bushfire prone areas because it:*
   - *Has been modified, altered or is managed due to urban development, or gardening,*
   - *Has different fuel loads from those assumed in the standard,*
   - *Has limited or no understorey vegetation, or*
   - *Is not low-threat or low-risk vegetation as defined in the standard.*

**Table 2 Water supply capacity, fittings and access requirements**

| Lot sizes (square meters) | Hydrant available | Capacity (litres) | Fire authority fittings and access required |
|---|---|---|---|
| Less than 500 | Not applicable | 2,500 | No |
| 500-1,500 | Yes | 5,000 | No |
| 500-1,500 | No | 10,000 | Yes |
| 1,501 and above | Not applicable | 10,000 | Yes |

*Table 2 note* *A hydrant is available if it is located within 120 metres of the rear of the building.*

**Table 2 Water supply fire authority requirements**

Unless otherwise agreed in writing by the relevant fire authority, the water supply must:

- Be stored in an above ground water tank constructed of concrete or metal.
- Have all fixed above ground water pipes and fittings required for firefighting purposes made of corrosive resistant metal.
- Include a separate outlet for occupant use.

Where a 10,000 litre water supply is required, fire authority fittings and access must be provided as follows:

- Be readily identifiable from the building or appropriate identification signs to the satisfaction of the relevant fire authority.
- Be located within 60 metres of the outer edge of the approved building.
- The outlet/s of the water tank must be within 4 metres of the accessway and unobstructed.
- Incorporate a separate ball or gate valve (British Standard Pipe (BSP 65 millimetre) and coupling (64 millimetre Country Fire Authority (CFA) 3 thread per inch male fitting).
- Any pipework and fittings must be a minimum of 65 millimetres (excluding the CFA coupling).

**Table 3 Vehicle access design and construction requirements**

| Access | Design and construction |
|---|---|
| Length of access is less than 30 metres and no fire authority access is required at Table 2. | Not required |
| Length of access is one of the following:<br>▪ less than 30 metres and fire authority access is required at Table 2.<br>▪ greater than 30 metres. | The following design and construction requirements apply:<br>▪ All-weather construction.<br>▪ A load limit of at least 15 tonnes.<br>▪ Provide a minimum trafficable width of 3.5 metres.<br>▪ Be clear of encroachments for at least 0.5 metres on each side and at least 4 metres vertically.<br>▪ Curves must have a minimum inner radius of 10 metres.<br>▪ The average grade must be no more than 1 in 7 (14.4%) (8.1°) with a maximum grade of no more than 1 in 5 (20%) (11.3°) for no more than 50 metres.<br>▪ Dips must have no more than a 1 in 8 (12.5%) (7.1°) entry and exit angle. |
| Length of access is greater than 100 metres. | A turning area for fire fighting vehicles must be provided close to the building by one of the following:<br>▪ A turning circle with a minimum radius of eight metres.<br>▪ A driveway encircling the dwelling.<br>▪ The provision of other vehicle turning heads – such as a T or Y head – which meet the specification of Austroads Design for an 8.8 metre Service Vehicle. |
| Length of access is greater than 200 metres. | ▪ Passing bays must be provided at least every 200 metres.<br>▪ Passing bays must be a minimum of 20 metres long with a minimum trafficable width of 6 metres. |

*Table 3 note* *The length of access should be measured from a public road to either the building or the water supply outlet, whichever is longer.*

**Table 4 Defendable space vegetation management requirements**

Defendable space is provided and is managed on a continuing basis in accordance with the following requirements:

- Grass must be short cropped and maintained during the declared fire danger period.
- All leaves and vegetation debris must be removed at regular intervals during the declared fire danger period.
- Within 10 metres of a building, flammable objects must not be located close to the vulnerable parts of the building.

- Plants greater than 10 centimetres in height must not be placed within 3 metres of a window or glass feature of the building.
- Shrubs must not be located under the canopy of trees.
- Individual and clumps of shrubs must not exceed 5 square metres in area and must be separated by at least 5 metres.
- Trees must not overhang or touch any elements of the building.
- The canopy of trees must be separated by at least 5 metres. For a non-habitable outbuilding ancillary to a dwelling, the canopy of trees must be separated by at least 2 metres.
- There must be a clearance of at least 2 metres between the lowest tree branches and ground level.

These requirements apply unless an alternative defendable space vegetation management requirement is specified in a schedule in this planning scheme and the application meets all of the requirements of the schedule or is otherwise agreed in writing to the satisfaction of the relevant fire authority.

**Table 5 Non-habitable outbuilding requirements**

The outbuilding must meet all of the following requirements:

- The outbuilding is non-habitable and ancillary to a dwelling.
- The defendable space vegetation management requirements, in accordance with Table 4 to clause 53.02-5, must be provided for 10 metres around the outbuilding or to the title boundary, whichever is the lesser distance.
- If the outbuilding is located within 10 metres of a dwelling:
  - The proposed outbuilding is separated from the adjacent building by a wall that extends to the underside of a non-combustible roof covering and either:
    - has a Fire Resistance Level (FRL) of not less than 60/60/60 for loadbearing walls and -/60/60 for non-load bearing walls when tested from the attached structure side.
    - is of masonry, earth wall or masonry-veneer construction with the masonry leaf of not less than 90 millimetres in thickness.
  - Any openings in the wall shall be protected in accordance with the following:
    i. Doorways – by FRL -/60/30 self-closing fire doors.
    ii. Windows – by FRL -/60/- fire windows permanently fixed in the closed position.
    iii. Other openings – by construction with a FRL of not less than -/60/-.

*Table 5 notes*

1. *Control and construction joints, subfloor vents, weepholes and penetrations for pipes and conduits need not comply with Item iii.*
2. *Applications that meet Table 5 to clause 53.02-5 do not require referral to the relevant fire authority. Applications for non-habitable outbuildings can also use the bushfire protection measures in clause 53.02 however referral to the relevant fire authority will be required.*

## 53.02-6 Bushfire prone area decision guidelines

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Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.

- The impact of any State, regional or local bushfire management and prevention actions occurring around the site and in the wider area on the bushfire hazard and the level of risk to the proposed development.
- The risk of bushfire to people, property and community infrastructure.
- Whether the risk arising from the broader landscape can be mitigated to an acceptable level.
- Whether bushfire protection measures to address the identified bushfire risk are required and can be practically implemented, including any measure set out in clause 53.02-4.
- Whether bushfire protection measures can be implemented without unacceptable biodiversity impacts.

### Proposed vegetation

- If vegetation is proposed, whether it will cause or contribute to the bushfire hazard or increase the risk to life, property, or community infrastructure.

### Dwellings and Small Second Dwellings

- Whether a static water supply for bushfire firefighting is required having regard to the size of the lot, proximity to a hydrant and connection to reticulated water.
- If a vehicle accessway is greater than 30 metres in length or the relevant fire authority requires access to the static water supply on the land, whether the access design and construction requirements set out in Table 3 to clause 53.02-5 should be met.

### Vulnerable people

For a building used for accommodation (other than a dwelling or small second dwelling), education centre, hospital, indoor recreation facility, major sports and recreation facility or place of assembly the responsible authority must also consider:

- The capacity for vulnerable occupants to evacuate.
- Whether emergency management arrangements are provided and are sufficient for the site.
- Whether the risk to vulnerable occupants warrants the closure of the use or development on days of elevated fire danger.
- Whether measures to shelter in place are warranted and whether the measures will protect human life.
- The net benefit provided to any existing vulnerable people.

### Subdivision

- Whether each lot can achieve the setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 for the corresponding distance specified in Column C of that Table.
- Whether a staged subdivision manages interim bushfire hazard during the construction or staging.

# 53.03 RESIDENTIAL RETICULATED GAS SERVICE CONNECTION

01/01/2024
VC250

## Purpose

To prohibit residential reticulated gas connections to new dwellings, new apartment developments and new residential subdivisions.

## 53.03-1 Application

01/01/2024
VC250

This clause applies to an application for a permit under any provision of this scheme that is for or includes:

- construction of a new dwelling (other than a caretaker's house) or a new apartment development.
- the subdivision of land where the subdivision provides for or is for one or more purposes that include residential development.

This clause does not apply to an application for a permit that is solely for:

- the alteration or extension of an existing dwelling or apartment development.
- the subdivision of land or a building to create lots each containing an existing dwelling or apartment.
- the subdivision of land or a building to create lots each of which are intended to contain a dwelling or an apartment authorised by a planning permit that has been issued for the land.

## 53.03-2 Building and works requirement

01/01/2024
VC250

A permit must not be granted for construction of a new dwelling or a new apartment development that is to be connected to a reticulated gas service.

A permit granted for buildings and works in relation to an application to which this clause applies must include the following mandatory condition(s) as relevant:

For a dwelling:

*"Any new dwelling allowed by this permit must not be connected to a reticulated gas service (within the meaning of clause 53.03 of the relevant planning scheme). This condition continues to have force and effect after the development authorised by this permit has been completed."*

For an apartment development:

*"Any new apartment development allowed by this permit must not be connected to a reticulated gas service (within the meaning of clause 53.03 of the relevant planning scheme). This condition continues to have force and effect after the development authorised by this permit has been completed."*

## 53.03-3 Subdivision requirement

01/01/2024
VC250

A permit must not be granted for a subdivision that includes a lot that is to be connected to a reticulated gas service. This does not apply to:

- a lot that will not be used for, or include, a dwelling; or
- a lot that contains an existing dwelling or apartment; or
- a lot where a permit has been granted for a dwelling or apartment on the land in the lot.

A permit granted for subdivision in relation to an application to which this clause applies must include the following mandatory condition:

*"Any lot shown on the endorsed plan must not be connected to a reticulated gas service (within the meaning of clause 53.03 of the relevant planning scheme). This does not apply to:*

- *a lot that will not be used for, or include, a dwelling; or*

- *a lot that contains an existing dwelling or apartment; or*
- *a lot where a permit has been granted for a dwelling or apartment on the land in the lot.*

*This condition continues to have force and effect after a statement of compliance under the Subdivision Act 1988 has been issued and the subdivision authorised by this permit has been completed."*

## 53.03-4 Application requirements

01/01/2024
VC250

An application for a permit to which this clause applies must, in addition to those application requirements specified elsewhere in the scheme, be accompanied by details of the proposed energy provision other than a connection to a reticulated gas service, as appropriate, to the satisfaction of the responsible authority.

## 53.03-5 Transitional provisions

01/01/2024
VC250

The requirements of this clause introduced by Amendment VC250 do not apply to:

- An application lodged before the approval date of Amendment VC250.
- An application for an amendment to a permit under section 72 of the Act with respect to a permit issued in accordance with the above transitional provision.

## 53.03-6 Definitions

01/01/2024
VC250

In this clause:

**Connected to a reticulated gas service** means:

- In the case of a building, reticulated natural gas is directly supplied to the building. This does not include liquefied petroleum gas (LPG).
- In the case of a subdivision for residential purposes, reticulated natural gas is directly supplied to a lot. This does not include liquefied petroleum gas (LPG).

**New dwelling** means:

- A new building, buildings, or part of a building, constructed to be used as a dwelling (other than a caretaker's house) not including the alteration or extension of an existing dwelling.
- A new building, buildings, or part of a building, connected to an existing dwelling and constructed to be used as a separate dwelling (other than a caretaker's house), provided the use does not incorporate any part of what was the gross floor area (excluding external or party walls) of the existing dwelling.
- A new outbuilding or swimming pool associated with an existing or proposed dwelling, provided it is not within the gross floor area (excluding external or party walls) of an existing dwelling.

It does not include a new apartment development.

**New apartment development** means a new building, buildings, or part of a building, constructed to contain one or more apartments, whether or not any other use is provided for, but does not include the extension or alteration of, or the addition of new apartments to, an existing apartment development.

# 53.04 CONVENIENCE RESTAURANT AND TAKE-AWAY FOOD PREMISES

31/07/2018
VC148

## 53.04-1 Application

31/07/2018
VC148

These requirements only apply to land in a residential zone.

## 53.04-2 Decision guidelines

20/01/2022
VC205

Before deciding on an application to use land for a convenience restaurant or take-away food premises or to construct a building or construct or carry out works associated with a convenience restaurant or take-away food premises, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Any policy in this scheme relating to convenience restaurants or take-away food premises.
- Whether the location is appropriate for a convenience restaurant or take-away food premises having regard to:
  - Amenity of the neighbourhood.
  - Proximity of the land to non-residential uses and zones.
  - Effect of the use on heritage and environment features.
  - Capacity of the land to contain significant off-site effects.
  - Access to land in a Transport Zone 2 or Transport Zone 3.
  - The suitability of the land for a residential use.
- The effect on the amenity or character of the street or neighbourhood having regard to:
  - Massing and proportions of any building.
  - Ground floor height above ground level.
  - Ceiling heights.
  - Roof form and pitch.
  - Facade articulation.
  - Window and door proportions.
  - Building features including verandas, towers, eaves, parapets and decorative elements.
  - Building materials, patterns textures and colours.
- Whether the site layout and the design of buildings, noise attenuation measures, landscaping, car parking, vehicle access lanes, loading bays, rubbish bins, plant and equipment, lights, signs, drive through facilities and playgrounds are designed to prevent significant loss of amenity to adjoining land due to noise, emission of noise, emission of light or glare, loss of privacy, litter or odour.
- Whether any special measure may be necessary to protect the amenity of adjoining land in residential use, including buffer planting, noise attenuation measures and litter collection arrangements.
- The adequacy of traffic measures to:
  - Provide safe pedestrian movement.
  - Achieve safe, efficient vehicle movement on site and access to and egress from the land.

  - Avoid disruption to traffic flow on land in a Transport Zone 2 or Transport Zone 3.
  - Prevent inappropriate use of local residential streets.
- The adequacy of car parking, loading and drive through queuing spacing to accommodate customers at peak periods and employee requirements on the land.

# 53.05 FREEWAY SERVICE CENTRE

14/05/2021
VC198

## Purpose

To ensure that freeway service centres are appropriately designed and located.

To ensure that access to a freeway service centre from a freeway is designed to the requirements of the Head, Transport for Victoria.

To ensure that freeway service centres with access to a rural freeway provide only essential services and facilities which encourage drivers to stop and take an effective break at appropriate intervals in the interests of driver safety.

To ensure that any new freeway service centre meets an identifiable need to provide essential services and facilities along a freeway where those services and facilities are not readily available.

To ensure that the use of land for a freeway service centre does not adversely affect the amenity of surrounding land uses.

## 53.05-1 Requirements to be met

14/08/2023
VC236

### Facilities and services

A freeway service centre must provide only essential services and facilities. These essential services and facilities must be available at all times. Essential services and facilities that a freeway service centre must include are:

- Designated parking areas.
- Undercover fuel sales area.
- An area of not more than 240 square metres for the sale of food, drinks and other convenience goods.
- An indoor sit-down eating area.
- A safe play area for children.
- Public toilets.
- A public telephone.

A freeway service centre with access to a rural freeway must also provide local and regional tourist information.

A freeway service centre must not include:

- Mechanical repairs (other than the emergency repair of vehicles).
- Retail facilities of more than 240 square metres.
- Video hire.
- Post office services or facilities.
- Entertainment facilities, amusement machines or gaming machines.
- The sale, distribution or consumption of alcohol unless associated with a residential hotel/motel.
- Car or truck wash facilities.

A freeway service centre with access to a rural freeway must not include overnight accommodation (other than for a caretaker or site manager).

### Access to freeway service centres

No vehicular access between a freeway service centre with access to a metropolitan freeway and the local road network may be permitted.

An application to use or develop land for a freeway service centre must be referred under section 55 of the Act to the person or body specified as the referral authority in Clause 66.02.

A permit must not be granted for a freeway service centre until approval for access to the freeway has been given by the person or body specified as the referral authority in Clause 66.02.

In accordance with section 62(1)(a) of the Act, a permit granted for a freeway service centre must include the condition:

"This permit will expire if one of the following circumstances applies:

- The development is not commenced within two years of the date of this permit.
- The development is not completed within four years of the date of this permit.

The responsible authority may extend the periods referred to if a request is made in writing before the permit expires or within three months afterwards."

#### Metropolitan freeway service centre adjoining a residential zone

If the site for a freeway service centre with access to a metropolitan freeway adjoins a residential zone:

- A landscape buffer at least 3 metres wide must be provided on the site along the common boundary and must be planted and maintained to the satisfaction of the responsible authority.
- Except for the landscape buffer strip, all of the site not occupied by buildings must be sealed to prevent dust.
- External lights must be directed away from the residential zone to prevent light spill and glare.

## 53.05-2 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The Freeway Service Centres Design Guidelines, May 1997.

# 53.06 LIVE MUSIC ENTERTAINMENT VENUES

26/10/2026
VC305

## Purpose

To recognise that live music is an important part of the State's culture and economy.

To encourage the retention of existing and the development of new live music entertainment venues.

To protect live music entertainment venues from the encroachment of noise sensitive residential uses.

To ensure that noise sensitive residential uses are satisfactorily protected from unreasonable live music noise from live music venues.

To ensure that the primary responsibility for noise attenuation rests with the agent of change.

## 53.06-1 Application

26/10/2026
VC305

This clause applies to an application under any zone of this planning scheme to use land for, or to construct a building or construct or carry out works associated with:

- A live music entertainment venue.
- A noise sensitive residential use that is within 50 metres of a live music entertainment venue.
- A noise sensitive residential use that is on land specified in clause 1.0 of the schedule to this clause.

This clause does not apply to:

- The use or development of land for a noise sensitive residential use to which clause 45.13 applies.
- The construction of a building or the construction or carrying out of works associated with an existing dwelling or existing small second dwelling.
- A noise sensitive residential use that is on land specified in clause 2.0 of the schedule to this clause.

## 53.06-2 Meaning of terms

26/10/2026
VC305

In this clause:

- ***live music entertainment venue*** means:
  - a food and drink premises, nightclub, function centre or residential hotel that includes live music entertainment; or
  - a rehearsal studio; or
  - any other venue used for the performance of music and specified in clause 3.0 of the schedule to this clause, subject to any specified condition or limitation.
- ***noise sensitive residential use*** means a community care accommodation, dwelling, residential aged care facility, residential village, retirement village, rooming house or small second dwelling.

## 53.06-3 Requirements to be met

26/10/2026
VC305

A live music entertainment venue must be designed, constructed and managed to comply with the applicable noise limits specified in the Environment Protection Regulations under the *Environment Protection Act 2017* and the incorporated *Noise limit and assessment protocol for the control of noise from commercial, industrial and trade premises and entertainment venues* (Publication 1826.5, Environment Protection Authority Victoria, September 2025) to protect a noise sensitive residential use within 50 metres of the venue.

A noise sensitive residential use must be designed and constructed to include acoustic attenuation measures that will reduce noise levels from any:

- Indoor live music entertainment venue to below the noise limits specified in the Environment Protection Regulations under the *Environment Protection Act 2017* and the incorporated *Noise limit and assessment protocol for the control of noise from commercial, industrial and trade premises and entertainment venues* (Publication 1826.5, Environment Protection Authority Victoria, September 2025).
- Outdoor live music entertainment venue to below 45dB(A), assessed as an $L_{eq}$ over 15 minutes.

For the purpose of assessing whether the above noise standards are met, the noise measurement point may be located inside a habitable room of a noise sensitive residential use with windows and doors closed (consistent with Publication 1826.5, Environment Protection Authority Victoria, September 2025).

A permit may be granted to reduce or waive these requirements if the responsible authority is satisfied that an alternative measure meets the purpose of this clause.

## 53.06-4 Application requirements

26/10/2026
VC305

An application must be accompanied by the following information, as appropriate:

- A site analysis, including plans detailing:
  - the existing and proposed layout of the use, buildings or works, including all external windows and doors
  - the location of any doors, windows and open space areas of existing properties in close proximity to the site.
- If the application is associated with a noise sensitive residential use:
  - the location of any live music entertainment venues within 50 metres of the site
  - the days and hours of operation of identified venues.
- If the application is associated with a live music entertainment venue:
  - the location of any noise sensitive residential uses within 50 metres of the site
  - the days and hours of operation of that venue
  - the times during which live music will be performed.
- Details of existing and proposed acoustic attenuation measures.
- An assessment of the impact of the proposal on the functioning of live music entertainment venues.

If in the opinion of the responsible authority an application requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 53.06-5 Decision guidelines

26/10/2026
VC305

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The extent to which the siting, layout, design and construction minimise the potential for noise impacts.
- Whether noise sensitive residential uses will be satisfactorily protected from unreasonable live music noise from live music entertainment venues.
- Whether the proposal adversely affects any existing uses.

- The cultural, social and economic significance of an existing live music entertainment venue.
- The impact of the proposal on the operation of live music entertainment venues.

18/02/2021
GC175

# SCHEDULE TO CLAUSE 53.06 LIVE MUSIC ENTERTAINMENT VENUES

## 1.0 Land to which clause 53.06 does apply

26/10/2026
VC305

| Name of land | Description of land |
|---|---|
| None specified | |

## 2.0 Land to which clause 53.06 does not apply

26/10/2026
VC305

| Name of land | Description of land |
|---|---|
| None specified | |

## 3.0 Other venues to which clause 53.06 applies

26/10/2026
VC305

| Name of venue | Address | Condition or limitation |
|---|---|---|
| None specified | | |

# 53.07 SHIPPING CONTAINER STORAGE

31/07/2018
VC148

## Application

This clause applies to all land except land which is in a Special Use Zone established for the purpose of port and port-related activities, or is in a Port Zone.

## 53.07-1 Decision guidelines

20/01/2022
VC205

Before deciding on an application to use land for shipping container storage, or construct a building or construct or carry out works associated with shipping container storage, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Whether the location is appropriate for shipping container storage having regard to:
  - The zoning of the land.
  - Amenity of the neighbourhood.
  - Proximity of the land to residential uses and zones or other sensitive uses.
  - Access to a road in a Transport Zone 2 or a Transport Zone 3.
  - Access to rail facilities.
  - Capacity and suitability of the road network to accommodate the type and volume of vehicle traffic generated by the use.
  - Capacity of the site to accommodate the proposed use.
- The effect on the environment and the amenity and character of the neighbourhood having regard to:
  - Existing and planned use of land in the neighbourhood.
  - Location, height and setback of shipping container stacks, particularly near road boundaries.
  - Location of facilities for the cleaning, repair, servicing, painting or fumigation of shipping containers.
  - Hours of operation.
  - Design, construction and maintenance of external storage and vehicle movement areas.
  - Treatment and disposal of wastewater.
- Whether the site layout and the design of buildings, landscaping, vehicle access lanes, loading bays, wash bays, lighting and fencing are designed to avoid or minimise any significant off-site impacts due to the emission of noise, light, glare, dust, fumes or drainage.
- Whether any special measure may be necessary to protect the environment and the amenity of nearby sensitive uses, including noise attenuation measures, dust minimisation measures and waste storage arrangements.
- The need for landscaping and fencing to screen or soften the appearance of shipping container storage areas, particularly near road boundaries.
- The adequacy and effect of the landscaping on the appearance of the site, taking into account the streetscape character, the size of the site, and the height, mass and scale of shipping container stacks on the site.
- The adequacy of traffic measures to:

  - Achieve safe, efficient vehicle movement on site and access to and egress from the land.
  - Prevent inappropriate use of local residential streets.
- The adequacy of truck parking, loading and truck queuing spacing to accommodate truck movements at peak periods and employee requirements on the land.

# 53.08 CATTLE FEEDLOT

31/07/2018
VC148

## Purpose

To facilitate the establishment and expansion of cattle feedlots in Victoria in a manner which is consistent with orderly and proper planning and the protection of the environment.

## 53.08-1 Requirements to be met

31/07/2018
VC148

All use and development of cattle feedlots must comply with the Victorian Code for Cattle Feedlots - August 1995.

The Code must be complied with to the satisfaction of the responsible authority.

# 53.09 POULTRY FARM

11/04/2019
VC156

## Purpose

To facilitate the establishment and expansion of poultry farms, including broiler farms, in a manner that is consistent with orderly and proper planning and the protection of the environment.

## 53.09-1 Application

21/09/2018
VC150

This clause applies to permit applications to use land or construct a building or construct or carry out works for a poultry farm, including to increase the farm capacity of an existing poultry farm.

## 53.09-2 Permit not required – Outdoor range area for existing broiler farm

21/09/2018
VC150

Any requirement of this scheme relating to the use of land or to the construction of a building or the construction or carrying out of works does not apply to the use and development of land for an outdoor range area in association with an existing broiler farm provided the following requirements are met:

- There are no more than 150,000 chickens permitted on the land at any time.
- The number of chickens on the land is not increased.

This exemption does not apply to the requirements of any overlay that applies to the land.

## 53.09-3 Requirement – Broiler farm

21/09/2018
VC150

An application to use land or construct a building or construct or carry out works for a broiler farm must comply with the *Victorian Code for Broiler Farms 2009 (plus 2018 amendments)*.

This requirement does not apply if:

- There are no more than 10,000 chickens permitted on the land at any time; or
- The number of chickens on the land is not increased.

## 53.09-4 Exemption from notice and review

11/04/2019
VC156

The following applications are exempt from the notice requirements of section 52 (1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act:

- An application to use land or construct a building or construct or carry out works for a new broiler farm, or to increase the farm capacity of an existing broiler farm, if the application meets the requirements of a "Class A Broiler Farm", as specified in the *Victorian Code for Broiler Farms 2009 (plus 2018 amendments)*.
- An application to use land or construct a building or construct or carry out works for a poultry farm for the production of chicken meat or chicken eggs, if the application meets the following requirements:
  - The number of chickens does not exceed 5,000 for egg production or 10,000 for meat production.
  - The outdoor stocking density does not exceed 1,500 chickens per hectare.
  - A Nutrient Management Plan demonstrates chickens are kept outdoors on paddocks with:
    - A minimum of 50% ground cover; and
    - Mobile housing and feeding infrastructure that is relocated at least every two weeks.
  - An area used as a poultry range, including associated buildings and works, meets the setback requirements specified in Table 1.

**Table 1 Minimum setbacks**

| Chicken numbers | Minimum distance to a building used for a sensitive use (accommodation, child care centre, education centre and hospital) | Minimum distance to land in a residential zone |
|---|---|---|
| 1,000 chickens or less | 50 metres | 200 metres |
| More than 1,000 chickens | 100 metres | 400 metres |

## 53.09-5 Notice of an application

21/09/2018
VC150

Notice of an application to use or develop land to establish a new broiler farm, or to increase the farm capacity of an existing broiler farm, that meets the requirements of a Special Class Broiler Farm or Farm Cluster as specified in the *Victorian Code for Broiler Farms 2009 (plus 2018 amendments)*, must be given under Section 52(1)(c) of the Act to the person or body specified as a person or body to be notified in Clause 66.05.

## 53.09-6 Decision guidelines

21/09/2018
VC150

Before deciding on an application to use land or construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The purpose of the relevant zone.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.
- The need to protect amenity of existing uses on adjoining land.
- The impact of the use of the land on the surrounding area, including from the emission of noise, light, vibration, odour, dust, or waste products.
- The impact of the proposal on any wetlands, waterways or water bodies.
- The likely environmental impact on the natural physical features and biodiversity of the land, including consideration of any Nutrient Management Plan submitted with the application.
- Whether the development will support and enhance agricultural production.
- The requirements of the *Victorian Low Density Mobile Outdoor Poultry Farm Planning Permit Guidelines* (June 2018).

# 53.10 USES AND ACTIVITIES WITH POTENTIAL ADVERSE IMPACTS

26/05/2020
VC175

## Purpose

To identify those types of uses and activities, which if not appropriately designed and located, may cause offence or unacceptable risk to the neighbourhood.

## 53.10-1 Threshold distance

26/09/2023
VC246

The threshold distance referred to in the table to this clause is the shortest distance from any part of the land to:

- land (not a road) in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone; or
- land used for a hospital, an education centre or a corrective institution; or
- land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution.

An application to use land for an industry, utility installation or warehouse for a purpose listed in the table to this clause must be referred to the Environment Protection Authority under section 55 of the Act if the threshold distance is not to be met or no threshold distance is specified.

**Table to Clause 53.10-1**

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| **Basic metal products** | |
| Iron or steel production: | |
| ▪ up to 1,000,000 tonnes per year | 500 |
| ▪ exceeding 1,000,000 tonnes per year | 1,000 |
| Non-ferrous metal production: | |
| ▪ up to 100 tonnes per year | 100 |
| ▪ between 100 and 2,000 tonnes per year | 300 |
| ▪ exceeding 2,000 tonnes per year | 500 |
| ▪ aluminium by electrolysis | 2,000 |
| **Chemical, petroleum and coal products** | |
| Ammunition, explosives and fireworks production | 1,000 |
| Biocides production and storage | 1,000 |
| Briquette production | 300 |
| Chemical product manufacture other than listed within this group | 300 |
| Coke processing | 500 |
| Cosmetics and toiletries production | 100 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| Fertiliser production | 1,000 |
| Gasworks | 1,000 |
| Industrial gases production | 1,000 |
| Organic and inorganic industrial chemicals production other than those listed within this group | 2,000 |
| Other petroleum or coal production | 500 |
| Paints and inks manufacture, blending and mixing exceeding 2,000 tonnes per year | 500 |
| Petroleum refinery | 2,000 |
| Pharmaceutical and veterinary chemical production | 1,000 |
| Polyester and synthetic resins production, exceeding 2,000 tonnes per year | 1,000 |
| Rubber production: | |
| ▪ synthetic rubber, exceeding 2,000 tonnes per year | 1,000 |
| ▪ using either organic solvents or carbon black | 300 |
| ▪ using sulphur | 1,000 |
| Soap and detergent production | 500 |
| **Fabricated metal products** | |
| Abrasive blast cleaning | 500 |
| Boiler maker | 100 |
| Metal coating and finishing | 500 |
| Structural or sheet metal production | 500 |
| **Food and beverages** | |
| Alcoholic and non-alcoholic beverage production, exceeding 5,000 litres per day | 500 |
| Animal processing | 1,000 |
| Bakery (other than one ancillary to a shop): | |
| ▪ exceeding 200 tonnes per year | 100 |
| ▪ night-time operations, exceeding 200 tonnes per year | 500 |
| Flour mill, exceeding 200 tonnes per year | 250 |
| Food production other than those listed within this group: | |
| ▪ exceeding 200 tonnes per year | 250 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| ▪ including frying, drying or roasting, exceeding 200 tonnes per year | 500 |
| Grain and stockfeed mill and handling facility | |
| ▪ with meat meals or tallow | 500 |
| ▪ no meat meals or tallow | 250 |
| Maltworks, exceeding 200 tonnes per year | 500 |
| Manufacture of milk products, exceeding 200 tonnes per year | 300 |
| Milk depot | 100 |
| Pet food production | 500 |
| Production of vegetable oils and animal fats using solvents, exceeding 200 tonnes per year | 500 |
| Seafood processor, exceeding 200 tonnes per year | 500 |
| Smallgoods production: | |
| ▪ exceeding 200 tonnes per year | 100 |
| ▪ including smoking and drying, exceeding 200 tonnes per year | 500 |
| **Miscellaneous manufacturing** | |
| Printing and coating works with heated curing ovens | 500 |
| Rendering and casings works | 1,000 |
| **Non-metallic mineral products** | |
| Bitumen batching plant | 1,000 |
| Cement production in amounts: | |
| ▪ up to 5,000 tonnes per year | 300 |
| ▪ between 5,000 and 150,000 tonnes per year | 500 |
| ▪ exceeding 150,000 tonnes per year | 1,000 |
| Cement, lime, clay bricks, tiles and pipe refractories, with a design production rate exceeding 10,000 tonnes per year: | 500 |
| Concrete batching plant, with a production rate exceeding 5,000 tonnes per year | 300 |
| Glass and glass production including glass wool and fibreglass | 500 |
| Plaster or plaster articles production, exceeding 5,000 tonnes per year | 200 |
| Rock wool manufacture | 500 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| Solar salt manufacture | 1,000 |
| **Other premises** | |
| Automotive body, paint and interior repair | 100 |
| Rural industry handling, processing or packing agricultural produce | 300 |
| **Paper and paper products** | |
| Paper or paper pulp production: | |
| ▪ involving combustion of sulphur or sulphur containing materials | 5,000 |
| ▪ from semi-processed materials | 100 |
| ▪ from prepared cellulose and rags | 200 |
| ▪ by other methods than above | None specified |
| **Recreational, personal and other services** | |
| Dry cleaning for commercial and institutional customers, or in bulk quantities | 100 |
| Laundry for commercial and institutional customers, or in bulk quantities | 100 |
| **Textiles** | |
| Carpet backing with latex | 500 |
| Dyeing or finishing of cotton, linen and woollen yarns and textiles | 300 |
| Leather and artificial leather goods production | 300 |
| Leather tanning and dressing: | |
| ▪ up to 250 tonnes per year | 300 |
| ▪ exceeding 250 tonnes per year | 2,000 |
| Rope, cordage and twine production | 100 |
| Treatment or production of natural and synthetic fibres and textiles | 1,000 |
| Treatment or production of textiles using carbon disulphide | 500 |
| Wool scouring | 200 |
| **Transport and storage** | |
| Bus depot | 200 |
| Depot for refuse collection vehicles | 100 |
| Storage of bulk volatile organic compounds in quantities greater than 1,000 tonnes | 1,000 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| Storage of petroleum products and crude oil in tanks exceeding 2,000 tonnes capacity: | |
| ▪ with fixed roofs | 300 |
| ▪ with floating roofs | 100 |
| Storage of wet-salted or unprocessed hides | 250 |
| **Waste, recycling and resource recovery** | |
| Chemical or oil recycling | 1,000 |
| Combustion, treatment or bio-reaction of waste to produce energy | None specified |
| Composting and other organic materials recycling | None specified |
| Container deposit scheme centre exceeding 1,000 square metres gross floor area | 200 |
| Hazardous waste storage or treatment | 1,000 |
| Landfill | None specified |
| Other recourse recovery or recycling operations | None specified |
| Soil conditioning or blending | None specified |
| Transfer station (other than Automated collection point and Container deposit scheme centre): | |
| ▪ accepting organic wastes | 500 |
| ▪ other | 200 |
| Used plastics treatment or processing | 500 |
| Waste tyre recycling and re-treading | 1,000 |
| Vehicle recycling or disposal | 500 |
| **Water and wastewater** | |
| Sewage treatment plant, exceeding a design or actual flow rate of 5,000 litres per day | None specified |
| Water treatment plant | None specified |
| **Wood, wood products and furniture** | |
| Charcoal production: | |
| ▪ by the retort process | 500 |
| ▪ other than by the retort process | 1,000 |
| Joinery | 100 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| Sawmill, wood products and furniture | 500 |
| Wood preservation plant: | |
| up to 10,000 cubic metres of timber per year | 100 |
| exceeding 10,000 cubic metres of timber per year | 300 |

# 53.11 TIMBER PRODUCTION

31/07/2018
VC148

## 53.11-1 Timber production on Crown land

31/07/2018
VC148

Any requirement of this scheme which:

- requires timber production to be conducted in a particular way
- requires that a permit be obtained to use or develop land for timber production or to carry out timber production in a particular way
- requires that some aspect of timber production be carried out to the satisfaction of the responsible authority

does not apply to timber production on unalienated land of the Crown managed and controlled by the Minister responsible for administering the *Forests Act 1958* and the *Sustainable Forests (Timber) Act 2004*, or the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forest and Lands Act 1987*), whether or not occupied under a licence or other right. All requirements of this scheme apply to Crown land which has been leased.

## 53.11-2 Timber production to comply with the Code of Practice for Timber Production

20/03/2023
VC229

All timber production activities (except agroforestry (the simultaneous and substantial production of forest and other agricultural products from the same land unit), windbreaks and commercial plantations of 5 hectares or less) must comply with the *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022). In accordance with Section 6(4A) of the *Planning and Environment Act 1987*, this applies whether the use of land for timber production is commenced before or after the coming into effect of this requirement.

The Code must be complied with to the satisfaction of the responsible authority.

A permit may require that matters required by the Code must be done to the satisfaction of the responsible authority or a Minister, public authority or referral authority, and may require the responsible authority to seek comments from any other person or authority before making a decision.

## 53.11-3 Road repairs

31/07/2018
VC148

After a Timber Harvesting Plan is lodged with the responsible authority under the Code and before the commencement of harvesting operations, the responsible authority, in consultation with the forest owner or manager, must establish the condition of any roads which are proposed to be used as a cartage route.

The forest owner or manager must advise the responsible authority when harvesting operations are complete. After receiving this advice, the responsible authority, in consultation with the forest owner or manager, must establish the condition of any roads which were used as a cartage route.

It is the responsibility of the forest owner or manager to restore any roads which were used as a cartage route to the same condition that they were in before the commencement of harvesting operations to the extent of any damage caused as a result of the harvesting operations.

The cartage of timber associated with harvesting operations is extraordinary traffic for the purpose of Section 112 of the *Road Management Act 2004*.

## 53.11-4 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or develop land for timber production, in addition to the decision guidelines in Clause 65, the responsible authority must consider:

- The need to encourage plantation establishment and timber production in locations where it is of significance to national, state and regional economies, and in areas affected by salinity and other forms of land degradation.
- The role of native forest and plantations in:
  - Protecting water quality.
  - Conserving flora and fauna.
  - Preventing land degradation, including soil erosion, salinisation and water logging.
  - Preventing adverse effects on groundwater recharge.
- The preservation of and impact on the natural environment, cultural heritage and visual amenity.
- Whether it is appropriate to require environmental protection standards greater than those in the Code.

## 53.12 RACING DOG HUSBANDRY

08/08/2019
VC159

### Purpose

To ensure the use and development of land for racing dog husbandry is consistent with orderly and proper planning.

### 53.12-1 Requirement

08/08/2019
VC159

An application to use land, or construct a building or construct or carry out works, for racing dog husbandry under a provision of a rural zone must comply with *Planning requirements for racing dog keeping and training* (Department of Environment, Land, Water and Planning, August 2017).

This requirement does not apply to an application to construct a building or construct or carry out works associated with a use that is a Section 1 use in the Table of uses of the zone.

### 53.12-2 Exemption from notice and review

31/07/2018
VC148

An application to which the requirement in Clause 53.12-1 applies is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the approved measures specified in *Planning requirements for racing dog keeping and training* (Department of Environment, Land, Water and Planning, August 2017) are met.

# 53.13 RENEWABLE ENERGY FACILITY (OTHER THAN WIND ENERGY FACILITY)

17/09/2019
VC161

## Purpose

To facilitate the establishment and expansion of renewable energy facilities, in appropriate locations, with minimal impact on the amenity of the area.

## 53.13-1 Application

17/09/2019
VC161

This clause applies to an application under any provision of this planning scheme to use or develop land for a renewable energy facility (other than a wind energy facility).

## 53.13-2 Application requirements

01/07/2021
VC203

An application must be accompanied by the following information, as appropriate:

- A site and context analysis, including:
  - A site plan, photographs or other techniques to accurately describe the site and the surrounding area.
  - A location plan showing the full site area, local electricity grid, access roads to the site and direction and distance to nearby accommodation, hospital or education centre.
- A design response, including:
  - Detailed plans of the proposed development including, the layout and height of the facility and associated building and works, materials, reflectivity, colour, lighting, landscaping, the electricity distribution starting point (where the electricity will enter the distribution system), access roads and parking areas.
  - Accurate visual simulations illustrating the development in the context of the surrounding area and from key public view points.
  - The extent of vegetation removal and a rehabilitation plan for the site.
  - Written report and assessment, including:
    - An explanation of how the proposed design derives from and responds to the site analysis.
    - A description of the proposal, including the types of process to be utilised, materials to be stored and the treatment of waste.
    - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
    - the potential amenity impacts such as noise, glint, light spill, emissions to air, land or water, vibration, smell and electromagnetic interference.
    - the effect of traffic to be generated on roads.
    - the impact upon Aboriginal or non-Aboriginal cultural heritage.
    - the impact of the proposal on any species listed under the *Flora and Fauna Guarantee Act 1988* or *Environment Protection and Biodiversity Conservation Act 1999*.
    - A statement of why the site is suitable for a renewable energy facility including, a calculation of the greenhouse benefits.
    - An environmental management plan including, a construction management plan, any rehabilitation and monitoring.

## 53.13-3 Decision guidelines

28/10/2022
VC224

Before deciding on an application, in addition to the decision guidelines of Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect of the proposal on the surrounding area in terms of noise, glint, light spill, vibration, smell and electromagnetic interference.
- The impact of the proposal on significant views, including visual corridors and sightlines.
- The impact of the proposal on strategically important agricultural land.
- The impact of the proposal on the protection of declared irrigation districts.
- The impact of the proposal on the natural environment and natural systems.
- The impact of the proposal on the road network.
- *Solar Energy Facilities Design and Development Guideline* (Department of Environment, Land, Water and Planning, October 2022).

## 53.13-4 Amendment VC161 transitional provisions

17/09/2019
VC161

Clauses 19.01-2S and 53.13 of this planning scheme, as in force immediately before the approval date of Amendment VC161, continue to apply to an application to use or develop land for a renewable energy facility (other than a wind energy facility) lodged before the approval date of Amendment VC161.

Clauses 14.02-3S and 66.02-12 of this planning scheme do not apply to an application to use or develop land for a renewable energy facility (other than a wind energy facility) lodged before the approval date of Amendment VC161.

# 53.14 RESOURCE RECOVERY

31/07/2018
VC148

## Purpose

To facilitate the establishment and expansion of a Transfer station and/or a Materials recycling facility in appropriate locations with minimal impact on the environment and amenity of the area.

## 53.14-1 Application

31/07/2018
VC148

This clause applies to all land used and developed or proposed to be used and developed for:

- A Transfer station;
- A Materials recycling facility.

## 53.14-2 Application requirements

01/07/2021
VC203

An application must be accompanied by the following information:

- A location plan showing the site and surrounding uses including distances to nearby sensitive uses such as residential, hospital or education uses.
- A detailed site plan showing the layout and height of buildings and works, materials, reflectivity, colour, lighting, landscaping, access roads and parking areas.
- Plans or other media showing anticipated views of the facility from sensitive use locations.
- A written report(s) including:
  - Identification of the purpose of the use.
  - A description of the proposal including the materials to be processed, the types of processes to be used and any materials to be stored and handled.
  - Proposed hours of operation.
  - Likely traffic generation including heavy vehicles.
  - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
- An assessment of:
  - Potential amenity impacts such as noise, odour, emissions to air, land or water, vibration, dust, light spill, visual impact.
  - The impact of traffic generation on local roads.

## 53.14-3 Decision Guidelines

28/04/2026
VC232

Before deciding on an application, in addition to the Decision Guidelines of Clause 65, the responsible authority must consider:

- The contribution of the proposal to achieving resource recovery targets established by the Victorian Government.
- The impact of the proposal on the amenity of the surrounding area.
- The *Victorian Recycling Infrastructure Plan* (Department of Energy, Environment and Climate Action, October 2024).
- Relevant guidelines applicable to the application including the guideline for *Designing, Constructing and Operating Composting Facilities* (Environment Protection Authority, 2015), the *Guide to Best Practice for Organics Recovery* (Sustainability Victoria, 2009) and the *Guide to Best Practice at Resource Recovery Centres* (Sustainability Victoria, 2009).

## 53.15 STATEMENT OF UNDERLYING PROVISIONS

31/07/2018
VC148

### Purpose

To specify the planning scheme provisions which would have applied to land reserved for a public purpose pursuant to section 6(2)(i) of the *Planning and Environment Act 1987* if the land had not been reserved for that purpose.

## 53.15-01 Application

31/07/2018
VC148

In relation to any land identified in the schedule to this clause, the provisions of the planning scheme which would have applied to that land if it had not been reserved for a public purpose are the provisions which are contained in the relevant incorporated document, also identified in the schedule to this clause.

The incorporated document may contain some or all of the provisions which would have applied to the relevant land under this scheme if the land had not been reserved for a public purpose.

The incorporated document may also contain a statement or explanation of the strategic basis for those provisions. Alternatively, the incorporated document may make reference to a separate document, not forming part of the incorporated document, which contains a statement or explanation of the strategic basis for those provisions.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 53.15 STATEMENT OF UNDERLYING PROVISIONS

## 1.0

10/06/2021
C254card

## Incorporated statement

| Land | Incorporated Document |
|---|---|
| None specified | |

# 53.16 PIG FARM

11/04/2019
VC156

## Purpose

To facilitate the establishment and expansion of pig farms in a manner that is consistent with orderly and proper planning and the protection of the environment.

## 53.16-1 Application

21/09/2018
VC150

This clause applies to permit applications to use land or construct a building or construct or carry out works for a pig farm, including to increase the farm capacity of an existing pig farm.

## 53.16-2 Exemption from notice and review

04/05/2022
VC210

An application to use land or construct a building or construct or carry out works for a pig farm is exempt from the notice requirements of section 52 (1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the following requirements are met:

- The number of pigs does not exceed 150 sows or 1,000 Standard Pig Units as calculated in Table 1.
- The outdoor stocking density does not exceed 12 Standard Pig Units per hectare as calculated in Table 1.
- A Nutrient Management Plan demonstrates pigs are kept outdoors on paddocks with:
  - A minimum of 50% ground cover; and
  - Mobile housing and feeding infrastructure that is relocated at least every three months.
- Any area used as a pig range, including associated buildings and works, is setback a minimum distance of:
  - 100 metres from a building used for a sensitive use (accommodation, a child care centre, an education centre or a hospital), and
  - 400 metres from land in a residential zone.

**Table 1 Standard Pig Unit conversion factors**

| Pig Class | Mass Range (kg) | Age Range (weeks) | SPU Factor |
|---|---|---|---|
| **Gilt** | 100 – 160 | 24 -30 | 1.8 |
| **Boar** | 100 – 300 | 24 – 128 | 1.6 |
| **Gestating sow** | 160 – 230 | - | 1.6 |
| **Lactating sow** | 160 – 230 | - | 2.5 |
| **Sucker** | 1.4 – 8 | 0 – 4 | 0.1 |
| **Weaner** | 8 – 25 | 4 – 10 | 0.5 |
| **Grower** | 24 – 55 | 10 – 16 | 1.0 |
| **Finisher** | 55 – 100 | 16 – 24 | 1.6 |

| Pig Class | Mass Range (kg) | Age Range (weeks) | SPU Factor |
|---|---|---|---|
| **Heavy Finisher** | 100 – 130 | 24 -30 | 1.8 |

*Note: Adapted from the National Environmental Guidelines for Piggeries 2010*

## 53.16-3 Decision guidelines

21/09/2018
VC150

Before deciding on an application to use land or construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The purpose of the relevant zone.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.
- The need to protect amenity of existing uses on adjoining land.
- The impact of the use of the land on the surrounding area, including from the emission of noise, light, vibration, odour, dust, or waste products.
- The impact of the proposal on any wetlands, waterways or water bodies.
- The likely environmental impact on the natural physical features and biodiversity of the land, including consideration of any Nutrient Management Plan submitted with the application.
- Whether the development will support and enhance agricultural production.
- The requirements of the *Victorian Low Density Mobile Outdoor Pig Farm Planning Permit Guidelines* (June 2018).

# 53.17 RESIDENTIAL AGED CARE FACILITY

14/12/2023
VC253

## Purpose

To facilitate the development of well-designed residential aged care facilities to meet existing and future needs.

To recognise that residential aged care facilities have a different scale and built form to the surrounding neighbourhood.

To ensure residential aged care facilities do not unreasonably impact on the amenity of adjoining dwellings or small second dwellings.

## 53.17-1 Application

25/02/2025
VC257

This clause applies to an application to construct a building or construct or carry out works for a residential aged care facility in the General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.

## 53.17-2 Application requirements

26/10/2018
VC152

An application must be accompanied by:

- A site and context description.
- A design response.
- A landscape plan.

### Site and context description

The site and context description may use a site plan, photographs or other techniques and must include:

- Site shape, size, orientation and easements.
- Levels of the site and the difference in levels between the site and surrounding properties.
- The location of existing buildings on the site and on adjacent properties, including the location and height of walls built to the boundary of the site.
- The use of adjacent buildings and land.
- The location of secluded private open space and habitable room windows of adjacent properties which have an outlook to the site within 9 metres.
- Solar access to the site and to adjacent properties.
- Any contaminated soils and filled areas, where known.
- Location of significant trees existing on the site and any significant trees removed from the site in the 12 months prior to the application being made, where known.
- Street frontage features such as poles, street trees and kerb crossovers.
- Any other notable features or characteristics of the site.

If in the opinion of the responsible authority a requirement of the site and context description is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

### Design response

The design response must explain how the proposed design:

- Responds to the site and context description.
- Meets the requirements of this clause.

### Landscape plan

The landscape plan must include:

- Landscaping of communal open space for the enjoyment of residents and staff.
- Landscaping along the boundaries of the site.
- On-site management of run-off from paved areas.
- Retaining significant trees where possible.

## 53.17-3 Development requirements

25/02/2025
VC257

### Operation

If there is any inconsistency between a requirement in this clause and a requirement in another provision of this planning scheme, this clause prevails.

### Building height

In the Neighbourhood Residential Zone, General Residential Zone and Township Zone the maximum building height must not exceed 16 metres.

In the Mixed Use Zone and Residential Growth Zone the maximum building height should not exceed 16 metres.

In the Housing Choice and Transport Zone the maximum building height must not exceed:

- 21.5 metres for land shown on a planning scheme map as **HCTZ1**.
- 16 metres for land shown on a planning scheme map as **HCTZ2**.

### Street setback

Walls of buildings should be set back from streets the distance specified in the table:

| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The average distance of the setbacks of the front walls of the existing buildings on the abutting allotments facing the front street or 9 metres, whichever is the lesser. This does not include a porte cochère. | Not applicable |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 9 metres, whichever is the lesser. This does not include a porte cochère. | Not applicable |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall | Front walls of new development fronting the side street of a corner site should be setback at |

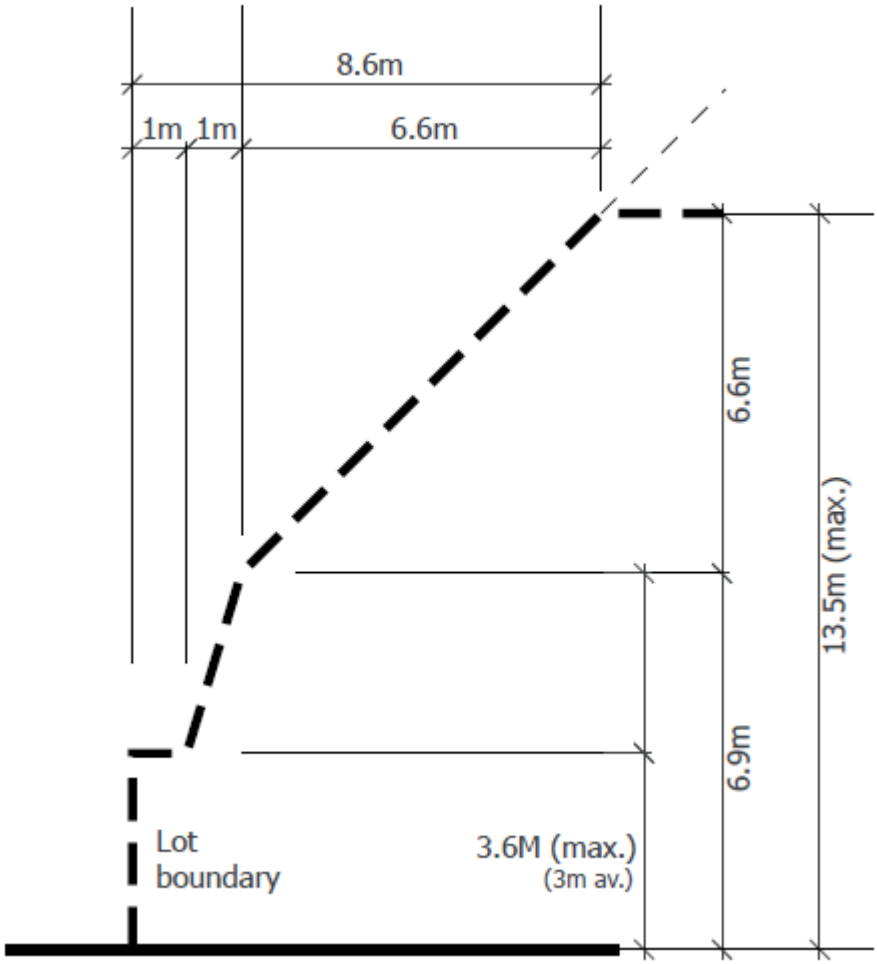
| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| | of the existing building on the abutting allotment facing the front street or 9 metres, whichever is the lesser. This does not include a porte cochère.<br>If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 4 metres, whichever is the lesser.<br>Side walls of new development on a corner site should be setback the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

**Side and rear setbacks**

A new building not on or within 200mm of a boundary should be set back from side or rear boundaries by 1metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

Screens, sunblinds, verandahs, porches, eaves, fascias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the setbacks of this standard.

Landings having an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the setbacks of this standard.




### Walls on boundaries

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of lot should not abut the boundary for a length of more than:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- Where there are existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot, the length of the existing or simultaneously constructed walls or carports;

whichever is the greater.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

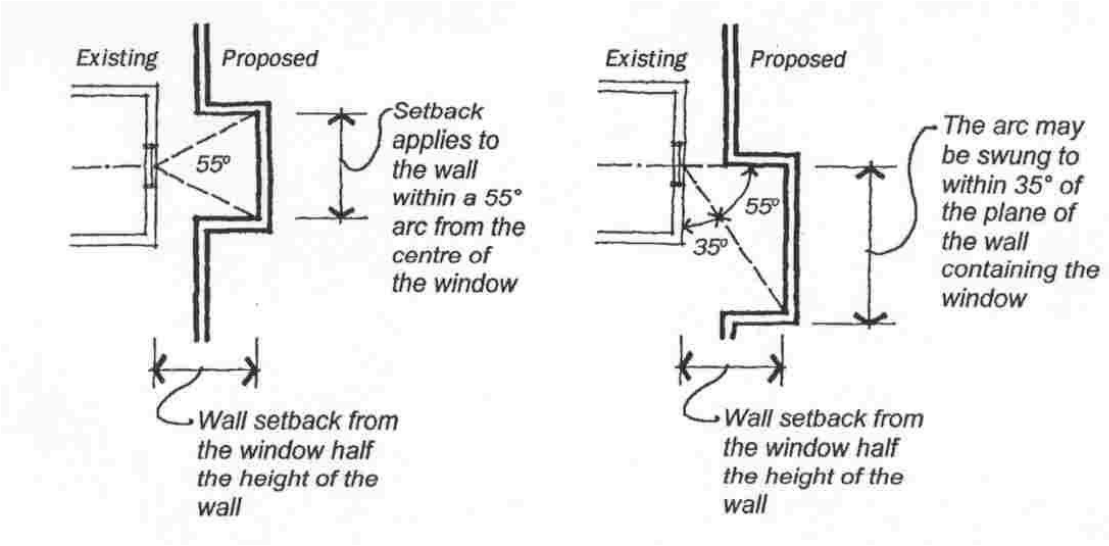
The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary should not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

### Daylight to existing windows

Buildings opposite an existing habitable room window should provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

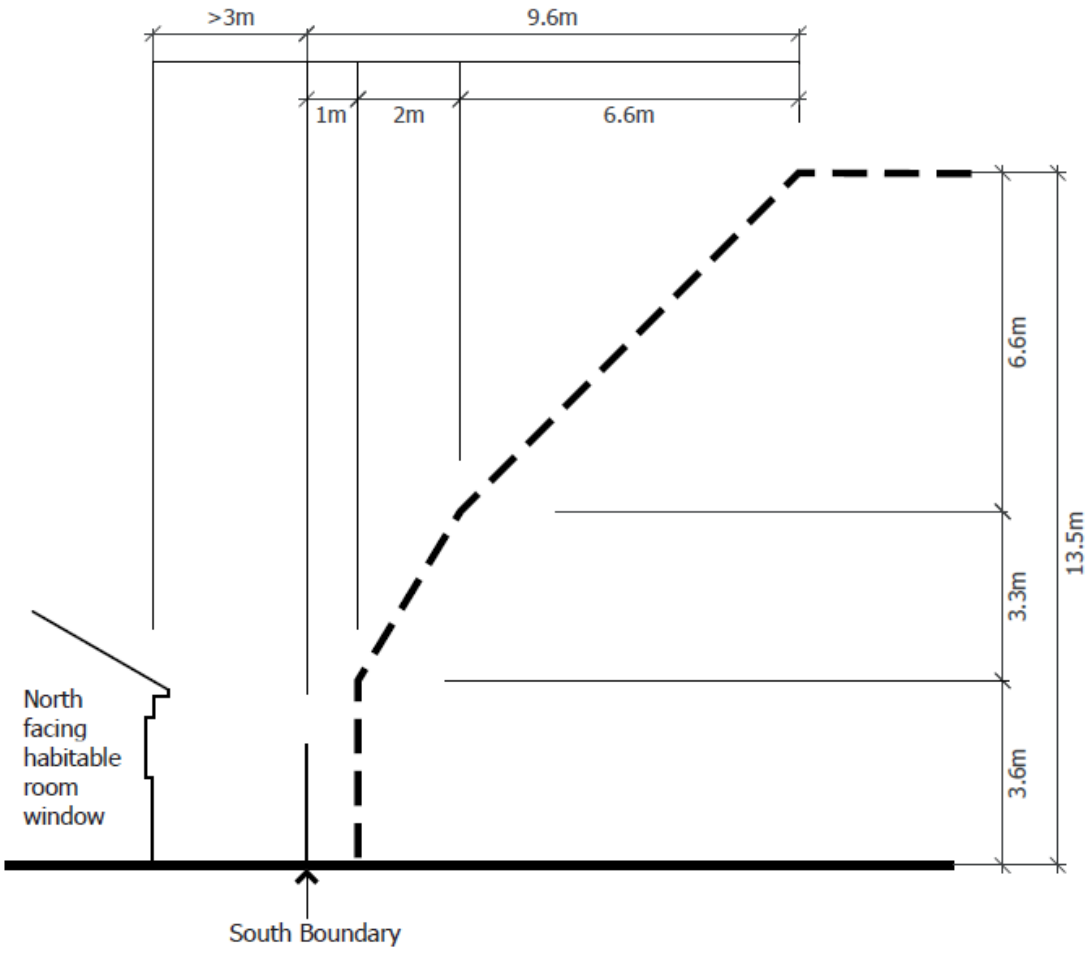
Walls or carports more than 3 metres in height opposite an existing habitable room window should be set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.




**North-facing windows**

If a north-facing habitable room window of an existing dwelling or small second dwelling is within 3 metres of a boundary on an abutting lot, a building should be setback from the boundary 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres, for a distance of 3 metres from the edge of each side of the window. A north-facing window is a window with an axis perpendicular to its surface oriented north 20 degrees west to north 30 degrees east.




### Overshadowing open space

Where sunlight to the secluded private open space of an existing dwelling or small second dwelling is reduced, at least 75 per cent, or 40 square metres with minimum dimension of 3 metres, whichever is the lesser area, of the secluded private open space should receive a minimum of five hours of sunlight between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight should not be further reduced.

### Overshadowing solar energy systems

Buildings should be sited and designed to ensure that the performance of existing rooftop solar energy systems on dwellings or small second dwellings on adjoining lots in a General Residential Zone, Neighbourhood Residential Zone or Township Zone are not unreasonably reduced. The existing rooftop solar energy system must exist at the date the application is lodged.

### Overlooking

A habitable room window, balcony, terrace, deck or patio should be located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views should be measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio with a direct view into a habitable room window of existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio should be either:

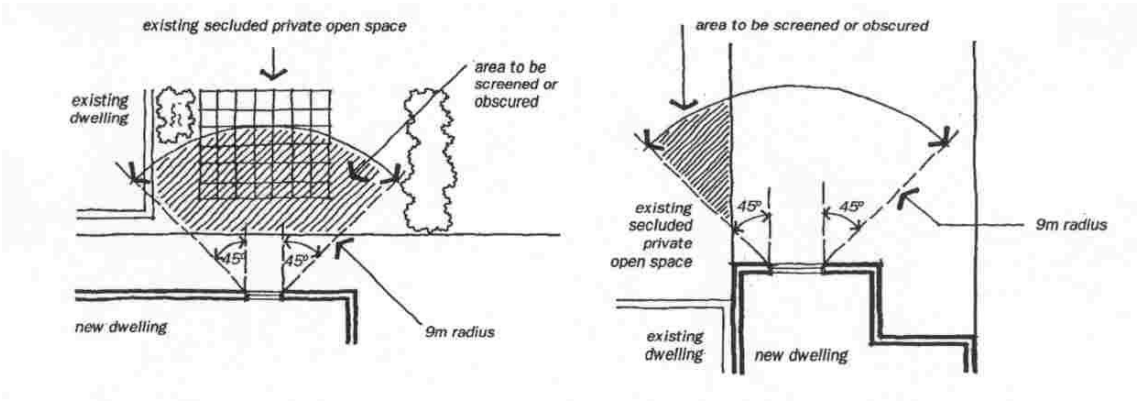
- Offset a minimum of 1.5 metres from the edge of one window to the edge of the other.
- Have sill heights of at least 1.2 metres above floor level.
- Have fixed, obscure glazing in any part of the window below 1.2 metres above floor level.
- Have permanently fixed external screens to at least 1.2 metres above floor level and be no more than 25 per cent transparent.

Obscure glazing in any part of the window below 1.2 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view should be:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.




### Noise impacts

Noise sources, such as mechanical plant, should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

### Daylight to new windows

A window in a habitable room should be located to face:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot, or
- A verandah provided it is open for at least one third of its perimeter, or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

### Site coverage

The site area covered by buildings should not exceed 80 percent.

### Access

Access ways should be designed to:

- Provide direct access to on-site designated areas for car and bicycle parking.
- Provide direct access to the building for emergency vehicles.
- Provide access for service and delivery vehicles to on-site loading bays and storage areas.

- Ensure vehicles can enter and exit a development in a forward direction.
- Provide a carriageway width of at least 5.5 metres and an internal radius of at least 4 metres at a change of direction.
- The number and location of access points from streets to the site and the design of crossovers must be to the requirements of the relevant road authority.
- Shared access ways or car parks should be located at least 1.5 metres from the windows of habitable rooms. This setback may be reduced by 1 metre where there is a fence at least 1.5 metres high or where window sills are at least 1.4 metres above the access way.

### Building entry

The main pedestrian entry to a building should:

- Have convenient access from a street.
- Be sheltered from the weather.
- Have convenient access from on-site car parking.
- Have a designated vehicle standing area suitable for use by a community bus and a disabled parking area should be provided in an area that is convenient for the drop-off and pick-up of residents.

### Communal open space

Accessible and useable communal open space should be provided for residents and staff.

### Front fence

A front fence within 3 metres of a street should not exceed:

- 2 metres in height in streets in a Transport Zone 2; and
- 1.5 metres in height on all other streets.

## 53.17-4 Decision guidelines

14/12/2023
VC253

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- How the proposed development responds to the site and context description.
- Where the requirements of this clause are not met, the impact on the amenity of the adjoining dwellings or small second dwellings.
- The proposed amenity for future residents of the residential aged care facility.
- The effect of overshadowing on an appropriately located existing rooftop solar energy system on an adjoining lot.

# 53.18 STORMWATER MANAGEMENT IN URBAN DEVELOPMENT

26/10/2018
VC154

## Purpose

To ensure that stormwater in urban development, including retention and reuse, is managed to mitigate the impacts of stormwater on the environment, property and public safety, and to provide cooling, local habitat and amenity benefits.

## 53.18-1 Application

20/10/2026
VC317

This clause applies to an application under a provision of a zone to subdivide land, construct a building, or construct or carry out works, other than the following applications:

- An application under a provision of the Farming Zone, Green Wedge Zone, Green Wedge A Zone, Low Density Residential Zone, Public Conservation and Resource Zone, Transport Zone 2, Transport Zone 3, Rural Activity Zone, Rural Conservation Zone, Rural Living Zone, Urban Floodway Zone, Flood Management Zone or Urban Growth Zone (Part A – No precinct structure plan applies).
- A VicSmart application.
- An application to subdivide land in a residential zone for residential purposes.
- An application to construct or extend a dwelling, fence or residential building in a residential zone.
- An application for development associated with the use of land for agriculture or earth and energy resources industry.
- An application to construct a building or construct or carry out works associated with one dwelling on a lot.
- An application to alter, extend or make structural changes to an existing building provided the gross floor area of the building is not increased by more than 50 square metres.
- An application to construct a building with a gross floor area not exceeding 50 square metres.
- An application to construct or carry out works with an area not exceeding 50 square metres.
- An application to subdivide land into lots each containing an existing building or car parking space.
- An application to construct a building or to construct or carry out works on a lot if all of the following requirements are met:
  - The lot was created in accordance with a permit granted under this planning scheme.
  - The application for that permit was assessed against the requirements of this clause.
- An application for land affected by a development plan or incorporated plan that was approved or incorporated in this planning scheme before the approval date of Amendment VC154.
- An application lodged before the approval date of Amendment VC154.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC154.

### Transitional provisions

Clause 53.18 of this scheme, as in force immediately before the approval date of Amendment VC224, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 53.18-2 Operation

26/10/2018
VC154

The provisions of this clause contain:

- **Objectives**. An objective describes the desired outcome to be achieved in the completed development.
- **Standards**. A standard contains the requirements to meet the objective.

  A standard should normally be met. However, if the responsible authority is satisfied that an application for an alternative solution meets the objective, the alternative solution may be considered.

## 53.18-3 Requirements

26/10/2018
VC154

An application to subdivide land:

- Must meet all of the objectives of Clauses 53.18-4 and 53.18-6.
- Should meet all of the standards of Clauses 53.18-4 and 53.18-6.

An application to construct a building or construct or carry out works:

- Must meet all of the objectives of Clauses 53.18-5 and 53.18-6.
- Should meet all of the standards of Clauses 53.18-5 and 53.18-6.

An application must be accompanied by details of the proposed stormwater management system, including drainage works and retention, detention and discharges of stormwater to the drainage system.

## 53.18-4 Stormwater management objectives for subdivision

04/02/2026
VC265

To minimise damage to properties and inconvenience to the public from stormwater.

To ensure that the street operates adequately during major storm events and provides for public safety.

To minimise increases in stormwater and protect the environmental values and physical characteristics of receiving waters from degradation by stormwater.

To encourage stormwater management that maximises the retention and reuse of stormwater.

To encourage stormwater management that contributes to cooling, local habitat improvements and provision of attractive and enjoyable spaces.

### Standard W1

The stormwater management system should be:

- Designed and managed in accordance with the requirements and to the satisfaction of the relevant drainage authority.
- Designed and managed in accordance with the requirements and to the satisfaction of the water authority where reuse of stormwater is proposed.
- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to ensure that flows downstream of the subdivision site are restricted to pre-development levels unless increased flows are approved by the relevant drainage authority and there are no detrimental downstream impacts.
- Designed to contribute to cooling, improving local habitat and providing attractive and enjoyable spaces.

The stormwater management system should be integrated with the overall development plan including the street and public open space networks and landscape design.

For all storm events up to and including the 20% Average Exceedance Probability (AEP) standard:

- Stormwater flows should be contained within the drainage system to the requirements of the relevant authority.
- Ponding on roads should not occur for longer than 1 hour after the cessation of rainfall.

For storm events greater than 20% AEP and up to and including 1% AEP standard:

- Provision must be made for the safe and effective passage of stormwater flows.
- All new lots should be free from inundation or to a lesser standard of flood protection where agreed by the relevant floodplain management authority.
- Ensure that streets, footpaths and cycle paths that are subject to flooding meet the safety criteria da Vave < 0.35 m2/s (where, da = average depth in metres and Vave = average velocity in metres per second).

The design of the local drainage network should:

- Ensure stormwater is retarded to a standard required by the responsible drainage authority.
- Ensure every lot is provided with drainage to a standard acceptable to the relevant drainage authority. Wherever possible, stormwater should be directed to the front of the lot and discharged into the street drainage system or legal point of discharge.
- Ensure that inlet and outlet structures take into account the effects of obstructions and debris build up. Any surcharge drainage pit should discharge into an overland flow in a safe and predetermined manner.
- Include water sensitive urban design features to manage stormwater in streets and public open space. Where such features are provided, an application must describe maintenance responsibilities, requirements and costs.

Any flood mitigation works must be designed and constructed in accordance with the requirements of the relevant floodplain management authority.

## 53.18-5 Stormwater management objectives for buildings and works

04/02/2026
VC265

To encourage stormwater management that maximises the retention and reuse of stormwater.

To encourage development that reduces the impact of stormwater on the drainage system and filters sediment and waste from stormwater prior to discharge from the site.

To encourage stormwater management that contributes to cooling, local habitat improvements and provision of attractive and enjoyable spaces.

To ensure that industrial and commercial chemical pollutants and other toxicants do not enter the stormwater system.

### Standard W2

The stormwater management system should be designed to:

- Meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Minimise the impact of chemical pollutants and other toxicants including by, but not limited to, bunding and covering or roofing of storage, loading and work areas.
- Contribute to cooling, improving local habitat and providing attractive and enjoyable spaces.

## 53.18-6 Site management objectives

26/10/2018
VC154

To protect drainage infrastructure and receiving waters from sedimentation and contamination.

To protect the site and surrounding area from environmental degradation prior to and during construction of subdivision works.

### Standard W3

An application should describe how the site will be managed prior to and during the construction period and may set out requirements for managing:

- Erosion and sediment.
- Stormwater.
- Litter, concrete and other construction wastes.
- Chemical contamination.

## 53.18-7 Decision guidelines

26/10/2018
VC154

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Any relevant water and stormwater management objective, policy or statement set out in this planning scheme.
- The capacity of the site to incorporate stormwater retention and reuse and other water sensitive urban design features.
- Whether the development has utilised alternative water sources and/or incorporated water sensitive urban design.
- Whether stormwater discharge from the site will adversely affect water quality entering the drainage system.
- The capacity of the drainage network to accommodate additional stormwater.
- Whether the stormwater treatment areas can be effectively maintained.
- Whether the owner has entered into an agreement to contribute to off-site stormwater management in lieu of providing an on-site stormwater management system.

# 53.19 NON-GOVERNMENT SCHOOLS

03/12/2019
VC165

## Purpose

To facilitate new non-government schools.

To facilitate upgrades and extensions to existing non-government schools.

## 53.19-1 Application

04/12/2020
VC180

This clause applies to an application under any provision of this scheme, other than a VicSmart application, to use or develop land for a primary school, secondary school, or education centre that is ancillary to, carried out in conjunction with, and on the same land or contiguous land in the same ownership as, a primary school or secondary school.

## 53.19-2 Exemption from review

04/12/2020
VC180

An application to which Clause 53.19 applies is exempt from the decision requirements of section 64(1), (2), and (3), and the review rights of section 82(1) of the Act.

## 53.19-3 Transitional provisions

04/12/2020
VC180

Clause 53.19 of this scheme, as in force immediately before the approval date of Amendment VC180, continues to apply to:

- An application for a planning permit made before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was made before that date.

# 53.20 HOUSING BY OR ON BEHALF OF HOMES VICTORIA

14/12/2023
VC253

## Purpose

To facilitate the development of well-designed social housing and affordable housing to meet existing and future needs.

To increase the social housing and affordable housing stock in Victoria.

To ensure the development of housing by or on behalf of the Chief Executive Officer, Homes Victoria does not unreasonably impact on the amenity of adjoining dwellings or small second dwellings.

## 53.20-1 Application

04/02/2026
VC265

This clause applies to an application under a provision of a residential zone (other than the Low Density Residential Zone) to construct or extend a dwelling, or to construct or extend a front fence, if the application is made by or on behalf of the Chief Executive Officer, Homes Victoria.

This clause does not apply to an application that meets the requirements of clause 53.23-1 or clause 53.24-1.

In this clause, ***Chief Executive Officer, Homes Victoria*** means 'Chief Executive Officer, Homes Victoria' as defined in the *Housing Act 1983* and the body corporate established under the *Housing Act 1983*.

## 53.20-2 Operation

14/12/2023
VC253

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

An application to construct or extend a dwelling, or to construct or extend a front fence, should meet the standards in Clause 53.20-6.

An application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, should meet the standards in Clause 53.20-6 and Clause 53.20-7 except for the standard in:

- Clause 53.20-6.5.
- Clause 53.20-6.10 for an apartment development of 5 or more storeys.

The standards in Clause 53.20-6 and Clause 53.20-7 should normally be met. However, an alternative design solution may be considered if the responsible authority is satisfied that the proposal does not unreasonably impact on the amenity of an existing dwelling or small second dwelling on the site or on an adjacent site.

## 53.20-3 Exemption from planning scheme provisions

04/02/2026
VC265

The following provisions of this planning scheme do not apply:

- The Municipal Planning Strategy or Municipal Strategic Statement and the Planning Policy Framework.
- An application requirement or decision guideline of a zone.
- A requirement to meet Clauses 54, 55, 57 and 58.
- A schedule to a zone except for a specified building height requirement.
- Clauses 52.06 and 65.

## 53.20-4 Exemption from notice and review

20/12/2021
VC207

An application under any provision of this scheme is exempt from the notice requirements of section 52(1) (a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 53.20-5 Application requirements

20/03/2023
VC229

An application must be accompanied by the following information, as appropriate:

- Where the application is made on behalf of the Chief Executive Officer, Homes Victoria, a letter from Homes Victoria confirming that the application is made on behalf of the Chief Executive Officer, Homes Victoria.
- An urban context report. The urban context report may use a site plan, photographs or other techniques and must include an accurate description of:
  - Lot boundaries, site shape, size, orientation and easements on the subject site.
  - Levels and contours of the site and the difference in levels between the site and adjoining properties.
  - The location and height of existing buildings on the site and adjoining properties.
  - The use of adjoining buildings.
  - The location of secluded private open space of adjoining properties and the location of trees, fences and other landscape elements.
  - Solar access to the site and to adjoining properties.
  - Street frontage features such as poles, street lights, street trees and kerb crossovers.
  - The location of local shops, public transport services and public open spaces within walking distance.
  - Movement systems through and around the site.
  - Any other notable feature or characteristic of the site.
  - An assessment of the characteristics of the area including:
    - Any environmental features such as vegetation, topography and significant views.
    - The pattern of subdivision.
    - Street design and landscape.
    - The pattern of development.
    - Building form, scale and rhythm.
    - Connection to the public realm.
    - Architectural style, building details and materials.
    - Significant off-site noise sources.
    - For an apartment application, the relevant NatHERS climate zones.
    - Social and economic activity.
    - Any other notable or cultural characteristics of the area.
- A design response. The design response must explain how the proposed design:
  - Responds to any relevant planning provision.
  - Derives from and responds to the urban context report.

- The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings.

## 53.20-6 Development standards

04/02/2026
VC265

### 53.20-6.1 Infrastructure

Development should be connected to reticulated services, including reticulated sewerage, drainage and electricity.

Development should not unreasonably exceed the capacity of utility services and infrastructure, including reticulated services and roads.

In areas where utility services or infrastructure have little or no spare capacity, developments should provide for the upgrading of or mitigation of the impact on services or infrastructure.

### 53.20-6.2 Street setback

Walls of buildings should be set back from streets at least the distance specified in Table 1. Porches, pergolas and verandahs that are less than 3.6 metres high and eaves may encroach not more than 2.5 metres into the setbacks of this standard.

**Table 1 Street setback**

| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of either existing building on the abutting allotments facing the front street or 7 metres, whichever is the lesser. | Not applicable. |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 7 metres, whichever is the lesser. | Not applicable. |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable. |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 7 metres, whichever is the lesser. | Front walls of new development fronting the side street of a corner site should be setback at least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 3 metres, whichever is the lesser. |

| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| | If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2, and 4 metres for other streets. | Side walls of new development on a corner site should be setback the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

### 53.20-6.3 Site coverage

The site area covered by buildings should not exceed 60 per cent.

### 53.20-6.4 Permeability

The site area covered by the pervious surfaces should be at least 20 percent of the site.

### 53.20-6.5 Energy efficiency

Buildings should be:

- Oriented to make appropriate use of solar energy.
- Sited and designed to ensure that the energy efficiency of existing dwellings or small second dwellings on adjoining lots is not unreasonably reduced.
- Sited and designed to ensure that the performance of existing roof top solar energy systems on dwellings or small second dwellings on adjoining lots in a General Residential Zone, Neighbourhood Residential Zone or Township Zone are not unreasonably reduced. The existing roof top solar energy system must exist at the date the application is lodged.

Living areas and private open space should be located on the north side of the development, if practicable.

Developments should be designed so that solar access to north-facing windows is maximised.

### 53.20-6.6 Safety

Entrances to dwellings should not be obscured or isolated from the street and internal accessways.

Planting which creates unsafe spaces along streets and accessways should be avoided.

Developments should be designed to provide good lighting, visibility and surveillance of car parks and internal accessways.

Private spaces within developments should be protected from inappropriate use as public thoroughfares.

### 53.20-6.7 Access

Vehicle crossovers should be minimised.

Car parking entries should be consolidated, minimised in size, integrated with the façade and where practicable located at the side or rear of the building.

Pedestrian and cyclist access should be clearly delineated from vehicle access.

The location of crossovers should maximise pedestrian safety and the retention of on-street car parking spaces and street trees.

Developments must provide for access for service, emergency and delivery vehicles.

### 53.20-6.8 Parking location

Car parking facilities should:

- Be reasonably close and convenient to dwellings.
- Be secure.
- Be well ventilated if enclosed.

Shared accessways or car parks of other dwellings should be located at least 1.5 metres from the windows of habitable rooms. This setback may be reduced to 1 metre where there is a fence at least 1.5 metres high or where window sills are at least 1.4 metres above the accessway.

### 53.20-6.9 Car parking

A minimum 0.6 car spaces should be provided to each dwelling. Car spaces may be covered or uncovered.

If in calculating the number of car parking spaces the result is not a whole number, the required number of car parking spaces is to be rounded down to the nearest whole number greater than 1.

#### Accessway design

Accessways must:

- Be at least 3 metres wide.
- Have an internal radius of at least 4 metres at changes of direction or intersection or be at least 4.2 metres wide.
- Allow vehicles parked in the last space of a dead-end accessway in public carparks to exit in a forward direction with one manoeuvre.
- Provide at least 2.1 metres headroom beneath overhead obstructions, calculated for a vehicle with a wheel base of 2.8 metres.
- If the accessway serves four or more car spaces or connects to a road in a Transport Zone 2 or a Transport Zone 3, the accessway must be designed so that cars can exit the site in a forward direction.
- Provide a passing area at the entrance at least 6.1 metres wide and 7 metres long if the accessway serves ten or more carparking spaces and is either more than 50 metres long or connects to a road in a Transport Zone 2 or a Transport Zone 3.
- Have a corner splay or area at least 50 percent clear of visual obstructions extending at least 2 metres along the frontage road from the edge of an exit lane and 2.5 metres along the exit lane from the frontage, to provide a clear view of pedestrians on the footpath of the frontage road. The area clear of visual obstructions may include an adjacent entry or exit lane where more than one lane is provided, or adjacent landscaped areas, provided the landscaping in those areas is less than 900mm in height.

#### Car parking spaces

Car parking spaces and accessways must have the minimum dimensions as outlined in Table 2.

**Table 2: Minimum dimensions of car parking spaces and accessways**

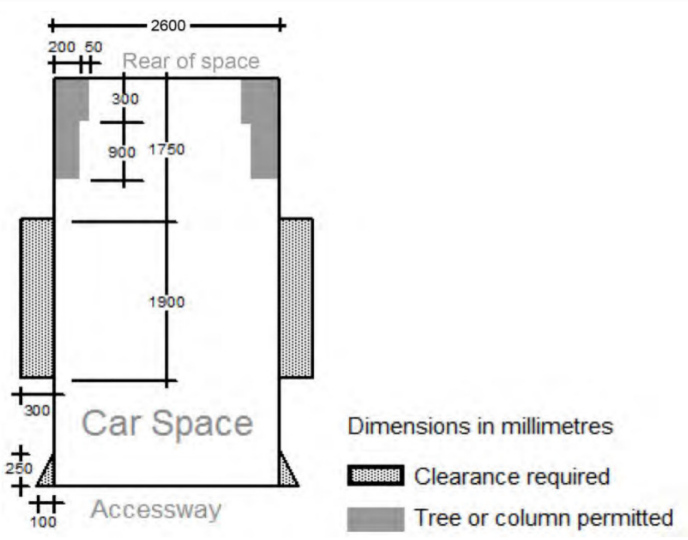
| Angle of car parking spaces to access way | Accessway width | Car space width | Car space length |
|---|---|---|---|
| **Parallel** | 3.6 m | 2.3 m | 6.7 m |
| **45º** | 3.5 m | 2.6 m | 4.9 m |
| **60º** | 4.9 m | 2.6 m | 4.9 m |
| **90º** | 6.4 m | 2.6 m | 4.9 m |
| | 5.8 m | 2.8 m | 4.9 m |
| | 5.2 m | 3.0 m | 4.9 m |
| | 4.8 m | 3.2 m | 4.9 m |

*Note: Some dimensions in Table 2 vary from those shown in the Australian Standard AS2890.1-2004 (off street). The dimensions shown in Table 2 allocate more space to aisle widths and less to marked spaces to provide improved operation and access. The dimensions in Table 2 are to be used in preference to the Australian Standard AS2890.1-2004 (off street) except for disabled spaces which must achieve Australian Standard AS2890.6-2009 (disabled).*

A wall, fence, column, tree, tree guard or any other structure that abuts a car space must not encroach into the area marked 'clearance required' on Diagram 1, other than:

- A column, tree or tree guard, which may project into a space if it is within the area marked 'tree or column permitted' on Diagram 1.
- A structure, which may project into the space if it is at least 2.1 metres above the space.

**Diagram 1 Clearance to car parking spaces**




Car spaces in garages or carports must be at least 6 metres long and 3.5 metres wide for a single space and 5.5 metres wide for a double space measured inside the garage or carport.

Where parking spaces are provided in tandem (one space behind the other) an additional 500mm in length must be provided between each space.

Disabled car parking spaces must be designed in accordance with Australian Standard AS2890.6-2009 (disabled) and the Building Code of Australia. Disabled carparking spaces may encroach into an accessway width specified in Table 2 by 500mm.

### Gradients

Accessway grades must not be steeper than 1:10 (10 percent) within 5 metres of the frontage to ensure safety for pedestrians and vehicles. The design must have regard to the wheel base of the vehicle being designed for; pedestrian and vehicular traffic volumes; the nature of the carpark; and the slope and configuration of the vehicle crossover at the site frontage. This does not apply to accessways serving three dwellings or less.

Ramps (except within 5 metres of the frontage) must have the maximum grades as outlined in Table 3 and be designed for vehicles travelling in a forward direction.

**Table 3: Ramp gradients**

| Type of car park | Length of ramp | Maximum grade |
|---|---|---|
| **Public car parks** | 20 metres or less | 1:5 (20%) |
| | longer than 20 metres | 1:6 (16.7%) |
| **Private or residential car parks** | 20 metres or less | 1:4 (25%) |
| | longer than 20 metres | 1:5 (20%) |

Where the difference in grade between two sections of ramp or floor is greater that 1:8 (12.5 per cent) for a summit grade change, or greater than 1:6.7 (15 percent) for a sag grade change, the ramp must include a transition section of at least 2 metres to prevent vehicles scraping or bottoming.

Plans must include an assessment of grade changes of greater than 1:5.6 (18 percent) or less than 3 metres apart for clearances, to the satisfaction of the responsible authority.

### Mechanical parking

Mechanical parking may be used to meet the carparking requirement provided:

- At least 25 percent of the mechanical carparking spaces can accommodate a vehicle height of at least1.8 metres.
- Carparking spaces that require the operation of the system are not allocated to visitors unless used in a valet parking situation.
- The design and operation is to the satisfaction of the responsible authority.

### Urban design

Ground level carparking, garage doors and accessways must not visually dominate public space.

Carparking within buildings (including visible portions of partly submerged basements) must be screened or obscured where possible, including through the use of occupied tenancies, landscaping, architectural treatments and art works.

Design of carparks must take into account their use as entry points to the site.

Design of new internal streets in developments must maximise on street parking opportunities.

### Safety

Car parking must be well lit and clearly signed.

The design of carparks must maximise natural surveillance and pedestrian visibility from adjacent buildings.

Pedestrian access to carparking areas from the street must be convenient.

Pedestrian routes through car parking areas and building entries and other destination points must be clearly marked and separated from traffic in high activity parking areas.

### Landscaping

The layout of car parking areas must provide for water sensitive urban design treatment and landscaping.

Landscaping and trees must be planted to provide shade and shelter, soften the appearance of ground level car parking and aid in the clear identification of pedestrian paths.

Ground level carparking spaces must include trees planted with flush grilles. Spacing of trees must be determined having regard to the expected size of the selected species at maturity.

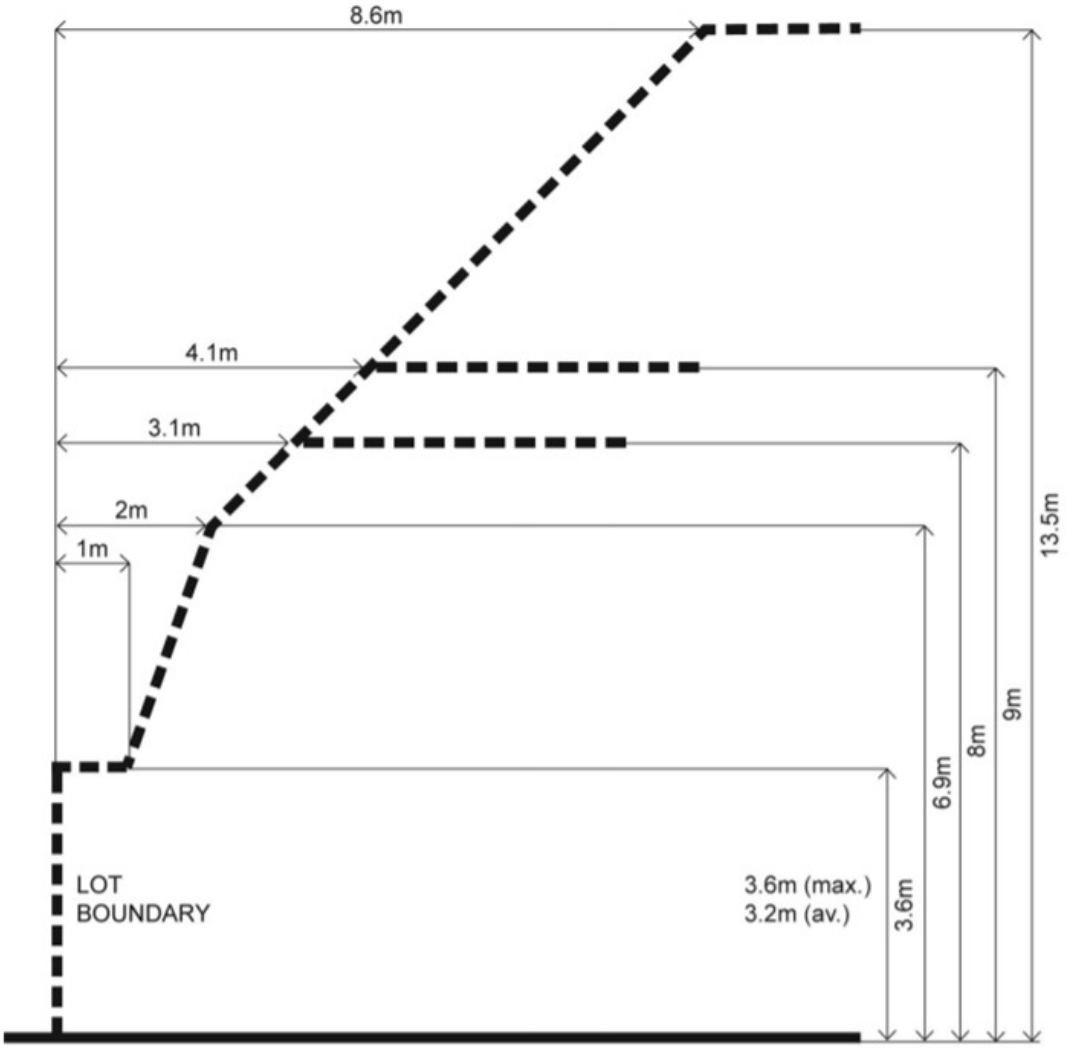
## 53.20-6.10 Side and rear setbacks

A new building not on or within 200mm of a boundary to a residential zone should be set back from side or rear boundaries 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres. Diagram 2 details the standard.

Sunblinds, verandahs, porches, eaves, fascias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the setbacks of this standard.

Landings having an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the setbacks of this standard.

**Diagram 2 Side and rear setbacks**




## 53.20-6.11 Walls on boundaries

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of lot should not abut the boundary for a length of more than:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- Where there are existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot, the length of the existing or simultaneously constructed walls or carports whichever is the greater.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary should not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

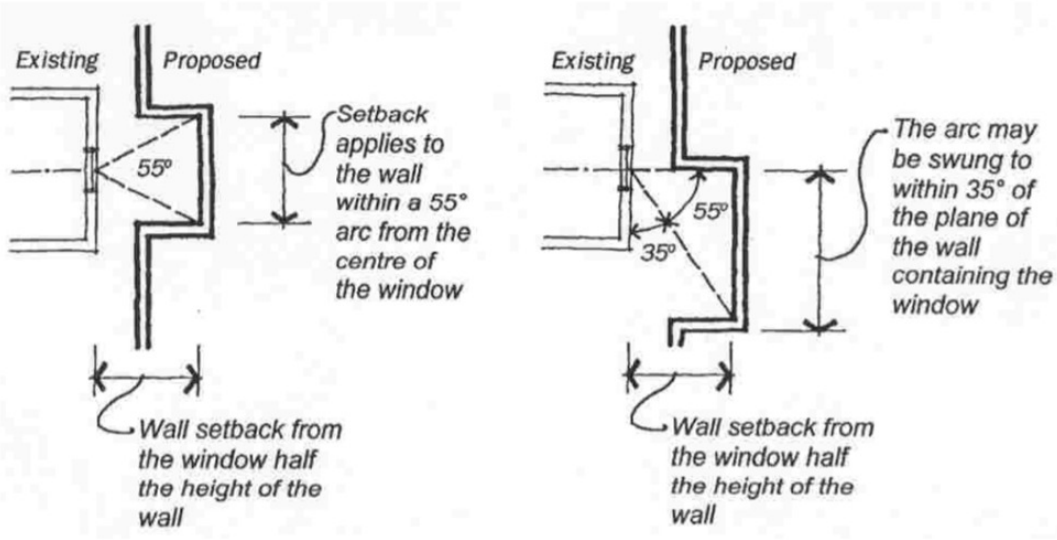
### 53.20-6.12 Daylight to existing windows

Buildings opposite an existing habitable room window should provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

Walls or carports more than 3 metres in height opposite an existing habitable room window should be set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.

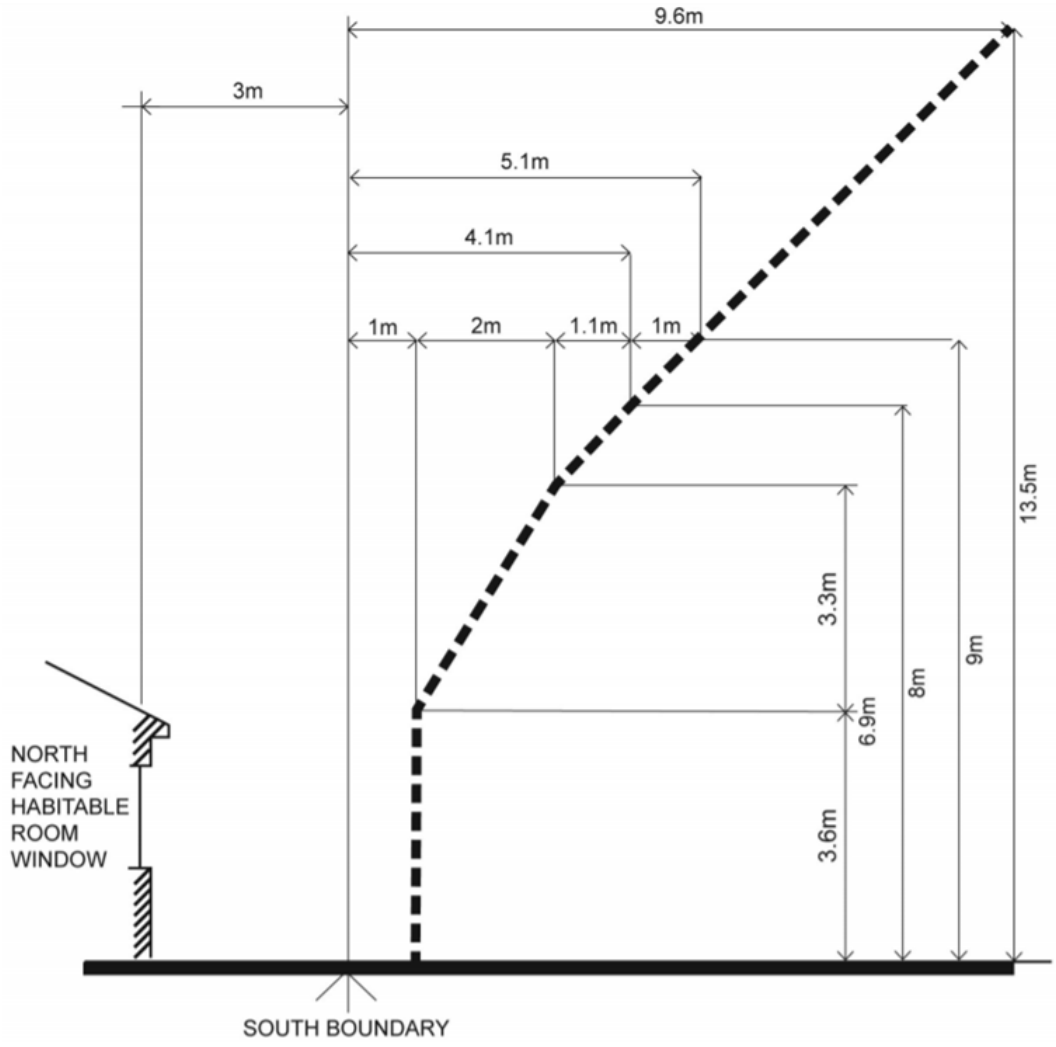
**Diagram 3 Daylight to existing windows**




### 53.20-6.13 North-facing windows

If a north-facing habitable room window of an existing dwelling or a small second dwelling is within 3 metres of a boundary on an abutting lot, a building should be setback from the boundary 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres, for a distance of 3 metres from the edge of each side of the window. A north-facing window is a window with an axis perpendicular to its surface oriented north 20 degrees west to north 30 degrees east.

**Diagram 4 North-facing windows**




### 53.20-6.14 Overshadowing open space

Where sunlight to the secluded private open space of an existing dwelling or small second dwelling is reduced, at least 75 per cent, or 40 square metres with minimum dimension of 3 metres, whichever is the lesser area, of the secluded private open space should receive a minimum of five hours of sunlight between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight should not be further reduced.

### 53.20-6.15 Overlooking

A habitable room window, balcony, terrace, deck or patio should be located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views should be measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio with a direct view into a habitable room window of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio should be either:

- Offset a minimum of 1.5 metres from the edge of one window to the edge of the other.
- Have sill heights of at least 1.7 metres above floor level.
- Have fixed, obscure glazing in any part of the window below 1.7 metre above floor level.
- Have permanently fixed external screens to at least 1.7 metres above floor level and be no more than 25 per cent transparent.

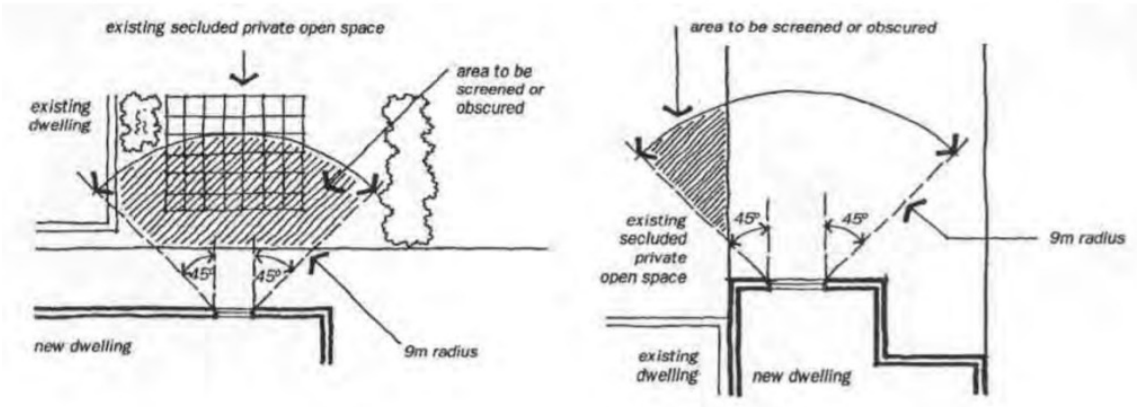
Obscure glazing in any part of the window below 1.7 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view should be:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

**Diagram 5 Overlooking open space**




### 53.20-6.16 Noise impacts

Noise sources, such as mechanical plant, should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

Noise sensitive rooms and secluded private open spaces of new dwellings and residential buildings should take account of noise sources on immediately adjacent properties.

Dwellings and residential buildings close to busy roads, railway lines or industry should be designed to limit noise levels in habitable rooms.

### 53.20-6.17 Daylight to new windows

A window in a habitable room should be located to face:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot, or
- A verandah provided it is open for at least one third of its perimeter, or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

### 53.20-6.18 Private open space

A dwelling (other than an apartment) should have private open space consisting of:

- An area of secluded private open space with a minimum area of 25 square metres, a minimum dimension of 3 metres and convenient access from a living room; or
- A balcony of 8 square metres with a minimum width of 1.6 metres and convenient access from a living room; or
- A roof-top area of 10 square metres with a minimum width of 2 metres and convenient access from a living room.

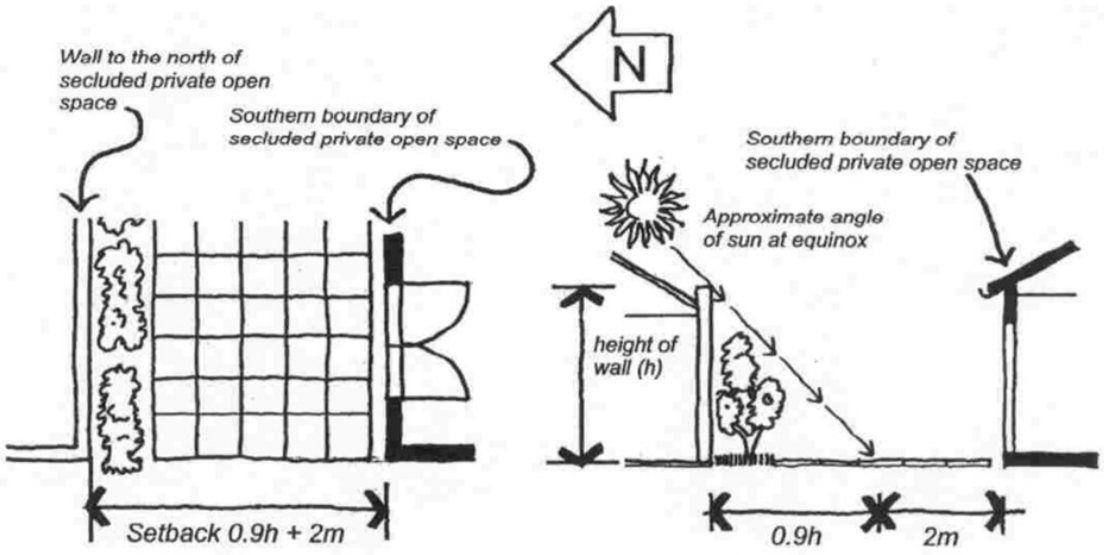
Secluded private open space may be located in the front setback if it is no more than 30% of the street frontage.

### 53.20-6.19 Solar access to open space

The private open space should be located on the north side of the dwelling if appropriate.

The southern boundary of secluded private open space should be set back from any wall on the north of the space at least (2 + 0.9h) metres, where 'h' is the height of the wall.

**Diagram 6 Solar access to open space**




### 53.20-6.20 Storage

Each dwelling should have convenient access to at least 6 cubic metres of externally accessible, secure storage space.

### 53.20-6.21 Front fence

A front fence within 3 metres of a street should not exceed a maximum height of:

- 2 metres for streets in a Transport Zone 2.
- 1.5 metres in other streets or where secluded private open space is proposed within the front setback, the front fence may reach a height of up to 1.8 metres for not more than 30% of the length of the boundary.

### 53.20-6.22 Common property

Developments should clearly delineate public, communal and private areas.

Common property, where provided, should be functional and capable of efficient management.

### 53.20-6.23 Site services

Development should provide space (including easements where required) for site services to be installed and maintained efficiently and economically.

Meters and utility services should be designed as an integrated component of the building or landscape.

Bin and recycling enclosures, mailboxes and other site facilities should be adequate in size, durable, waterproof and blend in with the development.

Mailboxes and other site facilities should be adequate in size, durable, weather-protected, located for convenient access and integrated into the overall design of the development.

## 53.20-7 Development standards for apartments

04/02/2026
VC265

### 53.20-7.1 Energy efficiency

Buildings should be:

- Oriented to make appropriate use of solar energy.
- Sited and designed to ensure that the energy efficiency of existing dwellings or small second dwellings on adjoining lots is not unreasonably reduced.
- Sited and designed to ensure that the performance of existing rooftop solar energy systems on dwellings or small second dwellings on adjoining lots in a General Residential Zone, Neighbourhood Residential Zone or Township Zone are not unreasonably reduced. The existing rooftop solar energy system must exist at the date the application is lodged.

Living areas and private open space should be located on the north side of the development, if practicable.

Developments should be designed so that solar access to north-facing windows is optimised.

Dwellings located in a climate zone identified in Table 4 should not exceed the maximum NatHERS annual cooling load.

**Table 4 Cooling load**

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

*Note: Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).*

### 53.20-7.2 Communal open space

A development of 10 or more dwellings should provide a minimum area of communal outdoor open space of 30 square metres.

If a development contains 13 or more dwellings, the development should also provide an additional minimum area of communal open space of 2.5 square metres per dwelling or 220 square metres, whichever is the lesser. This additional area may be indoors or outdoors and consist of multiple separate areas of communal open space.

Each area of communal open space should be:

- Accessible to all residents.
- A useable size, shape and dimension.
- Capable of efficient management.
- Located to:
  - Provide passive surveillance opportunities, where appropriate.
  - Provide outlook for as many dwellings as practicable.
  - Avoid overlooking into habitable rooms and private open space of new dwellings.
  - Minimise noise impacts to new and existing dwellings or small second dwellings.
- Any area of communal outdoor open space should be landscaped and include canopy cover and trees.

### 53.20-7.3 Solar access to communal outdoor open space

The communal outdoor open space should be located on the north side of a building, if appropriate.

At least 50 per cent or 125 square metres, whichever is the lesser, of the primary communal outdoor open space should receive a minimum of two hours of sunlight between 9am and 3pm on 21 June.

### 53.20-7.4 Landscaping

Development should retain existing trees and canopy cover.

Development should provide for the replacement of any significant trees that have been removed in the 12 months prior to the application being made.

Development should:

- Provide the canopy cover and deep soil areas specified in Table 5. Existing trees can be used to meet the canopy cover requirements of Table 5.
- Provide canopy cover through canopy trees that are:

  - Located in an area of deep soil specified in Table 6. Where deep soil cannot be provided trees should be provided in planters specified in Table 6.
  - Consistent with the canopy diameter and height at maturity specified in Table 7.
  - Located in communal outdoor open space or common areas or street frontages.
- Comprise smaller trees, shrubs and ground cover, including flowering native species.
- Include landscaping, such as climbing plants or smaller plants in planters, in the street frontage and in outdoor areas, including communal outdoor open space.
- Shade outdoor areas exposed to summer sun through landscaping or shade structures, and use paving and surface materials that lower surface temperatures and reduce heat absorption.
- Be supported by irrigation systems which utilise alternative water sources such as rainwater, stormwater and recycled water.
- Protect any predominant landscape features of the area.
- Take into account the soil type and drainage patterns of the site.
- Provide a safe, attractive and functional environment for residents.
- Specify landscape themes, vegetation (location and species), irrigation systems, paving and lighting.

**Table 5 Canopy cover and deep soil requirements**

| Site area | Canopy cover | Deep soil |
|---|---|---|
| 1000 square metres or less | 5% of site area<br>Include at least 1 Type A tree | 5% of site area or 12 square metres whichever is the greater |
| 1001 – 1500 square metres | 50 square metres plus 20% of site area above 1,000 square metres<br>Include at least 1 Type B tree | 7.5% of site area |
| 1501 – 2500 square metres | 150 square metres plus 20% of site area above 1,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 10% of site area |
| 2501 square metres or more | 350 square metres plus 20% of site area above 2,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 15% of site area |

**Table 6 Soil requirements for trees**

| Tree type | Tree in deep soil | Tree in planter | |
|---|---|---|---|
| | Area of deep soil | Volume of planter soil | Depth of planter soil |

| Tree type | Tree in deep soil | Tree in planter | |
|---|---|---|---|
| A | 12 square metres (min. plan dimension 2.5 metres) | 12 cubic metres (min. plan dimension of 2.5 metres) | 0.8 metre |
| B | 49 square metres (min. plan dimension 4.5 metres) | 28 cubic metres (min. plan dimension of 4.5 metres) | 1 metre |
| C | 121 square metres (min. plan dimension 6.5 metres) | 64 cubic metres (min. plan dimension of 6.5 metres) | 1.5 metres |

*Note: Where multiple trees share the same section of soil the total required amount of soil can be reduced by 5% for every additional tree, up to a maximum reduction of 25%*

**Table 7 Tree types**

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity |
|---|---|---|
| A | 4 metres | 6 metres |
| B | 8 metres | 8 metres |
| C | 12 metres | 12 metres |

### 53.20-7.5 Integrated water and stormwater management

Buildings should be connected to a non-potable dual pipe reticulated water supply, where available from the water authority.

The stormwater management system should be:

- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to maximise infiltration of stormwater, water and drainage of residual flows into permeable surfaces, tree pits and treatment areas.

### 53.20-7.6 Building setback

The built form of the development should respect the existing urban context and respond to the features of the site.

Buildings should be set back from side and rear boundaries, and other buildings within the site to:

- Ensure adequate daylight into new habitable room windows.
- Avoid direct views into habitable room windows and private open space of new and existing dwellings or small second dwellings. Developments should avoid relying on screening to reduce views.
- Provide an outlook from dwellings that creates a reasonable visual connection to the external environment.

### 53.20-7.7 Noise impacts

Noise sources, such as mechanical plants should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

The layout of new dwellings and buildings should minimise noise transmission within the site.

Noise sensitive rooms (such as living areas and bedrooms) should be located to avoid noise impacts from mechanical plants, lifts, building services, non-residential uses, car parking, communal areas, and other dwellings or small second dwellings.

New dwellings should be designed and constructed to include acoustic attenuation measures to reduce noise levels from off-site noise sources.

Buildings within a noise influence area specified in Table 8 should be designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Buildings, or part of a building screened from a noise source by an existing solid structure, or the natural topography of the land, do not need to meet the specified noise level requirements.

Noise levels should be assessed in unfurnished rooms with a finished floor and the windows closed.

**Table 8 Noise influence area**

| Noise Source | Noise influence area |
|---|---|
| **Zone interface** | |
| Industry | 300 metres from the Industrial 1, 2 and 3 zone boundary |
| **Roads** | |
| Freeways, tollways and other roads carrying 40,000 Annual Average Daily Traffic Volume | 300 metres from the nearest trafficable lane |
| **Railways** | |
| Railway servicing passengers in Victoria | 80 metres from the centre of the nearest track |
| Railway servicing freight outside Metropolitan Melbourne | 80 metres from the centre of the nearest track |
| Railway servicing freight in Metropolitan Melbourne | 135 metres from the centre of the nearest track |

*Note: The noise influence area should be measured from the closest part of the building to the noise source.*

### 53.20-7.8 Accessibility

At least 50 per cent of dwellings should have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.

- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table 9.

**Table 9 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower |
| Door design | Either:<br>- A slide door, or<br>- A door that opens outwards, or<br>- A door that opens inwards that is clear of the circulation area and has readily removable hinges. | Either:<br>- A slide door, or<br>- A door that opens outwards, or<br>- A door that opens inwards and has readily removable hinges. |
| Circulation area | A clear circulation area that is:<br>- A minimum area of 1.2 metres by 1.2 metres.<br>- Located in front of the shower and the toilet.<br>- Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>- A minimum width of 1 metre.<br>- The full length of the bathroom and a minimum length of 2.7 metres.<br>- Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

### 53.20-7.9 Building entry and circulation

Entries to dwellings and buildings should:

- Be visible and easily identifiable.
- Provide shelter, a sense of personal address and a transitional space around the entry.

The layout and design of buildings should:

- Clearly distinguish entrances to residential and non-residential areas.

- Provide windows to building entrances and lift areas.
- Provide visible, safe and attractive stairs from the entry level to encourage use by residents.
- Provide common areas and corridors that:
  - Include at least one source of natural light and natural ventilation.
  - Avoid obstruction from building services.
  - Maintain clear sight lines.

### 53.20-7.10 Private open space

A dwelling should have private open space consisting of at least one of the following:

- An area at ground level of 25 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- An area on a podium or other similar base of at least 15 square metres, with a minimum dimension of 3 metres at a podium or other similar base and convenient access from a living room.
- A balcony with at least the area and dimensions specified in Table 10 and convenient access from a living room.
- An area on a roof of 10 square metres with a minimum dimension of 2 metres and convenient access from a living room.

If a cooling or heating unit is located on a balcony, the minimum balcony area specified in Table 10 should be increased by at least 1.5 square metres.

If the finished floor level of a dwelling is 40 metres or more above ground level, the requirements of Table 10 do not apply if at least the area specified in Table 11 is provided as living area or bedroom area in addition to the minimum area specified in Table 13 or Table 14.

**Table 10 Balcony size**

| Dwelling type | Minimum area | Minimum dimension |
|---|---|---|
| Studio or 1 bedroom dwelling | 8 square metres | 1.8 metres |
| 2 bedroom dwelling | 8 square metres | 2 metres |
| 3 or more bedroom dwelling | 12 square metres | 2.4 metres |

**Table 11 Additional living area or bedroom area**

| Dwelling type | Additional area |
|---|---|
| Studio or 1 bedroom dwelling | 8 square metres |
| 2 bedroom dwelling | 8 square metres |
| 3 or more bedroom dwelling | 12 square metres |

### 53.20-7.11 Storage

Each dwelling should have convenient access to usable and secure storage space.

The total minimum storage space (including kitchen, bathroom and bedroom storage) should meet the requirements specified in Table 9.

**Table 12 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### 53.20-7.12 Waste and recycling

Developments should include dedicated areas for:

- Waste and recycling enclosures which are:
  - Adequate in size, durable, waterproof and blend in with the development.
  - Adequately ventilated.
  - Located and designed for convenient access by residents and made easily accessible to people with limited mobility.
- Adequate facilities for bin washing. These areas should be adequately ventilated.
- Collection, separation and storage of waste and recyclables, including where appropriate opportunities for on-site management of food waste through composting or other waste recovery as appropriate.
- Collection, storage and reuse of garden waste, including opportunities for on-site treatment, where appropriate, or off-site removal for reprocessing.
- Adequate circulation to allow waste and recycling collection vehicles to enter and leave the site without reversing.
- Adequate internal storage space within each dwelling to enable the separation of waste, recyclables and food waste where appropriate.

Waste and recycling management facilities should be designed and managed in accordance with a Waste Management Plan approved by the responsible authority and:

- Be designed to meet the better practice design options specified in *Waste Management and Recycling in Multi-unit Developments* (Sustainability Victoria, 2019).
- Protect public health and amenity of residents and adjoining premises from the impacts of odour, noise and hazards associated with waste collection vehicle movements.

### 53.20-7.13 Functional layout

Bedrooms should:

- Meet the minimum internal room dimensions specified in Table 13.
- Provide an area in addition to the minimum internal room dimensions to accommodate a wardrobe.

Living areas (excluding dining and kitchen areas) should meet the minimum internal room dimension and area specified in Table 14.

**Table 13 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth | Minimum area |
|---|---|---|---|
| Main bedroom | 3 metres | 3.4 metres | 10.2 sqm |
| All other bedrooms | 3 metres | 3 metres | 9 sqm |

**Table 14 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 sqm |
| 2 or more bedroom dwelling | 3.6 metres | 12 sqm |

### 53.20-7.14 Room depth

Single aspect habitable rooms should not exceed a room depth of 2.5 times the ceiling height.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth should be measured from the external surface of the habitable room window to the rear wall of the room.

### 53.20-7.15 Windows

Habitable rooms should have a window in an external wall of the building.

A window may provide daylight to a bedroom from a smaller secondary area within the bedroom where the window is clear to the sky. The secondary area should be:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.

### 53.20-7.16 Natural ventilation

The design and layout of dwellings should maximise openable windows, doors or other ventilation devices in external walls of the building, where appropriate.

At least 40 per cent of dwellings should provide effective cross ventilation that has:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same area.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

### 53.20-7.17 Integration with the street

Development should be oriented to front existing and proposed streets.

Along street frontages, development should:

- Incorporate pedestrian entries, windows, balconies or other active spaces.
- Limit blank walls.
- Limit high front fencing, unless consistent with the existing urban context.
- Provide low and visually permeable front fences, where proposed.
- Conceal car parking and internal waste collection areas from the street.

Development next to existing public open space should be designed to complement the open space and facilitate passive surveillance.

### 53.20-7.18 External walls and materials

External walls should be finished with materials that:

- Do not easily deteriorate or stain.
- Weather well over time.
- Are resilient to the wear and tear from their intended use.

External wall design should facilitate safe and convenient access for maintenance.

### 53.20-7.19 Wind impacts

Development should:

- not cause unsafe wind conditions specified in Table 15 in public land, publicly accessible areas on private land, private open space and communal open space; and
- achieve comfortable wind conditions specified in Table 15 in public land and publicly accessible areas on private land

within a distance of half the greatest length of the building, or half the total height of the building measured outwards on the horizontal plane from the ground floor building façade, whichever is greater.

Trees and landscaping should not be used to mitigate wind impacts. This does not apply to sitting areas, where trees and landscaping may be used to supplement fixed wind mitigation elements.

Wind mitigation elements, such as awnings and screens should be located within the site boundary, unless consistent with the existing urban context or preferred future development of the area.

**Table 15: Wind conditions**

| Unsafe | Comfortable |
|---|---|
| Annual maximum 3 second gust wind speed exceeding 20 metres per second with a probability of exceedance of 0.1% considering at least 16 wind directions. | Hourly mean wind speed or gust equivalent mean speed (3 second gust wind speed divided by 1.85), from all wind directions combined with probability of exceedance less than 20% of the time, equal to or less than: |

| Unsafe | Comfortable |
|---|---|
| | ▪ 3 metres per second for sitting areas.<br>▪ 4 metres per second for standing areas.<br>▪ 5 metres per second for walking areas. |

## 53.20-9 Transitional provision

20/03/2023
VC229

The development standards for apartments at clause 53.20-6 and clause 53.20-7 introduced by Amendment VC207, do not apply to an application to construct or extend a dwelling, or to construct or extend a front fence if:

- Funded wholly or partly, under Victoria's Big Housing Build program;
- The application is made by or on behalf of the Chief Executive Officer, Homes Victoria; and
- The written confirmation from Homes Victoria or the Chief Executive Officer, Homes Victoria that the application is funded, either wholly or partly, under Victoria's Big Housing Build program has been signed before 30 June 2022.

## 53.20-10 Decision guidelines

14/12/2023
VC253

Before deciding on an application, the responsible authority must consider, as appropriate:

- How the proposed development responds to the site and context description.
- Where a development standard of this clause is not met, the impact on the amenity of the adjoining dwellings or small second dwellings of varying the standard.
- The effect of overshadowing on an appropriately located existing rooftop solar energy system on an adjoining lot.

# 53.21 STATE TRANSPORT PROJECTS

17/02/2022
VC200

## Purpose

To facilitate the delivery of transport projects carried out by or on behalf of the State of Victoria.

## 53.21-1 Application

19/11/2025
VC297

This clause applies to an application under any provision of this planning scheme, other than a VicSmart application or an application to subdivide land, made by or on behalf of the Head, Transport for Victoria, the Secretary to the Department of Transport and Planning or the Suburban Rail Loop Authority.

## 53.21-2 Exemption from review

17/02/2022
VC200

An application to which clause 53.21 applies is exempt from the decision requirements of section 64(1), (2), and (3), and the review rights of section 82(1) of the Act.

## 53.22 SIGNIFICANT ECONOMIC DEVELOPMENT

20/09/2023
VC242

### Purpose

To prioritise and facilitate the planning, assessment and delivery of projects that will make a significant contribution to Victoria's economy and provide substantial public benefit, including jobs for Victorians.

To provide for the efficient and effective use of land and facilitate use and development with high quality urban design, architecture and landscape architecture.

## 53.22-1 Application

04/07/2025
VC258

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

This clause applies to an application under any provision of this planning scheme if all the following are met:

- The applicant submits written confirmation that the application is an application to which this clause applies.
- The conditions corresponding to a category in Table 1 are met.

This clause does not apply to an application to subdivide land, other than an application to subdivide land that includes either:

- A renewable energy facility; or
- A utility installation used to:
  - Transmit or distribute electricity; or
  - Store electricity if the installed capacity is 1 megawatt or greater.

In this clause, ***Invest Victoria*** means the body called 'Invest Victoria', established as an Administrative Office in relation to the Department of Jobs, Skills, Industry and Regions under an Order made under section 11 of the *Public Administration Act 2004*.

**Table 1**

| Category | Condition |
|---|---|
| **Category 1** | The application must include a use specified in Table 2 and the conditions corresponding to that use must be met.<br><br>If the application includes more than one use in Table 2, only one use must meet the corresponding conditions, except where the application includes an energy generation facility or transport terminal, in which case all conditions corresponding to those uses must be met.<br><br>The application must not include a use that requires a permit if that use is not specified in Table 2.<br><br>Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from the Chief Executive Officer or delegate, Invest Victoria. This does not apply to an application for the use or development of land for an energy |

| Category | Condition |
|---|---|
| | generation facility, renewable energy facility, transport terminal, utility installation or warehouse (fuel depot). |
| **Category 2** | The application must include a use specified in Table 2. The conditions corresponding to that use do not need to be met. The application may also include a use that is not specified in Table 2.<br>The proposed use or development must be:<br>▪ carried out by or on behalf of, or jointly or in partnership with, the State of Victoria or a public authority; or<br>▪ funded, or partly funded, by the State of Victoria, the Commonwealth or a public authority; or<br>▪ carried out on Crown land. |
| **Category 3** | The application must include a use specified in Table 2. The conditions corresponding to that use do not need to be met. The application may also include a use that is not specified in Table 2.<br>The Minister for Planning has advised in writing that they are satisfied the proposed use or development of land is of significance having regard to the:<br>▪ Purpose of clause 53.22.<br>▪ Estimated cost of development.<br>▪ Extent to which the development supports or implements planning policy.<br>Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from the Chief Executive Officer or delegate, Invest Victoria. |

**Table 2**

| Use | Condition |
|---|---|
| **Camping and caravan park**<br>**Group accommodation**<br>**Food and drink premises (other than bar, convenience restaurant and take away food premises)**<br>**Leisure and recreation**<br>**Place of assembly**<br>**Recreational boat facility**<br>**Residential hotel** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $10 million if any part of the land is in metropolitan Melbourne.<br>▪ At least $5 million if the land is not in metropolitan Melbourne. |

| Use | Condition |
|---|---|
| **Winery** | |
| **Agriculture**<br>**Data centre**<br>**Industry**<br>**Research centre**<br>**Saleyards** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $20 million if any part of the land is in metropolitan Melbourne.<br>▪ At least $10 million if the land is not in metropolitan Melbourne. |
| **Hospital**<br>**Medical centre**<br>**Warehouse** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $30 million if any part of the land is in metropolitan Melbourne; or<br>▪ At least $10 million if the land is not in metropolitan Melbourne. |
| **Tertiary institution** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $30 million if any part of the land is in metropolitan Melbourne; or<br>▪ At least $20 million if the land is not in metropolitan Melbourne. |
| **Transport terminal** | Must only be used to transport gas. |
| **Retail premises (other than food and drink premises)** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $100 million if any part of the land is in metropolitan Melbourne; or<br>▪ At least $20 million if the land is not in metropolitan Melbourne. |
| **Earth and energy resources industry (other than extractive industry, mining, mineral exploration, petroleum exploration, petroleum production and stone exploration)** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be at least $30 million to the satisfaction of the Minister for Planning. |
| **Extractive industry** | The estimated value of the resource to be extracted must be at least $30 million to the satisfaction of the Minister for Planning. |

| Use | Condition |
|---|---|
| **Mining and mineral exploration** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be at least $10 million to the satisfaction of the Minister for Planning. |
| **Office** | Must meet one of the following to the satisfaction of the Minister for Planning:<br>▪ The combined gross floor area of all buildings (excluding basement and above ground car parking facilities) associated with the proposed use or development must be at least 10,000 square metres if any part of the land is in metropolitan Melbourne; or<br>▪ The combined gross floor area of all buildings (excluding basement and above ground car parking facilities) associated with the proposed use or development must be at least 5,000 square metres if the land is not in metropolitan Melbourne. |
| **Renewable energy facility** | An installed capacity of 1 megawatt or greater must be proposed. |
| **Energy generation facility** | An installed capacity of 1 megawatt or greater must be proposed.<br>Must only be a gas-powered energy generation facility. |
| **Utility installation (other than data centre)** | A utility installation used to:<br>▪ Transmit or distribute electricity; or<br>▪ Store electricity if the installed capacity is 1 megawatt or greater; or<br>▪ Transmit or distribute gas.<br>must be proposed. |

## 53.22-2 Planning scheme requirements

04/07/2025
VC258

The responsible authority may waive or vary any of the following:

- Any building height or setback requirement.
- Any application requirement in this planning scheme if in the opinion of the responsible authority the requirement is not relevant to the assessment of the application.

This does not apply to the following:

- A decision that would be inconsistent with an approved Statement of Planning Policy for a declared area; and
- A requirement in clauses 45.07, 45.08 or 51.03, or in any schedule to those clauses.

## 53.22-3 Application requirements

04/07/2025
VC258

An application must be accompanied by the following information, as appropriate:

- A report or other documents demonstrating the likely feasibility of the development.
- A report prepared by a suitably qualified quantity surveyor which specifies the estimated cost of the development.
- For extractive industry, a report prepared by a suitably qualified person specifying the estimated value of the resource to be extracted.

## 53.22-4 Exemption from review

20/09/2023
VC242

An application under any provision of this planning scheme is exempt from the decision requirements of sections 64(1), (2) and (3), and the review rights of sections 82(1) of the Act.

## 53.22-5 Decision guidelines

04/07/2025
VC258

Before deciding on an application the responsible authority must consider, as appropriate:

- The purpose of the clause.
- The views of the Office of the Victorian Government Architect.

## 53.22-6 Transitional provision

20/09/2023
VC242

Clause 53.22 does not apply to:

- An application for a permit lodged before the approval date of Amendment VC242.
- An application for an amendment of a permit under section 72 of the Act if the original permit application was lodged before the approval date of Amendment VC242.

## 53.23 SIGNIFICANT RESIDENTIAL DEVELOPMENT WITH AFFORDABLE HOUSING

04/07/2025
VC258

### Purpose

To facilitate residential development that contributes to the provision of affordable housing to meet existing and future needs.

To facilitate the redevelopment and renewal of public housing stock to meet existing and future needs.

To facilitate residential development carried out by the State of Victoria or jointly or in partnership with the private sector, including via innovative funding, investment and partnership approaches.

To facilitate residential development with high quality urban design, architecture and landscape architecture.

To provide opportunities for non-residential use and development in association with residential development.

## 53.23-1 Application

04/07/2025
VC258

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

This clause applies to an application under any provision of this planning scheme if all of the following are met:

- The applicant submits written confirmation that the application is an application to which this clause applies.
- The application includes the proposed use or development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling).
- The conditions corresponding to a category in Table 1 are met.

This clause does not apply to an application to subdivide land.

In this clause:

- ***Chief Executive Officer, Homes Victoria*** means 'Chief Executive Officer, Homes Victoria' as defined in the *Housing Act 1983* and the body corporate established under the *Housing Act 1983*.
- ***Invest Victoria*** means the body called 'Invest Victoria', established as an Administrative Office in relation to the Department of Jobs, Skills, Industry and Regions under an Order made under section 11 of the *Public Administration Act 2004*.

**Table 1**

| Category | Condition |
|---|---|
| **Category 1** | The estimated cost of the proposed development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling) as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $50 million if any part of the land is in metropolitan Melbourne.<br>▪ At least $15 million if the land is not in metropolitan Melbourne. |

| Category | Condition |
|---|---|
| | The application includes an affordable housing report required under clause 53.23-3 that demonstrates how the affordable housing contribution specified in clause 53.23-4 (being at least 10 per cent of the total number of dwellings in the proposed development provided as affordable housing or an alternative contribution towards the provision of affordable housing) is intended to be provided if a permit is granted.<br><br>Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from the Chief Executive Officer or delegate, Invest Victoria. |
| **Category 2** | The proposed use or development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling) will be:<br><br>▪ carried out by or on behalf of, or jointly or in partnership with, the State of Victoria or a public authority; or<br><br>▪ funded, or partly funded, by the State of Victoria, the Commonwealth or a public authority; or<br><br>▪ carried out on Crown land.<br><br>If the application is made by or on behalf of the Chief Executive Officer, Homes Victoria, the proposed development includes at least 10 dwellings. |
| **Category 3** | The Minister for Planning has advised in writing that they are satisfied the proposed use or development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling) is of significance having regard to:<br><br>▪ The purpose of clause 53.23.<br><br>▪ Whether a contribution towards affordable housing is proposed.<br><br>▪ The estimated cost of the proposed development.<br><br>▪ The location of the proposed development and whether it has convenient access to jobs, services, infrastructure and community facilities.<br><br>▪ Whether the design, liveability and sustainability of the proposed development is exemplary. |

| Category | Condition |
|---|---|
| | Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from the Chief Executive Officer or delegate, Invest Victoria. |

## 53.23-2 Planning scheme requirements

16/06/2026
VC312

The responsible authority may waive or vary any of the following:

- A minimum garden area requirement.
- Any building height or setback requirement.
- A condition opposite a use in Section 2 in a zone or a schedule to a zone.
- Any application requirement in this planning scheme if in the opinion of the responsible authority the requirement is not relevant to the assessment of the application.

This does not apply to the following:

- A decision that would be inconsistent with an approved Statement of Planning Policy for a declared area; and
- A requirement in clauses 45.07, 45.08 or 51.03, or in any schedule to those clauses.

Clauses 45.09 and 52.06 of this planning scheme do not apply to a use or development proposed in an application where:

- the proposed development will be funded, or partly funded, by the State of Victoria or the Commonwealth; or
- the application is made by or on behalf of the Chief Executive Officer, Homes Victoria.

The provisions of clauses 54.02-2, 55.03-5, 57.03-4 and 58.05-3 of this planning scheme do not apply to:

- an application for a proposed development funded, or partly funded, by the State of Victoria or the Commonwealth; or
- an application made by or on behalf of the Chief Executive Officer, Homes Victoria.

An application for a proposed development that will be funded, or partly funded, by the State of Victoria or the Commonwealth, or an application made by or on behalf of the Chief Executive Officer, Homes Victoria should meet the following standards:

- A minimum 0.6 car parking spaces should be provided to each dwelling. Car parking spaces may be covered or uncovered. If in calculating the number of car parking spaces the result is not a whole number, the required number of car parking spaces is to be rounded down to the nearest whole number greater than 1. Car parking for other land uses in the proposed development must be to the satisfaction of the responsible authority.
- A dwelling (other than an apartment) should have private open space consisting of:
  - an area of secluded private open space with a minimum area of 25 square metres, a minimum dimension of 3 metres and convenient access from a living room; or

- a balcony of 8 square metres with a minimum width of 1.6 metres and convenient access from a living room; or
- a roof-top area of 10 square metres with a minimum width of 2 metres and convenient access from a living room.

- Secluded private open space may be located in the front setback if it is no more than 30 per cent of the street frontage.

## 53.23-3 Application requirements

04/07/2025
VC258

An application must be accompanied by the following information, as appropriate:

- A report prepared by a suitably qualified quantity surveyor which specifies the estimated cost of the proposed development of land for accommodation to the satisfaction of the Minister for Planning.
- A report (affordable housing report) that outlines how a proposed contribution to the provision of affordable housing is intended to be provided should a permit be granted, including the following:
  - The nature of the proposed contribution.
  - The methodology for the delivery of the proposed contribution.
  - The proposed monetary value of the contribution (as a percentage of the estimated cost of the proposed development of land for accommodation).
- If the application includes a non-residential use or development, information about the purpose of the use and the types of activities proposed to be carried out.
- An application for a use or development that will be funded, or partly funded, by Homes Victoria must be accompanied by a letter from the Chief Executive Officer or delegate, Homes Victoria, consenting generally or conditionally to the application being made.
- An application for a use or development that will be funded, or partly funded, by the Commonwealth, must be accompanied by a letter from the Chief Executive Officer, Housing Australia confirming the funding.

## 53.23-4 Permit condition requirement

04/07/2025
VC258

The responsible authority must include the following condition in deciding to grant a permit:

*"Before the use or development of the land begins, excluding demolition, excavation, piling, site preparation works, and works to remediate contaminated land, the owner of the land must enter into an agreement with the responsible authority under section 173 of the Act, in a form to the satisfaction of the responsible authority, that provides for a contribution towards affordable housing (affordable housing contribution) by way of either of the following options:*

- *At least 10 per cent of the total number of dwellings in the development must be provided as affordable housing for sale or lease to a registered housing agency or to Homes Victoria. The details of when and how the affordable housing will be delivered and the total value of the affordable housing contribution must be set out in the agreement. The affordable housing dwellings provided should be representative of the approved dwelling mix to the satisfaction of the responsible authority.*
- *An alternative contribution towards the provision of affordable housing must be provided to the satisfaction of the responsible authority. The details of when and how the alternative contribution is to be made and the total value of the affordable housing contribution must be set out in the agreement to the satisfaction of the responsible authority.*

*The land owner must pay the responsible authority's reasonable costs of the preparation, execution, registration and ending of the section 173 agreement (where applicable)."*

The above requirement to include a condition does not apply if any of the following apply:

- The responsible authority is satisfied that an agreement exists with the State of Victoria or a public authority for the provision of at least 10 per cent of the total number of dwellings in the development as affordable housing and:
  - the use or development will be carried out by or on behalf of, or jointly or in partnership with, the State of Victoria or a public authority; or
  - the development will be funded, or partly funded, by the State of Victoria, the Commonwealth or a public authority; or
  - the development will be carried out on Crown land.
- The conditions corresponding to Category 3 in Table 1 are met and a contribution towards affordable housing is not proposed.

## 53.23-5 Exemption from review

20/09/2023
VC242

An application under any provision of this planning scheme is exempt from the decision requirements of sections 64(1), (2) and (3), and the review rights of sections 82(1) of the Act.

## 53.23-6 Decision guidelines

04/07/2025
VC258

Before deciding on an application the responsible authority must consider, as appropriate:

- The purpose of the clause.
- The views of the Office of the Victorian Government Architect.

## 53.23-7 Transitional provision

20/09/2023
VC242

Clause 53.23 does not apply to:

- An application for a permit lodged before the approval date of Amendment VC242.
- An application for an amendment of a permit under section 72 of the Act if the original permit application was lodged before the approval date of Amendment VC242.

# 53.24 FUTURE HOMES

22/09/2023
VC243

## Purpose

To facilitate apartment developments that incorporate exemplar designs approved under the Future Homes project.

To facilitate apartment developments that increase the density and diversity of housing to respond to Victoria's population growth.

To facilitate apartment developments that are exemplary in their design, liveability and sustainability.

## 53.24-1 Application

28/02/2025
VC274

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

This clause applies to an application under clause 32.08-7 of the General Residential Zone or clause 32.10-5 of the Housing Choice and Transport Zone to construct two or more dwellings on a lot, or to construct a front fence in association with the construction of two or more dwellings on a lot, if all of the following requirements are met:

- The development must be an apartment development.
- The design of the apartment development must use a licenced exemplar design approved under the Future Homes project overseen by the Department of Transport and Planning.
- Any part of the land:
  - Must be within 800 metres of a passenger railway station; or
  - Must be within 800 metres of a metropolitan, major or neighbourhood activity centre in Metropolitan Melbourne; or
  - Must be within 800 metres of an activity centre outside Metropolitan Melbourne; and
  - Must not be within a Heritage Overlay or Neighbourhood Character Overlay.

For the purposes of this clause, the distance from an activity centre must be measured from:

- the boundary of the activity centre specified, shown, described or otherwise indicated in this planning scheme; or
- if the boundary of the activity centre is not specified, shown, described or otherwise indicated in this planning scheme, the boundary of any Activity Centre Zone, commercial zone, Mixed Use Zone or Precinct Zone.

For the purposes of this clause, the distance from a passenger railway station must be measured from the closest point to a station platform.

## 53.24-2 Meaning of terms

26/09/2023
VC246

An activity centre outside Metropolitan Melbourne means a:

- Central Activity District
- Central Business District
- City Centre
- Major Activity Centre
- Primary Activity Centre
- Principal Activity Centre
- Principal Centre

- Regional Activity Centre
- Regional Centre
- Regional Retail Centre

## 53.24-3 Pre-application referral requirements

25/02/2025
VC257

If an application under clause 32.08-7 or 32.10-5 is required to be referred in accordance with section 55 of the Act to a referral authority specified in clause 66, the following requirements must be met:

- The development for which the application is made must have been considered by the referral authority within the past 3 months of the application being made to the responsible authority.
- The referral authority must have stated in writing that it does not object to the granting of the permit for the development.

If the proposed development requires a permit under a provision of this planning scheme other than clause 32.08-7 of the General Residential Zone or clause 32.10-5 of the Housing Choice and Transport Zone and an application for that permit is required to be referred in accordance with section 55 of the Act to a referral authority specified in clause 66, the following requirements must be met:

- The development for which the application is made must have been considered by the referral authority within the past 3 months of the application being made to the responsible authority.
- The referral authority must have stated in writing that it does not object to the granting of the permit for the development.

## 53.24-4 Application requirements

03/12/2024
VC269

An application must be accompanied by:

- A neighbourhood and site description.
- A design response.
- A landscape plan.

### Neighbourhood and site description

The neighbourhood and site description may use a site plan, photographs or other techniques and must include:

- Site shape, size, orientation, levels and easements.
- The location of existing buildings on the site and on surrounding properties, including the location and height of walls built to the boundary of the site.
- The use of surrounding buildings.
- The location of private open space and habitable room windows of surrounding properties that have an outlook to the site.
- Solar access to the site and adjoining properties.
- Views to and from the site.
- Street frontage features such as poles, street trees and kerb crossovers.
- The pattern of development of the neighbourhood, including the average street setback for the development site (approximately 150 metres either side).
- The location of local shops, public transport services and public open spaces within walking distance.

- Movement systems through and around the site.
- Any other notable features or characteristics of the site and area.

#### Design response

The design response must address the development standards of clause 53.24 and the principles, objectives, requirements and targets of the *Building future homes adaptation guide* (Department of Transport and Planning, 2023).

#### Landscape plan

The landscape plan must include:

- The location of significant trees existing on and adjacent to the site and any significant trees removed from the site 12 months prior to the application being made.
- The location and details of proposed vegetation, including canopy trees on the site.
- A planting schedule that demonstrates compliance with the deep soil and canopy cover requirements.
- Details of the soil type, drainage patterns and irrigation system of the site.

## 53.24-5 Exemption from planning scheme requirements

31/03/2025
VC267

The requirements of clauses 45.09, 52.06 and 52.34 of the planning scheme do not apply to a development under this clause.

An application is exempt from any application requirement in the General Residential Zone or any application requirements specified in a schedule to the General Residential Zone or the Housing Choice and Transport Zone.

An application is exempt from and is not required to meet the requirements of clauses 55, 57 and 58.

#### Matters to be considered

In deciding an application, the responsible authority must not consider, and is exempt from considering:

- The Municipal Planning Strategy and Planning Policy Framework.
- The purpose of the General Residential Zone or the Housing Choice and Transport Zone.
- Any decision guideline in the General Residential Zone, or a schedule to the General Residential Zone or the Housing Choice and Transport Zone.
- The decision guidelines in clause 65.

## 53.24-6 Exemption from review

25/02/2025
VC257

An application under clause 32.08-7 or 32.10-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 53.24-7 Development standards

03/12/2024
VC269

A development must meet all of the following development standards.

## 53.24-7.1 Car parking

03/12/2024
VC269

Car parking spaces must be provided at:

- a rate of at least 0.6 spaces per dwelling; rounded down to the closest whole number or
- if the land is in a Parking Overlay and the overlay specifies a lower car parking rate for a dwelling, the applicable rate in the overlay.

Mechanical parking may be used to meet the car parking requirement provided the dimensions of the mechanical parking system meets the standards for a B99 vehicle in Australian Standard AS/NZS 2890.1:2004, Parking facilities - Off-street car parking (Standards Australia, 2004).

### 53.24-7.2 Bicycle parking

03/12/2024
VC269

Bicycle parking spaces must be provided at a rate of:

- at least 1 space per dwelling for residents.
- at least 1 space per 5 dwellings for visitors.

At least 20 percent of bicycle parking spaces for residents must be provided as horizontal spaces.

All visitor bicycle parking spaces must be provided as horizontal spaces and be located to provide convenient access from surrounding bicycle routes and main building entrances.

### 53.24-7.3 Communal open space

03/12/2024
VC269

A development of 10 or more dwellings must provide a minimum area of communal outdoor open space of 30 square metres.

If a development contains 13 or more dwellings, the development must also provide an additional minimum area of communal open space of 2.5 square metres per dwelling or 220 square metres, whichever is the lesser. This additional area may be indoors or outdoors and consist of multiple separate areas of communal open space.

Each area of communal open space must be:

- Accessible to all residents.
- Of a useable size, shape and dimension.
- Capable of efficient management.
- Located to:
  - Provide passive surveillance, where appropriate.
  - Provide outlook for as many dwellings as practicable.
  - Limit overlooking into habitable rooms and private open space of new dwellings.
  - Minimise noise impacts on new and existing dwellings.

Any area of communal outdoor open space must be landscaped and where possible include canopy cover and trees.

At least 50 per cent or 125 square metres, whichever is the lesser, of the primary area of communal outdoor open space must receive a minimum of two hours of sunlight between 9am and 3pm on 21 June.

### 53.24-7.4 Environmentally sustainable design

24/09/2026
VC315

A development must achieve:

- At least a 7.5 star NatHERS average (area-weighted across all dwellings).
- At least a 6.5 star NatHERS for an individual dwelling.
- An excellence, or equivalent score, in environmentally sustainable design as outlined in the Building Future Homes Adaptation Guide.

- A score of 100 per cent using the Blue Factor stormwater management tool.

### Transitional Provisions

Clause 53.24-7.4 of this planning scheme, as in force immediately before the commencement of Amendment VC315, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 53.24-7.5 Accessibility

03/12/2024
VC269

At least 50 per cent of dwellings must be designed to meet all of the following accessibility design standards.

### Dwelling access

- A slip resistant continuous step-free pathway must be provided from the street and car parking area to the dwelling entry door.
- The pathway must have a minimum clear width of 1.2 metres, no steps, a maximum gradient of 1:14 and a cross fall not steeper than 1:40.
- Where ramps with landings are required as part of the pathway, landings must be no less than 1.2 metres in length, and gate and door swings must not overlap this minimum landing requirements.
- Landings must be provided at the start and end of ramps.
- Where there is a change in height of 190 millimetres or less at an apartment entrance, a step ramp with a gradient not steeper than 1:10 may be used.
- Car parking spaces must provide:
  - A level surface with a gradient not exceeding 1:40 in any direction.
  - A vertical clearance over the parking space of at least 2.5 metres free of obstructions (the 2.5 m clearance is not required where mechanical parking is used).

### Dwelling entrance

- The entrance to the dwelling must have:
  - A clear opening width of at least 850 millimetres.
  - A level, and step-free transition and threshold.
  - A level landing on the arrival side of the entrance door of at least 1.35 metres x 1.35 metres.

### Internal doors and passageways

- Doorways to rooms must have a clear opening width of at least 850 millimetres.
- Doorways to rooms must have a level, step-free transition and threshold.
- The dwelling must have clear passageways and corridors with a minimum width of 1.2 metres.

### Toilets and showers

- At least one toilet must be located on the entry level of the dwelling and must have:
  - A secure fixing surface to enable future installation of grab rails.
  - A minimum 1.2 metre x 1.2 metre circulation area located in front of the toilet that is clear of the basin and the door swing.

- The toilet must be located in:
  - the corner of the room if it is in a bathroom with the centreline of the pan 450 to 460 millimetres from the adjacent wall; or
  - a room with a minimum width of 1.2 metres if it is in a room separate to the bathroom.
- A least one bathroom must be located on the entry level of the dwelling and must have a hobless, step-free shower that:
  - Has a removable shower screen.
  - Has a minimum clear internal dimensions of 900 millimetres x 900 millimetres.
  - Has a minimum 1.2 metres x 1.2 metres clear circulation area located in front of the shower.
  - Is located in the corner of the room to enable future installation of grab rails.
- A secure fixing surface must be provided at all toilets, showers and baths to enable future installation of grab rails. This requirement may be met by either:
  - walls that are constructed of solid masonry or concrete; or
  - providing additional wall framing or structure lining behind the finished wall surface.

#### Kitchen laundry

- The kitchen and laundry must have a minimum 1.2 metres clear circulation area in front of appliances and benches.
- Floor finishes must extend under appliances and cabinets to allow for future modifications.

### 53.24-7.6 Building entry and circulation

03/12/2024
VC269

Common corridors and passageways providing access to a dwelling entry must have a minimum width of 1.2 metres.

Entries to dwellings and buildings must:

- Be visible and easily identifiable.
- Provide shelter, a sense of personal address and a transitional space around the entry.

The layout and design of buildings must:

- Clearly distinguish entrances to residential and non-residential areas.
- Provide windows to building entrances and lift areas.
- Provide visible, safe and attractive stairs from the entry level to encourage use by residents.
- Provide common areas and corridors that:
- Include at least one source of natural light and natural ventilation.
  - Avoid obstruction from building services.
  - Maintain clear sight lines.

### 53.24-7.7 Storage

03/12/2024
VC269

Each dwelling must have convenient access to usable and secure storage space.

The total minimum storage space (including kitchen, bathroom and bedroom storage) must meet the requirements specified in Table 1.

**Table 1: Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

## 53.24-7.8 Functional layout

03/12/2024
VC269

Bedrooms must:

- Meet the minimum internal room dimensions specified in Table 2.
- Provide an area in addition to the minimum internal room dimensions to accommodate a wardrobe.

**Table 2:Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth |
|---|---|---|
| Main bedroom | 3 metres | 3.4 metres |
| All other bedrooms | 3 metres | 3 metres |

Living areas (excluding dining and kitchen areas) must meet the minimum internal room dimensions specified in Table 3.

**Table 3: Living area dimension and area**

| Dwelling type | Minimum width | Minimum depht |
|---|---|---|
| Studio or 1 bedroom dwelling | 3.3 metres | 10 square metres |
| 2 or more bedroom dwelling | 3.6 metres | 12 square metres |

## 53.24-7.9 Room depth

03/12/2024
VC269

Single aspect habitable rooms must not exceed a room depth of 2.5 times the ceiling height.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth must be measured from the external surface of the habitable room window to the rear wall of the room.

## 53.24-7.10 Windows

03/12/2024
VC269

Habitable rooms must have a window in an external wall of the building.

A window may provide daylight to a bedroom from a smaller secondary area within the bedroom where the window is clear to the sky.

The secondary area must be:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.

## 53.24-7.11 Natural ventilation

03/12/2024
VC269

The design and layout of dwellings must maximise openable windows, doors or other ventilation devices in external walls of the building.

All dwellings must provide effective natural ventilation. Effective natural ventilation includes cross ventilation, single sided ventilation or mechanically assisted ventilation.

For cross ventilation:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same area.

The breeze path must be measured between the ventilation openings on different orientations of the dwelling.

## 53.24-7.12 Deep soil and canopy cover

03/12/2024
VC269

A development must:

- Provide the canopy cover and deep soil areas specified in Table 4 (existing trees can be used to meet the canopy cover requirements of Table 4).
- Provide canopy cover through canopy trees that are:
  - Located in an area of deep soil specified in Table 5, or where deep soil cannot be provided, located in planters specified in Table 5.
  - Consistent with the canopy diameter and height at maturity specified in Table 6.
  - Located in communal outdoor open space or common areas or street frontages.
  - Be supported by irrigation systems which utilise alternative water sources such as rainwater, stormwater and recycled water.
  - Take into account the soil type and drainage patterns of the site.

**Table 4: Canopy cover and deep soil requirements**

| Site area | Canopy area | Deep soil |
|---|---|---|
| 1000 square metres or less | 5% of site area<br>Include at least 1 Type A tree | 5% of site area or 12 square metres whichever is the greater |
| 1001 – 1500 square metres | 50 square metres plus 20% of site area above 1,000 square metres<br>Include at least 1 Type B tree | 7.5% of site area |
| 1501 – 2500 square metres | 150 square metres plus 20% of site area above 1,500 square metres | 10% of site area |

| Site area | Canopy area | Deep soil |
|---|---|---|
| | Include at least 2 Type B trees or 1 Type C tree | |
| 2501 square metres or more | 350 square metres plus 20% of site area above 2,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 15% of site area |

**Table 5: Soil requirements for trees**

| Tree type | Tree in deep soil<br>Area of deep soil | Tree in planter<br>Volume of soil planter | <br>Depth of soil planter |
|---|---|---|---|
| A | 12 square metres<br>(min. plan dimension 2.5 metres) | 12 cubic metres<br>(min. plan dimension of 2.5 metres) | 0.8 metre |
| B | 49 square metres<br>(min. plan dimension 4.5 metres) | 28 cubic metres<br>(min. plan dimension of 4.5 metres) | 1 metre |
| C | 121 square metres<br>(min. plan dimension 6.5 metres) | 64 cubic metres<br>(min. plan dimension of 6.5 metres) | 1.5 metres |

*Note* *Where multiple trees share the same section of soil the total required amount of soil can be reduced by 5% for every additional tree, up to a maximum reduction of 25%.*

**Table 6: Tree types**

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity |
|---|---|---|
| A | 4 metres | 6 metres |
| B | 8 metres | 8 metres |
| C | 12 metres | 12 metres |

## 53.24-8 Decision guidelines

03/12/2024
VC269

Before deciding on an application the responsible authority must consider the purpose of this clause.

## 53.25 GREAT DESIGN FAST TRACK

07/04/2025
VC280

### Purpose

To facilitate innovative dwelling, apartment and mixed-use residential development.

To facilitate development that increases the density and diversity of dwellings to respond to Victoria's population growth.

To facilitate the development of dwellings with convenient access to public transport, and community, retail and other services.

To facilitate development that is of a high quality in its design, liveability and sustainability.

### 53.25-1 Application

16/06/2026
VC312

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

This clause applies to an application under any provision of this planning scheme for the development of land, or the use and development of land, (other than the subdivision of land), if all of the following are met:

- The applicant submits written confirmation that the application is an application to which this clause applies.
- The application includes the construction of at least eight dwellings.
- Any proposed building contains at least two storeys and not more than eight storeys.
- The proposed development achieves a minimum NatHERS rating of:
  - 8.0 stars average, with no individual dwelling less than 6.5 stars for apartment developments.
  - 7.5 stars for all other dwellings.
- Each proposed dwelling provides effective natural ventilation, which includes cross ventilation, single sided ventilation or mechanically assisted ventilation.
- The Minister for Planning has advised in writing that they are satisfied the proposed use or development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling) is of significance having regard to:
  - The purpose of clause 53.25.
  - Whether the quality of the design, liveability and sustainability of the proposed development meets the design principles published by the Minister for Planning on the Department's Internet site for the purposes of clause 53.25 ('the design principles').
  - The location of the proposed development and whether it has convenient access to jobs, services, infrastructure and community facilities.
- Information demonstrating that the proposed development meets the design principles is provided to the satisfaction of the Minister for Planning. This must include written advice from the Office of the Victorian Government Architect to the satisfaction of the Minister for Planning.
- Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from a Deputy Secretary of the Department of Jobs, Skills, Industry and Regions or delegate to the satisfaction of the Minister for Planning.

### 53.25-2 Planning scheme requirements

07/04/2025
VC280

The responsible authority may waive or vary any of the following in relation to an application or a proposed use or development:

- A minimum garden area requirement.
- Any building height or setback requirement.
- A condition opposite a use in Section 2 in a zone or a schedule to a zone.

A decision to waive or vary any of the matters above does not apply:

- where it would be inconsistent with an approved Statement of Planning Policy for a declared area; or
- to a requirement in clauses 45.07, 45.08 or 51.03, or in any schedule to those clauses.

The responsible authority may waive or vary any of the requirements of clauses 45.09, 52.06 and 52.34 of this planning scheme in relation to an application or a proposed use or development.

An application is exempt from an application requirement in this planning scheme if in the opinion of the responsible authority the requirement is not relevant to the assessment of the application.

Clauses 52.20, 53.20, 53.23 and 53.24 of this planning scheme do not apply to an application to which this clause applies.

## 53.25-3 Application requirements

07/04/2025
VC280

If the application includes a non-residential use or development, information about the purpose of the use and the types of activities proposed to be carried out must accompany the application, as appropriate.

## 53.25-4 Exemption from review

07/04/2025
VC280

An application under any provision of this planning scheme is exempt from the decision requirements of sections 64(1), (2) and (3), and the review rights of section 82(1) of the Act.

## 53.25-5 Decision guidelines

07/04/2025
VC280

Before deciding on an application, in addition to the decision guidelines elsewhere in this planning scheme including in clause 65, the responsible authority must consider, as appropriate:

- The purpose of the clause.
- The views of the Office of the Victorian Government Architect.

## 53.25-6 Transitional provision

07/04/2025
VC280

Clause 53.25 does not apply to:

- An application for a permit lodged before the approval date of Amendment VC280.
- An application for an amendment of a permit under section 72 of the Act if the original permit application was lodged before the approval date of Amendment VC280.

# 54 ONE DWELLING ON A LOT OR A SMALL SECOND DWELLING ON A LOT

15/10/2026
VC306

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage residential development that provides reasonable standards of amenity for existing and new residents.

To encourage residential development that responds to the site and the surrounding area.

## Application

Provisions in this clause apply to the classes of applications specified in clauses:

- 32.04-5 and 32.04-6, Mixed Use Zone,
- 32.05-6 and 32.05-7, Township Zone,
- 32.07-4 and 32.07-5, Residential Growth Zone,
- 32.08-5 and 32.08-6, General Residential Zone,
- 32.09-5 and 32.09-6, Neighbourhood Residential Zone,
- 32.10-3 and 32.10-4, Housing Choice and Transport Zone,
- 43.05-2, Neighourhood Character Overlay, associated with one dwelling on a lot, in a Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone.

The objective contained in clause 54.02-8 does not apply to one dwelling on a lot.

The objectives contained in clauses 54.02-7, 54.03-1, 54.03-3, 54.05-3 and 54.05-4 do not apply to a small second dwelling.

## Operation

The provisions of this clause contain:

- **Objectives**. An objective describes the outcome to be achieved in the completed development.
- **Standards**. A standard contains the requirements to meet the corresponding objective.

  If a zone or a schedule to a zone specifies a standard that modifies the standard set out in this clause, the modified standard in the zone or a schedule to the zone applies.

  If the land is included in a Neighbourhood Character Overlay and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.

  If the land is included in an overlay, other than a Neighbourhood Character Overlay, and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.
- **Decision guidelines.** If a standard is not met, the decision guidelines set out the matters that the responsible authority must consider before deciding if the corresponding objective is met.

## Requirements

A development must meet all of the applicable objectives contained in this clause.

If a development meets a standard:

- The corresponding objective is deemed to be met;
- The responsible authority is not required to consider the corresponding decision guidelines.

If a development does not meet a standard, the responsible authority must consider the applicable decision guidelines in determining whether the corresponding objective is met.

### Exemptions

Despite any other provision of this planning scheme, in determining applications to which this clause applies, the responsible authority is exempt from and is not required to consider:

- The Municipal Planning Strategy and Planning Policy Framework, unless an applicable decision guideline specifies otherwise.
- The purpose or decision guidelines of the relevant zone, unless an applicable decision guideline specifies otherwise.
- The decision guidelines in Clause 65, unless an applicable decision guideline specifies otherwise.

If there is any inconsistency between the requirements of this clause and another provision of this planning scheme, this clause prevails.

An application to which this clause applies is exempt from the requirements of:

- Section 60(1)(b), (1)(e), (1)(f), (1A)(b) to (h), (1A)(j) and (1B) of the Act; and
- Section 84B(2)(b) to (g) and (2)(i) to (jb) of the Act.

## 54.01 APPLICATION REQUIREMENTS

08/09/2025
VC282

An application to which this clause applies must be accompanied by:

- A site description.
- A design response.
- A written statement outlining which standards are met and which are not met. If a standard is not met, the written statement must include an explanation of how the development meets the corresponding objective having regard to the corresponding decision guidelines.

### 54.01-1 Site description

08/09/2025
VC282

The neighbourhood and site description may use a site plan, photographs or other techniques and must accurately describe:

- The built form, scale and character of surrounding development including front fencing.
- Site shape, size, orientation and easements.
- Levels of the site and the difference in levels between the site and surrounding properties.
- The location of existing buildings on the site and on surrounding properties, including the location and height of walls built to the boundary of the site.
- The use of surrounding buildings.
- The location of secluded private open space and habitable room windows of surrounding properties which have an outlook to the site within 9 metres.
- Solar access to the site and to surrounding properties.
- Location of existing trees 5 metres in height or greater, with a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level, on the site.
- Any cut and filled areas of soil, where known.
- Street frontage features such as poles, services, street trees and kerb crossovers.
- The location of any existing domestic solar energy system on the roof of a dwelling, apartment development or residential building on surrounding properties.

If in the opinion of the responsible authority a requirement of the site description is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

### 54.01-2 Design response

24/09/2026
VC315

The design response must explain how the proposed design derives from and responds to the site description.

The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings.

The design response must include a landscape plan that details the proposed:

- Retention and planting of canopy trees.
- Planting of other vegetation including location, species, number and size at maturity of vegetation.
- Where required, areas of deep soil and root barriers.
- Irrigation system to support existing and planted vegetation including details of any alternative water supply sources.

- Selection of canopy trees and vegetation, including species, that responds to the site's environment, location and geographic factors.
- Location of site services, clothes drying and storage.

If in the opinion of the responsible authority a design response requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

# 54.02 NEIGHBOURHOOD CHARACTER

08/09/2025
VC282

## 54.02-1 Street setback objective

24/09/2026
VC315

To ensure that the setbacks of buildings from a street respond to the existing or preferred neighbourhood character and make efficient use of the site.

### Standard A2-1

Walls of new buildings are set back from streets:

- At least the distance specified in a schedule to the zone if the distance specified in the schedule is less than the distance specified in Table A2-1; or
- If no distance is specified in a schedule to the zone, the distance specified in Table A2-1.

Porches, pergolas and verandahs that are less than 3.6 metres high and eaves may encroach not more than 2.5 metres into the setbacks of this standard.

**Table A2-1 Street setback**

| Development context | Minimum setback from front street | Minimum setback from a side street |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The same distance as the lesser front wall setback of the existing buildings on the abutting allotments facing the front street or 6 metres, whichever is the lesser. | Not applicable |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 6 metres, whichever is the lesser. | Not applicable |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 6 metres, whichever is the lesser.<br><br>If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | The same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- Whether the siting of the building is constrained by the shape, dimensions, slope or other conditions of the site.
- Whether a different setback would be more appropriate taking into account the prevailing setbacks of existing buildings on nearby lots.
- The visual impact of the building when viewed from the street and from adjoining properties.
- Whether a different setback affects the ability to retain or plant canopy trees.

## 54.02-2 Building height objective

24/09/2026
VC315

To ensure that the height of buildings respond to the existing or preferred neighbourhood character.

### Standard A2-2

The maximum building height of a new building does not exceed the maximum height specified in the zone, schedule to the zone or an overlay that applies to the land.

If no maximum height is specified in the zone, schedule to the zone or an overlay, the maximum building height of a new building does not exceed 9 metres, unless the slope of the natural ground level at any cross section wider than 8 metres of the site of the building is 2.5 degrees or more, in which case the maximum building height does not exceed 10 metres.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- Any maximum building height specified in the zone, a schedule to the zone or an overlay applying to the land.
- The design response.
- The effect of the slope of the site on the height of the building.
- The relationship between the proposed building height and the height of existing adjacent buildings.
- The visual impact of the building when viewed from the street and from adjoining properties.

## 54.02-3 Side and rear setbacks objective

08/09/2025
VC282

To ensure that the height and setback of a building from a boundary responds to the existing or preferred neighbourhood character and limits the impact on the amenity of existing dwellings or small second dwellings.

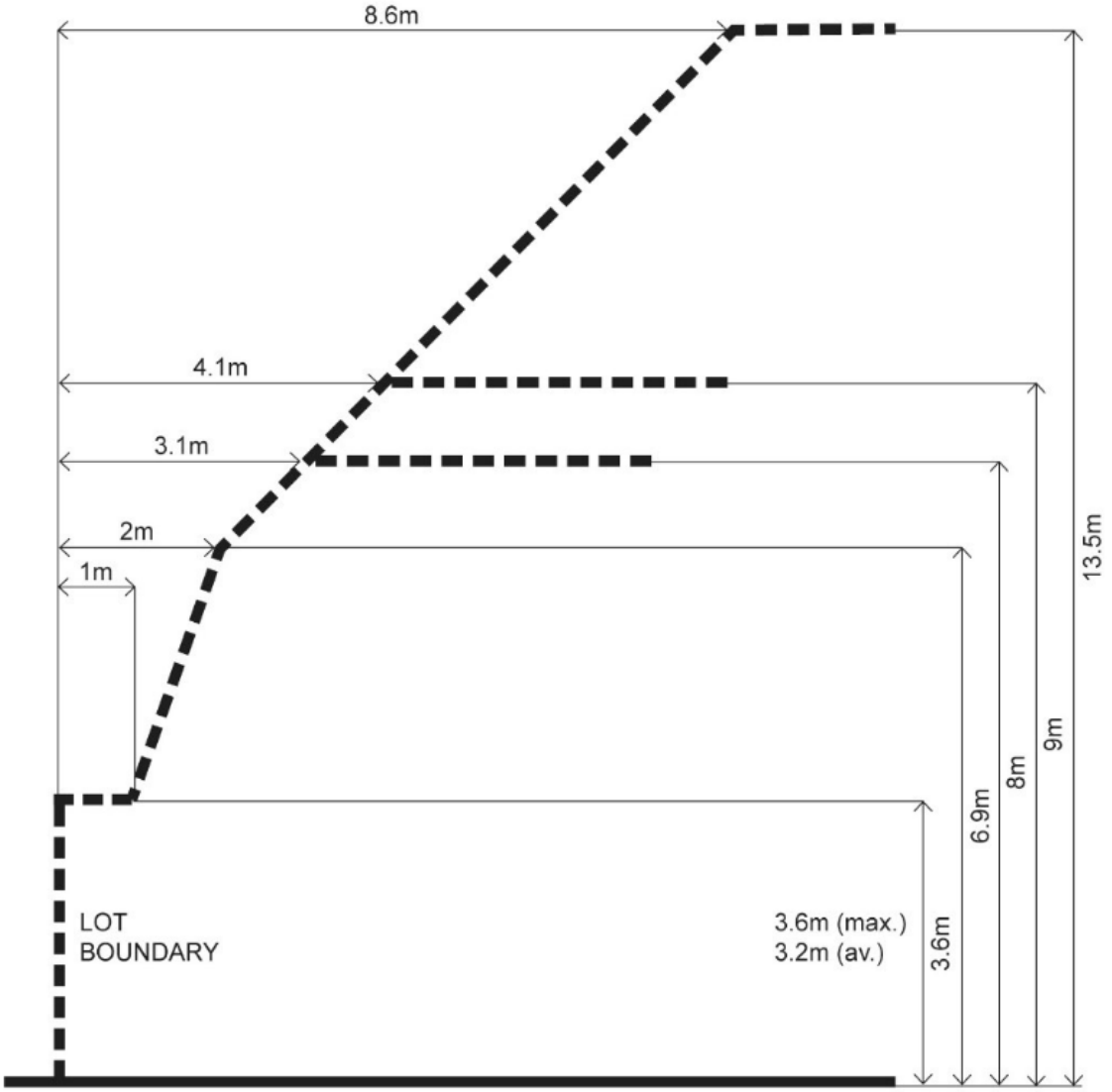
### Standard A2-3

A new building not on or within 200mm of a boundary is set back from side or rear boundaries at least 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

Sunblinds, verandahs, porches, eaves, facias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the side and rear setbacks.

Landings that have an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the side and rear setbacks.

**Diagram A2-3 Side and rear setbacks**




**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The impact on the amenity of the habitable room windows and private open space of existing dwellings or small second dwellings.
- Whether the wall is opposite an existing or simultaneously constructed wall built to the boundary.
- Whether the wall abuts a side or rear lane.
- Whether a different setback in a rear yard affects the ability to retain or plant canopy trees.

## 54.02-4 Walls on boundaries objective

08/09/2025
VC282

To ensure that the location, length and height of a wall on a boundary responds to the existing or preferred neighbourhood character and limits the impact on the amenity of existing dwellings and small second dwellings.

### Standard A2-4

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of a lot does not abut the boundary for a length that exceeds the greater of the following distances:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- The length of existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary does not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The extent to which walls on boundaries are part of the neighbourhood character.
- The impact on the amenity of existing dwellings or small second dwellings.
- The opportunity to minimise the length of walls on boundaries by aligning a new wall on a boundary with an existing wall on a lot of an adjoining property.
- The orientation of the boundary that the wall is being built on.
- The width of the lot.
- The extent to which the slope and retaining walls or fences reduce the effective height of the wall.
- Whether the wall abuts a side or rear lane.
- The need to increase the wall height to screen a box gutter.

## 54.02-5 Site coverage objective

08/09/2025
VC282

To ensure that the site coverage responds to the existing or preferred neighbourhood character and responds to the features of the site.

### Standard A2-5

The site area covered by buildings does not exceed:

- The maximum site coverage specified in a schedule to the zone; or
- If no maximum site coverage is specified in a schedule to the zone, the percentage specified in Table A2-5.

If the maximum site coverage is specified in a schedule to a zone, it must be greater than the percentage specified in Table A2-5.

**Table A2-5 Site coverage**

| Zone | Area |
|---|---|
| Neighbourhood Residential Zone<br>Township Zone | 60 per cent |
| General Residential Zone | 65 per cent |
| Residential Growth Zone<br>Mixed Use Zone<br>Housing Choice and Transport Zone | 70 per cent |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The existing site coverage and any constraints imposed by existing development or the features of the site.
- The site coverage of adjacent properties.
- The effect of the visual bulk of the building and whether this is acceptable in the neighbourhood.
- Whether a different area of site coverage affects the ability to retain or plant canopy trees.

## 54.02-6 Tree canopy objectives

24/09/2026
VC315

To provide tree canopy that responds to the neighbourhood character of the area and reduces the visual impact of buildings on the streetscape.

To preserve existing canopy cover and support the provision of new canopy cover.

To ensure new canopy trees are climate responsive, support biodiversity, wellbeing and amenity, and help reduce urban heat.

### Standard A2-6

In this standard:

- ***average canopy diameter*** means the average of the measurements of the distance between the widest points of a tree's drip line (the outer edge of foliage) in two perpendicular directions;
- ***existing canopy tree*** means a tree that has:
  - a height of at least 5 metres above ground level; and
  - an average canopy diameter of at least 4 metres; and
  - a trunk that is located at least 4 metres from existing and proposed buildings.
- ***new canopy tree*** means a tree proposed to be planted that is of a species and type that at maturity is expected to have:
  - a height of at least 6 metres above ground level; and
  - a canopy diameter of at least 4 metres.

The total number of canopy trees provided with the development is equivalent to at least the number of trees specified in Column 2 to Table A2-6.1 corresponding to the applicable site area specified in Column 1.

**Table A2-6.1 Minimum canopy tree requirement**

| Column 1<br>Site area | Column 2<br>Canopy tree |
|---|---|
| 100 square metres or less | One tree |
| Above 100 square metres to 200 square metres | Two trees |
| Above 200 square metres to 300 square metres | Three trees |

The canopy tree requirement can only be met by retaining an existing canopy tree, planting a new canopy tree or a combination of both, within the site.

The total number of canopy trees required by Table A2-6.1 includes:

- An existing canopy tree and a new canopy tree, whether or not the canopy cover is wholly contained within the boundaries of the site.
- An existing canopy tree and a new canopy tree with a canopy that extends below, or overhangs, an existing or proposed building located on the site.

At least one existing canopy tree or new canopy tree is to be located within the front setback. This does not apply if it is proposed to retain one existing canopy tree that meets the minimum tree requirement and that tree is not located in the front setback.

Each new canopy tree is planted in either deep soil or a planter that meets the following requirements:

- Deep soil must be a minimum area of 12 square metres with a minimum plan dimension of 2.5 metres.
- A planter must be a minimum volume of 8 cubic metres with a minimum depth of 0.8 metres of planter soil.
- If two or more new canopy trees are to be planted in the same area of deep soil, the required area of deep soil can be reduced by the area specified in Column 2 of Table A2-6.2 corresponding to the number of trees specified in Column 1.

**Table A2-6.2 Reduced deep soil area**

| Column 1<br>Number of new trees to be planted in same area of deep soil | Column 2<br>Minimum area of deep soil |
|---|---|
| 2 | 22.8 sqm |
| 3 | 32.4 sqm |

The following can encroach into the total area of deep soil:

- Impervious surfaces by no more than 10 per cent.
- Unroofed decking by no more than 50 per cent, provided the gap between the decking boards is at least:
  - 4 millimetres for decking boards not more than 90 millimetres wide.
  - 5 millimetres for decking boards more than 90 millimetres wide.
  - 8 millimetres if the deck is less than 400 millimetres above ground level.
- An eave not exceeding a width of 600 millimetres.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The site context and design response.
- The extent to which the existing and proposed canopy trees contribute to a greener environment and reduce urban heat.
- Whether the growth characteristics of existing trees and proposed canopy trees will provide the required canopy cover.
- The suitability of the planting location, deep soil areas and planter soil volume for proposed canopy trees.
- Whether the species of canopy tree is suited to the soil conditions of the site.
- Whether an alternative combination of the canopy trees will provide the required canopy cover.
- The suitability of providing deep soil area within an easement on the subject land.

## 54.02-7 Front fences objective

24/09/2026
VC315

To encourage front fence design that responds to the existing or preferred neighbourhood character.

### Standard A2-7

Either the development:

- does not include a new, or an extension to an existing, front fence within three metres of a street; or
- includes a new, or extension to an existing, front fence within 3 metres of a street if the height of the fence does not exceed:
  - The maximum height specified in a schedule to the zone, or
  - If no maximum height is specified in a schedule to the zone, the maximum height specified in Table A2-7.

**Table A2-7 Maximum front fence height**

| Street context | Maximum front fence height |
|---|---|
| Streets in a Transport Zone 2 | 2 metres |
| Other streets | 1.5 metres |

This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The setback, height and appearance of front fences on adjacent properties.
- The extent to which slope and retaining walls reduce the effective height of the front fence.
- Whether the fence is needed to minimise noise intrusion.

## 54.02-8 Building setback for small second dwellings objective

08/09/2025
VC282

To ensure that small second dwellings are sited to respond to the existing or preferred neighbourhood character.

### Standard A2-8

Walls of a small second dwelling are set back behind the front wall of the existing dwelling on the lot, facing the frontage.

Porches, pergolas, verandahs, and eaves do not encroach into the setback of this standard.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The visual impact of the building when viewed from the street and from adjoining properties.

# 54.03 LIVEABILITY

08/09/2025
VC282

## 54.03-1 Street integration objective

08/09/2025
VC282

To integrate the layout of development with the street to support the safety and amenity of residents.

### Standard A3-1

Where a development fronts a street, a vehicle accessway or abuts public open space, passive surveillance is provided by a direct view from a balcony or a habitable room window to each street, vehicle accessway and public open space.

This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.

## 54.03-2 Private open space objective

08/09/2025
VC282

To provide adequate private open space for the reasonable recreation and service needs of residents.

### Standard A3-2

A dwelling or small second dwelling has private open space of an area and dimensions specified in a schedule to the zone.

If no area or dimension is specified in a schedule to the zone, a dwelling has private open space with direct access from a living area, dining area or kitchen consisting of:

- An area of 20 per cent of the area of the lot, but not less than 25 square metres. At least one part of the private open space consists of secluded private open space with a minimum area of 25 square metres and a minimum dimension of 3 metres width; or
- A balcony with at least the area and dimensions specified in Table A3-2; or
- An area on a roof of at least 10 square metres, with a minimum dimension of 2 metres width.

If the area and dimensions of the private open space or secluded private open space is specified in a schedule to the zone;

- The area and dimensions specified for private open space and secluded private open space must be less than the area and dimensions specified in this standard, and
- The area and dimensions specified for a balcony or an area on a roof must be less than the area and dimensions specified in this standard.

A small second dwelling has a secluded private open space consisting of an area of 8 square metres with a minimum dimension of 1.6 metres and convenient access from a living area, dining area or kitchen.

If a cooling or heating unit is located in the secluded private open space or private open space the required area is increased by 1.5 square metres.

Where ground level private open space is provided an area for clothes drying is provided.

**Table A3-2 Private open space for a balcony**

| Orientation of dwelling | Dwelling type | Minimum area | Minimum dimension |
|---|---|---|---|
| North (between north 20 degrees west to north 30 degrees east) | All | 8 square metres | 1.7 metres |
| South (between south 30 degrees west to south 20 degrees east) | All | 8 square metres | 1.2 metres |
| Any other orientation | 1 bedroom dwelling | 8 square metres | 1.8 metres |
| | 2 bedroom dwelling | 8 square metres | 2 metres |
| | 3 bedroom dwelling | 12 square metres | 2.4 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability of the private open space, including its size and accessibility.
- The availability of and access to public open space.
- The orientation of the lot to the street and the sun.

## 54.03-3 Solar access to open space objective

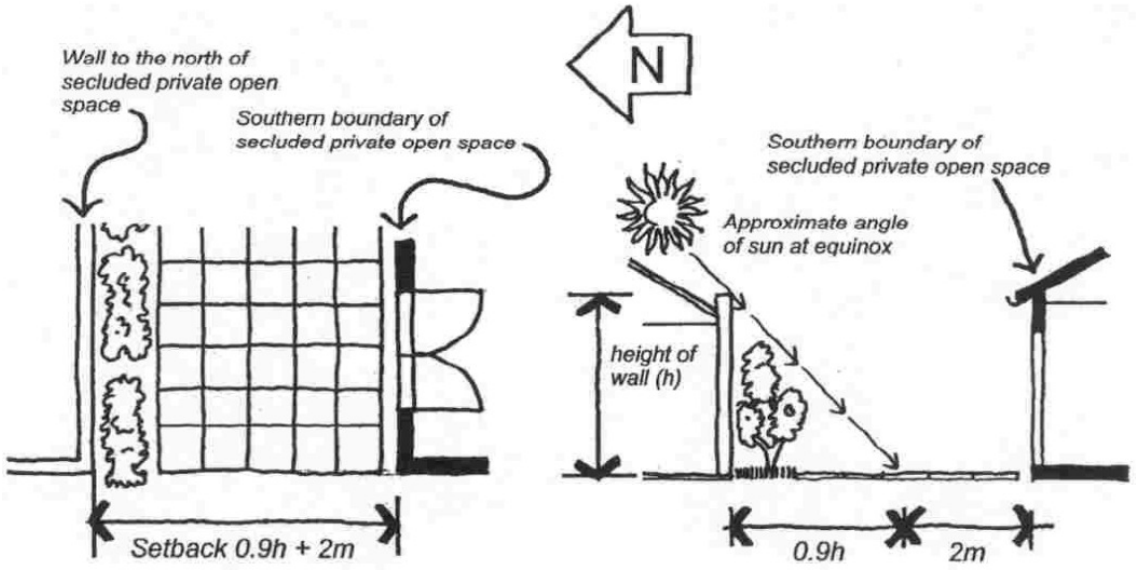
08/09/2025
VC282

To allow solar access into the secluded private open space of new dwellings.

### Standard A3-3

The southern boundary of secluded private open space is set back from any wall on the north of the space at least (2 + 0.9h) metres, where 'h' is the height of the wall.

**Diagram A3-3 Solar access to open space**




This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of the secluded private open space based on the sunlight it will receive.

## 54.03-4 Daylight to new windows objectives

08/09/2025
VC282

To allow adequate daylight into new habitable room windows.

### Standard A3-4

A window in an external wall of the building is provided to all habitable rooms.

Habitable rooms in a dwelling have a window that faces:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot; or
- A verandah provided it is open for at least one third of its perimeter; or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which habitable rooms are provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Whether there are other windows in the habitable room which have access to daylight.

# 54.04 EXTERNAL AMENITY

08/09/2025
VC282

## 54.04-1 Daylight to existing windows objective

24/09/2026
VC315

To allow adequate daylight into existing habitable room windows.

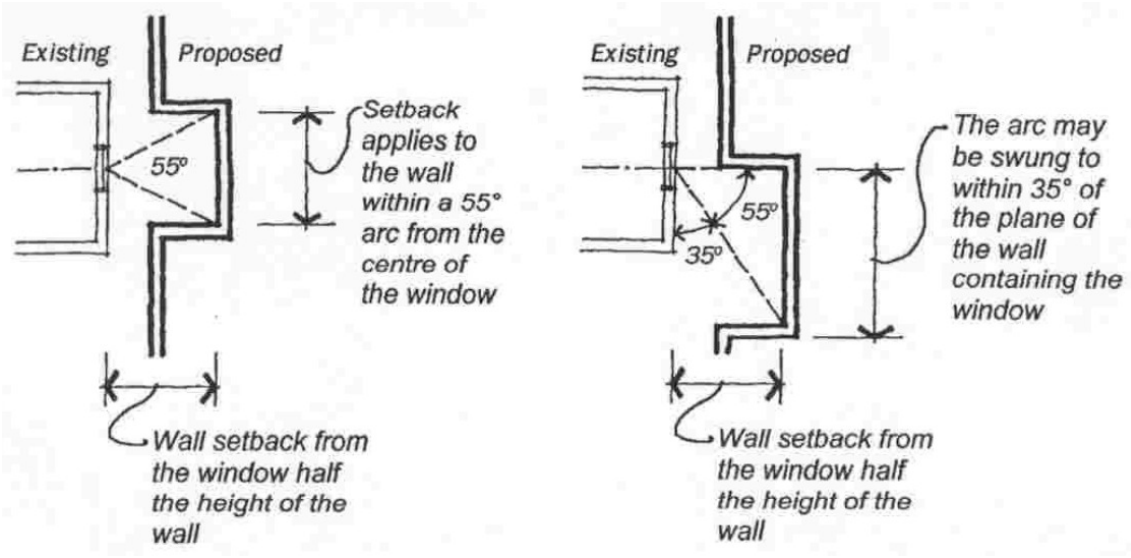
### Standard A4-1

New buildings opposite an existing habitable room window provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

New walls or carports more than 3 metres in height opposite an existing habitable room window are set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.

### Diagram A4-1 Daylight to existing windows




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the existing dwelling or small second dwelling has provided for reasonable daylight access to its habitable rooms through the siting and orientation of its habitable room windows.
- The impact on the amenity of existing dwellings or small second dwellings.

## 54.04-2 Existing north-facing windows objective

08/09/2025
VC282

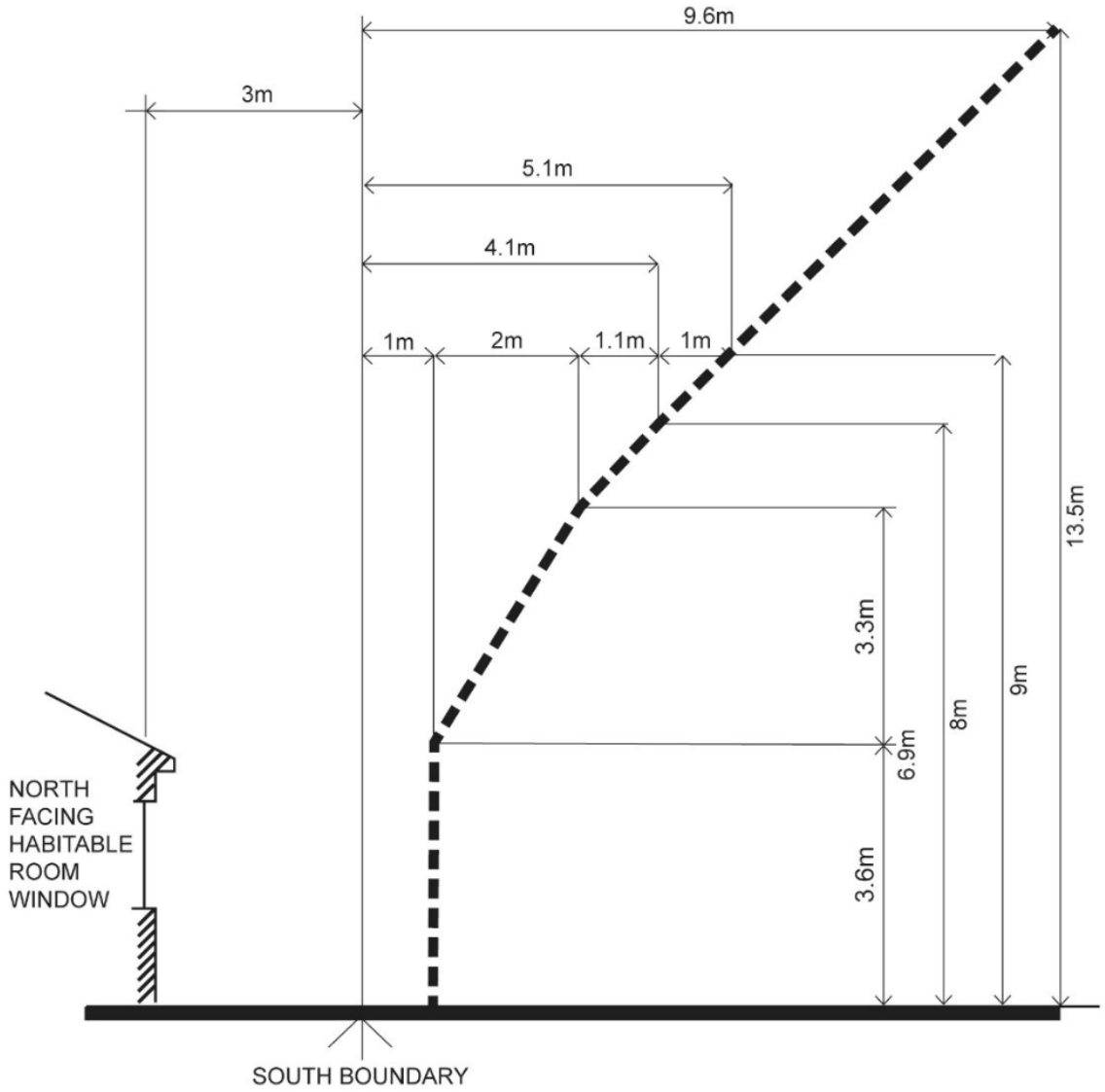
To allow adequate solar access to existing north-facing habitable room windows.

### Standard A4-2

Where a north-facing habitable room window of a neighbouring dwelling or small second dwelling is within 3 metres of a boundary on an abutting lot, a new building is to be set back from the boundary by at least 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres. This setback is to be provided for a distance of at least 3 metres from the edge of each side of the window.

For this standard a north-facing window is a window with an axis perpendicular to its surface oriented from north 20 degrees west to north 30 degrees east.

**Diagram A4-2 North-facing windows**




**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- Existing sunlight to the north-facing habitable room window of the existing dwelling or small second dwelling.
- The impact on the amenity of existing dwellings or small second dwellings.

## 54.04-3 Overshadowing secluded open space objective

08/09/2025
VC282

To ensure buildings do not significantly overshadow existing secluded private open space.

**Standard A4-3**

The area of secluded private open space that is not overshadowed by the new development is greater than 50 per cent, or 25 square metres with a minimum dimension of 3 metres, whichever is the lesser area, for a minimum of five hours between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight will not be further reduced.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of existing dwellings or small second dwellings.
- Existing sunlight penetration to the secluded private open space of the existing dwelling or small second dwelling.
- The time of day that sunlight will be available to the secluded private open space of the existing dwelling or small second dwelling.
- The effect of a reduction in sunlight on the existing use of the existing secluded private open space.

## 54.04-4 Overlooking objective

08/09/2025
VC282

To limit views into existing secluded private open space and habitable room windows.

#### Standard A4-4

In Clause 54.04-4 a habitable room does not include a bedroom.

A habitable room window, balcony, terrace, deck or patio is located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views are measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio that is located with a direct view into a habitable room window of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio:

- Is offset a minimum of 1.5 metres from the edge of one window to the edge of the other; or
- Has sill heights of at least 1.7 metres above floor level; or
- Has fixed, obscure glazing in any part of the window below 1.7 metre above floor level; or
- Has permanently fixed external screens to at least 1.7 metres above floor level and be no more than 25 per cent transparent; or
- Has fixed elements that prevent the direct view, such as horizontal ledges or vertical fins.

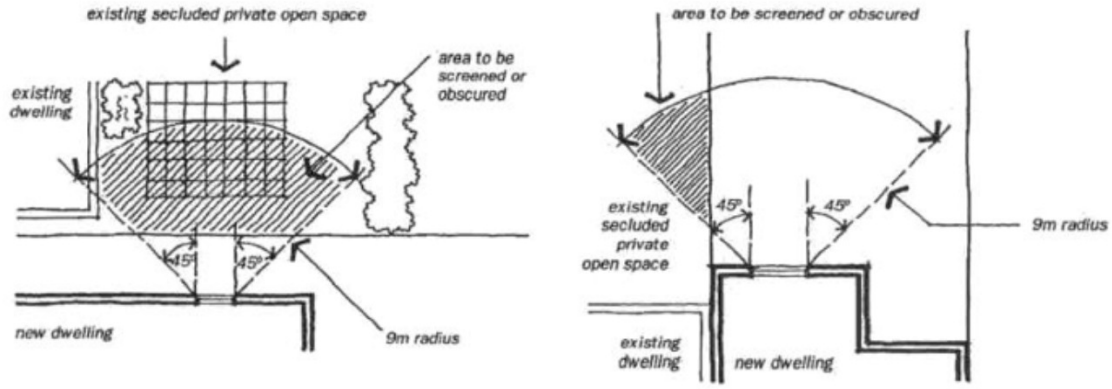
Obscure glazing in any part of the window below 1.7 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view are:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

### Diagram A4-4 Overlooking




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of the secluded private open space or habitable room window.
- The existing extent of overlooking into the secluded private open space and habitable room windows of existing dwellings or small second dwellings.
- The internal daylight to and amenity of the proposed dwelling or small second dwelling.

# 54.05 SUSTAINABILITY

08/09/2025
VC282

## 54.05-1 Permeability objectives

08/09/2025
VC282

To reduce the impact of increased stormwater run-off on the drainage system and downstream waterways.

To facilitate on-site stormwater infiltration.

To contribute to urban cooling.

### Standard A5-1

The site area covered by the pervious surfaces is at least 20 percent of the site.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The existing site coverage and any constraints imposed by existing development.
- The capacity of the drainage network to accommodate additional stormwater.
- The practicality of achieving the minimum site coverage of pervious surfaces.

## 54.05-2 Overshadowing domestic solar energy systems objective

08/09/2025
VC282

To ensure that the height and setback of a building from a boundary allows reasonable solar access to existing domestic solar energy systems on the roofs of buildings.

### Standard A5-2

Any part of a new building that will reduce the sunlight at any time between 9 am and 4 pm on 22 September to an existing domestic solar energy system on the roof of a building on an adjoining lot be set back from the boundary to that lot by at least 1 metre at 3.6 metres above ground level, plus 0.3 metres for every metre of building height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

This standard applies to an existing building in a Township Zone, General Residential Zone or Neighbourhood Residential Zone.

In Clause 54.05-2 domestic solar energy system means a domestic solar energy system that existed at the date the application was lodged.

### Decision guidelines

Before deciding on an application, the responsible authority must consider whether the domestic solar energy system has been sited to optimise efficiency and protection from overshadowing.

## 54.05-3 Rooftop solar energy generation area objective

08/09/2025
VC282

To support the future installation of appropriately sited rooftop solar energy systems for a dwelling.

### Standard A5-3

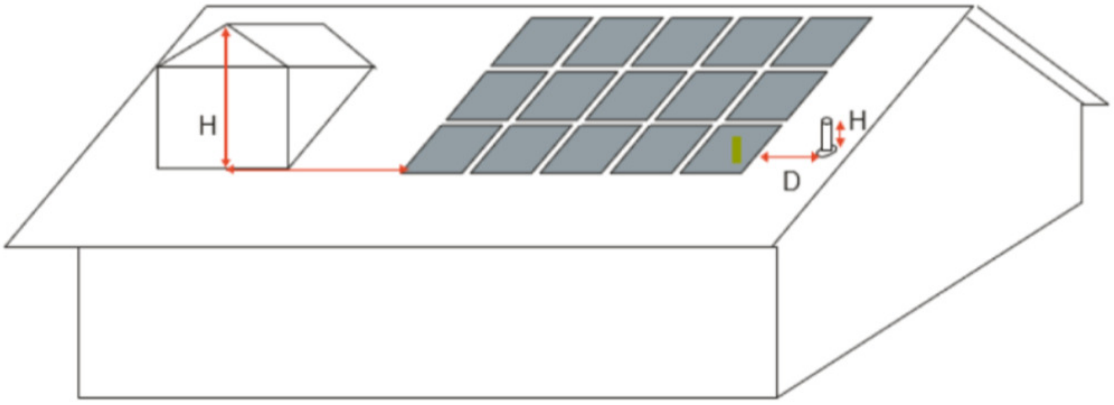
In Clause 54.05-3 rooftop solar energy area means an area provided on the roof of a dwelling to enable the future installation of a solar energy system.

An area on the roof is capable of siting a rooftop solar energy area for each dwelling which:

- Has a minimum dimension of 1.7 metres.
- Has a minimum area in accordance with Table A5-3.
- Is oriented to the north, west or east.

- Is positioned on the top two thirds of a pitched roof.
- Can be a contiguous area or multiple smaller areas.
- Is free of obstructions on the roof of the dwelling within twice the height of each obstruction (H), measured horizontally (D) from the centre point of the base of the obstruction to the nearest point of the rooftop solar energy area.

**Diagram A5-3 Allowable distance between obstructions and the rooftop solar energy area**




Obstructions located south of all points of the rooftop solar energy area are not subject to the horizontal distance requirements.

**Table A5-3 Minimum rooftop solar energy generation area**

| Number of bedrooms | Minimum roof area |
|---|---|
| 1 bedroom dwelling | 15 square metres |
| 2 or 3 bedroom dwelling | 26 square metres |
| 4 or more bedroom dwelling | 34 square metres |

This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size and orientation of the building.
- The availability of solar access to the rooftop.
- The extent to which the rooftop solar energy generation area is overshadowed by existing buildings, other permanent structures or equipment on the rooftop.

## 54.05-4 Solar protection to new north-facing windows objective

08/09/2025
VC282

To encourage external shading of north facing windows to minimise summer heat gain.

### Standard A5-4

North facing windows are shaded by eaves, fixed horizontal shading devices or fixed awnings with a minimum horizontal depth of 0.25 times the window height.

This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority considers:

- The design response.
- The size and orientation of the lot.
- The type and useability of external solar shading devices, including alternative design responses.

# 55 TWO OR MORE DWELLINGS ON A LOT AND RESIDENTIAL BUILDINGS OF THREE STOREYS OR LESS

24/09/2026
VC315

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage residential development that provides reasonable standards of amenity for existing and new residents.

To encourage residential development that responds to the site and the surrounding area.

## Application

Provisions in this clause apply to the classes of applications specified in clauses:

- 32.04-7, Mixed Use Zone,
- 32.05-8, Township Zone,
- 32.07-6, Residential Growth Zone,
- 32.08-7, General Residential Zone,
- 32.09-7, Neighbourhood Residential Zone,
- 32.10-5, Housing Choice and Transport Zone.

The objective contained in clause 55.03-1 does not apply to a development of less than 10 dwellings.

The objective contained in clause 55.05-3 does not apply to an apartment development or residential building.

The objectives contained in clauses 55.03-12 and 55.05-7 do not apply to the construction or extension of:

- A dwelling that is not in, or does not form part of, an apartment development; or
- A residential building.

## Operation

The provisions of this clause contain:

- **Objectives**. An objective describes the outcome to be achieved in the completed development.
- **Standards**. A standard contains the requirements to meet the corresponding objective.

  If a zone or a schedule to a zone specifies a standard that modifies the standard set out in this clause, the modified standard in the zone or a schedule to the zone applies.

  If the land is included in a Neighbourhood Character Overlay and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.

  If the land is included in an overlay, other than a Neighbourhood Character Overlay, and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.
- **Decision guidelines**. If a standard is not met, the decision guidelines set out the matters that the responsible authority must consider before deciding if the corresponding objective is met.

## Requirements

A development must meet all of the applicable objectives contained in this clause.

If a development meets a standard:

- The corresponding objective is deemed to be met;
- The responsible authority is not required to consider the corresponding decision guidelines.

If a development does not meet a standard, the responsible authority must consider the applicable decision guidelines in determining whether the corresponding objective is met.

### Exemptions

Despite any other provision of this planning scheme, in determining applications to which this clause applies, the responsible authority is exempt from and is not required to consider:

- The Municipal Planning Strategy and Planning Policy Framework, unless an applicable decision guideline specifies otherwise.
- The purpose or decision guidelines of the relevant zone, unless an applicable decision guideline specifies otherwise.
- The decision guidelines in Clause 65, unless an applicable decision guideline specifies otherwise.

If there is any inconsistency between the requirements of this clause and another provision of this planning scheme, this clause prevails.

An application to which this clause applies is exempt from the requirements of:

- Section 60(1)(b), (1)(e), (1)(f), (1A)(b) to (h), (1A)(j) and (1B) of the Act; and
- Section 84B(2)(b) to (g) and (2)(i) to (jb) of the Act.

## 55.01 APPLICATION REQUIREMENTS

31/03/2025
VC267

An application to which this clause applies must be accompanied by:

- A site description.
- A design response.
- A written statement outlining which standards are met and which are not met. If a standard is not met, the written statement must include an explanation of how the development meets the corresponding objective having regard to the corresponding decision guidelines.

### 55.01-1 Site description

31/03/2025
VC267

The neighbourhood and site description may use a site plan, photographs or other techniques and must accurately describe:

- The built form, scale and character of surrounding development including front fencing.
- Site shape, size, orientation and easements.
- Levels of the site and the difference in levels between the site and surrounding properties.
- The location of existing buildings on the site and on surrounding properties, including the location and height of walls built to the boundary of the site.
- The use of surrounding buildings.
- The location of secluded private open space and habitable room windows of surrounding properties which have an outlook to the site within 9 metres.
- Solar access to the site and to surrounding properties.
- Location of existing trees 5 metres in height or greater, with a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level, on the site.
- Any cut and filled areas of soil, where known.
- Street frontage features such as poles, services, street trees and kerb crossovers.
- The location of any existing domestic solar energy system on the roof of a dwelling, apartment development or residential building on surrounding properties.

If in the opinion of the responsible authority a requirement of the site description is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

### 55.01-2 Design response

24/09/2026
VC315

The design response must explain how the proposed design derives from and responds to the site description.

The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings.

The design response must include a landscape plan that details the proposed:

- Retention and planting of canopy trees.
- Planting of other vegetation including location, species, number and size at maturity of vegetation.
- Where required, areas of deep soil and root barriers.
- Irrigation system to support existing and planted vegetation including details of any alternative water supply sources.

- Selection of canopy trees and vegetation, including species, that responds to the site's environment, location and geographic factors.
- Location of site services, clothes drying and storage.

If in the opinion of the responsible authority a design response requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

# 55.02 NEIGHBOURHOOD CHARACTER

31/03/2025
VC267

## 55.02-1 Street setback objectives

24/09/2026
VC315

To ensure that the setbacks of buildings from a street respond to the existing or preferred neighbourhood character and make efficient use of the site.

### Standard B2-1

Walls of new buildings are set back from streets:

- At least the distance specified in a schedule to the zone if the distance specified in the schedule is less than the distance specified in Table B2-1; or
- If no distance is specified in a schedule to the zone, the distance specified in Table B2-1.

Porches, pergolas and verandahs that are less than 3.6 metres high and eaves may encroach not more than 2.5 metres into the setbacks of this standard.

**Table B2-1 Street setback**

| Development context | Minimum setback from front street | Minimum setback from a side street |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The same distance as the lesser front wall setback of the existing buildings on the abutting allotments facing the front street or 6 metres, whichever is the lesser. | Not applicable |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 6 metres, whichever is the lesser. | Not applicable |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 6 metres, whichever is the lesser.<br>If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Front walls of new development fronting the side street of a corner site are setback at least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 3 metres, whichever is the lesser.<br>Side walls of new development on a corner site are setback the same distance as the setback of the front wall of any existing |

| Development context | Minimum setback from front street | Minimum setback from a side street |
|---|---|---|
| | | building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- Whether the siting of the building is constrained by the shape, dimensions, slope or other conditions of the site.
- Whether a different setback would be more appropriate taking into account the prevailing setbacks of existing buildings on nearby lots.
- The visual impact of the building when viewed from the street and from adjoining properties.
- Whether a different setback affects the ability to retain or plant canopy trees.

## 55.02-2 Building height objective

24/09/2026
VC315

To ensure that the height of buildings respond to the existing or preferred neighbourhood character.

**Standard B2-2**

The maximum building height of a new building does not exceed the maximum height specified in the zone, schedule to the zone or an overlay that applies to the land.

If no maximum height is specified in the zone, schedule to the zone or an overlay, the maximum building height of a new building does not exceed 9 metres, unless the slope of the natural ground level at any cross section wider than 8 metres of the site of the building is 2.5 degrees or more, in which case the maximum building height does not exceed 10 metres.

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- Any maximum building height specified in the zone, a schedule to the zone or an overlay applying to the land.
- The design response.
- The effect of the slope of the site on the height of the building.
- The relationship between the proposed building height and the height of existing adjacent buildings.
- The visual impact of the building when viewed from the street and from adjoining properties.

## 55.02-3 Side and rear setbacks objective

02/04/2025
VC276

To ensure that the height and setback of a building from a boundary responds to the existing or preferred neighbourhood character and limits the impact on the amenity of existing dwellings or small second dwellings.

### Standard B2-3

A new building not on or within 200mm of a boundary is set back from side or rear boundaries in accordance with either B2-3.1 or B2-3.2.

Standard B2-3 is met if the building is set back in accordance with either B2-3.1 or B2-3.2, rather than needing to comply with both of these provisions:

- B2-3.1:

  The building is set back at least 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

- B2-3.2:

  If the boundary is not to the south of the building, the building is set back at least 3 metres up to a height not exceeding 11 metres and at least 4.5 metres for a height over 11 metres.

  If the boundary is to the south of the building, the building is set back at least 6 metres up to a height not exceeding 11 metres and at least 9 metres for a height over 11 metres between south 30 degrees west to south 30 degrees east.

Sunblinds, verandahs, porches, eaves, facias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the side and rear setbacks.

Landings that have an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the side and rear setbacks.

**Diagram B2-3.1 Side and rear setbacks**

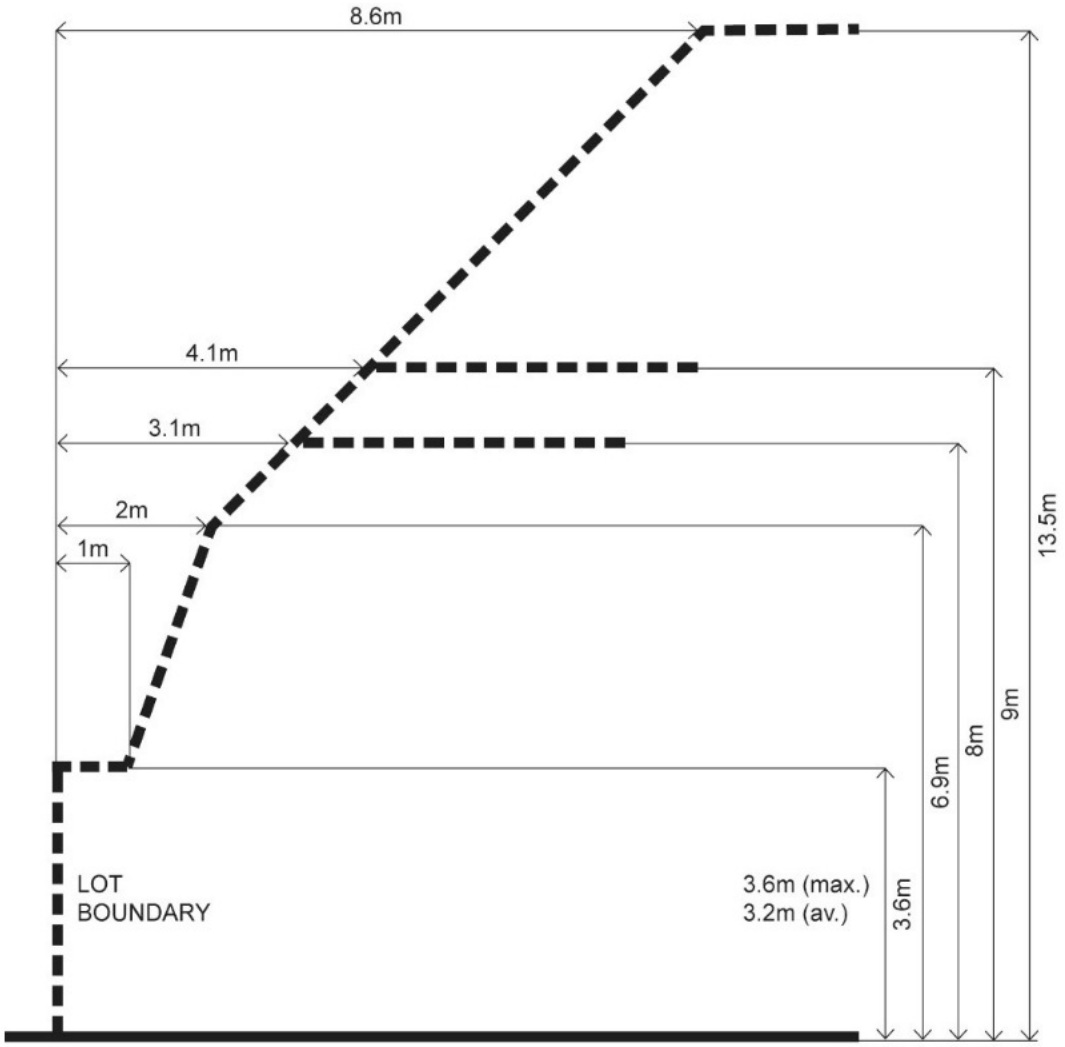
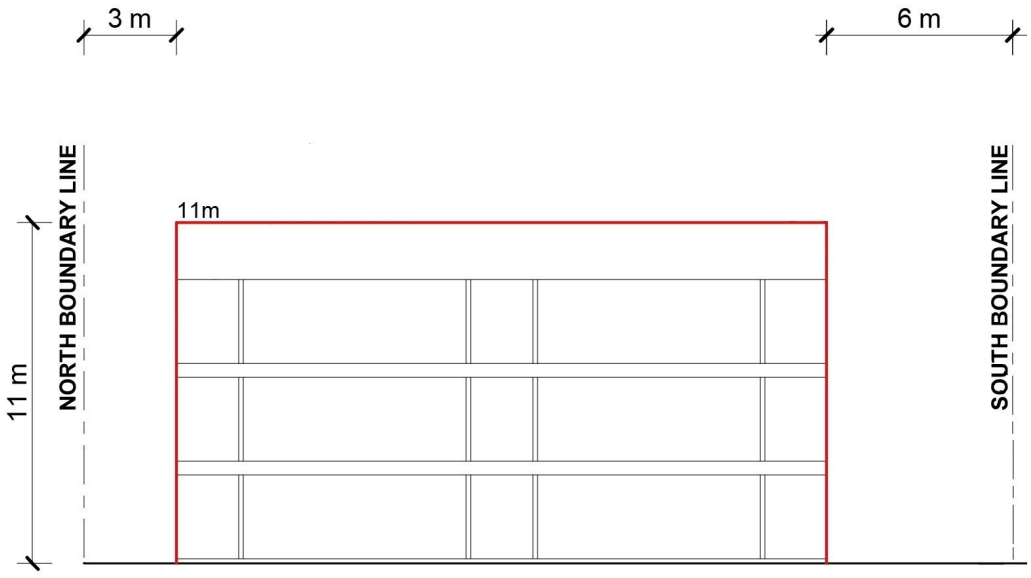



**Diagram B2-3.2 Side and rear setbacks**



### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The impact on the amenity of the habitable room windows and private open space of existing dwellings or small second dwellings.
- Whether the wall is opposite an existing or simultaneously constructed wall built to the boundary.
- Whether the wall abuts a side or rear lane.
- Whether a different setback in a rear yard affects the ability to retain or plant canopy trees.

## 55.02-4 Walls on boundaries objectives

31/03/2025
VC267

To ensure that the location, length and height of a wall on a boundary responds to the existing or preferred neighbourhood character and limits the impact on the amenity of existing dwellings and small second dwellings.

### Standard B2-4

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of a lot does not abut the boundary for a length that exceeds the greater of the following distances:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- The length of existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary does not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The extent to which walls on boundaries are part of the neighbourhood character.
- The impact on the amenity of existing dwellings or small second dwellings.
- The opportunity to minimise the length of walls on boundaries by aligning a new wall on a boundary with an existing wall on a lot of an adjoining property.
- The orientation of the boundary that the wall is being built on.
- The width of the lot.
- The extent to which the slope and retaining walls or fences reduce the effective height of the wall.

- Whether the wall abuts a side or rear lane.
- The need to increase the wall height to screen a box gutter.

## 55.02-5 Site coverage objective

31/03/2025
VC267

To ensure that the site coverage responds to the existing or preferred neighbourhood character and responds to the features of the site.

### Standard B2-5

The site area covered by buildings does not exceed:

- The maximum site coverage specified in a schedule to the zone; or
- If no maximum site coverage is specified in a schedule to the zone, the percentage specified in Table B2-5.

If the maximum site coverage is specified in a schedule to a zone, it must be greater than the percentage specified in Table B2-5.

**Table B2-5 Site coverage**

| Zone | Area |
|---|---|
| Neighbourhood Residential Zone<br><br>Township Zone | 60 per cent |
| General Residential Zone | 65 per cent |
| Residential Growth Zone<br>Mixed Use Zone<br>Housing Choice and Transport Zone | 70 per cent |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The existing site coverage and any constraints imposed by existing development or the features of the site.
- The site coverage of adjacent properties.
- The effect of the visual bulk of the building and whether this is acceptable in the neighbourhood.
- Whether a different area of site coverage affects the ability to retain or plant canopy trees.

## 55.02-6 Access objective

31/03/2025
VC267

To ensure the number and design of vehicle crossovers responds to the neighbourhood character.

### Standard B2-6

The width of accessways or car spaces (other than to a rear lane) does not exceed:

- 33 per cent of the street frontage; or
- 40 per cent of the street frontage if the width of the street frontage is less than 20 metres.

The number of access points to a road in a Transport Zone 2 or a Transport Zone 3 is not increased.

The location of a vehicle crossover or accessway does not encroach the tree protection zone of an existing tree, that is proposed to be retained in a road by more than 10 per cent.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The reduction of on-street car parking spaces.
- Whether a different accessway width, number of access points or encroachment of an existing tree affects the ability to retain or plant canopy trees on the site or footpath.

## 55.02-7 Tree canopy objectives

24/09/2026
VC315

To provide tree canopy that responds to the neighbourhood character of the area and reduces the visual impact of buildings on the streetscape.

To preserve existing canopy cover and support the provision of new canopy cover.

To ensure new canopy trees are climate responsive, support biodiversity, wellbeing and amenity, and help reduce urban heat.

### Standard B2-7

In this standard:

- ***average canopy diameter*** means the average of the measurements of the distance between the widest points of a tree's drip line (the outer edge of foliage) in two perpendicular directions;
- ***canopy cover*** means the area of a tree's canopy;
- ***existing canopy tree*** means a tree that has:
  - a height of at least 5 metres above ground level; and
  - an average canopy diameter of at least 4 metres; and
  - a trunk that is located at least 4 metres from existing and proposed buildings.
- ***new canopy tree*** means a tree proposed to be planted that is of a species and type that at maturity is expected to have:
  - a height of at least 6 metres above ground level; and
  - a canopy diameter of at least 4 metres.

The total canopy cover provided with the development is equivalent to at least the percentage of the site area specified in Column 2 to Table B2-7.1 corresponding to the applicable site area specified in Column 1.

**Table B2-7.1 Canopy cover**

| Column 1<br>Site area | Column 2<br>Canopy cover |
|---|---|
| 1000 square metres or less | 10 per cent of site area |
| More than 1000 square metres to 1500 square metres | 15 per cent of site area |
| More than 1500 square metres | 20 per cent of site area |

The canopy cover requirement can only be met by retaining an existing canopy tree, planting a new canopy tree or a combination of both, within the site.

The total canopy cover required by Table B2-7.1 includes:

- The total canopy cover of an existing canopy tree, whether or not the canopy cover is wholly contained within the boundaries of the site.
- The canopy cover within the boundaries of the site of a new canopy tree and any part of the canopy cover overhanging land in a public road or public open space.
- The canopy cover of an existing canopy tree and a new canopy tree that extends below, or overhangs, an existing or proposed building located on the site.
- Any overlapping canopy cover of an existing canopy tree or a new canopy tree provided that the overlapping canopy cover is only counted once.

At least one existing canopy tree or new canopy tree is to be located within the front setback. This does not apply if it is proposed to retain one existing canopy tree that meets the minimum total canopy cover requirement and that tree is not located in the front setback.

Each new canopy tree is planted in either deep soil or a planter that meets the following requirements:

- Deep soil must be at least the area and plan dimension specified in Columns 2 and 5, respectively, of Table B2-7.2 corresponding to the tree's expected canopy diameter at maturity specified in Column 1.
- A planter must be at least the soil volume, soil depth, and plan dimension, specified in Columns 3, 4 and 5 of Table B2-7.2 corresponding to the tree's expected canopy diameter at maturity specified in Column 1.
- If two or more new canopy trees are to be planted in the same area of deep soil, the required area of deep soil can be reduced by the percentage specified in Column 2 of Table B2-7.3 corresponding to the number of trees specified in Column 1.

**Table B2-7.2 Deep soil and planter requirements**

| Column 1<br>Expected canopy diameter at maturity | Column 2<br>Minimum deep soil area | Column 3<br>Minimum tree in planter soil volume | Column 4<br>Minimum tree in planter soil depth | Column 5<br>Minimum deep soil or tree in planter plan dimension |
|---|---|---|---|---|
| 4 metres and less than 5 metres | 12 square metres | 8 cubic metres | 0.8 metres | 2.5 metres |
| 5 metres and less than 6 metres | 16 square metres | 12 cubic metres | 0.8 metres | 3 metres |
| 6 metres and less than 7 metres | 25 square metres | 17 cubic metres | 0.8 metres | 3.5 metres |
| 7 metres and less than 8 metres | 36 square metres | 23 cubic metres | 0.8 metres | 4 metres |
| 8 metres and less than 9 metres | 49 square metres | 30 cubic metres | 1.0 metres | 4.5 metres |
| 9 metres and less than 10 metres | 64 square metres | 38 cubic metres | 1.0 metres | 5 metres |
| 10 metres and less than 11 metres | 81 square metres | 47 cubic metres | 1.0 metres | 5.5 metres |
| 11 metres and less than 12 metres | 100 square metres | 57 cubic metres | 1.0 metres | 6 metres |

| Column 1<br>Expected canopy diameter at maturity | Column 2<br>Minimum deep soil area | Column 3<br>Minimum tree in planter soil volume | Column 4<br>Minimum tree in planter soil depth | Column 5<br>Minimum deep soil or tree in planter plan dimension |
|---|---|---|---|---|
| 12 metres and less than 13 metres | 121 square metres | 68 cubic metres | 1.5 metres | 6.5 metres |
| 13 metres and less than 14 metres | 136 square metres | 80 cubic metres | 1.5 metres | 7 metres |
| 14 metres and greater | 144 square metres | 92 cubic metres | 1.5 metres | 7.5 metres |

**Table B2-7.3 Reduced deep soil area**

| Column 1<br>Number of new canopy trees to be planted in same area of deep soil | Column 2<br>Percentage reduction of area of deep soil |
|---|---|
| 2 | 5 per cent |
| 3 | 10 per cent |
| 4 | 15 per cent |
| 5 | 20 per cent |
| 6 or more | 25 per cent |

The following can encroach into the total area of deep soil:

- Impervious surfaces by no more than 10 per cent.
- Unroofed decking by no more than 50 per cent, provided the gap between the decking boards is at least:
  - 4 millimetres for decking boards not more than 90 millimetres wide.
  - 5 millimetres for decking boards more than 90 millimetres wide.
  - 8 millimetres if the deck is less than 400 millimetres above ground level.
- An eave not exceeding a width of 600 millimetres.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The site context and design response.
- The extent to which the existing and proposed canopy trees contribute to a greener environment and reduce urban heat.
- Whether the growth characteristics of existing trees and proposed canopy trees will provide the required canopy cover.
- The suitability of the planting location, deep soil areas and planter soil volume for proposed canopy trees.
- Whether the species of canopy tree is suited to the soil conditions of the site.
- The suitability of providing deep soil area within an easement on the subject land.

## 55.02-8 Front fences objective

24/09/2026
VC315

To encourage front fence design that responds to the existing or preferred neighbourhood character.

### Standard B2-8

Either the development:

- does not include a new, or an extension to an existing, front fence within three metres of a street; or
- includes a new, or extension to an existing, front fence within 3 metres of a street if the height of the fence does not exceed:
  - The maximum height specified in a schedule to the zone, or
  - If no maximum height is specified in a schedule to the zone, the maximum height specified in Table B2-8.

**Table B2-8 Maximum front fence height**

| Street context | Maximum front fence height |
|---|---|
| Streets in a Transport Zone 2 | 2 metres |
| Other streets | 1.5 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The setback, height and appearance of front fences on adjacent properties.
- The extent to which slope and retaining walls reduce the effective height of the front fence.
- Whether the fence is needed to minimise noise intrusion.

# 55.03 LIVEABILITY

31/03/2025
VC267

## 55.03-1 Dwelling diversity objective

31/03/2025
VC267

To encourage a range of dwelling sizes and types in developments of ten or more dwellings.

### Standard B3-1

Developments include at least:

- One dwelling that contains a kitchen, bath or shower, bedroom and a toilet and wash basin at ground floor level for every 10 dwellings.
- One dwelling that includes no more and no less than 2 bedrooms for every 10 dwellings.
- One dwelling that includes no more and no less than 3 bedrooms for every 10 dwellings.

### Decision guidelines

Before deciding on an application, the responsible authority must consider whether the development provides a range of dwelling sizes and types to meet diverse household needs.

## 55.03-2 Parking location objective

31/03/2025
VC267

To minimise the impact of vehicular noise within developments on residents.

### Standard B3-2

Habitable room windows with sill heights of less than 3 metres above ground level are setback from accessways and car parks by at least:

- 1.5 metres; or
- If there is a solid fence with a height of at least 1.5 metres between the accessway or car park and the window, 1 metre; or
- 1 metre where window sills are at least 1.5 metres above ground level.

This standard is met if an accessway or relevant car parking space is used exclusively by the resident of the building with the habitable room.

### Decision guidelines

Before deciding on an application, the responsible authority must consider the design response.

## 55.03-3 Street integration objective

31/03/2025
VC267

To integrate the layout of development with the street to support the safety and amenity of residents.

### Standard B3-3

Where a development fronts a street, a vehicle accessway or abuts public open space:

- Passive surveillance is provided by a direct view from a balcony or a habitable room window to each street, vehicle accessway and public open space.
- The total cumulative width of all site services to be located within 3 metres of a street, do not take up more than 20 per cent of the width of the frontage and are screened from view from the street or located behind a fence. Screens or fences are to provide no more than 25 per cent transparency.

Lighting is provided to all external accessways and paths.

Mailboxes are provided for each dwelling and can be communally located.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.

## 55.03-4 Entry objectives

31/03/2025
VC267

To provide each dwelling, apartment development or residential building with its own sense of identity.

To provide entries with weather protection, safe design, natural light and ventilation.

### Standard B3-4

#### Dwellings (other than a dwelling in or forming part of an apartment development) and residential buildings

Each dwelling and each residential building has a ground level entry door that:

- Has a direct line of sight from a street, accessway or shared walkway.
- Is not accessed through a garage.
- Has an external covered area of at least 1.44 square metres with a minimum dimension of least 1.2 metres over the entry door.

#### Apartment development and residential building with a shared entry

An apartment development and each residential building has:

- A ground level entry door, gate or walkway with a direct line of sight from a street, accessway or shared walkway.
- An external covered area of at least 1.44 square metres with a minimum dimension of least 1.2 metres over the entry door to the building.
- Shared corridors and common areas have at least one source of natural light and natural ventilation.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Whether the entry is visible and easily identifiable from streets and other public areas.
- Whether the entry provides shelter, a sense of address and a transitional space around the entry.

## 55.03-5 Private open space objectives

31/03/2025
VC267

To provide adequate private open space for the reasonable recreation and service needs of residents.

### Standard B3-5

A dwelling or residential building has private open space of an area and dimensions specified in a schedule to the zone.

If no area or dimension is specified in a schedule to the zone, a dwelling or residential building has private open space with direct access from a living area, dining area or kitchen consisting of:

- An area of 25 square metres of secluded private open space, with a minimum dimension of 3 metres width; or
- A balcony with at least the area and dimensions specified in Table B3-5; or

- An area on a podium or similar of at least 15 square metres, with a minimum dimension of 3 metres width; or
- An area on a roof of at least 10 square metres, with a minimum dimension of 2 metres width.

If the area and dimensions of the private open space or secluded private open space is specified in a schedule to the zone;

- The area and dimensions specified in the schedule must be 25 square metres or less; and
- The area and dimensions specified for a podium, balcony or an area on a roof must be less than the area and dimensions specified in this standard.

If a cooling or heating unit is located in the secluded private open space or private open space the required area is increased by 1.5 square metres.

Where ground level private open space is provided an area for clothes drying is provided.

**Table B3-5 Private open space for a balcony**

| Orientation of dwelling | Dwelling type | Minimum area | Minimum dimension |
|---|---|---|---|
| North (between north 20 degrees west to north 30 degrees east) | All | 8 square metres | 1.7 metres |
| South (between south 30 degrees west to south 20 degrees east) | All | 8 square metres | 1.2 metres |
| Any other orientation | Studio or 1 bedroom dwelling | 8 square metres | 1.8 metres |
| | 2 bedroom dwelling | 8 square metres | 2 metres |
| | 3 bedroom dwelling | 12 square metres | 2.4 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability of the private open space, including its size and accessibility.
- The availability of and access to public or communal open space.
- The orientation of the lot to the street and the sun.

## 55.03-6 Solar access to open space objective

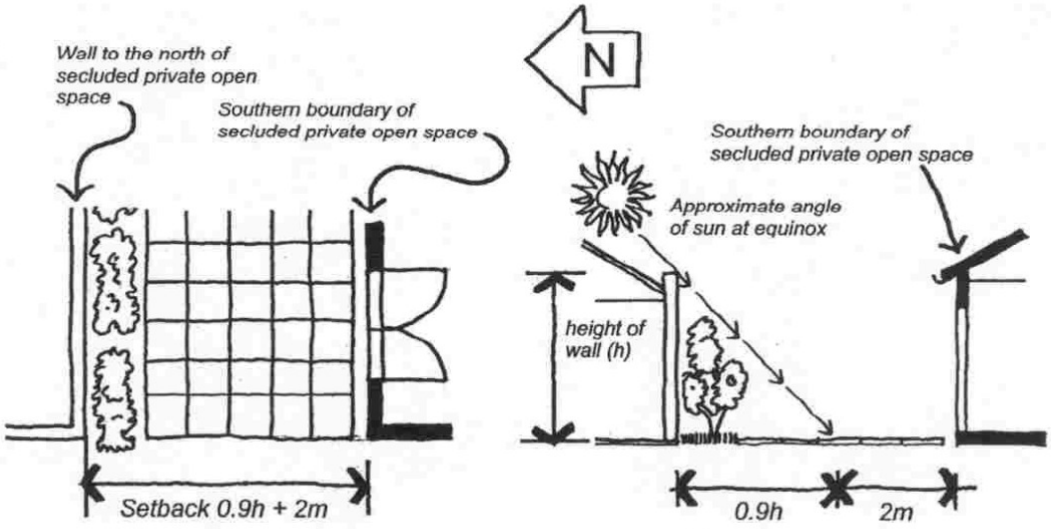
31/03/2025
VC267

To allow solar access into the secluded private open space of new dwellings and residential buildings.

### Standard B3-6

The southern boundary of secluded private open space is set back from any wall on the north of the space at least (2 + 0.9h) metres, where ‘h’ is the height of the wall.

**Diagram B3-6 Solar access to open space**




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of the secluded private open space based on the sunlight it will receive.

## 55.03-7 Functional layout objective

02/04/2025
VC276

To ensure dwellings provide functional areas that meet the needs of residents.

### Standard B3-7

Bedrooms:

- Meet the minimum internal room dimensions specified in Table B3-7.1; and
- Provide an additional area of at least 0.8 square metres to accommodate a wardrobe.

**Table B3-7.1 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth |
|---|---|---|
| Main bedroom | 3 metres | 3.4 metres |
| All other bedrooms | 3 metres | 3 metres |

Living areas (excluding dining and kitchen areas) meet the minimum internal room dimensions specified in Table B3-7.2.

**Table B3-7.2 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 sqm |
| 2 or more bedroom dwelling | 3.6 metres | 12 sqm |

#### Decision guideline

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of habitable rooms.

## 55.03-8 Room depth objective

31/03/2025
VC267

To allow adequate daylight into single aspect habitable rooms.

#### Standard B3-8

The depth of a single aspect habitable room does not exceed 2.5 times the ceiling height measured from the external surface of the habitable room window to the rear wall of the room.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen; and
- The kitchen is located furthest from the window; and
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level, this excludes where services are provided above the kitchen; and
- An overhang extends no more than 2m beyond the window of the single aspect habitable room.

In Clause 55.03-8 a single aspect habitable room is a habitable room with windows on only one wall.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the habitable room is provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability, functionality and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Any overhang above habitable room windows that limits daylight access.

## 55.03-9 Daylight to new windows objective

31/03/2025
VC267

To allow adequate daylight into new habitable room windows.

#### Standard B3-9

#### Dwelling (other than a dwelling in or forming part of an apartment development)

A window in an external wall of the building is provided to all habitable rooms.

Habitable rooms in a dwelling have a window that faces:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot; or
- A verandah provided it is open for at least one third of its perimeter; or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

#### Dwelling in or forming part of an apartment development

A window in an external wall of the building is provided to all habitable rooms.

Where daylight to a bedroom is provided from a smaller secondary area within the bedroom, the secondary area is to have:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.
- A window clear to the sky.

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which habitable rooms are provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Whether there are other windows in the habitable room which have access to daylight.

## 55.03-10 Natural ventilation objectives

31/03/2025
VC267

To encourage natural ventilation of dwellings.

To allow occupants to effectively manage natural ventilation of dwellings.

**Standard B3-10**

**Dwelling (other than a dwelling in or forming part of an apartment development)**

Dwellings have openable windows, doors or other ventilation devices in external walls of the building that provide:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same size.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

**Dwelling in or forming part of an apartment development**

At least 40 per cent of dwellings have openable windows, doors or other ventilation devices in external walls of the building that provide:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same size.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation, slope and wind exposure of the site.

- The extent to which the orientation and layout of the dwelling maximises opportunities for cross ventilation.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling and site context.

## 55.03-11 Storage objective

31/03/2025
VC267

To provide adequate storage facilities for each dwelling.

### Standard B3-11

#### Dwelling (other than a dwelling in or forming part of an apartment development)

Each dwelling has exclusive access to at least 6 cubic metres of externally accessible storage space.

#### Dwelling in or forming part of an apartment development

Each dwelling has exclusive access to storage at least the total minimum storage volume that is specified in Table B3-11.

**Table B3-11 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability, functionality and location of storage facilities provided for the dwelling.

## 55.03-12 Accessibility for apartment developments objective

31/03/2025
VC267

To ensure the design of dwellings meets the needs of people with limited mobility.

### Standard B3-12

At least 50 per cent of dwellings in or forming part of an apartment development have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.
- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table B3-12.

**Table B3-12 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower. |
| Door design | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards that is clear of the circulation area and has readily removable hinges. | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards and has readily removable hinges. |
| Circulation area | A clear circulation area that is:<br>▪ A minimum area of 1.2 metres by 1.2 metres.<br>▪ Located in front of the shower and the toilet.<br>▪ Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>▪ A minimum width of 1 metre.<br>▪ The full length of the bathroom and a minimum length of 2.7 metres.<br>▪ Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

## 55.04 EXTERNAL AMENITY

31/03/2025
VC267

### 55.04-1 Daylight to existing windows objective

24/09/2026
VC315

To allow adequate daylight into existing habitable room windows.

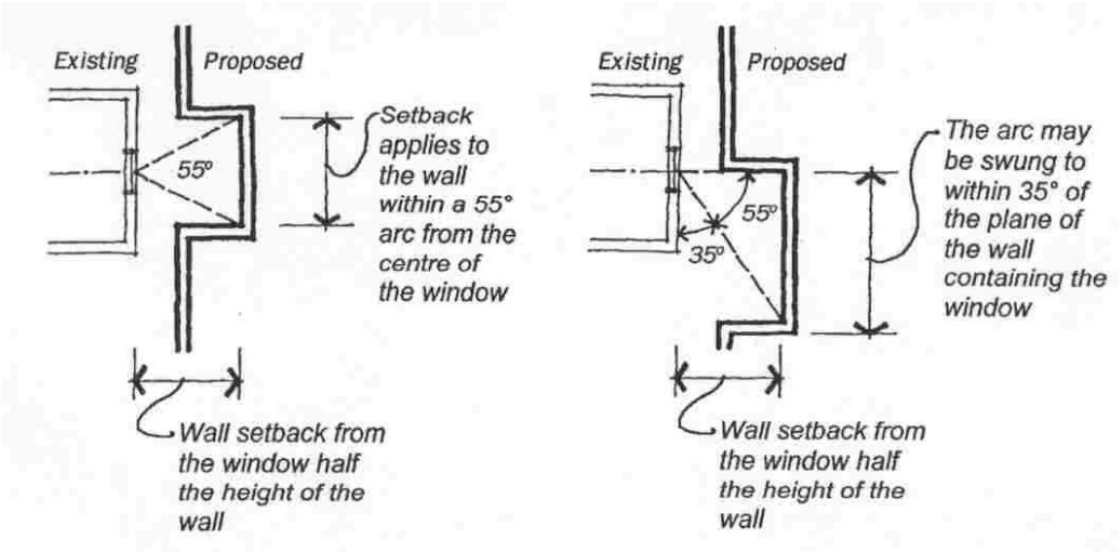
#### Standard B4-1

New buildings opposite an existing habitable room window provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

New walls or carports more than 3 metres in height opposite an existing habitable room window are set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.

#### Diagram B4-1 Daylight to existing windows




#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the existing dwelling or small second dwelling has provided for reasonable daylight access to its habitable rooms through the siting and orientation of its habitable room windows.
- The impact on the amenity of existing dwellings or small second dwellings.

### 55.04-2 Existing north-facing windows objective

02/04/2025
VC276

To allow adequate solar access to existing north-facing habitable room windows.

#### Standard B4-2

Where a north-facing habitable room window of a neighbouring dwelling or small second dwelling is within 3 metres of a boundary on an abutting lot:

- A new building is to be set back from the boundary by at least 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres. This setback is to be provided for a distance of at least 3 metres from the edge of each side of the window.
- For new buildings that meet the Standard B2-3.2 setback, the building is set back from the boundary by at least 6 metres up to a height not exceeding 11 metres and at least 9 metres for a height over 11 metres between south 30 degrees west to south 30 degrees east. This setback is to be provided for a distance of at least 3 metres from the edge of each side of the window.

For this standard a north-facing window is a window with an axis perpendicular to its surface oriented from north 20 degrees west to north 30 degrees east.

**Diagram B4-2.1 North-facing windows**

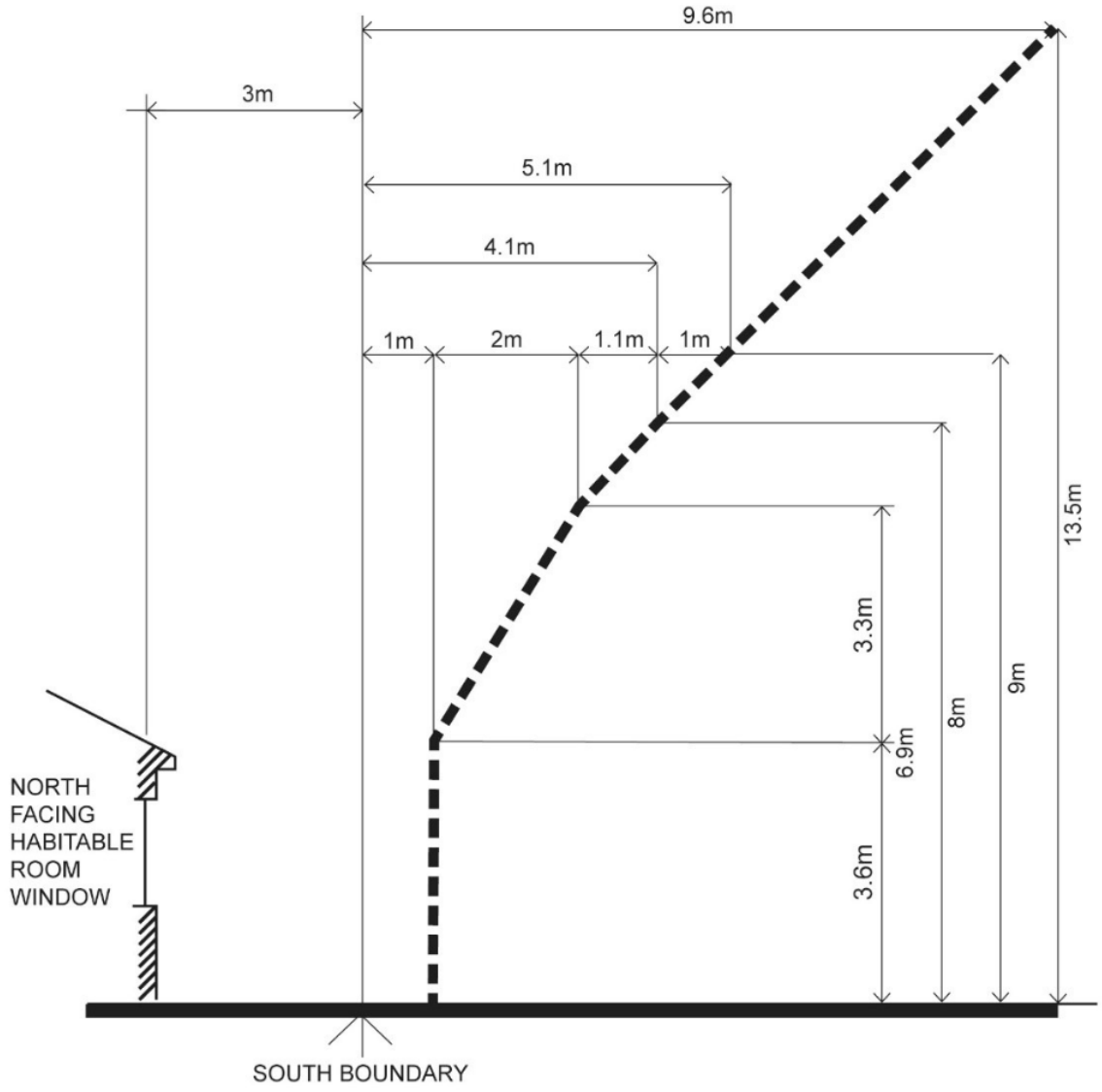
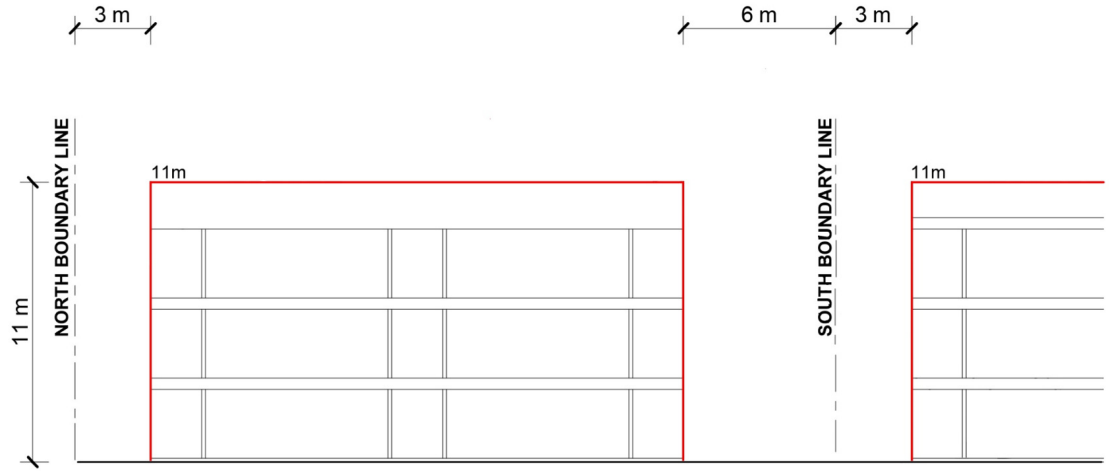


**Diagram B4-2.2 North-facing windows**




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- Existing sunlight to the north-facing habitable room window of the existing dwelling or small second dwelling.
- The impact on the amenity of existing dwellings or small second dwellings.

## 55.04-3 Overshadowing secluded open space objective

02/04/2025
VC276

To ensure buildings do not significantly overshadow existing secluded private open space.

### Standard B4-3

The area of secluded private open space that is not overshadowed by the new development is greater than 50 per cent, or 25 square metres with a minimum dimension of 3 metres, whichever is the lesser area, for a minimum of five hours between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight will not be further reduced.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of existing dwellings or small second dwellings.
- Existing sunlight penetration to the secluded private open space of the existing dwelling or small second dwelling.
- The time of day that sunlight will be available to the secluded private open space of the existing dwelling or small second dwelling.
- The effect of a reduction in sunlight on the existing use of the existing secluded private open space.

## 55.04-4 Overlooking objective

31/03/2025
VC267

To limit views into existing secluded private open space and habitable room windows.

### Standard B4-4

In Clause 55.04-4 a habitable room does not include a bedroom.

A habitable room window, balcony, podium, terrace, deck or patio is located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views are measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio that is located with a direct view into a habitable room window of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio:

- Is offset a minimum of 1.5 metres from the edge of one window to the edge of the other; or
- Has sill heights of at least 1.7 metres above floor level; or
- Has fixed, obscure glazing in any part of the window below 1.7 metre above floor level; or
- Has permanently fixed external screens to at least 1.7 metres above floor level and be no more than 25 per cent transparent; or
- Has fixed elements that prevent the direct view, such as horizontal ledges or vertical fins.

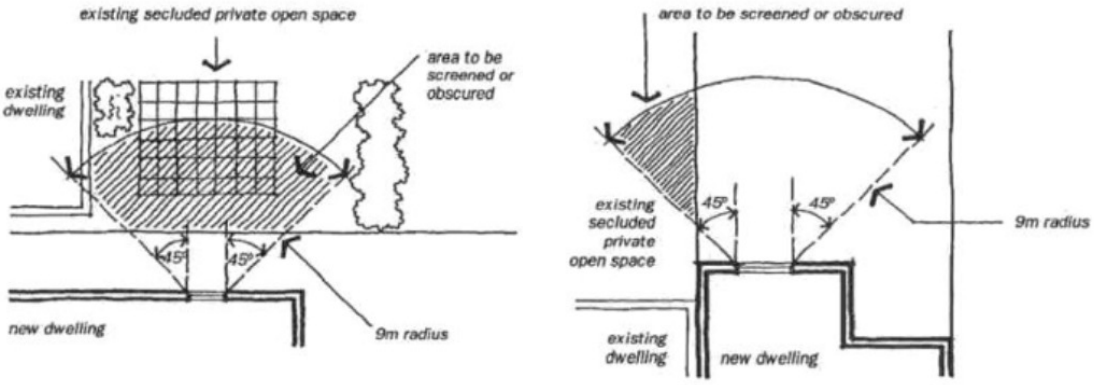
Obscure glazing in any part of the window below 1.7 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view are:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

**Diagram B4-4 Overlooking**




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of the secluded private open space or habitable room window.

- The existing extent of overlooking into the secluded private open space and habitable room windows of existing dwellings or small second dwellings.
- The internal daylight to and amenity of the proposed dwelling, residential building or small second dwelling.

## 55.04-5 Internal views objective

31/03/2025
VC267

To limit views into the secluded private open space and habitable room windows of dwellings and residential buildings within a development.

### Standard B4-5

In Clause 55.04-5 a habitable room does not include a bedroom.

Within the development, a habitable room window, balcony, terrace, deck or patio that is located with a direct view into the secluded private open space of another dwelling:

- Is offset a minimum of 1.5 metres from the edge of the secluded private open space; or
- Has a sill height of at least 1.7 metres above floor level; or
- Has a fixed, visually obscure balustrade to at least 1.7 metre above floor level; or
- Has permanently fixed external screens to at least 1.7 metres above floor level; or.
- Has fixed elements that prevent the direct view, such as horizontal ledges or vertical fins.

Direct views are measured at a height of 1.7 metres above floor level and within:

- A 45 degree horizontal angle from the edge of the new window or balcony.
- A 45 degree angle in the downward direction.

Screens provided for overlooking are no more than 25 per cent transparent. Screens may be openable provided that this does not allow direct views as specified in this standard.

### Decision guideline

Before deciding on an application, the responsible authority must consider the design response.

# 55.05 SUSTAINABILITY

31/03/2025
VC267

## 55.05-1 Permeability and stormwater management objective

24/09/2026
VC315

To reduce the impact of increased stormwater run-off on the drainage system and downstream waterways.

To facilitate on-site stormwater infiltration.

To encourage stormwater management that maximises the retention and reuse of stormwater.

To contribute to urban cooling.

### Standard B5-1

The site area covered by the pervious surfaces is at least 20 percent of the site.

The development includes a stormwater management system designed to:

- Meet the best practice quantitative performance objectives for stormwater quality specified in the *Urban stormwater management guidance* (EPA Publication 1739.1, 2021) of:
  - Suspended solids 80% reduction in mean annual load.
  - Total phosphorus and Total Nitrogen 45% reduction in mean annual load.
  - Litter 70% reduction of mean annual load.

  *Note: A certificate generated from a stormwater assessment tool demonstrating a minimum 100 per cent Blue Factor tool score, or documentation from Model for Urban Stormwater Improvement Conceptualisation (MUSIC) or an equivalent product accepted by the responsible authority showing the performance objectives for stormwater quality are met.*

- Direct flows of stormwater into treatment areas, garden areas, tree pits and permeable surfaces, with drainage of residual flows to the legal point of discharge.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The capacity of the site to incorporate stormwater retention and reuse.
- The existing site coverage and any constraints imposed by existing development.
- The capacity of the drainage network to accommodate additional stormwater.
- Whether the owner has entered into an agreement to contribute to off-site stormwater management in lieu of providing an on-site stormwater management system.

## 55.05-2 Overshadowing domestic solar energy systems objective

31/03/2025
VC267

To ensure that the height and setback of a building from a boundary allows reasonable solar access to existing domestic solar energy systems on the roofs of buildings.

### Standard B5-2

Any part of a new building that will reduce the sunlight at any time between 9am and 4 pm on 22 September to an existing domestic solar energy system on the roof of a building on an adjoining lot be set back from the boundary to that lot by at least 1 metre at 3.6 metres above ground level, plus 0.3 metres for every metre of building height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

This standard applies to an existing building in a Township Zone, General Residential Zone or Neighbourhood Residential Zone.

In Clause 55.05-2 domestic solar energy system means a domestic solar energy system that existed at the date the application was lodged.

### Decision guidelines

Before deciding on an application, the responsible authority must consider whether the domestic solar energy system has been sited to optimise efficiency and protection from overshadowing.

## 55.05-3 Rooftop solar energy generation area objective

31/03/2025
VC267

To support the future installation of appropriately sited rooftop solar energy systems for a dwelling.

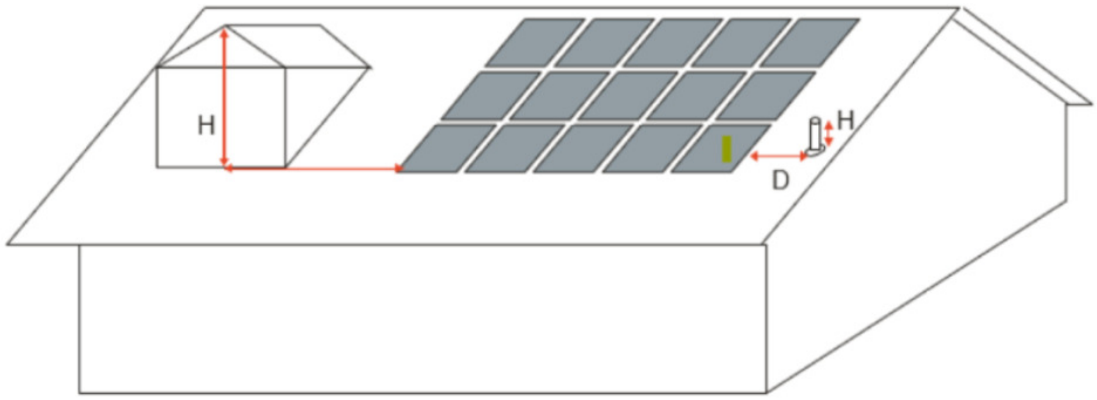
### Standard B5-3

In Clause 55.05-3 rooftop solar energy area means an area provided on the roof of a dwelling to enable the future installation of a solar energy system.

An area on the roof is capable of siting a rooftop solar energy area for each dwelling which:

- Has a minimum dimension of 1.7 metres.
- Has a minimum area in accordance with Table B5-3.
- Is oriented to the north, west or east.
- Is positioned on the top two thirds of a pitched roof.
- Can be a contiguous area or multiple smaller areas.
- Is free of obstructions on the roof of the dwelling within twice the height of each obstruction (H), measured horizontally (D) from the centre point of the base of the obstruction to the nearest point of the rooftop solar energy area.

**Diagram B5-3 Allowable distance between obstructions and the rooftop solar energy area**




Obstructions located south of all points of the rooftop solar energy area are not subject to the horizontal distance requirements.

**Table B5-3 Minimum rooftop solar energy generation area**

| Number of bedrooms | Minimum roof area |
|---|---|
| 1 bedroom dwelling | 15 square metres |
| 2 or 3 bedroom dwelling | 26 square metres |
| 4 or more bedroom dwelling | 34 square metres |

This standard does not apply to apartments and residential buildings.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size and orientation of the building.
- The availability of solar access to the rooftop.
- The extent to which the rooftop solar energy generation area is overshadowed by existing buildings, other permanent structures or equipment on the rooftop.

## 55.05-4 Solar protection to new north-facing windows objective

31/03/2025
VC267

To encourage external shading of north facing windows to minimise summer heat gain.

### Standard B5-4

North facing windows are shaded by eaves, fixed horizontal shading devices or fixed awnings with a minimum horizontal depth of 0.25 times the window height.

### Decision Guidelines

Before deciding on an application, the responsible authority considers:

- The design response.
- The size and orientation of the lot.
- The type and useability of external solar shading devices, including alternative design responses.

## 55.05-5 Waste and recycling objectives

31/03/2025
VC267

To ensure dwellings are designed to facilitate waste recycling.

To ensure that waste and recycling facilities are accessible and are of sufficient size to manage organic and general waste, and mixed and glass recycling.

To ensure that waste and recycling facilities are designed and managed to minimise impacts on residential amenity.

### Standard B5-5

#### Dwelling (other than a dwelling in or forming part of an apartment development)

The development includes an individual bin storage area for each dwelling, or a shared bin storage area for use by each dwelling, of at least the applicable area, depth and height specified in Table B5-5.1.

**Table B5-5.1 Bin storage**

| Type of bin storage area | Minimum area | Minimum depth | Minimum height |
|---|---|---|---|
| Individual bin storage area for a dwelling. | 1.8 square metres | 0.8 metre | 1.8 metres |
| Shared bin storage area for 3 dwellings or less. | 5.4 square metres | 0.8 metre | 1.8 metres |
| Shared bin storage area for 4 or more dwellings. | 1 square metre per dwelling plus 4 square metres | 0.8 metre | 1.8 metres |

If the development includes a shared bin storage area:

- The shared bin storage area:
  - Is located within 40 metres of a kerbside collection point.
  - Includes a tap for bin washing.
- There is a continuous path of travel free of steps and obstructions from dwellings to the bin storage area.

Where access is provided for private bin collection on the land the design of access ways must allow the vehicle to enter and exit in a forward direction.

Each dwelling includes an internal waste and recycling storage space of at least 0.07 cubic metres with a minimum depth of 250 millimetres.

### Dwelling in or forming part of an apartment development

The development includes a shared bin storage area for use by each dwelling of at least the applicable area, depth and height specified in Table B5-5.2.

**Table B5-5.2 Apartment bin storage**

| Number of dwellings | Minimum area | Minimum depth | Minimum height |
|---|---|---|---|
| 15 or less dwellings | 0.7 square metres per dwelling in a shared waste storage area | 0.8 metres | 2.7 metres |
| 16 to 55 dwellings | 0.5 square metres per dwelling, plus 5 square metres in a shared waste storage area. | 1 metre | 2.7 metres |
| 56 or more dwellings | 0.5 square metres per dwelling in a shared waste storage area. | 1 metre | 2.7 metres |

Enclosed bin storage areas are ventilated by:

- Natural ventilation openings to the external air with an area of at least 5 per cent of the area for bin storage area; or
- A mechanical exhaust ventilation system.

A tap and drain is provided to wash bins.

A continuous path of travel is provided from each dwelling to bin storage areas.

Each dwelling includes an internal waste and recycling storage space of at least 0.07 cubic metres with a minimum depth of 250 millimetres.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response, including a Waste Management Plan.
- Any relevant waste and recycling objective, policy or statement set out in this planning scheme.
- The functionality and accessibility of waste and recycling facilities, including for people with limited mobility.

- Whether facilities are provided for on-site reuse or management of food and garden organics through composting or other waste recovery.
- Whether waste and recycling facilities are designed to meet the better practice design options specified in Waste management and recycling in multi-unit developments (Sustainability Victoria, 2019).

## 55.05-6 Noise impacts objective

31/03/2025
VC267

To minimise the impact of mechanical plant noise located in the development.

### Standard B5-6

Mechanical plant, including mechanical car storage and lift facilities are not located immediately adjacent to bedrooms of new or existing dwellings or small second dwellings, unless a solid barrier is in place to provide a line of sight barrier to transmission of noise and the location of all relevant bedrooms.

### Decision guideline

Before deciding on an application, the responsible authority must consider:

- The design response.
- Whether the impact of potential noise sources within a development have been mitigated through design, location and siting.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling or small second dwelling and the site context.

## 55.05-7 Energy efficiency for apartment developments objectives

31/03/2025
VC267

To achieve energy efficient dwellings and buildings.

To ensure dwellings achieve adequate thermal efficiency.

### Standard B5-7

Dwellings in or forming part of an apartment development located in a climate zone identified in Table B5-7 do not exceed the maximum NatHERS annual cooling load.

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

**Note:**

Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).

### Decision Guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation and layout of the site.
- The availability of solar access to north-facing windows on the site.
- The annual cooling load for each dwelling.

56
25/02/2025
VC257

# RESIDENTIAL SUBDIVISION

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To create liveable and sustainable neighbourhoods and urban places with character and identity.

To achieve residential subdivision outcomes that appropriately respond to the site and its context for:

- Metropolitan Melbourne growth areas.
- Infill sites within established residential areas.
- Regional cities and towns.

To ensure residential subdivision design appropriately provides for:

- Policy implementation.
- Liveable and sustainable communities.
- Residential lot design.
- Urban landscape.
- Access and mobility management.
- Integrated water management.
- Site management.
- Utilities.

## Application

These provisions apply to an application to subdivide land in the Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone and any Comprehensive Development Zone or Priority Development Zone that provides for residential development.

These provisions do not apply to an application to subdivide land into lots each containing an existing dwelling or car parking space.

## Operation

The provisions of this clause contain:

- **Objectives.** An objective describes the desired outcome to be achieved in the completed subdivision.
- **Standards.** A standard contains the requirements to meet the objective.

A standard should normally be met. However, if the responsible authority is satisfied that an application for an alternative design solution meets the objective, the alternative design solution may be considered.

## Requirement

An application to subdivide land:

- Must be accompanied by a site and context description and a design response.
- Must meet all of the objectives included in the clauses specified in the zone.
- Should meet all of the standards included in the clauses specified in the zone.

### Certification of standards

A subdivision may be certified by a person authorised by the Minister for Planning as meeting the requirements of a standard in this clause.

A standard that is certified as met is deemed to have met the objective of that standard.

# 56.01 SUBDIVISION SITE AND CONTEXT DESCRIPTION AND DESIGN RESPONSE

16/01/2018
VC142

## 56.01-1 Subdivision site and context description

16/01/2018
VC142

The site and context description may use a site plan, photographs or other techniques and must accurately describe:

- In relation to the site:
  - Site shape, size, dimensions and orientation.
  - Levels and contours of the site.
  - Natural features including trees and other significant vegetation, drainage lines, water courses, wetlands, ridgelines and hill tops.
  - The siting and use of existing buildings and structures.
  - Street frontage features such as poles, street trees and kerb crossovers.
  - Access points.
  - Location of drainage and other utilities.
  - Easements.
  - Any identified natural or cultural features of the site.
  - Significant views to and from the site.
  - Noise and odour sources or other external influences.
  - Soil conditions, including any land affected by contamination, erosion, salinity, acid sulphate soils or fill.
  - Any other notable features or characteristics of the site.
  - Adjacent uses.
  - Any other factor affecting the capacity to develop the site including whether the site is affected by inundation.
- An application for subdivision of 3 or more lots must also describe in relation to the surrounding area:
  - The pattern of subdivision.
  - Existing land uses.
  - The location and use of existing buildings on adjacent land.
  - Abutting street and path widths, materials and detailing.
  - The location and type of significant vegetation.
- An application for subdivision of 60 or more lots must also describe in relation to the surrounding area:
  - Location, distance and type of any nearby public open space and recreational facilities.
  - Direction and distances to local shops and community facilities.
  - Directions and walking distances to public transport routes and stops.
  - Direction and walking distances to existing neighbourhood, major and principal activity centres and major employment areas.

- Existing transport routes, including freeways, arterial roads and streets connecting neighbourhoods.
- Local street network including potential connections to adjacent subdivisions.
- Traffic volumes and movements on adjacent roads and streets.
- Pedestrian, bicycle and shared paths identifying whether their primary role is neighbourhood or regional access.
- Any places of cultural significance.
- Natural features including trees and other significant vegetation, drainage lines, water courses, wetlands, ridgelines and hill tops.
- Proximity of any fire threats.
- Pattern of ownership of adjoining lots.

If in the opinion of the responsible authority a requirement of the site and context description is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

#### Satisfactory subdivision site and context description

If the responsible authority decides that the site and context description is not satisfactory, it may require more information from the applicant under Section 54 of the Act.

The responsible authority must not require notice of an application to be given or decide an application until it is satisfied that the site and context description meets the requirements of Clause 56.01-1 and is satisfactory.

This does not apply if the responsible authority refuses an application under Section 52(1A) of the Act.

## 56.01-2 Subdivision design response

09/10/2006
VC42

The design response must explain how the proposed design:

- Derives from and responds to the site and context description.
- Responds to any site and context features for the area identified in a local planning policy or a Neighbourhood Character Overlay.
- Responds to any relevant objective, policy, strategy or plan set out for the area in this scheme.
- Meets the relevant objectives of Clause 56.

The design response must include a dimensioned plan to scale showing the layout of the subdivision in context with the surrounding area. If in the opinion of the responsible authority this requirement is not relevant to the assessment of an application, it may waive or reduce the requirement.

An application for subdivision of 60 or more lots must also include a plan that meets the requirements of Standard C2. The plan must also show the:

- Proposed uses of each part of the site.
- Natural features of the site and identify any features proposed to be altered.
- Proposed integrated water management system.
- Proposed staging of the subdivision.

## 56.02 POLICY IMPLEMENTATION

09/10/2006
VC42

### 56.02-1 Strategic implementation objective

09/10/2006
VC42

To ensure that the layout and design of a subdivision is consistent with and implements any objective, policy, strategy or plan for the area set out in this scheme.

#### Standard C1

An application must be accompanied by a written statement that describes how the subdivision is consistent with and implements any relevant growth area, activity centre, housing, access and mobility, community facilities, open space and recreation, landscape (including any native vegetation precinct plan) and urban design objective, policy, strategy or plan for the area set out in this scheme.

# 56.03 LIVEABLE AND SUSTAINABLE COMMUNITIES

19/09/2017
VC132

## 56.03-1 Compact and walkable neighbourhoods objectives

09/10/2006
VC42

To create compact neighbourhoods that are oriented around easy walking distances to activity centres, schools and community facilities, public open space and public transport.

To allow easy movement through and between neighbourhoods for all people.

### Standard C2

A subdivision should implement any relevant growth area or any approved land-use and development strategy, plan or policy for the area set out in this scheme.

An application for subdivision must include a plan of the layout of the subdivision that:

- Meets the objectives (if relevant to the class of subdivision specified in the zone) of:
  - Clause 56.03-2 Activity centres
  - Clause 56.03-3 Planning for community facilities
  - Clause 56.04-1 Lot diversity and distribution
  - Clause 56.06-2 Walking and cycling network
  - Clause 56.06-3 Public transport network
  - Clause 56.06-4 Neighbourhood street network
- Shows the 400 metre street walking distance around each existing or proposed bus stop, 600 metres street walking distance around each existing or proposed tram stop and 800 metres street walking distance around each existing or proposed railway station and shows the estimated number of dwellings within those distances.
- Shows the layout of the subdivision in relation to the surrounding area.
- Is designed to be accessible for people with disabilities.

## 56.03-2 Activity centre objective

09/10/2006
VC42

To provide for mixed-use activity centres, including neighbourhood activity centres, of appropriate area and location.

### Standard C3

A subdivision should implement any relevant activity centre strategy, plan or policy for the area set out in this scheme.

Subdivision should be supported by activity centres that are:

- Accessible by neighbourhood and regional walking and cycling networks.
- Served by public transport that is connected to the regional public transport network.
- Located at public transport interchange points for the convenience of passengers and easy connections between public transport services.
- Located on arterial roads or connector streets.
- Of appropriate size to accommodate a mix of uses that meet local community needs.
- Oriented to support active street frontages, support street-based community interaction and pedestrian safety.

## 56.03-3 Planning for community facilities objective

20/03/2023
VC229

To provide appropriately located sites for community facilities including schools, libraries, preschools and childcare, health services, police and fire stations, recreation and sports facilities.

### Standard C4

A subdivision should:

- Implement any relevant regional and local community facility strategy, plan or policy for the area set out in this scheme.
- Locate community facilities on sites that are in or near activity centres and public transport.

School sites should:

- Be integrated with the neighbourhood and located near activity centres.
- Be located on walking and cycling networks.
- Have a bus stop located along the school site boundary.
- Have student drop-off zones, bus parking and on-street parking in addition to other street functions in abutting streets.
- Adjoin the public open space network and community sporting and other recreation facilities.
- Be integrated with community facilities.
- Be located on land that is not affected by physical, environmental or other constraints.

Schools should be accessible by the Principal Public Transport Network in Metropolitan Melbourne and on the regional public transport network outside Metropolitan Melbourne.

Primary schools should be located on connector streets and not on arterial roads.

New State Government school sites must meet the requirements of the Department of Education and abut at least two streets with sufficient widths to provide student drop-off zones, bus parking and on-street parking in addition to other street functions.

## 56.03-4 Built environment objective

09/10/2006
VC42

To create urban places with identity and character.

### Standard C5

The built environment should:

- Implement any relevant urban design strategy, plan or policy for the area set out in this scheme.
- Provide living and working environments that are functional, safe and attractive.
- Provide an integrated layout, built form and urban landscape.
- Contribute to a sense of place and cultural identity.

An application should describe the identity and character to be achieved and the elements that contribute to that identity and character.

## 56.03-5 Neighbourhood character objective

09/10/2006
VC42

To design subdivisions that respond to neighbourhood character.

### Standard C6

Subdivision should:

- Respect the existing neighbourhood character or achieve a preferred neighbourhood character consistent with any relevant neighbourhood character objective, policy or statement set out in this scheme.
- Respond to and integrate with the surrounding urban environment.
- Protect significant vegetation and site features.

## 56.04 LOT DESIGN

09/10/2006
VC42

### 56.04-1 Lot diversity and distribution objectives

09/10/2006
VC42

To achieve housing densities that support compact and walkable neighbourhoods and the efficient provision of public transport services.

To provide higher housing densities within walking distance of activity centres.

To achieve increased housing densities in designated growth areas.

To provide a range of lot sizes to suit a variety of dwelling and household types.

#### Standard C7

A subdivision should implement any relevant housing strategy, plan or policy for the area set out in this scheme.

Lot sizes and mix should achieve the average net residential density specified in any zone or overlay that applies to the land or in any relevant policy for the area set out in this scheme.

A range and mix of lot sizes should be provided including lots suitable for the development of:

- Single dwellings.
- Two dwellings or more.
- Higher density housing.
- Residential buildings and Retirement villages.

Unless the site is constrained by topography or other site conditions, lot distribution should provide for 95 per cent of dwellings to be located no more than 400 metre street walking distance from the nearest existing or proposed bus stop, 600 metres street walking distance from the nearest existing or proposed tram stop and 800 metres street walking distance from the nearest existing or proposed railway station.

Lots of 300 square metres or less in area, lots suitable for the development of two dwellings or more, lots suitable for higher density housing and lots suitable for Residential buildings and Retirement villages should be located in and within 400 metres street walking distance of an activity centre.

### 56.04-2 Lot area and building envelopes objective

08/09/2025
VC282

To provide lots with areas and dimensions that enable the appropriate siting and construction of a dwelling, solar access, private open space, vehicle access and parking, water management, easements and the retention of significant vegetation and site features.

#### Standard C8

An application to subdivide land that creates lots of less than 300 square metres should be accompanied by information that shows:

- That the lots are consistent or contain building envelope that is consistent with a development approved under this scheme, or
- That a dwelling may be constructed on each lot in accordance with the requirements of this scheme.

Lots of between 300 square metres and 500 square metres should:

- Contain a building envelope that is consistent with a development of the lot approved under this scheme, or
- If no development of the lot has been approved under this scheme, contain a building envelope and be able to contain a rectangle measuring 10 metres by 15 metres, or 9 metres by 15 metres if a boundary wall is nominated as part of the building envelope.

If lots of between 300 square metres and 500 square metres are proposed to contain dwellings that are built to the boundary, the long axis of the lots should be within 30 degrees east and 20 degrees west of north unless there are significant physical constraints that make this difficult to achieve.

Lots greater than 500 square metres should be able to contain a rectangle measuring 10 metres by 15 metres, and may contain a building envelope.

A building envelope may specify or incorporate any relevant siting and design requirement. Any requirement should meet the relevant standards of Clause 54, unless:

- The objectives of the relevant standards are met, and
- The building envelope is shown as a restriction on a plan of subdivision registered under the *Subdivision Act 1988*, or is specified as a covenant in an agreement under Section 173 of the Act.

Where a lot with a building envelope adjoins a lot that is not on the same plan of subdivision or is not subject to the same agreement relating to the relevant building envelope:

- The building envelope must meet Standards A2-3 and A2-4 of Clause 54 in relation to the adjoining lot, and
- The building envelope must not regulate siting matters covered by Standards A4-1 to A4-4 (inclusive) of Clause 54 in relation to the adjoining lot. This should be specified in the relevant plan of subdivision or agreement.

Lot dimensions and building envelopes should protect:

- Solar access for future dwellings and support the siting and design of dwellings that achieve the energy rating requirements of the Building Regulations.
- Existing or proposed easements on lots.
- Significant vegetation and site features.

## 56.04-3 Solar orientation of lots objective

09/10/2006
VC42

To provide good solar orientation of lots and solar access for future dwellings.

### Standard C9

Unless the site is constrained by topography or other site conditions, at least 70 percent of lots should have appropriate solar orientation.

Lots have appropriate solar orientation when:

- The long axis of lots are within the range north 20 degrees west to north 30 degrees east, or east 20 degrees north to east 30 degrees south.
- Lots between 300 square metres and 500 square metres are proposed to contain dwellings that are built to the boundary, the long axis of the lots should be within 30 degrees east and 20 degrees west of north.
- Dimensions of lots are adequate to protect solar access to the lot, taking into account likely dwelling size and the relationship of each lot to the street.

## 56.04-4 Street orientation objective

09/10/2006
VC42

To provide a lot layout that contributes to community social interaction, personal safety and property security.

### Standard C10

Subdivision should increase visibility and surveillance by:

- Ensuring lots front all roads and streets and avoid the side or rear of lots being oriented to connector streets and arterial roads.
- Providing lots of 300 square metres or less in area and lots for 2 or more dwellings around activity centres and public open space.
- Ensuring streets and houses look onto public open space and avoiding sides and rears of lots along public open space boundaries.
- Providing roads and streets along public open space boundaries.

## 56.04-5 Common area objectives

09/10/2006
VC42

To identify common areas and the purpose for which the area is commonly held.

To ensure the provision of common area is appropriate and that necessary management arrangements are in place.

To maintain direct public access throughout the neighbourhood street network.

### Standard C11

An application to subdivide land that creates common land must be accompanied by a plan and a report identifying:

- The common area to be owned by the body corporate, including any streets and open space.
- The reasons why the area should be commonly held.
- Lots participating in the body corporate.
- The proposed management arrangements including maintenance standards for streets and open spaces to be commonly held.

# 56.05 URBAN LANDSCAPE

01/10/2009
VC58

## 56.05-1 Integrated urban landscape objectives

09/10/2006
VC42

To provide attractive and continuous landscaping in streets and public open spaces that contribute to the character and identity of new neighbourhoods and urban places or to existing or preferred neighbourhood character in existing urban areas.

To incorporate natural and cultural features in the design of streets and public open space where appropriate.

To protect and enhance native habitat and discourage the planting and spread of noxious weeds.

To provide for integrated water management systems and contribute to drinking water conservation.

### Standard C12

An application for subdivision that creates streets or public open space should be accompanied by a landscape design.

The landscape design should:

- Implement any relevant streetscape, landscape, urban design or native vegetation precinct plan, strategy or policy for the area set out in this scheme.
- Create attractive landscapes that visually emphasise streets and public open spaces.
- Respond to the site and context description for the site and surrounding area.
- Maintain significant vegetation where possible within an urban context.
- Take account of the physical features of the land including landform, soil and climate.
- Protect and enhance any significant natural and cultural features.
- Protect and link areas of significant local habitat where appropriate.
- Support integrated water management systems with appropriate landscape design techniques for managing urban run-off including wetlands and other water sensitive urban design features in streets and public open space.
- Promote the use of drought tolerant and low maintenance plants and avoid species that are likely to spread into the surrounding environment.
- Ensure landscaping supports surveillance and provides shade in streets, parks and public open space.
- Develop appropriate landscapes for the intended use of public open space including areas for passive and active recreation, the exercising of pets, playgrounds and shaded areas.
- Provide for walking and cycling networks that link with community facilities.
- Provide appropriate pathways, signage, fencing, public lighting and street furniture.
- Create low maintenance, durable landscapes that are capable of a long life.
- The landscape design must include a maintenance plan that sets out maintenance responsibilities, requirements and costs.

## 56.05-2 Public open space provision objectives

01/10/2009
VC58

To provide a network of quality, well-distributed, multi-functional and cost-effective public open space that includes local parks, active open space, linear parks and trails, and links to regional open space.

To provide a network of public open space that caters for a broad range of users.

To encourage healthy and active communities.

To provide adequate unencumbered land for public open space and integrate any encumbered land with the open space network.

To ensure land provided for public open space can be managed in an environmentally sustainable way and contributes to the development of sustainable neighbourhoods.

**Standard C13**

The provision of public open space should:

- Implement any relevant objective, policy, strategy or plan (including any growth area precinct structure plan) for open space set out in this scheme.
- Provide a network of well-distributed neighbourhood public open space that includes:
- Local parks within 400 metres safe walking distance of at least 95 percent of all dwellings. Where not designed to include active open space, local parks should be generally 1 hectare in area and suitably dimensioned and designed to provide for their intended use and to allow easy adaptation in response to changing community preferences.
- Additional small local parks or public squares in activity centres and higher density residential areas.
- Active open space of a least 8 hectares in area within 1 kilometre of 95 percent of all dwellings that is:
- Suitably dimensioned and designed to provide for the intended use, buffer areas around sporting fields and passive open space
- Sufficient to incorporate two football/cricket ovals
- Appropriate for the intended use in terms of quality and orientation
- Located on flat land (which can be cost effectively graded)
- Located with access to, or making provision for, a recycled or sustainable water supply
- Adjoin schools and other community facilities where practical
- Designed to achieve sharing of space between sports.
- Linear parks and trails along waterways, vegetation corridors and road reserves within 1 kilometre of 95 percent of all dwellings.

Public open space should:

- Be provided along foreshores, streams and permanent water bodies.
- Be linked to existing or proposed future public open spaces where appropriate.
- Be integrated with floodways and encumbered land that is accessible for public recreation.
- Be suitable for the intended use.
- Be of an area and dimensions to allow easy adaptation to different uses in response to changing community active and passive recreational preferences.
- Maximise passive surveillance.
- Be integrated with urban water management systems, waterways and other water bodies.
- Incorporate natural and cultural features where appropriate.

# 56.06 ACCESS AND MOBILITY MANAGEMENT

18/06/2010
VC62

## 56.06-1 Integrated mobility objectives

18/06/2010
VC62

To achieve an urban structure where compact and walkable neighbourhoods are clustered to support larger activity centres on the Principal Public Transport Network in Metropolitan Melbourne and on the regional public transport network outside Metropolitan Melbourne.

To provide for walking (including persons with impaired mobility), cycling, public transport and other motor vehicles in an integrated manner.

To contribute to reduced car dependence, improved energy efficiency, improved transport efficiency, reduced greenhouse gas emissions and reduced air pollution.

### Standard C14

An application for a subdivision must include a plan of the layout of the neighbourhood that meets the objectives of:

- Clause 56.06-2 Walking and cycling network.
- Clause 56.06-3 Public transport network.
- Clause 56.06-4 Neighbourhood street network.

## 56.06-2 Walking and cycling network objectives

09/10/2006
VC42

To contribute to community health and well being by encouraging walking and cycling as part of the daily lives of residents, employees and visitors.

To provide safe and direct movement through and between neighbourhoods by pedestrians and cyclists.

To reduce car use, greenhouse gas emissions and air pollution.

### Standard C15

The walking and cycling network should be designed to:

- Implement any relevant regional and local walking and cycling strategy, plan or policy for the area set out in this scheme.
- Link to any existing pedestrian and cycling networks.
- Provide safe walkable distances to activity centres, community facilities, public transport stops and public open spaces.
- Provide an interconnected and continuous network of safe, efficient and convenient footpaths, shared paths, cycle paths and cycle lanes based primarily on the network of arterial roads, neighbourhood streets and regional public open spaces.
- Provide direct cycling routes for regional journeys to major activity centres, community facilities, public transport and other regional activities and for regional recreational cycling.
- Ensure safe street and road crossings including the provision of traffic controls where required.
- Provide an appropriate level of priority for pedestrians and cyclists.
- Have natural surveillance along streets and from abutting dwellings and be designed for personal safety and security particularly at night.
- Be accessible to people with disabilities.

## 56.06-3 Public transport network objectives

09/10/2006
VC42

To provide an arterial road and neighbourhood street network that supports a direct, efficient and safe public transport system.

To encourage maximum use of public transport.

**Standard C16**

The public transport network should be designed to:

- Implement any relevant public transport strategy, plan or policy for the area set out in this scheme.
- Connect new public transport routes to existing and proposed routes to the satisfaction of the relevant public transport authority.
- Provide for public transport links between activity centres and other locations that attract people using the Principal Public Transport Network in Metropolitan Melbourne and the regional public transport network outside Metropolitan Melbourne.
- Locate regional bus routes principally on arterial roads and locate local bus services principally on connector streets to provide:
  - Safe and direct movement between activity centres without complicated turning manoeuvres.
  - Direct travel between neighbourhoods and neighbourhood activity centres.
  - A short and safe walk to a public transport stop from most dwellings.

## 56.06-4 Neighbourhood street network objective

14/05/2021
VC198

To provide for direct, safe and easy movement through and between neighbourhoods for pedestrians, cyclists, public transport and other motor vehicles using the neighbourhood street network.

**Standard C17**

The neighbourhood street network must:

- Take account of the existing mobility network of arterial roads, neighbourhood streets, cycle paths, shared paths, footpaths and public transport routes.
- Provide clear physical distinctions between arterial roads and neighbourhood street types.
- Comply with the Head, Transport for Victoria's arterial road access management policies.
- Provide an appropriate speed environment and movement priority for the safe and easy movement of pedestrians and cyclists and for accessing public transport.
- Provide safe and efficient access to activity centres for commercial and freight vehicles.
- Provide safe and efficient access to all lots for service and emergency vehicles.
- Provide safe movement for all vehicles.
- Incorporate any necessary traffic control measures and traffic management infrastructure.

The neighbourhood street network should be designed to:

- Implement any relevant transport strategy, plan or policy for the area set out in this scheme.
- Include arterial roads at intervals of approximately 1.6 kilometres that have adequate reservation widths to accommodate long term movement demand.
- Include connector streets approximately halfway between arterial roads and provide adequate reservation widths to accommodate long term movement demand.
- Ensure connector streets align between neighbourhoods for direct and efficient movement of pedestrians, cyclists, public transport and other motor vehicles.
- Provide an interconnected and continuous network of streets within and between neighbourhoods for use by pedestrians, cyclists, public transport and other vehicles.
- Provide an appropriate level of local traffic dispersal.

- Indicate the appropriate street type.
- Provide a speed environment that is appropriate to the street type.
- Provide a street environment that appropriately manages movement demand (volume, type and mix of pedestrians, cyclists, public transport and other motor vehicles).
- Encourage appropriate and safe pedestrian, cyclist and driver behaviour.
- Provide safe sharing of access lanes and access places by pedestrians, cyclists and vehicles.
- Minimise the provision of culs-de-sac.
- Provide for service and emergency vehicles to safely turn at the end of a dead-end street.
- Facilitate solar orientation of lots.
- Facilitate the provision of the walking and cycling network, integrated water management systems, utilities and planting of trees.
- Contribute to the area's character and identity.
- Take account of any identified significant features.

## 56.06-5 Walking and cycling network detail objectives

09/10/2006
VC42

To design and construct footpaths, shared path and cycle path networks that are safe, comfortable, well constructed and accessible for people with disabilities.

To design footpaths to accommodate wheelchairs, prams, scooters and other footpath bound vehicles.

### Standard C18

Footpaths, shared paths, cycle paths and cycle lanes should be designed to:

- Be part of a comprehensive design of the road or street reservation.
- Be continuous and connect.
- Provide for public transport stops, street crossings for pedestrians and cyclists and kerb crossovers for access to lots.
- Accommodate projected user volumes and mix.
- Meet the requirements of Table C1.
- Provide pavement edge, kerb, channel and crossover details that support safe travel for pedestrians, footpath bound vehicles and cyclists, perform required drainage functions and are structurally sound.
- Provide appropriate signage.
- Be constructed to allow access to lots without damage to the footpath or shared path surfaces.
- Be constructed with a durable, non-skid surface.
- Be of a quality and durability to ensure:
  - Safe passage for pedestrians, cyclists, footpath bound vehicles and vehicles.
  - Discharge of urban run-off.
  - Preservation of all-weather access.
  - Maintenance of a reasonable, comfortable riding quality.
  - A minimum 20 year life span.

- Be accessible to people with disabilities and include tactile ground surface indicators, audible signals and kerb ramps required for the movement of people with disabilities.

## 56.06-6 Public transport network detail objectives

09/10/2006
VC42

To provide for the safe, efficient operation of public transport and the comfort and convenience of public transport users.

To provide public transport stops that are accessible to people with disabilities.

### Standard C19

Bus priority measures must be provided along arterial roads forming part of the existing or proposed Principal Public Transport Network in Metropolitan Melbourne and the regional public transport network outside Metropolitan Melbourne to the requirements of the relevant roads authority.

Road alignment and geometry along bus routes should provide for the efficient, unimpeded movement of buses and the safety and comfort of passengers.

The design of public transport stops should not impede the movement of pedestrians.

Bus and tram stops should have:

- Surveillance from streets and adjacent lots.
- Safe street crossing conditions for pedestrians and cyclists.

Safe pedestrian crossings on arterial roads and at schools including the provision of traffic controls as required by the roads authority.

- Continuous hard pavement from the footpath to the kerb.
- Sufficient lighting and paved, sheltered waiting areas for forecast user volume at neighbourhood centres, schools and other locations with expected high patronage.
- Appropriate signage.

Public transport stops and associated waiting areas should be accessible to people with disabilities and include tactile ground surface indicators, audible signals and kerb ramps required for the movement of people with physical disabilities.

## 56.06-7 Neighbourhood street network detail objective

15/09/2008
VC49

To design and construct street carriageways and verges so that the street geometry and traffic speeds provide an accessible and safe neighbourhood street system for all users.

### Standard C20

The design of streets and roads should:

- Meet the requirements of Table C1. Where the widths of access lanes, access places, and access streets do not comply with the requirements of Table C1, the requirements of the relevant fire authority and roads authority must be met.
- Provide street blocks that are generally between 120 metres and 240 metres in length and generally between 60 metres to 120 metres in width to facilitate pedestrian movement and control traffic speed.
- Have verges of sufficient width to accommodate footpaths, shared paths, cycle paths, integrated water management, street tree planting, lighting and utility needs.
- Have street geometry appropriate to the street type and function, the physical land characteristics and achieve a safe environment for all users.
- Provide a low-speed environment while allowing all road users to proceed without unreasonable inconvenience or delay.

- Provide a safe environment for all street users applying speed control measures where appropriate.
- Ensure intersection layouts clearly indicate the travel path and priority of movement for pedestrians, cyclists and vehicles.
- Provide a minimum 5 metre by 5 metre corner splay at junctions with arterial roads and a minimum 3 metre by 3 metre corner splay at other junctions unless site conditions justify a variation to achieve safe sight lines across corners.
- Ensure streets are of sufficient strength to:
  - Enable the carriage of vehicles.
  - Avoid damage by construction vehicles and equipment.
- Ensure street pavements are of sufficient quality and durability for the:
  - Safe passage of pedestrians, cyclists and vehicles.
  - Discharge of urban run-off.
  - Preservation of all-weather access and maintenance of a reasonable, comfortable riding quality.
- Ensure carriageways of planned arterial roads are designed to the requirements of the relevant road authority.
- Ensure carriageways of neighbourhood streets are designed for a minimum 20 year life span.
- Provide pavement edges, kerbs, channel and crossover details designed to:
  - Perform the required integrated water management functions.
  - Delineate the edge of the carriageway for all street users.
  - Provide efficient and comfortable access to abutting lots at appropriate locations.
  - Contribute to streetscape design.
- Provide for the safe and efficient collection of waste and recycling materials from lots.
- Be accessible to people with disabilities.
- Meet the requirements of Table C1. Where the widths of access lanes, access places, and access streets do not comply with the requirements of Table C1, the requirements of the relevant fire authority and roads authority must be met. Where the widths of connector streets do not comply with the requirements of Table C1, the requirements of the relevant public transport authority must be met.

A street detail plan should be prepared that shows, as appropriate:

- The street hierarchy and typical cross-sections for all street types.
- Location of carriageway pavement, parking, bus stops, kerbs, crossovers, footpaths, tactile surface indicators, cycle paths and speed control and traffic management devices.
- Water sensitive urban design features.
- Location and species of proposed street trees and other vegetation.
- Location of existing vegetation to be retained and proposed treatment to ensure its health.
- Any relevant details for the design and location of street furniture, lighting, seats, bus stops, telephone boxes and mailboxes.

## 56.06-8 Lot access objective

18/06/2010
VC62

To provide for safe vehicle access between roads and lots.

### Standard C21

Vehicle access to lots abutting arterial roads should be provided from service roads, side or rear access lanes, access places or access streets where appropriate and in accordance with the access management requirements of the relevant roads authority.

Vehicle access to lots of 300 square metres or less in area and lots with a frontage of 7.5 metres or less should be provided via rear or side access lanes, places or streets.

The design and construction of a crossover should meet the requirements of the relevant road authority.

### Table C1 Design of roads and neighbourhood streets

#### Access Lane

A side or rear lane principally providing access to parking on lots with another street frontage.

| | |
|---|---|
| **Traffic volume**[1] | 300vpd |
| **Target speed**[2] | 10kph |
| **Carriageway width**[3] **& parking provision within street reservation** | 5.5m[6] wide with no parking spaces to be provided.<br>Appropriately signed. |
| **Verge width**[4] | No verge required. |
| **Kerbing**[5] | |
| **Footpath provision** | None<br>Carriageway designed as a shared zone and appropriately signed. |
| **Cycle path provision** | None |

#### Access Place

A minor street providing local residential access with shared traffic, pedestrian and recreation use, but with pedestrian priority.

| | |
|---|---|
| **Traffic volume**[1] | 300vpd to1000vpd |
| **Target speed**[2] | 15kph |
| **Carriageway width**[3] **& parking provision within street reservation** | 5.5m wide with 1 hard standing verge parking space per 2 lots.<br>or<br>5.5m wide with parking on carriageway - one side.<br>Appropriately signed. |
| **Verge width**[4] | 7.5m minimum total width.<br>For services provide a minimum of 3.5m on one side and a minimum of 2.5m on the other. |

| | |
|---|---|
| **Kerbing**[5] | Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath provision** | Not required if serving 5 dwellings or less and the carriageway is designed as a shared zone and appropriately signed.<br>or<br>1.5m wide footpath offset a minimum distance of 1m from the kerb. |
| **Cycle path provision** | None |

### Access Street - Level 1

A street providing local residential access where traffic is subservient, speed and volume are low and pedestrian and bicycle movements are facilitated.

| | |
|---|---|
| **Traffic volume**[1] | 1000vpd to 2000vpd |
| **Target speed**[2] | 30kph |
| **Carriageway width**[3] **& parking provision within street reservation** | 5.5m wide with1 hard standing verge parking space per 2 lots. |
| **Verge width**[4] | 4m minimum each side |
| **Kerbing**[5] | Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath provision** | 1.5m wide footpaths on both sides.<br>Footpaths should be widened to 2.0m in vicinity of a school, shop or other activity centre.<br>Be offset a minimum distance of 1m from the kerb. |
| **Cycle path provision** | Carriageway designed as a shared zone and appropriately signed. |

### Access Street - Level 2

A street providing local residential access where traffic is subservient, speed and volume are low and pedestrian and bicycle movements are facilitated.

| | |
|---|---|
| **Traffic volume**[1] | 2000vpd to 3000vpd |
| **Target speed**[2] | 40kph |
| **Carriageway width**[3] **& parking provision within street reservation** | 7m-7.5m wide with parking on both sides of carriageway |
| **Verge width**[4] | 4.5m minimum each side |
| **Kerbing**[5] | Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath provision** | 1.5m wide footpaths on both sides.<br>Footpaths should be widened to 2.0m in vicinity of a school, shop or other activity centre. |

| | |
|---|---|
| | Be offset a minimum distance of 1m from the kerb. |
| **Cycle path provision** | Carriageway designed as a shared zone and appropriately signed. |

### Connector Street - Level 1

A street that carries higher volumes of traffic. It connects access places and access streets through and between neighbourhoods.

| | |
|---|---|
| **Traffic volume**[1] | 3000 vpd |
| **Target speed**[2] | 50 kph[7] reduced to 40 kph at schools and 20 kph at pedestrian and cycle crossing points. |
| **Carriageway width**[3]**, cycle lane provision, parking provision and bus stops within street reservation** | ▪ 3.5m minimum lane width in each direction of travel.<br>▪ 4.0m minimum lane width at approaches to and departures from roundabouts and T-intersections.<br>▪ For on-street cycling, increase the minimum clear carriageway in each direction by:<br>– 0.7m where the trafficable carriageway is shared by cyclists but no dedicated bicycle lane is marked on the carriageway; or<br>– 1.5m where a trafficable carriageway is shared by cyclists but no dedicated bicycle lane is marked on the carriageway and there is a single lane in each direction separated by a raised trafficable median of at least 2.0m in width with mountable kerbs; or<br>– 1.7m where a dedicated 1.7m wide bicycle lane is marked on the carriageway.<br>▪ An additional dedicated parking lane or indented parking within the verge must be provided where street parking is required. A parking lane width of 2.3m is required where parallel parking is provided.<br>▪ Bus stops at the kerbside, not indented within the verge. |
| **Verge width**[4] | 4.5m minimum each side. |
| **Kerbing**[5] | Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath provision** | ▪ 1.5m wide footpaths on both sides.<br>▪ Footpath widened to a minimum 2.0m in the vicinity of a school, shop, public transport stop or other activity centre.<br>▪ Footpaths offset a minimum distance of 1m from the kerb. |

### Connector Street - Level 2

A street that carries higher volumes of traffic. It connects access places and access streets through and between neighbourhoods.

| | |
|---|---|
| **Traffic volume**[1] | 3,000 vpd to 7,000 vpd |
| **Target speed**[2] | 60 kph[8] or 50km/h reduced to 40kph at schools. |

| | |
|---|---|
| **Carriageway width[3], cycle lane provision, parking provision and bus stops within street reservation** | ▪ 3.5m minimum lane width in each direction of travel.<br>▪ 4.0m minimum lane width at approaches to and departures from roundabouts and T-intersections.<br>▪ 7.0m minimum carriageway width in each direction of travel where there are two lanes in each direction separated by a non-trafficable central medium.<br>▪ 8.0m minimum carriageway width at approaches to and departures from roundabouts and T-intersections where there are two lanes in each direction separated by an non-trafficable central medium.<br>▪ For on-street cycling, increase the minimum clear carriageway in each direction by:<br>– 0.7m where the trafficable carriageway is shared by cyclists but no dedicated bicycle lane is marked on the carriageway; or<br>– 1.7m where a dedicated 1.7m wide dedicated bicycle lane is marked on the carriageway<br>– 0.3m where there are two trafficable lanes in each direction separated by a non-trafficable central median and the carriageways are shared by cyclists but no dedicated bicycle lane is marked on the carriageway; or<br>– 0.5m where there are two trafficable lanes in each direction separated by a non-trafficable central median and a 1.7m wide dedicated bicycle lane is marked on the carriageway.<br>▪ An additional dedicated parking lane or indented parking within the verge must be provided where street parking is required. A parking lane width of 2.3m is required where parallel parking is provided.<br>▪ Bus stops located at the kerbside, not indented within the verge. |
| **Verge width[4]** | ▪ 6m minimum each side (plus central median). |
| **Kerbing[5]** | ▪ Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath and cycle path provision** | ▪ 1.5m wide footpath on each side and 1.7m bicycle lanes on the carriageway; or<br>▪ 2.5m wide shared foot and cycle path on both sides and no dedicate bicycle lanes marked on the carriageway.<br>▪ Footpaths widened to a minimum of 2.0m in the vicinity of a school, shop, public transport stop or other activity centre.<br>▪ Footpaths or shared foot and cycle paths offset a minimum distance of 1m from the kerb. |

## Arterial Road

| | |
|---|---|
| **Traffic volume[1]** | Greater than 7000vpd |
| **Target speed[2]** | Arterial road design as required by the relevant roads authority. |
| **Carriageway width[3] & parking provision within street reservation** | Arterial road design as required by the relevant roads authority. |

| | |
|---|---|
| **Verge width**[4] | Arterial road design as required by the relevant roads authority. |
| **Kerbing**[5] | Arterial road design as required by the relevant roads authority. |
| **Footpath & cycle path provision** | 3m wide shared path on each side or as otherwise required by the relevant roads authority. |

### Key to Table C1

1. Indicative maximum traffic volume for 24-hour period. These volumes depend upon location. Generation rates may vary between existing and newly developing areas.
2. Target speed is the desired speed at which motorists should travel. This is not necessarily the design speed and is not greater than the marked legal speed limit.
3. Width is measured from kerb invert to kerb invert. Widening may be required at bends to allow for wider vehicle paths using appropriate Australian Standards for on street and off-street parking but should not negate the function of bends serving as slow points.
4. Verge width includes footpaths. Additional width may be required to accommodate a bicycle path.
5. Where drainage is not required a flush pavement edge treatment can be used. Layback kerbs are preferred for safety reasons. Upright kerbs may be considered for drainage purposes or in locations where on-street parking should be clearly defined and parking within the verge is not desired.
6. Turning requirements to access and egress parking on abutting lots may require additional carriageway width. The recommended carriageway width of 5.5m will provide adequate access to a standard 3.5m wide single garage built to the property line.
7. 50kph is the default urban speed limit in Victoria.
8. Target speed must not exceed the legal speed limit.

# 56.07 INTEGRATED WATER MANAGEMENT

29/10/2015
VC101

## 56.07-1 Drinking water supply objectives

09/10/2006
VC42

To reduce the use of drinking water.

To provide an adequate, cost-effective supply of drinking water.

### Standard C22

The supply of drinking water must be:

- Designed and constructed in accordance with the requirements and to the satisfaction of the relevant water authority.
- Provided to the boundary of all lots in the subdivision to the satisfaction of the relevant water authority.

## 56.07-2 Reused and recycled water objective

20/03/2023
VC229

To provide for the substitution of drinking water for non-drinking purposes with reused and recycled water.

### Standard C23

Reused and recycled water supply systems must be:

- Designed, constructed and managed in accordance with the requirements and to the satisfaction of the relevant water authority, Environment Protection Authority and Department of Health.
- Provided to the boundary of all lots in the subdivision where required by the relevant water authority.

## 56.07-3 Waste water management objective

01/07/2021
VC203

To provide a waste water system that is adequate for the maintenance of public health and the management of effluent in an environmentally friendly manner.

### Standard C24

Waste water systems must be:

- Designed, constructed and managed in accordance with the requirements and to the satisfaction of the relevant water authority and the Environment Protection Authority.
- Consistent with a domestic waste water management plan adopted by the relevant council.

Reticulated waste water systems must be provided to the boundary of all lots in the subdivision where required by the relevant water authority.

## 56.07-4 Stormwater management objectives

04/02/2026
VC265

To minimise damage to properties and inconvenience to residents from stormwater.

To ensure that the street operates adequately during major storm events and provides for public safety.

To minimise increases in stormwater and protect the environmental values and physical characteristics of receiving waters from degradation by stormwater.

To encourage stormwater management that maximises the retention and reuse of stormwater.

To encourage stormwater management that contributes to cooling, local habitat improvements and provision of attractive and enjoyable spaces.

**Standard C25**

The stormwater management system must be:

- Designed and managed in accordance with the requirements and to the satisfaction of the relevant drainage authority.
- Designed and managed in accordance with the requirements and to the satisfaction of the water authority where reuse of stormwater is proposed.
- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to ensure that flows downstream of the subdivision site are restricted to pre-development levels unless increased flows are approved by the relevant drainage authority and there are no detrimental downstream impacts.
- Designed to contribute to cooling, improving local habitat and providing attractive and enjoyable spaces.

The stormwater management system should be integrated with the overall development plan including the street and public open space networks and landscape design.

For all storm events up to and including the 20% Average Exceedence Probability (AEP) standard:

- Stormwater flows should be contained within the drainage system to the requirements of the relevant authority.
- Ponding on roads should not occur for longer than 1 hour after the cessation of rainfall.

For storm events greater than 20% AEP and up to and including 1% AEP standard:

- Provision must be made for the safe and effective passage of stormwater flows.
- All new lots should be free from inundation or to a lesser standard of flood protection where agreed by the relevant floodplain management authority.
- Ensure that streets, footpaths and cycle paths that are subject to flooding meet the safety criteria $d_a V_{ave} < 0.35\ m^2/s$ (where, $d_a$ = average depth in metres and $V_{ave}$ = average velocity in metres per second).

The design of the local drainage network should:

- Ensure stormwater is retarded to a standard required by the responsible drainage authority.
- Ensure every lot is provided with drainage to a standard acceptable to the relevant drainage authority. Wherever possible, stormwater should be directed to the front of the lot and discharged into the street drainage system or legal point of discharge.
- Ensure that inlet and outlet structures take into account the effects of obstructions and debris build up. Any surcharge drainage pit should discharge into an overland flow in a safe and predetermined manner.
- Include water sensitive urban design features to manage stormwater in streets and public open space. Where such features are provided, an application must describe maintenance responsibilities, requirements and costs.

Any flood mitigation works must be designed and constructed in accordance with the requirements of the relevant floodplain management authority.

# 56.08 SITE MANAGEMENT

09/10/2006
VC42

## 56.08-1 Site management objectives

09/10/2006
VC42

To protect drainage infrastructure and receiving waters from sedimentation and contamination.

To protect the site and surrounding area from environmental degradation or nuisance prior to and during construction of subdivision works.

To encourage the re-use of materials from the site and recycled materials in the construction of subdivisions where practicable.

### Standard C26

A subdivision application must describe how the site will be managed prior to and during the construction period and may set out requirements for managing:

- Erosion and sediment.
- Dust.
- Run-off.
- Litter, concrete and other construction wastes.
- Chemical contamination.
- Vegetation and natural features planned for retention.

Recycled material should be used for the construction of streets, shared paths and other infrastructure where practicable.

# 56.09 UTILITIES

22/08/2014
VC118

## 56.09-1 Shared trenching objectives

22/08/2014
VC118

To maximise the opportunities for shared trenching.

To minimise constraints on landscaping within street reserves.

### Standard C27

Reticulated services for water, gas, electricity and telecommunications should be provided in shared trenching to minimise construction costs and land allocation for underground services.

## 56.09-2 Electricity and telecommunications objectives

01/01/2024
VC250

To provide public utilities to each lot in a timely, efficient and cost effective manner.

To reduce greenhouse gas emissions by supporting generation and use of electricity from renewable sources.

### Standard C28

The electricity supply system must be designed in accordance with the requirements of the relevant electricity supply agency and be provided to the boundary of all lots in the subdivision to the satisfaction of the relevant electricity authority.

Arrangements that support the generation or use of renewable energy at a lot or neighbourhood level are encouraged.

The telecommunication system must be designed in accordance with the requirements of the relevant telecommunications servicing agency and should be consistent with any approved strategy, policy or plan for the provision of advanced telecommunications infrastructure, including fibre optic technology. The telecommunications system must be provided to the boundary of all lots in the subdivision to the satisfaction of the relevant telecommunications servicing authority.

## 56.09-3 Fire hydrants objective

15/09/2008
VC49

To provide fire hydrants and fire plugs in positions that enable fire fighters to access water safely, effectively and efficiently.

### Standard C29

Fire hydrants should be provided:

- A maximum distance of 120 metres from the rear of the each lot.
- No more than 200 metres apart.

Hydrants and fire plugs must be compatible with the relevant fire service equipment. Where the provision of fire hydrants and fire plugs does not comply with the requirements of standard C29, fire hydrants must be provided to the satisfaction of the relevant fire authority.

## 56.09-4 Public lighting objective

09/10/2006
VC42

To provide public lighting to ensure the safety of pedestrians, cyclists and vehicles.

To provide pedestrians with a sense of personal safety at night.

To contribute to reducing greenhouse gas emissions and to saving energy.

### Standard C30

Public lighting should be provided to streets, footpaths, public telephones, public transport stops and to major pedestrian and cycle paths including public open spaces that are likely to be well used at night to assist in providing safe passage for pedestrians, cyclists and vehicles.

Public lighting should be designed in accordance with the relevant Australian Standards.

Public lighting should be consistent with any strategy, policy or plan for the use of renewable energy and energy efficient fittings.

57
24/09/2026
VC315

# TWO OR MORE DWELLINGS ON A LOT AND RESIDENTIAL BUILDINGS OF FOUR TO SIX STOREYS

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage residential development that provides reasonable standards of amenity for existing and new residents.

To support residential development consistent with the future urban development of the area.

## Application

Provisions in this clause apply to the classes of applications specified in clauses:

- 32.04-7, Mixed Use Zone,
- 32.05-8, Township Zone (on land within the urban growth boundary in metropolitan Melbourne),
- 32.07-6, Residential Growth Zone,
- 32.10-5, Housing Choice and Transport Zone.

The objectives contained in clause 57.04-1 do not apply to a development that meets standards E2-2 and E2-3.

The objectives contained in clause 57.04-2 do not apply to a development that meets standard E2-2.

## Operation

The provisions of this clause contain:

- **Objectives.** An objective describes the outcome to be achieved in the completed development.
- **Standards.** A standard contains the requirements to meet the corresponding objective.

  If a zone or a schedule to a zone specifies a standard that modifies the standard set out in this clause, the modified standard, as specified in the zone or schedule to the zone applies.

  If the land is included in an overlay, other than a Neighbourhood Character Overlay, and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.
- **Decision guidelines.** If a standard is not met, the decision guidelines set out the matters that the responsible authority must consider before deciding if the corresponding objective is met.

## Requirements

A development must meet all of the applicable objectives contained in this clause.

If a development meets a standard:

- The corresponding objective is deemed to be met
- The responsible authority is not required to consider the corresponding decision guidelines.

If a development does not meet a standard, the responsible authority must consider the applicable decision guidelines in determining whether the corresponding objective is met.

## Exemptions

Despite any other provision of this planning scheme, in determining applications to which this clause applies, the responsible authority is exempt from and is not required to consider:

- The Municipal Planning Strategy and Planning Policy Framework, unless an applicable decision guideline specifies otherwise.
- The purpose or decision guidelines of the relevant zone, unless an applicable decision guideline specifies otherwise.
- The decision guidelines in clause 65, unless an applicable decision guideline specifies otherwise.

If there is any inconsistency between the requirements of this clause and another provision of this planning scheme, this clause prevails.

An application to which this clause applies is exempt from the requirements of:

- Section 60(1)(b), (1)(e), (1)(f), (1A)(b) to (h), (1A)(j) and (1B) of the Act; and
- Section 84B(2)(b) to (g) and (2)(i) to (jb) of the Act.

## 57.01 APPLICATION REQUIREMENTS

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An application to which this clause applies must be accompanied by:

- A site description.
- A design response.
- A written statement outlining which standards are met and which are not met. If a standard is not met, the written statement must include an explanation of how the development meets the corresponding objective having regard to the corresponding decision guidelines.

### 57.01-1 Site description

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The site description may use a site plan, photographs or other techniques and must accurately describe:

- The built form and scale of surrounding development including front fencing.
- Site shape, size, orientation and easements.
- Levels of the site and the difference in levels between the site and surrounding properties.
- The location and height of existing buildings on the site and on surrounding properties, including the location and height of walls built to the boundary of the site.
- The use of surrounding buildings.
- The location of secluded private open space and habitable room windows of surrounding properties which have an outlook to the site within 6 metres.
- Solar access to the site and to surrounding properties.
- Location of existing trees 5 metres in height or greater, with a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level, on the site.
- Any cut and filled areas of soil, where known.
- Street frontage features such as poles, services, street trees and kerb crossovers.
- Off-site noise sources.
- The relevant NatHERS climate zones (as identified in clause 57.05-4).

If in the opinion of the responsible authority a requirement of the site description is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

### 57.01-2 Design response

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The design response must explain how the proposed design:

- Responds to the future urban development of the area.
- Derives from and responds to the site description.
- Specifies suitable materials and finish for the external walls.

The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings.

The design response must include a landscape plan that details the proposed:

- Retention and planting of canopy trees.
- Planting of other vegetation including location, species, number and size at maturity of vegetation.
- Where required, areas of deep soil and root barriers.

- Irrigation system to support existing and planted vegetation including details of any alternative water supply sources.
- Selection of canopy trees and vegetation, including species, that responds to the site's environment, location and geographic factors.
- Location of site services.

If in the opinion of the responsible authority a design response requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

# 57.02 URBAN CONTEXT

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## 57.02-1 Street setback objectives

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To ensure that the setbacks of buildings from a street provide space for canopy trees and make efficient use of the site.

To ensure that the setbacks of buildings from a street respond to the future urban development of the area.

### Standard E2-1

Walls of new buildings are set back from streets:

- At least the distance specified in a schedule to the zone; or
- If no distance is specified in a schedule to the zone, the distance specified in Table E2-1.

Entry canopies, pergolas and awnings for windows or doors may encroach up to 1.5 metres into the setbacks of this standard.

**Table E2-1 Street setback**

| Minimum setback from front street | Minimum setback from side street |
|---|---|
| 4.5 metres | 3 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- Whether the siting of the building is constrained by the shape, dimensions, slope or other conditions of the site.
- Whether a different setback would be more appropriate taking into account the prevailing setbacks of existing buildings on nearby lots.
- Whether a different setback affects the ability to retain or plant canopy trees.

## 57.02-2 Side and rear setbacks objectives

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To ensure the setback of a building from a boundary provides sufficient space for canopy trees and landscaping.

To ensure the setback of a building from a boundary responds to the future urban development of the area and limits the impact on the amenity of existing dwellings and small second dwellings.

### Standard E2-2

A new building not on or within 200mm of a boundary is set back from side or rear boundaries at least 4.5 metres.

If the boundary is to the south of the building, the building is set back at least 6 metres up to a height not exceeding 13.5 metres and at least 12 metres for a height over 13.5 metres between south 30 degrees west to south 30 degrees east.

Sunblinds, awnings, privacy screens, eaves, facias, gutters, rainwater goods, flues, pipes, domestic water tanks, heating or cooling equipment or other services may encroach not more than 0.5 metres into the side and rear setbacks.

Stairways and ramps (including landings) that are less than 1 metre above the ground level may encroach into the side and rear setbacks.

Pergolas and shade sails may encroach into the side and rear setbacks.

**Diagram E2-2.1 Side and rear setbacks**

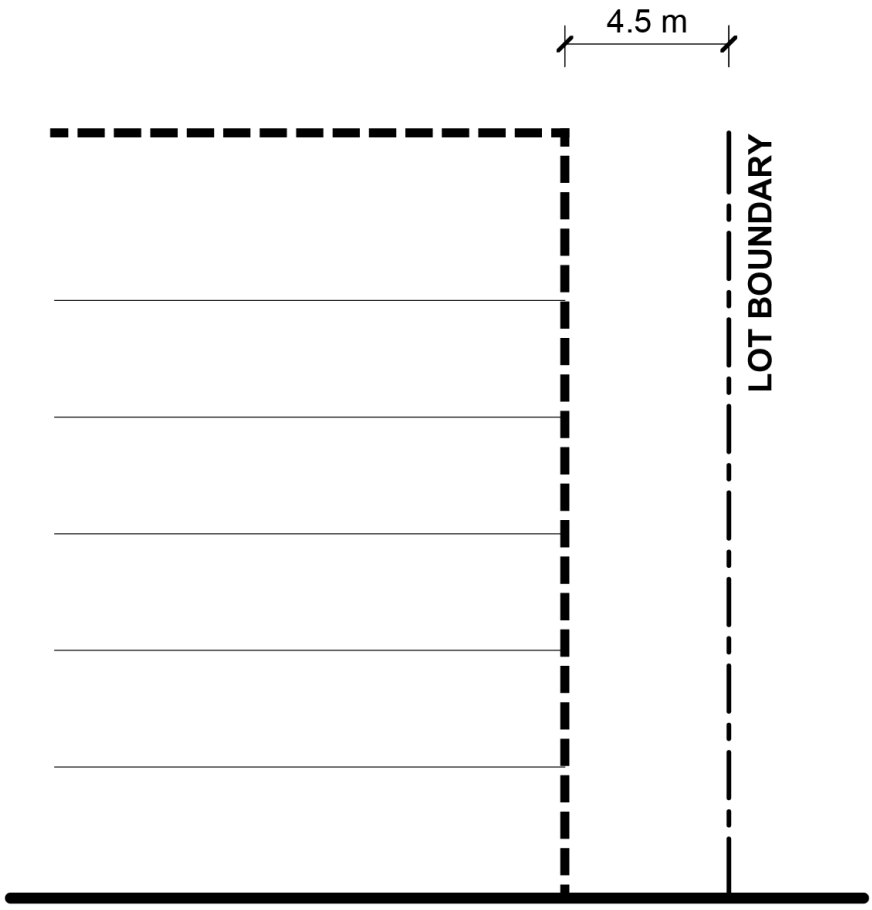
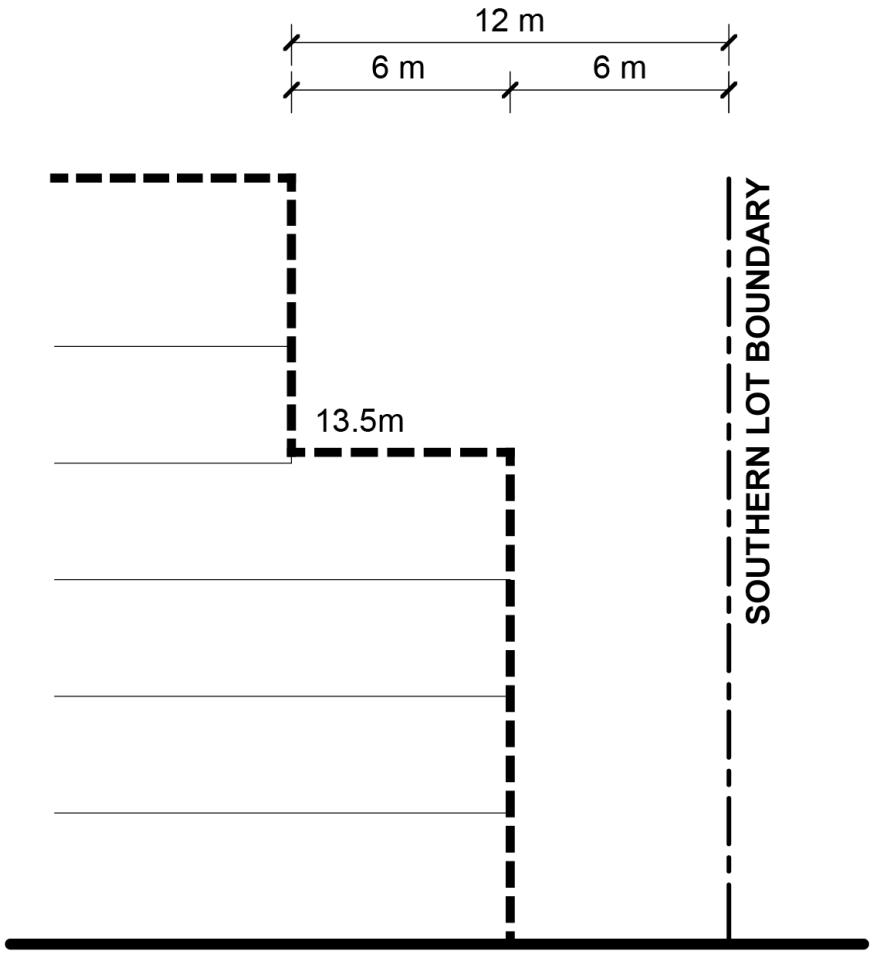


**Diagram E2-2.2 Side and rear setbacks to a southern boundary**




**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- Whether the boundary abuts a public open space and how the interface responds to the public open space.
- The impact on the amenity of the habitable room windows and private open space of existing dwellings or small second dwellings.
- The relationship between the setbacks and those of existing adjacent buildings, including the interface with laneways.
- Whether a different setback would be more appropriate, considering the slope of the land and effective height of the building in relation to adjoining properties.
- Whether a different setback in a rear yard affects the ability to provide landscaping or retain or plant canopy trees.

## 57.02-3 Walls on boundaries objective

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To ensure that the location, length and height of a wall on a boundary responds to the future urban development of the area and limits the impact on the amenity of existing dwellings and small second dwellings.

### Standard E2-3

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of a lot does not abut the boundary for a length that exceeds the greater of the following distances:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- The length of existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary does not exceed 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The extent to which walls on boundaries are part of the site context or contribute to the future urban development of the area.
- The orientation of the boundary.
- The impact on the amenity of existing dwellings or small second dwellings.
- The extent to which the slope and retaining walls or fences reduce the effective height of the wall.
- Whether the wall abuts a side or rear lane.
- The location of existing light courts and habitable room windows.

## 57.02-4 Site coverage objective

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To ensure that the site coverage responds to the future urban development of the area and to the features of the site.

### Standard E2-4

The site area covered by buildings does not exceed:

- The maximum site coverage specified in a schedule to the zone, or
- If no maximum site coverage is specified in a schedule to the zone, 70 per cent.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.

- Any constraints imposed by existing development or the features of the site.
- Whether a different area of site coverage affects the ability to retain or plant canopy trees.
- Whether the arrangement of buildings on the site is efficient and allows for separation between buildings.

## 57.02-5 Access objectives

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To ensure the number and design of vehicle crossovers responds to the future urban development of the area.

To ensure that vehicle crossovers are designed and located to provide safe access for pedestrians, cyclists and other vehicles.

### Standard E2-5

The width of accessways or car spaces (other than to a rear lane) does not exceed:

- 33 per cent of the street frontage; or
- 40 per cent of the street frontage if the width of the street frontage is less than 20 metres.

The number of access points to a road in a Transport Zone 2 or a Transport Zone 3 is not increased.

The location of a vehicle crossover or accessway does not encroach the tree protection zone of an existing tree that is proposed to be retained in a road by more than 10 per cent.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The impact on the street.
- The impact on the safety of pedestrians or cyclists.
- The reduction of on-street car parking spaces.
- Whether a different accessway width, number of access points or encroachment of an existing tree affects the ability to retain or plant canopy trees on the site or footpath.

## 57.02-6 Tree canopy objectives

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To provide tree canopy and landscaping that responds to the future urban development of the area.

To preserve existing tree canopy cover and support the provision of new canopy cover.

To ensure new canopy trees are climate responsive, support biodiversity, wellbeing and amenity, and help reduce urban heat.

To ensure that basements allow for space for deep soil planting at the front of a site.

### Standard E2-6

In this standard:

- ***average canopy diameter*** means the average of the measurements of the distance between the widest points of a tree's drip line (the outer edge of foliage) in two perpendicular directions;
- ***canopy cover*** means the area of a tree's canopy;
- ***existing canopy tree*** means a tree that has:
  - a height of at least 5 metres above ground level; and

- an average canopy diameter of at least 4 metres; and
- a trunk that is located at least 4 metres from existing and proposed buildings.

- ***new canopy tree*** means a tree proposed to be planted that is of a species and type that at maturity is expected to have:
  - a height of at least 6 metres above ground level; and
  - a canopy diameter of at least 4 metres.

Basements of a building are setback at least 3 metres from the frontage and at least one other boundary.

The total canopy cover provided with the development is equivalent to at least the percentage of the site area specified in Column 2 to Table E2-6.1 corresponding to the applicable site area specified in Column 1.

**Table E2-6.1 Canopy cover**

| Column 1<br>Site area | Column 2<br>Canopy cover |
|---|---|
| 1000 square metres or less | 10 per cent of site area |
| More than 1000 square metres to 1500 square metres | 15 per cent of site area |
| More than 1500 square metres | 20 per cent of site area |

The canopy cover requirement can only be met by retaining an existing canopy tree, planting a new canopy tree or a combination of both, within the site.

The total canopy cover required by Table E2-6.1 includes:

- The total canopy cover of an existing canopy tree, whether or not the canopy cover is wholly contained within the boundaries of the site.
- The canopy cover within the boundaries of the site of a new canopy tree and any part of the canopy cover overhanging land in a public road or public open space.
- The canopy cover of an existing canopy tree and a new canopy tree that extends below, or overhangs, an existing or proposed building located on the site.
- Any overlapping canopy cover of an existing canopy tree or a new canopy tree provided that the overlapping canopy cover is only counted once.

At least one existing canopy tree or new canopy tree is to be located within the front setback. This does not apply if it is proposed to retain one existing canopy tree that meets the minimum total canopy cover requirement and that tree is not located in the front setback.

Each new canopy tree is planted in either deep soil or a planter that meets the following requirements:

- Deep soil must be at least the area and plan dimension specified in Columns 2 and 5, respectively, of Table E2-6.2 corresponding to the tree's expected canopy diameter at maturity specified in Column 1.
- A planter must be at least the soil volume, soil depth, and plan dimension, specified in Columns 3, 4 and 5 of Table E2-6.2 corresponding to the tree's expected canopy diameter at maturity specified in Column 1.
- If two or more new canopy trees are to be planted in the same area of deep soil, the required area of deep soil can be reduced by the percentage specified in Column 2 of Table E2-6.3 corresponding to the number of trees specified in Column 1.

**Table E2-6.2 Deep soil and planter requirements**

| Column 1<br>Expected canopy diameter at maturity | Column 2<br>Minimum deep soil area | Column 3<br>Minimum tree in planter soil volume | Column 4<br>Minimum tree in planter soil depth | Column 5<br>Minimum deep soil or tree in planter plan dimension |
|---|---|---|---|---|
| 4 metres and less than 5 metres | 12 square metres | 8 cubic metres | 0.8 metres | 2.5 metres |
| 5 metres and less than 6 metres | 16 square metres | 12 cubic metres | 0.8 metres | 3 metres |
| 6 metres and less than 7 metres | 25 square metres | 17 cubic metres | 0.8 metres | 3.5 metres |
| 7 metres and less than 8 metres | 36 square metres | 23 cubic metres | 0.8 metres | 4 metres |
| 8 metres and less than 9 metres | 49 square metres | 30 cubic metres | 1.0 metres | 4.5 metres |
| 9 metres and less than 10 metres | 64 square metres | 38 cubic metres | 1.0 metres | 5 metres |
| 10 metres and less than 11 metres | 81 square metres | 47 cubic metres | 1.0 metres | 5.5 metres |
| 11 metres and less than 12 metres | 100 square metres | 57 cubic metres | 1.0 metres | 6 metres |
| 12 metres and less than 13 metres | 121 square metres | 68 cubic metres | 1.5 metres | 6.5 metres |
| 13 metres and less than 14 metres | 136 square metres | 80 cubic metres | 1.5 metres | 7 metres |
| 14 metres and greater | 144 square metres | 92 cubic metres | 1.5 metres | 7.5 metres |

**Table E2-6.3 Reduced deep soil area**

| Column 1<br>Number of new canopy trees to be planted in same area of deep soil | Column 2<br>Percentage reduction of area of deep soil |
|---|---|
| 2 | 5 per cent |
| 3 | 10 per cent |
| 4 | 15 per cent |
| 5 | 20 per cent |
| 6 or more | 25 per cent |

The following can encroach into the total area of deep soil:

- Impervious surfaces by no more than 10 per cent.
- Unroofed decking by no more than 50 per cent, provided the gap between the decking boards is at least:
  - 4 millimetres for decking boards not more than 90 millimetres wide.

  - 5 millimetres for decking boards more than 90 millimetres wide.
  - 8 millimetres if the deck is less than 400 millimetres above ground level.
- An eave not exceeding a width of 600 millimetres.

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, landscaping or environmental policy, objective, strategy or statement set out in this planning scheme.
- The site context and design response.
- The extent to which the existing and proposed canopy trees contribute to a greener environment and reduce urban heat.
- Whether the growth characteristics of existing trees and proposed canopy trees will provide the required canopy cover.
- The suitability of the proposed location and deep soil area for proposed canopy trees.
- Whether the species of canopy tree is suited to the soil conditions of the site.
- The suitability of the proposed landscaping in communal outdoor open space.
- The suitability of providing deep soil area within an easement on the subject land.

## 57.02-7 Front fences objective

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To encourage front fence design that responds to the future urban development of the area.

**Standard E2-7**

Either the development:

- does not include a new, or an extension to an existing, front fence within three metres of a street; or
- includes a new, or extension to an existing, front fence within 3 metres of a street if the height of the fence does not exceed:
  - The maximum height and transparency specified in a schedule to the zone, or
  - If no maximum height or transparency is specified in a schedule to the zone, the maximum height and transparency specified in Table E2-7.

Transparency is measured as the percentage of the fence that is open when viewed perpendicular to the fence line.

**Table E2-7 Maximum front fence height**

| Street context | Maximum front fence height | Minimum front fence transparency |
|---|---|---|
| Streets in a Transport Zone 2 | 2 metres | 25% |
| Other streets | 1.5 metres | 25% |

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.

- The setback, height and appearance of front fences on adjacent properties.
- The extent to which slope and retaining walls reduce the effective height of the front fence.
- Whether the fence is needed to minimise noise intrusion.

# 57.03 LIVEABILITY

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## 57.03-1 Parking location objective

16/04/2026
VC300

To minimise the impact of vehicular noise within developments on residents.

### Standard E3-1

Habitable room windows with sill heights of less than 3 metres above ground level are setback from accessways and car parks by at least:

- 1.5 metres; or
- If there is a solid fence with a height of at least 1.5 metres between the accessway or car park and the window, 1 metre; or
- 1 metre where window sills are at least 1.5 metres above ground level.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The need for landscaping adjacent to the accessway and car park.

## 57.03-2 Street integration objectives

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To integrate the layout of development with the street and open spaces to support the safety and amenity of residents.

To support development that activates and provides passive surveillance to streets and public open spaces.

### Standard E3-2

Development is oriented to front a street.

Where a development fronts a street or abuts public open space:

- Passive surveillance is provided by a direct view from at least one balcony or habitable room window at each storey of the building to each street and public open space.
- The total cumulative width of all site services located within 3 metres of a street, do not take up more than 20 per cent of the width of the frontage.

Pedestrian entries are located on street frontages.

Car parking and internal waste collection areas are visually concealed from the street.

Lighting is provided to all external accessways and paths.

One mailbox is provided for each dwelling, and at least one parcel locker is provided for every five dwellings. Mailboxes and parcel lockers are communally located.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The design of screening for services.
- Whether the pedestrian entry is to an active frontage.

## 57.03-3 Building entry and circulation objectives

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VC300

To provide safe, weather protected building entries with a sense of address.

To ensure the internal layout of buildings provide for the safe, functional and efficient movement of residents.

To ensure internal common circulation areas provide adequate access to daylight and natural ventilation.

### Standard E3-3

An apartment development or residential building has:

- A ground level entry door, gate or walkway with a direct line of sight from a street.
- An external covered area over the entry door to the building of at least 1.44 square metres with a minimum dimension of 1.2 metres.

Pedestrian building entries are separated from vehicle entry points.

Shared corridors and common areas:

- Have at least one source of natural light and natural ventilation.
- Are unobstructed by building services; and
- Have a clear sightline from the building entry to the lift lobby area at ground level.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Whether the building entry is visible and easily identifiable from streets and other public areas.
- Whether the entry provides shelter, a sense of address and a transitional space around the entry.
- The useability and amenity of internal common areas and circulation spaces based on daylight access and the natural ventilation they will receive.
- The level of passive surveillance to the street, public open space and communal space.
- The length of corridors and any concealed areas.

## 57.03-4 Private open space objective

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To provide adequate private open space for the reasonable recreation and service needs of residents.

### Standard E3-4

A dwelling or residential building has private open space with direct access from a living area, dining area or kitchen consisting of:

- An area of 15 square metres of private open space at ground level or on a podium, with a minimum dimension of 2.4 metres width; or
- A balcony with at least the area and dimensions specified in Table E3-4; or
- An area on a roof of at least 10 square metres, with a minimum dimension of 2 metres width.

If a cooling or heating unit is located in the private open space, the required area is increased by 1.5 square metres.

**Table E3-4 Private open space for a balcony**

| Dwelling type | Minimum area | Minimum length (parallel to the external wall) | Minimum width |
|---|---|---|---|
| Studio or 1 bedroom dwelling | 8 square metres | 3 metres | 1.8 metres |
| 2 bedroom dwelling | 8 square metres | 3 metres | 2 metres |
| 3 or more bedroom dwelling | 12 square metres | 3 metres | 2.4 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability of the private open space, including its size and accessibility.
- The availability of and access to public or communal open space.
- The orientation of the lot to the street and the sun.

## 57.03-5 Communal space objectives

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To provide communal space that meets the recreation and amenity needs of residents.

To ensure that communal space is accessible, practical, attractive and easily maintained.

To ensure that communal space is integrated with the layout of the development and enhances resident amenity.

### Standard E3-5

A development of 10 or more dwellings includes communal space accessible to all residents of at least:

- 2.5 square metres per dwelling; or
- 25 per cent of the site area, whichever is the lesser.

This may consist of multiple separate areas of communal space.

This may include indoor communal space or outdoor communal space.

If outdoor communal space is provided, 50 per cent of the area or 25 square metres whichever is the greater, is not overshadowed for a minimum of two hours between 9 am and 3 pm on 22 September.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The availability of and access to public open space.
- The useability of the communal space, including its size and accessibility.

## 57.03-6 Functional layout objective

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To ensure dwellings provide functional areas that meet the needs of residents.

### Standard E3-6

Bedrooms:

- Meet the minimum internal room dimensions specified in Table E3-6.1; and
- Provide an additional area of at least 0.8 square metres to accommodate a wardrobe.

**Table E3-6.1 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth |
|---|---|---|
| Main bedroom | 3 metres | 3.4 metres |
| All other bedrooms | 3 metres | 3 metres |

Living areas (excluding dining and kitchen areas) meet the minimum internal room dimensions specified in Table E3-6.2.

**Table E3-6.2 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 square metres |
| 2 or more bedroom dwelling | 3.6 metres | 12 square metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of habitable rooms

## 57.03-7 Room depth objective

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To allow adequate daylight into single aspect habitable rooms.

### Standard E3-7

The depth of a single aspect habitable room does not exceed 2.5 times the ceiling height measured from the external surface of the habitable room window to the rear wall of the room.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth is measured from the external surface of the habitable room window to the rear wall of the room.

For the purposes of clause 57.03-7 a single aspect habitable room is a habitable room with windows on only one wall.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the habitable room is provided with reasonable daylight access through the number, size, location and orientation of windows.

- The useability, functionality and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Any overhang above habitable room windows that limits daylight access.

## 57.03-8 Daylight to new windows objective

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To allow adequate daylight into new habitable room windows.

### Standard E3-8

Habitable rooms are to have a window in an external wall of the building.

A habitable room window is not located in a basement.

Where daylight to a bedroom is provided from a smaller secondary area within the bedroom, the secondary area is to have:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.
- A window clear to the sky.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which habitable rooms are provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Whether there are other windows in the habitable room which have access to daylight.

## 57.03-9 Natural ventilation objectives

16/04/2026
VC300

To encourage natural ventilation of dwellings.

To allow occupants to effectively manage natural ventilation of dwellings.

### Standard E3-9

At least 40 per cent of dwellings have openable windows, doors or other ventilation devices in external walls of the building that provide:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same size.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation, slope and wind exposure of the site.

- The extent to which the orientation and layout of the dwelling maximises opportunities for cross ventilation.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling and site context.

## 57.03-10 Storage objective

16/04/2026
VC300

To provide adequate storage facilities for each dwelling.

### Standard E3-10

Each dwelling has exclusive access to storage at least the total minimum storage volume that is specified in Table E3-10.

**Table E3-10 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability, functionality and location of storage facilities provided for the dwelling.

## 57.03-11 Accessibility objective

16/04/2026
VC300

To ensure the design of dwellings meets the needs of people with limited mobility.

### Standard E3-11

At least 50 per cent of dwellings have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.
- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table E3-11

**Table E3-11 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower. |
| Door design | Either:<br>▪ A slide door, or | Either:<br>▪ A slide door, or |

| | Design option A | Design option B |
|---|---|---|
| | ▪ A door that opens outwards, or<br>▪ A door that opens inwards that is clear of the circulation area and has readily removable hinges. | ▪ A door that opens outwards, or<br>▪ A door that opens inwards and has readily removable hinges. |
| Circulation area | A clear circulation area that is:<br>▪ A minimum area of 1.2 metres by 1.2 metres.<br>▪ Located in front of the shower and the toilet.<br>▪ Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>▪ A minimum width of 1 metre.<br>▪ The full length of the bathroom and a minimum length of 2.7 metres.<br>▪ Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

### Decision guidelines

None specified.

## 57.03-12 Building separation within a site objective

16/04/2026
VC300

To ensure that the separation between buildings (other than a light court) within a site provides a reasonable outlook and adequate daylight to new dwellings, and sufficient space for canopy trees and landscaping.

### Standard E3-12

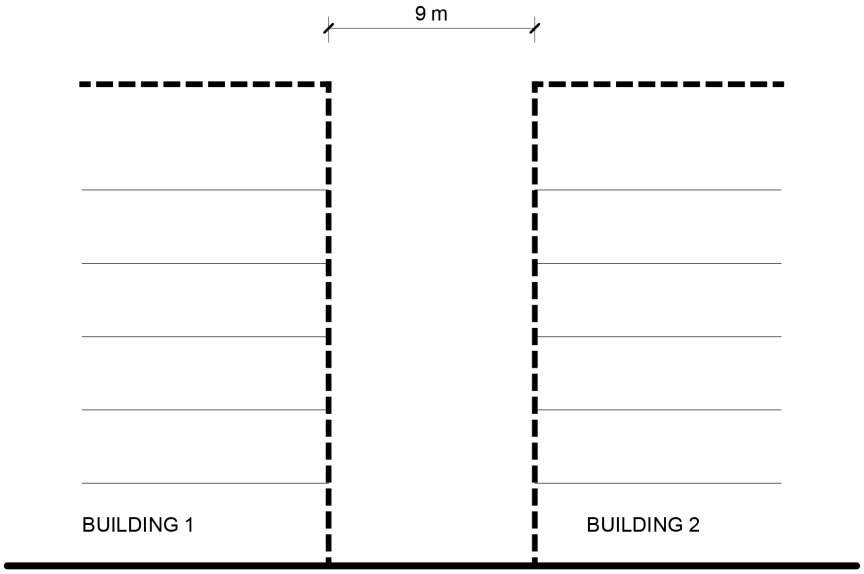
Walls of buildings that contain a habitable room window or balcony are set back from other walls of buildings on a site by at least 9 metres. This does not apply to a wall that forms part of a light court.

Sunblinds, awnings, privacy screens, eaves, facias, gutters, rainwater goods, flues, pipes, domestic water tanks, heating or cooling equipment or other services may encroach up to 0.5 metres into the building separation setback.

Stairways and ramps (including landings) that are less than 1 metre above the ground level may encroach into the building separation setback.

Pergolas and shade sails may encroach into the building separation setback.

**Diagram E3-12 Building separation within a site**




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The design, function and layout of the building separation setback.
- Whether the building separation setback provides reasonable outlook and adequate daylight to new dwellings.
- Views between private open spaces and habitable room windows.
- Whether a different building separation setback affects the ability to retain or plant canopy trees.

## 57.03-13 Light courts objective

16/04/2026
VC300

To ensure that a light court provides adequate daylight into a new bedroom or non-habitable room window.

### Standard E3-13

A light court:

- Has a minimum dimension of at least 4.5 metres and an area of at least 20.25 square metres.
- Has a maximum dimension of 6 metres and a maximum area of 36 square metres.
- Is enclosed by the wall of a building for at least 75 per cent of its perimeter.
- Is clear to the sky.
- Is not the primary source of daylight to a living room or private open space.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.

- Whether the light court provides adequate daylight to a new bedroom or non-habitable room window.
- The arrangement of windows facing the light court.

## 57.04 EXTERNAL AMENITY

16/04/2026
VC300

### 57.04-1 Overshadowing secluded private open space objective

16/04/2026
VC300

To ensure that any part of a building that does not meet standards E2-2 and E2-3 does not significantly overshadow existing secluded private open space.

#### Standard E4-1

The area of secluded private open space that is not overshadowed by the new development is greater than 50 per cent, or 25 square metres with a minimum dimension of 3 metres, whichever is the lesser area, for a minimum of five hours between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight is not further reduced.

This standard does not apply to any part of a new building that meets standards E2-2 and E2-3.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of existing dwellings or small second dwellings.
- Existing sunlight penetration to the secluded private open space of the existing dwelling or small second dwelling.
- The time of day that sunlight will be available to the secluded private open space of the existing dwelling or small second dwelling.
- The effect of a reduction in sunlight on the existing use of the existing secluded private open space.

### 57.04-2 Overlooking objective

17/04/2026
VC308

To limit views from any part of a building that does not meet standard E2-2 into existing secluded private open space and habitable room windows.

#### Standard E4-2

A habitable room window, balcony, podium, terrace, deck or patio is located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 6 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views are measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.5 metres above floor level.

A habitable room window, balcony, terrace, deck or patio located with a direct view into a habitable room window of an existing dwelling or small second dwelling within a horizontal distance of 6 metres (measured at ground level) of the window, balcony, terrace, deck or patio:

- Is offset a minimum of 1.5 metres from the edge of one window to the edge of the other; or
- Has a sill height of at least 1.5 metres above floor level; or
- Has fixed, obscure glazing in any part of the window below 1.5 metre above floor level; or
- Has permanently fixed external screens to at least 1.5 metres above floor level and be no more than 25 per cent transparent; or
- Has fixed elements that prevent the direct view, such as horizontal ledges or vertical fins.

Obscure glazing in any part of the window below 1.5 metres above floor level may be openable provided that there are no direct views as specified in this standard.

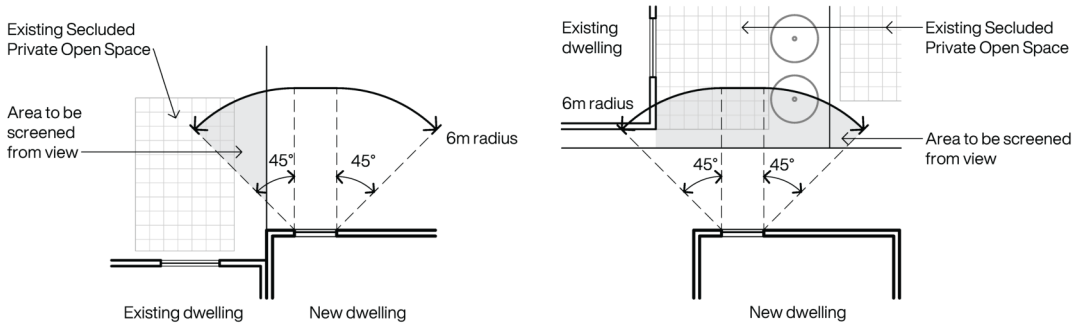
Screens used to obscure a view are:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.5 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio that is located in any part of a building that meets standard E2-2.

**Diagram E4-2 Overlooking**




**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of the secluded private open space or habitable room window.
- The existing extent of overlooking into the secluded private open space and habitable room windows of existing dwellings or small second dwellings.
- The internal daylight to and amenity of the proposed dwelling, residential building or small second dwelling.
- The orientation and location of windows to limit views.

# 57.05 SUSTAINABILITY

16/04/2026
VC300

## 57.05-1 Permeability and stormwater management objectives

24/09/2026
VC315

To reduce the impact of increased stormwater run-off on the drainage system and downstream waterways.

To facilitate on-site stormwater infiltration.

To encourage stormwater management that maximises the retention and reuse of stormwater.

To contribute to urban cooling.

### Standard E5-1

The site area covered by the pervious surfaces is at least 20 percent of the site.

Buildings are connected to a non-potable dual pipe reticulate water supply, where available from the water authority.

The development includes a stormwater management system designed to:

- Meet the best practice quantitative performance objectives for stormwater quality specified in the *Urban stormwater management guidance* (EPA Publication 1739.1, 2021) of:
  - Suspended solids 80% reduction in mean annual load.
  - Total phosphorus and Total Nitrogen 45% reduction in mean annual load.
  - Litter 70% reduction of mean annual load.

    *Note: A certificate generated from a stormwater assessment tool demonstrating a minimum 100 per cent Blue Factor tool score, or documentation from Model for Urban Stormwater Improvement Conceptualisation (MUSIC) or an equivalent product accepted by the responsible authority showing the performance objectives for stormwater quality are met.*

- Direct flows of stormwater into treatment areas, garden areas, tree pits and permeable surfaces, with drainage of residual flows to the legal point of discharge.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The capacity of the site to incorporate stormwater retention and reuse.
- The existing site coverage and any constraints imposed by existing development.
- The capacity of the drainage network to accommodate additional stormwater.
- Whether the stormwater treatment areas can be effectively maintained.
- Whether the owner has entered into an agreement to contribute to off-site stormwater management in lieu of providing an on-site stormwater management system.

## 57.05-2 Waste and recycling objectives

16/04/2026
VC300

To ensure dwellings are designed to facilitate waste recycling.

To ensure that waste and recycling facilities are accessible and are of sufficient size to manage organic and general waste, and mixed and glass recycling.

To ensure that waste and recycling facilities are designed and managed to minimise impacts on residential amenity.

### Standard E5-2

The development includes a shared bin storage area for use by each dwelling of at least the applicable area, depth and height specified in Table E5-2.

**Table E5-2 Bin storage**

| Number of dwellings | Minimum area | Minimum depth | Minimum height |
|---|---|---|---|
| 15 or less dwellings | 0.7 square metres per dwelling in a shared waste storage area | 0.8 metres | 2.7 metres |
| 16 to 55 dwellings | 0.5 square metres per dwelling, plus 5 square metres in a shared waste storage area. | 1 metre | 2.7 metres |
| 56 or more dwellings | 0.5 square metres per dwelling in a shared waste storage area. | 1 metre | 2.7 metres |

Enclosed bin storage areas are ventilated by:

- Natural ventilation openings to the external air with an area of at least 5 per cent of the area for bin storage area; or
- A mechanical exhaust ventilation system.

A tap and drain are provided to wash bins.

A continuous path of travel is provided from each dwelling to bin storage areas.

Each dwelling includes an internal waste and recycling storage space of at least 0.07 cubic metres with a minimum depth of 250 millimetres.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response, including a Waste Management Plan.
- Any relevant waste and recycling objective, policy or statement set out in this planning scheme.
- The functionality and accessibility of waste and recycling facilities, including for people with limited mobility.
- Whether facilities are provided for on-site reuse or management of food and garden organics through composting or other waste recovery.
- Whether waste and recycling facilities are designed to meet the better practice design options specified in *Waste management and recycling in multi-unit developments* (Sustainability Victoria, 2019).

## 57.05-3 Noise impacts objectives

17/04/2026
VC308

To minimise the impact of mechanical plant noise located in the development.

To contain noise sources in developments that may affect existing dwellings.

To protect residents from external and internal noise sources.

### Standard E5-3

Mechanical plant, including mechanical car storage, lift facilities, building services, non-residential uses, car parking, communal areas are not located immediately adjacent to bedrooms of new or existing dwellings or small second dwellings, unless a solid barrier is in place to provide a line of sight barrier to transmission of noise and the location of all relevant bedrooms.

Buildings within a noise influence area specified in Table E5-3 are designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Buildings, or part of a building screened from a noise source by an existing solid structure, or the natural topography of the land, do not need to meet the specified noise level requirements.

Noise levels are assessed in unfurnished rooms with a finished floor and the windows closed.

**Table E5-3 Noise influence area**

| Noise source | Noise influence area |
|---|---|
| **Zone interface** | |
| Industry | 300 metres from the Industrial 1, 2 and 3 zone boundary |
| **Roads** | |
| Freeways, tollways and other roads carrying 40,000 Annual Average Daily Traffic Volume | 300 metres from the nearest trafficable lane |
| **Railways** | |
| Railways servicing passengers in Victoria | 80 metres from the centre of the nearest track |
| Railway servicing freight outside metropolitan Melbourne | 80 metres from the centre of the nearest track |
| Railway servicing freight in metropolitan Melbourne | 135 metres from the centre of the nearest track |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- Whether the impact of potential noise sources within a development have been mitigated through design, location and siting.
- Whether the layout of rooms within a dwelling mitigates noise transfer within and between dwellings.
- Whether it can be demonstrated that the design treatment incorporated into the development meets the specified noise levels or an acoustic report by a suitably qualified consultant submitted with the application.

## 57.05-4 Energy efficiency objectives

16/04/2026
VC300

To achieve energy efficient dwellings and buildings.

To ensure dwellings achieve adequate thermal efficiency.

### Standard E5-4

Dwellings located in a climate zone identified in Table E5-4 do not exceed the maximum NatHERS annual cooling load.

**Table E5-4 Cooling load**

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

*Note: Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).*

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation and layout of the site.
- The availability of solar access to north-facing windows on the site.
- The annual cooling load for each dwelling.

58
16/04/2026
VC300

# APARTMENT DEVELOPMENTS

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage apartment development that provides reasonable standards of amenity for existing and new residents.

To encourage apartment development that is responsive to the site and the surrounding area.

## Application

Provisions in this clause apply to an application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, if:

- The apartment development is seven storeys or more, excluding a basement, and is in the General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone, or
- The apartment development is in the Commercial 1 Zone, Commercial 3 Zone, Special Use Zone, Comprehensive Development Zone, Capital City Zone, Docklands Zone, Priority Development Zone, Activity Centre Zone or Precinct Zone.

## Operation

The provisions of this clause contain:

- **Objectives**. An objective describes the desired outcome to be achieved in the completed development.
- **Standards**. A standard contains the requirements to meet the objective.
  A standard should normally be met. However, if the responsible authority is satisfied that an application for an alternative design solution meets the objective, the alternative design solution may be considered.
- **Decision guidelines**. The decision guidelines set out the matters that the responsible authority must consider before deciding if an application meets the objectives.

## Requirements

A development:

- Must meet all of the objectives of this clause.
- Should meet all of the standards of this clause.

If a zone or a schedule to a zone, or a schedule to an overlay specifies a requirement different from a requirement of a standard set out in Clause 58 (excluding Clause 58.04-1), the requirement in Clause 58 applies.

For Clause 58.04-1 (Building setback):

- If a zone or a schedule to a zone specifies a building setback requirement different from a requirement set out in Clause 58.04-1, the building setback requirement in the zone or a schedule to the zone applies.
- If the land is included in an overlay and a schedule to the overlay specifies a building setback requirement different from the requirement set out Clause 58.04-1 or a requirement set out in the zone or a schedule to the zone, the requirement for building setback in the overlay applies.

# 58.01 URBAN CONTEXT REPORT AND DESIGN RESPONSE

16/01/2018
VC142

## 58.01-1 Application requirements

13/04/2017
VC136

An application must be accompanied by:

- An urban context report.
- A design response.

## 58.01-2 Urban context report

16/01/2018
VC142

The urban context report may use a site plan, photographs or other techniques and must include:

An accurate description of:

- Site shape, size, orientation and easements.
- Levels and contours of the site and the difference in levels between the site and surrounding properties.
- The location and height of existing buildings on the site and surrounding properties.
- The use of surrounding buildings.
- The location of private open space of surrounding properties and the location of trees, fences and other landscape elements.
- Solar access to the site and to surrounding properties.
- Views to and from the site.
- Street frontage features such as poles, street trees and kerb crossovers.
- The location of local shops, public transport services and public open spaces within walking distance.
- Movement systems through and around the site.
- Any other notable feature or characteristic of the site.

An assessment of the characteristics of the area including:

- Any environmental features such as vegetation, topography and significant views.
- The pattern of subdivision.
- Street design and landscape.
- The pattern of development.
- Building form, scale and rhythm.
- Connection to the public realm.
- Architectural style, building details and materials.
- Off-site noise sources.
- The relevant NatHERS climate zones (as identified in Clause 58.03-1).
- Social and economic activity.
- Any other notable or cultural characteristics of the area.

### Satisfactory urban context report

If the responsible authority decides that the urban context report is not satisfactory, it may require more information from the applicant under Section 54 of the Act.

The responsible authority must not require notice of an application to be given or decide an application until it is satisfied that the urban context report meets the requirements of Clause 58.01-2 and is satisfactory.

This does not apply if the responsible authority refuses an application under Section 52(1A) of the Act.

## 58.01-3 Design response

20/12/2021
VC174

The design response must explain how the proposed design:

- Responds to any relevant planning provision that applies to the land.
- Meets the objectives of Clause 58.
- Responds to any relevant housing, urban design and landscape plan, strategy or policy set out in this scheme.
- Selects materials and finishes for the external walls.
- Derives from and responds to the urban context report.

The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings. If in the opinion of the responsible authority this requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

# 58.02 URBAN CONTEXT

31/07/2018
VC148

## 58.02-1 Urban context objectives

13/04/2017
VC136

To ensure that the design responds to the existing urban context or contributes to the preferred future development of the area.

To ensure that development responds to the features of the site and the surrounding area.

### Standard D1

The design response must be appropriate to the urban context and the site.

The proposed design must respect the existing or preferred urban context and respond to the features of the site.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The urban context report.
- The design response.

## 58.02-2 Residential policy objectives

31/07/2018
VC148

To ensure that residential development is provided in accordance with any policy for housing in the Municipal Planning Strategy and the Planning Policy Framework.

To support higher density residential development where development can take advantage of public and community infrastructure and services.

### Standard D2

An application must be accompanied by a written statement to the satisfaction of the responsible authority that describes how the development is consistent with any relevant policy for housing in the Municipal Planning Strategy and the Planning Policy Framework.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The design response.

## 58.02-3 Dwelling diversity objective

13/04/2017
VC136

To encourage a range of dwelling sizes and types in developments of ten or more dwellings.

### Standard D3

Developments of ten or more dwellings should provide a range of dwelling sizes and types, including dwellings with a different number of bedrooms.

## 58.02-4 Infrastructure objectives

01/01/2024
VC250

To ensure development is provided with appropriate utility services and infrastructure.

To ensure development does not unreasonably overload the capacity of utility services and infrastructure.

### Standard D4

Development should be connected to reticulated services, including reticulated sewerage, drainage and electricity, if available.

Development should not unreasonably exceed the capacity of utility services and infrastructure, including reticulated services and roads.

In areas where utility services or infrastructure have little or no spare capacity, developments should provide for the upgrading of or mitigation of the impact on services or infrastructure.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The capacity of the existing infrastructure.
- In the absence of reticulated sewerage, a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- If the drainage system has little or no spare capacity, the capacity of the development to provide for stormwater drainage mitigation or upgrading of the local drainage system.

## 58.02-5 Integration with the street objective

20/12/2021
VC174

To integrate the layout of development with the street.

To support development that activates street frontage.

### Standard D5

Development should be oriented to front existing and proposed streets.

Along street frontage, development should:

- Incorporate pedestrian entries, windows, balconies or other active spaces.
- Limit blank walls.
- Limit high front fencing, unless consistent with the existing urban context.
- Provide low and visually permeable front fences, where proposed.
- Conceal car parking and internal waste collection areas from the street.

Development next to existing public open space should be designed to complement the open space and facilitate passive surveillance.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.

# 58.03 SITE LAYOUT

31/07/2018
VC148

## 58.03-1 Energy efficiency objectives

14/12/2023
VC253

To achieve and protect energy efficient dwellings and buildings.

To ensure the orientation and layout of development reduce fossil fuel energy use and make appropriate use of daylight and solar energy.

To ensure dwellings achieve adequate thermal efficiency.

### Standard D6

Buildings should be:

- Oriented to make appropriate use of solar energy.
- Sited and designed to ensure that the energy efficiency of existing dwellings or small second dwellings on adjoining lots is not unreasonably reduced.

Living areas and private open space should be located on the north side of the development, if practicable.

Developments should be designed so that solar access to north-facing windows is optimised.

Dwellings located in a climate zone identified in Table D1 should not exceed the maximum NatHERS annual cooling load specified in the following table.

### Table D1 Cooling load

| NatHERS climate zone | NatHERS maximum cooling load MJ/M² per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

*Note: Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).*

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation and layout of the site.
- The existing amount of solar access to abutting properties.
- The availability of solar access to north-facing windows on the site.
- The annual cooling load for each dwelling.

## 58.03-2 Communal open space objective

14/12/2023
VC253

To provide communal open space that meets the recreation and amenity needs of residents.

To ensure that communal open space is accessible, practical, attractive, easily maintained.

To ensure that communal open space is integrated with the layout of the development and enhances resident amenity.

### Standard D7

A development of 10 or more dwellings should provide a minimum area of communal outdoor open space of 30 square metres.

If a development contains 13 or more dwellings, the development should also provide an additional minimum area of communal open space of 2.5 square metres per dwelling or 220 square metres, whichever is the lesser. This additional area may be indoors or outdoors and may consist of multiple separate areas of communal open space.

Each area of communal open space should be:

- Accessible to all residents.
- A useable size, shape and dimension.
- Capable of efficient management.
- Located to:
  - Provide passive surveillance opportunities, where appropriate.
  - Provide outlook for as many dwellings as practicable.
  - Avoid overlooking into habitable rooms and private open space of new dwellings.
  - Minimise noise impacts to new and existing dwellings and existing small second dwellings.

Any area of communal outdoor open space should be landscaped and include canopy cover and trees.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The availability of and access to public open space.

## 58.03-3 Solar access to communal outdoor open space objective

13/04/2017
VC136

To allow solar access into communal outdoor open space.

### Standard D8

The communal outdoor open space should be located on the north side of a building, if appropriate.

At least 50 per cent or 125 square metres, whichever is the lesser, of the primary communal outdoor open space should receive a minimum of two hours of sunlight between 9am and 3pm on 21 June.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.

- The useability and amenity of the primary communal outdoor open space areas based on the urban context, the orientation of the building, the layout of dwellings and the sunlight it will receive.

## 58.03-4 Safety objective

13/04/2017
VC136

To ensure the layout of development provides for the safety and security of residents and property.

### Standard D9

Entrances to dwellings should not be obscured or isolated from the street and internal accessways.

Planting which creates unsafe spaces along streets and accessways should be avoided.

Developments should be designed to provide good lighting, visibility and surveillance of car parks and internal accessways.

Private spaces within developments should be protected from inappropriate use as public thoroughfares.

### Decision guideline

Before deciding on an application, the responsible authority must consider the design response.

## 58.03-5 Landscaping objectives

15/03/2024
VC256

To provide landscaping that supports the existing or preferred urban context of the area and reduces the visual impact of buildings on the streetscape.

To preserve existing canopy cover and support the provision of new canopy cover.

To ensure landscaping is climate responsive, supports biodiversity, wellbeing and amenity and reduces urban heat.

### Standard D10

Development should retain existing trees and canopy cover.

Development should provide for the replacement of any significant trees that have been removed in the 12 months prior to the application being made.

Development should:

- Provide the canopy cover and deep soil areas specified in Table D2. Existing trees can be used to meet the canopy cover requirements of Table D2.
- Provide canopy cover through canopy trees that are:
  - Located in an area of deep soil specified in Table D3. Where deep soil cannot be provided trees should be provided in planters specified in Table D3.
  - Consistent with the canopy diameter and height at maturity specified in Table D4.
  - Located in communal outdoor open space or common areas or street frontages.
- Comprise smaller trees, shrubs and ground cover, including flowering native species.
- Include landscaping, such as climbing plants or smaller plants in planters, in the street frontage and in outdoor areas, including communal outdoor open space.
- Shade outdoor areas exposed to summer sun through landscaping or shade structures and use paving and surface materials that lower surface temperatures and reduce heat absorption.
- Be supported by irrigation systems which utilise alternative water sources such as rainwater, stormwater and recycled water.
- Protect any predominant landscape features of the area.

- Take into account the soil type and drainage patterns of the site.
- Provide a safe, attractive and functional environment for residents.
- Specify landscape themes, vegetation (location and species), irrigation systems, paving and lighting.

**Table D2 Canopy cover and deep soil requirements**

| Site area | Canopy cover | Deep soil |
|---|---|---|
| 1000<br>square metres or less | 5% of site area<br>Include at least 1 Type A tree | 5% of site area or 12 square metres whichever is the greater |
| 1001 - 1500<br>square metres | 50 square metres plus 20% of site area above 1,000 square metres<br>Include at least 1 Type B tree | 7.5% of site area |
| 1501 - 2500 square metres | 150 square metres plus 20% of site area above 1,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 10% of site area |
| 2501<br>square metres or more | 350 square metres plus 20% of site area above 2,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 15% of site area |

**Table D3 Soil requirements for trees**

| Tree type | Tree in deep soil<br>Area of deep soil | Tree in planter<br>Volume of planter soil | Depth of planter soil |
|---|---|---|---|
| A | 12 square metres<br>(min. plan dimension 2.5 metres) | 12 cubic metres<br>(min. plan dimension of 2.5 metres) | 0.8 metre |
| B | 49 square metres<br>(min. plan dimension 4.5 metres) | 28 cubic metres<br>(min. plan dimension of 4.5 metres) | 1 metre |
| C | 121 square metres<br>(min. plan dimension 6.5 metres) | 64 cubic metres<br>(min. plan dimension of 6.5 metres) | 1.5 metre |

*Note: Where multiple trees share the same section of soil the total required amount of soil can be reduced by 5% for every additional tree, up to a maximum reduction of 25%.*

**Table D4 Tree type**

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity |
|---|---|---|
| A | 4 metres | 6 metres |
| B | 8 metres | 8 metres |
| C | 12 metres | 12 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character, landscaping or environmental policy, objective, strategy or statement set out in this planning scheme.
- The design response.
- The health of any trees to be removed.
- The suitability of the proposed location, deep soil area and planter volume for canopy trees.
- The suitability of the proposed landscaping in communal outdoor open space.
- The type and quantity of canopy cover, including any alternatives to trees.
- The soil type and drainage patterns of the site.
- The ongoing management of landscaping, including any irrigation systems.

## 58.03-6 Access objective

20/12/2021
VC174

To ensure that vehicle crossovers are designed and located to provide safe access for pedestrians, cyclists and other vehicles.

To ensure the vehicle crossovers are designed and located to minimise visual impact.

### Standard D11

Vehicle crossovers should be minimised.

Car parking entries should be consolidated, minimised in size, integrated with the façade and where practicable located at the side or rear of the building.

Pedestrian and cyclist access should be clearly delineated from vehicle access.

The location of crossovers should maximise pedestrian safety and the retention of on-street car parking spaces and street trees.

Developments must provide for access for service, emergency and delivery vehicles.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the street.
- The impact on the safety of pedestrians or cyclists.
- The reduction of on-street car parking spaces.
- The effect on any significant vegetation on the site and road reserve.

## 58.03-7 Parking location objectives

13/04/2017
VC136

To provide convenient parking for resident and visitor vehicles.

To protect residents from vehicular noise within developments.

### Standard D12

Car parking facilities should:

- Be reasonably close and convenient to dwellings.
- Be secure.
- Be well ventilated if enclosed.

Shared accessways or car parks of other dwellings should be located at least 1.5 metres from the windows of habitable rooms. This setback may be reduced to 1 metre where there is a fence at least 1.5 metres high or where window sills are at least 1.4 metres above the accessway.

#### Decision guideline

Before deciding on an application, the responsible authority must consider the design response.

## 58.03-8 Integrated water and stormwater management objectives

04/02/2026
VC265

To encourage the use of alternative water sources such as rainwater, stormwater and recycled water.

To facilitate stormwater collection, utilisation and infiltration within the development.

To encourage development that reduces the impact of stormwater run-off on the drainage system and filters sediment and waste from stormwater prior to discharge from the site.

#### Standard D13

Buildings should be designed to collect rainwater for non-drinking purposes such as flushing toilets, laundry appliances and garden use.

Buildings should be connected to a non-potable dual pipe reticulated water supply, where available from the water authority.

The stormwater management system should be:

- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to maximise infiltration of stormwater, water and drainage of residual flows into permeable surfaces, tree pits and treatment areas.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant water and stormwater management objective, policy or statement set out in this scheme.
- The design response.
- Whether the development has utilised alternative water sources and/or incorporated water sensitive urban design.
- Whether stormwater discharge from the site will adversely affect water quality entering the drainage system.
- The capacity of the drainage network to accommodate additional stormwater.
- Whether the stormwater treatment areas can be effectively maintained.
- Whether the owner has entered into an agreement to contribute to off-site stormwater management in lieu of providing an on-site stormwater management system.

# 58.04 AMENITY IMPACTS

13/04/2017
VC136

## 58.04-1 Building setback objectives

14/12/2023
VC253

To ensure the setback of a building from a boundary appropriately responds to the existing urban context or contributes to the preferred future development of the area.

To allow adequate daylight into new dwellings.

To limit views into habitable room windows and private open space of new and existing dwellings.

To provide a reasonable outlook from new dwellings and existing small second dwellings.

To ensure the building setbacks provide appropriate internal amenity to meet the needs of residents.

### Standard D14

The built form of the development must respect the existing or preferred urban context and respond to the features of the site.

Buildings should be set back from side and rear boundaries, and other buildings within the site to:

- Ensure adequate daylight into new habitable room windows.
- Avoid direct views into habitable room windows and private open space of new and existing dwellings and existing small second dwellings. Developments should avoid relying on screening to reduce views.
- Provide an outlook from dwellings that creates a reasonable visual connection to the external environment.
- Ensure the dwellings are designed to meet the objectives of Clause 58.

### Decision Guidelines

Before deciding on an application, the responsible authority must consider:

- The purpose of the zone and/or overlay that applies to the land.
- Any relevant urban design objective, policy or statement set out in this scheme.
- The urban context report.
- The design response.
- The relationship between the proposed building setback and the building setbacks of existing adjacent buildings, including the interface with laneways.
- The extent to which the proposed dwellings are provided with reasonable daylight access through the layout of rooms and the number, size, location and orientation of windows.
- The impact of overlooking on the amenity of existing and proposed dwellings and existing small second dwellings.
- The existing extent of overlooking into existing dwellings or small second dwellings and private open space.
- Whether the development meets the objectives of Clause 58.

## 58.04-2 Internal views objective

13/04/2017
VC136

To limit views into the private open space and habitable room windows of dwellings within a development.

### Standard D15

Windows and balconies should be designed to prevent overlooking of more than 50 per cent of the private open space of a lower-level dwelling directly below and within the same development.

### Decision guideline

Before deciding on an application, the responsible authority must consider the design response.

## 58.04-3 Noise impacts objectives

14/12/2023
VC253

To contain noise sources in developments that may affect existing dwellings or small second dwellings.

To protect residents from external and internal noise sources.

### Standard D16

Noise sources, such as mechanical plants should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

The layout of new dwellings and buildings should minimise noise transmission within the site.

Noise sensitive rooms (such as living areas and bedrooms) should be located to avoid noise impacts from mechanical plants, lifts, building services, non-residential uses, car parking, communal areas and other dwellings.

New dwellings should be designed and constructed to include acoustic attenuation measures to reduce noise levels from off-site noise sources.

Buildings within a noise influence area specified in Table D5 should be designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Buildings, or part of a building screened from a noise source by an existing solid structure, or the natural topography of the land, do not need to meet the specified noise level requirements.

Noise levels should be assessed in unfurnished rooms with a finished floor and the windows closed.

**Table D5 Noise influence area**

| Noise source | Noise influence area |
|---|---|
| **Zone interface** | |
| Industry | 300 metres from the Industrial 1, 2 and 3 zone boundary |
| **Roads** | |
| Freeways, tollways and other roads carrying 40,000 Annual Average Daily Traffic Volume | 300 metres from the nearest trafficable lane |
| **Railways** | |
| Railway servicing passengers in Victoria | 80 metres from the centre of the nearest track |
| Railway servicing freight outside Metropolitan Melbourne | 80 metres from the centre of the nearest track |
| Railway servicing freight in Metropolitan Melbourne | 135 metres from the centre of the nearest track |

*Note: The noise influence area should be measured from the closest part of the building to the noise source.*

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.

- Whether it can be demonstrated that the design treatment incorporated into the development meets the specified noise levels or an acoustic report by a suitably qualified consultant submitted with the application.
- Whether the impact of potential noise sources within a development have been mitigated through design, location and siting.
- Whether the layout of rooms within a dwelling mitigates noise transfer within and between dwellings.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling or small second dwelling and the site context.

## 58.04-4 Wind impacts objective

04/05/2022
VC210

To ensure the built form, design and layout of development does not generate unacceptable wind impacts within the site or on surrounding land.

### Standard D17

Development of five or more storeys, excluding a basement should:

- not cause unsafe wind conditions specified in Table D6 in public land, publicly accessible areas on private land, private open space and communal open space; and
- achieve comfortable wind conditions specified in Table D6 in public land and publicly accessible areas on private land

within a distance of half the greatest length of the building, or half the total height of the building measured outwards on the horizontal plane from the ground floor building façade, whichever is greater.

Trees and landscaping should not be used to mitigate wind impacts. This does not apply to sitting areas, where trees and landscaping may be used to supplement fixed wind mitigation elements.

Wind mitigation elements, such as awnings and screens should be located within the site boundary, unless consistent with the existing urban context or preferred future development of the area.

### Table D6 Wind conditions

| Unsafe | Comfortable |
|---|---|
| Annual maximum 3 second gust wind speed exceeding 20 metres per second with a probability of exceedance of 0.1% considering at least 16 wind directions. | Hourly mean wind speed or gust equivalent mean speed (3 second gust wind speed divided by 1.85), from all wind directions combined with probability of exceedance less than 20% of the time, equal to or less than:<br>▪ 3 metres per second for sitting areas,<br>▪ 4 metres per second for standing areas,<br>▪ 5 metres per second for walking areas. |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The urban context report.
- The design response.

- The safety, functionality and amenity of public, private and communal open space areas.
- Whether it has been demonstrated by a suitably qualified specialist that the development will not generate unacceptable wind impacts within the site or on surrounding land.

## 58.05 ON-SITE AMENITY AND FACILITIES

13/04/2017
VC136

### 58.05-1 Accessibility objective

04/05/2022
VC210

To ensure the design of dwellings meets the needs of people with limited mobility.

#### Standard D18

At least 50 per cent of dwellings should have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.
- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table D7.

**Table D7 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower. |
| Door design | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards that is clear of the circulation area and has readily removable hinges. | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards and has readily removable hinges. |
| Circulation area | A clear circulation area that is:<br>▪ A minimum area of 1.2 metres by 1.2 metres.<br>▪ Located in front of the shower and the toilet.<br>▪ Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>▪ A minimum width of 1 metre.<br>▪ The full length of the bathroom and a minimum length of 2.7 metres.<br>▪ Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

### 58.05-2 Building entry and circulation objectives

04/05/2022
VC210

To provide each dwelling and building with its own sense of identity.

To ensure the internal layout of buildings provide for the safe, functional and efficient movement of residents.

To ensure internal communal areas provide adequate access to daylight and natural ventilation.

#### Standard D19

Entries to dwellings and buildings should:

- Be visible and easily identifiable.
- Provide shelter, a sense of personal address and a transitional space around the entry.

The layout and design of buildings should:

- Clearly distinguish entrances to residential and non-residential areas.
- Provide windows to building entrances and lift areas.
- Provide visible, safe and attractive stairs from the entry level to encourage use by residents.
- Provide common areas and corridors that:
  - Include at least one source of natural light and natural ventilation.
  - Avoid obstruction from building services.
  - Maintain clear sight lines.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of internal communal areas based on daylight access and the natural ventilation it will receive.

### 58.05-3 Private open space objective

04/05/2022
VC210

To provide adequate private open space for the reasonable recreation and service needs of residents.

#### Standard D20

A dwelling should have private open space consisting of at least one of the following:

- An area at ground level of at least 25 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- A balcony with at least the area and dimensions specified in Table D8 and convenient access from a living room.
- An area on a podium or other similar base of at least 15 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- An area on a roof of 10 square metres, with a minimum dimension of 2 metres and convenient access from a living room.

If a cooling or heating unit is located on a balcony, the minimum balcony area specified in Table D8 should be increased by at least 1.5 square metres.

If the finished floor level of a dwelling is 40 metres or more above ground level, the requirements of Table D8 do not apply if at least the area specified in Table D9 is provided as living area or bedroom area in addition to the minimum area specified in Table D11 or Table D12 in Standard D25.

**Table D8 Balcony size**

| Orientation of dwelling | Dwelling type | Minimum area | Minimum dimension |
|---|---|---|---|
| North (between north 20 degrees west to north 30 degrees east) | All | 8 square metres | 1.7 metres |
| South (between south 30 degrees west to south 30 degrees east) | All | 8 square metres | 1.2 metres |
| Any other orientation | Studio or 1 bedroom dwelling | 8 square metres | 1.8 metres |
| | 2 bedroom dwelling | 8 square metres | 2 metres |
| | 3 or more bedroom dwelling | 12 square metres | 2.4 metres |

**Table D9 Additional living area or bedroom area**

| Dwelling type | Additional area |
|---|---|
| Studio or 1 bedroom dwelling | 8 square metres |
| 2 bedroom dwelling | 8 square metres |
| 3 or more bedroom dwelling | 12 square metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and functionality of the private open space, including its size and accessibility.
- The amenity of the private open space based on the orientation of the lot, noise exposure, the wind conditions and the sunlight it will receive.
- The availability of and access to public or communal open space.
- The useability and functionality of any additional living area or bedroom area, including its size and layout.

## 58.05-4 Storage objective

04/05/2022
VC210

To provide adequate storage facilities for each dwelling.

### Standard D21

Each dwelling should have convenient access to usable and secure storage space.

The total minimum storage space (including kitchen, bathroom and bedroom storage) should meet the requirements specified in Table D10.

**Table D10 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability, functionality and location of storage facilities provided for the dwelling.

## 58.06 DETAILED DESIGN

13/04/2017
VC136

### 58.06-1 Common property objectives

04/05/2022
VC210

To ensure that communal open space, car parking, access areas and site facilities are practical, attractive and easily maintained.

To avoid future management difficulties in areas of common ownership.

#### Standard D22

Developments should clearly delineate public, communal and private areas.

Common property, where provided, should be functional and capable of efficient management.

### 58.06-2 Site services objectives

04/05/2022
VC210

To ensure that site services are accessible and can be installed and maintained.

To ensure that site services and facilities are visually integrated into the building design or landscape.

#### Standard D23

Development should provide adequate space (including easements where required) for site services to be installed and maintained efficiently and economically.

Meters and utility services should be designed as an integrated component of the building or landscape.

Mailboxes and other site facilities should be adequate in size, durable, water-protected, located for convenient access and integrated into the overall design of the development.

#### Decision guideline

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.

### 58.06-3 Waste and recycling objectives

04/05/2022
VC210

To ensure dwellings are designed to encourage waste recycling.

To ensure that waste and recycling facilities are accessible, adequate and attractive.

To ensure that waste and recycling facilities are designed and managed to minimise impacts on residential amenity, health and the public realm.

#### Standard D24

Developments should include dedicated areas for:

- Waste and recycling enclosures which are:
  - Adequate in size, durable, waterproof and blend in with the development.
  - Adequately ventilated.
  - Located and designed for convenient access by residents and made easily accessible to people with limited mobility.
- Adequate facilities for bin washing. These areas should be adequately ventilated.
- Collection, separation and storage of waste and recyclables, including where appropriate opportunities for on-site management of food waste through composting or other waste recovery as appropriate.

- Collection, storage and reuse of garden waste, including opportunities for on-site treatment, where appropriate, or off-site removal for reprocessing.
- Adequate circulation to allow waste and recycling collection vehicles to enter and leave the site without reversing.
- Adequate internal storage space within each dwelling to enable the separation of waste, recyclables and food waste where appropriate.

Waste and recycling management facilities should be designed and managed in accordance with a Waste Management Plan approved by the responsible authority and:

- Be designed to meet the better practice design options specified in *Waste Management and Recycling in Multi-unit Developments* (Sustainability Victoria, 2019).
- Protect public health and amenity of residents and adjoining premises from the impacts of odour, noise and hazards associated with waste collection vehicle movements.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- Any relevant waste and recycling objective, policy or statement set out in this scheme.

## 58.06-4 External walls and materials objective

04/05/2022
VC210

To ensure external walls use materials appropriate to the existing urban context or preferred future development of the area.

To ensure external walls endure and retain their attractiveness.

#### Standard D25

External walls should be finished with materials that:

- Do not easily deteriorate or stain.
- Weather well over time.
- Are resilient to the wear and tear from their intended use.

External wall design should facilitate safe and convenient access for maintenance.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant building design and urban design objective, policy or statement set out in this scheme.
- The urban context report.
- The design response.

## 58.07 INTERNAL AMENITY

13/04/2017
VC136

### 58.07-1 Functional layout objective

04/05/2022
VC210

To ensure dwellings provide functional areas that meet the needs of residents.

#### Standard D26

Bedrooms should:

- Meet the minimum internal room dimensions specified in Table D11.
- Provide an area in addition to the minimum internal room dimensions to accommodate a wardrobe.

**Table D11 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth |
|---|---|---|
| Main bedroom | 3 metres | 3.4 metres |
| All other bedrooms | 3 metres | 3 metres |

Living areas (excluding dining and kitchen areas) should meet the minimum internal room dimensions specified in Table D12.

**Table D12 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 sqm |
| 2 or more bedroom dwelling | 3.6 metres | 12 sqm |

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability, functionality and amenity of habitable rooms.

### 58.07-2 Room depth objective

04/05/2022
VC210

To allow adequate daylight into single aspect habitable rooms.

#### Standard D27

Single aspect habitable rooms should not exceed a room depth of 2.5 times the ceiling height.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth should be measured from the external surface of the habitable room window to the rear wall of the room.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the habitable room is provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability, functionality and amenity of the dwelling based on layout, siting, size and orientation of habitable rooms.
- Any overhang above habitable room windows that limits daylight access.

## 58.07-3 Windows objective

04/05/2022
VC210

To allow adequate daylight into new habitable room windows.

### Standard D28

Habitable rooms should have a window in an external wall of the building.

A window may provide daylight to a bedroom from a smaller secondary area within the bedroom where the window is clear to the sky.

The secondary area should be:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the habitable room is provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.

## 58.07-4 Natural ventilation objectives

04/05/2022
VC210

To encourage natural ventilation of dwellings.

To allow occupants to effectively manage natural ventilation of dwellings.

### Standard D29

The design and layout of dwellings should maximise openable windows, doors or other ventilation devices in external walls of the building, where appropriate.

At least 40 per cent of dwellings should provide effective cross ventilation that has:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same area.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation, slope and wind exposure of the site.

- The extent to which the orientation of the building and the layout of dwellings maximises opportunities for cross ventilation.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling and the site context.

# 59 VICSMART APPLICATIONS AND REQUIREMENTS

31/07/2018
VC148

# 59.01 REALIGN THE COMMON BOUNDARY BETWEEN TWO LOTS

31/07/2018
VC148

## 59.01-1 Information requirements

01/07/2021
VC203

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location of any existing buildings, car parking area, driveways, storage areas, loading areas and private open space.
  - The location of any easements on the subject land.
  - The location of the approved stormwater discharge point.
  - The location and details of any significant vegetation.
  - The location of any street trees, poles, pits or other street furniture.
  - Existing and proposed vehicle access to the lots.
  - Any abutting roads.
  - The location of the existing and proposed common boundary between the lots and the proposed size and shape of the realigned lots.
  - Any proposed common property to be owned by a body corporate and the lots participating in the body corporate.
- If the land is in more than one ownership, the consent of the owners of the land.
- If common property is proposed, an explanation of why the common property is required.
- A written statement that describes:
  - The existing use of the land and its possible future development.
  - The reason for the realignment of the common boundary.
  - For land in an overlay, how the proposal responds to any statement of significance, objectives or requirements specified in the schedule to the overlay.
- If the land is in an area where reticulated sewerage is not provided, a plan which shows the location of any existing effluent disposal area for each lot or a Land Capability Assessment which demonstrates that each lot is capable of treating and retaining all wastewater and the risks to human health and the environment of a on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- If the land is in a residential zone and the realignment of the common boundary will result in a vacant lot, information that shows that the vacant lot meets the requirements of Standard C8 of Clause 56.

## 59.01-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The suitability of the subdivision including how the layout and dimensions of the subdivision:
  - Respond to and integrate with the surrounding urban or rural environment.
  - Protect significant vegetation.

  - Appropriately accommodate any existing or proposed easements on the lots.
  - Protect solar access for existing and any future dwellings on the lots.
  - Appropriately accommodate any existing waste storage areas, loading bays and vehicle standing areas on the site.
  - Appropriately accommodate private open space.
  - Appropriately accommodate the provision of utility services to each lot.
  - If the land is in an area where reticulated sewerage is not provided to each lot, whether the layout of the subdivision accommodates the effluent disposal area for each lot.
  - Appropriately accommodate the siting of buildings having regard to the risk of spread of fire.
  - Appropriately accommodate the existing use and possible future development of the land.
- Whether the provision of common property is appropriate for the purpose for which the land is to be commonly held.
- If the land is in a residential zone and the realignment of the common boundary will result in a vacant lot, the objective and standard of Clause 56.04-2.
- The statement of significance and the objectives contained in the schedule to the overlay and whether the subdivision will adversely affect that significance or the objectives.
- Whether the proposal meets any requirements specified in the overlay or the schedule to the overlay.

# 59.02 SUBDIVISION OF BUILDINGS AND CAR PARKING SPACES

31/07/2018
VC148

## 59.02-1 Information requirements

01/07/2021
VC203

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A copy of the relevant planning permit and approved plans for the development.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location of any existing buildings, car parking areas and private open space.
  - The location, shape and size of the proposed lots to be created.
  - The location of any easements on the subject land.
  - The location and details of any significant vegetation.
  - The location of the approved stormwater discharge point.
  - Any abutting roads.
  - The location of any street trees, poles, pits and other street furniture.
  - Existing and proposed vehicle access to the lots.
  - Any loading bays and vehicle standing areas.
  - Any waste storage areas.
  - Any proposed common property to be owned by a body corporate and the lots participating in the body corporate.
- For the subdivision of existing buildings and car parking spaces, a copy of the occupancy permit or a certificate of final inspection for the development.
- For the subdivision of land into two lots with an approved development currently under construction, evidence that the construction has commenced.
- If common property is proposed, an explanation of why the common property is required.
- If the land is in an area where reticulated sewerage is not provided, a plan which shows the location of any existing effluent disposal area for each lot or a Land Capability Assessment which demonstrates that each lot is capable of treating and retaining all wastewater and manage the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- For land in an overlay, a written statement that describes how the proposal responds to any statement of significance, objectives or requirements specified in the schedule to the overlay.

## 59.02-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The suitability of the subdivision including how the layout and dimensions of the subdivision:
  - Are consistent with the approved plans and conditions of any relevant planning permit for the development.
  - Are consistent with the layout of existing buildings and car parking spaces on the land.
  - Appropriately accommodate any existing waste storage areas.

  - Appropriately accommodate any existing loading bay and vehicle storage area.
  - Appropriately accommodate significant vegetation.
  - Appropriately accommodate existing or proposed easements on the lots.
  - Appropriately accommodate the provision of utility services to each lot.
  - Appropriately accommodate the siting of buildings having regard to safety and the risk of spread of fire.
- If the land is in an area where reticulated sewerage is not provided to each lot, whether the layout of the subdivision accommodates the effluent disposal area for each lot.
- For the subdivision of existing buildings and car parking spaces, whether each new lot, other than common property, contains an existing building, part of an existing building or a car parking space.
- Whether the provision and location of common property is appropriate for the purpose for which the land is to be commonly held.
- Whether any public open space contribution is required under Clause 53.01 of this scheme or under Section 18 of the *Subdivision Act 1988*.
- The statement of significance and the objectives contained in the schedule to the overlay and whether the subdivision will adversely affect that significance or the objectives.
- Whether the proposal meets any requirements specified in the overlay or the schedule to the overlay.

# 59.03 FRONT FENCE IN A RESIDENTIAL ZONE

31/07/2018
VC148

## 59.03-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of the title for the subject land and a copy of any registered restrictive covenant.
- A plan drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location, length, height and design of the proposed fence including details of materials.
  - The location, height and design of any existing front fence on adjoining and nearby properties including details of materials.
- A photograph of the site and adjoining and nearby properties along the street frontage.
- The reason for the proposed height.

## 59.03-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Whether the setback, height and design of the proposed fence are:
  - Appropriate to the neighbourhood character and the site.
  - Consistent with any relevant neighbourhood character objective or policy set out in the scheme.
  - Appropriate with the setback, height and appearance of front fences on adjoining and nearby properties.
  - Complement the design of the dwelling.
- The extent to which slope and retaining walls reduce the effective height of the proposed fence.
- Whether the proposed fence is needed to minimise noise intrusion.
- The reason for the proposed height.

# 59.04 BUILDINGS AND WORKS IN A ZONE (EXCEPT A RURAL ZONE)

31/07/2018
VC148

## 59.04-1 Information requirements

08/09/2025
VC282

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A description of the use of the land and the proposed buildings and works.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and use of buildings and works on adjoining land.
  - Relevant ground levels.
  - Any contaminated soils and filled areas, where known.
  - The layout of existing and proposed buildings and works.
  - All existing and proposed driveways, car parking, bicycle parking and loading areas.
  - Existing and proposed landscape areas.
  - All external storage and waste treatment areas.
  - The location of easements and services.
- Elevation drawings to scale showing the height, colour and materials of all proposed buildings and works.
- A photograph of the building or area affected by the proposal.
- A written statement describing the proposal and if relevant:
  - The built form and character of adjoining and nearby buildings.
  - The heritage character of any adjoining heritage places.
  - Ground floor street frontages, including visual impacts and pedestrian safety.
- A written statement describing whether the proposed buildings and works meet:
  - The number of car parking spaces required under Clause 52.06 or in the schedule to Clause 45.09.
  - Any development requirement specified in the zone or the schedule to the zone.
- Any relevant requirement in an approved development plan or incorporated plan for the land.
- Any other information specified in the schedule to the zone.
- For land in a residential zone, a written statement, plan or diagram showing how the proposal meets:
  - The requirements in the following standards of Clause 54:
    - A2-3 Side and rear setbacks.
    - A2-4 Walls on boundaries.
    - A4-1 Daylight to existing windows.
    - A4-2 Existing north-facing windows.
    - A4-3 Overshadowing secluded open space.

- A4-4 Overlooking.
- A5-2 Overshadowing domestic solar energy systems.

If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard the schedule to the zone applies.

## 59.04-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Whether the proposal is consistent with any relevant urban design and built form policy set out in the scheme.
- Whether the movement of pedestrians and cyclists, and vehicles providing for supplies and waste removal are appropriately accommodated.
- Whether the design complements the built form of the surrounding properties and the streetscape, including the conservation of buildings, the design of verandahs, access from the street front, protecting active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and the landscaping of land adjoining a road.
- Whether the land and building have availability of and connection to services.
- Whether the proposed development adversely impacts the amenity of the land and the locality including existing dwellings on adjoining sites.
- Whether the proposed development appropriately provides for landscaping.
- Whether the proposed development adversely affects solar access to existing open spaces and public places.
- Whether the proposal meets the car parking requirements specified in Clause 52.06 or in the schedule to the Parking Overlay.
- Whether the proposal meets the maximum building height specified in the schedule to the zone.
- Whether the proposal meets any relevant requirements specified in the zone or the schedule to the zone.
- Whether the proposal is consistent with any relevant approved development plan or incorporated plan.
- The objectives set out in the schedule to the zone.
- Whether the proposal provides adequate vehicle loading and unloading facilities.
- For land in a residential zone:
  - Whether the proposed development is consistent with any neighbourhood character objectives set out in the schedule to the zone.
  - Whether the development is compatible with residential use.
  - The scale and intensity of the development.
  - The design, height, setback and appearance of the proposed buildings and works.

# 59.05 BUILDINGS AND WORKS IN AN OVERLAY

31/07/2018
VC148

## 59.05-1 Information requirements

02/10/2026
VC323

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location, height and design of the proposed buildings and works including details of materials.
  - The location of any existing buildings, including fences and trees.
  - For land in a Neighbourhood Character Overlay, any buildings proposed to be demolished.
- For land in a Significant Landscape Overlay, a written description of the proposal including:
  - How the proposal responds to the landscape significance and objectives specified in a schedule to the overlay.
  - The impact of the proposed buildings and works on the significance of the landscape.
- For land in a Neighbourhood Character Overlay, a written description of the proposal including:
  - The built form and character of adjoining and nearby buildings.
  - How the proposal responds to the key features and objectives specified in the schedule to the overlay.
  - If demolition is proposed, the reason for the demolition.
  - How the proposal meets the requirements of Clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-7, 54.03-1, 54.04-1, 54.04-2, 54.05-1, including any Clause 54 modification specified in the schedule to the overlay.
- For land in a Design and Development Overlay, a written description of the proposal including:
  - How the proposal responds to the design objectives specified in a schedule to the overlay.
  - How the proposal meets the requirements specified in a schedule to the overlay.
  - The built form and character of adjoining and nearby buildings.
- A photograph of the building or area affected by the proposal.
- For land in an Erosion Management Overlay, the information specified in clause 44.01-6, including information specified in a schedule to the overlay.
- For an application under the Salinity Management Overlay, written advice including plan references and any conditions from the referral authority demonstrating that the referral authority has considered the proposal for which the application is made within the past three months and does not object to the granting of the permit for the proposal.

## 59.05-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The statement of significance and the objectives contained in the schedule to the overlay and whether the buildings and works will adversely affect that significance or the objectives.
- Whether the proposal meets any requirements specified in the overlay or the schedule to the overlay.

- For an application in a Salinity Management Overlay, any comments from the relevant referral authority.
- For an application in a Neighbourhood Character Overlay, the relevant objectives, standards and decision guidelines of Clause 54.
- Any relevant decision guideline specified in the overlay and the schedule to the overlay.

# 59.06 REMOVE, DESTROY OR LOP ONE TREE

20/03/2023
VC229

## 59.06-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- If the tree to be removed, destroyed or lopped is identified as a significant tree in a schedule to the overlay, a report prepared by an arborist.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The location, shape, size and slope of the site.
  - The location of the tree to be removed, destroyed or lopped.
  - The location and type of other significant vegetation on the site.
  - The location, species and height of any significant trees on the site that have been removed or approved to be removed in the past 3 years.
- A written statement that describes:
  - The species, height and trunk girth of the tree to be removed, destroyed or lopped.
  - The reason the tree is to be removed, destroyed or lopped.
  - If provision is to be made to replace the tree elsewhere on the land.
  - If the tree is to be lopped, the extent of lopping proposed.
  - Any impacts on the significance of the area.
- A photograph of the tree to be removed, destroyed or lopped.

## 59.06-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The statement of significance and the objectives contained in the schedule to the overlay and whether the proposal will adversely affect that significance or the objectives.
- Whether the tree proposed to be removed, destroyed or lopped contributes to the significance of the area and whether the proposal will adversely affect that significance.
- Whether the removal or lopping of the tree is needed because of the health of the tree.
- Whether the lopping of the tree will adversely affect the health, appearance or significance of the tree.
- Whether the removal of the tree will contribute to soil erosion, slippage or salinisation.
- Whether the removal or lopping of the tree is needed to create a defendable space to reduce the risk of bushfire to life and property.
- If the tree is a native tree, its role in conserving flora and fauna and whether the proposal will adversely affect the conservation of flora and fauna of the area.
- Whether provision is made to plant a new tree elsewhere on the land.
- The reasons for removing the tree including the health of the tree to be removed.
- The cumulative impact of the number of trees that have been removed or been approved for removal in the past 3 years.
- Any relevant decision guideline specified in the overlay or the schedule to the overlay.

# 59.07 APPLICATIONS UNDER A HERITAGE OVERLAY

31/07/2018
VC148

## 59.07-1 Information requirements

04/11/2022
VC226

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location of any existing buildings, including fences and trees.
  - The location, height and design of the proposed building or works including details of proposed materials.
  - Any buildings to be demolished.
  - An elevation of the proposed building.
  - The size and design of any proposed sign, including details of the supporting structure and any proposed illumination.
  - The location, style, size, colour and materials of any proposed solar energy system (that is visible from the street frontage or any nearby public park), including details of the supporting structure.
- A written description of the proposal including:
  - Any impacts on the significance of the heritage place.
  - How the proposal responds to any relevant local heritage policy set out in the planning scheme.
  - If lopping of a tree is proposed, the reason for the lopping, the extent of lopping and an arborist report.
- The proposed colour schedule and nature of any materials and finishes.
- A photograph of the area affected by the proposal including any building, outbuilding, fence or tree which may be affected by the proposal.
- A photograph of the subject site and adjoining properties along the street frontage.
- If subdivision is proposed, the location, shape and size of the proposed lots to be created.
- If a sign is proposed:
  - The location, size and design of the proposed sign on the site or building.
  - The location and size of existing signage on the site including details of any signs to be retained or removed.
- If a solar energy system is proposed that is visible from a street (other than a lane) or public park, measures proposed to minimise the visibility of the system and protect the structural integrity of heritage features.

## 59.07-2 Decision guidelines

04/11/2022
VC226

In assessing an application the responsible authority must consider as appropriate:

### General

- The significance of the heritage place and whether the proposal will adversely affect that significance.

- Any applicable statement of significance, heritage study and any applicable conservation policy.
- Whether the proposal will adversely affect the character or appearance of the building or heritage place.
- Any relevant local heritage policy set out in the planning scheme.

**Demolition**

- Whether the outbuilding to be demolished contributes to the significance, character or appearance of the building or heritage place.

**Buildings and works**

- Whether the location, bulk, form and appearance of the proposed building or works will adversely affect the significance of the building or heritage place.
- Whether the proposed building or works will affect the health or appearance of a tree which is the subject of a Heritage Overlay.

**Alterations**

- Whether the proposed alterations will restore or reconstruct original fabric which has been removed or damaged.
- Whether the proposed alterations will adversely affect the significance, character and appearance of the heritage place.

**Fences**

- Whether the fence proposed to be demolished contributes to the significance, character and appearance of the building or heritage place.
- Whether the proposed fence, including its style, height and materials, is appropriate to the building or heritage place.

**Trees**

- Whether the proposed lopping will adversely affect the health, appearance or significance of the tree.

**Subdivision**

- Whether the proposed subdivision retains the significant setting (landscapes, landscape features and views) of the heritage place.
- Whether the proposed subdivision respects the rhythm and spacing of buildings in the streetscape.
- Whether the proposed subdivision will result in a new boundary fence, wall or structure that adversely affects the setting of the heritage place.

**Signage**

- Whether the proposed sign will adversely affect the significance, character or appearance of the heritage place.

**Solar energy systems**

- Any relevant building design or energy policy set out in the Planning Policy Framework.
- Whether the proposed solar energy system can be sited to minimise visibility from a street or public park without significantly impacting its performance.
- Whether the proposed solar energy system can be designed to minimise the impact on the significance, character or appearance of the heritage place.

## 59.08 APPLICATIONS UNDER A SPECIAL BUILDING OVERLAY

31/07/2018
VC148

### 59.08-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A plan, drawn to scale and fully dimensioned showing:
  - The boundaries and dimensions of the site.
  - The layout, size and use of existing and proposed buildings and works, including floor plan layout and vehicle parking areas.
  - Setbacks between existing and proposed buildings and site boundaries.
  - Natural surface levels of the site to Australian Height Datum.
  - Floor and surface levels of any existing and proposed buildings and works to Australian Height Datum.
  - Cross sectional details of any basement entry ramps and other basement entries to Australian Height Datum, showing floor levels of entry and exit areas and drainage details.
  - If subdivision is proposed, the location, shape and size of the proposed lots to be created.
- If a referral to the floodplain management authority is required, written advice, including endorsed plans of the proposal and any conditions, from the relevant floodplain management authority demonstrating that the floodplain management authority has considered the proposal for which the application is made within the past three months and does not object to the granting of the permit for the proposal.

### 59.08-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Clauses 13.01 and 13.03 of the Planning Policy Framework.
- Whether the proposal is consistent with any local floodplain development plan for the area incorporated into this scheme.
- If a referral to the floodplain management authority is required, any comments from the relevant floodplain management authority.
- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this overlay.
- The susceptibility of the development to flooding and flood damage.
- The flood risk including:
  - The frequency, duration, extent, depth and velocity of flooding of the site and accessways.
  - The flood warning time available.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.
- The effect of the development redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.

# 59.09 SIGNS

31/07/2018
VC148

## 59.09-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information, as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A site context report, using a site plan, photographs or other methods to accurately describe:
  - The location of the proposed sign on the site or building and distance from property boundaries.
  - The location and size of existing signs on the site including details of any signs to be retained or removed.
  - The location and form of existing signs on adjoining properties and in the locality.
  - The location of closest traffic control signs.
  - Identification of any view lines or vistas that could be affected by the proposed sign.
- The dimensions, height above ground level and extent of projection of the proposed sign.
- The height, width and depth of the total sign structure including the method of support and any associated structures such as safety devices and service platforms.
- The colour, lettering style and materials of the proposed sign.
- The size of the proposed display (total display area including all sides of a multi-sided sign).

## 59.09-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Whether the proposal is consistent with any relevant local advertising policy set out in the scheme.
- Whether the proposal will impact the character of the area including:
  - Natural environment, heritage, waterway, open space and rural landscape values.
  - The desired future character of the area.
  - The cumulative impact of signs on the character of an area.
  - The need to avoid visual disorder or clutter of signs.
- Whether the proposal will impact views and vistas including:
  - Important views from the public realm.
  - Significant public views.
  - Views to existing signs.
- Whether the proportion, scale and form of the proposed sign relates to the site, building, streetscape, setting or landscape including:
  - The position of the proposed sign, including if it protrudes above existing buildings or landscape and natural elements.
  - Screening of unsightly elements.
  - The number, scale and location of existing signs.
  - The ability to rationalise or simplify the number of signs.
  - The ability to include landscaping to reduce the visual impact of the proposed sign structure.

  - The extent to which the proposed sign requires the removal of vegetation.

- Whether the proposed sign is consistent with any outdoor advertising theme.
- Whether there is a need for identification and the opportunities for adequate identification on the site or locality.
- Whether the proposed sign will adversely impact road safety.

# 59.10 CAR PARKING

31/07/2018
VC148

## 59.10-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A plan, drawn to scale and fully dimensioned showing:
  - The boundaries and dimensions of the site.
  - The location of existing buildings.
  - All car parking spaces and access lanes.
  - Allocation of car parking spaces to different uses or tenancies, if applicable.
  - Landscaping and sensitive water design treatments.
- A written statement that describes:
  - The proposed use of the site, number of employees and patrons and hours of operation.
  - The previous use of the site.
  - The site and floor area to be occupied.
  - The number of car parking spaces required under Clause 52.06-5 or in a schedule to the Parking Overlay.
  - The total number of car parking spaces provided.
  - The likely impact of a reduction in car parking on the amenity of the area and on the area's existing car parking.

## 59.10-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Whether the reduction of the car parking requirement is consistent with any relevant local planning policy or incorporated plan.
- The objectives contained in the schedule to the Parking Overlay.
- Whether there is availability of alternative car parking in the locality including:
  - Efficiencies gained from the consolidation of shared car parking spaces.
  - Public car parks intended to serve the land.
  - On street parking in non-residential zones.
  - Streets in residential zones specifically managed for non-residential parking.
- The practicality of providing car parking on the site, particularly for lots of less than 300 square metres.
- Whether there is any car parking deficiency associated with the existing use of the land.
- Whether there is any credit that should be allowed for car parking spaces provided on common land or by a Special Charge Scheme or cash-in-lieu payment.
- Whether fewer car parking spaces will impact local amenity, including pedestrian amenity and the amenity of nearby residential areas.
- Whether there is a need to create safe, functional and attractive parking areas.
- The availability of public transport in the locality of the land.

- The convenience of pedestrian and cyclist access to the land.
- The likelihood of multi-purpose trips within the locality which are likely to be combined with a trip to the land in connection with the use.
- The equity of reducing the car parking requirement having regard to any historic contributions by existing businesses.
- On street parking in residential zones in the locality of the land that is intended to be for residential use.
- The future growth and development of any nearby activity centre.
- Local traffic management in the locality of the land.
- Access to or provision of alternative transport modes to and from the land.
- Whether any car parking spaces to be provided meet the design standards of Clause 52.06.
- Any relevant decision guideline specified in a schedule to the Parking Overlay.

# 59.11 TWO LOT RESIDENTIAL SUBDIVISION

16/10/2025
VC288

## 59.11-1 Information requirements

16/10/2025
VC288

An application must be accompanied by the following information as appropriate:

- A copy of title for the land and a copy of any registered restrictive covenant.
- A site and context description in accordance with clause 59.11-1.1.
- A design response in accordance with clause 59.11-1.2.

### 59.11-1.1 Site and context description

The site and context description may use a site plan, photographs or other techniques and must accurately describe in relation to the site:

- Site shape, size, dimensions and orientation.
- Levels and contours of the site.
- Location and details of trees and other significant vegetation.
- Location and use of existing buildings on the site.
- Location and dimensions of easements on the site.
- Location of vehicle and pedestrian access, car parking, storage areas (including waste bin storage) and private open space on the site.
- Soil conditions of the site, including any land affected by contamination, erosion, salinity, acid sulphate soils or fill.
- Location of adjacent roads and street frontage features such as poles, infrastructure pits, street trees and kerb crossovers.
- Location of drainage and other utilities.
- Noise and odour sources or other external influences.
- Adjacent uses.
- Any other factor affecting the capacity to develop the site including whether the site is affected by inundation.

### 59.11-1.2 Design response

The design response must explain how the proposed design:

- Derives from and responds to the site and context description.
- Meets the following objectives of clause 56:
  - Clause 56.04-2 Lot area and building envelopes objective.
  - Clause 56.04-5 Common area objective.
  - Clause 56.06-8 Lot access objective.
  - Clause 56.07-4 Stormwater management objective.

The design response must include a dimensioned plan to scale showing:

- The layout of the subdivision in context with the surrounding area, including the boundaries, dimensions and areas of the proposed lots.
- Proposed common property, easements, and vehicle and pedestrian access.
- If a proposed lot contains an existing dwelling proposed to be retained, the location and dimensions of the private open space, vehicle access and car parking for that dwelling.

## 59.11-2 Decision guidelines

16/10/2025
VC288

In assessing an application the responsible authority must consider as appropriate:

- The objectives and standards in the following clauses:
  - Clause 56.04-2 Lot area and building envelopes objective.
  - Clause 56.04-5 Common area objective.
  - Clause 56.06-8 Lot access objective.
  - Clause 56.07-4 Stormwater management objective.
- The area and dimensions of each lot in the subdivision.
- The suitability of the land for subdivision.
- The provision of private open space, car parking and access for a lot containing an existing dwelling proposed to be retained.
- The location, dimensions and gradient of proposed vehicle access.
- The effect of development on the use or development of other land which has a common means of drainage.
- The provision of off-street parking.
- The provision and location of common property.
- The effect on the environment, human health and amenity of the area.
- The degree of flood or erosion associated with the location of the land and the use, development or management of the land so as to minimise any such hazard.

## 59.12 TWO LOT SUBDIVISION IN A RURAL ZONE

31/07/2018
VC148

### 59.12-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location of any existing buildings and associated works.
  - The location, shape and size of the proposed lots to be created.
  - The location of any easements on the subject land.
  - The location of any significant vegetation, waterways and wetlands.
  - The location of the approved stormwater discharge point and effluent disposal areas.
  - Any abutting roads.
  - Existing and proposed vehicle access to the lots.

### 59.12-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The suitability of the subdivision including how the layout and dimensions of the subdivision:
  - Are consistent with the layout of existing buildings and associated works on the land.
  - Appropriately accommodate significant vegetation.
  - Appropriately accommodate existing or proposed easements on the lots.
  - Appropriately accommodate the provision of utility services to each lot.
  - Appropriately accommodate existing and proposed vehicle access to the lots.
- If the land is in an area where reticulated sewerage is not provided to each lot, whether the layout of the subdivision accommodates the effluent disposal area for each lot.
- The location and design of existing and proposed infrastructure including roads, gas, water, drainage, telecommunications and sewerage facilities.
- Any Regional Catchment Strategy applying to the land.
- If the land is in an overlay, statement of significance and the objectives contained in the schedule to the overlay and whether the subdivision will adversely affect that significance or the objectives.
- Whether any public open space contribution is required under Clause 53.01 of this scheme or under Section 18 of the *Subdivision Act 1988*.

## 59.13 BUILDINGS AND WORKS IN A RURAL ZONE

31/07/2018
VC148

### 59.13-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A description of the use of the land and the proposed buildings and works.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location of any waterway or wetlands.
  - The location and use of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All existing and proposed driveways, car parking and loading areas.
  - Existing and proposed landscape areas.
  - All external storage and waste treatment areas.
- Elevation drawings to scale showing the height, colour and materials of all proposed buildings and works.
- A photograph of the building or area affected by the proposal.

### 59.13-2 Decision guidelines

03/02/2022
VC199

In assessing an application the responsible authority must consider as appropriate:

- The impact of the siting, design, height, bulk, colours and materials to be used, on the natural environment, character and appearance of the area, landscape features, major roads, vistas and water features and the measures to be undertaken to minimise any adverse impacts.
- Whether the proposal will have an adverse impact on adjoining and nearby land uses.
- The need to protect amenity of existing residents.
- The need to locate buildings in one area to avoid any adverse impacts on surrounding agricultural uses.
- The likely environmental impact on the natural physical features and biodiversity of the area, including the need to retain vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge areas.
- The capability of the land to accommodate the proposed development.
- Whether the development will support and enhance agricultural production.
- The location of on-site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The impact of the proposal on any wetlands or waterways.
- Any integrated land management plan prepared for the site.

- Whether the development will require traffic management measures.
- For buildings and works associated with a dwelling:
  - Whether the dwelling will result in the loss or fragmentation of productive agricultural land.
  - Whether the dwelling will be adversely affected by agricultural activities on adjacent and nearby land due to dust, noise, odour, use of chemicals and farm machinery, traffic and hours of operation.
  - Whether the dwelling will adversely affect the operation and expansion of adjoining and nearby agricultural uses.
  - The potential for the proposal to lead to a concentration or proliferation of dwellings in the area and the impact of this on the use of the land for agriculture.

## 59.14 [NO CONTENT]

08/09/2025
VC282

## 59.15 LOCAL VICSMART APPLICATIONS

31/07/2018
VC148

The schedule to this clause may specify classes of application that are VicSmart applications to which Clause 71.06 applies. A class of application specified must not be a class of VicSmart application specified in another provision of this planning scheme.

The classes of VicSmart application are specified in three tables:

- Table 1 specifies classes VicSmart application under a zone.
- Table 2 specifies classes VicSmart application under an overlay.
- Table 3 specifies classes VicSmart application under a particular provision.

Each table in the schedule is divided into four columns:

- Column 1 specifies the name or class of zone or overlay or name of particular provision.
- Column 2 specifies the development.
- Column 3 specifies the provision of the planning scheme that contains the permit requirement applicable to the development.
- Column 4 specifies the information requirements and decision guidelines in Clauses 59.01 to 59.14 or the schedule to Clause 59.16 applicable to the class of VicSmart application.

Subject to Clause 71.06, an application under a provision specified in Column 3 for a use or development specified in Column 2 is a class of VicSmart application and must be assessed against the provision specified in Column 4.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 59.15 LOCAL VICSMART APPLICATIONS

## 1.0

10/06/2021
C254card

### Table 1 Classes of VicSmart application under zone provisions

| Name of zone or class of zone | Class of application | Permit requirement provision | Information requirements and decision guidelines |
|---|---|---|---|
| None specified | | | |

## 2.0

10/06/2021
C254card

### Table 2 Classes of VicSmart application under overlay provisions

| Name of overlay or class of overlay | Class of application | Permit requirement provision | Information requirements and decision guidelines |
|---|---|---|---|
| None specified | | | |

## 3.0

10/06/2021
C254card

### Table 3 Classes of VicSmart application under particular provisions

| Name of particular provision | Class of application | Permit requirement provision | Information requirements and decision guidelines |
|---|---|---|---|
| None specified | | | |

## 59.16 INFORMATION REQUIREMENTS AND DECISION GUIDELINES FOR LOCAL VICSMART APPLICATIONS

31/07/2018
VC148

A schedule to this clause may set out information requirements and decision guidelines for a class of VicSmart application specified in the Schedule to Clause 59.15.

10/06/2021
C254card

# SCHEDULE 1 TO CLAUSE 59.16 INFORMATION REQUIREMENTS AND DECISION GUIDELINES FOR LOCAL VICSMART APPLICATIONS

## 1.0 Information requirements

10/06/2021
C254card

None specified.

## 2.0 Decision guidelines

10/06/2021
C254card

None specified.

# 60 GENERAL PROVISIONS

31/07/2018
VC148

This section sets out provisions about existing uses, decision guidelines, referral of applications and other matters.

## 61 [NO CONTENT]

31/07/2018
VC148

# 62 GENERAL EXEMPTIONS

31/07/2018
VC148

## 62.01 USES NOT REQUIRING A PERMIT

20/10/2026
VC317

Any requirement in this scheme relating to the use of land, other than a requirement in the Public Conservation and Resource Zone, does not apply to:

- The use of land for a Road except within the Urban Floodway Zone or Flood Management Zone.
- The use of land for Natural systems.
- The use of land in a road if the use is associated with the use of adjoining land and is authorised by the Council under a local law.
- The use of land in a road to trade from a stall, stand, motor vehicle, trailer, barrow or other similar device.
- The use of land for wind measurement by an anemometer for three years or less.
- The use of land for earth and energy resources industry if the conditions of Clause 52.08 are met.
- The use of land for a carnival or circus if the requirements of A 'Good Neighbour' Code of Practice for a Circus or Carnival, October 1997 are met.
- The use of land for apiculture if the requirements of the Apiary Code of Practice, May 2011 are met.
- The use of land for temporary portable land sales office located on the land for sale.
- The use of land for a telecommunications facility. This exemption does not apply to land within the Flood Management Zone or Flood Management Overlay, Very High Flood Risk Schedule.
- The use of land for a helicopter landing site if the use meets the requirements of Clause 52.15-1.
- The use of land for a minor utility installation. This exemption does not apply to land within the Flood Management Zone.
- The use of land to display a sign.
- The use of land for power lines and electrical sub-stations associated with an energy generation facility or geothermal energy extraction if a permit was issued for such use or development prior to the approval date of Amendment VC157.
- The use of land for environmental monitoring (including monitoring groundwater, noise or air quality) carried out by or on behalf of the Head, Transport for Victoria.
- The use of land for an Electorate office. This exemption does not apply to land within the Flood Management Zone or Flood Management Overlay.
- The use of land for a movable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.
- The use of land (other than land in the Urban Floodway Zone) to provide temporary accommodation on a non-profit basis in a movable building constructed for a community service, if that building:
  - Has a floor area not exceeding 45 square metres.
  - Is located on the same lot as an existing dwelling.
  - Is the only movable building on the lot.

## 62.02 BUILDINGS AND WORKS

15/03/2019
VC157

Clauses 62.02-1 and 62.02-2 set out exemptions from permit requirements in this scheme relating to the construction of a building or the construction or carrying out of works. These exemptions do not apply to the removal, destruction or lopping of trees and the removal of vegetation. Exemptions for vegetation removal are set out in Clause 62.02-3.

### 62.02-1 Buildings and works not requiring a permit

14/12/2023
VC253

Any requirement in this scheme relating to the construction of a building or the construction or carrying out of works, other than a requirement in the Public Conservation and Resource Zone, does not apply to:

- Buildings or works which provide for fire protection under relevant legislation.
- Emergency works undertaken by, or on behalf of, a municipality, public authority or utility service provider in the exercise of any power conferred on them under any Act.
- Buildings or works with an estimated cost of $1,000,000 or less carried out by or on behalf of a municipality.
- Maintenance works carried out by a municipality or public authority to prevent or alleviate flood damage.
- An anemometer located on a site for three years or less.
- Buildings and works associated with a use on adjoining land or street trading if authorised under a local law.
- Gardening.
- Buildings and works associated with a minor utility installation.
- Power lines and electrical sub-stations associated with an Energy generation facility or Geothermal energy extraction if a permit was issued for such use or development prior to the approval date of Amendment VC157.
- Buildings or works which are a modification necessary to comply with a direction under the *Dangerous Goods Act 1985* or the *Occupational Health and Safety Act 2004* or a Development Licence, Operating Licence or notice under the *Environment Protection Act 2017*.
- Buildings and works for a telecommunications facility exempt from a permit under clause 52.19-1.
- Buildings and works associated with a dam if a licence is required to construct the dam or to take and use water from the dam under the *Water Act 1989*.
- Buildings and works associated with a carnival or circus if the requirements of A 'Good Neighbour' Code of Practice for a Circus or Carnival, October 1997 are met.
- Buildings and works associated with apiculture if the requirements of the Apiary Code of Practice, May 2011 are met.
- A temporary portable classroom associated with an education centre located on a site for three years or less.
- A temporary shed or temporary structure for construction purposes, or a temporary portable land sales office located on the land for sale.
- A children's cubbyhouse.
- External lighting normal to a dwelling or small second dwelling.
- The construction, alteration, removal or demolition of an observational bore where a licence has been issued for those works under Part 5 of the *Water Act 1989*.

- Any works associated with the use of land for earth and energy resources industry if the conditions of Clause 52.08 are met.
- A crop support or protection structure associated with horticulture, including a trellis, cloche, net and shadecloth. It does not include a structure with a solid roof or solid wall such as a glass house or igloo.
- An annexe attached to a movable caravan located on land used for a camping and caravan park.
- Works associated with geotechnical testing or service proving.
- Buildings and works associated with the use of land in a road to trade from a stall, stand, motor vehicle, trailer, barrow or other similar device.
- The construction of or putting up for display a sign consistent with the requirements of Clause 52.05-10.
- Temporary buildings and works associated with environmental monitoring (including monitoring groundwater, noise or air quality) constructed or carried out by or on behalf of the Head, Transport for Victoria.

## 62.02-2 Buildings and works not requiring a permit unless specifically required by the planning scheme

20/10/2026
VC317

Any requirement in this scheme relating to the construction of a building or the construction or carrying out of works, other than a requirement in the Public Conservation and Resource Zone, does not apply to:

- A fence.
- The construction of or putting up for display a sign (except for a sign consistent with the requirements of Clause 52.05-10 which is provided for in Clause 62.02-1).
- Roadworks.
- Buildings and works associated with a railway, railway station or tramway constructed or carried out by or on behalf of the Head, Transport for Victoria. If the buildings or works are on land in an Urban Floodway Zone, Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay, Flood Management Zone or Flood Management Overlay, and will redirect or obstruct the water flow path, they must be constructed and carried out to the satisfaction of the relevant floodplain management authority.
- Street furniture including post boxes, telephone booths, fire hydrants, bus shelters, shade sails, traffic control devices and public toilets.
- Park furniture including seating, tables, shelters, rubbish bins, playground equipment, barbeques, shade sails, drinking fountains and public toilets.
- Furniture and works normally associated with an education centre including, but not limited to, outdoor furniture, playground equipment, art works, drinking fountains, rubbish bins and landscaping.
- Disability access and disability facilities associated with an education centre (not including a lift external to a building).
- Art work that is carried out by or on behalf of a public land manager.
- Oil pipelines.
- Buildings and works associated with a movable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.
- A movable building constructed for a community service and to be used or intended to be used to provide temporary accommodation on a non-profit basis, if that building:
  - Has a floor area not exceeding 45 square metres.

  - Is located on the same lot as an existing dwelling.
  - Is the only movable building on the lot.
  - Is not located on land in a bushfire prone area.
- The internal rearrangement of a building or works provided the gross floor area of the building, or the size of the works, is not increased and the number of dwellings is not increased.
- Repairs and routine maintenance to an existing building or works.
- Domestic services normal to a dwelling or small second dwelling.
- A rainwater tank with a capacity of not more than 10,000 litres.
- Bicycle pathways and trails.
- A television antenna.
- A flagpole.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- An open-sided pergola or verandah to a dwelling or small second dwelling with a finished floor level not more than 800 mm above ground level and a maximum building height of three metres above ground level.
- A deck to a dwelling or small second dwelling with a finished floor level not more than 800 mm above ground level.
- A disabled access ramp.
- Any works necessary to prevent soil erosion, or to ensure soil conservation or reclamation.
- A solar energy system attached to a building that primarily services the land on which it is situated.
- Buildings and works associated with cat cages and runs, bird cages, dog houses, and other domestic animal enclosures associated with the use of the land as a dwelling.
- Services normal to a building other than a dwelling or small second dwelling, including chimneys, flues, skylights, heating and cooling systems, hot water systems, security systems and cameras, downpipes, window shading devices, or similar.
- An electric vehicle charging station.

This does not apply if a permit is specifically required for any of these matters.

## 62.02-3 Vegetation removal

30/08/2006
VC40

Any requirement in this scheme relating to the construction or carrying out of works does not apply to the removal, destruction or lopping of trees and the removal of vegetation.

This does not apply if a permit is specifically required to remove, destroy or lop trees or to remove vegetation.

# 62.03 EVENTS AND OUTDOOR DINING ON PUBLIC LAND

27/06/2025
VC275

## 62.03-1 Events

27/06/2025
VC275

Any requirement in this scheme relating to the use of land or the construction of a building or the construction or carrying out of works does not apply to:

- an event on public land; or
- temporary buildings or works required for the event;

where that event has been authorised by the public land manager or by the council under a local law.

An event includes land used to provide temporary cultural or community activities and entertainment such as a concert, festival or exhibition.

This does not apply to public land where a local provision of this scheme specifically regulates an event for a particular site.

## 62.03-2 Outdoor dining

27/06/2025
VC275

In this clause:

***Dining*** means the consumption of food or drink, including liquor. It includes the preparation or sale of food or drink, including liquor, for immediate consumption on, or off, the land.

### Exemption from planning scheme requirements

Any requirement in this scheme relating to the use of land, the construction of a building, the construction or carrying out of works, or provision of car parking, including preparation of a car parking plan under Clause 52.06, does not apply to:

- The use of a road or other public land for outdoor dining if the use is associated with the use of adjoining land and is authorised under a local law or by the public land manager.
- Street and park furniture including, seats, tables, marquees, covered and uncovered pergolas or similar shade sails, bollards, traffic control devices and platforms associated with outdoor dining in a road or other public land on adjoining land and is authorised under a local law or by the public land manager.

## 62.04 SUBDIVISIONS NOT REQUIRING A PERMIT

28/03/2018
VC145

Any requirement in this scheme relating to the subdivision of land does not apply to:

- A subdivision by an authority acquiring the land which does not create an additional lot.
- A subdivision by a public authority or utility service provider which does not create an additional lot other than for the sole purpose of a minor utility installation. This does not apply if a permit is required to subdivide land under any overlay.
- A subdivision by an authority acquiring the land which creates additional lots if the additional lots are severed parcels of land without legal access to an existing road and the additional lots are retained by the acquiring authority or sold to an abutting land owner on the condition that the lot be consolidated with abutting land.
- A subdivision which realigns the common boundary between two lots if all the land is in one urban zone and any of the following apply:
  - Any lot that is reduced in area meets the minimum lot area and minimum dimensions (if any) specified for the zone. This does not apply if the area of the smaller lot is limited by a provision of this scheme, or by a condition of a planning permit.
  - There is no minimum lot area specified for the zone, the area of the smaller lot is more than 230 square metres, and the area of either lot is reduced by less than 30 square metres.
  - There is no minimum lot area specified for the zone, the area of the smaller lot is 230 square metres or less, and the area of either lot is reduced by less than 5 percent or by less than 30 square metres, which ever is lesser.
  - The new boundary coincides with a boundary fence that is more than five years old. This does not apply if all the land is in one ownership.
- A subdivision which realigns the common boundary between two lots if all the land is in one non-urban zone, the re-subdivision does not allow the number of dwellings the whole of the land could be used for under this scheme to increase, and any of the following apply:
  - Any lot that is reduced in area meets the minimum lot area and minimum dimensions (if any) specified for the zone. This does not apply if the area of the smaller lot is limited by a provision of this scheme, or by a condition of a planning permit.
  - There is no minimum lot area specified for the zone, and no part of the boundary is moved more than 1 metre. This does not apply if the area of the smaller lot would be less than the area specified by a condition of a planning permit.
  - There is no minimum lot area specified for the zone, the new boundary coincides with the location of a fence that is more than 5 years old, and no part of the boundary is moved more than three metres.

## 62.05 DEMOLITION

17/02/2022
VC200

A permit is not required for the demolition or removal of a building or works unless a permit is specifically required for demolition or removal.

Any requirement in this planning scheme (other than a requirement in a Heritage Overlay) relating to the demolition or removal of a building or works does not apply to the demolition of removal of a building or works associated with a car park, railway, railway station or tramway carried out by or on behalf of the Head, Transport for Victoria.

## 62.06 DELIVERY OF ESSENTIAL GOODS PERMIT CONDITION EXEMPTION

28/10/2022
VC224

The purpose of this exemption is to enable additional flexibility for deliveries of essential goods if the time within which a delivery may be carried out is regulated by a permit condition.

In this exemption, ***delivery*** includes loading, dispatching and unloading.

This exemption applies to the delivery of food, drink, groceries, medicine, or cleaning, sanitising, health, hygiene, medical or personal protection equipment, supplies, or products, or the like.

Despite any condition of a permit that specifies a period of time within which a delivery may be carried out, a delivery may be carried out for up to 1 hour before the start of the specified period and 1 hour after the end of the specified period.

*Example:* *If a condition of a permit only allows deliveries between the hours of 7am and 10pm, the delivery may be carried out under this exemption after 6am and up until 11pm.*

# 63 EXISTING USES

28/03/2018
VC145

## 63.01 EXTENT OF EXISTING USE RIGHTS

28/03/2018
VC145

An existing use right is established in relation to use of land under this scheme if any of the following apply:

- The use was lawfully carried out immediately before the approval date.
- A permit for the use had been granted immediately before the approval date and the use commences before the permit expires.
- A permit for the use has been granted under Clause 63.08 and the use commences before the permit expires.
- Proof of continuous use for 15 years is established under Clause 63.11.
- The use is a lawful continuation by a utility service provider or other private body of a use previously carried on by a Minister, government department or public authority, even where the continuation of the use is no longer for a public purpose.

## 63.02 CHARACTERISATION OF USE

31/07/2018
VC148

If a use of land is being characterised to assess the extent of any existing use right, the use is to be characterised by the purpose of the actual use at the relevant date, subject to any conditions or restrictions applying to the use at that date, and not by the classification in the table to Clause 73.03 or in Section 1, 2 or 3 of any zone.

## 63.03 EFFECT OF DEFINITIONS ON EXISTING USE RIGHTS

28/03/2018
VC145

The definition of a term in this scheme, or the amendment of any definition, does not increase or restrict the extent of any existing use right established prior to the inclusion of the definition or amendment.

## 63.04 SECTION 1 USES

28/03/2018
VC145

A use in Section 1 of a zone for which an existing use right is established may continue provided any condition or restriction to which the use was subject and which applies to the use in Section 1 of the zone continues to be met.

## 63.05 SECTIONS 2 AND 3 USES

28/03/2018
VC145

A use in Section 2 or 3 of a zone for which an existing use right is established may continue provided:

- No building or works are constructed or carried out without a permit. A permit must not be granted unless the building or works complies with any other building or works requirement in this scheme.
- Any condition or restriction to which the use was subject continues to be met. This includes any implied restriction on the extent of the land subject to the existing use right or the extent of activities within the use.
- The amenity of the area is not damaged or further damaged by a change in the activities beyond the limited purpose of the use preserved by the existing use right.

## 63.06 EXPIRATION OF EXISTING USE RIGHTS

28/03/2018
VC145

An existing use right expires if either:

- The use has stopped for a continuous period of 2 years, or has stopped for two or more periods which together total 2 years in any period of 3 years.
- In the case of a use which is seasonal in nature, the use does not take place for 2 years in succession.

## 63.07 COMPLIANCE WITH CODES OF PRACTICE

28/03/2018
VC145

A use for which an existing use right is established must comply with any relevant code of practice incorporated in this scheme if either:

- The code of practice has been incorporated or adopted in accordance with Section 39 of the Conservation Forests and *Lands Act 1987*.
- The code of practice is approved or ratified by Parliament under an Act.

## 63.08 ALTERNATIVE USE

28/03/2018
VC145

If land is used for a use in Section 3 of a zone for which an existing use right is established, a permit may be granted to use the land for an alternative use which does not comply with this scheme. The responsible authority must be satisfied that the use of the land for the alternative use will be less detrimental to the amenity of the locality.

## 63.09 SHOP CONDITIONS

28/03/2018
VC145

A permit must not be granted to:

- Construct or carry out a building or works under Clause 63.05 for a shop with a leasable floor area exceeding 500 square metres.
- Use land under Clause 63.08 for a shop with a leasable floor area exceeding 500 square metres.

## 63.10 DAMAGED OR DESTROYED BUILDINGS OR WORKS

28/03/2018
VC145

If at least 50 percent of the gross floor area of a building or at least 50 percent of the area of any works is damaged or destroyed so that the use cannot continue without the building or works being reconstructed, the land must be used in conformity with this scheme, unless a permit is granted to continue the use, and to construct or carry out buildings or works.

## 63.11 PROOF OF CONTINUOUS USE

12/02/2024
VC254

If, in relation to an application or proceeding under the Act or this scheme, including an application for a certificate of compliance under Section 97N of the Act, the extent of any existing use right for a period in excess of 15 years is in question, it is sufficient proof of the establishment of the existing use right if the use has been carried out continuously for a period of 15 years at any time before the date of the application or proceeding.

An existing use right may be established under this clause even if the use did not comply with the scheme immediately before or during the 15 year period, unless any of the following apply:

- At any time before or after commencement of the 15 year period the use has been held to be unlawful by a decision of a court or tribunal.
- During the 15 year period, the responsible authority has clearly and unambiguously given a written direction for the use to cease by reason of its non-compliance with the scheme.
- The use ceased between the end of the 15 year period and the date of the application or proceeding.

## 63.12 DECISION GUIDELINES

28/03/2018
VC145

Before deciding on an application under Clause 63.05, 63.08 or 63.10, in addition to the decision guidelines in Clause 65 and any other requirements of the Act, the responsible authority must consider the extent to which compliance can be achieved with all scheme requirements that can reasonably be met.

# 64 GENERAL PROVISIONS FOR USE AND DEVELOPMENT OF LAND

28/03/2018
VC145

## 64.01 LAND USED FOR MORE THAN ONE USE

28/03/2018
VC145

If land is used for more than one use and one is not ancillary to the other, each use must comply with this scheme.

## 64.02 LAND USED IN CONJUNCTION WITH ANOTHER USE

28/03/2018
VC145

If a provision of this scheme provides that a use of land must be used 'in conjunction with' another use of the land:

- there must be an essential association between the two uses; and
- the use must have a genuine, close and continuing functional relationship in its operation with the other use.

## 64.03 SUBDIVISION OF LAND IN MORE THAN ONE ZONE

20/10/2026
VC317

If a provision of this scheme provides that a permit is required to subdivide land and the land is in more than one zone a permit may be granted even if one of the lots does not comply with the minimum lot size requirements of a zone.

### Permit Requirement

A permit may be granted to create one lot smaller than specified in the scheme if all of the following are met:

- The lot to be subdivided is in more than one zone and cannot comply with the minimum lot area specified in the scheme.
- The proposed subdivision does not create lots where any lot extends into more than one zone. This does not apply to any lots created for the following purposes:
  - To comply with the requirements of the Urban Floodway Zone or Flood Management Zone.
  - To provide access to a road.
- The remainder of the proposed lots must comply with the minimum lot area specified in the scheme.

## 65 DECISION GUIDELINES

28/03/2018
VC145

Because a permit can be granted does not imply that a permit should or will be granted. The responsible authority must decide whether the proposal will produce acceptable outcomes in terms of the decision guidelines of this clause.

## 65.01 APPROVAL OF AN APPLICATION OR PLAN

09/12/2021
VC204

Before deciding on an application or approval of a plan, the responsible authority must consider, as appropriate:

- The matters set out in section 60 of the Act.
- Any significant effects the environment, including the contamination of land, may have on the use or development.
- The Municipal Planning Strategy and the Planning Policy Framework.
- The purpose of the zone, overlay or other provision.
- Any matter required to be considered in the zone, overlay or other provision.
- The orderly planning of the area.
- The effect on the environment, human health and amenity of the area.
- The proximity of the land to any public land.
- Factors likely to cause or contribute to land degradation, salinity or reduce water quality.
- Whether the proposed development is designed to maintain or improve the quality of stormwater within and exiting the site.
- The extent and character of native vegetation and the likelihood of its destruction.
- Whether native vegetation is to be or can be protected, planted or allowed to regenerate.
- The degree of flood, erosion or fire hazard associated with the location of the land and the use, development or management of the land so as to minimise any such hazard.
- The adequacy of loading and unloading facilities and any associated amenity, traffic flow and road safety impacts.
- The impact the use or development will have on the current and future development and operation of the transport system.

This clause does not apply to a VicSmart application.

## 65.02 APPROVAL OF AN APPLICATION TO SUBDIVIDE LAND

15/03/2024
VC256

Before deciding on an application to subdivide land, the responsible authority must also consider, as appropriate:

- The suitability of the land for subdivision.
- The existing use and possible future development of the land and nearby land.
- The availability of subdivided land in the locality, and the need for the creation of further lots.
- The effect of development on the use or development of other land which has a common means of drainage.
- The subdivision pattern having regard to the physical characteristics of the land including existing vegetation.
- The density of the proposed development.
- The area and dimensions of each lot in the subdivision.
- The layout of roads having regard to their function and relationship to existing roads.
- The movement of pedestrians and vehicles throughout the subdivision and the ease of access to all lots.
- The provision and location of reserves for public open space and other community facilities.
- The staging of the subdivision.
- The design and siting of buildings having regard to safety and the risk of spread of fire.
- The provision of off-street parking.
- The provision and location of common property.
- The functions of any owners corporation.
- The availability and provision of utility services, including water, sewerage, drainage, electricity, and, where the subdivision is not a residential subdivision, gas.
- If the land is not sewered and no provision has been made for the land to be sewered, the capacity of the land to treat and retain all sewage and sullage within the boundaries of each lot.
- Whether, in relation to subdivision plans, native vegetation can be protected through subdivision and siting of open space areas.
- The impact the development will have on the current and future development and operation of the transport system.

This clause does not apply to a VicSmart application.

66
14/05/2021
VC198

# REFERRAL AND NOTICE PROVISIONS

## Scope

These provisions set out the kinds of applications which must be referred under section 55 of the Act or for which notice must be given under section 52(1)(c) of the Act. The provisions do not apply to the seeking of advice about an application or where a responsible authority may choose to give notice under another sub-section of section 52(1) of the Act.

These provisions also specify when a plan must be referred under section 8(1)(a) of the *Subdivision Act 1988*.

## Referrals

Applications of the kind listed in Clauses 66.01, 66.02, 66.03 and 66.04 must be referred to the person or body specified as a referral authority in accordance with section 55 of the Act.

Any requirement for referral under this or another clause does not apply if:

- In the opinion of the responsible authority, the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the referral authority, or the referral authority has considered the proposal for which the application is made within the past three months and has stated in writing that it does not object to the granting of the permit for the proposal; or
- The application is for the use or development of land for extractive industry or mining and a copy of a work plan or variation to an approved work plan accompanying the application was given to the referral authority (other than the Head, Transport for Victoria) under section 77TE of the *Mineral Resources (Sustainable Development) Act 1990.*

## Notice

Notice of an application of the kind listed in Clauses 66.05 and 66.06 must be given in accordance with section 52(1)(c) of the Act to the person or body specified as a person or body to be notified.

Any requirement for notice under this or another clause does not apply if, in the opinion of the responsible authority, the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the person or body to be notified.

## 66.01 SUBDIVISION REFERRALS

30/10/2025
VC291

An application of the kind listed in the table below must be referred to the person or body specified as the referral authority. The table below specifies whether the referral authority is a determining referral authority or a recommending referral authority.

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To subdivide land other than:<br>▪ A boundary realignment.<br>▪ The subdivision of an existing building already connected to services.<br>▪ A two lot subdivision.<br>▪ The subdivision of land into lots each containing an existing dwelling or car parking space. | The relevant water, drainage or sewerage authority<br>The relevant electricity supply or distribution authority<br>The relevant gas supply authority only where the subdivision is proposed to connect a lot to a reticulated gas supply system. | Determining referral authority<br>Determining referral authority<br>Determining referral authority |
| To subdivide land outside the metropolitan fire district which creates a road, where the requirements of Clause 56.09-3 are not met. | The relevant fire authority | Determining referral authority |
| To subdivide land if the only access to a lot is over Crown land which has not been reserved or proclaimed as a road. | Minister administering the *Land Act 1958* | Determining referral authority |
| To subdivide land crossed by a gas transmission pipeline or a gas transmission pipeline easement. | The relevant gas supply authority | Determining referral authority |
| To subdivide land within 60 metres of a major electricity transmission line (220 Kilovolts or more) or an electricity transmission easement. | The relevant electricity transmission authority | Determining referral authority |
| To subdivide a heritage place of which all or part is included in the Victorian Heritage Register. | The Executive Director specified in the *Heritage Act 2017* | Determining referral authority |

*Note: A subdivision which does not require referral under Clause 66.01 must be referred if it is listed as a requirement under any other provision of Clause 66.*

## 66.01-1 Mandatory conditions for subdivision permits

20/10/2026
VC317

A permit for subdivision must contain the following conditions:

The owner of the land must enter into an agreement with:

- a telecommunications network or service provider for the provision of telecommunication services to each lot shown on the endorsed plan in accordance with the provider's requirements and relevant legislation at the time; and
- a suitably qualified person for the provision of fibre ready telecommunication facilities to each lot shown on the endorsed plan in accordance with any industry specifications or any standards set by the Australian Communications and Media Authority, unless the applicant can demonstrate that the land is in an area where the National Broadband Network will not be provided by optical fibre.

Before the issue of a Statement of Compliance for any stage of the subdivision under the *Subdivision Act 1988*, the owner of the land must provide written confirmation from:

- a telecommunications network or service provider that all lots are connected to or are ready for connection to telecommunications services in accordance with the provider's requirements and relevant legislation at the time; and
- a suitably qualified person that fibre ready telecommunication facilities have been provided in accordance with any industry specifications or any standards set by the Australian Communications and Media Authority, unless the applicant can demonstrate that the land is in an area where the National Broadband Network will not be provided by optical fibre.

This requirement does not apply to a permit granted to:

- Subdivide land in a rural zone, public land zone, Urban Floodway Zone, Flood Management Zone or Special Use Zone if the responsible authority is satisfied that connection to telecommunication services is not warranted.
- Realign the common boundary between two lots (boundary realignment).
- Subdivide an existing building already connected to telecommunication services.

A permit granted to subdivide land in a manner that does not require referral under Clause 66.01 must contain the following conditions:

- The owner of the land must enter into agreements with the relevant authorities for the provision of water supply, drainage, sewerage facilities, electricity and gas (where it is proposed to be connected) services to each lot shown on the endorsed plan in accordance with the authority's requirements and relevant legislation at the time.
- All existing and proposed easements and sites for existing or required utility services and roads on the land must be set aside in the plan of subdivision submitted for certification in favour of the relevant authority for which the easement or site is to be created.
- The plan of subdivision submitted for certification under the *Subdivision Act 1988* must be referred to the relevant authority in accordance with Section 8 of that Act.

This requirement does not apply to a permit granted to subdivide land into lots each containing an existing dwelling or car parking space.

## 66.01-2 Referrals under the Subdivision Act – certification of plans

15/09/2008
VC49

For the purpose of Section 8(1)(a) of the *Subdivision Act 1988* referral of a plan is required if:

- A referral is required by a permit issued under this scheme. The plan must be referred to the relevant referral authority.
- A plan creates, varies or removes an easement or restriction likely to be of interest to a referral authority. The plan must be referred to the relevant referral authority.
- The only access to a lot on a plan is over Crown land and the Minister administering the *Land Act 1958* has not consented or provision has not been made for a road to be reserved or proclaimed. The plan must be referred to that Minister.
- In the opinion of the Council the plan may affect existing sewerage, water, drainage or other works. The plan must be referred to the referral authority responsible for those works.

## 66.02 USE AND DEVELOPMENT REFERRALS

31/07/2018
VC148

An application of the kind listed in the tables below must be referred to the person or body specified as the referral authority. The tables below specify whether the referral authority is a determining referral authority or a recommending referral authority.

### 66.02-1 Environment Protection Authority Licence

04/05/2022
VC210

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| For a use or development requiring any of the following:<br>▪ A Development Licence or Operating Licence in accordance with Part 4.4 of the *Environment Protection Act 2017*.<br>▪ Amendment of a licence in accordance with Part 4.3 of the *Environment Protection Act 2017*. | Environment Protection Authority | Determining referral authority |

### 66.02-2 Native vegetation

30/10/2025
VC291

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To remove, destroy or lop native vegetation in the Detailed Assessment Pathway as defined in the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025).<br>▪ To remove, destroy or lop native vegetation if a property vegetation plan applies to the site.<br>▪ To remove, destroy or lop native vegetation on Crown land which is occupied or managed by the responsible authority. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) | Recommending referral authority |

### 66.02-3 Cattle feedlot

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use or develop land for a cattle feedlot. | Minister for Agriculture | Determining referral authority |
| | If the site is located within a special water supply catchment area under the *Catchment and Land Protection Act 1994*, the relevant water authority under the *Water Act 1989* and the Secretary to the Department administering the *Catchment and Land Protection Act 1994* | Determining referral authority |
| | If the number of cattle is 5000 or more, the Environment Protection Authority | Determining referral authority |

## 66.02-4 Major electricity line or easement

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To construct a building or construct or carry out works on land within 60 metres of a major electricity transmission line (220 Kilovolts or more) or an electricity transmission easement. | The relevant electricity transmission authority | Determining referral authority |

## 66.02-5 Special water supply catchment area

22/11/2024
VC263

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use, subdivide or consolidate land, to construct a building or construct or carry out works, or to demolish a building or works that are within a declared Special Area classified as a Special Water Supply Catchment Area under the *Catchment and Land Protection Act 1994* and which provides water to a domestic supply.<br><br>This does not apply to an application for a sign, fence, roadworks or unenclosed building or works ancillary to a dwelling. | The relevant water board or water supply authority | Determining referral authority |

## 66.02-6 Timber production

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To use or develop land for timber production by establishing a plantation.<br>▪ To use or develop land for timber production by harvesting timber from native forest, including thinning, if the area of native forest to be subjected to timber production operations is 10 hectares or greater. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) | Determining referral authority |

## 66.02-7 Industry, utility installation or warehouse

14/01/2025
VC237

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To use land for an industry, utility installation or warehouse for a purpose listed in the table to Clause 53.10 with no threshold distance specified or if the threshold distance is not to be met. | Environment Protection Authority | Determining referral authority |
| ▪ To use land for an industry, utility installation or warehouse if any of the following apply:<br>– A fire protection quantity is exceeded under the Dangerous Goods (Storage and Handling) Regulations 2022. | The Victorian WorkCover Authority | Determining referral authority |

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| – A notification is required under the Occupational Health and Safety Regulations 2017.<br>– A licence is required under the Dangerous Goods (Explosives) Regulations 2011.<br>– A licence is required under Dangerous Goods (HCDG) Regulations 2016 and the use is not associated with agriculture. | | |
| ▪ To construct a building or construct or carry out works on land used for an industry, utility installation or warehouse if the area of the buildings and works will increase by more than 25 per cent and any of the following apply:<br>– A fire protection quantity is exceeded under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>– A notification is required under the Occupational Health and Safety Regulations 2017.<br>– A licence is required under the Dangerous Goods (Explosives) Regulations 2011.<br>– A licence is required under the Dangerous Goods (HCDG) Regulations 2016 and the use is not associated with agriculture. | The Victorian WorkCover Authority | Determining referral authority |

## 66.02-8 Extractive industry

22/03/2022
VC219

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To use or develop land for extractive industry. | Secretary to the Department administering the *Heritage Act 2017*.<br>Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |
| ▪ To use or develop land for accommodation in a rural zone if the building or works associated with the accommodation is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Recommending referral authority |
| ▪ To use or develop land for extractive industry on Crown land or land abutting Crown land, other than a government road. | Secretary to the Department administering the *Land Act 1958*, *Crown Land (Reserves) Act 1978*, *National Parks Act 1975* and *Forests Act 1958* | Determining referral authority |

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To use or develop land for extractive industry:<br>– In Special Areas declared under Section 27 of the *Catchment and Land Protection Act 1994*.<br>– On land where the use or development involves the removal or destruction of native vegetation if the total area to be cleared is 10 hectares or greater.<br>– On land which has been identified in this scheme as being subject to high erosion risk or areas identified as being subject to salinity management. | Secretary to the Department administering the *Catchment and Land Protection Act 1994* | Determining referral authority |
| ▪ To use or develop land for extractive industry:<br>– In areas with communities or taxa listed or critical habitat determined under the *Flora and Fauna Guarantee Act 1988*.<br>– On land which has been identified in this scheme as containing sites of flora or fauna significance. | Secretary to the Department administering the *Flora and Fauna Guarantee Act 1988* | Determining referral authority |
| ▪ To use or develop land for extractive industry on land which has been identified in this scheme as flood prone. | Secretary to the Department administering Section 201 of the *Water Act 1989* | Determining referral authority |
| ▪ To use or develop land for extractive industry if the land is intended to be used for land fill at a future date. | Environment Protection Authority | Determining referral authority |
| ▪ To use or develop land for extractive industry:<br>– On land which abuts a local road which intersects with a road declared as a freeway or an arterial road under the *Road Management Act 2004* and if the development is expected to increase traffic movement at the intersection of the local road and the declared road by ten percent or more.<br>– On land which abuts a road declared as a freeway or an arterial road under the *Road Management Act 2004*. This does not apply to a development which generates less than one hundred commercial trips per day, with roadworks at the entrance to the site built in accordance with the requirements of the Head, Transport for Victoria and the declared road is not a freeway. | Head, Transport for Victoria | Determining referral authority |

## 66.02-9 Geothermal energy extraction

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use or develop land for geothermal energy extraction. | Secretary to the Department administering the *Geothermal Energy Resources Act 2005* | Determining referral authority |

## 66.02-10 Greenhouse gas sequestration

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use or develop land for greenhouse gas sequestration. | Secretary to the Department administering the *Greenhouse Gas Geological Sequestration Act 2008* | Determining referral authority |

## 66.02-11 Land use and transport integration

09/12/2021
VC204

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| An application to subdivide land, to construct a building or to construct or carry out works for any of the following:<br>▪ A residential development comprising 60 or more dwellings or lots.<br>▪ A residential building comprising 60 or more lodging rooms.<br>▪ A residential village comprising 60 or more dwellings.<br>▪ A retirement village comprising 60 or more dwellings or lots.<br>▪ A new retail premises of 4000 or more square metres of leasable floor area.<br>▪ An increase of more than 1000 square metres to the leasable floor area of an existing retail premises which is 4000 or more square metres leasable floor area.<br>▪ An office development of 10,000 or more square metres of leasable floor area.<br>▪ A place of assembly comprising 400 or more seats or 600 or more square metres of gross floor area.<br>▪ An education centre.<br>▪ A major sports and recreation facility.<br>▪ Any alteration or development of public transport infrastructure or stops, unless undertaken for the Head, Transport for Victoria.<br>This does not apply to:<br>▪ Buildings and works associated with an existing place of assembly, education centre, major sports and recreation facility or retirement village.<br>▪ A development consistent with an adopted Structure Plan that has been prepared in consultation with and endorsed by the Head, Transport for Victoria. | Head, Transport for Victoria | Determining referral authority |

## 66.02-12 Declared irrigation districts

17/09/2019
VC161

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| An application to use or develop land for a renewable energy facility located within an irrigation district declared under Part 6A of the *Water Act 1989.* | Secretary to the Department administering the *Water Act 1989.* | Recommending referral authority |

## 66.02-13 State transport projects

17/02/2022
VC200

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| An application to which clause 53.21 applies. | The municipal council for the municipal district within which the proposed use or development will be carried out. | Recommending referral authority. |

## 66.02-14 Freeway service centre

20/03/2023
VC229

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use or develop land for a Freeway service centre. | Head, Transport for Victoria | Determining referral authority |

66.03
20/10/2026
VC317

## REFERRAL OF PERMIT APPLICATIONS UNDER OTHER STATE STANDARD PROVISIONS

An application of the kind listed in the table below, where the planning scheme includes the specified clause, must be referred to the person or body specified as the referral authority. The table below specifies whether the referral authority is a determining referral authority or a recommending referral authority.

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| Clause 36.03-5 (PCRZ) | An application for the use or development of an Emergency services facility. | Secretary to the Department of Energy, Environment and Climate Action | Determining referral authority |
| Clause 37.03-5 (UFZ) | An application under the zone within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |
| | An application under the zone outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 37.07-5 (UGZ) | An application under the zone within Metropolitan Melbourne. | Victorian Planning Authority | Determining referral authority |
| | An application under the zone outside Metropolitan Melbourne. | Secretary to the Department administering the *Planning and Environment Act 1987* | Determining referral authority |
| Clause 37.11 (FMZ) | An application under the zone within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |
| | An application under the zone outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 44.02-8 (SMO) | An application under the overlay and any site capability report. | Secretary to the Department of Energy, Environment and Climate Action | Determining referral authority |
| Clause 44.03-6 (FO) | An application under the overlay within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |
| | An application under the overlay outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 44.04-7 (LSIO) | An application under the overlay within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| | An application under the overlay outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 44.05-6 (SBO) | An application under the overlay within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |
| | An application under the overlay outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 44.06-6 (BMO) | An application to construct a building or carry out works associated with a dwelling.<br>This does not apply to a non-habitable outbuilding ancillary to a dwelling that meets the requirements of Table 5 to Clause 53.02-5. | Relevant fire authority | Recommending referral authority |
| | An application to subdivide land. | Relevant fire authority | Recommending referral authority |
| | An application under the overlay other than an application to construct a building or carry out works associated with a dwelling or an application to subdivide land. | Relevant fire authority | Determining referral authority |
| Clause 44.07-6 (SRO) | An application of the kind specified in a schedule to the overlay. | Referral authority specified in a schedule to the overlay | Determining referral authority |
| Clause 44.09 (FMO) | An application under the overlay within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |
| | An application under the overlay outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 45.01-3 (PAO) | An application under the overlay. | Acquiring authority specified in the schedule to the overlay | Determining referral authority |
| Clause 45.07-6 (CLPO) | An application under the overlay. | Head, Transport for Victoria | Determining referral authority |
| Clause 52.05-3 | An application to display an animated or electronic sign within 60 metres of a freeway or arterial road declared under the *Road Management Act 2004.* | Head, Transport for Victoria | Determining referral authority |

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| Clause 52.29-4 | An application to create or alter access to, or to subdivide land adjacent to, a road declared as a freeway or an arterial road under the *Road Management Act 2004*, land owned by the Head, Transport for Victoria for the purpose of a road, or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the acquisition is for the purpose of a road. | Head, Transport for Victoria | Determining referral authority |
| | Any other application under the Clause. | Owner of, or the acquiring authority for, the adjacent land in the Transport Zone 2 or the Public Acquisition Overlay | Determining referral authority |
| Clause 52.32 | An application to amend a permit under section 72 or 97I of the *Planning and Environment Act 1987* for a wind energy facility if the application amends or removes conditions or requirements for operational wind turbine noise. | Environment Protection Authority Victoria | Recommending referral authority |
| Clause 53.24 | An application to which Clause 53.24 applies. | Secretary to the Department of Transport and Planning | Determining referral authority |

## 66.04 REFERRAL OF PERMIT APPLICATIONS UNDER LOCAL PROVISIONS

28/03/2018
VC145

In addition to the referral requirements of Clause 66.01, 66.02 and 66.03, an application of the kind listed in the schedule to this clause must be referred to the referral authority specified in the schedule. The table below specifies whether the referral authority is a determining referral authority or a recommending referral authority.

If a local provision of the scheme specifies a person or body as a referral authority for a kind of application or contains a referral requirement, and that specification or requirement is not included in the schedule to this clause, it is not a referral requirement under section 55 of the Act.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 66.04 REFERRAL OF PERMIT APPLICATIONS UNDER LOCAL PROVISIONS

1.0
14/05/2026
GC148

## Referral of permit applications under local provisions

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| Clause 3.0 of Schedule 3 to Clause 42.01 (ESO) | All Applications | Secretary to the Department of Energy, Environment and Climate Action | Determining referral authority |
| Clause 4.0 of Schedule 6 to Clause 37.01 (SUZ) | Any application within 200 metres of an existing gas pipeline. | Secretary to the Department of Energy, Environment and Climate Action | Determining referral authority |
| Schedule 4 to Clause 37.07 (UGZ) | An application to subdivide land, or construct a building or carry out works (if the application includes 1,000 square metres or more of leasable floor space) on land identified on Figure 6 in the incorporated *Officer Precinct Structure Plan* as 'Officer Town Centre Sub Precinct Plan' where there is no approved Urban Design Framework in place. | Victorian Planning Authority | Determining referral authority |
| Schedule 4 to Clause 37.07 (UGZ) | Application to use land within the 'separation distance' area from the existing HyGain Feeds Mill site at 10-20 Hickson Rd, Officer for Accommodation, Dwelling, Education centre, or Informal outdoor recreation. | Environment Protection Authority | Recommending referral authority |
| Schedule 3 to Clause 37.07 (UGZ) | Application to use land within the 'separation distance' area from the existing HyGain Feeds Mill site at 10-20 Hickson Rd, Officer for Accommodation, Dwelling, Education centre, or Informal outdoor recreation. | Environment Protection Authority | Recommending referral authority |
| Clause 2.0 of Schedule 5 to Clause 37.07 (UGZ) | Any application to subdivide, or construct or carry out works (where the value of those works is in excess of $500,000) on land in the Local Town Centre in the incorporated *Pakenham East Precinct Structure Plan.* | Victorian Planning Authority | Recommending referral authority |
| Schedule 1 to Clause 44.07 (SRO) | An application for any use listed at section 3.0 of the schedule. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| Schedule 1 to Clause 44.07 (SRO) | An application under a zone to use or develop land for extractive industry. | Head, Transport for Victoria | Determining referral authority |
| Schedule 2 to Clause 44.07 (SRO) | An application for any use listed at section 3.0 of the schedule. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990*. | Determining referral authority |
| Schedule 3 to Clause 44.07 (SRO) | An application for any use listed at section 3.0 of the schedule. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |
| Schedule 6 to Clause 37.07 (UGZ) | Application to use land within the 'odour South East Water buffer' area from the existing Pakenham Water Recycling Plant for Convenience shop, Crop raising, Informal outdoor recreation, Service station, or Take away food premises. | South East Water | Recommending referral authority |
| Schedule 6 to Clause 37.07 (UGZ) | Application to use land within the 'O'Connor odour buffer' area from the existing Pakenham Water Recycling Plant for Convenience shop, Crop raising, Informal outdoor recreation, Service station, or Take away food premises. | Environmental Protection Authority | Recommending referral authority |
| Clause 36.04-1 and 36.04-2 | A permit to use land in a Transport Zone or to construct a building or construct or carry out works in a Transport Zone for a Section 2 use if the road is identified as a future arterial road in an approved Precinct Structure Plan. | Head, Transport for Victoria | Recommending referral authority |
| Schedule 7 to Clause 37.07 (UGZ) | An application to subdivide land, construct a building, or construct or carry out works on or within 50 metres of land shown as 'Biodiversity Conversation Strategy (BCS) conservation area' in the incorporated *Officer South (Employment) Precinct Structure Plan*. | Secretary to the Department of Energy, Environment, and Climate Action (as constituted under part 2 of the Conservation, Forests And Lands Act 1987). | Determining referral authority |
| Schedule 3 to Clause 43.03 (IPO) | An application to subdivide land, construct a building, or construct or carry out works on or within 50 metres of land shown as 'Biodiversity | Secretary to the Department of Energy, Environment, and Climate Action (as | Determining referral authority |

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| | Conversation Strategy (BCS) conservation area' in the incorporated *Officer South (Employment) Precinct Structure Plan*. | constituted under part 2 of the Conservation, Forests And Lands Act 1987). | |
| Clause 52.05 | A permit to put up for display an electronic or animated sign within 60m of a road if the road is identified as future arterial road in an approved Precinct Structure Plan. | Head, Transport for Victoria | Recommending referral authority |
| Schedule to Clause 45.12 (SCO9) Victorian Desalination Project – Infrastructure Protection Incorporated Document, Minister for Planning, January 2026 | All applications. | Melbourne Water Corporation | Determining referral authority |
| Schedule to Clause 45.12 (SCO9) Victorian Desalination Project – Infrastructure Protection Incorporated Document, Minister for Planning, January 2026 | All applications. | Secretary to the Department of Energy, Environment and Climate Action | Determining referral authority |
| Clause 52.29 | A permit to create or alter access to a road in a Transport Zone 2 or land in a public acquisition is for a Transport Zone 2 road and to subdivide land adjacent to a road in a Transport Zone 2 or land in a Public Acquisition Overlay if the purpose of the acquisition is for a Transport Zone 2 road if the road is identified in an approved precinct structure plan as a future arterial road. | Head, Transport for Victoria | Recommending referral authority |

## 66.05 NOTICE OF PERMIT APPLICATIONS UNDER STATE STANDARD PROVISIONS

20/10/2026
VC317

Notice of an application of the kind listed in the table below must be given to the person or body specified as a person or body to be notified.

| Clause | Kind of application | Person or body to be notified |
|---|---|---|
| Clause 35.07 | An application to use or develop land for accommodation within one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*. | The owners and occupiers of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*. |
| Clause 45.08-6 | An application to use or subdivide land, or to construct a building or construct or carry out works. | The airport lessee company of Melbourne Airport in accordance with the Commonwealth *Airports Act 1996* |
| Clause 52.09-7 | An application to use or subdivide land or construct a building for accommodation, education centre or hospital:<br>▪ Within an Extractive Industry Interest Area.<br>▪ On land which is within 500 metres of land on which a work plan has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>An application to construct a building or construct or carry out works on land for which a work plan has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>These requirements do not apply to:<br>▪ An application to extend a building or works.<br>▪ An application that is required to be referred to the Secretary of the Department administering the *Mineral Resources (Sustainable Development) Act 1990* under section 55 of the Act. | The Secretary of the Department administering the *Mineral Resources (Sustainable Development) Act 1990* |
| Clause 52.09-7 | An application to use or develop land for accommodation in a rural zone if the building or works associated with the accommodation is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. | The owners and occupiers of land subject to a work authority that has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |

| Clause | Kind of application | Person or body to be notified |
|---|---|---|
| Clause 52.21 | An application to construct, use or illuminate a private tennis court under any provision of this scheme. | The owners and occupiers of adjoining and opposite properties |
| Clause 53.09 | An application to use or develop land to establish a new broiler farm, or to increase the farm capacity of an existing broiler farm, that meets the requirements of a Special Class Broiler Farm or Farm Cluster as specified in the Victorian Code for Broiler Farms 2009. | Environment Protection Authority |
| Clause 67.02-2 | An application which except for the provisions of clause 67.01, would be made to the Minister in accordance with section 96 of the Act. This does not apply to an application:<br>▪ To which the exemption from notice and review in clause 52.31-2 applies.<br>▪ To construct or put up for display a sign.<br>▪ To remove, destroy or lop native vegetation under clause 52.17.<br>▪ If a permit is only required under the Bushfire Management Overlay, Floodway Overlay, Land Subject to Inundation Overlay, Salinity Management Overlay, Special Building Overlay or Flood Management Overlay. | The owners and occupiers of adjoining land<br>The National Trust of Australia (Victoria), if the application relates to land on which there is a building classified by the Trust |
| Clause 67.02-2 | An application to remove, destroy or lop native vegetation under clause 52.17 which, except for the provisions of clause 67.01, would be made to the Minister in accordance with section 96 of the Act. This does not apply if the application must be referred to the Secretary under section 55 of the Act. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) |

## 66.06 NOTICE OF PERMIT APPLICATIONS UNDER LOCAL PROVISIONS

28/03/2018
VC145

In addition to the notice requirements of Clause 66.05, notice of an application of the kind specified in the schedule to this clause must be given to the person or body specified in the schedule. If a local provision of the scheme specifies a notice requirement and that requirement is not included in the schedule to this clause, it is not a notice requirement under Section 52(1)(c) of the Act.

10/06/2021
C254card

# SCHEDULE TO CLAUSE 66.06 NOTICE OF PERMIT APPLICATIONS UNDER LOCAL PROVISIONS

## 1.0

24/04/2026
GC263

## Notice of permit applications under local provisions

| Clause | Kind of application | Person or body to be notified |
|---|---|---|
| Clause 3.0 of Schedule 1 to Clause 42.03 (SLO) | An application to construct a building or construct or carry out works (including a sign). | Emerald Tourist Railway Board |
| Clause 3.0 of Schedule 2 to Clause 42.03 (SLO) | An application to construct a building or construct or carry out works (including a sign). | National Trust |
| Clause 3.0 of Schedule 3 to Clause 42.03 (SLO) | An application to construct a building or construct or carry out works (including a sign). | National Trust |
| Clause 3.0 of Schedule 4 to Clause 42.03 (SLO) | An application to construct a building or construct or carry out works (including a sign). | National Trust |
| Clause 3.0 of Schedule 5 to Clause 42.03 (SLO) | An application to construct a building or construct or carry out works (including a sign). | National Trust |
| Schedule 5 to Clause 37.07 (UGZ) | An application to use land or construct a building or carry out works associated with any of the following uses within the 'high pressure gas transmission pipeline notification zone' depicted on *Plan 10 Utilities* in the incorporated Pakenham East Precinct Structure Plan.<br>▪ Accommodation (other than dwelling)<br>▪ Child care centre<br>▪ Cinema based entertainment facility<br>▪ Corrective institution<br>▪ Education centre<br>▪ Hospital<br>▪ Place of assembly<br>▪ Service station | The licensee and/or operator of the gas transmission pipeline |
| Schedule 7 to Clause 37.07 (UGZ) | An application to use land or construct a building or carry out works associated with any of the following uses within the 'area of consequence and notification' depicted on Plan 13 Utilities in the incorporated *Officer South (Employment) Precinct Structure Plan*<br>▪ Caretaker's house<br>▪ Child care centre | The licensee and/or operator of the gas transmission pipeline |

| Clause | Kind of application | Person or body to be notified |
|---|---|---|
| | ▪ Cinema based entertainment facility<br>▪ Corrective institution<br>▪ Education centre<br>▪ Place of assembly<br>▪ Service station | |
| Schedule 1 to Clause 35.04 (GWZ1) | An application under the zone to use or develop land for extractive industry on land in Schedule 1 to the State Resource Overlay. | The Registered Aboriginal Party of the identified Country as assessed and registered by the Victorian Aboriginal Heritage Council in accordance with the *Aboriginal Heritage Act 2006*. |
| Schedule 1 to Clause 35.06 (RCZ1) | An application under the zone to use or develop land for extractive industry on land in Schedule 1 to the State Resource Overlay. | The Registered Aboriginal Party of the identified Country as assessed and registered by the Victorian Aboriginal Heritage Council in accordance with the *Aboriginal Heritage Act 2006*. |

# 67 LAND OWNED OR PERMIT REQUIRED BY RESPONSIBLE AUTHORITIES

14/09/2021
VC211

## 67.01 EXEMPTIONS FROM SECTION 96(1) AND 96(2) OF THE ACT

24/01/2020
VC160

In accordance with section 6(2)(ka) of the Act, the following classes of use and development are exempted from section 96(1) and 96(2) of the Act:

### Class 1

Use of land for:

Car park, camping and caravan park, community facility (including child care centre, maternal and infant welfare centre, neighbourhood house, place of assembly and toilet block), dwelling, extractive industry, hospital, industry, leisure and recreation, office, residential village, retail premises or service station.

### Class 2

Development of land for:

A Class 1 use, demolition of a building or works, lighting and floodlighting of a recreation facility or building, sign or advertisement or subdivision.

### Class 3

Any other use or development.

## 67.02 NOTICE REQUIREMENTS AND EXEMPTION

14/09/2021
VC211

### 67.02-1 Application

14/09/2021
VC211

This clause applies to an application which, except for the provisions of clause 67.01, would be made to the Minister in accordance with section 96 of the Act.

### 67.02-2 Notice requirements

20/10/2026
VC317

In accordance with section 52(1)(c) of the Act, notice of an application must be given to:

- The owners and occupiers of adjoining land.
- The National Trust of Australia (Victoria), if the application relates to land on which there is a building classified by the Trust.

This does not apply to an application:

- To which the exemption from notice and review in clause 52.31-2 applies.
- To construct or put up for display a sign.
- To remove, destroy or lop native vegetation under clause 52.17.
- If a permit is only required under the Bushfire Management Overlay, Floodway Overlay, Land Subject to Inundation Overlay, Salinity Management Overlay, Special Building Overlay or Flood Management Overlay.

In accordance with section 52(1)(c) of the Act, notice of an application to remove, destroy or lop native vegetation under clause 52.17 must be given to the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).

This does not apply if the application must be referred to the Secretary under section 55 of the Act.

### 67.02-3 Exemption from notice

14/09/2021
VC211

An application to construct or put up for display a sign on land managed, occupied or owned by the responsible authority is exempt from the notice requirement of section 52(1)(a) of the Act.

# 70 OPERATIONAL PROVISIONS

31/07/2018
VC148

This section sets out provisions about the operation, administration and enforcement of this planning scheme, the meaning of terms used in this planning scheme, and other matters.

# 71 OPERATION OF THIS PLANNING SCHEME

31/07/2018
VC148

# 71.01 OPERATION OF THE MUNICIPAL PLANNING STRATEGY

31/07/2018
VC148

## 71.01-1 Municipal Planning Strategy

24/01/2020
VC160

The Municipal Planning Strategy at Clause 02 provides an overview of important local planning issues in an introductory context, sets out the vision for future use and development in the municipality and establishes strategic directions about how the municipality is expected to change through the implementation of planning policy and the planning scheme.

A planning authority must take into account the Municipal Planning Strategy when it prepares an amendment to this planning scheme.

A responsible authority must take into account and give effect to the Municipal Planning Strategy when it makes a decision under this planning scheme.

## 71.01-2 Transitional

03/02/2022
VC199

If this planning scheme includes a Municipal Strategic Statement at Clause 21, the provisions of Clauses 23.01 and 23.02 apply.

# 71.02 OPERATION OF THE PLANNING POLICY FRAMEWORK

31/07/2018
VC148

## 71.02-1 Purpose of the Planning Policy Framework

31/07/2018
VC148

The Planning Policy Framework provides a context for spatial planning and decision making by planning and responsible authorities. The Planning Policy Framework is dynamic and will be built upon as planning policy is developed and refined, and changed as the needs of the community change.

The Planning Policy Framework seeks to ensure that the objectives of planning in Victoria (as set out in section 4 of the Act) are fostered through appropriate land use and development planning policies and practices that integrate relevant environmental, social and economic factors in the interests of net community benefit and sustainable development.

## 71.02-2 Operation

24/01/2020
VC160

The Planning Policy Framework sets out the planning policies that form part of this planning scheme. It comprises Clauses 10 to 19.

A planning policy applies to all land subject to this planning scheme unless the policy specifies otherwise.

A planning policy provides guidance for decision making and can help the community to understand how the responsible authority will consider a proposal.

The consistent application of planning policy over time should achieve a desired outcome.

A planning authority must take into account the Planning Policy Framework when it prepares an amendment to this planning scheme.

A responsible authority must take into account and give effect to the Planning Policy Framework when it makes a decision under this planning scheme. This does not apply to policy guidelines and policy documents.

### Policy guidelines

A planning policy may include policy guidelines. Policy guidelines indicate how objectives can be met and how strategies can be implemented.

A responsible authority must take a relevant policy guideline into account when it makes a decision under this planning scheme, but is not required to give effect to it. If the responsible authority is satisfied that an alternative approach meets the objective, the alternative may be considered.

### Policy documents

A planning policy may include reference to a policy document. A policy document may be an incorporated, background and other document.

A background document listed in the table or the schedule to Clause 72.08 that applies to Clauses 10 to 19 is a policy document for applicable planning policies.

## 71.02-3 Integrated decision making

20/10/2026
VC317

Victorians have various needs and expectations such as land for settlement, protection of the environment, economic wellbeing, various social needs, proper management of resources and infrastructure. Planning aims to meet these needs and expectations by addressing aspects of economic, environmental and social wellbeing affected by land use and development.

The Planning Policy Framework operates together with the remainder of the scheme to deliver integrated decision making. Planning and responsible authorities should endeavour to integrate the range of planning policies relevant to the issues to be determined and balance conflicting objectives in favour of net community benefit and sustainable development for the benefit of

present and future generations. However, in bushfire affected areas, and areas subject to high, very high and extreme flood risk, planning and responsible authorities must prioritise the protection of human life over all other policy considerations.

Planning authorities should identify the potential for regional impacts in their decision making and coordinate strategic planning with their neighbours and other public bodies to achieve sustainable development and effective and efficient use of resources.

## 71.02-4 Transitional

31/07/2018
VC148

If this planning scheme includes a Municipal Strategic Statement at Clause 21 and local planning policies at Clause 22, the provisions of Clauses 23.01, 23.02 and 23.03 apply. To the extent of any inconsistency, Clauses 23.02 and 23.03 prevail over this clause.

## 71.03 OPERATION OF ZONES

31/07/2018
VC148

In each zone and schedule to a zone which contains a table of uses, the controls over the use of land are divided into three sections.

### 71.03-1 Section 1 uses

31/07/2018
VC148

A use in Section 1 does not require a permit. Any condition opposite the use must be met. If the condition is not met, the use is in Section 2 and requires a permit unless the use is specifically included in Section 3 as a use that does not meet the Section 1 condition.

### 71.03-2 Section 2 uses

31/07/2018
VC148

A use in Section 2 requires a permit. Any condition opposite the use must be met. If the condition is not met, the use is prohibited.

#### Making decisions about Section 2 uses

Because a use is in Section 2 does not imply that a permit should or will be granted. The responsible authority must decide whether the proposal will produce acceptable outcomes in terms of the Municipal Planning Strategy, the Planning Policy Framework, the purpose and decision guidelines of the zone and any of the other decision guidelines in Clause 65.

### 71.03-3 Section 3 uses

31/07/2018
VC148

A use in Section 3 is prohibited.

## 71.04 OPERATION OF OVERLAYS

31/07/2018
VC148

If an overlay is shown on the planning scheme map, the provisions of the overlay apply in addition to the provisions of the zone and any other provision of this scheme.

Because a permit can be granted does not imply that a permit should or will be granted. The responsible authority must decide whether the proposal will produce acceptable outcomes in terms of the Municipal Planning Strategy, the Planning Policy Framework, the purpose and decision guidelines of the overlay and any of the other decision guidelines in Clause 65.

## 71.05 OPERATION OF PARTICULAR PROVISIONS

31/07/2018
VC148

The requirements of particular provisions apply to the specified categories of use and development and other matters in addition to any provisions which apply due to any other provision of this planning scheme.

# 71.06 OPERATION OF VICSMART APPLICATIONS AND PROCESS

31/07/2018
VC148

## 71.06-1 VicSmart applications

16/10/2025
VC288

Any provision of this planning scheme may specify:

- Classes of application that are VicSmart applications to which clause 71.06 applies.
- Information and other requirements for each class of VicSmart application.
- Decision guidelines for each class of VicSmart application.

An application is a VicSmart application if all of the following requirements are met:

- The application is in a class or classes specified in a provision of this planning scheme.
- A permit is required only under the provisions of this planning scheme that are specified as a VicSmart application, and not under any other provision of this planning scheme.
- Nothing authorised by the grant of a permit would result in a breach of a registered restrictive covenant.
- If the application requires referral to a referral authority under clause 66, the referral requirements in clause 71.06-2 are met.

## 71.06-2 VicSmart process

26/10/2026
VC305

Despite any other provision of this planning scheme:

- A VicSmart application is exempt from the requirements of the Act and planning scheme specified in this clause.
- The responsible authority must assess a VicSmart application in accordance with the requirements of this clause.

If there is any inconsistency between the requirements of this clause and another provision of this planning scheme, this clause prevails.

### Referral requirements

If an application requires referral to a referral authority under clause 66:

- The application must have been considered by the referral authority within the past 3 months of the application being made to the responsible authority.
- The referral authority must have stated in writing that it does not object to the granting of the permit for the proposal.

### Information requirements

A VicSmart application must be accompanied by the information requirements specified for the relevant class of application. The information requirements of the relevant zone, overlay or particular provision, other than those specified for VicSmart applications, do not apply unless the information requirements for the relevant class of application specify otherwise.

If in the opinion of the responsible authority an information requirement is not relevant to the evaluation of a VicSmart application, the responsible authority may waive or reduce the information requirement.

### Exemption from notice and review

A VicSmart application is exempt from:

- The notice requirements of section 52(1)(a), (b), (c) and (d) of the Act.
- The decision requirements of section 64(1), (2) and (3) of the Act.
- The review rights of section 82(1) of the Act.

### Matters to be considered

In deciding a VicSmart application, the responsible authority:

- Must only consider:
  - The decision guidelines and requirements specified for the relevant class of application.
  - The following requirements that would otherwise be applicable to an application if it were not a VicSmart application:
    - A public open space requirement in clause 53.01 or clause 43.06-8 or a schedule to those clauses.
    - A minimum garden area requirement and a maximum building height requirement in a residential zone or a schedule to a residential zone.
    - A requirement in clause 45.13 or clause 53.06 or a schedule to those clauses.
- Is exempt from considering the following matters:
  - The requirements of section 60(1)(b), (c), (e) and (f) and (1A) (b) to (h) and (j) of the Act.
  - The Municipal Planning Strategy and Planning Policy Framework unless the decision guidelines for the relevant class of application specify otherwise.
  - The decision guidelines of the relevant zone, overlay or particular provision, other than those specified for VicSmart applications, unless the decision guidelines for the relevant class of application specify otherwise.
  - The decision guidelines in clause 65.
- In deciding an application for review in relation to a VicSmart application, the Tribunal is exempt from the matters specified in section 84B(2)(b) to (g) and (i) to (ja) of the Act.

### Decision guidelines

Before deciding a VicSmart application, the responsible authority must consider the decision guidelines specified for the relevant class of application unless in the opinion of the responsible authority a decision guideline is not relevant to the evaluation of the application.

Before deciding a VicSmart application to which clause 55 applies, the responsible authority must, if a standard in clause 55 is not met, consider the decision guidelines for the corresponding objective.

Before deciding a VicSmart application to which clause 54 applies, the responsible authority must, if a standard in clause 54 is not met, consider the decision guidelines for the corresponding objective.

# 72 ADMINISTRATION AND ENFORCEMENT OF THIS PLANNING SCHEME

31/07/2018
VC148

## 72.01 RESPONSIBLE AUTHORITY FOR THIS PLANNING SCHEME

17/09/2019
VC161

The responsible authority for the administration and enforcement of this planning scheme or a provision of this planning scheme is specified in this clause and the schedule to this clause.

The person nominated under section 198(1)(a) of the Act or the responsible authority under section 198(1)(b) of the Act, to whom a person may apply for a planning certificate, is specified in the schedule to this clause.

### 72.01-1 Minister is responsible authority

04/07/2025
VC258

The Minister for Planning is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and endorsement of, approval of or being satisfied with matters required by a permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority, in relation to the use and development of land for a:

- Energy generation facility with an installed capacity of 1 megawatt or greater.
- Utility installation used to:
  - Transmit or distribute electricity.
  - Store electricity if the installed capacity is 1 megawatt or greater.
- Industry to manufacture hydrogen gas with a minimum production capacity of 410 kilograms of hydrogen per day, and any land use or development in conjunction with this use.
- Primary school or secondary school, or education centre that is ancillary to, carried out in conjunction with, and on the same land or contiguous land in the same ownership as, a primary school or secondary school, if any of the following apply:
  - There is no existing primary school or secondary school on the land.
  - The estimated cost of development is $3 million or greater.
- Primary school or secondary school for which an application was made to the Minister for Planning prior to the approval date of Amendment VC180.
- A use or development, other than the subdivision of land, carried out by or on behalf of the Head, Transport for Victoria or the Secretary to the Department of Transport and Planning.
- Use and development to which clause 52.20 applies.
- Development of 10 or more dwellings to which clause 53.20 applies.
- Construction or extension of an apartment development to which clause 53.20 applies.
- Construction or extension of a dwelling in or forming part of an apartment development to which clause 53.20 applies.
- Use or development to which clause 53.25 applies.

with the exception of the following:

- in relation to applications lodged, or permits issued, for the use and development of land for an energy generation facility (other than a renewable energy facility) or a utility installation (other than a utility installation used to store, transmit or distribute electricity generated by a renewable energy facility with an installed capacity of 1 megawatt or greater), under Division 1 of Part 4 of the Act prior to the approval date of Amendment VC192 , the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.

- in relation to permits for the use and development of land for a wind energy facility issued prior to 2 April 2015 under Division 1 of Part 4 of the Act, the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to permits for the use and development of land for a wind energy facility issued prior to 2 April 2015 under Division 6 of Part 4 of the Act, the Council is the responsible authority for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority, subject to the operation of section 97H of the Act.
- in relation to applications lodged, or permits issued, for the use and development of land for a renewable energy facility (other than a wind energy facility) under Division 1 of Part 4 of the Act prior to the approval date of Amendment VC161, the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to applications lodged, or permits issued, for the use and development of land for a utility installation used to store, transmit or distribute electricity generated by a renewable energy facility, under Division 1 of Part 4 of the Act prior to the approval date of Amendment VC161, the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to an application made, or permit issued, for the use or development of land by the Head, Transport for Victoria or the Secretary to the Department of Transport and Planning, under Division 1 of Part 4 of the Act prior to the approval date of Amendment VC200, the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to an application made, or permit issued, under Division 1 of Part 4 of the Act for the use and development of land for a primary school, secondary school, or education centre that is ancillary to, carried out in conjunction with, and on the same land or contiguous land in the same ownership as, a primary school or secondary school:
  - prior to the approval date of Amendment VC180; and
  - where clause 53.19 immediately in force before the approval date of Amendment VC180 did not apply,

  the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to the use and development of land for a primary school, secondary school, or education centre that is ancillary to, carried out in conjunction with, and on the same land or contiguous land in the same ownership as, a primary school or secondary school, the Council is the responsible authority for matters required:
  - by clause 43.04 Development Plan Overlay to be done to the satisfaction of the responsible authority;
  - under Part 6 of the Act.

The Minister for Planning is the responsible authority for the following matters where clause 53.22 or 53.23 applies:

- matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act;

- matters under Division 2 of Part 9 of the Act where required under a permit in relation to the provision of the affordable housing contribution; and
- endorsement of, approval of or being satisfied with matters required by a permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.

11/10/2018
GC96

# SCHEDULE TO CLAUSE 72.01 RESPONSIBLE AUTHORITY FOR THIS PLANNING SCHEME

## 1.0 Responsible authority for administering and enforcing this planning scheme:

31/07/2018
VC148

The Cardinia Shire Council is the responsible authority for administering and enforcing the planning scheme, except for matters specified in Clause 72.01-1 and matters listed in this schedule.

## 2.0 Responsible authority for administering and enforcing a provision of this planning scheme:

03/11/2023
GC221

The Minister for Planning is the responsible authority for the purposes of s171 of the *Planning and Environment Act 1987* for the land at Lawsons Road Reserve, Emerald, Volume 9960 Folio 772, Volume 9960 Folio 773, Volume 9960 Folio 774.

The Minister for Planning is the responsible authority for administering and enforcing:

- Clause 51.01 of the planning scheme in respect of the Victorian Desalination Project Incorporated Document (June 2009).
- Any other provision of the planning scheme as it applies to the use or development of land authorised by the State under an agreement between the State and the entity appointed to undertake the Victorian Desalination Project.
- Clause 51.01 of the scheme in respect of the Melbourne Metro Rail Project: Upgrades to the Rail Network Incorporated Document (May 2018).
- Any other provision of the scheme as it applies to the use or development of land for the Melbourne Metro Rail Project: Upgrades to the Rail Network.

The Minister for Planning is the responsible authority for administering and enforcing Clause 52.17 of the planning scheme in relation to the development of land in the Cardinia Reservoir Park, Emerald, for the Desalinated Water Integration Project.

## 3.0 Person or responsible authority for issuing planning certificates:

31/07/2018
VC148

Minister for Planning.

## 4.0 Responsible authority for VicSmart and other specified applications:

22/09/2023
VC243

The Chief Executive Officer of the Cardinia Shire Council is the responsible authority for considering and determining VicSmart applications to which Clause 71.06 applies, in accordance with Divisions 1, 1A, 2 and 3 of Part 4 of the Act.

The Chief Executive Officer of the Cardinia Shire Council is the responsible authority for considering and determining applications to which Clause 53.24 applies, in accordance with Divisions 1, 1A, 2 and 3 of Part 4 of the Act.

The Chief Executive Officer of the Cardinia Shire Council is the responsible authority for considering and determining any application that the notice and review exemption in Clause 52.10-2 applies to, in accordance with Divisions 1, 1A, 2 and 3 of Part 4 of the Act.

## 72.02 WHAT AREA IS COVERED BY THIS PLANNING SCHEME?

31/07/2018
VC148

This planning scheme applies to the municipal district or other area specified in the schedule to this clause.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 72.02 WHAT AREA IS COVERED BY THIS PLANNING SCHEME?

## 1.0 Area covered by this planning scheme:

31/07/2018
VC148

The municipal district of the Shire of Cardinia.

## 72.03 WHAT DOES THIS PLANNING SCHEME CONSIST OF?

31/07/2018
VC148

This planning scheme consists of this document, any maps specified in the schedule to this clause, and any document incorporated in the scheme in accordance with the Act. A document is not incorporated in this scheme by reason only that it is referred to in the scheme.

This document consists of State standard provisions and local provisions. Local provisions are:

- If included in this planning scheme:
  - Clause 02 (Municipal Planning Strategy).
  - Clause 21 (Municipal Strategic Statement).
  - Clause 22 (Local Planning Policies).
- All clauses in the Planning Policy Framework that include the letter 'L' in the clause number.
- All schedules to zones, overlays, particular provisions, general provisions and operational provisions.

All other provisions are State standard provisions.

Maps specified in the schedule to this clause show how land is zoned and whether land is affected by an overlay. This information is indicated by a letter and/or number code that is explained on each map.

*Note: A clause numbered '11.01-1L' would be an example of a local provision in the Planning Policy Framework. 'C1Z' is an example of a code on a map that may be specified in the schedule to this clause. It stands for 'Commercial 1 Zone'.*

29/10/2018
GC103

# SCHEDULE TO CLAUSE 72.03 WHAT DOES THIS PLANNING SCHEME CONSIST OF?

## 1.0 Maps comprising part of this planning scheme:

14/05/2026
GC148

Zoning and overlay maps:

- 1, 1ESO, 1BMO
- 2, 2ESO, 2SLO, 2HO, 2LSIO, 2BMO, 2DDO, 2VPO
- 3, 3ESO, 3HO, 3LSIO, 3IPO, 3BMO
- 4, 4ESO, 4BMO
- 5, 5ESO, 5VPO, 5SLO, 5DDO, 5RO, 5BMO, 5HO
- 6, 6ESO, 6VPO, 6SLO, 6HO, 6DDO, 6DPO, 6RO, 6BMO
- 7, 7ESO, 7VPO, 7SLO, 7HO, 7DDO, 7RO, 7BMO
- 8, 8ESO, 8VPO, 8HO, 8DDO, 8FO, 8LSIO, 8RO, 8BMO, 8RXO
- 9, 9ESO, 9VPO, 9SLO, 9HO, 9DDO, 9EMO, 9FO, 9LSIO, 9RO, 9BMO
- 10, 10ESO, 10VPO, 10SLO, 10LSIO, 10HO, 10DDO, 10BMO
- 11, 11SLO, 11DPO, 11ESO, 11HO, 11FO, 11LSIO, 11PAO, 11DCPO, 11RO, 11BMO, 11SCO, 11IPO, 11EAO, 11ICO
- 12,12ESO,12VPO,12HO,12DDO,12DPO, 12FO, 12PAO, 12BMO, 12LSIO, 12DCPO, 12SCO
- 13, 13HO, 13DPO, 13PAO, 13DCPO, 13LSIO, 13PO
- 14, 14ESO, 14VPO, 14SLO, 14HO, 14DDO, 14DPO, 14FO, 14LSIO, 14SBO, 14PAO, 14DCPO, 14BMO, 14SCO, 14PO
- 15, 15ESO, 15VPO, 15HO, 15DDO, 15DPO, 15EAO, 15FO, 15LSIO, 15SBO, 15PAO, 15DCPO, 15BMO, 15PO, 15ICO
- 16,16HO, 16DPO,16FO,16LSIO,16SBO,16PAO, 16DCPO, 16SCO, 16IPO, 16ICO
- 17, 17VPO, 17HO, 17DDO, 17EAO, 17FO, 17LSIO, 17PAO, 17DCPO, 17DPO, 17PO, 17SCO, 17ICO, 17IPO
- 18, 18ESO, 18VPO, 18HO, 18DDO, 18EAO, 18FO, 18LSIO, 18PAO, 18EAO, 18BMO, 18SCO, 18ICO
- 19, 19ESO, 19VPO, 19LSIO, 19HO, 19DDO, 19SCO
- 20, 20ESO, 20HO, 20DDO, 20DPO, 20FO, 20LSIO, 20PAO, 20RO, 20BMO, 20SCO
- 21, 21ESO, 21VPO, 21HO, 21DDO, 21LSIO, 21BMO, 21SCO
- 22, 22ESO, 22VPO, 22HO, 22DDO, 22DPO, 22LSIO, 22PAO, 22RO, 22BMO, 22SCO
- 23, 23ESO, 23VPO, 23HO, 23DDO, 23FO, 23LSIO, 23RO, 23BMO, 23SCO
- 24, 24ESO, 24VPO, 24HO, 24DDO, 24LSIO, 24RO, 24DPO, 24BMO, 24SCO
- 25, 25ESO, 25VPO, 25HO, 25DDO, 25FO, 25LSIO, 25SCO
- 26, 26ESO, 26SLO, 26HO, 26FO, 26LSIO, 26PAO, 26DPO, 26SCO, 26DDO
- 27, 27HO, 27FO, 27LSIO, 27PAO, 27EAO, 27DPO, 27SCO, 27DDO
- 28, 28VPO, 28HO, 28DDO, 28FO, 28LSIO, 28RO
- 29, 29ESO, 29SLO, 29HO, 29FO, 29LSIO, 29RO, 29BMO, 29SRO
- 30, 30DDO, 30ESO, 30SLO, 30HO, 30FO, 30LSIO, 30PAO, 30BMO, 30SCO, 30SRO

- 31, 31DDO, 31DPO, 31ESO, 31HO, 31LSIO, 31RXO, 31SLO, 31VPO, 31BMO, 31SRO

## 72.04 INCORPORATED DOCUMENTS

18/12/2025
VC277

The documents listed in the table and the schedule to this clause are incorporated documents under section 6(2)(j) of the *Planning and Environment Act 1987*.

An incorporated document forms part of this planning scheme.

If a document is not listed in the table or the schedule, it is not an incorporated document.

A document is not incorporated in this planning scheme by reason only that it is referred to in the scheme.

*Note: Clause 72.08 contains a list of background documents relevant to this planning scheme. A background document does not form part of the planning scheme.*

### Table to Clause 72.04

| Name of document | Introduced by: |
|---|---|
| *A 'Good Neighbour' Code of Practice for a Circus or Carnival* (Department of Infrastructure, October 1997) | NPS1 |
| *Apiary Code of Practice* (Department of Planning and Community Development, May 2011) | VC81 |
| *Australian Standard AS/NZS 2890.1:2004, Parking Facilities - Off-street Car Parking* (Standards Australia, 2004) | VC26 |
| *Australian Standard AS2890.3:2015, Parking Facilities Part 3: Bicycle Parking* (Standards Australia, 2015) | VC237 |
| *Building in Bushfire-Prone Areas* (Publication SAA HB36-1993, CSIRO & Standards Australia, May 1993) | NPS1 |
| *Car Parking Requirement Maps* (Department of Transport and Planning, December 2025) | VC277 |
| *Code of Practice for Bushfire Management on Public Land* (Department of Sustainability and Environment, June 2012) | VC101 |
| *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022) | VC229 |
| *Design Vehicles and Turning Path Templates* (Publication AP-34/95, Austroads, 1995) | VC12 |
| *Guide to Residential Streets and Paths* (Publication C&CCA T51-2004, Cement and Concrete Association of Australia, 2004) | VC26 |
| *Guide to Road Design, Part 6A: Pedestrian and Cycle Paths* (Austroads, 2021) | VC77 |
| *Guidelines for the Removal, Destruction or Lopping of Native Vegetation* (Department of Energy, Environment and Climate Action, 2025) | VC291 |
| *Industrial and Commercial Land Classifications* (Department of Transport and Planning, July 2025) | VC283 |
| *North Growth Corridor Plan* (Victorian Planning Authority, August 2012) | VC283 |
| *Local Government Planning Guide for Dry Land Salinity*(Department Conservation and Natural Resources, October 1995) | NPS1 |
| *Pavement Design - A Guide to the Structural Design of Road Pavements* (Austroads, 1992) | VC12 |
| *Planning Requirements for Racing Dog Keeping and Training* (Department of Environment, Land, Water and Planning, August 2017) | VC139 |
| *Principal Public Transport Network 2017* (Victorian Government, 2017) | VC132 |
| *Principal Public Transport Network Area Maps* (Victorian Government, August 2018) | VC151 |

| Name of document | Introduced by: |
|---|---|
| *Private Tennis Court Development Code of Practice* (Revision 1, Department of Infrastructure, March 1999) | VC5 |
| *South East Growth Corridor Plan* (Victorian Planning Authority, August 2012) | VC283 |
| *Sunbury Growth Corridor Plan* (Victorian Planning Authority, June 2012) | VC283 |
| *Victorian Code for Broiler Farms 2009 - Plus 2018 amendments* (Department of Primary Industries, 1999) | VC60 |
| *Victorian Code for Cattle Feedlots* (Department of Agriculture, Energy and Minerals, August 1995) | NPS1 |
| *Victorian Low Density Mobile Outdoor Poultry Farm Planning Permit Guidelines* (Department of Economic Development, Jobs, Transport and Resources, June 2018) | VC150 |
| *Victorian Low Density Mobile Outdoor Pig Farm Planning Permit Guidelines* (Department of Economic Development, Jobs, Transport and Resources, June 2018) | VC150 |
| *West Growth Corridor Plan* (Victorian Planning Authority, August 2012) | VC283 |

15/01/2024
VC249

# SCHEDULE TO CLAUSE 72.04 INCORPORATED DOCUMENTS

## 1.0 Incorporated documents

28/08/2026
C289card

| Name of document | Introduced by: |
|---|---|
| Comprehensive Development Plans | |
| *Pakenham West Comprehensive Development Plan* (Cardinia Shire Council, September 2005) | C82 |
| *Former Pakenham Racecourse Comprehensive Development Plan* (Cardinia Shire Council, February 2010) | C141 |
| Precinct Structure Plans and Native Vegetation Precinct Plans | |
| *Cardinia Road Precinct Structure Plan* (Cardinia Shire Council, September 2008) | C92 |
| *Cardinia Road Employment Precinct Structure Plan (including the Cardinia Road Employment Precinct Native Vegetation Precinct Plan)* (Cardinia Shire Council, September 2010) | C130 |
| *Officer Precinct Structure Plan* (Cardinia Shire Council, September 2011, Amended November 2019) | C232card |
| *Officer Native Vegetation Precinct Plan* (Cardinia Shire Council, September 2011) | C149 |
| *Officer South (Employment) Precinct Structure Plan* (Victorian Planning Authority, November 2024) | C274card |
| *Pakenham East Precinct Structure Plan* (Victorian Planning Authority, July 2020) | C234card |
| *Pakenham East Native Vegetation Precinct Plan* (Ecology and Heritage Partners, October 2018) | C234card |
| *Pakenham South Employment Precinct Structure Plan*(Cardinia Shire Council, July 2021) | C265card |
| Development Contributions Plans and Infrastructure Contributions Plans | |
| *Pakenham Township Development Contributions Plan* (Cardinia Shire Council, December 2023) | VC249 |
| *Cardinia Road Precinct Development Contributions Plan* (Urban Enterprise, December 2023) | VC249 |
| *Glismann Road Development Contributions Plan*(Urban Enterprise, December 2023) | VC249 |
| *Officer Development Contributions Plan* (Cardinia Shire Council and Urban Enterprise, December 2023) | VC249 |
| *Officer South (Employment) Infrastructure Contributions Plan* (Victorian Planning Authority, November 2024) | C274card |
| *Pakenham East Infrastructure Contributions Plan* (Victorian Planning Authority, July 2020) | C251card |
| *Pakenham South Employment Infrastructure Contributions Plan* (Cardinia Shire Council, May 2023) | C265card |
| Major Infrastructure Projects | |
| *Caulfield Dandenong Rail Upgrade Project Incorporated Document* (Department of Economic Development, Jobs, Transport and Resources, April 2016) | GC37 |
| *Gippsland Line Upgrade - Corridor Works Incorporated Document* (Department of Transport, November 2019) | GC124 |
| *Healesville-Koo Wee Rup Road (Princes Freeway and Manks Road) Upgrade Project Incorporated Document* (Major Roads Projects Victoria, December 2019) | GC158 |
| *Healesville – Koo Wee Rup Road – Stage 1A (Koo Wee Rup Bypass) – Incorporated Document* (Roads Corporation, September 2012) | C150 |

| Name of document | Introduced by: |
|---|---|
| *Monash Freeway Upgrade Project Incorporated Document* (Roads Corporation, March 2016) | GC47 |
| *Monash Freeway Upgrade Project (Stage 2) Incorporated Document* (Major Roads Project Authority, August 2018) | GC103 |
| *Melbourne Metro Rail Project: Upgrades to the Rail Network Incorporated Document* (Department of Economic Development, Jobs, Transport and Resources, May 2018) | GC96 |
| *Victorian Desalination Project Incorporated Document* (Department of Sustainability and Environment, June 2009) | C131 |
| *Victorian Desalination Project – Infrastructure Protection* (Minister for Planning, January 2026) | GC148 |
| Township Strategies | |
| *Bunyip Township Strategy* (Cardinia Shire Council, Adopted September 2009) | C124 |
| *Cockatoo Township Strategy* (Cardinia Shire Council, Adopted March 2008) | C124 |
| *Emerald District Strategy* (Cardinia Shire Council, Adopted June 2009) | C124 |
| *Gembrook Township Strategy* (Cardinia Shire Council, Adopted June 2011) | C167 |
| *Lang Lang Township Strategy* (Cardinia Shire Council, Adopted July 2009) | C124 |
| *Upper Beaconsfield Township Strategy* (Cardinia Shire Council, Aopted July 2009) | C124 |
| Site Specific Controls | |
| Officer Town Centre Civic Office Development Incorporated Document, June 2011 | C158 |
| Pakenham East Train Maintenance Depot Incorporated Document, March 2016 | C210 |
| Puffing Billy Railway Discovery Centre Incorporated Document, August 2018 | C243 |
| Site Specific Control – Bessie Creek Road, Nar Nar Goon, October 2014 | C202 |
| Site Specific Control - Lot 1 PS301568Q No. 322 Brown Road, Officer. September 2014 | C197 |
| Site specific control - Lot 3 LP90591, 20 Split Rock Road, Beaconsfield Upper, October 2014 | C203 |
| Site Specific Control – Lot 9 LP65205, 22-30 Downey Road, Dewhurst, October 2011 | C165 |
| Site specific control – Lots 1-3 LP 41796, 100 Beaconsfield-Emerald Road, Beaconsfield, December 2008 | C111 |
| Site specific control - 16 Beaconsfield-Emerald Road, Emerald (Lot 1 PS 702042V) July 2015 | C206 |
| Site Specific Control CA 51A, 335 McGregor Road, Pakenham, February 2017 | C224 |
| Site specific control CA85, 8 Drake Court, Bunyip September 2013 | C72 |
| Site specific control under the Schedule to Clause 52.03 of the Cardinia Planning Scheme Lot B PS443268J Dixons Road, Cardinia February 2008 | C105 (Part 2) |
| Plans Incorporated at Clause 43.01 | |
| Cardinia Commercial Heritage Precincts Permit Exemptions, December 2020 | C283card |
| Cardinia Local Heritage Study Review, Volume 3: Heritage Place and Precinct citations - Revised December 2020 (Context, December 2020) | C249card |
| Cardinia Residential Heritage Precincts Incorporated Plan (Amended August 2019) | C242card |
| Maryknoll Township Heritage Precincts Incorporated Plan | C237card |

| Name of document | Introduced by: |
|---|---|
| *Jesmond Dene, 425 Officer South Road, Officer South, Statement of Significance*(Cardinia Shire Council, June 2024) | c274card |
| *Eucalyptus dalrympleana, 185 Mountain Road, Gembrook, Statement of Significance* (Cardinia Shire Council, October 2022) | C270card |
| *Sequoia sempervirens, 4 Dewhurst Road, Emerald, Statement of Significance* (Cardinia Shire Council, October 2022) | C270card |
| *Sequoia sempervirens, 44 Beaconsfield-Emerald Road, Emerald, Statement of Significance* (Cardinia Shire Council, October 2022) | C270card |
| *Fagus sylvatica, 8 Benson Street, Emerald, Statement of Significance* (Cardinia Shire Council, October 2022) | C270card |
| *Quercus robur, Cochranes Park, Rossiter Road, Koo Wee Rup, Statement of Significance* (Cardinia Shire Council, October 2022) | C270card |
| *Angophora costata, 79 Emerald Monbulk Road, Emerald, Statement of Significance* (Cardinia Shire Council, October 2022) | C270card |
| *Eucalyptus sieberi, 45 Mentiplay Road, Gembrook, Statement of Significance* (Cardinia Shire Council, October 2022) | C270card |
| *Windarra, 40 Greenhills Road Pakenham, Incorporated Plan* (Cardinia Shire Council, July 2021) | C265card |
| *Windarra, 40 Greenhills Road Pakenham, Statement of Significance* (Cardinia Shire Council, July 2021) | C265card |
| Restructure Plans | |
| *Cardinia Shire Council - Subdivision Restructure Plans* (Cardinia Shire Council, January 2002) | |
| *Cardinia Shire Council Subdivision Restructure Plan, 36-38 Beaconsfield-Emerald Road, Upper Beaconsfield* (Cardinia Shire Council, February 2016) | C188 |
| *Cardinia Shire Council Subdivision Restructure Plan - 440, 445, 447, 460, 462-464 and 466 Bayles-Cora Lynn Road, 455 and 465 Bunyip River Road and 710 Nine Mile Road, Cora Lynn* (Cardinia Shire Council, October 2011) | C146 |
| Other | |
| *Cardinia Shire Council Significant Tree Study Volume 2* (John Patrick Pty Ltd, May 2009) | C162 |
| *Sites of Botanical and Zoological Significance Maps* (Department of Natural Resources and Environment, September 1997) | NPS1 |
| *Small Lot Housing Code* (Victorian Planning Authority, November 2019) | C234card |
| *Small Lot Housing Code* (Victorian Planning Authority, November 2024) | GC206 |
| *Officer South Employment Precinct Development Staging* (Department of Transport and Planning, April 2026) | C289card |

## 72.05 WHEN DID THIS PLANNING SCHEME BEGIN?

31/07/2018
VC148

This planning scheme began on the date specified in the schedule to this clause.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 72.05 WHEN DID THIS PLANNING SCHEME BEGIN?

## 1.0 Date this planning scheme began:

31/07/2018
VC148

26 August 1999

## 72.06 EFFECT OF THIS PLANNING SCHEME

31/07/2018
VC148

Land may be used or developed only in accordance with this planning scheme.

Land must not be developed unless the land as developed can be used in accordance with this planning scheme.

If this planning scheme allows a particular use of land, it may be developed for that use provided all requirements of the scheme are met.

## 72.07 DETERMINATION OF BOUNDARIES

31/07/2018
VC148

If a boundary in this planning scheme is not precisely shown on a planning scheme map or is not otherwise defined, the certificate issuing authority must determine the boundary if asked to do so and must notify the applicant within 60 days.

## 72.08 BACKGROUND DOCUMENTS

02/09/2025
VC283

The documents listed in the table and the schedule to this clause are background documents.

A background document may:

- Have informed the preparation of, or an amendment to, this planning scheme.
- Provide information to explain the context within which a provision has been framed.
- Assist the understanding of this planning scheme.

A background document does not form part of this planning scheme.

**Table to Clause 72.08**

| Name of background document | Amendment number - clause reference |
|---|---|
| *Central Highlands Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *G21 Regional Growth Plan* (Geelong Region Alliance, 2013) | VC106<br>Clauses 10 to 19 |
| *Gippsland Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Great South Coast Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Hume Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Loddon Mallee North Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Loddon Mallee South Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Plan for Victoria* (Department of Transport and Planning, February 2025) | VC283<br>Clauses 10 to 19 |
| *Wimmera Southern Mallee Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |

31/07/2018
VC148

# SCHEDULE TO CLAUSE 72.08 BACKGROUND DOCUMENTS

## 1.0 Background documents

18/09/2026
VC313

| Name of background document | Amendment number - clause reference |
|---|---|
| *Advertising Signage Design Guidelines* (Cardinia Shire Council, Adopted 2020) | C264card<br>C15.01-1L-02 |
| *Arts and Cultural Facilities Feasibility Study* (Cardinia Shire Council, June 2015) | C250card |
| *Beaconsfield Structure Plan* (Cardinia Shire Council, December 2013) | C198 and C257card |
| *Cardinia Creek Regional Parklands Future Direction Plan* (Parks Victoria, 2022) | C124<br>Schedule to Clause 74.02 |
| *Cardinia Employment Lands: Stage 1 Assessment* (Macroplan Australia Pty Ltd, March 2007) | C124 |
| *Cardinia Growth Corridor Sports Strategy* (Stratcorp Consulting Pty Ltd, 2005) | C124 |
| *Cardinia Local Heritage Study Review – Volume 1: Executive Summary* (Context Pty Ltd, 2008, revised September 2015) | C124 |
| *Cardinia Local Heritage Study Review – Volume 2: Key Findings & Recommendations* (Context Pty Ltd, 2008, revised September 2015) | C124 |
| *Cardinia Local Heritage Study Review – Volume 3: Heritage Place and Precinct Citations* (Context Pty Ltd, 2008, revised September 2017) | C124 |
| *Cardinia Local Road Strategy*(Cardinia Shire Council, 2004) | C124 |
| *Cardinia Municipal Fire Management Plan* (Cardinia Municipal Emergency Management Planning Committee, 2023) | C271card |
| *Cardinia Shire Council 3rd Airport for Melbourne's Southeast Policy* (Cardinia Shire Council, July 2015, updated March 2017) | C208<br>18.04-1L |
| *Cardinia Shire Council Stormwater Management Plan Volume 1 - Executive Summary* (Cardinia Shire Council, 2002) | C124 |
| *Cardinia Shire Council – Our Council Plan 2021-25* (Cardinia Shire Council, June 2021) | C271card |
| *Cardinia Shire Gambling Harm Prevention and Minimisation Policy* (Cardinia Shire Council, July 2024) | C271card |
| *Cardinia Shire (Emerald & Cranbourne Districts) Heritage Study – Volume 1 Environmental History* (Graeme Butler, 1998) | C124 |
| *Cardinia Shire (Emerald & Cranbourne Districts) Heritage Study – Volume 2 Heritage Places* (Graeme Butler, 1998) | C124 |
| *Cardinia Shire (North) Heritage Study – Volume 1 Heritage Program* (Graeme Butler, 1996) | C124 |
| *Cardinia Shire (North) Heritage Study – Volume 2 Environmental History* (Graeme Butler, 1996) | C124 |
| *Cardinia Shire (North) Heritage Study – Volume 3 Heritage Places* (Graeme Butler, 1996) | C124 |
| *Cardinia Shire Integrated Water Management Plan 2015-2025* (Cardinia Shire Council, September 2015) | C250card |
| *Cardinia Municipal Emergency Management Plan* (Cardinia Shire Council Municipal Emergency Management Committee, 2022) | C271card |
| *Cardinia Shire Pedestrian and Bicycle Strategy Actions Report* (Cardinia Shire Council, 2003) | C124 |

| Name of background document | Amendment number - clause reference |
|---|---|
| *Pedestrian and Bicycle Strategy* (Cardinia Shire Council, August 2017) | C250card<br>18.02-1L, 19.02-6L |
| *Cardinia Shire Sustainable Environment Policy 2018-2028* (Cardinia Shire Council, June 2018) | C250card |
| *Cardinia Shire Tourism Strategy* (Cardinia Shire Council, May 2013) | C250card |
| *Cardinia Shire Waste and Resource Recovery Strategy 2017-2026* (Cardinia Shire Council, December 2017) | C250card |
| *Cardinia Shire's Liveability Plan 2017-29* (Cardinia Shire Council, September 2017, reviewed November 2021) | C250card |
| *Cardinia Township Character Assessment – Garfield, Bunyip, Koo Wee Rup and Lang Lang* (Cardinia Shire Council, November 2006) | C250card |
| *Cardinia Western Port Green Wedge Management Plan* (Cardinia Shire Council, adopted May 2017). | C215<br>11.01-1L-09 |
| *Casey-Cardinia Growth Area Framework Plan* (Department of Sustainability and Environment, 2006) | C92 |
| *Cockatoo Community Reserve (Alma Treloar) Master Plan* (Cardinia Shire Council, 2003, updated November 2018) | C124 11.01-1L-02 |
| *Cockatoo Town Centre Urban Design Framework* (Cardinia Shire Council, July 2004, revised November 2007) | C124 11.01-1L-02 |
| *Design Guidelines for Industrial Development* (Cardinia Shire Council, December 2000) | C124 |
| *Development of a Road Classification, Geometric Design and Maintenance Standards for Sealed and Unsealed Roads in Cardinia Shire* (ARRB Transport Research Ltd, December 2002) | C124 |
| *Domestic Wastewater Management Plan* (Cardinia Shire Council, 2007) | C124 |
| *Garfield Township Strategy* (Cardinia Shire Council, Adopted August 2002) | C124 |
| *Gembrook Rural Review – Action Plan* (Phoenix Facilitation, 2004) | C167 |
| *Guidelines for Slope Management in Subdivisions* (Cardinia Shire Council December 2017) | C250card |
| *Healthy by Design* (Cardinia Shire Council, January 2017) | C208 |
| *Housing Strategy Strategic Action Plan 2013 – 2018* (Cardinia Shire Council, December 2013 | C187 |
| *Land Capability Study of the Cardinia Shire* (Department of Natural Resources & Environment, February 1997) | NPS1<br>11.01-1L-02, 11.01-1L-03, 11.01-1L-04, 11.01-1l-08 |
| *Maryknoll Strategic Plan Review* (Cardinia Shire Council, April 1995) | NPS1<br>11.01-1L-07 |
| *Pakenham Homemaker Precinct Urban Design Framework* (Cardinia Shire Council, adopted 15 November 2004 | C124 |
| *Pakenham Major Activity Centre Structure Plan* (Cardinia Shire Council, 15 February 2021) | C228card |
| *Pakenham Major Activity Centre Urban Design Framework*(Cardinia Shire Council, 15 February 2021) | C228card |

| Name of background document | Amendment number - clause reference |
|---|---|
| *Planning for Community Infrastructure in Growth Areas* (Australian Social and Recreational Research Pty Ltd, April 2008 | C250card |
| *Puffing Billy Corridor Landscape Evaluation Study* (Scenic Spectrums Pty Ltd and Ecological Horticulture Pty Ltd, 1992) | NPS1 |
| *Recreation Open Space Strategy* (EDAW (Aust) Pty Ltd, 2000) | C124<br>19.02-6L |
| *Regional Economic Strategy for Melbourne's South East 2009-2030* (SGS Economics and Planning, January 2009) | C250card |
| *Regional Sand Extraction Strategy, Lang Lang to Grantville* (Department of Infrastructure, 1996) | NPS1<br>14.03-1L |
| *Safer Design Guidelines for Victoria* (Department of Sustainability and Environment, 2005) | C124 |
| *South East Growth Corridor Plan* (Growth Areas Authority, 2012) | C250card |
| *South East Water: 2013-2018 Water Plan* (South East Water, 2013) | C250card |
| *Southern Brown Bandicoot Strategic Management Plan for the former Koo Wee Rup Swamp Area* (Ecology Australia, 2009) | C124 |
| *Southern Regional Housing Statement* (Southern Regional Housing Working Group, April 2006) | C124 |
| *Significant Trees – Statement of Significance* (John Patrick Landscape Architects, October 2022) | C270card |
| *Strategic Extractive Resource Areas Background Technical Report to Draft Planning Controls – Lang Lang, Oaklands Junction and Trafalgar* (Victorian Government, 2024) | VC313 - Clause 14.03-1S |
| *Strategic Extractive Resource Areas Pilot Project Report* (Victorian Government, 2020) | VC313 - Clause 14.03-1S |
| *Sustainable Environment Policy 2018-2028* (Cardinia Shire Council, June 2018) | C250card |
| *Sustainable Water Use Plan* (Cardinia Shire Council, 2006) | C124 |
| *Targeted Survey and Conservation Management Plan for the Growling Grass Frog Litoria reniformis: Pakenham Urban Growth Corridor* (Ecology Partners, 2006) | C124 |
| *Urban Design Guidelines: Woods Street (North), Beaconsfield* (Hayball, May 2013) | C198 |
| *Yarra Valley Future Water: Water Plan 2013/14 to 2017/18* (Yarra Valley Water, October 2012) | C250card |

## 73 MEANING OF TERMS

11/04/2019
VC156

A term used in this planning scheme has its ordinary meaning unless that term is defined:

- In this planning scheme; or
- In the *Planning and Environment Act 1987* or the *Interpretation of Legislation Act 1984*, in which case the term has the meaning given to it in those Acts unless it is defined differently in this scheme.

## 73.01 GENERAL TERMS

28/10/2026
VC314

The following table lists general terms which may be used in this planning scheme. A term listed in the first column, under the heading "General term", has the meaning set out beside that term in the second column, under the heading "Definition".

| General term | Definition |
|---|---|
| **Act** | The *Planning and Environment Act 1987*. |
| **Agricultural production** | Any form of primary production of renewable commodities. It does not include extractive industry, Mineral extraction, or timber production from native forest. |
| **Anemometer** | A wind measuring device. |
| **Apartment** | A dwelling located above the ceiling level or below the floor level of another dwelling and is part of a building containing two or more dwellings. |
| **Approval date** | The date this scheme began, or the date of notice in the Victoria Government Gazette of approval of an amendment to this scheme. |
| **Basement** | A storey below ground level, or that projects no more than 1.2 metres above ground level. |
| **Building height** | The vertical distance from natural ground level to the roof or parapet at any point. |
| **Building Regulations** | The *Building Regulations 2018*. |
| **Bushfire** | An unplanned fire in vegetation. This includes fire in grasslands. |
| **Bushfire prone area** | An area that is designated bushfire prone as determined under section 192A of the *Building Act 1993*. |
| **Bushfire prone area map** | The map prepared under section 192A of the *Building Act 1993* describing all areas that are designated from time to time as bushfire prone areas by any determination, under that section. |
| **Carriageway** | The area of a street reserve which is provided for the movement or parking of vehicles. It is determined by the invert of a kerb and channel and the point adjacent to the pavement edge for kerb (only) and edge strips. |
| **Central Highlands region** | The area covered by the Ararat, Ballarat, Golden Plains, Hepburn, Moorabool and Pyrenees planning schemes. |
| **Clear to the sky** | An unroofed area or area roofed with material that transmits 90 per cent of light. |
| **Defendable space** | An area of land around a building where vegetation is modified and managed to reduce the effects of flame contact and radiant heat associated with bushfire. |
| **Deflection angle** | The angle between two tangent sections of a carriageway. |
| **Deep soil** | Soil at ground level that supports plant growth and is not encroached by a building above or below ground level. Grass, lawn, turf, shrubs, trees and the like may be growing or planted in the soil. |
| **Design speed** | The speed fixed for the design and correlation of the geometric features of a carriageway that influence vehicle operation. It is the speed which is not exceeded by 85 per cent of vehicles. |

| General term | Definition |
|---|---|
| **Domestic services normal to a dwelling or small second dwelling** | A domestic appliance or apparatus that is normal to and services a dwelling or small second dwelling. It includes disabled access ramps and handrails, an air conditioner, cooling or heating system, a hot water service, security systems and cameras, shade sails, a barbeque, downpipes and flues, a skylight, security screens, and the like. |
| **Earthworks** | Land forming, laser grading, levee banks, raised access roads and tracks, building pads, storage embankments, channel banks and drain banks and associated structures. |
| **Employment and innovation areas** | Dandenong, Fishermans Bend, La Trobe, Monash, Parkville, Sunshine and Werribee. |
| **Flood-prone area** | An area that is designated flood-prone as determined under section 188B of the *Building Act 1993*. |
| **Flood-prone area map** | The map prepared under section 188B of the *Building Act 1993* describing all areas that are designated from time to time as flood-prone areas by any determination, under that section. |
| **Frontage** | The road alignment at the front of a lot. If a lot abuts two or more roads, the one to which the building, or proposed building, faces. |
| **Gaming** | The playing of a gaming machine. |
| **Gaming machine** | Has the same meaning as it has in the *Gambling Regulation Act 2003.* |
| **Garden area** | Any area on a lot that does not include:<br>a) a dwelling, small second dwelling or residential building, except for:<br>▪ an eave, fascia or gutter that does not exceed a total width of 600mm;<br>▪ a pergola;<br>▪ an unroofed terrace, patio, deck, step or landing less than 800mm in height;<br>▪ a basement that does not project above ground level;<br>▪ an outbuilding that does not exceed a gross floor area of 10 square metres; and<br>▪ a domestic service normal to a dwelling, small second dwelling or residential building;<br>b) a covered driveway; or<br>c) a covered area set aside for car parking.<br>An eave, fascia or gutter that does not exceed a total width of 600mm may encroach into an uncovered driveway or uncovered area set aside for car parking. |
| **Geelong G21 region** | The area covered by the Colac Otway, Golden Plains, Greater Geelong, Queenscliffe and Surf Coast planning schemes. |
| **Gippsland region** | The area covered by the Bass Coast, Baw Baw, East Gippsland, Latrobe, South Gippsland and Wellington planning schemes. |
| **Great South Coast region** | The area covered by the Corangamite, Glenelg, Moyne, Southern Grampians and Warrnambool planning schemes |

| General term | Definition |
|---|---|
| **Gross floor area** | The total floor area of a building, measured from the outside of external walls or the centre of party walls, and includes all roofed areas. |
| **Ground level** | The natural level of a site at any point. |
| **Habitable room** | Any room of a dwelling, small second dwelling or residential building other than a bathroom, laundry, toilet, pantry, walk-in wardrobe, corridor, stair, lobby, photographic darkroom, clothes drying room and other space of a specialised nature occupied neither frequently nor for extended periods. |
| **High quality productive agricultural land** | Land which is used for animal husbandry or crop raising, and is capable of continuing to sustain agricultural production, and:<br>a) is of prime, or very good, agricultural quality, having regard to soil type, growing season, and availability of infrastructure, and is of sufficient extent to support agricultural activities on an economically viable scale; or<br>b) has been identified through a regional, sub-regional, or local study as being of particularly good quality and strategic significance for agriculture in the regional or local context. |
| **Hume region** | The area covered by the Alpine, Benalla, Greater Shepparton, Indigo, Mansfield, Mitchell, Moira, Murrindindi, Strathbogie, Towong, Wangaratta and Wodonga planning schemes. |
| **Land capability assessment** | The assessment of the physical ability of the land to sustain specific uses having regard to its management, and without long term on-site detriment to the environment. |
| **Leasable floor area** | That part of the net floor area able to be leased. It does not include public or common tenancy areas, such as malls, verandahs, or public conveniences. |
| **Loddon Mallee North region** | The area covered by the Buloke, Campaspe, Gannawarra, Mildura and Swan Hill planning schemes. |
| **Loddon Mallee South region** | The area covered by the Central Goldfields, Greater Bendigo, Loddon, Macedon Ranges and Mount Alexander planning schemes. |
| **Lot** | A part (consisting of one or more pieces) of any land (except a road, a reserve, or common property) shown on a plan, which can be disposed of separately and includes a unit or accessory unit on a registered plan of strata subdivision and a lot or accessory lot on a registered cluster plan. |
| **Mean building height** | The vertical distance between the mean ground level and the finished roof height at its highest point. |
| **Mean ground level** | One half the sum of the highest and lowest levels along ground level of the outer surface of all external building walls. |
| **Metropolitan activity centres** | Box Hill (Suburban Rail Loop East Precinct), Broadmeadows, Cloverton (future), Cobblebank (future), Dandenong, Epping, Footscray, Fountain Gate-Narre Warren, Frankston, Ringwood and Sunshine. |
| **Metropolitan Melbourne** | The area covered by the Banyule, Bayside, Boroondara, Brimbank, Cardinia, Casey, Darebin, Frankston, Glen Eira, Greater Dandenong, Hobsons Bay, Hume, Kingston, Knox, Manningham, Maribyrnong, Maroondah, Melbourne, Melton, Merri-bek, Monash, Moonee Valley, Mornington Peninsula, Nillumbik, |

| General term | Definition |
|---|---|
| | Port of Melbourne, Port Phillip, Stonnington, Whitehorse, Whittlesea, Wyndham, Yarra and Yarra Ranges Planning Schemes and the area within the urban growth boundary in the Mitchell Planning Scheme. |
| **Mineral** | Any substance which occurs naturally as part of the earth's crust, including:<br>a) oil shale and coal; and<br>b) hydrocarbons and mineral oils contained in oil shale or coal, or extracted from oil shale or coal by chemical or industrial processes.<br>It does not include water, stone, or petroleum. |
| **Minister for Planning** | A Minister for the time being administering the Act. |
| **Movable building** | A structure, other than a tent, caravan, or vehicle, which is designed to be moved from place to place on more than one occasion. |
| **Native vegetation** | Plants that are indigenous to Victoria, including trees, shrubs, herbs, and grasses. |
| **Net floor area** | The total floor area of all floors of all buildings on a site. It includes half the width of any party wall and the full width of all other walls. It does not include the area of stairs, loading bays, accessways, or car parking areas, or any area occupied by machinery required for air conditioning, heating, power supply, or lifts. |
| **Plot ratio** | The gross floor area of all buildings on a site, divided by the area of the site. |
| **Potentially contaminated land** | Land:<br>a) used or known to have been used for industry or mining;<br>b) used or known to have been used for the storage of chemicals, gas, waste or liquid fuel (other than minor above-ground storage that is ancillary to another use of the land); or<br>c) where a known past or present activity or event (occurring on or off the land) may have cause contamination of the land. |
| **Priority precincts** | Arden, Docklands, East Werribee, Fishermans Bend, Footscray, La Trobe, Parkville, Richmond to Flinders, and Sunshine, and the SRL East Precincts at Box Hill, Burwood, Clayton, Cheltenham, Glen Waverley and Monash. |
| **Private open space** | An outdoor area of a dwelling, small second dwelling or residential building or land for the exclusive use of the occupants. |
| **Property vegetation plan** | A plan which relates to the management of native vegetation within a property, and which is contained within an agreement made pursuant to section 69 of the *Conservation, Forests and Lands Act 1987*. |
| **Public land manager** | The Minister, government department, public authority or municipal council having responsibility for the care or management of public land. In relation to Crown land reserved under an Act and managed or controlled by a committee of management, other than Parks Victoria, the Great Ocean Road Coast and Parks Authority or a municipal council, it means the Minister administering that Act and does not include the committee of management. |
| **Radio mast** | A mast, for radio transmission or reception in a dwelling or small second dwelling, that is:<br>a) with antenna, more than 14 metres above the ground; |

| General term | Definition |
|---|---|
| | b) if attached to a building, with antenna, more than 5 metres above the roof line;<br>c) including antenna, wider than 6 metres; or<br>d) excluding antenna, wider than 50 centimetres at any point exceeding 3 metres above the ground. |
| **Retail** | The sale of goods or materials, in any quantity or manner, other than by wholesale. |
| **Secluded private open space** | That part of private open space primarily intended for outdoor living activities which enjoys a reasonable amount of privacy. |
| **Setback** | The minimum distance from any allotment boundary to a building. |
| **Site coverage** | The proportion of a site covered by buildings. |
| **Stone** | Basalt, freestone, granite, limestone, sandstone, or other building stone, or rock, ordinarily used for building, manufacturing, road making, or construction; or clay (not fine clay, bentonite, or kaolin), earth, gravel, quartz (not quartz crystals), sand, soil, slate, or other similar material. |
| **Storey** | That part of a building between floor levels. If there is no floor above, it is the part between the floor level and ceiling. It may include an attic, basement, built over car parking area, and mezzanine. |
| **Stormwater** | The net increase in run-off from urban development due to water not being able to seep into the ground because of impervious surfaces, such as roofs and roads. |
| **Street leg length** | The distance between street intersections or junctions, or points and locations where vehicles must slow down, usually to a maximum speed of 20 kilometres per hour. |
| **Street reserve** | Land set aside for a street pavement and verge. |
| **Sustainable agriculture** | The use of farming practices and systems which maintain or enhance:<br>a) the economic viability of agricultural production;<br>b) the natural resource base; and<br>c) other ecosystems which are influenced by agricultural activities. |
| **Telecommunications line** | A wire, cable, optic fibre, tube, conduit, waveguide or other physical medium used, or to be used, as a continuous artificial guide for or in connection with carrying communications by means of guided electromagnetic energy. |
| **Telecommunications network** | A system or series of systems that carries, or is capable of carrying, communications by means of guided and unguided electromagnetic energy. |
| **Telecommunications tower** | A free-standing tower, pole or mast used as part of a telecommunications network that is not mounted on, or affixed to, any other structure. |
| **Tenement** | Land comprised in:<br>a) a lot which does not adjoin another lot in the same ownership; or<br>b) lots in the same ownership and which adjoin each other. |

| General term | Definition |
|---|---|
| | Lots are considered to adjoin each other if they are separated only by a stream, stream reserve, or unmade or unused government road or rail reserve. |
| **Transport manager** | (a) a Minister; or<br>(b) government department; or<br>(c) Administrative Office under the *Public Administration Act 2004*; or<br>(d) public authority; or<br>(e) any person -<br>that has responsibility under an Act for the care or management of land that forms part of Victoria's transport system. |
| **Transport system** | All of the components that make up the system for the movement and transport of people and goods including:<br>▪ Movement networks including cycling paths, footpaths, roads, railways, shipping lanes, tramways and water transport routes.<br>▪ Transport interchanges for accessing, disembarking, unloading and interchange of people and goods, and for the storage of freight and vehicles. This includes transport terminals and public transport stops.<br>▪ Infrastructure required to operate movement networks and transport interchanges.<br>▪ Land reserved for the future development of movement networks and transport interchanges. |
| **Utility service provider** | A person, other than a public authority or municipal council, having responsibility under an Act for the generation, transmission, distribution or supply of electricity, gas, power, telecommunications, water supply, drainage or sewerage services. |
| **Verge** | The part of the street reserve between the carriageway and the boundary of adjacent lots or other limit to the street reserve. It may accommodate public utilities, a footpath, indented parking, stormwater flows, street lighting poles and planting. |
| **Wall height** | The vertical distance between the top of the eaves at the wall line, parapet or flat roof (not including a chimney), whichever is the highest, and the natural ground level. |
| **Wholesale** | The sale of goods or materials, to be sold by others. |
| **Wimmera Southern Mallee region** | The area covered by the Hindmarsh, Horsham, Northern Grampians, West Wimmera and Yarriambiack planning schemes. |

## 73.02 SIGN TERMS

31/07/2018
VC148

The following table lists terms which may be used in this planning scheme in relation to signs. A term listed in the first column, under the heading "Sign term", has the meaning set out beside that term in the second column, under the heading "Definition".

| Sign term | Definition |
|---|---|
| **Above-verandah sign** | A sign above a verandah or, if no verandah, that is more than 3.7 metres above pavement level, and which projects more than 0.3 metre outside the site. |
| **Display area** | The area of that part of a sign used to display its content, including borders, surrounds and logo boxes.<br>It does not include safety devices, platforms and lighting structures.<br>If the sign does not move or rotate, the area is one side only. |
| **Animated sign** | A sign that can move, contains moving or scrolling parts, changes its message, flashes, or has a moving or flashing border. |
| **Bed and breakfast sign** | A sign at a dwelling that advertises bed and breakfast accommodation in the dwelling. |
| **Bunting sign** | An advertisement that consists of bunting, streamers, flags, windvanes, or the like. |
| **Business identification sign** | A sign that provides business identification information about a business or industry on the land where it is displayed. The information may include the name of the business or building, the street number of the business premises, the nature of the business, a business logo or other business identification information. |
| **Direction sign** | A sign not exceeding 0.3 square metre that directs vehicles or pedestrians. It does not include a sign that contains commercial information. |
| **Electronic sign** | A sign that can be updated electronically. It includes screens broadcasting still or moving images. |
| **Floodlit sign** | A sign illuminated by external lighting provided for that purpose. |
| **High-wall sign** | A sign on the wall of a building so that part of it is more than 10 metres above the ground. |
| **Home based business sign** | A sign at a dwelling that advertises a home based business carried on in the dwelling, or on the land around the dwelling. |
| **Internally illuminated sign** | A sign illuminated by internal lighting or which contains lights or illuminated tubes arranged as an advertisement. |
| **Major promotion sign** | A sign which is 18 square metres or greater that promotes goods, services, an event or any other matter, whether or not provided, undertaken or sold or for hire on the land or in the building on which the sign is sited. |
| **Panel sign** | A sign with an advertisement area exceeding 10 square metres. |
| **Pole sign** | A sign:<br>a) on a pole or pylon that is not part of a building or another structure;<br>b) that is no more than 7 metres above the ground; |

| Sign term | Definition |
|---|---|
| | c) with an advertisement area not exceeding 6 square metres; and<br>d) that has a clearance under it of at least 2.7 metres. |
| **Promotion sign** | A sign of less than 18 square metres that promotes goods, services, an event or any other matter, whether or not provided, undertaken or sold or for hire on the land or in the building on which the sign is sited. |
| **Reflective sign** | A sign finished with material specifically made to reflect external light. |
| **Sign** | Includes a structure specifically built to support or illuminate a sign. |
| **Sky sign** | A sign:<br>a) on or above the roof of a building, but not a verandah;<br>b) fixed to the wall of a building and which projects above the wall; or<br>c) fixed to a structure (not a building) so that part of it is more than 7 metres above the ground. |

## 73.03 LAND USE TERMS

15/10/2026
VC306

The table to this clause lists terms which may be used in this planning scheme in relation to the use of land. A term describing a use or activity in relation to land which is not listed in the table must not be characterised as a separate use of land if the term is obviously or commonly included within one or more of the terms listed in the table.

### Meaning of terms

A term listed in the first column, under the heading "Land use term", has the meaning set out beside that term in the second column, under the heading "Definition".

### No definition of listed term indicates ordinary meaning

A term listed in the first column, under the heading "Land use term", which does not have a meaning set out beside that term in the second column, under the heading "Definition", has its ordinary meaning.

### Terms which specifically include other listed terms

A term listed in the first column, under the heading "Land use term", which has other terms listed beside it in the third column, under the heading "Includes", includes any term so listed in the third column and any term included within that term in the third column, but does not include any other term listed in the first column.

A term listed in the first column which has other terms listed beside it in the third column may also include other terms which are not listed in the first column.

All terms listed in the third column are also listed in the first column.

### Terms which do not specifically include other listed terms

If a term listed in the first column, under the heading "Land use term", does not have any term listed beside it in the third column, under the heading "Includes", that term does not include any term listed in the first column.

However, a term listed in the first column which does not have any term listed beside it in the third column may include other terms which are not listed in the first column.

### Terms which are included within other listed terms

A term listed in the first column, under the heading "Land use term", which has a term listed beside it in the fourth column, under the heading "Included in", is included within the term so listed in the fourth column and any term which includes that term in the fourth column.

All terms listed in the fourth column are also listed in the first column.

### Terms which are not included within other listed terms

If a term listed in the first column, under the heading "Land use term", does not have a term listed beside it in the fourth column, under the heading "Included in", that term is not included within any other term listed in the first column.

### Table to Clause 73.03

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Abattoir** | Land used to slaughter animals, including birds. It may include the processing of animal products. | | **Rural industry** |
| **Accommodation** | Land used to accommodate persons. | **Camping and caravan park** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | | **Corrective institution**<br>**Dwelling**<br>**Group accommodation**<br>**Host farm**<br>**Residential aged care facility**<br>**Residential building**<br>**Residential village**<br>**Retirement village**<br>**Small second dwelling** | |
| **Adult sex product shop** | Land used to sell or hire sexually explicit material, including:<br>a) publications classified as restricted under the *Classification (Publications, Films and Computer Games) (Enforcement) Act 1995*; and<br>b) materials and devices (other than contraceptives and medical treatments) used in conjunction with sexual behaviour. | | **Shop** |
| **Agriculture** | Land used to:<br>a) propagate, cultivate or harvest plants, including cereals, flowers, fruit, seeds, trees, turf, and vegetables;<br>b) keep, breed, board, or train animals, including livestock, and birds; or<br>c) propagate, cultivate, rear, or harvest living resources of the sea or inland waters. | **Animal husbandry**<br>**Aquaculture**<br>**Crop raising** | |
| **Airport** | | | **Transport terminal** |
| **Amusement park** | | | **Outdoor recreation facility** |
| **Amusement parlour** | A building that contains:<br>a) three or more coin, card, or token operated amusement machines; | | **Place of assembly** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | b) one or more coin, card, or token operated amusement machines with more than one screen or console that can be played by three or more people simultaneously; or<br>c) two or more coin, card, or token operated billiard, snooker, or pool tables.<br>It does not include coin, card, or token operated children's rides, amusement machines if there is the ability to receive a monetary reward, or premises used for a Bar or Hotel. | | |
| **Animal husbandry** | Land used to keep, breed, board, or train animals, including birds. | **Animal production**<br>**Animal training**<br>**Apiculture**<br>**Domestic animal husbandry**<br>**Horse husbandry**<br>**Racing dog husbandry** | **Agriculture** |
| **Animal production** | Land used to keep or breed farm animals for the production of livestock, eggs, fibre, meat, milk or other animal products. | **Grazing animal production**<br>**Intensive animal production**<br>**Pig farm**<br>**Poultry farm**<br>**Poultry hatchery** | **Animal husbandry** |
| **Animal training** | Land used to train animals, other than domestic animals, horses, or racing dogs. | | **Animal husbandry** |
| **Apiculture** | Land used to keep honeybee hives and to extract honey or other bee hive products. | | **Animal husbandry** |
| **Aquaculture** | Land used to keep or breed aquatic animals, or cultivate or propagate aquatic plants. | | **Agriculture** |
| **Art and craft centre** | Land used to manufacture, display, and sell, works of art or craft, such as handicrafts, paintings, and sculptures. | | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Art gallery** | Land used to display works of art, including ceramics, furniture, glass, paintings, screen based art, sculptures, and textiles. | | **Exhibition centre** |
| **Automated collection point** | A building with a gross floor area of no more than 100 square metres, used as an automated collection point as defined in the *Circular Economy (Waste Reduction and Recycling) Act 2021*. | | **Transfer station** |
| **Bank** | | | **Office** |
| **Bar** | Land used to sell liquor for consumption on the premises. It may include accommodation, food for consumption on the premises, entertainment, dancing, amusement machines, and gambling. | | **Food and drink premises** |
| **Beauty salon** | | | **Shop** |
| **Bed and breakfast** | A dwelling used, by a resident of the dwelling, to provide accommodation for persons away from their normal place of residence. | | **Dwelling** |
| **Betting agency** | Land used for gambling by wagering, and where there is the ability to receive a monetary reward. | | **Gambling premises** |
| **Boat and caravan storage** | Land used to store boats, caravans, or vehicle-towed boat trailers. | | **Store** |
| **Boat launching facility** | Land used to launch boats into the water and to retrieve boats from the water. | **Boat ramp slipway** | **Recreational boat facility** |
| **Boat ramp** | | | **Boat launching facility** |
| **Bottle shop** | Land used to sell packaged liquor for consumption off the premises. | | **Shop** |
| **Broiler farm** | Land used to keep broiler chickens for the production of meat. | | **Poultry farm** |
| **Bus terminal** | | | **Transport terminal** |
| **Camping and caravan park** | Land used to allow accommodation in caravans, cabins, tents, or the like. | | **Accommodation** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Caretaker's house** | A dwelling on the same site as a building, operation, or plant, and occupied by a supervisor of that building, operation, or plant. | | **Dwelling** |
| **Carnival** | Land, other than an Exhibition centre or trade fair, used for a temporary fair or amusements which provide entertainment such as side shows, merry-go-rounds, and stalls for games or snacks. | | **Place of assembly** |
| **Car park** | Land used to park motor vehicles. It may include charging of electric vehicles. | | |
| **Car sales** | | | **Motor vehicle, boat, or caravan sales** |
| **Car wash** | | | **Service industry** |
| **Cattle feedlot** | Land used for a cattle feedlot as defined by the Victorian Code for Cattle Feedlots 1995. | | **Intensive animal production** |
| **Cemetery** | Land used to dispose of human remains by burial. It may include funeral chapels or the like. | | |
| **Child care centre** | Land used to care for five or more children who are not permanently resident on the land. | **Kindergarten** | **Education centre** |
| **Cinema** | Land used to provide screen based entertainment or information to the public. | | **Place of assembly** |
| **Cinema based entertainment facility** | Land used to provide screen based entertainment or information to the public, in association with the provision of meals or sporting, amusement, entertainment, leisure or retail facilities. | | **Place of assembly** |
| **Circus** | Land used, by performers, to provide entertainment such as acrobatic feats, tricks of skill, and exhibiting animals. | | **Place of assembly** |
| **Commercial display area** | Land used only to display goods. | | **Warehouse** |
| **Community care accommodation** | Land used to provide accommodation and care services. It includes permanent, temporary | | **Residential building** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | and emergency accommodation. It may include supervisory staff and support services for residents and visitors. | | |
| **Conference centre** | | | **Function centre** |
| **Container deposit scheme centre** | Land used to collect, consolidate, temporarily store, sort or recover materials under Victoria's Container Deposit Scheme by a network or collection point operator in accordance with the *Circular Economy (Waste Reduction and Recycling) Act 2021*. The centre may incorporate a reverse vending machine, automated collection point, drop off point and over the counter refunds. | | **Transfer station** |
| **Convenience restaurant** | Land used to prepare and sell food and drink for immediate consumption, where substantial provision is made for consumption both on and off the premises. | | **Food and drink premises** |
| **Convenience shop** | A building with a leasable floor area of no more than 240 square metres, used to sell food, drinks, and other convenience goods. It may also be used to hire convenience goods. | | **Shop** |
| **Corrective institution** | Land used to hold and reform persons committed to it by the courts, such as a prison, remand centre, and other type of detention facility. | | **Accommodation** |
| **Crematorium** | Land used to cremate human remains. It may include funeral chapels or the like. | | |
| **Crop raising** | Land used to propagate, cultivate or harvest plants, including cereals, flowers, fruit, seeds, trees, turf, and vegetables. | **Horticulture**<br>**Rice growing**<br>**Timber production** | **Agriculture** |
| **Dance studio** | | | **Indoor recreation facility** |
| **Data centre** | | | **Utility installation** |
| **Department store** | | | **Shop** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Display home centre** | One or more buildings constructed as a dwelling, but used for display, to encourage people to buy or construct similar dwellings. It may include a sales office. | | |
| **Dog breeding** | | | **Domestic animal husbandry** |
| **Domestic animal boarding** | Land used to board domestic animals, such as boarding kennels and a cattery. It includes domestic animal day care. | | **Domestic animal husbandry** |
| **Domestic animal husbandry** | Land used to keep, breed, board or train domestic animals. | **Dog breeding**<br>**Domestic animal boarding** | **Animal husbandry** |
| **Drive-in theatre** | | | **Place of assembly** |
| **Dry cleaner** | Land used to professionally clean or launder clothing or household articles. It may include the use of dry cleaning processes. | | **Service industry** |
| **Dry cleaning agent** | Land used to arrange for professional cleaning or laundering of clothing or household articles predominantly at another location. It does not include the use of dry cleaning processes on the land. | | **Shop** |
| **Dwelling** | A building used as a self-contained residence which must include:<br>a) a kitchen sink;<br>b) food preparation facilities;<br>c) a bath or shower; and<br>d) a toilet and wash basin.<br>It includes outbuildings and works normal to a dwelling. | **Bed and breakfast**<br>**Caretaker's house** | **Accommodation** |
| **Education centre** | Land used for education. | **Child care centre**<br>**Employment training centre**<br>**Primary school**<br>**Secondary school**<br>**Tertiary institution** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Earth and energy resources industry** | Land used for the exploration, removal or processing of natural earth or energy resources. It includes any activity incidental to this purpose including the construction and use of temporary accommodation. | **Extractive industry**<br>**Greenhouse gas sequestration**<br>**Greenhouse gas sequestration exploration**<br>**Geothermal energy exploration**<br>**Geothermal energy extraction**<br>**Mining**<br>**Mineral exploration**<br>**Petroleum exploration**<br>**Petroleum production**<br>**Stone exploration** | |
| **Electoral office** | An office used for electioneering by a candidate in a local, State, or Federal Government election. | | **Office** |
| **Electorate office** | An office used by a State or Federal Member of Parliament to conduct their representative duties. | | **Office** |
| **Emergency services facility** | Land used to provide facilities for emergency services, such as fire prevention and ambulance services. It may include administrative, operational or storage facilities associated with the provision of emergency services. | | |
| **Employment training centre** | | | **Education centre** |
| **Energy generation facility** | Land used to generate energy for use off site other than geothermal energy extraction. It includes any building or other structure or thing used in or in connection with the generation of energy. | **Renewable energy facility**<br>**Waste-to-energy facility** | |
| **Equestrian supplies** | | | **Restricted retail premises** |
| **Exhibition centre** | Land used to display works of art, artefacts, or historical, cultural, or other like works or artefacts. | **Art gallery**<br>**Museum** | **Place of assembly** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Extractive industry** | Land used for the extraction or removal of stone from land for commercial use, or to use the stone for building, construction, road or manufacturing works.<br>It includes:<br>▪ the rehabilitation of the land; and<br>▪ the treatment of stone (such as crushing and processing) or the manufacture of bricks, tiles, pottery, or cement or asphalt products on, or adjacent to, the land from which the stone is extracted or removed. | | **Earth and energy resources industry** |
| **Food and drink premises** | Land used to prepare and sell food and drink for immediate consumption on, or off, the premises. | **Bar**<br>**Convenience restaurant**<br>**Hotel**<br>**Restaurant**<br>**Take away food premises** | **Retail premises** |
| **Freeway service centre** | Land which has direct access to a freeway and is used to provide essential services and facilities which encourage drivers to stop and take an effective break in the interests of driver safety. | | |
| **Freezing and cool storage** | | | **Store** |
| **Fuel depot** | Land used to store, sell, and distribute fuel. | **Liquid fuel depot**<br>**Solid fuel depot** | **Warehouse** |
| **Function centre** | Land used, by arrangement, to cater for conferences, private functions, and in which food and drink may be served. It may include entertainment and dancing. | **Conference centre**<br>**Reception centre** | **Place of assembly** |
| **Funeral parlour** | Land used to organise and conduct funerals, memorial services, or the like. It includes the storage and preparation of bodies for burial or cremation. | | |
| **Gambling premises** | Land used for gambling by gaming or wagering, and where there is the ability to receive a monetary reward. | **Betting agency**<br>**Gaming premises** | **Retail premises** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Gaming premises** | Land used for gambling by gaming, and where there is the ability to receive a monetary reward. | | **Gambling premises** |
| **Garden supplies** | Land used to sell and distribute garden supplies such as sand, soil, railway sleepers, screenings, rock, and the like. | | **Landscape gardening supplies** |
| **Geothermal energy exploration** | Land used for geothermal energy exploration as defined in the Geothermal *Energy Resources Act 2005.* | | **Earth and energy resources industry** |
| **Geothermal energy extraction** | Land used for geothermal energy extraction as defined in the Geothermal *Energy Resources Act 2005.* | | **Earth and energy resources industry** |
| **Golf course** | | | **Outdoor recreation facility** |
| **Golf driving range** | | | **Outdoor recreation facility** |
| **Grazing animal production** | Land used for animal production where the animals' food is obtained by directly grazing, browsing or foraging plants growing on the land.<br>It includes:<br>▪ emergency, seasonal and supplementary feeding;<br>▪ the incidental penning, feeding and housing of animals for weaning or other husbandry purposes.<br>In this definition:<br>*Emergency feeding* means providing feed to animals when an emergency event such as a flood, bushfire or biosecurity event, restricts or prevents the animals from grazing, browsing or foraging plants growing on the land;<br>*Seasonal feeding* means providing feed to animals when seasonal conditions, including drought, restrict or prevent the animals from grazing, browsing or foraging plants growing on the land; | | **Animal production** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | *Supplementary feeding* means providing feed to animals to supplement the food the animals obtain by directly grazing, browsing or foraging plants growing on the land. | | |
| **Greenhouse gas sequestration** | Land used for greenhouse gas substance injection and monitoring as defined in the *Greenhouse Gas Geological Sequestration Act 2008.* | | **Earth and energy resources industry** |
| **Greenhouse gas sequestration exploration** | Land used for greenhouse gas sequestration formation exploration as defined in the *Greenhouse Gas Geological Sequestration Act 2008.* | | **Earth and energy resources industry** |
| **Group accommodation** | Land, in one ownership, containing a number of dwellings used to accommodate persons away from their normal place of residence. | | **Accommodation** |
| **Hairdresser** | | | **Shop** |
| **Hall** | | | **Place of assembly** |
| **Helicopter landing site** | Land used for the take-off and landing of a helicopter, with or without a permanent landing pad, but without permanent facilities for the assembly and distribution of goods or passengers. | | |
| **Heliport** | | | **Transport terminal** |
| **Home based business** | An occupation carried on in a dwelling, or on the land around a dwelling, by a resident of the dwelling. It may include a use defined elsewhere. | | |
| **Horse husbandry** | Land used to keep, breed, board or train horses. | **Horse riding school**<br>**Horse stables** | **Animal husbandry** |
| **Horse riding school** | | | **Horse husbandry** |
| **Horse stables** | | | **Horse husbandry** |
| **Horticulture** | Land used to propagate, cultivate, or harvest flowers, fruit, vegetables, vines, or the like. | **Market garden** | **Crop raising** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Hospital** | Land used to provide health services (including preventative care, diagnosis, medical and surgical treatment, and counselling) to persons admitted as in-patients. It may include the care or treatment of out-patients. | | |
| **Host farm** | An agricultural property used to provide accommodation for persons, away from their normal place of residence, to experience living on land used for agricultural purposes. | | **Accommodation** |
| **Hotel** | Land used to sell liquor for consumption on and off the premises. It may include accommodation, food for consumption on the premises, entertainment, dancing, amusement machines, and gambling. | | **Food and drink premises** |
| **Indoor recreation facility** | A building used for indoor leisure, recreation, or sport. | **Dancing studio** | **Minor sports and recreation facility** |
| **Industry** | Land used for any of the following operations:<br>a) any process of manufacture;<br>b) dismantling or breaking up of any article;<br>c) treating waste materials;<br>d) winning clay, gravel, rock, sand, soil, stone, or other materials;<br>e) laundering, repairing, servicing or washing any article, machinery, or vehicle, other than on-site work on a building, works, or land; or<br>f) any process of testing or analysis.<br>If on the same land as any of these operations, it also includes:<br>a) storing goods used in the operation or resulting from it;<br>b) providing amenities for people engaged in the operation;<br>c) selling by wholesale, goods resulting from the operation; and<br>d) accounting or administration in connection with the operation. | **Materials recycling**<br>**Refuse disposal**<br>**Transfer station**<br>**Research and development centre**<br>**Rural industry**<br>**Service industry** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | If Materials recycling, goods resulting from the operation may be sold by retail. | | |
| **Informal outdoor recreation** | Land open to the public and used by non-paying persons for leisure or recreation, such as a cycle track, park, picnic or barbecue area, playground, plaza, and walking or jogging track. | | **Minor sports and recreation facility** |
| **Intensive animal production** | Land used for animal production where the animals' food is imported from outside the immediate building, enclosure, paddock or pen.<br>It does not include:<br>▪ an abattoir or sale yard; or<br>▪ grazing animal production, pig farm, poultry farm or poultry hatchery. | **Cattle feedlot**<br>**Intensive dairy farm** | **Animal production** |
| **Intensive dairy farm** | Land used for intensive animal production where cattle are kept or bred for the production of milk. | | **Intensive animal production** |
| **Interpretation centre** | A facility that assists in the public understanding of the natural or cultural environment. | | |
| **Jetty** | | | **Marina** |
| **Kindergarten** | | | **Child care centre** |
| **Landscape gardening supplies** | Land used to propagate, grow, and sell plants, or sell and distribute garden supplies. | **Garden supplies**<br>**Plant nursery** | **Retail premises** |
| **Laundromat** | Land used to clean or launder clothing or household items using self-service machines. | | **Shop** |
| **Leisure and recreation** | Land used for leisure, recreation, or sport. | **Major sports and recreation facility**<br>**Minor sports and recreation facility**<br>**Motor racing track** | |
| **Library** | | | **Place of assembly** |
| **Liquid fuel depot** | Land used to store, sell by wholesale, and distribute fuel. | | **Fuel depot** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Mail centre** | Land used to sort mail for distribution. | | **Warehouse** |
| **Major sports and recreation facility** | Land used for leisure, recreation or sport, and where there is substantial provision made for spectators, such as a grandstand, and to which spectators are usually charged admission. | **Race course** | **Leisure and recreation** |
| **Manufacturing sales** | Land used, as an incidental part of an industry, to retail goods made materially different on the land by that industry. | | **Retail premises** |
| **Marina** | Land used to moor boats, or store boats above or adjacent to the water. It may include boat recovery facilities, and facilities to repair, fuel, and maintain boats and boat accessories. | **Jetty**<br>**Mooring pole**<br>**Pier**<br>**Pontoon** | **Recreational boat facility** |
| **Market** | Land used to sell goods, including foodstuffs, from stalls. | | **Retail premises** |
| **Market garden** | | | **Horticulture** |
| **Materials recycling** | Land used to dismantle, treat, process, store, recycle, or sell refuse, used or surplus materials. | | **Industry** |
| **Medical centre** | Land used to provide health or surgical services (including preventative care, diagnosis, medical and surgical treatment, pathology services, and counselling) to out-patients only. | | **Office** |
| **Milk depot** | Land used to receive milk and milk products for distribution to consumers, but where milk is not processed or pasteurised. | | **Warehouse** |
| **Mineral exploration** | Land used for exploration as defined in the *Mineral Resources (Sustainable Development) Act 1990.* | | **Earth and energy resources industry** |
| **Mining** | Land used for mining as defined in the *Mineral Resources (Sustainable Development) Act 1990.* | | **Earth and energy resources industry** |
| **Minor sports and recreation facility** | Land used for leisure, recreation, or sport, without substantial provision for spectators, and which is usually open to non-paying spectators. | **Indoor recreation facility** | **Leisure and recreation** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | | **Informal outdoor recreation**<br>**Open sports ground**<br>**Outdoor recreation facility**<br>**Restricted recreation facility** | |
| **Minor utility installation** | Land used for a utility installation comprising any of the following:<br>a) sewerage or water mains;<br>b) storm or flood water drains or retarding basins;<br>c) flow measurement device or a structure to gauge waterway flow;<br>d) siphons, water storage tanks, disinfection booster stations and channels;<br>e) gas mains providing gas directly to consumers;<br>f) a sewerage treatment plant, and any associated disposal works, required to serve a neighbourhood;<br>g) a pumping station required to serve a neighbourhood;<br>h) power lines designed to operate at less than 220,000 volts but excluding any power lines directly associated with an Energy generation facility or Geothermal energy extraction;<br>i) an electrical sub-station designed to operate at no more than 66,000 volts but excluding any sub-station directly associated with an Energy generation facility or Geothermal energy extraction; or<br>j) a battery with a storage capacity of no more than 5 megawatts. | **Water retarding basin** | **Utility installation** |
| **Mooring pole** | | | **Marina** |
| **Motel** | Land used to provide accommodation in serviced rooms for persons away from their normal place of residence, and where provision is made for parking guests' vehicles convenient to the rooms. | | **Residential hotel** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Motor racing track** | Land used to race, rally, scramble, or test, vehicles, including go-karts, motor boats, and motorcycles, and includes other competitive motor sports. It may include training. | | **Leisure and recreation** |
| **Motor repairs** | Land used to repair or service motor vehicles, and includes the fitting of accessories. | **Panel beating** | **Service industry** |
| **Motor vehicle, boat, or caravan sales** | Land used to sell or hire motor vehicles, boats, or caravans. It may include the minor repair or servicing of motor vehicles, boats, or caravans, and the sale or fitting of accessories. | **Car sales** | **Retail premises** |
| **Museum** | Land used to display archaeological, biological, cultural, geographical, geological, historical, scientific, or other like works or artefacts. | | **Exhibition centre** |
| **Natural systems** | Land in substantially its natural state which is used to maintain ecological systems, or to preserve an area of historic, scientific, aesthetic, or cultural significance. | | |
| **Nightclub** | A building used to provide entertainment and dancing. It may include the provision of food and drink for consumption on the premises. It does not include the sale of packaged liquor, or gaming. | | **Place of assembly** |
| **Office** | Land used for administration, or clerical, technical, professional or other like business activity. No goods or materials intended for manufacture, sale, or hire may be stored on the land. Other than electoral office and medical centre, it does not include any other defined use. | **Bank**<br>**Electoral office**<br>**Electorate office**<br>**Medical centre**<br>**Real estate agency**<br>**Travel agency** | |
| **Open sports ground** | Land used for organised games of sport, but which is available for informal outdoor leisure or recreation when not being used or prepared for an organised game. It may include lights, change rooms, pavilions, and shelters. | | **Minor sports and recreation facility** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Outdoor recreation facility** | Land used for outdoor leisure, recreation, or sport. It does not include an Open sports ground or Informal outdoor recreation. | **Amusement park**<br>**Golf course**<br>**Golf driving range**<br>**Paintball games facility**<br>**Zoo** | **Minor sports and recreation facility** |
| **Paintball games facility** | | | **Outdoor recreation facility** |
| **Panel beating** | Land used to repair or replace damaged motor vehicle bodies and panels, and carry out any associated mechanical work or spray painting. | | **Motor repairs** |
| **Party supplies** | | | **Restricted retail premises** |
| **Petroleum exploration** | Land used for petroleum exploration as defined in the *Petroleum Act 1998.* | | **Earth and energy resources industry** |
| **Petroleum production** | Land used for petroleum production as defined in the *Petroleum Act 1998.* | | **Earth and energy resources industry** |
| **Pier** | | | **Marina** |
| **Pig farm** | Land used to keep or breed pigs. | | **Animal production** |
| **Place of assembly** | Land where people congregate for religious, spiritual or cultural activities, entertainment, or meetings. | **Amusement parlour**<br>**Carnival**<br>**Cinema**<br>**Cinema-based entertainment facility**<br>**Circus**<br>**Drive-in theatre**<br>**Exhibition centre**<br>**Function centre**<br>**Hall**<br>**Library**<br>**Nightclub**<br>**Place of worship**<br>**Restricted place of assembly** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Place of worship** | Land used for religious activities, such as a church, chapel, mosque, synagogue, and temple. | | **Place of assembly** |
| **Plant nursery** | Land used to propagate, grow, and sell plants. It may include the sale of gardening equipment and horticultural products. | | **Landscape gardening supplies** |
| **Pontoon** | | | **Marina** |
| **Postal agency** | | | **Retail premises** |
| **Poultry farm** | Land used to keep or breed poultry. | **Broiler farm** | **Animal production** |
| **Poultry hatchery** | Land used to incubate and hatch poultry eggs. | | **Animal production** |
| **Primary produce sales** | Land used to display and sell primary produce, grown on the land or adjacent land. It may include processed goods made substantially from the primary produce. | | **Retail premises** |
| **Primary school** | | | **Education centre** |
| **Race course** | | | **Major sports and recreation facility** |
| **Racing dog husbandry** | Land used to keep, breed, board or train racing dogs. | **Racing dog training** | **Animal husbandry** |
| **Racing dog training** | | | **Racing dog husbandry** |
| **Railway station** | Land used to assemble and distribute goods and passengers and includes facilities to park and manoeuvre vehicles. It may include the selling of food, drinks and other convenience goods and services. | | **Transport terminal** |
| **Real estate agency** | | | **Office** |
| **Reception centre** | | | **Function centre** |
| **Recreational boat facility** | Land used to provide facilities for boats operated primarily for pleasure or recreation, including boats operated commercially for pleasure or recreation. | **Boat launching facility**<br>**Marina** | |
| **Refuse disposal** | Land used to dispose of refuse, by landfill, incineration, or other means. | | **Industry** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Renewable energy facility** | Land used to generate energy using resources that can be rapidly replaced by an ongoing natural process. Renewable energy resources include the sun, wind, the ocean, water flows, organic matter and the earth's heat.<br><br>It includes any building or other structure or thing used in or in connection with the generation of energy by a renewable resource.<br><br>It does not include a renewable energy facility principally used to supply energy for an existing use of the land. | **Wind energy facility**<br><br>**Solar energy facility** | **Energy generation facility** |
| **Research and development centre** | Land used to develop or test electronic technology, biotechnology, or any other scientific discipline. It may include administration, promotion, conference, display, laboratory, assembly, and manufacturing areas. | | **Industry** |
| **Research centre** | Land used only for scientific research. | | |
| **Reservoir** | A natural or artificial lake used as a source of water supply that is owned or managed by a public authority. | | **Utility installation** |
| **Residential aged care facility** | Land used to provide accommodation and personal or nursing care for the aged. It may include recreational, health or laundry facilities and services for residents of the facility. | | **Accommodation** |
| **Residential building** | Land used to accommodate persons, but does not include camping and caravan park, corrective institution, dwelling, group accommodation, host farm, residential village, retirement village or small second dwelling. | **Community care accommodation**<br><br>**Residential hotel**<br><br>**Rooming house**<br><br>**Rural worker accommodation** | **Accommodation** |
| **Residential hotel** | Land used to provide accommodation in serviced rooms for persons away from their normal place of residence. If it has at least 20 bedrooms, it may include the sale of liquor for consumption on, or off, the premises, function or conference | **Motel** | **Residential building** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | rooms, entertainment, dancing, amusement machines, and gambling. | | |
| **Residential village** | Land, in one ownership, containing a number of dwellings, used to provide permanent accommodation and which includes communal, recreation, or medical facilities for residents of the village. | | **Accommodation** |
| **Restaurant** | Land used to prepare and sell food and drink, for consumption on the premises. It may include:<br>a) entertainment and dancing; and<br>b) the supply of liquor other than in association with the serving of meals, provided that tables and chairs are set out for at least 75% of patrons present on the premises at any one time.<br>It does not include the sale of packaged liquor. | | **Food and drink premises** |
| **Restricted place of assembly** | Land used by members of a club or group, or by members' guests, for religious, spiritual or cultural activities, entertainment, or meetings. It may include food and drink for consumption on the premises, and gaming. | | **Place of assembly** |
| **Restricted recreation facility** | Land used by members of a club or group for leisure, recreation, or sport, such as a bowling or tennis club, gymnasium and fitness centre. It may include food and drink for consumption on the premises, and gaming. It may also include use by members' guests, or by the public on payment of a fee. | | **Minor sports and recreation facility** |
| **Restricted retail premises** | Land used to sell or hire:<br>a) automotive parts and accessories;<br>b) camping, outdoor and recreation goods<br>c) electric light fittings;<br>d) animal supplies including equestrian and pet goods;<br>e) floor and window coverings; | **Equestrian supplies**<br>**Party supplies** | **Shop** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | f) furniture, bedding, furnishings, fabric and manchester and homewares;<br>g) household appliances, household electrical goods and home entertainment goods;<br>h) party supplies;<br>i) swimming pools;<br>j) office equipment and supplies;<br>k) baby and children's goods, children's play equipment and accessories;<br>l) sporting, cycling, leisure, fitness goods and accessories; or<br>m) goods and accessories which:<br>▪ Require a large area for handling, display and storage of goods; or<br>▪ Require direct vehicle access to the building by customers for the purpose of loading or unloading goods into or from their vehicles after purchase or hire.<br>It does not include the sale of food, clothing and footwear unless ancillary to the primary use. | | |
| **Retail premises** | Land used to:<br>a) sell goods by retail, or by retail and wholesale;<br>b) sell services; or<br>c) hire goods. | **Food and drink premises**<br>**Gambling premises**<br>**Landscape gardening supplies**<br>**Manufacturing sales**<br>**Market**<br>**Motor vehicle, boat, or caravan sales**<br>**Postal agency**<br>**Primary produce sales**<br>**Shop**<br>**Trade supplies** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Retirement village** | Land used to provide permanent accommodation for retired people or the aged and may include communal recreational or medical facilities for residents of the village. | | **Accommodation** |
| **Rice growing** | | | **Crop raising** |
| **Road freight terminal** | | | **Transport terminal** |
| **Rooming house** | Land used for a rooming house as defined in the *Residential Tenancies Act 1997*. | | **Residential building** |
| **Rural industry** | Land used to:<br>a) handle, treat, process, or pack agricultural produce; or<br>b) service or repair plant, or equipment, used in agriculture; or<br>c) manufacture mud bricks, including bricks that contain hemp, straw or other fibrous substance. | **Abattoir**<br>**Sawmill** | **Industry** |
| **Rural store** | Land used to store unprocessed agricultural produce, or products used in agriculture. | | **Store** |
| **Rural worker accommodation** | Land used to accommodate a person engaged in agricultural production, away from their normal place of residence. | | **Residential building** |
| **Saleyard** | Land used to hold, sell, and buy farm animals. | | |
| **Sawmill** | Land used to handle, cut, and process timber from logs. | | **Rural industry** |
| **Secondary school** | | | **Education centre** |
| **Service industry** | Land used to launder, repair, service or wash articles, machinery, or vehicles. | **Car wash**<br>**Dry cleaner**<br>**Motor repairs** | **Industry** |
| **Service station** | Land used to sell motor vehicle fuel from bowsers or charge electric vehicles. It may include the:<br>a) selling of motor vehicle lubricants, accessories or parts;<br>b) selling of food, drinks and other convenience goods; | | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | c) hiring of trailers;<br>d) servicing or washing of motor vehicles; and<br>e) installing of motor vehicle accessories or parts. | | |
| **Sex services premises** | Land used to sell services involving the use or display of the body of the person providing the service for the sexual arousal or sexual gratification of another person while they are present on the land.<br>It does not include:<br>▪ Live entertainment performed for an audience, by a person performing an act of an explicit sexual nature, such as lap dancing, nude dancing and striptease.<br>▪ Sexual activities engaged in by two or more people required to pay an admission fee or charge to enter the premises on the same terms and who do not receive any form of payment or reward, whether directly or indirectly, for engaging in the sexual activities. | | **Shop** |
| **Shipping container storage** | Land used to store shipping containers. It may include the cleaning, repair, servicing, painting or fumigation of the shipping containers. | | **Store** |
| **Shop** | Land used to sell goods or services, or to hire goods. It includes:<br>▪ the selling of bread, pastries, cakes or other products baked on the premises;<br>▪ demonstrations of products including music performances in shops selling recorded music.<br>It does not include:<br>▪ food and drink premises;<br>▪ gambling premises;<br>▪ landscape gardening supplies; | **Adult sex product shop**<br>**Beauty salon**<br>**Bottle shop**<br>**Convenience shop**<br>**Dry cleaning agent**<br>**Department store**<br>**Hairdresser**<br>**Laundromat**<br>**Restricted retail premises** | **Retail premises** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | ▪ manufacturing sales;<br>▪ market;<br>▪ motor vehicle, boat, or caravan sales;<br>▪ postal agency;<br>▪ primary produce sales; or<br>▪ trade supplies. | **Sex services premises**<br>**Supermarket** | |
| **Sign** | | | |
| **Slipway** | | | **Boat launching facility** |
| **Small second dwelling** | A building, or part of a building, with a total floor area not exceeding 80 square metres, on the same lot as an existing dwelling and used as a self-contained residence, which must include:<br>a) a kitchen sink;<br>b) food preparation facilities;<br>c) a bath or shower; and<br>d) a toilet and wash basin.<br>For the purpose of this definition, the total floor area:<br>a) includes all floors of a building, or part of a building, used as a self-contained residence;<br>b) is measured from:<br>▪ the outside surface of the external walls of a small second dwelling; or<br>▪ the centre of a party wall between a small second dwelling and another building; and<br>c) does not include:<br>▪ an unroofed patio, pergola, porch, terrace or other unroofed structure that is attached to or abutting a small second dwelling; or<br>▪ any roofed deck, verandah or other roofed structure that is attached to or abutting a small second dwelling. | | **Accommodation** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Solar energy facility** | Land used to generate electricity from solar energy using ground-mounted photovoltaic and thermal technology, where the primary role is to export power to the electricity network.<br>It does not include the generation of electricity principally used for an existing use of land. | | **Renewable energy facility** |
| **Solid fuel depot** | Land used to sell solid fuel, such as briquettes, coal, and fire wood. | | **Fuel depot** |
| **Stone exploration** | Land used to search for stone, including:<br>a) conducting geological, geophysical, and geochemical surveys;<br>b) costeaning and bulk sampling;<br>c) drilling; and<br>d) taking samples for chemical, physical, or other testing. | | **Earth and energy resources industry** |
| **Store** | Land used to store goods, machinery, or vehicles. | **Boat and caravan storage**<br>**Freezing and cool storage**<br>**Rural store**<br>**Shipping container storage**<br>**Vehicle store** | **Warehouse** |
| **Supermarket** | | | **Shop** |
| **Take away food premises** | Land used to prepare and sell food and drink for immediate consumption off the premises. It may include up to 10 seats available for consumption on the premises. | | **Food and drink premises** |
| **Telecommunications facility** | Land used to accommodate any part of the infrastructure of a Telecommunications network. It includes any telecommunications line, equipment, apparatus, telecommunications tower, mast, antenna, tunnel, duct, hole, pit, pole, or other structure or thing used, or for use in or in connection with a Telecommunications network. | | **Utility installation** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Tertiary institution** | | | **Education centre** |
| **Timber production** | Land used to propagate, cultivate, manage and harvest timber. | | **Crop raising** |
| **Timber yard** | Land used to sell sawn, dressed, and treated timber, wood fibre boards, and the like. It includes cutting the timber and boards to order, and selling hardware, paints, tools, and materials used in conjunction with the use and treatment of timber. | | **Trade supplies** |
| **Trade supplies** | Land used to sell by both retail and wholesale, or to hire, materials, tools, equipment, machinery or other goods for use in:<br>a) automotive repairs and servicing;<br>b) building;<br>c) commerce;<br>d) industry;<br>e) landscape gardening;<br>f) the medical profession;<br>g) primary production; or<br>h) local government, government departments or public institutions. | **Timber yard** | **Retail premises** |
| **Tramway** | Land used to provide a system of transport in vehicles connected to a network of tracks, and includes tram stops and shelters, shunting areas and associated passenger facilities. | | |
| **Transfer station** | Land used to collect, consolidate, temporarily store, sort or recover refuse, used or surplus materials before transfer for disposal, recycling or use elsewhere. | **Automated collection point**<br>**Container deposit scheme centre** | **Industry** |
| **Transport terminal** | Land used to assemble and distribute goods or passengers. It includes facilities to park and manoeuvre vehicles. It does not include a Tramway. | **Airport**<br>**Bus terminal**<br>**Heliport**<br>**Railway station**<br>**Road freight terminal**<br>**Wharf** | |
| **Travel agency** | | | **Office** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Utility installation** | Land used:<br>a) for telecommunications;<br>b) to transmit or distribute gas or oil;<br>c) to transmit, distribute or store power;<br>d) to collect, treat, transmit, store, or distribute water; or<br>e) to collect, treat, or dispose of storm or flood water, sewage, or sullage.<br>It includes any associated flow measurement device or a structure to gauge waterway flow. | **Data centre**<br>**Minor utility installation**<br>**Reservoir**<br>**Telecommunications facility** | |
| **Vehicle store** | Land used to park or store vehicles in connection with a goods or passenger transport business. | | **Store** |
| **Veterinary centre** | Land used to:<br>a) diagnose animal diseases or disorders;<br>b) surgically or medically treat animals; or<br>c) prevent animal diseases or disorders.<br>It may include keeping the animals on the premises for treatment. | | |
| **Warehouse** | Land used to store or display goods. It may include the storage and distribution of goods for wholesale and the storage and distribution of goods for online retail. It does not include premises allowing in-person retail or display of goods for retail, or allowing persons to collect goods that have been purchased online. | **Commercial display area**<br>**Fuel depot**<br>**Mail centre**<br>**Milk depot**<br>**Store** | |
| **Waste-to-energy facility** | Land used for the combustion, treatment or bio-reaction of waste to produce energy for use off site. It includes the activities to collect, temporarily store, process, or transfer waste materials for energy production. | | **Energy generation facility** |
| **Water retarding basin** | Land used to store storm or flood water on a temporary basis. | | **Minor utility installation** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Wharf** | Land used to provide facilities for ships, such as bulk and container ships, passenger ships, and defence force marine craft. | | **Transport terminal** |
| **Wind energy facility** | Land used to generate electricity by wind force. It includes land used for:<br>a) any turbine, building or other structure or thing used in or in connection with the generation of electricity by wind force<br>b) an anemometer.<br>It does not include turbines principally used to supply electricity for domestic or rural use of the land. | | **Renewable energy facility** |
| **Winery** | Land used to display, and sell by retail, vineyard products, in association with the growing of grape vines and the manufacture of the vineyard products. It may include the preparation and sale of food and drink for consumption on the premises. | | |
| **Zoo** | | | **Outdoor recreation facility** |

## 73.04 NESTING DIAGRAMS

08/08/2019
VC159

The information in the table to Clause 73.03 is set out in the following diagrams as a means of indicating the nesting of land use terms.

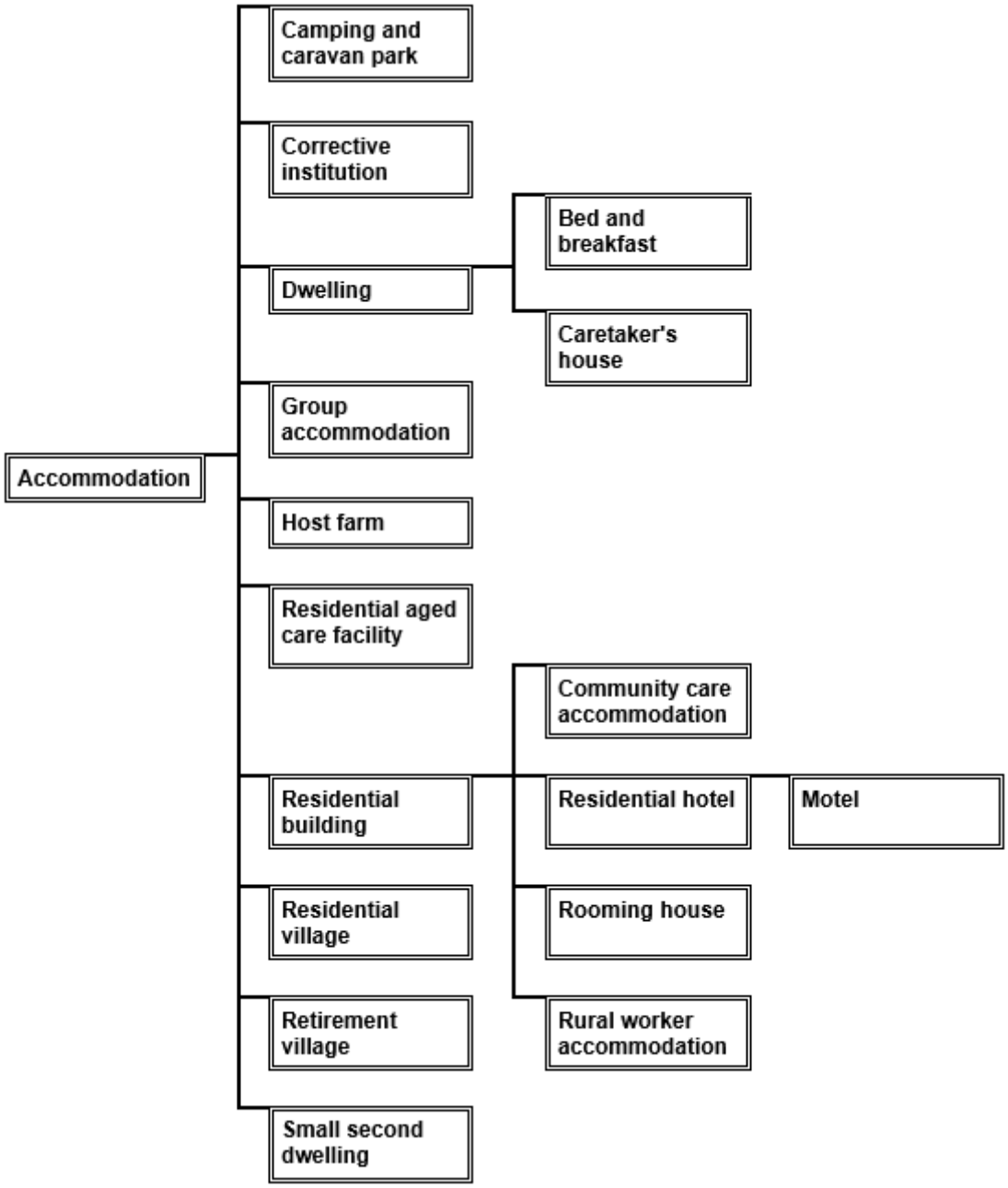
The table to Clause 73.03 prevails if there is any inconsistency between the table and the diagrams or list.

Land use terms that are not nested are listed at Clause 73.04-17.

Land use terms in bold font are defined in Clause 73.03.

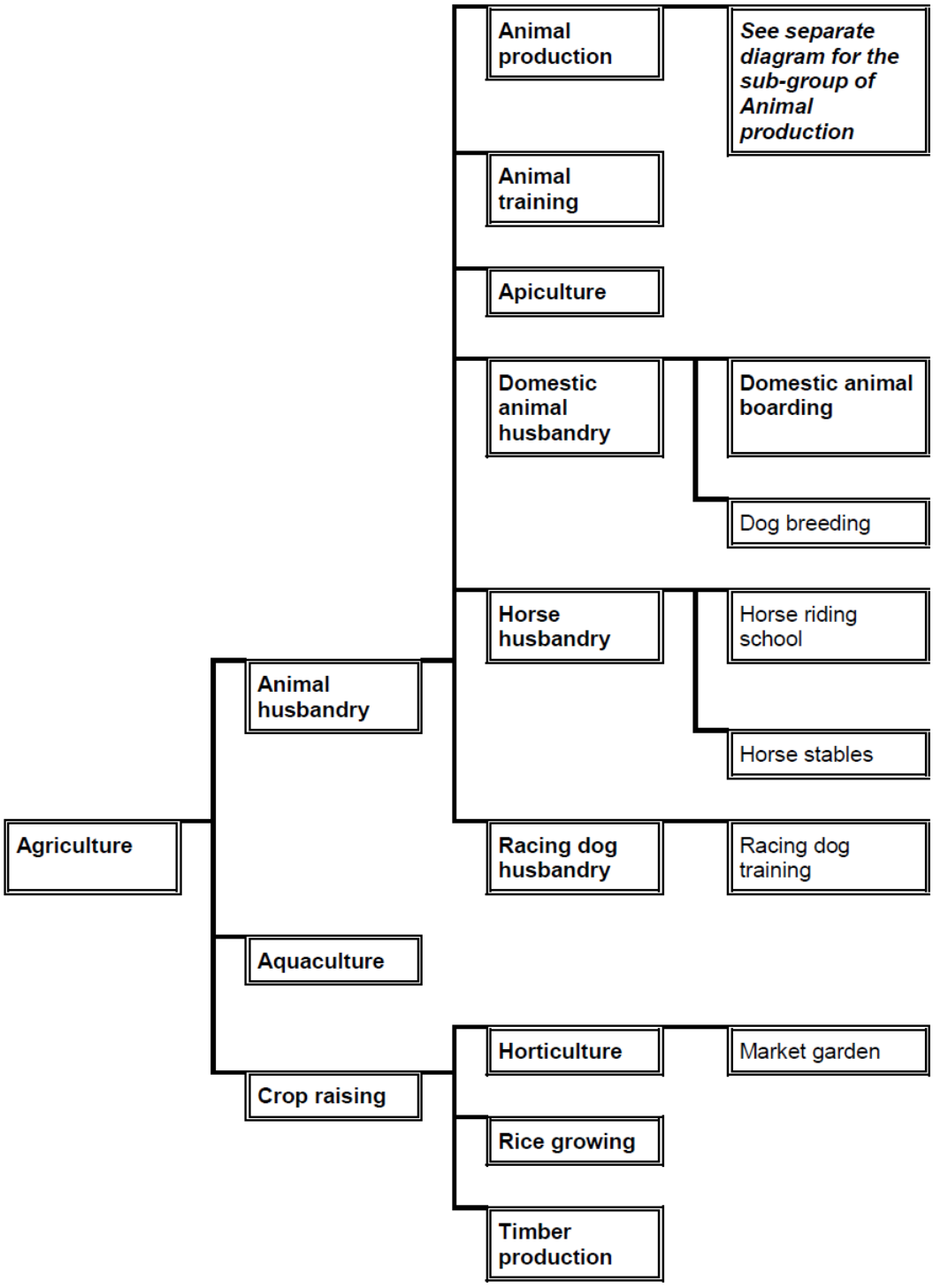
### 73.04-1 Accommodation group

14/12/2023
VC253



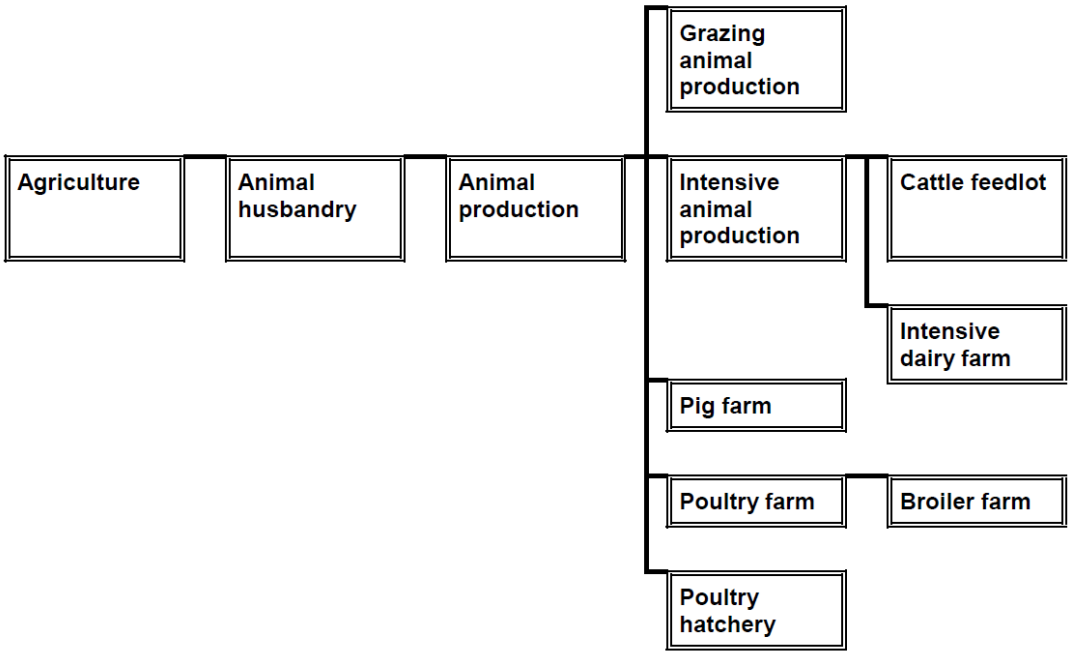
## 73.04-2 Agriculture group

08/08/2019
VC159



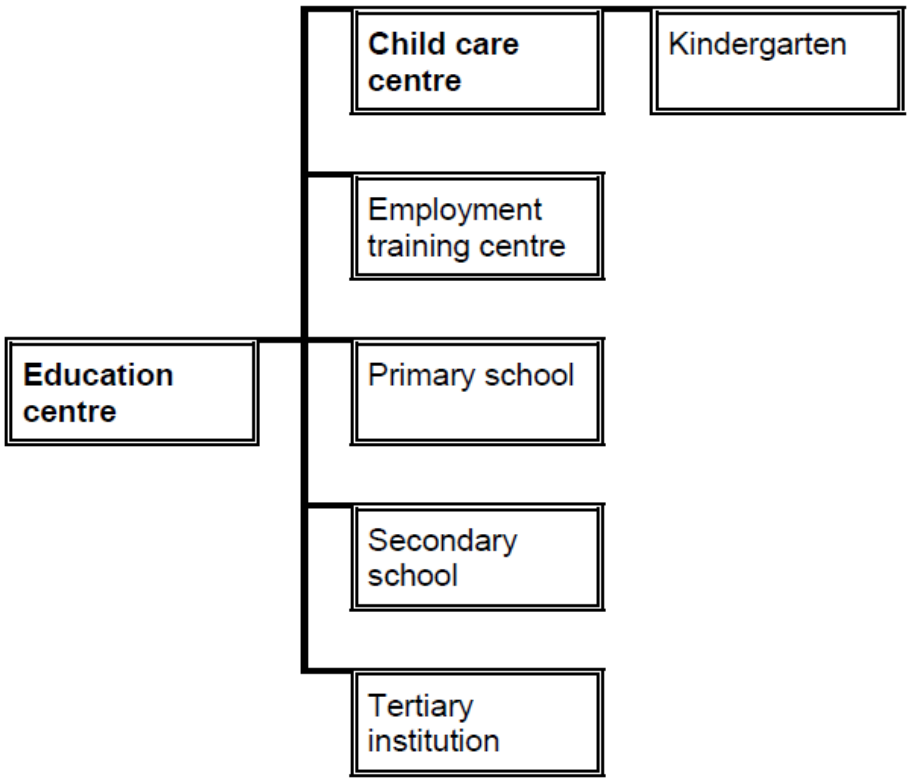
## 73.04-3 Agriculture group (sub-group of Animal production)

24/01/2020
VC160



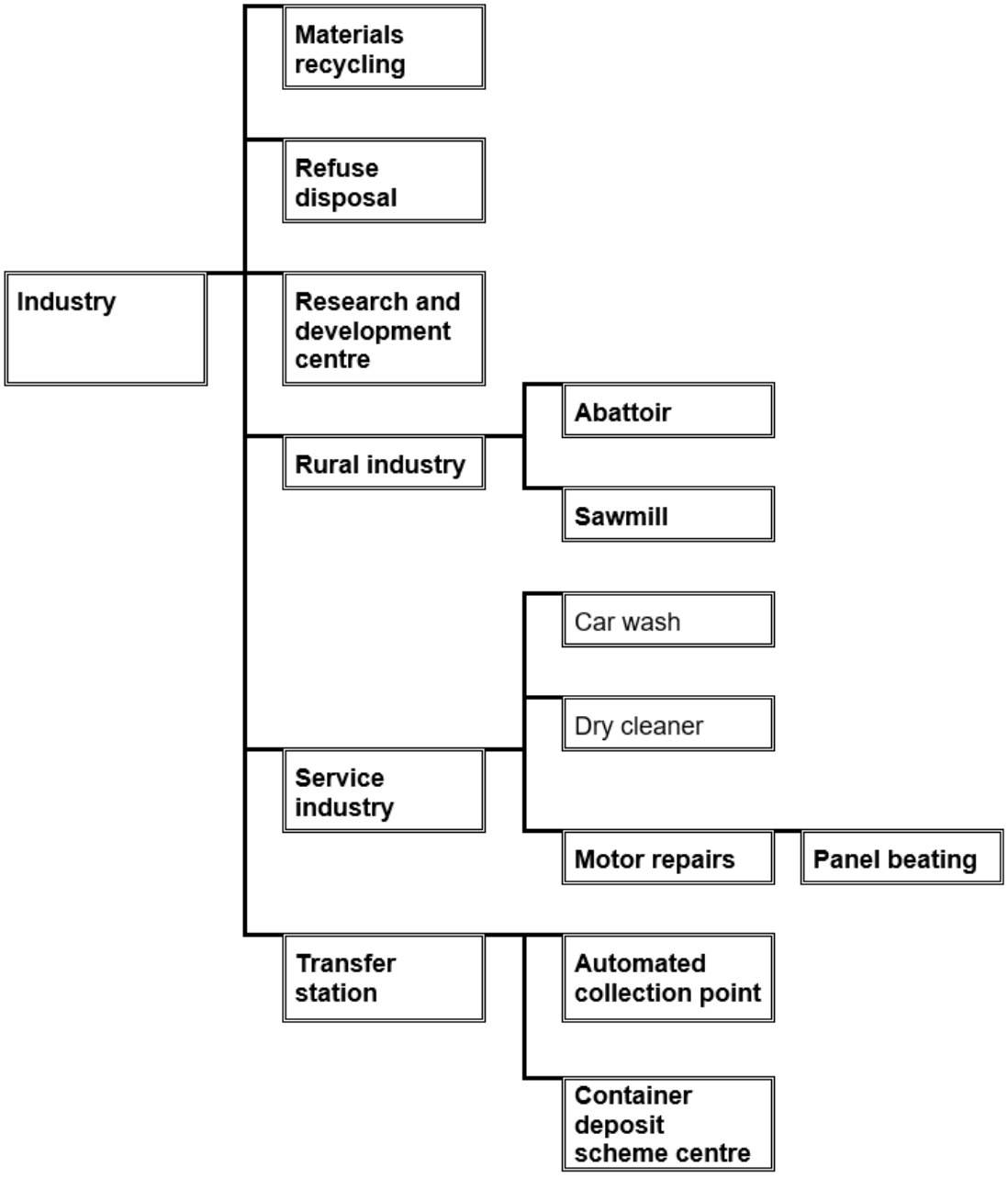

## 73.04-4 Education centre group

24/01/2020
VC160



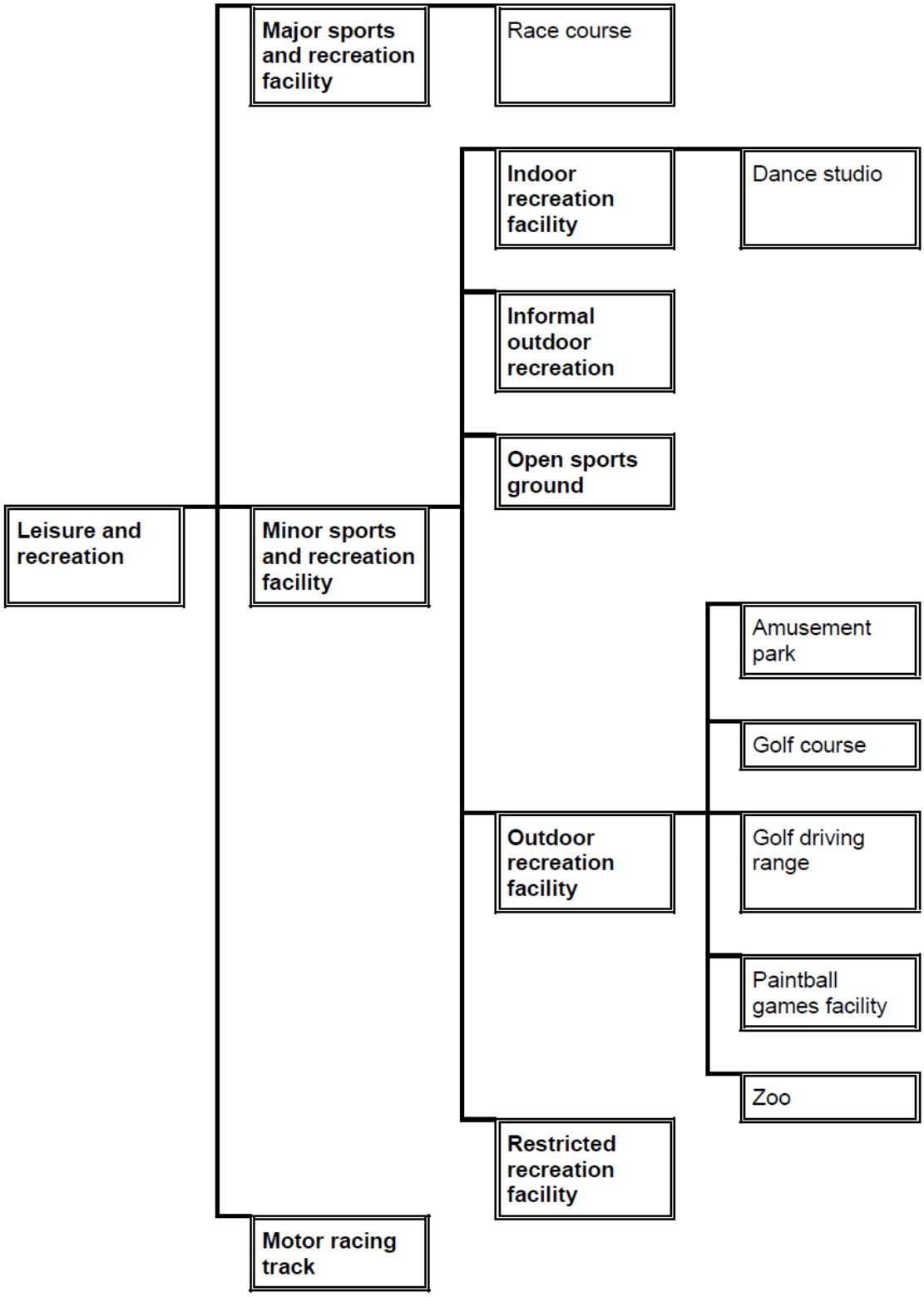
## 73.04-5 Industry group

26/09/2023
VC246



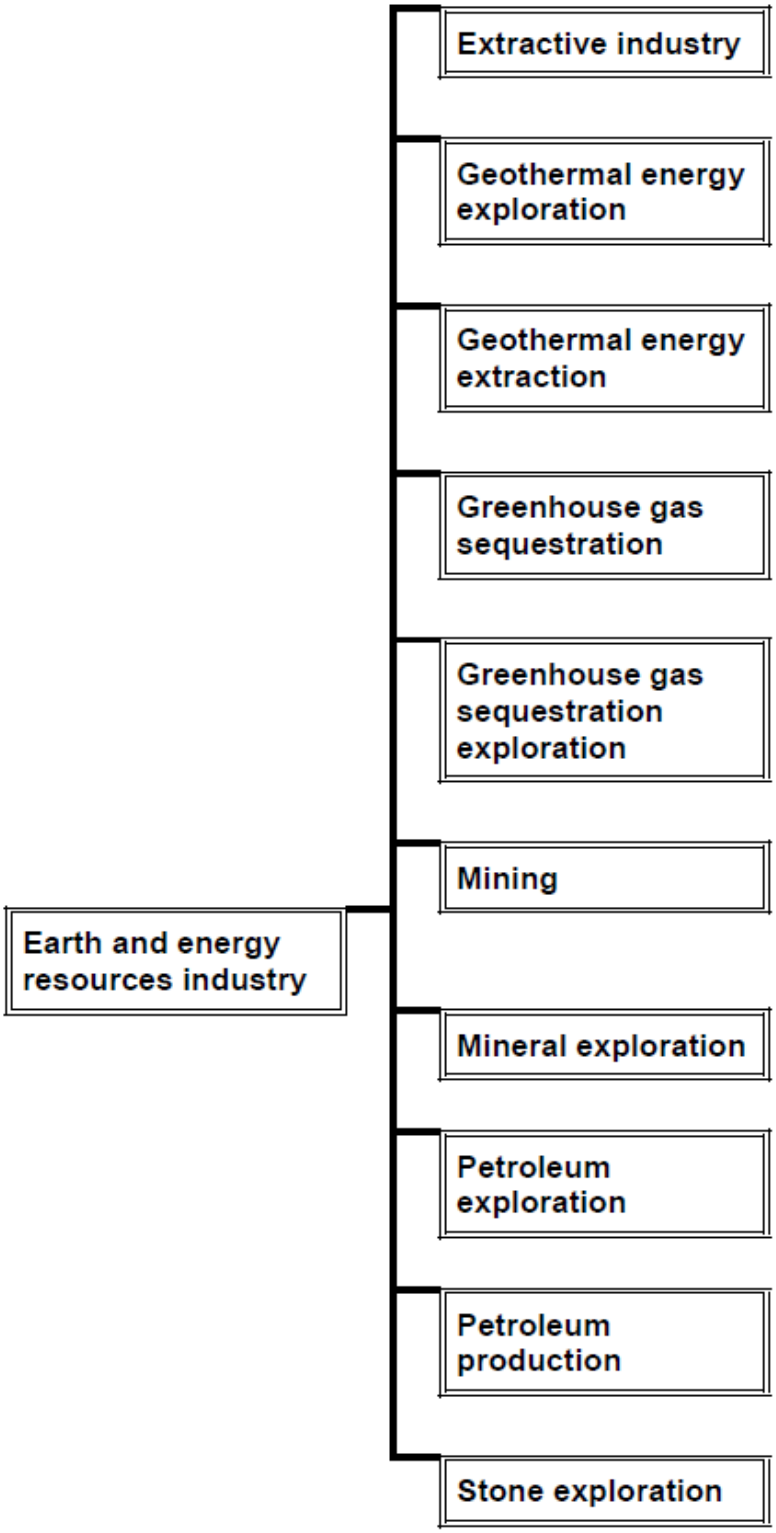
## 73.04-6 Leisure and recreation group

16/08/2019
VC163



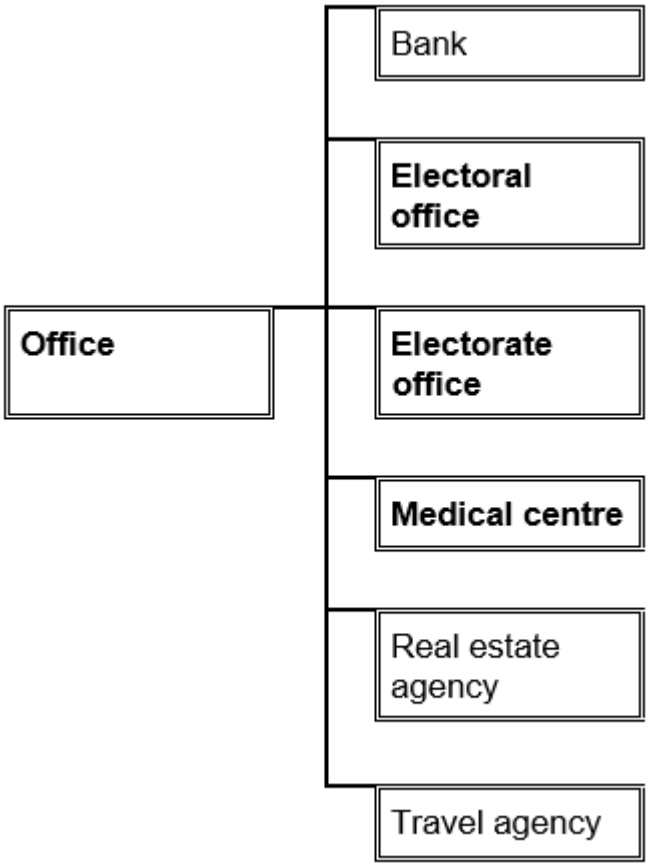
## 73.04-7 Earth and energy resources group

24/01/2020
VC160



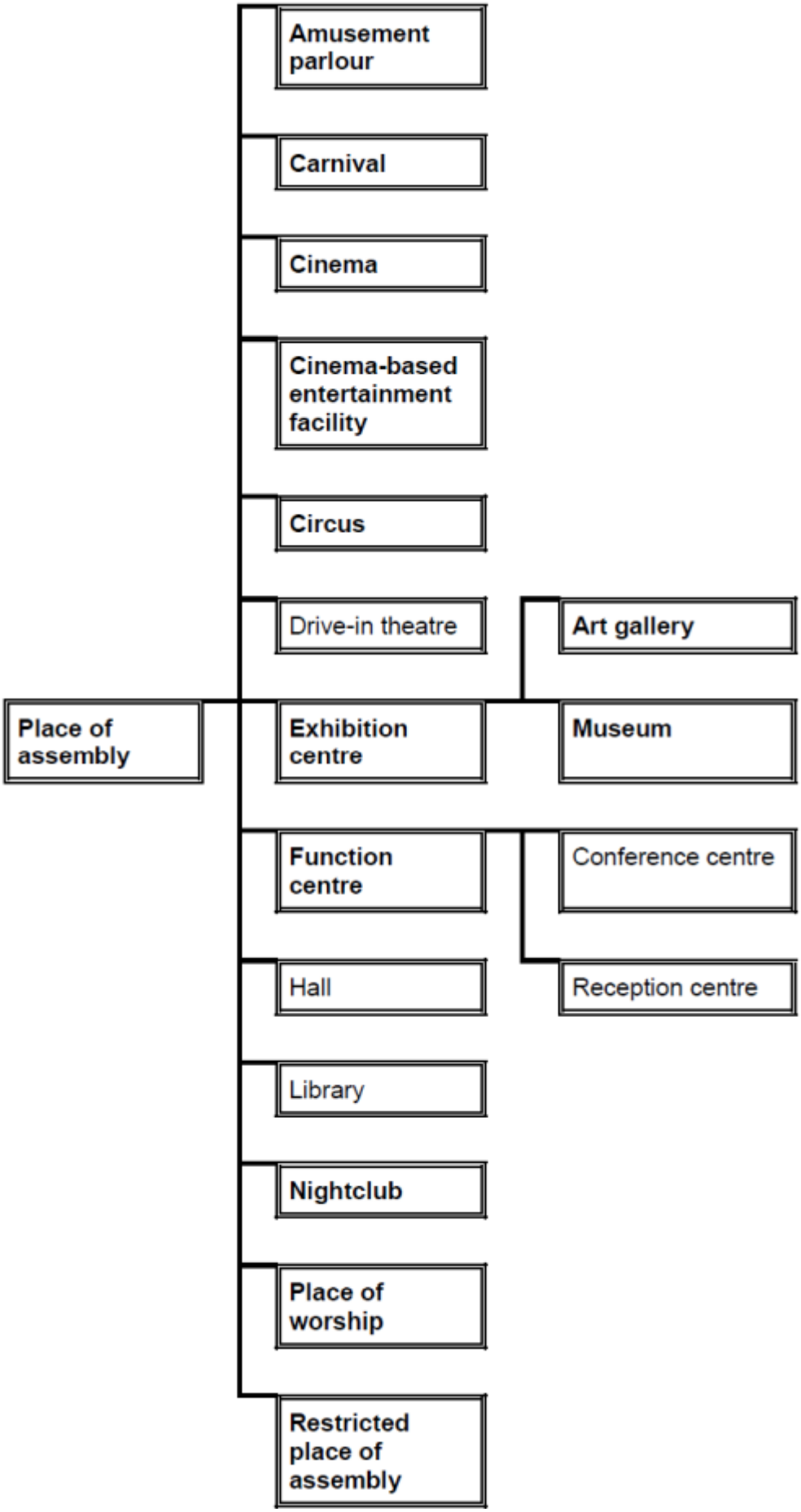
## 73.04-8 Office group

28/10/2022
VC224



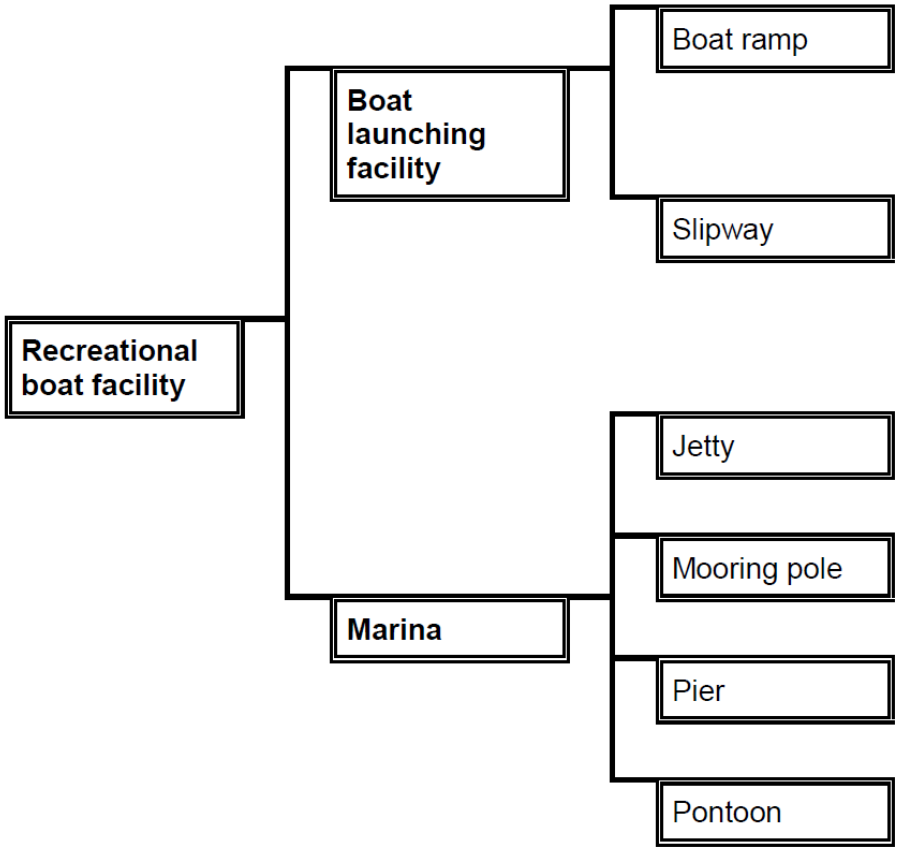
## 73.04-9 Place of assembly group

16/08/2019
VC163



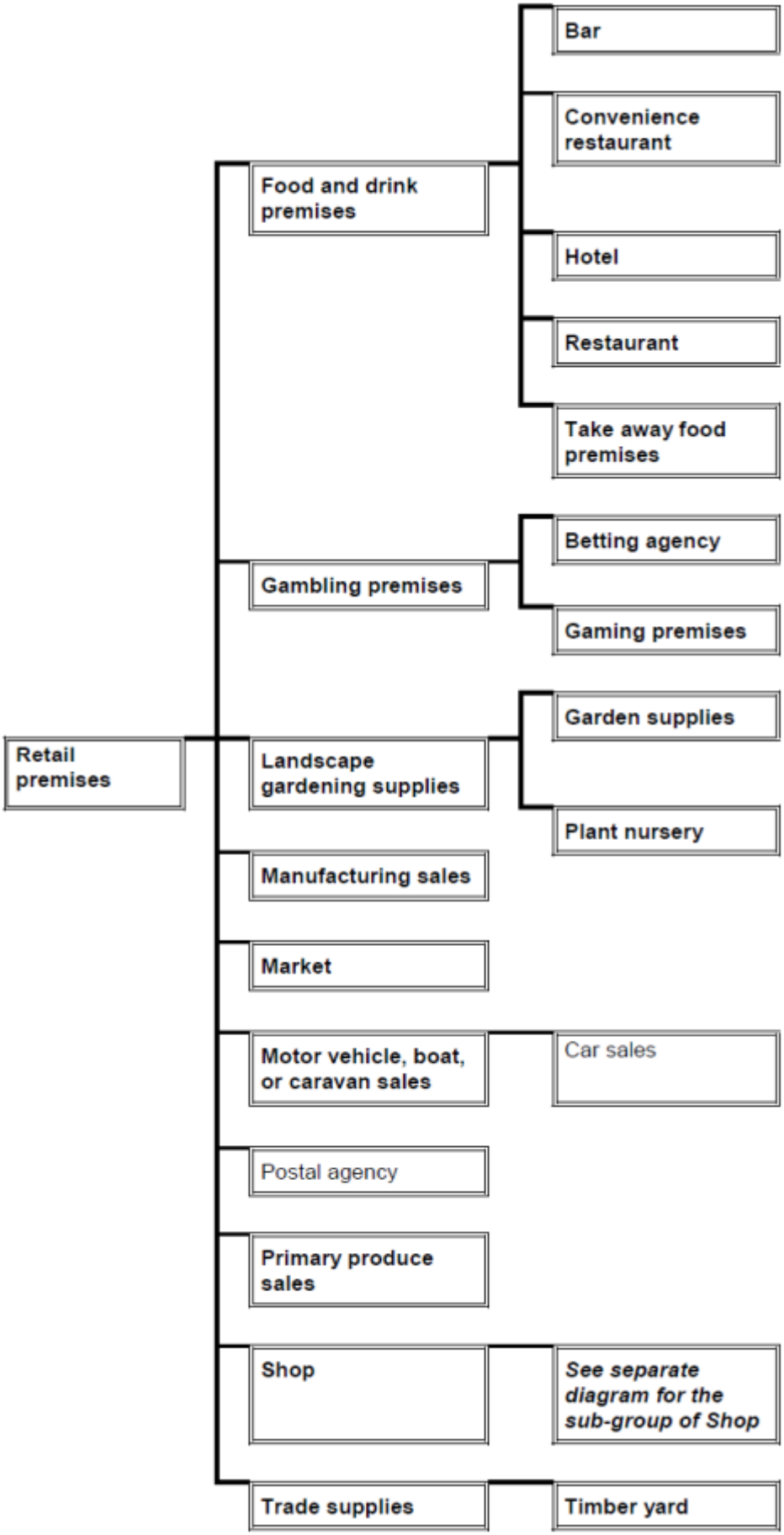
## 73.04-10 Recreational boat facility group

24/01/2020
VC160



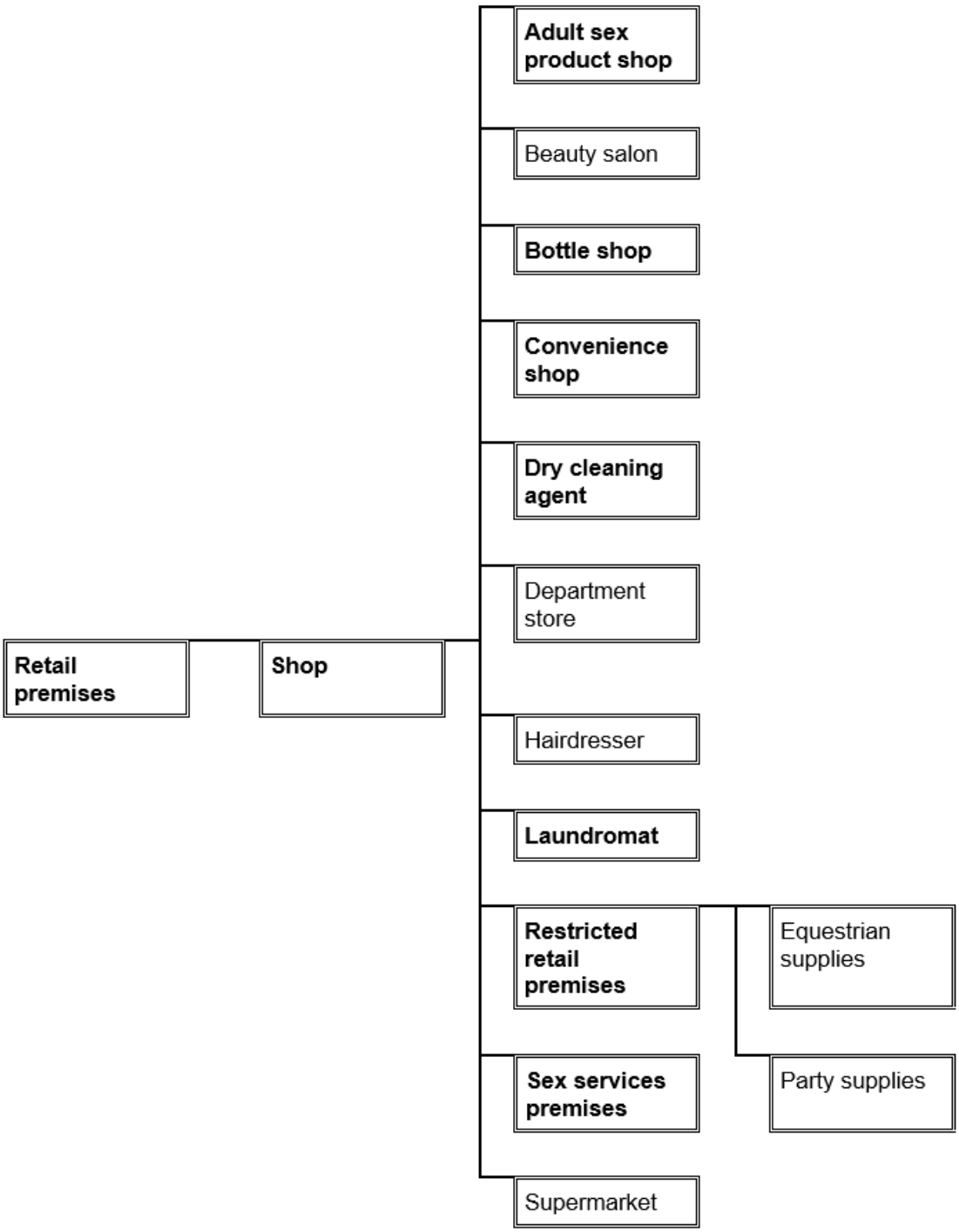
## 73.04-11 Retail premises group

16/08/2019
VC163



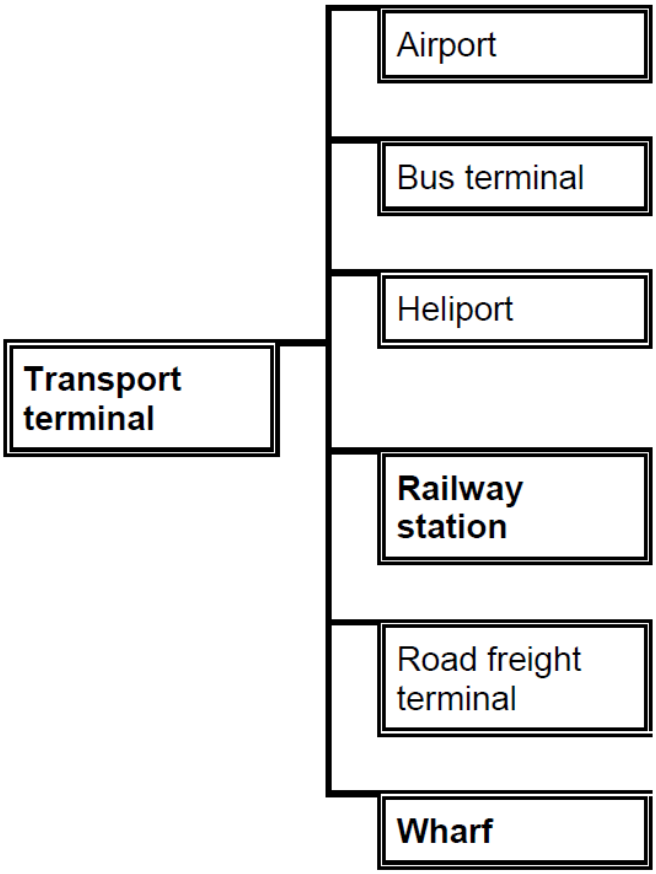
## 73.04-12 Retail premises group (sub-group of Shop)

01/12/2023
VC217



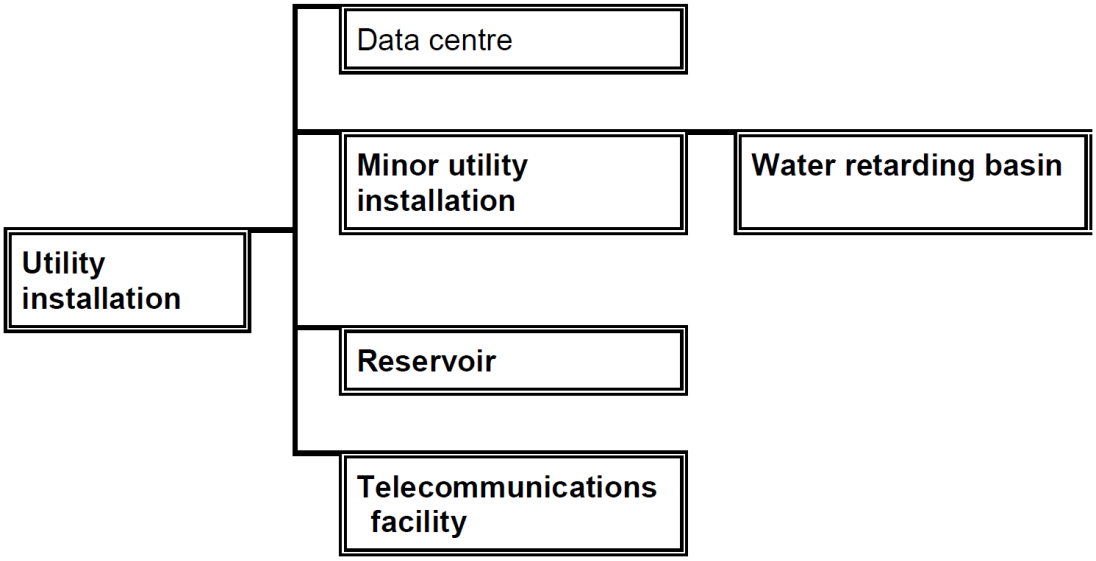
## 73.04-13 Transport terminal group

24/01/2020
VC160



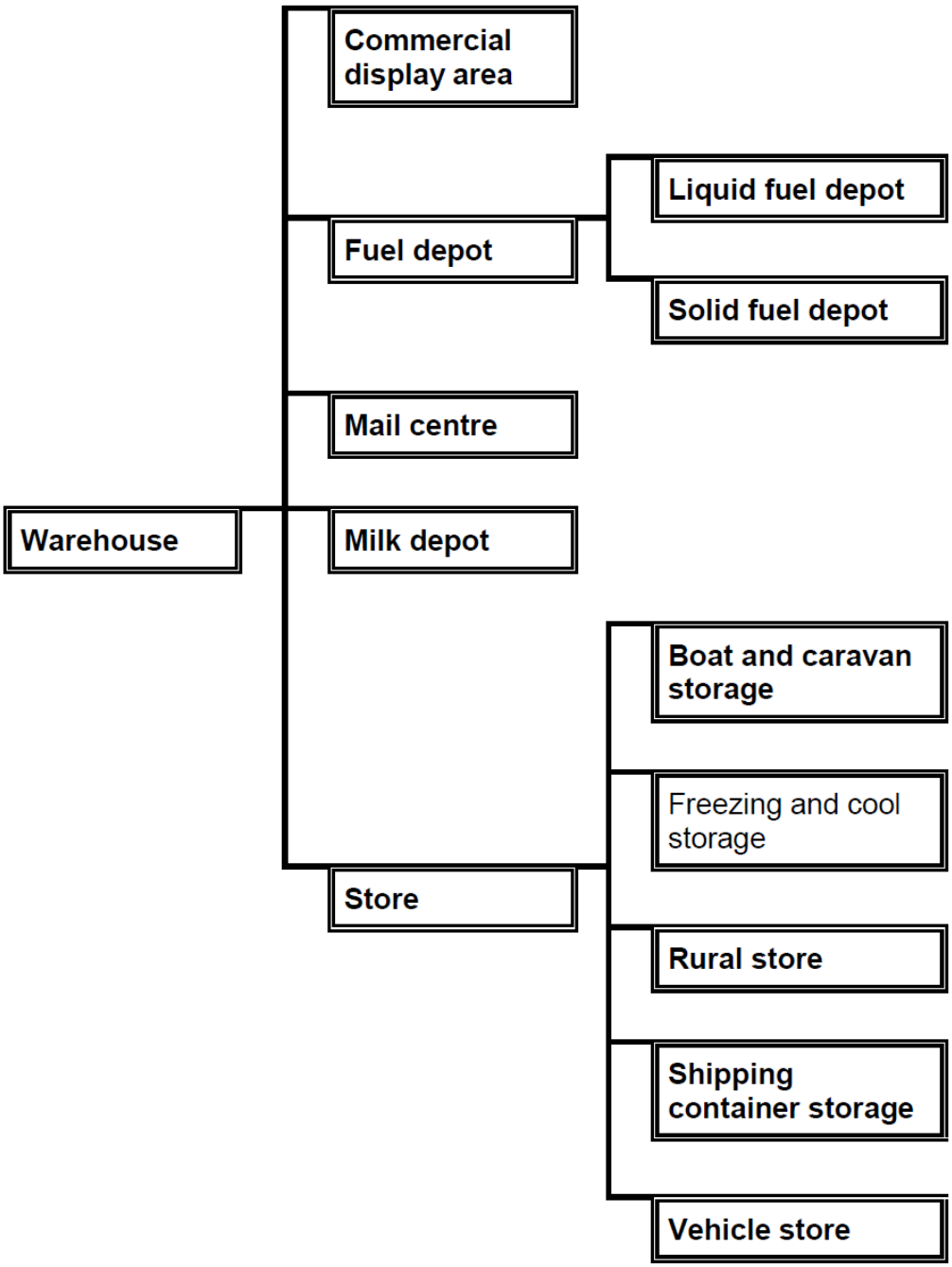

## 73.04-14 Utility installation group

08/08/2019
VC159



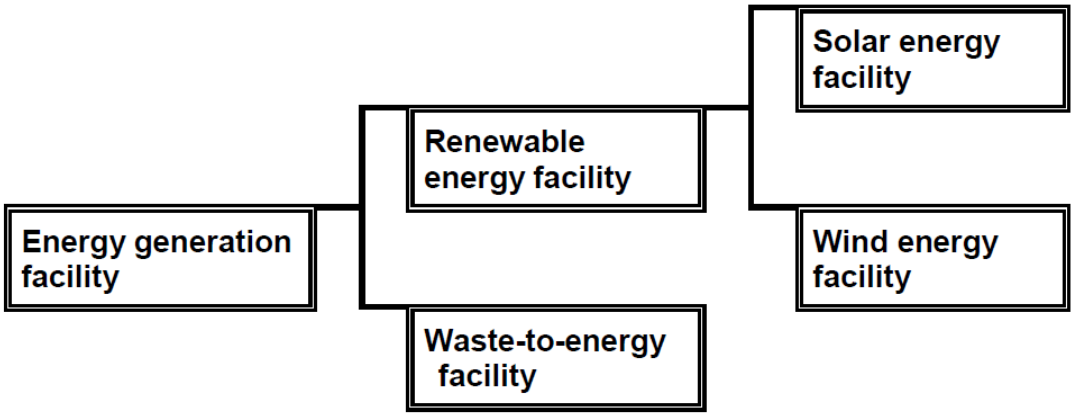
## 73.04-15 Warehouse group

24/01/2020
VC160



## 73.04-16 Energy Group

24/01/2020
VC160



## 73.04-17 Land use terms that are not nested

01/12/2023
VC217

**Art and craft centre**

**Car park**

**Cemetery**

**Crematorium**

**Display home centre**

**Emergency services facility**

**Freeway service centre**

**Funeral parlour**

**Helicopter landing site**

**Home based business**

**Hospital**

**Interpretation centre**

**Natural systems**

**Research centre**

**Saleyard**

**Service station**

**Sign**

**Tramway**

**Veterinary centre**

**Winery**

# 74 STRATEGIC IMPLEMENTATION

31/07/2018
VC148

## 74.01 APPLICATION OF ZONES, OVERLAYS AND PROVISIONS

31/07/2018
VC148

The schedule to this clause must include a general explanation of the relationship between the Municipal Planning Strategy, the objectives and strategies in Clauses 10 to 19 and the controls on the use and development of land in this planning scheme.

A planning authority must take into account the schedule to this clause when it prepares an amendment to this planning scheme.

A responsible authority must not take into account the schedule to this clause when it makes a decision under this planning scheme.

13/03/2026
C271card

# SCHEDULE TO CLAUSE 74.01 APPLICATION OF ZONES, OVERLAYS AND PROVISIONS

## 1.0 Application of zones, overlays and provisions

13/03/2026
C271card

This planning scheme applies the following zones, overlays and provisions to implement the Municipal Planning Strategy and the objectives and strategies in Clauses 11 to 19:

- Green Wedge Zone and Green Wedge A Zone to support agricultural uses and to protect environmental and cultural values of green wedge land.
- Rural Conservation Zone to areas of high biodiversity value.
- Farming Zone to undeveloped farmland within the Urban Growth Boundary or township boundaries that has been identified for future rezoning for urban uses.
- Residential Growth Zone to encourage a diversity of housing types in locations offering good access to services and transport.
- General Residential Zone to encourage a diversity of housing types that respect the neighbourhood and landscape character of the area.
- Neighbourhood Residential Zone for to ensure that development respects the identified character, heritage and landscape characteristics of the area.
- Low Density Residential Zone to land located within the urban growth boundary and within townships where bushfire exposure is not higher than 12.5 kw/sqm and development can be adequately serviced.
- Mixed Use Zone to designate activity centres with a mixed-use function and community activity clusters.
- Urban Growth Zone to manage the transition of non-urban land to urban land in accordance with a precinct structure plan.
- Comprehensive Development Zone to substantial development and re-development sites with a mix of uses.
- Special Use Zone:
  - Schedule 1 (Horticultural Preservation) to land of high agricultural quality for horticultural preservation.
  - Schedule 2 (Recreation and Tourism) to land to preserve and enhance the establishment of tourism and recreation facilities.
  - Schedule 3 (Tynong Racecourse and Training Facility) to land containing the Tynong Racecourse and Training Facility.
  - Schedule 4 (Special Use Zone Growth Areas (Cardinia Road Employment Precinct)) to land containing the Cardinia Road Employment Precinct.
  - Schedule 5 (Cardinia Motor Recreation and Education Park) to land containing the Cardinia Motor Recreation and Education Park.
  - Schedule 6 (Private Education Facility) to land in private ownership to be used for an education centre to ensure that the use and development of these facilities takes place in an orderly and proper manner and does not cause loss of amenity to the neighbourhood.
  - Schedule 7 (South East Food Production, Export and Employment Node) to land containing the South East Food Production, Export and Employment Node.
- Activity Centre Zone to encourage a mix of uses and more intensive development in high order activity centres.
- Commercial 1 Zone:

  - to encourage the intensive development of business centres for retaining and other complementary commercial, entertainment and community uses.
  - to encourage the development of offices and associated commercial uses.
- Commercial 2 Zone to encourage the development of a mix of bulky goods retailing and manufacturing industry and their associated business services.
- Industrial 1 Zone to land identified for industrial use and development.
- Public Use Zone to publicly owned community facility sites to facilitate their development.
- Public Park and Recreation Zone to areas for public recreation and open space.
- Public Conservation and Resource Zone to areas of high biodiversity value.
- Transport Zone 1 to State transport infrastructure.
- Transport Zone 2 to Principal Road network.
- Transport Zone 3 to significant municipal roads.
- Transport Zone 4 to other transport uses.
- Urban Floodway Zone to waterways, major floodpaths, drainage depressions and high hazard areas within urban areas which have the greatest risk and frequency of being affected by flooding.
- Environmental Significance Overlay to allow for development that is compatible with identified environmental values.
- Vegetation Protection Overlay to protect areas of significant vegetation.
- Significant Landscape Overlay to conserve and enhance the character of significant landscapes.
- Heritage Overlay to identified heritage places and associated parcels of land to conserve and enhance heritage places of natural or cultural significance.
- Design and Development Overlay to implement urban design frameworks and guidelines.
- Incorporated Plan Overlay Schedule 1 to ensure appropriate development and design principles are employed and to guide and facilitate development of land in accordance with an incorporated plan.
- Development Plan Overlay to ensure appropriate development and design principles are employed and to guide and facilitate development of land in accordance with a development plan.
- Erosion Management Overlay to areas prone to erosion, landslip or other land degradation processes.
- Floodway Overlay to waterways, major floodpaths, drainage depressions and high hazard areas which have the greatest risk and frequency of being affected by flooding.
- Land Subject to Inundation Overlay to land in a flood storage or flood fringe area affected by the 1 in 100 year flood or any other area determined by the floodplain management authority.
- Special Building Overlay to land in urban areas liable to inundation by overland flows from the urban drainage system as determined by, or in consultation with, the floodplain management authority.
- Bushfire Management Overlay to ensure that the development of land prioritises the protection of human life and strengthens community resilience to bushfire.
- Public Acquisition Overlay to land required for road improvements such as widening and realignments, [and land required for future public transport and associated use.
- Environmental Audit Overlay to potentially contaminated land.
- Road Closure Overlay to a road that is closed by an amendment to this planning scheme.

- Restructure Overlay to facilitate the restructuring of old and inappropriate subdivisions within rural townships.
- Development Contributions Plan Overlay to facilitate the levying of contributions for the timely provision of works, services and facilities for identified areas within the Urban Established Area and the Urban Growth Area.
- Parking Overlay to land within activity centres where financial contributions are to be made towards the provision of public car parking.
- Infrastructure Contributions Overlay to facilitate the levying of contributions for the timely provision of works, services and facilities for identified areas within the Urban Established Area and the Urban Growth Area.

## 74.02 FURTHER STRATEGIC WORK

31/07/2018
VC148

The schedule to this clause may specify the planning authority's approach to further strategic work.

A planning authority may take into account the schedule to this clause when it prepares an amendment to this planning scheme.

The responsible authority must not take into account the schedule to this clause when it makes a decision under this planning scheme.

13/03/2026
C271card

# SCHEDULE TO CLAUSE 74.02 FURTHER STRATEGIC WORK

## 1.0 Further strategic work

13/03/2026
C271card

Review the Comprehensive Development Zone and rezone to standard zones where development is complete.

In consultation with the local community, prepare a policy statement for all small rural townships that will establish a basis for future strategic planning decisions in each township.

Preparing Township Strategies for large rural townships where one has not yet been prepared.

Develop a policy for the provisions of open space in commercial and industrial areas for inclusion in the schedule to Clause 53.01 seeking a contribution rate of 2%.

Finalise the draft Developer Landscape Guidelines and implement appropriate planning policy.

Development of a policy for replacement planting ratios for the removal of vegetation in an Environmental Significance Overlay, Significant Landscape Overlay and Vegetation Protection Overlay.

Prepare local policies to address the siting and design of horticultural structures, and the siting and design of large sheds in rural areas, and investigate whether a single policy can address both issues.

Identify and map areas of endangered flora and fauna such as Growling Grass Frog and Southern Brown Bandicoot for inclusion in the Environmental Significance Overlay or Vegetation Protection Overlay.

Preparing a strategy for the Lang Lang region to outline the preferred adaptive re-use of land once sand extraction has been completed.

Prepare a local policy providing Design Guidelines for Industrial Development and the application of a Design and Development Overlay to existing and future industrial land, including the industrial land on Bald Hill Road and around Purton Road.

Review the application of all industrial zones to identify land that is appropriate to rezone to the Commercial 2 Zone, Commercial 3 Zone, or Industrial 3 Zone.

Prepare Green Wedge Management Plans for the Northern Ranges Green Wedge and the Southern Ranges Green Wedge areas.

Develop a local policy that addresses uses in the Green Wedge Zones that are required to be in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery, and sets out parameters of how these uses are to be established.

Prepare a local policy to provide guidance on boundary realignments in green wedge areas, including policy to ensure new dwellings are associated with agricultural or horticultural uses farm.

Progressively undertake reviews of each Township Strategy.

Prepare Precinct Structure Plans, Activity Centre Structure Plans and Infrastructure Contribution Plans for precincts within the Urban Growth Boundary where one has not been prepared. Develop local sustainable buildings guidelines.

Develop local sustainable building guidelines.

Include Puffing Billy Railway land in a Public Use Zone to allow the operation of the railway as provided for under the Emerald Tourist Railway Act.

In partnership with State Government Departments develop a strategy and finalise a preferred site for a possible future airport should demand warrant this beyond 2030 and apply zones and overlays to protect:

- the preferred site for use as a general aviation airport.
- flight paths and noise contours in the proposed airport environs.

- associated industrial and commercial land.
- a rail alignment between the preferred site and the rail line at Clyde.

Support the progressive development of the Cardinia Creek Regional Parklands as a regional passive recreation resource and for the protection of the creek environs as outlined in the *Cardinia Creek Parklands Future Direction Plan, 2002*.